SUPPLEMENT NO. 56
June 2026

**CODE OF ORDINANCES**

**City of**

**CHARLESTON, WEST VIRGINIA**

**Looseleaf Supplement**

This Supplement contains all ordinances deemed advisable to be included at this time through:

**Bill No. 8069, enacted March 16, 2026.**

See the Code Comparative Table—Ordinances for further information.

| *Remove Old Pages* | *Insert New Pages* |
|---|---|
| Checklist of up-to-date pages | Checklist of up-to-date pages (following Table of Contents) |
| SH:3, SH:4 | SH:3, SH:4 |
| CD54:7—CD54:12 | CD54:7—CD54:12 |
| CD58:5—CD58:7 | CD58:5—CD58:7 |
| CCT:21 | CCT:21 |

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 55
February 2026

**CODE OF ORDINANCES**

**City of**

**CHARLESTON, WEST VIRGINIA**

**Looseleaf Supplement**

This Supplement contains all ordinances deemed advisable to be included at this time through:

**Bill No. 8061, enacted December 1, 2025.**

See the Code Comparative Table—Ordinances for further information.

| *Remove Old Pages* | *Insert New Pages* |
|---|---|
| Checklist of up-to-date pages | Checklist of up-to-date pages (following Table of Contents) |
| SH:3, SH:4 | SH:3, SH:4 |
| CD54:21—CD54:23 | CD54:21—CD54:23 |
| CCT:21 | CCT:21 |

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 54
November 2025

**CODE OF ORDINANCES**

**City of**

**CHARLESTON, WEST VIRGINIA**

**Looseleaf Supplement**

This Supplement contains all ordinances deemed advisable to be included at this time through:

**Bill No. 8062, enacted August 18, 2025.**

See the Code Comparative Table—Ordinances for further information.

| *Remove Old Pages* | *Insert New Pages* |
|---|---|
| xix, xx | xix, xx |
| Checklist of up-to-date pages | Checklist of up-to-date pages (following Table of Contents) |
| SH:3, SH:4 | SH:3, SH:4 |
| CD54:11, CD54:12 | CD54:11, CD54:12 |
| CD66:5, CD66:6 | CD66:5, CD66:6 |
| CD86:5—CD86:8 | CD86:5—CD86:8 |
| CD110:15—CD110:18.8 | CD110:15—CD110:18.8 |
| CCT:21 | CCT:21 |
| SLT:3—SLT:11 | SLT:3—SLT:11 |

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 53
July 2025

**CODE OF ORDINANCES**

**City of**

**CHARLESTON, WEST VIRGINIA**

**Looseleaf Supplement**

This Supplement contains all ordinances deemed advisable to be included at this time through:

**Bill No. 8055, enacted May 19, 2025.**

See the Code Comparative Table—Ordinances for further information.

| *Remove Old Pages* | *Insert New Pages* |
|---|---|
| Checklist of up-to-date pages | Checklist of up-to-date pages (following Table of Contents) |
| SH:3, SH:4 | SH:3, SH:4 |
| CD6:9—CD6:16 | CD6:9—CD6:16 |
| CCT:21 | CCT:21 |
| SLT:1—SLT:11 | SLT:1—SLT:11 |

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 52
October 2024

**CODE OF ORDINANCES**

**City of**

**CHARLESTON, WEST VIRGINIA**

**Looseleaf Supplement**

This Supplement contains all ordinances deemed advisable to be included at this time through:

**Bill No. 8040, enacted July 15, 2024.**

See the Code Comparative Table—Ordinances for further information.

| *Remove Old Pages* | *Insert New Pages* |
|---|---|
| xiii—xxii | xiii—xxii |
| Checklist of up-to-date pages | Checklist of up-to-date pages (following Table of Contents) |
| SH:3, SH:4 | SH:3, SH:4 |
| CD2:49—CD2:52.1 | CD2:49—CD2:52.1 |
| CD6:11—CD6:15 | CD6:11—CD6:16 |
| CD10:1, CD10:2 | CD10:1, CD10:2 |
| CD10:17—CD10:19 | CD10:17—CD10:20 |
| CD78:3, CD78:4 | CD78:3, CD78:4 |
| CD78:21—CD78:30 | CD78:21—CD78:30 |
| CCT:21 | CCT:21 |
| SLT:1—SLT:11 | SLT:1—SLT:11 |
| CDi:1—CDi:79 | CDi:1—CDi:79 |

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
POWERED BY CIVICPLUS
info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 51
July 2024

**CODE OF ORDINANCES**

**City of**

**CHARLESTON, WEST VIRGINIA**

**Looseleaf Supplement**

This Supplement contains all ordinances deemed advisable to be included at this time through:

**Bill No. 8031, enacted April 15, 2024.**

See the Code Comparative Table—Ordinances for further information.

| *Remove Old Pages* | *Insert New Pages* |
|---|---|
| xiii—xxii | xiii—xxii |
| Checklist of up-to-date pages | Checklist of up-to-date pages (following Table of Contents) |
| SH:3, SH:4 | SH:3, SH:4 |
| CD6:3 | CD6:3 |
| CD6:9—CD6:15 | CD6:9—CD6:15 |
| CD114:3—CD114:8 | CD114:3—CD114:8 |
| CD114:35—CD114:42 | CD114:35—CD114:42.1 |
| CD114:60.1—CD114:72 | CD114:61—CD114:76 |
| CCT:21 | CCT:21 |
| SLT:7—SLT:11 | SLT:7—SLT:11 |
| CDi:1—CDi:79 | CDi:1—CDi:79 |

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 50
May 2024

**CODE OF ORDINANCES**

**City of**

**CHARLESTON, WEST VIRGINIA**

**Looseleaf Supplement**

This Supplement contains all ordinances deemed advisable to be included at this time through:

**Bill No. 8028, enacted February 20, 2024.**

See the Code Comparative Table—Ordinances for further information.

| *Remove Old Pages* | *Insert New Pages* |
|---|---|
| xiii—xxii | xiii—xxii |
| Checklist of up-to-date pages | Checklist of up-to-date pages (following Table of Contents) |
| SH:3, SH:4 | SH:3, SH:4 |
| CD2:57—CD2:63 | CD2:57—CD2:63 |
| CD18:3—CD18:7 | CD18:3—CD18:7 |
| CD18:27—CD18:29 | CD18:27 |
| CD18:39—CD18:42.5 | CD18:39—CD18:42.3 |
| CD110:15—CD110:18.8 | CD110:15—CD110:18.8 |
| CCT:21 | CCT:21 |
| CDi:1—CDi:80 | CDi:1—CDi:79 |

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 49
March 2024

**CODE OF ORDINANCES**

**City of**

**CHARLESTON, WEST VIRGINIA**

**Looseleaf Supplement**

This Supplement contains all ordinances deemed advisable to be included at this time through:

**Bill No. 8018, enacted November 6, 2023.**

See the Code Comparative Table for further information.

| *Remove Old Pages* | *Insert New Pages* |
|---|---|
| xvii—xxii | xvii—xxii |
| Checklist of up-to-date pages | Checklist of up-to-date pages (following Table of Contents) |
| SH:3, SH:4 | SH:3, SH:4 |
| CD2:33—CD2:36 | CD2:33—CD2:36 |
| CD50:17—CD50:21 | CD50:17—CD50:21 |
| CD54:1, CD54:2 | CD54:1, CD54:2 |
| CD54:11—CD54:17 | CD54:11—CD54:23 |
| CD65:5—CD65:7 | CD65:5—CD65:7 |
| CD82:3, CD82:4 | CD82:3, CD82:4 |
| CCT:21 | CCT:21 |
| CDi:1—CDi:80 | CDi:1—CDi:80 |

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 48
November 2023

**CODE OF ORDINANCES**

**City of**

**CHARLESTON, WEST VIRGINIA**

**Looseleaf Supplement**

This Supplement contains all ordinances deemed advisable to be included at this time through:

**Resolution No. 885-23, enacted October 2, 2023.**

See the Code Comparative Table for further information.

| *Remove Old Pages* | *Insert New Pages* |
|---|---|
| xiii—xxii | xiii—xxii |
| Checklist of up-to-date pages | Checklist of up-to-date pages (following Table of Contents) |
| SH:3, SH:4 | SH:3, SH:4 |
| CD2:49—CD2:52 | CD2:49—CD2:52.1 |
| CD6:1, CD6:2 | CD6:1—CD6:3 |
| CD6:3—CD6:8 | CD6:5—CD6:15 |
| CD110:17—CD110:18.8 | CD110:17—CD110:18.8 |
| CD111:7, CD111:8 | CD111:7, CD111:8 |
| CDA:1 | CDA:1 |
| CDA:7, CDA:8 | CDA:7, CDA:8 |
| CCT:19, CCT:20 | CCT:19—CCT:21 |
| SLT:3—SLT:11 | SLT:3—SLT:11 |
| CDi:1—CDi:80 | CDi:1—CDi:80 |

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 47
July 2023

**CODE OF ORDINANCES**

**City of**

**CHARLESTON, WEST VIRGINIA**

**Looseleaf Supplement**

This Supplement contains all ordinances deemed advisable to be included at this time through:

**Bill No. 7994, enacted June 5, 2023.**

See the Code Comparative Table for further information.

| *Remove Old Pages* | *Insert New Pages* |
|---|---|
| xiii—xviii | xiii—xviii |
| Checklist of up-to-date pages | Checklist of up-to-date pages (following Table of Contents) |
| SH:3 | SH:3, SH:4 |
| CD2:3, CD2:4 | CD2:3, CD2:4 |
| CD2:21—CD2:30 | CD2:21—CD2:30.2 |
| CD54:5—CD54:12 | CD54:5—CD54:12 |
| CD58:1 | CD58:1 |
| CD58:3—CD58:6 | CD58:3—CD58:7 |
| CD66:3, CD65:4 | CD66:3, CD65:4 |
| CCT:19, CCT:20 | CCT:19, CCT:20 |
| SLT:9—SLT:11 | SLT:9—SLT:11 |
| CDi:14.1—CDi:16 | CDi:15—CDi:16.1 |
| CDi:26.1—CDi:32 | CDi:27—CDi:32.1 |
| CDi:55—CDi:56.1 | CDi:55—CDi:56.1 |
| CDi:79, CDi:80 | CDi:79, CDi:80 |

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
POWERED BY CIVICPLUS
info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 46
January 2023

**CODE OF ORDINANCES**

**City of**

**CHARLESTON, WEST VIRGINIA**

**Looseleaf Supplement**

This Supplement contains all ordinances deemed advisable to be included at this time through:

**Resolution No. 754-23, enacted January 3, 2023.**

See the Code Comparative Table for further information.

| *Remove Old Pages* | *Insert New Pages* |
|---|---|
| xiii—xxii | xiii—xxii |
| Checklist of up-to-date pages | Checklist of up-to-date pages (following Table of Contents) |
| SH:3 | SH:3 |
| CD2:5—CD2:6.1 | CD2:5—CD2:7 |
| CD2:7—CD2:8.1 | CD2:8.1—CD2:8.3 |
| CD2:50.1—CD2:61 | CD2:51—CD2:63 |
| CD65:1 | CD65:1 |
| CD65:3, CD65:4 | CD65:3, CD65:4 |
| CD110:18.5—CD110:18.8 | CD110:18.5—CD110:18.8 |
| CDA:1 | CDA:1 |
| CDA:3—CDA:8 | CDA:3—CDA:8 |
| CCT:19, CCT:20 | CCT:19, CCT:20 |
| SLT:1—SLT:11 | SLT:1—SLT:11 |
| CDi:7—CDi:12 | CDi:7—CDi:12.1 |
| CDi:35, CDi:36 | CDi:35, CDi:36 |
| CDi:76.1—CDi:80 | CDi:77—CDi:80 |

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 45
August 2022

**CODE OF ORDINANCES**

**City of**

**CHARLESTON, WEST VIRGINIA**

## Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

**Bill No. 7966, enacted July 18, 2022.**

See the Code Comparative Table for further information.

| *Remove Old Pages* | *Insert New Pages* |
|---|---|
| xv—xxii | xv—xxii |
| Checklist of up-to-date pages | Checklist of up-to-date pages (following Table of Contents) |
| SH:3 | SH:3 |
| CD2:1, CD2:2 | CD2:1, CD2:2 |
| CD2:13—CD2:14.3 | CD2:13—CD2:14.3 |
| CD14:3—CD14:6.4 | CD14:3—CD14:6.8 |
| CD98:1—CD98:15 | CD98:1—CD98:16 |
| CD114:7, CD114:8 | CD114:7, CD114:8 |
| CD114:69—CD114:71 | CD114:69—CD114:72 |
| CCT:19, CCT:20 | CCT:19, CCT:20 |
| SLT:1—SLT:11 | SLT:1—SLT:11 |
| CDi:15—CDi:18 | CDi:15—CDi:18 |
| CDi:27, CDi:28 | CDi:27, CDi:28 |
| CDi:31, CDi:32 | CDi:31, CDi:32 |
| CDi:49, CDi:50 | CDi:49, CDi:50 |
| CDi:61, CDi:62 | CDi:61, CDi:62 |
| CDi:71—CDi:72.1 | CDi:71—CDi:72.1 |

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 44
April 2022

**CODE OF ORDINANCES**

**City of**

**CHARLESTON, WEST VIRGINIA**

**Looseleaf Supplement**

This Supplement contains all ordinances deemed advisable to be included at this time through:

**Bill No. 7946, enacted February 7, 2022.**

See the Code Comparative Table for further information.

| *Remove Old Pages* | *Insert New Pages* |
|---|---|
| xxi, xxii | xxi, xxii |
| Checklist of up-to-date pages | Checklist of up-to-date pages (following Table of Contents) |
| SH:3 | SH:3 |
| CD2:43—CD2:50 | CD2:43—CD2:50.1 |
| CD14:15—CD14:20 | CD14:15—CD14:20 |
| CD114:60.1—CD114:60.4 | CD114:60.1—CD114:60.5 |
| CDA:1 | CDA:1 |
| CDA:7 | CDA:7, CDA:8 |
| CCT:19, CCT:20 | CCT:19, CCT:20 |
| SLT:1—SLT:11 | SLT:1—SLT:11 |
| CDi:57, CDi:58 | CDi:57, CDi:58 |

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
POWERED BY CIVICPLUS
info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 43
February 2022

**CODE OF ORDINANCES**

**City of**

**CHARLESTON, WEST VIRGINIA**

**Looseleaf Supplement**

This Supplement contains all ordinances deemed advisable to be included at this time through:

**Bill No. 7927, enacted November 15, 2021.**

See the Code Comparative Table for further information.

| *Remove Old Pages* | *Insert New Pages* |
|---|---|
| Title page | Title page |
| xiii—xx | xiii—xx |
| Checklist of up-to-date pages | Checklist of up-to-date pages (following Table of Contents) |
| SH:3 | SH:3 |
| CD2:5, CD2:6 | CD2:5—CD2:6.1 |
| CD2:32.1—CD2:42 | CD2:33—CD2:61 |
| CD114:49—CD114:54 | CD114:49—CD114:54 |
| CDA:3—CDA:7 | CDA:3—CDA:7 |
| CCT:19, CCT:20 | CCT:19, CCT:20 |
| SLT:1—SLT:10 | SLT:1—SLT:11 |
| CDi:6.1—CDi:14.1 | CDi:7—CDi:14.1 |
| CDi:19—CDi:26 | CDi:19—CDi:26.1 |
| CDi:39—CDi:42 | CDi:39—CDi:42.1 |
| CDi:53—CDi:56.1 | CDi:53—CDi:56.1 |
| CDi:61, CDi:62 | CDi:61, CDi:62 |
| CDi:74.1—CDi:76.1 | CDi:75—CDi:76.1 |

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 42
August 2021

**CODE OF ORDINANCES**

**City of**

**CHARLESTON, WEST VIRGINIA**

## Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

**Bill No. 7919, enacted August 2, 2021.**

See the Code Comparative Table for further information.

| *Remove Old Pages* | *Insert New Pages* |
|---|---|
| xiii—xx | xiii—xx |
| Checklist of up-to-date pages | Checklist of up-to-date pages (following Table of Contents) |
| SH:3 | SH:3 |
| CD2:5, CD2:6 | CD2:5, CD2:6 |
| CD2:32.3—CD2:32.6 | CD2:32.3—CD2:32.6 |
| CD10:17—CD10:19 | CD10:17—CD10:19 |
| CD22:1 | CD22:1 |
| CD22:3—CD22:10 | CD22:3—CD22:9 |
| CD58:1 | CD58:1 |
| CD58:5 | CD58:5, CD58:6 |
| CD62:3—CD62:8.1 | CD62:3—CD62:8.1 |
| CD82:1 | CD82:1 |
| CD82:3—CD82:6 | CD82:3, CD82:4 |
| CCT:19, CCT:20 | CCT:19, CCT:20 |
| SLT:9, SLT:10 | SLT:9, SLT:10 |
| CDi:5, CDi:6 | CDi:5—CDi:6.1 |
| CDi:11, CDi:12 | CDi:11, CDi:12 |
| CDi:17—CDi:20 | CDi:17—CDi:20.1 |
| CDi:25, CDi:26 | CDi:25, CDi:26 |
| CDi:31, CDi:32 | CDi:31, CDi:32 |
| CDi:45—CDi:46.1 | CDi:45—CDi:46.1 |
| CDi:51, CDi:52 | CDi:51, CDi:52 |
| CDi:57—CDi:60 | CDi:57—CDi:60 |
| CDi:77—CDi:79 | CDi:77—CDi:80 |

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode

Municipal Code Corporation P.O. Box 2235 Tallahassee, FL 32316
info@municode.com 800.262.2633 www.municode.com

SUPPLEMENT NO. 41
May 2021

**CODE OF ORDINANCES**

**City of**

**CHARLESTON, WEST VIRGINIA**

## Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

**Bill No. 7902, enacted April 19, 2021.**

See the Code Comparative Table for further information.

| *Remove Old Pages* | *Insert New Pages* |
|---|---|
| xv—xxii | xv—xxii |
| Checklist of up-to-date pages | Checklist of up-to-date pages (following Table of Contents) |
| SH:3 | SH:3 |
| CD2:41, CD2:42 | CD2:41, CD2:42 |
| CD18:3—CD18:7 | CD18:3—CD18:7 |
| CD18:25—CD18:30 | CD18:25—CD18:29 |
| CD18:39—CD18:42 | CD18:39—CD18:42.5 |
| CD54:3, CD54:4 | CD54:3—CD54:4.1 |
| CD78:3, CD78:4 | CD78:3, CD78:4 |
| CD78:27—CD78:30 | CD78:27—CD78:30 |
| CD102:3, CD102:4 | CD102:3, CD102:4 |
| CD102:35, CD102:36 | CD102:35—CD102:38 |
| CD110:9—CD110:18.7 | CD110:9—CD110:18.8 |
| CD114:39, CD114:40 | CD114:39, CD114:40 |
| CCT:19 | CCT:19, CCT:20 |
| SLT:1—SLT:10 | SLT:1—SLT:10 |
| CDi:5—CDi:8 | CDi:5—CDi:8 |
| CDi:21—CDi:28.1 | CDi:21—CDi:28 |
| CDi:33—CDi:38 | CDi:33—CDi:38 |
| CDi:45, CDi:46 | CDi:45—CDi:46.1 |
| CDi:63, CDi:64 | CDi:63—CDi:64.1 |

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

Municipal Code Corporation P.O. Box 2235 Tallahassee, FL 32316
info@municode.com 800.262.2633 www.municode.com

SUPPLEMENT NO. 40
February 2021

**CODE OF ORDINANCES**

**City of**

**CHARLESTON, WEST VIRGINIA**

**Looseleaf Supplement**

This Supplement contains all ordinances deemed advisable to be included at this time through:

**Bill No. 7890, enacted January 4, 2021.**

See the Code Comparative Table for further information.

| *Remove Old Pages* | *Insert New Pages* |
|---|---|
| xv—xviii | xv—xviii |
| Checklist of up-to-date pages | Checklist of up-to-date pages (following Table of Contents) |
| SH:3 | SH:3 |
| CD2:1, CD2:2 | CD2:1, CD2:2 |
| CD2:14.1, CD2:14.2 | CD2:14.1—CD2:14.3 |
| CD2:32.3—CD2:32.6 | CD2:32.3—CD2:32.6 |
| CD14:3—CD14:6.2 | CD14:3—CD14:6.4 |
| CD54:1—CD54:12.1 | CD54:1—CD54:12.4 |
| CD66:5—CD66:9 | CD66:5—CD66:9 |
| CD86:5, CD86:6 | CD86:5, CD86:6 |
| CD111:7, CD111:8 | CD111:7, CD111:8 |
| CDA:3—CDA:7 | CDA:3—CDA:7 |
| CCT:19 | CCT:19 |
| SLT:1—SLT:10 | SLT:1—SLT:10 |
| CDi:5—CDi:8 | CDi:5—CDi:8 |
| CDi:15, CDi:16 | CDi:15, CDi:16 |
| CDi:21—CDi:24 | CDi:21—CDi:24 |
| CDi:26.1—CDi:28 | CDi:27—CDi:28.1 |
| CDi:33, CDi:34 | CDi:33—CDi:34.1 |
| CDi:37, CDi:38 | CDi:37, CDi:38 |
| CDi:47—CDi:50 | CDi:47—CDi:50 |
| CDi:63—CDi:68 | CDi:63—CDi:68 |

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode

Municipal Code Corporation P.O. Box 2235 Tallahassee, FL 32316
info@municode.com 800.262.2633 www.municode.com

SUPPLEMENT NO. 39
April 2020

**CODE OF ORDINANCES**

**City of**

**CHARLESTON, WEST VIRGINIA**

**Looseleaf Supplement**

This Supplement contains all ordinances deemed advisable to be included at this time through:

**Bill No. 7868, enacted March 2, 2020.**

See the Code Comparative Table for further information.

| *Remove Old Pages* | *Insert New Pages* |
|---|---|
| xxi, xxii | xxi, xxii |
| Checklist of up-to-date pages | Checklist of up-to-date pages (following Table of Contents) |
| SH:3 | SH:3 |
| CD54:9—CD54:12.1 | CD54:9—CD54:12.1 |
| CD110:25, CD110:26 | CD110:25, CD110:26 |
| CD114:57—CD114:60.2 | CD114:57—CD114:60.2.1 |
| CDA:3—CDA:7 | CDA:3—CDA:7 |
| CCT:19 | CCT:19 |
| SLT:1—SLT:10 | SLT:1—SLT:10 |

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode

Municipal Code Corporation P.O. Box 2235 Tallahassee, FL 32316
info@municode.com 800.262.2633 www.municode.com

SUPPLEMENT NO. 38
November 2019

**CODE OF ORDINANCES**

**City of**

**CHARLESTON, WEST VIRGINIA**

## Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

**Bill No. 7847, enacted November 4, 2019.**

See the Code Comparative Table for further information.

| *Remove Old Pages* | *Insert New Pages* |
|---|---|
| xiii—xxi | xiii—xxii |
| Checklist of up-to-date pages | Checklist of up-to-date pages (following Table of Contents) |
| SH:1, SH:2 | SH:1—SH:3 |
| CD2:2.1—CD2:6 | CD2:3—CD2:6 |
| CD2:27—CD2:32.1 | CD2:27—CD2:32.6 |
| CD46:3 | CD46:3 |
| CD50:5, CD50:6 | CD50:5—CD50:6.1 |
| CD98:11—CD98:14 | CD98:11—CD98:15 |
| CD110:7, CD110:8 | CD110:7, CD110:8 |
| CD110:18.3, CD110:18.4 | CD110:18.3—CD110:18.4.1 |
| CD114:21—CD114:24.2 | CD114:21—CD114:24.2.1 |
| CCT:19 | CCT:19 |
| SLT:1—SLT:10 | SLT:1—SLT:10 |
| CDi:1—CDi:2.1 | CDi:1, CDi:2 |
| CDi:11—CDi:14 | CDi:11—CDi:14.1 |
| CDi:24.1—CDi:26 | CDi:25—CDi:26.1 |
| CDi:55—CDi:56.1 | CDi:55—CDi:56.1 |

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.




Municipal Code Corporation P.O. Box 2235 Tallahassee, FL 32316
info@municode.com 800.262.2633 www.municode.com

SUPPLEMENT NO. 37
September 2019

**CODE OF ORDINANCES**

**City of**

**CHARLESTON, WEST VIRGINIA**

**Looseleaf Supplement**

This Supplement contains all ordinances deemed advisable to be included at this time through:

**Bill No. 7831, enacted August 19, 2019.**

See the Code Comparative Table for further information.

| *Remove Old Pages* | *Insert New Pages* |
|---|---|
| xiii—xxi | xiii—xxi |
| Checklist of up-to-date pages | Checklist of up-to-date pages (following Table of Contents) |
| SH:1, SH:2 | SH:1, SH:2 |
| CD2:5, CD2:6 | CD2:5, CD2:6 |
| CD2:35—CD2:36.2 | CD2:35—CD2:36.2 |
| CD14:3—CD14:6 | CD14:3—CD14:6.2 |
| CD14:15—CD14:20 | CD14:15—CD14:20 |
| CD63:1 | CD63:1 |
| | CD65:1—CD65:7 |
| CD102:3 | CD102:3, CD102:4 |
| CD102:27—CD102:30 | CD102:27—CD102:29 |
| CD102:33—CD102:36 | CD102:33—CD102:36 |
| CDA:5—CDA:7 | CDA:5—CDA:7 |
| CCT:19 | CCT:19 |
| SLT:1—SLT:10 | SLT:1—SLT:10 |
| CDi:7—CDi:12.1 | CDi:7—CDi:12.1 |
| CDi:23, CDi:24 | CDi:23—CDi:24.1 |
| CDi:35 | CDi:35, CDi:36 |
| CDi:46.1—CDi:56 | CDi:47—CDi:56.1 |
| CDi:64.1—CDi:68 | CDi:65—CDi:68 |

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.




Municipal Code Corporation P.O. Box 2235 Tallahassee, FL 32316
info@municode.com 800.262.2633 www.municode.com

SUPPLEMENT NO. 36
July 2019

**CODE OF ORDINANCES**

**City of**

**CHARLESTON, WEST VIRGINIA**

**Looseleaf Supplement**

This Supplement contains all ordinances deemed advisable to be included at this time through:

**Bill No. 7819, enacted June 3, 2019.**

See the Code Comparative Table for further information.

| *Remove Old Pages* | *Insert New Pages* |
|---|---|
| xiii—xxi | xiii—xxi |
| Checklist of up-to-date pages | Checklist of up-to-date pages (following Table of Contents) |
| SH:1, SH:2 | SH:1, SH:2 |
| CD2:37—CD2:42 | CD2:37—CD2:42 |
| CD14:3—CD14.4.1 | CD14:3—CD14:4.2 |
| CD78:1, CD78:2 | CD78:1, CD78:2 |
| CD78:20.3—CD78:22 | CD78:20.3—CD78:22 |
| CD102:1—CD102:3 | CD102:1—CD102:3 |
| CD102:13—CD102:16 | CD102:13—CD102:16.6 |
| CD114:49—CD114:60.2 | CD114:49—CD114:60.4 |
| CCT:17, CCT:18 | CCT:17—CCT:19 |
| SLT:9, SLT:10 | SLT:9, SLT:10 |
| CDi:45, CDi:46 | CDi:45—CDi:46.1 |
| CDi:63, CDi:64 | CDi:63—CDi:64.1 |

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
Municipal Code Corporation P.O. Box 2235 Tallahassee, FL 32316
info@municode.com 800.262.2633 www.municode.com

SUPPLEMENT NO. 35
March 2019

**CODE OF ORDINANCES**

**City of**

**CHARLESTON, WEST VIRGINIA**

**Looseleaf Supplement**

This Supplement contains all ordinances deemed advisable to be included at this time through:

**Resolution No. 160-19, enacted January 22, 2019.**

See the Code Comparative Table for further information.

| *Remove Old Pages* | *Insert New Pages* |
|---|---|
| xiii—xviii | xiii—xviii |
| xxi | xxi |
| Checklist of up-to-date pages | Checklist of up-to-date pages (following Table of Contents) |
| SH:1, SH:2 | SH:1, SH:2 |
| CD2:3, CD2:4 | CD2:3, CD2:4 |
| CD2:29—CD2:32 | CD2:29—CD2:32.1 |
| CD78:13—CD78:14.1 | CD78:13—CD78:14.1 |
| CD78:19—CD78:20.2 | CD78:19—CD78:20.2 |
| CD82:1 | CD82:1 |
| CD82:3—CD82:13 | CD82:3—CD82:13 |
| CD98:7—CD98:10 | CD98:7—CD98:10 |
| CD110:21, CD110:22 | CD110:21—CD110:22.1 |
| CD111:7, CD111:8 | CD111:7, CD111:8 |
| CD114:13, CD114:14 | CD114:13—CD114:14.1 |
| CD114:54.1—CD114:58 | CD114:55—CD114:58.1 |
| CDA:1 | CDA:1 |
| CDA:3—CDA:7 | CDA:3—CDA:7 |
| CCT:17, CCT:18 | CCT:17, CCT:18 |
| CDi:7—CDi:8.1 | CDi:7—CDi:8.1 |
| CDi:11, CDi:12 | CDi:11—CDi:12.1 |
| CDi:15, CDi:16 | CDi:15, CDi:16 |
| CDi:47, CDi:48 | CDi:47—CDi:48.1 |
| CDi:51, CDi:52 | CDi:51—CDi:52.1 |

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

Municipal Code Corporation | P.O. Box 2235 Tallahassee, FL 32316
info@municode.com | 800.262.2633
www.municode.com

SUPPLEMENT NO. 34
April 2018

**CODE OF ORDINANCES**

**City of**

**CHARLESTON, WEST VIRGINIA**

## Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

**Bill No. 7772, enacted January 16, 2018.**

See the Code Comparative Table for further information.

| *Remove Old Pages* | *Insert New Pages* |
|---|---|
| xv—xxi | xv—xxi |
| Checklist of up-to-date pages | Checklist of up-to-date pages (following Table of Contents) |
| SH:1, SH:2 | SH:1, SH:2 |
| CD14:1, CD14:2 | CD14:1, CD14:2 |
| CD14:21 | CD14:21—CD14:26 |
| CD38:9—CD38:11 | CD38:9—CD38:11 |
| CD82:3—CD82:6 | CD82:3—CD82:6.2 |
| CD102:19, CD102:20 | CD102:19, CD102:20 |
| CD114:51—CD114:52.2 | CD114:51—CD114:52.3 |
| CD114:57—CD114:60.2 | CD114:57—CD114:60.2 |
| CCT:17, CCT:18 | CCT:17, CCT:18 |
| SLT:3—SLT:4.1 | SLT:3—SLT:4.1 |
| CDi:1, CDi:2 | CDi:1—CDi:2.1 |
| CDi:7, CDi:8 | CDi:7—CDi:8.1 |
| CDi:75, CDi:76 | CDi:75—CDi:76.1 |

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

Municipal Code Corporation | P.O. Box 2235 Tallahassee, FL 32316
info@municode.com | 800.262.2633
www.municode.com

SUPPLEMENT NO. 33
June 2017

**CODE OF ORDINANCES**

**City of**

**CHARLESTON, WEST VIRGINIA**

## Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

**Bill No. 7735, enacted March 6, 2017.**

See the Code Comparative Table for further information.

| *Remove Old Pages* | *Insert New Pages* |
|---|---|
| xiii, xiv | xiii, xiv |
| xvii—xxi | xvii—xxi |
| Checklist of up-to-date pages | Checklist of up-to-date pages (following Table of Contents) |
| SH:1, SH:2 | SH:1, SH:2 |
| CD2:1, CD2:2 | CD2:1—CD2:2.1 |
| CD2:15—CD2:17 | CD2:14.1—CD2:18 |
| CD3:1 | CD3:1 |
| CD3:7, CD3:8 | CD3:7—CD3:8.1 |
| CD6:7, CD6:8 | CD6:7, CD6:8 |
| CD54:1, CD54:2 | CD54:1, CD54:2 |
| CD54:15, CD54:16 | CD54:15—CD54:17 |
| CD78:19—CD78:20.3 | CD78:19—CD78:20.3 |
| CD86:1—CD86:40 | CD86:1 |
| | CD86:3—CD86:8 |
| CD114:57, CD114:58 | CD114:57, CD114:58 |
| CCT:17, CCT:18 | CCT:17, CCT:18 |
| SLT:2.1—SLT:4 | SLT:3—SLT:4.1 |
| SLT:9, SLT:10 | SLT:9, SLT:10 |
| CDi:1—CDi:36 | CDi:1—CDi:35 |
| CDi:41—CDi:66.1 | CDi:41—CDi:66 |
| CDi:79, CDi:80 | CDi:79 |

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

Municipal Code Corporation | P.O. Box 2235 Tallahassee, FL 32316
info@municode.com | 800.262.2633
www.municode.com

SUPPLEMENT NO. 32
July 2016

# CODE OF ORDINANCES

## City of

## CHARLESTON, WEST VIRGINIA

## Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

**Bill No. 7674, enacted November 16, 2015.**

See the Code Comparative Table for further information.

| *Remove Old Pages* | *Insert New Pages* |
|---|---|
| Title page | Title page |
| xvii—xxi | xvii—xxi |
| Checklist of up-to-date pages | Checklist of up-to-date pages (following Table of Contents) |
| SH:1, SH:2 | SH:1, SH:2 |
| CD78:3, CD78:4 | CD78:3, CD78:4 |
| CD78:26.1—CD78:29 | CD78:27—CD78:30 |
| CD114:4.1—CD114:8 | CD114:5—CD114:8 |
| CD114:53, CD114:54 | CD114:53—CD114:54.1 |
| CD118:9—CD118:12 | CD118:9—CD118:12.1 |
| CDA:3, CDA:4 | CDA:3—CDA:4.1 |
| CCT:17 | CCT:17, CCT:18 |
| CDi:33, CDi:34 | CDi:33—CDi:34.1 |
| CDi:45—CDi:48 | CDi:45—CDi:48.1 |
| CDi:73, CDi:74 | CDi:73—CDi:74.1 |

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode

Municipal Code Corporation | P.O. Box 2235 Tallahassee, FL 32316
info@municode.com | 800.262.2633
www.municode.com

SUPPLEMENT NO. 31
October 2015

# CODE OF ORDINANCES

## City of

## CHARLESTON, WEST VIRGINIA

## Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

**Bill No. 7663, adopted August 17, 2015.**

See the Code Comparative Table for further information.

| *Remove Old Pages* | *Insert New Pages* |
|---|---|
| xiii, xiv | xiii, xiv |
| xix, xx | xix, xx |
| Checklist of up-to-date pages | Checklist of up-to-date pages (following Table of Contents) |
| SH:1, SH:2 | SH:1, SH:2 |
| CD2:36.7—CD2:42 | CD2:37—CD2:42 |
| CD98:1, CD98:2 | CD98:1, CD98:2 |
| CD98:7, CD98:8 | CD98:7, CD98:8 |
| CD102:3 | CD102:3 |
| CD102:21, CD102:22 | CD102:21—CD102:36 |
| CD111:7, CD111:8 | CD111:7, CD111:8 |
| CCT:17 | CCT:17 |
| SLT:1, SLT:2 | SLT:1—SLT:2.1 |
| SLT:9, SLT:10 | SLT:9, SLT:10 |
| CDi:5—CDi:8 | CDi:5—CDi:8 |
| CDi:35, CDi:36 | CDi:35, CDi:36 |
| CDi:53, CDi:54 | CDi:53—CDi:54.1 |
| CDi:61—CDi:66 | CDi:61—CDi:66.1 |

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
Municipal Code Corporation • PO Box 2235 Tallahassee, FL 32316
info@municode.com • 800.262.2633
fax 850.575.8852 • www.municode.com

SUPPLEMENT NO. 30
March 2015

# CODE OF ORDINANCES

## City of

## CHARLESTON, WEST VIRGINIA

## Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

**Bill No. 7641, adopted December 1, 2014.**

See the Code Comparative Table for further information.

| *Remove Old Pages* | *Insert New Pages* |
|---|---|
| xix—xxi | xix—xxi |
| Checklist of up-to-date pages | Checklist of up-to-date pages (following Table of Contents) |
| SH:1 | SH:1, SH:2 |
| CD2:5, CD2:6 | CD2:5, CD2:6 |
| CD2:36.3—CD2:36.6 | CD2:36.3—CD2:36.7 |
| CD10:17—CD10:19 | CD10:17—CD10:19 |
| CD18:43—CD18:48 | CD18:43—CD18:48 |
| CD54:1, CD54:2 | CD54:1, CD54:2 |
| CD54:9—CD54:12.2 | CD54:9—CD54:12.1 |
| CD66:1, CD66:2 | CD66:1, CD66:2 |
| CD66:5—CD66:9 | CD66:5—CD66:9 |
| CD86:15—CD86:16.1 | CD86:15—CD86:16.1 |
| CD111:1—CD111:7 | CD111:1 |
| | CD111:3—CD111:8 |
| CD114:57—CD114:59 | CD114:57—CD114:60 |
| CCT:17 | CCT:17 |
| SLT:5—SLT:10 | SLT:5—SLT:10 |
| CDi:11, CDi:12 | CDi:11, CDi:12 |
| CDi:29, CDi:30 | CDi:29, CDi:30 |
| CDi:37, CDi:38 | CDi:37, CDi:38 |
| CDi:67, CDi:68 | CDi:67, CDi:68 |

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.



Municipal Code Corporation • PO Box 2235 Tallahassee, FL 32316
info@municode.com • 800.262.2633
fax 850.575.8852 • www.municode.com

SUPPLEMENT NO. 29
September 2014

# CODE OF ORDINANCES

## City of

## CHARLESTON, WEST VIRGINIA

## Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

**Bill No. 7621, adopted May 5, 2014.**

See the Code Comparative Table for further information.

| *Remove Old Pages* | *Insert New Pages* |
|---|---|
| xiii—xxi | xiii—xxi |
| Checklist of up-to-date pages | Checklist of up-to-date pages (following Table of Contents) |
| SH:1 | SH:1 |
| CD14:1, CD14:2 | CD14:1, CD14:2 |
| CD14:15 | CD14:15—CD14:21 |
| CD18:3, CD18:4 | CD18:3, CD18:4 |
| CD18:23—CD18:26 | CD18:23—CD18:25 |
| CD78:1, CD78:2 | CD78:1, CD78:2 |
| CD78:12.1—CD78:14 | CD78:13—CD78:14.1 |
| CD78:22.1—CD78:24 | CD78:23—CD78:24.1 |
| CD98:1—CD98:13 | CD98:1—CD98:14 |
| CCT:17 | CCT:17 |
| SLT:1—SLT:10 | SLT:1—SLT:10 |
| CDi:9—CDi:14 | CDi:9—CDi:14.1 |
| CDi:21, CDi:22 | CDi:21, CDi:22 |
| CDi:27—CDi:32 | CDi:27—CDi:32 |
| CDi:39, CDi:40 | CDi:39, CDi:40 |
| CDi:47, CDi:48 | CDi:47, CDi:48 |
| CDi:57—CDi:64 | CDi:57—CDi:64 |
| CDi:69—CDi:72 | CDi:69—CDi:72.1 |
| CDi:77—CDi:80 | CDi:77—CDi:80 |

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.



municode

Municipal Code Corporation • PO Box 2235 Tallahassee, FL 32316
info@municode.com • 800.262.2633
fax 850.575.8852 • www.municode.com

SUPPLEMENT NO. 28
January 2014

# CODE OF ORDINANCES

## City of

## CHARLESTON, WEST VIRGINIA

## Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

**Bill No. 7604, adopted November 4, 2013.**

See the Code Comparative Table for further information.

Included in the Charter is:

**Ordinance No. 7597, adopted October 21, 2013.**

See the Charter Comparative Table for further information.

| *Remove Old Pages* | *Insert New Pages* |
|---|---|
| Title page | Title page |
| xiii—xxi | xiii—xxi |
| Checklist of up-to-date pages | Checklist of up-to-date pages (following Table of Contents) |
| SH:1 | SH:1 |
| CHT:1, CHT:2 | CHT:1, CHT:2 |
| CHT:9—CHT:18 | CHT:9—CHT:18 |
| CHTCT:1 | CHTCT:1 |
| CD3:5—CD3:10 | CD3:5—CD3:11 |
| CD14:3—CD14.4.1 | CD14:3—CD14.4.1 |
| CD54:7, CD54:8 | CD54:7, CD54:8 |
| CD118:1—CD118:2.1 | CD118:1—CD118:2.1 |
| CD118:13—CD118:34 | CD118:13—CD118:34.6 |
| CCT:17 | CCT:17 |
| SLT:1, SLT:2 | SLT:1, SLT:2 |
| CHTi:1—CHTi:24 | CHTi:1—CHTi:24 |
| CDi:1—CDi:6 | CDi:1—CDi:6 |
| CDi:15—CDi:30 | CDi:15—CDi:30 |
| CDi:35, CDi:36 | CDi:35, CDi:36 |
| CDi:43, CDi:44 | CDi:43, CDi:44 |
| CDi:49—CDi:60 | CDi:49—CDi:60 |
| CDi:69—CDi:80 | CDi:69—CDi:80 |

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.



SUPPLEMENT NO. 27
July 2013

# CODE OF ORDINANCES

## City of

## CHARLESTON, WEST VIRGINIA

## Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

**Ordinance No. 7578, adopted May 20, 2013.**

See the Code Comparative Table for further information.

| *Remove Old Pages* | *Insert New Pages* |
|---|---|
| xv—xxi | xv—xxi |
| Checklist of up-to-date pages | Checklist of up-to-date pages (following Table of Contents) |
| SH:1 | SH:1 |
| CD2:29—CD2:32 | CD2:29—CD2:32 |
| CD18:1—CD18:49 | CD18:1—CD18:48 |
| CD102:19—CD102:22 | CD102:19—CD102:22 |
| CD110:9—CD110:12 | CD110:9—CD110:12 |
| CD111:1 | CD111:1—CD111:7 |
| | CD112:1 |
| CCT:15 | CCT:15—CCT:17 |
| SLT:1—SLT:10 | SLT:1—SLT:10 |
| CDi:1—CDi:88 | CDi:1—CDi:80 |

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
Municipal Code Corporation • PO Box 2235 Tallahassee, FL 32316
info@municode.com • 800.262.2633
fax 850.575.8852 • www.municode.com

SUPPLEMENT NO. 26
December 2012

# CODE OF ORDINANCES

## City of

## CHARLESTON, WEST VIRGINIA

## Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

**Ordinance No. 7540, adopted October 1, 2012.**

See the Code Comparative Table for further information.

| *Remove Old Pages* | *Insert New Pages* |
|---|---|
| xvii, xviii | xvii, xviii |
| Checklist of up-to-date pages | Checklist of up-to-date pages (following Table of Contents) |
| SH:1 | SH:1 |
| CD22:1 | CD22:1 |
| CD22:3—CD22:10 | CD22:3—CD22:10 |
| CD62:1 | CD62:1 |
| CD62:5—CD62:8 | CD62:5—CD62:8.1 |
| CCT:15 | CCT:15 |
| CDi:11, CDi:12 | CDi:11, CDi:12 |
| CDi:23—CDi:28 | CDi:23—CDi:28 |
| CDi:35, CDi:36 | CDi:35, CDi:36 |
| CDi:43, CDi:44 | CDi:43, CDi:44 |
| CDi:59, CDi:60 | CDi:59, CDi:60 |
| CDi:65, CDi:66 | CDi:65, CDi:66 |

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
Municipal Code Corporation • PO Box 2235 Tallahassee, FL 32316
info@municode.com • 800.262.2633
fax 850.575.8852 • www.municode.com

SUPPLEMENT NO. 25
June 2012

# CODE OF ORDINANCES

## City of

## CHARLESTON, WEST VIRGINIA

## Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

**Bill No. 7516, adopted April 16, 2012.**

See the Code Comparative Table for further information.

| *Remove Old Pages* | *Insert New Pages* |
|---|---|
| xiii, xiv | xiii, xiv |
| xvii—xxi | xvii—xxi |
| Checklist of up-to-date pages | Checklist of up-to-date pages (following Table of Contents) |
| SH:1 | SH:1 |
| CD2:1, CD2:2 | CD2:1, CD2:2 |
| CD2:17, CD2:18 | CD2:16.1—CD2:17 |
| CD2:27—CD2:28.1 | CD2:27—CD2:28.1 |
| CD54:1, CD54:2 | CD54:1, CD54:2 |
| CD54:8.1—CD54:12.1 | CD54:9—CD54:12.2 |
| CD78:19—CD78:20.2 | CD78:19—CD78:20.3 |
| CD102:1, CD102:2 | CD102:1—CD102:3 |
| CD102:17—CD102:19 | CD102:17—CD102:22 |
| CD118:9—CD118:12.1 | CD118:9—CD118:12 |
| CCT:15 | CCT:15 |
| SLT:3—SLT:6 | SLT:3—SLT:6 |
| CDi:3—CDi:8 | CDi:3—CDi:8 |
| CDi:14.1—CDi:42 | CDi:15—CDi:41 |
| CDi:48.1—CDi:56 | CDi:49—CDi:56.1 |
| CDi:69—CDi:76 | CDi:69—CDi:75 |

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
Municipal Code Corporation • PO Box 2235 Tallahassee, FL 32316
info@municode.com • 800.262.2633
fax 850.575.8852 • www.municode.com

SUPPLEMENT NO. 24
September 2011

# CODE OF ORDINANCES

## City of

## CHARLESTON, WEST VIRGINIA

### Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

**Ordinance No. 7471, enacted June 6, 2011.**

See the Code Comparative Table for further information.

| *Remove Old Pages* | *Insert New Pages* |
|---|---|
| xix, xx | xix, xx |
| Checklist of up-to-date pages | Checklist of up-to-date pages (following Table of Contents) |
| SH:1 | SH:1 |
| CD10:17, CD10:18 | CD10:17, CD10:18 |
| CD18:23, CD18:24 | CD18:23, CD18:24 |
| CD78:1, CD78:2 | CD78:1, CD78:2 |
| CD78:12.1 | CD78:12.1 |
| CD82:3—CD82:6 | CD82:3—CD82:6 |
| CD86:13—CD86:16 | CD86:13—CD86:16.1 |
| CD114:55—CD114:58 | CD114:55—CD114:58 |
| CCT:15 | CCT:15 |
| CDi:41, CDi:42 | CDi:41, CDi:42 |
| CDi:49, CDi:50 | CDi:49, CDi:50 |

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

Municipal Code Corporation
PO Box 2235 Tallahassee, FL 32316
800-262-2633 • Fax: 850-575-8852
Municode.com • info@municode.com

SUPPLEMENT NO. 23
February 2011

# CODE OF ORDINANCES

## City of

## CHARLESTON, WEST VIRGINIA

### Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

**Ordinance No. 7440, enacted November 15, 2010.**

See the Code Comparative Table for further information.

| *Remove Old Pages* | *Insert New Pages* |
|---|---|
| xiii—xviii | xiii—xviii |
| Checklist of up-to-date pages | Checklist of up-to-date pages (following Table of Contents) |
| | SH:1(following Checklist of up-to-date pages) |
| CD3:1 | CD3:1 |
| CD3:5, CD3:6 | CD3:5, CD3:6 |
| CD78:2.1—CD78:8 | CD78:3—CD78:8 |
| CD78:20.3—CD78:22 | CD78:21—CD78:22.1 |
| CD86:15—CD86:18 | CD86:15—CD86:18 |
| CCT:15 | CCT:15 |
| SLT:9, SLT:10 | SLT:9, SLT:10 |
| CDi:43, CDi:44 | CDi:43, CDi:44 |
| CDi:46.1—CDi:48 | CDi:47—CDi:48.1 |
| CDi:57, CDi:58 | CDi:57, CDi:58 |

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

Municipal Code Corporation
PO Box 2235 Tallahassee, FL 32316
800-262-2633 • Fax: 850-575-8852
Municode.com • info@municode.com

SUPPLEMENT NO. 22
September 2010

# CODE OF ORDINANCES

## City of

## CHARLESTON, WEST VIRGINIA

## Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

**Bill No. 7426 enacted June 22, 2010.**

See the Code Comparative Table for further information.

| *Remove Old Pages* | *Insert New Pages* |
|---|---|
| xix, xx | xix, xx |
| Checklist of up-to-date pages | Checklist of up-to-date pages (following Table of Contents) |
| CD14:3, CD14:4 | CD14:3—CD14.4.1 |
| CD102:1—CD102:3 | CD102:1, CD102:2 |
| CD102:9, CD102:10 | CD102:9—CD102:11 |
| CD114:53—CD114:59 | CD114:52.1—CD114:59 |
| CCT:13—CCT:15 | CCT:13—CCT:15 |
| CDi:23—CDi:26 | CDi:23—CDi:26 |
| CDi:31, CDi:32 | CDi:31, CDi:32 |
| CDi:42.1—CDi:46 | CDi:43—CDi:46.1 |
| CDi:51—CDi:64 | CDi:51—CDi:61 |
| CDi:69, CDi:70 | CDi:69, CDi:70 |
| CDi:81, CDi:82 | CDi:81, CDi:82 |

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

Municipal Code Corporation
PO Box 2235 Tallahassee, FL 32316
800-262-2633 • Fax: 850-575-8852
Municode.com • info@municode.com

SUPPLEMENT NO. 21
June 2010

# CODE OF ORDINANCES

## City of

## CHARLESTON, WEST VIRGINIA

## Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

**Ordinance No. 7412, enacted April 5, 2010.**

See the Code Comparative Table for further information.

| *Remove Old Pages* | *Insert New Pages* |
|---|---|
| xv—xxi | xv—xxi |
| Checklist of up-to-date pages | Checklist of up-to-date pages (following Table of Contents) |
| CD18:7 | CD18:7 |
| CD18:43, CD18:44 | CD18:43—CD18:49 |
| CD98:7, CD98:8 | CD98:7—CD98:8.1 |
| CCT:15 | CCT:15 |
| CDi:11, CDi:12 | CDi:11, CDi:12 |
| CDi:37, CDi:38 | CDi:37, CDi:38 |
| CDi:41, CDi:42 | CDi:41—CDi:42.1 |
| CDi:60.1—CDi:66 | CDi:61—CDi:66 |

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

Municipal Code Corporation
PO Box 2235 Tallahassee, FL 32316
800-262-2633 • Fax: 850-575-8852
Municode.com • info@municode.com

SUPPLEMENT NO. 20
November 2009

# CODE OF ORDINANCES

## City of

## CHARLESTON, WEST VIRGINIA

### Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

**Bill No. 7396, adopted August 17, 2009.**

See the Code Comparative Table for further information.

| *Remove old pages* | *Insert new pages* |
|---|---|
| xvii—xxi | xvii—xxi |
| Checklist of up-to-date pages | Checklist of up-to-date pages (following Table of Contents) |
| CD10:17—CD10:19 | CD10:17—CD10:19 |
| CD78:1, CD78:2 | CD78:1, CD78:2 |
| CD78:5, CD78:6 | CD78:5, CD78:6 |
| CD78:19—CD78:20.1 | CD78:19—CD78:20.3 |
| CD114:58.1—CD114:60 | CD114:58.1—CD114:59 |
| CD114:67, CD114:68 | CD114:67, CD114:68 |
| CCT:13—CCT:15 | CCT:13—CCT:15 |
| CDi:45, CDi:46 | CDi:45, CDi:46 |
| CDi:49, CDi:50 | CDi:49, CDi:50 |

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

MUNICIPAL CODE CORPORATION
Post Office Box 2235
1700 Capital Circle, S.W.
Tallahassee, FL 32316
(850) 576-3171
1-800-262-CODE
Website: www.municode.com

SUPPLEMENT NO. 19
May 2009

# CODE OF ORDINANCES

## City of

## CHARLESTON, WEST VIRGINIA

### Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

**Ordinance No. 7390, adopted April 16, 2009.**

See the Code Comparative Table for further information.

| *Remove old pages* | *Insert new pages* |
|---|---|
| xv—xviii | xv—xviii.i |
| Checklist of up-to-date pages | Checklist of up-to-date pages (following Table of Contents) |
| CD2:27, CD2:28 | CD2:27, CD2:28 |
| CD3:1 | CD3:1 |
| CD3:3—CD3:6 | CD3:3—CD3:10 |
| CD10:3—CD10:8 | CD10:3—CD10:8.1 |
| CD38:1, CD38:2 | CD38:1, CD38:2 |
| CD38:7—CD38:13 | CD38:7—CD38:11 |
| CD78:3, CD78:4 | CD78:3, CD78:4 |
| CD78:6.1—CD78:12.1 | CD78:7—CD78:12.1 |
| CD78:17—CD78:20 | CD78:17—CD78:20.1 |
| CD78:25, CD78:26 | CD78:25—CD78:26.1 |
| CD114:27, CD114:28 | CD114:27—CD114:28.1 |
| CD114:53—CD114:58.1 | CD114:53—CD114:58.1 |
| CD118:23, CD118:24 | CD118:23, CD118:24 |
| CCT:13, CCT:14 | CCT:13—CCT:15 |
| SLT:1—SLT:6 | SLT:1—SLT:6 |
| CDi:7, CDi:8 | CDi:7, CDi:8 |
| CDi:11, CDi:12 | CDi:11, CDi:12 |
| CDi:15—CDi:20 | CDi:15—CDi:20 |
| CDi:25, CDi:26 | CDi:25, CDi:26 |
| CDi:35, CDi:36 | CDi:35, CDi:36 |
| CDi:39, CDi:40 | CDi:39, CDi:40 |
| CDi:45—CDi:54 | CDi:45—CDi:51 |
| CDi:59, CDi:60 | CDi:59—CDi:60.1 |
| CDi:63, CDi:64 | CDi:63, CDi:64 |
| CDi:75, CDi:76 | CDi:75, CDi:76 |

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

MUNICIPAL CODE CORPORATION
Post Office Box 2235
1700 Capital Circle, S.W.
Tallahassee, FL 32316
(850) 576-3171
1-800-262-CODE
Website: www.municode.com

SUPPLEMENT NO. 18
January 2009

# CODE OF ORDINANCES

## City of

## CHARLESTON, WEST VIRGINIA

### Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

**Bill No. 7359, adopted December 1, 2008.**

See the Code Comparative Table for further information.

| *Remove old pages* | *Insert new pages* |
|---|---|
| Checklist of up-to-date pages | Checklist of up-to-date pages (following Table of Contents) |
| CD3:1 | CD3:1 |
| CD3:3, CD3:4 | CD3:3—CD3:6 |
| CD62:3—CD62:12 | CD62:3—CD62:12 |
| CD98:3, CD98:4 | CD98:3—CD98:4.1 |
| CCT:13, CCT:14 | CCT:13, CCT:14 |
| SLT:9, SLT:10 | SLT:9, SLT:10 |
| CDi:5, CDi:6 | CDi:5, CDi:6 |
| CDi:23—CDi:28 | CDi:23—CDi:28 |
| CDi:41—CDi:44 | CDi:41—CDi:44.1 |
| CDi:59—CDi:62 | CDi:59—CDi:62 |

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

MUNICIPAL CODE CORPORATION
Post Office Box 2235
1700 Capital Circle, S.W.
Tallahassee, FL 32316
(850) 576-3171
1-800-262-CODE
Website: www.municode.com

SUPPLEMENT NO. 17
October 2008

# CODE OF ORDINANCES

## City of

## CHARLESTON, WEST VIRGINIA

### Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

**Bill No. 7341, adopted August 4, 2008.**

See the Code Comparative Table—Ordinances for further information.

| *Remove old pages* | *Insert new pages* |
|---|---|
| xiii—xvi | xiii—xvi |
| xix—xxi | xix—xxi |
| Checklist of up-to-date pages | Checklist of up-to-date pages (following Table of Contents) |
| CD2:36.1, CD2:36.2 | CD2:36.1, CD2:36.2 |
| CD3:1 | CD3:1 |
| | CD3:3, CD3:4 |
| | CD4:1 |
| CD106:1—CD106:18 | CD106:1 |
| CCT:13, CCT:14 | CCT:13, CCT:14 |
| SLT:1—SLT:10 | SLT:1—SLT:10 |
| CDi:3, CDi:4 | CDi:3, CDi:4 |
| CDi:7—CDi:12 | CDi:7—CDi:12 |
| CDi:15—CDi:18 | CDi:15—CDi:18 |
| CDi:23—CDi:34 | CDi:23—CDi:34 |
| CDi:37, CDi:38 | CDi:37, CDi:38 |
| CDi:41—CDi:46 | CDi:41—CDi:46 |
| CDi:57—CDi:62 | CDi:57—CDi:62 |
| CDi:65—CDi:74 | CDi:65—CDi:73 |
| CDi:85—CDi:89 | CDi:85—CDi:88 |

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

MUNICIPAL CODE CORPORATION
Post Office Box 2235
1700 Capital Circle, S.W.
Tallahassee, FL 32316
(850) 576-3171
1-800-262-CODE
Website: www.municode.com

SUPPLEMENT NO. 16
July 2008

# CODE OF ORDINANCES

## City of

## CHARLESTON, WEST VIRGINIA

### Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

**Bill No. 7327, adopted May 5, 2008.**

See the Code Comparative Table—Ordinances for further information.

| *Remove old pages* | *Insert new pages* |
|---|---|
| Checklist of up-to-date pages | Checklist of up-to-date pages (following Table of Contents) |
| CD54:7, CD54:8 | CD54:7—CD54:8.1 |
| CD118:9—CD118:12 | CD118:9—CD118:12 |
| CCT:13, CCT:14 | CCT:13, CCT:14 |

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

MUNICIPAL CODE CORPORATION
Post Office Box 2235
1700 Capital Circle, S.W.
Tallahassee, FL 32316
(850) 576-3171
1-800-262-CODE
Website: www.municode.com

SUPPLEMENT NO. 15
February 2008

# CODE OF ORDINANCES

## City of

## CHARLESTON, WEST VIRGINIA

### Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

**Bill No. 7308, adopted December 17, 2007.**

See the Code Comparative Table for further information.

| *Remove old pages* | *Insert new pages* |
|---|---|
| Checklist of up-to-date pages | Checklist of up-to-date pages (following Table of Contents) |
| CD2:29—CD2:32 | CD2:29—CD2:32 |
| CD2:36.7—CD2:40 | CD2:37—CD2:42 |
| CD114:27, CD114:28 | CD114:27, CD114:28 |
| CCT:13, CCT:14 | CCT:13, CCT:14 |

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

MUNICIPAL CODE CORPORATION
Post Office Box 2235
1700 Capital Circle, S.W.
Tallahassee, FL 32316
(850) 576-3171
1-800-262-CODE
Website: www.municode.com

SUPPLEMENT NO. 14
September 2007

# CODE OF ORDINANCES

## City of

## CHARLESTON, WEST VIRGINIA

### Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

**Bill No. 7266, adopted June 18, 2007.**

See the Code Comparative Table for further information.

| *Remove old pages* | *Insert new pages* |
|---|---|
| xiii—xxi | xiii—xxi |
| Checklist of up-to-date pages | Checklist of up-to-date pages (following Table of Contents) |
| CD2:15, CD2:16 | CD2:15, CD2:16 |
| CD10:1—CD10:13 | CD10:1—CD10:19 |
| CD54:9, CD54:10 | CD54:9, CD54:10 |
| CD66:5, CD66:6 | CD66:5, CD66:6 |
| CD82:1 | CD82:1 |
| CD82:11 | CD82:11—CD82:13 |
| CD86:13—CD86:16 | CD86:13—CD86:16 |
| CD114:1—CD114:4 | CD114:1—CD114:4.1 |
| CD114:9—CD114:24 | CD114:9—CD114:24.4 |
| CD114:47, CD114:48 | CD114:47, CD114:48 |
| CCT:13, CCT:14 | CCT:13, CCT:14 |
| SLT:1—SLT:10 | SLT:1—SLT:10 |
| CDi:3—CDi:12 | CDi:3—CDi:12 |
| CDi:19—CDi:24 | CDi:19—CDi:24 |
| CDi:39—CDi:42 | CDi:39—CDi:42.1 |
| CDi:55—CDi:58 | CDi:55—CDi:58 |
| CDi:63, CDi:64 | CDi:63, CDi:64 |
| CDi:77—CDi:84 | CDi:77—CDi:84.1 |

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

MUNICIPAL CODE CORPORATION
Post Office Box 2235
1700 Capital Circle, S.W.
Tallahassee, FL 32316
(850) 576-3171
1-800-262-CODE
Website: www.municode.com

SUPPLEMENT NO. 13
March 2007

# CODE OF ORDINANCES

## City of

## CHARLESTON, WEST VIRGINIA

### Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

**Bill No. 7202, adopted July 17, 2006.**

See the Code Comparative Table for further information.

| *Remove old pages* | *Insert new pages* |
|---|---|
| xiii, xiv | xiii—xiv.i |
| Checklist of up-to-date pages | Checklist of up-to-date pages (following Table of Contents) |
| CD2:5, CD2:6 | CD2:5, CD2:6 |
| CD2:36.1, CD2:36.2 | CD2:36.1—CD2:36.8 |
| CCT:13, CCT:14 | CCT:13, CCT:14 |
| SLT:5—SLT:8 | SLT:5—SLT:8.1 |
| CDi:7, CDi:8 | CDi:7, CDi:8 |
| CDi:11—CDi:14 | CDi:11—CDi:14.1 |
| CDi:63, CDi:64 | CDi:63, CDi:64 |

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

MUNICIPAL CODE CORPORATION
Post Office Box 2235
1700 Capital Circle, S.W.
Tallahassee, FL 32316
(850) 576-3171
1-800-262-CODE
Website: www.municode.com

SUPPLEMENT NO. 12
December 2006

# CODE OF ORDINANCES

## City of

## CHARLESTON, WEST VIRGINIA

### Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

**Bill No. 7225, adopted September 5, 2006.**

See the Code Comparative Table for further information.

| *Remove old pages* | *Insert new pages* |
|---|---|
| xv, xvi | xv, xvi |
| xix, xx | xix, xx |
| Checklist of up-to-date pages | Checklist of up-to-date pages (following Table of Contents) |
| CD18:3—CD18:7 | CD18:3—CD18:7 |
| CD18:29, CD18:30 | CD18:29—CD18:30.1 |
| CD18:39—CD18:42 | CD18:39—CD18:42 |
| CD110:15—CD110:18 | CD110:14.1—CD110:17 |
| CCT:13, CCT:14 | CCT:13, CCT:14 |
| SLT:7—SLT:10 | SLT:7—SLT:10 |
| CDi:37, CDi:38 | CDi:37, CDi:38 |

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

MUNICIPAL CODE CORPORATION
Post Office Box 2235
1700 Capital Circle, S.W.
Tallahassee, FL 32316
(850) 576-3171
1-800-262-CODE
Website: www.municode.com

SUPPLEMENT NO. 11
September 2006

# CODE OF ORDINANCES

## City of

## CHARLESTON, WEST VIRGINIA

### Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

**Ordinance No. 7215(Bill), adopted August 7, 2006.**

See the Code Comparative Table for further information.

| *Remove old pages* | *Insert new pages* |
|---|---|
| Checklist of up-to-date pages | Checklist of up-to-date pages (following Table of Contents) |
| CD2:35—CD2:36.2 | CD2:35—CD2:36.2 |
| CD10:11, CD10:12 | CD10:11—CD10:13 |
| CD78:15—CD78:18 | CD78:15—CD78:18 |
| CD102:1, CD102:2 | CD102:1, CD102:2 |
| CD102:9, CD102:10 | CD102:9, CD102:10 |
| CD114:57—CD114:58.1 | CD114:57—CD114:58.1 |
| CCT:13 | CCT:13, CCT:14 |

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

MUNICIPAL CODE CORPORATION
Post Office Box 2235
1700 Capital Circle, S.W.
Tallahassee, FL 32316
(850) 576-3171
1-800-262-CODE
Website: www.municode.com

SUPPLEMENT NO. 10
May 2006

# CODE OF ORDINANCES

## City of

## CHARLESTON, WEST VIRGINIA

### Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

**Ordinance No. 7166(Bill), adopted January 17, 2006.**

See the Code Comparative Table for further information.

| *Remove old pages* | *Insert new pages* |
|---|---|
| Checklist of up-to-date pages | Checklist of up-to-date pages (following Table of Contents) |
| CD82:1 | CD82:1 |
| CD82:11 | CD82:11 |
| CCT:13 | CCT:13 |
| SLT:1, SLT:2 | SLT:1, SLT:2 |
| CDi:55, CDi:56 | CDi:55—CDi:56.1 |

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

MUNICIPAL CODE CORPORATION
Post Office Box 2235
1700 Capital Circle, S.W.
Tallahassee, FL 32316
(850) 576-3171
1-800-262-CODE
Website: www.municode.com

SUPPLEMENT NO. 9
January 2006

# CODE OF ORDINANCES

## City of

## CHARLESTON, WEST VIRGINIA

### Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

**Ordinance No. 7180 (Bill), adopted December 10, 2005.**

See the Code Comparative Table for further information.

| *Remove old pages* | *Insert new pages* |
|---|---|
| xiii—xviii | xiii—xviii |
| Checklist of up-to-date pages | Checklist of up-to-date pages (following Table of Contents) |
| CD10:1, CD10:2 | CD10:1, CD10:2 |
| CD10:9—CD10:12 | CD10:9—CD10:12 |
| CD22:5—CD22:8 | CD22:5—CD22:10 |
| CD54:9—CD54:12.1 | CD54:9—CD54:12.1 |
| CD66:5, CD66:6 | CD66:5, CD66:6 |
| CD86:13—CD86:16 | CD86:13—CD86:16 |
| CD91:3 | CD91:3 |
| CCT:13 | CCT:13 |
| CDi:3, CDi:4 | CDi:3, CDi:4 |
| CDi:39, CDi:40 | CDi:39, CDi:40 |
| CDi:45—CDi:47 | CDi:45—CDi:47 |

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

MUNICIPAL CODE CORPORATION
Post Office Box 2235
1700 Capital Circle, S.W.
Tallahassee, FL 32316
(850) 576-3171
1-800-262-CODE
Website: www.municode.com

SUPPLEMENT NO. 8
November 2005

# CODE OF ORDINANCES

## City of

## CHARLESTON, WEST VIRGINIA

### Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

**Ordinance No. 7153 (Bill), adopted October 17, 2005.**

See the Code Comparative Table for further information.

| *Remove old pages* | *Insert new pages* |
|---|---|
| xiii—xxi | xiii—xxi |
| Checklist of up-to-date pages | Checklist of up-to-date pages (following Table of Contents) |
| CD10:1, CD10:2 | CD10:1, CD10:2 |
| CD10:5—CD10:10 | CD10:5—CD10:12 |
| CD102:1, CD102:2 | CD102:1, CD102:2 |
| CD102:9—CD102:12 | CD102:9, CD102:10 |
| CD114:55—CD114:58 | CD114:55—CD114:58.1 |
| CCT:13 | CCT:13 |
| SLT:1—SLT:6 | SLT:1—SLT:6.1 |
| CDi:3—CDi:6 | CDi:3—CDi:6 |
| CDi:25, CDi:26 | CDi:25, CDi:26 |
| CDi:33, CDi:34 | CDi:33, CDi:34 |
| CDi:71, CDi:72 | CDi:71, CDi:72 |

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

MUNICIPAL CODE CORPORATION
Post Office Box 2235
1700 Capital Circle, S.W.
Tallahassee, FL 32316
(850) 576-3171
1-800-262-CODE
Website: www.municode.com

SUPPLEMENT NO. 7
July 2005

# CODE OF ORDINANCES

## City of

## CHARLESTON, WEST VIRGINIA

### Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

**Ordinance No. 7151 (Bill), adopted July 5, 2005.**

See the Code Comparative Table for further information.

| *Remove old pages* | *Insert new pages* |
|---|---|
| xvii—xxi | xvii—xxi |
| Checklist of up-to-date pages | Checklist of up-to-date pages (following Table of Contents) |
| CD54:9—CD54:12 | CD54:9—CD54:12.1 |
| CD66:5, CD66:6 | CD66:5—CD66:6.1 |
| CD86:1, CD86:2 | CD86:1, CD86:2 |
| CD86:13—CD86:16 | CD86:13—CD86:16.1 |
| CD86:37 | CD86:37—CD86:40 |
| CD110:17, CD110:18 | CD110:17, CD110:18 |
| CD110:19—CD110:24 | CD110:19—CD110:24.1 |
| CCT:13 | CCT:13 |
| SLT:1—SLT:4 | SLT:1—SLT:4.1 |
| CDi:17, CDi:18 | CDi:17, CDi:18 |
| CDi:21, CDi:22 | CDi:21, CDi:22 |
| CDi:33—CDi:36 | CDi:33—CDi:36 |
| CDi:55—CDi:58 | CDi:55—CDi:58 |

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

MUNICIPAL CODE CORPORATION
Post Office Box 2235
1700 Capital Circle, S.W.
Tallahassee, FL 32316
(850) 576-3171
1-800-262-CODE
Website: www.municode.com

SUPPLEMENT NO. 6
January 2005

# CODE OF ORDINANCES

## City of

## CHARLESTON, WEST VIRGINIA

### Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

**Ordinance No. 7103(BILL), adopted December 6, 2004.**

See the Code Comparative Table for further information.

| *Remove old pages* | *Insert new pages* |
|---|---|
| xvii, xviii | xvii, xviii |
| Checklist of up-to-date pages | Checklist of up-to-date pages (following Table of Contents) |
| CD62:1 | CD62:1 |
| CD62:3—CD62:15 | CD62:3—CD62:12 |
| CD78:1, CD78:2 | CD78:1, CD78:2 |
| CD78:11, CD78:12 | CD78:11—CD78:12.1 |
| CCT:13 | CCT:13 |
| SLT:1—SLT:10 | SLT:1—SLT:10 |
| CDi:15—CDi:18 | CDi:15—CDi:18 |
| CDi:21, CDi:22 | CDi:21, CDi:22 |
| CDi:29, CDi:30 | CDi:29—CDi:30.1 |
| CDi:33—CDi:36 | CDi:33—CDi:36 |
| CDi:51—CDi:54 | CDi:51—CDi:54 |
| CDi:57—CDi:62 | CDi:57—CDi:62 |
| CDi:87, CDi:88 | CDi:87, CDi:88 |

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

MUNICIPAL CODE CORPORATION
Post Office Box 2235
1700 Capital Circle, S.W.
Tallahassee, FL 32316
(850) 576-3171
1-800-262-CODE
Website: www.municode.com

SUPPLEMENT NO. 5
December 2004

# CODE OF ORDINANCES

## City of

## CHARLESTON, WEST VIRGINIA

### Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

**Ordinance No. 7095(BILL), adopted September 7, 2004.**

See the Code Comparative Table for further information.

| *Remove old pages* | *Insert new pages* |
|---|---|
| Checklist of up-to-date pages | Checklist of up-to-date pages (following Table of Contents) |
| CD2:27—CD2:28.1 | CD2:27—CD2:28.1 |
| CD10:7, CD10:8 | CD10:7—CD10:8.1 |
| CCT:13 | CCT:13 |
| SLT:1, SLT:2 | SLT:1—SLT:2.1 |

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

MUNICIPAL CODE CORPORATION
Post Office Box 2235
1700 Capital Circle, S.W.
Tallahassee, FL 32316
(850) 576-3171
1-800-262-CODE
Website: www.municode.com

SUPPLEMENT NO. 4
September 2004

# CODE OF ORDINANCES

## City of

## CHARLESTON, WEST VIRGINIA

### Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

**Ordinance No. 7068 (Bill), enacted June 7, 2004.**

See the Code Comparative Table for further information.

| *Remove old pages* | *Insert new pages* |
|---|---|
| Checklist of up-to-date pages | Checklist of up-to-date pages (following Table of Contents) |
| CD86:23—CD86:37 | CD86:23—CD86:37 |
| CD98:9—CD98:13 | CD98:9—CD98:13 |
| CCT:13 | CCT:13 |

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

MUNICIPAL CODE CORPORATION
Post Office Box 2235
1700 Capital Circle, S.W.
Tallahassee, FL 32316
(850) 576-3171
1-800-262-CODE
Website: www.municode.com

SUPPLEMENT NO. 3
June 2004

# CODE OF ORDINANCES

## City of

## CHARLESTON, WEST VIRGINIA

### Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

**Ordinance No. 7047 (Bill), enacted April 19, 2004.**

See the Code Comparative Table for further information.

| *Remove old pages* | *Insert new pages* |
|---|---|
| xiii—xxii | xiii—xxi |
| Checklist of up-to-date pages | Checklist of up-to-date pages (following Table of Contents) |
| CD2:5, CD2:6 | CD2:5, CD2:6 |
| CD2:35, CD2:36 | CD2:35—CD2:36.2 |
| CD14:1—CD14:10 | CD14:1—CD14:9 |
| CD91:1 | CD91:1—CD91:3 |
| | CD92:1 |
| CD114:5, CD114:6 | CD114:5, CD114:6 |
| CD114:55—CD114:60 | CD114:55—CD114:60.2 |
| CDB:1—CDB:127 | CDB:1 |
| CCT:11, CCT:12 | CCT:11—CCT:13 |
| SLT:1—SLT:10 | SLT:1—SLT:10 |
| CDi:1—CDi:50 | CDi:1—CDi:47 |
| CDi:53—CDi:56 | CDi:53—CDi:56 |
| CDi:59—CDi:64 | CDi:59—CDi:64 |
| CDi:67—CDi:70 | CDi:67—CDi:70 |
| CDi:73—CDi:99 | CDi:73—CDi:89 |

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

MUNICIPAL CODE CORPORATION
Post Office Box 2235
1700 Capital Circle, S.W.
Tallahassee, FL 32316
(850) 576-3171
1-800-262-CODE
Website: www.municode.com

SUPPLEMENT NO. 2
April 2004

# CODE OF ORDINANCES

## City of

## CHARLESTON, WEST VIRGINIA

### Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

**Ordinance No. 7034 (Bill), enacted January 20, 2004.**

See the Code Comparative Table for further information.

| *Remove old pages* | *Insert new pages* |
|---|---|
| xv—xxii | xv—xxii |
| Checklist of up-to-date pages | Checklist of up-to-date pages (following Table of Contents) |
| CD2:7, CD2:8 | CD2:7, CD2:8 |
| CD22:1 | CD22:1 |
| CD22:5—CD22:6.2 | CD22:5—CD22:6.2 |
| CD50:1, CD50:2 | CD50:1, CD50:2 |
| CD50:15—CD50:21 | CD50:15—CD50:21 |
| CD54:7, CD54:8 | CD54:7, CD54:8 |
| CD82:9, CD82:10 | CD82:9—CD82:11 |
| CD102:3 | CD102:3 |
| CD102:17—CD102:21 | CD102:17—CD102:19 |
| CD114:1, CD114:2 | CD114:1, CD114:2 |
| CD114:17, CD114:18 | CD114:17—CD114:18.1 |
| CD114:23, CD114:24 | CD114:23, CD114:24 |
| CD114:53—CD114:56 | CD114:53—CD114:56.1 |
| CD118:1—CD118:2.1 | CD118:1—CD118:2.1 |
| CD118:9—CD118:12 | CD118:9—CD118:12.1 |
| CCT:1—CCT:5 | CCT:1—CCT:5 |
| CCT:9—CCT:12 | CCT:9—CCT:12 |
| CDi:7, CDi:8 | CDi:7, CDi:8 |
| CDi:13—CDi:16 | CDi:13—CDi:16 |
| CDi:25, CDi:26 | CDi:25, CDi:26 |
| CDi:49, CDi:50 | CDi:49, CDi:50 |
| CDi:55, CDi:56 | CDi:55, CDi:56 |
| CDi:65, CDi:66 | CDi:65, CDi:66 |
| CDi:71—CDi:74 | CDi:71—CDi:74 |
| CDi:77—CDi:80 | CDi:77—CDi:80 |

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

MUNICIPAL CODE CORPORATION
Post Office Box 2235
1700 Capital Circle, S.W.
Tallahassee, FL 32316
(850) 576-3171
1-800-262-CODE
Website: www.municode.com

SUPPLEMENT NO. 1, REVISION
November 2003

# CODE OF ORDINANCES

## City of

## CHARLESTON, WEST VIRGINIA

### Looseleaf Supplement

This Supplement No. 1, Revision, is issued to revise pages appearing in Supplement No. 1 and should be inserted as directed below.

| *Remove old pages* | *Insert new pages* |
|---|---|
| Checklist of up-to-date pages | Checklist of up-to-date pages (following Table of Contents) |
| CD2:5, CD2:6 | CD2:5, CD2:6 |
| CD2:35—CD2:40 | CD2:35—CD2:40 |
| SLT:3, SLT:4 | SLT:3, SLT:4 |
| CDi:27, CDi:28 | CDi:27, CDi:28 |

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

MUNICIPAL CODE CORPORATION
Post Office Box 2235
1700 Capital Circle, S.W.
Tallahassee, FL 32316
(850) 576-3171
1-800-262-CODE
Website: www.municode.com

SUPPLEMENT NO. 1
November 2003

# CODE OF ORDINANCES

## City of

## CHARLESTON, WEST VIRGINIA

### Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

**Ordinance No. 7002 (Bill), enacted September 15, 2003.**

See the Code Comparative Table for further information.

| *Remove old pages* | *Insert new pages* |
|---|---|
| Title page | Title page |
| | xi, xii |
| xiii—xxii | xiii—xxii |
| | Checklist of up-to-date pages (following Table of Contents) |
| CD2:3—CD2:5 | CD2:3—CD2:6 |
| CD2:7, CD2:8 | CD2:7—CD2:8.1 |
| CD2:17, CD2:18 | CD2:17—CD2:18.4 |
| CD2:27, CD2:28 | CD2:27—CD2:28.1 |
| CD2:35 | CD2:35—CD2:40 |
| CD18:1—CD18:7 | CD18:1—CD18:7 |
| CD18:11, CD18:12 | CD18:11—CD18:12.2 |
| CD22:1 | CD22:1 |
| CD22:5, CD22:6 | CD22:5—CD22:6.2 |
| CD50:1, CD50:2 | CD50:1, CD50:2 |
| CD50:9—CD50:15 | CD50:9—CD50:21 |
| CD62:1 | CD62:1 |
| CD62:13 | CD62:13—CD62:15 |
| CD78:1, CD78:2 | CD78:1—CD78:2.1 |
| CD78:5, CD78:6 | CD78:5—CD78:6.1 |
| CD82:1 | CD82:1 |
| CD82:3—CD82:9 | CD82:3—CD82:10 |
| CD86:1, CD86:2 | CD86:1, CD86:2 |
| CD86:23 | CD86:23—CD86:37 |
| CD98:1, CD98:2 | CD98:1, CD98:2 |
| CD98:7—CD98:13 | CD98:7—CD98:13 |
| CD110:1—CD110:3 | CD110:1—CD110:3 |
| CD110:5—CD110:18 | CD110:5—CD110:18.7 |
| CD114:5—CD114:7 | CD114:5—CD114:8 |
| CD114:53—CD114:58 | CD114:53—CD114:58.5 |
| CD114:67, CD114:68 | CD114:67—CD114:71 |
| CD118:1, CD118:2 | CD118:1—CD118:2.1 |
| CD118:9—CD118:20 | CD118:9—CD118:20.7 |
| CD118:33, CD118:34 | CD118:33—CD118:38 |

| *Remove old pages* | *Insert new pages* |
|---|---|
| CCT:9, CCT:10 | CCT:9—CCT:12 |
| SLT:1—SLT:10 | SLT:1—SLT:10 |
| CDi:1—CDi:89 | CDi:1—CDi:89 |

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

MUNICIPAL CODE CORPORATION
Post Office Box 2235
1700 Capital Circle, S.W.
Tallahassee, FL 32316
(850) 576-3171
1-800-262-CODE
Website: www.municode.com

# CODE

OF THE CITY OF

# CHARLESTON, WEST VIRGINIA

Adopted: April 7, 2003

Published by Order of the City Council, 2003

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com

P.O. Box 2235 Tallahassee, FL 32316

OFFICIALS

of the

CITY OF

CHARLESTON, WEST VIRGINIA

AT THE TIME OF THIS RECODIFICATION

---

Danny Jones
*Mayor*

---

Patrick Jones
William Hanna
James "Moses" Lanham
Geneva Foster
Teresa "Tricky" Reed
Edward Talkington
Paul James Monroe
Bob White
Betty Morton
Archie Chestnut
Marc Weintraub
Jim Harris, Jr.
Linda M. Nielson
Jack E. Harrison
David Kent Higgins
Brenda H. Robertson
Bobby Reishman
John Miller, Jr.
Ditty L. Markham
Cheryle Hall
Michael Clowser
J. Thomas Lane
Charles W. Loeb, Jr.
Jerry L. Ware
Harry Deitzler
Mark A. Sadd
Mary Jean Davis
*City Council*

---

David Molgaard
*City Manager*

---

Kimberly Bandi Weber
*City Attorney*

# PREFACE

This Code constitutes a recodification of the general and permanent ordinances of the City of Charleston, West Virginia.

Source materials used in the preparation of the Code were the 1975 Code, as supplemented through May 21, 1990, and ordinances subsequently adopted by the city council. The source of each section is included in the history note appearing in parentheses at the end thereof. The absence of such a note indicates that the section is new and was adopted for the first time with the adoption of the Code. By use of the comparative tables appearing in the back of this Code, the reader can locate any section of the 1975 Code, as supplemented, and any subsequent ordinance included herein.

The chapters of the Code have been conveniently arranged in alphabetical order, and the various sections within each chapter have been catchlined to facilitate usage. Notes which tie related sections of the Code together and which refer to relevant state law have been included. A table listing the state law citations and setting forth their location within the Code is included at the back of this Code.

## *Chapter and Section Numbering System*

The chapter and section numbering system used in this Code is the same system used in many state and local government codes. Each section number consists of two parts separated by a dash. The figure before the dash refers to the chapter number, and the figure after the dash refers to the position of the section within the chapter. Thus, the second section of chapter 1 is numbered 1-2, and the first section of chapter 6 is 6-1. Under this system, each section is identified with its chapter, and at the same time new sections can be inserted in their proper place by using the decimal system for amendments. For example, if new material consisting of one section that would logically come between sections 6-1 and 6-2 is desired to be added, such new section would be numbered 6-1.5. New articles and new divisions may be included in the same way or, in the case of articles, may be placed at the end of the chapter embracing the subject, and, in the case of divisions, may be placed at the end of the article embracing the subject. The next successive number shall be assigned to the new article or division. New chapters may be included by using one of the reserved chapter numbers. Care should be taken that the alphabetical arrangement of chapters is maintained when including new chapters.

## *Page Numbering System*

The page numbering system used in this Code is a prefix system. The letters to the left of the colon are an abbreviation which represents a certain portion of the volume. The number to the right of the colon represents the number of the page in that portion. In the case of a chapter of the Code, the number to the left of the colon indicates the number of the chapter. In the case of an appendix to the Code, the letter immediately to the left of the colon indicates the letter of the appendix. The following are typical parts of codes of ordinances, which may or may not appear in this Code at this time, and their corresponding prefixes:

CHARTER CHT:1
CHARTER COMPARATIVE TABLE CHTCT:1
CODE CD1:1
CODE APPENDIX CDA:1
CODE COMPARATIVE TABLES CCT:1
STATE LAW REFERENCE TABLE SLT:1
CHARTER INDEX CHTi:1
CODE INDEX CDi:1

*Indexes*

The indexes have been prepared with the greatest of care. Each particular item has been placed under several headings, some of which are couched in lay phraseology, others in legal terminology, and still others in language generally used by local government officials and employees. There are numerous cross references within the indexes themselves which stand as guideposts to direct the user to the particular item in which the user is interested.

*Looseleaf Supplements*

A special feature of this publication is the looseleaf system of binding and supplemental servicing of the publication. With this system, the publication will be kept up-to-date. Subsequent amendatory legislation will be properly edited, and the affected page or pages will be reprinted. These new pages will be distributed to holders of copies of the publication, with instructions for the manner of inserting the new pages and deleting the obsolete pages.

Keeping this publication up-to-date at all times will depend largely upon the holder of the publication. As revised pages are received, it will then become the responsibility of the holder to have the amendments inserted according to the attached instructions. It is strongly recommended by the publisher that all such amendments be inserted immediately upon receipt to avoid misplacing them and, in addition, that all deleted pages be saved and filed for historical reference purposes.

*Acknowledgments*

This publication was under the direct supervision of Roger D. Merriam, Senior Code Attorney, and John Welch, Editor, of the Municipal Code Corporation, Tallahassee, Florida. Credit is gratefully given to the other members of the publisher's staff for their sincere interest and able assistance throughout the project.

The publisher is most grateful to Mr. Charles Loeb, City Councilman, and Mr. Greg Burton, City Manager, for their cooperation and assistance during the progress of the work on this publication. It is hoped that their efforts and those of the publisher have resulted in a Code of Ordinances which will make the active law of the city readily accessible to all citizens and which will be a valuable tool in the day-to-day administration of the city's affairs.

*Copyright*

All editorial enhancements of this Code are copyrighted by Municipal Code Corporation and the City of Charleston, West Virginia. Editorial enhancements include, but are not limited to: organization; table of contents; section catchlines; prechapter section analyses; editor's notes; cross references; state law references; numbering system; code comparative table; state law reference table; and index. Such material may not be used or reproduced for commercial purposes without the express written consent of Municipal Code Corporation and the City of Charleston, West Virginia.

© Copyrighted material.

Municipal Code Corporation and the City of Charleston, West Virginia. 2003.

ADOPTION ORDINANCE
BILL NO. 6968

BE IT ORDAINED BY THE COUNCIL OF THE CITY OF CHARLESTON, WEST VIRGINIA:

*Section 1.* The Code entitled "Code of the City of Charleston, West Virginia," published by Municipal Code Corporation consisting of chapters 1 through 126, each inclusive, with handwritten correction thereon is adopted.

*Section 2.* This ordinance does not affect any ordinances adopted after September 5, 2000.

*Section 3.* Unless another penalty is expressly provided, every person convicted of a violation of any provision of the Code of any ordinance, rule or regulation adopted or issued in pursuance thereof, shall be punished by a fine of not less than $10.00 and not more than $500.00, imprisonment for a term not exceeding 30 day[s] or any combination thereof. Except as otherwise provided, each act of violation and each day upon which any such violation shall occur shall constitute a separate offense. The penalty provided by this section, unless another penalty is expressly provided, shall apply to the amendment of any Code section whether or not such penalty is reenacted in the amendatory ordinance. In addition to the penalty prescribed above, the city may pursue other remedies such as abatement of nuisances, injunctive relief, and revocation of licenses or permits.

*Section 4.* Additions or amendments to the Code when passed in the form as to indicate the intention of the city to make the same a part of the Code shall be deemed to be incorporated in the Code, so that reference to the Code includes the additions and amendments.

*Section 5.* Ordinances adopted after September 5, 2000, that amend or refer to ordinances that have been codified in the Code, shall be construed as if they amend or refer to like provisions of the Code. Municipal Code Corporation shall include ordinances adopted after September 5, 2000 and adopted through the date of adoption of this ordinance in Supplement No. 1 to the Code and include Supplement No. 1 in the Code prior to the shipment of the Code to the City. In addition, Municipal Code Corporation shall make any modification to the Code indicated upon a proof copy of the Code furnished by the City to Municipal Code Corporation.

*Section 6.* Municipal Code Corporation shall correct spelling, grammar and typographical errors in the Code as supplemented with Supplement No. 1, but in no case shall any change be made that substantively changes any ordinance. In addition, when preparing Supplement No. 1 or any other supplement to the Code, Municipal Code Corporation may make formal, nonsubstantive changes in ordinances included in the supplement, insofar as necessary to do so in order to embody them into a unified code. For example, Municipal Code Corporation may:

(1) Arrange the material into appropriate organizational units.

(2) Supply appropriate catchlines, headings and titles for chapters, articles, divisions, subdivisions and sections to be included in the Code and make changes in any such catchlines, headings and titles or in any such catchlines, headings and titles already in the Code.

(3) Assign appropriate numbers to chapters, articles, divisions, subdivisions and sections to be added to the [C]ode.

(4) Where necessary to accommodate new material, change existing numbers assigned to chapters, articles, divisions, subdivisions or sections.

(5) Change the words "this ordinance" or similar words to "this chapter," "this article," "this division," "this subdivision," "this section" or "sections _____ to _____" (inserting section numbers to indicate the sections of the Code that embody the substantive sections of the ordinance incorporated in the Code).

(6) Make other nonsubstantive changes necessary to preserve the original meaning of the ordinances inserted in the Code.

*Section 7.* This ordinance shall become effective upon certification by the City Clerk of the receipt of the final printed copies of the Code from Municipal Code Corporation.

Passed and adopted by the city council this 7th day of April, 2003.

By:

/s/ Jay Goldman
Mayor

ATTEST:

/s/ James M. Reishman
City Clerk

TABLE OF CONTENTS


Page

Officials of the City at the Time of this Recodification ..... iii

Current Officials (Reserved) ..... v

Preface ..... vii

Adopting Ordinance ..... xi

Checklist of Up-to-Date Pages ..... [1]

Supplement History Table ..... SH:1

PART I

CHARTER

Charter ..... CHT:1

Charter Comparative Table ..... CHTCT:1

PART II

CODE OF ORDINANCES

Chapter

1. General Provisions ..... CD1:1

2. Administration ..... CD2:1
- Art. I. In General ..... CD2:8.1
- Art. II. Mayor ..... CD2:8.1
- Art. III. City Council ..... CD2:8.2
  - Div. 1. Generally ..... CD2:8.2
  - Div. 2. Ordinances ..... CD2:10
- Art. IV. Officers and Employees ..... CD2:12
  - Div. 1. Generally ..... CD2:12
  - Div. 2. Benefits ..... CD2:14.1
  - Div. 3. City Manager ..... CD2:14.2
  - Div. 4. City Clerk ..... CD2:15
  - Div. 5. City Collector ..... CD2:15
  - Div. 6. City Solicitor ..... CD2:15
  - Div. 7. City Engineer ..... CD2:16
  - Div. 8. Director of Public Works ..... CD2:16
  - Div. 9. Director of Mayor's Office of Economic and Community Development ..... CD2:16
- Art. V. Public Records ..... CD2:16
- Art. VI. Finance ..... CD2:18.3
  - Div. 1. Generally ..... CD2:18.3
  - Div. 2. Budget ..... CD2:23
  - Div. 3. Bond Issues ..... CD2:27
  - Div. 4. Contracts and Purchases ..... CD2:27
    - Subdiv. I. In General ..... CD2:27

Chapter Page

Subdiv. II. Bids ..... CD2:30
Subdiv. III. Administrative ..... CD2:31
Art. VII. Boards, Committees and Commissions..... CD2:34
Div. 1. Generally ..... CD2:34
Div. 2. Beautification Commission..... CD2:34
Div. 3. Charleston Coliseum and Convention Center/Municipal Auditorium Board..... CD2:35
Div. 4. Central West Virginia Regional Airport Authority ..... CD2:38
Div. 5. Charleston Urban Renewal Authority..... CD2:38
Div. 6. Kanawha Valley Regional Transportation Authority ..... CD2:38
Div. 7. Municipal Building Commission..... CD2:39
Div. 8. Public Art Commission ..... CD2:41
Div. 9. Charleston Land Trust ..... CD2:42
Div. 10. Charleston Historic Landmarks Commission ..... CD2:43
Div. 11. City Center Business Improvement District CD2:49
Div. 12. Victims Assistance Commission ..... CD2:53
Art. VIII. City Service Fee..... CD2:54
Art. IX. Energy Benchmarking..... CD2:59

3. Municipal Home Rule ..... CD3:1

4, 5. Reserved ..... CD4:1

6. Alcoholic Beverages ..... CD6:1
Art. I. In General ..... CD6:5
Art. II. Nonintoxicating Beer ..... CD6:5
Div. 1. Generally ..... CD6:5
Div. 2. License ..... CD6:5
Art. III. Intoxicating Liquor ..... CD6:6
Div. 1. Generally ..... CD6:6
Div. 2. Taxes and License Taxes..... CD6:7
Div. 3. Private Clubs ..... CD6:8
Subdiv. I. In General ..... CD6:8
Subdiv. II. License ..... CD6:9
Art. IV. Private Outdoor Designated Areas ..... CD6:10
Div. 1. Generally ..... CD6:10
Div. 2. City Center PODA..... CD6:12
Div. 3. Bridge Road PODA..... CD6:14
Div. 4. Elk City PODA..... CD6:14
Div. 5. Capitol Market PODA ..... CD6:15
Div. 6. East End PODA..... CD6:15

7—9. Reserved ..... CD7:1

10. Animals ..... CD10:1
Art. I. In General ..... CD10:3
Art. II. Livestock..... CD10:10
Div. 1. Generally ..... CD10:10

| Chapter | | Page |
|---|---|---|
| | Div. 2. Impoundment | CD10:10 |
| | Art. III. Dogs | CD10:12 |
| | Div. 1. Generally | CD10:12 |
| | Div. 2. License | CD10:16 |
| | Div. 3. Impoundment | CD10:17 |
| | Art. IV. Urban Hunting | CD10:18 |
| 11—13. | Reserved | CD11:1 |
| 14. | Buildings and Building Regulations | CD14:1 |
| | Art. I. In General | CD14:3 |
| | Art. II. Building Code | CD14:3 |
| | Art. III. Housing Code | CD14:6.7 |
| | Div. 1. Generally | CD14:6.7 |
| | Div. 2. Administration and Enforcement | CD14:6.7 |
| | Subdiv. I. In General | CD14:6.7 |
| | Subdiv. II. Violations | CD14:6.8 |
| | Div. 3. Minimum Standards | CD14:8 |
| | Art. IV. Security Against Unauthorized Entry | CD14:9 |
| | Art. V. Vacant Structure Registry | CD14:15 |
| | Art. VI. Abatement of Unsafe, Unsanitary or Dangerous Buildings | CD14:21 |
| 15—17. | Reserved | CD15:1 |
| 18. | Businesses | CD18:1 |
| | Art. I. In General | CD18:9 |
| | Art. II. Licenses Generally | CD18:9 |
| | Art. III. Auctioneers | CD18:12 |
| | Art. IV. Barbers and Beauticians | CD18:13 |
| | Art. V. Bowling Alleys and Billiard, Pool and Bagatelle Tables | CD18:14 |
| | Art. VI. Carnivals, Circuses and Shows | CD18:14 |
| | Div. 1. Generally | CD18:14 |
| | Div. 2. Licenses | CD18:15 |
| | Art. VII. Coin-Operated Machines and Devices | CD18:15 |
| | Div. 1. Generally | CD18:15 |
| | Div. 2. License | CD18:15 |
| | Art. VIII. Going Out of Business Sales, Fire Sales and Similar Sales | CD18:17 |
| | Div. 1. Generally | CD18:17 |
| | Div. 2. License | CD18:18 |
| | Art. IX. Handgun Dealers | CD18:23 |
| | Div. 1. Reserved | CD18:23 |
| | Div. 2. License | CD18:23 |
| | Art. X. Hawkers and Peddlers | CD18:24 |
| | Art. XI. Home Solicitation Sales | CD18:25 |
| | Art. XII. Hotels, Tourist Homes and Eating Places | CD18:26 |
| | Art. XIII. Insurance Companies and Agents | CD18:26 |
| | Art. XIV. Reserved | CD18:27 |
| | Art. XV. Junk Dealers | CD18:27 |
| | Div. 1. Generally | CD18:27 |

Chapter Page

Div. 2. License ..... CD18:27
Art. XVI. Massage Parlors ..... CD18:31
Div. 1. Generally ..... CD18:31
Div. 2. Permit ..... CD18:33
Art. XVII. Parking Lots ..... CD18:34
Div. 1. Generally ..... CD18:34
Div. 2. License ..... CD18:35
Art. XVIII. Pawnbrokers ..... CD18:36
Art. XIX. Salvage Yards ..... CD18:36
Art. XX. Secondhand Automotive Accessories and Parts CD18:37
Art. XXI. Stores ..... CD18:38
Div. 1. Generally ..... CD18:38
Div. 2. License ..... CD18:38
Art. XXII. Street, Event, and Private Property Vendors CD18:40
Div. 1. Generally ..... CD18:40
Div. 2. Vendor Standards ..... CD18:42.1
Div. 3. Reserved ..... CD18:42.3
Art. XXIII. Tree Services ..... CD18:42.3
Art. XXIV. Residential Rental Properties ..... CD18:43
Div. 1. Residential Rental License ..... CD18:43
Div. 2. Inspections of Rental Property ..... CD18:46

19—21. Reserved ..... CD19:1

22. Cemeteries ..... CD22:1
Art. I. In General ..... CD22:3
Art. II. Spring Hill Cemetery ..... CD22:3
Div. 1. Generally ..... CD22:3
Div. 2. Commission ..... CD22:7

23—25. Reserved ..... CD25:1

26. Charitable Solicitations ..... CD26:1
Art. I. In General ..... CD26:3
Art. II. Permit ..... CD26:3

27—29. Reserved ..... CD27:1

30. Community Development ..... CD30:1
Art. I. In General ..... CD30:3
Art. II. Urban Renewal Authority ..... CD30:3
Art. III. Neighborhood Rehabilitation Program ..... CD30:3

31—33. Reserved ..... CD31:1

34. Consumer Protection ..... CD34:1
Art. I. In General ..... CD34:3
Art. II. Consumer Protection Department ..... CD34:3

35—37. Reserved ..... CD35:1

38. Courts ..... CD38:1
Art. I. In General ..... CD38:3
Art. II. Municipal Court ..... CD38:3
Div. 1. Generally ..... CD38:3

| Chapter | | Page |
|---|---|---|
| | Div. 2. Juries | CD38:7 |
| | Div. 3. Installment Payment of Fines and Costs | CD38:9 |
| 39—41. | Reserved | CD39:1 |
| 42. | Emergency Management | CD42:1 |
| | Art. I. In General | CD42:3 |
| | Art. II. Emergency Services Department | CD42:3 |
| | Art. III. Civil Emergencies | CD42:6 |
| 43—45. | Reserved | CD43:1 |
| 46. | Emergency Services | CD46:1 |
| 47—49. | Reserved | CD47:1 |
| 50. | Environment | CD50:1 |
| | Art. I. In General | CD50:3 |
| | Art. II. Nuisances | CD50:3 |
| | Art. III. Abandoned Vehicles and Junk | CD50:12 |
| | Art. IV. Maintenance of Premises | CD50:16 |
| | Art. V. Trees | CD50:17 |
| 51—53. | Reserved | CD51:1 |
| 54. | Fire Prevention and Protection | CD54:1 |
| | Art. I. In General | CD54:3 |
| | Art. II. Fire Department | CD54:3 |
| | Div. 1. Generally | CD54:3 |
| | Div. 2. Emergency Medical Services Division | CD54:7 |
| | Div. 3. Vacation and Other Leave, Duty Hours, and Calculation of Overtime Pay | CD54:9 |
| | Art. III. Fire Prevention Code | CD54:15 |
| | Art. IV. Fire Protection Service Charge | CD54:18 |
| | Art. V. Fireworks; Sale, Possession, Storage and Discharge | CD54:22 |
| 55—57. | Reserved | CD55:1 |
| 58. | Health and Sanitation | CD58:1 |
| | Art. I. In General | CD58:3 |
| | Art. II. Sale of Water | CD58:4 |
| | Art. III. Conversion Therapy Illegal | CD58:5 |
| | Art. IV. Community Health Action Plan | CD58:6 |
| 59—61. | Reserved | CD59:1 |
| 62. | Human Rights | CD62:1 |
| | Art. I. In General | CD62:3 |
| | Art. II. Human Rights Commission | CD62:5 |
| | Art. III. Discriminatory Practices | CD62:8 |
| | Art. IV. Fair Housing Act | CD62:11 |
| 63—64. | Reserved | CD63:1 |

| Chapter | Page |
|---|---|
| 65. Land Reuse Agency | CD65:1 |
| Art. I. Creation | CD65:3 |
| Art. II. Powers and Duties | CD65:4 |
| Art. III. Board Meetings and Activities | CD65:7 |
| 66. Law Enforcement | CD66:1 |
| Art. I. In General | CD66:3 |
| Art. II. Police Department | CD66:3 |
| Div. 1. Generally | CD66:3 |
| Div. 2. Duty Hours, Holidays and Other Leave | CD66:5 |
| Div. 3. School Crossing Guards | CD66:7 |
| Div. 4. Citizens Commission of the Charleston Mounted Police Patrol | CD66:8 |
| Art. III. City Jail | CD66:9 |
| 67—69. Reserved | CD67:1 |
| 70. Manufactured Homes and Trailers | CD70:1 |
| Art. I. In General | CD70:3 |
| Art. II. Trailers and Trailer Camps | CD70:3 |
| Div. 1. Generally | CD70:3 |
| Div. 2. Auto Trailer Camps | CD70:3 |
| Subdiv. I. In General | CD70:3 |
| Subdiv. II. Permit | CD70:6 |
| 71—73. Reserved | CD71:1 |
| 74. Natural Resources | CD74:1 |
| Art. I. In General | CD74:3 |
| Art. II. Commercial Water Wells | CD74:3 |
| 75—77. Reserved | CD75:1 |
| 78. Offenses and Miscellaneous Provisions | CD78:1 |
| Art. I. In General | CD78:5 |
| Art. II. Offenses Involving Property Rights | CD78:7 |
| Div. 1. Generally | CD78:7 |
| Div. 2. Property Damage and Related Offenses | CD78:8 |
| Div. 3. Larceny and Related Offenses | CD78:8 |
| Subdiv. I. In General | CD78:8 |
| Subdiv. II. Shoplifting | CD78:10 |
| Art. III. Offenses Involving Public Safety | CD78:11 |
| Div. 1. Generally | CD78:11 |
| Div. 2. Weapons | CD78:12 |
| Art. IV. Offenses Involving Public Peace and Order | CD78:14 |
| Div. 1. Generally | CD78:14 |
| Div. 2. Picketing | CD78:20.2 |
| Div. 3. Sound Trucks | CD78:20.4 |
| Art. V. Offenses Involving Public Morals | CD78:22 |
| Div. 1. Generally | CD78:22 |
| Div. 2. Obscenity and Related Offenses | CD78:22 |
| Div. 3. Prostitution and Related Offenses | CD78:23 |

| Chapter | | Page |
|---|---|---|
| | Div. 4. Gambling | CD78:24 |
| | Div. 5. Drugs and Related Offenses | CD78:26 |
| | Subdiv. I. In General | CD78:26 |
| | Subdiv. II. Distribution of Hypodermic Needles and Syringes | CD78:28 |
| | Subdiv. III. Needle Exchange Program | CD78:29 |
| | Art. VI. Offenses Involving Public Authority | CD78:29 |
| 79—81. | Reserved | CD79:1 |
| 82. | Parks and Recreation | CD82:1 |
| | Art. I. In General | CD82:3 |
| | Art. II. Parks and Recreation Department | CD82:3 |
| | Art. III. Parks and Recreation Commission | CD82:7 |
| | Art. IV. Public Use of Parks and Recreational Facilities | CD82:8 |
| | Art. V. Boater Use of Designated City Electrical Hook-Ups at Haddad Riverfront Park Events | CD82:11 |
| 83—85. | Reserved | CD83:1 |
| 86. | Personnel Management and Practices | CD86:1 |
| | Art. I. Administration | CD86:3 |
| | Div. 1. Human Resources Department | CD86:3 |
| | Div. 2. Enforcement | CD86:3 |
| | Art. II. Non-Uniformed Personnel | CD86:4 |
| | Div. 1. Personnel Rules and Administrative Policies Established | CD86:4 |
| | Div. 2. Progressive Discipline and Employee Grievances | CD86:7 |
| 87—89. | Reserved | CD87:1 |
| 90. | Planning | CD90:1 |
| | Art. I. In General | CD90:3 |
| | Art. II. Municipal Planning Commission | CD90:3 |
| 91. | Zoning | CD91:1 |
| 92, 93. | Reserved | CD92:1 |
| 94. | Railroads | CD94:1 |
| 95—97. | Reserved | CD95:1 |
| 98. | Solid Waste | CD98:1 |
| | Art. I. In General | CD98:3 |
| | Art. II. Collection and Disposal | CD98:7 |
| | Div. 1. Generally | CD98:7 |
| | Div. 2. Rates and Charges | CD98:10 |
| | Div. 3. Curbside Collection | CD98:13 |
| | Div. 4. Recyclables | CD98:14 |
| | Div. 5. Yard (Green) Waste | CD98:16 |
| | Div. 6. Transportation and Disposal of Tires | CD98:16 |

| Chapter | | Page |
|---|---|---|
| 99—101. | Reserved | CD99:1 |
| 102. | Streets, Sidewalks and Other Public Places | CD102:1 |
| | Art. I. In General | CD102:5 |
| | Art. II. Construction and Maintenance of Sidewalks, Curbs and Gutters | CD102:10 |
| | Art. III. Excavations | CD102:11 |
| | Art. IV. Street Names and Building Numbers | CD102:13 |
| | Div. 1. Generally | CD102:13 |
| | Div. 2. Building Numbering | CD102:13 |
| | Art. V. Poles, Wires and Antennas | CD102:14 |
| | Art. VI. Street and Alley Closings | CD102:17 |
| | Art. VII. Outdoor Dining | CD102:19 |
| | Art. VIII. Stormwater Pollution Prevention | CD102:22 |
| | Div. 1. Illicit Discharge Detection and Elimination | CD102:22 |
| | Div. 2. Construction Site Erosion and Sediment Control | CD102:31 |
| | Art. IX. Charleston Adopt-A-Street Program | CD102:37 |
| 103—105. | Reserved | CD103:1 |
| 106. | Subdivision Regulations | CD106:1 |
| 107—109. | Reserved | CD107:1 |
| 110. | Taxation | CD110:1 |
| | Art. I. In General | CD110:5 |
| | Art. II. Business and Occupation Tax | CD110:5 |
| | Div. 1. Generally | CD110:5 |
| | Div. 2. Tax Imposed; Exemptions and Credits | CD110:9 |
| | Div. 3. Payments, Returns and Records | CD110:18 |
| | Div. 4. Tax Assessments | CD110:18.3 |
| | Div. 5. Tax Collection | CD110:18.6 |
| | Art. III. Admissions Tax | CD110:18.8 |
| | Art. IV. Hotel Occupancy Tax | CD110:20 |
| | Div. 1. Generally | CD110:20 |
| | Div. 2. Tax Imposed; Rate; Exemptions | CD110:23 |
| | Div. 3. Payment and Collection | CD110:23 |
| | Art. V. Public Utilities Tax | CD110:25 |
| 111. | Consumer Sales and Use Taxes | CD111:1 |
| 112, 113. | Reserved | CD112:1 |
| 114. | Traffic Ordinance | CD114:1 |
| | Art. I. In General | CD114:9 |
| | Art. II. Administration and Enforcement | CD114:17 |
| | Div. 1. Generally | CD114:17 |
| | Div. 2. Violations | CD114:19 |
| | Div. 3. Vehicle Impoundment and Immobilization | CD114:23 |
| | Div. 4. Meter Patrol | CD114:24.2 |
| | Art. III. Accidents and Accident Reports | CD114:24.3 |

Chapter Page

Art. IV. Traffic Control Signs, Signals, Devices and Markings ..... CD114:25
Div. 1. Generally ..... CD114:25
Div. 2. Traffic Control Map ..... CD114:29
Art. V. Serious Traffic Offenses ..... CD114:30
Div. 1. Generally ..... CD114:30
Div. 2. Proof of Alcohol Content; License Suspension ..... CD114:31
Art. VI. Vehicle Operation ..... CD114:34
Div. 1. Generally ..... CD114:34
Div. 2. Speed ..... CD114:38
Div. 3. Driving on Right Side of Roadway, Overtaking and Passing ..... CD114:40
Div. 4. Turning, Starting and Signals on Stopping and Turning ..... CD114:42
Div. 5. Right-of-Way ..... CD114:44
Div. 6. Special Stops ..... CD114:45
Art. VII. Stopping, Standing and Parking ..... CD114:47
Div. 1. Generally ..... CD114:47
Div. 2. City-Owned Parking Lots and Buildings ..... CD114:57
Div. 3. On-Street Metered Parking ..... CD114:61
Art. VIII. Pedestrians ..... CD114:63
Art. IX. Bicycles ..... CD114:65
Div. 1. Generally ..... CD114:65
Div. 2. Reserved ..... CD114:67
Art. X. Tow Trucks ..... CD114:67
Art. XI. Weight Limits ..... CD114:68
Art. XII. Vehicle Equipment ..... CD114:69
Art. XIII. All-Terrain Vehicles ..... CD114:72
Art. XIV. Motorized Scooter ..... CD114:73

115—117. Reserved ..... CD115:1

118. Utilities ..... CD118:1
Art. I. In General ..... CD118:3
Art. II. Water Service ..... CD118:3
Art. III. Sewers and Sewage Disposal ..... CD118:3
Div. 1. Generally ..... CD118:3
Div. 2. Taps ..... CD118:8
Div. 3. Sanitary Board ..... CD118:9
Div. 4. Rates and Charges ..... CD118:10
Div. 5. Reserved ..... CD118:13
Div. 6. Discharge Restrictions ..... CD118:13
Div. 7. Wastewater Containing Fats, Oils and Grease ..... CD118:34.6

119—121. Reserved ..... CD119:1

| Chapter | | Page |
|---|---|---|
| 122. | Vehicles for Hire | CD122:1 |
| | Art. I. In General | CD122:3 |
| | Art. II. Taxicabs | CD122:3 |

Appendix

| | |
|---|---|
| A. Rules of Council | CDA:1 |
| B. Reserved | CDB:1 |
| Code Comparative Table—1975 Code | CCT:1 |
| Code Comparative Table—Ordinances | CCT:7 |
| State Law Reference Table | SLT:1 |
| Charter Index | CHTi:1 |
| Code Index | CDi:1 |

## Checklist of Up-to-Date Pages

**(This checklist will be updated with the printing of each Supplement)**

From our experience in publishing Looseleaf Supplements on a page-for-page substitution basis, it has become evident that through usage and supplementation many pages can be inserted and removed in error.

The following listing is included in this Code as a ready guide for the user to determine whether the Code volume properly reflects the latest printing of each page.

In the first column all page numbers are listed in sequence. The second column reflects the latest printing of the pages as they should appear in an up-to-date volume. The letters "OC" indicate the pages have not been reprinted in the Supplement Service and appear as published for the original Code. When a page has been reprinted or printed in the Supplement Service, this column reflects the identification number or Supplement Number printed on the bottom of the page.

In addition to assisting existing holders of the Code, this list may be used in compiling an up-to-date copy from the original Code and subsequent Supplements.

| Page No. | Supp. No. | Page No. | Supp. No. |
|---|---|---|---|
| Title page | 43 | CHT:19, CHT:20 | OC |
| iii | OC | CHT:21, CHT:22 | OC |
| vii, viii | OC | CHT:23, CHT:24 | OC |
| ix | OC | CHT:25, CHT:26 | OC |
| xi, xii | 1 | CHT:27, CHT:28 | OC |
| xiii, xiv | 52 | CHT:29, CHT:30 | OC |
| xv, xvi | 52 | CHT:31, CHT:32 | OC |
| xvii, xviii | 52 | CHT:33, CHT:34 | OC |
| xix, xx | 54 | CHT:35, CHT:36 | OC |
| xxi, xxii | 52 | CHT:37, CHT:38 | OC |
| SH:1, SH:2 | 37 | CHT:39, CHT:40 | OC |
| SH:3, SH:4 | 56 | CHT:41, CHT:42 | OC |
| CHT:1, CHT:2 | 28 | CHT:43, CHT:44 | OC |
| CHT:3, CHT:4 | OC | CHT:45, CHT:46 | OC |
| CHT:5, CHT:6 | OC | CHT:47, CHT:48 | OC |
| CHT:7, CHT:8 | OC | CHT:49 | OC |
| CHT:9, CHT:10 | 28 | CHTCT:1 | 28 |
| CHT:11, CHT:12 | 28 | CD1:1 | OC |
| CHT:13, CHT:14 | 28 | CD1:3, CD1:4 | OC |
| CHT:15, CHT:16 | 28 | CD1:5, CD1:6 | OC |
| CHT:17, CHT:18 | 28 | CD1:7, CD1:8 | OC |

| Page No. | Supp. No. | Page No. | Supp. No. |
|---|---|---|---|
| CD1:9 | OC | CD2:59, CD2:60 | 50 |
| CD2:1, CD2:2 | 45 | CD2:61, CD2:62 | 50 |
| CD2:3, CD2:4 | 47 | CD2:63 | 50 |
| CD2:5, CD2:6 | 46 | CD3:1 | 33 |
| CD2:7 | 46 | CD3:3, CD3:4 | 19 |
| CD2:8.1, CD2:8.2 | 46 | CD3:5, CD3:6 | 28 |
| CD2:8.3 | 46 | CD3:7, CD3:8 | 33 |
| CD2:9, CD2:10 | OC | CD3:8.1 | 33 |
| CD2:11, CD2:12 | OC | CD3:9, CD3:10 | 28 |
| CD2:13, CD2:14 | 45 | CD3:11 | 28 |
| CD2:14.1, CD2:14.2 | 45 | CD4:1 | 17 |
| CD2:14.3 | 45 | CD6:1, CD6:2 | 48 |
| CD2:15, CD2:16 | 33 | CD6:3 | 51 |
| CD2:17, CD2:18 | 33 | CD6:5, CD6:6 | 48 |
| CD2:18.1, CD2:18.2 | 1 | CD6:7, CD6:8 | 48 |
| CD2:18.3, CD2:18.4 | 1 | CD6:9, CD6:10 | 53 |
| CD2:19, CD2:20 | OC | CD6:11, CD6:12 | 53 |
| CD2:21, CD2:22 | 47 | CD6:13, CD6:14 | 53 |
| CD2:23, CD2:24 | 47 | CD6:15, CD6:16 | 53 |
| CD2:25, CD2:26 | 47 | CD7:1 | OC |
| CD2:27, CD2:28 | 47 | CD10:1, CD10:2 | 52 |
| CD2:29, CD2:30 | 47 | CD10:3, CD10:4 | 19 |
| CD2:30.1, CD2:30.2 | 47 | CD10:5, CD10:6 | 19 |
| CD2:31, CD2:32 | 37 | CD10:7, CD10:8 | 19 |
| CD2:33, CD2:34 | 49 | CD10:8.1 | 19 |
| CD2:35, CD2:36 | 49 | CD10:9, CD10:10 | 14 |
| CD2:37, CD2:38 | 43 | CD10:11, CD10:12 | 14 |
| CD2:39, CD2:40 | 43 | CD10:13, CD10:14 | 14 |
| CD2:41, CD2:42 | 43 | CD10:15, CD10:16 | 14 |
| CD2:43, CD2:44 | 44 | CD10:17, CD10:18 | 52 |
| CD2:45, CD2:46 | 44 | CD10:19, CD10:20 | 52 |
| CD2:47, CD2:48 | 44 | CD11:1 | OC |
| CD2:49, CD2:50 | 52 | CD14:1, CD14:2 | 34 |
| CD2:51, CD2:52 | 52 | CD14:3, CD14:4 | 45 |
| CD2:52.1 | 52 | CD14:5, CD14:6 | 45 |
| CD2:53, CD2:54 | 46 | CD14:6.1, CD14:6.2 | 45 |
| CD2:55, CD2:56 | 46 | CD14:6.3, CD14:6.4 | 45 |
| CD2:57, CD2:58 | 50 | CD14:6.5, CD14:6.6 | 45 |

| Page No. | Supp. No. | Page No. | Supp. No. |
|---|---|---|---|
| CD14:6.7, CD14:6.8 | 45 | CD22:1 | 42 |
| CD14:7, CD14:8 | 3 | CD22:3, CD22:4 | 42 |
| CD14:9 | 3 | CD22:5, CD22:6 | 42 |
| CD14:11, CD14:12 | OC | CD22:7, CD22:8 | 42 |
| CD14:13, CD14:14 | OC | CD22:9 | 42 |
| CD14:15, CD14:16 | 44 | CD23:1 | OC |
| CD14:17, CD14:18 | 44 | CD26:1 | OC |
| CD14:19, CD14:20 | 44 | CD26:3, CD26:4 | OC |
| CD14:21, CD14:22 | 34 | CD26:5 | OC |
| CD14:23, CD14:24 | 34 | CD27:1 | OC |
| CD14:25, CD14:26 | 34 | CD30:1 | OC |
| CD15:1 | OC | CD30:3, CD30:4 | OC |
| CD18:1, CD18:2 | 27 | CD30:5, CD30:6 | OC |
| CD18:3, CD18:4 | 50 | CD31:1 | OC |
| CD18:5, CD18:6 | 50 | CD34:1 | OC |
| CD18:7 | 50 | CD34:3, CD34:4 | OC |
| CD18:9, CD18:10 | 27 | CD35:1 | OC |
| CD18:11, CD18:12 | 27 | CD38:1, CD38:2 | 19 |
| CD18:13, CD18:14 | 27 | CD38:3, CD38:4 | OC |
| CD18:15, CD18:16 | 27 | CD38:5, CD38:6 | OC |
| CD18:17, CD18:18 | 27 | CD38:7, CD38:8 | 19 |
| CD18:19, CD18:20 | 27 | CD38:9, CD38:10 | 34 |
| CD18:21, CD18:22 | 27 | CD38:11 | 34 |
| CD18:23, CD18:24 | 29 | CD39:1 | OC |
| CD18:25, CD18:26 | 41 | CD42:1 | OC |
| CD18:27 | 50 | CD42:3, CD42:4 | OC |
| CD18:31, CD18:32 | 27 | CD42:5, CD42:6 | OC |
| CD18:33, CD18:34 | 27 | CD42:7, CD42:8 | OC |
| CD18:35, CD18:36 | 27 | CD43:1 | OC |
| CD18:37, CD18:38 | 27 | CD46:1 | OC |
| CD18:39, CD18:40 | 50 | CD46:3 | 37 |
| CD18:41, CD18:42 | 50 | CD47:1 | OC |
| CD18:42.1, CD18:42.2 | 50 | CD50:1, CD50:2 | 2 |
| CD18:42.3 | 50 | CD50:3, CD50:4 | OC |
| CD18:43, CD18:44 | 30 | CD50:5, CD50:6 | 37 |
| CD18:45, CD18:46 | 30 | CD50:6.1 | 37 |
| CD18:47, CD18:48 | 30 | CD50:7, CD50:8 | OC |
| CD19:1 | OC | CD50:9, CD50:10 | 1 |

| Page No. | Supp. No. | Page No. | Supp. No. |
|---|---|---|---|
| CD50:11, CD50:12 | 1 | CD66:1, CD66:2 | 30 |
| CD50:13, CD50:14 | 1 | CD66:3, CD66:4 | 47 |
| CD50:15, CD50:16 | 2 | CD66:5, CD66:6 | 54 |
| CD50:17, CD50:18 | 49 | CD66:7, CD66:8 | 40 |
| CD50:19, CD50:20 | 49 | CD66:9 | 40 |
| CD50:21 | 49 | CD67:1 | OC |
| CD51:1 | OC | CD70:1 | OC |
| CD54:1, CD54:2 | 49 | CD70:3, CD70:4 | OC |
| CD54:3, CD54:4 | 41 | CD70:5, CD70:6 | OC |
| CD54:4.1 | 41 | CD70:7, CD70:8 | OC |
| CD54:5, CD54:6 | 47 | CD71:1 | OC |
| CD54:7, CD54:8 | 56 | CD74:1 | OC |
| CD54:9, CD54:10 | 56 | CD74:3 | OC |
| CD54:11, CD54:12 | 56 | CD75:1 | OC |
| CD54:13, CD54:14 | 49 | CD78:1, CD78:2 | 36 |
| CD54:15, CD54:16 | 49 | CD78:3, CD78:4 | 52 |
| CD54:17, CD54:18 | 49 | CD78:5, CD78:6 | 23 |
| CD54:19, CD54:20 | 49 | CD78:7, CD78:8 | 23 |
| CD54:21, CD54:22 | 55 | CD78:9, CD78:10 | 19 |
| CD54:23 | 55 | CD78:11, CD78:12 | 19 |
| CD55:1 | OC | CD78:13, CD78:14 | 35 |
| CD58:1 | 47 | CD78:14.1 | 35 |
| CD58:3, CD58:4 | 47 | CD78:15, CD78:16 | 11 |
| CD58:5, CD58:6 | 56 | CD78:17, CD78:18 | 19 |
| CD58:7 | 56 | CD78:19, CD78:20 | 35 |
| CD59:1 | OC | CD78:20.1, CD78:20.2 | 35 |
| CD62:1 | 26 | CD78:20.3, CD78:20.4 | 36 |
| CD62:3, CD62:4 | 42 | CD78:21, CD78:22 | 52 |
| CD62:5, CD62:6 | 42 | CD78:23, CD78:24 | 52 |
| CD62:7, CD62:8 | 42 | CD78:25, CD78:26 | 52 |
| CD62:8.1 | 42 | CD78:27, CD78:28 | 52 |
| CD62:9, CD62:10 | 18 | CD78:29, CD78:30 | 52 |
| CD62:11, CD62:12 | 18 | CD79:1 | OC |
| CD63:1 | 37 | CD82:1 | 42 |
| CD65:1 | 46 | CD82:3, CD82:4 | 49 |
| CD65:3, CD65:4 | 46 | CD82:7, CD82:8 | 35 |
| CD65:5, CD65:6 | 49 | CD82:9, CD82:10 | 35 |
| CD65:7 | 49 | CD82:11, CD82:12 | 35 |

| Page No. | Supp. No. | Page No. | Supp. No. |
|---|---|---|---|
| CD82:13 | 35 | CD102:17, CD102:18 | 25 |
| CD83:1 | OC | CD102:19, CD102:20 | 34 |
| CD86:1 | 33 | CD102:21, CD102:22 | 31 |
| CD86:3, CD86:4 | 33 | CD102:23, CD102:24 | 31 |
| CD86:5, CD86:6 | 54 | CD102:25, CD102:26 | 31 |
| CD86:7, CD86:8 | 54 | CD102:27, CD102:28 | 37 |
| CD87:1 | OC | CD102:29 | 37 |
| CD90:1 | OC | CD102:31, CD102:32 | 31 |
| CD90:3, CD90:4 | OC | CD102:33, CD102:34 | 37 |
| CD91:1 | 3 | CD102:35, CD102:36 | 41 |
| CD91:3 | 9 | CD102:37, CD102:38 | 41 |
| CD92:1 | 3 | CD103:1 | OC |
| CD94:1 | OC | CD106:1 | 17 |
| CD94:3 | OC | CD107:1 | OC |
| CD95:1 | OC | CD110:1, CD110:2 | 1 |
| CD98:1, CD98:2 | 45 | CD110:3 | 1 |
| CD98:3, CD98:4 | 45 | CD110:5, CD110:6 | 1 |
| CD98:5, CD98:6 | 45 | CD110:7, CD110:8 | 37 |
| CD98:7, CD98:8 | 45 | CD110:9, CD110:10 | 41 |
| CD98:9, CD98:10 | 45 | CD110:11, CD110:12 | 41 |
| CD98:11, CD98:12 | 45 | CD110:13, CD110:14 | 41 |
| CD98:13, CD98:14 | 45 | CD110:15, CD110:16 | 54 |
| CD98:15, CD98:16 | 45 | CD110:17, CD110:18 | 54 |
| CD99:1 | OC | CD110:18.1, CD110:18.2 | 54 |
| CD102:1, CD102:2 | 36 | CD110:18.3, CD110:18.4 | 54 |
| CD102:3, CD102:4 | 41 | CD110:18.5, CD110:18.6 | 54 |
| CD102:5, CD102:6 | OC | CD110:18.7, CD110:18.8 | 54 |
| CD102:7, CD102:8 | OC | CD110:19, CD110:20 | 7 |
| CD102:9, CD102:10 | 22 | CD110:21, CD110:22 | 35 |
| CD102:11 | 22 | CD110:22.1 | 35 |
| CD102:13, CD102:14 | 36 | CD110:23, CD110:24 | 7 |
| CD102:15, CD102:16 | 36 | CD110:24.1 | 7 |
| CD102:16.1, CD102:16.2 | 36 | CD110:25, CD110:26 | 39 |
| CD102:16.3, CD102:16.4 | 36 | CD110:27 | OC |
| CD102:16.5, CD102:16.6 | 36 | | |

| Page No. | Supp. No. | Page No. | Supp. No. |
|---|---|---|---|
| CD111:1 | 30 | CD114:51, CD114:52 | 43 |
| CD111:3, CD111:4 | 30 | CD114:53, CD114:54 | 43 |
| CD111:5, CD111:6 | 30 | CD114:55, CD114:56 | 36 |
| CD111:7, CD111:8 | 48 | CD114:57, CD114:58 | 39 |
| CD112:1 | 27 | CD114:59, CD114:60 | 39 |
| CD114:1, CD114:2 | 14 | CD114:61, CD114:62 | 51 |
| CD114:3, CD114:4 | 51 | CD114:63, CD114:64 | 51 |
| CD114:5, CD114:6 | 51 | CD114:65, CD114:66 | 51 |
| CD114:7, CD114:8 | 51 | CD114:67, CD114:68 | 51 |
| CD114:9, CD114:10 | 14 | CD114:69, CD114:70 | 51 |
| CD114:11, CD114:12 | 14 | CD114:71, CD114:72 | 51 |
| CD114:13, CD114:14 | 35 | CD114:73, CD114:74 | 51 |
| CD114:14.1 | 35 | CD114:75, CD114:76 | 51 |
| CD114:15, CD114:16 | 14 | CD115:1 | OC |
| CD114:17, CD114:18 | 14 | CD118:1, CD118:2 | 28 |
| CD114:19, CD114:20 | 14 | CD118:2.1 | 28 |
| CD114:21, CD114:22 | 37 | CD118:3, CD118:4 | OC |
| CD114:23, CD114:24 | 37 | CD118:5, CD118:6 | OC |
| CD114:24.1, | 37 | CD118:7, CD118:8 | OC |
| CD114:24.2 | | CD118:9, CD118:10 | 32 |
| CD114:24.2.1 | 37 | CD118:11, CD118:12 | 32 |
| CD114:24.3, | 14 | CD118:12.1 | 32 |
| CD114:24.4 | | CD118:13, CD118:14 | 28 |
| CD114:25, CD114:26 | OC | CD118:15, CD118:16 | 28 |
| CD114:27, CD114:28 | 19 | CD118:17, CD118:18 | 28 |
| CD114:28.1 | 19 | CD118:19, CD118:20 | 28 |
| CD114:29, CD114:30 | OC | CD118:21, CD118:22 | 28 |
| CD114:31, CD114:32 | OC | CD118:23, CD118:24 | 28 |
| CD114:33, CD114:34 | OC | CD118:25, CD118:26 | 28 |
| CD114:35, CD114:36 | 51 | CD118:27, CD118:28 | 28 |
| CD114:37, CD114:38 | 51 | CD118:29, CD118:30 | 28 |
| CD114:39, CD114:40 | 51 | CD118:31, CD118:32 | 28 |
| CD114:41, CD114:42 | 51 | CD118:33, CD118:34 | 28 |
| CD114:42.1 | 51 | CD118:34.1, | 28 |
| CD114:43, CD114:44 | OC | CD118:34.2 | |
| CD114:45, CD114:46 | OC | CD118:34.3, | 28 |
| CD114:47, CD114:48 | 14 | CD118:34.4 | |
| CD114:49, CD114:50 | 43 | CD118:34.5, | 28 |

| Page No. | Supp. No. | Page No. | Supp. No. |
|---|---|---|---|
| CD118:34.6 | | CHTi:23, CHTi:24 | 28 |
| CD118:35, CD118:36 | 1 | CDi:1, CDi:2 | 52 |
| CD118:37, CD118:38 | 1 | CDi:3, CDi:4 | 52 |
| CD119:1 | OC | CDi:5, CDi:6 | 52 |
| CD122:1 | OC | CDi:7, CDi:8 | 52 |
| CDA:1 | 48 | CDi:9, CDi:10 | 52 |
| CDA:3, CDA:4 | 46 | CDi:11, CDi:12 | 52 |
| CDA:5, CDA:6 | 46 | CDi:13, CDi:14 | 52 |
| CDA:7, CDA:8 | 48 | CDi:15, CDi:16 | 52 |
| CDB:1 | 3 | CDi:17, CDi:18 | 52 |
| CCT:1, CCT:2 | 2 | CDi:19, CDi:20 | 52 |
| CCT:3, CCT:4 | 2 | CDi:21, CDi:22 | 52 |
| CCT:5 | 2 | CDi:23, CDi:24 | 52 |
| CCT:7, CCT:8 | OC | CDi:25, CDi:26 | 52 |
| CCT:9, CCT:10 | 2 | CDi:27, CDi:28 | 52 |
| CCT:11, CCT:12 | 3 | CDi:29, CDi:30 | 52 |
| CCT:13, CCT:14 | 22 | CDi:31, CDi:32 | 52 |
| CCT:15, CCT:16 | 27 | CDi:33, CDi:34 | 52 |
| CCT:17, CCT:18 | 36 | CDi:35, CDi:36 | 52 |
| CCT:19, CCT:20 | 48 | CDi:37, CDi:38 | 52 |
| CCT:21 | 56 | CDi:39, CDi:40 | 52 |
| SLT:1, SLT:2 | 53 | CDi:41, CDi:42 | 52 |
| SLT:3, SLT:4 | 54 | CDi:43, CDi:44 | 52 |
| SLT:5, SLT:6 | 54 | CDi:45, CDi:46 | 52 |
| SLT:7, SLT:8 | 54 | CDi:47, CDi:48 | 52 |
| SLT:9, SLT:10 | 54 | CDi:49, CDi:50 | 52 |
| SLT:11 | 54 | CDi:51, CDi:52 | 52 |
| CHTi:1, CHTi:2 | 28 | CDi:53, CDi:54 | 52 |
| CHTi:3, CHTi:4 | 28 | CDi:55, CDi:56 | 52 |
| CHTi:5, CHTi:6 | 28 | CDi:57, CDi:58 | 52 |
| CHTi:7, CHTi:8 | 28 | CDi:59, CDi:60 | 52 |
| CHTi:9, CHTi:10 | 28 | CDi:61, CDi:62 | 52 |
| CHTi:11, CHTi:12 | 28 | CDi:63, CDi:64 | 52 |
| CHTi:13, CHTi:14 | 28 | CDi:65, CDi:66 | 52 |
| CHTi:15, CHTi:16 | 28 | CDi:67, CDi:68 | 52 |
| CHTi:17, CHTi:18 | 28 | CDi:69, CDi:70 | 52 |
| CHTi:19, CHTi:20 | 28 | CDi:71, CDi:72 | 52 |
| CHTi:21, CHTi:22 | 28 | CDi:73, CDi:74 | 52 |

| Page No. | Supp. No. |
|---|---|
| CDi:75, CDi:76 | 52 |
| CDi:77, CDi:78 | 52 |
| CDi:79 | 52 |

## SUPPLEMENT HISTORY TABLE

The table below allows users of this Code to quickly and accurately determine what ordinances have been considered for codification in each supplement. Ordinances that are of a general and permanent nature are codified in the Code and are considered "Included." Ordinances that are not of a general and permanent nature are not codified in the Code and are considered "Omitted."

In addition, by adding to this table with each supplement, users of this Code of Ordinances will be able to gain a more complete picture of the Code's historical evolution.

| Ord. No./Bill No. | Date Adopted | Included/ Omitted | Supp. No. |
|---|---|---|---|
| 7427(Bill) | 7-19-2010 | Included | 23 |
| 7435(Bill) | 9-20-2010 | Included | 23 |
| 7440 | 11-15-2010 | Included | 23 |
| 6465 | 4-18-2011 | Included | 24 |
| 7458 | 4-18-2011 | Included | 24 |
| 7462 | 5-16-2011 | Included | 24 |
| 7466 | 4-18-2011 | Included | 24 |
| 7471 | 6- 6-2011 | Included | 24 |
| 7502(Bill) | 11-21-2011 | Included | 25 |
| 7506(Bill) | 12- 5-2011 | Included | 25 |
| 7514(Bill) | 4- 2-2012 | Included | 25 |
| 7516(Bill) | 4-16-2012 | Included | 25 |
| 7518 | 4- 2-2012 | Included | 25 |
| 7519 | 4- 2-2012 | Included | 25 |
| 7533 | 10- 1-2012 | Include | 26 |
| 7540 | 10- 1-2012 | Include | 26 |
| 7571 | 4-15-2013 | Include | 27 |
| 7572 | 5- 7-2013 | Include | 27 |
| 7573 | 5- 5-2013 | Include | 27 |
| 7576 | 5-20-2013 | Include | 27 |
| 7577 | 5-20-2013 | Include | 27 |
| 7578 | 5-20-2013 | Include | 27 |
| 7581(Bill) | 6-17-2013 | Include | 28 |
| 7582(Bill) | 6-17-2013 | Include | 28 |
| 7592(Bill) | 9-16-2013 | Include | 28 |
| 7596 | 9-16-2013 | Include | 28 |
| 7597 | 10-21-2013 | Include | 28 |
| 7604(Bill) | 11- 4-2013 | Include | 28 |
| 7608(Bill) | 12- 2-2013 | Include | 29 |
| 7613(Bill) | 3-17-2014 | Include | 29 |
| 7614(Bill) | 3-17-2014 | Include | 29 |
| 7621(Bill) | 5- 5-2014 | Include | 29 |
| 7628(Bill) | 9- 9-2014 | Include | 30 |

| Ord. No./Bill No. | Date Adopted | Included/ Omitted | Supp. No. |
|---|---|---|---|
| 7632(Bill) | 11-17-2014 | Include | 30 |
| 7633(Bill) | 11- 3-2014 | Include | 30 |
| 7636(Bill) | 11-17-2014 | Include | 30 |
| 7637(Bill) | 12-15-2014 | Include | 30 |
| 7639(Bill) | 12- 1-2014 | Include | 30 |
| 7640(Bill) | 12- 1-2014 | Include | 30 |
| 7641(Bill) | 12- 1-2014 | Include | 30 |
| 7648(Bill) | 3-16-2015 | Include | 31 |
| 7656(Bill) | 6- 1-2015 | Include | 31 |
| 7660(Bill) | 7-20-2015 | Include | 31 |
| 7661(Bill) | 7-20-2015 | Include | 31 |
| 7663(Bill) | 8-17-2015 | Include | 31 |
| 017-11(Res.) | 9-19-2011 | Include | 32 |
| 7666(Bill) | 9-21-2015 | Include | 32 |
| 7670(Bill) | 10-19-2015 | Include | 32 |
| 7674(Bill) | 11-16-2015 | Include | 32 |
| 7702(Bill) | 8- 1-2016 | Include | 33 |
| 7712(Bill) | 9-19-2016 | Include | 33 |
| 7713(Bill) | 10- 3-2016 | Include | 33 |
| 7724(Bill) | 12-16-2016 | Include | 33 |
| 7733(Bill) | 3- 6-2017 | Include | 33 |
| 7734(Bill) | 3- 6-2017 | Include | 33 |
| 7735(Bill) | 3- 6-2017 | Include | 33 |
| 7747(Bill) | 6- 5-2017 | Include | 34 |
| 7753(Bill) | 8- 7-2017 | Include | 34 |
| 7765(Bill) | 12- 4-2017 | Include | 34 |
| 7767(Bill) | 11- 6-2017 | Include | 34 |
| 7768(Bill) | 11-20-2017 | Include | 34 |
| 7772(Bill) | 1-16-2018 | Include | 34 |
| 7616(Bill) | 8-18-2014 | Include | 35 |
| 7779(Bill) | 3-19-2018 | Include | 35 |
| 7783(Bill) | 6- 4-2018 | Include | 35 |
| 7799(Bill) | 11-19-2018 | Include | 35 |
| 160-19(Res.) | 1-22-2019 | Include | 35 |
| 7757(Bill) | 9-18-2017 | Include | 36 |
| 7812(Bill) | 4-15-2019 | Include | 36 |
| 7815(Bill) | 5- 6-2019 | Include | 36 |
| 7816(Bill) | 5- 6-2019 | Include | 36 |
| 7819(Bill) | 6- 3-2019 | Include | 36 |
| 218-19(Res.) | 7-15-2019 | Include | 37 |
| 7822(Bill) | 7- 1-2019 | Include | 37 |
| 7829(Bill) | 8-19-2019 | Include | 37 |
| 7830(Bill) | 8-19-2019 | Include | 37 |
| 7831(Bill) | 8-19-2019 | Include | 37 |
| 7825(Bill) | 11- 4-2019 | Include | 38 |
| 7834(Bill) | 10- 7-2019 | Include | 38 |

| Ord. No./Bill No. | Date Adopted | Included/ Omitted | Supp. No. |
|---|---|---|---|
| 7835(Bill) | 10-21-2019 | Include | 38 |
| 7843(Bill) | 10-21-2019 | Include | 38 |
| 7844(Bill) | 10-21-2019 | Include | 38 |
| 7845(Bill) | 10-21-2019 | Include | 38 |
| 7847(Bill) | 11- 4-2019 | Include | 38 |
| 316-20(Res.) | 3-16-2020 | Include | 39 |
| 7857(Bill) | 1- 6-2020 | Include | 39 |
| 7865(Bill) | 2- 3-2020 | Include | 39 |
| 7868(Bill) | 3- 2-2020 | Include | 39 |
| 416-21(Res.) | 1-19-2021 | Include | 40 |
| 7871(Bill) | 5-18-2020 | Include | 40 |
| 7873(Bill) | 6-15-2020 | Include | 40 |
| 7876(Bill) | 8- 3-2020 | Include | 40 |
| 7877(Bill) | 8- 3-2020 | Include | 40 |
| 7890(Bill) | 1- 4-2021 | Include | 40 |
| 7853(Bill) | 11- 4-2019 | Include | 41 |
| 7887(Bill) | 4-19-2021 | Include | 41 |
| 7893(Bill) | 4-19-2021 | Include | 41 |
| 7894(Bill) | 2-16-2021 | Include | 41 |
| 7895(Bill) | 2-16-2021 | Include | 41 |
| 7902(Bill) | 4-19-2021 | Include | 41 |
| 7897(Bill) | 5- 3-2021 | Include | 42 |
| 7904(Bill) | 5- 3-2021 | Include | 42 |
| 7907(Bill) | 6- 7-2021 | Include | 42 |
| 7909(Bill) | 5-18-2021 | Include | 42 |
| 7919(Bill) | 8- 2-2021 | Include | 42 |
| 529-21(Res.) | 9- 7-2021 | Include | 43 |
| 7916(Bill) | 8-16-2021 | Include | 43 |
| 7920(Bill) | 9- 7-2021 | Include | 43 |
| 7923(Bill) | 9- 7-2021 | Include | 43 |
| 7927(Bill) | 11-15-2021 | Include | 43 |
| 582-21(Res.) | 1-18-2022 | Include | 44 |
| 7936(Bill) | 12-20-2021 | Include | 44 |
| 7938(Bill) | 12-20-2021 | Include | 44 |
| 7945(Bill) | 2- 7-2022 | Include | 44 |
| 7946(Bill) | 2- 7-2022 | Include | 44 |
| 7928(Bill) | 4-18-2022 | Include | 45 |
| 7956(Bill) | 8-15-2022 | Include | 45 |
| 7960(Bill) | 6- 6-2022 | Include | 45 |
| 7966(Bill) | 7-18-2022 | Include | 45 |
| 7964(Bill) | 9-19-2022 | Include | 46 |
| 7978(Bill) | 12- 5-2022 | Include | 46 |
| 7979(Bill) | 12- 5-2022 | Include | 46 |
| 7980(Bill) | 12- 5-2022 | Include | 46 |
| 7981(Bill) | 12- 5-2022 | Include | 46 |
| 754-23(Res.) | 1- 3-2023 | Include | 46 |

| Ord. No./Bill No. | Date Adopted | Included/ Omitted | Supp. No. |
|---|---|---|---|
| 7983(Bill) | 2-21-2023 | Include | 47 |
| 7992(Bill) | 5-15-2023 | Include | 47 |
| 7993(Bill) | 6- 5-2023 | Omit | 47 |
| 7994(Bill) | 6- 5-2023 | Include | 47 |
| 7997(Bill) | 6-21-2023 | Include | 48 |
| 7998(Bill) | 6-21-2023 | Include | 48 |
| 8008(Bill) | 8-21-2023 | Omit | 48 |
| 8010(Bill) | 8-21-2023 | Include | 48 |
| 8013(Bill) | 10- 2-2023 | Include | 48 |
| 885-23(Res.) | 10- 2-2023 | Include | 48 |
| 7991(Bill) | 12-18-2023 | Include | 49 |
| 8018(Bill) | 11- 6-2023 | Include | 49 |
| 8028(Bill) | 2-20-2024 | Include | 50 |
| 8030(Bill) | 5- 6-2024 | Include | 51 |
| 8031(Bill) | 4-15-2024 | Include | 51 |
| 8036(Bill) | 7- 1-2024 | Include | 52 |
| 8037(Bill) | 7- 1-2024 | Include | 52 |
| 8038(Bill) | 7-15-2024 | Include | 52 |
| 8039(Bill) | 8-19-2024 | Include | 52 |
| 8040(Bill) | 7-15-2024 | Include | 52 |
| 8055(Bill) | 5-19-2025 | Include | 53 |
| 8058(Bill) | 10- 6-2025 | Include | 54 |
| 8061(Bill) | 12- 1-2025 | Include | 55 |
| 8062(Bill) | 8-18-2025 | Include | 54 |
| 8069(Bill) | 3-16-2026 | Include | 56 |

# PART I

# CHARTER*


| | |
|---|---|
| Sec. 1. | Charleston made a city corporate and body politic. |
| Sec. 2. | Corporate limits. |
| Sec. 3. | Twenty wards established. |
| Sec. 4. | Municipal authorities; elective officers and qualifications for holding office. |
| Sec. 5. | Officers in addition to elective officers; salaries. |
| Sec. 6. | Corporate power vested in council. |
| Sec. 7. | Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits. |
| Sec. 7-a. | Authority of council, municipal judge, circuit and common pleas courts and judges relating to city licenses. |
| Sec. 7-b. | Regulation of operation of motor vehicles. |
| Sec. 8. | Persons entitled to vote. |
| Sec. 9. | Boundaries of voting precincts; registration books; duties of county court. |
| Sec. 9-a. | Special registrars; compensation of county court and clerk; delivery of registration books to city clerk; return to clerk of county court. |
| Sec. 10. | Nomination of candidates. |
| Sec. 11. | City voting precincts to coincide with county voting precincts; how elections to be held; authorizing all lawful actions deemed appropriate by council to conduct elections, including combining city elections with state and county elections. |
| Sec. 12. | Law governing preparation of ballot and method of voting. |
| Sec. 13. | The council—Title; how constituted. |
| Sec. 14. | Same—Qualifications; vacancies. |
| Sec. 15. | Same—Mayor; clerk; president pro tempore. |
| Sec. 16. | Same—Representation of new ward. |
| Sec. 17. | Same—Exercise of legislative functions; information, etc., from officers and employees. |
| Sec. 18. | Audit of books and accounts. |
| Sec. 19. | Removal of officers by council or by circuit court of Kanawha County, or by officers having appointment authority. |


---

*__Editor's note—__Printed in this part is the city's Charter, being Acts 1929 (municipal charters), ch. 4, as approved by the governor on March 6, 1929, and effective on passage. Amendments are indicated by parenthetical history notes following amended provisions. The absence of a history note indicates that the provision remains unchanged from the original. Obvious misspellings have been corrected without notation. For stylistic purposes a uniform system of headings, catchlines and citations to state statute has been used. Additions made for clarity are indicated by brackets.

Notwithstanding the preceding paragraph, the copy of the Charter used in preparation of this part is the copy published in the city's 1975 Code. The editorial note for same states (in part) as follows: "Many section catchlines have been changed by the editors to more clearly and more fully indicate the contents of the sections and are not to be regarded as official; years have been changed from words to numerals; a uniform system of capitalization has been adopted; in some sections italicized words are printed in Roman; and words and figures have been supplied by the editors for the purpose of clarity."

The editor's note for the Charter as published in the city's 1975 Code also states (in part) as follows:

According to the West Virginia Blue Book, 1973, page 820, the community which is now Charleston was "originally chartered in 1794 as Charles Town——, [so] named by George Clendenin, one of the earliest settlers, for his father, Charles Clendenin." It became "Charleston" by Acts of Assembly 1817-18, ch. CXV, p. 160 et seq., passed January 19, 1818, which provided, in pertinent part, that "the town of Charles Town in the county of Kanawha, as the same has been heretofore laid off and the several acts of Assembly for that purpose—shall be, and the same is hereby erected into a town corporate, to be known as distinguished by the name of 'Charleston'——." These Acts were, of course, those of the general assembly of the Commonwealth of Virginia. The first Act of the West Virginia legislature amending the town Charter was that of 1857, ch. 127, p. 1555; and Charleston became a city by Acts 1875, ch. 39, p. 47, which provided inter alia, for a common council consisting of a mayor, recorder and nine councilmen, a body politic by the name "The City of Charleston."

Sec. 20. Rules and regulations for government of council; record of meetings.
Sec. 21. Regular meetings of council.
Sec. 22. Special meetings of council.
Sec. 23. Council procedure for contested elections, and right of appeal to circuit court.
Sec. 24. Oath of officers; how and within what time officers must qualify; failure to qualify vacates office.
Sec. 25. Bonds of officers and employees; record of bonds.
Sec. 26. Quorum of council; compelling attendance of absent members.
Sec. 27. Voting in council and recording of votes.
Sec. 28. City clerk is ex officio clerk of the council; council minutes and admissibility thereof in evidence.
Sec. 29. Holding two offices.
Sec. 30. Failure of mayor or other officer to make appointments.
Sec. 31. Vacancy in office of mayor or treasurer; vacancy in office of appointive officer; officers hold office until successors qualified, unless previously removed.
Sec. 32. Corruption in office.
Sec. 33. Power of council to compel attendance of witnesses and production of records, administer oaths and punish for contempt.
Sec. 34. Absence or inability of certain officers to perform duties.
Sec. 35. Election and term of office of elective officers; appointments by mayor; appointment of city clerk; appointments by manager; duties of mayor and city solicitor; fees.
Sec. 36. Appointment, compensation, powers and duties of the manager.
Sec. 37. Franchises—Granting; requirements and limitations governing; vote of council required.
Sec. 38. Same—Advertisement of application; submission to voters.
Sec. 39. Committees of council; adjournment of council meetings; postponement of announcement of vote.
Sec. 40. Style of ordinances.
Sec. 41. Passage of ordinances; revision, reenactment or amendment; effective date; publication of caption or title; resolutions and orders.
Sec. 42. Ordinances to be spread on records of council; "Ordinance Record"; code of ordinances.
Sec. 43. Officers conservators of the peace.
Sec. 44. Powers and duties of municipal judge; maximum imprisonment for violation of ordinance; appeal; expense of maintaining persons committed to county jail.
Sec. 45. Qualifications of municipal judge; not to appear as counsel in criminal cases; absence or inability to perform duties; bond.
Sec. 46. Bail.
Sec. 47. Authority of council, manager and police officers relating to nuisances; duties and responsibilities of owners and occupants of property; enforcement.
Sec. 48. Connection with sewer system.
Sec. 49. Construction of sidewalks, curbs and gutters; duty of county clerk to record assessments.
Sec. 50. Annual estimate for tax levy.
Sec. 51. Authority to levy and collect taxes; limit of taxation.
Sec. 52. Collection of taxes.
Sec. 53. Powers of collector.
Sec. 54. Distress for collection of taxes.
Sec. 55. Lien on real estate for taxes—Established; enforcement by suit in court of record; priority of lien.
Sec. 56. Same—Enforcement by tax sale.
Sec. 57. Limitation on authority of county to tax persons and property within city for streets, education or poor outside city limits; control of streets and schools within city; joint ownership of bridges.

| | |
|---|---|
| Sec. 58. | Depositories. |
| Sec. 59. | Bonds—Authority to issue; purposes; interest; limit; taxation to pay interest and principal. |
| Sec. 59-a. | Same—For improvement of streets. |
| Sec. 60. | Same—In anticipation of special assessments for street improvements or sewer construction; limitation on indebtedness. |
| Sec. 61. | Contracts for improvement of streets; assessment of cost. |
| Sec. 62. | Sewerage assessments against owners of abutting property; requiring connection with sewer; including cost of drains in cost of street improvement. |
| Sec. 62-a. | Construction of sewer systems or common, lateral, branch, trunk or combined sewers. |
| Sec. 63. | Resolution declaring necessity for street improvement—Required; procedure for adoption. |
| Sec. 64. | Same—Service on property owners of notice of passage. |
| Sec. 65. | City executive committees of political parties. |
| Sec. 66. | Bonds to pay city's cost of improvement of streets, etc. |
| Sec. 67. | Hearing of property owners affected by improvements; ordinance concerning improvement. |
| Sec. 68. | Special assessments when several kinds of materials have been named in ordinance providing for improvement. |
| Sec. 69. | Vote of council required for public improvement; petition by property owners. |
| Sec. 70. | Assessment when public improvement passes through or by public property or property of institution. |
| Sec. 71. | What cost of improvement shall include. |
| Sec. 72. | Filing statement as prerequisite to action for damages arising out of improvement. |
| Sec. 73. | Liberal construction of proceedings with respect to improvements. |
| Sec. 74. | Election and three-fifths vote required for issuance of bonds; regulations governing. |
| Sec. 75. | Authority of council to lay special levies in years 1929 and 1930 for special purposes. |
| Sec. 76. | Power of council as to public buildings, hospitals, libraries, etc. |
| Secs. 77—79. | Fire department civil service. |
| Sec. 80. | Political activities by members of fire or police departments. |
| Sec. 81. | Service of notice, summons, warrant, etc. |
| Sec. 82. | Contested elections for council. |
| Sec. 83. | Duties of city clerk as to municipal elections. |
| Sec. 84. | Valid ordinances and regulations passed on or before May 1, 1915, not inconsistent with this Charter, to remain in effect until repealed. |
| Sec. 85. | Powers and duties of policemen. |
| Sec. 86. | Compensation of members of council; absence from meetings. |
| Sec. 87. | Reports by manager to council; reports by officers and employees under supervision of manager. |
| Sec. 88. | Additional method for paving streets; assessment certificates. |
| Sec. 88-a. | Void, irregular or omitted assessments. |
| Sec. 88-b. | Assessment certificates to pay for cost of construction of sewers and sewer systems. |
| Sec. 88-c. | Subdividing abutting land for purpose of making assessments. |
| Sec. 89. | Initiation of ordinances by voters. |
| Sec. 90. | Reconsideration of ordinance protested by petition; submission of ordinances to voters. |
| Sec. 91. | Recall of officers. |
| Sec. 92. | Signatures and affidavits to petitions filed under three preceding sections; form of submission of ordinance; all city elections to conform to state law. |
| Sec. 93. | Additional method for construction of sidewalks; assessment certificates. |

Sec. 93-a. Transcript of property to be furnished by county assessor.
Sec. 94. Authority to issue warrants; vacancy in office of municipal judge.
Sec. 95. Statement of claim before action against city for damages for personal injury.
Sec. 96. Health commissioner.
Sec. 97. Police matron.
Sec. 98. Codification of ordinances.
Sec. 99. Cemeteries and burials.
Sec. 100. Building inspector.
Sec. 101. Power to buy, sell or exchange real estate.
Sec. 102. Zoning—Power of city.
Sec. 102-a. Same—Division of city into zoning districts.
Sec. 102-b. Same—Design of zoning regulations; considerations in making.
Sec. 102-c. Same—Establishment, enforcement and change of zoning regulations and boundaries of zoning districts; hearing.
Sec. 102-d. Same—Change or repeal of zoning regulations and boundaries; protests.
Sec. 102-e. ¶ 1. Same—Zoning commission.
Sec. 102-e. ¶ 2. Repeal of inconsistent laws.

## Sec. 1. Charleston made a city corporate and body politic.

The inhabitants of all that part of the County of Kanawha included and centered within the limits hereafter prescribed in section two are hereby made a city corporate and body politic by the name of "The City of Charleston," and as such city it shall have perpetual succession and a common seal, and by that name it may sue and be sued, plead and be impleaded, and may purchase, hold, lease or sell real estate and personal property necessary to the discharge of its corporate duties, or needful or convenient for the good order, government and welfare of said corporation.

**Editor's note—**Except for the "perpetual succession" provision and the provisions incorporating and naming the city, the provisions of Charter § 1 are covered by W. Va. Code § 8-12-1. *See* W. Va. Code § 8-1-6.

## Sec. 2. Corporate limits.

The corporate territorial limits of the City of Charleston shall comprise all that part of the magisterial district of Charleston and all that part of the territory of the magisterial district of Loudon in the County of Kanawha and State of West Virginia, which is bounded and described as follows, to wit:

[Description deleted.]

**Editor's note—**The boundary description has not been published. It has been rendered obsolete by subsequent annexations.

**State law references—**Annexation, W. Va. Code § 8-6-1 et seq.; decrease of corporate limits, W. Va. Code § 8-7-1 et seq.

## Sec. 3. Twenty wards established.

[Text deleted.]

**Editor's note—**The editor's note for Charter § 3 in the city's 1975 Code states as follows:

> This section, as initially enacted by the legislature by Acts 1929, (Munl. ch.), ch. 4, § 3, divided the city into seventeen wards. By Ordinance No. 308, amendatory of this section, enacted Nov. 10, 1958, and ratified at a special election held Dec. 13, 1958, the city was redivided into nineteen wards. Due to subsequent changes in population and the resulting necessity for more proportionate representation in the city council, the council on Sept. 19, 1966, by affirmative vote of more than two-thirds of the members, enacted Ord. No. 870, amendatory of this section, by redividing the city into eighteen wards, described by metes and bounds, subject to a referendum as provided in W. Va. Code § 8-4-7; and at a special election on Nov. 8, 1966, held pursuant to prior notice duly published, a majority of the legal votes cast were in favor of the amendment, which thereupon became effective with the declaration by the council of the results of that election, all in conformity with the provisions of W. Va. Code § 8-4-7. The text of this section, as so amended, is omitted as obsolete in some respects due to subsequent addition of territory, but it has been saved from repeal and is on file in the office of the city clerk. Another reason for omission of the text of this section was that Ordinance No. 1570, 7-1-74, directed the mayor to appoint two special committees, one to take a census of the city and the other, upon completion of such census, to prepare and submit to the council a report, with recommendations for the division of the city into wards and the number and boundaries thereof, the number of councilmen to represent each ward, and the number of councilmen at large, together with a proposed ordinance to effect such recommendations. Ordinance No. 3040, adopted on Dec. 20, 1982, redivided the city into twenty wards, described by metes and bounds. For current division of the city into wards and the boundaries thereof, see the official map of the city which, when completed and approved by the city council, will be placed on file in the office of the city clerk.

**State law reference—**Authority to alter ward boundaries or number of wards, W. Va. Code § 8-5-7.

## Sec. 4. Municipal authorities; elective officers and qualifications for holding office.

The municipal authorities of the City of Charleston shall consist of a mayor, city treasurer, municipal judge, and a member of the city council from each ward of the city, and six councilmen at large, who shall be elected by the qualified voters of such city, and such officers shall for the assessment year preceding their respective elections as hereinafter provided, has been assessed with and paid taxes in the City of Charleston upon a valuation of at least one hundred dollars worth of real estate or personal property therein, and any person elected to any one of such offices who has not been assessed with and paid taxes on such amount of property shall not qualify or enter upon the performance of the duties thereof, but such office shall thereby become vacant and shall be filled by a qualified person as provided herein for other vacancies.

(Ord. No. 870, § 2, 9-19-1966; Ord. No. 1620, § 2; Ord. No. 3040, § 2)

**Editor's note—**The property ownership requirements in Charter § 4 violate W. Va. Const. art. III, § 17. *See State ex rel. Piccirillo v. City of Follansvee,* 160 W. Va. 329, 233 S.E.2d 419 (1977). The note for this section in the city's 1975 Code states that Ord. No. 870 was enacted by affirmative vote of more

than two-thirds of the members of the city council, and it was ratified by a majority of the legal votes cast at a special election on Nov. 8, 1966.

### Sec. 5. Officers in addition to elective officers; salaries.

In addition to the municipal authorities mentioned in section 4 of this act [this Charter], the city shall have a manager, city clerk, municipal court clerk, city auditor, collector, chief of police, city solicitor, assistant city solicitor, chief of fire department, engineer, health commissioner, building inspector, lockup keeper, humane officer or officers and such member of policemen as council by ordinance may direct. All the officers named in this and the preceding sections shall be paid proper salaries which shall be fixed by the council, except as herein otherwise provided, and such salaries shall be within the limits provided for by this act [this Charter].

**Editor's note—**The reference in Charter § 5 to the health commissioner is obsolete. *See* Charter § 96 (note). In addition, the last sentence is covered by W. Va. Code § 8-5-12. *See* W. Va. Code § 8-1-6.

### Sec. 6. Corporate power vested in council.

All the corporate power of said city shall be vested in and exercised by council or under its authority, except as otherwise provided in this act [this Charter].

### Sec. 7. Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits.

The council of said city shall have, and is hereby granted power to have said city surveyed, to lay out, open, vacate, straighten, broaden, change grade of, grade, regrade, curb, widen, narrow, repair, pave and repave streets, alleys, roads, squares, plots, sidewalks and gutters for public use, and to alter, improve, embellish and ornament and light the same, and to construct and maintain public sewers and laterals, and shall, in all cases, have power and authority to assess upon and collect from the property benefited thereby, such part of the expense thereof as shall be fixed by ordinance, except as hereinafter provided, to have control of all streets, avenues, roads, alleys and grounds for public use in said city, and to regulate the use thereof and driving thereon, and to have the same kept free from obstruction, pollution or litter on or over them; to have the right to control all bridges within said city, and the traffic thereover; to change the name of any street, avenue or road within said city, and regulate and cause the numbering and renumbering of houses on any street, avenue or road therein; to regulate the naming of streets, avenues and public places; to regulate and determine the width of streets, sidewalks, roads and alleys; to order and direct the curbing, recurbing, paving, repaving, and repairing of sidewalks and footways for public use in said city to be done and kept clean and in good order by the owners of adjacent property; to enter into a contract with the County of Kanawha, or any internal improvement company for the joint ownership of any bridge by the city and such county or company, upon such terms as may be prescribed in the contract, but any such bridge shall be a public highway and the interest of the company, county and city shall be only such proportionate part thereof as it may pay for or that may be named in the contract; to prohibit and punish the abuse of animals; to restrain and punish vagrants, mendicants, beggars, tramps, prostitutes, fortunetellers, palmists, drunken or disorderly persons within the city, and to provide for their arrest and manner of punishment; to prohibit and punish by fine the bringing into the city by steamboats, railroads or other carriers of persons known to be paupers, dangerous or objectionable characters or afflicted with contagious diseases; to control and suppress disorderly houses of prostitution or ill fame, houses of assignation and gaming houses or any part thereof; to punish those guilty of possessing, transporting or selling intoxicating liquors and to confiscate all automobiles, cars, wagons, boats, water[craft] and aircraft, beasts of burden and vehicles of any kind in connection with which intoxicating liquors are had, kept or possessed for the purpose of transportation or carrying in any way within the city; to punish those engaged in gaming and to suppress all gaming or gambling houses, and all places where gambling or betting is in any way carried on or permitted, and to punish all persons in any way connected therewith; to prohibit within the city or within two miles thereof, slaughterhouses, soap or glue factories and houses and places of like kind, and any other thing or busi-

ness dangerous, unwholesome, unhealthy, offensive, indecent or dangerous to life, health, peace or property; to provide for the entry into and the examination of all dwellings, lots, yards, enclosures, buildings and structures, cars, boats and vehicles of every description, and to ascertain their condition for health, cleanliness or safety; to regulate the building and maintenance of party walls, partition fences or lines, firewalls, fireplaces, chimneys, boilers, smokestacks and stove pipes; to provide for and regulate the safe construction, inspection and repairs of all public and private buildings, bridges, basements, culverts, sewers, or other buildings or structures of any description; to take down and remove, or make safe and secure, any and all buildings, walls, structures or superstructures at the expense of the owners thereof, that are or may become dangerous, or to require the owners or their agents to take down and remove them or put them in a safe and sound condition at their own expense; to regulate, restrain or prohibit the erection of wooden or other buildings within the city; to regulate the height, construction and inspection of all new buildings hereafter erected, and the alteration and repair of any buildings already erected or hereafter erected in said city, and to require permits to be obtained for such buildings and structures, and plans and specifications thereof to be submitted to the building inspector; to regulate the limit within which it shall be lawful to erect any steps, porticos, bay windows, bow windows, show windows, awnings, signs, columns, piers or other projection or structural ornaments of any kind for the houses or buildings fronting on any street of said city; to establish fire limits and to provide the kind of buildings and structures that may be erected therein, and to enforce all needful rules and regulations to guard against fire and danger therefrom; to require, regulate and control the construction of fire escapes for any building or other structures in said city, to control the opening and construction of ditches, drains, sewers, cesspools and gutters, and to deepen, widen and clear the same of stagnant water or filth, and to prevent obstruction therein, and to fill, close or abolish the same and to determine at whose expense the same shall be done; and to build and maintain fire station houses, crematories, jails, lockups, and other buildings, police stations and police courts, and to regulate the management thereof; to acquire, establish, lay off, appropriate, regulate, maintain and control public grounds, squares and parks, hospitals, market houses, city buildings, airports, libraries and other educational or charitable institutions, either within or without the city limits, and when the council determines that any real estate rights, or materials in or out of the city is necessary to be acquired by said city for any such city purpose, or for any public purpose, or is necessary in the exercise of its powers herein granted, the power of eminent domain is hereby conferred upon said city, and it shall have the right to institute condemnation proceedings against the owner thereof, whether said property be in or out of said city, in the same manner, to the same extent, and upon the same conditions as such power is conferred upon public service corporations by chapter 42 of the Code of West Virginia of the edition of 1923, and is now or may be hereafter amended [now W. Va. Code ch. 54]; to purchase, sell, lease or contract for and take care of all public buildings and structures and real estate deemed proper for the use of such city; and for the protection of the public to cause the removal of unsafe walls, structures or buildings, and the filling of excavations; to acquire or assist in acquiring land to be donated, dedicated or conveyed to, or otherwise vested in, the State of West Virginia as a site for a state capital or other public buildings, and to donate, dedicate and convey the same to said state or otherwise procure the title to the same to be vested in said state; to prevent injury or annoyance to the business of individuals from anything dangerous, offensive or unwholesome; to abate or cause to be abated all nuisances and to that end and thereabout to summon witnesses and hear testimony; to regulate or prohibit the keeping of gunpowder and other combustible or dangerous articles, and to regulate the transportation of same through the streets, alleys and public places; to regulate, restrain or prohibit the use of firecrackers or other explosives or fireworks, and all noises or performances which may be dangerous, indecent or annoying to persons or tend to frighten horses or other animals; to provide and maintain proper places for the burial of the dead, in or out of the city, and to regulate interments therein upon such terms and condi-

tions as to price and otherwise as may be determined; to provide for shade and ornamental trees, shrubbery, grass, flowers and other ornamentation, and the protection of the same; to provide for the poor of the city; to make suitable and proper regulations in regard to the use of the streets, public places, sidewalks and alleys by streetcars, foot passengers, animals, vehicles, motors, automobiles, traction engines, railroad engines and cars, and to regulate the running and operation of the same so as to prevent obstruction thereon, encroachment thereto, injury, inconvenience or annoyance to the public; and to regulate fares and operation of motor vehicles operating on a fixed route used in the public transportation of passengers or property; to purchase or otherwise secure life, health or accident policies on the group or other convenient plan upon the members of the city police force and fire department, and as an element of compensation of such members may appropriate the money necessary to defray the cost thereof; whenever in its opinion the safety of the public so requires to authorize or require by ordinance any railroad company operating railroad tracks upon or across any public street or streets of the city, to construct and maintain overhead or undergrade crossings wherever the tracks of said company are laid upon or across the public streets of such city, and to apportion according to general law between any such railroad company and city the cost of such construction and maintenance and the cost of the acquisition of the necessary property and rights-of-way and the damages to abutting properties between any such railroad company and city; to prohibit prize fighting and cock and dog fighting; to license, tax, regulate or prohibit theaters, moving pictures, circuses, and exhibition of showmen and shows of any kind, and the exhibition of natural or artificial curiosities, carnivals, menageries and music exhibitions and performances, and other things or business on which the state does or may exact a license tax; to organize and maintain fire companies and departments, and to provide necessary apparatus, engines and implements for the same and to regulate all matters pertaining to the prevention and extinguishing of fires; to make proper regulations for guarding against danger and damage from fires, water or other elements; to regulate and control the kind and manner of plumbing and electric wiring, the operation and height of flying of aeroplanes, airships and balloons; to regulate wireless stations, radio stations and other appliances for the protection of the health and safety of said city; to levy taxes on property, property and licenses, to license and tax dogs and other animals and regulate, restrain and prohibit them and all other animals and fowls running at large; to provide revenue for the city and appropriate the same to its expenses; to adopt rules for the transaction of business of its own regulation and government; to promote the general welfare of the city, and to protect the persons and property of citizens therein; to regulate and provide for the weighing of produce and other articles sold in said city and to regulate the transportation thereof and other things, through the streets, alleys and public places; to have the right to grant, refuse or revoke any and all licenses for the carrying on of any business within said city on which the state exacts a license tax; to establish and regulate markets and to prescribe the time for holding the same, and what shall be sold in such market, and to let stalls or apartments and regulate the same; to acquire and hold property for market purposes; to regulate the placing of signs, billboards, posters and advertising on or over the streets, alleys, sidewalks and public grounds of said city; to preserve and protect the peace, order and safety and health of the city and its inhabitants, including the right to regulate the sale and use of cocaine, morphine, opium and poisonous or dangerous drugs; to appoint and fix the place of holding city elections; to erect, own, lease, authorize or prohibit the erection of gas works, electric light works or water works, ferry boats, in or near the city, and to operate the same, and to sell the product of services therefrom and to do any and all things necessary and incidental to the conduct of such business; to build, hold, purchase, own and operate toll bridges; to enter into an agreement with the County of Kanawha, whereby the council and the county court of Kanawha County shall have the power and authority to provide for a full time health officer in charge of all the general health and sanitation activities and of the enforcement of all laws and regulations relating to public health, in the City of Charleston, the County of Kanawha, and to provide for necessary assis-

tants, nurses, clerks and other employees, and the expenses of the administration thereof, and to provide for a proper division of all such expenses between the city and county, and make all needful rules and regulations to fully carry into effect the said joint undertaking between the City of Charleston and the County of Kanawha; to provide for the purity of water, milk, meats and provisions offered for sale in said city, and to that end provide for a system of inspecting the same and making and enforcing rules for the regulation of their sale; and to prohibit the sale of any unwholesome or tainted milk, meats, fish, fruit, vegetables, or the sale of milk, containing water or other things not constituting a part of pure milk; to provide for inspecting dairies and slaughterhouses, whether in or outside of the city, where the milk and meat therefrom are offered for sale within said city, and to prohibit the sale of any articles deemed unwholesome, and to condemn the same or destroy or abate it as a nuisance; to provide for the regulation of public processions so as to prevent interference with public traffic, and to promote the good order of the city; to prescribe and enforce ordinances and rules for the purpose of protecting the health, property, lives, decency, morality, cleanliness and good order of the city and its inhabitants and to protect places of divine worship in and about the premises where held, and to punish violations of all ordinances, although the offense under and against the same shall also constitute an offense under the laws of the State of West Virginia or the common law; to provide for the employment and safekeeping of persons who may be committed in default of payment of fines, penalties or costs under this act [this Charter], who are otherwise unable to discharge the same, by putting them to work for the benefit of the city upon the streets or other places in or out of the city provided by said city, and to use such means to prevent their escape while at work as the council may deem expedient; and the council may fix a reasonable rate per day as wages to be allowed such persons until the fine and costs against him [them] are thereby discharged; to compel the attendance at public meetings of the members of the council; to have and exercise such additional rights, privileges and powers as are granted to municipalities by chapter 47 [now chapter 8, the Municipal Code of West Virginia (W. Va. Code § 8-1-1 et seq.)] of the Code of West Virginia as amended.

For all such purposes, except that of taxation and for purposes otherwise limited by this act [this Charter], the council shall have jurisdiction for one mile beyond the corporate limits.

And the council shall have the right to establish, construct and maintain public markets, landing[s,] ferries, wharves, parking places and docks on any ground which does or shall belong to said city, or which it shall acquire, by purchase or otherwise, and to sell, release, repair, alter or remove any public markets, landings, ferries, wharves, dikes, buildings or docks which have been or shall be so constructed, and to levy and collect reasonable duty on vessels and other craft coming to or using said landings, ferries, wharves, dikes, docks, parking places and buildings, and to preserve and protect the peace and good order at the same, and regulate the manner in which they shall be used; and to have the sole right, under state laws and in the same manner as now control county courts, to establish, construct, maintain, regulate and control all such wharves, docks, ferries and landings within the corporate limits of said city.

To carry into effect these enumerated powers and all other powers conferred upon said city expressly or by implication in this and other acts of the legislature, the council of said city shall have the power in the manner herein prescribed, to adopt and enforce all needful orders, rules and ordinances not contrary to the laws and constitution of this state; and to prescribe, impose and enforce reasonable fines and penalties, including imprisonment in the city lockup, jail or stationhouse, and to work prisoners found guilty, as the council may prescribe, and market the products of such labor, and with the consent of the county court of Kanawha County, entered of record, shall have the right to use the jail of said county for any purpose necessary to the administration of its affairs.

**Editor's note—**Most of Charter § 7 is covered by W. Va. Code §§ 8-12-2, 8-12-5 et seq. *See* W. Va. Code § 8-1-6. The provisions of this section pertaining to punishment of possession or sale of intoxicating liquors are superseded by the Alcoholic Beverage Control Act (W. Va. Code § 60-6-1 et seq.).

The provisions of this section pertaining to regulation of construction are somewhat inconsistent with W. Va. Code § 8-12-13. Notwithstanding language in this section, penalties imposed for ordinance violations cannot exceed those imposed under W. Va. Code ch. 61 for similar offenses and no term of imprisonment can exceed 30 days. *See* W. Va. Code §§ 8-1-6, 8-11-1, 8-12-5(57).

### Sec. 7-a. Authority of council, municipal judge, circuit and common pleas courts and judges relating to city licenses.

The council of the City of Charleston shall have full discretion in the matter of granting, refusing and revoking licenses for keeping hotels, eating houses and restaurants, garages, taxicab stands, bowling alleys, pool and billiard tables and like tables, and for selling soft drinks, as in the case of other licenses, and shall supervise, regulate and control all places licensed for said purposes, and the municipal judge shall have jurisdiction when such city license and regulation is sought to be evaded and may prevent such evasion, provided, that no such license, regulation or control shall apply to any fraternal beneficiary society permitted under the state laws. The council shall make no provision for the licensing of automobiles or other motor vehicles, except that in the case of motor vehicles used in the transportation of passengers or property for hire the council may require from the owner or operator of any such vehicle a bond, with sureties, and in such penalty, and with such conditions as it may deem proper. The council shall have power to enact and enforce proper ordinances for the purpose of carrying into effect the powers hereby granted.

If any person fails or refuses to secure a license or to pay any license tax due the city, or fails to obtain a permit to do anything for which a permit is required by ordinance, in addition to all other penalties and remedies provided by the ordinances of the city, the circuit court of Kanawha County and the court of common pleas of Kanawha County, or the respective judge thereof, in vacation, upon application in the name of the city or of any officer of the city, shall grant an injunction, inhibiting such person from continuing the business until the full amount of the license tax and penalty prescribed by the ordinance and due the city is paid, or until the person has obtained the license or permit as required by any ordinance.

**State law reference—**Authority to require license for anything for which state license is required, unless prohibited by general law, and to impose a reasonable tax thereon not in excess of state tax, W. Va. Code §§ 8-13-4, 11-12-4.

### Sec. 7-b. Regulation of operation of motor vehicles.

The council of the City of Charleston is hereby granted power, in addition to the powers heretofore granted it, to regulate by ordinance the operation of motor vehicles and other vehicles in said city, and the speed at which the same may be driven, and to provide for the punishment of violations of such ordinances; and said council is given specific authority to punish the violation of ordinances relating to the speed of such vehicles, or the operation thereof, by impounding or taking possession of such vehicles and retaining the same for such time as may be prescribed by ordinance not to exceed thirty days.

**Editor's note—**The provisions of Charter § 7-b appear superseded by W. Va. Code §§ 8-11-1, 8-23-5(57), 17C-2-7, 17C-2-8. *See* W. Va. Code § 8-1-6.

### Sec. 8. Persons entitled to vote.

Every person qualified by law to vote for members of the legislature of this state (and who shall have been a resident of said city for sixty days preceding the day of election, of the ward in which he offers to vote at least ten days preceding such day and a bona fide resident of the election precinct in which he offer to vote) shall be entitled to vote at all elections held in said city by or under the authority and control thereof.

**Editor's note—**The provisions of Charter § 8 are superseded by W. Va. Code § 3-1-3. *See State ex rel. Peck v. City Council,* 150 W. Va. 580, 148 S.E.2d 700 (1966). *See also* W. Va. Code § 8-1-6.

### Sec. 9. Boundaries of voting precincts; registration books; duties of county court.

Voting precincts in the several wards for the city election shall be the same as to boundaries as those fixed by the county court for all state and county elections. Consistent with state law, the county clerk of Kanawha County shall carefully

preserve in his office, registration books of each general state and county election for all of the precincts of the City of Charleston, and the original of said books shall be used as the registration for all regular and special city elections, with such corrections as are provided for in state law. Said registration books shall never be out of the possession and control of the county court of Kanawha County, or the clerk thereof, except as may be permitted or required by this Charter or state law.

(Acts 1933, Reg. Sess., ch. 117; Ord. No. 7597, 10-21-2013)

**Editor's note—**The provisions of Charter § 9 are superseded by W. Va. Code §§ 3-1-5, 3-1-6, 3-2-1 et seq. *See* W. Va. Code § 8-1-6.

### Sec. 9-a. Special registrars; compensation of county court and clerk; delivery of registration books to city clerk; return to clerk of county court.

No special registrars shall be appointed for any primary, general or special municipal election. The county court of Kanawha County and the clerk thereof shall not be compensated for their services required by this and the last preceding section [§ 9] unless required by state law or authorized by city council.

On the day prior to any primary, general or special municipal election not coinciding with a state or county election the clerk of said county court shall deliver to the city clerk of the City of Charleston all original registration books used in the last general county and state election, as corrected by the county court of said county, and the clerk of said city shall send the same to the various precincts of said city, as provided by law. After said registration books are delivered to said clerk of said city, no person shall add to the same any name, nor erase therefrom any name, and any person found guilty of either adding or erasing one or more names shall be guilty of a felony and confined in the penitentiary not less than one, nor more than five years. As soon as may be possible after the holding of any primary, general or special municipal election not coinciding with a state or county election, said original registration books shall be returned by the clerk of said city to the clerk of the county court of Kanawha County, West Virginia, who shall carefully preserve all of said registration books for such use as is required by law.

(Acts 1933, Reg. Sess., ch. 117; Ord. No. 7597, 10-21-2013)

**Editor's note—**The provisions of Charter § 9-a are superseded by W. Va. Code § 3-2-1 et seq. *See* W. Va. Code §§ 8-1-6, 8-5-13.

### Sec. 10. Nomination of candidates.

Candidates to be voted for at municipal elections may be nominated by convention, or primary election, as may be decided by the executive committees of any of the parties recognized by law in said city, and candidates may be nominated by petition in the manner provided by chapter 3 of the Code of West Virginia [W. Va. Code § 3-1-1 et seq.]. Each of the political parties having the right to make a nomination under the election laws of West Virginia shall give notice of the manner of such nomination by publication thereof in some daily newspaper printed in the City of Charleston for ten days prior to the date of such convention or primary election.

**State law reference—**Municipal political party executive committees and municipal primary elections, W. Va. Code § 8-5-14.

### Sec. 11. City voting precincts to coincide with county voting precincts; how elections to be held; authorizing all lawful actions deemed appropriate by council to conduct elections, including combining city elections with state and county elections.

The voting precincts for city elections shall coincide with the boundaries of the voting precincts fixed by the county court of Kanawha County for state and county elections, or shall otherwise be established in the way and manner prescribed by chapter 3 of the Code of West Virginia [W. Va. Code § 3-1-1 et seq.]. Except as may be otherwise provided, by this act [this Charter], all city elections shall be held by the council and the officers therefor appointed in the way and manner prescribed in chapter 3 of the Code of West Virginia [W. Va. Code § 3-1-1 et seq.], but no double election boards shall be appointed for any city election. Notwithstanding any provision contained in this act [this Charter], the city

shall be authorized to take all lawful actions necessary or convenient to conduct any and all regular and special elections in the way and manner deemed appropriate by council, including, but not limited to, actions deemed necessary or convenient to combine any city election with any state and county election administered by the clerk of the county court of Kanawha County, West Virginia.

(Ord. No. 7597, 10-21-2013)

**Editor's note—**Charter § 11 appears superseded by W. Va. Code §§ 3-1-5, 3-1-6. *See* W. Va. Code § 8-1-6.

### Sec. 12. Law governing preparation of ballot and method of voting.

The preparation of the ballot and the method of voting and all other requirements of chapter 3 of the Code of West Virginia [W. Va. Code § 3-1-1 et seq.], except as changed or modified by this act [this Charter], shall govern all city elections held under the provisions hereof.

### Sec. 13. The council—Title; how constituted.

The City of Charleston shall have a council, which shall be known and styled as the "Council of the City of Charleston" and shall consist of one resident of each of the wards of the city, and five councilmen to be voted for by all the voters of said city, all of whom shall be nominated, voted for and elected in the manner herein provided.

**Editor's note—**The provisions of Charter § 13 mandating the size of the council are superseded by the provisions of Charter § 4.

### Sec. 14. Same—Qualifications; vacancies.

Only citizens entitled to vote and residents and voters of their respective wards and having the proper qualifications hereinbefore provided shall be eligible to be elected to the office of councilmen [councilman] from their respective wards and at large, and each councilman so elected from a ward shall continue to be a resident of the ward from which he is elected during his entire term of office.

At elections held pursuant to Section 35 of this act [this Charter], there shall be elected one member of the council from each ward and six members of the council from the city at large. If any person elected to council fails to qualify within seventy-five days after he is declared elected, or resigns as a member of the council, or ceases to be a resident of the ward from which he is elected, then his office shall thereby be vacated and the council shall fill such vacancy by the election of some qualified person for such unexpired term. No person shall be declared elected by the council unless he receives the votes of at least a majority of the members elected thereto and the minutes of such meeting shall show that fact.

(Ord. No. 6050, 12-5-1994; Ord. No. 7597, 10-21-2013)

**Editor's note—**The number of at-large councilmembers stated in Charter § 14 is superseded by the provisions of Charter § 4.

### Sec. 15. Same—Mayor; clerk; president pro tempore.

The mayor shall be the presiding officer of the council and be a member thereof, with the right to vote on all questions the same as any other member of said council, and the city clerk shall be ex officio clerk of the council, and the mayor and city clerk shall each perform such other duties as the council may require of them. The council shall, at its first meeting after each election, select one of its body as president pro tempore, who shall in the absence of the mayor, preside as chairman of the meeting of the council, and in the absence of both the mayor and president pro tempore at any meeting of the council, some member of the council shall be elected to preside over such meeting.

**Editor's note—**Most of the first sentence of Charter § 15 is covered by W. Va. Code §§ 8-9-1, 8-9-2, 8-10-3. *See* W. Va. Code § 8-1-6.

### Sec. 16. Same—Representation of new ward.

Whenever by the extension of the corporate boundaries of the city a new ward is created as part of the city, such new ward shall have representation in the city council and within thirty days after the act creating such new ward takes effect, the council shall proceed to elect one qualified resident thereof, as a member of said council, to hold office until the next general city election.

### Sec. 17. Same—Exercise of legislative functions; information, etc., from officers and employees.

The council shall exercise all of the legislative functions of the city government and shall have

the right to demand of any city official, or employee, information, explanations, facts, details, correspondence, or other papers affecting the city's interest; and it shall be malfeasance and neglect of duty for any such official or employee to fail or refuse to comply with such demands.

**State law reference—**Powers of municipal governing bodies generally, W. Va. Code §§ 8-11-1 et seq., 8-12-5.

### Sec. 18. Audit of books and accounts.

The council shall by proper ordinance provide for the auditing of all the books and accounts of the city at least once in each year, and shall employ a reputable certified public accountant for such purpose, and such audit shall show the complete financial condition of the city at the time thereof and the receipts and disbursements of all moneys during such year. The council may also provide by ordinance for the publication of the report of the accountant on the financial condition of the city at least once in each year, and such report of the accountant shall be spread upon the records of the council and be a public record for all purposes.

**Editor's note—**The provisions of Charter § 18 appear to be covered by, inconsistent with, and not needed in light of W. Va. Code §§ 6-9-7, 8-13-18, 8-13-23. *See* W. Va. Code § 8-1-6.

### Sec. 19. Removal of officers by council or by circuit court of Kanawha County, or by officers having appointment authority.

Any member of the council, and any city official, either elected or appointed, may be removed from his office by the council for any of the following causes: official misconduct, incompetence, habitual drunkenness, neglect of duty, or gross immorality. The charges against any such officer shall be reduced to writing and entered of record by the council, and a summons shall thereupon be issued by the city clerk containing a copy of the charges and requiring the officer named therein to appear and answer the same on a day to be named therein, which summons may be served in the same manner as a summons commencing an action may be served, and the service must be made at least five days before the return day thereof, and it shall require the affirmative vote of two-thirds of all the members elected to council to remove any such official. The circuit court of Kanawha County shall have concurrent jurisdiction with the council to try, hear and determine any proceedings for the removal of any city official for any of the causes herein mentioned.

The mayor, or any other city official having the power of appointment, shall have the absolute right in his discretion to remove any of his appointees and appoint another qualified person in his place, but such removal shall be in writing and served upon said official so removed, and all the rights and powers of such official shall cease and end from the time of such service.

### Sec. 20. Rules and regulations for government of council; record of meetings.

The council shall make proper rules and regulations for its own government and the conduct of its business, which rules shall not be contrary to, or inconsistent with, any of the provisions of this act [this Charter], and such rules shall be duly entered of record and shall be published by the council in any municipal code or other publication made by the council of this act and the ordinances of said city. The council shall cause a record of its meetings to be kept and recorded by the city clerk in a well bound book provided by the council for that purpose, which book shall remain in the custody and at the office of the city clerk, and all the books containing the proceedings of former councils or other governing bodies of the City of Charleston, shall likewise remain in the custody and be kept at the office of the city clerk, and all such books and all city records shall at reasonable hours and in a reasonable manner be open to the inspection of the public.

**Editor's note—**The provisions of Charter § 20 appear to be covered by W. Va. Code §§ 6-9A-5, 8-9-3, 8-12-5(45), 29B-1-3. This section may be somewhat inconsistent with such provisions. *See also* W. Va. Code § 8-1-6.

### Sec. 21. Regular meetings of council.

The council shall hold regular meetings on the first and third Mondays of each month, and the hour and place of such meetings shall be fixed by the council in the rules adopted by it.

**Sec. 22. Special meetings of council.**

Special meetings of the council shall be held when called by the mayor or ten members thereof. In either case, the call therefor shall be in writing and signed by the mayor or members issuing it, and shall state the time, place and business to be considered thereat, and a copy thereof shall be served upon each member of the council then in the city, and also be published on two successive days in two daily newspapers printed and circulated therein. No business, other than that stated in such call, shall be considered at such meeting.

**Sec. 23. Council procedure for contested elections, and right of appeal to circuit court.**

All contested elections shall be heard and determined by the council and such contests shall be made and conducted in the same manner as provided for in the case of contests for county and district officers; and the council shall conduct its proceedings in such cases as nearly as practicable in conformity with the proceedings of the county court in such cases, and there shall be the same right of appeal, in the same way, to the circuit court of Kanawha County.

**Editor's note—**The provisions of Charter § 23 appear to be superseded by W. Va. Code §§ 3-7-1 et seq., 8-5-17. *See* W. Va. Code § 8-1-6.

**Sec. 24. Oath of officers; how and within what time officers must qualify; failure to qualify vacates office.**

After each election, and on or before the date their term begins as specified in Section 35 of this act [this Charter], all officers elected and appointed shall take an oath, before someone authorized to administer oaths, that they will support the Constitution of the United States, the constitution of this state, and will faithfully and impartially discharge the duties of their respective offices to the best of their skill and judgment; that they are not and will not during their term of office, in any way or manner become pecuniarily interested directly or indirectly in any contract with the city, in any franchise granted by it, or in the purchase of supplies therefor. When the officer shall have made such oath in writing and filed the same with the city clerk and shall have given the bond required of him, he shall be considered as having qualified for the office to which he was elected or appointed; provided that if any person so elected or appointed shall not qualify for said office as herein prescribed, within seventy-five days after he shall have been officially declared elected or appointed thereto, said office shall ipso facto become vacant, and said vacancy shall be filled in the same manner as other vacancies therein are provided for in this act [this Charter]. (Ord. No. 7597, 10-21-2013)

**State law reference—**Oath of municipal officers, W. Va. Code § 8-5-8.

**Sec. 25. Bonds of officers and employees; record of bonds.**

The mayor, manager, city clerk, municipal court clerk, treasurer, city solicitor, city collector, municipal judge, health commissioner, chief of police and chief of fire department, each shall, before entering upon the discharge of their respective duties, give an official bond, conditioned for the faithful performance of such duties as are prescribed in this act [this Charter] or any ordinance now or hereafter passed, in amounts as follows: The mayor, one thousand dollars; manager, ten thousand dollars; city collector, ten thousand dollars; the treasurer, sixty thousand dollars; the city clerk, municipal court clerk, municipal judge and city solicitor, three thousand dollars, respectively; health commissioner, chief of police and chief of the fire department, one thousand dollars, respectively.

The council may require additional bond from any of said appointive officers, and may likewise require bond, in whatever sum they may fix, of any other appointive officer or employee. All bonds of officers or employees shall, before their acceptance, be approved by the council. The minutes of the meeting of council shall show all matters touching the consideration or approval of all bonds, and when said bonds are approved and accepted, they shall be recorded by the city clerk in a well-bound book kept by him at his office for that purpose, which book shall be open to public inspection; and the recordation of such bonds as aforesaid shall be prima facie proof of their correctness, and they, as so recorded, as well as copies thereof duly attested by the city clerk

under the seal of the city, shall be admitted as evidence in all courts of this state. The city clerk shall be the custodian of all bonds, except that given by him, and as to it, the city treasurer shall be custodian. All bonds, obligations or other writings taken in pursuance of any provisions of this act [this Charter], shall be made payable to "the City of Charleston," and the respective persons, and their heirs, executors, administrators and assigns bound thereby shall be subject to the same proceedings on said bonds, obligations and other writings, for the purpose of enforcing the conditions of the terms thereof, by motion or otherwise, before any court of record held in and for the County of Kanawha, that collectors of county levies and their sureties are or shall be subject to on their bonds for enforcing the payment of the county levies.

### Sec. 26. Quorum of council; compelling attendance of absent members.

A majority of the whole number of members elected to the council shall be necessary for the transaction of business, but a smaller number may adjourn from time to time and may compel the attendance of absent members, in such manner and under such penalties as it may by rules provide.

**Editor's note—**The quorum requirement in Charter § 26 is covered by W. Va. Code § 8-9-1. The "compelling attendance" requirement in such section may be inconsistent with such statute. *See also* W. Va. Code § 8-1-6.

### Sec. 27. Voting in council and recording of votes.

Unless otherwise herein provided, the vote upon any question or motion before the council may be viva voce when unanimous; but if the question or motion does not receive the unanimous vote of the members present, the vote shall be taken by roll call of the members and made a part of the minutes of the meeting, and when the vote is unanimous the minutes shall so state.

**State law reference—**Records of meetings, W. Va. Code § 8-9-3.

### Sec. 28. City clerk is ex officio clerk of the council; council minutes and admissibility thereof in evidence.

The city clerk shall be ex officio clerk of the council and shall keep detailed minutes of its meetings and proceedings in a well-bound book for that purpose, which shall remain in the custody of the city clerk at his office and open to public inspection. The minutes of every meeting after being corrected, shall be signed by the mayor and city clerk, and, if thus recorded and signed, they shall be admitted as evidence in any court of record in this state.

**State law references—**Council records and minutes of proceedings, W. Va. Code § 8-9-3; duty of municipal recorder to keep the journal of proceedings of governing body, W. Va. Code § 8-10-3.

### Sec. 29. Holding two offices.

No officer of the city shall hold two offices with the city at the same time, or be employed by the city in any other capacity, without first having the consent of the council.

### Sec. 30. Failure of mayor or other officer to make appointments.

Whenever the mayor or other officer shall fail to make any and all appointments under him, or required to be made by him, for a period of thirty days from the time such appointment should have been made, his office may be declared vacant by the council, and his successor appointed, in the manner herein provided.

### Sec. 31. Vacancy in office of mayor or treasurer; vacancy in office of appointive officer; officers hold office until successors qualified, unless previously removed.

Whenever a vacancy for any cause whatever shall occur in the office of mayor or treasurer, the council shall elect some qualified person to fill said vacancy until the next city election, and until his successor shall have been elected and qualified; and when such vacancy shall occur in the office of any appointive officer, his successor shall be appointed by the person making the original appointment, or his successor in office, as hereinbefore provided, and all elective and appointive officers of said city shall hold their respective offices until their successors are elected, or appointed, and qualified, unless sooner removed.

**Sec. 32. Corruption in office.**

Any member of council or any officer of, or connected with, the city government pursuant to any law of this state or ordinance of the city now or hereafter passed, who shall, in his official capacity or under color of his office, knowingly or willfully, or corruptly vote for, assent to or report in favor of, or allow, or certify for allowance, any claim or demand against the city, which claim or demand shall be on account or under color of any contract or agreement not authorized by or in pursuance of the provisions of this act [this Charter], or the ordinances of the city, or any claim or demand against the city and which claim or demand or any part thereof shall be for work not performed for and by authority of said city, or for supplies or materials not actually furnished thereto pursuant to law or ordinance, and every such member or officer as aforesaid who shall knowingly vote for, assent to, assist or otherwise permit, or aid in the disbursement or disposition of any money or property belonging to the city to any other than the specific use or purpose for which such money or property shall be or shall have been received or appropriated or collected or authorized by law to be received, appropriated or collected, shall, upon conviction thereof, be punished by imprisonment in the county jail for a period of not less than sixty days nor more than one year or by fine of not less than five hundred dollars, nor more than two thousand dollars, or by both. But the council shall pay any just obligations made by the city and keep and perform all contracts, agreements and obligations made under the law as it was the day before this act goes into effect [this Charter became effective on March 6, 1929], and for which and on which the city is liable or obligated.

**Sec. 33. Power of council to compel attendance of witnesses and production of records, administer oaths and punish for contempt.**

The council in the exercise of its powers and the performance of its duties, as prescribed by this act [this Charter], and by the laws of the state, shall have the power to enforce the attendance of witnesses, the production of books and papers, and the power to administer oaths in the same manner and with like effect, and under the same penalties, as notaries public, justices of the peace, and other officers of the state authorized to administer oaths under state laws; and said council shall have the power to punish for contempt as is conferred on county courts by section 13 of chapter 39 of the [state] Code [now W. Va. Code § 7-1-6]. All process necessary to enforce the powers conferred by this act on the council shall be signed by the mayor (or acting mayor), and may be executed by any member of the police force.

**Sec. 34. Absence or inability of certain officers to perform duties.**

Whenever for any reason the mayor shall be absent from the city, or unable to attend to the duties of his office temporarily, the president pro tempore of the council shall perform them during such absence or inability, and in the absence or inability of the manager to attend to the duties of his office temporarily, the mayor shall designate someone to perform such duties, provided, that such temporary absence or inability shall not exceed thirty days, but if such absence or inability shall exceed thirty days, then such appointment or designation shall be submitted to the council, for confirmation or rejection. In the absence or inability of any other appointive city official to perform the duties of his office, the person or body making the original appointment, or his successor in office, shall designate someone to fill such office temporarily, or if such absence or inability extends over a period of sixty days, he may appoint someone to fill such office permanently.

**Sec. 35. Election and term of office of elective officers; appointments by mayor; appointment of city clerk; appointments by manager; duties of mayor and city solicitor; fees.**

The mayor, members of council, municipal judge and treasurer elected on May 16, 2015, shall serve a term beginning on the third Monday in June, 2015, and ending in January 2019 when the term of their successors begins. Their successors shall be elected on the first Tuesday in November, 2018, in conjunction with the state and county election administered by the clerk of the county

court of Kanawha County, West Virginia, and shall begin their term on the first Monday of January 2019, unless said Monday is a state holiday, in which case their term shall begin on the first Tuesday of January. Thereafter, the mayor, members of council, municipal judge and treasurer shall be elected at intervals of four years in conjunction with the state and county election administered by the clerk of the county court of Kanawha County, West Virginia, and their term shall begin on the first Monday of January after their election, unless said Monday is a state holiday, in which case their term shall begin on the first Tuesday of January.

The mayor shall appoint the city solicitor, an assistant city solicitor, the chief of police, humane officer or officers, building inspector, collector, city auditor, engineer, health commissioner, lockup keeper, municipal court clerk, and the chief of the fire department, and these appointments shall not require any confirmation by the council but shall be made at the discretion of the mayor, who shall, with like discretion, have the full and complete power of removal thereof. The mayor shall appoint the manager, by and with the advice and consent of the council. The council shall, either at a regular or special meeting called for that purpose, pass upon such nomination and either confirm or reject the same, and if such nomination is rejected, then the mayor shall submit to the council a further nomination of some other person or persons until the nomination is confirmed by council, for said office of manager, but it shall be the duty of the council to pass upon all nominations without unreasonable delay; and in any event within two weeks after the submission of the same, and the failure of members of the council to pass thereon within such time shall be cause for the removal from office of such members of the council as shall have refused to act thereon.

The council shall appoint a city clerk. The manager shall appoint or employ such persons as the ordinances of the city may require or the council may authorize by proper resolution.

It shall be the duty of the mayor to attend all meetings of the council and preside over that body.

It shall be the duty of the mayor to see that all of the laws and ordinances of the city are enforced and he shall have a general oversight over the peace, health and good order of the city.

The duties of the city solicitor or assistant city solicitor shall be to attend the sessions of council (and) to prosecute all suits on behalf of the city and defend all suits against the city, to advise the council and all of the departments of the city and in general to look after the interests of the city when it shall need legal services.

All fees of every kind collected by any officer or employee, including the municipal judge when acting as a justice, shall be paid to the city treasurer.

(Ord. No. 6050, 12-5-1994; Ord. No. 7597, 10-21-2013)

**Editor's note—**The provisions of Charter § 35 relative to the salaries of the mayor and solicitor are superseded by W. Va. Code § 8-5-12. *See* W. Va. Code § 8-1-6. The provisions of Charter § 35 relative to the mayor attending council meetings and presiding at same (i.e., the fourth paragraph) are covered by W. Va. Code § 8-9-1. *See* W. Va. Code § 8-1-6. The fifth paragraph of Charter § 35 is covered by W. Va. Code § 8-10-1. *See* W. Va. Code § 8-1-6.

### Sec. 36. Appointment, compensation, powers and duties of the manager.

The manager shall be appointed in the way and manner hereinbefore provided and shall receive such salary as council may by ordinance prescribe, provided such amount shall not be less than three thousand nor more than five thousand dollars per annum, and he shall have the right to employ one clerk at such salary as council may fix, and such other help as he may require and as council may from time to time allow.

The manager shall devote his entire time and attention to the duties of his office, and shall have supervision and control of the executive work and management of the heads of all departments under his control as directed by the mayor. He shall make all contracts for labor and supplies, and generally perform all of the administrative work of the city, and such other duties as council may require of him, and shall possess such other powers and perform such other duties as council shall prescribe.

**Editor's note—**The provisions of Charter § 36 relative to the salary of the manager are superseded by W. Va. Code § 8-5-12. *See* W. Va. Code § 8-1-6.

**Sec. 37. Franchises—Granting; requirements and limitations governing; vote of council required.**

Franchises or permits granting the right of occupancy of any portion of the streets or alleys for works of public utility or other use, or granting any right or privilege, which the city has the power to grant to individuals, firms or corporations, in order that the latter may serve the public, may be made only upon the following restrictions and conditions: Such franchises, rights and privileges shall be granted only by ordinance duly passed by the council.

No grant of any such franchise shall be made without, at the time of making it, providing that the grantee shall indemnify the city against all damages caused by construction, maintenance or operation of such works. Additional provisions and conditions shall be made for the protection of the public against damage or inconvenience by reason of the construction, maintenance or operation thereof.

No grant of a franchise for the extension of or an addition to any line or work of public service through, over or under any additional street or territory of the city, shall be made for a period extending beyond the time limit for the expiration of franchise of the principal work of which it is an extension and if the franchise of the principal work is one granted before this act [this Charter] goes into effect and not limited as to time, any franchise granted for an extension or addition thereto shall nevertheless be made subject to the conditions thereof, including a time limit for a period not exceeding twenty-five years. All franchises hereafter granted shall embody therein a plainly expressed condition, where the franchise is for work to be useful chiefly to the citizens of the city, that at the expiration of such franchise or certain periods therein mentioned, the grantee shall, if required by the governing body of the city, sell to the city the plant at its actual value, exclusive of any value for the franchise granted by the city or its earning capacity or productive worth, and no exclusive franchise shall be granted.

If the city and the owner of the plant cannot agree upon its worth, then the value shall be ascertained by an impartial arbitration, one arbitrator to be selected by the city, one by such owner of the plant, these two to select a third and the decision of any two to be binding upon both parties, and if they shall fail for a period of thirty days to select such third arbitrator, then either party may apply to the judge of the circuit court of Kanawha County who shall then appoint such third arbitrator.

No franchise shall be granted without the affirmative vote of two-thirds of all the members elected to said council.

**Editor's note—**The provisions in Charter § 37 requiring that a franchise can only be granted by ordinance are covered by W. Va. Code § 8-11-3. *See* W. Va. Code § 8-1-6. The 25-year time limitation in Charter § 37 is superseded by W. Va. Code § 8-31-1. *See* W. Va. Code § 8-1-6. The last sentence in Charter § 37 appears inconsistent with W. Va. Code § 8-11-4. *See* W. Va. Code § 8-1-6.

**Sec. 38. Same—Advertisement of application; submission to voters.**

When any franchise, permit or license granting the right to use the streets, alleys, or public grounds, shall be applied for, the application or petition shall be advertised in two newspapers, published in said city, thirty days before the same shall be heard and determined by the council; and any ordinance granting such rights and franchises shall, on the petition of ten percent of the votes cast for all candidates for the office of mayor at the last preceding election, be submitted to the voters at a special election, for adoption or rejection, which shall be by a majority of the votes cast; said election to be held and conducted as other municipal elections are held; except that all of the expenses of said election shall be borne by the

party or corporation desiring said rights and franchise. All such ordinances shall protect the interests of the city, as provided in section 37, as well as such additional conditions, compensations or limitations as council may prescribe.

**Editor's note—**The notice requirements in Charter § 38 are inconsistent with W. Va. Code § 8-31-1. *See* W. Va. Code § 8-1-6. The referendum provisions in Charter § 38 appear inconsistent with W. Va. Code § 8-11-4. *See* W. Va. Code § 8-1-6.

### Sec. 39. Committees of council; adjournment of council meetings; postponement of announcement of vote.

Council shall have the right to appoint such committees of its own body as it may deem proper, and may give such committees power and authority to perform any duties and make any reports to council concerning the duties of council, and council may adjourn its meetings from time to time, pending the consideration of any matter, franchise or ordinance, and may postpone the announcement of any vote to an adjourned meeting or to a future meeting.

### Sec. 40. Style of ordinances.

The style of all ordinances enacted by the council shall be "Be it Ordained by the Council of the City of Charleston."

**State law reference—**Ordinance adoption, W. Va. Code § 8-11-4.

### Sec. 41. Passage of ordinances; revision, reenactment or amendment; effective date; publication of caption or title; resolutions and orders.

No ordinance shall be passed, except by bill, and no bill shall be so amended in its passage as to change its original purpose. All bills must be in writing and read in full when presented at a regular or special meeting of council, and except in case of emergency and when so authorized by a vote of four-fifths of the members elected, taken by yeas and nays, no bill shall be considered for final passage at the meeting at which it is introduced; but at any subsequent regular or special meeting bills may be taken up for consideration and final action. No bill except in case of emergency evidenced by a vote of four-fifths of the members of council elected shall be considered for final passage unless the same has been referred to a committee for report. All amendments made by a committee to a bill shall be reported to council and incorporated in said bill, and before final action on said bill, the bill with any amendments shall be fully and distinctly read, after which reading, whether at the meeting at which the bill is reported or a subsequent meeting, the bill may be considered for final action. No bill shall become an ordinance unless on its final passage the vote be taken, the names of the members voting for and against the same be entered of record in the minutes of council, and a majority of all members elected recorded thereon as voting in its favor. Bills referred to a committee may be withdrawn therefrom at any subsequent meeting for present consideration by an affirmative vote of a majority of the members of council present. No bill except general appropriation bills, which may embrace the various subjects and accounts for and on account of which moneys are appropriated, and bills fixing the annual salaries of officers and employees of the city, and bills, providing for the paving or improving of streets, or construction of sewers, shall contain more than one object and that shall be expressed in the title, but if any object shall be embraced in an ordinance which is not so expressed the ordinance shall be void only as to so much thereof as shall not be so expressed. No ordinance shall be revised or reenacted by mere reference to the title thereof, but the same shall be set forth at length as if it were an original ordinance, nor shall any ordinance be amended by providing that, designated words thereof be stricken out and others inserted in lieu thereof, but the ordinance or sections amended shall be set forth in full as amended. All ordinances in force at the time [March 6, 1929] this act [this Charter] goes into effect, not inconsistent herewith, shall remain in full force until altered or repealed as herein provided, and all rights, actions, prescriptions and contracts of the city not inconsistent therewith shall continue to be valid as if this act [this Charter] had not been passed.

Any ordinance heretofore passed which may be void on account of failure of council properly to observe any provisions of the Charter of the City of Charleston or ordinances in force at the time

said ordinance was passed shall so far as it may affect the validity of any paving or sewer assessments heretofore laid, be in full force and effect until repealed or amended, the same as if legally passed. No ordinance of the council shall take effect until the expiration of five days after its final passage, unless the council shall by a vote of three-fifths of its members elected, taken by yeas and nays, otherwise direct. It shall be the duty of the city clerk to make publication of the caption or title of every ordinance in a newspaper of general circulation in the City of Charleston within five days after its passage, but failure so to do shall not affect the validity of any such ordinance.

Resolutions and orders of council other than ordinances may be considered for final passage at the meeting at which they are proposed, and shall, unless otherwise provided therein, be in force and effect from and after their passage.

**Editor's note—**Except for the last paragraph, the provisions of Charter § 41 are superseded by W. Va. Code § 8-11-4. *See* W. Va. Code § 8-1-6.

### Sec. 42. Ordinances to be spread on records of council; "Ordinance Record"; code of ordinances.

All ordinances passed, shall be spread in extenso upon the records of the council when adopted. The council shall also provide a well-bound book designated as "Ordinance Record," in which shall be copied by the city clerk all ordinances, in the order in which they are passed, which ordinances, when so copied, shall be compared with the originals by the mayor and shall be signed by him when found correct. Such books shall be indexed so as to show in brief form the substance of the ordinance, and shall be received by all courts and justices in this state as evidence, but the council may adopt by ordinance properly designating and describing it, a code of laws and ordinances, which when adopted shall be printed in book form, or said council may designate any committee, or attorney, or the city solicitor to prepare a code of ordinances for the government of the City of Charleston, and said council may by ordinance adopt the code so prepared as a whole, and when said ordinance adopting said code shall have been passed by the council, the said code shall be and become the law and ordinances of said city, and may be printed by order of the council, and the same shall be so received as evidence of what is printed therein, until errors or omissions be affirmatively shown therein.

**Editor's note—**The requirement in Charter § 42 that ordinances be placed in a well-bound book is superseded somewhat by W. Va. Code § 57-1-7a. *See* W. Va. Code § 8-1-6. The codification authority in Charter § 42 is superseded by W. Va. Code § 8-11-4(b). *See* W. Va. Code § 8-1-6.

### Sec. 43. Officers conservators of the peace.

All persons elected or appointed to the offices named in this act [this Charter] shall be conservators of the peace within said city, and they, and any other officer provided for under this act [this Charter], may be given authority of police officers by the council.

### Sec. 44. Powers and duties of municipal judge; maximum imprisonment for violation of ordinance; appeal; expense of maintaining persons committed to county jail.

The municipal judge shall be ex officio a justice and a conservator of the peace, and with authority to issue processes for all offenses committed within the police jurisdiction of the City of Charleston, of which a justice of the peace has jurisdiction under state statutes, and for all violations of any city ordinances, and shall have charge of and preside over the municipal court of such city; and may commit persons charged with felony or misdemeanor to jail or take bond for their appearance before the grand jury of the circuit, intermediate or other courts of Kanawha County; he shall keep an accurate record of all his judicial proceedings in said court, showing the style of each case, which record shall be indexed and numbered. It shall be his duty to hold daily sessions of his said court, Sunday excepted. Before trying any person charged with any violation of any state law or ordinance a warrant specifying the offense or violation charged shall be issued as herein provided and the municipal judge shall render judgment in any case as the law of the state or the ordinance of the city applying thereto may require; he shall also have the power to issue executions for all fines, penalties and costs imposed by him and he may require immediate payment thereof, and in default of such payment,

may commit the party so in default to the jail of the City of Charleston or of the County of Kanawha, or other place of imprisonment in said city, until the fine and penalty and costs shall be paid or satisfied, to be employed during the term of imprisonment as hereafter provided, but for violation of any city ordinance the term of imprisonment in any such case shall not exceed thirty days, and in all cases where a person is sentenced to imprisonment or to the payment of a fine of ten dollars or more, such person shall be allowed an appeal from such decision to the intermediate court of said Kanawha County upon the execution of an appeal bond, with surety deemed approved by the said municipal judge or municipal court clerk in a penalty double the amount of the fine and costs imposed by said judge, conditioned that the person proposing to appeal will appear before the intermediate court of Kanawha County on the first day of the next term thereof to answer for the offense wherewith he is charged and not depart thence without leave of the court and to satisfy all costs and fines imposed against him; and in no case shall judgment for a fine of less than ten dollars be given by the municipal judge if the defendant, his agent or attorney object thereto. When the judgment on appeal is against the appellant for any sum of money, judgment shall be rendered by the intermediate court against the appellant and those who signed the appeal bond as surety thereon. Before said municipal judge or clerk shall accept any natural person as surety upon any bond or recognizance under the provisions of this section, such surety shall furnish a certified statement of the clerk of the county court of any county in this state in which such surety owns real estate, and shall also file an affidavit, the form of which may be prescribed by the municipal judge, showing the bonds and recognizances upon which he is then surety and the amount of each bond or recognizance. If the amount of such bond or recognizance, together with other bonds and recognizances as shown by the affidavit aforesaid, exceeds in amount the assessed value of the surety's property as shown by the certificate of the clerk of the county court, of if any such bond or recognizance theretofore given, by such surety be forfeited and unsatisfied, then such surety shall be disqualified; and if any bond or recognizance be accepted and it subsequently appears that the surety thereon is disqualified then such bond shall be declared void by the municipal judge and the person whose appearance in the intermediate court of Kanawha County and whose payment of fine and costs are thereby secured may be forthwith apprehended and held in the city jail until a proper bond or recognizance is given; provided, however, that whenever any surety is offered less than one hour before the county clerk's office is closed or after it is closed, surety shall make an affidavit that he owns real estate in Kanawha County to an assessed value above encumbrances thereon, of at least double the amount of bond required. Any person making or procuring to be made a false statement in any such affidavit, with intent to deceive said municipal judge, shall be guilty of perjury. If such appeal be taken, the warrant of arrest, the transcript of the judgment, the appeal bond and other papers of the case shall be forthwith delivered by the said judge to the clerk of the intermediate court and the court shall proceed to try the case as upon indictment or presentment and render such judgment, including that of costs, as the law and the evidence may require.

On appeals from said municipal court the intermediate court of Kanawha County shall be governed by the same principles with respect to the forfeiture of bonds and recognizances, and the issuance and execution of capiases and writs of fieri facias as prevail in cases in which the state is a party.

The expense of maintaining persons committed to the jail of the county by such municipal judge shall be paid by the city. The municipal judge shall account for and pay over the amount of all fines collected by him weekly to the treasurer of the city and shall make monthly reports thereof, and of all other matters, pertaining to his office to the council of said city.

**Editor's note—**The first sentence of Charter § 44 is superseded by W. Va. Code §§ 8-10-1, 8-10-2. *See* W. Va. Code § 8-1-6. Provisions in the second sentence of Charter § 44 referencing violations of state law are invalid, as the municipal judge only has jurisdiction over ordinance violations. *See* W. Va. Code §§ 8-10-1, 8-10-2. *See* W. Va. Code § 8-1-6. The provisions of Charter § 44 pertaining to an appeal are superseded by W. Va. Code § 8-34-1. *See* W. Va. Code § 8-1-6.

**Sec. 45. Qualifications of municipal judge; not to appear as counsel in criminal cases; absence or inability to perform duties; bond.**

The municipal judge shall be an attorney at law and shall have attained the age of twenty-eight years at the date of the beginning of his term of service and shall have been a resident of this state for the period of five years and of the City of Charleston previous to the beginning of his term of service for the period of five years. He shall not appear as counsel in any criminal case in any court during his term of service. In the absence of, or in case of the inability of the municipal judge to perform his duties, the municipal court clerk shall act as municipal judge in his stead, and in the event that neither the municipal judge nor the municipal court clerk can for any cause perform such duties, then the mayor shall act as municipal judge. The official bond of a justice of the peace shall not be required of the municipal judge.

**Editor's note—**The reference in the last sentence of Charter § 45 to a "justice of the peace" should now be to a "magistrate." *See* W. Va. Code § 50-1-17.

**Sec. 46. Bail.**

In all cases of arrest by the police of the city, except in cases of murder and rape, the person arrested shall have the absolute right to give a reasonable and proper bond for his appearance at police court [municipal court] for a trial of his case, and the municipal judge, city clerk, municipal court clerk, mayor, chief of police and the desk sergeant or person in charge of police headquarters shall have the power, and it shall be their duty, to accept such bond from such person so arrested, and upon the giving of such bond he shall be released, and it shall be their further duty to permit such person arrested to communicate in any reasonable way with any person or persons with whom he may desire to have communication in reference to his giving bail in order to obtain his release, and each of said officers and all policemen shall render reasonable aid in assisting such person arrested to communicate with any person that he may desire for the purpose of securing such bail. In case one so arrested fail to give bond as aforesaid, the municipal judge, or if said judge be not then sitting, either of the officers named above may order such person committed to the city jail for safekeeping until the trial of his case.

**Editor's note—**Charter § 46 is invalid to the extent that it relates to other than ordinance violations. *See* W. Va. Code §§ 8-10-1, 8-10-2. *See also* W. Va. Code § 8-1-6.

**Sec. 47. Authority of council, manager and police officers relating to nuisances; duties and responsibilities of owners and occupants of property; enforcement.**

The manager of said city shall have authority to abate and remove all nuisances in said city. He may compel the owners, agents, assignees, occupants or tenants of any lot, premises, property, building or structure, upon or in which any nuisance may be, to abate and remove the same by orders therefor, and the council shall by ordinance provide a penalty for the violation of such orders. Council may by ordinance regulate the location, construction, repair, use, emptying and cleaning of all water closets, privies, cesspools, sinks, plumbing drains, yards, lots, areaways, pens, stables and other places, where offensive, unsightly, unwholesome, objectionable or dangerous substances or liquids are, or may accumulate, and provide suitable penalties for the violation of such regulations, which may be enforced against the owner, agent, assignee, occupant or tenant of any premises, or structure where such violation may occur. It shall be the duty of all police officers to report to the manager the facts as to the existence of any nuisance known to them.

If the owner, agent, tenant, assignee or occupant of any such premises, lot, property, building or structure, as is mentioned herein, shall fail or refuse to abate or remove any such nuisance, as mentioned herein, or to comply with the provisions of any such ordinance and the regulations herein contained, the manager may have said nuisance abated or the provisions of said ordinances carried out, after reasonable notice to said owner, occupant, tenant, agent or assignee of his intention so to do, and collect the expenses thereof, with one per centum per month interest added from the date of said notice, from the said owner, occupant, tenant, agent or assignee, by distress or

sale, in the same manner in which taxes levied upon real estate for the benefit of said city are herein authorized to be collected, and the expense shall remain a lien upon said lot, or part of lot, the same as taxes levied upon real estate in said city; which lien may be enforced by a suit in equity before any court having jurisdiction, as other liens against real estate are enforced. In case of nonresident owners of real estate such notice may be served upon any tenant, occupant, assignee or rental agent, or by publication thereof once a week for not less than two consecutive weeks in two newspapers of opposite politics, published in said city.

And in all cases where any tenant, occupant or agent is required to abate and remove any nuisance under the provisions of this section, or comply with the provisions of any such ordinance as is mentioned herein, the expense thereof may be deducted out of the accruing or accrued rent of said property or amount due said owner from said agent, and such tenant, occupant or agent may recover the amount so paid from the owner, unless otherwise especially agreed upon.

Any expense incurred by the manager as herein provided, in the manner aforesaid, may be collected in the manner herein provided, notwithstanding the imposition of any other penalty or penalties upon any of the persons named herein, under any of the provisions of this act [this Charter]. The abatement or removal of any such nuisance by the city at the expense of said city, as herein provided, shall be prima facie proof that the said notice to the owner, occupant, agent or assignee was given as herein prescribed.

### Sec. 48. Connection with sewer system.

The manager may require all owners, tenants or occupants of improved property which may be located upon or near any street or alley along which may be extended any sewer or system of sewerage, which the said city may construct, own or control, to connect with such sewer, or system of sewerage, all privies, ponds, water closets, cesspools, drains or sinks, located upon their respective properties or premises, so that their contents may be made to empty into such sewer or system of sewerage.

**Editor's note—**Charter § 48 is covered by W. Va. Code § 8-18-22. *See* W. Va. Code § 8-1-6.

### Sec. 49. Construction of sidewalks, curbs and gutters; duty of county clerk to record assessments.

The council shall have the right and authority to establish the width of any sidewalk on any street, alley or public square, or any portion thereof in said city, to cause to be put down a suitable curb of brick, stone or other material alone for the footways and sidewalks of the streets, alleys or public squares or portion thereof, and to order the construction, relaying and repair of sidewalks and gutters of such material and width, and in such manner, as the council may reasonably prescribe by the owners or occupiers of the lots or parts of lots facing upon said streets, alleys and public squares; and in case of a failure or refusal of any such owners or occupiers of the lots or parts of lots to construct, relay or repair such sidewalks and gutters, when required, it shall be lawful for the council to have such sidewalks and gutters constructed, relaid or repaired, and levy and collect the expense thereof, with one per centum per month interest added after a demand of thirty days has been made by the treasurer of the city from the said owner, owners, occupier, occupiers or any of them; and in all cases of such assessment, whether for the construction, relaying or repairing of sidewalks or gutters, payment thereof shall be made to the treasurer within thirty days after the completion of the work and demand made, and if not so paid the city is hereby authorized to collect or cause to be collected the expense thereof, with one per centum per month interest added after work has been completed and a demand of thirty days, and they shall have the power to collect, or cause to be collected, the same from said owner, owners, occupier or occupiers or any of them, by distress and sale, in same manner in which taxes levied upon real estate for the benefit of the said city are herein authorized to be collected, and in addition there shall be a lien upon the real estate against which such assessment has been levied for the construction, relaying and repairing of sidewalks and gutters as herein provided, which lien may be enforced by a suit in equity before any court having jurisdiction, as other liens against real estate are enforced, and it shall be the duty of the city clerk to cause to be certified to the clerk of the county court of

Kanawha County the order laying an assessment authorized by this section. The clerk of the county court of Kanawha County is hereby required to record and index such assessments in the proper trust deed book in the name of persons against whose property assessments appear therein; provided, however, that a reasonable notice shall first be given to said owner or occupier or their agent, that they are required to construct, relay or repair such sidewalks or gutters. In case of nonresidents who have no known agent in said city, such notice may be given by publication for a period not less than once a week for two consecutive weeks in any newspaper printed in said city; and in all cases where a tenant shall be required to construct, relay or repair sidewalks or gutters in front of the property of his or her occupancy, the expense of such construction or relaying or repairing may be deducted out of the accruing rent of said property, and he may recover the amounts paid from the owner; unless otherwise especially agreed upon. The laying or construction of any such sidewalks by said city shall be prima facie proof that the said notice to the owner (resident or nonresident) or occupier, or their agent, was given as herein required.

**Editor's note—**Charter § 49 is preempted to general law by W. Va. Code § 8-13-1. *See* W. Va. Code § 8-1-6.

### Sec. 50. Annual estimate for tax levy.

The council shall ascertain the total expense of the city to be provided for by levy for the fiscal year in which said levy is made, and it shall make a detailed itemized estimate of the sum of money necessary to pay interest accruing on the bonded indebtedness of said city, the amount required for the several sinking funds for the reduction of the principal thereof, the amounts necessary for the support of the various departments of the city and for the improvements of its streets, alleys, avenues and public grounds, real and personal property, contingent expenses and other expenses, together with an itemized statement of the estimated receipts other than that to be derived by the annual levy, and after receiving such estimates, and before making the levy, it shall apportion the rate thereof, including the estimated receipts from licenses and all other sources among the several funds so ascertained and provided for, which apportionment shall be spread upon the records of this city, and in making said estimate, providing for the revenue for the fiscal years, etc., it shall be the duty of the council strictly to observe all the provisions of chapter 9 of the Acts of the Legislature, 1908, entitled, "An act to regulate the rate and manner of laying levies for taxation in counties, magisterial and school and independent school districts, and municipal corporations, and to provide penalties for the illegal expenditure of public moneys, incurring of illegal obligations and the laying of illegal levies by any tax levying body, and for the distribution of a portion of the school fund," [W. Va. Code § 11-8-1 et seq.] and all amendments thereto, except where said last-named act shall be inconsistent with this act [this Charter] as to limit of taxation.

**Editor's note—**Charter § 50 is covered by W. Va. Code § 11-8-1 et seq. *See also* W. Va. Code § 11-8-14.

### Sec. 51. Authority to levy and collect taxes; limit of taxation.

The council shall have authority to levy and collect an annual tax on real estate and personal property in said city and to impose a license and assess a tax on all dogs kept within the city and to impose a tax upon all other subjects of taxation under the several laws of the state, which shall be uniform with respect to persons and property within the jurisdiction of said city, and shall only be levied on such property, real, personal and mixed, on which the state imposes a tax; provided, that with the exception of the special levies authorized by law, no greater levy shall be laid by said council on the taxable property of said city than fifty cents upon each hundred dollars of the assessed valuation of the property of the municipality; and, provided, further, that the council shall, in making such levy, be subject to all provisions of chapter 9 of the Acts of the Legislature of 1908 [now codified as art. 8, ch. 11 of the Code of West Virginia] and any and all amendments thereto, except as herein provided. There shall be a tax of two dollars annually assessed on each and every male inhabitant of said city over the age of twenty-one years who is subject to a capitation tax under the laws of the State of West Virginia. The same shall be set out and included in the personal property book against every such

inhabitant, and shall be collected under the authority of the city at the time of collecting other levies and taxes.

**Editor's note—**To the extent that Charter § 51 relates to taxation of real and personal property, it is preempted to general law by W. Va. Code § 8-13-1. *See* W. Va. Code §§ 8-1-6, 11-6-6d. Authority to tax dogs is also found in W. Va. Code § 8-13-10. As there apparently no longer is a state capitation tax, the provisions in this section relative to same are obsolete.

### Sec. 52. Collection of taxes.

The city taxes annually levied by the council shall be collected as follows: Immediately after the annual levy for city taxes is laid the council shall direct the proper officer of the city to extend the same on the property books made out by him, including therein the proper capitation tax; he shall make out therefrom proper tax tickets in the following manner: That is to say, instead of a single ticket for the whole amount charged to any person, firm or corporation there shall be two tickets, each for one-half of said amount; these half tickets shall be severally numbered or designated "first" and "second" and the same, after being examined and compared by the council and found to be correct, shall be turned over to the treasurer of the city on the first day of October following the levy and the treasurer's receipt for the gross amount thereof shall be returned, entered upon its record and the treasurer charged therewith. The treasurer shall give notice by publication for twenty days in two newspapers of opposite politics published in said city, that said tickets are in his hands for collection stating the penalty for nonpayment thereof and the time and place when the same may be paid; provided, however, that the taxpayers shall have the right to anticipate the payment of the whole or any part of the taxes assessed against them.

The one-half ticket designated "first" may be paid to the treasurer of the city any time before the first day of November next succeeding said levy; the one-half ticket designated "second" may be paid to the treasurer of the city at any time before the first day of May next succeeding said levy. To all the half tickets designated "first" remaining unpaid in the treasurer's hands on the said first day of November succeeding said levy, a penalty of ten percent shall be added and collected from the taxpayers. To all half tickets designated "second" remaining unpaid in the treasurer's hands on the first day of May succeeding said levy a penalty of ten percent shall be added as a penalty and shall be collectible from the taxpayers. On said first day of November succeeding said levy all such half tickets designated "first" and on said first day of May succeeding such levy all such half tickets designated "second" remaining unpaid in the treasurer's hands shall be taken up by the council and settlement had with said treasurer on said days respectively, or on the next succeeding days, respectively, if said days shall fall upon Sunday, and thereupon the council shall place said tickets in the hands of the city collector for collection and shall take his receipt therefor; provided, however, that the council shall have the power any year, by resolution, to extend the time within which the tickets may remain in the treasurer's hands and be paid to him without adding the penalty, for a period named therein not exceeding, however, a total of fifteen days.

The city collector shall have the power to collect said tickets so placed in his hands, together with the penalties thereon herein provided to be added thereto, and the compensation of such city collector for making such collection of the taxes aforesaid shall be fixed by the council.

The city collector shall be charged with the gross amount of said tax tickets so delivered to him for collection, including the penalties accrued thereon so delivered, and no deduction therefrom shall be allowed, unless on or before the first day of August of each year he makes out and returns to the council a delinquent list of taxes uncollected for such year, with his oath attached hereto, stating that such list is correct and just and that he has received no part of the taxes mentioned therein, and that he has used due diligence to find property liable to distress for taxes, has found none, and that he could not collect the same.

Neither the treasurer nor the city collector shall take or collect anything but money for payment of taxes.

**Editor's note—**Charter § 52 is preempted to general law by W. Va. Code § 8-13-1. *See* W. Va. Code § 11A-1-1 et seq.

**Sec. 53. Powers of collector.**

The city collector shall have the power to collect the city taxes placed in his hands except as otherwise provided in this act [this Charter], and he shall also have power to collect the city claims which may be placed in his hands by the council for collection, except that fines imposed by the municipal judge shall not be collected by him.

**Sec. 54. Distress for collection of taxes.**

All goods and chattels belonging to a person, firm, corporation or estate, assessed with any city taxes, whether the same be a capitation tax or a tax upon real estate or personal property or an assessment for paving or other improvements, shall be liable for said tax, and may be distrained therefor in whosoever's possession they may be found, and the city collector shall have the same power to collect said tax or assessment from any person owing a debt to or having in his possession any estate belonging to a person assessed with any tax or assessment of any kind that the sheriff has to collect state taxes in such cases. The city collector may distrain and sell for all city taxes and assessments and in all respects have the same power to enforce the collection thereof as the sheriff has to enforce the collection of state taxes.

**Editor's note—**The provisions of Charter § 54 are obsolete insofar as they relate to the capitation tax. As to other taxes, Charter § 54 appears preempted to general law by W. Va. Code § 8-13-1. *See* W. Va. Code § 11A-1-1 et seq.

**Sec. 55. Lien on real estate for taxes—Established; enforcement by suit in court of record; priority of lien.**

There shall be a lien upon all real estate within said city for the city taxes assessed thereon, including such penalties added thereto for nonpayment thereof as are prescribed by this act [this Charter], from the first day of January of the year in which said taxes are assessed. Said liens may be enforced by appropriate suit in any court of record in Kanawha County; provided, such suit be instituted within five years from the time the said liens attached as herein provided, and such suit may either be instituted by and in the name of the City of Charleston as plaintiff, or said city may intervene by petition in any suit pending to sell or enforce liens against any real estate which is subject to such lien for said taxes. The liens herein created shall have priority over all other liens except those for taxes due the state.

**Editor's note—**The provisions of Charter § 55 are preempted to general law by W. Va. Code § 8-13-1. *See also* W. Va. Code § 11A-1-1 et seq.

**Sec. 56. Same—Enforcement by tax sale.**

Said liens for city taxes and attendant penalties may also be enforced by certifying the same to the clerk of the county court of Kanawha County for certification to the state auditor, and the same may be certified down by said auditor, and sold for taxes, interest, penalties and commissions thereon, in the same manner, at the same time, and by the same officer as real estate is sold for taxes, interest, damages, cost and commission due the state thereon, which officer shall account therefor on settlement with the city and pay over the same to the treasurer of the city.

**Editor's note—**The provisions of Charter § 56 are preempted to general law by W. Va. Code § 8-13-1. *See* W. Va. Code § 11A-1-1 et seq.

**Sec. 57. Limitation on authority of county to tax persons and property within city for streets, education or poor outside city limits; control of streets and schools within city; joint ownership of bridges.**

No taxes or levies shall be assessed upon or collected from the taxable persons or property within the corporate limits of said city, for the construction, improvement or keeping in repair of roads, or the building, leasing or repairing of schoolhouses, or the purchase of lands for the same, or for the support of schools, or for the support of the poor of Kanawha County, outside of said corporate limits, for any year in which it shall appear that said city shall at its own expense provide for its own poor and keep its own roads, streets, sewers and bridges in good order. And neither the county court of Kanawha County nor the authorities of the district in which said city is situated, shall have or exercise jurisdiction within the corporate limits with relation to the roads, streets, alleys, bridges, wharves, docks, ferries, schools or schoolhouses, but the same shall be and remain under the exclusive jurisdic-

tion and control of the municipal authorities of said city, except that the board of education in the independent school district of the City of Charleston shall have jurisdiction, supervision and control of the schools and schoolhouses in said district; and said city shall be liable only for the construction, improvement, repair and good order of the roads, streets, sewers, alleys, wharves and bridges in its corporate limits, except that the County of Kanawha may become a joint owner and controller with the City of Charleston in a bridge or bridges across Kanawha River.

**Editor's note—**Insofar as Charter § 57 relates to roads, it is superseded by W. Va. Code § 17-10-1 et seq.

### Sec. 58. Depositories.

It shall be the duty of the treasurer of the city to keep all funds of the city in some bank or banks within said city, which shall pay interest on such deposits and which shall pay interest on the average daily balance of such funds in all accounts of the percent [percentage] equal to that paid by state depositors on all funds of the State of West Virginia and in the same manner and at the same time. If no bank within the city is willing at any time to receive deposits of the treasurer and to pay such interest thereon, the treasurer shall report this fact to the council, who shall thereupon designate a bank or banks in which he shall deposit said funds for the time being and until some bank in said city will receive such deposits on such terms. Before receiving any such deposits such bank or banks shall give bond in such penalty as the council shall prescribe, and with securities to be approved by said council, conditioned for the prompt payment, whenever lawfully required, of all the city moneys or parts thereof which may be deposited with them, which bond shall be renewed at such times as the council may require.

**Editor's note—**Charter § 58 is superseded by W. Va. Code § 18-13-22a et seq. *See* W. Va. Code § 8-1-6.

**State law reference—**Investment of municipal funds, W. Va. Code §§ 8-13-22a, 12-6-1 et seq.

### Sec. 59. Bonds—Authority to issue; purposes; interest; limit; taxation to pay interest and principal.

The City of Charleston is hereby authorized to issue and sell bonds of said city, for the purposes of buying and building bridges, electric light plants, waterworks, gas lines and fields, and other public utilities; and for the purpose of acquiring and providing land for public parks, public streets, avenues and alleys, airports and other public grounds, and acquiring or assisting in acquiring property to be donated, dedicated or conveyed to, or otherwise vested in, the State of West Virginia, as a site for a state capitol and other public buildings, which donation, dedication and conveyance are hereby authorized to be made, and also to provide ground for and erect an incinerator plant or garbage crematory, or other plant or means for the disposal of garbage and refuse; and such bonds shall be sold for not less than par, and shall be payable in a period not to exceed thirty-four years, and shall bear interest, not to exceed six per centum per annum; and in the issuance and sale of said bonds the city shall be governed by all the restrictions of the Constitution of this state and the statutes of this state, with respect to the issuance and sale of other bonds; provided, that said city shall not, by the sale or issue of bonds for the purposes above mentioned, cause the aggregate of its indebtedness, of every kind whatever, to exceed five per centum of the value of the taxable property therein, but may for the above purposes issue bonds to the maximum limit of said five percent; nor shall said city make such issue and sale of bonds without, at the same time, providing for the collection of a direct annual tax sufficient to pay annually the interest on the same, and a sinking fund to pay the principal within the time for which said bonds shall be issued.

**Editor's note—**Charter § 59 appears obsolete in light of W. Va. Code § 13-1-1 et seq.

### Sec. 59-a. Same—For improvement of streets.

The City of Charleston is hereby authorized to issue and sell bonds of said city, for the purpose of paying the city's part of the cost of grading, curbing, paving, sewering or otherwise improving the avenues, streets, roads and alleys of said city, and for the purpose of providing funds to cover all or any part of the cost of grading, curbing, paving or sewering that may be assessed against abutting property owners in the manner provided for by law; and said city is hereby given full power to

employ the proceeds of such bonds in the purchase of paving certificates or other permanent improvement certificates issued under the provisions of the Charter and made liens or assessments against real estate in said city, at not to exceed their par value, and may hold and collect or otherwise dispose of the same; provided, that said city shall not by the sale or issuance of bonds for the purposes above mentioned, cause the aggregate of its indebtedness, of every kind whatever, to exceed five per centum of the value of the taxable property therein.

The proceeds of any bond issue, authorized under this section, shall be set aside as a separate fund, and all special assessments covering improvements, the cost whereof has been advanced out of this fund, shall be paid into and become a part of said special fund and be used for the same purpose and in the same manner as the proceeds of said original fund.

This fund shall continue to be used for the purposes mentioned herein, until such time as the city's part of the cost of grading, curbing, paving, sewering or otherwise improving the avenues, streets, roads or alleys of the city equals the original proceeds of the bond issues authorized for the purposes mentioned herein. The issuance and sale of bonds, authorized by this section, shall be governed by all of the restrictions of the constitution of this state and statutes of this state with respect to the issuance and sale of other bonds of said city. No issuance and sale of bonds, under this section, shall be made, unless at the same time provision is made for the collection of a direct annual tax, sufficient to pay the annual interest on the same and create a sinking fund to pay the principal within the time for which said bonds shall be issued. The direct annual tax, provided for in this section, shall be set aside as a separate fund, to be known as an interest and sinking fund. All interest collected on special assessments authorized or referred to in this section shall be placed in and become a part of said special interest and sinking fund, until the principal and interest of said bonds are paid.

Whenever, in the opinion of the council, the special improvement fund created by this section, or any part thereof, is no longer needed the council may order direct that said special assessments, when collected, be applied to retiring such of the bonds provided for herein, as may be outstanding at that time.

**Editor's note—**Charter § 59-a is preempted to general law by W. Va. Code §§ 8-13-1, 8-16-1 et seq., 8-17-1 et seq. and 8-18-1 et seq. *See* W. Va. Code § 8-1-6.

### Sec. 60. Same—In anticipation of special assessments for street improvements or sewer construction; limitation on indebtedness.

The City of Charleston is hereby authorized to issue and sell the bonds of the said city for the purpose of providing for grading, paving and otherwise improving the streets and alleys of said city or constructing sewers for the proper drainage of same in anticipation of special assessments to be made upon the property abutting upon the streets and alleys so improved, or property so sewered or drained, and such bonds may be in such an amount as shall be sufficient to pay the entire estimated cost and expense of said improvements, for which such special assessments are levied; provided, that the price for which said bonds are sold shall not be below par value thereof; said bonds may be payable in groups of one-fifth of the whole issue payable in two, four, six, eight and ten years respectively, and all payable in not to exceed ten years from the date of issue thereof, and shall bear interest at a rate not exceeding six per centum per annum, payable annually; and in the issuance and sale of said bonds, the city shall be governed by all the restrictions and limitations of the constitution of this state and the restrictions and limitations of the statutes of this state with respect to the issuance and sale of other bonds, and the assessments as paid and provided for in this act [this Charter] shall be applied to the liquidation of said bonds and the interest thereon; and if by reason of the penalties collected with the delinquent assessments, there be any balance after the payment of said bonds and all accrued interest and costs, the said balance shall be turned into the city treasury to the credit of the interest and sinking fund of the city.

Provided, that said city shall not by the sale or issue of such bonds cause the aggregate of its debt

of every kind whatsoever to exceed five per centum of the value of the taxable property therein; and provided, further, that nothing herein contained shall be construed as authorizing said city to become indebted in any other manner or for any other purpose, to an amount including the existing indebtedness in the aggregate exceeding two and one-half per centum on the value of the taxable property therein (as provided in chapter 51 of the Acts of 1905) except for the purpose of grading, paving, sewering and otherwise improving the streets and alleys of said city and as provided for in this act [this Charter], and except for the purpose of buying or building bridges, electric light plants, waterworks, gas lines and fields and other public utilities; nor shall they make such issue and sale of bonds for grading, paving, sewering and improving the streets and alleys of said city without, at the same time, providing for the collection of a direct annual tax sufficient to pay annually the interest on such debt and principal thereof within a period not exceeding ten years.

All assessments, interest and penalties thereon, collected from the abutting property owners, on account of grading, paving, sewering or otherwise improving the streets and alleys of such city under the provisions of this act [this Charter], shall annually be applied to the annual tax required to pay the interest on such debt and such principal within and not exceeding said period of ten years and in the event that the assessments, interest and penalties so called do not amount to a sum sufficient to pay annually the interest on such debt, said city shall collect so much of said levy as will pay annually the interest on such debt, and the principal thereof within and not exceeding ten years.

**Editor's note—**The provisions of Charter § 60 are preempted to general law by W. Va. Code §§ 8-13-1, 8-16-1 et seq., 8-17-1 et seq. and 8-18-1 et seq. *See* W. Va. Code § 8-1-6.

### Sec. 61. Contracts for improvement of streets; assessment of cost.

Whenever the council of said city shall deem it expedient to cause any street or alley in said city or portion thereof to be paved, curbed or macadamized, or otherwise improved in a permanent manner, it shall order the work done in the following manner and upon the following terms: The contract for such paving or other improvements shall, after due advertisement in which the council shall reserve the right to reject any and all bids, be let to the lowest reasonable bidder. The contractor shall look only to the city for the payment of the work, and in no sense to the abutting landowners, except as hereinafter provided. The total cost of grading and paving or otherwise improving any such street or alley (with the exception that where a street is occupied by the street car tracks or other railways, such cost of opening or otherwise improving the distance between the rails and two additional feet outside of each rail, shall be borne and paid entirely by the streetcar or other railway company operating such street or other railway unless otherwise provided by the franchise of such streetcar or other railway company granted previous to the passage of this act [this Charter]), shall be borne by the owners of the land abutting upon said street, alley or portion thereof, according to the following plan, that is to say: Payment is to be made by all landowners on either side of such portion of a street or block so paved or improved in such portion of the total cost, less the portion, if any, chargeable to such street or other railway company, as the frontage in feet of his land so abutting bears to the total frontage of all lands so abutting on such street, alley or portion thereof so paved or improved as aforesaid.

When the paving of any street, or alley, or portion thereof shall have been let to contract and the work done as hereinbefore provided, it shall be the duty of the engineer of said city to cause the several frontages abutting thereon to be measured, and to calculate the assessment upon each and every landowner so abutting and to certify the same to the council, showing the proper amount to be determined, as provided in the foregoing plan. It shall be the duty of the council to examine and compare such assessment, amounts and names so certified to it, and thereupon give notice by publication once a week for two successive weeks in a newspaper of general circulation published in said city, that an assessment under this act [this Charter] is about to be laid against the abutting property for paving or improvements done on said streets, or alleys, describing the

location of such paving or improvements, and any owner or owners thereof shall have the right to appear before said council, within two weeks from the first publication thereof, and move to correct an apportionment or assessment excessive or improperly made as charged, which correction said council shall have the power to make according to the intent of this act [this Charter], and if found to be correct or when corrected by the council aforesaid, it shall enter the same, together with a description of the lots of land as to location, frontage, depth and ownership, so far as the same may be ascertained, upon its records and to enter in its records that such owners and lots be assessed and chargeable with the amount so ascertained to be borne by them respectively; and when so approved, certified and entered on record, the same shall be and constitute an assessment against said owners and lots for such respective amounts. And it shall be the duty of the council to immediately certify such assessment to the treasurer for collection as herein provided, and a copy of said order shall be certified by the city clerk to the clerk of the county court of Kanawha County, who shall record and index the same in the proper trust deed book in the name of each person against whose property assessments appear therein. The amount so assessed against said abutting landowners shall be paid in ten payments, as follows: That is to say, one-tenth of said amount, together with interest on the whole assessment, shall be paid into the city treasury, before the first day of May next after said work is completed and said assessments have been certified to the county clerk. And a like one-tenth, together with interest for one year upon the whole amount remaining unpaid on or before the first day of May in each succeeding year thereafter until all has been paid, and each of said installments of one-tenth beginning with the first, shall bear interest on the amount of said installments as six per centum per annum from the date of record of same in the county clerk's office until paid; provided, however, that any abutting owner so liable for any portion of the cost of such paving shall have the right at any time after the same is certified as aforesaid to the treasurer for collection to anticipate the payment of any or all of said assessments and shall be allowed to pay the face of said assessments with interest at six percent per annum only from the time of recordation to the time of payment. To each of such installments of assessments remaining unpaid in the treasurer's hands on the day herein specified for the payment thereof, a penalty of ten per centum on the principal sum shall be added and any assessment so remaining unpaid in the treasurer's hands on such date, shall be taken up on such settlements had with the treasurer on such dates, and thereupon place such assessments with the penalty added thereto, in the hands of the city collector to be treated and considered, and payment thereof enforced in all respects as hereinbefore provided for the collection of taxes due the city, and they shall be a lien upon the property liable therefor the same as for taxes, which lien may be enforced in the same manner as provided for taxes. The lien hereinbefore provided for shall have priority over all other liens except those for taxes due the state and shall be on a parity with taxes and assessments due the city, and shall be effective as of the date that the assessment is laid by the council. Whenever all such assessments, for paving, sewerage, macadamizing or other improvements shall be paid in full to the treasurer, he shall deliver to the party paying the same a release of the lien therefor which may be recorded in the office of the clerk of the county court of Kanawha County as other releases of liens, and whenever any such assessments shall not be in the hands of the treasurer for collection, but the same shall be shown to the satisfaction of the city auditor or other official performing the duties of auditor, to have been paid in full or any officer entitled to receive the same, such auditor or the mayor may in like manner execute such release.

**Editor's note—**The provisions of Charter § 61 are preempted to general law by W. Va. Code §§ 8-13-1, 8-16-1 et seq., 8-17-1 et seq. and 8-18-1 et seq. *See* W. Va. Code § 8-1-6.

### Sec. 62. Sewerage assessments against owners of abutting property; requiring connection with sewer; including cost of drains in cost of street improvement.

Whenever the council shall order the construction of any public sewer in said city, the owners of the property abutting upon any street in which such sewer shall be constructed, shall be charged with and liable for sewerage assessments as fol-

lows: When said sewer is completed the engineer of said city shall report to the council in writing the total cost of such sewer, and a description of the lots and lands as to the location, frontage, depth and ownership liable for such sewer assessment, so far as the same may be ascertained, together with the amount chargeable against each lot and owner, calculated in the following manner: The total cost of constructing and laying the sewer shall be borne by the owners of the land abutting upon the streets, alleys, right-of-ways or easements or portions thereof, in which the sewer is laid, according to the following plan: Payment is to be made by each landowner on either side of such portion of a street, alley, right-of-way or easement in which such sewer is laid, in such proportion as such frontage of his land upon said street, alley, right-of-way or easement bears to the total frontage of all lands so abutting on such street, alley, right-of-way or easement; provided, that the charge laid against any owner of property shall not exceed three dollars per linear foot of frontage on each side of the portion of such street, alley, right-of-way or easement in which any such sewer is laid. In case of a corner lot, frontage is to be measured along the longest dimension thereof abutting on such street, alley, right-of-way or easement in which such sewer is laid. Any lot having a depth of two hundred feet or more and fronting on two streets, alleys, rights-of-way or easements, one in the front and one in the rear of said lot shall be assessed on both of said streets, alleys, rights-of-way or easements, if a sewer is constructed in both such streets, alleys, rights-of-way or easements. Where a corner lot has been assessed on the end it shall not be assessed on the side, and where it has been assessed on the side, it shall not be assessed on the end. Thereupon said council shall give like notice by publication as is required in case of street paving assessments, and the same rights shall exist as to the persons and property affected and the same duty as to corrections by said council as are prescribed with reference to paving, which report shall in like manner be examined by the council, and if found to be correct, or corrected as aforesaid, and such estimated assessments to be a fair and equitable apportionment of the cost of such sewer upon the basis hereinbefore described, it shall enter an order upon its records, setting forth such location, depth, ownership and said amount of such sewer assessments, against each, respectively, calculated as aforesaid, and the entry of such order shall constitute and be an assessment for such proportion and amount so fixed therein against such respective owners and lots, and if after such advertisements, notice and hearing, said council shall find that such apportionment at such rate is unjust or inequitable, and contrary to the intent of this act [this Charter], it shall ascertain, fix and assess the cost thereof among and upon the abutting owners respectively, justly and equitably and according to the intent hereof, and in like manner, assess and enter the amount so fixed respectively upon its records, and the council shall, in either event, thereupon certify the same to the treasurer for collection, and certify a copy of such order to the clerk of the county court of Kanawha County, who shall record the same in the proper trust deed book, and index the same in the name of each owner of any such lot so charged with such assessment, and such assessment so made shall constitute and be a lien upon said lots respectively, which shall have priority over all other liens, except those for taxes due the state, and shall be on a parity with other taxes and assessments due the city. Said amounts so assessed against the said several landowners shall be paid by the parties liable therefor to the said treasurer at all times, in the manner and with the attendant penalties for failure to pay promptly at the time prescribed in all respects as hereinbefore provided in the case of assessments for paving streets and alleys in a permanent manner, and the parties liable therefor shall, in the same manner, and to the same extent, have the right and be entitled to anticipate any or all of such installments thereon as in such case provided. The owners of, or the tenants, occupants or agents in control of any lot abutting on or near or adjacent to any street, avenue, alley, right-of-way or easement in said city, in which a public sewer is or may hereafter be laid and constructed, upon which lot any business or residence building is or may hereafter be erected, or upon which any water stands not connected with a public sewer, may be required and compelled to connect any such building or lot with such sewer. Notice to so connect may be given to the owner, lessee, or

occupant of such building. Each day's failure to comply with such notice and connect with such sewer by such owner or owners, ten days after such notice is given, shall be a misdemeanor and a separate and new offense under this section, and every such offense shall be punishable by fine of not less than five nor more than twenty-five dollars. The expense incurred by any tenant, occupant, or agent in complying with the order of said council to make such sewer connection may be deducted out of the accruing rents as provided for in section forty-seven relating to the abatement of nuisances. Jurisdiction to hear, try, determine and sentence for violation of this section is vested in the municipal court of such city.

In the paving, curbing, macadamizing or otherwise improving streets and alleys and providing for the assessment of the cost thereof under section 61 or section 88 of the Charter of the City of Charleston there may be included in any such assessment the cost of constructing the necessary drains for the disposal of surface water.

**Editor's note—**The provisions of Charter § 62 are preempted to general law by W. Va. Code §§ 8-13-1, 8-16-1 et seq., 8-17-1 et seq. and 8-18-1 et seq. *See* W. Va. Code § 8-1-6.

### Sec. 62-a. Construction of sewer systems or common, lateral, branch, trunk or combined sewers.

The council is authorized and empowered to order and cause to be constructed, in said city, or part within and part outside of the limits of said city, public, common, lateral, branch, trunk and combined sewers or public sewer systems, or both, by contract or directly by the city, for the benefit of said city or any part thereof, and to purchase lands or easements therein or to condemn lands or easements therein in the manner provided by law, for such sewers or sewer systems, and when the council shall order and complete the construction of any such sewer or sewer system or any part thereof in said city, the owners of the property abutting on such sewer or abutting upon an avenue, street, alley, right-of-way or easement in which such sewer shall be constructed, or abutting on any avenue, street, alley, right-of-way, easement in which any common sewer, part of a sewer system, is constructed and laid, may be charged with all or any part of the cost thereof, including the cost of such sewer or sewer system at and across intersections at avenues, streets, roads and alleys adjacent thereto. If said work is let to contract, the provisions of the Charter of the City of Charleston relating to street paving contracts shall apply.

A sewer system shall be deemed to include all the common sewers, whether they be lateral, branch, trunk or combined sewers, which serve to drain a definite drainage area as specified in the order of the council directing the work to be done.

A common sewer shall be deemed to be a sewer in which all abutters have equal rights of entrance and use.

A lateral sewer shall be deemed to be a sewer which does not receive the sewage from any other common sewer.

A branch sewer shall be deemed to be a sewer into which the sewage from two or more lateral sewers is discharged, including storm and surface water sewers.

A trunk sewer shall be deemed to be a sewer into which the sewage from two or more branch sewers is discharged.

A combined sewer shall be deemed to be a sewer intended to receive domestic sewage and industrial wastes.

When said sewer or sewer system is completed the engineer of said city shall report to the council in writing the total cost of such sewer or sewer system, and a description of the lots and lands as to the location, frontage, depth and ownership liable for such sewer assessment, so far as the same may be ascertained, together with the amount chargeable against each lot and owner, calculated in the following manner: The total cost of constructing and laying the sewer or sewer system, including the portions thereof laid in the intersections of streets and alleys, shall be borne by the owners of the land abutting upon the streets, avenues, alleys, rights-of-way or easements or portions thereof in which the sewer or some part of the sewer system, is constructed and laid; payment is to be made by each landowner on either side of such portion of a street, alley, right-of-way or easement in which a common

sewer is laid, in the proportion that the frontage of his land upon such portion of said street, alley, right-of-way or easement in which such sewer or sewer system is laid bears to the total frontage of all lands so abutting on such street, alley, right-of-way or easement; in which the sewer or some part of the sewer system is laid; provided, that the charge laid against any owner of property shall not exceed three dollars per linear foot of frontage on each side of such street, alley, right-of-way or easement in which any such sewer or part of a sewer system is laid. In case of a corner lot, frontage is to be measured along the longest dimension thereof abutting on such street, alley, right-of-way or easement in which such sewer is laid, but if sewered on both sides then such a corner lot is to be charged only with the side first sewered. Any lot having a depth of two hundred feet or more and fronting on two streets, alleys, rights-of-way or easements, one in the front and one in the rear of said lot shall be assessed on both of said streets, alleys, rights-of-way, or easements, if a sewer is constructed on both such streets, alleys, rights-of-way, or easements. When a corner lot has been assessed on either or both ends, it shall not be assessed on the side, and where it has been assessed on the side, it shall not be assessed on the end.

In the case of corner lots where the cost of sewering along one dimension is not assessed against the owner thereof, and in case of lots less than two hundred feet deep abutting at both ends on a street, alley, right-of-way or easement in which a sewer is laid, the cost of sewering along the dimension or end not assessed against the property owner shall in every case be borne by the City of Charleston.

Thereupon said council shall give like notice by publication as is required in case of street paving assessments, and the same rights shall exist as to the persons and property affected and the same duty as to corrections by said council as are prescribed with reference to paving. The report of the city engineer shall in like manner be examined by the council, and if found to be correct or corrected as aforesaid, and such estimated assessments to be a fair and equitable apportionment of the cost of such sewer or sewer system upon the basis hereinbefore described, it shall enter an order upon its records, setting forth such location, depth, ownership and said amount of such sewer assessments, against each respectively, calculated as aforesaid, and the entry of such order shall constitute and be an assessment for such proportion and amount so fixed therein against such respective owners and lots; and, if after such advertisement, notice and hearing, said council shall find that such apportionment at such rate is unjust or inequitable, and contrary to the intent of this act [this Charter], it shall ascertain, fix and assess the cost thereof among and upon the abutting owners respectively, justly and equitably and according to the intent hereof, and in like manner assess and enter the amount so fixed respectively upon its records; and, the council shall, in either event, thereupon certify the same to the treasurer for collection and certify a copy of such order to the clerk of the county court of Kanawha County, who shall record the same in the proper trust deed book, and index the same in the name of each owner of any such lot so charged with such assessment, and such assessment so made shall constitute and be a lien upon said lots respectively, which shall have priority over all other liens, except those for taxes due the state, and shall be on a parity with other taxes and assessments due the city. Said amounts so assessed against the said several landowners shall be paid by the parties liable therefor to the said treasurer at all times, in the manner and with the attendant penalties for failure to pay promptly at the time prescribed in all respects as hereinbefore provided in the case of assessments for paving streets and alleys in a permanent manner, and the parties liable therefor shall, in the same manner, and to the same extent, have the right and be entitled to anticipate any or all of such installments thereon as in such case provided. The owners of, or the tenants, occupants or agents in control of any lot abutting on or near or adjacent to any street, avenue, alley, right-of-way or easement in said city, in which a public sewer is or may hereafter be laid and constructed, upon which lot any business or resident building is or may hereafter be erected, or upon which any water stands not connected with any public sewer, may be required and compelled to connect any such building or lot with such sewer. Notice to so connect may be given to the owner, lessee, or

occupant of such building. Each day's failure to comply with such notice and connect with such sewer by such owner or owners, ten days after such notice is given, shall be a misdemeanor and a separate and new offense under this section, and every such offense shall be punishable by fine of not less than five nor more than twenty-five dollars. The expense incurred by any tenant, occupant, or agent in complying with the order of said council to make such sewer connection may be deducted out of the accruing rents as provided for in section 47 relating to the abatement of nuisances.

**Editor's note—**The provisions of Charter § 62-a are preempted to general law by W. Va. Code §§ 8-13-1, 8-16-1 et seq., 8-17-1 et seq. and 8-18-1 et seq. *See* W. Va. Code § 8-1-6.

### Sec. 63. Resolution declaring necessity for street improvement—Required; procedure for adoption.

Whenever it is deemed expedient by the council of said city to provide for the grading, paving, sewering, macadamizing or otherwise improving any street or alley therein to be paid for in whole or in part by special assessment said council shall declare by resolution, by aye and no vote, the necessity of such improvement. At the time of the passage of said resolution the said council shall have on file in the office of the city engineer, plans, specifications, estimates and profiles of the proposed improvements, showing the proposed grade of the street and improvement, after completion, with reference to the property abutting thereon, which plans, specifications, estimates and profiles shall be open for the inspection of all persons interested. Said resolution shall determine the general nature of the improvement, what shall be the grade of the street, alley or other public place to be improved, as well as the grade or elevation of the curb, and said council shall approve the plans, specifications, estimates and profiles for the proposed improvement. The council shall also determine in said resolution the method of paying for the work contemplated in said plans and specifications whether by an appropriation from funds in the treasury unappropriated, or whether or not bonds shall be issued in anticipation of the collection of special assessments, to be made against the abutting property owners as provided for in section 61 of this act [this Charter]. Said resolution shall further show the approximate estimated cost of said proposed improvement per front foot of the property abutting thereon, and shall fix a date, at some regular or special meeting of the council, on which the owners of property to be assessed for such improvement may appear before council and protest against the same or be otherwise heard in reference thereto. Assessments shall be payable in ten installments as provided for in said section 61. The resolution herein provided for, declaring the necessity for said improvement, shall be published at least once a week for two successive weeks after its adoption, in a newspaper of general circulation published in the city, and an affidavit of the publisher showing publication for such time, together with a copy of said notice attached, shall be filed with the city clerk of the said city and spread upon the record of the minutes of the next meeting of the council. Said resolution shall be in effect from and after the first publication thereof as herein provided for.

**Editor's note—**The provisions of Charter § 63 are preempted to general law by W. Va. Code §§ 8-13-1, 8-16-1 et seq., 8-17-1 et seq. and 8-18-1 et seq. *See* W. Va. Code § 8-1-6.

### Sec. 64. Same—Service on property owners of notice of passage.

A notice of the passage of the resolution required in the last preceding section, embodying a copy of said resolution, shall be served upon the owner of each piece of property to be assessed, said service to be made in the manner provided by this act [this Charter] for serving notices herein required or in other lawful manner; provided, that if any of the owners or persons be not residents of the City of Charleston, or if it appears by the return in any case, that the owner cannot be found, then a notice of the passage of said resolution shall be published in some newspaper of general circulation in said city once a week for two successive weeks, which notice shall be deemed completed on the day of the second publication thereof, and such notice whether by service or publication, shall be completed at least three days before the date fixed for hearing thereon, as aforesaid, and before the introduction of any ordinance providing for said improvement, as hereinafter provided for; and the return of the officer, or sworn return of any other person,

serving such notice or a certified copy of said return, or when published, the certificate of the publisher of said newspaper, shall be prima facie evidence of the service of the notice as herein required. Notice upon infants may be served on their guardian, and upon insane persons by service upon their committee. It shall be the duty of the city manager to cause such notice to be served upon said property owners as aforesaid.

**Editor's note—**The provisions of Charter § 64 are preempted to general law by W. Va. Code §§ 8-13-1, 8-16-1 et seq., 8-17-1 et seq. and 8-18-1 et seq. *See* W. Va. Code § 8-1-6.

### Sec. 65. City executive committees of political parties.

The city executive committees of the two political parties casting the highest vote at the last preceding general election, shall each consist of one person from each of the wards of the city to be selected in the same manner and at the same time that candidates for municipal offices are selected. Vacancies in a committee shall be filled and members to represent newly created wards shall be elected by the committee to serve until the next general city election.

**State law reference—**Municipal executive committees, W. Va. Code § 8-5-14.

### Sec. 66. Bonds to pay city's cost of improvement of streets, etc.

It shall be lawful for said City of Charleston to issue and sell its bonds as provided in this act [this Charter] for the sale of other bonds, to pay the city's part of the cost of said improvements as required by this act [this Charter], and it may levy taxes in addition to all other taxes authorized by law, to pay such bonds and interest thereon, provided that the total indebtedness of the city for all purposes shall not exceed five per centum of the total value of all taxable property therein.

**Editor's note—**The provisions of Charter § 66 are deleted as preempted to general law by W. Va. Code §§ 8-13-1, 8-16-1 et seq., 8-17-1 et seq. and 8-18-1 et seq. *See* W. Va. Code § 8-1-6.

### Sec. 67. Hearing of property owners affected by improvements; ordinance concerning improvement.

After the expiration of not less than ten days from the time of the giving and publication of the notices as provided for in section 64, the council shall sit at the time and place fixed for the purpose of hearing all property owners to be affected, with reference to such proposed improvements, and shall hear and consider any protests or objections thereto; and the council shall thereupon, or as soon as may be, determine whether it will proceed with the proposed improvement or not, and if it decides to proceed therewith an ordinance for the purpose shall be passed. Said ordinance shall set forth the streets and alleys upon which the abutting property is to be assessed for the improvement, and shall contain a statement of the general nature of the improvement, and the character of the materials which may be bid upon therefor, of the mode of payments therefor; a reference to the resolution therefor passed for said improvement, giving the date of its passage and a statement of the intention of the council to proceed therewith in accordance with said resolution and in accordance with the plans, specifications, estimates and profiles provided for said improvement. In setting forth the lots and lands abutting upon the improvement it shall be sufficient to describe them as the lots and lands *abutting upon the improvement it shall be sufficient to describe them as the lots and lands* [italics supplied by the editors, to indicate probably unintended repetition] bounding and abutting upon said improvements between and including the termini of said improvements, or by the description by which they are described on the land books of the County of Kanawha, and this rule of description shall apply in all proceedings in which lots or lands are to be charged with a special assessment.

**Editor's note—**The provisions of Charter § 67 are preempted to general law by W. Va. Code §§ 8-13-1, 8-16-1 et seq., 8-17-1 et seq. and 8-18-1 et seq. *See* W. Va. Code § 8-1-6.

### Sec. 68. Special assessments when several kinds of materials have been named in ordinance providing for improvement.

In any case in which special assessments have been made, or shall hereafter be made, upon property for the construction of any improvement authorized by this act [this Charter] or previous statutes and several kinds of materials have been named in the ordinance or ordinances providing for the same, and on which bids have been re-

ceived for the construction of said improvements with any, either or all of said material, said assessments shall be valid and binding assessments on the property so assessed. In the case of the construction of sewers required under the provisions of this act [this Charter], notice of the passage of said resolution therefor, as provided for in section 64 of this act [this Charter], shall be given in the manner provided for in said section of this act [this Charter].

**Editor's note—**The provisions of Charter § 68 are preempted to general law by W. Va. Code §§ 8-13-1, 8-16-1 et seq., 8-17-1 et seq. and 8-18-1 et seq. *See* W. Va. Code § 8-1-6.

### Sec. 69. Vote of council required for public improvement; petition by property owners.

No pavement, sewer or sewer system, or other public improvement the cost of all or a part of which is to be especially assessed against abutting property, or against the owners thereof, shall be made without the concurrence of two-thirds of all the members elected to council, unless the owners of a majority of the foot frontage of property to be so assessed, petition in writing therefor, in which event the said council shall have power upon the affirmative vote of a majority of all the members elected thereto to proceed with such improvement in the manner provided by law.

**Editor's note—**The provisions of Charter § 69 are preempted to general law by W. Va. Code §§ 8-13-1, 8-16-1 et seq., 8-17-1 et seq. and 8-18-1 et seq. *See* W. Va. Code § 8-1-6.

### Sec. 70. Assessment when public improvement passes through or by public property or property of institution.

When the whole or any portion of the improvement authorized by this act [this Charter] passes through or by a public wharf, market space, park, cemetery, structure for the fire department, waterworks, school building, infirmary, market house, work house, hospital, house of refuge, bridge, gas works, public prisons, courthouse, church or any other public structure or public grounds within said corporation, and belonging to said corporation, or to the county, state, or any church, association or eleemosynary institution, the council may authorize the proper proportion of the estimated cost and expense of the improvement to be certified to the clerk of the county court of Kanawha, and it shall be the duty of those persons having charge of the fiscal affairs of any such property or institution to make proper arrangements for the payment of such assessments when due and payable.

**Editor's note—**The provisions of Charter § 70 are preempted to general law by W. Va. Code §§ 8-13-1, 8-16-1 et seq., 8-17-1 et seq. and 8-18-1 et seq. *See* W. Va. Code § 8-1-6.

### Sec. 71. What cost of improvement shall include.

The cost of any improvement contemplated in this act [this Charter] and for which assessments may be made, shall include the cost and expense of the preliminary and other surveys, and of printing and publishing all notices required to be published, and serving the notices upon the property owners and the cost of construction and inspection.

**Editor's note—**The provisions of Charter § 71 are preempted to general law by W. Va. Code §§ 8-13-1, 8-16-1 et seq., 8-17-1 et seq. and 8-18-1 et seq. *See* W. Va. Code § 8-1-6.

### Sec. 72. Filing statement as prerequisite to action for damages arising out of improvement.

No person shall bring any action whatever in any court in this state for damages arising out of improvements or change of grade unless he shall have filed with the council at some time after the publication of the notice provided for in section 64, and before the time of the introduction of the ordinance providing for said improvement a statement of the damage which, in his opinion, he will sustain by reason of said improvement or the change of grade therefor, which statement shall be duly sworn to and be spread upon the minutes of said council.

**Editor's note—**The provisions of Charter § 72, while not directly relating to a special assessment (so that it is preempted to general law by W. Va. Code §§ 8-13-1, 8-16-1 et seq., 8-17-1 et seq. and 8-18-1 et seq.—*see* W. Va. Code § 8-1-6), reference a section that is so preempted and to the extent a claim is based upon negligence, this section is superseded by W. Va. Code § 8-12-20.

### Sec. 73. Liberal construction of proceedings with respect to improvements.

Proceedings with respect to improvements shall be liberally construed by the courts to secure a speedy completion of the work at reasonable cost,

and a speedy collection of the assessments after the time has elapsed for their payments and merely formal objection in such cases shall be disregarded.

**Editor's note—**The provisions of Charter § 73 are preempted to general law by W. Va. Code §§ 8-13-1, 8-16-1 et seq., 8-17-1 et seq. and 8-18-1 et seq. *See* W. Va. Code § 8-1-6.

### Sec. 74. Election and three-fifths vote required for issuance of bonds; regulations governing.

It is especially provided that no bonds shall be issued under the provisions of this act [this Charter] unless and until the question of issuing said bonds shall have first been submitted to a vote of the people of the city and shall have received three-fifths of all votes cast at said election for or against the same.

The council may provide by ordinance for an election every year, at which the question shall be submitted to the people, as to whether the city shall be authorized to issue bonds for the purpose and under the provisions of this act, to an amount not to exceed in the ensuing year the amount recommended by said ordinance for said ensuing year; but the ordinance providing for said election need not specify in detail the location of the improvements contemplated to be paid for during the ensuing year out of said aggregate issue authorized for said year, but before issuing any bonds the council shall pass separate ordinances for such street or alley to be improved, dealing with all the requirements set forth in section 67 of this act [this Charter], and notwithstanding the provisions of sections 2, 3 and 6 of chapter 47 of the Code [see now W. Va. Code § 8-16-9 et seq.], it shall be sufficient description for the purpose for which said election is held if the ordinance providing for said election shall recite that it authorized the council of said city to issue bonds for the purpose of grading, paving, sewering or otherwise improving the streets and alleys of said city, at such time as to the council shall seem fit during the ensuing year ending on the _____ day of _____, 19____, to an amount not exceeding in the aggregate during the said year the sum of _____ and when the council shall have been once authorized by a vote of the people to issue bonds for the purpose and in a sum not to exceed the amount set forth in the ordinance providing for the said election, no further election shall be necessary for the issuing of bonds during said ensuing year up to the amount stipulated in said ordinance providing for said election, but the council shall from time to time during said ensuing year, by ordinance authorize the issue of said bonds, in such sums and for the improvement of such streets or alleys as to it may seem best, providing the requirements of this act are complied with. The aggregate amount of bonds authorized by said annual election shall not be exceeded during said ensuing year, unless and except the same be authorized by special election held at a subsequent time in said year and duly called as provided for the calling of the annual bond election.

**Editor's note—**The provisions of Charter § 74 are obsolete in light of W. Va. Code § 13-1-1 et seq. and/or preempted to general law by W. Va. Code §§ 8-13-1, 8-16-1 et seq., 8-17-1 et seq. and 8-18-1 et seq. *See* W. Va. Code § 8-1-6.

### Sec. 75. Authority of council to lay special levies in years 1929 and 1930 for special purposes.

[Text deleted.]

**Editor's note—**The editor's note in the city's 1975 Code for Charter § 75 states as follows:

> The text of this section, being Acts 1929 (Munl. ch.), ch. 4, § 75, is omitted as executed and obsolete. It authorized special levies in the years 1929 and 1930 for the purposes of (1) construction of trunk and branch line sewers; (2) the acquisition of a ramp at the C. & O. Ry. passenger station on the south side of the Kanawha River; and (3) maintenance and care of a municipal cemetery within the city.

### Sec. 76. Power of council as to public buildings, hospitals, libraries, etc.

The council shall have the authority to erect, buy, sell and lease all buildings necessary for the use of the city government and to provide for and regulate the same, and to establish and maintain public hospitals, libraries and reading rooms, and to purchase books, papers and manuscripts therefor, and to receive donations, gifts or bequests for same in trust or otherwise.

**Editor's note—**The provisions of Charter § 76 are covered by W. Va. Code §§ 8-12-1, 8-12-5.

### Secs. 77—79. Fire department civil service.

[Text deleted.]

**Editor's note—**The editor's note in the city's 1975 Code for Charter §§ 77, 78 and 79 states as follows:

The text of these sections, being Acts 1929 (Munl. ch.), ch. 4, §§ 77, 78 and 79, is omitted as obsolete, having been superseded by the provisions of West Virginia Code, chapter 8, article 15, part IV (§ 8-15-11 et seq.), captioned "Civil Service for Paid Fire Departments."

### Sec. 80. Political activities by members of fire or police departments.

No member of the fire department or police department shall actively engage in any primary election, convention or election in which any officer in the city, county or state is to be nominated or elected, nor shall such member, directly or indirectly, give or offer to give, contribute or offer to contribute any money or thing of value or profit to any political committee or party organization to be expended in behalf of any political party, nor to any candidate or candidates for nomination for or election to any office in the city, county or state. The violation of any of the provisions of this section by any member of the fire department or police department shall be deemed misconduct in office. Any member of the fire department or police department guilty of misconduct, shall be dismissed from the service of the city by the head of his department or by council, upon charges preferred and proven by any citizen of said city.

**Editor's note—**Insofar as Charter § 80 relates to firefighters, it is inconsistent with W. Va. Code § 8-15-24. *See* W. Va. Code § 8-1-6.

**State law reference—**Political activity of members of paid police departments, W. Va. Code § 8-14-19.

### Sec. 81. Service of notice, summons, warrant, etc.

When any notice is required to be given, or any summons, warrant or other process is required to be served or otherwise executed, under the provisions of this act [this Charter], it shall be sufficient if such notice, summons, warrant, or other process be executed by an officer of the police department or other employee of said city in the same way or manner in which the laws of the state prescribe for executing summonses and subpoenas by state officers, unless otherwise provided by this act [this Charter].

### Sec. 82. Contested elections for council.

Whenever one or more members of the council shall be a candidate for reelection, it shall be the duty of the council to meet and appoint some person or persons, qualified to act in hearing contested election matters and cases. The place and stead of such disqualified member or members shall be filled in each case by a member or members of the same political party as the person or persons respectively, in whose place or places he or they are so appointed. Every person so appointed shall take an oath of office to faithfully and impartially perform the duties of said office. In all matters concerning such contests, such person or persons so appointed shall act in the place and stead of such member or members, so being candidates, and it shall be unlawful for any member of the council to act as such in hearing any contest in relation thereto, when such member is a candidate at such election; and anyone violating this section shall be deemed ineligible to the office for which he is a candidate.

**Editor's note—**The provisions of Charter § 82 are superseded by W. Va. Code §§ 8-5-17, 3-7-1 et seq. *See* W. Va. Code § 8-1-6.

### Sec. 83. Duties of city clerk as to municipal elections.

The city clerk, acting under the state laws insofar as they are not in conflict with this act [this Charter], shall perform such duties relating to all municipal elections held under the municipal authorities of said city as the clerks of the county and circuit courts of Kanawha County perform under state laws in relation to state, county and district elections in said county; and he shall likewise be the custodian of all ballots, tally sheets, etc., pertaining to all municipal elections.

### Sec. 84. Valid ordinances and regulations passed on or before May 1, 1915, not inconsistent with this Charter, to remain in effect until repealed.

All valid ordinances and regulations passed and adopted by the council, or by the board of affairs and council on or before the first day of May, 1915, and not inconsistent with this act [this Charter], shall be and remain in force unless and until repealed, and the council now [March 6,

1929] in office shall continue to exercise its powers as such until the officers elected in 1931 shall have been qualified.

**Editor's note—**The editor's note in the city's 1975 Code for Charter § 84 states as follows:

> The "board of affairs" herein referred to was the governing body of the city under a Charter enacted in 1907, which was superseded by a new Charter enacted in 1915 providing for a mayor-council form of government.

### Sec. 85. Powers and duties of policemen.

The mayor shall appoint such number of policemen as are or may be hereafter prescribed by the city council by ordinance, and the mayor shall have at his discretion, the absolute right and power to dismiss any policeman and appoint another in his stead. The policemen shall be under command of the mayor and the chief of police, to be appointed as in this act [this Charter] provided for, and shall perform any and all duties incident to the office of policeman under the instructions and command of the mayor and the chief of police, and, in addition to the usual and customary duties prescribed by the laws of this state and under the provisions of this Charter required of them, it shall specially be the duty of each police officer to report to the chief of police, or some one designated by said chief of police to receive such report, daily and oftener if occasion demands, the condition of all streets, sidewalks, alleys, basements, backyards, buildings, unimproved lots and all other things and matters within the limits of said city that may come under the notice of such policemen which may relate to the health of the citizens thereof, the sanitary conditions, the necessity of the removal of any obstructions upon any of the streets, alleys or sidewalks, and it shall be the duty of the policemen under their instructions to perform all the duties and exercise all the powers ordinarily imposed upon or given to the officers now known as health officers. It shall also be the duty of each police officer to perform all the duties of humane officer and to exercise all the functions, power and authority relating thereto which are or may be prescribed by any law of this state or ordinance of the city. A police officer in making arrests shall have all of the power and authority of a constable under the laws of the State of West Virginia.

**Editor's note—**The provisions of Charter § 85, insofar as they relate to the appointment, promotion, dismissal, etc., of police, are superseded by W. Va. Code § 8-14-6 et seq. In the last sentence the term "constable" should now be "deputy sheriff." *See* W. Va. Code § 50-1-17.

### Sec. 86. Compensation of members of council; absence from meetings.

Each member of the city council shall be paid during his term of office the sum of two dollars and fifty cents for each meeting of the council that he shall attend; provided, that the aggregate amount to be paid to each member of the council shall not exceed the sum of one hundred dollars per annum. The roll of the members of the council shall be called at the beginning and at the end of each meeting thereof, and those members only who answer in person at each roll call shall be entitled to receive their pay for such meeting. The names of those members present at each roll call shall be entered upon the record. If there should not be a quorum present at the first roll call and the meeting be adjourned for that reason, then it shall not be a meeting that will entitle those present to the payment of the sum of two dollars and fifty cents as provided in this section. It shall be the duty of all councilmen to attend all of its meetings, and if any councilman shall be absent from the meetings of council as shown by its records for three consecutive meetings, then his office shall ipso facto become vacant, unless the council shall authorize or excuse such absence. If the office of any councilman shall become vacant under the provisions of this section, then the council shall proceed to fill the same as it is authorized to do in the case of vacancies.

**Editor's note—**The compensation provided for in Charter § 86 probably is obsolete. *See* W. Va. Code § 8-5-12.

### Sec. 87. Reports by manager to council; reports by officers and employees under supervision of manager.

It shall be the duty of the manager, not later than the tenth day of any month after his appointment, to make a detailed report to the council for the preceding month. Such report shall show under distinct heads, first, the names and salaries of all employees under the control and supervision of manager; second, all expenditures or disbursements in the several departments under the supervision of the manager; third, an itemized statement of all purchases, together with the

cost thereof, for each and every such department; fourth, all such other matters and things as the council may by proper ordinance or resolution require of said manager. Such report shall be entered of record in the minutes of the council and be a public record, open to the inspection of all persons. All officers or employees in any of the departments under the supervision of the manager shall, whenever required by said manager, make full and complete reports of all things done by them as such officers or employees in connection with the business of the city.

### Sec. 88. Additional method for paving streets; assessment certificates.

In addition to the method provided for paving streets, by section 61 of the Charter of the City of Charleston, the council may order any street, avenue, public alley, or portion thereof, to be graded and paved, repaved, or otherwise permanently improved, and the council may order the mayor and city clerk to issue a certificate for each installment of the amount of the assessment to be paid by the owner of any lot or fractional part thereof fronting on such street, avenue, or alley. The amount specified in said assessment certificate shall be a lien as aforesaid [in § 61] in the hands of the holder thereof upon the lot or part of a lot fronting on such street, avenue, or alley, and such certificate shall draw interest from the date of said assessment and the payment may be enforced in the name of the holder of said certificate by proper suit in equity in any court having proper jurisdiction to enforce such lien; the council shall fix the amount of such assessment, advertise for bids and do all other things in connection therewith as is provided for paving or permanently improving any street or alley or any portion thereof in section 61, except that such assessment laid under this section shall include the whole cost of such improvement, including the cost of grading and paving squares at intersections of streets and curbing, the costs of which intersections shall be apportioned against the several properties fronting upon the street or portion thereof so improved; and such certificates shall be issued in the same number of installments and payable at the same time as other paving or permanent improvements are provided to be paid for, and shall be a lien in the hands of the holder thereof upon the particular lot against which they are assessed in the same way and manner that assessments are liens under section 61 of said Charter. And nothing contained in this act, or in the Charter of the City of Charleston, shall be construed as imposing a time limit upon the enforcement by appropriate suit of any lien for public improvements, heretofore or hereafter created.

Certificates authorized by this section may be issued, sold or negotiated to the contractor doing the work, or to any other person if the council deem it expedient; provided, the city in issuing such certificates shall not be held as guarantor or in any way liable for payment thereof.

Certificates so issued shall contain a provision to the effect that in the event of default in the payment of any one of said certificates, when due, and said default continuing for a period of sixty days, then all unpaid certificates shall become due and payable and the holder of said certificates may proceed to collect all of such unpaid certificates in the manner hereinbefore provided. Certificates issued in pursuance of this section shall be negotiable at any bank in the City of Charleston.

The owner of the land or lot of land assessed under this section may at any time anticipate and pay such assessment or certificate with accrued interest thereon.

Provided, that no street, avenue or alley shall be paved or otherwise permanently improved pursuant to this section except and unless two-thirds of all the members elected to the council shall concur in the passage of the ordinance providing therefor, and the vote thereon shall be taken by ayes and noes, and duly entered upon the record.

**Editor's note—**The provisions of Charter § 88 are preempted to general law by W. Va. Code §§ 8-13-1, 8-16-1 et seq., 8-17-1 et seq. and 8-18-1 et seq. *See* W. Va. Code § 8-1-6.

### Sec. 88-a. Void, irregular or omitted assessments.

In the case of the construction of any pavement, sewer, sidewalk or other permanent improvement under the provisions of this Charter

where an assessment has heretofore been laid, or may hereafter be laid for the cost thereof, which said assessment is or shall be void or voidable by reason of errors, irregularities or defects in the proceedings under which such improvement was made, or in case such assessment shall have been made against the wrong person or shall have been omitted to be made in a case where the same was proper, it shall be the duty of the council within two years after the completion of such permanent improvement, or after any court shall have declared such assessment invalid, to cause notice to be given to any person against whom the cost of said improvement might properly be or have been assessed under said Charter, of its intention to lay such assessment against him and fixing a time and place at which he may appear and show cause against the same. Said notice shall be served as provided in the said Charter for the giving of notices in assessment proceedings, or in any other manner provided by law, including by publication where the person is a nonresident of the city or cannot be found. At the time and place fixed for hearing under the notice aforesaid, or at any time thereafter, the council shall proceed to lay and levy an assessment for the cost of such permanent improvement in such manner as would have been lawful under proper proceedings at the time said improvement was made, unless the person so notified shall show good cause against the same, and no further notice of such assessment shall be necessary. The assessment so laid shall be a lien upon the property liable therefor and may be recorded and enforced in the same manner as provided for other liens for permanent improvements. This section shall apply to assessments made and certificates issued under section 88 of this Charter, as well as to other assessments and liens for public improvements.

**Editor's note—**The provisions of Charter § 88-a are preempted to general law by W. Va. Code §§ 8-13-1, 8-16-1 et seq., 8-17-1 et seq. and 8-18-1 et seq. *See* W. Va. Code § 8-1-6.

### Sec. 88-b. Assessment certificates to pay for cost of construction of sewers and sewer systems.

In addition to the method for the payment of the cost of construction of sewers and sewer systems provided by sections 62 and 62-a of the Charter of the City of Charleston, the council may order any sewer or sewer system constructed and laid, in any block, street, avenue, alley or in any right-of-way or easement, or portion thereof, and the council may order the mayor and city clerk to issue a certificate for each installment of the amount of the assessment to be paid by the owner of any lot or fractional part thereof fronting on such street, avenue, alley, right-of-way or easement in which such sewer system is constructed and laid, and the amount specified in said assessment certificate shall be a lien as aforesaid in the hands of the holder thereof upon the lot or part of lot fronting on such street, avenue or alley, right-of-way or easement, and such certificate shall draw interest from the date of said assessment and the payment may be enforced in the name of the holder of said certificate by proper suit in equity in any court having proper jurisdiction to enforce such lien; the council shall fix the amount of such assessment, advertise for bids and do all other things in connection therewith as is provided in section 61 of said Charter for paving or permanently improving any street or alley or any portion thereof, the costs of which shall be apportioned against the several properties fronting upon the street, avenue, alley, right-of-way or easement or portion thereof in which the sewer or sewer system is laid according to the provisions of section 62 or section 62-a, as the case may be. Such certificates shall be issued in the following number of installments.

Where the assessment shall not exceed fifty dollars, the assessment and certificate issued thereon shall be in one amount, due and payable in ninety days from the completion and acceptance of the work; if over fifty dollars and not more than one hundred dollars, then such amount shall be covered by only two certificates of equal amounts, payable in ninety days and one year, respectively; if over one hundred dollars and not more than one hundred and fifty dollars, then such amount shall be covered by only three certificates of equal amounts payable in ninety days, one year and two years, respectively; if over one hundred and fifty dollars and not more than two hundred dollars, then such amount shall be covered by only four certificates of equal amounts, payable in ninety days, one year, two years and three years, respectively; and if more than two

hundred dollars, then in five certificates of equal amounts, payable in ninety days, one year, two years, three years and four years, respectively; and the term "equal amounts" herein shall mean as nearly equal as practicable, that is, four certificates being expressed in terms of blank dollars each, and, when practical, in multiples of five, the cents and odd amounts being covered by the first certificate.

Every such certificate shall be a lien in the hands of the holder thereof upon the particular lot against which it is assessed in the same way and manner that assessments are liens under sections 62 and 62-a of this act [this Charter]. And nothing in this act, or in the Charter of the City of Charleston shall be construed as imposing a time limit upon the enforcement by appropriate suit of any lien for public improvements heretofore or hereafter created.

Certificates authorized by this section may be issued, sold or negotiated to the contractor doing the work, or to any other person if the council deem it expedient; and shall be negotiable at any bank in the City of Charleston; provided, the city in issuing such certificates shall not be held as guarantor or in any way liable for the payment thereof. Certificates so issued shall contain a provision to the effect that in the event of default in the payment of any one of said certificates when due, said default continuing for a period of sixty days, unpaid certificates shall become due and payable and the holder of said certificates may proceed to collect all of such unpaid certificates in the manner hereinbefore provided.

Provided, that no sewer or sewer system shall be constructed or laid pursuant to this section except and unless two-thirds of the members elected to the council shall concur in the passage of the ordinance providing therefor, and the vote thereon shall be taken by ayes and noes, and duly entered upon the record.

**Editor's note—**The provisions of Charter § 88-b are preempted to general law by W. Va. Code §§ 8-13-1, 8-16-1 et seq., 8-17-1 et seq. and 8-18-1 et seq. *See* W. Va. Code § 8-1-6.

### Sec. 88-c. Subdividing abutting land for purpose of making assessments.

If the abutting land on any avenue, street, road or alley sought to be graded, paved, repaved or otherwise improved, or on any avenue, street, road, alley, right-of-way or easement in which a sewer or sewer system is ordered laid, under any of the provisions of the Charter of the City of Charleston, is not subdivided or laid off in lots by a map or deed of record, the council may, for the purpose of making the assessments provided for in this section and other sections herein, subdivide said land into lots of such size as the council deems advisable for the purpose of laying the proper assessment against such land.

**Editor's note—**The provisions of Charter § 88-c are preempted to general law by W. Va. Code §§ 8-13-1, 8-16-1 et seq., 8-17-1 et seq. and 8-18-1 et seq. *See* W. Va. Code § 8-1-6.

### Sec. 89. Initiation of ordinances by voters.

Any proposed ordinance, or amendment to any ordinance already in effect, may be submitted to the city council by the petition of qualified voters in said city, but such petition must be signed by such number of voters as shall amount to at least ten percent of the number of votes cast for the office of mayor at the last preceding municipal election. Such proposed ordinance, or amendment to an ordinance, shall be passed without alteration or change by the city council within thirty days after such petition is filed, or the city council shall, in lieu of passing such ordinance or amendment to an ordinance, submit such proposed ordinance, or amendment to an ordinance, in the manner hereinafter prescribed for ratification or rejection to the qualified voters of the city at the next regular municipal election which is to be held not less than sixty days after such petition is filed. If such petition contains a request for a special election and is signed by sufficient qualified voters to equal in number at least fifteen percent of the votes so cast for the office of mayor at the last preceding regular municipal election, the ordinance or amendment thereby proposed shall be passed by the city council without amendment or change, within thirty days after such petition is filed, or the city council shall submit such proposed ordinance or amendment for ratification or rejection to the qualified votes at a special election which shall be called within thirty days and held not less than sixty nor more than ninety days after such petition is filed, unless a general or special election is fixed by law to be held within said period of time. In the latter

event, said proposed ordinance or amendment shall be submitted for ratification or rejection at such election. The city council shall cause such proposed ordinance or amendment to be printed and published in some newspaper of general circulation in the city once each week from the time the council decides to submit the same to the voters until such election is held. No ordinance or amendment to an ordinance adopted by the voters at any such election shall be repealed or amended by the city council.

The ballot used for any such election shall have printed on it the title of each ordinance, or amendment to an ordinance, submitted for ratification or rejection and on separate lines under said title the words "for said ordinance" and "against said ordinance" (or the amended part thereof, as the case may be). If a majority of the qualified voters of the city voting on any proposed ordinance, shall vote in favor thereof, the same shall thereupon become a valid ordinance and be in full force and effect at the expiration of the period of ten days from and after said election. If two or more ordinances, or amendments to ordinances, adopted at the same election are inconsistent, then the respective ordinance, or amendment to an ordinance, receiving the largest affirmative vote at such election shall prevail, and the form of submission of inconsistent ordinances, or parts thereof, or amendments to ordinances, shall be in such form that the voters may clearly express their choice.

**Sec. 90. Reconsideration of ordinance protested by petition; submission of ordinances to voters.**

If within the period of five days after the passage of any ordinance a petition signed by sufficient qualified voters of said city, being in number at least fifteen percent of the votes cast for all the candidates for the office of mayor at the last preceding regular municipal election, shall be filed protesting against such ordinance, or any part thereof, taking effect, such ordinance, or such part thereof so protested against, shall thereupon and thereby be suspended from taking effect, and the city council shall immediately again consider the same, and if it be not repealed or so amended as to meet the requirements of the said protest, the city council shall submit the same for ratification or rejection to the qualified voters of the city at the next regular municipal election which shall be held not more than thirty days after such petition is filed, or at a special election to be called thereafter by the city council for that purpose to be held in not less than sixty days nor more than ninety days after such petition is filed, and such ordinance, or part thereof so protested, shall not take effect unless a majority of the votes cast at such election thereon shall be for the ratification thereof. If such petition shall only be signed by sufficient qualified voters to equal in number at least five percent but not sufficient to equal in number at least fifteen percent of the votes cast for the candidate for said office of mayor at the last preceding municipal election, the city council shall submit such ordinance, or such part thereof so protested, for ratification or rejection at the next ensuing regular municipal election which is to be held more than thirty days after such petition is filed. The city council may, on its own motion, without any petition being required therefor, submit at a regular or special municipal election any ordinance passed by it in the same manner and with the same force and effect as hereinbefore provided. No ordinance, or part of an ordinance, rejected at any election shall be enacted or passed by the city council within the period of twelve months thereafter.

**Sec. 91. Recall of officers.**

Any officer of the City of Charleston elected by the voters under the provisions of this act [this Charter], may be recalled and the office declared vacant as provided in this act. Such officer may be removed from office by a recall election held thereunder, but no such officer shall be removed from office within the period of four months after he enters upon the discharge of his duties as such. Before any such recall election shall be held a petition, stating the name or names and the office or the officer or officers sought to be recalled, and signed by sufficient qualified voters of the said city as shall equal in number the quantity of twenty-five percent of the votes in the whole city or in the ward, as the case may be, for all the candidates for the office of mayor at the last preceding regular municipal election, and contain-

ing a sworn statement of the grounds upon which it is sought to remove the said officer or officers, shall be filed with the city clerk. No such petition shall be filed within the period of six months before the end of the term of such officer. The city council shall immediately, upon the filing of said petition, call a special election in the manner in this act [this Charter] provided for calling special elections and submit to the voters the question of recalling such officer or officers. The ballot at such election, with respect to each person whose recall is sought, shall be substantially as follows: "Shall (name of person) be removed from the office (name of office) by recall?" Immediately following such question there shall be on the printed ballot the two propositions in the order set forth:

"For the recall of (name of person)."

"Against the recall of (name of person)."

Immediately to the left of said proposition shall be printed a square in which the voters, by marking a cross mark (X), or in some other way declaring their intention, may vote for either of such propositions. If sixty percent of the voters registered voting on said propositions vote in favor of the recall of such officer or officers, then he or they shall thereby be forthwith removed from such office and such vacancy or vacancies shall be filled as provided in this act; provided, however, that within fifteen days after the returns of such recall election shall have been canvassed by the city council, a petition signed by sufficient qualified voters to equal in number at least thirty percent of the votes cast in the city, or ward, as the case may be, for the candidates for the office of mayor at the last preceding regular municipal election, and praying that such vacancy or vacancies be filled by a special election to be held not less than thirty days nor more than forty-five days thereafter, the city council shall order a special election to be held in the same manner as other special elections are provided for in this act for the purpose of filling such vacancy or vacancies.

**Editor's note—**It appears that the 25 percent figure in Charter § 91 should be 20 percent. *See* W. Va. Code § 8-12-4(3).

**Sec. 92. Signatures and affidavits to petitions filed under three preceding sections; form of submission of ordinance; all city elections to conform to state law.**

The signatures to petitions filed under the provisions of the last three sections [§§ 89—91] need not be all on one paper or one sheet of paper, but separate petitions may be circulated and signed and the aggregate number of names on all of such petitions, if equal to the number required in this act [this Charter], shall be sufficient. The circulator of each paper shall make and append thereto an affidavit that each signature thereon is the signature of the person whose name it purports to be. The residence address of each signer shall accompany the signature. All such petitions shall be filed with the city clerk and shall be deemed and held to be sufficient if they appear to be signed by the requisite number of signers and such signers shall be deemed and held to be qualified voters, unless a protest in writing, under oath, shall be filed with the city clerk by some qualified voter within fifteen days after such petitions are filed, which protest shall set forth the name of each signer protested against and the ground therefor. It shall be the duty of the city clerk as soon as possible and within twenty-four hours after the filing of such protest to mail a notice to each signer so protested against at his address as given in the petition, requiring him to be and appear before the city registrars at a time fixed in said notice, not less than twenty-four hours nor more than forty-eight hours after the mailing of such notice, for the purpose of defending his right to sign said petition. If it shall be proven by satisfactory evidence that such person is not a qualified signer of such petition, then his name shall be stricken therefrom. All evidence taken shall be under oath, and any signer present at the hearing may be called as a witness by the protestant or testify in his own behalf. All hearings shall be summary and shall be concluded within fifteen days after such petition is filed. The city registrars [see § 9] shall forthwith certify the result of their examination to the city clerk and such city clerk shall serve a copy of such certificate upon the person or persons named in the petition as representing the signers thereof. When

the petition contains a sufficient number of qualified signatures the city registrars shall forthwith file the same with the city clerk, and he shall transmit the same to the city council, which shall call an election as provided for in the three preceding sections [§§ 89—91] of this act [this Charter]. All petitions filed in the city clerk's office shall be public records. When any petition contains a form of submission of the ordinance petitioned for and such form is a reasonably fair description thereof, the same shall be placed on the ballot and no petition filed subsequently shall be permitted to use any form of submission that is so similar to the one previously filed as to tend to confuse the voter, and, in case of such conflict, the person presenting the subsequent petition may file a form of submission which shall be placed upon the ballot, provided, the same shall fairly describe the ordinance, or amendment to an ordinance, petitioned for and shall not be in conflict with any prior forms of submission or tend to confuse the voter.

The city council shall so frame all forms of submission that the voter can, by making a cross in a square in front of some appropriate words, vote either for the ratification or the rejection of the proposed measure, but no ballot shall be rejected from which the reasonable intention of the voter however he shall have marked the same, can be ascertained. All city elections, regular or special, shall conform as nearly as possible to the election statutes contained in chapter 3 of the Code of West Virginia.

### Sec. 93. Additional method for construction of sidewalks; assessment certificates.

In addition to the method of securing the laying of sidewalks set out in section 49 of this chapter [this Charter], the council of said city may cause any sidewalk to be constructed, laid, relaid, or otherwise permanently improved in the City of Charleston in the following manner and upon the following terms: Plans and specifications shall be prepared and filed, resolutions and ordinances shall be adopted and notices shall be prepared and served in the same way and manner as near as may be, as in the case of the paving and improvement of streets and alleys. The contract for same shall, after due advertisement in which council shall reserve the right to reject any and all bids, be let to the lowest responsible bidder and upon completion and acceptance of the work, council shall order the mayor and city clerk to issue to the contractor doing the work a certificate for the amount of the assessment to be paid by the owner of any lot or fractional part thereof fronting on such sidewalk, and the amount specified in said assessment certificate shall be a lien in the hands of the holder thereof upon the lot or part of a lot fronting on such sidewalk as well as a debt against the owner of said lot, and such certificate shall draw interest from the date of said assessment, and the payment may be enforced in the name of the holder of such certificate by a proper suit in equity in any court having proper jurisdiction to enforce such liens, and council shall fix the amount of such assessments and do all things in connection therewith necessary to make them valid and do all other things in connection therewith as is provided for paving or improving streets and alleys and such certificates shall be issued one for each abutting lot or portion thereof payable six months from the date of the completion and acceptance of the work and shall be a lien in the hands of the holder thereof upon the particular lot against which they are assessed in the same way and manner that assessments for street paving are liens under the other provisions of the aforesaid act creating and amending the Charter of the City of Charleston; providing, however, that council shall not order any but concrete sidewalks; and, provided, further, that council shall not advertise for bids for any one letting of less than five thousand square feet; and, further, provided, that council shall not receive any bids or let any sidewalk contract between the first day of October and the first day of March of any year. Nothing in this section shall be so construed as to prevent any abutting lot owner from having his own sidewalk put in if done before the advertising hereinbefore mentioned and provided same is done according to the lines, grades and specifications of the city engineer, for which no charge shall be made. The total cost of constructing, laying, relaying, or otherwise permanently improving any sidewalk or walks shall be borne by the owners of the land abutting upon said sidewalk or sidewalks according to the following plan,

that is to say, payment is to be made according to the proportion of square feet in front of any lot or portion thereof bears to the whole letting. The contract for sidewalks referred to in this section does not necessarily have to be one continuous sidewalk, but the five thousand square feet required for a letting as aforesaid may be made up of or composed of any number of sidewalks in any parts of the city.

**Editor's note—**The provisions of Charter § 93 are preempted to general law by W. Va. Code §§ 8-13-1, 8-16-1 et seq., 8-17-1 et seq. and 8-18-1 et seq. *See* W. Va. Code § 8-1-6.

### Sec. 93-a. Transcript of property to be furnished by county assessor.

The county assessor shall furnish transcript of real and personal property on or about the tenth day of September of each year and his fee for same shall be not less than four hundred nor more than one thousand dollars for such work.

**Editor's note—**The provisions of Charter § 93-a are superseded by W. Va. Code § 11-3-6.

### Sec. 94. Authority to issue warrants; vacancy in office of municipal judge.

The municipal judge, mayor, city clerk, municipal court clerk, chief of police, or in the absence of the chief of police, the captains of police and lieutenants of police shall each have authority to issue warrants for all offenses committed within the police jurisdiction of the City of Charleston. Any vacancy in the office of municipal judge shall be filled by appointment by the mayor until the next election.

**Editor's note—**To the extent that Charter § 94 relates to various officials of the police department, it is superseded by W. Va. Code §§ 8-10-1, 8-10-2, 8-10-4. *See* W. Va. Code § 8-1-6. This section is also invalid to the extent that it applies to other than ordinance violations. *See* W. Va. Code §§ 8-10-1, 8-10-2, 8-10-4; *State ex rel. Hill v. Smith,* 305 S.E.2d 771 (W. Va. 1983). *See* W. Va. Code § 8-1-6.

### Sec. 95. Statement of claim before action against city for damages for personal injury.

No action shall be maintained against the City of Charleston for damages for a personal injury alleged to have been sustained by reason of the negligence of the city or of any officer, agent or employee thereof, unless a written verified statement of the nature of the claim and of the time and place at which such injury is alleged to have been received shall have been filed with the city clerk within thirty days after the cause of action shall have accrued. The cause of action shall be deemed to have accrued at the date of the sustaining of the injury, except that where death results therefrom the time for the personal representative to give notice shall run from the date of death. An action at law for damages for personal injuries or death shall not be commenced until the expiration of thirty days after the filing of the notice as provided in this section.

**Editor's note—**The provisions of Charter § 95 are superseded by W. Va. Code § 8-12-20. *See* W. Va. Code § 8-1-6.

### Sec. 96. Health commissioner.

The health commissioner shall be a physician of good standing in his profession and may devote his time to city work alone. It shall be his duty to administer to all charity cases that he may, in his discretion, deem deserving. He shall, in conjunction with the city manager, have charge of the general health and sanitation of the city and it shall be his duty to carefully investigate all complaints and make a careful detailed report of all his official acts as health commissioner to the city manager and council at least once every month. He shall be appointed in the way and manner provided in the Charter of the City of Charleston and shall receive such salary as council may by ordinance prescribe. Nothing herein, however, shall be construed as in any way affecting the police officers of the city relative to their powers and duties in regard to city sanitation contained and set forth elsewhere [see § 85] in said Charter.

**Editor's note—**The editor's note for Charter § 96 in the city's 1975 Code states:

> In lieu of a city health commissioner and health department, the Kanawha-Charleston combined board of health now exercises their functions within the city, pursuant to an agreement between the city and the county court dated Oct. 18, 1956, a copy of which is on file in the office of the city clerk.

**State law references—**Combined city-county boards of health, W. Va. Code § 16-2-3; local health officers generally, W. Va. Code § 16-2-1 et seq.

### Sec. 97. Police matron.

It shall be the duty of the mayor to appoint a reputable woman who shall be known as police

matron, and such police matron shall have all the qualifications and be subject to all the provisions of chapter 18 of the Acts of the Legislature of 1911 [now codified in W. Va. Code § 8-14-4]. The council of the City of Charleston shall provide a reasonable salary not to exceed twelve hundred dollars therefor and do all of the things required by the council under the provisions of said chapter 18 of the Acts of the Legislature of 1911 and any amendments thereto.

**Editor's note—**The second sentence of Charter § 97 is superseded by W. Va. Code § 8-5-12. *See* W. Va. Code § 8-1-6. In addition, the editor's note in the city's 1975 Code states as follows:

> As of Sept. 30, 1974, the city was not operating a jail, and city prisoners were confined in the county jail, pursuant to an agreement with the county court. For that reason, the city does not have a police matron.

### Sec. 98. Codification of ordinances.

The city council shall cause any contract for the codifying and indexing of all the ordinances of the city to be fully completed, and such ordinances shall include all in force and effect up to the last day possible. Before such work is accepted by the council, it shall be completed in every respect and the council shall then cause it to be properly printed and securely bound in a permanent book. The council may by ordinance adopt the code to be prepared as a whole and when said ordinance adopting said code shall have been passed by the council, the said code shall be and become the law and ordinances of said city up to such time according to the tenor and effect thereof, and when printed in a book, the same shall be received as evidence as the ordinances of said city, unless errors or omissions be affirmatively shown therein, and no other publication thereof shall be made or required under the Charter, and the council shall cause all the ordinances of said city, either by printing a supplement thereof, to be brought up to date within a reasonable time after the printing of such ordinances, and in any event such supplement shall be printed, or, if necessary, a new copy of the ordinances shall be printed within every four years, and the council shall cause a sufficient number of said books of the ordinances to be printed and to sell such number thereof as it may do so at such price as may be reasonable, and the number of books printed shall be fixed by the council.

**State law reference—**Ordinance codification, W. Va. Code § 8-11-4(b).

### Sec. 99. Cemeteries and burials.

It shall be the duty of the City of Charleston to provide suitable and proper places for the burial of the dead, which places may be in or out of the corporate limits of the said city. The city shall cause such places to be laid off into cemetery lots in a reasonable and proper way and shall sell said lots for a reasonable price, but it may take into consideration the location of each of such lots in fixing the prices thereof. The city council shall have all the powers and rights of condemnation of any real estate that it may wish for such purpose in the manner provided by law, and it may acquire by means of condemnation any real estate which has already been laid out as a cemetery by any person, association or corporation.

No burials of the bodies of deceased persons shall hereafter be permitted within the incorporated limits of the City of Charleston or within the space of one mile of such incorporated limits without the permission of said city shall be first had and obtained, and the City of Charleston, through its proper authorities, shall have power to pass all proper ordinances providing suitable penalties to carry out the powers here given said city.

No moneys received from the sale of lots in any cemetery so owned, or hereafter owned, by said city shall be used for any other purpose than the proper care and preparation of the ground, upkeep and expenses of said cemetery, the roads and ways to and through the same and for the purchase of additional property for cemetery purposes.

**State law reference—**Authority to acquire and maintain cemeteries and to regulate interments therein, W. Va. Code § 8-12-5(42).

### Sec. 100. Building inspector.

The building inspector shall be a competent person for the duties of his office and shall devote all his time to city work. He shall not be engaged or interested in the building business in any way or manner. The council shall by ordinance fix a proper salary for him. He shall see that the ordinances of the city and laws of the state

concerning buildings are enforced and perform such other duties as the manager or council may direct.

### Sec. 101. Power to buy, sell or exchange real estate.

The council shall have power to buy, sell, or exchange any real estate found necessary or convenient, in the opening, construction, straightening, widening or otherwise altering of any street, alley or public way within the city, and by resolution and proper deed to convey to any person, firm or corporation any land used, or heretofore or hereafter used, for street or other public purpose, when in the judgment of the council such land shall no longer be needed for such public use.

**Editor's note—**The provisions of Charter § 101 are covered by W. Va. Code § 8-12-1. *See* W. Va. Code § 8-1-6.

### Sec. 102. Zoning—Power of city.

For the purpose of promoting health, safety, morals, or the general welfare of the city and community, the council is hereby empowered to regulate and restrict the height, number of stories, and size of buildings and other structures, the percentage of lot that may be occupied, the size of yards, courts and other open spaces, the density of population, and the location and use of buildings, structures and land for trade, industry, residents or other purposes; provided, however, that any ordinance or bylaws enacted under the authority of this act [this Charter] shall exempt from the operation thereof any building or structure used or to be used by a public service corporation (not otherwise exempted) as to which proof shall be presented to the council of the City of Charleston provided for in this act [this Charter], that the exemption of such building or structure is reasonably necessary to the convenience or welfare of the public.

**Editor's note—**The provisions of Charter § 102 are covered by W. Va. Code § 8-24-39 et seq. *See* W. Va. Code § 8-1-6.

### Sec. 102-a. Same—Division of city into zoning districts.

For any or all of said purposes the council may divide the city into districts of such number, shape and area as may be deemed best suited to carry out the purpose of this and the four succeeding sections [§§ 102-b—102-e], and within such districts it may regulate and restrict the erection, construction, alteration, repair or use of buildings, structures, or land. All such regulations shall be uniform for each class or kind of buildings throughout each district, but the regulations in one district may differ from those in other districts.

**Editor's note—**The provisions of Charter § 102-a are covered by W. Va. Code § 8-24-39 et seq. *See* W. Va. Code § 8-1-6.

### Sec. 102-b. Same—Design of zoning regulations; considerations in making.

Such regulations shall be made in accordance with a comprehensive plan, and designed to lessen congestion in the streets; to secure safety from fire, panic and other dangers; to promote health and the general welfare; to provide adequate light and air; to prevent the overcrowding of land; to avoid undue concentration of population; or to facilitate the adequate provision of transportation, water, sewage, schools, parks, and other public requirements. Such regulations shall be made with reasonable consideration, among other things, to the character of the district and its peculiar suitability for particular uses, and with a view to conserving the value of buildings and encouraging the most appropriate use of land throughout the city.

**Editor's note—**The provisions of Charter § 102-b are covered by W. Va. Code § 8-24-39 et seq. *See* W. Va. Code § 8-1-6.

### Sec. 102-c. Same—Establishment, enforcement and change of zoning regulations and boundaries of zoning districts; hearing.

The council shall provide for the manner in which such regulations and restrictions and the boundaries of such districts shall be determined, established and enforced, and from time to time amended, supplemented or changed. However, when demanded by any party in interest, no such regulation, restriction or boundary shall become effective until after a public hearing in relation thereto, at which parties in interest and citizens shall have an opportunity to be heard. At least fifteen days' notice of the time and place of such

hearing shall be published in at least two newspapers of general circulation, published in the City of Charleston.

**Editor's note—**The provisions of Charter § 102-c are superseded by W. Va. Code § 8-24-45 et seq. *See* W. Va. Code § 8-1-6.

### Sec. 102-d. Same—Change or repeal of zoning regulations and boundaries; protests.

Such regulations, restrictions and boundaries may from time to time be amended, supplemented, changed, modified or repealed. In case, however, of a protest against such change signed by the owners of twenty percent or more either of the area of the lots included in such proposed change, or of those immediately adjacent in the rear thereof, extending one hundred feet therefrom, or of those directly opposite thereto, extending one hundred feet from the street frontage of such opposite lots, such amendment shall not become effective except by the favorable vote of three-fourths of all the members of council. The provisions of the previous section relative to public hearings and official notice shall apply to all changes or amendments.

### Sec. 102-e. ¶ 1. Same—Zoning commission.

In order to avail itself of the powers conferred by this act [this Charter], the council shall appoint a commission to be known as the zoning commission to recommend the boundaries of the various original districts and appropriate regulations to be enforced therein. Such commission shall make a preliminary report and hold public hearings thereon before submitting its final report, and such council shall not hold its public hearings or take action until it has received the final report of such commission.

**Editor's note—**The provisions of Charter § 102-e. ¶ 1 are superseded by W. Va. Code § 8-24-39 et seq. *See* W. Va. Code § 8-1-6.

### Sec. 102-e. ¶ 2. Repeal of inconsistent laws.

All acts heretofore passed relating to or amendatory of the Charter of the City of Charleston, and all other acts or parts of acts, coming within the purview of this act and inconsistent herewith, are hereby repealed.

## CHARTER COMPARATIVE TABLE

This table shows the location of the amendments to the Charter. the Charter is derived from Acts 1929 (Municipal Charters) ch. 4.

| Ordinance/Bill Number | Date | Section | Charter Section |
|---|---|---|---|
| 870 | 9-19-1966 | 2 | 4 |
| 1620 | | 2 | 4 |
| 3040 | | 2 | 4 |
| 6050 | 12- 5-1994 | | 14<br>35 |
| 7597 | 10-21-2013 | | 9, 9-a,<br>11, 14,<br>24, 35 |

# PART II

# CODE OF ORDINANCES

## Chapter 1

## GENERAL PROVISIONS


| | |
|---|---|
| Sec. 1-1. | How Code designated and cited. |
| Sec. 1-2. | Definitions and rules of construction. |
| Sec. 1-3. | Catchlines of sections; history notes; references. |
| Sec. 1-4. | Effect of repeal of ordinances. |
| Sec. 1-5. | Jurisdiction. |
| Sec. 1-6. | Amendments to Code; effect of new ordinances; amendatory language. |
| Sec. 1-7. | Supplementation of Code. |
| Sec. 1-8. | General penalty; continuing violations. |
| Sec. 1-9. | Severability. |
| Sec. 1-10. | Code imposes no liability for acts or omissions pursuant thereto; when city solicitor to defend city officers and employees; liability insurance. |
| Sec. 1-11. | Common seal of the city; custodian of seal. |
| Sec. 1-12. | Datum line for grades of streets established. |
| Sec. 1-13. | Filing fee for candidates for city offices. |
| Sec. 1-14. | Appointment of select committee. |
| Sec. 1-15. | Provisions deemed continuation of existing ordinances. |
| Sec. 1-16. | Code does not affect prior offenses or rights. |
| Sec. 1-17. | Certain ordinances not affected by Code. |

## Sec. 1-1. How Code designated and cited.

The ordinances embraced in this and the following chapters shall constitute and be designated the "Code of the City of Charleston, West Virginia," and may be so cited. Such ordinances may also be cited as the "Charleston City Code." (Code 1975, § 1-1)

**Charter reference—**Codification of ordinances, § 98.

**State law reference—**Ordinance codification, W. Va. Code § 8-11-4(b).

## Sec. 1-2. Definitions and rules of construction.

The following definitions and rules of construction shall apply to this Code and to all ordinances and resolutions unless the context requires otherwise:

*Generally.* When provisions conflict, the specific shall prevail over the general. All provisions shall be liberally construed so that the intent of the city council may be effectuated. Words and phrases shall be construed according to the common and approved usage of the language; but technical words, technical phrases and words and phrases that have acquired peculiar and appropriate meanings in law shall be construed according to such meanings.

*Charter.* The term "Charter" means the Charter of the City of Charleston, West Virginia.

*City.* The term "city" means the City of Charleston, West Virginia.

*City council, council.* The terms "city council" and "council" mean the council of the City of Charleston, West Virginia.

*City solicitor; assistant city solicitor.* The terms "city solicitor" and "assistant city solicitor" include a special counsel appointed according to W. Va. Code § 8-10-1a.

*Code.* The term "Code" means the Code of the City of Charleston, West Virginia, as designated in section 1-1.

*Computation of time.* The time within which an act is to be done shall be computed by excluding the first day and including the last day. If the last day is a Saturday, Sunday or legal holiday, it shall be excluded and the last day shall be the next day that is not a Saturday, Sunday or legal holiday.

*Conjunctions.* In a provision involving two or more items, conditions, provisions or events, which items, conditions, provisions or events are connected by the conjunction "and," "or" or "either . . . or," the conjunction shall be interpreted as follows:

(1) "And" indicates that all the connected terms, conditions, provisions or events apply.

(2) "Or" indicates that the connected terms, conditions, provisions or events apply singly or in any combination.

(3) "Either . . . or" indicates that the connected terms, conditions, provisions or events apply singly but not in combination.

*County.* The term "county" means Kanawha County, West Virginia.

*Extraterritorial jurisdiction.* Provisions of this Code that apply outside of the corporate limits of the city do not apply within the corporate limits of another municipality.

*Fiscal year.* The fiscal year for the city and all bodies or officers collecting or disbursing city funds begins on July 1 and expires with the expiration of the next following June 30.

*Following.* The term "following" means next after.

*Gender.* Words of one gender include all other genders.

*Health commissioner, health officer.* The terms "health commissioner" and "health officer" mean the Kanawha-Charleston health commissioner or health officer.

*Health department, department of health.* The terms "health department" and "department of health" mean the Kanawha-Charleston health department.

*Includes.* The term "includes" does not limit a term to a specified example.

*Joint authority.* Terms giving a joint authority to three or more persons give such authority to a majority of such persons.

*May.* The term "may" is to be construed as being permissive and not mandatory.

*May not.* The term "may not" states a prohibition.

*Month.* The term "month" means a calendar month.

*Municipality.* The term "municipality" means the City of Charleston, West Virginia.

*Number.* Terms in the singular include the plural. Terms in the plural include the singular.

*Oath.* A solemn affirmation is the equivalent to an oath, and a person shall be deemed to have sworn if such person makes such an affirmation.

*Officers, departments, etc.* References to officers, departments, boards, commissions or employees are to city officers, city departments, city boards, city commissions and city employees.

*Official time.* References to a specific time of day are to Eastern Standard Time or Eastern Daylight Saving Time, as appropriate.

*Owner.* The term "owner," as applied to property, includes any part owner, joint owner, tenant in common, tenant in partnership, joint tenant or tenant by the entirety of the whole or part of such property.

*Person.* The term "person" means any individual, corporation, partnership, association, club and any other group acting as a unit.

*Personal property.* The term "personal property" means any property other than real property.

*Preceding.* The term "preceding" means next before.

*Premises.* The term "premises," as applied to real property, includes land and structures.

*Property.* The term "property" includes real property, personal property and mixed property.

*Public authority.* The term "public authority" includes:

(1) Any board of education, board of health and any other board or commission established by law.

(2) Any municipal, county, state or federal officer.

(3) Any authorized public official.

*Real property, real estate, land, lands.* The terms "real property," "real estate," "land," and "lands" include lands, buildings, tenements and hereditaments and all rights and interests therein except chattel interests.

*Reasonable time.* Provisions that require or allow an act to be done within a reasonable time mean that the act is to be done within such time as may be necessary and reasonable under the circumstances.

*Shall.* The term "shall" is to be construed as being mandatory.

*Sidewalk.* The term "sidewalk" means that portion of a street between the curbline, or the lateral lines of a roadway where there is no curb, and the adjacent property line, intended for the use of pedestrians. If there is no public area between the lateral lines of the roadway and the abutting property line, the area immediately abutting the street line shall be construed as the sidewalk.

*Signature* and *subscription by mark.* The terms "signature" and "subscription" include a mark when the signer or subscriber cannot write. In such situations, such person's name shall be written near the mark by a witness who writes his own name near such person's name.

*State.* The term "state" means the State of West Virginia.

*Street.* The term "street" means any alley, avenue, boulevard, highway, road, lane, viaduct, bridge and the approach to such places, and any other public thoroughfare in the city. The term "street" also means the entire width between abutting property lines. The term "street" includes a sidewalk or footpath.

*Tenant, occupant.* The terms "tenant" and "occupant," as applied to a building or land, include:

(1) Any person holding either alone or with others a written or oral lease of such building or land.

(2) Any person who either alone or with others occupies such building or land.

*Tenses.* The present tense includes the past and future tenses. The future tense includes the present tense.

*Writing.* The term "writing" includes any form of recorded message capable of comprehension by ordinary visual means. Whenever any notice, report, statement or record is authorized or required, it shall be made in writing in the English language.

*W. Va. Code.* The term "W. Va. Code" means the Code of West Virginia, 1931, as amended.

*Year.* The term "year" means a calendar year.
(Code 1975, § 1-2)

**Sec. 1-3. Catchlines of sections; history notes; references.**

(a) The catchlines of the several sections of this Code printed in boldface type are intended as mere catchwords to indicate the contents of the section and are not titles of such sections, or of any part of the section; nor unless expressly so provided shall they be so deemed when any such section, including the catchline, is amended or reenacted.

(b) The history or source notes appearing in parentheses after sections in this Code have no legal effect and only indicate legislative history. Charter references, cross references and state law references that appear in this Code after sections or subsections or that otherwise appear in footnote form are provided for the convenience of the user of the Code and have no legal effect.

(c) Unless specified otherwise, all references to chapters or sections are to chapters or sections of this Code.
(Code 1975, § 1-4)

**Sec. 1-4. Effect of repeal of ordinances.**

(a) Unless specifically provided otherwise, the repeal of an ordinance does not revive any repealed ordinance.

(b) The repeal or amendment of an ordinance does not affect any punishment or penalty incurred before the repeal took effect; nor does such repeal or amendment affect any suit, prosecution or proceeding pending at the time of the amendment or repeal.
(Code 1975, § 1-6)

**Sec. 1-5. Jurisdiction.**

Except as otherwise provided by state law or city ordinance, the provisions of this Code apply both in the city and in the city's extraterritorial jurisdiction.
(Code 1975, § 1-8)

**Sec. 1-6. Amendments to Code; effect of new ordinances; amendatory language.**

(a) All ordinances adopted subsequent to this Code that amend, repeal or in any way affect this Code may be numbered in accordance with the numbering system of the Code and printed for inclusion in the Code. Portions of this Code repealed by subsequent ordinances may be excluded from this Code by omission from affected reprinted pages.

(b) Amendments to provisions of this Code may be made with the following language: "Section (chapter, article, division or subdivision, as appropriate) of the Code of the City of Charleston, West Virginia, is hereby amended to read as follows: . . . ."

(c) If a new section, subdivision, division, article or chapter is to be added to the Code, the following language may be used: "Section (chapter, article, division or subdivision, as appropriate) of the Code of the City of Charleston, West Virginia, is hereby created to read as follows: . . . ."

(d) All provisions desired to be repealed should be repealed specifically by section, subdivision, division, article or chapter number, as appropriate, or by setting out the repealed provisions in full in the repealing ordinance.

**Charter reference—**Ordinance adoption, § 41.

**State law reference—**Ordinance adoption, W. Va. Code § 8-11-4.

**Sec. 1-7. Supplementation of Code.**

(a) Supplements to this Code shall be prepared and printed whenever authorized or directed by the city. A supplement to this Code shall include all substantive permanent and general parts of ordinances adopted during the period covered by the supplement and all changes made by the supplement in the Code. The pages of the supplement shall be so numbered that they will fit properly into the Code and will, where necessary, replace pages that have become obsolete or partially obsolete. The new pages shall be so prepared that when they have been inserted, the Code will be current through the date of the adoption of the latest ordinance included in the supplement.

(b) In preparing a supplement to this Code, all portions of the Code that have been repealed shall be excluded from the Code by their omission from reprinted pages.

**Sec. 1-8. General penalty; continuing violations.**

(a) In this section, "violation of this Code" means any of the following:

(1) Doing an act that is prohibited or made or declared unlawful, an offense, a violation or a misdemeanor by ordinance or by rule or regulation authorized by ordinance.

(2) Failure to perform an act that is required to be performed by ordinance or by rule or regulation authorized by ordinance.

(3) Failure to perform an act if the failure is prohibited or is made or declared unlawful, an offense, a violation or a misdemeanor by ordinance or by rule or regulation authorized by ordinance.

(b) In this section, "violation of this Code" does not include the failure of a city officer or city employee to perform an official duty unless it is specifically provided that the failure to perform the duty is to be punished as provided in this section.

(c) Except as otherwise provided by law or ordinance, a person convicted of a violation of this Code shall be punished by a fine of not less than $10.00 and not more than $500.00, imprisonment for a term not exceeding 30 days, or any combination. Except as otherwise provided by law or ordinance, with respect to violations of this Code that are continuous with respect to time, each day that the violation continues is a separate offense.

(d) The imposition of a penalty does not prevent suspension or revocation of a license, permit or franchise or other administrative sanctions.

(e) Violations of this Code that are continuous with respect to time are a public nuisance and may be abated by injunctive or other equitable relief. The imposition of a penalty does not prevent injunctive relief.
(Code 1975, § 1-7)

**State law reference—**Authorized penalty for ordinance violations, W. Va. Code §§ 8-11-1, 8-12-5(57), 8-34-1.

**Sec. 1-9. Severability.**

The sections, subsections, paragraphs, sentences, clauses and phrases of this Code and all provisions adopted by reference in this Code are severable so that if any section, subsection, paragraph, sentence, clause and phrase of this Code or of any provision adopted by reference in this Code is declared unconstitutional or invalid by a valid judgment of a court of competent jurisdiction, such judgment shall not affect the validity of any other section, subsection, paragraph, sentence, clause and phrase of this Code or of any provision adopted by reference in this Code, it being the intent of the council that it would have enacted this Code and all provisions adopted by reference in this Code without such invalid or unconstitutional provisions.
(Code 1975, § 1-5)

**Sec. 1-10. Code imposes no liability for acts or omissions pursuant thereto; when city solicitor to defend city officers and employees; liability insurance.**

(a) Nothing in this Code or any other ordinance or resolution of the city council shall be construed to impose any liability upon the city or upon any person for any act or omission required or permitted when such act or omission is otherwise lawful, in good faith, without malice or

mischievous intent and, in the case of any city officer or employee, is in line of duty and within the scope of his authority.

(b) It shall be the duty of the city solicitor to defend city officers and employees against all claims, demands, actions, suits, prosecutions and other proceedings brought against them for their acts or omissions while acting in line of duty and within the purview of subsection (a) of this section.

(c) The city shall purchase one or more insurance policies of public liability insurance providing the city and its officers, agents, employees, including city councilmembers and members of all boards and commissions, insurance coverage for bodily injury, personal injury or damage, including false arrest and false imprisonment, where applicable, and liability for property damage and other insurance coverage against any and all liability arising from, or growing out of, by reason of, or in any way connected with any acts or omissions of the city, its officers, agents, employees, city councilmembers or members of any board or commission in the performance of their official duties.

(Code 1975, § 1-9)

**State law reference—**Authority to provide liability insurance covering the city and its officers, employees and agents, W. Va. Code § 8-12-7.

### Sec. 1-11. Common seal of the city; custodian of seal.

(a) The common seal of the city shall be:




City Seal

(b) The city clerk shall be the custodian of the common seal of the city.

(Code 1975, § 1-10)

### Sec. 1-12. Datum line for grades of streets established.

(a) The datum line for the grades of streets, alleys, sewers, bridges, culverts and other similar improvements in the city is established as 0.00 of the river gauge on the South Side Bridge pier. This 0.00 of the city datum is equivalent to El. 558.65 of the U.S.C.&G. Survey sea level datum.

(b) All grades or levels now or hereafter to be established will be designated by giving the height in feet and hundredths of a foot above such datum line established in subsection (a) of this section.

(Code 1975, § 1-11)

### Sec. 1-13. Filing fee for candidates for city offices.

(a) Candidates for offices to be voted for at municipal elections in the city shall each pay a filing fee equal to one percent of the annual compensation paid for the office to which the candidate aspires.

(b) If candidates are nominated by convention, the filing fees shall be paid when the particular nominee is certified to the city clerk by the executive committee of a political party. If candidates are to be nominated by a primary election, the filing fee shall be paid when a candidate files a notice of his candidacy with the city clerk.

(c) A candidate seeking nomination to any office who is unable to pay the filing fee may qualify through the following petition process in lieu of payment of the filing fee:

(1) The candidate shall file an oath with the city clerk stating that he is unable to pay the filing fee due to a lack of financial resources. Such oath shall be filed not earlier than the second Monday in January next preceding the primary election day.

(2) Upon receipt of the written oath the receiving officer shall provide the candidate with in-lieu-of-filing-fee petition forms and instructions on gathering the required signatures. The number of required signatures shall be four qualified voters for each whole dollar of the filing fee; however, the filing fee shall be waived in

whole and not in part. Only signatures of voters registered in the district or other political division represented by the office sought may be solicited. Solicitors of signatures shall also be residents of the district or other geographical entity represented by the office sought.

(3) No qualified voter forfeits his opportunity to vote in the primary election by signing an in-lieu-of-filing-fee petition.

(4) The candidate may submit a greater number of signatures to allow for subsequent losses due to invalidity of some signatures. The county clerk may not be required to determine the validity of a greater number of signatures than that required by this section.

(5) Signatures obtained on an in-lieu-of-filing-fee petition shall not be counted toward the number of voters required to sign a nomination certificate.

(6) The candidate shall file all in-lieu-of-filing-fee petitions with the required number of valid signatures with the city clerk not later than the last date required by law for filing declarations of candidacies and payment of the filing fee.

(7) The oath and forms required by this subsection shall be prescribed by the city clerk.

(Code 1975, § 1-12)

**Charter reference—**Nomination of candidates, § 10.

**State law references—**Primary elections and nominating procedures, W. Va. Code § 3-5-1 et seq.; similar provisions, W. Va. Code § 3-5-8a.

### Sec. 1-14. Appointment of select committee.

Prior to any primary, general or special election held by the city council, the council shall, by resolution, appoint a select committee of council to perform certain functions for the council relating to the election to be held. The select committee shall be comprised of three members of city council, no more than two of whom shall be of the same political party. The select committee shall perform all necessary election functions, including, but not limited to, a canvass of the votes cast in the election.

(Code 1975, § 1-13)

### Sec. 1-15. Provisions deemed continuation of existing ordinances.

The provisions of this Code, insofar as they are substantially the same as legislation previously adopted by the city relating to the same subject matter, shall be construed as restatements and continuations and not as new enactments.

### Sec. 1-16. Code does not affect prior offenses or rights.

(a) Nothing in this Code or the ordinance adopting this Code affects any offense or act committed or done, any penalty or forfeiture incurred, or any contract or right established before the effective date of this Code.

(b) The adoption of this Code does not authorize any use or the continuation of any use of a structure or premises in violation of any city ordinance on the effective date of this Code.

### Sec. 1-17. Certain ordinances not affected by Code.

Nothing in this Code or the ordinance adopting this Code affects the validity of any ordinance or portion of an ordinance listed below, and all such ordinances or portions of ordinances continue in full force and effect to the same extent as if published at length in this Code:

(1) Amending the city's Charter.

(2) Annexing property into the city.

(3) Deannexing property or excluding property from the city.

(4) Promising or guaranteeing the payment of money or authorizing the issuance of bonds or other instruments of indebtedness.

(5) Authorizing or approving any contract, deed or agreement.

(6) Granting any right or franchise.

(7) Making or approving any appropriation or budget.

(8) Providing for salaries or other employee benefits not codified in this Code.

(9) Establishing wards or altering ward boundaries.

(10) Approving fees, rates or charges for Spring Hill Cemetery Park.

(11) Codified as sections 1 through 10, 15 and 17 of article 13, part I of the city's 1957 Code.

(12) Levying or imposing any special assessment.

(13) Dedicating, naming, establishing, locating, relocating, opening, paving, widening, repairing or vacating any street.

(14) Establishing the grade or any street or sidewalk.

(15) Dedicating, accepting or vacating any plat or subdivision.

(16) Establishing traffic regulations for specific locations.

(17) Levying, imposing or otherwise relating to taxes not codified in this Code.

(18) Pertaining to zoning or the comprehensive plan.

(19) That is temporary, although general in effect.

(20) That is special, although permanent in effect.

(21) The purpose of which has been accomplished.

Chapter 2

# ADMINISTRATION*

## Article I. In General

Sec. 2-1. Fees for copying aerial maps.
Secs. 2-2—2-30. Reserved.

## Article II. Mayor

Sec. 2-31. Function.
Secs. 2-32—2-60. Reserved.

## Article III. City Council

### Division 1. Generally

Sec. 2-61. Regular and special meetings.
Sec. 2-62. Same—Annual tax estimate and levy.
Sec. 2-63. Quadrennial organizational.
Sec. 2-64. Clerk of the council.
Sec. 2-65. Authentication of records.
Sec. 2-66. Sergeant at arms.
Sec. 2-67. Authorized procedure when meeting lacks quorum.
Sec. 2-68. Disorderly conduct prohibited at meetings of council and council committees.
Sec. 2-69. Resolutions and record.
Sec. 2-70. Adoption of rules of the council; amending, repealing, filing and publication of rules; maintenance of rules in current status.
Secs. 2-71—2-90. Reserved.

### Division 2. Ordinances

Sec. 2-91. General provisions as to adoption and procedures.
Sec. 2-92. Cases requiring enactment of ordinance.
Sec. 2-93. Recording and filing; ordinance record book.
Sec. 2-94. To repeal, amend or add to provisions of this Code, and record; record of repealed and amended portions of Code.
Secs. 2-95—2-130. Reserved.

## Article IV. Officers and Employees

### Division 1. Generally

Sec. 2-131. Duties of officers and employees.
Sec. 2-132. Authority of deputies, assistants and other subordinates.

---

*__Cross references—__Any ordinance making or approving any appropriation or budget saved from repeal, § 1-17(7); administration and enforcement of animal regulations, § 10-1; administration and enforcement of building code regulations, § 14-36; administration and enforcement of housing code regulations, § 14-91 et seq.; community development, ch. 30; administration of consumer protection department, § 34-35; courts, ch. 38; human rights, ch. 62; law enforcement, ch. 66; administration and enforcement of director of parks and recreation department, § 82-43; personnel, ch. 86; administration of civil service regulations, § 86-51 et seq.; taxation, ch. 110; administration and enforcement of business and occupation tax, § 110-32; administration and enforcement of traffic regulations, § 114-51 et seq.; utilities, ch. 118; rules of council, app. A; administration and enforcement of zoning regulations, app. B, § 24-1 et seq.

Sec. 2-133. Faithful performance and true accounting bonds required of all officers and of certain agents and employees of city.
Sec. 2-134. Bond required of those authorized to carry firearms.
Sec. 2-135. Persons acting in place of those who are absent or disabled or when position is vacant.
Sec. 2-136. Conflicts of interest.
Sec. 2-137. Ethics in city government.
Sec. 2-138. Standards of conduct of city officers and employees for grants; penalties.
Sec. 2-139. Right of entry for purposes of inspection.
Sec. 2-140. Limited authority to administer oaths; false swearing.
Secs. 2-141—2-160. Reserved.

Division 2. Benefits

Sec. 2-161. Compensation of city officers and employees.
Sec. 2-162. Federal social security.
Sec. 2-163. City as participating public employer; state employees retirement system adopted.
Sec. 2-164. End of insurance subsidy for retirees who were hired on or after July 1, 2020.
Secs. 2-165—2-180. Reserved.

Division 3. City Manager

Sec. 2-181. Powers and duties generally.
Sec. 2-182. Supervision and care of grounds and buildings; leases; improvements.
Sec. 2-183. Custodian of certain papers and records.
Sec. 2-184. Personnel Rules and Administrative Policies; duties and authority.
Secs. 2-185—2-200. Reserved.

Division 4. City Clerk

Sec. 2-201. Custodian of records.
Sec. 2-202. Contact with public.
Sec. 2-203. Other powers, duties.
Secs. 2-204—2-220. Reserved.

Division 5. City Collector

Sec. 2-221. General duties.
Sec. 2-222. Issuance of licenses, permits.
Secs. 2-223—2-240. Reserved.

Division 6. City Solicitor

Sec. 2-241. Appointment.
Sec. 2-242. City solicitor to be general legal counsel; special municipal council authorized.
Sec. 2-243. Settlement authority.
Sec. 2-244. Personnel rules and administrative policies; duties and authority.
Secs. 2-245—2-260. Reserved.

Division 7. City Engineer

Sec. 2-261. Responsibilities.
Secs. 2-262—2-280. Reserved.

Division 8. Director of Public Works

Sec. 2-281. Powers.
Secs. 2-282—2-300. Reserved.

Division 9. Director of Mayor's Office of Economic and Community Development

Sec. 2-301. Duties.
Secs. 2-302—2-330. Reserved.

**Article V. Public Records**

Sec. 2-331. Secure maintenance of books, records.
Sec. 2-332. Availability to public of city books and records; protection of books and records.
Sec. 2-333. Fee for copies of records and documents supplied by city clerk to applicants.
Sec. 2-334. Public Records Management and Archives Act.
Secs. 2-335—2-360. Reserved.

**Article VI. Finance**

Division 1. Generally

Sec. 2-361. Fiscal reports, accounts to conform to fiscal year; "fiscal year" defined.
Sec. 2-362. Supervision of finances by finance director.
Sec. 2-363. City funds and provisions governing such funds.
Sec. 2-364. Disbursement of funds to chief of police.
Sec. 2-365. Additional provisions as to special funds; establishment of escrows.
Sec. 2-366. Money to be deposited in banks designated as city depository, and receipts for deposits.
Sec. 2-367. Purposes for which expenditures may be made from the several funds of the city.
Sec. 2-368. Disbursement of general fund; contracts in excess of estimated revenue.
Sec. 2-369. Accounts of auditor.
Sec. 2-370. Annual financial statement.
Sec. 2-371. Vouchers.
Sec. 2-372. Orders on the city treasurer.
Sec. 2-373. Authority of city auditor upon application for order to pay out money when applicant is indebted to city.
Sec. 2-374. Splitting orders; sufficient funds in treasury.
Sec. 2-375. Order register.
Sec. 2-376. Loss of order upon city treasurer.
Sec. 2-377. Workers' compensation.
Sec. 2-378. Bonds for faithful performance of contracts and franchises.
Secs. 2-379—2-400. Reserved.

Division 2. Budget

Sec. 2-401. Definitions.
Sec. 2-402. Powers and duties of finance director.
Sec. 2-403. Requests for appropriations.
Sec. 2-404. Appropriations for other than spending units.
Sec. 2-405. Examination of requests for appropriations.

Sec. 2-406. Preparation of tentative budget and submittal to city council.
Sec. 2-407. Powers of director in administration of expenditures.
Sec. 2-408. Reports on revenue collections.
Sec. 2-409. Management accounting.
Sec. 2-410. Expenditure schedules.
Sec. 2-411. Examination and approval of schedules; expenditures to accord.
Sec. 2-412. Reserve for emergencies as part of expenditure schedule.
Sec. 2-413. Reports by spending units.
Sec. 2-414. Expenditure procedure.
Sec. 2-415. Requisition for purchases.
Secs. 2-416—2-440. Reserved.

Division 3. Bond Issues

Sec. 2-441. Authorization for issuance.
Sec. 2-442. Sinking fund.
Secs. 2-443—2-458. Reserved.

Division 4. Contracts and Purchases

*Subdivision I. In General*

Sec. 2-459. Definitions.
Sec. 2-460. City manager to purchase all commodities and services.
Sec. 2-461. Purchase of supplies and materials.
Sec. 2-462. Reserved.
Sec. 2-463. Procurement standards for federally funded projects.
Sec. 2-464. West Virginia Jobs Act responsibilities for public improvement construction projects.
Secs. 2-465—2-470. Reserved.

*Subdivision II. Bids*

Sec. 2-471. When advertising for bids required; publication of advertisement; time for opening of bids; letting of contracts; contracts to be in writing.
Sec. 2-472. Contents of advertisements for bids.
Sec. 2-473. Reserved.
Sec. 2-474. Submission of bids.
Sec. 2-475. Deposits by bidders.
Sec. 2-476. When bidder's deposit forfeited.
Sec. 2-477. Disposition of deposits.
Sec. 2-478. Opening of bids.
Sec. 2-479. Rejection of bids.
Sec. 2-480. Action upon bids; award of contract; authority to reject all bids.

*Subdivision III. Administrative*

Sec. 2-481. Change orders.
Sec. 2-482. Contract cancellation.
Sec. 2-483. Protests.
Sec. 2-484. Use of other competitively-procured government contracts.
Sec. 2-485. Impossible to bid list.
Sec. 2-486. Direct purchases.
Sec. 2-487. Grounds for debarment.
Sec. 2-488. Debarment procedures.
Secs. 2-489—2-510. Reserved.

## Article VII. Boards, Committees and Commissions

### Division 1. Generally

Secs. 2-511—2-530. Reserved.

### Division 2. Beautification Commission

Sec. 2-531. Created; composition; appointment, term and compensation of members; filling vacancies.
Sec. 2-532. Annual organizational meeting; officers; rules; meetings.
Sec. 2-533. Duties.
Sec. 2-534. Expenses of members; finances.
Secs. 2-535—2-550. Reserved.

### Division 3. Charleston Coliseum and Convention Center/Municipal Auditorium Board

Sec. 2-551. Creation; term; vacancies; compensation.
Sec. 2-552. Officers; rules for transaction of business; meetings; records.
Sec. 2-553. Powers and duties.
Sec. 2-554. Finances; capital improvement fees.
Sec. 2-555. Annual and quarterly reports to city council.
Sec. 2-556. Schedule of rates, rentals and other charges for use of services and facilities.
Secs. 2-557—2-580. Reserved.

### Division 4. Central West Virginia Regional Airport Authority

Secs. 2-581—2-600. Reserved.

### Division 5. Charleston Urban Renewal Authority

Secs. 2-601—2-620. Reserved.

### Division 6. Kanawha Valley Regional Transportation Authority

Sec. 2-621. Created; statutory basis; name.
Sec. 2-622. Initial participating governments.
Sec. 2-623. Corporate status; powers and duties.
Sec. 2-624. Number of board members; appointment of city and county members.
Sec. 2-625. Number and distribution of votes of city members.
Sec. 2-626. Board membership open to representatives of other regional governmental bodies.
Sec. 2-627. Availability to authority of services of planning commission.
Sec. 2-628. City not obligated financially except by approval of city council.
Secs. 2-629—2-650. Reserved.

### Division 7. Municipal Building Commission

Sec. 2-651. Created.
Sec. 2-652. Membership; terms; compensation.
Sec. 2-653. Powers and authority.
Sec. 2-654. Financial obligation.
Secs. 2-655—2-680. Reserved.

Division 8. Public Art Commission

Sec. 2-681. Public art commission created.
Sec. 2-682. Composition and organization of commission.
Sec. 2-683. Duties and powers.
Sec. 2-684. Finances and reporting.

Division 9. Charleston Land Trust

Sec. 2-685. Reformation of Charleston Land Trust.
Sec. 2-686—2-689. Reserved.

Division 10. Charleston Historic Landmarks Commission

Sec. 2-690. Findings.
Sec. 2-691. Creation.
Sec. 2-692. Definitions.
Sec. 2-693. Composition and organization.
Sec. 2-694. Powers and duties.
Sec. 2-695. Designation of historic properties and historic districts.
Sec. 2-696. Certificate of appropriateness, review procedures, variances and appeals.
Sec. 2-697. Conflict.
Sec. 2-698. Court action or proceedings to prevent improper changes or illegal conduct.
Sec. 2-699. Violations and penalties.
Sec. 2-700. Notice to county assessor of designation of historic district.
Sec. 2-701. Reporting.
Secs. 2-702—2-710. Reserved.

Division 11. City Center Business Improvement District

Sec. 2-711. Creation of the City Center Business Improvement District.
Sec. 2-712. Board members terms, appointment, powers, and duties.
Sec. 2-713. Creation of fund; rate and manner of fees.
Sec. 2-714. Services within the City Center Business Improvement District.
Sec. 2-715. Description of boundaries of the City Center Business Improvement District.
Sec. 2-716. Continuation or dissolution and other provisions.
Secs. 2-717—2-720. Reserved.

Division 12. Victims Assistance Commission

Sec. 2-721. Victims assistance commission created.
Sec. 2-722. Composition and organization of commission.
Sec. 2-723. Duties and powers.
Sec. 2-724. Finances and reporting.
Secs. 2-725—2-733. Reserved.

**Article VIII. City Service Fee**

Sec. 2-734. Findings.
Sec. 2-735. Definitions.
Sec. 2-736. Declaration as to conduct evidencing the use of a municipal service.
Sec. 2-737. Imposition of fee; rate.
Sec. 2-738. Effective date.
Sec. 2-739. Administrative regulations.
Sec. 2-740. Investigations; power to audit.
Sec. 2-741. Delinquent accounts; penalties.

Sec. 2-742. Enforcement.
Sec. 2-743. Protest; administrative decision; appeal.
Sec. 2-744. Withholding; reporting; payment.
Sec. 2-745. Dedication of revenues.
Sec. 2-746. Severability.
Secs. 2-747—2-750. Reserved.

**Article IX. Energy Benchmarking**

Sec. 2-751. Purpose of energy benchmarking ordinance.
Sec. 2-752. Definitions.
Sec. 2-753. Applicability.
Sec. 2-754. Benchmarking requirement for covered municipal properties.
Sec. 2-755. Benchmarking reporting procedure.
Sec. 2-756. Benchmarking exemptions; time extensions.
Sec. 2-757. Audit of meters and streetlights.
Sec. 2-758. Energy savings program.
Sec. 2-759. Annual report and analysis.
Sec. 2-760. Rulemaking.

## ARTICLE I. IN GENERAL

### Sec. 2-1. Fees for copying aerial maps.

The city collector is authorized and directed to charge a sum according to the fee schedule below for copies of all aerial maps supplied to any person upon request made to the city; however, no charge shall be made for such copies supplied to the city or any other governmental unit, or any of their agencies, bureaus, departments, divisions or instrumentalities, and members of the city council for their official use. The fee schedule is as follows:

CITY OF CHARLESTON
FEES FOR AERIAL MAPPING
JUNE 2000

| *No. of Maps* | *Base Cost* |
|---|---|
| 1—4 | $ 15.00 |
| 5—8 | 30.00 |
| 9—12 | 45.00 |
| 13—16 | 60.00 |
| 17—20 | 75.00 |
| 21—24 | 90.00 |
| 25—28 | 103.00 |
| 29—32 | 120.00 |
| 33—36 | 135.00 |
| 37—40 | 150.00 |
| 41—44 | 165.00 |
| 45—48 | 120.00 |
| 49—52 | 135.00 |
| 53—56 | 150.00 |
| 57—60 | 165.00 |
| 61—64 | 180.00 |
| 65—68 | 195.00 |
| 69—72 | 210.00 |
| 73—76 | 225.00 |
| 77—80* | 240.00 |
| 81—84 | 255.00 |
| 85—88 | 270.00 |
| 89—92 | 285.00 |
| 93—96 | 300.00 |
| 97—100 | 300.00 |
| 101—104 | 315.00 |
| 105—108 | 330.00 |
| 109—112 | 345.00 |
| 113—116 | 360.00 |
| 117—120 | 375.00 |
| 121—124 | 390.00 |
| 125—128 | 405.00 |
| 129—132 | 420.00 |
| 133—136 | 435.00 |
| 137—140 | 450.00 |
| 141—144 | 465.00 |
| 145—148** | 480.00 |
| 149—152 | 495.00 |
| 153—156 | 510.00 |
| 157—160 | 535.00 |
| 161—164 | 550.00 |
| 165—168 | 565.00 |
| 169—172*** | 580.00 |

Total Fee = Base Cost + $5.00/map (paper or CD)
Base Cost + $15.00/map (diskette)

* cheaper to purchase entire city for CD option

** cheaper to purchase entire city for paper option

*** cheaper to purchase entire city for paper option

Entire city (223 maps) $1,200.00 for paper (approximately 19 hours)
$600.00 for CD (approximately 12 hours)
$3,150.00 for diskette (approximately 56 hours)

(Ord. No. 6685, § 2-10.1, 6-19-2000)

### Secs. 2-2—2-30. Reserved.

## ARTICLE II. MAYOR*

### Sec. 2-31. Function.

The mayor shall be the head of the city government and the chief executive officer of the city. It shall be his duty to see that all of the laws and ordinances of the city are enforced; and he shall have general supervision over all executive departments, offices and agencies of the city government.
(Code 1975, § 2-30)

### Secs. 2-32—2-60. Reserved.

## ARTICLE III. CITY COUNCIL†

### DIVISION 1. GENERALLY

### Sec. 2-61. Regular and special meetings.

The city council shall meet in regular public session on the first and third Mondays of each month, at such hour and at such place as shall be specified in the rules of the council, as provided in section 21 of the city's Charter. Special meetings may be called as provided in section 22 of the city's Charter.
(Code 1975, § 2-14)

**Charter references—**Regular council meetings, § 21; special meetings, § 22.

### Sec. 2-62. Same—Annual tax estimate and levy.

Prior to the first day of March in each year the mayor shall fix a date and time between the seventh and 28th days of March, and at a time and on the date so fixed the council shall meet in public session at the council chamber in the city building and shall then and there proceed with the transaction of the business which is the subject of W. Va. Code § 11-8-14. Upon completion of that business, the session shall stand adjourned until a time so fixed by the mayor on the next following third Tuesday in April, at which time it shall reconvene and the council shall proceed in conformity with the provisions of W. Va. § 11-8-14a.
(Code 1975, § 2-15; Bill. No. 6899, § 2-15, 4-15-2002)

**Charter reference—**Annual estimate of receipts and expenditures, Char., § 50.

**State law references—**Meetings for purpose of tax levies, W. Va. Code § 11-8-9; requirement that city clerk forward a fiscal statement to state tax commission, and publish a copy thereof, immediately following the council meeting in March, W. Va. Code § 11-8-14.

### Sec. 2-63. Quadrennial organizational.

(a) At 12:00 noon on the first Monday of January, unless said Monday is a state holiday, in which case on the Tuesday immediately following said holiday, in the year 2023, and every four years thereafter, the mayor-elect and councilmembers-elect shall meet in special public session at the council chamber in city hall, or another appropriate location specified by the mayor-elect in the public meeting notice, and shall be called to order by the incumbent city clerk or, in his or her absence, a deputy or assistant city clerk. The mayor-elect, councilmembers-elect, municipal judge-elect, and treasurer-elect shall then proceed to take the prescribed oath of office, whereupon they shall be deemed to have qualified themselves for the offices to which they, respectively, have recently been elected; provided, that the mayor-elect, municipal judge-elect, and treasurer-elect shall not be deemed to have qualified until he or she shall have given bond as provided in section 25 of the city Charter.

(b) The city council shall then elect a president pro tempore of the council from among the councilmembers, and may then proceed with other business of an organizational nature such as adopting, amending or readopting rules not inconsistent with this Code; filling vacancies in offices for which the appointing authority is the council or the mayor with the approval of the council; the appointment of members of council committees; and other matters relating to the

---

***Charter reference—**Mayor, § 15.

**State law references—**Qualifications of mayors, W. Va. Code § 8-5-7; powers and duties of mayors generally, W. Va. Code § 8-10-1; mayor presiding officer at council meetings, W. Va. Code § 8-9-1; right of mayor to vote in council meetings, W. Va. Code § 8-9-2.

†**State law references—**Proceedings of municipal governing bodies, W. Va. Code § 8-9-1 et seq.; ordinances and ordinance procedures, W. Va. Code § 8-11-1 et seq.; general powers of city, powers, duties and allied relations, W. Va. Code § 8-12-4.

organization of the city government generally. No regular business of city council shall occur at this special public session held once every four years.
(Code 1975, § 2-16; Bill No. 7978, 12-5-2022)

**Sec. 2-64. Clerk of the council.**

(a) The city clerk, in his ex officio capacity as clerk of the council, shall render such secretarial and clerical services for the city council, its committees, its members and presiding officer, as may be imposed upon him by the city's Charter and general laws of the state, this Code, and other ordinances, resolutions and orders of the council; and he shall be the custodian of all records and papers of the council.

(b) The clerk of the council shall prepare summary copies of the minutes of each meeting of the city council and shall transmit by mail one copy to each member of the council and a copy to the mayor within ten days after the meeting is adjourned.
(Code 1975, § 2-17)

**Charter reference—**Clerk to be clerk of council, § 28.

**State law reference—**Keeping of records of all council proceedings, ordinances, etc., W. Va. Code § 8-9-3.

### Sec. 2-65. Authentication of records.

All records of the city council shall be authenticated by the signature of the mayor and attested by the signature of the city clerk.
(Code 1975, § 2-18)

### Sec. 2-66. Sergeant at arms.

(a) The chief of police shall attend all meetings of the city council in the capacity of sergeant at arms; he shall, under directions of the presiding officer, aid in the enforcement of good order and decorum and execute all such process as shall issue under authority of the council.

(b) At the request of the presiding officer of any committee or subcommittee of the city council, the chief of police shall designate a police officer to attend meetings of such committee or subcommittee in the capacity of assistant sergeant at arms, who shall, under directions of the presiding officer, aid in the enforcement of good order and decorum, and execute all such process as shall issue under authority of the council.
(Code 1975, § 2-19)

### Sec. 2-67. Authorized procedure when meeting lacks quorum.

Any number of members of the city council, less than a quorum, which may meet at the time and place appointed for any regular or special meeting of the council, may direct the sergeant at arms and his deputies to compel the attendance of the absent members, or they may adjourn to a subsequent time and direct the sergeant at arms to give notice to the absent members, requiring their attendance at such adjourned meeting.
(Code 1975, § 2-20)

**Charter reference—**Authority of less than a quorum of council to compel attendance of absentees, § 26.

### Sec. 2-68. Disorderly conduct prohibited at meetings of council and council committees.

(a) It shall be unlawful for any person to behave in a boisterous or disorderly manner at any meeting of the city council or any committee of the council, or to cause any disturbance at such meeting, whether by force, shouting or other action tending to disrupt such meeting, or to fail or refuse to obey any ruling or order of the officer presiding at such meeting relative to the orderly procedure of such meeting.

(b) Boisterous or disorderly behavior within the purview of subsection (a) of this section shall include but is not limited to any of the following acts:

(1) Contemptuous or insolent behavior towards the presiding officer or any member of the city council or committee of the council, or its clerk, sergeant at arms or any other officer, while the council or committee is in session.

(2) Any breach of the peace, willful disturbance, or indecent conduct in the presence of such council or committee while so engaged, or so near as to obstruct or interrupt its proceedings.

(3) Violence or threats of violence to any member of such council or committee or any officer, witness or party going to, attending or returning from any council or committee proceeding in respect to anything done or to be done in the course of such proceeding.

(4) Willful resistance to any lawful order of the presiding officer or sergeant at arms at any such meeting.

(c) The presiding officer of the city council or of any committee of the city council shall have plenary power to order that the council chamber or any part of the chamber and adjacent areas be cleared or any person ejected from the council chamber or adjacent areas in the event of disorderly conduct or disturbance which does or tends to interrupt or disrupt the orderly conduct of business by the council or its committee.
(Code 1975, § 2-21)

**Sec. 2-69. Resolutions and record.**

(a) Each resolution shall, before its introduction, be reduced to writing and shall be signed by the person who introduces it; and the clerk of the council shall then number it and, when adopted, shall spread it in full upon the minutes of the city council. The clerk of the council shall then place the original copy of such resolution in his office in a file to be known as the record of resolutions.

(b) Resolutions and portions of resolutions which are repealed or amended by subsequent resolutions or ordinances shall be noted and initialed in the margin by the clerk of the council, so as to show the date and number of the repealing or amendatory ordinance or resolution, but shall not be removed from the record of resolutions.
(Code 1975, § 2-26)

**Sec. 2-70. Adoption of rules of the council; amending, repealing, filing and publication of rules; maintenance of rules in current status.**

(a) The city council may, by resolution as well as by ordinance, make proper rules and regulations for its own government and for the conduct of its meetings, the transaction of its business and the official conduct of its members, and may include in such rules and regulations reasonable penalties for violation; but no such rule shall be inconsistent with the state law, the Charter or this Code. Such rules may include, among other subjects, the following:

(1) Appointment, jurisdiction and duties of standing and special committees of the council.

(2) Attendance at meetings of the council by members and by others.

(3) Investigations and hearings, and compulsory attendance at such investigations and hearings of witnesses and the production of books and papers.

(4) Parliamentary procedure.

(5) Preservation of order at meetings.

(6) Manner and form of petitions, applications and other papers intended for presentation to the council, and related procedures.

(b) Each of the rules of the city council as set out in the appendix to this article on the effective date of this Code shall be effective as and have the status of a resolution of the council on the effective date of this Code, and all other rules of the council theretofore in effect and whether having been established by resolution or ordinance shall then stand repealed and have no force or effect whatever.

(c) All rules adopted pursuant to the provisions of subsection (a) of this section on or after the effective date of this Code shall be spread upon the minutes of the city council and duly entered of record in the office of the clerk of the council and shall be published in this Code in the appendix to this article. As such rules may from time to time be repealed, amended or added to, the file copies of this Code and the record of repealed and amended portions shall be brought up to date and maintained in a current status in the same manner as provided for ordinances in subsections 2-94(b), (c) and (e).
(Code 1975, § 2-27)

**Charter reference—**Council rules, § 20.

**Secs. 2-71—2-90. Reserved.**

DIVISION 2. ORDINANCES*

**Sec. 2-91. General provisions as to adoption and procedures.**

No ordinance shall be passed except by bill and in accordance with the requirements of W. Va. Code § 8-11-4, except where different or additional requirements are specified in other sections of the W. Va. Code, in which event such other different or additional requirements shall be applicable.
(Code 1975, § 2-22)

*__Charter reference—__Ordinances, § 41.
**State law reference—**Ordinances, W. Va. Code § 8-11-4.

### Sec. 2-92. Cases requiring enactment of ordinance.

(a) In the following enumerated cases, the action of the city council shall, except where otherwise provided in W. Va. Code, be by ordinance:

(1) Levying taxes or providing for the collection of fees of any kind.

(2) Requiring a license to do business.

(3) Relating to offenses and penalties.

(4) Authorizing the issuance of bonds or other forms of indebtedness.

(5) Providing for a public improvement.

(6) Providing for the purchase of private property by the city or for the sale of property belonging to the city.

(7) Laying out or vacating a public street, avenue, road, alley or way.

(8) Relating to planning or zoning.

(9) Granting franchises to public utilities.

(10) Providing for a contractual or other agreement with another jurisdiction.

(11) Relating to such other matters as the Charter may require.

(b) The action of the city council shall also be by ordinance in any other case in which an ordinance is required by the provisions of this Code.

(Code 1975, § 2-23)

**State law reference—**Similar provisions, W. Va. Code § 8-11-3.

### Sec. 2-93. Recording and filing; ordinance record book.

Each ordinance when adopted shall be spread in full upon the council records and entered in the ordinance record book as required by section 42 of the city's Charter, and the original copy of the ordinance shall be filed in the office of the city clerk.

(Code 1975, § 2-24)

**State law reference—**Record of proceedings, ordinances, resolutions, etc., required, W. Va. Code § 8-9-3.

### Sec. 2-94. To repeal, amend or add to provisions of this Code, and record; record of repealed and amended portions of Code.

(a) Each bill which proposes an ordinance to repeal, amend or add to any portion of this Code and each bill which proposes an ordinance of a general and permanent nature, though constituting new subject matter, shall be drafted so as to specify the specific section numbers, subsections, etc., of this Code which are to be repealed or amended and, with respect to additions and to new subject matter, so as to provide appropriate chapter, article, section, etc., numbers; and each amendment of and addition to this Code shall be set out in full, and appropriate chapter and article headings and section catchlines shall be included.

(b) Upon the adoption of an ordinance to repeal, amend or add to any portion of this Code, or to include new subject matter in this Code, the clerk of the council shall separate the several chapters, articles, sections, etc., of such ordinance and enter them in their proper places in each file copy of this Code and shall delete from this Code any portion so repealed or amended; and in the margin of each insertion in the file copies of this Code, he shall note and initial the date of passage, effective date and number of the amending or repealing ordinance and, if publication is required, a note as to the time and manner of publication.

(c) Items removed from the file copies of this Code pursuant to subsection (b) of this section shall be maintained by the clerk of the council in a separate looseleaf volume, arranged properly according to their respective chapters, articles, sections, etc.; and each item so removed from the file copies of this Code shall, in the margin of each such item, be noted and initialed by him to show the effective date and the number of both the enacting and repealing or amending ordinances. The volume in which such repealed and amended items are to be included shall be known as the "Record of Repealed and Amended Portions of the Code of the City of Charleston, West Virginia," the purpose of which is to enable city officers and other persons interested to ascertain the status of this Code at any given time in the past; and it

shall also be the duty of the clerk of the council to maintain on file in his office at least one copy of each prior codification or compilation of the city and town ordinances, insofar as copies may be available to him for such purpose.

(d) The requirements of subsection (b) of this section are in addition to the requirement that each ordinance, upon adoption, shall be included in the ordinance record book.

(e) The term "file copies" as used in this section shall mean that copy or those copies, as the case may be, of this Code, certified by the mayor upon adoption, and thereafter maintained on file in the office of the city clerk.
(Code 1975, § 2-25)

**Secs. 2-95—2-130. Reserved.**

## ARTICLE IV. OFFICERS AND EMPLOYEES*

### DIVISION 1. GENERALLY

**Sec. 2-131. Duties of officers and employees.**

The city council shall prescribe the duties of all of the officers and employees of the city where not prescribed by the city's Charter, and it shall be the duty of all such officers and employees to perform faithfully and diligently all the duties so prescribed by the council, and the failure so to do by any officer or employee of the city shall be deemed neglect of duty and good cause for dismissal.
(Code 1975, § 2-1)

*__Charter reference—__Elected officers, § 4.

__Cross references—__Any ordinance providing for salaries or other employee benefits not codified in this Code saved from repeal, § 1-17(8); housing commissioner, § 14-92; assistants and employees of housing commissioner, § 14-93; director and department personnel of consumer protection department, § 34-34; deputy clerk of municipal court, § 38-35; chief of the fire department, § 54-43; chief of police, § 66-31; school crossing guards, § 66-91 et seq.; director and other personnel of parks and recreation department, § 82-42; chairman and secretary of parks and recreation commission, § 82-83; personnel director, § 86-52; chairman and secretary of municipal planning commission, § 90-36; city manager ex officio sanitation inspector, § 98-43; director of refuse collection, § 98-44; officers of sanitary board, § 118-122.

__State law reference—__Authority of city council to prescribe the powers and duties of city officers and employees, W. Va. Code § 8-5-11.

**Sec. 2-132. Authority of deputies, assistants and other subordinates.**

Authority vested in and duties imposed upon city officers by state law, the city's Charter, this Code or other ordinances and resolutions of the city council may, when they so authorize, be exercised or performed by their deputies, assistants and other subordinates, to the extent not prohibited by state law, the city's Charter, this Code or other ordinance or resolution of the city council.
(Code 1975, § 2-29)

**Sec. 2-133. Faithful performance and true accounting bonds required of all officers and of certain agents and employees of city.**

(a) Every officer of the city, whether or not required by the Charter or by any other ordinance of the city or by any order of the city council, and in addition to every city officer, every employee or agent of the city who in the course of his official duties collects, receives, handles or has custody or control of city funds, negotiable instruments or securities of value in excess of $100.00 at any one time, or who collects coins from parking meters regardless of the amount, shall, before entering upon the duties of his office or position and within two weeks after his election or appointment, give bond, with corporate surety, payable to the city, in such amount not less than $1,000.00 as shall be determined from time to time by the city council, and conditioned upon the faithful performance of his duties, a true accounting to give of all city funds, negotiable instruments and securities collected, received or handled by him or coming within his custody or control, and payment to the city; provided, that the bonds of the mayor, health commissioner, chief of police and chief of the fire department, respectively, be in an amount not less than $1,000.00; the bond of the city treasurer be in an amount not less than $60,000.00; the bonds of the city manager and city collector, respectively, be in an amount not less than

$10,000.00; and the bonds of the city clerk, municipal court clerk, municipal court judge and city solicitor, respectively, be in an amount not less than $3,000.00; and provided further, that the bonds of deputies and assistants be in amounts not less than the bonds of their respective principals; and provided further, that during any period when two or more offices or positions are held by the same person, the bond for such person shall be in an amount not less than the highest amount required for any one of such offices or positions.

(b) The city council may adopt a system of blanket faithful performance and honesty building as an alternative to the individual bonds provided in subsection (a) of this section; provided, that the minimum amounts specified in subsection (a) for the offices and positions named shall remain the same as specified.

(c) The city solicitor shall approve all bonds required by this section as to their form and legality; and, unless otherwise provided at any time by the city council, the city clerk shall approve all such bonds, except his own, as to sufficiency, and the mayor shall approve the city clerk's bond as to sufficiency.

(d) The premiums on all such bonds shall be paid by the city.

(e) All bonds required by this section shall be in the custody of the city clerk, except that the bond of the city clerk shall be in the custody of the mayor.
(Code 1975, § 2-2)

**Charter reference—**Bonds, § 25.

**State law references—**Authority to require bonds of city officers and employees, W. Va. Code § 8-12-5(46), (47); official bonds of public officers, W. Va. Code § 6-2-1 et seq.

### Sec. 2-134. Bond required of those authorized to carry firearms.

(a) Each officer, employee and agent of the city who in the course of his official duties is authorized to carry any firearm shall, before entering upon the discharge of his duties, give bond to the city, with corporate surety and in such amount as may be fixed by the city council but not less than $3,500.00, conditioned upon the faithful performance of his duties and for the payment of all damages, judgments and decrees resulting from the negligent or unlawful use of such firearm by himself or by any other person with his knowledge and consent.

(b) The city solicitor shall approve all bonds required by this section with respect to their form and legality, and the premiums shall be paid by the city. The city clerk shall approve all bonds required by this section with respect to their sufficiency unless otherwise provided at any time by the city council.

(c) All bonds required by this section shall be in the custody of the city clerk.
(Code 1975, § 2-3)

### Sec. 2-135. Persons acting in place of those who are absent or disabled or when position is vacant.

When any city officer or employee is absent or disabled or when any office or position in the city government is vacant, the person designated by competent authority to act in the place of such absent or disabled city officer or employee or to hold temporarily the vacant office or position shall have the powers and perform the duties of such absent or disabled officer or employee or appertaining to such vacant office or position.
(Code 1975, § 2-5)

### Sec. 2-136. Conflicts of interest.

(a) It shall be unlawful for any elective or appointive officer or employee of the city to be interested personally, either directly or indirectly or as a member, manager, officer or stockholder of any partnership, business, firm or corporation, in any contract furnishing material, services or supplies to the city or to any contractor or workers for the city, or in any manner whatsoever, whereby the taxpayers of the city shall become the paymaster, either directly or indirectly. Any violation of this subsection shall be a misdemeanor; and upon conviction, such officer or employee shall be deemed to have vacated his office or position; and he shall be fined not less than $50.00 nor more than $500.00.

(b) Subsection (a) of this section shall not be applicable to members of boards of commissions who receive no compensation from the city for their services as such members.

(c) Subsection (a) of this section shall not be applicable to members of the council. No member of the council shall vote on any question before the city council if he is directly and immediately interested in the question.

(Code 1975, § 2-6; Ord. No. 4925, 9-20-1993)

**State law reference—**Authority to so provide, W. Va. Code § 8-5-19.

### Sec. 2-137. Ethics in city government.

(a) The council finds that the financial disclosure provisions of the West Virginia Governmental Ethics Act (W. Va. Code § 6B-1-1 et seq.) have reasonable, necessary and appropriate application to matters involving all elected municipal officials, whether full- or part-time, who derive a salary, payment of wages or other direct remuneration of the city, and does affirm, ratify and adopt the state defined purposes as being the same purposes of this section without specifically republishing the state purposes in this section.

(b) The council further finds that for the purpose of assisting in the administration of the provisions of this section, the financial disclosure provisions as set forth in W. Va. Code §§ 6B-2-6, 6B-2-7 and 6B-2-8 shall be expressly adopted and incorporated as provisions of this section.

(c) Any amendment to any of the statutory provisions of the state which are expressly adopted in and incorporated as provisions of this section shall upon enactment by the state legislature, pursuant to the state prescribed effective date, be deemed to be an amendment to this section unless the city expressly opts not to adopt any such amendment by ordinance duly adopted by the council evidencing the nonadoption of such amendments.

(Ord. No. 4467, 2-4-1991)

**State law reference—**Public ethics, W. Va. Code § 6B-1-1 et seq.

### Sec. 2-138. Standards of conduct of city officers and employees for grants; penalties.

(a) No municipal officer or employee for the city shall accept or receive directly or indirectly from any person known by such officer or employee to be interested in any bid, contract or purchase, by rebate, gift or otherwise, any money or other thing of value whatsoever or any promise, obligation or contract for future reward or compensation when such contract is to be funded in whole or in part by any federal grant funds. Any contract or purchase funded solely by nonfederal funds shall be governed by the provisions of W. Va. Code ch. 61, art. 5A (W. Va. Code § 61-5A-1 et seq.) relating to bribery and corrupt practices.

(b) No municipal officer, employees in the mayor's office, heads of departments, spouses of such persons, or business in which any such person has a direct financial benefit shall accept or receive any grant from the city or administered through the city, unless receiving such grant is based in part upon the person's low- or moderate-income status, as defined by the United States Department of Housing and Urban Development. This prohibition includes prohibiting direct financial payments with the proceeds of city grants to any municipal officer, employees in the mayor's office, heads of departments, spouses of such persons, or business in which any such person has a direct financial benefit from third parties that first received city grant funding. It is not a violation of this subsection if the individual receiving the financial benefit has previously obtained an opinion from the West Virginia Ethics Commission permitting the individual to receive the financial benefit. For the purposes of this subsection, terms used herein shall have the same definition as contained in W. Va. Code § 6B-1-3.

(c) Any person violating subsection (a) of this section relating to federal funds shall be guilty of a misdemeanor and upon conviction shall be punished by a fine not exceeding $500.00 or by imprisonment not exceeding 30 days or by both fine and imprisonment. In addition to the criminal penalty, such officer or employee shall be subject

to such disciplinary action as may be appropriate; and any such contract or purchase entered into shall be null and void.

(d) Any person violating subsection (b) of this section relating to city grants shall be subject to such disciplinary action as may be appropriate; and any such grant awarded shall be null and void.

(Code 1975, § 2-84.1; Bill No. 7928, 4-18-2022)

**Editor's note—**Bill No. 7928, adopted April 18, 2022, amended § 2-138 and in doing so changed the title of said section from "Standards of conduct of city employees for federal grants; penalties" to "Standards of conduct of city officers and employees for grants; penalties," as set out herein.

**State law reference—**Authorized penalty for ordinance violations, W. Va. Code §§ 8-11-1, 8-12-5(57), 8-34-1.

### Sec. 2-139. Right of entry for purposes of inspection.

Whenever any officer or employee of the city is required or authorized by statute, the provisions of this Code or any ordinance, resolution, or pertinent rules and regulations or orders, in order to carry out his duties, to enter any premises or vehicle for the purpose of making an inspection or of anything contained in such premises or vehicle, such officer or employee shall have the right to enter any such premises or vehicle in accordance with law at any reasonable time and upon display of proper identification in pursuance of such duties. This section shall not be construed as purporting to authorize an unreasonable search and seizure prohibited by section 3-6 of the Constitution of West Virginia.

(Code 1975, § 2-7)

**State law reference—**Authority of city to provide for the entering and inspection of private premises, W. Va. Code § 8-12-15.

### Sec. 2-140. Limited authority to administer oaths; false swearing.

(a) The mayor, the presiding officer of the city council for the time being, the presiding officer of any city council committee or of any board, commission or other body of the city government, and each city officer, his deputies and assistants, to whom any sworn report, return, certificate, pledge or statement, whether oral or in writing, is required to be made or submitted by any person pursuant to any provision of this Code or other ordinance or resolution of the city council, shall have authority to administer any required oath; however, nothing in this section shall be construed as purporting to authorize the administration of any oath which, by law, is required to be administered by a judicial officer, notary public or other officer authorized by statute to administer oaths; nor shall this section be construed as purporting to authorize the taking of any acknowledgement of any signature or seal for the purpose of recording in the office of the clerk of the county court or elsewhere other than in the office of the city clerk or some other officer of this city.

(b) It shall be unlawful for any person to whom an oath has been administered pursuant to this section to knowingly make any false report, return, certificate or statement, oral or written, concerning any matter whatsoever in violation of such oath.

(Code 1975, § 2-28)

**State law reference—**False swearing, W. Va. Code § 61-5-2.

### Secs. 2-141—2-160. Reserved.

## DIVISION 2. BENEFITS

### Sec. 2-161. Compensation of city officers and employees.

(a) Officers and employees of the city shall receive as compensation for their services such salaries, wages and other emoluments as may be provided in the annual budget or other action, order, resolution or ordinance of the city council. Fees paid to the city officers and employees for documents or services rendered in the performance of official duty shall be paid over by them to the city and shall not be deemed to constitute compensation to them personally.

(b) Commencing with the third Monday in June 2007, the mayor of the city shall receive as compensation for his services the sum of $100,000.00 per annum; the judge of the municipal court of the city shall receive the sum of $35,000.00 per annum; the treasurer of the city shall receive

the sum of $18,000.00 per annum; and each member of the city council shall receive the sum of $115.00 per meeting, with a maximum yearly compensation of $3,450.00, with payments conditioned upon the councilmember's being present; and commencing with the third Monday in June 2011, each member of the city council shall receive the sum of $200.00 per meeting, with a maximum yearly compensation of $5,600.00, with payments conditioned upon the councilmember's being present. Notwithstanding the compensation set forth in this subsection (b) for the mayor, the judge of the municipal court, and each member of city council, beginning on the first Monday in January 2019, the compensation for the mayor, the judge of the municipal court, and each member of city council shall increase as set forth in subsection (c) herein.

(c) Commencing with the first Monday in January 2019, the mayor of the city shall receive as compensation for services the sum of $125,000.00 per annum; and the judge of the municipal court shall receive as compensation for services the sum of $40,000.00 per annum; and each member of the city council shall receive the sum of $250.00 per City Council meeting attended, with a maximum yearly compensation of $7,000.00 per member.
(Code 1975, § 27-4; Ord. No. 4631, 10-13-1990; Ord. No. 6470, 7-6-1998; Bill No. 7263, 6-4-2007; Bill No. 7733, 3-16-17; Bill No. 7734, 3-16-17; Bill No. 7735, 3-16-17)

**State law reference—**Authority to fix compensation of officers and employees, W. Va. Code § 8-5-12.

### Sec. 2-162. Federal social security.

The city council, having heretofore elected to extend the benefits of title II of the federal Social Security Act to all eligible city officers and employees, as provided in W. Va. Code § 5-7-5, declares that the plan for extending those benefits as heretofore submitted to and approved by the state auditor in his capacity as the state agency shall continue in full force and effect and that the city shall conform to all applicable provisions of W. Va. Code ch. 5, art. 7 (W. Va. Code § 5-7-1 et seq.).
(Code 1975, § 2-12)

**State law reference—**Social security coverage for municipal employees, W. Va. Code § 5-7-5.

### Sec. 2-163. City as participating public employer; state employees retirement system adopted.

The city council, having elected on September 5, 1961, by three-fifths vote of its members, to have the city become a participating public employer and thereby include its eligible officers and employees in the membership of the state employees retirement system, hereby declares that the city shall continue to be a participating public employer and shall conform to all applicable provisions of W. Va. Code ch. 5, art. 10 (W. Va. Code § 5-10-1 et seq.).
(Code 1975, § 2-13)

**State law reference—**Authority of municipality to become participating public employers within state public employees retirement system, W. Va. Code §§ 5-10-16, 8-22-1.

### Sec. 2-164. End of insurance subsidy for retirees who were hired on or after July 1, 2020.

Notwithstanding any provision of this Code or city policy to the contrary, the City of Charleston is hereafter prohibited from paying any subsidy or any portion of the cost of insurance coverage for retired employees whose most recent hire date is on or after July 1, 2020. The City of Charleston shall update all relevant policies to ensure that employees hired on or after July 1, 2020, are not eligible for a health insurance subsidy or contribution when they retire, but that the employee may elect to maintain health insurance coverage and pay the entire premium without any subsidy from the City of Charleston.
(Bill No. 7873, 6-15-2020)

### Secs. 2-165—2-180. Reserved.

## DIVISION 3. CITY MANAGER*

### Sec. 2-181. Powers and duties generally.

The city manager shall be the chief administrative officer of the city, under the supervision and direction of the mayor, and shall have the authority to supervise and direct the executive work and management of the heads of all departments, including the appointment and removal

*__Charter reference—__Manager, § 36.

thereof, with the advice of the Mayor, except as otherwise set forth in this Code. The city manager may prescribe such rules, regulations, and policies as he or she deems necessary or expedient for the conduct of the departments subject to his or her authority, and may negotiate, set, and adjust wages, salaries, and other compensation of city employees subject to annual budget appropriations and the Personnel Rules and Administrative Policies, as promulgated and amended. The city manager shall have the power and authority to revoke, suspend, or amend any rule, regulation, or action promulgated by any officer or employee of any department under his or her supervision or direction. Subject to the provisions of this Code and state and federal law, the city manager shall have the authority to make all contracts for labor, supplies, insurance, and professional services and shall generally perform or oversee the administrative work of the city, shall perform such other duties as council may require of him, and shall possess such other powers and perform such other duties as council may prescribe.
(Code 1975, § 2-31; Bill No. 7712, 9-19-2016)

**Sec. 2-182. Supervision and care of grounds and buildings; leases; improvements.**

Except as may be specifically provided otherwise, the city manager shall be responsible for the management and maintenance of all real property owned by the city.
(Code 1975, § 2-32)

**Sec. 2-183. Custodian of certain papers and records.**

The city manager shall have the custody of all contracts to which the city is a party, all insurance policies, and all books, records and papers relating to the business affairs of the city which are under his supervision.
(Code 1975, § 2-33)

**Sec. 2-184. Personnel Rules and Administrative Policies; duties and authority.**

The city manager shall have the discretion and authority to authorize amendments and additions to the Personnel Rules and Administrative Policies upon consultation with the director of human resources and the city attorney and in the manner set forth in this Code.
(Bill No. 7712, 9-19-2016)

**Secs. 2-185—2-200. Reserved.**

## DIVISION 4. CITY CLERK*

### Sec. 2-201. Custodian of records.

The city clerk shall be the custodian of all records, maps, documents and other papers of the city government for which no other custodian is designated; and he shall keep them secure against all hazards and make them available to the public as provided in section 2-332.
(Code 1975, § 2-34(a))

### Sec. 2-202. Contact with public.

The office of the city clerk is recognized as the principal point of contact between the public and the city government; and all personnel of the city clerk's office shall provide information and guidance to all orderly persons affected by the provisions of this Code or other ordinances or resolutions of the city council, and to those having business to transact in any city department, office or agency.
(Code 1975, § 2-34(b))

### Sec. 2-203. Other powers, duties.

The city clerk shall have such other powers and perform such other duties as may be specified by the mayor or city council.
(Code 1975, § 2-34(c))

### Secs. 2-204—2-220. Reserved.

## DIVISION 5. CITY COLLECTOR

### Sec. 2-221. General duties.

It shall be the duty of the city collector to collect and receive all taxes, fees, assessments, and other charges and debts due the city and for which no other city officer is designated as the collector or recipient; and he shall turn over all money so collected and received by him to the city treasurer periodically not less than once each week.
(Code 1975, § 2-35)

*__State law reference—__Duties of municipal recorders generally, W. Va. Code § 8-10-3.

### Sec. 2-222. Issuance of licenses, permits.

The city collector shall issue all city licenses and permits for which no city officer is designated as the issuing officer.
(Code 1975, § 2-35)

### Secs. 2-223—2-240. Reserved.

## DIVISION 6. CITY SOLICITOR

### Sec. 2-241. Appointment.

There shall be a city solicitor and such number of assistant city solicitors as may be authorized by budgetary appropriation by resolution of the city council, each of whom shall be appointed by and serve at the will and pleasure of the mayor, and who shall receive such compensation as may be prescribed by the city council.
(Ord. No. 4838, § 2-36(a), 5-4-1992; Bill No. 7712, 9-19-2016)

### Sec. 2-242. City solicitor to be general legal counsel; special municipal council authorized.

The city solicitor shall serve as the general legal counsel of the City, shall be the designee of the Mayor for the purposes of W. Va. Code § 8-10-1a, and shall have the authority to employ within the limit of funds appropriated in the city budget for such purpose, assistant city solicitors, and an attorney or firm of attorneys as special municipal counsel, to advise or represent the City in any legal matter. The city solicitor shall supervise and direct all assistant city solicitors and all special municipal counsel employed by city. Consistent with the authority provided in W. Va. Code § 8-10-1a, the authority provided herein may be modified, limited or revoked by the mayor at any time.
(Ord. No. 4838, § 2-36(b), 5-4-1992; Bill No. 7712, 9-19-2016)

### Sec. 2-243. Settlement authority.

The city solicitor, upon the advice and consent of the city manager, shall have the authority to settle or otherwise resolve any claim against the city up to $20,000.00 per claim. Consistent with

this section, the city solicitor and city manager are further authorized to take any other lawful actions necessary to settle or otherwise resolve claims against the city, including, but not limited to, approving and executing settlement agreements or related documents and facilitating non-monetary reparations by the city in lieu of or in addition to the monetary settlement authority set forth herein. Provided, settlement or other resolution of any claim requiring payment by city of more than $20,000.00 shall be submitted to city council by resolution for consideration and approval by city council.
(Ord. No. 7518, 4-2-2012; Bill No. 7712, 9-19-2016)

**Sec. 2-244. Personnel rules and administrative policies; duties and authority.**

The city solicitor shall review all proposed amendments or additions to the personnel rules and administrative policies, shall advise the city manager and the director of human resources with respect to any such proposed amendment or addition, and shall have such further duties and authority as is necessary and required by this Code.
(Bill No. 7712, 9-19-2016)

**Secs. 2-245—2-260. Reserved.**

DIVISION 7. CITY ENGINEER

**Sec. 2-261. Responsibilities.**

The city engineer shall be responsible for all engineering work for the city and shall supervise the planning, designing, constructing and maintenance of city-owned structures, facilities, bridges, roads, water and sewer systems, and all other engineering work and all related activities that may be acquired.
(Code 1975, § 2-38)

**Secs. 2-262—2-280. Reserved.**

DIVISION 8. DIRECTOR OF PUBLIC WORKS

**Sec. 2-281. Powers.**

The director of public works shall be but is not limited to the administrative head of the cemetery department, incinerator department, landfill department, street department and equipment maintenance department, and shall direct and coordinate the personnel, equipment and activities of these public works departments.
(Code 1975, § 2-39)

**Secs. 2-282—2-300. Reserved.**

DIVISION 9. DIRECTOR OF MAYOR'S OFFICE OF ECONOMIC AND COMMUNITY DEVELOPMENT

**Sec. 2-301. Duties.**

The director of the mayor's office of economic and community development shall effect a unified and coordinated effort toward total and complete development of the city in order to provide for a better quality of life for its citizens through improvement of government service and economic growth, and to further coordinate the office of federal and state relations in the city.
(Code 1975, § 2-40.1)

**Secs. 2-302—2-330. Reserved.**

## ARTICLE V. PUBLIC RECORDS

**Sec. 2-331. Secure maintenance of books, records.**

All books of account, contracts, insurance policies and other books, records, documents and papers of importance shall be kept on file in fireproof safes or file cabinets in the city hall, or in safety deposit boxes or other fireproof and secure places authorized by the mayor or city council.
(Code 1975, § 2-8)

### Sec. 2-332. Availability to public of city books and records; protection of books and records.

(a) Except as may be provided otherwise by state law, this Code or other ordinance to safeguard the security of license tax returns, personnel records and other confidential information, all records, books, maps, documents and other papers which are maintained on file in any city office shall be open for inspection and use by citizens of the city and others having an interest during all regular business hours, but none shall be removed from the office of its custodian except by authority of the mayor, the city manager or the city council, or pursuant to a valid subpoena duces tecum issuing from a court or officer having jurisdiction in the premises.

(b) No person shall, without proper authority as provided in subsection (a) of this section, remove from the office of its custodian any record, book, map, file, document or other paper which is maintained on file in any city office or court, without giving written receipt to the custodian; nor shall any person fail to return any such item to its proper custodian within the time set by the custodian for its return.

(c) No person shall willfully destroy, obliterate, secrete, deface, mark upon, disturb the arrangement of, damage or otherwise tamper with any record, book, map, file, document or other paper which is maintained on file in any city office or court.
(Code 1975, § 2-9)

**State law reference—**Alteration, concealment, larceny or destruction of public records, W. Va. Code §§ 61-5-22, 61-5-23.

### Sec. 2-333. Fee for copies of records and documents supplied by city clerk to applicants.

The city clerk is authorized and directed to charge the sum of $0.20 per page for copies of all records and documents supplied to any person upon request made to the clerk; however, no charge shall be made for such copies supplied to the city or any other governmental unit, or any of their agencies, bureaus, departments, divisions or instrumentalities, and members of the city council for their official use.
(Code 1975, § 2-10)

### Sec. 2-334. Public Records Management and Archives Act.

(a) *Declaration of policy.* The council declares that programs for cost efficient and economical management of city records will be to facilitate the incorporation of modern technology and procedures in the day-to-day record-keeping activities of city government and will facilitate and expedite government operations; that records containing information essential to the operation of government and to the protection of the rights and interests of persons must be protected against the destructive effects of all forms of disaster and must be available when needed. It is necessary, therefore, to adopt special provisions for the selection and preservation of historical and essential city records thereby providing for the protection and availability of such information.

(b) *Definitions.* As used in this section:

(1) *Disaster* means any occurrence of fire, flood, storm, earthquake, explosion, epidemic, riot, sabotage or other condition of extreme peril resulting in substantial damage or injury to persons or property within this city, whether such occurrence is caused by an act of God, nature or man, including an enemy of the United States.

(2) *Records* means document, book, paper, photograph, microfilm, sound or video recording or other materials, regardless of physical form or characteristics, made or received pursuant to law or ordinance or in connection with the transaction of official business. Library and museum materials made or acquired and preserved solely for reference or exhibition purposes, extra copies of documents preserved only for convenience of reference, and stocks or publications and of processed documents are not included within the definition of records as used in this section.

(3) *City record* means:

(a) A record of a department, office, commission, board or other agency, however designated, of the city government.

(b) A record of the city council.

(c) A record of the municipal court.

(d) Any record designated or treated as a state record under state law, and which the state mandates a municipality must maintain.

(4) *Agency* means any department, office, commission, boards or other unit, however designated, of the executive branch of city government.

(5) *Preservation duplicate* means a copy of an essential city record which is used for the purpose of preserving such city record pursuant to this section.

(c) *Categories of records to be preserved.* City records which are within the following categories are essential records which shall be preserved pursuant to this section.

*Category A.* Records containing information necessary for the day to day operation of government. Historic records showing policy of Charleston to document history. Records containing information necessary to protect the rights and interest of persons or to establish and affirm the powers and duties of governments in the emergency created by a disaster, for the resumption of operations after a disaster.

(d) *City records administrator.* The city manager is hereby designated the city records administrator, hereinafter called the administrator. The administrator shall establish and administer in the executive branch of city government a public records and archives program, which will apply efficient and economical management methods to the creation, utilization, maintenance and retention, preservation and disposal of city records; and shall establish and maintain a program for the selection and preservation of essential city records and shall advise and assist in the establishment of programs for the selection and preservation of essential city records.

(e) *Duties of administrator.* The administrator shall, with due regard for the functions of the departments concerned:

(1) Establish standards, procedures, and techniques for effective management of records.

(2) Make continuing surveys of paper work operations and recommend improvements in current records management practices including the use of space, equipment and supplies employed in creating, maintaining, storing and servicing records.

(3) Establish standards for the preparation of schedules providing for the retention of city records.

(f) *Duties of department heads.* The head of each department shall:

(1) Establish standards for the preparation of schedules providing for the retention of city records of continuing value for the prompt and orderly disposal of city records no longer possessing sufficient administrative, legal, or fiscal value to warrant their further keeping. Update and recommend changes to schedule.

(2) Select the city records which are essential and determine their category pursuant to this section. In accordance with the rules, and regulations promulgated by the administrator, each person who has custody or control of city records shall (a) inventory the city records in his custody or control; (b) submit to the administrator a report thereon containing such information as the administrator directs and containing these recommendations as to which city records are essential; and (c) biannually review his inventory and his report and, if necessary, revise his report so that it is current, accurate and complete.

(3) Obtain reports from departments as are required for the administration of the program. Ultimate responsibility rests with department head. The department head will designate a person in each department to work with city coordinator.

(4) Establish and maintain an active, continuing program for the economical and efficient management of the records of the department.

(5) Make and maintain records containing adequate and proper documentation of the organization, functions, policies, decisions, procedures and essential transactions of the department designed to furnish information to protect the legal and

financial rights of the city and of persons directly affected by the department's activities.

(6) Submit to the administrator, in accordance with the standards established by him schedules proposing the length of time each city record series warrants retention for administrative, legal or fiscal purpose after it has been received by the department. The head of each department also shall submit lists of city records in his custody that are not needed in the transaction of current business and that do not have sufficient administrative, legal or fiscal value to warrant their further keeping for disposal in conformity with the requirements of subsection (h) of this section.

(7) Cooperate with the administrator in the conduct of surveys made by him pursuant to the provisions of this section.

(8) Comply with the rules, regulations, standards and procedures issued by the administrator.

(9) First obtain the administrator's written approval before purchasing or acquiring any equipment or supplies used or to be used to store or preserve records of his department. If such approval is obtained, the department shall submit a requisition to the finance department together with a copy of the administrator's said approval.

(g) *Rules and regulations.* The administrator shall promulgate such rules and regulations concerning the management and selection and preservation of essential city records as are necessary or proper to effectuate the purpose of this section.

(h) *Essential city records—Preservation duplicates.*

(1) The administrator may make or cause to be made preservation duplicates or may designate as preservation duplicates existing copies of essential city records. A preservation duplicate shall be durable, accurate, complete and clear, and a preservation duplicate made by means of photography, microphotograph photocopying, film or microfilm shall be made in conformity with the standards prescribed therefore by the administrator and American National Standards Institute.

(2) A preservation duplicate made by a photographic, photostatic, microfilm, miniature photographic, or other process which accurately reproduces or forms a durable medium for so reproducing the original, shall have the same force and effect for all purposes as the original record whether the original record is in existence or not. A transcript, exemplification or certified copy of such preservation duplicate shall be deemed for all purposes to be a transcript, exemplification or certified copy of the original record.

(i) *Safekeeping.*

(1) The administrator shall prescribe manner of safekeeping of essential city records and preservation duplicates and may establish, with the approval of city council, storage facilities therefore. The administrator may provide for storage at an offsite location.

(2) When in the opinion of the administrator, the legally designated or customary location of an essential city record is such that the essential city record may be destroyed or unavailable in the event of a disaster caused by an enemy of the United States:

(a) The administrator shall store a preservation duplicate at another location and permit such city record to remain at its legally designated or customary location; or

(b) The administrator shall store such city record at a location other than its legally designated or customary location and deposit at the legally designated or customary location a preservation duplicate for use in lieu of the city record; or

(c) The administrator may store such city record at a location other than its legally designated or customary location, without providing for a pres-

ervation duplicate, upon a determination that it is impracticable to provide for a preservation duplicate and that the city record is not frequently used. Such determination shall be made by the administrator and the regularly designated custodian of such city record, but if they disagree, the determination shall be made by the administrator.

(3) The requirements of subsection (2) of this section shall not prohibit the administrator from removing an essential city record or preservation duplicate from the legally designated or customary location of the city record if a disaster caused by an enemy of the United States has occurred or is imminent.

(j) *Maintenance, inspection and use.*

(1) The administrator shall properly maintain essential city records and preservation duplicates stored by him.

(2) An essential city record or preservation duplicate stored by the administrator may be recalled by the regularly designated custodian of the city record for temporary use when necessary for the proper conduct of his office and shall be returned by such custodian to the administrator immediately after such use.

(3) When an essential city record is stored by the administrator, the administrator, upon request of the regularly designated custodian of the city record, shall provide for its inspection, or for the making or certification of copies thereof, and such copies when certified by the administrator shall have the same force and effect as if certified by the regularly designated custodian.

(k) *Confidential records.* When a city record is required by law to be treated in a confidential manner and is an essential city record, the administrator in effectuating the purpose of this section with respect to such city record, shall protect its confidential nature.

(l) *Review of program.* The administrator shall review periodically but at least once a year the program for the selection and preservation of essential city records, including the classification of records and the provisions for preservation duplicates, and for safekeeping of essential city records or preservation duplicates to ensure that the purposes of this section are accomplished.

(m) *Disposal of records.* No record shall be destroyed or otherwise disposed of by any department of the city, unless it is determined by the administrator and the city clerk that the record has no further administrative, legal, fiscal, research or historical value. The most current copy of The West Virginia Municipality Records Manual is hereby designated by council as retention and disposition schedule of the City of Charleston. The city may amend retention schedule by approval.

(n) *Destruction of nonrecord materials.* Nonrecord materials or materials not included within the definition of records as contained in this section may, if not otherwise prohibited by law, be destroyed at any time by the department in possession of such materials without the prior approval of the administrator. The administrator may formulate procedures and interpretations to guide in the disposal of non-record materials.
(Bill No. 6859, § 1-14, 11-5-2001)

**Secs. 2-335—2-360. Reserved.**

## ARTICLE VI. FINANCE*

### DIVISION 1. GENERALLY

**Sec. 2-361. Fiscal reports, accounts to conform to fiscal year; "fiscal year" defined.**

All fiscal reports, settlements, accounts and statements of the city and of city officers shall

*__Cross references—__Any ordinance promising or guaranteeing the payment of money or authorizing the issuance of bonds or other instruments of indebtedness saved from repeal, § 1-17(4); any ordinance authorizing or approving any contract, deed or agreement saved from repeal, § 1-17(5); taxation, ch. 110.

**State law reference—**Municipal taxation and finance, W. Va. Code § 8-13-1 et seq.

conform to the fiscal year, which begins on July 1 of each calendar year and terminates at the close of business June 30 of the next succeeding calendar year.
(Code 1975, § 2-41)

**Cross reference—**Definitions generally, § 1-2.

**State law reference—**Similar provisions, W. Va. Code § 8-13-17.

### Sec. 2-362. Supervision of finances by finance director.

The finance director shall direct the city auditor in the proper keeping of all accounts and issuing of warrants and shall see that the books pertaining to the funds and finances of the city are properly kept; and it shall be his duty, whenever required to do so, to furnish to the city council any statement of the financial condition of the city or of any particular fund or the fund apportioned to any particular purpose at any time.
(Code 1975, § 2-42)

### Sec. 2-363. City funds and provisions governing such funds.

The city treasurer shall keep the money of the city in such accounts as may be required or authorized by federal or state law, the city's Charter, this Code, or other ordinance or resolution of the city council; and the term "accounts" shall be interchangeable with the term "funds" as,

for example, the "sinking fund," the "withholding tax fund" and the "general fund," subject to the following provisions:

(1) Revenue derived from municipal public works financed by outstanding revenue bonds of the city, in sufficient sums as may be required to meet the principal and interest payments on such bonds and other related finance charges, as provided in W. Va. Code § 8-16-17, and all money arising from any special levy for sinking fund purposes on bonds of the city outstanding (except for interest on special paving and sewer bonds issued under the provisions of W. Va. Code § 8-18-14) and such sums as may be set aside by the city council to make up any deficit in the sinking fund shall be credited to the sinking fund, in the same proportion as fixed in the published estimates made by the city council and upon which such levy was laid, or in the proportion set out by the council in any order directing a deposit to be made to the credit of such fund to meet any deficit.

(2) All money collected on account of interest and sinking fund from assessments against property owners for sewering and paving improvements made under the provisions of W. Va. Code § 8-18-14 shall be deposited to the credit of the paving and sewer fund.

(3) All money arising from the sale of cemetery lots, digging graves, rights-of-way through the cemetery, contributions to the improvement of the cemetery, and funds raised for the improvement of any road or walk in the cemetery shall be deposited to the cemetery fund.

**State law reference—**Special fund for money raised for a public works which, for any reason, cannot be presently constructed, W. Va. Code § 8-13-21.

(4) All deposits which have heretofore been legally diverted by ordinance or lawful order of the city council towards the establishment of special funds for specific purposes shall be deposited to the credit of the special funds to which under such ordinance they properly belong.

(5) All the money received into the treasury from all other sources whatever shall be deposited to the credit of the general fund; provided, the city council may establish a capital reserve fund, to consist of unexpended balances of other funds which may be transferred by order of the city council, subject to the requirements and limitations imposed by W. Va. Code § 8-13-19.

(Code 1975, § 2-43)

### Sec. 2-364. Disbursement of funds to chief of police.

(a) The city treasurer shall, upon written request by the mayor or his designee, disburse to the chief of police or his designee funds, not to exceed $100,000.00, from the municipal accounts. These funds are not to be expended by the chief of police, his designee or any agent of the police department, but are to be maintained, secured and utilized, under guidelines established by the chief of police, as a necessary means of investigating criminal activity. These funds shall be returned to the city treasurer for redeposit to municipal accounts within 72 hours of the initial disbursement.

(b) The policies and procedures necessary for the disbursement, maintenance and security of such funds and the forms necessary to implement such procedures shall be promulgated by the chief of police. These policies, procedures and forms shall be submitted to and approved by the finance committee of the city council, the city treasurer and the city manager. Upon disbursement of any funds pursuant to this section, copies of the necessary procedural forms shall be maintained in the office of the city treasurer for inspection by the proper officials of the city government.

(Code 1975, § 2-43.1)

### Sec. 2-365. Additional provisions as to special funds; establishment of escrows.

In addition to the funds provided in this division, the city council shall have power to establish special funds for any specific purposes, such as, for example, the building of a certain sewer, or

paving of certain portions of a street, the funds to be raised by the parties interested in the improvements and deposited to the credit of such special fund and to be expended only for the purposes of the fund. The city treasurer shall also be authorized to accept any money in escrow under any legal contract made by the city council or city manager, and hold and dispose of such money according to the terms of the escrow agreement or contract.
(Code 1975, § 2-44)

### Sec. 2-366. Money to be deposited in banks designated as city depository, and receipts for deposits.

All city money or money due the city from any source whatever shall be deposited as required by section 58 of the city's Charter, in banks designated by the city council as city depositories, to the credit of "the City of Charleston _____ Fund," designating the fund to which the money should properly go. The city treasurer shall, either in person or through some official of the bank, issue a receipt for all such deposits showing the date of the deposit, the amount deposited, by whom deposited and the fund to which it was credited.
(Code 1975, § 2-45)

**Charter reference—**Depositories, § 58.

**State law reference—**Depositories, W. Va. Code § 8-13-22a.

### Sec. 2-367. Purposes for which expenditures may be made from the several funds of the city.

(a) No expenditures from the sinking fund shall be made except for a purpose lawfully ordained or ordered by the city council and in conformity with the provisions of W. Va. Code § 8-16-17; but the city treasurer, under direction of the city council, shall transfer such fund to the state sinking fund commission as provided by W. Va. Code § 8-16-17.

(b) No expenditure from the paving and sewer fund shall be made except for a purpose for which assessments were levied against property owners or for payments of principal, interest and other charges on outstanding bonds of the city in conformity with the provisions of W. Va. Code § 8-18-14.

(c) All other money coming into the treasury of the city from any source whatever (except from special funds) and deposited to the credit of the general fund may be used by the city in paying the expenses of the city government and for such improvements of city property, streets, sewers, parks and public buildings and places as may be justified by the condition of the city's finances and the laws and ordinances governing the levying, collection and expenditure of the city funds.

(d) No expenditure shall be made from any special fund or fund held in escrow except for a purpose for which such fund or escrow was established.
(Code 1975, § 2-46)

### Sec. 2-368. Disbursement of general fund; contracts in excess of estimated revenue.

The general fund at the time of laying the annual tax levy shall be apportioned by the city council for the several purposes for which it was levied or collected, and for the general needs of the city government, including any deficit in a special tax levied for the sinking fund, but not including special funds; and the council shall, as nearly as possible, keep the expenses of each department or branch of the city service within the limits of such apportionment; but if a saving can be made in the expenses of any one department, such saving may be applied to any deficit which may arise in the apportionment for any other department, and any excess of revenue over and above the estimated collections from any given source during the fiscal year may likewise be applied to any such deficit; but under no circumstances shall the city expend or contract for the expenditure of more money than the amount estimated each year in the annual estimate published in March of each year, as the probable receipts for the fiscal year, plus any money received into the treasury by reason of collections for such fiscal year to the credit of the

general fund, in excess of the amount estimated to be received from any such known source of revenue.
(Code 1975, § 2-47)

**State law reference—**March meetings of local tax levying bodies, W. Va. Code §§ 11-8-9, 11-8-14.

### Sec. 2-369. Accounts of auditor.

An account shall be kept by the city auditor showing the warrants drawn on the several funds each day, which account shall be kept posted up to within 40 hours of the time when the last warrant was drawn; and the account shall be consolidated at the end of each fiscal year into a report as prescribed by W. Va. Code ch. 6, art. 9 (W. Va. Code § 6-9-1 et seq.). Separate accounts shall also be kept by the auditor with all persons from whom the city has purchased supplies or who have performed any work for the city exclusive of those paid on the payroll of the several departments.
(Code 1975, § 2-48)

**State law reference—**Applicability of above-cited statute to municipalities, W. Va. Code § 8-13-18.

### Sec. 2-370. Annual financial statement.

(a) The city auditor, within four weeks after the beginning of each fiscal year, shall prepare on a form to be prescribed by the state tax commissioner and cause to be published a sworn statement revealing:

(1) The receipts and expenditures of the city during the previous fiscal year arranged under descriptive headings;

(2) The name of each person who received more than $50.00 from any fund during the previous fiscal year, together with the amount received and the purpose for which paid; and

(3) All debts of the city, the purpose for which each debt was contracted, its due date, and to what date the interest on the debt has been paid.

Such statement shall be published as a class I legal advertisement in compliance with the provisions of W. Va. Code ch. 59, art. 3 (W. Va. Code § 59-3-1 et seq.), and the publication area for such publication shall be the city.

(b) The city clerk shall transmit to any resident of the city, upon request, a copy of any published statement for the fiscal year designated, supplemented by a document listing the names of each person who received less than $50.00 from any fund during such fiscal year and showing the amount paid to each and the purpose for which paid.

(c) The statement required by subsection (a) of this section shall be sworn to by the city clerk, the mayor and two councilmembers. As soon as practicable following the close of the fiscal year, a copy of any required statement shall be filed by the city clerk with the state tax commissioner and the clerks of the county court and circuit court of the county.
(Code 1975, § 2-49)

**State law reference—**Required report, W. Va. Code § 8-13-23.

### Sec. 2-371. Vouchers.

It shall be the duty of the city auditor to take a voucher from every person to whom a city warrant is issued, except for warrants issued to officers and employees of the city working on fixed salaries or per diem, and except warrants issued on payrolls of departments, and to file the voucher in a jacket in his office; and the jacket shall show the name of the person to whom the warrant was drawn, the number of the warrant, the amount and date thereof, and the fund to which it should be charged. No person shall remove any of the vouchers from the office of the auditor for any purpose; but all books and vouchers may be inspected there at any reasonable time by any committee of the city council, by any member of the council or by any responsible citizen upon request made by him to the council and under the personal supervision of the auditor.
(Code 1975, § 2-50)

### Sec. 2-372. Orders on the city treasurer.

No money, except such as may be paid on city bonds and coupons, shall be paid by the city except upon an order upon the city treasurer, drawn by the city auditor and countersigned by the mayor.
(Code 1975, § 2-51)

**State law reference—**Similar provisions, W. Va. Code § 8-13-22.

### Sec. 2-373. Authority of city auditor upon application for order to pay out money when applicant is indebted to city.

The city auditor, upon application for and prior to drawing an order on the city treasurer to pay out money to any person entitled to such money, may, in the exercise of sound discretion, first ascertain whether such person is delinquent in the payment of any city tax or is otherwise indebted to the city, insofar as such indebtedness, if any, may appear on the city's records. Upon so ascertaining that such person is in fact indebted to the city, the city auditor shall then take proper action pursuant to the established administrative and accounting procedures to apply all or such part of the amount to which such person is entitled to receive from the city to the full or partial payment, as the case may be, of his debt to the city; and if the amount such person is entitled to receive from the city exceeds the amount of his indebtedness to the city, the auditor shall then draw an order on the city treasurer to pay out to such person the amount of such excess; and, in either case, the auditor shall give to such person a memorandum of the entire transaction.
(Code 1975, § 2-52)

### Sec. 2-374. Splitting orders; sufficient funds in treasury.

The city auditor is forbidden to divide or split any order allowed except by special direction of the city council, and no order shall be drawn upon the city treasury unless there is sufficient funds in the treasury appropriated or otherwise authorized to be expended for the purpose and in the amount for which the order is drawn.
(Code 1975, § 2-53)

### Sec. 2-375. Order register.

The city auditor shall keep in an order register the date, number and amount of all city orders issued, with columns showing the funds on which drawn and the purpose for which drawn. Upon every settlement made with the city treasurer, the canceled orders surrendered by him shall be compared by the auditor with the register; and all orders thus found to be paid shall be checked off with red ink, in order to show the amount of outstanding orders.
(Code 1975, § 2-54)

### Sec. 2-376. Loss of order upon city treasurer.

In cases where a city order drawn upon the city treasurer has been lost by or stolen from the holder, the person suffering such a loss may have issued to him, by the finance director, a duplicate of the order on the following conditions: Such party must file with the city auditor an affidavit, setting forth the facts and circumstances of the loss, and specifically describing the order, and he must, moreover, execute to the city, a bond, with security to be approved by the finance director, in a penalty of twice the amount of the order, to indemnify the city in the event of the payment of the order by the city treasurer, or loss by the city in any manner through the issuance of such duplicate order. As soon as the affidavit is filed with the auditor, it shall be the duty of the auditor's office to furnish to the treasurer a memorandum of the loss or theft of the order, stating the date, number, payee and amount of the order, and the fund upon which it is drawn, and notify the treasurer not to pay such order.
(Code 1975, § 2-55)

### Sec. 2-377. Workers' compensation.

(a) The city council, as long as the city has elected to pay compensation and expenses directly under the provisions of W. Va. Code § 23-2-9, shall appropriate each year sufficient funds in an amount to pay into the state workers' compensation fund the city's proper proportion of the expenses of the workers' compensation commissioner, in administering the fund, the required amounts into the surplus fund for the coverage of catastrophe and second injury liability, and to pay all workers' compensation benefits anticipated to be payable that year. In addition to the appropriation of such moneys, the city council shall authorize all other necessary procedures to ensure that all workers' compensation payments shall be paid promptly to its employees or fatally injured employees' dependents and shall direct the purchase of

excess insurance for the purpose of indemnifying the city against losses per accident in excess of a specific retention level to be determined by the mayor and, for the purpose of indemnifying the city against annual losses in the aggregate, in excess of a retention level to be determined by the mayor.

(b) If at any time the city determines that it is no longer in the best interest of the city, its employees or its citizens to continue to pay compensation and expenses directly under the provisions of W. Va. Code § 23-2-9, the city shall immediately advise the state workers' compensation commissioner that it has elected to discontinue paying such compensation and expenses directly as to future claims and shall immediately begin paying into the workers' compensation fund the premiums required to comply with the provisions of W. Va. Code §§ 23-2-1 and 23-2-5. If the city shall elect to discontinue paying such compensation and expenses directly, it shall, nevertheless, remain liable to and shall pay such compensation and expenses directly in claims arising prior to the election to resume payment of such premiums into the workers' compensation fund.

(c) The city council, having determined that it is no longer in the best interest of the city, its employees or its citizens to continue to be in a self-insured status for workers' compensation, certifies that the city has complied with subsection (b) of this section. The city council shall annually approve a workers' compensation policy maintained in conformity with W. Va. Code § 23-2-1, et seq. to provide workers' compensation coverage to its employees. If the city council fails to approve an annual workers' compensation policy, the city manager is hereby vested with the authority to procure a workers' compensation policy that the city manager deems to be in the best interest of the city, its employees, and its citizens.

(Code 1975, § 2-55.1; Bill No. 7992, 5-15-2023)

**Editor's note—**Bill No. 7992, adopted May 15, 2023, amended § 2-377 and in doing so changed the title of said section from "Self-insured status for workers' compensation" to "Workers' compensation," as set out herein.

**State law reference—**Employer self-insurance option, W. Va. Code § 23-2-9.

### Sec. 2-378. Bonds for faithful performance of contracts and franchises.

All bonds given for the faithful performance of the terms of any contract or franchise granted by the city shall be executed by competent corporate surety duly authorized to do business in the state and shall be approved as to form and legality by the city solicitor and by the city manager as to amount, sufficiency and acceptability of the surety.

(Code 1975, § 2-11)

### Secs. 2-379—2-400. Reserved.

## DIVISION 2. BUDGET*

### Sec. 2-401. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

*Spending officer* means the executive head of a spending unit, or a person designated by him.

*Spending unit* means a department, agency or institution of the city government for which an appropriation is requested, or to which an appropriation is made by the city council.

(Code 1975, § 2-56)

**Cross reference—**Definitions generally, § 1-2.

### Sec. 2-402. Powers and duties of finance director.

(a) The finance director, under the immediate direction and supervision of the mayor, shall have the power and duty to:

(1) Exercise general supervision of and make rules and regulations for the government of his department.

(2) Prepare, in accordance with this division, requests for appropriations,

*__State law references—__Authority to provide for budgeting, accounting and record keeping, W. Va. Code § 8-13-18; accounting and reporting requirements, W. Va. Code § 6-9-1 et seq.

estimates of cost, and the forms and contents of the city budget for submission to the city council.

(3) Administer the budget in accordance with this division.

(4) Serve as staff agency to the mayor and city council in the consideration of requests for appropriations and the preparation of the budget document.

(5) Make such investigations and submit such reports as the mayor or city council may require.

(6) Make a continuous study of municipal expenditures and make such recommendations to the mayor for the more economical use of municipal funds as he shall find practicable.

(7) Render assistance to spending officers with respect to the fiscal affairs of spending units.

(8) Make an annual report to the mayor and city council with respect to the conduct of his department and the administration of the municipal finances.

(9) Exercise such other powers as are vested in him by this division or which may be appropriate to the discharge of his duties.

(b) The finance director shall keep himself informed as to the overall financial condition of the city and the status of each of the several city funds, as well as the outstanding indebtedness of the city, and money and securities due and payable to the city and the progress being made in their collection.

(c) Records, reports and other forms of paper work, as well as procedures, established by the finance director shall conform to all applicable requirements and policies of the state tax commissioner, as provided in W. Va. Code §§ 6-9-6 and 11-1-2.
(Code 1975, § 2-57)

**Sec. 2-403. Requests for appropriations.**

(a) *When, by and to whom submitted.* The head of each spending unit shall, on or before February 20 of each year, submit to the finance director a request for appropriations for the fiscal year next ensuing.

(b) *Contents.* A request for appropriations for a spending unit shall specify and itemize in written form:

(1) A statement showing the amount and kinds of revenue and receipts, actually collected as well as anticipated, for the use of the city during the current fiscal year.

(2) A statement, by purposes and objects, of the amount of appropriations requested for the spending unit for the next ensuing fiscal year.

(3) A statement showing the actual and anticipated expenditures of this spending unit for the current fiscal year and estimated expenditures for the next ensuing fiscal year, itemized by purposes and objects, including those from regular and supplementary appropriations, federal aid, private contributions, transfers, allotments from an emergency or contingent fund, and any other expenditures made by or for the spending unit.

(4) A statement showing the number, classification and compensation of persons employed by the spending unit, distinguishing between regular, special and casual employees during the last preceding fiscal year and during the next fiscal year.

(5) A statement showing in detail the purposes for which increased amounts of appropriations, if any, are requested, and giving a justification statement for the expenditure of the increased amount. A construction or other improvement request shall show in detail the kind and scope of construction or improvement requested.

(6) A statement of money claims against the city arising out of the activities of the spending unit.

(7) Such other information as the finance director may request.

(c) *Form.* The finance director shall specify the form and the detail of itemization of requests for appropriations and statements to be submitted by a spending unit. He shall furnish blank forms for this purpose.
(Code 1975, § 2-58)

**State law reference—**Information required by municipal governing bodies each March for levy estimating purposes, W. Va. Code § 11-8-14.

### Sec. 2-404. Appropriations for other than spending units.

A person or organization, other than a spending officer, who desires to request a general appropriation in the city budget shall submit his request to the finance director on or before February 20. The request shall be in the form prescribed by the director and shall be accompanied by a justification statement.
(Code 1975, § 2-59)

### Sec. 2-405. Examination of requests for appropriations.

(a) The finance director shall examine the requests of a spending unit with respect to requested appropriations, itemization, sufficiency of justification statements, and accuracy and completeness of all other information which the spending officer is required to submit.

(b) If the finance director finds a request, report or statement of a spending unit inaccurate, incomplete or inadequate, he shall consult with the spending officer of the unit and require the submission of the requests in proper form and content. The director shall assist spending officers in the preparation of their requests.
(Code 1975, § 2-60)

### Sec. 2-406. Preparation of tentative budget and submittal to city council.

(a) Between February 20 and March 1 of each year, the finance director shall examine and collate all requests for appropriations and prepare for consideration of the city council a tentative budget for the ensuing fiscal year. This tentative budget shall conform to the requirements for the levy estimate, as set out in W. Va. Code § 11-8-14; and it shall be in such form as may be prescribed by the state tax commissioner and shall, inter alia, state the estimated amounts for the next fiscal year with respect to:

(1) Appropriations requested by each spending unit and requested general appropriations.

(2) Amounts and purposes of appropriations requested other than for spending units of the city.

(3) Revenue of each of the funds of the city.

(4) A summary statement of requests and revenues showing the amount of an anticipated surplus or deficit.

(b) At the first meeting of the city council in March of each year, the finance director shall present the tentative budget to the council, together with such supporting data as may be necessary for a clear understanding of, and his written comments and recommendations on the budget; and all such matters shall then be referred by the mayor to the committee on finance and claims, with instructions to submit its report on the budget at the meeting of the council required to be held pursuant to W. Va. Code §§ 11-8-9 and 11-8-14.
(Code 1975, § 2-61)

### Sec. 2-407. Powers of director in administration of expenditures.

The finance director shall supervise and control the expenditures of appropriations made by the city council. The expenditure of an appropriation made by the council shall be conditioned upon compliance by the department with the provisions of this article, and each appropriation made by the council shall be expended only in accordance with this article.
(Code 1975, § 2-62)

**Sec. 2-408. Reports on revenue collections.**

The finance director shall ascertain the collection of the revenue of the city and shall determine each quarter of the fiscal year the proportion which the amount actually collected bears to the collection estimated for that period. The director shall certify to the mayor and city council, as soon as possible after the close of each quarter, and at such other times as the mayor and council may request, the condition of the municipal revenues and of the several funds of the city. For the purpose of this section the director shall have the authority to require all necessary estimates and reports from any spending unit of the city government.
(Code 1975, § 2-63)

**Sec. 2-409. Management accounting.**

The finance director shall formulate the requirements of a system of management accounting for the planning, management and control of city expenditures. The requirements shall include methods for recording the collection of all income, amounts available for expenditure, obligation, encumbrances and disbursements for each department. The director shall certify such requirements to the state tax commissioner and obtain his approval before its adoption. The mayor and finance director shall incorporate the requirements into a system of accounting for the city government. The system shall include the accounts to be kept by the finance director, the city auditor, the city treasurer, city collector and manager. The mayor shall require its use by all spending units.
(Code 1975, § 2-64)

**Sec. 2-410. Expenditure schedules.**

(a) Prior to the beginning of each fiscal year, the spending officer of a spending unit shall submit to the finance director a detailed expenditure schedule for the ensuing fiscal year. The schedule shall be submitted in such form and at such time as the director may require. The schedule shall show:

(1) A proposed monthly rate of expenditure for amounts appropriated for personal services.

(2) A proposed quarterly rate of expenditure for amounts appropriated for current expenses and for equipment, repairs and alterations.

(3) A proposed yearly plan of expenditure for amounts appropriated for buildings and lands.

(b) The finance director may accept a differently itemized expenditure schedule from a spending unit to which the requirements of this section do not apply.

(c) The finance director shall consult with and assist spending officers in the preparation of expenditure schedules.
(Code 1975, § 2-65)

**Sec. 2-411. Examination and approval of schedules; expenditures to accord.**

(a) The finance director shall examine the expenditure schedule of each spending unit and if he finds that it conforms to the requirements of this division and is in accordance with sound fiscal policy, he shall approve the schedule.

(b) The expenditure of appropriations made to a spending unit shall be only in accordance with the approved expenditure schedule unless the schedule is amended with the consent of the finance director, or unless appropriations are reduced by the city council prior to their expenditure.
(Code 1975, § 2-66)

**Sec. 2-412. Reserve for emergencies as part of expenditure schedule.**

The finance director, with the approval of the city council, may require that an expenditure schedule provide for a reserve for emergencies out of the total amount appropriated to the spending unit. The amount of the reserve shall be determined by the director in consultation with the spending officer.
(Code 1975, § 2-67)

**Sec. 2-413. Reports by spending units.**

A spending unit shall submit to the finance director such reports with respect to the work and expenditures of the unit as the director may request for the purposes of this division.
(Code 1975, § 2-68)

**Sec. 2-414. Expenditure procedure.**

(a) No expenditures shall be made and no obligation shall be incurred on behalf of the city until after it has been approved by the finance director. Any expenditure made and any obligation incurred by any official or employee of the city not in accordance with this section shall be an unlawful act.

(b) The spending officer and the city manager shall prepare and submit to the finance director a requisition showing the amount, purpose and appropriation from which the expenditure is requested.

(c) The finance director shall examine the requisition and determine whether the amount conforms to the provisions of this article and to sound fiscal policy.

(d) If the finance director approves the requisition, he shall encumber the proper account in the amount of the requisition and shall transmit the requisition to the manager for purchase in accordance with law.
(Code 1975, § 2-69)

**Sec. 2-415. Requisition for purchases.**

If a requisition is a request for purchase, the finance director, after encumbering the proper account of the spending unit, shall transmit the requisition to the city manager for purchase in accordance with law.
(Code 1975, § 2-70)

**Secs. 2-416—2-440. Reserved.**

## DIVISION 3. BOND ISSUES*

**Sec. 2-441. Authorization for issuance.**

The city may issue its bonds as provided by law, but no bonds shall ever be issued by the city unless their issuance shall have been authorized by a proper ordinance and in strict conformity with and subject to all of the limitations and conditions as set out in the constitution and statutes of the state governing the issuance and sale of municipal bonds.
(Code 1975, § 2-71)

**Sec. 2-442. Sinking fund.**

Whenever any bond of the city is issued, the sinking fund and interest fund created for the liquidation of the principal and interest of the bond shall, as fast as collected, be paid into the hands of the city treasurer to the credit of these funds, and shall then be held by the treasurer in trust and inviolate for the purposes for which the funds are created; and the funds shall cease to be subject to the order of the city council; except, however, the treasurer may transfer such funds to the state municipal bond commission, as provided by law.
(Code 1975, § 2-72)

**State law reference—**Sinking funds required, W. Va. Code § 8-16-17.

**Secs. 2-443—2-458. Reserved.**

## DIVISION 4. CONTRACTS AND PURCHASES†

### *Subdivision I. In General*

**Sec. 2-459. Definitions.**

As used in this division, unless the context clearly requires a different meaning:

(1) *City manager* means the city manager of the City of Charleston or his or her designee, such as the city's purchasing director.

(2) *Commodities* means supplies, material, equipment and any other articles or things used by or furnished to the city.

*__State law reference—__Public bonded indebtedness, W. Va. Code § 13-1-1 et seq.

†__State law reference—__Purchasing and lease authority, W. Va. Code §§ 8-10-10, 8-12-11.

(3) *Contract* means an agreement between the city and a vendor relating to the procurement of commodities or services, or both.

(4) *Debarment* means the exclusion of a vendor from the right to bid on contracts to sell goods or supply services to the city for a specified period of time.

(5) *Debarred vendor* means any vendor debarred by the West Virginia Purchasing Division pursuant to W. Va. Code § 5A-3-33e or debarred by the city, which results in the city's inability to solicit offers from, award contract to, or consent to subcontract with the vendor during the debarment period.

(6) *Electronic transmission* or *electronically transmitted* means any process of communication not directly involving the physical transfer of paper that is suitable for the retention, retrieval and reproduction of information by the recipient.

(7) *Final offer* means a tie-breaking bid submitted subsequent to a bid opening where the apparent lowest bidder and apparent second-lowest bidder submit tied initial bids.

(8) *Impossible to bid list* means a list adopted by the city of commodities or services that are not possible to submit for competitive bid.

(9) *Local vendor* means a responsible vendor who has an active and current business and occupation tax account on file with the city collector for the duration of a period of one year preceding the date on which an applicable bid opening occurs.

(10) *Lowest responsible bidder* means a responsible bidder who has submitted the lowest priced bid and who did not materially deviate from the mandatory terms and conditions contained in the solicitation.

(11) *Responsible bidder* means a bidder who has the capability to fully perform the contract requirements and the integrity and reliability which will assure good-faith performance.

(12) *Non-responsible bid* means a bid that fails to conform to the solicitation in all material respects.

(13) *Non-responsible bidder* means a bidder not having the capability to fully perform the contract requirements and lacking the integrity and reliability which will assure good-faith performance.

(14) *Services* means the furnishing of labor, time, expertise or effort, not involving the delivery of a specific end commodity or product other than one that may be incidental to the required performance.

(15) *Vendor* means any person or entity that may, through contract or other means, supply the city with commodities or services.

(Bill No. 7847, 11-4-2019)

### Sec. 2-460. City manager to purchase all commodities and services.

It shall be the duty of the city manager to supervise the purchase of all commodities and services necessary for the city or for the departments of city government.

(Bill No. 7847, 11-4-2019)

### Sec. 2-461. Purchase of commodities and services.

(a) All commodities and services for the various departments of the city government, not exceeding at any one time the sum of $25,000.00, shall be purchased by the city manager, and every reasonable precaution shall be taken to procure the commodities and services at the very lowest price possible consistent with good service and quality. The city manager is encouraged to first attempt to procure commodities and services from responsible vendors within city limits before contracting with vendors principally operating outside of city limits. All such purchases shall be made upon requisition signed by the officer in charge of the department for which the commodities or services are needed and filed with the city manager. City department employees who receive deliveries from vendors are responsible for inspecting the commodities and services upon delivery

to ensure that purchases meet contractual requirements and are responsible for maintaining records of receipt.

(b) The purchase of commodities and services for the various departments of the city government exceeding at any one time the sum of $25,000.00 shall be approved by the city council, and thereupon the provisions of subsection (a) of this section shall become applicable.

(c) Nothing in this article shall be construed to preclude the purchase by the city of commodities and services by agreement between the city and state director of the West Virginia Purchasing Division, as provided in West Virginia Code § 8-12-10(a).

(d) Nothing in this article shall preclude the city manager from purchasing commodities and services without receiving approval from city council where, in the judgment of the city manager, the failure to immediately purchase the commodities or services, prior to securing council approval, would result in a condition of extreme peril resulting in substantial damages or injury to persons or property within this city, whether such occurrence is caused by an act of God, nature or man, including an enemy of the United States.

(e) No contract may be authorized to any business or individual that is delinquent in any financial obligation to the city or is not operating with all required licenses and permits.
(Code 1975, § 2-83; Ord. No. 4898, 12-2-1993; Bill. No. 6860, § 2-83, 11-5-2001; Bill. No. 6847, § 2-83, 9-17-2001; Bill No. 6875, § 2-83, 1-22-2002; Bill No. 7095, 9-7-2004; Ord. No. 7519, 4-2-2012; Bill No. 7847, 11-4-2019)

### Sec. 2-462. Reserved.

**Editor's note—**Bill No. 7847, adopted November 4, 2019, repealed § 2-462, which pertained to city manager to purchase all supplies and materials and derived from Code 1975 § 2-84.

### Sec. 2-463. Procurement standards for federally funded projects.

For any procurements for projects or services in which federal funds are involved, the method of procurement for projects or services shall be one of the following:

(1) Small purchase procedures;

(2) Competitive sealed bids;

(3) Competitive negotiation; or

(4) Noncompetitive negotiation.

Procurement under any of these methods shall be made pursuant to the procedures set forth in Circular A-102 of the Office of Management and Budget, dated August 15, 1979, and as thereafter amended.
(Code 1975, § 2-84.2; Bill No. 7379, 3-3-2009)

### Sec. 2-464. West Virginia Jobs Act responsibilities for public improvement construction projects.

(a) The city shall abide by the requirements of the West Virginia Jobs Act (W. Va. Code § 21-1C-1 et seq., as amended from time to time) and its Rules (42 C.S.R. § 37-1 et seq., as amended from time to time) which are incorporated herein by reference; and shall meet its responsibilities set forth therein.

(b) This section is only applicable to expenditures for construction projects for public improvements as defined by W. Va. Code §§ 21-1C-2(2) and 21-1C-2(8) and subject to 42 C.S.R. § 37-1 et seq. A construction project is any construction, reconstruction, improvement, enlargement, painting, decorating or repair of any public improvement let to contract in an amount equal to or greater than $500,000.00. It does not include temporary or emergency repairs. A public improvement includes the construction of all buildings, roads, highways, bridges, streets, alleys, sewers, ditches, sewage disposal plants, waterworks, airports and all other structures that may be let to contract by a public authority, excluding improvements funded, in whole or in part, by federal funds.

(c) Pursuant to 42 C.S.R. § 37-3, the city shall include the following statements and information in the bid package when the city solicits bids for a construction project for a public improvement subject to the Act:

(1) Specifications of the employer's responsibilities under the Act as explained in 42 C.S.R. § 37-4, including, but not limited to, the requirement to employ at least 75 percent of employees from the local labor market, with an emphasis on, but not a requirement of, hiring employees from the City of Charleston and Kanawha County.

(2) The employer's responsibility to submit weekly certified payroll records and waiver certificates, if any, to the city; and

(3) Specification of credentials required to work on the construction project, including the employer's West Virginia Contractor License number and classification.

(d) The city shall notify the West Virginia Division of Labor as soon as possible of construction projects that are or will be covered by the Act, including the start date of the project, the project location, and contract number if available.

(e) The city shall notify the West Virginia Division of Labor at least ten days in advance of all pre-bid meetings. This notification shall include dates, times, and locations.

(f) When the project begins, the city shall submit certified payroll records and waiver certificates, if any, to the West Virginia Division of Labor.

(g) The city shall monitor the employer's compliance with the construction project contract, and shall promptly notify the West Virginia Division of Labor, Workforce West Virginia, and the West Virginia Tax Department of other state agency, if applicable, of an employer's possible violations, including actions taken by the city to require the employer's compliance with its contractual obligations.
(Bill No. 7994, 6-5-2023)

**Secs. 2-465—2-470. Reserved.**

*Subdivision II. Bids*

### Sec. 2-471. When advertising for bids required; publication of advertisement, time for opening of bids; breaking of ties; contracts to be in writing.

(a) Whenever any contract is proposed to be entered into by the city involving the expenditure of more than $25,000.00, except where such contract involves the rendering of professional services or where such contract is for commodities and services as referenced in section 2-461, the city manager shall publish a solicitation calling for bids, unless it is decided to do this work with city personnel or others employed by the city for such purposes. The time for opening such bids shall not be less than ten days from the date of the first publication of the solicitation. The solicitation shall be advertised through city websites and may also be advertised in newspapers, newsletters, trade journals, mass emailing, or any other media the city manager considers advisable. When tie bids are received, the city manager may break the tie by allowing the vendors to make a final offer according to procedures adopted by the city manager.

(b) All contracts for the purchase of commodities and services must be in writing.

(c) Nothing in this article is to effect the procurement procedures for design build projects governed by West Virginia Code §5-22A-1 et seq. and section 3-16 of this Code, the procurement procedures for construction contracts governed by West Virginia Code §5-22-1 et seq., or the procurement procedures for architectural or engineering services governed by West Virginia Code § 5G-1-1 et seq. and section 3-15 of this Code.

(d) Nothing in this article shall preclude the city manager from entering into contracts without first advertising for bids and receiving council approval where, in the judgment of the city manager, the failure to immediately enter into a contract, would result in a condition of extreme peril resulting in substantial damages or injury to persons or property within this city, whether

such occurrence is caused by an act of God, nature or man, including an enemy of the United States.
(Code 1975, § 2-73; Bill No. 6846, § 2-73, 9-17-2001; Bill No. 6874, § 2-73, 1-7-2002; Bill No. 7095, 9-7-2004; Ord. No. 7519, 4-2-2012; Bill No. 7847, 11-4-2019)

### Sec. 2-472. Contents of solicitation for bids.

Notice to bidders shall state:

(1) The nature of the work;

(2) The place where the plans and specifications and forms of contract may be seen;

(3) The amount of cash or bond to be deposited with the city treasurer or city manager, as may be required;

(4) The city's local vendor preference guidelines;

(5) The time up to which the bids shall be received and the hour and place of bid opening;

(6) The right of the city council or the city manager to reject any and all bids;

(7) That debarred vendors may not submit bids or be awarded contracts;

(8) That bidders have a right to file a bid protest; and

(9) That the city is exempt from state and local taxes.

(Code 1975, § 2-74; Bill No. 7847, 11-4-2019)

### Sec. 2-473. Reserved.

**Editor's note—**Bill No. 7847, adopted November 4, 2019, repealed § 2-473, which pertained to additional invitations and advertising soliciting bids and derived from Code 1974, § 2-75.

### Sec. 2-474. Submission of bids.

Bids must be submitted in accordance with the procedures established by the city manager. The city manager is authorized, but is not required, to accept bids by electronic transmission with the use of suitable computer software programs or systems approved by the city manager.
(Code 1975, § 2-76; Bill No. 7847, 11-4-2019)

### Sec. 2-475. Deposits by bidders.

The city manager shall determine the applicability and amount of bonds or deposits required of a vendor at any time, if, it is judged that security is necessary to safeguard the city from undue risk. The city manager may require the vendor to submit a certified check, certificate of deposit, performance bond, litigation bond, or any other security acceptable to the city manager, payable to the City of Charleston. Neither personal checks nor company checks are acceptable. Vendors can request that bonds or other security be returned after the purpose for which the bond was provided has been fulfilled. Upon confirmation from the city department or other relevant party that the bond or security in question has fully served its purpose, the city manager may return the bond or security.
(Code 1975, § 2-77; Bill No. 7847, 11-4-2019)

### Sec. 2-476. When bidder's deposit forfeited.

If any bidder to whom a contract shall have been awarded fails to enter into a contract and to furnish approved security within the time specified, his deposit shall be forfeited to the city. The city manager may advertise for new bids or may contract with the next lowest responsible bidder, so long as such vendor honors the price submitted in its bid.
(Code 1975, § 2-78; Bill No. 7847, 11-4-2019)

### Sec. 2-479. Rejection of bids.

The city manager must reject a bid that is found to be non-responsible. The city manager may waive minor irregularities in bids or specifications when the city manager determines such action to be appropriate.
(Code 1975, § 2-81; Bill No. 7847, 11-4-2019)

**Sec. 2-480. Action upon bids; bid evaluation; local vendor preference; award of contract; authority to reject all bids.**

(a) Upon the opening and consideration of all bids by the city manager, he shall submit them to the city council, together with his calculations and recommendations, for appropriate action with respect to awarding the contract.

(b) A local vendor may qualify for a competitive advantage applied to its bid when the following conditions are met:

(1) The vendor has marked on its bid submission that it is requesting to be considered a local vendor for bid evaluation purposes;

(2) The vendor provides documentation evidencing that is has the right to conduct business in the State of West Virginia; and

(3) The vendor submits an affidavit confirming that it has paid all applicable business taxes to the city or has a nondelinquent payment plan with the city and has had an active and current business and occupation tax account with the city collector during the entire preceding one-year period.

(c) Competitive advantages shall be applied in the following manner:

(1) A competitive advantage of 4% shall be applied to the local vendor's bid when, prior to applying the competitive advantage, the apparent lowest responsible bidder submits a bid that is greater than $25,000 but does not exceed $125,000.

(2) The competitive advantage of $5,000 shall be applied to the local vendor's bid when, prior to applying the competitive advantage, the apparent lowest responsible bidder submits a bid that is greater than $125,000.

(d) In evaluating bids, the city manager shall apply the applicable competitive advantage to a qualifying local vendor by deducting the value of the competitive advantage from the local vendor's net total bid amount. The resulting amount will be used in evaluating the bids to determine the lowest responsible bidder.

(e) The contract, if awarded, must be awarded to the lowest responsible bidder. Provided; that no contract shall be awarded to any bidder that is delinquent in any financial obligation to the city or is not operating with all required licenses and permits.

(f) From the time a solicitation is advertised until an award is made, no city employee may communicate with vendors about a solicitation or any component thereof without prior approval from the city manager. All communication regarding a solicitation must be directed to the city manager until an award has been made. Nothing in this subsection, however, shall prevent city employees from communicating with a vendor about existing contracts or other matters unrelated to a pending solicitation.

(g) The council or the city manager shall have the authority to reject all bids.
(Code 1975, § 2-82; Bill No. 7847, 11-4-2019)

*Subdivision III. Administrative*

**Sec. 2-481. Change orders.**

The city manager has the authority and responsibility to review contract change orders just as he or she has authority and responsibility for review and approval of the original contract. Any city department desiring to make a change to a contract must submit a request for the contract change to the city manager for review. City departments must not permit vendors to perform work that is the subject of a change order request until the change order has been approved by the city manager.
(Bill No. 7847, 11-4-2019)

**Sec. 2-482. Contract cancellation.**

(a) The city manager may cancel a purchase or contract immediately under any one of the following conditions including, but not limited to:

(1) The vendor agrees to the cancellation;

(2) The vendor has obtained the contract by fraud, collusion, conspiracy, or is in conflict with any statutory or constitutional provision of the State of West Virginia;

(3) Failure to honor any contractual term or condition or to honor standard commercial practices;

(4) The existence of an organizational conflict of interest is identified;

(5) Funds are not appropriated or an appropriation is discontinued by the council for the acquisition;

(6) Violation of any federal, state, or local law, regulation, or ordinance, and

(7) The contract was awarded in error.

(b) The city manager may cancel a purchase or contract for any reason or no reason, upon providing the vendor with 30 days' notice of the cancellation.
(Bill No. 7847, 11-4-2019)

**Sec. 2-483. Protests.**

(a) Protest of a purchase or contract award may be submitted no later than seven calendar days after the council approves of the award following a formal solicitation and bid opening process administered by the city. When the due date for the protest submission falls on a legal holiday, the protest must be received during the next business day. The vendor is responsible for knowing the bid opening and award dates. Protests received late may be rejected at the option of the city manager.

(b) All protests must be submitted in writing to the city manager and contain the following information:

(1) The name and address of the protestor;

(2) The solicitation number;

(3) A statement of the grounds of protest;

(4) Supporting documentation, if necessary; and

(5) The resolution or relief sought.

(c) Failure to submit this information shall be grounds for rejection of the protest by the city manager.

(d) The city manager shall review the matter of protest and issue a written decision. A hearing may be conducted at the option of the city manager. Continuation or delay of a contract award is at the discretion of the city manager.

(e) The decision of the city manager is final and is not appealable.

(f) The city manager may refuse to review any protests when the matter involved is the subject of litigation before a court of competent jurisdiction; if the merits have previously been decided by a court of competent jurisdiction; or if it has been decided by the city manager in a previous protest.
(Bill No. 7847, 11-4-2019)

**Sec. 2-484. Use of other competitively-procured government contracts.**

Notwithstanding any provision of this Code to the contrary, the city manager may purchase commodities or services without advertising a city solicitation and receiving bids when a responsible vendor has been awarded a contract with a federal or State of West Virginia governmental entity through a competitive selection process. Provided; that for purchases of commodities or services exceeding $25,000 in value, the purchase must be approved by council.
(Bill No. 7847, 11-4-2019)

**Sec. 2-485. Impossible to bid list.**

Notwithstanding any provision of this Code to the contrary, the city adopts the West Virginia Purchasing Division's list of commodities and services that are not possible to submit for competitive bid, as identified in the agency's procedures handbook, which may be amended from time to time. The city manager may contract directly with a responsible vendor who supplies commodities or services identified on the impossible to bid list. Council approval is required when the contract will exceed $25,000. Provided; that the city attorney, with the consent of the city manager, may contract directly with an attorney, law firm, expert witness, or legal consultant considered necessary and suitable in pursuing and defending the city's interests without first seeking council approval.
(Bill No. 7847, 11-4-2019)

**Sec. 2-486. Direct purchases.**

Notwithstanding any provision of this Code to the contrary, the council may approve by resolution to forego these bidding requirements and contract directly with a responsible vendor when,

in the council's sound judgment, it is in the city's best interest to procure certain commodities or services directly from the identified responsible vendor: Provided, that this section does not apply to the procurement of construction contracts, which are governed by W. Va. Code § 5-22-1, or contracts for architectural or engineering services, which are governed by W. Va. Code § 5G-1-1 et seq. and section 3-15 of this Code. Provided further; that this section does not apply when federal statutes or regulations require the city to follow a competitive selection process to apply for or administer federal grants or aid.
(Bill No. 7847, 11-4-2019)

**Sec. 2-487. Grounds for debarment.**

(a) Grounds for debarment are:

(1) Conviction of an offense involving fraud or a felony offense related to obtaining or attempting to obtain a public contract or subcontract;

(2) Conviction of any federal or state antitrust statute relating to the submission of offers; such as price fixing, bid rigging, and market allocation schemes;

(3) Conviction of an offense involving embezzlement, theft, forgery, bribery, falsification, or destruction of records, making false statements, or receiving stolen property related to the performance of a contract;

(4) Conviction of a felony offense demonstrating a lack of business integrity or business honesty that affects the present responsibility of the vendor or subcontractor;

(5) Violation of the terms of a public contract or subcontract for:

a. Willful failure to substantially perform in accordance with the terms of one or more public contracts;

b. Performance in violation of standards established by law or generally accepted standards of the trade or profession amounting to intentionally deficient or grossly negligent performance on one or more public contracts;

c. Use of substandard materials on one or more public contracts or defects in construction in one or more public construction projects amounting to intentionally deficient or grossly negligent performance, even if discovery of the defect is subsequent to acceptance of a construction project and expiration of any warranty thereunder; or

d. A repeated pattern or practice of failure to perform so serious and compelling as to justify debarment; or

(6) Any other cause of a serious and compelling nature amounting to knowing and willful misconduct of the vendor that demonstrates a wanton indifference to the interests of the public and that caused, or that had a substantial likelihood of causing, serious harm to the public.

(b) For the purposes of this section, the term "conviction" includes, but may not be limited to, the entering of a deferred prosecution agreement or a plea of guilty or nolo contendere, including pleading to a lesser or related offense in exchange for some form of prosecutorial leniency.

(c) Pursuant to W. Va. Code § 5A-3-33f, vendors debarred by the West Virginia Purchasing Division are automatically debarred by the city and may not be awarded contracts.
(Bill No. 7847, 11-4-2019)

**Sec. 2-488. Debarment procedures.**

(a) The city manager shall notify the vendor by certified mail of the following:

(1) The reasons for the proposed debarment in sufficient detail to put the vendor on notice of the conduct or transactions upon which the proposed debarment is based;

(2) The causes relied upon for the proposed debarment;

(3) That within thirty calendar days after receipt of the notice, the vendor may submit in writing information and argument in opposition to the proposed debarment;

(4) The procedures governing debarment decision-making; and

(5) The potential effect of the proposed debarment.

(b) The city manager may hold a hearing if the vendor contests the debarment. In any debarment decision, the city manager shall make a specific finding, based on the substantial record, whether the public interest requires that the debarment decision extend to all commodities and services of the vendor, or whether the public interest allows the debarment decision to be limited to specific commodities or services.

(c) In any debarment decision, the city manager shall specify the length of the debarment period. The debarment period must be for the period of time that the city manager finds necessary and proper to protect the public from a non-responsible vendor.

(d) Proof of grounds for debarment must be clear and convincing.

(e) The debarment decision of the city manager is appealable to the Circuit Court of Kanawha County, West Virginia, within 30 calendar days of receiving the decision, and the appeal will be governed by the procedure established in W. Va. Code § 29A-5-4.
(Bill No. 7847, 11-4-2019)

**Secs. 2-489—2-510. Reserved.**

## ARTICLE VII. BOARDS, COMMITTEES AND COMMISSIONS*

### DIVISION 1. GENERALLY

**Secs. 2-511—2-530. Reserved.**

*__Cross references—__City housing commission, § 14-91 et seq.; Spring Hill Cemetery commission, § 22-61 et seq.; board of solicitation review, § 26-1; Shelton-Sentz Neighborhood Redevelopment Select Committee, § 30-1; rehabilitation fund commission, § 30-64; emergency services council, § 42-32; firemen's civil service commission, § 54-46; human rights commission, § 62-41 et seq.; citizens commission of the Charleston Mounted Police Patrol, § 66-111 et seq.; parks and recreation commission, § 82-81 et seq.; municipal planning commission, § 90-31 et seq.; sanitary board, § 118-121 et seq.; committees for rules of council, app. A, rule no. 2; board of zoning appeals, app. B, § 26-1 et seq.

### DIVISION 2. BEAUTIFICATION COMMISSION

**Sec. 2-531. Created; composition; appointment, term and compensation of members; filling vacancies.**

There is created the "Municipal Beautification Commission of Charleston." The commission shall consist of 12 members who shall be appointed by the mayor and confirmed by the city council. All members shall be appointed for terms of three years each and until their successors are duly appointed and qualified; and, to provide staggered terms of office, four members shall be appointed on or before September 19 of each year, to take office on September 19 of the year in which appointed. Vacancies occurring other than by reason of expiration of term of office shall be filled for the unexpired term only. Members shall serve without compensation.
(Code 1975, § 2-152)

**Sec. 2-532. Annual organizational meeting; officers; rules; meetings.**

At its first meeting after the appointment of new members each year, the beautification commission shall elect from its membership a chairman, secretary and such other officers as it determines to be necessary for the performance of its duties. The commission shall adopt such rules and hold such meetings as shall be necessary or convenient for the transaction of its business.
(Code 1975, § 2-153)

**Sec. 2-533. Duties.**

(a) It shall be the duty of the beautification commission to advise and recommend to the mayor or the city council such programs or projects as would, in the opinion of the commission, improve the beauty and general welfare of

the city in a manner consistent with the development and conservation goals contained in the city's comprehensive plan.

(b) The mayor or the council may request the advice or cooperation of the commission for any project or program connected with the beautification, cleanliness or general welfare of the city.

(c) The commission shall submit an annual report to the mayor, generally outlining its program and progress during the previous year.

(d) It shall be the duty of the commission to recommend maintenance and rules of Davis Park, Shanklin Park, Elk River Park and Ruffner.

(e) The commission shall approve recommendations for expenditures from the municipal beautification project fund.

(f) The commission shall, upon recommendation of the department head, approve the citywide consulting horticulturalist and make this recommendation to the finance committee and the city council.

(g) The commission shall serve as the tree board for the city.
(Code 1975, § 2-154; Ord. No. 6298, § 2-154, 5-15-2000; Bill No. 7927, 11-15-2021; Bill No. 7991, 12-18-2023)

**Sec. 2-534. Expenses of members; finances.**

Members of the beautification commission shall be reimbursed by the city for their actual expenses incurred in connection with the performance of their duties, and the city council may appropriate such funds as it deems appropriate to finance the activities of the commission.
(Code 1975, § 2-155)

**Secs. 2-535—2-550. Reserved.**

## DIVISION 3. CHARLESTON COLISEUM AND CONVENTION CENTER/MUNICIPAL AUDITORIUM BOARD*

**Sec. 2-551. Creation; term; vacancies; compensation.**

(a) There is created a board to be known as "The Charleston Coliseum and Convention CenterMunicipal Auditorium Board." The board shall consist of 15 appointed members, two of whom shall be members of the city council, one of whom shall be a representative from the Racing Corporation of West Virginia dba Tri-State Racetrack & Gaming Center, one of whom shall be the President/CEO of the Charleston West Virginia Convention & Visitors Bureau, who shall be appointed by the mayor and confirmed by the council. The city manager shall also be a member of the board, ex officio.

(b) The councilmembers of the board shall serve for terms coextensive with their terms as members of the council; and the other appointed members shall serve for a term of four years each and until their respective successors are appointed and qualified, as follows: On or before June 22 of each year, three members shall be appointed; except that on or before June 22 in the year 1977 and every four years thereafter, only two members shall be appointed. Each member so appointed shall take office on June 22 of the year of his appointment.

(c) Vacancies other than by reason of expiration of term of office shall be filled for the unexpired term only.

(d) Members of the board shall serve without compensation.
(Code 1975, § 2-156; Bill No. 7308, 12-17-2007; Bill. No. 7573, 5-5-2013; Bill No. 7799, 11-19-2018)

**Sec. 2-552. Officers; rules for transaction of business; meetings; records.**

The Charleston Coliseum and Convention Center/Municipal Auditorium Board shall elect from its membership a chairman, secretary and

*__Editor's note—__Retitled from "Civic Center—Auditorium Board" by Bill No. 7799, adopted 11-19-2018

such other officers as it determines to be necessary for the performance of its duties. The board shall adopt such rules as may be necessary for the transaction of its business; hold regular meetings, which shall be open to the public; and keep a record of its official proceedings, an official copy of which shall be filed in the city clerk's office.
(Code 1975, § 2-157; Bill No. 7799, 11-19-2018)

**Sec. 2-553. Powers and duties.**

(a) The Charleston Coliseum and Convention Center/Municipal Auditorium Board shall have power, authority, and duty to supervise, administer, operate, and maintain the municipal civic, cultural, and educational center of the city, located on Civic Center Drive, commonly called the "Charleston Coliseum and Convention Center," and the Municipal Auditorium, located on Virginia and Truslow streets, commonly called the "Auditorium"; to prepare, make, adopt, prescribe, and promulgate instructions, procedures, rules, and regulations appropriate for the management of the Charleston Coliseum and Convention Center and the Auditorium; to provide for the safeguarding of and accountability for all funds derived from and in connection with the operation of the Charleston Coliseum and Convention Center and Auditorium; and to determine, prescribe and collect all charges, fees, and revenue of any kind due to the city for the use of the Charleston Coliseum and Convention Center and Auditorium. However, any schedule of fees, rates, or charges shall be first approved by the city council before being put into effect.

(b) The board shall not allow the property under its control to be used for or in connection with any program or purpose that is prohibited by law or resolution of council.

(c) If a vacancy occurs in the position of general manager, the board may appoint an interim general manager until the mayor makes an appointment pursuant to this subsection. Upon the request of the mayor, the board shall initiate a nationwide search for a new general manager and, upon conclusion of the search and pursuant to the timeline set by the mayor, provide no less than three and no more than seven recommendations to the mayor to fill the general manager position. The mayor shall appoint a general manager, by and with the advice and consent of the council, who shall work with the board to execute a vision for the Charleston Coliseum and Convention Center and Auditorium. The mayor shall fix the compensation of the general manager, subject to council approval, and have the full and complete power of removal of the general manager, subject to any employment contract approved by the board and authorized by resolution of council. The general manager shall have the authority to employ such other employees as are necessary to effectively operate the Charleston Coliseum and Convention Center and Auditorium and to fix the compensation of such employees consistent with the budget approved by council.

(d) Notwithstanding the provisions of subsection (c) of this section, the board may recommend a private management contract in lieu of a general manager employed by the city. In order to proceed with a private management contract, the board shall adopt a formal recommendation to present to city council that details the general terms of the proposal as part of a city council resolution. If city council approves a resolution authorizing a private management contract for the Charleston Coliseum and Convention Center and Municipal Auditorium, the Board shall retain oversight responsibility of the management company and all other relevant provisions of this Code shall apply.
(Code 1975, § 2-158; Bill No. 7799, 11-19-2018; Bill No. 7844, 10-21-2019; Bill No. 7876, 8-3-2020)

**Sec. 2-554. Finances; capital improvement fees.**

(a) All revenue derived from the use and operation of the Charleston Coliseum and Convention Center and the Auditorium shall be paid into the city treasury, in a special fund dedicated to the Charleston Coliseum and Convention Center and the Auditorium. All expenditures from the special fund shall be requisitioned and accounted for in the same manner as general

fund expenditures, and pursuant to all of the purchasing requirements of article IV of this chapter.

(b) In addition to the revenue from the rates for rentals, there shall also be assessed capital improvement fees for the Charleston Coliseum and Convention Center and the Auditorium. Revenue from these capital improvement fees shall be deposited in a separate special fund for the facility where the fee was generated and is to be used to fund building improvements and renovation, repair or replacement of equipment or mechanical systems at each respective facility that are not normally provided for in current fiscal year operating budgets. Items costing less than $15,000.00 will be funded from the operating budgets unless they are unexpected. The capital improvement funds are not intended to be used to fund ordinary maintenance and repairs. The capital improvement funds are not considered to be in lieu of ordinary maintenance and capital improvement items historically included in the Coliseum and Convention Center or Auditorium budgets.
(Code 1975, § 2-159; Bill No. 7799, 11-19-2018; Bill No. 7844, 10-21-2019; Bill No. 7909, 5-18-2021)

**Editor's note—**Bill No. 7909, adopted May 18, 2021, amended the title of § 2-554 to read as herein set out. The former § 2-554 title pertained to finances.

### Sec. 2-555. Annual and quarterly reports to city council.

The Charleston Coliseum and Convention Center/Municipal Auditorium Board shall make a written annual report to the city council detailing the economic impact attributable to the Coliseum and Convention Center and the Auditorium. The annual report shall include, at a minimum, the following information: (1) the number of events, unique attendees, total hotel room nights, and a summary of the direct economic impact figures for the preceding fiscal year, (2) an operations breakdown summarizing food and beverage, community impact, and sustainability efforts, and (3) financial summaries for the previous five fiscal years.

The Charleston Coliseum and Convention Center/Municipal Auditorium Board shall make a quarterly written report to the city council of its operating expenses and finances, due within 30 days of the end of each fiscal quarter.
(Code 1975, § 2-160; Bill No. 7799, 11-19-2018; Bill No. 7844, 10-21-2019)

### Sec. 2-556. Schedule of rates, rentals and other charges for use of services and facilities.

(a) A true copy of the schedule of fees, rates and charges for the use of the Charleston Coliseum and Convention Center and the Auditorium, as approved by the city council pursuant to the provisions of section 2-553, shall be maintained on file in the office of the Charleston Coliseum and Convention Center/Municipal Auditorium Board or the general manager of the Charleston Coliseum and Convention Center and Auditorium.

(b) All fees, rates and charges for the use of the Charleston Coliseum and Convention Center and the Auditorium established or approved by the city council and in effect immediately prior to the effective date of this Code are continued in full force and effect until such time as new fees, rates and charges are determined, prescribed and approved by resolution of city council pursuant to the provisions of section 2-553.
(Code 1975, § 2-161; Bill No. 7799, 11-19-2018; Bill No. 7844, 10-21-2019; Bill No. 7909, 5-18-2021)

### Secs. 2-557—2-580. Reserved.

## DIVISION 4. CENTRAL WEST VIRGINIA REGIONAL AIRPORT AUTHORITY*

**Secs. 2-581—2-600. Reserved.**

## DIVISION 5. CHARLESTON URBAN RENEWAL AUTHORITY†

**Secs. 2-601—2-620. Reserved.**

## DIVISION 6. KANAWHA VALLEY REGIONAL TRANSPORTATION AUTHORITY‡

### Sec. 2-621. Created; statutory basis; name.

There is created and established, pursuant to the provisions of W. Va. Code ch. 8, art. 27 (W. Va. Code § 8-27-1 et seq.), an urban mass transportation authority to be known as the "Kanawha Valley Regional Transportation Authority."

(Code 1975, § 2-162)

**State law reference—**Authority to create, W. Va. Code § 8-27-4.

### Sec. 2-622. Initial participating governments.

The initial participating governments in the Kanawha Valley Regional Transportation Authority shall be the City of Charleston, a municipal corporation, and the county court of Kanawha County, West Virginia, a statutory corporate body.

(Code 1975, § 2-163)

**Editor's note—**As to the participation of the county court of Kanawha County, see orders entered by the court in its order book on Sept. 30, 1970, and on Oct. 5, 1970.

### Sec. 2-623. Corporate status; powers and duties.

The Kanawha Valley Regional Transportation Authority shall be a public corporation and is invested with all the powers authorized by and is directed to perform all of the duties imposed by W. Va. Code ch. 8, art. 27 (W. Va. Code § 8-27-1 et seq.).

(Code 1975, § 2-164)

### Sec. 2-624. Number of board members; appointment of city and county members.

The board of the Kanawha Valley Regional Transportation Authority shall consist of not less than five and not more than 15 members. The initial board shall consist of five members, three of whom shall be appointed by the city council and two of whom shall be appointed by the county court for terms of three years each; except, however, the initial appointments by the city council shall be as follows: one member for a term of one year, one member for a term of two years, one member for a term of three years; and the initial appointments by the county court shall be for terms of one and two years respectively.

(Code 1975, § 2-165)

**Editor's note—**The initial appointments of city members were such that one vacancy occurs in October of each year.

**State law reference—**Similar provisions, W. Va. Code § 8-27-5.

---

*__Editor's note—__The editor's note for chapter 2, article VII, division 2 of the city's 1975 Code reads as follows:

By resolution of the city council adopted April 1, 1968 (see council journal volume 26, page 132), the mayor was directed to execute an agreement with Kanawha County forming the "Kanawha Valley Regional Airport Authority." Thereafter, at its meeting September 16, 1968, the city council, by resolution, ratified and confirmed an agreement by and between the city and county whereby such regional airport authority was established and organized, and directed the mayor to execute such agreement on behalf of the city. The agreement herein referred to is attached to the resolution of Sept. 16, 1968, which is on file in the office of the city clerk. By state and county action, the name was subsequently changed to Central West Virginia Regional Airport Authority.

**State law reference—**Regional airports, W. Va. Code § 8-29-1 et seq.

†__Editor's note—__The editor's note for chapter 2, article VII, division 3 of the city's 1975 Code reads as follows:

By resolution adopted November 15, 1951, a slum clearance authority was created; and the name was changed to urban renewal authority by resolution adopted July 7, 1958.

**State law reference—**Urban renewal authorities, W. Va. Code § 16-18-4.

‡__State law reference—__Urban Mass Transportation Authority Act, W. Va. Code § 8-27-1 et seq.

**Sec. 2-625. Number and distribution of votes of city members.**

The three representatives of the city on the board of the members of the Kanawha Valley Regional Transportation Authority are entitled ten votes, which votes are to be divided equally among the three members with each having 3⅓ votes. If, however, there are less than three members of the city appointed or present at any meeting of the authority, all of the ten votes may be cast by the member present; or in case of two members present, each may cast five votes.
(Code 1975, § 2-165.1)

**Sec. 2-626. Board membership open to representatives of other regional governmental bodies.**

Membership on the board of the Kanawha Valley Regional Transportation Authority shall be open to representatives of other regional governmental bodies who may later so desire, by enacting an appropriate ordinance or order as prescribed by W. Va. Code § 8-27-4, in which event the board created in this division shall increase the membership of the board to such number as it may deem necessary, not to exceed 15. The number of members representing each participating government shall be as agreed upon by the governing bodies of the participating governments.
(Code 1975, § 2-166)

**Sec. 2-627. Availability to authority of services of planning commission.**

The city will make available to the Kanawha Valley Regional Transportation Authority the services of the municipal planning commission upon request.
(Code 1975, § 2-167)

**Sec. 2-628. City not obligated financially except by approval of city council.**

The city shall not obligate itself to participate financially with the Kanawha Valley Regional Transportation Authority except with the approval of the city council.
(Code 1975, § 2-168)

**Secs. 2-629—2-650. Reserved.**

## DIVISION 7. MUNICIPAL BUILDING COMMISSION*

**Sec. 2-651. Created.**

There is created, pursuant to W. Va. Code ch. 8, art. 33 (W. Va. Code § 8-33-1 et seq.), a municipal building commission to be known as the Charleston Building Commission, which shall be a public corporation having perpetual existence and, except as hereinafter expressly limited, shall have all of the power and authority provided in W. Va. Code ch. 8, art. 33 (W. Va. Code § 8-33-1 et seq.), for such a commission.
(Code 1975, § 2-178)

**State law reference—**Authority to create, W. Va. Code § 8-33-1 et seq.

**Sec. 2-652. Membership; terms; compensation.**

(a) All property, powers and duties and the management and control of the municipal building commission shall be vested in a board consisting of representatives, to be known as commissioners, appointed by the city council. Such board shall consist of five members, each to be appointed for a term of five years except for the initial appointments, which shall be made as follows:

(1) The first commissioner appointed shall serve a term of one year from the date this section becomes law.

(2) The second commissioner appointed shall serve a term of two years from the date this section becomes law.

(3) The third commissioner appointed shall serve a term of three years from the date this section becomes law.

(4) The fourth commissioner appointed shall serve a term of four years from the date this section becomes law.

*__State law reference—__Municipal building commissions, W. Va. Code § 8-33-1 et seq.

(5) The fifth commissioner appointed shall serve a term of five years from the date this section becomes law.

(b) As the term of each such initial appointee expires, the successor to fill the vacancy created by such expired term shall be appointed for a term of five years. If any commissioner appointed under this section fails or refuses to qualify within 20 days of appointment or if the position of any commissioner becomes vacant for any reason prior to the expiration of his term of office, a successor shall be appointed by the city council to complete the unexpired portion of such term.

(c) No more than three of the five commissioners shall be from the same political party; and no member of the board of commissioners shall hold any office (other than the office of notary public) or employment under the United States, the state, any county or political subdivision, or any political party. Each commissioner at the time of his appointment shall be a resident of the city. No commissioner shall receive any compensation for his services as such, but each member shall be reimbursed by the commission for any reasonable and necessary expenses actually incurred in the discharge of his duties as a member of the board.
(Code 1975, § 2-179)

**Sec. 2-653. Powers and authority.**

Subject to the procedures and limitations set forth in this division, the municipal building commission shall have plenary power and authority to:

(1) Sue and be sued.

(2) Contract and be contracted with.

(3) Adopt, use and alter a common seal.

(4) Make and adopt all necessary, appropriate and lawful bylaws and rules and regulations pertaining to its affairs.

(5) Elect such officers, appoint such committees and agents, and employ and fix the compensation of such employees and contractors as may be necessary for the conduct of the affairs and operations of the commission.

(6) Acquire, purchase, own and hold any property, real or personal, and acquire, construct, equip, maintain and operate public buildings, structures, projects and appurtenant facilities, of any type for which the city council is permitted by law to expend public funds.

(7) Apply for, receive and use grants-in-aid, donations and contributions from any source, including but not limited to the United States or any of its departments or agencies, and accept and use bequests, devises, gifts and donations from any source whatsoever.

(8) Sell, encumber or dispose of any property, real or personal.

(9) Issue negotiable bonds, notes, debentures or other evidences of indebtedness and provide for the rights of the holders; incur any proper indebtedness; and issue any obligations and give any security which it may deem necessary or advisable in connection with exercising powers as provided in this division.

(10) Raise funds by the issuance of revenue bonds in the manner provided by the applicable provisions of W. Va. Code ch. 8, art. 16 (W. Va. Code § 8-16-1 et seq.), without regard, to the extent provided in W. Va. Code § 8-33-5, to the limitations specified in W. Va. Code § 8-33-5, it being hereby expressly provided that for the purpose of the issuance and sale of revenue bonds, such commission is a governing body as that term is used in W. Va. Code § 8-33-5 only.

(11) Exercise the power of eminent domain in the manner provided in W. Va. Code ch. 54 (W. Va. Code § 54-1-1 et seq.) for business corporations, for the purposes set forth in subsection (6) of this section, which purposes are declared to be public purposes for which private property may be taken or damaged.

(12) Lease its property or any part of its property, for public purposes, to such persons and upon such terms as the commission deems proper; but when any municipality or county commission is a lessee under any such lease, such lease must contain a provision granting to such municipality or county commission the option to terminate such lease during any fiscal year covered by the lease.

(13) Do all things reasonable and necessary to carry out the powers specified in this section.

(Code 1975, § 2-180)

**State law reference—**Similar provisions, W. Va. Code § 8-33-4.

### Sec. 2-654. Financial obligation.

No indebtedness of any nature of the municipal building commission shall constitute an indebtedness of the city or a charge against any property of the city. No indebtedness or obligation incurred by the commission shall give any right against any member of the governing body of the city or against any member of the board of the commission. The rights of creditors of the commission shall be solely against the commission as a corporate body and shall be satisfied only out of property held in its corporate capacity.

(Code 1975, § 2-181)

**State law reference—**Similar provisions, W. Va. Code § 8-33-5.

### Secs. 2-655—2-680. Reserved.

## DIVISION 8. PUBLIC ART COMMISSION*

### Sec. 2-681. Public art commission created.

There is hereby created the "City of Charleston Public Art Commission" and it shall exist as an agency of the city to provide planning, advocacy, and funding of public art projects in the city. The public art commission shall be staffed by the city's director of the office of public art.

The Wayfinding Commission previously created in this division is hereby eliminated and all duties of the Wayfinding Commission are transferred to the departments of the City of Charleston.

(Bill No. 7927, 11-15-2021)

### Sec. 2-682. Composition and organization of commission.

(a) *Composition.* The City of Charleston Public Art Commission shall consist of nine members, each appointed by the mayor. Of the nine members, one shall be an artist that is experienced or informed about public art, one shall be a member of city council, one shall be an art professional, such as an artist, curator, administrator, art historian, or educator, one shall be an urban planner or developer, one shall be an architect, landscape architect, or a horticulturist, and four shall be members of the general public who work or reside in Charleston.

(b) *Terms of service.* To provide staggered terms, the initial appointments of members other than the council member shall be made such that two appointments are for a one-year term, two appointments are for a two-year term, two appointments are for a three-year term, and two appointments are for a four-year term. Each such member shall serve until their successors are duly appointed and qualified. Following the initial appointments, all appointments shall be for a term of four years. The council member of the commission shall serve for a term coextensive with their term as a member of council. Vacancies other than by reason of expiration of term of office shall be filled for the unexpired term only.

(c) *Service without compensation.* All members shall serve without compensation, but may be reimbursed for reasonable expenses arising out of the performance of their duties provided there has been advance approval for such expenses from the director of the office of public art.

*__Editor's note—__Bill No. 7927, adopted Nov. 15, 2021, repealed the former Div. 8, §§ 2-681—2-684, and enacted a new Div. 8 as set out herein. The former Div. 8 pertained to Wayfinding Commission and derived from Bill. No. 6936, §§ 2-181—2-184, adopted Nov. 4, 2002; Bill No. 7043, adopted March 15, 2004; and Bill No. 7201, adopted July 3, 2006.

(d) *Governance.* Members of the commission shall select annually from its membership a chair, a vice-chair, and any other officers as it determines necessary for the performance of its duties. The commission may adopt such rules or by-laws as may be necessary for the transaction of its business.

(e) *Meetings.* Meetings of the commission shall be open to the public and be properly noticed in accordance with the Open Governmental Proceedings Act, W. Va. Code ch. 6, art. 9A. The commission shall meet quarterly, and may meet more frequently if it elects. The Director of the Office of Public Art shall provide an agenda for meetings of the commission to the city clerk for posting consistent with the Open Governmental Proceedings Act at least three business days prior to any meeting.

(f) *Quorum.* A majority of the members of the commission shall constitute a quorum. A majority vote of the members present at a meeting shall be required for any action or decision of the commission.
(Bill No. 7927, 11-15-2021)

**Sec. 2-683. Duties and powers.**

(a) The public art commission's duties shall include, but not be limited to:

(1) Identifying opportunities to collaborate on commissions for public art and educational programs with other organizations and committees;

(2) Identifying resources outside of the Charleston Fund for Public Art for commissioning new work, conservation, maintenance, and educational programs within the city;

(3) Approving requests for the placement of a mural on any outside wall, façade or other surface of a building or structure within the city.

(4) Working with the office of public art to create a public art strategy for the City of Charleston, which shall include a flexible road map for acquisition and maintenance of public art based on available opportunities and funding sources.

(Bill No. 7927, 11-15-2021)

**Sec. 2-684. Finances and reporting.**

The commission shall prepare an annual report of the public arts strategy and an annual budget that incorporates allocations from Charleston's Fund for Public Art and any other available funding sources. The annual term for the report and budget shall be based on the city's fiscal year. The report and budget shall be presented to council annually at the second meeting in December.
(Bill No. 7927, 11-15-2021)

DIVISION 9. CHARLESTON LAND TRUST*

**Sec. 2-685. Creation and purpose.**

The Charleston Land Trust Commission, referred to and known as the Charleston Land Trust, is hereby converted to the conservation division of the Charleston Land Reuse Agency, as set forth in chapter 65 of this Code. Any public trust lands owned by the city in the name of the Charleston Land Trust shall be transferred to the Charleston Land Reuse Agency within 90 days of the effective date of this section. All bank accounts or other interest in property currently held by the Charleston Land Trust shall be transferred to the Charleston Land Reuse Agency within 90 days of the effective date of this section.
(Bill No. 7829, 8-19-2019)

**Editor's note—**Bill No. 7829, adopted August 19, 2019, repealed the former § 2-685, and enacted a new § 2-685 as set out herein. The former § 2-685 pertained to creation and purpose of Charleston Land Trust and derived from Bill No. 7032, 3-1-2004.

**Sec. 2-686. Reserved.**

**Editor's note—**Bill No. 7829, adopted August 19, 2019, repealed § 2-686, which pertained to public trust lands defined and derived from Bill No. 7032, 3-1-2004; Bill No. 7333, 7-7-2008.

---

*__Editor's note—__Bill No. 7032, adopted Mar. 1, 2004, amended the Code by adding new provisions to be set out as div. 8. Chapter 2 already contains a div. 8, hence these provisions have been redesignated as a new div. 9, at the discretion of the editor.

### Sec. 2-687. Reserved.

**Editor's note—**Bill No. 7829, adopted August 19, 2019, repealed § 2-687, which pertained to composition and organization and derived from Bill No. 7032, 3-1-2004; Bill No. 7333, 7-7-2008.

### Sec. 2-688. Reserved.

**Editor's note—**Bill No. 7829, adopted August 19, 2019, repealed § 2-688, which pertained to duties and powers and derived from Bill No. 7032, 3-1-2004.

### Sec. 2-689. Reserved.

**Editor's note—**Bill No. 7829, adopted August 19, 2019, repealed § 2-689, which pertained to finances and reports and derived from Bill No. 7032, 3-1-2004; Bill No. 7333, 7-7-2008.

## DIVISION 10. CHARLESTON HISTORIC LANDMARKS COMMISSION

### Sec. 2-690. Findings.

It is hereby declared as a matter of legislative determination:

(a) That the City of Charleston is richly endowed with numerous historic buildings, structures, sites and districts which represent the historical, architectural and cultural heritage of the city;

(b) That Charleston's heritage, represented by such historic buildings, structures, sites and districts can best be identified, studied, preserved and protected for the general welfare of residents of the city by authorizing and empowering action for this purpose at the local level;

(c) That the preservation and protection of such historic buildings, structures, sites and districts aid economic development through revitalization of the city's central business district and urban neighborhoods, improvement of property values and enhancement of the city's historic attractions to tourists and visitors; and aid the development of education by preservation of such heritage for future generations;

(d) That the preservation of this heritage is essential to the promotion of the prosperity, education and general welfare of the people; and

(e) That city council hereby finds that it is the public policy and the public interest of this city to engage in a comprehensive program of historic preservation, undertaken at all levels of government, along with the private sector, to promote the use and preservation of such heritage for the education and general welfare of the people of this city; and, accordingly, this division shall be broadly construed in order to accomplish the purposes herein set forth.

(Bill No. 7202, 7-17-2006)

### Sec. 2-691. Creation.

The Charleston Historic Landmarks Commission is hereby created and shall exist as an agency of the city to identify study, preserve and protect the historic landscape. The creation of the commission is authorized by W. Va. Code § 8-26A.
(Bill No. 7202, 7-17-2006)

### Sec. 2-692. Definitions.

As used in this division:

*Exterior architectural features* include the architectural character and general composition of the exterior of a structure, including, but not limited to, the type and texture of the building material, design and character of all windows, doors, light fixtures, signs, other appurtenant elements and natural features when they are integral to the significance of the site, all of which are subject to public view from a public street, way or place.

*Historic district* is a geographically definable area possessing a significant concentration, linkage or continuity of sites buildings, structures or objects united historically or aesthetically by plan or physical development.

*Historic landmark* is a site, building, structure or object designated as a "landmark" either on a national, state or local register.

*Historic site* is the location of a significant event, a prehistoric or historic occupation or activity, or a building or structure, whether standing, ruined or vanished, where the location itself possesses historical, cultural or archaeological value regardless of the value of any existing structure.

*Secretary of the Interior's Standards* are the standards and guidelines adopted and published by the National Park Service, United States Department of the Interior, for the rehabilitation of historic sites or properties.

*State historic preservation office* is the subdivision of the West Virginia Division of Culture and History charged with the administration of federal and state laws, rules and regulations applicable to historic sites or properties, historic landmarks and historic districts or real properties, structures, buildings and other improvements that are eligible to become historic sites, historic landmarks and historic designations based on the Secretary of the Interior's Standards.
(Bill No. 7202, 7-17-2006)

**Sec. 2-693. Composition and organization.**

(a) *Composition.* The Charleston Historic Landmarks Commission shall consist of five members and shall be comprised as follows: an architect meeting the professional qualification standards published in the Code of Federal Regulations, 36 CFR Part 61; a structural historian meeting the professional qualification standards published in the Code of Federal Regulations, 36 CFR Part 61; a real estate professional or person with experience renovating historic buildings; a member of city council or a member of the municipal planning commission; and an interested citizen or layperson. All members shall have a demonstrated interest, competence or knowledge in historic preservation and local history and, to the extent available in the community, shall be preservation-related professionals. Members who are not professionally qualified shall demonstrate a vocational experience in preservation and associated disciplines. Members shall reside within the City of Charleston and shall represent diverse geographic areas of the city. No employee of the City of Charleston shall be eligible to serve on the commission.

(b) *Election and terms of service.* Members shall be appointed by the mayor with the advice and consent of city council and shall serve initial terms of one year, two years, two years, three years and three years respectively, with all subsequent terms to be of three years duration. Vacancies shall be filled by election for the unexpired term in the same manner as provided above.

(c) *Service without compensation.* All members shall serve without compensation but may be reimbursed for reasonable expenses arising out of the performance of their duties.

(d) *Governance.* Members of the commission shall select annually from its membership a chairman, vice-chairman, treasurer and other officers as it determines necessary for the performance of its duties.

(e) *Meetings.* The commission shall meet monthly and may meet more frequently if it elects. The commission may convene its meetings on the site or sites of real properties in issue with the consent of property owners.

(f) *Quorum.* A majority of the members of the commission shall constitute a quorum. A majority vote of the members present at a meeting shall be required for any action or decision of the commission.

(g) *Parliamentary procedure.* The commission shall adopt such rules and hold such meetings as shall be necessary or convenient for the transaction of its business under established rules of parliamentary procedure.
(Bill No. 7202, 7-17-2006; Bill No. 7946, 2-7-2022)

**Sec. 2-694. Powers and duties.**

The Charleston Historic Landmarks Commission shall have the following powers and duties:

(a) Make a survey of, and designate as historic landmarks, buildings, structures and districts which constitute the principal historical and architectural sites which

are of local, regional, statewide or national significance in accordance with section 2-695 of this division;

(b) Prepare a register of buildings, structures, sites and districts which meet the requirements of subsection (a) of this section, publish lists of such properties and, with the consent of the property owners, inspect such properties from time to time and publish a register thereof from time to time setting forth appropriate information concerning the registered buildings, structures, sites and districts;

(c) Review applications for certificates of appropriateness and grant or deny the same in accordance with section 2-696 of this division;

(d) With the consent of the property owners, mark with appropriately designed markers, buildings, structures and sites which it has registered;

(e) Establish standards for the care and management of designated historic landmarks and withdraw such certification for failure to maintain the standards so prescribed;

(f) Acquire by purchase, gift or lease and administer registered landmarks and easements and interests therein, both real and personal;

(g) Lease or sell property so acquired under terms and conditions designed to ensure the proper preservation of the historic landmark in question;

(h) Aid and encourage the city to adopt ordinances and resolutions for the preservation of landmarks and historic districts, their buildings, structures and character;

(i) Prepare and place historical markers on or along the highway or street closest to the location which is intended to be identified by such marker;

(j) Seek the advice and assistance of individuals, groups and departments and agencies of government who or which are conducting historical preservation programs and coordinate the same insofar as possible;

(k) Seek and accept gifts, bequests, endowments and funds from any and all sources for the accomplishment of the functions of the commission;

(l) Adopt rules and regulations concerning the operation of the commission, the functions and responsibilities of its officers, employees, assistants and other personnel and such other matters as may be necessary to carry out the purposes of this division; and

(m) Adopt such other rules and regulations as may be deemed necessary to effectuate the purposes of this division, but no such rules and regulations shall be inconsistent with any plan of the municipal planning commission: *Provided,* that in no case shall such rules and regulations take precedence over the duly enacted ordinances of the city.

(Bill No. 7202, 7-17-2006)

### Sec. 2-695. Designation of historic properties and historic districts.

Properties and districts may be designated as historic in one of three manners as outlined below. Section (a) designates a structure, site or district as historic solely in an effort to honor its significance. Section (b) designates a structure, site or district as historic and subject to a temporary stay of demolition. Section (c) designates a structure, site or district as historic and subject to both a temporary stay of demolition and design review.

(a) Prior to designation of a historic landmark or historic district, the commission shall make or cause to be made a report on the historical, cultural, architectural significance of each building, structure, site and district proposed for designation, based upon the following standards:

(1) No building, structure, site or district shall be deemed to be a historic one unless it has been prominently

identified with or best represents, some major aspect of the cultural, political, economic, military or social history of the city, region, state or nation, or has had a major relationship with the life of a historic personage or event representing some major aspect of, or ideals related to, the history of the city, region, state or nation. In the case of buildings or structures which are to be so designated, they shall embody the principal or unique features of an architectural type or demonstrate the style of a period of our history or method of construction, or serve as an illustration of the work of a master builder, designer or architect whose genius influenced the period in which he worked or has significance in current times.

(2) The commission shall submit such report, including maps and photographs as necessary, to the State Historic Preservation Office and the West Virginia Division of Culture and History. In the case of a report for a proposed historic district, the commission shall submit with the report a map showing boundaries of the proposed district.

(b) In the event that a historic district or historic property is to be subject to a temporary stay of demolition by the historic landmarks commission, the commission shall make or cause to be made a report on the historical, cultural, architectural significance of the structure, site or district as outlined in section (a) above and upon a nomination by the commission, the city council shall hold a public hearing on the proposed designation of the historic property or historic district, and on the temporary stay of demolition requirements for the historic district. Notice of the hearing shall be published at least two times in the principal newspaper of general circulation within the city; and written notice of the hearing shall be mailed by the commission to all owners of such properties. All the notices shall be published or mailed not less than ten nor more than twenty days prior to the date set for the public hearing. Following the public hearing, the local governing body may designate the property or properties as historic and subject to a temporary stay of demolition, and approve, amend or reject the proposed regulations or requirements.

(c) In the event that a historic district or historic property is to be subject to both a temporary stay of demolition and review of certificates of appropriateness by the historic landmarks commission, the commission shall make or cause to be made a report on the historical, cultural, architectural significance of the structure, site or district as outlined in section (a) above and upon a nomination by the commission, the city council shall hold a public hearing on the proposed designation of the historic property or historic district, and any proposed regulations and requirements for the historic district. Notice of the hearing shall be published at least two times in the principal newspaper of general circulation within the city; and written notice of the hearing shall be mailed by certified mail with signed return receipt required by the commission to all owners and occupants of such properties. All the notices shall be published or mailed not less than ten nor more than 20 days prior to the date set for the public hearing. Following the public hearing, unless the owner of a proposed property or 50 percent of the ownership interest in a proposed district objects in writing by a notarized letter to such designation or regulations and requirements within thirty days following the public hearing, the local governing body may designate the property or properties as historic, and approve, amend or reject the proposed regulations or

requirements. The notarized letter must state the party is the sole or partial owner of the property.

Within 30 days following such designation or approval, the owners and occupants of each designated historic property shall be given written notification of such designation or approval by city council, which notice shall apprise said owners and occupants of the necessity of obtaining a certificate of appropriateness prior to undertaking any material change in the appearance of the historic site, property or landmark designated or within a historic district.

(d) Any such designated historic landmark or district designated under this division shall be shown on the official zoning map of the city and kept by the city as a public record to provide notice of such designation in addition to other such notification requirements of this section.

(e) The East End Historic District shall be deemed a lawfully created historic district at the time of enactment of the creation of the historic landmarks commission and shall be subject to rules and regulations in regard to review of certificate of appropriateness's by the historic landmarks commission.

(Bill No. 7202, 7-17-2006; Bill No. 7628, § 1, 9-9-2014)

**Sec. 2-696. Certificate of appropriateness, review procedures, variances and appeals.**

(a) The Charleston Historic Landmarks Commission shall exercise authority to issue certificates of appropriateness to regulate new construction, alteration, removal or demolition of buildings, sites or structures within a historic district or individually designated as a historic landmark or site when authorized by ordinance under the provisions of section 2-695 and according to the following provisions:

(1) No private building, site or structure shall be erected, altered, restored, moved or demolished until after an application for a certificate of appropriateness as to exterior architectural features has been submitted to and approved by the commission, except as otherwise provided by city council or as provided by rules, regulations, policies, procedures and standards adopted and published by the commission. For the purposes of this division, "exterior architectural features" shall include such portion of the exterior of a structure as is open to view from a public street, way or place.

(2) Similarly, if earthworks of historical or archaeological importance exist in the historic district there shall be no excavating or moving of earth, rock or subsoil or any development upon or around earthworks without a certificate of appropriateness.

(3) The style, material, size and location of outdoor advertising signs and bill posters shall be under the control of the commission.

(b) The commission may request such plans, elevations, specifications, drawings, photographs and other information as may be reasonably deemed necessary to enable it to make a determination on the application for a certificate of appropriateness.

(c) The commission shall hold a public hearing upon each application for a certificate of appropriateness. Notice of the time and place of said hearing shall be given by publication in a newspaper having general circulation in the city at least seven days before such hearing, and by posting such notice on or near the main entrance of any hall or room where the commission usually meets. The commission shall take such action as required to inform the owners of any property likely to be affected by the application and shall give the applicant and such owners an opportunity to be heard.

(d) The commission shall consider an application for a certificate of appropriateness within 45 days after the filing thereof by the owner or occupant of a historic property or a building, site

or structure located within a historic district. Evidence of approval shall be by a certificate of appropriateness issued by the commission.

(e) In passing upon the appropriateness of proposed action, the commission shall consider, in addition to any other pertinent factors, the historical and architectural integrity and significance; architectural style; design, arrangement, texture and materials of exterior architectural features; and the relationship and general compatibility thereof to the historical value and exterior architectural style and pertinent features of other structures in the surrounding area.

(f) The commission shall approve the application and issue a certificate of appropriateness if it finds that the proposed action would be appropriate. In the event an application is rejected, the commission shall put the rejection and the reasons therefor in writing, and shall transmit such written record to the applicant. The written record may include recommendations relative to design, arrangement, texture, material and similar features. The applicant may make modifications to the plans and resubmit the application at any time after doing so.

(g) In cases where the application covers a material change in the appearance of a structure which would require the issuance of a building permit, the rejection of an application for a certificate of appropriateness by the commission shall be binding upon the building inspector or other administrative office charged with issuing building permits.

(h) Where such action is reasonably necessary or appropriate for the preservation of a unique historic property, the commission may enter into negotiations with the owner for the acquisition by gift, purchase, exchange or otherwise of the property or any interest therein.

(i) If the strict application of any provision of this division would result in exceptional practical difficulty or undue economic hardship upon any owner of any specific property, the commission, in passing upon applications, shall have the power to vary or modify strict adherence to the provisions or to interpret the meaning of the provision so as to relieve such difficulty or hardship: *Provided,* That such variance, modification or interpretation shall remain in harmony with the general purpose and intent of the provisions so that architectural or historical integrity or character of the property shall be conserved and substantial justice done. In granting variations, the commission may impose such reasonable and additional stipulations and conditions as will in its judgment best fulfill the purpose of this division.

(j) The commission shall keep a record of all applications for certificates of appropriateness and of all its proceedings.

(k) Any person adversely affected by any determinations made by the commission relative to the issuance or denial of a certificate of appropriateness may appeal such determination to the Kanawha County Circuit Court.

(l) Nothing in this division shall be construed to prevent the ordinary maintenance or repair of any exterior architectural feature in or on a historic property, which maintenance or repair does not involve a material change in design, material or outer appearance thereof, nor to prevent any property owner from making any use of his property not prohibited by other laws, ordinances or regulations.

(m) Undertakings permitted, funded, licensed or otherwise assisted by the state shall be reviewed in accordance with W. Va. Code § 29-1-5e [and] shall be considered exempt from review for certification of appropriateness as described in this section.
(Bill No. 7202, 7-17-2006)

**Sec. 2-697. Conflict.**

The historic district and property regulations provided in this division are intended to identify, study, preserve and protect historic buildings, structures, sites and districts within the boundaries of a zoning district. Such properties are subject to the regulations for the base zoning district and the historic district or property. If there is a conflict between the requirements of

the zoning district and the requirements of the historic district or property, the zoning district requirements apply.
(Bill No. 7202, 7-17-2006)

### Sec. 2-698. Court action or proceedings to prevent improper changes or illegal conduct.

The city and the Charleston Historic Landmarks Commission shall be authorized to institute any appropriate action or proceeding in a court of competent jurisdiction to prevent any material change in the appearance of a designated historic property or historic district, except those changes made in compliance with the provisions of this division or to prevent any illegal acts or conduct with respect to such historic property or historic district.
(Bill No. 7202, 7-17-2006)

### Sec. 2-699. Violations and penalties.

Violations of any such ordinance adopted in conformity with this division shall be punishable by a fine up to ten percent of the total cost of the project requiring a certificate of appropriateness or $500.00, whichever is greater, or imprisoned in the county jail not more than six months, or both fined and imprisoned.
(Bill No. 7202, 7-17-2006)

### Sec. 2-700. Notice to county assessor of designation of historic district.

When the commission establishes a historic district, it shall notify the Kanawha County Assessor of the fact of such establishment and the boundaries of the district, together with the restrictions which are applicable to the properties located in such district. The assessor shall take such factors into consideration in assessing the properties therein.
(Bill No. 7202, 7-17-2006)

### Sec. 2-701. Reporting.

The commission shall submit an annual report to the City of Charleston and the West Virginia Division of Culture and History.
(Bill No. 7202, 7-17-2006)

### Secs. 2-702—2-710. Reserved.

## DIVISION 11. CITY CENTER BUSINESS IMPROVEMENT DISTRICT

### Sec. 2-711. Creation of the City Center Business Improvement District.

Pursuant to W. Va. Code ch. 8, art. 13A, a group of owners of commercial property in the City of Charleston submitted a petition to initiate a Business Improvement District to the city clerk. Following the appointment of a district planning committee by city council, members of the committee timely submitted a written report to city council requesting the creation of the City Center Business Improvement District. The written report is titled City Center Business Improvement District Fiscal Year 2021 BID Work Plan and Budget.

The City Council of the City of Charleston, having held a public hearing on the matter, hereby determines that it is advisable and in the public interest to establish the City Center Business Improvement District. Accordingly, upon the adoption of the ordinance from which this division is derived, the City Center Business Improvement District, which is sometimes referred to as the City Center BID, is created.
(Bill No. 7923, 9-7-2021)

### Sec. 2-712. Board members terms, appointment, powers, and duties.

(a) The City Center BID Board shall consist of seven members, appointed by the mayor with the approval of city council. The initial appointments shall be staggered such that two members are appointed for five-year terms, one member is appointed for a four-year term, two members are appointed for three-year terms, one member is appointed for a two-year term, and one member is appointed for a one-year term. After the initial appointments, all subsequent appointments shall be for terms of five years. At all times, a majority of City Center BID Board members shall be owners of commercial property situated within the boundaries of the City Center BID. Members

of the board may not receive compensation, either directly or indirectly, for service on the board.

(b) The City Center BID Board shall have the following powers and duties:

(1) Oversee the operations of the City Center BID;

(2) Adopt bylaws to govern the procedures of the City Center BID;

(3) Adopt an annual budget;

(4) To prepare spending requests to be submitted to the city manager, or his or her designee, who shall act as the fiscal agent for the City Center BID;

(5) Calculate and provide to the city collector and city clerk the annual amount due by each commercial property owner within the City Center BID by May 15 of each year, along with a proposed budget for the upcoming fiscal year and the recommended program of services to be performed or provided within the district for the upcoming fiscal year;

(6) Coordinate and plan the clean and safe line of business within the City Center BID;

(7) Coordinate and plan the entertainment and recreation line of business for the City Center BID;

(8) Coordinate and plan the beautification and image line of business within the City Center BID;

(9) Collaborate on efforts for the City Center BID with the City of Charleston and other community partners;

(10) Seek out gifts, apply for grants, and obtain revenue from other available sources; and

(11) Submit an annual report on or before September 30 each year, to city council that includes, at a minimum, the following:

a. An itemized statement of its receipts and disbursements for the preceding fiscal year;

b. A description of its activities for the preceding fiscal year;

c. The program of services to be performed or provided within the district for the current fiscal year; and

d. An overview of its budget and statement regarding any additional funding needed to accomplish its objectives.

(c) Meetings of the City Center BID Board are subject to the West Virginia Open Governmental Proceedings Act, W. Va. Code ch. 6, art. 9A. Members of the City Center BID are subject to the West Virginia Governmental Ethics Act, W. Va. Code ch. 6B.
(Bill No. 7923, 9-7-2021; Bill No. 7998, 6-21-2023)

### Sec. 2-713. Creation of fund; rate and manner of fees.

(a) There is hereby created a special revenue fund within the city treasury to be known as the City Center BID Fund, along with any subaccounts deemed necessary by the district board.

(b) The City Center Business Improvement District FY2021 BID Work Plan and Budget sets the rate of annual fees for the City Center BID on each private for-profit property owner at the equation of (total land lot size square footage x .075) + (total building square footage x .03325). The maximum rate of any annual fees that may be imposed upon a single commercial property in the City Center BID, as calculated by the aforementioned formula, will be $25,000.00 annually. It is anticipated that cumulative revenue from the initial annual fee will be $100,000.00. The City Center BID Board provided the assessed amounts for FY2021 to the city in December 2021. For each subsequent year, the City Center BID Board shall provide to the city collector the assessed amounts no later than May 15. Pursuant to W. Va. Code § 8-13A-12, city council may levy the assessments by ordinance upon receipt of the proposal from the City Center BID Board. City council shall levy the rates for each fiscal year after the City Center BID Board provides the assessments.

(c) Any person who desires to challenge the City Center BID Board assessment shall file a petition for reassessment with the city collector within 30 days of receiving notice of the assessment. The petition shall state the reasons the person is seeking the reassessment. After the filing of a petition, the city collector shall set the petition for an administrative hearing and give the board an opportunity to respond in writing in advance of the hearing. The petitioner and the board may represent themselves or be represented by counsel at the administrative hearing. The city collector, or a hearing examiner designated by the city collector, shall conduct an informal and impartial administrative hearing and make a prompt decision on the petition for reassessment after hearing all of the evidence and argument. An appeal of the city collector's decision may be taken by the petitioner or the board to the Circuit Court of Kanawha County within 30 days of the city collector's decision.

(d) The fees assessed by the City Center BID upon the property owners shall be collected through the City of Charleston's City Collector on a biannual (twice per year) basis. The collection efforts from the city collector shall clearly state it is assessing fees for the City Center BID. All funds collected from the fees shall be placed in the City Center BID Fund created by this section. The City Center BID Fund may also receive other voluntary contributions.

(e) Notwithstanding any provision of this Code to the contrary, any expenditure authorized by the City Center BID Board from the City Center BID Fund up to $100,000.00 is exempt from the purchasing rules of the City of Charleston. Any individual expenditure in excess of $100,000.00 by the City Center BID Board shall require city council approval prior to authorization. The City Center BID Board shall generally submit requests for purchase orders to the city manager's office in advance of any purchase being made, which the city manager will approve as long as the vendor is in good standing with the city collector's office and there are no other legal issues with payment.

(f) The city collector shall have plenary power and authority to promulgate any rules necessary to carry out the assessment, hearing, and collection provisions of this article. The city collector shall work in conjunction with the City Center BID Board to develop such rules.

(Bill No. 7923, 9-7-2021; Bill No. 7938, 12-20-2021; Bill No. 7998, 6-21-2023; Bill No. 8036, 7-1-2024)

### Sec. 2-714. Services within the City Center Business Improvement District.

(a) All revenues generated from assessments for the City Center Business Improvement District shall be used to maintain, enhance, promote, market and otherwise increase services to the City Center Business Improvement District and may not be used to reduce, replace, or supplant existing funds or services. In particular, the increased services provided within the City Center Business Improvement District may include, but are not limited to, the following:

(1) Beautification of the district, by means such as landscaping and construction and erection of fountains, shelters, benches, sculptures, signs, lighting, decorations and similar amenities;

(2) Provision of special or additional public services, such as sanitation, security for persons and property and the construction and maintenance of public facilities including sidewalks and other public areas;

(3) Making principal or interest payments on bonds issued by the municipality for public improvements located within and designated to improve the economic viability of the district;

(4) Providing financial support for public transportation and vehicle parking facilities open to the general public;

(5) Constructing, operating and maintaining parking facilities;

(6) Developing plans for the general architectural design of public areas and developing plans and programs for the future development of the district;

(7) Developing, promoting and supporting community events and activities open to the general public;

(8) Providing the administrative costs for a district management program; and

(9) Providing any other services which the municipality or district board is authorized to perform and which the municipality does not also perform to the same extent on a municipality-wide basis.

(b) At the outset of the City Center BID, the board is focused on three lines of business with the following proposed services and reasonable estimate of cost:

(1) Clean and safe: by spending $60,000.00 on an ambassador/safety/cleaning program and $5,000.00 on materials and supplies;

(2) Beautification and image: by spending $15,000.00 on conceptual master planning, $10,000.00 on greenery, $20,000.00 on master plan implementation, and $10,000.00 on marketing/branding; and

(3) Entertainment and recreation: by spending $5,000.00 on Slack Plaza equipment and $10,000.00 on Slack Plaza public art/lighting.

Other expected initial funds are for project management services or unallocated.
(Bill No. 7923, 9-7-2021)

### Sec. 2-715. Description of boundaries of the City Center Business Improvement District.

The City Center Business Improvement District boundary is shown in Appendix A to the City Center Business Improvement District Fiscal Year 2021 BID Work Plan and Budget, currently consisting of 37 commercial properties that are owned by taxable entities.

The City Center Business Improvement District boundary is further described as follows: Beginning at the intersection of the Virginia Street and Court Street centerlines; Thence following said centerline of Court Street northeasterly to the intersection of the Court Street and Washington Street, East centerlines; Thence southeasterly along the centerline of Washington Street, East to a point perpendicular with the southerly side of the Summers Street right-of-way; Thence southwesterly along the Summers Street right-of-way to the northern most corner of land owned by SNIVLAC LLC (Deed Book 2396, Page 672 and known in Kanawha County as District 11, Map 9, Parcel 84); Thence with said property line southeasterly to the eastern most corner of said land; Thence continuing southwesterly with said property line to a point extending to the centerline of Lee Street, East; Thence northwesterly along the Lee Street, East, centerline to point perpendicular with the westerly most property line of land owned by REALCO LLC (Deed Book 2446, Page 949 and known in Kanawha County as District 11, Map 8, Parcel 45); Thence with said property line southwesterly across an unnamed alley to a point perpendicular with land owned by CARLISLE DEVELOPMENT COMPANY LLC (Deed Book 3051, Page 317 and known in Kanawha County as District 11, Map 8, Parcels 44 and 43); Thence with said property line southeasterly to the western most corner of said land; Thence along said property line southwesterly and continuing across the Brawley Walkway right-of-way to a point on the division line between two parcels of land owned by DUPONT HOTEL LLC (Deed Book 3051, Page 178 and known in Kanawha County as District 11, Map 8, Parcel 41) and the CITY OF CHARLESTON (Court Order Book 94, Page 968 also recorded at Deed Book 2365, Page 743 and known in Kanawha County as District 11, map 8, Parcel 42); Thence southeasterly along the Brawley Walkway right-of-way to a point on the northerly side on an unnamed alley; Thence southwesterly along said right-of-way to a point on the division line between two parcels of land owned by the CITY OF CHARLESTON/ CHARLESTON URBAN RENEWAL AUTHORITY (Court Order Book 94, Page 968 also recorded at Deed Book 2365, Page 743 AND partial conveyance recorded at Deed Book 2397, Page 249 and known in Kanawha County as District 11, Map 9, Parcel 38) and 209 CAPITOL LLC (Deed Book 2713, Page 205 and known in Kanawha County as District 11, Map 8, Parcel 63); Thence continuing southwesterly along the property line of land owned by the CITY OF

CHARLESTON/CHARLESTON URBAN RENEWAL AUTHORITY (Court Order Book 94, Page 968 also recorded at Deed Book 2365, Page

743 AND partial conveyance recorded at Deed Book 2397, Page 249 and known in Kanawha County as District 11, Map 9, Parcel 38) and continuing across the Quarrier Street right-of-way to a point on the land owned by the KANAWHA COUNTY PUBLIC LIBRARY (Deed Book 1415, Page 517 and known in Kanawha County as District 11, Map 7, Parcel 28); Thence southeasterly along said property to the intersection of the Quarrier Street and Capitol Street right-of-way; Thence continuing along said property lines for four calls to point at the intersection of the land owned by KANAWHA COUNTY PUBLIC LIBRARY (Deed Book 1415, Page 517 and known in Kanawha County as District 11, Map 7, Parcel 28) and the MIDWINTER INVESTMENT GROUP LLC (Deed Book 2575, Page 327 and known in Kanawha County as District 11, Map 7, Parcel 29); Thence southwesterly of said property line to a point at the centerline of the Virginia Street right-of-way; Thence northwesterly along said centerline to the point of the beginning, containing 27.37 acres more or less.
(Bill No. 7923, 9-7-2021)

**Sec. 2-716. Continuation or dissolution and other provisions.**

(a) Pursuant to W. Va. Code § 8-13A-15(b), the City Center BID may not exist for a period beyond ten years unless it is reinstated pursuant to state code. In order for the City Center BID to be continued beyond July 1, 2031, the city council shall adopt a bill amending this section of Code during calendar year 2031 that sets forth findings in the title of the bill declaring that the City Center BID has complied with all of the requirements and procedures set forth in this article and in W. Va. Code ch. 8, art. 13A during the initial ten years of existence and therein amend this section to set a new deadline for reauthorization no further than ten years thereafter.

(b) Dissolution of the City Center BID, along with any other provisions not stated in this article, shall be governed by the provisions of W. Va. Code ch. 8, art. 13A. Pursuant to W. Va. Code § 8-13A-15, upon dissolution of the City Center BID any amounts remaining in the City Center BID Fund shall be transferred to the general maintenance fund for the benefit of the area included within the City Center BID.
(Bill No. 7923, 9-7-2021)

**Secs. 2-717—2-720. Reserved.**

## DIVISION 12. VICTIMS ASSISTANCE COMMISSION

**Sec. 2-721. Victims assistance commission created.**

There is hereby created the "City of Charleston Victims Assistance Commission" and it shall exist as an agency of the city to account for revenues received from transfers from other funds and other available sources, including donations, to be used for victims assistance and violence prevention education efforts and support.
(Bill No. 7964, 9-19-2022)

**Sec. 2-722. Composition and organization of commission.**

(a) *Composition.* The City of Charleston Victims Assistance Commission shall consist of seven members, each appointed by the mayor. Of the seven members, one shall be the chief of police, two shall be members of city council, and four shall be residents of the city who have an expressed interest and history in violence prevention or providing support for victims of violence. Of these four resident members, at least one shall have experience as a social worker or mental health worker and at least one shall be a spiritual leader.

(b) *Terms of service.* The appointments of members other than the council members and chief of police shall be made such that each appointment is for a three-year term. Each such member shall serve until their successors are duly appointed and qualified, unless removed from the commission by a majority vote of the commission due to any violation of the rules or by-laws authorized by subsection (d) of this section. Vacancies other than by reason of expiration of term of office shall be filled for the unexpired term only. The council members of the

commission shall serve for a term coextensive with their term as a member of council. The chief of police shall serve for a term coextensive with his or her term of chief of police.

(c) *Service without compensation.* All members shall serve without compensation.

(d) *Governance.* Members of the commission shall select annually from its membership a chair, a vice-chair, and any other officers as it determines necessary for the performance of its duties. The commission may propose such rules or by-laws as may be necessary for the transaction of its business, including, but not limited to, a requirement for regular attendance at meetings in order to maintain a seat on the commission, which shall become effective upon approval by city council.

(e) *Meetings.* Meetings of the commission shall be open to the public and be properly noticed in accordance with the Open Governmental Proceedings Act, W.Va. Code ch. 6, art. 9A. The commission shall meet monthly, and may meet more frequently if it elects. The Chair shall provide an agenda for meetings of the commission to the city clerk for posting consistent with the Open Governmental Proceedings Act at least three business days prior to any meeting.

(f) *Quorum.* A majority of the members of the commission shall constitute a quorum. A majority vote of the members present at a meeting shall be required for any action or decision of the commission.
(Bill No. 7964, 9-19-2022)

**Sec. 2-723. Duties and powers.**

The victims assistance commission's duties shall include, but not be limited to:

(1) Coordinating the efforts of the city and community groups for the National Night Out, National Gun Violence Awareness Day, and other violence prevention efforts involving the City of Charleston.

(2) Identifying opportunities to collaborate on educational programs with other organizations and committees with the goal of reducing and preventing violence in the community, including, but not limited to, collaborating with the State of West Virginia's Victim Assistance Program;

(3) Identifying opportunities to support victims of violence in the community, including, but not limited to, facilitating connections with the State of West Virginia's Victim Assistance Program;

(4) Identifying resources that may be used to help fund the efforts of the commission as stated herein, including, but not limited to, making contact with the State of West Virginia's Victim Assistance Program;

(5) Reviewing and recommending approval of applications for funds, as available, related to violence prevention and victim compensation; and

(6) Working with the City of Charleston to identify policy or procedure changes that provides assistance to victims of violence and to help prevent violence.
(Bill No. 7964, 9-19-2022)

**Sec. 2-724. Finances and reporting.**

The commission shall prepare an annual report of the victims assistance commission and an annual budget based on the city's fiscal year. The report and budget shall be presented to council annually at the second meeting in December.
(Bill No. 7964, 9-19-2022)

**Secs. 2-725—2-733. Reserved.**

## ARTICLE VIII. CITY SERVICE FEE

**Sec. 2-734. Findings.**

(a) The city council of the city finds that the city provides to all individuals within its borders certain services, whether they are residents employed within the city, or individuals living outside the city and employed within the corporate boundaries of the city.

(b) The city council of the city finds that such services include police protection and traffic and street maintenance.

(c) The city council of the city finds that such services are within the authority and are the responsibility of the Municipal Government of the City of Charleston as provided under the general laws of the State of West Virginia.

(d) The city council of the city finds that since such services are essential to the creation and maintenance of those jobs which provide livelihood to all individuals employed within the city, as well as to the property interests of residents and visitors to the city, it is therefore reasonable to derive a portion of the cost of providing and maintaining such services from said individuals.

(e) The city council of the city finds that W. Va. Code § 8-13-13 provides that every municipality has the plenary power and authority to provide by ordinance for the installation, continuance, maintenance or improvement of such services, to make reasonable regulations with respect thereto, and to impose by ordinance upon the users of such services reasonable rates, fees and charges to be collected in the manner prescribed in the ordinance.

(f) The city council of the city finds that all of those individuals, who use, enjoy and benefit from these services, should bear an equitable share of the costs thereof.

(g) The city council of the city finds that the imposition of the city service fee established herein is a reasonable system of distributing the costs to all of the users that the city can reach through reasonable and prudent means and legislation.

(h) The city council of the city finds that the legislature of the State of West Virginia has conferred upon municipalities the plenary power to enact reasonable administrative provisions to ensure the efficient, orderly and equitable implementation and collection of the service fees from all users.

(i) The city council of the city finds that it is in the best interests of the citizens of the city and the users of city services to enact this article to impose a city service fee.

(j) The city council of the city finds that there are tens of thousands of individuals who benefit from municipal services who are not owners of property or residents of the city, but who are employed within the city.

(k) The city council of the city finds that employers located within the city possess important employment information necessary to properly enforce certain aspects and provisions of this article and that, therefore, reasonable regulations concerning obtaining certain information from such employers shall be a necessary and important part of the administration of the city service fee.

(l) The city council of the city finds that raising the fee from $2.00 to $2.50 beginning the calendar week of January 3, 2016, and continuing through December 31, 2017, and from $2.50 to $3.00 beginning the calendar week of January 1, 2018, and continuing thereafter, is reasonable, not excessive, and warranted based upon a reasonable allocation of the fee payers' usage of the municipal services contemplated herein.
(Ord. No. 7002, § 6-203, 9-15-2003; Bill No. 7294, 11-19-2007; Bill No. 7661, 7-20-2015; Bill No. 7757, 9-18-2017)

**Sec. 2-735. Definitions.**

For the purpose of this article:

*City* shall mean the City of Charleston.

*City collector* shall mean the City Collector of the City of Charleston and his or her designee.

*Employee* shall mean any individual who is employed at or physically reports to one or more locations within the city and is on the payroll of an employer, on a full-time or part-time basis, in exchange for salary, wages or other compensation.

*Employed* shall include an employee working for an employer so as to be subject to any federal or state employment or wage withholding requirement and a self-employed individual working as a sole proprietor or member of a firm so as to be subject to self-employment tax. An employee shall be considered employed in a calendar week so long as the employee remains on the current

payroll of an employer deriving compensation for such week and the employee has not been permanently assigned to an office or place of business outside the city. A self-employed individual shall be considered employed in a calendar week so long as such individual has not permanently discontinued employment within the city.

*Employer* shall mean any person, partnership, limited partnership, limited liability company, association (unincorporated or otherwise), corporation, institution, trust, governmental body or unit or agency, or any other entity (whether its principal activity is for-profit or not-for-profit) situated, doing business, or conducting its principal activity in the city and who employs an employee, as defined herein.

*Fee* shall mean the city service fee to be imposed by the provisions of this article.

*Municipal service or municipal services* shall mean any valuable service provided by the city, its departments, boards, commissions and agents.

*Self employed individual* shall mean an individual who regularly maintains an office or place of business for conducting any livelihood, job, trade, profession, occupation, business or enterprise of any kind within the city's geographical boundaries over the course of four or more calendar weeks, which need not be consecutive, in any given calendar year.
(Ord. No. 7002, § 6-204, 9-15-2003)

### Sec. 2-736. Declaration as to conduct evidencing the use of a municipal service.

The city council of the city declares that being employed within the city is legal and valid proof of the use of one or more municipal services sufficient to assess and collect a city service fee from the individual engaging in the activity stated.
(Ord. No. 7002, § 6-205, 9-15-2003)

### Sec. 2-737. Imposition of fee; rate.

Beginning January 3, 2017, and continuing through December 31, 2017, there is hereby imposed a city service fee upon each employee and self-employed individual at the rate of $2.50 per calendar week of employment within the city. Beginning January 1, 2018, and continuing thereafter, the fee rate imposed shall be $3.00 per calendar week of employment within the city. No individual shall pay the fee more than once for the same week of employment regardless of multiple employment. The fee imposed by this article is in addition to all other fees imposed by the city.
(Ord. No. 7002, § 6-206, 9-15-2003; Bill No. 7294, 11-19-2007; Bill No. 7661, 7-20-2015; Bill No. 7757, 9-18-2017)

### Sec. 2-738. Effective date.

The imposition of the city service fee of $2.50 per calendar week of employment within the city shall take effect beginning January 3, 2016, and shall remain in effect up to and including December 31, 2017. The imposition of the city service fee of $3.00 per calendar week of employment within the city, representing an increase from $2.50 to $3.00 as set forth in section 2-737 herein, shall take effect beginning January 1, 2018, and continue thereafter.
(Ord. No. 7002, § 6-207, 9-15-2003; Bill No. 7294, 11-19-2007; Bill No. 7661, 7-20-2015; Bill No. 7757, 9-18-2017)

### Sec. 2-739. Administrative regulations.

The city collector shall promulgate reasonable regulations for the collection of the fees imposed by this article:

(1) Said regulations shall include, but not be limited to:

a. Regulations setting due dates for all remittance of fees to be collected and paid hereunder;

b. Regulations setting forth guidelines for the orderly collection and payment of the fees by employers and self-employed individuals;

c. Regulations requiring an employer employing employees within the city to withhold, collect and remit fees relative to such employee and supply to the city collector any and all information which may include the

number of full-time/ part-time employees, hire dates and termination dates for new employees or those who have left employment, names, social security numbers and addresses; and

d. Any needful regulations explaining and clarifying the provisions of this article.

(2) Such regulations shall be reduced to writing and shall take effect upon being filed in the office of the city clerk.

(Ord. No. 7002, § 6-208, 9-15-2003)

**Sec. 2-740. Investigations; power to audit.**

For the purpose of ascertaining the correctness or adequacy of any remittance or information submitted to the city collector as required by section 2-739 of this article:

(1) The city collector shall have the power to examine or cause to be examined, any books, papers, records, memoranda, documents and any other payroll data and information, and may take testimony and require material proof with power to administer oaths to any person or persons from whom testimony may be taken.

(2) The city collector shall have the power to issue subpoenas and subpoenas duces tecum in the name of the city to compel the attendance of witnesses and the production of books, papers, records, memoranda, documents and testimony at the time and place specified.

(3) The city collector shall have plenary power and authority to further enforce the provisions of this article by instituting the appropriate civil action in any court of competent jurisdiction pursuant to W. Va. Code § 8-13-15.

(Ord. No. 7002, § 6-209, 9-15-2003)

**Sec. 2-741. Delinquent accounts; penalties.**

(a) The fee imposed by this article, if not paid when due, shall bear interest at the rate of eight percent per annum from the due date of the remittance until paid.

(b) Payment of fees not received upon the due date shall be considered delinquent. The city collector shall assess each delinquent account a penalty of five percent of the balance thereof. If the delinquency exceeds a month, an additional penalty of two percent shall be added to the total outstanding delinquent fee at the end of each additional month or part thereof. Without limiting the generality of the foregoing, the delinquency penalty may be assessed against any employer responsible for withholding and remitting the fee of any employee subject to the fee imposed in this article. The city collector may waive or abate the penalty hereunder for reasonable cause.

(Ord. No. 7002, § 6-210, 9-15-2003; Bill No. 7294, 11-19-2007)

**Sec. 2-742. Enforcement.**

The city collector is charged with administration and enforcement of this article and may, among other remedies, institute appropriate legal proceedings in the name of the city and against any self-employed individual or employer who fails to pay, collect or remit the fee imposed herein.

(Ord. No. 7002, § 6-211, 9-15-2003)

**Sec. 2-743. Protest; administrative decision; appeal.**

(a) Anyone who has paid the fee imposed by this article shall file a claim for refund no later than three years after the fee is paid over to the city by written notice of such claim with the city collector setting forth with particularity all objections thereto. The burden of proof shall be upon the aggrieved party to show that the fee was paid and is incorrect and contrary to law, in whole or in part. The city collector shall review the refund claim and provide for any necessary hearing, render a decision on the claim and forthwith either notify the protesting party of such decision in writing or direct that a refund be issued, all within a reasonable time. Said decision shall be issued by certified mail, return receipt requested.

(b) If aggrieved by the decision of the city collector, the protesting party may appeal the decision of the city collector to the Circuit Court of Kanawha County within 30 days after service of the city collector's decision.

(1) The appeal shall be taken by the filing of a petition and notice, which petition and notice shall be served upon or accepted by the city collector as an original notice. When the petition and notice is so served it shall, with the return or acceptance thereon, be filed in the Office of the Clerk of the Kanawha County Circuit Court and docketed as other cases, with the aggrieved party as plaintiff and the city collector as defendant.

(2) The filing of the appeal shall not stay the collection of the fee unless the plaintiff shall file with such clerk a bond for the use of the defendant, with sureties approved by the Clerk of the Circuit Court of Kanawha County, the penalty of the bond to be not less than the total amount of the fee, and accumulated penalties to the date of the appeal, and conditioned that the plaintiff shall perform the orders of the Kanawha County Circuit Court; provided, that the judge of the Kanawha County Circuit Court may stay the collection of the fee, and accumulated penalties without the requirement of a bond, upon a proper showing by the plaintiff that the properties of the plaintiff are sufficient to secure performance of the Kanawha County Circuit Court's orders or that the ends of justice will be served thereby.

(3) The Kanawha County Circuit Court shall hear the appeal and determine anew all questions submitted to it on appeal from the decision of the city collector. In such appeal a certified copy of the city collector's fee assessment shall be admissible and shall constitute prima facie evidence of the fee due under the provisions of this article.

(c) The administrative remedies set forth in this section are exclusive. Failure to timely file a refund claim in accordance with this section shall preclude any right to refund with respect to any fee paid to the city prior to the claim. If no appeal is taken pursuant to this section within 30 days after service of the city collector's decision, said decision shall become final and conclusive and not subject to administrative or judicial review. The amount of the fee and accumulated penalties, if any, due the city under such decision shall be due and payable on the day following the date upon which such decision becomes final.

(Ord. No. 7002, § 6-212, 9-15-2003; Bill No. 7979, 12-5-2022)

### Sec. 2-744. Withholding; reporting; payment.

(a) Every employer shall deduct and withhold from any compensation or income paid to an employee in its employ an amount equal to the fee imposed herein upon said employee; provided, that an employer shall not deduct or withhold the fee as to any employee who executes and delivers a proper form prescribed by the city collector evidencing prior payment of the fee either directly or by collection through another employer in the city; provided further, that the employer shall maintain adequate records concerning any such employees. Every employer is deemed to be a trustee for the city in collecting and holding the fee required to be withheld and the funds so collected by such withholding are deemed to be trust funds. The failure of any employer to deduct the fee shall not relieve the employee from the duty to pay the fee. Any employer who fails to deduct the fee as required by this section, or who fails to pay the trust funds to the city collector pursuant to this section and the regulations promulgated pursuant thereto, shall be liable for such fee in full, along with any penalties or interest accrued thereon, as though the fee had originally been assessed against the employer notwithstanding any provisions herein to the contrary.

(b) Every self-employed individual who is not employed by an employer and who has not had the fee deducted or withheld by an employer shall file a form prescribed by the city collector and pay to the city collector all such fees that are

due and owing according to and in the manner prescribed by the regulations promulgated pursuant hereto.

(c) Every individual engaging in the business of vending as provided in section[s] 18-1031 et seq. of this Code, who is not employed by a separate employer within the city and who has not had the fee deducted or withheld by an employer, shall file a form prescribed by the city collector and pay to the city collector on an annual basis all such fees that are due and owing according to and in the manner prescribed by the regulations promulgated pursuant hereto.
(Ord. No. 7002, § 6-213, 9-15-2003; Bill No. 7887, 4-19-2021; Bill No. 8028, 2-20-2024)

**Sec. 2-745. Dedication of revenues.**

All revenues generated by the city service fee imposed herein are hereby dedicated to and shall be exclusively utilized for police protection and street maintenance and public works projects related thereto, and any costs related to the imposition and processing of this fee.
(Ord. No. 7002, § 6-214, 9-15-2003)

**Sec. 2-746. Severability.**

If any section, subsection, subdivision, paragraph, provision, sentence, clause, or word in this article is for any reason held invalid or unconstitutional, such holding shall not affect the validity, constitutionality, legality, or application of any other portion of this article.
(Ord. No. 7002, § 6-215, 9-15-2003)

**Secs. 2-747—2-750. Reserved.**

## ARTICLE IX. ENERGY BENCHMARKING

**Sec. 2-751. Purpose of energy benchmarking ordinance.**

The purpose of this article and energy benchmarking is to encourage efficient use of municipal energy paid by taxpayers and to reduce municipal pollution. This article requires covered municipal properties to annually measure and disclose energy usage to the city manager. Furthermore, this article will authorize the city manager to collect energy usage data to enable more effective energy and climate protection planning by the city and others and to provide information to the real estate marketplace to enable its members to make decisions that foster better energy performance.
(Bill No. 7916, 8-16-2021)

**Sec. 2-752. Definitions.**

For the purposes of this article, the following definitions shall apply:

"Benchmark" means to input and submit the total energy and water consumed for a property for the previous calendar year and other descriptive information for such property as required by the benchmarking tool. Total energy and water consumption shall not include separately metered uses that are not integral to building operations, as determined by the city manager.

"Benchmarking date" means a date to be determined by the city manager with the cooperation of the chair of the facilities committee.

"Benchmarking submission" means a subset of:

(1) Information input into the benchmarking tool; and

(2) Benchmarking information generated by the benchmarking tool, as determined by the city manager.

"Benchmarking tool" means the U.S. Environmental Protection Agency's ENERGY STAR® Portfolio Manager, or any additional or alternative tool adopted by the city manager, used to track and assess the energy and water use of certain properties relative to similar properties.

"Building operator" means the department or agency head that operates, maintains, and/or pays energy utility bills.

"City manager" means the City Manager of the City of Charleston or, at the city manager's sole discretion, a designee for the specific purpose of carrying out the requirements of this article.

"Covered municipal property" means a property that is owned, leased, or managed by the city such that the city regularly pays all or part of the annual energy and/or water bills.

"Energy" means electricity, natural gas, steam, or other product sold by a utility to a customer of a property, or renewable on-site electricity generation, for purposes of providing heating, cooling, lighting, water heating, or for powering or fueling other end-uses as recorded in the benchmarking tool.

"ENERGY STAR score" means the 1—100 numeric rating generated by the ENERGY STAR Portfolio Manager tool as a measurement of a building's energy efficiency.

"ENERGY STAR Portfolio Manager" means the tool developed and maintained by the U.S. Environmental Protection Agency to track and assess the relative energy performance of buildings.

"Gross floor area" means the total property area, measured between the outside surface of the exterior walls of the building(s). This includes all areas inside the building(s) including, but not limited to, lobbies, tenant areas, common areas, meeting rooms, break rooms, atriums (count the base level only), restrooms, elevator shafts, stairwells, mechanical equipment areas, basements, and storage rooms.

"Retrocommissioning practices" means processes that seek to improve how building equipment and systems function together. Such practices are designed also to resolve problems that occurred during design, construction, or that have developed throughout the building's life; improving a building's operations and maintenance procedures to enhance overall building performance.

"Shared benchmarking information" means information generated by the benchmarking tool and descriptive information about the physical property and its operational characteristics, which is shared with the public. The information, as defined by the ENERGY STAR Portfolio Manager glossary, shall include, but need not be limited to:

(1) Descriptive information:

a. Property address;

b. Primary use;

c. Gross floor area;

d. Number of floors;

e. Number of years the property has been ENERGY STAR® Certified and the last approval date, if applicable; and

f. Individual or entity responsible for the benchmarking submission.

(2) Site and source energy use intensity:

a. Weather normalized site and source energy use intensity;

b. The ENERGY STAR score, where available;

c. Total annual greenhouse gas emissions;

d. Monthly energy use, by fuel type;

e. Monthly peak electricity demand;

f. Indoor water use and water use intensity (consumption per gross square foot);

g. Outdoor water use (where available);

h. Total water use;

i. The ENERGY STAR Water Score, where available;

j. General comments section, if needed, to explain the building's ENERGY STAR scores; and

k. Compliance or noncompliance status.

"Utility" means an entity that distributes and/or sells natural gas, electric, water, or thermal energy services for buildings.

"Water audit" means that part of an audit that addresses the water systems.
(Bill No. 7916, 8-16-2021)

**Sec. 2-753. Applicability.**

This article is applicable to all covered municipal properties. All owners of other properties within the City of Charleston are encouraged, but not required, to follow the benchmarking portions of this article.
(Bill No. 7916, 8-16-2021)

**Sec. 2-754. Benchmarking requirement for covered municipal properties.**

No later than a date to be determined by the city manager with the cooperation of the chair of the facilities committee and by a date to be determined by the city manager with the cooperation of the chair of the facilities committee every year thereafter, the total energy and water consumed by each covered municipal property, along with all other descriptive information required by the benchmarking tool, shall be entered into the benchmarking tool for the previous fiscal year.
(Bill No. 7916, 8-16-2021)

**Sec. 2-755. Benchmarking reporting procedure.**

(a) For every covered municipal property subject to this article, the building operator shall annually submit to the city manager an energy and water benchmarking report in an electronic format as established by the city manager, by the benchmarking date.

(b) The information included in the annual energy and water benchmarking report shall include, at a minimum, the shared benchmarking information for the previous calendar year.

(c) The building operator of each covered municipal property shall provide to the city manager all data necessary for the city manager to:

(1) Enter it into the benchmarking tool and

(2) Create an energy and water benchmarking report based on an assessment of the aggregated total energy and water consumed by the whole property for the entire calendar year being reported.

(d) Before submitting a benchmarking report the building operator shall run all automated data quality checker functions available within the benchmarking tool and shall verify that all data has been accurately entered into the tool. In order for the benchmarking report to be considered in compliance with this article, the building operator shall correct all missing or incorrect information as identified by the data quality checker prior to submitting the benchmarking report to the city manager.

(e) In order to plan for potential solar panel installation, the building operator shall include information regarding whether any of the building operator's covered municipal properties are, or will soon be, in need of replacing or repairing its roof. The building operator shall also describe any evaluation regarding the suitability for solar panels on the building that has been conducted on any covered municipal properties.

(f) Where the current building operator learns that any information reported as part of the benchmarking submission is inaccurate or incomplete, the building operator shall amend the information reported within the benchmarking tool and shall provide the city manager with an updated benchmarking submission within 30 days of learning of the inaccuracy.
(Bill No. 7916, 8-16-2021)

**Sec. 2-756. Benchmarking exemptions; time extensions.**

(a) Benchmarking is not required for a covered municipal property for the current reporting year if the building operator submits documentation to the city manager, in such form and with such certifications as required by the city manager, establishing that the property met one or more of the following conditions for the calendar year to be benchmarked:

(1) A demolition permit for the entire building was issued during that year, provided that demolition work commenced and legal occupancy was no longer possible prior to end of that year;

(2) The property did not receive energy or water utility services during that year; or

(3) Due to special circumstances unique to the property, strict compliance with provisions of this article would not be in the public interest.

(b) Any building operator requesting an exemption from benchmarking shall, by June 1 in the year for which the exemption is being requested, submit to the city manager any documentation reasonably necessary to substantiate the request or otherwise assist the city manager in the exemption determination. Any exemption granted will be limited to the benchmarking submission for which the request was made and does not extend to past or future submittals. Any requested exemptions, whether approved or denied, shall be included in the annual report described in section 7-759 of this article, as well as the reasons for the exemption being approved or denied.

(c) Any building operator may apply for a time extension to complete and submit a benchmarking report if, despite such building operator's good faith efforts, they are unable to complete the required actions prior to the scheduled due date due to the failure of either a utility provider or a tenant (or both) to provide the building operator with information needed to complete this report. The building operator requesting an extension shall submit to the city manager any documentation reasonably necessary to substantiate the request or otherwise assist the city manager in the determination. For each property, the city manager may grant no more than two such extensions per year of no more than 30 days each.
(Bill No. 7916, 8-16-2021)

**Sec. 2-757. Audit of meters and streetlights.**

In addition to the other requirements of this article, the city manager shall develop and administer a program for auditing the streetlights and energy metering devices for both electricity and natural gas currently installed at all city buildings or otherwise paid by the city, for purposes of determining whether such devices are active or inactive. Such a program shall be designed to audit all energy metering devices by July 1, 2022 and all streetlights by July 1, 2023. In the event the city manager determines during such an audit that an energy metering device is no longer active, the city manager shall notify the energy service provider to request removal of such device and adjustment of utility bills to remove any inappropriate charges associated with such meter.
(Bill No. 7916, 8-16-2021)

**Sec. 2-758. Energy savings program.**

(a) By July 1, 2022, the city manager shall establish an energy savings program designed to reduce energy usage for electricity, natural gas, fuel oil, and steam in all covered municipal properties by 25 percent below Fiscal Year 2019 levels by Fiscal Year 2031, as well as otherwise reducing energy costs.

(b) Any program established pursuant to this section shall include:

(1) At least one interim savings goal for a percentage savings to be achieved by the fiscal year 2025-2026;

(2) A plan for prioritizing which covered municipal properties should be first audited and identified for efficiency improvements;

(3) A plan for implementing retrocommissioning practices, ensuring that buildings are operated in a manner that maximizes the energy saving potential of any efficiency improvements made; and

(4) A framework for evaluating when a covered municipal property is suitable for installing solar panels in order to reduce energy costs.
(Bill No. 7916, 8-16-2021)

**Sec. 2-759. Annual report and analysis.**

(a) Beginning no later than December 1, 2022 and every year thereafter, the city manager shall make available on a publicly accessible website an annual report covering the previous fiscal year, including:

(1) The measured energy use of all covered municipal properties;

(2) A summary of energy and water consumption statistics;

(3) An assessment of compliance rates, accuracy and issues affecting accuracy, changes across the portfolio over time;

(4) Any energy savings measures taken pursuant to the program established in section 2-758 of this article;

(5) An evaluation of solar for all covered municipal properties, including any buildings that have been identified as needing roof repairs in the next five years; and

(6) Trends observed.

(b) If the circumstances of the solar viability of any covered municipal properties has not changed since a previous evaluation, the city manager does not need to make a new evaluation.

(c) By August 1, 2026, the city manager shall review the progress toward the Fiscal Year 2026 interim goal established pursuant to section 2-758 of this article. If the Fiscal Year 2026 goal has not been met, the city manager shall make recommendations to the city council as to whether amendments to this section or other measures are necessary to meet the goal of 25 percent reduction by Fiscal Year 2031.

(d) Nothing in this article shall prevent the city manager from including all such information in a combined annual energy and water efficiency report covering the progress of all of the city's energy efficiency ordinances and programs.
(Bill No. 7916, 8-16-2021)

**Sec. 2-760. Rulemaking.**

In addition to all of the authority granted in this article, the city manager has plenary power and authority to promulgate any such rules necessary to carry out the provisions of this article.
(Bill No. 7916, 8-16-2021)

Chapter 3

# MUNICIPAL HOME RULE


Sec. 3-1. Purpose.
Sec. 3-2. Definitions.
Sec. 3-3. Severability; interpretation; conflict.
Secs. 3-4—3-9. Reserved.
Sec. 3-10. Publication of delinquent B&O and city fee accounts.
Sec. 3-11. City service fees—Notice of lien; hearing procedure; administrative decision; right of appeal; lien creation.
Sec. 3-12. Contracts with other jurisdictions via resolution.
Sec. 3-13. Disposition of municipal property to nonprofit organizations.
Sec. 3-14. Conveyance of city property without auction.
Sec. 3-15. Procurement of architectural and engineering services.
Sec. 3-16. Design-build procurement.
Secs. 3-17. Sale of alcohol on Sundays.
Secs. 3-18—3-25. Reserved.
Sec. 3-26. Enforcement of external sanitation and common nuisance violations.
Sec. 3-27. Authority of city to file liens on real property for costs incurred in abating exterior sanitation and common nuisance violations and for costs incurred in repairing, relaying, or constructing sidewalks.

**Sec. 3-1. Purpose.**

This chapter has been created for all ordinances enacted pursuant to the authority granted to the City of Charleston under W. Va. Code § 8-1-5a, establishing a five-year municipal home rule pilot program to evaluate the viability of allowing municipalities to have broad-based state home rule to carry out their duties and responsibilities in a more cost-effective, efficient and timely manner, leading to stronger municipalities and improved urban and state development. these ordinances are pursuant to the provisions of the City of Charleston Home Rule Plan approved by the municipal home rule board on May 21, 2008.
(Bill No. 7337, 8-4-2008)

**Sec. 3-2. Definitions.**

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

*Design-build* means a delivery system that provides responsibility within a single contract for the furnishing of architecture, engineering, or other related design services as required, and the labor, materials, equipment, and/or other related construction services for the project.

*Performance criteria* means the requirements for the public project, including as appropriate, aesthetics, capacity, durability, production standard, ingress and egress requirements or other criteria for the intended use of the public project, expressed in performance-oriented drawings and/or specifications suitable to allow the design-builder to make a proposal given the nature of the public project and the level of design to be provided in a proposal.
(Bill No. 7337, 8-4-2008; Bill No. 7379, 3-3-2009)

**Sec. 3-3. Severability; interpretation; conflict.**

(a) The sections, subsections, paragraphs, sentences, clauses and phrases of this chapter and all provisions adopted by reference in this chapter are severable, so that if any section, subsection, paragraph, sentence, clause and phrase of this chapter or any provision adopted by reference in this chapter is declared unconstitutional or invalid by a valid judgment of a court of competent jurisdiction, such judgment shall not affect the validity of any other section, subsection, paragraph, sentence, clause and phrase of this chapter or of any provision adopted by reference in this chapter, it being the intent of council that it would have enacted this chapter and all provisions adopted by reference in this chapter without such invalid or unconstitutional provisions.

(b) This chapter shall be construed liberally in order to achieve the purposes and intent enunciated in section 3.1

(c) In the event that any of the provisions of this chapter conflict with other provisions of the Code of the City of Charleston, the provisions of this chapter shall prevail.
(Bill No. 7337, 8-4-2008)

**Secs. 3-4—3-9. Reserved.**

**Sec. 3-10 Publication of delinquent B&O and city fee accounts.**

Whenever in the judgment of the city manager, after consultation with the city collector and finance director, it shall be fiscally advantageous to the city to do so, the office of the city collector shall prepare and publish a list of delinquent B&O tax and/or city service fee accounts. The criteria for inclusion in this list shall be at the discretion of the city manager after consultation with the city collector and finance director.

Any such list may include the following information: type of debt (B&O/city fee), name of person or business, year or years in which delinquencies occurred (either tax year or fiscal year), and total amount owed. Medium or media in which the list is published shall be determined by the city manager.
(Bill No. 7338, 8-4-2008)

**Sec. 3-11. City service fees—Notice of lien; hearing procedure; administrative decision; right of appeal; lien creation.**

(a) Any municipal fee, interest or penalties due and payable under this City Code shall be a debt due the city. It shall be a personal obligation

of the city service customer chargeable therefor and shall be a lien upon the real and personal property of the city service customer until paid. This lien shall have priority over all other liens except those due the state and the United States of America.

(b) If the city collector desires to file a notice of lien with the Clerk of the Kanawha County Commission regarding one or more delinquencies in payment of any municipal fee, penalties or interest, the city collector shall give the delinquent fee payer written notice via certified U.S. Mail return receipt requested to such fee payer's last known address, of intent to file the notice of lien setting forth the amounts due and status of delinquency. Unless the fee payer to whom the notice is given, or his duly authorized agent, shall within 30 days after service thereof, either personally or by certified mail, file with the city collector a petition for hearing, setting forth with particular items objected to, together with the reasons for objections, the city collector may at any time thereafter file the notice of lien.

(c) When a petition for hearing as prescribed in subsection 3-11(b) is filed within the time prescribed, the city collector shall assign a time and a place for a hearing thereon and shall notify the petitioner of such hearing by written notice at least 20 days in advance thereof. Such hearing shall be held within 90 days from the date of filing the petition, unless continued by agreement of the parties or by the city collector for sufficient cause. The hearing shall be informal and shall be conducted in an impartial manner by the city collector or a hearing examiner designated by the city collector. The burden of proof shall be upon the petitioner to show that the notice of lien is improper, in whole or in part. After such hearing, the city collector or hearing examiner designated by the city collector shall, within a reasonable time, give notice in writing of his decision.

(d) If aggrieved by the decision of the hearing examiner or city collector, the fee payer may appeal the decision of the hearing examiner or city collector to the Circuit Court of Kanawha County within 30 days after service of the hearing examiner's or city collector's decision.

(1) The appeal shall be taken by the filing of a petition and notice, which petition and notice shall be served upon or accepted by the city collector as an original notice. When the petition and notice is so served it shall, with the return or acceptance thereon, be filed in the Office of the Clerk of the Kanawha County Circuit Court and docketed as other cases, with the fee payer as plaintiff and the city collector as defendant.

(2) The filing of the appeal shall not stay the collection of the fee unless the fee payer shall file with such clerk a bond for the use of the defendant, with sureties approved by the Clerk of the Circuit Court of Kanawha County, the penalty of the bond to be not less than the total amount of the fee, and accumulated penalties and interest to the date of the appeal, and conditioned that the plaintiff shall perform the orders of the Kanawha County Circuit Court; provided, that the judge of the Kanawha County Circuit Court may stay the collection of the fee, and accumulated penalties without the requirement of a bond, upon a proper showing by the plaintiff that the properties of the plaintiff are sufficient to secure performance of the Kanawha County Circuit Court's orders or that the ends of justice will be served thereby.

(3) The Kanawha County Circuit Court shall hear the appeal and determine anew all questions submitted to it on appeal from the decision of the city collector.

(e) The administrative remedies set forth in this section are exclusive. Failure to timely file a petition in accordance with this section shall preclude any challenge to the filing of the notice of lien. If no appeal is taken pursuant to this section within 30 days after service of the city collector's decision, said decision shall become final and conclusive and not subject to administrative or judicial review.

(f) The lien created by this section shall continue until the fee delinquency is satisfied or becomes unenforceable by reason of lapse of time. The city collector shall issue a certificate of release of any lien imposed pursuant to this section

upon finding that the delinquency has been satisfied or the lien has become legally unenforceable. The lien created by this section shall be subject to the restrictions and conditions which apply to municipal tax liens under W. Va. Code ch. 38, art. 10C.
(Bill No. 7353, 10-6-2008)

### Sec. 3-12. Contracts with other jurisdictions via resolution.

For any action providing for a contractual or other agreement with another jurisdiction, the City of Charleston may enter into such agreement by passage of a resolution by council.

Comment: Under this section and pursuant to authority granted under W. Va. Code § 8-1-5a, the city is exempt from the requirement imposed by W. Va. Code § 8-11-3(10).
(Bill No. 7339, 8-4-2008)

### Sec. 3-13. Disposition of municipal property to nonprofit organizations.

(a) The City of Charleston may lease or convey city property to nonprofit organizations for less than fair market value, and without public auction, when the nonprofit organization is providing services that benefit the public and are services that the city could lawfully provide; provided that city council has made a factual determination that:

(1) There is a lack of need for such property by the city in comparison to the benefit to the city if property is leased or conveyed; and

(2) There is a demonstrable need for such property by the nonprofit organization to be able to perform the services benefiting the public.

(b) In the event the nonprofit organization should cease to provide such services to the public, the property shall by operation of law, revert to and vest in the city, and such nonprofit organization shall thereafter have no right, title, or interest therein or thereto.

(c) Any lease, deed or other instrument of property transfer executed pursuant to this section shall contain the reversion wording in subsection (b).
(Bill No. 7340, 8-4-2008)

### Sec. 3-14. Conveyance of city property without auction.

(a) The City of Charleston may sell its real or personal property valued in excess of $1,000.00 for fair market value, but without public auction, provided that city council has made a factual determination that the property is to be used to facilitate specific economic development projects and/or to provide a specific necessary and convenient resource for the benefit of the citizenry.

(b) Any proposed conveyance of city property pursuant to this section shall be published as a Class II legal advertisement in compliance with the provisions of W. Va. Code § 59-3-1 et seq., and the publication area for the publication shall be the City of Charleston.

(c) Prior to the approval by city council of any conveyance of city property pursuant to this section, city council shall be provided with documentation evidencing that all project plans have been approved by all necessary and relevant state and/or municipal committees and departments, all necessary and relevant state and/or municipal permits are in place or are approved subject to purchase of the property, and funding for the project secured.

Comment: Under this section and pursuant to authority granted under W. Va. Code § 8-1-5a, the city is exempt from the auction requirement imposed by W. Va. Code § 8-12-18(b) under the circumstances stated herein.
(Bill No. 7341, 8-4-2008)

### Sec. 3-15. Procurement of architectural and engineering services.

(a) In the procurement of architectural and engineering services for projects with an estimated cost of construction of $750,000.00 or more, competition shall be sought by the city manager through a solicitation of interest which shall include information regarding project ownership,

intended use, project scope, schedule, quality, budget, funding sources, known proposed contract terms, and firm selection procedures. The solicitation of interest shall be advertised by the city manager once a week for two successive weeks in a newspaper of general circulation published in the city. The city manager shall appoint and chair a committee of three to five persons to evaluate the statements of qualifications and other information solicited and/or submitted by interested firms. The committee shall short list and then interview a maximum of five firms, and then shall develop the scope of services, solicit price, and negotiate a contract to recommend to council for final approval in the manner it deems most expedient given the project, the circumstances, and the best interest of the city.

(b) If in the judgment of the city manager the project has an estimated construction cost of under $750,000.00, or an emergency exists and seeking competition is not practical or in the best interest of the city given the project, the city manager may select and contract with a firm based upon known or submitted qualifications acquired within the last 36 months from a public solicitation.

(c) No contract may be authorized to any business or individual that is delinquent in any financial obligation to the city or is not operating with all required licenses and permits.
(Bill No. 7344, 9-15-2008)

**Sec. 3-16. Design-build procurement.**

(a) Upon certification by the city engineer that sufficient performance criteria exist or can be developed, the city manager may make application to the finance committee for permission to issue a solicitation for design-build services by filing an application with the city clerk.

(b) An application to solicit design-build services shall contain the following information:

(1) A description of the project and scope of work;

(2) The project budget or estimated cost range and the source(s) of funding;

(3) Known project timing or scheduling considerations;

(4) Known considerations for coordination of design and construction expertise;

(5) A request for authorization to retain a performance criteria developer, if necessary, and the manner by which such professional services shall be procured;

(6) A description of the proposed procurement/selection process which shall include:

a. Submittal requirements;

b. Qualification selection criteria;

c. The basis for recommending an award and whether price is determined by sealed bid or by negotiation;

d. The make-up of the evaluation committee, which shall consist of not less than five members.

(c) The application shall be noticed as an item of business on the agenda of the next regularly scheduled finance committee meeting. A copy of the application along with a proposed request for design-build services shall be posted on the city's website at least five calendar days prior to consideration of the same by the finance committee. Members of the public wishing to address the finance committee on the merits of the application shall be afforded a reasonable opportunity to do so; provided, the chair of the finance committee shall retain discretion to limit the time and manner of address according to the rules of council for such hearings or as required by decorum.

(d) When presented with an application, the finance committee shall take into consideration the following:

(1) The nature of the project, including its complexity, schedule, budget, and source of funding;

(2) Value propositions, including the need for an open and competitive selection process and the balance struck between professional qualifications, unique performance guarantees, and competitive pricing;

(3) Any other matters that it may deem relevant and appropriate.

(e) After presentation and consideration of an application, the finance committee shall take one of the following actions:

(1) Approve as submitted in whole or in part, with or without modification;

(2) Disapprove as submitted; or

(3) Hold in abeyance for further consideration until the next regularly scheduled meeting.

(f) Upon approval by the finance committee of an application and the procurement/selection process set forth therein, the city manager may issue a solicitation for design-build services. At the conclusion of the approved procurement/selection process, the evaluation committee shall make a recommendation to the finance committee to authorize the award of a design-build contract to the responsible and qualified firm whose proposal is determined to represent the best value to the city, considering the nature of the project, price, and other factors relevant to the project.

(g) The award of a design-build contract may be conditioned upon subsequent refinements in scope and price and may allow the city to make modifications in the project scope without invalidating a design-build contract.
(Bill No. 7379, 3-3-2009; Bill No. 7581, 6-17-2013)

### Sec. 3-17. Sale of alcohol on sundays

(a) The purpose of this section is to reinforce the image of the City of Charleston as the region's destination for entertainment and culture, and to promote the City of Charleston as a city that offers a range of lifestyle choices including the service of alcoholic beverages at Sunday brunch.

(b) As used in this section, the term "on-premises license" shall mean the following West Virginia Alcohol Beverage Control Administration Class "A" licenses:

(1) Private club (less than 1,000 members)—liquor, wine, and non-intoxicating beer.

(2) Private club (1,000 or more members)—liquor, wine, and non-intoxicating beer.

(3) Fraternal club (non-profit)—liquor, wine, and non-intoxicating beer.

(4) Fraternal club (non-profit)—non-intoxicating beer.

(5) Tavern—non-intoxicating beer.

(6) Private wine restaurant—wine only.

(7) Private wine restaurant—wine and non-intoxicating beer only.

(8) Private wine spa—wine only.

(9) Private wine bed and breakfast—wine only

(10) Brew pub.

(11) Special events (fairs and festivals)—wine and non-intoxicating beer.

(12) Special events (fairs and festivals)—wine only.

(13) Special events (fairs and festivals)—non-intoxicating beer only.

(14) Growler.

(c) Notwithstanding any contrary provision contained in the Code of West Virginia, the Code of State Rules of West Virginia, or the Municipal Code of the City of Charleston, any entity or person possessing an on-premises license shall be permitted to sell alcoholic beverages for on-premises consumption on any Sunday, beginning at 10:00 a.m. All other terms and conditions imposed by West Virginia law or by the West Virginia Alcohol Beverage Control Administration on entities or persons possessing an on-premises license shall remain in full force and effect.

(d) The permission granted herein shall be revocable by city on a case-by-case basis, upon determination by the chief of police in cooperation and consultation with the West Virginia Alcohol Beverage Administration and with the consent of the city manager that a person or entity possessing an On-Premises License is a creating a public nuisance related to the service of alcohol before 1:00 p.m. on Sundays, or is otherwise acting in a manner inconsistent with the intent of this section.
(Ord. No. 7702, 8-1-2016)

**Secs. 3-18—3-25. Reserved.**

**Sec. 3-26. Enforcement of external sanitation and common nuisance violations.**

(a) *Purpose and applicability.*

(1) The purpose of this section is to provide additional and alternative methods and processes to enforce the municipal code provisions regarding exterior sanitation and common nuisances related to property located within the city in a fair, speedy and inexpensive manner, and to improve compliance with such provisions.

(2) This section shall be in addition to those methods and processes otherwise contained in the Municipal Code of the City of Charleston and shall be applied at the discretion of the enforcement official enforcing the provisions of this section.

(3) This section shall apply to the following exterior sanitation and common nuisance violations contained in the Building Code and Zoning Ordinance, incorporated by reference into Chapters 14 and 91, respectively, of the Municipal Code of the City of Charleston:

a. Sanitation (IPMC 302.1 or any corresponding section to the extent amended);

b. Drainage (IPMC 302.2 or any corresponding section to the extent amended);

c. Sidewalks in disrepair (IPMC 302.3 or any corresponding section to the extent amended);

d. High weeds/grass (IPMC 302.4 or any corresponding section to the extent amended) and (City Code section 50-124);

e. Graffiti (IPMC 302.9 or any corresponding section to the extent amended);

f. Exterior garbage accumulation (IPMC 307.1 or any corresponding section to the extent amended) and (City Code section 50-124);

g. Open storage in residential districts (3-060-C-5, 3-070-C-1 and 3-070-C-2, or any corresponding section to the extent amended);

h. Nonresident recreational vehicles (3-060-C-5 or any corresponding section to the extent amended).

(4) Any and all planning, zoning, building, and law enforcement officers shall have authority to enforce the provisions of this section and shall be referred to herein collectively as "enforcement officials."

(b) *Investigations.* Upon receipt of information or observation of circumstances indicating the likelihood of a violation of any provision of the Municipal Code of the City of Charleston regarding external sanitation or common nuisance, the enforcement official shall investigate the facts and may, to the extent permitted by law, make an inspection of the premises.

(c) *Notice of violation.*

(1) If an enforcement official determines that a code violation exists, the enforcement official shall provide written notice of such violation to the person having either ownership or control of any land, building, structure, sign, property, licensed or permitted business or operation which is in violation, and shall order that the violation be corrected. Notice of the violation shall be served in accordance with the law of the State of West Virginia concerning the service of process in civil actions, except that a method of service effectuated by a mailing by the clerk of a court (e.g., service pursuant to West Virginia Rule of Civil Procedure 4(d)(1)(D)) shall be deemed to be effectuated by a mailing by an enforcement official. If service is made by certified mail pursuant to West Virginia Rule of Civil Procedure 4(d)(1)(D) and delivery of the notice of the violation is refused, the

enforcement official, promptly upon the receipt of the notice of such refusal, shall mail to the person or entity being noticed, by first class mail, postage prepaid, (1) a copy of the notice of the violation(s) (2) a notice that despite such refusal, the notice of the violation(s) is valid, and (3) advising that the City will proceed to enforce the notice of violation(s). So long as such first class mailing is not returned as undeliverable by the U.S. Postal Service, service of the notice of violation(s) will be conclusively presumed to have been effectuated. Proof of service shall be made at the time of service by a written declaration, under oath, executed by the enforcement official effecting service and shall declare the time, date and manner by which service was made.

(2) Any notice of violation(s) under this section shall be in writing and shall contain the following:

a. The date the notice of violation is given;

b. The name and address of the person(s) charged with the violation;

c. The section of the ordinance being violated;

d. The nature of the violation;

e. A statement of the action required to be taken in order to correct the violation;

f. The time period allowed for the violation to be corrected prior to the issuance of a citation. When determining the time period allowed for correction, the enforcement official shall take into consideration the threat posed by the violation to the health, safety and welfare of the public and the nature of the work required to correct the violation, provided that no such time period for correction shall be less than five days;

g. The maximum fines that may be assessed if the violation is not corrected; and

h. The name, address and telephone number of the enforcement official issuing the notice of violation.

(d) *Issuance of citations.*

(1) If the violation has not been corrected within the period established in the notice of violation, or is a repeat violation as set forth in section 3-26(g), the enforcement official may issue a citation to the violator. The citation shall be in writing and shall contain the following:

a. The date the citation is issued;

b. The name and address of the person(s) charged with the violation;

c. The section of the ordinance that has been violated;

d. The nature of the violation;

e. The place and time the violation occurred;

f. The date the notice of violation was given;

g. The amount of the fine imposed for the violation;

h. The name, address, and telephone number of the enforcement official issuing the citation; and

i. The name, address and telephone number of the office of the city collector, where fines are to be paid, and of the municipal court, where citations may be appealed.

(2) A citation shall be in accordance with the law of the State of West Virginia concerning the service of process in civil actions, except that a method of service effectuated by a mailing by the clerk of a court (e.g., service pursuant to West Virginia Rule of Civil Procedure 4(d)(1)(D)) shall be deemed to be effectuated by a mailing by an enforcement official. If service is made by certified mail pursuant to West Virginia Rule of Civil Procedure 4(d)(1)(D) and delivery of the citation is refused, the enforcement official, promptly upon the receipt of the notice of such refusal, shall mail to the person or entity being noticed, by first class mail, postage prepaid, (1) a copy of the citation, (2) a notice that despite such refusal, the citation is valid, and (3) notice that the City will proceed to enforce the citation; so long as such first class mailing is not returned as undeliverable by the U.S. Postal Service, service of the citation will be conclusively presumed to have been effectuated. Proof of service shall be made at the time of service by a written declaration, under oath, executed by the enforcement official effecting service and shall declare the time, date and manner by which service was made.

(e) *Penalties.* Any person issued a citation pursuant to subsection 3-26(d) shall be punished by a fine as follows: within any 12-month period, $100.00 for the first citation, $200.00 for the second citation, $300.00 for the third citation, and $500.00 for the fourth citation and each citation thereafter.

(f) *Nonpayment of fines.* All fines imposed by citations under this section shall be due within ten days of service of the citation except as otherwise set forth herein. The failure to pay when due any fine imposed under this section shall constitute a failure to appear or otherwise respond under WV Code 8-10-2b(c) and may result in notification to the DMV.

(g) *Repeat violations.* If a person has been previously served with a notice of violation for a violation contained in subsection 3-26(a)(3), whether or not the violation is timely corrected or a citation is issued, he shall not be entitled to receive an additional notice(s) of violation for the same category of violation if the same category of violation is repeated within a six-month period of the issuance of either a notice of violation or a citation, the enforcement official may proceed in accordance with subsection 3-26(d) without further notice to the violator.

(h) *Appeal.*

(1) Any person who is issued a citation shall pay the fine indicated for the violation, as set forth in subsection 3-26(e), in full to the office of the city collector within ten days of service of the citation. Any person alleging he or she was improperly issued such citation may, within ten days of service of such citation, file a petition for appeal of the citation, along with the required bond, with the municipal court clerk in accordance with the following:

a. In order to properly and timely appeal his or her citation, within ten days of service of the citation, the recipient of the citation shall pay the required amount of the applicable fine in full to the municipal court clerk, which amount will be held by the municipal court as bond pending hearing and resolution of the case by the municipal court and the municipal court clerk shall issue a receipt to the recipient of the citation showing the amount of the bond paid. In addition to the bond, the recipient of the citation shall file with the municipal court clerk a petition for ap-

peal of the citation. If any petition for appeal filed in accordance with this section is not timely filed or is not accompanied with the required bond, the recipient of the citation shall be deemed to have waived his or her right to appeal the citation, and such petition shall be summarily denied as untimely filed; provided, however, that nothing set forth hereinabove shall prevent the municipal court judge from finding, upon a proper application and showing, that the recipient of the citation suffers from financial hardship, and, as a result, waiving the requirement that the bond be posted.

b. Any petition for appeal filed with the municipal court clerk must be in writing, on the form to be provided by the municipal court clerk, and must be signed by the recipient of the citation affirming that the contents of the petition are true and accurate to the best of the recipient of the citation's knowledge at that time. Such petition for appeal shall state the facts and reasons in support of the petition. Upon filing any such petition for appeal with the municipal court clerk, the recipient of the citation shall serve a copy of the petition and receipt showing proof of bond, or application for waiver thereof, upon the city attorney.

(2) Upon filing of a petition for appeal with the municipal court clerk, the clerk or his or her designee shall place the case on the municipal court docket, set the case for hearing within 30 days from the date of the filing of the petition for appeal, provide a notice of hearing to the recipient of the citation, and forward a copy of the petition to the enforcement official who issued the citation. Upon receipt of the petition, the enforcement official shall cause a copy of the citation at issue to be forwarded to the municipal court clerk who shall file it as the original complaint alleging the violation indicated therein.

(3) The municipal court shall treat the citation itself as the original complaint before the court. At the close of all of the evidence presented at the hearing on the petition for appeal, should the municipal judge find against the recipient of the citation, the bond posted by the recipient of the citation shall be applied as payment for the fine imposed for the violation. In the event the municipal court judge finds that the recipient of the citation suffers from financial hardship, the municipal court judge may permit alternative sentencing pursuant to section 38-126 of the Municipal Code. Should the court find in favor of the recipient of the citation, the bond, if applicable, shall be refunded to the recipient of the citation by the municipal court clerk, and the citation shall be dismissed.

(Ord. No. 7381, 4-6-2009; Bill No. 7582, 6-17-2013)

**Sec. 3-27. Authority of city to file liens on real property for costs incurred in abating exterior sanitation and common nuisance violations and for costs incurred in repairing, relaying, or constructing sidewalks.**

(a) The city may file a lien on real property for costs incurred in abating exterior sanitation and common nuisance violations, which include, but are not limited to, those violations set forth in subsection 3-26(a)(3), and when the following occurs:

(1) A property owner, after receiving lawful notice pursuant to subsection 3-26(c) or pursuant to any other applicable provision of the Municipal Code, fails to abate the violation; and

(2) The enforcement official lawfully enters said property and performs the work necessary to abate the violation; and

(3) A notice of the costs of abatement is sent to the property owner and those costs are not remitted within a time satisfactory to the city.

(b) The city may file a lien on real property for costs incurred in repairing, relaying, or constructing sidewalks in accordance with Chapter 102, Section 52 of the Municipal Code of the City of Charleston.
(Ord. No. 7390, 4-16-2009)

Chapters 4, 5

**RESERVED**

Chapter 6

# ALCOHOLIC BEVERAGES*

## Article I. In General

Sec. 6-1. Construction of words and terms.
Secs. 6-2—6-30. Reserved.

## Article II. Nonintoxicating Beer

### Division 1. Generally

Secs. 6-31—6-50. Reserved.

### Division 2. License

Sec. 6-51. License and compliance with division required.
Sec. 6-52. Annual license tax imposed on brewers and dealers; license year; classes of dealers and amount of tax.
Sec. 6-53. Eligibility and application for license.
Sec. 6-54. False statements relating to licenses.
Sec. 6-55. List of licensees to be reported to clerk of municipal court.
Sec. 6-56. Revocation of license.
Secs. 6-57—6-90. Reserved.

## Article III. Intoxicating Liquor

### Division 1. Generally

Sec. 6-91. Prohibited drinking and prohibited possession.
Sec. 6-92. Transportation of alcoholic liquors for purpose of sale; presumption arising in certain cases.
Sec. 6-93. Other specific acts forbidden.
Secs. 6-94—6-110. Reserved.

### Division 2. Taxes and License Taxes

Sec. 6-111. Tax imposed upon purchase price of intoxicating liquors sold at state stores and by any person licensed to sell wine at retail.
Sec. 6-112. Annual license tax imposed upon wine distributors and retailers and private wine restaurant licensees.
Sec. 6-113. Tax imposed upon retail purchase price of intoxicating liquors sold at state stores and from persons licensed to sell wine at retail.
Secs. 6-114—6-130. Reserved.

---

***Cross references—**Businesses, ch. 18; driving under the influence of alcohol, controlled substances or drugs, § 114-302.

**State law references—**Liquor Control Act, W. Va. Code § 60-1-1 et seq.; authority to prevent illegal sale of intoxicating liquors, W. Va. Code § 8-12-5(20); authority to require city license and impose license tax for anything for which a state license required, W. Va. Code § 8-13-4; nonintoxicating beer, W. Va. Code § 11-16-1 et seq.

Division 3. Private Clubs

*Subdivision I. In General*

Sec. 6-131. Duty of state licensees to report to city to display state licenses and pay city license fees; prohibited liquor sales when city fee not paid.
Sec. 6-132. City collector to maintain records of state licenses; receipts for city fees to be issued; duty of licensees to display city receipts.
Sec. 6-133. Certain acts of licensee prohibited.
Secs. 6-134—6-140. Reserved.

*Subdivision II. License*

Sec. 6-141. Annual license fees imposed; partial fee for half year or less.
Sec. 6-142. To whom fees paid; disposition of fees.
Sec. 6-143. Expiration or revocation of state license revokes privileges under this subdivision.
Secs. 6-144—6-150. Reserved.

**Article IV. Private Outdoor Designated Areas**

Division 1. Generally

Sec. 6-151. Authorization for private outdoor designated areas.
Sec. 6-152. Private outdoor designated area.
Sec. 6-153. Participation in a private outdoor designated area.
Sec. 6-154. Containers.
Sec. 6-155. Signage and prohibitions.
Sec. 6-156. Public health, safety, and sanitation.
Sec. 6-157. Revocation of city manager approval; and general policy authority.
Sec. 6-158. Suspension of private outdoor designated area.
Sec. 6-159. Penalties.
Secs. 6-160—6-165. Reserved.

Division 2. City Center Poda

Sec. 6-166. Creation and boundaries.
Sec. 6-167. Days and hours of operation.
Sec. 6-168. Personnel needed.
Secs. 6-169, 6-170. Reserved.

Division 3. Bridge Road Poda

Sec. 6-171. Creation and boundaries.
Sec. 6-172. Days and hours of operation.
Sec. 6-173. Personnel needed.
Secs. 6-174, 6-175. Reserved.

Division 4. Elk City Poda

Sec. 6-176. Creation and boundaries.
Sec. 6-177. Days and hours of operation.
Sec. 6-178. Personnel needed.
Secs. 6-179, 6-180. Reserved.

Division 5. Capitol Market Poda

Sec. 6-181. Creation and boundaries.
Sec. 6-182. Days and hours of operation.
Sec. 6-183. Personnel needed.
Secs. 6-184, 6-185. Reserved.

Division 6. East End Poda

Sec. 6-186. Creation and boundaries.
Sec. 6-187. Days and hours of operation.
Sec. 6-188. Personnel needed.

## ARTICLE I. IN GENERAL

### Sec. 6-1. Construction of words and terms.

In construing the meaning of the words and terms used in this chapter, the municipal court will accept and be controlled by the definitions contained in W. Va. Code §§ 11-16-3, 60-1-5 and 60-7-2 and other state laws and regulations relating to intoxicating liquors and nonintoxicating beer.
(Code 1975, § 3-1)

### Secs. 6-2—6-30. Reserved.

## ARTICLE II. NONINTOXICATING BEER*

### DIVISION 1. GENERALLY

### Secs. 6-31—6-50. Reserved.

### DIVISION 2. LICENSE†

### Sec. 6-51. License and compliance with division required.

No person shall manufacture, sell, possess for sale, transport or distribute within the city nonintoxicating beer, except in accordance with the provisions of this division, and after first obtaining a city license, as provided for in this article.
(Code 1975, § 3-6)

### Sec. 6-52. Annual license tax imposed on brewers and dealers; license year; classes of dealers and amount of tax.

There is levied and imposed an annual license tax upon all dealers in or of nonintoxicating beer, which license period shall begin on July 1 of each year and end on June 30 of the following year; and if granted for a less period, the tax shall be computed quarterly, in proportion to the remainder of the fiscal year, as follows:

(1) Retail dealers shall be divided into two classes, class A and class B.

a. 1. In the case of a class A retail dealer, the license fee shall be $100.00 for each place of business; the license fee for social, fraternal or private clubs not operating for profit, and having been in continuous operation for two years or more immediately preceding the date of application, shall be $100.00; except that railroads operating in this state may dispense nonintoxicating beer upon payment of an annual license tax of $10.00 for each dining, club or buffet car in which such beer is dispensed.

2. Class A licenses issued for social, fraternal or private clubs and for railroad dining, club or buffet cars, as provided in this subsection, shall authorize the licensee to sell nonintoxicating beer at retail for consumption only on the licensed premises where sold. All other class A licenses shall authorize the licensee to sell nonintoxicating beer at retail for consumption on or off the licensed premises.

b. In the case of a class B retailer, the license fee shall be $15.00 for each place of business. A class B license shall authorize the licensee to sell nonintoxicating beer at retail in bottles, cans or other sealed containers only, and only for consumption off the licensed premises. Sales under this license to any person at any one time must be in quantities less than five gallons. Such license may be issued only to the proprietor or owner of a grocery store. For the purpose of this article the term "grocery

*__State law reference—__The Intoxicating Beer Act, W. Va. Code § 11-16-1 et seq.

†__State law reference—__Authority to tax sale of nonintoxicating beer, W. Va. Code §§ 8-13-4, 11-16-26.

store" includes any retail establishment commonly known as a grocery store or delicatessen, and caterer or party supply store where food or food products are sold for consumption off the premises and shall mean and include a separate and segregated portion of any retail store which is dedicated solely for the sale of food, food products and supplies for the table for consumption off the premises.

(2) In the case of a distributor, the license fee shall be $250.00 for each place of business.

(3) In the case of a brewer with its place of business located within the city, the license fee shall be $500.00 for each place of manufacture.

(Code 1975, § 3-7)

### Sec. 6-53. Eligibility and application for license.

A city license to manufacture, distribute or sell nonintoxicating beer shall be issued by the city collector to any person who holds a currently valid state license to do so and who applies for a corresponding city license. In such application, the applicant shall state:

(1) The address or location of the premises where he intends to do business under the license applied for;

(2) The name and address of the owner of such premises; and

(3) That such premises complies with the building code, the fire prevention code and all applicable health and other laws, ordinances and regulations, and is a safe and proper place or building in which to conduct the licensed business.

(Code 1975, § 3-8)

### Sec. 6-54. False statements relating to licenses.

It shall be unlawful for any person to make a false statement concerning any material fact in submitting an application for a license under this division, or for a renewal of a license, or in any hearing concerning the revocation of a license.
(Code 1975, § 3-9)

**State law reference—**False swearing, W. Va. Code § 61-5-2.

### Sec. 6-55. List of licensees to be reported to clerk of municipal court.

The city collector shall furnish the clerk of the municipal court an accurate list of all persons to whom licenses have been issued under this division.
(Code 1975, § 3-10)

### Sec. 6-56. Revocation of license.

The city council may revoke the license granted to any licensee under this division, subject to an appeal of any licensee to a court of competent jurisdiction, whenever disorderly practices are permitted or intoxicating liquor is sold on the premises.
(Code 1975, § 3-11)

### Secs. 6-57—6-90. Reserved.

## ARTICLE III. INTOXICATING LIQUOR*

### DIVISION 1. GENERALLY

### Sec. 6-91. Prohibited drinking and prohibited possession.

It shall be unlawful for any person to:

(1) Drink alcoholic liquor in a public place.

(2) Drink alcoholic liquor in a motor vehicle upon any street, open space or in a public garage.

(3) Tender a drink of alcoholic liquor to another person in a public place or in any place mentioned in subsection (2) of this section.

(4) Possess alcoholic liquor in an amount in excess of one gallon, in containers not bearing stamps or seals of the state

*__State law reference—__Intoxicating liquor, W. Va. Code § 60-1-1 et seq.

liquor control commission, without having first obtained written authority from that commission.

(5) Possess any alcoholic liquor which he knows or should know was manufactured or acquired in violation of the provisions of W. Va. Code ch. 60 (W. Va. Code § 60-1-1 et seq.).

(Code 1975, § 3-3)

**State law reference—**Intoxication or drinking in public, W. Va. Code § 60-6-9.

### Sec. 6-92. Transportation of alcoholic liquors for purpose of sale; presumption arising in certain cases.

No person shall transport alcoholic liquors for the purpose of sale without authorization from the state liquor control commission. Transportation of alcoholic liquors in a quantity in excess of one gallon, except pursuant to a permit issued by the state liquor control commission, shall be prima facie evidence of transportation for the purpose of sale.

(Code 1975, § 3-4)

**Cross reference—**Traffic ordinance, ch. 114.

**State law reference—**Transportation of alcoholic liquors for sale, W. Va. Code §§ 60-6-6, 60-6-12.

### Sec. 6-93. Other specific acts forbidden.

No person shall, under circumstances not constituting a felony:

(1) Manufacture or sell in the city, without a state license to do so, any alcoholic liquor except as may be permitted by W. Va. Code ch. 60, art. 6 (W. Va. Code § 60-6-1 et seq.).

(2) Aid or abet in the manufacture or sale of alcoholic liquor without a license, except as permitted by W. Va. Code ch. 60, art. 6 (W. Va. Code § 60-6-1 et seq.).

(3) Adulterate any alcoholic liquor by the addition of any drug; methyl alcohol; crude, unrectified or impure form of ethyl alcohol; or other foreign or deleterious substance or liquor.

(Code 1975, § 3-5)

**State law reference—**Similar provisions, W. Va. Code § 60-6-7.

### Secs. 6-94—6-110. Reserved.

## DIVISION 2. TAXES AND LICENSE TAXES

### Sec. 6-111. Tax imposed upon purchase price of intoxicating liquors sold at state stores and by any person licensed to sell wine at retail.

Pursuant to W. Va. Code § 8-13-7, there is imposed a tax of five percent of the retail purchase price of any and all intoxicating liquors purchased from the alcohol beverage control commission or from any person licensed to sell wine at retail to the public under the provisions of W. Va. Code ch. 60, art. 8 (W. Va. Code § 60-8-1 et seq.) within the corporate boundaries of the city. Such tax shall be levied upon the purchaser of such intoxicating liquor or wine and shall be added to any collected with the retail purchase price of such intoxicating liquor or wine. Such tax shall be received by the city from the state treasury pursuant to the rules and regulations adopted by the alcohol beverage control commission; however, such tax shall not be collected on intoxicating liquors sold by or purchased from holders of a license issued under the provisions of W. Va. Code ch. 60, art. 7 (W. Va. Code § 60-7-1 et seq.).

(Code 1975, § 3-2)

### Sec. 6-112. Annual license tax imposed upon wine distributors and retailers and private wine restaurant licensees.

(a) No person may engage in business in the capacity of a distributor, retailer or private wine restaurant licensee without first obtaining a license from the city; nor shall a person continue to engage in any such activity after his license has expired, been suspended or revoked. No person may be licensed in more than one of such capacities at the same time.

(b) The city shall collect an annual fee for licenses issued under this section as follows:

(1) For a distributor's license, $2,500.00 per year.

(2) For a retailer's license, $150.00 per year.

(3) For a private wine restaurant license, $250.00 per year. Each separate restaurant from which a licensee sells wine shall be separately licensed, and there shall be collected with respect to each such location the annual license fee of $250.00 as provided in this subsection.

(c) The license period shall begin July 1 of each year and end June 30 of the following year; and if the initial license is granted for less than a year, the fee shall be computed in proportion to the number of quarters remaining in the fiscal year, including the quarter in which application is made.

(d) No retailer may be licensed as a private club as provided by division 3 of this article or as a class A retail dealer in nonintoxicating beer as provided by division 2 of this article. A retailer who has more than one place of retail business shall obtain a license for each separate retail establishment. A retailer's license may be issued only to the proprietor or owner of a bona fide grocery store or wine specialty shop.
(Code 1975, § 3-7.1)

**State law reference—**Authority to impose tax on wine dealers, W. Va. Code § 8-13-7.

### Sec. 6-113. Tax imposed upon retail purchase price of intoxicating liquors sold at state stores and from persons licensed to sell wine at retail.

Pursuant to W. Va. Code § 8-13-7, there is imposed a tax of five percent of the retail purchase price of any and all intoxicating liquors purchased from the alcohol beverage control commission or from any person licensed to sell wine at retail to the public under the provisions of W. Va. Code ch. 60, art. 8 (W. Va. Code § 60-8-1 et seq.) within the corporate boundaries of the city. Such tax shall be levied upon the purchaser of such intoxicating liquor or wine and shall be added to any tax collected with the retail purchase price of such intoxicating liquor or wine. Such tax shall be received by the city from the state treasury pursuant to the rules and regulations adopted by the alcohol beverage control commission; however, such tax shall not be collected on intoxicating liquors, other than wine sold by or purchased from holders of a license issued under the provisions of W. Va. Code ch. 60, art. 7 (W. Va. Code § 60-7-1 et seq.); further, such tax shall be collected upon all sales of wine to holders of a license issued under the provisions of W. Va. Code ch. 60, art. 7 (W. Va. Code § 60-7-1 et seq.); from a wine distributor licensed pursuant to the provisions of W. Va. Code ch. 60, art. 3 (W. Va. Code § 60-3-1 et seq.).
(Code 1975, § 3-7.2)

### Secs. 6-114—6-130. Reserved.

## DIVISION 3. PRIVATE CLUBS*

### *Subdivision I. In General*

### Sec. 6-131. Duty of state licensees to report to city to display state licenses and pay city license fees; prohibited liquor sales when city fee not paid.

Each licensee holding a state license issued under the provisions of W. Va. Code ch. 60, art. 7 (W. Va. Code § 60-7-1 et seq.) for a private club the premises of which are situated in the city shall, upon first obtaining such license and at the time of each renewal of such license, report to the city collector and display such state license to him and pay the city license fee which is imposed upon him by this division; and it shall be unlawful for any such licensee or any officer, member or employee of any private club so licensed the premises of which being situated in the city to sell intoxicating liquor upon such premises unless all fees due to the city, as provided in this division, have then been paid.
(Code 1975, § 3-12)

### Sec. 6-132. City collector to maintain records of state licenses; receipts for city fees to be issued; duty of licensees to display city receipts.

The city collector, upon display to him of a state private club license, shall make a record of

*__State law reference—__Licensing and regulation of private clubs, W. Va. Code § 60-1-1 et seq.

such license and preserve such record in his office; and, upon payment to him of the city license fee as prescribed in this division, he shall issue to the licensee a receipt for such payment, which shall indicate the amount paid, the type of private club and its address within the city, and expiration date of the license for which such city license fee has been paid. It shall be the duty of each such licensee to maintain such city receipt on display in a conspicuous place on the premises of the private club to which it relates.
(Code 1975, § 3-15)

### Sec. 6-133. Certain acts of licensee prohibited.

(a) It shall be unlawful for any licensee under this division, his agent, employee or member, on such licensee's premises to:

(1) Sell or offer for sale any alcoholic liquors other than from the original package or container;

(2) Authorize or permit any disturbance of the peace; obscene, lewd, immoral or improper entertainment, conduct or practice; gambling or any slot machine or device in the nature of a slot machine;

(3) Sell, give away or permit the sale of, gift to or the procurement of any alcoholic liquors for any minor, mental incompetent or person who is physically incapacitated due to the consumption of alcoholic liquor or the use of drugs;

(4) Sell, give or dispense alcoholic liquors in or on any licensed premises or in any rooms directly connected with such premises, between the hours of 3:00 a.m. and 1:00 p.m. on any Sunday, provided that for persons or entities possessing a WV Alcohol Beverage Control Administration On-Premises License, as set forth in section 3-17(b) of this CODE, the hours shall be between 3:00 a.m. and 10:00 a.m. on any Sunday;

(5) Permit the consumption by or serve to on the licensed premises any alcoholic liquors covered by this article to any person under the age of 18 years;

(6) With the intent to defraud, alter, change or misrepresent the quality, quantity or brand name of any alcoholic liquor;

(7) Sell or offer for sale any alcoholic liquor to any person who is not a duly elected or approved dues-paying member in good standing of such private club or a guest of such member; or

(8) Violate any applicable rule or regulation of the state alcohol beverage control commissioner promulgated pursuant to authority vested in him by state law.

(b) It shall further be unlawful for any licensee to advertise in any news media or other means outside of the licensee's premises the fact that alcoholic liquors may be purchased there.
(Code 1975, § 3-17; Bill No. 7702, 8-1-2016)

**State law reference—**Similar provisions, W. Va. Code § 60-7-12.

### Secs. 6-134—6-140. Reserved.

*Subdivision II. License*

### Sec. 6-141. Annual license fees imposed; partial fee for half year or less.

There is levied upon each and every private club dispensing alcoholic beverages licensed by the state under W. Va. Code ch. 60 (W. Va. Code § 60-1-1 et seq.) the following annual license fee:

(1) The annual license fee for a license issued under the provisions of this subdivision to a fraternal or veterans organization or a nonprofit social club shall be $375.00.

(2) The annual license fee for a license issued under the provisions of this subdivision to a private club other than a private club of the type specified in subsection (1) of this section shall be $500.00 if such private club has less than 1,000 members, and $1,250.00 if such a private club has 1,000 or more members.

(3) The fee for any such license issued following January 1 of any year and to

expire on June 30 of such year shall be half that prescribed by subsections (1) and (2) of this section.

(Code 1975, § 3-13)

**State law reference—**Authority to impose fee on any private club licensed by state, W. Va. Code §§ 8-13-7, 60-7-7.

### Sec. 6-142. To whom fees paid; disposition of fees.

All license fees imposed by this subdivision shall be paid to the city collector and credited to the general revenue fund of the city.

(Code 1975, § 3-14)

### Sec. 6-143. Expiration or revocation of state license revokes privileges under this subdivision.

If any private club license issued by the state or any agency of the state expires and is not renewed or is revoked, any privilege provided by reason of this subdivision is automatically revoked.

(Code 1975, § 3-16)

### Secs. 6-144—6-150. Reserved.

## ARTICLE IV. PRIVATE OUTDOOR DESIGNATED AREAS

### DIVISION 1. GENERALLY

### Sec. 6-151. Authorization for private outdoor designated areas.

Pursuant to W. Va. Code § 8-12-26, the City of Charleston hereby adopts this article establishing private outdoor designated areas, as described in W. Va. Code §§ 60-7-8g and 60-7-8h.

(Bill No. 8013, 10-2-2023; Bill No. 8055, 5-19-2025)

### Sec. 6-152. Private outdoor designated area.

A private outdoor designated area includes the public property that has become a legally demarcated area established by a municipal ordinance as set forth in W. Va. Code § 8-12-26 for the consumption of liquor, wine, nonintoxicating beer, and nonintoxicating craft beer. Notwithstanding the provisions of section 78-211 of this Code, a person may possess and consume an approved open container of liquor, wine, nonintoxicating beer, or nonintoxicating craft beer sold from an approved permit holder, as further detailed in this article, outdoors within a private outdoor designated area. A business operating within a private outdoor designated area may choose whether or not to permit people to enter its business with an approved open container of liquor, wine, nonintoxicating beer, or nonintoxicating craft beer sold from an approved permit holder. A private outdoor designated area may be authorized to simultaneously host multiple qualified licenses and permit holders as defined in West Virginia Code, at the discretion and with the approval of the city manager.

(Bill No. 8013, 10-2-2023; Bill No. 8031, 4-15-2024; Bill No. 8055, 5-19-2025)

### Sec. 6-153. Participation in a private outdoor designated area.

(a) Any qualified permit holder under W. Va. Code § 60-7-8g that operates in a private outdoor designated area may apply to the city manager for the approval to participate in the sale of alcoholic beverages within a private outdoor designated area. The city manager shall review the application to ensure it is complete and meets the following requirements:

(1) The applicant is located in an established private outdoor designated area, pursuant to this article, with a front door in compliance with all building and fire codes for the safe ingress and egress of members, patrons, and guests to and from the private outdoor designated area.

(2) The applicant has a valid city and state business license and is in good standing with the city.

(3) The applicant is a qualified permit holder meeting the requirements under W. Va. Code § 60-7-8g.

(b) Any qualified non-profit permit holder under W. Va. Code § 60-7-8h that elects to operate its events solely within a private outdoor designated area may apply to the city manager for the approval to participate in the sale of

alcoholic beverages within a private outdoor designated area. The city manager shall review the application to ensure it is complete and meets the requirements of W. Va. Code § 60-7-8h.

(c) Once approved by the city manager, as indicated by a letter of approval to the applicant, the license holder may apply to the West Virginia Alcohol Beverage Control Administration ("WVABCA") for a Class S4 or Class S4N special permit, as detailed in W. Va. Code §§ 60-7-8g and 60-7-8h, to participate in a private outdoor designated area, as further detailed in this article, in the West Virginia Code, and in any applicable rules of the WVABCA. Upon approval by the WVABCA, the Class S4 or Class S4N special permit holder shall notify the city manager's office. Any qualified permit holder that receives the approval of the city manager and the WVABCA may participate in a private outdoor designated area.

(d) Participation in a private outdoor designated area does not provide a business with any authority to operate outdoor dining on the public right-of-way. Any business interested in participating in outdoor dining shall follow the requirements of chapter 102, article VII of this Code. A business with an approved outdoor dining area that is within a private outdoor designated area may operate its outdoor dining area simultaneously with its participation in a private outdoor designated area.
(Bill No. 8013, 10-2-2023; Bill No. 8031, 4-15-2024; Bill No. 8055, 5-19-2025)

**Sec. 6-154. Containers.**

All beverages served from approve qualified permit holders for consumption in a private outdoor designated area shall be served in a non-glass container not greater than 16 fluid ounces, which has been approved by the city manager and the WVABCA.
(Bill No. 8013, 10-2-2023; Bill No. 8031, 4-15-2024; Bill No. 8055, 5-19-2025)

**Sec. 6-155. Signage and prohibitions.**

(a) Prior to the operation of a private outdoor designated area, the city shall erect conspicuous signage identifying the private outdoor designated area. The signs shall be located at every reasonable point where a pedestrian may exit the private outdoor designated area by way of a public sidewalk. The signs shall clearly state "No alcohol beyond this point." and provide clear notice that a person is leaving the private outdoor designated area.

(b) A person may not leave a private outdoor designated area while possessing an open container of liquor, wine, nonintoxicating beer, or nonintoxicating craft beer that contains liquid.

(c) A person may not possess an open container of liquor, wine, nonintoxicating beer, or nonintoxicating craft beer that contains liquid while being in, on, or operating a motor vehicle within a private outdoor designated area.
(Bill No. 8013, 10-2-2023; Bill No. 8031, 4-15-2024)

**Sec. 6-156. Public health, safety, and sanitation.**

(a) All private outdoor designated areas shall be operated in a manner consistent with all state and municipal laws. The Charleston Police Department shall be responsible for ensuring compliance and may issue citations within the private outdoor designated areas as necessary. The Charleston Police Department shall provide a copy of any citation issued within a private outdoor designated area to the WVABCA.

(b) In addition to any public restrooms in a private outdoor designated area, participating Class S4 and S4N special permit holders shall make available adequate restroom facilities, whether permanent or portable, to serve their members and guests during all hours of operation of the private outdoor designated area.

(c) All businesses operating within a private outdoor designated area shall comply with all requirements of the Kanawha-Charleston Health Department.

(d) All participating businesses within a private outdoor designated area shall make waste receptacles available during the operating hours of the private outdoor designated area in a number sufficient to contain the waste generated within the area and which are emptied

regularly by each participating business as needed to ensure availability. These waste receptacles are in addition to the City of Charleston public waste receptacles in the area.
(Bill No. 8013, 10-2-2023; Bill No. 8031, 4-15-2024; Bill No. 8055, 5-19-2025)

**Sec. 6-157. Revocation of city manager approval; and general policy authority.**

(a) The city manager may revoke the letter of approval of any Class S4 or S4N special permit holder for violation of any law, rule or regulation, or when doing so is in the interest of public safety, by sending a revocation letter to both the permit holder and the WVABCA.

(b) The city manager is authorized to create policies and procedures as necessary for the efficient operation of the private outdoor designated areas, including, but not limited to, signage language approval, container approval, identification of participating businesses and non-participating businesses, review of security plans proposed to the WVABCA, the interaction and interplay between a fair or festival and the Private outdoor designated areas, the duties and responsibilities of all participating businesses with respect to clean up and other sanitation matters, and temporary reduction, expansion, or modification of the hours of a private outdoor designated area to accommodate special circumstances or events.
(Bill No. 8013, 10-2-2023; Bill No. 8031, 4-15-2024; Bill No. 8055, 5-19-2025)

**Sec. 6-158. Suspension of private outdoor designated area.**

The city manager has the authority to suspend the operation of a private outdoor designated area immediately for any reason, including when in the interest of public safety, by providing notice to all Class S4 and Class S4N special permit holders within the private outdoor designated area, city council, any business association participating in the marketing or advertising of the private outdoor designated area, and the WVABCA.
(Bill No. 8013, 10-2-2023; Bill No. 8031, 4-15-2024; Bill No. 8055, 5-19-2025)

**Sec. 6-159. Penalties.**

(a) An individual who violates any provision of this article relating to private outdoor designated areas is guilty of a misdemeanor and, upon conviction, shall be fined not less than $5.00 and not more than $100.00.

(b) Any person who owns or operates a business within a private outdoor designated area or is employed by such a business and who violates any provision of this article is guilty of a misdemeanor and, upon conviction, shall be fined not less than $5.00 and not more than $1,000.00. Any owner, operator, or employee who violates a provision of this article and is convicted of a third such offense, upon conviction, may be confined for up to 30 days. These penalties for owners, operators, and employees of private outdoor designated areas are in addition to any penalty from the WVABCA.
(Bill No. 8013, 10-2-2023)

**Secs. 6-160—6-165. Reserved.**

DIVISION 2. CITY CENTER PODA

**Sec. 6-166. Creation and boundaries.**

(a) City Council for the City of Charleston hereby establishes a private outdoor designated area known as "City Center PODA," which shall have the boundary as stated in subsection (b) of this section and which shall meet all of the requirements of this article and applicable West Virginia Code. Notwithstanding the foregoing and the provisions of subsection (b) of this section, the city council further approves the establishment of two special event locations within the City Center PODA, as described in subsection (c) of this section, which may become inactive areas within the City Center PODA as provided in subsection (d) of this section.

(b) The City Center PODA shall begin at the southeastern corner of the intersection of Kanawha Boulevard and Laidley Street, then continue along Laidley Street in a northerly direction, including City Center at Slack Plaza, to Lee Street, then continue in an easterly direction along Lee Street, including the structures

on the northern side of Lee Street between Summers Street and Dickinson Street, but excluding Davis Park, to Dickinson Street, then continue in a southerly direction along Dickinson Street to Virginia Street, then continue in a westerly direction along Virginia Street to Capitol Street, then continue in a southerly direction along Capitol Street to Kanawha Boulevard, including the 800 block of Kanawha Boulevard and then continue in a westerly direction along Kanawha Boulevard to include all of Haddad Riverfront Park to the southeastern corner of the intersection of Laidley Street and Kanawha Boulevard. The City Center PODA shall include the public rights-of-way within the boundary area and the buildings at or within the following addresses: 600-900 Virginia Street East; 500-816 Kanawha Blvd East; 8-310 Capitol Street; 2-191 Summers Street; 100-235 Hale Street; 611-900 Lee Street East; 700-723 Brawley Walkway; 700-912 Quarrier Street.

(c) Within the boundary of the City Center PODA, as detailed in subsection (b) of this section, there are hereby established two special event locations: the Haddad Riverfront Park Special Event Location and the City Center at Slack Plaza Special Event Location. Each of these special event location boundaries are shown on the attached updated map of the City Center PODA. The updated map hereby replaces all previous City Center PODA maps and is incorporated by reference herein and made a part of this article.

(d) The city manager is hereby explicitly vested by city council with the authority to announce that either the Haddad Riverfront Park Special Event Location or the City Center at Slack Plaza Special Event Location, or both, are hosting an approved special event on specific dates and times during which the applicable special event locations are deemed outside of the City Center PODA and shall provide written notice to the WVABCA of any such closure at least ten days in advance of the event, unless extenuating circumstances exist that do not allow for such advance notice and in that case notice shall be provided as soon as practicable before the event. If the city manager makes such an announcement, the city manager shall direct the conspicuous placement of at least two additional signs measuring at least 24 inches by 36 inches at each entry point to the applicable special event locations clearly stating that individuals are exiting the PODA and entering a special event location and that PODA approved beverages may not be brought into the special event location, and shall likewise place equal signs at each exit point of the special event location stating that individuals are exiting the special event location and entering the PODA and that any beverages purchased at the special event location are prohibited within the PODA. Each approved special event will have the option to obtain any relevant approval from the WVABCA to have alcohol present at the event and, if the approved special event chooses to do so, the approved special event shall be responsible for ensuring that any alcoholic beverages served at the approved special event do not leave the relevant special event location. The city manager shall have no additional authority to modify the footprint of the City Center PODA except as explicitly provided herein without first obtaining approval of city council.

(e) The area within the City Center PODA is in the Central Business District ("CBD"), which is a zoning area that allows for the sale and consumption of liquor, wine, nonintoxicating beer and nonintoxicating craft beer, and is in compliance with the zoning ordinance.
(Bill No. 8013, 10-2-2023; Bill No. 8037, 7-1-2024)

### Sec. 6-167. Days and hours of operation.

The City Center PODA may operate year round on any Monday through Friday from 4:00 p.m. until 10:00 p.m., and on Saturday, Sunday, and state and federal holidays from 10:00 a.m. until 10:00 p.m. Drinks may not be sold in PODA cups outside of the hours of operation.
(Bill No. 8013, 10-2-2023; Bill No. 8055, 5-19-2025)

### Sec. 6-168. Personnel needed.

The estimated number of city personnel needed to ensure public safety and efficient operations in the City Center PODA is four police officers

and two public works employees. The city council anticipates that these city employees will be working their regular shifts and generally assigned in this area of the city.
(Bill No. 8013, 10-2-2023)

**Secs. 6-169, 6-170. Reserved.**

DIVISION 3. BRIDGE ROAD PODA

**Sec. 6-171. Creation and boundaries.**

(a) City Council for the City of Charleston hereby establishes a private outdoor designated area known as "Bridge Road PODA," which shall have the boundary as stated in subsection (b) of this section and which shall meet all of the requirements of this article and applicable West Virginia Code.

(b) The Bridge Road PODA shall begin on Bridge Road at a point 115 feet north of its intersection with Walnut Road and shall continue along Bridge Road in a southerly direction to a point 275 feet southwest of its intersection with Forest Road; it shall include the area along Forest Road between Bridge Road and Glen Road and the area along Walnut Road between Pine Road and Bridge Road, along with the buildings and lots adjacent to these public rights-of-way. The Bridge Road PODA shall include the public rights-of-way within the boundary area and the buildings at or within the following addresses: 912-1040 Bridge Road; and 900-908 Walnut Road.

(c) The attached map of the Bridge Road PODA is incorporated [by reference] herein and made a part of this article.

(d) The area within the Bridge Road PODA is in a C-4 Neighborhood Commercial District, which is a zoning area that allows for the sale and consumption of liquor, wine, nonintoxicating beer and nonintoxicating craft beer, and is in compliance with the zoning ordinance.
(Bill No. 8013, 10-2-2023)

**Sec. 6-172. Days and hours of operation.**

The Bridge Road PODA may operate year round on any Monday through Friday from 4:00 p.m. until 10:00 p.m., and on Saturday, Sunday, and state and federal holidays from 10:00 a.m. until 10:00 p.m. Drinks may not be sold in PODA outside of the hours of operation.
(Bill No. 8013, 10-2-2023; Bill No. 8055, 5-19-2025)

**Sec. 6-173. Personnel needed.**

The estimated number of city personnel needed to ensure public safety and efficient operations in the Bridge Road PODA is two police officers and one public works employee. The city council anticipates that these city employees will be working their regular shifts and generally assigned in this area of the city.
(Bill No. 8013, 10-2-2023)

**Secs. 6-174, 6-175. Reserved.**

DIVISION 4. ELK CITY PODA

**Sec. 6-176. Creation and boundaries.**

(a) City Council for the City of Charleston hereby establishes a private outdoor designated area known as "Elk City PODA," which shall have the boundary as stated in subsection (b) of this section and which shall meet all of the requirements of this article and applicable West Virginia Code.

(b) The Elk City PODA shall begin at a point on Washington Street West that is 40 feet northwest of its intersection with Pennsylvania Ave. South and continues in a westerly direction along Washington Street West to a point that is 75 feet southeast of its intersection with Crescent Road; it shall include the first 300 feet of public rights-of-way off Washington Street West on Bigley Ave. and Tennessee Ave., along with the buildings and lots adjacent to these public rights-of-way. The Elk City PODA shall include the public rights-of-way within the boundary area and the buildings at or within the following addresses: 110-320 Washington Street West; 700-715 Bigley Ave.; 608-617 Tennessee Ave.

(c) The attached map of the Elk City PODA is incorporated [by reference] herein and made a part of this article.

(d) The area within the Elk City PODA is in either a C-10 General Commercial District or an Urban Corridor District ("UCD"), both of which are zoning areas that allow for the sale and consumption of liquor, wine, nonintoxicating beer and nonintoxicating craft beer, and are in compliance with the zoning ordinance.
(Bill No. 8013, 10-2-2023)

**Sec. 6-177. Days and hours of operation.**

The Elk City PODA may operate year round on any Monday through Friday from 4:00 p.m. until 10:00 p.m., and on Saturday, Sunday, and state and federal holidays from 10:00 a.m. until 10:00 p.m. Drinks may not be sold in PODA cups outside of the hours of operation.
(Bill No. 8013, 10-2-2023; Bill No. 8055, 5-19-2025)

**Sec. 6-178. Personnel needed.**

The estimated number of city personnel needed to ensure public safety and efficient operations in the Elk City PODA is two police officers and one public works employee. The city council anticipates that these city employees will be working their regular shifts and generally assigned in this area of the city.
(Bill No. 8013, 10-2-2023)

**Secs. 6-179, 6-180. Reserved.**

## DIVISION 5. CAPITOL MARKET PODA

**Sec. 6-181. Creation and boundaries.**

(a) City Council for the City of Charleston hereby establishes a private outdoor designated area known as "Capitol Market PODA," which shall have the boundary as stated in subsection (b) of this section and which shall meet all of the requirements of this article and applicable West Virginia Code.

(b) The Capitol Market PODA shall begin at the northwestern corner of Smith Street and Leon Sullivan Way and continue in a northwesterly direction along Smith Street to the point at which it meets the interstate overpass, then continuing in an easterly direction in line with the interstate overpass to the edge of the railroad right-of-way, then continuing in a southeasterly direction in line with the railroad right-of-way to Leon Sullivan Way, and then continuing in a southwesterly direction to the northwestern corner of Smith Street and Leon Sullivan Way, along with the buildings and lots adjacent to these public rights-of-way. The Capitol Market PODA shall include the public rights-of-way within the boundary area and the buildings and vendors at or within the following address: 800 Smith Street.

(c) The attached map of the Capitol Market PODA is incorporated [by reference] herein and made a part of this article.

(d) The area within the Capitol Market PODA is in a C-10 General Commercial District, which is a zoning area that allows for the sale and consumption of liquor, wine, nonintoxicating beer and nonintoxicating craft beer, and is in compliance with the zoning ordinance.
(Bill No. 8013, 10-2-2023)

**Sec. 6-182. Days and hours of operation.**

The Capitol Market PODA may operate daily year round from 10:00 a.m. until 7:00 p.m. Drinks may not be sold in PODA cups or consumed within the Capitol Market PODA outside of the hours of operation.
(Bill No. 8013, 10-2-2023)

**Sec. 6-183. Personnel needed.**

There are no estimated city personnel needed to ensure public safety and efficient operations in the Capitol Market PODA, as the Capitol Market will provide all personnel needed for such purpose.
(Bill No. 8013, 10-2-2023)

**Secs. 6-184, 6-185. Reserved.**

## DIVISION 6. EAST END PODA

**Sec. 6-186. Creation and boundaries.**

(a) City Council for the City of Charleston hereby establishes a private outdoor designated area known as "East End PODA," which shall

have the boundary as stated in subsection (b) of this section and which shall meet all of the requirements of this article and applicable West Virginia Code.

(b) The East End PODA shall begin at a point on Washington Street East that is 90 feet northeast of its intersection with Maxwell Street and continue in a southeasterly direction along Washington Street East to a point 190 feet southeast of its intersection with Elizabeth Street; it shall include the first 185 feet of public right-of-way off Washington Street East on Elizabeth Street in both a northerly and southerly direction as well as the first 150 feet of public right-of-way off Washington Street East on Maxwell Street in a northerly direction, along with the buildings and lots adjacent to these public rights-of-way. The East End PODA shall include the public rights-of-way within the boundary area and the buildings at or within the following addresses: 1586-1611 Washington Street East and 304-412 Elizabeth Street.

(c) The attached map of the East End PODA is incorporated herein and made a part of this division.

(d) The area within the East End PODA is in a CVD Corridor Village District or a C-8 Village Commercial District, both of which are zoning areas that allow for the sale and consumption of liquor, wine, nonintoxicating beer and nonintoxicating craft beer, and are in compliance with the zoning ordinance.
(Bill No. 8031, 4-15-2024)

**Sec. 6-187. Days and hours of operation.**

The East End PODA may operate year round on any Monday through Friday from 4:00 p.m. until 10:00 p.m., and on Saturday, Sunday, and state and federal holidays from 10:00 a.m. until 10:00 p.m. Drinks may not be sold in PODA cups outside of the hours of operation.
(Bill No. 8031, 4-15-2024; Bill No. 8055, 5-19-2025)

**Sec. 6-188. Personnel needed.**

The estimated number of city personnel needed to ensure public safety and efficient operations in the East End PODA is two police officers and one public works employee. The city council anticipates that these city employees will be working their regular shifts and generally assigned in this area of the city.
(Bill No. 8031, 4-15-2024)

Chapters 7—9

**RESERVED**

# Chapter 10

# ANIMALS*

## Article I. In General


Sec. 10-1. Administration and enforcement of chapter; interference with officers.
Sec. 10-2. Poisoning animals.
Sec. 10-3. Cruelty to animals.
Sec. 10-4. Tethering of dogs.
Sec. 10-5. Procedures, penalties and fines for sections 10-2, 10-3 and 10-4.
Sec. 10-6. Animal nuisances.
Sec. 10-7. Animal owner responsibility for removal of animal excrement; fines.
Sec. 10-8. Sale of baby fowl.
Sec. 10-9. Dead animals and fowl; disposition of carcasses.
Sec. 10-10. Responsibility for removal of carcasses.
Sec. 10-11. Keeping fowl near inhabited building.
Sec. 10-12. Keeping of certain animals.
Sec. 10-13. Certain animals and reptiles prohibited to be kept within city except pursuant to license or permit.
Sec. 10-14. City declared bird sanctuary; trapping, hunting; riddance of nuisance birds; penalty.
Sec. 10-15. Maintenance of pens, coops, other enclosures, places.
Sec. 10-16. Immunization of dogs, cats and ferrets; fines.
Sec. 10-17. Control of rabies and other diseases generally.
Sec. 10-18. Animal bites, quarantine; fines.
Sec. 10-19. Releasing impounded animals.
Sec. 10-20. General penalty.
Secs. 10-21—10-50. Reserved.


## Article II. Livestock

### Division 1. Generally


Sec. 10-51. Certain animals prohibited from running at large, subject to impoundment; responsibility of owners and persons in charge.
Secs. 10-52—10-70. Reserved.


### Division 2. Impoundment


Sec. 10-71. Notice of impounding of animals.
Sec. 10-72. Redemption of impounded animals.
Sec. 10-73. Auction sale of impounded animals not redeemed.
Sec. 10-74. Disposition of unredeemed animals when sale at auction not feasible.
Sec. 10-75. Report of money received.
Sec. 10-76. Payment of money received to city treasurer.
Sec. 10-77. Payment of surplus proceeds to owners of animals sold.
Sec. 10-78. Interference with humane officer; releasing impounded animals.
Secs. 10-79—10-110. Reserved.


---

***Cross references—**Environment, ch. 50; health and sanitation, ch. 58; persons riding animals, animal-drawn vehicles, § 114-10.

**State law reference—**General authority to regulate animals, W. Va. Code § 8-12-5(26).

## Article III. Dogs

### Division 1. Generally

Sec. 10-111. Definitions.
Sec. 10-112. Removal of dogs from public gatherings.
Sec. 10-113. Seizing or enticing dog; bringing dog into city for impounding or killing.
Sec. 10-114. Dangerous dogs: definitions.
Sec. 10-115. Dangerous dogs: procedure for the determination of a dangerous dog.
Sec. 10-116. Dangerous dogs: control of dangerous dog; registration and confinement.
Sec. 10-117. Dangerous dogs: Violation of requirements for dangerous dog; fines.
Sec. 10-118. Dangerous dogs: threats to public safety.
Sec. 10-119. Actions under proclamation by health commissioner.
Sec. 10-120. Restriction on number of dogs.
Sec. 10-121. Restriction on number of dogs: special permit.
Secs. 10-122—10-140. Reserved.

### Division 2. License

Sec. 10-141. Annual license required; application for license and payment of license fee; license tag.
Sec. 10-142. License fees; expiration of licenses.
Secs. 10-143—10-160. Reserved.

### Division 3. Impoundment

Sec. 10-161. Dogs prohibited to run at large; fines.
Sec. 10-162. Aggressive dogs prohibited to run at large; fines.
Sec. 10-163. Impounding, redemption and disposition of dog running at large.
Secs. 10-164—10-170. Reserved.

## Article IV. Urban Hunting

Sec. 10-171. Urban deer, bear, and coyote management.

## ARTICLE I. IN GENERAL*

### Sec. 10-1. Administration and enforcement of chapter; interference with officers.

(a) It shall be the duty of the humane officer or officers appointed by the mayor pursuant to the provisions of sections 5 and 35 of the city's Charter, with the cooperation of the police and health departments, to administer and enforce the provisions of this chapter.

(b) The senior humane officer and his assistants shall be uniformed in accordance with the standards recommended by the Kanawha/Charleston Humane Association (hereinafter referred to in this chapter as "humane association") and approved by the mayor.

(c) A humane officer or police officer may pursue and capture any dog found to be running at large as defined in this chapter. The officer shall have the authority to enter upon private property to effectuate capture. However, the officer shall not enter into any secured fenced area or structure located upon private property unless necessary to prevent harm to persons or animals, or unless consent is obtained from the person in possession of the real property.

(d) No person shall hinder, molest or interfere with any person authorized or empowered to perform any duty under this chapter; nor shall any person hinder, delay or obstruct the humane officer or police officer in driving or transporting to the public pound any animal to be impounded under the provisions of this article.

(e) Violators of any section of this chapter may be summoned to the municipal court by a humane officer or a police officer.
(Ord. No. 7266, 6-18-2007)

**Cross reference—**Administration, ch. 2.

*__Editor's note—__Ord. No. 7266, adopted June 18, 2007, amended art. I in its entirety to read as herein set out. Former art. I, §§ 10-1—10-15, pertained to similar subject matter and derived from Code 1975, §§ 4-1, 4-11—4-23; and Bill No. 7152, adopted July 18, 2005.

### Sec. 10-2. Poisoning animals.

No poisoned meat or any poisonous substance shall be cast into any of the streets, public places or lots or buildings in the city for the purpose of destroying dogs or other animals: provided that it is not the intent of this section to prohibit the use of poisonous substances for the control of vermin of significance to the public health.

Violations of this section shall be subject to the enforcement, adjudication and penalty provisions of section 10-5.
(Ord. No. 7266, 6-18-2007)

**State law reference—**Malicious killing of animals, W. Va. Code § 61-3-27.

### Sec. 10-3. Cruelty to animals.

(a) *Cruel acts and conditions enumerated.*

(1) It shall be unlawful for any person:

a. To willfully and maliciously kill, maim, disfigure or torture any animal, or beat any animal with a stick, board, chain, club, or other object, mutilate, burn or scale any animal with any substance, or drive over any animal, or otherwise cruelly set an animal upon another animal; provided that reasonable force may be employed to drive off vicious or trespassing animals; or

b. To make accessible to any animal by any means, with the intent to cause harm or death, any substance which has in any manner been treated or prepared with harmful or poisonous substances: provided that it is not the intent of this subsection to prohibit the use of poisonous substances for the control of vermin of significance to the public health; or

c. To cause, instigate, stage, or train any animal to fight or permit any fight between any animal and another animal or human; or

d. To fail, refuse, or neglect to provide any animal in his or her charge or custody as owner or otherwise with proper food, drink, shade, care, or

shelter: provided that for the purposes of this subsection any animal kept outside shall be provided with structurally sound weatherproof enclosure, large enough to accommodate the animal; or

e. To drive or work any animal cruelly; or

f. To abandon any animal within the city limits (for the purposes of this section, abandon means for the owner or keeper to leave an animal unattended without demonstrated or apparent intent to recover or resume custody, to leave an animal for more than 12 hours without providing adequate food and shelter for the duration of the absence, or to turn out or release an animal for the purpose of causing it to be impounded); or

g. To leave an animal confined in a vehicle unattended for more than five minutes in extreme weather conditions, defined as less than 30 degrees Fahrenheit or more than 80 degrees Fahrenheit; or

h. To transport an animal in the trunk of a vehicle; or

i. To transport an animal in the open bed of a truck unless said animal is restrained in a cage or on a leash that will prevent the animal from jumping or falling from the vehicle; or

j. To crop animal ears or dock animal tails except when performed by a licensed veterinarian; or

k. To give away any live animal, fish, reptile, or bird as a prize for entering, or as an inducement to enter a place of amusement; or

l. Who strikes a domesticated animal while operating a motor vehicle, to fail to stop at once and render such assistance as may be possible and immediately report such injury or death to the animal's owner, if any: provided that in the event the owner cannot be ascertained and located, such operator shall at once report the accident to the appropriate law enforcement agency or to the humane association.

(b) *Exceptions.* Nothing in subsection (a) of this section shall be deemed or interpreted to prohibit:

(1) Any action by a licensed veterinarian done in accordance with accepted standards of veterinary medicine; or

(2) Any action taken by a police officer pursuant to the interests of public health and safety.

(3) Any act done in self-defense or done to defend another person or animal.

(c) *[Violations.]* Violations of this section shall be subject to the enforcement, adjudication and penalty provisions of section 10-5.
(Ord. No. 7266, 6-18-2007; Bill No. 7386, 4-20-2009)

**Sec. 10-4. Tethering of dogs.**

(a) It is unlawful to attach chains or other tethers, restraints or implements directly to a dog without the proper use of a collar, harness, or other device designed for that purpose and designed to prevent injury to the animal.

(b) No person shall:

(1) Except as provided in subsection (2), tether a dog for more than two continuous hours: provided that tethering of the same dog may resume after a hiatus of three continuous hours; and provided further that the tethering of the same dog shall not be tethered more than five times in a 24-hour period; or

(2) When the outside temperature is equal to or greater than 90° Fahrenheit or equal to or less than 32° Fahrenheit, tether a dog for more than one continuous hour: provided that tethering of the same dog may resume after a hiatus of three continuous

hours; and provided further that the tethering of the same dog is allowed no more than five times in a 24-hour period; or

(3) Use a tethering device, including, but not limited to, chain, leash, rope, collaring device, or any assembly or attachments thereto, the weight of which inhibits the free movement of the animal within the area tethered; provided that for the purpose of this subsection, in no event shall the tethering device, including any assembly or attachments thereto, weigh more than ⅛ of the animal's body weight; or

(4) Tether a dog in such a manner as to cause injury, strangulation, or entanglement of the dog on fences, trees, or other man-made or natural obstacles.

(c) For the purpose of tethering a dog, the chain, leash, rope or other tethering device used shall be at least ten feet in length, unless this length allows the dog to be on property other than the owner's property, or results in a violation of subsection (b)(4)

(d) Violation of this section shall be a separate and distinct offense from the cruelty to animals provisions of section 10-3. Further, violations of this section shall be subject to the enforcement, adjudication and penalty provisions of section 10-5.
(Ord. No. 7266, 6-18-2007)

**Sec. 10-5. Procedures, penalties and fines for sections 10-2, 10-3 and 10-4.**

(a) Any police officer or humane officer may take into custody any animal, upon either private or public property, which clearly shows evidence of cruelty to animals as set forth in sections 10-2, 10-3 or 10-4. Such officer may:

(1) Inspect, care for, or treat such animal or place such animal in the care of the humane association or licensed veterinarian for treatment, boarding or other care; or

(2) Designate such animal for humane destruction if an officer of the humane association or licensed veterinarian determines that the animal appears to be diseased or disabled beyond recovery for any useful purpose.

(b) The owner or keeper of an animal that is destroyed pursuant to subsection (a) herein shall not be entitled to recover damages for the destruction of such animal unless the owner or keeper proves by clear and convincing evidence that such destruction was unreasonable and unwarranted.

(c) In addition to the fines and/or imprisonment imposed by this section, any defendant convicted of a violation of sections 10-2, 10-3 or 10-4 shall pay to the municipal court, consistent with section 10-163, a penalty of all reasonable expenses incurred for the care, treatment, and boarding of any animal taken into custody pursuant to subsection (a) herein. Upon payment of such penalty, the municipal court shall remit such payment to the humane association or other animal care provider.

(d) If a person is adjudicated guilty of a violation of sections 10-3 or 10-4, the municipal court judge may in his discretion order that such person shall be deemed to have forfeited all interest in the animal at issue in the violation and may vest all interest to the humane association for adoption or other disposition. If the person is adjudicated not guilty of a violation of sections 10-3 or 10-4, or the charge(s) otherwise be dismissed, and the animal at issue has been taken into custody pursuant to this section, then the defendant shall have ten days from the date of the entry of the finding of not guilty or of dismissal to appear and claim said animal. The defendant shall be responsible for all reasonable expenses incurred for the care, treatment and boarding from the date of the entry of the disposition of the case until redemption of the animal; provided that if the animal is not claimed within ten days from the date of entry of the finding of not guilty or of dismissal, then the owner shall be deemed to have forfeited all interest in the dog, the dog shall be deemed abandoned, and all interest in the animal shall vest to the humane association for adoption or other disposition.

(e) Subject to the exceptions contained in subsections (1) and (2) herein, a person convicted of a violation of sections 10-2, 10-3 or 10-4 shall be

punished by a fine of not less than $500.00 for each separate violation arising under sections 10-2, 10-3 or 10-4. For violations of subsection 10-3(a)(1), and in addition to the fines set forth herein, the municipal court judge may, in his discretion, order that the defendant be sentenced to a jail term of not more than 30 days for each separate violation arising under subsection 10-3(a)(1).

(1) Except for violation of subsections 10-3(a)(1)a.—c., in the case of a first offense of sections 10-3 or 10-4, if the defendant enters a plea of guilty or no contest and voluntarily forfeits his right to own any animal within the city limits for one year, the municipal court judge may, in his discretion, reduce or suspend the fine: provided that if the defendant violates the terms of the plea regarding forfeiture, then the full amount of the fine shall be reinstated upon proper findings and conclusions of the court.

(2) Except for violation of subsections 10-3(a)(1)a.—c., the municipal court judge shall have the authority, on one occasion only per defendant, to withhold for a reasonable time not to exceed 180 days the entry of a judgment of conviction for violations under sections 10-3 or 10-4 so that the defendant may attend an animal training program established or certified by the humane association. If the defendant attends said course, the municipal court judge, if satisfied with the defendant's participation in and proof of payment for the course, shall, without entering a judgment of conviction, dismiss the proceeding against the defendant. It shall be a condition of this alternative disposition that the defendant pay the regular court costs required for misdemeanor offenses by this code where a person is convicted of such a misdemeanor offense. Any such court costs collected by the municipal court shall be allocated and transmitted by the municipal court as required by law.

(Ord. No. 7266, 6-18-2007; Bill No. 7386, 4-20-2009)

**State law references—**Authority to prevent cruelty to animals, W. Va. Code § 8-12-5(27); cruelty to animals, W. Va. Code §§ 61-8-19, 61-8-20; authority to regulate animals, W. Va. Code § 8-12-5(26); authority to impose fines, forfeiture, and confinement, W. Va. Code § 8-11-1.

### Sec. 10-6. Animal nuisances.

It shall be unlawful to own any animal, including a dog or cat, in a residentially-zoned district, which by frequent or long continued noise shall disturb the comfort or repose of any person within the vicinity of such animal, or shall by the nature of their maintenance or by the numbers of the same shall create an offensive odor so as to be objectionable to surrounding residences. All dogs and cats in heat shall be confined in a secure and sufficiently enclosed area throughout the period of estrus. In any event, dogs in heat shall be so confined for no less than 25 days during the period of estrus. No person shall own on their premises more than two dogs, ten weeks in age or older, unless such premises is licensed as a commercial kennel or the owner has a permit from the city allowing more than two dogs, as provided in section 10-121. The provisions of this section are to be interpreted consistently with any city noise ordinance.

(Ord. No. 7266, 6-18-2007)

### Sec. 10-7. Animal owner responsibility for removal of animal excrement; fines.

(a) It shall be unlawful for any person to appear with an animal upon the public right-of-way, within public places or upon the property of another, absent that person's consent, without some means for removal of excrement that may be deposited by the animal.

(b) It shall be unlawful for any person who is an owner or possessor of an animal in his care to fail to remove any excrement deposited by the animal upon any public or private property, other than the property of the owner of the animal.

(c) The provisions of this section shall not apply to persons who have a physical disability or visual impairment, are using service dogs, and can provide upon demand by an humane officer or police officer adequate documentation that the

service dog is an animal trained by an accredited institution which trains dogs for service work for the physically disabled or visually impaired.

(d) Violation of this section shall be punished by a fine of not less than $10.00, nor more than $25.00 plus applicable court costs. The municipal court Judge shall have no authority to suspend the fine or any portion thereof.
(Ord. No. 7266, 6-18-2007)

### Sec. 10-8. Sale of baby fowl.

It shall be unlawful for any person to sell or offer for sale as pets or novelties any artificially colored, sprayed, painted or dyed baby chicks, ducklings, goslings, turkeys or other fowl.
(Ord. No. 7266, 6-18-2007; Bill No. 7386, 4-20-2009)

### Sec. 10-9. Dead animals and fowl; disposition of carcasses.

It shall be unlawful for any person to deposit in any of the streets, parks, public squares or places, or upon any private lot or parcel of ground, the carcass or part of any carcass of any animal, fowl or bird within the limits of the city or at any point within one mile of the city limits if such place outside the limits is so located that such carcass shall become offensive to or detrimental to the health of the inhabitants of the neighborhood. It shall be unlawful to bury within the city or within one mile of the city the carcass or part of carcass of any animal, fowl or bird which has died or been killed within the city, or that has been brought into the city; but all such carcasses shall immediately after death be disposed of in a manner consistent with section 10-10 herein.
(Ord. No. 7266, 6-18-2007)

### Sec. 10-10. Responsibility for removal of carcasses.

(a) When any dead animal, fowl or bird is found in the streets, public places or private lots in the city, upon notice to the owner, such owner shall remove the carcass and dispose of it in a lawful and sanitary manner; failure to do so shall be a violation of this code. If the owner refuses or fails to do so within a reasonable time not to excess 24 hours after such notice, the city may send a proper vehicle to obtain such carcass and have it removed and disposed of, and render a bill for such removal and disposal to the owner, if known, and shall place a duplicate of such bill in the hands of the city collector for collection. The city collector shall have power to collect such amount in accordance with state law and City Code.

(b) When any animal, fowl or bird shall be killed upon any of the streets or public places within the city by any automobile or other vehicle being driven over or upon the streets within the city, or by the horse or other animal attached to any vehicle, it shall be the duty of the owner, driver or other person having such vehicle in his charge to at once remove such carcass to the curbline, or if possible to some point out of the public view, and to cover the carcass from view, and immediately thereafter remove or cause it to be removed and lawfully disposed of in a sanitary manner. It shall be violation for any person to refuse or neglect to carry out the provisions of this subsection.
(Ord. No. 7266, 6-18-2007)

**State law references—**Prohibited disposition of animal carcasses, W. Va. Code §§ 16-9-2, 16-9-3; extraterritorial jurisdiction of municipalities, W. Va. Code §§ 8-12-5(43), 8-12-19.

### Sec. 10-11. Keeping fowl near inhabited building.

No person shall keep any kind of poultry, fowl or pigeon within 25 feet of any structure owned by another and used for human habitation, occupation or assembly, whether the structure is in the same or adjacent block or square.
(Ord. No. 7266, 6-18-2007)

### Sec. 10-12. Keeping of certain animals.

No person shall keep or permit to be kept within the corporate limits any hog, goat, cow, chicken, or other animal or fowl in a pen or otherwise confined in any lot, to the annoyance, detriment or inconvenience of any neighbor or the public.
(Ord. No. 7266, 6-18-2007)

### Sec. 10-13. Certain animals and reptiles prohibited to be kept within city except pursuant to license or permit.

It shall be unlawful for any person to keep or harbor within the city any panther, wildcat or bobcat, bear or other wild animal of a species normally dangerous to human beings, or any skunk from which the perinea glands have not been removed, or any venomous reptile or any make of a constrictor species, except pursuant to authority of a city license or permit which may be issued under any other provisions of the City Code or other city ordinance or by special action of the city council.
(Ord. No. 7266, 6-18-2007)

### Sec. 10-14. City declared bird sanctuary; trapping, hunting; riddance of nuisance birds; penalty.

(a) The entire area embraced within the boundaries of the city is designated as a bird sanctuary.

(b) It shall be unlawful to trap, hunt, shoot or attempt to shoot or molest in any manner any bird or wildfowl or to rob bird nests or wildfowl nests; however, if starlings, pigeons or similar birds are found to be congregating in such numbers in a particular locality that they constitute a nuisance or menace to health or property in the opinion of the proper health authorities of the city, the health authorities shall meet with representatives of the Audubon Society, Bird Club, Garden Club or humane association, or as many of those clubs as are found to exist in the city, after having given at least three days' actual notice of the time and place of such meeting to the representatives of the clubs. If as a result of such meeting no satisfactory alternative is found to abate such nuisance, such birds may be destroyed in such numbers and in such manner as is deemed advisable by the health authorities under the supervision of the chief of police.

(c) Any person violating the provisions of this section may be prosecuted pursuant to section 10-3.
(Ord. No. 7266, 6-18-2007)

### Sec. 10-15. Maintenance of pens, coops, other enclosures, places.

(a) Each stable, pen, coop and other enclosure or place where any animal or fowl is kept shall be so located and of such construction as to have sufficient sanitary drainage to keep it dry at all times; and it shall be the duty of each person owning, harboring or keeping any animal or fowl to maintain such enclosure or other place where such animal or fowl is kept in a clean and sanitary condition at all times, free of any unwholesome or offensive substance, liquid or odor and so as not to constitute, in the opinion of the health commissioner, a nuisance.

(b) The provisions of this section shall be applicable within the city generally, as well as beyond the city limits for a distance of one mile in any instance wherein a stable, pen, coop or other enclosure or place where an animal or fowl is kept constitutes a nuisance affecting this city or is offensive or detrimental to the health of inhabitants of this city.
(Ord. No. 7266, 6-18-2007)

**State law reference—**Extraterritorial jurisdiction of municipalities, W. Va. Code §§ 8-12-5(43), 8-12-19.

### Sec. 10-16. Immunization of dogs, cats and ferrets; fines.

(a) No person shall own any dog, cat or ferret, six months of age or older, within the city limits if such animal is not currently vaccinated against rabies. Any person owning a dog within the city shall cause such dog to wear a collar or harness at all times to which shall be attached a current tag reflecting that the dog is vaccinated against rabies. The tag shall be situated on the collar or harness in such a manner that it may be easily visible at all times. Owners of cats and ferrets may retain proof of current rabies vaccination on their person or premises.

(b) Violation of this section shall be punished by a fine of not less than $10.00, nor more than $25.00, plus applicable court costs. The municipal court judge shall have no authority to suspend the fine or any portion thereof.
(Ord. No. 7266, 6-18-2007)

### Sec. 10-17. Control of rabies and other diseases generally.

(a) It shall be the duty of each owner or person in charge of any dog, whether licensed or unlicensed, or in charge of any other animal known to have or suspected of having rabies or any other communicable disease, or known to have been bitten by another animal having or suspected of

having any such disease, to forthwith take such animal to a veterinarian for confinement and observation or to securely confine such animal on his own premises, and, in either case, to notify the Kanawha - Charleston Health Department without delay, and then to obey the directives given by the Kanawha - Charleston Health Department. Any animal so confined shall be destroyed in a humane manner upon a finding by a licensed veterinarian that the animal has rabies or some other incurable communicable disease. No animal shall be released from such confinement until it is determined by a licensed veterinarian that the animal is free of rabies or any other communicable disease.

(b) Rabid animals found at large within the city shall be shot and killed or otherwise humanely euthanized forthwith by any humane officer or by any police officer. It shall be the duty of humane officers and police officers to immediately notify the Kanawha - Charleston Health Department upon killing any animal for having exhibited signs of rabies and to comply with instructions of the Kanawha - Charleston Health Department as to making the carcass or any portion of the carcass available to the health department for examination.

(c) Any person having knowledge of an animal known to have or suspected of having rabies or any other communicable disease shall forthwith notify a humane officer or the police officer. If the owner or person in charge of such animal can be found without undue delay, he shall be notified by the humane officer or police officer to comply with the provisions of subsection (a) of this section forthwith; otherwise, such animal shall be destroyed in a humane manner.

(Ord. No. 7266, 6-18-2007)

**State law reference—**Quarantine of biting dogs, W. Va. Code § 19-20-9a.

### Sec. 10-18. Animal bites, quarantine; fines.

(a) *Owner known.* Upon receipt of credible information that an animal bite incident has occurred, a humane officer or police officer shall make reasonable effort to contact the owner of the animal involved in the incident and advise the owner to place the animal immediately with a licensed and practicing veterinarian of the owner's choice for a confinement and observation period of a minimum of ten days from the time of the occurrence of the bite. The exact period of confinement and observation may be longer than ten days in the discretion of the veterinarian selected and the owner shall be liable for all such costs incurred.

(b) *Failure to comply.* Any owner who shall fail to comply with the provisions of this section, within 24 hours of notification, shall be deemed in violation of this article and, if reasonable to do so under the circumstances, the officer shall take such animal into custody and place it for the above described confinement period with a licensed and practicing veterinarian of the owner's choice. The owner shall be liable for all cost incurred. If the owner fails or refuses to make such choice or if it is unreasonable under the circumstances for the officer to place the animal with a veterinarian chosen by the owner as described herein, the officer will take the animal into custody and place it with the humane association to be quarantined at the owner's expense in accordance with subsection (c) herein.

(c) *Owner unknown.* Upon receipt of credible information that an animal bite incident has occurred, and when the owner cannot be located, the humane officer or police officer shall take the animal into custody and place it with the humane association for a confinement and observation period of a minimum of ten days from the time of the occurrence of the bite. If, however, at any time during the confinement and observation period the dog becomes dangerous as defined in this Code, and/or it is determined by a licensed veterinarian that the animal has rabies or some other incurable communicable disease, then the animal may be euthanized at the discretion of the humane association. If the owner appears and seeks to claim the animal, the provisions of Subsection (a) shall govern the confinement of the animal. If the owner does not appear to claim the animal within the ten-day period, then the owner shall be deemed to have forfeited all interest in the animal, the animal shall be deemed abandoned, and all interest in the animal shall vest to the humane association for adoption or other disposition. Should such animal become ill or die within the confinement period, the bite victim or victim's represen-

tative shall be notified by a humane officer. If the animal is alive and well at the end of the confinement period, the bite victim or victim's representative shall be notified by a humane officer.

(d) State law shall be followed concerning the isolation of biting animals for observation, examination and quarantine, unless the provisions of this chapter require more stringent procedures.

(e) Any person convicted of the violation of any of this section shall upon conviction thereof be fined not less than $10.00 nor more than $500.00, and that upon any second or subsequent violation shall be fined not less than $100.00 nor more than $500.00. Each consecutive day's violation shall constitute a separate punishable offense.
(Ord. No. 7266, 6-18-2007)

**Sec. 10-19. Releasing impounded animals.**

No person shall break open or in any manner directly or indirectly aid or assist in breaking open the impoundment enclosure established by the city or the humane association, or take or let any animal out of an impoundment enclosure without the consent of the person in charge of such enclosure.
(Ord. No. 7266, 6-18-2007)

**Sec. 10-20. General penalty.**

Except as otherwise provided by law or ordinance, a person convicted of a violation of this chapter for which no specific penalty is prescribed, shall be punished by a fine of not more than $500.00. In addition to any penalty prescribed in these animal control provisions, the municipal court judge may award an additional penalty in the form of restitution for damages which may be caused as a result of any violation of these animal control provisions. Additionally, the municipal court judge shall in all cases order a defendant convicted of any violation of these animal control provisions to reimburse the humane association, veterinarian, animal clinic or hospital, or other animal care and treatment provider for all such reasonable expenses as may have been incurred by the humane association, veterinarian, animal clinic or hospital, or other animal care and treatment provider with respect to the animal at issue in the violation. Except as otherwise provided by law or ordinance, with respect to the violations of this Code that are continuous with respect to time, each day that the violation continues is a separate offense. The imposition of a penalty does not preclude suspension or revocation of any license, permit or franchise or other administrative sanctions. Violations of this code that are continuous with respect to time are a public nuisance and may be abated by injunctive or other equitable relief. The imposition of a penalty does not preclude injunctive relief.
(Ord. No. 7266, 6-18-2007)

**Secs. 10-21—10-50. Reserved.**

## ARTICLE II. LIVESTOCK*

### DIVISION 1. GENERALLY

**Sec. 10-51. Certain animals prohibited from running at large, subject to impoundment; responsibility of owners and persons in charge.**

No horse, pony, mule, goat, hog of any description, cattle, or any kind of poultry or domesticated fowl, shall run at large upon any of the streets, lanes, open lots, commons or other unenclosed places within the city unless there is with such animal some person within ten feet and having the animal in charge. All such animals found running at large shall be taken up by the humane officer and placed in a designated pound. The owner or person having charge of such animal shall be responsible for such violation.
(Code 1975, § 4-2; Ord. No. 7266, 6-18-2007)

**Secs. 10-52—10-70. Reserved.**

### DIVISION 2. IMPOUNDMENT

**Sec. 10-71. Notice of impounding of animals.**

It shall be the duty of the humane officer to notify in writing the owner or person having

*__State law reference—__Livestock at large, W. Va. Code § 19-18-1 et seq.

charge of a horse, pony, mule, goat, pig or cattle impounded under this article (unless such owner is not known to the humane officer) of the fact of the animal's being so impounded; but if such owner or person is not known to him, it shall be his duty forthwith to post two notices, one to be posted at the designated pound and one at the city hall. The notices shall contain a description of the animal impounded, the date and place of impounding such animal, a demand of the owner or person having charge to claim it at the pound, the date of posting the notices, the time limit within which the animal may be so redeemed, and the office address and telephone number of the humane officer.
(Code 1975, § 4-3)

**Sec. 10-72. Redemption of impounded animals.**

Any animal impounded pursuant to this division may be redeemed by its owner or custodian at any time before the sale or other disposition by paying to the humane officer the actual costs incurred by the city for care and sustenance of the animal, posting of notices, procurement of an auctioneer, and such other administrative costs, if any, as may have been incurred by reason of impoundment; provided, that the minimum redemption fee in any case shall be $5.00.
(Code 1975, § 4-4)

**Sec. 10-73. Auction sale of impounded animals not redeemed.**

If the owner of any horse, pony, mule, goat, hog, pig or cattle impounded under this article, or person having charge of such animal, shall not within five days after the giving or posting of the notices, appear and prove his right to the horse, pony, mule, goat, hog, pig or cattle so impounded, it shall be the duty of the humane officer to submit to the city manager a report setting forth the number and kind of animals impounded; the time when impounded; the name of the owner or person having charge of such impounded animal, if known; the date of giving or posting of notice, as required in this article, together with a copy of the notice given or posted; and that such animal still remains in the pound unclaimed. The city manager shall thereupon direct the humane officer to advertise and sell such impounded animal at public auction; but no sale shall be made until the humane officer gives three days' notice of the time and place of sale, such notice to contain a description of the animal impounded and unclaimed. One such notice shall be posted at the designated pound and one at the front door to the city hall.
(Code 1975, § 4-5)

**Sec. 10-74. Disposition of unredeemed animals when sale at auction not feasible.**

In any case wherein it appears to the humane officer that the sale of an animal at public auction as provided in section 10-73 would yield less than the costs of advertising and other expenses of holding such sale, he may, with the concurrence of the city manager, dispose of the animal by private sale or by releasing it to some responsible person who will agree to accept it; and if no such person or responsible donee is found, the animal may, after a period of ten days from the giving of notice as provided in section 10-71, be destroyed in an humane manner.
(Code 1975, § 4-6)

**Sec. 10-75. Report of money received.**

It shall be the duty of the humane officer to file with the city manager within 24 hours after the redemption or sale of any impounded animal a full report of all money received from such sale, the cost attending such sale, the amount of redemption fees paid, and the fine if any imposed by the court upon the owner or person having charge of such animal impounded and sold, and whether the fine and costs so imposed were paid.
(Code 1975, § 4-7)

**Sec. 10-76. Payment of money received to city treasurer.**

If the report required by section 10-75 is approved by the city manager, the humane officer shall, after deducting all expenses, fees and unpaid fines and costs imposed, pay all surplus money arising from the redemption or sale of any impounded animal to the city treasurer, taking his duplicate receipt, one copy to be retained by the humane officer and one copy delivered by him

to the city auditor; and the treasurer shall place all money received from the redemption or sale of impounded animals to the credit of the general fund and account for such money as for other money in his charge.
(Code 1975, § 4-8)

**Sec. 10-77. Payment of surplus proceeds to owners of animals sold.**

All surplus money received by the city treasurer from the sale of impounded animals shall, by order of the city manager, be paid over to the owner, provided written demand is made of the manager by such owner within 30 days of the sale, and only after satisfactory proof that the person making the demand was the owner of the animal so sold.
(Code 1975, § 4-9)

**Sec. 10-78. Interference with humane officer; releasing impounded animals.**

No person shall hinder, delay or obstruct the humane officer or any other person in driving or transporting to the public pound any horse, pony, mule, goat, hog, pig or cattle liable to be impounded under the provisions of this article; nor shall any person hinder, molest, obstruct or interfere with the humane officer or other person in performing any duty imposed by any of the provisions of this article; nor shall any person break open or in any manner directly or indirectly aid or assist in breaking open the pound established by the city, or take or let any animal out of the pound without the consent of the person in charge of such pound.
(Code 1975, § 4-10)

**Secs. 10-79—10-110. Reserved.**

## ARTICLE III. DOGS*

### DIVISION 1. GENERALLY

**Sec. 10-111. Definitions.**

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

*Enclosure* means a fence or structure of at least six feet in height, forming or causing an enclosure suitable to prevent the entry of young children and suitable to confine a dangerous dog. An enclosure shall be securely enclosed and locked and designed to prevent the animal from escaping from the enclosure. If such enclosure has no bottom secured to the sides, the sides must be embedded into the ground no less than one foot.

*Owner* means an individual who has lawful title to a dog, or is the keeper or harborer of the dog. A parent or legal guardian shall be deemed to be the owner of a dog maintained by or on behalf of a minor upon the premises of the parent or legal guardian.
(Ord. No. 7266, 6-18-2007)

**Sec. 10-112. Removal of dogs from public gatherings.**

No person shall keep any dog at a public gathering after any humane officer or police officer has determined that the presence or conduct of the dog may jeopardize the health, safety or welfare of any person attending the gathering. Any such dog shall be promptly removed from such public place by its owner upon oral notification from the officer. Failure to obey this provision shall result in the dog's impoundment as provided in section 10-163.
(Ord. No. 7266, 6-18-2007)

**Cross reference—**Streets, sidewalks and other public places, ch. 102.

---

*__Editor's note—__Ord. No. 7266, adopted June 18, 2007, amended art. III in its entirety to read as herein set out. Former art. III, §§ 10-111—10-163 pertained to similar subject matter and derived from Code 1975, §§ 4-25—4-36, 4-38—4-40; and Bill No. 7094, adopted Sept. 7, 2004; Bill No. 7152, adopted July 18, 2005; Bill No. 7174, adopted Nov. 21, 2005; and Bill No. 7180, adopted Dec. 10, 2005.

**State law reference—**Dogs and cats, W. Va. Code § 19-20-1 et seq.

**Sec. 10-113. Seizing or enticing dog; bringing dog into city for impounding or killing.**

(a) No person shall, except with the consent of the owner, entice any properly licensed dog into any enclosure, or decoy or entice any dog out of the enclosure or house of its owner or possessor for the purpose of taking off its collar or tag.

(b) No person shall bring any dog into the city for the purpose of unlawfully abandoning, impounding, or killing the dog.
(Ord. No. 7266, 6-18-2007)

**Sec. 10-114. Dangerous dogs: definitions.**

Dangerous dog, as used in this chapter, shall mean:

(1) Any dog with a known propensity, tendency, or disposition to attack, to cause injury, or otherwise threaten the safety of human beings or domestic animals; or

(2) Any dog which, in a vicious or threatening manner, approaches any person or another domestic animal in an apparent attack upon the person or the domestic animal; or

(3) Any dog which attacks or bites, or has attacked or bitten a human being or domestic animal; or

(4) Any dog owned or harbored primarily or in part for the purpose of dog fighting, or any dog trained for dog fighting; or

(5) Any dog already determined to be an aggressive dog at large as defined in this article.

Notwithstanding the definition of a dangerous dog above, no dog may be declared dangerous if any injury or damage is sustained by a person or animal who at the time of such injury or damage was sustained, was committing or attempting to commit a willful trespass or other crime or tort upon the premises occupied by the owner of the dog, or was teasing, tormenting, abusing or assaulting the dog. Further, no dog may be declared dangerous if the dog was protecting or defending a human being within the immediate vicinity of the dog from an unjustified attack or assault.

Nothing in this article shall be deemed to regulate or prohibit the lawful maintenance of dogs by law enforcement agencies.
(Ord. No. 7266, 6-18-2007)

**Sec. 10-115. Dangerous dogs: procedure for the determination of a dangerous dog.**

In the event that a humane officer or police officer has probable cause to believe that a dog is dangerous, as defined in this article, the municipal court judge may convene a hearing for the purpose of determining whether the dog in question should be declared dangerous as defined by section 10-114. Pending the determination, the humane officer or police officer may order the dog to be impounded at a licensed veterinary clinic or the humane association. Consistent with section 10-163, the owner of the dog shall be liable for the reasonable costs incurred for the care, treatment, and boarding of the dog.

Notice shall be provided to the owner of the dog that a hearing will be held before the municipal court to determine whether the dog is dangerous as defined in this article; such notice shall provide in writing the date, time, and place of the hearing. The failure of the owner to attend or participate in the hearing shall not preclude the municipal court judge from making the appropriate determination concerning the dog. The hearing shall be held no less than five nor more than 20 days after service of notice upon the owner of the dog. The city shall have the burden of proof to show that the dog is dangerous pursuant to section 10-114.

The municipal court judge shall issue such order in writing as is appropriate. Upon entry, the municipal court clerk shall serve copies of such order upon all parties to the action. If a determination is made by the municipal court judge that the dog is dangerous, the owner shall comply with the provisions of section 10-116 within 15 days of entry of the order. If the owner fails to comply with the provisions of Section 10-116 within the time provided, the dog shall be euthanized; and the owner shall be responsible for all reasonable costs related thereto.
(Ord. No. 7266, 6-18-2007)

**Sec. 10-116. Dangerous dogs: control of dangerous dog; registration and confinement.**

If the municipal court judge determines that a dog is dangerous, the owner such dog shall comply with the following:

(1) *Registration.* The owner shall:

a. Have a microchip inserted into the dog by a veterinarian, which microchip shall detail the dangerous dog designation and such other information as may be appropriate to determine the ownership of the dog. The owner shall be responsible for all costs associated with the microchip procedure;

b. Maintain an insurance policy in a minimum amount of $50,000.00 to cover any injuries to persons or property which may be caused by the dangerous dog; and

c. Annually register the dangerous dog with the city, on forms designated by the city manager, which registration shall include proof of installation and maintenance of the microchip and the required insurance. The owner shall pay a $50.00 annual registration fee. The owner shall be responsible for maintaining with the city manager the address of the owner of the dangerous dog. Upon any change of address of the owner, or any change in the place of residence of the dangerous dog, or any change in ownership of the dangerous dog, the owner shall within seven days of such change notify the city manager.

(2) *Confinement.* At all times, except as otherwise provided in this subsection, all dangerous dogs shall be confined inside the dwelling of the owner or inside an enclosure. It shall be unlawful for any owner to allow a dangerous dog to be outside of the dwelling of the owner or outside the enclosure unless it is necessary for the owner to obtain veterinary care for the dangerous dog or for the limited purposes of allowing said dangerous dog to urinate or defecate or to sell or give away the dangerous dog, or to respond to such orders of law enforcement officials as may be required. In such event, the dangerous dog shall be securely muzzled and restrained with a leash not exceeding four feet in length, and shall be under the direct control and supervision of the owner of the dangerous dog. The muzzle shall be made and used in a manner that will not cause injury to the dog or interfere with its vision or respiration, but shall prevent it from biting any human or other animal.

(Ord. No. 7266, 6-18-2007)

**Sec. 10-117. Dangerous dogs: Violation of requirements for dangerous dog; fines.**

Any; person found guilty of violating the requirements of section 10-116 shall be assessed, fined, and the animal disposed of, as follows:

(1) Any dangerous dog that is not confined or registered pursuant to section 10-116 shall be impounded by a humane officer or police officer in accordance with the provisions of section 10-163. Upon a first conviction, in addition to all costs for impoundment, the owner shall be punished by a fine of $250.00. Upon conviction of a second offense within 24 months of any prior conviction, in addition to all costs for impoundment, the owner shall be punished by a fine of $500.00 and said dog shall be euthanized. Pending the adjudication of a second offense under this section, the redemption provision of section 10-163 is suspended. The municipal court judge shall have no authority to suspend the fine or any portion thereof;

(2 Any dangerous dog which, without provocation attacks, assaults, wounds, bites, or otherwise injures, or assists in injuring a human being shall be impounded by a humane officer or a police officer in accordance with the provisions of section 10-163. Upon conviction, in addition to all reasonable costs of impoundment, the

owner shall be punished by a fine of $500.00. The municipal court judge shall have no authority to suspend the fine or any portion thereof;

(3 Any dangerous dog which, without provocation attacks, assaults, wounds, bites, or otherwise injures, or assists in injuring any domestic animal shall be impounded by a humane officer or a police officer in accordance with the provisions of section 10-163. Upon conviction, in addition to all reasonable costs of impoundment, the owner shall be punished by a fine of $250.00. The municipal court judge shall have no authority to suspend the fine or any portion thereof.

(4 Upon conviction under subsections (2) or (3) herein, the municipal court Judge shall order that the owner be deemed to have forfeited all interest in the dog and that the dog be humanely euthanized: provided that upon presentation of evidence satisfactory to the municipal court judge that the dangerous dog should not be euthanized in this case, then such dog may be released to the custody of the owner upon the payment of the fees and expenses as set forth in Section 10-163 for redemption of the dog by the owner.

(Ord. No. 7266, 6-18-2007)

### Sec. 10-118. Dangerous dogs: threats to public safety.

(a) Notwithstanding any provision of this article to the contrary and irrespective of whether the dog has been declared dangerous pursuant to this article, no person shall harbor, own, or possess a dog that is an immediate threat to public health and safety. The municipal court judge shall have the authority to order any such person convicted of violating this section to pay a fine of not more than $500.00.

(b) Notwithstanding any provision of this article to the contrary and irrespective of whether the dog has been declared dangerous pursuant to this article, the municipal court judge may order any dog destroyed if the municipal court judge determines that the dog is an immediate threat to public health, safety, and welfare and that confinement and registration of the dog by the owner of the dog as provided in this article will not adequately protect public health, safety and welfare. In making such determination the municipal court judge shall consider the severity of any attack and any other relevant information.

(Ord. No. 7266, 6-18-2007)

**State law reference—**Vicious dogs, W. Va. Code §§ 8-12-5(26), 19-20-20, 19-20-21.

### Sec. 10-119. Actions under proclamation by health commissioner.

Whenever it shall be made to appear to the satisfaction of the Kanawha - Charleston Health Department that any dog within the city has rabies or any other dangerous and communicable disease, that department may issue a proclamation requiring any actions, consistent with state law, necessary to protect the health, safety and welfare of the public.

(Ord. No. 7266, 6-18-2007)

**State law reference—**W. Va. Code § 19-9-2

### Sec. 10-120. Restriction on number of dogs.

No person shall own, keep or harbor more than two dogs on any lot, premises, dwelling, building, structure, boat or living accommodation unless:

(1) Properly licensed as a commercial kennel in compliance with the zoning ordinance; or

(2) Approved for a special permit under the provisions of section 10-121; or

(3) Previously granted a variance for the keeping of more than two dogs from the board of zoning appeals. The variance shall remain in effect until such time as the property is no longer in compliance with the conditions set forth in said variance.

(Ord. No. 7266, 6-18-2007)

### Sec. 10-121. Restriction on number of dogs: special permit.

(a) The intent of the special permit application is to allow responsible pet owners to keep or harbor more than two dogs if adequate conditions

exist in which the animals will not cause damage, hazard, nuisance, or be a detriment to any persons or property.

(b) Any person desiring to keep or harbor more then two dogs shall submit a written application for a special permit with a humane officer. The special permit application shall include a copy of a site plan of the subject property showing all structures, fences and open space.

(c) A humane officer may grant a special permit if the following conditions are met:

(1) The subject property is larger than 6,500 square feet, unless the dogs are kept predominately indoors; and

(2) The dogs must be kept: indoors; or in a secure area with a fence of sufficient height and durability to prohibit the dog(s) from escaping; or in a secure area effectively controlled by electronic device; and

(3) Adequate shelter as defined by the humane association be provided for each dog; and

(d) Applicants shall not be eligible for a special permit if they are known in the neighborhood or community for causing disruptions related to dogs.

(e) Special permits are nontransferable. A change in the number or type of dogs, or changes in the residence or ownership of the dogs shall require a new special permit.

(f) The fee for a special permit shall be $50.00.

(g) A previously approved special permit may be rejected or revoked at any time if the humane officer determines the issuance of a special permit has caused damage, hazard, nuisance, dangerous conditions, or is a detriment to any person or property.

(h) Any person aggrieved by the denial or granting of a special permit shall have the right to appeal to the Public Safety Committee of City Council.
(Ord. No. 7266, 6-18-2007)

**Secs. 10-122—10-140. Reserved.**

## DIVISION 2. LICENSE*

### Sec. 10-141. Annual license required; application for license and payment of license fee; license tag.

(a) Every person owning or harboring in the city a dog of six months old or older, shall apply annually, on or before July 1, to the city collector for a license for each dog so owned or harbored. After payment of the license fee set forth in section 10-142, the city collector shall issue to such person a license and a copy of this article, together with an official license tag, which tag shall be fastened to the collar of the dog so licensed and shall be worn by such dog at all times while off the premises of its owner or custodian.

(b) In the event of a dog attaining the age of six months, or being acquired or brought into the city after July 1 of any year, a license shall be obtained for such dog immediately after the date such dog attains the age of six months or is acquired or brought into the city.

(c) No person shall attach a license tag to any dog to which it was not issued or remove a license tag from the collar of any dog without the consent of its owner.
(Ord. No. 7266, 6-18-2007)

### Sec. 10-142. License fees; expiration of licenses.

The license fee for a dog license shall be $3.00 for each dog. The license shall expire June 30 following the date of issue; provided that said license fee shall not apply to dogs in a licensed kennel or veterinary hospital.
(Ord. No. 7266, 6-18-2007)

**Secs. 10-143—10-160. Reserved.**

*__State law reference—__Taxation of dogs, W. Va. Code § 19-20-1 et seq.

## DIVISION 3. IMPOUNDMENT*

### Sec. 10-161. Dogs prohibited to run at large; fines.

(a) It shall be unlawful for any person to own or keep a dog which is at any time running at large in the city. Knowledge or acquiescence by the owner or keeper is not an element of the offense. A dog shall be deemed to be running at large if it is, for any period of time, off the premises of its owner's or keeper's property and not firmly attached to a leash or chain under the owner's or keeper's direct physical control, provided that a dog shall not be deemed to be running at large if:

(1) The dog is within a closed structure or within a fence enclosure with the permission of the owner of the structure or fence enclosure; or

(2) The dog is wearing an operating electronic collar and is under the charge or control of its owner or keeper who is operating an electronic pet containment system or electronic training system for the animal, provided that, notwithstanding this subsection, all dogs on the public right-of-way in the central business district zoning district (downtown area) must be kept on a leash or chain under the direct physical control of its owner or keeper; or

(3) The dog is under the supervision of its owner or keeper and is using an off-leash dog park in accordance with the rules and regulations for the off-leash dog park.

(b) Any dog on property without the permission of the property owner shall be deemed to be a dog at large, and the owner or keeper of such animal shall be in violation of this section.

(c) The provisions of this section shall not apply to any person who has a physical disability or visual impairment, is using a service dog, and can provide upon demand by a humane officer or police officer adequate documentation that the service dog is an animal trained by an accredited institution which trains dogs for service work for the physically disabled or visually impaired.

(d) Any person found guilty of dog running at large as defined herein shall be punished by a fine as follows: not more than $50.00 for the first offense within a 24-month period; and not less than $50.00 nor more than $500.00 for any second or subsequent offenses within a 24-month period of a conviction for a prior offense. The municipal court judge shall have authority to suspend or reduce the fine if the defendant agrees to forfeit ownership of the dog. In such cases all interest of the animal shall vest to the human association for appropriate disposition. All fines arising from convictions for violations of this section shall be in addition to any applicable court costs or impoundment fees.
(Bill No. 8040, 7-15-2024)

### Sec. 10-162. Aggressive dogs prohibited to run at large; fines.

(a) It shall be unlawful for any person to own or keep an aggressive dog which is at any time running at large in the city. Knowledge or acquiescence by the owner or keeper is not an element of the offense. An aggressive dog at large means any dog running at large as defined in section 10-161 that, without provocation, exhibits aggressive or combative behavior toward a person or another domestic animal or feral cat, and said person or domestic animal or feral cat is either physically attacked or bitten, or the person or domestic animal's owner or keeper reasonably believes an attack or bite is imminent.

(b) Any person found guilty of an aggressive dog at large shall be punished by a fine as follows: not more than $50.00 for the first offense within a 24-month period; and not less than $50.00 nor more than $1,000.00 for any second or subsequent offense within a 24-month period of a conviction for a prior offense. The municipal court judge shall have authority to suspend or

*__Editor's note—__Bill No. 8040, adopted July 15, 2024, repealed the former Div. 3, §§ 10-161—10-163, and enacted a new Div. 3 as set out herein. The former Div. 3 pertained to similar subject matter and derived from Ord. No. 7266, adopted June 18, 2007; and Ord. No. 7462, adopted May 16, 2011.

__State law reference—__County impoundment of dogs, W. Va. Code § 19-20-8.

reduce the fine if the defendant agrees to forfeit ownership of the dog. In such cases all interest of the animal shall vest to the human association for appropriate disposition. All fines arising from convictions for violations of this section shall be in addition to any applicable court costs or impoundment fees.
(Bill No. 8040, 7-15-2024)

### Sec. 10-163. Impounding, redemption and disposition of dog running at large.

(a) A dog found running at large within the corporate limits of the city contrary to the provisions of section 10-161 or section 10-162 may be impounded at the humane association by a humane officer or police officer. The humane officer or police officer shall make a record of all dogs so impounded with their description, date of impoundment and rabies vaccination number.

(b) The owner of any dog impounded pursuant to the provisions of this article must appear and claim the said dog within five days from the date the dog is impounded. Upon expiration of the five-day time period, the owner shall be deemed to have forfeited all interest in the dog and it shall be deemed abandoned. All interest in such dog shall immediately, by operation of law, vest to the humane association for adoption or other disposition. If the owner appears to claim the dog within the five-day time period, said dog may be released to him or her only upon satisfaction of the following conditions:

(1) Proof that the dog is currently immunized against rabies, or, in the absence of such proof, reimbursement to the humane association for the costs incurred for administering a rabies vaccine or providing a voucher for a rabies vaccine;

(2) Proof that the dog is currently licensed pursuant to sections 10-141 and 10-142 of division 2 of this article, and, if required, registered pursuant to W. Va. Code § 19-20-2, or, in the absence of such proof, reimbursement to the humane association for any costs incurred for obtaining a valid dog license and license tag, and, if required, certificate of registration and registration tag;

(3) Reimbursement to the humane association for any and all reasonable expenses incurred for necessary medical care provided to the dog; and

(4) Payment of the following fees to the humane association:

a. Impoundment and initial board fee for the first 24-hour period or any part thereof of $30.00;

b. An additional fee of $5.00 for each additional 24-hour period up to a maximum of five days.

(Bill No. 8040, 7-15-2024)

### Secs. 10-164—10-170. Reserved.

## ARTICLE IV. URBAN HUNTING*

### Sec. 10-171. Urban deer, bear, and coyote management.

(a) *Urban hunting conditions.* An urban hunt shall be lawful in the City of Charleston only under the following conditions:

(1) Hunting shall be by permit only issued under the terms of this chapter.

(2) The hunt shall be for deer, bear, and coyote only.

(3) Only bows, crossbows, arrows and bolts that comply with applicable state statutes, rules and regulations may be used, provided that a person may hunt coyote with an air rifle of .22 caliber or larger and such person hunting coyote with an air rifle is subject to all other rifle and

*__Editor's note—__Bill No. 8038, adopted July 15, 2024, repealed the former Art. IV, § 10-171, and enacted a new Art. IV as set out herein. The former Art. IV pertained to urban deer management and derived from Bill No. 7153, adopted Oct. 17, 2005; Bill No. 7198, adopted July 3, 2006; Bill No. 7396, adopted Aug. 17, 2009; Bill No. 7632, adopted Nov. 17, 2014; and Bill No. 7897, adopted May 3, 2021.

firearm hunting regulations as required by W. Va. Code ch. 20 and any rules promulgated thereunder.

(4) Hunting may occur only on property with the written permission of the property owner and on city-owned property which has been designated as available for hunting by the city manager.

(5) All deer and bear harvested must be electronically registered through the West Virginia Electronic Licensing System (ELS) and reported to the city.

(6) No hunting may take place within 150 feet of a dwelling or other occupied building.

(7) No hunting shall take place closer than 500 feet from the property boundary of school property which contains a school building. For purposes of this section "school" means a public school or private school during periods when students are in attendance or participating in school activities.

(8) Persons shall at all times when hunting pursuant to a city permit carry valid photo identification, a copy of their city permit, their West Virginia state hunting license, and any applicable state permit.

(9) The transportation of a deer, bear, or coyote carcass along any public right-of-way is prohibited unless it is covered or hidden from public view.

(10) All West Virginia hunting rules and regulations apply to hunting within the city, provided that individuals hunting bear within the city limits are prohibited from hunting bear with dogs.

(11) Any hunting activity including, but not limited to, field dressing or other handling of a carcass, must occur on the property specified in the city permit.

(12) All hunting shall be conducted from an elevated portable tree stand that is at least ten feet in height and faces the interior of the property. The stands and shooting lanes will be located in such a way as to direct arrows, bolts, or air rifle projectiles to the interior of the property.

(13) Hunting may take place on tracts of five contiguous acres or more and within a sufficient distance from the boundary that an arrow, bolt, or air rifle projectile cannot reasonably travel outside the permitted tract. Each tract must be approved by the city manager.

(14) A property owner can designate and limit other persons allowed to hunt his or her land with a permit.

(15) The city will be responsible for disposing of any wounded deer, bear, or coyote carcass found on non-permitted property.

(16) Hunting shall be allowed during the maximum time period permitted under state law and regulations promulgated by the West Virginia Division of Natural Resources for an urban deer and bear hunt. Although the West Virginia Division of Natural Resources currently allows for year-round open season hunting of coyotes, the urban coyote hunt shall be limited to the same days as the urban deer and bear hunt, but the hunting of coyotes may occur at night on those days on approved private property tracts.

(b) *Permits.*

(1) In order to obtain a permit, the applicant must meet and have evidence of compliance with all applicable state statutes, regulations and rules applicable to deer or bear hunting with a bow and arrow or a crossbow and arrow or bolt and coyote hunting with an air rifle. The city may impose additional requirements for a hunting permit and may limit the number of permits to be issued.

(2) The city may charge an administrative fee for permits not to exceed $25.00 per permit.

(3) The city manager is hereby authorized to promulgate reasonable rules and regulations including, but not limited to: (i) setting license fees to regulate hunting; (ii) selecting the tracts to be authorized

for hunting as permitted herein; and (iii) promoting safety and facilitating the goals of urban deer, bear, and coyote management.

(4) The city shall post the location of tracts approved for hunting on its website.

(c) *Donated meat.* Hunters are and shall be encouraged but are not required to donate the deer harvest to programs or organizations that will provide the meat to needy persons.

(d) *Violations.* In addition to any penalties for violations of state hunting laws or regulations, any person violating this section, or the rules and regulations promulgated pursuant to this section, shall be guilty of a misdemeanor and subject to the general penalties as provided in section 1-8 of this Code.
(Bill No. 8038, 7-15-2024)

Chapters 11—13

**RESERVED**

# Chapter 14

# BUILDINGS AND BUILDING REGULATIONS*

## Article I. In General


Sec. 14-1. Inspections; right of entry.
Sec. 14-2. Fence regulations.
Secs. 14-3—14.30h. Reserved.


## Article II. Building Code


Sec. 14-31. Definitions.
Sec. 14-32. Purposes; adopted; where filed and available to public; applicability; short title.
Sec. 14-33. Adoption of state building code; exercise of authority beyond corporate limits.
Sec. 14-34. Conflicts of law; construction.
Sec. 14.35. Administration and enforcement.
Sec. 14-36. Construction with respect to fire prevention code and with standards for gas piping and appliance venting.
Secs. 14-37—14-70. Reserved.


## Article III. Housing Code

### Division 1. Generally


Sec. 14-71. Violations and penalty.
Secs. 14-72—14-90. Reserved.


### Division 2. Administration and Enforcement

#### *Subdivision I. In General*


Sec. 14-91. Board of appeals.
Sec. 14-92 Assistants and employees of housing commissioner.
Sec. 14-93. Duties of chief of fire prevention bureau.
Secs. 14-94—14-110. Reserved.


#### *Subdivision II. Violations*


Sec. 14-111. Orders to correct substandard conditions.
Sec. 14-112. Duties of owners.
Sec. 14-113. Duties of occupants.
Sec. 14-114. Removal or demolition.
Sec. 14-115. Nonliability of city employees.
Secs. 14-116—14-140. Reserved.


---

***Editor's note—**Bill No. 7031, adopted Mar. 1, 2004, repealed arts. I, II, §§ 14-1—14-3, 14-31—14-37, and art. III, divs. 1, 2, subdivs. I, II, §§ 14-91—14-94, 14-111—14-117, in its entirety and enacted new provisions to read as herein setout. Prior to amendment, arts. I—III pertained to similar subject matter and derived from Code 1975, §§ 5-21, 5-21.1, 5-22, 5-23, 5-24(a), 5-25, 5-26, 5-47—5-60, 18-24,; and Ord. No. 6392, § 5-2, adopted Oct. 20, 1997.

**Charter reference—**Building inspector, § 100.

**Cross references—**Community development, ch. 30; environment, ch. 50; fire prevention and protection, ch. 54; health and sanitation, ch. 58; manufactured homes and trailers, ch. 70; planning, ch. 90; solid waste, ch. 98; streets, sidewalks and other public places, ch. 102; street names and building numbers, § 102-151 et seq.; subdivision regulations, ch. 106; utilities, ch. 118; zoning, app. B.

**State law references—**General authority to regulate buildings, W. Va. Code §§ 8-12-5(23), 8-12-13; state building code, W. Va. Code § 21-3-5b.

Division 3. Minimum Standards

Sec. 14-141. Minimum floor areas and ceiling heights.
Sec. 14-142. Heating and cooking.
Sec. 14-143. Lighting and ventilation.
Sec. 14-144. Water supply; toilet and bath facilities; plumbing.
Sec. 14-145. Basements.
Sec. 14-146. Entrances and exits.
Sec. 14-147. Waste disposal and receptacles.
Sec. 14-148. Surface drainage.
Sec. 14-149. Maintenance and repairs.
Secs. 14-150—14-180. Reserved.

**Article IV. Security Against Unauthorized Entry**

Sec. 14-181. Penalties for violations.
Sec. 14-182. Security requirements; exemptions.
Sec. 14-183. Enforcement; right of entry.
Sec. 14-184. Responsibility for compliance.
Sec. 14-185. Inspection of exterior openings by chief of police; notice to and duty of responsible persons.
Sec. 14-186. Locking devices.
Sec. 14-187. Intrusion detection devices.
Sec. 14-188. Appeal from intrusion detection device requirements.
Secs. 14-189—14-199. Reserved.

**Article V. Vacant Structure Registry**

Sec. 14-200. Adoption.
Sec. 14-201. Purpose.
Sec. 14-202. Definitions.
Sec. 14-203. Applicability, obligation to register, automatic registration, exemptions.
Sec. 14-204. Registry, registration information, amending information, fees, dedicated account, publication.
Sec. 14-205. Right of appeal.
Sec. 14-206. Violations and penalties for failure to register.
Sec. 14-207. Inspections, monitoring, corrective action.
Sec. 14-208. Non-payment of fees/liens.
Sec. 14-209. Vacant structure security and maintenance regulations.
Sec. 14-210. Relation to other codes and laws.
Sec. 14-211. Severability.
Secs. 14-212—14-250. Reserved.

**Article VI. Abatement of Unsafe, Unsanitary or Dangerous Buildings**

Sec. 14-251. Purpose and scope.
Sec. 14-252. Definitions.
Sec. 14-253. Closing and removal of unsafe structures.
Sec. 15-254. Inspection.
Sec. 14-255. Correction of unsafe conditions.
Sec. 14-256. Relief from order for corrective action.
Sec. 14-257. Owner responsibility for costs.
Sec. 14-258. Civil action for corrective action and recovery of costs.
Sec. 14-259. Notices.
Sec. 14-260. Absolute defense.

## ARTICLE I. IN GENERAL

### Sec. 14-1. Inspections; right of entry.

Upon presentation of proper credentials, the code official, of the city or his or her assistant or designee, may, where permission is granted, enter at reasonable times any building, structure or premises in the city to perform any duty imposed on him by the building code. If any owner, occupant or other person in charge of a building subject to the provisions of the code, fails or refuses to permit free access and entry to the structure or premises under his control, or any part of such structure or premises, the code official or his or her assistant or other designee, may apply to the municipal judge for a warrant of search to conduct an inspection. A warrant of search to conduct an inspection shall not be issued except upon probable cause as provided by section 6, article III of the state constitution.
(Bill. No. 7031, 3-1-2004)

**State law reference—**Authority to provide entry powers, W. Va. Code § 8-12-5.

### Sec. 14-2. Fence regulations.

(a) *Barbed wire fences within the City of Charleston.* No fence, barrier or obstruction consisting or made in whole or in part of barbed wire shall be erected, constructed or maintained along or within 18 inches of the line of or in or upon any of the streets or other public walks within the city; and no such fence, barrier or obstruction shall be so erected, constructed or maintained along any street or driveway without a permit from the office of the building and housing commissioner.

(b) *Electrically charged fences.* No person shall construct, erect, maintain or use for any purpose any partition fence or fence adjoining public property charged with electrical current within the city.
(Bill. No. 7031, 3-1-2004)

### Secs. 14-3—14-30. Reserved.

## ARTICLE II. BUILDING CODE

### Sec. 14-31. Definitions.

The following terms, wherever appearing in the city building code, shall have the meanings respectively ascribed to them by this section:

*Code official* means the building inspector and housing inspector who shall serve as the "department head" for the Building Department of the City of Charleston.

*Municipality* means the City of Charleston, West Virginia.

*Property maintenance inspector* means any person employed by the City of Charleston who has been delegated the authority from the code official to conduct property maintenance inspections.
(Bill. No. 7031, 3-1-2004)

### Sec. 14-32. Purposes; adopted; where filed and available to public; applicability; short title.

For the purposes of providing administrative and enforcement procedures and otherwise implementing the provisions of the state building code, and for the additional purpose of prescribing certain other regulations governing the construction, alteration, addition, repair, removal, demolition, use, location, occupancy and maintenance of buildings and structures and the service equipment, apparatus and installation, as well as to license and regulate certain businesses and persons doing work or providing services to materials in connection therewith, there is adopted by the city council that certain document heretofore published by the city and which is entitled "City of Charleston Building Department Administrative Manual" (first adopted as the "Mayor's Office of Economic and Community Development, Building Department Administrative Manual," Bill No. 3703, as amended, and enacted March 19, 1984). The document enacted by this section, together with the state building code (section 14-33) shall be known and may be cited as the city building code, not less than one copy of which shall remain on file in the office of the city clerk,

where it shall be available to the public for inspection and use during all regular business hours; and such manual is hereby incorporated in and made a part of this section as fully as though set out at length; and the provisions of such manual shall be controlling within the city limits in all matters relating to its subject matter.
(Bill. No. 7031, 3-1-2004)

**Sec. 14-33. Adoption of state building code; exercise of authority beyond corporate limits.**

(a) There is adopted the state building code as authorized by W. Va. Code § 8-12-13 and promulgated pursuant to W. Va. Code § 15A-11-5, and by the State of West Virginia in Title 87, Legislative Rule Series 4 (§ 87-4-1 et seq.), state building code, which are collectively adopted by reference as if fully restated herein, and the provisions of such code sections and regulations shall be controlling within the city.

(b) The following amendments are made and incorporated into the codes adopted by subsection (a) of this section, as stated in the Legislative Rule:

| | |
|---|---|
| Whenever referenced in the several ICC codes adopted herein, any reference to the International Fire Code should be substituted with the NFPA Life Safety Code 2021 edition. | |
| Whenever a certificate of occupancy is required of a commercial structure greater in size than 7,600 square feet, the project documents shall be designed by an Architect licensed by the WV Board of Architects, or a Professional Engineer licensed by the WV State Board of Registration for Professional Engineers. | |
| The ANSI/ASHRAE/IESNA Standard 90.1-2013 edition for commercial buildings.<br>Using building energy benchmarking in all commercial structures means measuring a building's energy use and then comparing it to the energy use of similar buildings, its own historical energy usage, or a reference performance level, and is an allowable option for improved energy efficiency and performance. | |
| International Building Code 2018: | |
| Section 101.1 | Insert "the City of Charleston" |
| Section 1612.3 | Insert "the City of Charleston" dated "April 3, 1985" |
| Delete Section 101.4.5 Fire Prevention, in its entirety. | |
| Delete Section 113.3 Qualifications, in its entirety and replace with the following:<br>113.3 Qualifications. The Board of Appeals shall consist of five members, with up to three alternates, who are qualified by experience or training to pass on matters pertaining to building construction and are not employees of the jurisdiction. They may include, but are not limited to, a WV Registered Professional Architect or Engineer, or a WV Licensed General Building, Residential, Electrical, Piping, Plumbing, Mechanical or Fire Protection Contractor, with at least 10 years' experience, five of which shall be in responsible charge of work. No less than one of the members of such Board of Appeals shall be a WV Registered Professional Architect or Engineer, or a WV Licensed General Building, Residential, Electrical, Piping, Plumbing, Mechanical or Fire Protection Contractor. | |
| Section 4.1.k.l. Omit references to International Fire Code and substitute NFPA Life Safety Code 2021 Edition. | |
| International Residential Code for One- and Two-Family Dwellings 2018: | |
| Section R101.1 | Insert "the City of Charleston" |

| | |
|---|---|
| Section G2415.12(404.12) | Delete and replace with:<br>Minimum Burial Depth. Underground piping systems shall be installed a minimum depth of 12 inches (305 mm) below grade. If the minimum depth cannot be maintained, the piping system shall be installed in conduit or shielded in an approved manner. |
| Section M1402.1 General | Oil-fired central furnaces shall conform to ANSI/UL 727. Electric furnaces shall conform to UL 1995 or UL/CSA 60335-2-40. |
| Section M1403.1 Heat pumps | Electric heat pumps shall be listed and labeled in accordance with UL 1995 or UL/CSA 60335-2-40. |
| Section M1412.1 Approval of equipment | Absorption systems shall be installed in accordance with the manufacturer's instructions. Absorption equipment shall comply with UL 1995 or UL/CSA 60335-2-40. |
| Section M1413.1 General | Evaporative cooling equipment and appliances shall comply with UL 1995 or UL/CSA 60335-2-40 and shall be installed in accordance with 4401.3 Referenced standard list: |

| | | |
|---|---|---|
| Section 4401.3 Referenced standard list | ASHRAE | ASHRAE<br>1791 Tullie Circle, NE<br>Atlanta, GA 30329 |
| | Standard references | Title |
| | 34-2019 | Designation and Safety Classification of Refrigerants |
| | CSA | CSA Group<br>8501 East Pleasant Valley Road<br>Cleveland, OH 44131-5516 |
| | Standard referenced | Title |
| | CAN/CSA/C22.2 No. 60335-2-40-2019 | Safety of Household and Similar Electric Appliances, Part 2-40: Particular Requirements for Electrical Heat Pumps, Air-Conditioners and Dehumidifiers-3rd edition |

| | | |
|---|---|---|
| | UL | UL LLC<br>333 Pfingsten Road<br>Northbrook, IL 60062-2096 |
| | Standard referenced | Title |
| | 1995-2015: | Heating and Cooling Equipment |
| | UL/CSA 60335-2-40-19: | Household And Similar Electrical Appliances, Part<br>2-40: Particular Requirements for Electrical<br>Heat Pumps, Air-Conditioners and Dehumidifiers - 3rd Edition |
| | UL/CSA 60335-2-89-21 | Household And Similar Electrical Appliances - Safety - Part 2-89: Particular Requirements for Commercial Refrigerating<br>Appliances with an Incorporated or Remote Refrigerant Unit or Compressor |

| | |
|---|---|
| Table R301.2 | |
| Section R311.7.5 Stair Treads and Risers | 311.7.5.1 Riser Heights — The maximum riser height shall be eight and one-quarter (8 ¼) inches.<br>311.7.5.2 Tread Depth — The minimum tread depth shall be nine (9) inches. |
| Section R403.1.7.1 | Building Clearances from Ascending Slopes is not applicable to this rule. |
| Section R403-1.7.2 | Footings Setbacks from Descending Slope Surfaces is not applicable to this rule. |
| International Plumbing Code 2018: | |
| Section 101.1 | Insert "the City of Charleston" |
| Section 106.6.2 | Insert "See the Building Department Administrative Manual, Appendix A" |
| Section 106.6.3 | In No. 2 Insert "100%"<br>In No. 3 Insert "100%" |
| Section 108.4 | Insert "misdemeanor," "$1,000," "0 days" |
| Section 108.5 | Amend last sentence in paragraph to read as follows:<br>Any person who shall continue any work in or about the structure after having been served with a stop work order, except such work as that person is directed to perform to remove a violation or unsafe condition, shall be liable for a fine up to $1,000.00" |
| Section 305.4.1 | Insert "30 inches" and "12 inches" |
| Section 903.1 | Insert "12 inches" |
| International Mechanical Code 2018: | |
| Section 101.1 | Insert "the City of Charleston" |
| Section 106.5.2 | Insert "See the Building Department Administrative Manual, Appendix A" |
| Section 106.5.3 | In No. 2 Insert "100%"<br>In No. 3 Insert "100%" |
| Section 108.4 | Insert "misdemeanor," $1,000," "0 days" |
| Section 108.5 | Amend last sentence in paragraph to read as follows:<br>Any person who shall continue any work on the system after having been served with a stop work order, except such work as that person is directed to perform to remove a violation or unsafe condition, shall be liable for a fine up to $1,000.00" |
| Section 908.1 General | A cooling tower used in conjunction with an air-conditioning appliance shall be installed in accordance with the manufacturer's instructions. Factory-built cooling towers shall be listed in accordance with UL 1995 or UL/CSA 60335-2-40. |

| | |
|---|---|
| Section 916.1 General | Pool and spa heaters shall be installed in accordance with the manufacturer's instructions. Oil-fired pool and spa heaters shall be tested in accordance with UL 1261. Pool and spa heat pump water heaters shall comply with UL 1995, UL/CSA 60335-2-40 or CSA C22.2 No. 236. Exception: Portable residential spas and portable residential exercise spas shall comply with UL 1563 or CSA C22.2 No. 218.1. |
| Section 918.1 Forced-Air furnaces | Oil-fired furnaces shall be tested in accordance with UL 727. Electric furnaces shall be tested in accordance with UL 1995 or UL/CSA 60335-2-40. Solid fuel furnaces shall be tested in accordance with UL 391. Forced-air furnaces shall be installed in accordance with the listings and the manufacturer's instructions. |
| Section 918.2 Heat Pumps | Electric heat pumps shall be tested in accordance with UL 1995 or UL/CSA 60335-2-40. |
| Section 1101.2 Factory-Built Equipment and Appliances | Listed and labeled self-contained, factory-built equipment and appliances shall be tested in accordance with UL 207, 412, 471, 1995, UL/CSA 60335-2-40, or UL/CSA 60335-2-89. Such equipment and appliances are deemed to meet the design, manufacture and factory test requirements of this code if installed in accordance with their listing and the manufacturer's instructions. |
| Section 1101.6 General | Refrigeration systems shall comply with the requirements of this code and, except as modified by this code, ASHRAE 15. Ammonia-refrigerating systems shall comply with this code and, except as modified by this code, ASHRAE 15, IIAR 2. High probability systems utilizing A2L refrigerants shall comply with ASHRAE 15. |

| | | |
|---|---|---|
| Section 1501.3 Referenced Standards - See Table list | ASHRAE | ASHRAE<br>1791 Tullie Circle, NE<br>Atlanta, GA 30329 |
| | Standard reference number | Title |
| | 15-2019 | Safety Standard for Refrigeration Systems |
| | 34-2019 | Designation and Safety Classification of Refrigerants |
| | CSA | CSA Group<br>8501 East Pleasant Valley Road<br>Cleveland, OH 44131-5516 |

| | | |
|---|---|---|
| | Standard reference number | Title |
| | CSA C22.2 No. 60335-2-40-19 | Household and Similar Electrical Appliances - Part 2-40: Particular Requirements for Electrical Heat Pumps, Air-Conditioners and Dehumidifiers-3rd edition |
| | CSA C22.2 No. 60335-2-89-21 | Household and Similar Electrical Appliances - Part 2-89: Particular Requirements for Commercial Refrigerting Appliances with an Incorporated or Remote Refrigerant Unit or Compressor |
| | UL | UL LLC 333 Pfingsten Road Northbrook, IL 60062-2096 |
| | Standard reference number | Title |
| | UL/CSA 60335-2-40-19: | Household And Similar Electrical Appliances - Safety - Part 2-40: Particular Requirements for Electrical Heat Pumps, Air-Conditioners and Dehumidifiers - 3rd Edition |

| | | |
|---|---|---|
| | UL/CSA 60335-2-89-21 | Household And Similar Electrical Appliances - Safety - Part 2-89: Particular Requirements for Commercial Refrigerating Appliances with an Incorporated or Remote Refrigerant Unit or Compressor |

| | |
|---|---|
| International Existing Building Code 2018: | |
| Section 101.1 | Insert "the City of Charleston" |
| Omit reference to International Fire Code and substitute NFPA Life Safety Code 2021 edition | |
| International Energy Conservation Code 2015: | |
| Section 101.1 | Insert "the City of Charleston" |
| Section R402.4.1.2. Testing. | The Building or dwelling unit shall in lieu thereof have an air leakage rate not exceeding five air changes per hour in Climate Zones 3 through 8. |
| International Fuel Gas Code 2018: | |
| Section 101.1 | Insert "the City of Charleston" |
| Section 106.6.2 | Insert "See the Building Department Administrative Manual, Appendix A" |
| Section 106.6.3 | In No. 2 Insert "100%"<br>In No. 3 Insert "100%" |
| Section 108.4 | Insert "misdemeanor," "$1,000," "0 days" |
| Section 108.5 | Amend last sentence in paragraph to read as follows:<br>Any person who shall continue any work on the system after having been served with a stop work order, except such work as that person is directed to perform to remove a violation or unsafe condition, shall be liable for a fine up to $1,000.00" |
| Section 404.12 | Section 404.12 is deleted in its entirety and replaced with the following:<br>"Underground piping systems shall be installed a minimum depth of 12 inches (305 mm) below grade. If the minimum depth cannot be maintained, the piping system shall be installed in conduit or shielded in an approved manner." |
| International Property Maintenance Code 2018: | |
| Section 101.1 | Insert "the City of Charleston" |
| Section 103.5 | Insert "See the Building Department Administrative Manual, Appendix A" |

| | |
|---|---|
| Section 110.3 | Modified as follows:<br>Unless authorized by W. Va. Code § 8-12-16, or absent the express consent of the owner, if the owner of a premises fails to comply with a demolition order within the time prescribed, the legal counsel of the jurisdiction shall institute appropriate action in the Circuit Court of the County in which the property is located against the owner of the premises where the structure is or was located seeking an order causing the structure to be demolished and removed. Thereafter, the local jurisdiction, through an available public agency or by contract or arrangement with private persons, shall demolish and remove the structure and the costs thereof, as well as all fees and costs incurred in the legal action, shall be a lien upon such real estate. |
| Section 112.4 | Amend last sentence in paragraph to read as follows:<br>Any person who shall continue any work on the system after having been served with a stop work order, except such work as that person is directed to perform to remove a violation or unsafe condition, shall be liable for a fine up to $1,000.00" |
| Section 302.4 | Insert "10 inches" |
| Section 304.14 | Insert "January 1 st to December 31 st" |
| Section 602.3 | Insert "January 1 st to December 31 st" |
| Section 602.4 | Insert "September 1 st to June 1 st" |
| 2020 National Electrical Code, NFPA 70:<br>[insert] 4.1.m.1 Section 201.8(F) GFCI Protection shall not be required on all new mini-split heating/ventilation/air-conditioning (HVAC equipment and other HVAC units employing power conversion equipment as a means to control compressor speed systems including but not limited to mini-split and A/C units until January 1, 2023.<br>4.1.m.2 For renovations in one- and two-family homes where no new square footage is involved, arc-fault circuit interrupter (AFCI) protection shall not be required, except for in bedrooms. For renovation in one- and two-family homes where square footage is added but no electrical service is installed, arc-fault circuit interrupter (AFCI) protection shall not be required. | |
| The 2018 edition of the International Swimming Pool and Spa Code. | |
| 2017 ICC/ANSI A117.1 American National Standards for Accessibility & Usable Buildings and Facilities: | |

Title 87 Legislative Rule, State Fire Commission, Series 4 § 87-4-5 Fire Protection of Floors in Residential Buildings

5.1 New one and two family dwellings over one level in height, new one and two family dwellings containing a basement, and new one and two family dwellings containing a crawl space containing a fuel burning appliance below the first floor, shall provide one of the following methods for fire protection of floors: (1) A ½ inch (12.7 mm) gypsum wallboard membrane, 5/8 inch (16 mm) wood structural panel membrane, or equivalent on the underside of the floor framing member; (2) Wood floor assemblies using dimension lumber or structural composite lumber equal or greater than 2 inch by 10 inch (50.8 mm by 254 mm) nominal dimension, or other approved floor assemblies demonstrating equivalent fire performance; or (3) An automatic fire sprinkler system as set forth in section R313.1 or R313.2 of the 2018 edition of the International Residential Code for One and Two Family Dwellings, provided that floor assemblies located directly over a space protected by an automatic sprinkler system as set forth in section R313.1 or R313.2 of the 2018 edition of the International Residential Code for One and Two Family Dwellings are exempt from this requirement.

5.2 Townhouses meeting the Fire-Resistant Construction Standard R302.2 will be treated as New One- and Two-Family Dwellings and shall comply with Section 5.1 above.

(c) Nothing in this section hereby adopted shall be construed to affect any suit or proceeding impending in any court, or any rights acquired, or liability incurred, or any cause of action acquired or existing, under any provision hereby repealed; nor shall any right or remedy of any character be lost, impaired or affected by this chapter.
(Bill. No. 7031, 3-1-2004; Bill No. 7426, 6-22-2010; Bill No. 7592, 9-16-2013; Bill No. 7812, 4-15-2019; Bill No. 7831, 8-19-2019; Bill No. 7877, 8-3-2020; Bill No. 7966, 7-18-2022)

**Sec. 14-34. Conflicts of law; construction.**

If any provision of the city building code, including any provision of the building department administrative manual, conflicts with any provision of the city's Charter, other city ordinances or with any provision of state law or any rule or regulation lawfully promulgated and in effect pursuant to authority of state law, the more stringent provision shall prevail if it is not inconsistent with the laws of West Virginia and is not contrary to recognized standards and good engineering practices. In any question, the decision of the state fire commission determines the relative priority of any such municipal ordinance or regulation and determines compliance with state building code by officials of the city. If any provision of the building department administrative manual conflicts with any ICC provision, the latter shall prevail.
(Bill. No. 7031, 3-1-2004)

**State law reference—**W.Va. Code § 29-3-5b.

**Sec. 14-35. Violation.**

It shall be unlawful for any person to erect, construct, enlarge, alter, repair, move, remove, demolish, convert, equip, use, or occupy or maintain any building or structure contrary to or in violation of any provisions of the city building code, or cause, permit or suffer any such violations to be committed.
(Bill. No. 7031, 3-1-2004)

**Sec. 14-35. Administration and enforcement.**

The primary responsibility for the administration and enforcement of the city building code is vested in the building code official, with the cooperation of the, chief of police, fire chief and other city officers, each within the scope of his official duties.
(Bill. No. 7031, 3-1-2004)

**Cross reference—**Administration, ch. 2.

**Sec. 14-36. Construction with respect to fire prevention code and with standards for gas piping and appliance venting.**

The adoption of the city building code shall not be construed to affect or repeal any provisions of the fire prevention code nor be construed as permitting a standard for gas piping and appliance venting on a customer's premises less than now or hereafter required by any natural gas utility.
(Bill. No. 7031, 3-1-2004)

**Secs. 14-37—14-70. Reserved.**

## ARTICLE III. HOUSING CODE

### DIVISION 1. GENERALLY

**Sec. 14-71. Violations and penalty.**

Any person who shall violate or fail to comply with any of the provisions of this article shall be deemed guilty of a separate offense for each day or portion of a day during which the offense is committed, continued or permitted; and upon conviction of any such violation or noncompliance, such person shall be punishable by a fine of not more than $1,000.00, notwithstanding the provisions of subsection (c) of section 1-8 of this Code.
(Bill. No. 7031, 3-1-2004; Bill No. 7831, 8-19-2019)

**Secs. 14-72—14-90. Reserved.**

### DIVISION 2. ADMINISTRATION AND ENFORCEMENT

*Subdivision I. In General*

**Sec. 14-91. Board of appeals.**

(a) Any person directly affected by a decision of the code official or a notice or order issued under this Code shall have the right to appeal to the board of appeals, provided that a written application for appeal is filed within 20 days after the decision, notice or order was served. An application for appeal shall be based on a claim that the true intent of the Code or the rules has been incorrectly interpreted, the provisions of the Code do not fully apply, or the requirements of the Code are adequately satisfied by other means, or that the strict application of any requirement of the Code would cause an undue hardship.

(b) The mayor of the City of Charleston shall appoint a board of appeals which shall consist of five individuals, one from each of the following professions or disciplines, with three forming a quorum at any appeal hearing:

1. A registered design professional who is a registered architect, or a builder or superintendent of building construction with at least ten years experience, five of which shall have been in responsible charge of work;
2. A registered design professional with structural engineering or architectural experience;
3. A registered design professional with mechanical or plumbing engineering experience; or a mechanical or plumbing contractor with at least ten years experience, five of which shall have been in responsible charge of work;
4. A registered design professional with electrical engineering experience; or an electrical contractor with at least then years experience, five of which shall have been in responsible charge of work; and
5. A registered designed professional with fire protection engineering experience; or a fire protection contractor with at least ten years experience, five of which shall have been in responsible charge of work.

(c) *Time of appeal.* The board shall meet upon 20 days written notice of an appeal or at stated periodic meetings. The appeals board shall render a decision within 30 days of receipt of appeal. The code official shall take immediate action in accordance with the decision of the board; unless he or she appeals to circuit court for a writ of certiorari to correct errors of law.

(d) *Circuit court review.* Any person aggrieved by a final decision by the board of appeals, may apply to the Circuit Court of Kanawha County for relief: Provided; that, all appeals must be filed within 30 days of entry of the final decision by the board of appeals.

(e) *Open hearing.* All hearing before the beard shall be open to the public.
(Bill. No. 7031, 3-1-2004)

### Sec. 14-92. Assistants and employees of code official.

The code official shall have such assistants, inspectors and other employees as the city council may direct. Such employees shall perform such duties and have such powers as the code official may direct.
(Bill. No. 7031, 3-1-2004)

**Cross reference—**Officers and employees, § 2-131 et seq.

### Sec. 14-93. Duties of chief of fire prevention bureau.

The chief of the bureau of fire prevention shall refer to the code official in writing all violations of the provisions of this article that come to their attention in the course of their regular duties, and such references shall have the effect of a written complaint as set forth in this division.
(Bill. No. 7031, 3-1-2004)

### Secs. 14-94—14-110. Reserved.

*Subdivision II. Violations*

### Sec. 14-111. Orders to correct substandard conditions.

(a) For purposes of this subsection "substandard" means the failure to meet the minimum regulations governing the conditions and maintenance of all property, buildings and structures; by providing the standards for supplied utilities and facilities and other physical things and conditions essential to ensure that structures are safe, sanitary and fit for occupation and use.

(b) Whenever the code official or any of his or her assistants or designees determines by inspection that any building, structure or lot as set out in this article is substandard in accordance with the provisions of the building code, he shall issue an order in writing to the owner, occupant or

person in charge of the premises concerned. Such order shall be served in accordance with the laws of the state concerning service of process in civil actions and shall, in addition, be posted in a conspicuous place on the premises affected by such order. The designated time periods shall begin as of the date the owner, occupant or person in charge of the premises is deemed to be served under the laws of the state concerning service of process in civil actions. The order shall set out the date of the inspection and by whom made, the substandard conditions found, in reasonable detail, and shall order specific corrective measures and give a date by which time such corrective measures shall be completed. The order shall require the owner, occupant or person in charge of the premises to comply with the order for corrective measures by the time allotted, which shall be at the discretion of the code official, but shall, in no case, be less than ten days, or to file an appeal with the board of appeals within 20 days; however, whenever the code official finds that any emergency exists which, in his opinion, may involve the potential loss of life or severe property damage, he may issue an order reciting the existence of such an emergency and requiring that such an action be taken as he deems necessary to meet the emergency. Notwithstanding the other provisions of this section, such an emergency order shall be effective immediately. Any person to whom such an emergency order is directed shall be afforded a hearing before the appeals board upon petition to the appeals board; but if no such petition is filed within 24 hours of that person's being served with such an emergency order, the person to whom such an emergency order is directed shall comply with such order by the end of such 24-hour period.
(Bill. No. 7031, 3-1-2004)

**Sec. 14-112. Duties of owners.**

The owner of any property subject to the provisions of this article shall, upon receipt of the order as provided in section 14-111, correct the deficiencies noted in the time stipulated, or appear before the housing commissioner code official and show cause why he cannot or ought not comply with such order; and any owner who shall fail to do so shall, upon the expiration of the time allotted, be deemed to be maintaining a nuisance, which shall constitute a violation of the provisions of this article. Every owner of a dwelling containing two or more dwelling units shall be responsible for maintaining in a clean and sanitary condition the shared or public areas of such dwelling and its premises, shall maintain such dwelling in a rat proof and a reasonably insect proof condition, and shall be responsible for the extermination of such pests in the shared or public areas of such dwelling or any vacant portions of such dwelling.
(Bill. No. 7031, 3-1-2004)

**Sec. 14-113. Duties of occupants.**

The occupant of any dwelling unit subject to the provisions of this article, whether he is the owner or not, shall comply with the provisions of subsection 14-92(b) and section 14-114, or be guilty of a violation. Every occupant of a dwelling or dwelling unit shall keep in a clean and sanitary condition that part of the dwelling unit and premises which he occupies and controls; shall dispose of all of his garbage and any other organic waste in a clean and sanitary manner by placing it in garbage disposal facilities or garbage storage containers; shall dispose of all of his rubbish in a clean and sanitary manner; shall be responsible for the extermination of any insects, rodents or other pests on the premises he occupies; and shall keep all plumbing fixtures in a clean and sanitary condition.
(Bill. No. 7031, 3-1-2004)

**Sec. 14-114. Removal or demolition.**

The amount of the cost of removal or demolition shall be a lien against the real property upon which such cost was incurred, which lien shall be superior to all liens except those for taxes and paving assessments, and which may, if necessary, be enforced through any court of competent jurisdiction: Provided; that, in the event a property owner agrees, in writing, to rehabilitate such property to the satisfaction of the code official, within six months of said agreement, the code official, with the approval of the city manager, is

authorized to release such liens in an amount not to exceed one-half of the value of property upon which the lien attached.
(Bill. No. 7031, 3-1-2004)

**Sec. 14-115. Nonliability of city employees.**

No officer, agent or employee of the city shall be personally liable for damages arising from his lawful performance of his duties under this chapter.
(Bill. No. 7031, 3-1-2004)

**Secs. 14-116—14-140. Reserved.**

DIVISION 3. MINIMUM STANDARDS

**Sec. 14-141. Minimum floor areas and ceiling heights.**

The total area in all habitable rooms in a dwelling unit or rooming unit shall be such as to provide at least 120 square feet of floor area for the first occupant and 100 square feet for each additional occupant. No room used for sleeping purposes shall have a floor area of less than 60 square feet, and every room used by more than one occupant for sleeping purposes shall contain at least 50 square feet of floor area per occupant sleeping in the room. No room serving as a bathroom with a tub as bathing facilities shall have a floor area of less than 35 square feet, including the area occupied by the tub; no room serving as a bathroom with a shower stall as bathing facilities shall have a floor area of less than 30 square feet, including the space occupied by the shower stall. No habitable rooms shall have a ceiling height of less than seven feet.
(Code 1975, § 5-61)

**Sec. 14-142. Heating and cooking.**

Every dwelling shall have heating facilities suitable for heating habitable rooms to a minimum temperature of 70 degrees Fahrenheit, at a distance of three feet from the floor during ordinary minimum winter conditions, which are properly installed, maintained in a safe working condition and shall be adequately ventilated. No cooking shall be permitted in any basement unless approved by the chief, bureau of fire prevention, city fire department. Every dwelling shall contain a kitchen sink, in good working condition, properly serviced by an approved sewer system; and every dwelling unit shall contain hot water heating facilities in good working condition, properly connected so as to provide hot water to existing bathtubs or showers, kitchen sinks and lavatory.
(Code 1975, § 5-62)

**Sec. 14-143. Lighting and ventilation.**

Every habitable room or rooming unit shall have at least one window or skylight facing directly to the outside of the building or structure in addition to the entrance requirements, which shall be at least three feet from any adjacent structure. Such window or skylight shall be in area at least ten percent of the floor area of the room and shall be properly glazed and maintained in such condition as to permit 45 percent of it to be easily opened and closed. Every nonhabitable room shall have provision for lighting as follows: one ceiling or wall type electric light fixture. In an interior room where such direct opening to the outside is impossible, a duct system affording at least one square inch of duct for each square foot of floor space in the room may be used. Such ducts will be properly constructed of rigid materials and kept free from dirt or obstructions, will be not more than 20 feet in length to the outside, and will not have more than two changes of direction which shall total no more than 90 degrees. Where such duct is used in a kitchen or bathroom and no window or skylight is afforded, such duct must be equipped with a means of changing the air in such room at least 12 times an hour. Every dwelling located within reasonable distance of a commercial power line shall be provided with electric service. Every habitable room shall have at least two duplex electrical wall outlets, which shall be installed, maintained, operated and fused in accordance with the requirements of the electrical code.
(Code 1975, § 5-63)

**Sec. 14-144. Water supply; toilet and bath facilities; plumbing.**

Every dwelling unit must have access to an approved water supply. Every dwelling unit must

have at least one lavatory basin, one water closet and one bath, tub or shower; and every rooming unit must have at least one lavatory basin, one water closet and one bath, tub or shower for each eight roomers and one urinal for each 24 male roomers, all of which shall be installed in accordance with existing codes. Each such dwelling unit shall have a water heating device sufficient to provide adequate hot water to any basin, sink, tub or shower, during periods of normal use, to a temperature of 120 degrees Fahrenheit; and all such water heating devices and applications shall be vented, installed and maintained in accordance with existing related ordinances.
(Code 1975, § 5-64)

**Sec. 14-145. Basements.**

No basement or cellar shall be used as a habitation except where at least 60 percent of the basement is above the adjoining grade level and where there is at least one means of safe egress in addition to the entrance; except an apartment building basement may be used as a habitation by the caretaker and his family provided it meets with other requirements for a basement dwelling pertaining to safe egress and cooking facilities as set forth in this article. The general fitness of a basement used for human habitation shall, in addition to the foregoing requirements of this section, be in accordance with the appropriate regulations of the health commissioner; and all basements, whether used as a habitation or not, shall be kept free from garbage, trash and rubbish accumulations and rodent and insect infestation.
(Code 1975, § 5-65)

**Sec. 14-146. Entrances and exits.**

Each dwelling unit shall have a separate access to either a hallway, landing, stairway or street. Each dwelling unit or rooming unit shall have in addition, where structurally feasible, at least one additional means of approved egress which shall lead to a safe and open space at ground level. Each room used for sleeping purposes shall have direct and unobstructed access to the outside, and such access shall be in accordance with the appropriate regulations of the chief of the bureau of fire prevention.
(Code 1975, § 5-66)

**Sec. 14-147. Waste disposal and receptacles.**

Every dwelling unit shall be supplied with adequate, noncombustible rubbish and trash storage facilities of a type approved by the health commissioner and the chief, bureau of fire prevention, and shall have adequate garbage disposal facilities or garbage storage containers of a type and in a location approved by the health commissioner.
(Code 1975, § 5-67)

**Sec. 14-148. Surface drainage.**

All courts, yards or other areas on the premises of any dwelling shall be properly graded and drained. All roofs shall be maintained in a sufficient repair to prevent the interior of the dwelling from becoming wet or damp from leaks.
(Code 1975, § 5-68)

**Sec. 14-149. Maintenance and repairs.**

All dwellings and dwelling units shall be maintained in good condition and appearance, and all devices in use on the premises shall be maintained in good working order, and shall be kept free from garbage, trash and rubbish accumulation and rodent and insect infestation.
(Code 1975, § 5-69)

**Secs. 14-150—14-180. Reserved.**

## ARTICLE IV. SECURITY AGAINST UNAUTHORIZED ENTRY

**Sec. 14-181. Penalties for violations.**

Anyone violating or failing to comply with any provision of this article shall upon conviction be subject to the provisions of section 1-8.
(Code 1975, § 24-8)

**Sec. 14-182. Security requirements; exemptions.**

Except as specifically exempted in this article, all existing and future buildings in the city used by any person for the purpose of conducting, managing or carrying on any business shall, when not occupied by a watchman, maintenance personnel or other authorized persons during the

period that such building is closed to business, be so secured as to prevent unauthorized entry in accordance with specifications for physical security of exterior accessible openings as provided in sections 14-186 and 14-187; provided, that existing buildings used for residential purposes shall not be subject to this article, but any multiunit building constructed for this purpose after November 20, 1972, shall be subject to the terms, modifications, requirements and penalties of this article.
(Code 1975, § 24-1)

**Sec. 14-183. Enforcement; right of entry.**

The chief of police is authorized and directed to enforce the provisions of this article; and upon presentation of proper credentials, the chief of police or his duly authorized representative may, with the consent of the occupant or pursuant to a lawfully issued warrant, enter at reasonable times any building or premises used for business purposes for the purpose of inspecting the physical security of exterior accessible openings of such building or premises.
(Code 1975, § 24-2)

**Sec. 14-184. Responsibility for compliance.**

Responsibility for compliance with the specifications set forth in sections 14-186 and 14-187 shall be as follows:

(1) As to any building occupied by a business establishment which does not share the exterior openings of such building with any other business establishment, the person operating such business shall be responsible.

(2) As to any building occupied by two or more business establishments who share the same exterior openings of such building, the owner of such building, or his agent having charge, care or control of such building, shall be responsible.

(Code 1975, § 24-3)

**Sec. 14-185. Inspection of exterior openings by chief of police; notice to and duty of responsible persons.**

The chief of police shall inspect or cause to be inspected the accessible exterior openings of every building subject to the provisions of this article; and if he shall find accessible exterior openings in any such building which do not comply with the specifications set forth in sections 14-186 and 14-187, he shall give notice in writing to the person responsible, as designated in section 14-184, setting forth the deficiencies which are to be corrected, and the period of time within which such corrections shall be completed. Failure to comply with such notice within the period of time specified shall be a violation of this section.
(Code 1975, § 24-4)

**Sec. 14-186. Locking devices.**

(a) *Generally.* All exterior openings of any building used for business purposes and subject to the provisions of this article and not otherwise protected by photoelectric, ultrasonic or other intrusion detection devices, approved by the chief of police, shall be secured as provided in this section.

(b) *Front doors.* All front doors of any such building or premises shall comply with the following requirements:

(1) Tempered glass doors, wood or metal doors with tempered glass panel, solid wood or metal doors shall be secured as follows:

a. A single door shall be equipped with either double-cylinder dead lock that unlocks from both the outside and inside by key, or with cylinder dead lock that unlocks from the outside by key and inside by turnpiece, handle or knob, or with dead locking latch having guarded bolt that unlocks from the outside by key and inside by turnpiece, handle or knob, or with dead locking latch having guarded bolt that unlocks from the outside by key and inside by turnpiece, handle or knob.

b. On double doors the active leaf shall be equipped with a type of lock as prescribed for single doors, and the inactive leaf shall be equipped with flush bolts at head and foot.

(2) Doors with glass panels not of tempered glass and doors that have nontempered glass panels adjacent to the door frame shall be secured as follows:

a. A single door shall be equipped with cylinder dead lock that unlocks from both the outside and inside by a key.

b. On double doors the active leaf shall be equipped with a cylinder dead lock that unlocks from both the outside and inside by a key, and the inactive leaf shall be equipped with flush bolts at head and foot.

(3) Rolling overhead doors that are not controlled or locked by electric power operation shall be equipped on the inside with the following protective devices:

a. Manually operated doors shall be provided with slide bolts on the bottom bar.

b. Chain-operated doors shall be provided with a cast iron keeper and pin for securing the hand chain.

c. Crank-operated doors shall be provided with a means for securing the operating shaft.

(4) A solid overhead, swinging, sliding or accordion garage-type door shall be secured with a cylinder lock, padlock and/or metal slide bar, bolt or crossbar on the inside when not otherwise controlled or locked by electric power operation. If a padlock is used, it shall be of hardened steel shackle, with minimum four-pin tumbler operation. If this type of door provides the only entrance to the front of the building, a cylinder lock or padlock may be used on the outside.

(5) Metal accordion grate or grill type doors shall be equipped with a metal guide track at top and bottom and a cylinder lock and/or padlock with hardened steel shackle and minimum four-pin tumbler operation.

(6) Outside hinges on all front doors shall be provided with nonremovable pins. Such hinge pins may be either welded, flanged or secured by a screw.

(c) *Rear, side and basement doors.* All accessible rear, side and basement doors of any such building or premises shall comply with the following requirements:

(1) All doors of the types listed below shall comply with the requirements of subsection (b) of this section for front doors:

a. Tempered glass doors, wood or metal doors with tempered glass panel.

b. Metal doors.

c. Rolling overhead doors.

d. Solid overhead, swinging, sliding or accordion garage type doors.

e. Metal accordion grate or grill type doors.

(2) Doors with glass panels and doors that have glass panels adjacent to the door frame shall be secured as follows:

a. The glass panel shall be covered with iron bars of at least one-half-inch round or one-inch by one-fourth-inch flat steel material spaced not more than five inches apart.

b. Iron or steel grills of at least one-eighth-inch material of two-inch mesh.

c. If the door or glass panel barrier is on the outside it shall be secured with rounded head flush bolt on the outside.

d. If the remaining portion of a door panel exceeds eight inches by 12 inches (excluding door frame), is of wood but not of solid core construction or is less than 1⅜ inches thick, such portion shall be covered on the inside with at least 16 gauge sheet steel attached with screws.

(3) Wood doors not of solid core construction or with panels less than 1⅜ inches thick

shall be covered on the inside with at least 16 gauge sheet steel attached with screws.

(4) Locking devices are regulated as follows:

a. A single door shall be equipped with either double cylinder deadlock that unlocks from both the outside and inside by key or with cylinder deadlock that unlocks from the outside by key and inside by turnpiece, handle or knob with dead locking latch having guarded bolt that unlocks from outside by key and inside by turnpiece, handle or knob or with approved slide bar bolt, crossbar, and/or padlock. If a padlock is used, it shall be of hardened steel shackle with minimum four-pin tumbler operation.

b. On double doors, the active leaf shall be equipped with a type of lock as prescribed for single doors above and the inactive leaf shall be equipped with flush bolts at head and foot.

(5) Outside hinges on all rear, side and basement doors shall be provided with nonremovable pins. Such hinge pins may be either welded, flanged or secured by a screw.

(d) *Roof doors.* All doors that exit onto the roof of any such building or premises shall comply with the following requirements:

(1) Doors with glass panels and any glass panels that are adjacent to the door frame shall be protected as follows:

a. The glass portion shall be covered with iron or steel grills of at least one-eighth-inch material of no more than two-inch mesh securely fastened.

b. If the door or glass panel barrier is on the outside, it shall be secured with rounded head flush bolt on the outside.

c. If the remaining portion of a door panel exceeds eight inches by 12 inches (excluding door frame) and is of wood but not of solid core construction or is less than 1⅜ inches thick, such portion shall be covered on the inside with at least 16 gauge sheet steel attached with screws.

(2) Wood doors not of solid core construction or with panels less than 1⅜ inches thick shall be covered on the inside with at least 16 gauge sheet steel attached with screws.

(3) All roof doors shall be provided with a lock that will permit the door to be opened from the inside without the use of a key or any special knowledge or effort.

(4) Outside hinges on all roof doors shall be provided with nonremovable pins. Such hinge pins may be either welded, flanged or secured by a screw.

(e) *Glass windows.* The chief of police shall, with the advice and assistance of the fire chief, determine the extent of protection, if any, that will be required for accessible glass windows at the side or rear of such building. Glass windows shall be deemed accessible if less than 18 feet aboveground. In making his determination, he shall consider whether the side of the building fronts on a street, the area, the location and its contents, and whether such openings are protected by intrusion detection devices.

(1) The chief of police may require side and rear glass windows with a pane exceeding 96 square inches in area with its smallest dimension exceeding six inches to be protected in the following manner:

a. Inside or outside iron bars of at least one-half inch round or one-inch by one-fourth-inch flat steel material spaced not more than five inches apart, securely fastened; or

b. Inside or outside iron or steel grills of at least one-eighth-inch material of two-inch mesh securely fastened. If such barrier is on the outside, it shall be secured with rounded head flush bolt on the outside.

(2) If the side or rear window is of the type that can be opened, it shall, where appli-

cable, be secured on the inside with either a glide bar, bolt, crossbar and/or padlock with hardened steel shackle, and minimum four-pin tumbler operation.

(3) Outside hinges on all side and rear glass windows shall be provided with nonremovable pins. Such hinge pins may be either welded, flanged or secured by a screw.

(f) *Accessible transoms.* All exterior transoms exceeding eight inches by 12 inches on the side and rear of any such building or premises shall be protected by either of the following:

(1) Outside iron bars of at least one-half-inch round or one-inch by one-fourth-inch flat steel material spaced no more than five inches apart; or

(2) Outside iron or steel grills of at least one-eighth-inch material but not more than two-inch mesh. Such barrier shall be secured with rounded head flush bolts on the outside.

(g) *Roof openings.* All exterior openings on the roof of any building or premises shall be protected as follows:

(1) Glass skylights shall be provided with:

a. Iron bars of at least one-half-inch round or one-inch by one-fourth-inch flat steel material under the skylight and securely fastened; or

b. A steel grill of at least one-eighth-inch material of two-inch mesh under the skylight and securely fastened.

(2) Hatchway openings shall be secured as follows:

a. If the hatchway is of wooden material, it shall be covered on the inside with at least 16 gauge sheet steel attached with screws.

b. The hatchway shall be secured from the inside with a slide bar or slide bolts. The use of crossbar or padlock is unauthorized unless approved by the fire chief.

c. Outside hinges on all hatchway openings shall be provided with nonremovable pins. Such hinge pins may be either welded, flanged or secured by a screw.

(3) Air duct or air vent openings exceeding eight inches by 12 inches shall be secured by covering the same with either of the following:

a. Iron bars of at least one-half-inch round or one-inch by one-fourth-inch flat steel material spaced no more than five inches apart and securely fastened; or

b. A steel grill of at least one-eighth-inch material of two-inch mesh and securely fastened. If the barrier is on the outside, it shall be secured with rounded head flush bolts on the outside.

(Code 1975, § 24-5)

**Sec. 14-187. Intrusion detection devices.**

If it is determined by the chief of police that the security measures and locking devices prescribed in section 14-186 do not adequately secure the building, he may require the installation and maintenance of photoelectric, ultrasonic or other intrusion detection devices. In making such determination, he shall consider whether:

(1) The business establishment has experienced a high incidence of burglary in the past; or

(2) The type of merchandise and its inventory value require added security protection.

If he determines that such installation is required, notice in writing shall be given to the responsible person designated in section 14-184, specifying the installation to be made and the period of time within which such installation shall be completed. Unless an appeal is filed in accordance with section 14-188, failure to comply with such notice within the time specified shall be a violation of this section.

(Code 1975, § 24-6)

**Sec. 14-188. Appeal from intrusion detection device requirements.**

Within ten days after receipt of written notice from the chief of police requiring the installation and maintenance of photoelectric, ultrasonic or other intrusion detection device, the person responsible for compliance may appeal in writing to the city manager. In filing the appeal, the appellant shall set forth the specific grounds wherein it is claimed there was an error or abuse of discretion by the chief of police, or wherein the issuance of such written notice was not supported by proper evidence. Upon receipt of such appeal, the city manager shall, in his discretion, hear both sides of the contested issue and any evidence of the dispute. The city manager may then affirm, reverse or modify the decision of the chief of police. If the appealed decision is affirmed or modified by the city manager, the appellant shall be given written notice by the chief of police setting forth the installation to be made and the period of time within which the action shall be completed. In no event shall the period be less than that originally granted the appellant. Failure to comply with such notice within the time specified shall be a violation of this section.
(Code 1975, § 24-7)

**Secs. 14-189—14-199. Reserved.**

## ARTICLE V. VACANT STRUCTURE REGISTRY

**Sec. 14-200. Adoption.**

There is hereby adopted a vacant structure code for the City of Charleston.
(Bill. No. 7613, 3-17-2014)

**Sec. 14-201. Purpose.**

(a) The city has determined that uninspected and unmonitored vacant buildings (i) present a fire hazard; (ii) are often utilized by vagrants and transients (including drug abusers and traffickers) as dangerous and unsafe temporary shelters; (iii) detract from private and/or public efforts to rehabilitate or maintain surrounding buildings; and (iv) require additional regulation and services to protect the health, safety and welfare of the public.

(b) Owners of vacant buildings shall register such vacant buildings with the city, make payment of a fee as set forth herein, and otherwise conform to the requirements of this vacant structure code.

(c) It is the intent of this article that, through a registration, inspection, and monitoring process, and other improved public safety efforts, vacant buildings will be kept weather tight and secure from trespassers, will provide safe entry to police officers and firefighters in times of emergency, will not impede private and/or public efforts to rehabilitate or maintain surrounding properties, and will not otherwise present a public hazard.

(d) It is the city's further intent for the provisions of this article to streamline and consolidate the existing procedure (that is, complaint, research, notification, inspection, orders, fines, liens, appeals and lien enforcement) by placing the responsibility to register and maintain a vacant structure on the owner of a building before a condition of the building falls into disrepair or otherwise necessarily warrants a complaint.
(Bill. No. 7613, 3-17-2014)

**Sec. 14-202. Definitions.**

(a) For purposes of this article, the following words and phrases shall have the meanings respectively ascribed to them as follows:

(1) *Abandoned building:* Any structure on a parcel of real property which (i) has been a vacant structure for more than 90 days, and (ii) is the subject of an order issued by the municipal court for a building or zoning violation which has not been remedied for at least 30 days.

(2) *Boarded:* Vacant structure shall be deemed to be "boarded" if in place of one or more exterior doors, other than a storm door, or of one or more windows, there is a sheet or sheets of plywood or similar material covering the space for such door or window.

(3) *Occupy / occupied / occupies:* Any building or structure shall be deemed to be "occupied" if one or more persons actually conducts a lawful business or lawfully resides in the building as the licensed business occupant, or as the legal or equitable owner/occupant(s) or tenant(s) on a permanent, non-transient basis, or any combination of the same.

(4) *Open:* A vacant structure shall be deemed to be "open" if any one or more exterior doors other than a storm door is broken, open, and/or closed but without a properly functioning lock to secure it; if one or more windows is broken or not capable of being locked and secured from intrusion; if any other opening in the structure allows entry into the structure by an unauthorized person; or any combination of the same.

(5) *Owner:* An owner of the freehold of the premises or any lesser estate therein, to the extent permitted by law a mortgagee, a vendee-in-possession, assignee of rents, receiver, executor, trustee, lessee, agent or any other person, firm or corporation that is directly or indirectly in control of a parcel of real property on which a vacant structure or abandoned building is located.

(6) *Vacant structure:* A structure on a parcel of real property which:

(A) for at least 60 days has lacked the habitual presence of human beings who have a legal right to be on the premises, or

(B) at which substantially all lawful business operations or residential occupancy has ceased for at least 60 days, its owner has not resided in it for at least 18 months, and its owner has not resided in another structure located within 300 feet for at least 60 days.

(7) *Actively marketed:* A property is being "actively marketed" when its owner is, in good faith, doing those things and performing those activities standard and effective in the industry necessary to sell or lease a structure, including, but not limited to, using the services of a realtor licensed in the State of West Virginia, or advertising the availability of the structure for sale or lease.

(8) *Building commissioner:* The city's building commissioner, or its designee.

(9) *City collector:* The city's collector, or its designee.

(10) *City manager:* The city's manager, or its designee.

(11) *Vacant property registry:* The property registry created pursuant to this article, specifically by section 14-204(a).

(Bill. No. 7613, 3-17-2014; Bill No. 7830, 8-19-2019; Bill No. 7945, 2-7-2022)

### Sec. 14-203. Applicability, obligation to register, automatic registration, exemptions.

(a) *Applicability and obligation to register.* Except as provided in subsection (c) below, this article is applicable to all vacant structures and their owners. It is the obligation of the owner of any property qualifying as a vacant structure to register the same with the building commissioner in accordance with the provisions of section 14-204. Registration shall be required for all vacant structures, whether vacant and secure, vacant and open or vacant and boarded, and shall be required on or before 30 days after a building qualifies as a vacant structure, subject to the exemptions contained herein. In no instance shall the registration of a vacant structure and the payment of registration fees be construed to exonerate the owner, agent or responsible party for compliance with any other building code or housing code requirement.

(b) *Registration by building commissioner.* When the building commissioner has reason to believe that a structure is a vacant structure and that the owner has failed to register in compliance with this article, the commissioner may post a notice on the subject structure indicating that the building commissioner has reason to believe that the building is a vacant structure

and directing the owner to either (i) register the structure in accordance with the provisions of this article or (ii) provide the building commissioner with evidence demonstrating that building is not a vacant structure as defined by this article. In addition to posting the aforementioned notice on the suspected vacant structure itself, the building commissioner shall, via registered mail or via regular mail if registered mail is unsuccessful, send a copy of the same notice to the record owner of the property according the tax or other public records maintained by the assessor or sheriff of Kanawha County. If, within 30 days of posting and mailing, the owner has neither registered the property in the vacant property registration created by this article nor demonstrated to the satisfaction of the building commissioner that the property is not a vacant structure, then the building commissioner shall add the structure to the vacant property registry using the information of record in the office of the assessor or sheriff of Kanawha County.

(c) *Exemptions.* The following are exempt from the requirements of this article:

(1) Any building owned by city, state, or federal government, or any of their respective agencies or political subdivisions;

(2) A new building under construction or property that is undergoing, in the reasonable discretion of the building commissioner, an active renovation or rehabilitation: provided, that this exemption shall only be available for up to 18 months for each structure otherwise meeting the vacant structure designation, unless the owner provides written justification satisfactory to the building commissioner supporting an extension of the exemption;

(3) Any property being actively marketed; provided, however, this exemption shall only be available for up to six months for each structure otherwise meeting the vacant structure designation, unless owner provides justification satisfactory to the building commissioner supporting an extension of the exemption.

(Bill. No. 7613, 3-17-2014; Bill No. 7830, 8-19-2019; Bill No. 7945, 2-7-2022)

## Sec. 14-204. Registry, registration information, amending information, fees, dedicated account, publication.

(a) *Registry created.* The vacant property registry is hereby created. The building commissioner is hereby charged with creating, compiling, monitoring and enforcing the vacant property registry. The city collector shall aid and assist the building commissioner with the administration and collection of fees and any other matter related to this article deemed necessary or appropriate by the city.

(b) *Registration information.* Owners of a vacant structure shall register the same with the city on a form supplied by the city. The registration form shall require the following information, at a minimum:

(1) The street address of the vacant structure;

(2) The type of vacant structure;

(3) The square footage of each vacant structure;

(4) The name, residence address, telephone number, and e-mail address, mobile telephone number, and facsimile number of all owners of the vacant structure;

(5) The name, address, telephone number, and e-mail address, of the person authorized to make or order repairs or services for the vacant structure, if in violation of city or state codes, if the person is other than the owner;

(6) If an owner resides or is domiciled outside the city, the name, address and telephone number of a person located within the city who is designated to accept all legal notices of fees due or services of process with respect to the vacant structure;

(7) If the owner is a corporation or a limited liability company, the name(s), address(es), and telephone number(s) of an officer of the corporation or limited liability company who is designated to accept all legal notices of fees due or services of process with respect to the vacant structure;

(8) If the owner is an estate, the name, address and telephone number of the executor of the estate;

(9) If the owner is a trust, the name, address and telephone number of the trustee(s) designated to accept all legal notices of fees due or services of process with respect to the vacant structure;

(10) If the owner is a partnership, the names, addresses and telephone number of all partners with an interest of ten percent or greater;

(11) If the owner is any other form of unincorporated association, the names addresses and telephone numbers of all principals with an interest of ten percent or greater;

(12) Proof of a liability insurance policy, if any, in force for the protection of surrounding property owners, so as to ensure that the purposes of this article are met;

(13) The owner's plan for maintenance and repair of the property, including the time within which the owner anticipates completion of all repairs necessary to bring the property into compliance with the City Building Code.

(c) *Amending information.* If the registration information collected in accordance with this section changes or becomes inaccurate during the course of any calendar year, it is the responsibility of the owner, responsible party or agent for the same to contact the building commissioner within 30 days of the occurrence of such change and advise the department of those changes in writing.

(d) *Fees.* There shall be a fee for each vacant structure subject to registration on the vacant property registry. The fees shall be remitted to the city collector as determined by the following:

(1) A $250.00 fee, plus any costs for service of process, for a vacant structure that is placed on the vacant property registry;

(2) A $500.00 fee, plus any costs for service of process, for a vacant structure that is an abandoned building and is placed on the vacant property registry;

(3) A $750.00 fee, plus any costs for service of process, for a vacant structure that is open and is placed on the vacant property registry;

(4) A $1,000.00 fee, plus any costs for service of process, for a vacant structure or abandoned building that is open and has been on the vacant property registry for more than six consecutive full months;

(5) A $1,000.00 fee, plus any costs for service of process, for a vacant structure or abandoned building that is on the vacant property registry for 12 consecutive full months; and

(6) An additional $20.00 fee for each consecutive day that a vacant structure or abandoned building remains on the vacant property registry beyond twelve consecutive months.

(e) *Dedicated account.* All fees collected pursuant to this article shall be deposited into a separate, dedicated account and shall only be used to:

(1) Repair, close or demolish a vacant structure as authorized in W. Va. Code § 8-12-16; or

(2) Improve public safety efforts, especially for police and fire personnel, who most often contend with the dangerous situations manifested in vacant properties; or

(3) Implement, monitor, and administer this article.

(f) *Publication.* The city may, from time to time and in its reasonable discretion, publish or disclose certain information contained in the vacant property registry, including, but not limited to:

(1) General demographic information about vacant structures registered on the vacant property registry;

(2) The address of vacant structures on the vacant property registry;

(3) The owners of each vacant structure;

(4) The amount of time any vacant structure has been on the vacant property registry; and

(5) The amount of any delinquent fees due under this article, or otherwise due city (e.g. refuse or fire fees) for any vacant structure.

(g) *Changes in ownership.* A change in ownership of a vacant structure shall not remove the vacant structure from the vacant properties registry or from the requirements of this article, nor shall it renew the time period for the exemption in subdivision (3), subsection (c) of section 14-203 of this Code. Fees arising under this article shall continue to accrue at the applicable rate until the structure either no longer constitutes a vacant structure or qualifies for an exemption, all transfers of ownership notwithstanding. All fees arising under this article shall run with the property and failure to pay such fees may result in the city filing a lien that attaches upon the property.
(Bill. No. 7613, 3-17-2014; Bill No. 7830, 8-19-2019; Bill No. 7945, 2-7-2022)

**Sec. 14-205. Right of appeal.**

(a) *Request for reconsideration.* The owner shall have the right to request reconsideration by the building commission of (i) the imposition of the registration fees imposed by this article and/or (ii) the designation of a building as a vacant structure by filing an application in writing to the building commissioner no later than 15 calendar days after the date of notification to owner that a property has been placed on the vacant property registry pursuant to section 14-203(b) or that fees are due under this article. On the request for reconsideration, the owner shall bear the burden of providing satisfactory proof of occupancy or that the building in question is not a vacant structure or that the building is exempt from registration.

(b) *Waiver of registration fee.* The owner of a vacant structure may request a waiver of the registration fee by providing the building commissioner said request in writing. The building commissioner may, on a case-by-case basis and for good cause shown, grant a waiver request upon advice and consent of the city manager.

(c) *Building commissioner's determination.* Within 30 days, or as soon thereafter as is practicable, after the Building Commissioner receives an application pursuant to section 14-205(a) or (b) above, the building commissioner will contact the owner and afford them the opportunity to appear in person related to their request for reconsideration or waiver of fee. Within 30 days, or as soon thereafter as is practicable, after consideration of all information provided by owner and upon advice and consent of the city manager, the building commissioner shall grant or deny the request in writing and provide owner with a copy of the decision.

(d) *Appeal of commissioner's decision / review committee*. If the owner filed a request pursuant to section 14-205(a) or (b) and received an unfavorable decision from the building commissioner, the owner may appeal the building commissioner's decision to a review by a committee consisting of the city manager, the city councilperson for the ward in which the structure is located, and an at-large city councilperson designated by the mayor. An owner appealing the decision of the building commissioner shall file a written appeal with the city clerk, indicating the portion of the building commissioner's decision he or she deems inaccurate or incorrect, within 15 days after notice of the building commissioner's decision. As soon as is practicable after receiving the appeal, the review committee shall convene an informal hearing to hear the dispute and consider the owner's and building commissioner's respective positions and arguments. Notice of the informal hearing shall be provided to owner and owner shall be afforded the opportunity to appear in person and be heard on the appeal. As soon as practicable after conclusion of the informal hearing, the review committee shall issue its findings and conclu-

sions in writing either concurring with or rejecting the findings and conclusions of the building commissioner.

(e) Any owner may appeal a decision of the review committee made pursuant to section 14-205(d) above, within thirty (30) days of the issuance of such decision to the Circuit Court of Kanawha County.
(Bill. No. 7613, 3-17-2014)

**Sec. 14-206. Violations and penalties for failure to register.**

The failure or refusal of any owner to register a vacant structure as required by this article, knowingly providing false information or withholding information required to be provided by the registration requirements, or failure to comply with any of the terms of this article shall constitute a misdemeanor offense, punishable upon conviction thereof by a fine in the amount of not less than $100.00 nor more than $1,000 or confinement of up to 30 days, or both, for each violation. It shall be a separate violation for each month that an owner knowingly fails or refuses to register a vacant structure as required by this article.
(Bill. No. 7613, 3-17-2014; Bill No. 7830, 8-19-2019)

**Sec. 14-207. Inspections, monitoring, corrective action.**

(a) At the time of registration, or at any time thereafter, the building commissioner shall determine whether an immediate inspection of a vacant structure is proper to identify any public safety issues needing addressed.

(b) At least annually, the building commissioner shall conduct inspections of structures on the vacant property registry, and, to the extent feasible under the circumstances shall take such reasonable steps to ensure the structure (i) is being kept weather tight and secure from trespassers; (ii) provides for safe entry to police officers and firefighters in times of emergency, (iii) does not impede private and/or public efforts to rehabilitate or maintain surrounding properties; (iv) and does not present otherwise a public hazard. For the purposes of this article an inspection may be, at the discretion of the building commissioner, a visual inspection of the exterior of the vacant structure.

(c) If an internal inspection is deemed necessary by the building commissioner, the owner will be notified of the same and arrangements made for the same. If the owner fails or refuses to consent to and arrange for an inspection, the city may seek an administrative search warrant from a court of competent jurisdiction, which shall include the city's municipal court, to authorize inspection of the premises for the purpose of determining if the vacant structure is safe for entry by fire fighters and police officers in time of emergency, and it does not present a hazard to the public.

(d) The owner(s) shall be notified in writing of any corrective action deemed necessary for life, safety and building code matters by city officials, the applicable code provisions or regulations, and will be afforded a reasonable opportunity to perform any required corrective action.
(Bill. No. 7613, 3-17-2014)

**Sec. 14-208. Non-payment of fees/liens.**

(a) Except for those owners who have properly perfected an appeal pursuant to section 14-205, if an owner fails to pay any amount due under section 14-204, said amount shall constitute a debt due and owing to the city and the city may commence a civil action to collect such unpaid debt.

(b) In lieu of, or in addition to, commencing a civil action as authorized by subsection (a) above, the city collector may, in accordance and conjunction with W. Va. State Code § 8-12-16c(d), file a

lien for unpaid registration fees against the property where the vacant structure is situated. In the event service is not attained by certified mail, alternative means of service may be used consistent with the West Virginia Rules of Civil Procedure for service.
(Bill. No. 7613, 3-17-2014)

**Sec. 14-209. Vacant structure security and maintenance regulations.**

(a) It shall be the responsibility of the owner of a vacant structure's to ensure the following:

(1) Vacant structures shall be secured so as not to be accessible to unauthorized persons. Securing of vacant structures includes, but is not limited to, closing and locking windows, doors, walk through sliding and garage gates, and any other opening that may allow access to the interior of the property and or structures. In the case of broken windows securing means re-glazing or boarding the windows.

(2) The owner shall inspect the property on a regular basis to determine if the structure is in compliance with the requirements of this article and all applicable provisions of the city's building code.

(3) The owner of a vacant structure shall perform or provide for the performance of periodic maintenance duties such as grass cutting or leaf removal on a timely basis.
(Bill. No. 7613, 3-17-2014)

**Sec. 14-210. Relation to other codes and laws.**

It is to be understood that the intent and purpose of this article are separate and distinct from other parts and sections of this City Code and the general laws of the State of West Virginia which may also be applicable. The provisions of this article are applicable to the owners of such vacant structures as set forth herein and are in addition to and not in lieu of any and all other applicable provisions of this City Code.
(Bill. No. 7613, 3-17-2014)

**Sec. 14-211. Severability.**

The provisions of this Article V are severable. If any part of this article is held to be invalid by a court of competent jurisdiction, the remaining provisions of this chapter and of this article shall remain in full force and effect.
(Bill. No. 7613, 3-17-2014)

**Secs. 14-212—14-250. Reserved.**

## ARTICLE VI. ABATEMENT OF UNSAFE, UNSANITARY OR DANGEROUS BUILDINGS

**Sec. 14-251. Purpose and scope.**

(a) This article provides a process for the identification, inspection, correction, and removal of unsafe structures within the city in a manner that provides adequate notice and due process to the owners of such structures while protecting the public from danger due to unsafe or unsanitary conditions.

(b) This article is intended to authorize the city to exercise, to the fullest extent provided by law, the power and authority provided by W. Va. Code § 8-12-16, as it may be amended, subject to the requirements and limitations therein.

(c) The powers and duties granted in this article are in addition to those otherwise granted by law and shall not be construed to limit any other lawful powers of the City of Charleston, including the power of code enforcement officials to interpret and enforce the building code of the City of Charleston, West Virginia.

(d) This article shall be construed liberally to promote the purpose of efficiently abating dangerous conditions that are harmful to the community.
(Bill No. 7767, 11-6-2017)

**Sec. 14-252. Definitions.**

For the purposes of this article, the following words and phrases shall have the meanings respectively ascribed to them as follows:

*Code enforcement agency* means the Building Department of the City of Charleston, a code

enforcement department as defined by Title 87 West Virginia Code of State Rules Section 7-2, as it may be amended.

*Code official* means any person employed by the City of Charleston who has been delegated the authority from the code enforcement agency to conduct property maintenance inspections.

*Owner* or *landowner* means a person who individually or jointly with others:

(1) Has legal title to the property or structure, dwelling, or building, with or without actual possession of the property or structure, dwelling, or building;

(2) Has charge, care or control of the property or structure, dwelling, or building as owner or designated agent of the owner;

(3) Is an executor, administrator, trustee or guardian of the estate of the owner;

(4) Is the designated agent of the owner for the purpose of managing, controlling or collecting rents; or

(5) May lawfully control or direct the management or disposition of the property or structure, dwelling, or building.

*Unsafe, unsanitary, dangerous or detrimental to the public safety or welfare* means:

(1) Any door, aisle, passageway, stairway, exit or other means of egress that does not conform to the approved building or fire code of the City of Charleston as related to the requirements for existing buildings; or

(2) The walking surface of any aisle, passageway, stairway, exit or other means of egress is so warped, worn loose, torn or otherwise unsafe as to not provide safe and adequate means of egress; or

(3) Any portion of a structure, dwelling, or building or appurtenance that has been damaged by fire, earthquake, wind, flood, deterioration, neglect, abandonment, vandalism or by any other cause to an extent that it is likely to partially or completely collapse, or to become detached or dislodged; or

(4) Any portion of a structure or building, or any member, appurtenance or ornamentation on the exterior that is not of sufficient strength or stability, or is not so anchored, attached or fastened in place so as to be capable of resisting natural or artificial loads of one and one-half the original designed value; or

(5) The structure, dwelling, or building, or part of the building or structure, because of dilapidation, deterioration, decay, faulty construction, the removal or movement of some portion of the ground necessary for the support, or for any other reason, is likely to partially or completely collapse, or some portion of the foundation or underpinning of the building or structure is likely to fail or give way; or

(6) The structure, dwelling, or building, or any portion, is clearly unsafe for its use; or

(7) The structure, dwelling, or building is neglected, damaged, dilapidated, unsecured or abandoned so as to become an attractive nuisance to children, becomes a harbor for vagrants, criminals, criminal activity or enables persons to resort to the structure, dwelling, or building for committing a nuisance or an unlawful act; or

(8) Any structure, dwelling, or building constructed, existing or maintained in violation of any specific requirement or prohibition applicable to any structure, dwelling, or building provided by the approved building or fire code of The City of Charleston or of any law or ordinance that presents either a substantial risk of fire, building collapse or any other threat to life and safety; or

(9) A structure, dwelling, or building, used or intended to be used for dwelling purposes, because of inadequate maintenance, dilapidation, decay, contamination by any hazardous substance or material including, but not limited to, substance resulting from the illegal manufacture of drugs, damage,

faulty construction or arrangement, inadequate light, ventilation, mechanical or plumbing system, or otherwise, is determined by the code enforcement agency to be unsanitary, unfit for human habitation or in such a condition that is likely to cause sickness or disease; or

(10) Any structure, dwelling, or building, because of a lack of sufficient or proper fire resistance-rated construction, fire protection systems, electrical system, fuel connections, mechanical system, plumbing system or other cause, is determined by the code official to be a threat to life or health; or

(11) Any portion of a building that remains on a site after the demolition or destruction of the building or structure, or whenever any building or structure is abandoned.

(Bill No. 7767, 11-6-2017)

**Sec. 14-253. Closing and removal of unsafe structures.**

(a) The code enforcement agency may order the repair, alteration, improvement, closing, demolition, or removal of any structure, dwelling, or building that is determined by a code official to be unsafe, unsanitary, dangerous or detrimental to the public safety or welfare in accordance with the procedures set forth in this article.

(b) In order to make a determination regarding the classification of a structure as unsafe, unsanitary, dangerous, or detrimental to the public safety or welfare pursuant to this article, and to determine and enforce the appropriate remedy for any such structure, code officials shall be entitled to make inspections, perform investigations, issue notices, require corrective measures, obtain search warrants from and/or present complaints to the municipal judge, and exercise all other powers and duties authorized by West Virginia Code § 8-12-16, as it may be amended.

(Bill No. 7767, 11-6-2017)

**Sec. 15-254. Inspection.**

For purposes of inspections performed pursuant to this article, the following rules shall apply:

(a) When a code official lawfully enters the premises of the property or the structure, dwelling, or building for investigating or inspecting any structure, dwelling, or building, the investigation shall be conducted in a way that minimizes the inconvenience to the owner or person(s) in possession.

(b) Except in exigent circumstances and as may be permitted by law, the code enforcement agency shall provide reasonable notice of the inspection to the owner and request permission from the owner to enter the structure, dwelling, or building.

(c) If the owner cannot be located after reasonable inquiry by the code enforcement agency, or if the owner refuses entry, the code enforcement agency may obtain an administrative search warrant from either the municipal court or the Kanawha County Magistrate Court. Before issuance of an administrative search warrant, a code enforcement agency official shall be required to make a sworn statement and prima facie case showing that the code enforcement agency was unable to gain access to the structure, dwelling, or building after reasonable and good faith efforts, and that there is a legitimate and substantial safety concern involving the structure, dwelling, or building that supports the requested entry.

(d) If the administrative search warrant is granted by the court, and if the owner can be located by a code official, the code enforcement agency shall provide the owner a copy of the administrative search warrant five days before entering the structure, dwelling, or building. If there is a tenant or other person in possession of the structure who is not the owner, and if such person(s) can be located, the code enforcement agency shall also provide

such person(s) a copy of the administrative search warrant five days before entering the structure, dwelling, or building.

(e) Any entry pursuant to this section shall be made for the sole purpose of inspection of the structure, dwelling, or building for unsafe or unsanitary conditions and not for the purpose of gathering evidence for use in any criminal charge or proceeding unrelated to the unsafe or unsanitary condition of the structure, dwelling, or building.

(Bill No. 7767, 11-6-2017)

**Sec. 14-255. Correction of unsafe conditions.**

Upon a determination by the code enforcement agency that a structure, dwelling, or building is unsafe, unsanitary, dangerous or detrimental to the public safety or welfare, the city may take corrective action by causing it to be vacated, closed, removed, or demolished, either directly or through a third-party agent, in the absence of owner agreement or a court order, provided the following conditions are met:

(a) The code enforcement agency undertakes reasonable efforts to locate and seek agreement from the owner prior to taking the corrective action.

(b) The corrective action may only be taken as to a structure, dwelling, :or building that is either

(1) Defined in section 14-252 (d)(3), (5), or (8); or

(2) Defined in section 14-252 (d)(6), (7), (9), or (11): provided, that the structure, dwelling, or building is vacant, abandoned, or has been lawfully declared unfit for human habitation; and the reasonable estimated cost of repair, rehabilitation, or corrective action exceeds the reasonable estimate of the fair market value of the structure, dwelling, or building.

(c) Prior to undertaking the corrective action, the city will complete the following procedural requirements:

(1) The code enforcement agency shall produce a written notice containing:

a. A description of the property and the structure, dwelling, or building sufficient for identification;

b. The date of the last inspection;

c. The name of the inspector;

d. A reasonable description of the unsafe, unsanitary, dangerous, or detrimental condition(s);

e. A reasonable description of the corrective measures required;

f. The allotted time to correct the substandard condition(s); and

g. A statement of the owner's right to apply to the circuit court for a temporary injunction or other similar relief, restraining action by the enforcement agency.

(2) The notice shall be served on the owner or landowner by conspicuously posting and attaching a copy of the notice to the subject property or structure, dwelling, or building, and by serving the notice on the owner or landowner in the same manner as service of a complaint as set forth in section 14-259(b).

(3) If the code enforcement agency cannot effect personal service on the owner, a code enforcement agency official shall subscribe a written affidavit, to be maintained by the code enforcement agency for a minimum of two years, that demonstrates the structure, dwelling or building falls within one of the categories set forth in section 14-255 (b)(1) or (2), sets forth the basis in reasonable detail including documentation of same, and memorializes the code enforcement agency official's efforts to contact or

get permission for entry and corrective action from the owner; and the code enforcement agency shall publish notice of its intent to enter the property or structure, dwelling, or building for the purpose of demolition or correction, along with the address of the property, the name of the owner(s) and the date of the proposed action, as a Class II legal advertisement, the first of which shall run at least thirty days before the date of the proposed action by the enforcement agency, and the last being no later than twenty days before the date of the proposed action by the enforcement agency.

(4) If there is no response to the notice by the owner or landowner in the time specified in the notice, then the municipality shall have the authority to proceed with correction or demolition of the subject structure, dwelling, or building.

(Bill No. 7767, 11-6-2017)

**Sec. 14-256. Relief from order for corrective action.**

(a) Pursuant to W. Va. Code § 8-12-16, the owner of property subject to corrective action shall be given notice of the right to apply to the Circuit Court of Kanawha County for a temporary injunction or other similar relief restraining correction or demolition by the city. Such notice shall be provided in the written notice produced pursuant to section 14-255(c)(1).

(b) Pursuant to W. Va. Code § 8-12-16, if such an application is made by the owner to the circuit court, a hearing shall be held within twenty days of the application, or as soon as reasonably possible.

(c) Pursuant to W. Va. Code § 8-12-16, continuances of the hearing provided for in this section may be made for cause only. If a continuance is granted upon request by the owner, the owner is required to pay into court, in the form of a bond, any reasonable and necessary costs related to the structure, dwelling, or building likely to be incurred by the municipality during the continuance. This requirement is in addition to any other bond required or authorized by the West Virginia Rules of Civil Procedure or other applicable law.

(d) Pursuant to W. Va. Code § 8-12-16, at the conclusion of a hearing held under this subdivision, if the court finds that the structure, dwelling, or building is unsafe, unsanitary, dangerous, or detrimental to the public safety or welfare, the court shall make and enter an order granting the relief as requested by the city.

(Bill No. 7767, 11-6-2017)

**Sec. 14-257. Owner responsibility for costs.**

(a) The owner of any structure, dwelling, or building under order of the Code Enforcement Agency of the City of Charleston, shall be required to pay for the costs incurred by city for repairing, altering, improving, vacating, closing, removing, or demolishing any structure, dwelling, or building.

(b) In addition to any other rights provided by law, the city may file a lien against the real property in question for an amount that reflects all costs incurred by the city for repairing, altering, improving, vacating, closing, removing, or demolishing any structure, dwelling, or building. Any such lien shall be filed and notices in accordance with applicable West Virginia law and City Code.

(Bill No. 7767, 11-6-2017)

**Sec. 14-258. Civil action for corrective action and recovery of costs.**

(a) In addition to any other rights provided in this article and by law, the city may, in its discretion, institute a civil action in circuit court against the landowner or other responsible party to obtain an order to take corrective action up to and including demolition of any structure, dwelling, or building that is unsafe, unsanitary, dangerous, or detrimental to the public safety or welfare; and to recover all reasonable costs and expenses incurred by the city with respect to the property or structure, dwelling, or building and for reasonable attorney fees and court costs incurred in the prosecution of the action.

(b) No fewer than ten days before instituting a civil action as provided in this section, the City shall send notice to the landowner by certified mail, return receipt requested, advising the landowner of the governing body's intention to institute such action.

(c) The notice shall be sent to the most recent address of the landowner of record in the office of the Kanawha County Assessor and to any other address for the landowner as may exist on record with the city. If, for any reason, such certified mail is returned without evidence of proper receipt, the city shall resend the notice(s) by first class mail, postage prepaid, and shall also post notice on the front door or other conspicuous location on the subject property or structure, dwelling, or building.
(Bill No. 7767, 11-6-2017)

**Sec. 14-259. Notices.**

(a) To the extent not otherwise authorized by state law, all notices of violation or correction for violations that fall within one of the categories defined in section 14-252 (d)(1), (2), (4), or (10) shall be served in accordance with the process set forth in the state building code.

(b) Any violation of this article may be prosecuted by the city consistent with state and local laws. Unless otherwise authorized by state law, prosecution of a violation shall be initiated by a complaint presented to and sworn or affirmed before municipal judge or other municipal official with lawful authority to hear and determine violations of municipal code. Unless otherwise provided by statute, the presentation and oath or affirmation shall be made by a code enforcement official or city attorney showing reason to have reliable information and belief. If from the facts stated in the complaint the municipal judge or other municipal official with lawful authority to hear and determine violations of municipal code finds probable cause, the complaint becomes the charging instrument initiating a criminal proceeding. A complaint lawfully authorized by this subsection along with a summons setting forth the date, time and place of appearance before a municipal judge and or other municipal official with lawful authority to hear and determine violations of municipal code shall be served in accordance with the law of the State of West Virginia concerning the service of process in civil actions, except that personal service of a summons and complaint may be made by a code enforcement agency official. If service is made by certified mail under Rule 4(d)(1)(D) of the West Virginia Rules of Civil Procedure and delivery of the summons and complaint is refused, the code enforcement agency official, promptly upon the receipt of the notice of the refusal, shall mail to the person or entity being noticed, by first class mail, postage prepaid, a copy of the summons and complaint. If the first-class mailing is not returned as undeliverable by the U. S. Postal Service, service of the summons and complaint is presumed to have been effectuated. Upon service of the summons and complaint consistent with this subsection, the violation may be prosecuted consistent with state and local law.
(Bill No. 7767, 11-6-2017)

**Sec. 14-260. Absolute defense.**

It shall be an absolute defense to any civil action by an owner, landowner, or tenant for damages resulting from the closure, demolition, or other corrective action taken by the city under this article that the city followed the procedures set forth herein; provided, that the city acted in good faith, can demonstrate that the structure, dwelling or building falls within one of the categories set forth in section 14-255 (b)(1) or (2), followed the procedures set forth in this article, and had adopted the State Building Code at the time the closure, demolition or other corrective action occurred.
(Bill No. 7767, 11-6-2017)

Chapters 15—17

**RESERVED**

# Chapter 18

# BUSINESSES*

## Article I. In General

Secs. 18-1—18-30. Reserved.

## Article II. Licenses Generally


Sec. 18-31. General business license; license fee.
Sec. 18-32. Separate license required for each fixed place of business and each class of business.
Sec. 18-33. Application for and issuance of license; payment of license tax and filing tax fee; issuance of stamp or other evidence of license for coin-operated device.
Sec. 18-34. False statements prohibited.
Sec. 18-35. Record of licenses issued; destruction of records after five years.
Sec. 18-36. Conditions precedent to doing business.
Sec. 18-37. Licensing not to legalize any act.
Sec. 18-38. Zoning ordinance must be complied with; responsibility of applicants for city licenses.
Sec. 18-39. License a personal privilege.
Sec. 18-40. Effect of change in partners or name.
Sec. 18-41. Expiration date; annual renewal; tax prorated upon start of business; minimum fee.
Sec. 18-42. Display of license.
Sec. 18-43. Duplicate licenses for those lost, misplaced or destroyed.
Sec. 18-44. Percentage penalties when business transacted without a license.
Sec. 18-45. Collection of back taxes.
Sec. 18-46. Collection by action or suit.
Sec. 18-47. Collection by distraint.
Sec. 18-48. Prosecution for violations; recourse of city to seek injunctions.
Sec. 18-49. Suspension and revocation of licenses, public hearings upon appeal from revocation.


Secs. 18-50—18-80. Reserved.

## Article III. Auctioneers


Sec. 18-81. Auctioneers.
Sec. 18-82. Definitions.
Sec. 18-83. Requirements for license; duties of license; revocation or suspension of license.


Secs. 18-84—18-110. Reserved.

---

*__Editor's note—__Bill No. 7571, adopted April 15, 2013, amended former Ch. 18, Arts. II—XXVIII, in its entirety to read as herein set out. Former Ch. 18 pertained to similar subject matter. See the Code Comparative Tables at the end of this volume for a listing of sections from the Code of 1975 and a listing of bills and ordinances from which former Ch. 18 derives.

__Cross references—__Alcoholic beverages, ch. 6; charitable solicitations, ch. 26; community development, ch. 30; consumer protection, ch. 34; emergency services, ch. 46; taxation, ch. 110; business and occupation tax, § 110-31 et seq.; public service or utility business, § 110-55; business of operating amusements, § 110-57; hotel occupancy tax, § 110-221 et seq.; utilities, ch. 118; vehicles for hire, ch. 122; R-O residential-office district, app. B, § 9-1 et seq.; C-4 neighborhood commercial district, app. B, § 10-1 et seq.; C-6 community commercial district, app. B, § 11-1 et seq.; C-10 general commercial district, app. B, § 12-1 et seq.; I-2 light industrial district, app. B, § 13-1 et seq.; I-4 heavy industrial district, app. B, § 14-1 et seq.; CBD central business district, app. B, § 15-2 et seq.

**Article IV. Barbers and Beauticians**

Sec. 18-111. Duty of health commissioner.
Sec. 18-112. License required.
Sec. 18-113. Shops or schools.
Secs. 18-114—18-140. Reserved.

**Article V. Bowling Alleys and Billiard, Pool and Bagatelle Tables**

Sec. 18-141. License fees.
Sec. 18-142. Gambling; intoxicating liquor prohibited.
Sec. 18-143. Minors prohibited.
Secs. 18-144—18-170. Reserved.

**Article VI. Carnivals, Circuses and Shows**

Division 1. Generally

Sec. 18-171. Exempted shows.
Sec. 18-172. Street fairs and carnivals.
Sec. 18-173. Filing with city collector of list of all rides and concessions; bond for municipal taxes.
Secs. 18-174—18-190. Reserved.

Division 2. Licenses

Sec. 18-191. License tax imposed on certain itinerant shows.
Sec. 18-192. Alternative license procedure.
Secs. 18-193—18-230. Reserved.

**Article VII. Coin-Operated Machines and Devices**

Division 1. Generally

Sec. 18-231. Pay telephones and postage stamp vending devices excluded.
Secs. 18-232—18-250. Reserved.

Division 2. License

Sec. 18-251. Application; stamp and owner identification on machine.
Sec. 18-252. Proprietor responsibility; liability; impounding and sale.
Sec. 18-253. Store exemption; evidence.
Sec. 18-254. Special provisions for certain nonprofit organizations.
Secs. 18-255—18-350. Reserved.

**Article VIII. Going Out of Business Sales, Fire Sales and Similar Sales**

Division 1. Generally

Sec. 18-351. Definitions.
Sec. 18-352. Findings of city council.
Sec. 18-353. Opening of a similar business within one year of sale prohibited.
Sec. 18-354. Records.
Secs. 18-355—18-380. Reserved.

Division 2. License

Sec. 18-381. Required; exceptions.

Sec. 18-382. Application requirements.
Sec. 18-383. Investigation of application; grounds for denial of license.
Sec. 18-384. Duration of sale; license fee.
Sec. 18-385. Closing-out business sales at auction.
Sec. 18-386. Revocation of license; grounds.
Sec. 18-387. Notice of denial, refusal or revocation of license; judicial review.
Sec. 18-388. Branch stores and warehouses.
Sec. 18-389. Substitution, addition and commingling of goods voids license; change of time or place of sale; certain purchases prohibited.
Sec. 18-390. Copy of application, inventory and license to be posted; license to be referred to in advertisements.
Secs. 18-391—18-420. Reserved.

**Article IX. Handgun Dealers**

Division 1. Reserved

Secs. 18-421—18-450. Reserved.

Division 2. License

Sec. 18-451. Required.
Sec. 18-452. Application for license.
Sec. 18-453. Annual license for each fiscal year; license fee.
Sec. 18-454. Revocation.
Secs. 18-455—18-490. Reserved.

**Article X. Hawkers and Peddlers**

Sec. 18-491. Definitions.
Sec. 18-492. Exemptions; exemption receipt.
Secs. 18-493—18-520. Reserved.

**Article XI. Home Solicitation Sales**

Sec. 18-521. Definitions.
Sec. 18-522. License for home solicitation sales; registration.
Secs. 18-523—18-550. Reserved.

**Article XII. Hotels, Tourist Homes and Eating Places**

Sec. 18-551. License required; fee.
Sec. 18-552. Hotels and taverns.
Secs. 18-553—18-580. Reserved.

**Article XIII. Insurance Companies and Agents**

Sec. 18-581. License required; fee.
Secs. 18-582—18-610. Reserved.

**Article XIV. Reserved.**

Secs. 18-611—18-660. Reserved.

Division 2. License

Sec. 18-631. Application for license for certain class of sales.

Sec. 18-632. Denial of license; preservation of applications and availability to public; reassessment and appeal.
Sec. 18-633. License fee.
Sec. 18-634. Bond and additional requirements.
Secs. 18-635—18-660. Reserved.

**Article XV. Junk Dealers**

Division 1. Generally

Sec. 18-661. Definitions.
Secs. 18-662—18-680. Reserved.

Division 2. License

Sec. 18-681. Required; resident license.
Sec. 18-682. Officers' or agents' residence.
Sec. 18-683. Certification of agents.
Sec. 18-684. License not transferable; former convictions.
Sec. 18-685. Business not to engage agent ineligible for license.
Secs. 18-686—18-720. Reserved.

**Article XVI. Massage Parlors**

Division 1. Generally

Sec. 18-721. Definitions.
Sec. 18-722. Enforcement.
Sec. 18-723. Inspections generally.
Sec. 18-724. Rules and regulations generally.
Sec. 18-725. Hours of operation.
Secs. 18-726—18-750. Reserved.

Division 2. Permit

Sec. 18-751. Required.
Sec. 18-752. Application.
Sec. 18-753. Annual fee and application.
Sec. 18-754. Investigations prior to issuance.
Sec. 18-755. Display.
Sec. 18-756. Revocation.
Secs. 18-757—18-790. Reserved.

**Article XVII. Parking Lots**

Division 1. Generally

Sec. 18-791. Definitions.
Sec. 18-792. Barriers.
Sec. 18-793. Maintenance and paving.
Sec. 18-794. Buildings.
Sec. 18-795. Entrances and exits.
Sec. 18-796. Fire extinguishers.
Sec. 18-797. Lighting.
Sec. 18-798. Blocking streets, alleys and sidewalks.
Sec. 18-799. Claim checks and signs.
Secs. 18-800—18-820. Reserved.

Division 2. License

Sec. 18-821. Required.
Sec. 18-822. Application for license.
Sec. 18-823. Annual license for each fiscal year; license fee.
Sec. 18-824. Revocation.
Secs. 18-825—18-860. Reserved.

**Article XVIII. Pawnbrokers**

Sec. 18-861. Definitions.
Sec. 18-862. Annual license fee.
Sec. 18-863. Reports.
Secs. 18-864—18-890. Reserved.

**Article XIX. Salvage Yards**

Sec. 18-891. Definitions.
Sec. 18-892. Violations and penalties; injunctive relief to abate nuisances.
Sec. 18-893. Reference to other provisions of this Code.
Sec. 18-894. License required; restrictions as to location; yards existing as of October 2, 1961.
Sec. 18-895. Issuance of license; fee; term; renewal.
Sec. 18-896. Requirements as to fences.
Secs. 18-897—18-930. Reserved.

**Article XX. Secondhand Automotive Accessories and Parts**

Sec. 18-931. License fee; not transferable or divisible.
Sec. 18-932. Record of purchases; exhibiting; exception.
Sec. 18-933. Purchases from or sales to minors.
Sec. 18-934. Records open for inspection.
Secs. 18-935—18-970. Reserved.

**Article XXI. Stores**

Division 1. Generally

Sec. 18-971. Definitions.
Sec. 18-972. Coin-operated devices not considered stores.
Secs. 18-973—18-990. Reserved.

Division 2. License

Sec. 18-991. Store license required.
Sec. 18-992. Exemptions.
Sec. 18-993. Application for license; filing fee.
Sec. 18-994. Return of application for correction; granting and display of license.
Sec. 18-995. Licenses and fees in addition to others.
Sec. 18-996. Expiration and renewal of license.
Sec. 18-997. License not assignable or transferable.
Sec. 18-998. Change of location of store.
Secs. 18-999—18-1030. Reserved.

## Article XXII. Street, Event and Private Property Vendors

Division 1. Generally

Sec. 18-1031. Definitions.
Sec. 18-1032. Rules and regulations under article; designation of approved public rights-of-way.
Sec. 18-1033. Scope of article.
Sec. 18-1034. Reserved.
Sec. 18-1035. Reserved.
Sec. 18-1036. Reserved.
Sec. 18-1037. Vending permit required; application, fees.
Sec. 18-1038. Additional requirements.
Sec. 18-1039. Revocation of street vending permit.
Sec. 18-1040. Request for reconsideration and appeal of revocation of vending permit.
Sec. 18-1041. Compliance with federal, state and local laws and regulations.
Sec. 18-1042. Penalty.
Secs. 18-1043—18-1060. Reserved.

Division 2. Vendor Standards

Sec. 18-1061. Requirements and regulations of vendors.
Secs. 18-1062—18-1080. Reserved.

Division 3. Reserved

Secs. 18-1081—18-1160. Reserved.

## Article XXIII. Tree Services

Sec. 18-1161. Definitions.
Sec. 18-1162. Penalties.
Sec. 18-1163. Permit required.
Sec. 18-1164. Identification card.
Sec. 18-1165. Disposal of material.
Secs. 18-1166—18-1169. Reserved.

## Article XXIV. Residential Rental Properties

Division 1. Residential Rental License

Sec. 18-1170. Purpose and scope.
Sec. 18-1171. Exceptions.
Sec. 18-1172. Definitions.
Sec. 18-1173. Residential rental license required.
Sec. 18-1174. Application requirements for residential rental license.
Sec. 18-1175. Responsible local agent.
Sec. 18-1176. Accurate and complete information.
Sec. 18-1177. Residential rental license term and renewals.
Sec. 18-1178. Change in registration information or transfer of property.
Sec. 18-1179. Revocation of residential rental license.

Division 2. Inspections of Rental Property

Sec. 18-1180. Periodic inspections.
Sec. 18-1181. Other bases for inspections.
Sec. 18-1182. Inspection procedures.
Sec. 18-1183. Notice of violation; corrective action; re-inspection.

Sec. 18-1184. Re-inspection fee.
Sec. 18-1185. Penalties.
Sec. 18-1186. Severability.

## ARTICLE I. IN GENERAL

**Secs. 18-1—18-30. Reserved.**

## ARTICLE II. LICENSES GENERALLY

### Sec. 18-31. General business license; license fee.

(a) *General license required:* No person shall, without a currently valid city license, engage in or prosecute within the city any of the businesses, activities, trades or employments; and the license taxes specified in this chapter are levied, annually unless otherwise provided, on every person engaging in or prosecuting within this city any such businesses, activities, trades or employments. For the purposes of this chapter, business, activities, trades or employments is meant to include all kinds of vocations, occupations, professions, enterprises, establishments, and all other kinds of activities and matters, any of which are conducted for private revenue, profit, or benefit, either directly or indirectly, on any premises in this city or anywhere else within its jurisdiction. Any person engaged in the rental of two or more real property units for profit shall be considered to be engaging in business within the meaning of this chapter. It shall be unlawful for any person, whether directly or indirectly, to commence, conduct, or carry on any business, in the City of Charleston without first having procured a general business license from the city, complying with any and all regulatory ordinances now existing or hereafter to be adopted by said city, or without keeping such license in effect at all times by continued compliance with any and all regulatory ordinances or other law of this city. It shall be unlawful for any person, either directly or indirectly, to continue a business or non-profit enterprise when a license pertaining thereto has been suspended or revoked.

(b) *License fee:* Except where a business license tax has been established elsewhere in Chapter 18 herein, licensees shall be issued a general business license for a fee of $20.00 per year, plus any applicable additional filing fees, license fees or service fees. Nothing in the section shall be interpreted to exempt any licensee from additional requirements set forth herein that may be applicable for specific types of businesses.
(Bill No. 7571, 4-15-2013; Bill No. 7576, 5-20-2013)

### Sec. 18-32. Separate license required for each fixed place of business and each class of business.

Except as may be provided otherwise in this Code or other ordinance, any person who, at more than one fixed place of business within the city, engages in or prosecutes any business, activity, trade or employment for which a city license is required, or who within the city engages in or prosecutes more than one type of business, activity, trade or employment for which a city license is required shall obtain a separate license and pay the prescribed tax or fee for each such fixed place of business and for each such business, activity, trade or employment.
(Bill No. 7571, 4-15-2013)

### Sec. 18-33. Application for and issuance of license; payment of license tax and filing tax fee; issuance of stamp or other evidence of license for coin-operated device.

(a) The licenses provided for in this chapter shall be issued in the form of a certificate by the city collector to any person making proper application on forms to be prescribed and furnished by the city collector, and tendering the license tax and a filing tax fee of $0.50 for each license certificate requested. In addition to the required license certificate, there shall be required and issued at the time of the issuance to the person owning coin-operated devices a decalcomania stamp or other evidence of such license certificate, at a cost not to exceed $0.50 each, for each coin-operated device licensed by the certificate.

(b) The city collector shall collect in full the proper taxes and fees and determine to his satisfaction that all of the conditions precedent to the granting of such license have been fulfilled by the applicant before issuing a certificate of license.
(Bill No. 7571, 4-15-2013)

**Sec. 18-34. False statements prohibited.**

It shall be unlawful for any person to knowingly make any false statement in any application for a city license, or in any tax return, report or other statement relating to any activity licensed by the city and which is required to be made to any city officer or agency.
(Bill No. 7571, 4-15-2013)

**Sec. 18-35. Record of licenses issued; destruction of records after five years.**

The city collector shall maintain on file a record of each license issued, which shall set forth the name and business address of the licensee, the date of issuance and the length of the term for which issued, the type of license, the amount of license tax paid, and the number of the license. Such records may be destroyed at the end of five years following their expiration when no renewal has been issued unless there is good cause for retention.
(Bill No. 7571, 4-15-2013)

**Sec. 18-36. Conditions precedent to doing business.**

Payment in full of the proper tax and fee as specified in this chapter, the issuance of a certificate of license under the provisions of section 18-33, the fulfillment of all terms and conditions of such grant and the payment of all delinquent taxes and fees or any interest or penalty due and owed the city shall be conditions precedent to the transaction of any business, activity, trade or employment for which a license is required by this chapter.
(Bill No. 7571, 4-15-2013)

**Sec. 18-37. Licensing not to legalize any act.**

Nothing in this chapter and no payment of any license tax or the issuance of any certificate of license under the provisions of this chapter shall be deemed to legalize any act which otherwise may be in violation of law, or to exempt any person from any penalty prescribed for such violation.
(Bill No. 7571, 4-15-2013)

**Sec. 18-38. Zoning ordinance must be complied with; responsibility of applicants for city licenses.**

No payment of a license tax or the issuance of any certificate of license under the provisions of this chapter shall be deemed to validate the conduct of any business, activity, trade or employment at any address within the city at which such business, activity, trade or employment is prohibited or restricted under any provision of the zoning ordinance (appendix B to this Code) or any other city ordinance, notwithstanding that the certificate of license may purport to license such business, activity, trade or employment at such specific address; and it shall be the responsibility of each applicant for a city license to first ascertain that the address at which he proposes to engage in or prosecute the business, activity, trade or employment is one at which such business, activity, trade or employment is permitted by the zoning ordinance and all other ordinances of the city.
(Bill No. 7571, 4-15-2013)

**Sec. 18-39. License a personal privilege.**

Every license issued under the provisions of this chapter shall confer a personal privilege only to transact the business, activity, trade or employment which may be the subject of the license and shall not be exercised except by the person holding the license and shall not be assignable.
(Bill No. 7571, 4-15-2013)

**Sec. 18-40. Effect of change in partners or name.**

No change in the name of the firm, nor the taking in of one or more new partners, nor the withdrawal of one or more members of the firm, so long as at least one member remains the same, shall be considered as terminating the privileges of any license granted to such partners or firm.
(Bill No. 7571, 4-15-2013)

**Sec. 18-41. Expiration date; annual renewal; tax prorated upon start of business; minimum fee.**

(a) Licenses shall expire at midnight on June 30 subsequent to the date of issuance and shall be renewable annually; except such licenses for which

the tax or fee is by the day, week, month or other period less than a year and except as may be provided otherwise by this Code or other ordinance.

(b) The license tax or fee for an initial license upon the commencement of business shall be the full amount of the annual tax unless proration is authorized.

(c) The city collector shall refuse to renew an annual license on any business which has failed to file any tax return or permit application as required by any provision of this chapter or which has failed to pay any delinquent taxes or fees or any interest or penalty due and owed the city by reason of operating a business within the city's jurisdiction. Any business which has been adversely affected by an order or decision of the city collector or his representative relating to the granting of a renewal certificate may appeal such determination by requesting a hearing from the city collector or his examiner within 30 days from receipt of such order or decision.

(d) The city collector shall issue a ruling within a reasonable time from date of the hearing. An appeal may be taken by the business to the circuit court of the county within 30 days after he shall have received notice from the city collector of his determination as provided in this section.
(Bill No. 7571, 4-15-2013)

**Sec. 18-42. Display of license.**

Each person to whom a city license has been issued shall keep such license conspicuously posted upon or within the premises to which such license relates. Each licensee having no fixed place of business shall carry his license upon his person at all times while engaging in the licensed business or any transaction incidental to such business, and shall display such license upon request of any person with whom he is transacting business or any city official.
(Bill No. 7571, 4-15-2013)

**Sec. 18-43. Duplicate licenses for those lost, misplaced or destroyed.**

Any person losing, misplacing or destroying any license issued under the provisions of this chapter may, by application to the city collector, procure a duplicate of such license, upon satisfactory proof of the loss of the original.
(Bill No. 7571, 4-15-2013)

**Sec. 18-44. Percentage penalties when business transacted without a license.**

If any person engages in or prosecutes any business, activity, trade or employment without obtaining a license before commencing the business, activity, trade or employment or continues the business, activity, trade or employment after the termination of the effective period of any such license, there shall be added to the amount of the license tax required by the provisions of this chapter a penalty equal to five percent of the amount of such license tax if the failure to pay the required license tax is for not more than one month, with an additional five percent for each additional month or fraction during which failure continues, such penalty not to exceed 50 percent of the required license tax. Such penalties shall be waived if the failure to pay the required license tax was due to reasonable cause and not due to willful neglect.
(Bill No. 7571, 4-15-2013)

**Sec. 18-45. Collection of back taxes.**

Any person engaging in or prosecuting any business, activity, trade or employment contrary to the provisions of this chapter, whether without obtaining a license before commencing the business, activity, trade or employment, or by continuing the business, activity, trade or employment after the termination of the effective period of any such license, shall, in addition to all other penalties provided for in this chapter, be liable to the payment of all back taxes and penalties for a period not exceeding five years.
(Bill No. 7571, 4-15-2013)

**Sec. 18-46. Collection by action or suit.**

The city collector may collect any license tax and penalty unpaid under the provisions of this chapter by civil action or other appropriate proceeding, including suit in the court of any justice of the peace.
(Bill No. 7571, 4-15-2013)

**Sec. 18-47. Collection by distraint.**

The city collector or his agents may distrain upon any personal property, including intangibles, of any person delinquent in the payment of taxes and penalties accrued and unpaid under the provisions of this chapter.
(Bill No. 7571, 4-15-2013)

**Sec. 18-48. Prosecution for violations; recourse of city to seek injunctions.**

If any person engages in or prosecutes any business, activity, trade or employment contrary to any of the provisions of this Code, whether without first obtaining a license or by continuing the business, activity, trade or employment after the termination of the effective period of such license, or by any violation of the terms and conditions of such license, he shall be subject to immediate prosecution in the municipal court; and, in addition, the city solicitor may, in the name of the city, seek such injunctive relief as may be appropriate in any court of competent jurisdiction.
(Bill No. 7571, 4-15-2013)

**Sec. 18-49. Suspension and revocation of licenses, public hearings upon appeal from revocation.**

The city collector, upon reasonable notice to the licensee, may summarily revoke any license issued by him pursuant to the provisions of this Code for any reason which would have been grounds for denial of such license when first issued, for violation of any term or condition of such license; for violation of any pertinent provision of state law, this Code or other ordinance; or for the perpetration or attempted perpetration of fraud, malpractice or malfeasance by the licensee, without prejudice to prosecution of such licensee by the city. Any person having an interest in any license so revoked and who feels aggrieved by such action may request the city collector to further investigate the grounds for revocation and to reconsider his action; and if the collector accedes to such request, he may suspend or reinstate the license pending his final decision. If the city collector refuses to accede to such request or if, upon reconsideration, he affirms his revocation of the license, the party so aggrieved may appeal to the city council, which shall, without delay, afford such person a public hearing at which he may appear in person or by counsel, and may have the attendance of witnesses, books and papers in his behalf, and may testify in person. The decision of the city council following such hearing shall be final, subject only to such judicial review as may be provided by law.
(Bill No. 7571, 4-15-2013)

**Secs. 18-50—18-80. Reserved.**

## ARTICLE III. AUCTIONEERS

**Sec. 18-81. Auctioneers.**

Each auctioneer and apprentice auctioneer working in his/her profession in the city, before going to work in his/her profession or engaging in such businesses shall obtain from the city, following the process set forth in this article, a General Business License to engage in the business. Said license will expire on the 30th day of June each year but shall be renewable upon the payment of the annual license fee so long as all other requirements of this article are complied with.
(Bill No. 7571, 4-15-2013)

**Sec. 18-82. Definitions.**

As used in this article: "Auctioneer" means and includes a person who sells goods or real estate at public auction for another on commission or for other compensation. "Auctioneer" does not include:

(1) Persons conducting sales at auctions conducted by or under the direction or pursuant to any sale required by law to be at auction;

(2) The owner of any real or personal property when personally sold at auction by such owner and such owner has not personally conducted an auction within the previous 12-month period;

(3) Persons conducting sales pursuant to a deed of trust or other security agreement;

(4) Fiduciaries of estates when selling real or personal property of such estate; and

(5) Persons conducting sales on behalf of charitable, religious, fraternal or other nonprofit organizations.

*Auction house* means a place of business where goods, wares, merchandise, or personal property of any kind are regularly sold or disposed of for value by public auction.

*Public auction* means any public sale of real or personal property where offers or bids are made by prospective purchasers and the property sold to the highest bidder.
(Bill No. 7571, 4-15-2013)

**Sec. 18-83. Requirements for license; duties of license; revocation or suspension of license.**

(a) Each person seeking a license hereunder after the effective date of this section shall submit satisfactory evidence to the city collector showing:

(1) That he/she has successfully completed the licensing requirements of the W. Va. Code, art. 19-2C, and has obtained a license from the State of West Virginia; (Department of Agriculture;).

(2) All other information required by the city collector.

(b) Each licensee shall promptly produce for inspection such license at all sales conducted by or participated in by such licensee when requested to do so by any person and shall keep complete and accurate records of all transactions engaged in for a period of twelve months which records shall be open to inspection by the city collector of his/her authorized representative.

(c) The city collector may, by order, suspend or revoke any license hereunder for any violation of this article or for any of the following reasons:

(1) Obtaining a license through false or fraudulent representation;

(2) Making any substantial misrepresentation in any application for an auctioneer's license;

(3) Engaging in a continued and flagrant course of misrepresentation or for making false promises through an agent, advertisement or otherwise;

(4) Failing to account for or remit within a reasonable time any money belonging to others that comes into his possession;

(5) Being convicted in any court of competent jurisdiction in this state or any other state of a criminal offense involving moral turpitude or a felony for failing to notify the city of such conviction within fifteen days of conviction;

(6) Engaging in any conduct of an auctioneer which demonstrates dishonesty or incompetency;

(7) Engaging in any conduct that constitutes fraudulent or dishonest dealing;

(8) Acting as an attorney for a client;

(9) Failing to satisfy tax and other obligations imposed by the city; and

(10) Upon the revocation of a license granted by the commissioner of agriculture of the state.
(Bill No. 7571, 4-15-2013)

**Secs. 18-84—18-110. Reserved.**

## ARTICLE IV. BARBERS AND BEAUTICIANS

**Sec. 18-111. Duty of health commissioner.**

It shall be the duty of the health commissioner to promulgate and proclaim such rules and regulations as will effectively implement the provisions of this article.
(Bill No. 7571, 4-15-2013)

**Sec. 18-112. License required.**

Each beautician or barber and apprentice or student beautician or barber, working at his profession in the city, before going to work at his profession or engaging in such businesses, shall obtain from the city a license to engage in the business, to expire on June 30 of each year. The

applicant shall pay to the city collector the sum of $2.00, which is to be turned into the city treasury. The applicant shall keep posted in a conspicuous place in his booth or near his chair or place of work his license certificate.
(Bill No. 7571, 4-15-2013)

**Sec. 18-113. Shops or schools.**

(a) It shall be unlawful for any beauty shop, barbershop or beauty or barber school to open for business without first obtaining from the city collector a license, which may be transferred.

(b) The license fee for beauty shops and barbershops shall be $20.00 for each shop, and the fee for schools of beauty culture or barbering shall be $20.00 for each such school.

(c) All beauty shops and barbershops and schools of beauty culture and barbering actively engaged in their respective field on November 6, 1938, are exempt from the provisions of subsection (b) of this section provided application was made within 60 days from November 6, 1938.

(d) All license and registration fees provided for in this section shall expire on June 30 of each year.
(Bill No. 7571, 4-15-2013; Bill No. 7576, 5-20-2013)

**Secs. 18-114—18-140. Reserved.**

## ARTICLE V. BOWLING ALLEYS AND BILLIARD, POOL AND BAGATELLE TABLES

**Sec. 18-141. License fees.**

The annual license fee to keep or maintain a bowling alley, a billiard, pool or bagatelle table, or table of like kind, for public use, where any charge is made for its use, shall be $20.00; but if more than one of such alleys or tables are kept or maintained in the same building by the same person, the fee shall be $20.00 for the first one and $15.00 for each additional one.
(Bill No. 7571, 4-15-2013; Bill No. 7576, 5-20-2013)

**Sec. 18-142. Gambling; intoxicating liquor prohibited.**

A licensee under this article, his agents or employees, shall not permit any person in any manner to bet or wager anything of value upon any game played upon such alleys or tables. Such licensee, his agents or employees, shall not permit anyone to bring any intoxicating liquors of any kind into such building or other place where such alleys or tables are located.
(Bill No. 7571, 4-15-2013)

**Sec. 18-143. Minors prohibited.**

Persons keeping or maintaining billiard, pool or bagatelle tables, or other tables of like kind, their agents or employees, shall not permit any person under the age of 18 years to play at such tables and shall not permit any such person under the age of 18 years to remain or loiter, whether playing at such tables or not, in the room where such tables are located.
(Bill No. 7571, 4-15-2013)

**Secs. 18-144—18-170. Reserved.**

## ARTICLE VI. CARNIVALS, CIRCUSES AND SHOWS

### DIVISION 1. GENERALLY

**Sec. 18-171. Exempted shows.**

The provisions of this article shall not apply to any educational, literary, dramatic, musical or benevolent society, or volunteer fire company, not conducted for private profit, where such exhibitions are confined to the county, unless professional or paid talent, other than a director, is employed in such exhibitions.
(Bill No. 7571, 4-15-2013)

**Sec. 18-172. Street fairs and carnivals.**

It shall be unlawful for any person to exhibit in the city any unlicensed street fair, carnival or like show. Any traveling or temporary exhibition or show which is conducted for more than one day, including a merry-go-round, roller coaster, shooting gallery, cane rack, doll rack, knife rack or

striking machine, or human laundry device, or devices of like kind or character, shall be deemed a carnival within the meaning of this section.
(Bill No. 7571, 4-15-2013)

**Sec. 18-173. Filing with city collector of list of all rides and concessions; bond for municipal taxes.**

The proprietor, professional director, manager, owner of the rides, or other person who owns the predominant percentage of such rides shall be responsible for the purchase and display of all applicable licenses provided for in this article. Such person shall furnish to the city collector's office prior to the first performance at any location a list of the rides, concessions and other attractions to be displayed along with a statement indicating the duration of the performance in the city. In addition, such person shall, prior to the first performance at any location, post a $5,000.00 cash bond or a $5,000.00 surety bond, the sufficiency of such surety to be solely in the discretion of the city collector or his authorized representative as surety for all municipal taxes. If such person has not made an accounting with the city collector's office within five days after the last performance as indicated in the document filed with the city collector, the city may elect to forfeit the bond under the terms and conditions of the bond without further notice to the principal on the bond.
(Bill No. 7571, 4-15-2013)

**Secs. 18-174—18-190. Reserved.**

DIVISION 2. LICENSES

**Sec. 18-191. License tax imposed on certain itinerant shows.**

The license tax to exhibit a circus or menagerie, a circus and menagerie combined, wild west show, or other itinerant show not exhibited in a theater, opera house or other permanent place for public shows, shall be based upon the number of railroad cars or motor trucks used to transport the property or equipment of such shows, but not including railroad cars or motor trucks used to transport the personnel. If railroad cars are used, the fee shall be $4.00 for each car for each day on which any performance is given. If motor trucks are used, the fee shall be $3.00 for each truck for each day on which any performance is given.
(Bill No. 7571, 4-15-2013)

**Sec. 18-192. Alternative license procedure.**

In lieu of the licensing procedure and the fees established in sections 18-191, an all-inclusive license may be obtained by the licensee, at his option, at a fee of $30.00 per day for each location in the city in which the circus or menagerie, a circus and menagerie combined, wild west show, or other itinerant show is exhibited.
(Bill No. 7571, 4-15-2013)

**Secs. 18-193—18-230. Reserved.**

## ARTICLE VII. COIN-OPERATED MACHINES AND DEVICES

DIVISION 1. GENERALLY

**Sec. 18-231. Pay telephones and postage stamp vending devices excluded.**

The term "coin-operated machine or device" when used in this article shall not be deemed to mean or include any pay telephone or postage stamp vending machine operated on the coin-in-the-slot principle.
(Bill No. 7571, 4-15-2013)

**Secs. 18-232—18-250. Reserved.**

DIVISION 2. LICENSE

**Sec. 18-251. Application; stamp and owner identification on machine.**

Application for the licenses required in this division shall contain the number of such machines or devices to be kept or maintained by the licensee within this city during the ensuing license year. One license certificate shall be issued to each person keeping or maintaining such machines or devices as aforesaid, but the city collector shall issue to any such licensee a decalcomania stamp or other evidence of license for each

such machine or device, which decalcomania stamp or other evidence of license shall be securely attached to the side or front of each such machine or device properly protected and plainly visible. Every such machine or device shall also bear on the side or front so as to be plainly visible the name and address of the person keeping or maintaining such machine or device.
(Bill No. 7571, 4-15-2013)

**Sec. 18-252. Proprietor responsibility; liability; impounding and sale.**

(a) The proprietor or owner of the business conducted in the place where a machine regulated in this article is kept or maintained is charged with the responsibility of satisfying himself that such decalcomania stamp or other evidence of license is so attached before permitting its installation in his place of business; and if the owner of any coin-operated machine or device refuses, neglects or fails to pay the license fee due upon any such machine or device, the proprietor or owner of the business conducted in the place where such machine is installed, operated or maintained shall be liable for the payment of such license fee.

(b) Upon the refusal or failure of the proprietor or owner to pay such fee, the city collector or his agents may take such machine or device into possession and deliver it to the chief of police. The chief of police on his own initiative, or upon order or direction of the city collector or his agents, may take such machine or device into possession. In either event, the machine or device shall be impounded until such license fee is paid.

(c) If the license fee and penalties are not paid to the city collector within ten days after the date of such impounding, the city collector shall sell such machine or device in the manner provided by law for the sale of personal property for taxes, and from the proceeds shall discharge and pay the license fee due on such machine or device; and his costs, including cost of impounding, storage, penalties and other fees due the city and the balance, if any, shall be forfeited to the city.
(Bill No. 7571, 4-15-2013)

**Sec. 18-253. Store exemption; evidence.**

(a) Except where the principal business of the operation of the store is the operation of such machines or devices, no license fee shall be required of persons keeping or maintaining such machines or devices owned by them in their own licensed stores.

(b) Any person exempt from such license shall obtain from the city collector a license receipt, decalcomania stamp, or other evidence of exemption at a cost not to exceed $0.50 each, showing that he is so exempt, which shall be effective for the period as provided for annual licenses in this article; but to obtain such license receipt or other evidence of exemption, he shall make an affidavit and produce such other evidence as to the fact entitling him to such exemption as the city collector, in his discretion, may require, which shall be on a form to be prescribed by the city collector.
(Bill No. 7571, 4-15-2013)

**Sec. 18-254. Special provisions for certain nonprofit organizations.**

(a) A $20.00 license fee shall be required of any person keeping or maintaining within the city penny-coin-in-the-slot machines or devices, which are not gambling devices under the laws of this state, if the owner, operator or sponsor of such machines or devices attaches to his application upon making application for such license the affidavit of the president or other chief official of a corporation or association organized and existing under the laws of the state for benevolent, civic, educational, eleemosynary or philanthropic purposes, stating that:

(1) Not less than 20 percent of the gross receipts of such automatic machines or devices are payable to such association or corporation;

(2) The gross receipts paid to such association or corporation shall be used solely for benevolent, civic, educational, eleemosynary and philanthropic purposes; and

(3) The execution of the affidavit has been by a duly constituted meeting of the trustees, director or members of such association or corporation.

(b) Upon the issuance of a license for which the $20.00 fee shall be charged under subsection (a) of this section, a decalcomania stamp shall be issued for each machine for which such license is issued showing such exemption.
(Bill No. 7571, 4-15-2013; Bill No. 7576, 5-20-2013)

**Secs. 18-255—18-350. Reserved.**

## ARTICLE VIII. GOING OUT OF BUSINESS SALES, FIRE SALES AND SIMILAR SALES

### DIVISION 1. GENERALLY

**Sec. 18-351. Definitions.**

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

*Closing-out sale* includes but is not limited to all sales advertised, represented or held forth under the designation of "quitting business," "going out of business," "discontinuance of business," "selling out," "liquidation," "lost our lease," "must vacate," "forced out," "removal," "branch store-discontinuance sale," "building coming down," "end," "final days," "last days," "lease expires," "we give up sale," "we quit sale," "warehouse closing sale," "reorganization sale" and any other advertising or designation by any other expression or characterization similar to any of the foregoing and giving notice to the public that the sale will precede the abandonment of a business location.

*Defunct business sale* includes but is not limited to all sales advertised, represented or held forth under the designation of "adjuster's sale," "administrator's sale," "assignee's sale," "bankrupt sale," "bankrupt stock sale," "benefit of administrator's sale," "benefit of creditor's sale," "benefit of trustee's sale," "creditor's committee sale," "creditor's sale," "executor's sale," "insolvent sale," "mortgage sale," "receiver's sale," "trustee's sale" and any other advertising or designation by any other expression or characterization similar to any of the foregoing and conveying the same meaning or giving notice to the public of a sale resulting from death, business failure or other adversity.

*Sale of goods damaged by fire, smoke or water* includes but is not limited to all sales advertised, represented or held forth under the designation of "fire sale," "smoke damage sale," "water damage sale," "flood damage sale," "insurance sale" and any other advertising or designation by any other expression or characterization similar to any of the foregoing and giving notice to the public that the goods, wares or merchandise offered for sale have been damaged.

*Unusual purchase or addition* means any purchase of goods, wares or merchandise during the 90 days preceding the application for a license the total value of which is at least 25 percent greater than purchases made by the applicant for a like 90-day period during any one of three years next immediately preceding the year in which the application is made or his peak purchases for any 90-day period if he has been in business for less than three years.
(Bill No. 7571, 4-15-2013)

**Sec. 18-352. Findings of city council.**

The city council finds and declares that certain sales of goods, defined in this chapter as "closing-out sales," "sales of goods damaged by fire, smoke or water" or "defunct business sales" have been advertised and conducted in such manner as to mislead and defraud the public or otherwise harm the public and that such sales should be licensed and regulated to prevent misrepresentation and fraud and to protect and promote the public welfare.
(Bill No. 7571, 4-15-2013)

**Sec. 18-353. Opening of a similar business within one year of sale prohibited.**

Opening of a business similar to the one for which the sale licensed pursuant to this article was conducted except the licensed sale of goods damaged by fire, smoke or water by the person, partner of a partnership, officer of an association, or principal stockholder of a corporation who or which conducted the sale upon the same premises

within one year of the termination of the sale shall constitute a violation of this article. Every day in which business is conducted within the prohibited period of one year shall constitute a separate violation of this article.
(Bill No. 7571, 4-15-2013)

**Sec. 18-354. Records.**

(a) Suitable books and records concerning any sale under this article shall be kept by the licensee for the duration of the licensed sale and one year thereafter and shall be open for inspection by the city collector or his duly authorized representative.

(b) Upon the termination of a sale licensed under this article, the applicant shall within 30 days of such termination file a statement with the recorder stating:

(1) The total retail value of the goods, wares or merchandise not disposed of during the sale; and

(2) Their ultimate disposition and if transferred to another, the name and address of the transferee.

(Bill No. 7571, 4-15-2013)

**Secs. 18-355—18-380. Reserved.**

DIVISION 2. LICENSE

**Sec. 18-381. Required; exceptions.**

(a) It shall be unlawful for any person in this city to advertise or conduct any sale of any goods, wares or merchandise which is a closing-out sale, a sale of goods damaged by fire, smoke or water, or a defunct business sale unless a license is first obtained to conduct such a sale from the city collector as provided in this article.

(b) This article, however, shall not be construed to apply to or affect the following persons:

(1) Persons acting pursuant to an order or process of a court of competent jurisdiction.

(2) Persons who are required to file an accounting with a court of competent jurisdiction.

(3) Persons acting in accordance with their powers and duties as public officers such as sheriffs, constables, marshals and city police officers.

(4) Any publisher or employee of a newspaper or magazine or any operator or employee of a radio or television broadcasting station who publishes or broadcasts any such advertisement in good faith without knowledge of its false, deceptive and misleading character or without knowledge that the provisions of this article are not being complied with.

(5) Persons conducting sales by and on behalf of licensed insurers.

(Bill No. 7571, 4-15-2013)

**Sec. 18-382. Application requirements.**

(a) Any person desiring to conduct a sale regulated by this article shall make a written application under oath to the city collector. If the application is for a closing-out sale or a defunct business sale, it shall be filed at least ten days prior to the date on which such sale is to commence. If the application is for a sale of goods damaged by fire, smoke or water, it may be made at any time prior to the date on which such sale is to commence.

(b) All applications for a licensed sale regulated by this article shall set forth the following information:

(1) The name and address of the applicant, who must be the true owner of the goods, wares or merchandise to be sold, and if the applicant is a partnership, the names and addresses of all partners, or if the applicant is a corporation or association, the date and place of incorporation or organization, the address of the principal office within the state and its office in this city and the names and addresses of all the officers of the applicant.

(2) The name and address of the person who will be in charge of and responsible for the conduct of such sale.

(3) The exact address of the place at which the proposed sale is to be conducted and the length of time the applicant has been engaged in business at such location.

(4) The date on which it is proposed to begin the sale.

(5) The nature of the occupancy where such sale is to be held whether by lease or otherwise and the effective date of termination of such occupancy.

(6) The reason for the urgent and expeditious disposal of the goods, wares or merchandise to be offered at such sale.

(7) A statement of the descriptive name of the sale and the reasons why the name is truthfully descriptive of the sale.

(8) A statement that the business is to be terminated permanently or reopened at another location, the location of the premises at which the business is to be moved, if the applicant intends to resume the operation of the business upon the termination of the sale, and the name or designation under which such business is to be resumed.

(9) A full, complete, detailed and itemized inventory of the goods, wares and merchandise to be offered at such sale as disclosed by applicant's records, which inventory shall:

a. Itemize the goods to be offered for sale and contain sufficient information concerning each item, including quantity, make, brand name, model and manufacturer's number, if any, to clearly identify it.

b. List separately any goods to be offered for sale which were purchased and received during a 90-day period immediately prior to the date of making application for the license.

c. The total retail value of the inventory of goods, wares and merchandise to be offered at such sale based on the inventory used for applicant's most recent federal income tax return adjusted for sales and purchases.

d. If the application is for a license to conduct a sale of goods damaged by fire, smoke or water and the applicant was not the owner at the time when the goods, wares and merchandise to be offered at the contemplated sale were damaged, he shall attach to the application certified copies of the bill of sale and all other documents connected with such transfer obtained by him from the previous owner of such goods, wares and merchandise.

e. If the application is for a license to conduct a defunct business sale and the applicant was not the owner of the goods, wares and merchandise to be offered at the contemplated sale at the time of occurrence of the circumstances warranting the termination of such business, he shall attach to the application certified copies of the bill of sale and the official appraisal made by the trustee, receiver, assignee for benefit of creditor, referee in bankruptcy or the personal representative of a decedent.

(10) A statement that no goods will be added to the inventory after the application is made.

(11) A statement that all goods included in such inventory have been purchased by the applicant for resale on bona fide orders without cancellation privileges and that such inventory comprises no goods purchased on consignment.

(12) A statement that no merchandise listed in the inventory has been the subject of a licensed sale conducted within one year prior to the date of the application unless such merchandise was damaged by fire, smoke or water while in the possession of the applicant.

(Bill No. 7571, 4-15-2013)

**Sec. 18-383. Investigation of application; grounds for denial of license.**

Upon receipt of the application, the city collector may, in his discretion, make or cause to be made an examination or order an investigation of the applicant and all the facts contained in the application and inventory in relation to the proposed sale. A license shall be denied or refused if any one or more of the following facts or circumstances are found by him to exist:

(1) That the applicant has not been the owner of the business advertised or described in the application for a license under this division for a period of at least three months prior to the date of the application or, if the applicant is a partnership, corporation or association, controlling interest in the corporation or association was transferred within six months prior to the date of the application for a license under this division except:

a. Where the application is for a license for a sale of goods damaged by fire, smoke or water or a defunct business sale and the inventory listed in the application contains only those goods, wares or merchandise which were on the premises at the time of the occurrence of the circumstances warranting the granting of a license under this division.

b. Upon the death of a person doing business in this city, his heirs, distributees, devisees, legatees or their successors and assigns shall have the right to apply at any time for a license under this division.

c. Where a business is required or compelled to be discontinued because the premises whereupon it is being conducted has been condemned, taken for purposes of urban renewal or development, or because the premises must be vacated because of legal or judicial proceedings.

(2) That in the case of a closing-out sale, the applicant either as owner, partner, member of an association, or principal stockholder of a corporation was granted a prior license under this division within one year preceding the date of the filing of the application.

(3) That the inventory contains goods, wares or merchandise not purchased by the applicant for resale on bona fide orders without cancellation privileges.

(4) That the inventory contains goods, wares or merchandise purchased by the applicant on consignment except if the consigned goods, wares or merchandise have been damaged while in the consignee's possession.

(5) That the applicant except in the case of an application for a license to conduct a sale of goods damaged by fire, smoke or water or a defunct business sale either as owner, partner, officer of an association, or principal stockholder of a corporation was granted a prior license hereunder within one year preceding the date of the filing of the application at the particular location for which the license is sought or within one year prior to the date of filing of the application has conducted a sale in connection with which he advertised or represented that the entire business conducted at the particular location for which the license is sought was to be closed out or terminated.

(6) That the applicant has within one year, prior to the filing of the application, been convicted of a violation of this article or a violation of W. Va. Code article 11B of chapter 47 (W. Va. Code § 47-11B-1 et seq.).

(7) That the goods, wares or merchandise as described in the inventory were transferred or assigned to the applicant prior to the date of the filing of the application and that such transfer or assignment was not made for a valuable and adequate consideration.

(8) That the inventory contains goods, wares or merchandise purchased by the applicant or added to his stock in contempla-

tion of such sale and for the purpose of selling the same at such sale. For this purpose any unusual purchase or addition to the stock of such goods, wares and merchandise made within 90 days prior to the date of the filing of such application shall be presumptive evidence that such purchase or additions were made in contemplation of such sale and for the purpose of selling the same at such sale.

(9) That any representation made in the application is false.

(Bill No. 7571, 4-15-2013)

**Sec. 18-384. Duration of sale; license fee.**

A license to conduct a sale issued pursuant to this article shall be good for no more than a period of 30 consecutive calendar days and may be renewed for one consecutive period not exceeding 30 consecutive calendar days upon the affidavit of the applicant that the goods listed in the inventory have not been disposed of and that no new goods have been or will be added to the inventory previously filed pursuant to this article by purchase, acquisition on consignment, or otherwise. The application for renewal shall be made not more than ten days prior to the time of the expiration of the license and shall contain a new inventory of the goods remaining on hand at the time the application for renewal is made which new inventory shall be prepared and furnished in the same manner and form as the original inventory. The city collector shall receive from the applicant for such license, upon the granting, a fee of $20.00 and upon the renewal another fee of $20.00. The applicant shall not be entitled to a refund of the fee paid if his license is revoked.

(Bill No. 7571, 4-15-2013; Bill No. 7576, 5-20-2013)

**Sec. 18-385. Closing-out business sales at auction.**

(a) *Application.* Any person proposing to hold an auction sale for the purpose of disposing of a stock in trade in order to discontinue business shall, at the time of applying for a license under the provisions of this article, include within his sworn application in addition to other required information:

(1) The time and place of each proposed auction sale;

(2) The name, address and occupational history of each person who will participate in conducting the sale by auction;

(3) A true and correct detailed inventory, item by item, and article by article, listing each separate article proposed to be sold at such sale, each item so listed having set opposite it its description and identifying number, together with the true and actual cost of such item; and

(4) Such other information concerning the auction sale as may be reasonably requisite.

(b) *Endorsement of license; increased license fee.* A license under this article, when an application has been made pursuant to the provisions of subsection (a) of this section, shall be endorsed by the city collector to authorize the owner of the goods, wares or merchandise to be sold by auction, but only after the collector shall be satisfied that such sale is to be made in good faith for the purpose permitted in this article and in compliance with all the provisions of this article, and upon the payment of a fee of $100.00 in lieu of the $20.00 fee specified in section 18-384

(c) *Labeling of articles to be sold.* Before the beginning of any sale by auction, the licensee shall cause to be attached to each article to be sold a card or ticket with a number corresponding to the number opposite the description of such article contained in the inventory included in the application for license.

(d) *Misrepresentation.* At all sales by auction, the licensee and all persons participating in the conducting of such sale shall truly and correctly represent at all times to the public attending the auction the actual facts in respect to the quality and manufacture of each article offered for sale. No misleading statements, advertising, signs or posters shall be permitted in connection with such sale.

(e) *Cappers, boosters and shillers; prizes.* No person shall act at any sale by auction as bidder, or what is commonly known as a capper, booster or shiller, or offer or make any false bid or offer any false bid to buy or pretend to buy any article sold or offered for sale at such sale. The giving of prizes or other like inducement is hereby prohibited.

(f) *Supervision of sale.* The person to whom a license has been granted, if an individual, or if a firm or corporation the person who has been in charge of the business, shall at all times during a sale by auction remain in continuous attendance for the purpose of supervising such sale in order that the provisions of this article may be complied with.
(Bill No. 7571, 4-15-2013; Bill No. 7576, 5-20-2013)

**Sec. 18-386. Revocation of license; grounds.**

The city collector may, on his own initiative, or shall, upon the written and verified complaint of any resident of this state, investigate any person licensed by him under the provisions of this article to determine if such person is violating or has violated this article. The city collector shall immediately revoke such person's license if, after such investigation, he shall determine that:

(1) Any sale by the applicant is conducted in violation of any provision of this article;

(2) The applicant has made any material misstatement in his application for the license;

(3) The applicant has failed to include in the inventory required by the provisions of this article the goods, wares or merchandise required to be contained in such inventory;

(4) The applicant has added or permitted to be added to such sale or offered or permitted to be offered at such sale any goods, wares or merchandise not described in the original application and inventory; or

(5) The applicant made or permitted to be made any false, misleading or deceptive statements in advertising the sale, whether written or oral, or in displaying, ticketing or pricing goods, wares or merchandise offered for sale.

(Bill No. 7571, 4-15-2013)

**Sec. 18-387. Notice of denial, refusal or revocation of license; judicial review.**

Whenever the city collector shall deny or refuse to issue a license or shall revoke any license, he shall make and enter an order to that effect and shall cause a copy of such order to be served in person or by certified mail, return receipt requested, on the applicant or person licensed by him, as the case may be. Such order shall be accompanied by findings of fact and conclusions of law upon which such order was made and entered. Any person adversely affected by an order made and entered by the city collector shall be entitled to such judicial review as may be provided by law.
(Bill No. 7571, 4-15-2013)

**Sec. 18-388. Branch stores and warehouses.**

If the applicant owns, conducts or operates more than one store or warehouse in connection with such store or warehouse specified in the application, the license issued will apply only to the one store or warehouse for which it was issued; and no other store or warehouse may advertise or represent in any way that it is cooperating with or participating in any way in the licensed sale, nor shall the licensed store or warehouse or any person advertise or represent that any other person, store or warehouse is cooperating with or participating in the licensed sale. The licensed sale conducted by any store or warehouse of a chain or group of stores or warehouses shall be conducted solely at the location of the store or warehouse for which the license was obtained; and no goods, wares or merchandise shall be brought from any other store or warehouse and placed on sale at the store or warehouse licensed to conduct a sale under this article.
(Bill No. 7571, 4-15-2013)

**Sec. 18-389. Substitution, addition and commingling of goods voids license; change of time or place of sale; certain purchases prohibited.**

(a) Any substitution for or addition to goods described in an inventory filed pursuant to this article or any change in the time or place for a sale

conducted pursuant to this article shall be unlawful and shall void any license issued to conduct a sale pursuant to this article and such license shall be revoked.

(b) In the case of a sale licensed under this article conducted by any person licensed under this article in addition to conducting a business or selling other goods, wares or merchandise not included in the inventory accompanying the application, the goods to be sold at such sale shall be clearly and distinctly segregated, marked or identified and advertised, if at all, so that both on display and in advertising such goods may be readily distinguished from other stocks and their identity readily ascertained. Any commingling of such goods with other stocks of such person in such a manner as to cause the goods to lose their separate identity either on display or in advertising shall be unlawful.
(Bill No. 7571, 4-15-2013)

**Sec. 18-390. Copy of application, inventory and license to be posted; license to be referred to in advertisements.**

A copy of the application for a license to conduct a sale under this article, including a copy of the inventory filed with the application, shall be posted in a conspicuous place in the sales room or place where the inventoried goods are to be sold so that the public may be informed of the facts relating to the goods before purchasing any goods. Any advertisement or announcement published in connection with the sale shall conspicuously show on its face the number of the license, the date of its expiration, and if applicable, the location where the business is to be resumed.
(Bill 7571, 4-15-2013)

**Secs. 18-391—18-420. Reserved.**

## ARTICLE IX. HANDGUN DEALERS

### DIVISION 1. RESERVED*

**Sec. 18-421—18-450. Reserved.**

*__Editor's note—__Bill No. 7614, adopted March 17, 2014, repealed former Div. 1, §§ 18-421—18-428, in its entirety which pertained to the regulation of handgun dealers and derived from Bill No. 7571, adopted April 15, 2013 and Ord. of May 6, 2013.

### DIVISION 2. LICENSE

**Sec. 18-451. Required.**

No dealer shall sell any handgun to any other person without first obtaining a handgun sales license from the city.
(Bill No. 7571, 4-15-2013)

**Sec. 18-452. Application for license.**

(a) Application for a handgun sales license shall be made to the city collector upon forms furnished by the city, and shall set forth the following:

(1) The name of the dealer seeking the handgun sales license. If the dealer is a business, the business must identify all personnel authorized to sell any handgun on behalf of the business.

(2) Whether the applicant is an individual, partnership or corporation; if an individual, his name, social security number and business and residence address; if a partnership, the name and business and residence address of each general partner; if a corporation, the name, date and state under which such corporation was organized; and with respect to any partnership or corporation, the name and business address of any personnel responsible for supervising the sale, lease, trade or transfer of any handgun.

(3) The address at which any inventory of handguns shall be kept.

(b) Each application shall be signed and verified under oath by the applicant, if an individual, by a duly authorized general partner, if a partnership, and by a duly authorized officer if a corporation.
(Bill No. 7571, 4-15-2013)

**Sec. 18-453. Annual license for each fiscal year; license fee.**

A handgun sales license shall be valid unless revoked, until June 30 of the then current fiscal

year. It shall be the licensee's obligation to apply annually to renew his license. The fee shall be $20.00 for each such fiscal year.
(Bill No. 7571, 4-15-2013; Bill No. 7576, 5-20-2013)

**Sec. 18-454. Revocation.**

(a) The city collector may immediately revoke a handgun sales license, for a period not to exceed two years, upon evidence or credible information at any time that:

(1) The licensee has knowingly made any false or materially incorrect statement in the application or any request for renewal of a license.

(2) The licensee has violated or permitted the violation of any provision of this Code, or any state or federal law relating to the sale of a handgun.

(3) The licensee has refused to permit inspection of his premises or business records required to be maintained by this article upon request by any agent of the city collector or the city police.

(b) The city collector shall notify the licensee of the revocation by first class mail and shall also advise the licensee that he may demand, by written notice received by the city collector within ten business days of the revocation, an impartial and public hearing before the municipal court to determine whether the license revocation was proper. The licensee shall have no recourse if he fails to timely demand such hearing. Upon the expiration of the period of revocation, the dealer may reapply for a handgun sales license under the same terms and conditions as any other prospective dealer.
(Bill No. 7571, 4-15-2013)

**Secs. 18-455—18-490. Reserved.**

## ARTICLE X. HAWKERS AND PEDDLERS

**Sec. 18-491. Definitions.**

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

*Hawker* or *peddler* means any person who shall carry goods, wares or merchandise from place to place, either in person or by agent or employee, and sell, for delivery at the same time, any such goods, wares or merchandise to any purchaser, at wholesale or retail, and any person who shall solicit for the purpose of rendering any service, shall be deemed a hawker or peddler under this article.

*Sale* means and includes both sales for money payment or for barter, and offers to make any such sale and offers to render any service or the rendering of any service.
(Bill No. 7571, 4-15-2013)

**Sec. 18-492. Exemptions; exemption receipt.**

(a) The provisions of this article shall not apply to any person who sells any goods, wares or merchandise to be delivered in the future, or to any of the following who offer immediate delivery of the goods, wares or merchandise being sold:

(1) Any person engaged within this city in the business or calling of agriculture, horticulture or grazing, who sells or sell individually or collectively, one or more for the other or others, the products derived from his business or calling;

(2) Any person engaged in the maintenance or operation of a retail merchandise store to exchange goods, wares or merchandise from such store for agricultural, horticultural or grazing products or to resell any such products received in due course of such business, nor to any other retail business concern, established and operating continuously for one year or more within this city in the sale of any product or products over regular routes;

(3) Any wholesaler or jobber selling soft drinks or nonintoxicating beer for which he is duly licensed by this city;

(4) Any person who sells petroleum products, ice, wood, meat, milk, ice cream, bread, cakes, pies and other bakery products, butter and eggs, manufactured, grown or produced by any such person and not purchased by him for resale;

(5) Any sales by societies, groups or organizations acting for charitable, religious or benevolent purposes;

(6) Any agent or salesman selling manufactured products, except green groceries and canned or bottled fruit products, produced by his employer, and who sells such items to retail dealers for the purpose of resale; or

(7) Any person having a stock of goods or merchandise, or manufacturing or processing plant kept or operating at a fixed situs in the city, and declared for taxation in the county where located, and using a vehicle over a fixed route for the purpose of selling or distributing at wholesale his merchandise, stock of goods or plant products.

(b) Any person exempt from license as provided in this section shall obtain from the city collector a license receipt, without cost, showing that he is so exempt, which shall be effective for the period as provided for annual licenses in this chapter; but to obtain such license receipt, he shall make an affidavit and produce such other evidence as to the fact entitling him to such exemption as the city collector in his discretion may require, which shall be on a form to be prescribed by the city collector.
(Bill No. 7571, 4-15-2013)

**Secs. 18-493—18-520. Reserved.**

## ARTICLE XI. HOME SOLICITATION SALES

### Sec. 18-521. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

*Consumer sale* means a sale, whether for cash or credit, of goods, services or an interest in land in which the:

(1) Sale is made by a seller who regularly engages as a seller in transactions of the same kind;

(2) Buyer is an individual; and

(3) Goods, services or interest in land are purchased primarily for personal, family, household or agricultural purposes.

*Home solicitation sale* means a consumer credit sale in excess of $25.00 in which the buyer receives a solicitation of the sale at a place other than the seller's business establishment at a fixed location and the buyer's agreement or offer to purchase is there given to the seller or a person acting for the seller. The term does not include a sale made pursuant to a preexisting open-end credit account with the seller in existence for at least three months prior to the transaction; a sale made pursuant to prior negotiations between the parties at the seller's business establishment at a fixed location; a sale of motor vehicles, mobile homes or farm equipment; or a sale which may be rescinded under the federal Truth in Lending Act (being title I of the federal Consumer Credit Protection Act). A sale which would be a home solicitation sale if credit were extended by the seller is a home solicitation sale although the goods or services are paid for, in whole or in part, by a consumer loan in which the creditor is subject to claims and defenses arising from the sale.

*Seller* includes an individual, firm, copartnership, joint venture, association, corporation, trust, estate or any other group or combination acting as a unit, other than a bona fide service club, civic body, charitable society or like organization not organized for profit.

Any person convicted of a misdemeanor under this article shall have his license revoked pursuant to the applicable provisions of this chapter.
(Bill No. 7571, 4-15-2013)

### Sec. 18-522. License for home solicitation sales; registration.

(a) It shall be unlawful for a person to engage in the business of soliciting or making home solicitation sales unless he shall first pay a license fee of $20.00 and apply for and obtain a license from the city collector, in accordance with this section. No such license may be assigned or transferred.

(b) Each application for a license as required by this section shall be under oath and contain the information which the city collector may require, including without limitation the name and address of the applicant, the name and social security number of each person who will solicit or sell on behalf of the applicant and the nature, type, manufacturer and source of all goods, wares, services and merchandise to be sold.

(c) Each such application shall be accompanied by either a bond in the penal sum of $3,000.00 with a solvent corporate surety licensed to do business in the state, or a cash bond in an equal amount. All such bonds shall be conditioned upon the making of final delivery of the goods, wares, services and merchandise to be sold, in accordance with the terms of any agreement between the buyer and the seller and with the provisions of this article. Any person incurring any pecuniary or other loss or damage by reason of the violation of such agreement or of this article shall have the right of action on such bond for the recovery of all damages to which such person may be entitled.

(d) Any license issued pursuant to this section may be revoked by the city collector in accordance with the applicable provisions of this chapter.

(e) Each person holding such a license shall pay an annual license fee of $20.00 on July 1.

(f) In addition to obtaining such license, no person shall engage in the business of soliciting or making home solicitation sales unless he shall first register with the department of consumer protection. Such registration shall be effected by filing with such department in form prescribed by such department all information which such department may require.
(Bill No. 7571, 4-15-2013; Bill No. 7576, 5-20-2013)

### Secs. 18-523—18-550. Reserved.

## ARTICLE XII. HOTELS, TOURIST HOMES AND EATING PLACES

### Sec. 18-551. License required; fee.

The annual license fee to keep or maintain a hotel, tavern or tourist's home, where rooms are kept or maintained for transient guests, the charge for which is for a period of less than three days, or to keep and maintain a restaurant, or other eating place, not operated in connection with a hotel, tavern or tourist's home, shall be $20.00.
(Bill No. 7571, 4-15-2013; Bill No. 7576, 5-20-2013)

### Sec. 18-552. Hotels and taverns.

Every building where food and lodging are usually furnished to travelers, and payment required, shall be deemed a hotel or tavern. Every person licensed to keep or maintain a hotel or tavern shall constantly provide such licensed establishment with lodging and food for travelers.
(Bill No. 7571, 4-15-2013)

### Secs. 18-553—18-580. Reserved.

## ARTICLE XIII. INSURANCE COMPANIES AND AGENTS

### Sec. 18-581. License required; fee.

The annual license fee on every insurance company, or its agent, to carry on or transact business in the city shall be $20.00.
(Bill No. 7571, 4-15-2013; Bill No. 7576, 5-20-2013)

### Secs. 18-582—18-610. Reserved.

## ARTICLE XIV. RESERVED*

**Secs. 18-611—18-660. Reserved.**

## ARTICLE XV. JUNK DEALERS

### DIVISION 1. GENERALLY

**Sec. 18-661. Definitions.**

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

*Itinerant junk collector* includes only such persons who gather junk from place to place with the aid of a cart or vehicle, hand-drawn or propelled, who have no fixed place of business.

*Junk* means old or scrap gold, copper, brass, rope, rags, batteries, paper, rubber, automobile parts, iron, steel and other old scrap ferrous or nonferrous metals.

*Junk dealers* includes all persons engaged in the business of buying or selling junk.

*Junk dealer's agents* includes all persons who buy or sell junk for or on behalf of a junk dealer, but the term shall not be construed to include any persons regularly employed upon a salary by a regularly licensed junk dealer engaged in such business within the city.

*Nonresident junk dealer* or *nonresident junk dealer's agent* shall include all persons who act as junk dealers or junk dealer's agents who are nonresidents of the city, and all firms so engaged whose members are nonresidents of the city and all corporations which have not been admitted to hold property and transact business in the state. (Bill No. 7571, 4-15-2013)

**Secs. 18-662—18-680. Reserved.**

### DIVISION 2. LICENSE

**Sec. 18-681. Required; resident license.**

(a) No person within the city shall engage in the business of junk dealer, junk dealer's agent or itinerant junk collector without a license, which license shall be issued as provided in this article.

*__Editor's note—__Bill No. 8028, adopted Feb. 20, 2024, repealed Art. XIV, §§ 18-611—18-613, 18-631—18-634, which pertained to itinerant vendors and derived from Bill No. 7571, adopted April 15, 2013; and Bill No. 7887, adopted April 19, 2021.

(b) No resident license shall be issued to any junk dealer, junk dealer's agent or itinerant junk collector who has not been a resident of the city for a period of at least one year prior to the application of such license.
(Bill No. 7571, 4-15-2013)

**Sec. 18-682. Officers' or agents' residence.**

No corporation or firm shall engage in the business of junk dealer or junk dealer's agent in the city unless the officers or agents of such corporation or firm who engage in the business of junk dealer or junk dealer's agent, in behalf of such corporation or firm shall be eligible to be duly licensed as resident junk dealers or junk dealer's agents in accordance with the provisions of this article.
(Bill No. 7571, 4-15-2013)

**Sec. 18-683. Certification of agents.**

Every resident junk dealer shall certify to the city collector the name or names of the agents for whom he desires a license certificate and shall give to each agent so engaged by him a certificate of authority, which certificate the agent shall at all times keep with his license; and no such junk dealer's agent's license shall be valid and effective without such certificate of authority.
(Bill No. 7571, 4-15-2013)

**Sec. 18-684. License not transferable; former convictions.**

(a) No license under this division shall be transferable.

(b) No one who has been convicted of a felony shall be licensed as a junk dealer, junk dealer's agent or itinerant junk collector, and no one convicted of a misdemeanor in connection with the junk business within a five-year period prior to the passage of the ordinance from which this article is derived shall be licensed as a junk dealer, junk dealer's agent or itinerant junk collector.
(Bill No. 7571, 4-15-2013)

**Sec. 18-685. Business not to engage agent ineligible for license.**

No person engaged in the junk business shall engage a person as a junk dealer's agent who is ineligible to receive a resident junk dealer's or junk dealer's agent's license. Any license issued upon false statement or any improper license issued under this division shall be ipso facto void.
(Bill No. 7571, 4-15-2013)

**Secs. 18-686—18-720. Reserved.**

## ARTICLE XVI. MASSAGE PARLORS

### DIVISION 1. GENERALLY

**Sec. 18-721. Definitions.**

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

*Massage parlor* means any shop, establishment or place of business wherein any person receives or alleges to receive all or any one or more of the following methods of treatment: oils, rubs, salt glows, hot or cold packs, all kinds of baths including steam rooms, body massage either by hand or by any mechanical or electrical apparatus or device, applying such movements as stroking, friction, rolling, vibration, kneading, cupping, pettrasage, rubbing, effecurage or topotement.

*Masseur* or *masseuse* means a person who practices or administers all or any one or more of the named subjects or methods of treatments as defined in this section.

*Person* means any individual, firm, corporation, copartnership, joint adventure, association or any group or combination acting as a unit and owning, operating or working in a massage parlor.
(Bill No. 7571, 4-15-2013)

**Sec. 18-722. Enforcement.**

The provisions of this article shall be enforced by the police department.
(Bill No. 7571, 4-15-2013)

**Sec. 18-723. Inspections generally.**

Every massage parlor shall, during business hours, be held open for inspection by duly authorized representatives of the various city departments concerned with the supervision and the enforcement of this article.
(Bill No. 7571, 4-15-2013)

**Sec. 18-724. Rules and regulations generally.**

In addition to any other law, rule or regulation adopted by the city or health department, the holder of any permit under this article shall be subject to the following rules and regulations:

(1) Medical treatment of any kind shall not be given to any person unless authorized and under the supervision of a duly licensed physician.

(2) No person who has any visible symptoms of a communicable disease, such as a rash, discharge or fever, or who is complaining of a sore throat may be attended by any person under this article or any person engaged in the practice of massage.

(3) Each applicant for a permit under this article shall present a certificate from a registered physician, certifying that he and his employees are free from communicable disease.

(4) Advertising that there is a nurse in attendance is prohibited unless there is a registered graduate nurse constantly in attendance during the business hours of the massage parlor.

(5) Advertising that there is a doctor in attendance is prohibited unless there is a registered physician constantly in attendance during the business hours of the massage parlor.

(6) A holder of a permit under this article shall exercise every precaution for the safety of patrons. Such permittee shall watch for early signs of fatigue or weakness and immediately discontinue whatever form of service is being given upon the appearance of such signs.

(7) No massage parlor shall be conducted in direct connection with living quarters unless especially approved by the board of health.

(8) The premises used for a massage parlor shall be well lighted and ventilated. They shall be kept clean, and the furniture and equipment shall be maintained in a safe and sanitary condition. There shall be an adequate supply of running hot and cold water during business hours. Bathing devices shall be thoroughly cleaned before the use of each patron.

(9) All robes, towels, blankets and linens furnished for the use of one patron shall be thoroughly laundered before being offered to another.

(10) Uniforms or garments worn by an owner, instructor, operator or apprentice while attending patrons shall be of washable material and shall be kept in clean condition. The sleeves shall not reach below the elbow.

(11) The skin of the hands of those attending patrons shall be clean and in healthy condition, and the nails shall be kept short. The hands shall be washed thoroughly before giving the patron any attention.

(12) The permit holder shall notify the city collector of any change of name or address of his home or business.

(13) It shall be unlawful for any person to engage in the operation of a massage parlor without a permit issued pursuant to the provisions of this article.

(14) It shall be unlawful for any person to operate any massage parlor which does not conform to the sanitary or health regulations adopted by the health department.

(15) It shall be unlawful for any person to operate any massage parlor where any of the following activities take place:

a. Sexual intercourse;

b. Masturbation;

c. Oral sexual activity;

d. Touching or any manipulation of breasts or the genital area; or

e. Other sexual activity contrary to the laws of the state or laws of the city.

(16) It shall be unlawful for any permit holder to permit disorderly conduct or the use of any immoral, profane or indecent language, or to permit the sale, giving away or use of beer or intoxicating liquors, narcotics or marijuana, or to permit a massage parlor to be a place of resort of thieves, prostitutes, narcotic addicts, narcotic peddlers or other disorderly persons.

(Bill No. 7571, 4-15-2013)

**Sec. 18-725. Hours of operation.**

No person shall open or cause to be opened or operated or cause to be operated within the city limits any massage parlor between the hours of 12:30 a.m. and 6:00 a.m. official city time.
(Bill No. 7571, 4-15-2013)

**Secs. 18-726—18-750. Reserved.**

DIVISION 2. PERMIT

**Sec. 18-751. Required.**

It shall be unlawful for any person to engage in the operation of a massage parlor without securing a permit from the city collector's office in accordance with the provisions established in this division. Nothing in this division shall be construed as applying to licensed practical nurses, orderlies, attendants or nurses aides working in hospitals, nursing homes and other establishments who are under the direction, control and supervision of a licensed practicing physician.
(Bill No. 7571, 4-15-2013)

**Sec. 18-752. Application.**

Any person applying for a permit to engage in the operation of a massage parlor under the provisions of this division shall first file with the city collector's office a written application for such permit, on a form to be provided, stating the name and address of the applicant, the name and address of the massage parlor, the name and address of the person the applicant represents, the names and addresses of all the masseurs and masseuses employed in the massage parlor.
(Bill No. 7571, 4-15-2013)

**Sec. 18-753. Annual fee and application.**

Any person making an application for a permit shall be required to pay an annual permit fee in the amount of $20.00. The permit shall be nontransferable and the applicant shall, in addition to the annual fee, file a new application annually.
(Bill No. 7571, 4-15-2013; Bill No. 7576, 5-20-2013)

**Sec. 18-754. Investigations prior to issuance.**

Prior to the issuance or renewal of any permit to operate a massage parlor:

(1) The fire chief shall inspect the site and the facilities to be used on the site to determine whether or not such facilities meet all requirements of the city fire code, and to establish any regulations for the operation of such massage parlor to conform with such code.

(2) The building commissioner shall inspect the site to determine the adequacy of sanitary facilities, restrooms, and to determine if such facilities meet all of the building code requirements.

(3) The health commissioner shall inspect the site to determine if the facilities meet the health code requirements.

(4) The collector shall not issue any permit to operate a massage parlor under this division until favorable recommendations from the fire chief, building commissioner and health commissioner are received by him.

(Bill No. 7571, 4-15-2013)

**Sec. 18-755. Display.**

All permits issued under this division shall be displayed in a conspicuous place in the massage parlor.
(Bill No. 7571, 4-15-2013)

**Sec. 18-756. Revocation.**

Any permit issued under this division may be revoked for the violation of any laws of the state, ordinances of the city or the provisions of this division.
(Bill No. 7571, 4-15-2013)

**Secs. 18-757—18-790. Reserved.**

## ARTICLE XVII. PARKING LOTS

### DIVISION 1. GENERALLY

**Sec. 18-791. Definitions.**

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

*Motor vehicle* means every vehicle which is self-propelled and designed for operation on the streets.

*Parking lot* means any place, lot, parcel, yard or enclosure used in whole or in part for storing or parking three or more motor vehicles for charge. Garages and other places where motor vehicles are stored for hire within a building and for which a license fee is paid under another section of this Code shall be exempt from the provisions of this article.
(Bill No. 7571, 4-15-2013)

**Sec. 18-792. Barriers.**

All parking lots shall maintain a permanent, substantial barrier on or adjacent to lines abutting on any public street or sidewalk. Such barrier shall consist of at least a guard rail or wheel stop. If a permanent, substantial barrier consists of planting, the guard rail or wheel stop shall be a part of the barrier. Such a guard rail or wheel stop shall be so designed and installed that no portion of any vehicle parked on the lot shall extend over the property lines.
(Bill No. 7571, 4-15-2013)

**Sec. 18-793. Maintenance and paving.**

(a) Each licensee shall keep the sidewalks surrounding the parking lot free from dirt, ice, sleet and snow. Each licensee shall keep the parking area free from dirt, trash and debris.

(b) Parking lots shall be paved with a smooth black top or concrete surface.

(c) Lots opened or commencing operations after December 16, 1974, shall connect to existing sewer lines so that they may be properly drained.
(Bill No. 7571, 4-15-2013)

**Sec. 18-794. Buildings.**

Any building erected on a parking lot shall be of permanent construction built under plans approved by the building inspector, and shall be heated by means of heat generated through the use of electricity, gas or oil, or coal furnace. All buildings shall be maintained in a neat, orderly manner.
(Bill No. 7571, 4-15-2013)

**Sec. 18-795. Entrances and exits.**

On each street upon which a parking lot abuts, such parking lot shall have not more than two entrances or exits, either or both, over the public sidewalks, which may or may not be combined. Driveways shall not exceed 26 feet in width at the curb or gutter line; adjacent driveways shall be separated by an island at least six feet in width.
(Bill No. 7571, 4-15-2013)

**Sec. 18-796. Fire extinguishers.**

Parking lots shall be equipped with proper fire extinguishing apparatus subject to the approval of the fire chief.
(Bill No. 7571, 4-15-2013)

**Sec. 18-797. Lighting.**

All parking lots operated after 6:00 p.m. shall be equipped with suitable outdoor lights, adequately illuminating such lots for the benefit of its patrons.
(Bill No. 7571, 4-15-2013)

**Sec. 18-798. Blocking streets, alleys and sidewalks.**

It shall be unlawful for the owner or operator of any parking lot to move, transfer or park, or cause to be moved, transferred or parked, any vehicle in his custody in such a manner as to block or otherwise interfere with the free movement of pedestrian or vehicular traffic on any street, alley or sidewalk.
(Bill No. 7571, 4-15-2013)

**Sec. 18-799. Claim checks and signs.**

(a) At the time of accepting a motor vehicle for storage or parking in a parking lot, the person operating the lot, his agent or employee, shall furnish to such persons parking their motor vehicles a distinctive check which shall be numbered to correspond to a coupon placed upon such motor vehicle, which check shall contain the name and address of the parking lot. Upon such check shall be written, printed, cut out or stamped the date and, if parking is charged for on an hourly basis, the time of acceptance of such motor vehicles. The foregoing provisions relating to claim checks shall not apply to any vehicle stored on a weekly and/or monthly fee basis.

(b) Each licensee shall maintain on his lot a permanently affixed sign suitable to appraise persons using such parking lot of the name of the licensee; the hours of the day or night when such places are open for parking or storing of motor vehicles; the rates charged and the closing hours of such parking lot. All such signs shall meet the requirements of all laws of the city, and shall be subject to the approval of the appropriate city officials charged with approving signs.
(Bill No. 7571, 4-15-2013)

**Secs. 18-800—18-820. Reserved.**

## DIVISION 2. LICENSE

**Sec. 18-821. Required.**

No person shall establish, conduct, operate or maintain a parking lot without first obtaining a license from the city, and no license shall be granted until the applicant shall file with the city collector a plat or drawing of such parking lot, showing the location, size and capacity of and the location, size and construction of any building on the lot, wall or railing surrounding the lot, and the location and type of lighting units, if any.
(Bill No. 7571, 4-15-2013)

**Sec. 18-822. Application for license.**

(a) Application for a parking lot license shall be made upon forms furnished by the city collector by the person intending to operate the parking lot and shall set forth the following:

(1) The name under which and the place where the parking lot is to be operated.

(2) Whether the applicant is an individual, partnership or corporation; if an individual, his name and business and residence address; if a partnership, the name and business and residence address of each partner; if a corporation, the name, date and state under which such corporation was organized, and the name and business address of the manager in charge.

(3) The maximum number of motor vehicles which can, at any one time, be stored upon the premises.

(b) Each application shall be signed and verified under oath by the applicant if an individual or by a duly authorized agent if a partnership or corporation.
(Bill No. 7571, 4-15-2013)

**Sec. 18-823. Annual license for each fiscal year; license fee.**

The license for the operation of a parking lot shall be applied for and issued annually as of July 1 for the then current fiscal year. The fee shall be $20.00 for each fiscal year.
(Bill No. 7571, 4-15-2013; Bill No. 7576, 5-20-2013)

**Sec. 18-824. Revocation.**

The city collector, subject to right of appeal, may revoke a license upon proof at any time that:

(1) The licensee has knowingly made any false or materially incorrect statement in his application.

(2) The licensee has knowingly violated or knowingly permitted or countenanced the violation of any provision of this division.

(Bill No. 7571, 4-15-2013)

**Secs. 18-825—18-860. Reserved.**

## ARTICLE XVIII. PAWNBROKERS

**Sec. 18-861. Definitions.**

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

*Pawnbroker* includes any person engaged in the business of lending money on deposit or pledge of personal property or other valuable thing, other than securities or printed evidence of indebtedness, or in the business of purchasing personal property, such as articles made of or containing gold, silver, platinum or other precious metals or jewels of any description for the purpose of reducing or smelting them into any form different from their condition or construction when purchased, and reselling or marketing the product.

(Bill No. 7571, 4-15-2013)

**Sec. 18-862. Annual license fee.**

The annual license fee to engage in the business of pawnbroker shall be $20.00.

(Bill No. 7571, 4-15-2013; Bill No. 7576, 5-20-2013)

**Sec. 18-863. Reports.**

(a) All pawnbrokers doing business in the city shall be required to secure from the seller or pledger of any article proof of lawful ownership or a sworn affidavit of ownership of all articles pledged or sold to them.

(b) Each such business shall truly and accurately list each article pledged or sold in a permanent record book clearly showing the kind, character or any other special or unique quality or marking or serial or model number attached to or affixed to the article; the date and time of purchase or date and time pledged; the full name, residence address and mailing address of the seller or pledger; and any telephone number. This record book shall be open to inspection by any law enforcement officer in this city during normal business hours.

(c) Each such business shall report all the information required on each article pledged or sold in writing to the chief of police within 24 hours of purchase or pledge. The information required by this section shall be preserved for a period of not less than five years.

(d) All articles pledged or sold shall not be resold, given away, or loaned out or rented out or altered in any way for a period of ten calendar days after the purchase or pledge of the article.

(e) Any person having been found guilty of violating any provision of this section shall be subject to having his license revoked.

(Bill No. 7571, 4-15-2013)

**Secs. 18-864—18-890. Reserved.**

## ARTICLE XIX. SALVAGE YARDS

**Sec. 18-891. Definitions.**

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

*Fence* means an enclosure, barrier or screen constructed of materials or consisting of plantings, natural objects or other appropriate means approved by the city collector and located, placed or maintained so as effectively to screen at all times salvage yards and the salvage contained in such yard from the view of persons passing upon the public roads of this city.

*Salvage* means old or scrap copper, brass, rope, rags, batteries, paper, rubber, trash, waste, junked,

dismantled or wrecked machinery, machine or motor vehicles, or any parts of any junked, dismantled or wrecked machinery, machines or motor vehicles, iron, steel and other old or scrap ferrous or nonferrous materials.

*Salvage yard* means any place which is maintained, operated or used for the storing, keeping, buying, selling or processing of salvage, or for the operation and maintenance of a motor vehicle graveyard; and the term shall also include garbage dumps and sanitary fills.
(Bill No. 7571, 4-15-2013)

### Sec. 18-892. Violations and penalties; injunctive relief to abate nuisances.

In addition to other remedies provided in this Code, it is determined that an unlicensed salvage yard is a nuisance, and it is further determined that the allowing of wrecked or damaged automobiles or other junk to remain unattended on a street or highway is also a nuisance and the city may apply to any court of competent jurisdiction for an injunction to abate such nuisances.
(Bill No. 7571, 4-15-2013)

### Sec. 18-893. Reference to other provisions of this Code.

Nothing contained in this article shall be construed to affect, set aside or alter the provisions of article XV or XX of this chapter, or of chapter 54 of this Code.
(Bill No. 7571, 4-15-2013)

### Sec. 18-894. License required; restrictions as to location; yards existing as of October 2, 1961.

It shall be unlawful for any person to operate or maintain a salvage yard in the city without a city license, and no license shall be granted for the operation or maintenance of a salvage yard in any zoning district other than an industrial district as provided by the zoning ordinance and no license shall be granted to a person to operate or maintain a salvage yard within 50 feet of a public street or highway, nor unless the view from such street or highway shall be obscured by a fence. Any person who was maintaining or operating a salvage yard or junkyard within the city prior to October 2, 1961, shall be granted a license if the view is obscured from any street or highway by a fence on his property line. Nothing in this section shall be construed to permit any person operating or maintaining a salvage yard or junkyard prior to October 2, 1961, to enlarge, expand or increase its size.
(Bill No. 7571, 4-15-2013)

### Sec. 18-895. Issuance of license; fee; term; renewal.

The city collector shall have the sole authority to issue licenses for the establishment, maintenance and operation of salvage yards within the limits defined in this article and shall charge a fee of $20.00 payable annually in advance. All licenses issued under this section shall expire with the expiration of June 30 next following the date of issue. A license may be renewed from year to year upon paying to the collector the sum of $20.00 for each such renewal.
(Bill No. 7571, 4-15-2013; Bill No. 7576, 5-20-2013)

### Sec. 18-896. Requirements as to fences.

A fence constructed under this article shall be kept in good order and repair and at all times painted, and no advertisement shall be permitted on the fence other than the name of the person in whose name the license has been issued and the nature of the business conducted there.
(Bill No. 7571, 4-15-2013)

### Secs. 18-897—18-930. Reserved.

## ARTICLE XX. SECONDHAND AUTOMOTIVE ACCESSORIES AND PARTS

### Sec. 18-931. License fee; not transferable or divisible.

There is imposed upon every person buying and selling secondhand automotive accessories and parts an annual license fee of $20.00. Such license is not transferable, nor is the fee divisible.
(Bill No. 7571, 4-15-2013)

**Sec. 18-932. Record of purchases; exhibiting; exception.**

All persons procuring a license under this article shall be required to keep a complete record of all purchases of secondhand or used automotive parts, together with the date of purchase, the kind and character of merchandise purchased and the name of the seller and his address. No person shall be permitted to buy such merchandise unless the seller shall exhibit to the purchaser a bill of sale showing from whom the merchandise was purchased; however, dealers may sell to dealers without complying with the terms of this article.
(Bill No. 7571, 4-15-2013)

**Sec. 18-933. Purchases from or sales to minors.**

It shall be unlawful for any licensee under this article to purchase any merchandise from any person under the age of 16 years; and if any such person shall offer for sale any such merchandise, it shall immediately be the duty of the licensee to notify the chief of police.
(Bill No. 7571, 4-15-2013)

**Sec. 18-934. Records open for inspection.**

A licensee under this article shall at all times keep open for the inspection of any law enforcement officers his records of purchases.
(Bill No. 7571, 4-15-2013)

**Secs. 18-935—18-970. Reserved.**

## ARTICLE XXI. STORES

### DIVISION 1. GENERALLY

**Sec. 18-971. Definitions.**

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

*General store* means and includes any store or any mercantile establishment in which goods, wares or merchandise of any kind are purchased, ordered, sold or offered for sale either at retail or wholesale.

*Special store* means and includes any store or any mercantile establishment or establishments, in which goods, wares, or merchandise of any kind except cigarettes, tobacco products and soft drinks are purchased, ordered, sold or offered for sale, either at retail or wholesale, and which contains no coin-operated device, owned and operated by the store proprietor.
(Bill No. 7571, 4-15-2013)

**Sec. 18-972. Coin-operated devices not considered stores.**

For the purpose of this article, no coin-operated device shall be construed to be a store.
(Bill No. 7571, 4-15-2013)

**Secs. 18-973—18-990. Reserved.**

### DIVISION 2. LICENSE

**Sec. 18-991. Store license required.**

It shall be unlawful for any person to establish, operate or maintain any store in the city without first having obtained a license to do so from the city collector as provided in this article.
(Bill No. 7571, 4-15-2013)

**Sec. 18-992. Exemptions.**

The establishment, operation or maintenance of stores by the following shall be exempt from the license tax imposed by this article:

(1) The United States, the state and its political subdivisions;

(2) Religious and charitable organizations;

(3) Any person engaged within this state in the business of producing agricultural products who, individually or collectively, sells in such store only agricultural products which he has produced.

(Bill No. 7571, 4-15-2013)

**Sec. 18-993. Application for license; filing fee.**

Any person desiring to establish, operate or maintain a store in this city shall apply to the city collector for a license to do so. The application for a license shall be made on the form which shall be prescribed and furnished by the city collector and shall set forth the name and address of the applicant, the name and location of such store, and such other facts as the city collector may require. If the applicant desires to operate more than one such store, he shall make a separate application for each such store. Each such application shall be accompanied by a filing fee of $0.50 for each license requested and by the license tax prescribed in this division.
(Bill No. 7571, 4-15-2013)

**Sec. 18-994. Return of application for correction; granting and display of license.**

As soon as practicable after the receipt of any application under this division, the city collector shall carefully examine such application to ascertain whether it is in proper form and contains the necessary and requisite information. If upon examination the city collector shall find that any such application is not in proper form and does not contain the necessary and requisite information, he shall return such application for correction. If an application is found to be satisfactory, and if the filing fee and license tax, as prescribed in this division, shall have been paid, the city collector shall issue to the applicant a license for each store for which an application for license shall have been made. Each licensee shall display the license so issued in a conspicuous place in the store for which such license is issued.
(Bill No. 7571, 4-15-2013)

**Sec. 18-995. Licenses and fees in addition to others.**

The licenses and the license and filing fees provided for in this division shall be charged and collected in addition to any and all other license fees or taxes which may be chargeable against or heretofore chargeable against any person from whom a license is required under the provisions of this division and shall likewise be charged in addition to license fees or taxes which may be hereafter chargeable for any purpose whatsoever against such person by ordinance hereafter enacted unless such ordinance shall otherwise expressly provide.
(Bill No. 7571, 4-15-2013)

**Sec. 18-996. Expiration and renewal of license.**

All licenses under this division shall be so issued as to expire on June 30 of each year. On or before July 1 of each year, every person having a license shall apply to the city collector for a renewal for the next ensuing license year unless such person has ceased to operate such store or does not propose to continue operation of the store during the year next ensuing, in which event he shall notify the city collector that he has ceased operation of the store or that he proposes to cease operation of the store prior to July 1 of the year next ensuing. All applications for renewal shall be made on the forms prescribed by the city collector. Each application for a renewal shall be accompanied by a filing fee of $0.50 for each license requested and by the license tax as prescribed in this division.
(Bill No. 7571, 4-15-2013)

**Sec. 18-997. License not assignable or transferable.**

The license imposed by this division shall not be assignable and shall not be transferable.
(Bill No. 7571, 4-15-2013)

**Sec. 18-998. Change of location of store.**

Licenses issued under the provisions of this division may be altered so as to permit removal of the store to another location. In order to be effective at the new location, however, the certificate of license must show upon its face an endorsement of the change by the city collector.
(Bill No. 7571, 4-15-2013)

**Secs. 18-999—18-1030. Reserved.**

## ARTICLE XXII. STREET, EVENT, AND PRIVATE PROPERTY VENDORS*

### DIVISION 1. GENERALLY

**Sec. 18-1031. Definitions.**

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

*Approved public right-of-way* means publicly owned property including, but not limited to, a park, plaza, road, sidewalk or parking space in an area zoned commercial, industrial, central business, urban corridor, professional or medical campus, or otherwise designated by the city manager for use by street vendors; provided, that the city manager may also exclude areas from the generally approved zones.

*Event vendor* means any person who engages in the business of selling a service or tangible personal property as part of an organized event under the umbrella of a promoter, sponsor, or organizer of an event that is authorized by the city, but who does not engage in business outside of the event upon an approved public right-of-way. Event vendors include both those persons that operate from a nonmotorized vending unit, as well as those persons that operate from a mobilized vending vehicle.

*Mobilized vending vehicle* means a readily movable motorized vehicle whose operator may, upon issuance of a vending permit by the city, and in conformance with the rules and regulations established pursuant to this article, along with all applicable parking and traffic regulations, temporarily park such vehicle upon an approved public right-of-way or on private property to engage in the lawful sale of a service or sale of tangible personal property, including, but not limited to, goods, merchandise, food or beverages, and specifically including the preparation, service, sale or distribution of ready-to-eat food and/or beverages for individual portion service to the general public directly from the vehicle, commonly referred to as "food trucks."

*Nonmotorized vending unit* means a readily movable nonmotorized device, including, but not limited to, a pushcart, table, or stand whose operator may, upon issuance of a vending permit by the city and in conformance with the rules and regulations established pursuant to this article, temporarily set up such device on an approved public right-of-way or on private property and engage in the lawful sale of a service or sale of tangible personal property, including, but not limited to, goods, merchandise, food or beverages.

*Outdoor dining area* means a confined area of the public right-of-way or private property, which area is adjacent to an operator's building/permanent structure, where patrons may sit at tables while consuming food and beverages.

*Private property vendor* means any person who engages in the business of selling a service or tangible personal property on private property, rather than on the public right-of-way in an event that is authorized by the city, but who does not engage in business outside of private property upon an approved public right-of-way or as part of a city-authorized event. Private property vendors are limited to those persons that operate from a nonmotorized vending unit or a mobilized vending vehicle either in one locality or in traveling from place to place; and a temporary or transient business of selling goods, wares and merchandise. The definition of private property vendor does not include a person who engages in the business of selling a service or tangible personal property at a fixed place, which requires a general business license, such as a traditional brick and mortar storefront.

*Street vendor* means any person who engages in the business of selling a service or tangible personal property including, but not limited to, goods, merchandise, food, or beverages upon any approved public right-of-way, either as principal or agent, and whether working independently or as part of an organized event under the umbrella of a promoter, sponsor, or organizer of an event

*__Editor's note—__Bill No. 7887, adopted April 19, 2021, amended art. XXII in its entirety to read as herein set out. Former art. XXII, §§ 18-1031—18-1306, 18-1061—18-1065, pertained to street vendors and derived from Bill No. 7571, adopted April 15, 2013; and Bill No. 7576, adopted May 20, 2013.

in the city. Street vendors include both those persons that operate from a nonmotorized vending unit, as well as those persons that operate from a mobilized vending vehicle. Street vendors include people distributing goods, merchandise, food, or beverages without charge who are operating within the public right-of-way.

*Vendor* means a street vendor, event vendor, or private property vendor, as defined in this section. All vendors shall follow the requirements of this article.
(Bill No. 7887, 4-19-2021; Bill No. 8028, 2-20-2024)

### Sec. 18-1032. Rules and regulations under article; designation of approved public rights-of-way.

(a) The City of Charleston City Collector's Office is hereby authorized to promulgate reasonable rules and regulations regarding the administration of the requirements of this article, including the review of all vendor permit applications. Copies of such regulations, as amended from time to time, shall be maintained by the city collector's office, posted on the city's website and on file in the city clerk's office, and shall be available to interested parties at all reasonable times.

(b) The generally approved public rights-of-way are defined in section 18-1031 of this Code. The city manager shall have the authority to designate additional approved public rights-of-way, or portions thereof, for use by street vendors; provided, the city manager, at his or her discretion, shall also have the authority to suspend the use of approved public rights-of-way by street vendors with or without prior notice for special events or other reasons deemed necessary and appropriate by the city manager.
(Bill No. 7887, 4-19-2021; Bill No. 8028, 2-20-2024)

### Sec. 18-1033. Scope of article.

The provisions of this article shall apply to all vendors, including street vendors, event vendors, and private property vendors.
(Bill No. 7887, 4-19-2021; Bill No. 8028, 2-20-2024)

### Sec. 18-1034. Reserved.

**Editor's note—**Bill No. 8028, adopted Feb. 20, 2024, repealed § 18-1034, which pertained to business license required; application, fee and derived from Bill No. 7887, adopted April 19, 2021.

### Sec. 18-1035. Reserved.

**Editor's note—**Bill No. 8028, adopted Feb. 20, 2024, repealed § 18-1035, which pertained to revocation of business license and derived from Bill No. 7887, adopted April 19, 2021.

### Sec. 18-1036. Reserved.

**Editor's note—**Bill No. 8028, adopted Feb. 20, 2024, repealed § 18-1036, which pertained to request for reconsideration and appeal of revocation of business license and derived from Bill No. 7887, adopted April 19, 2021.

### Sec. 18-1037. Vending permit required; application, fees.

(a) No person or business entity, including a religious or charitable organization, shall operate as a vendor within the city without a vending permit, except as otherwise herein provided.

(b) An applicant for a vending permit shall file an application with the City of Charleston City Collector's Office on such forms and subject to such procedures as the city collector's office may establish. All applicants shall acknowledge in writing that they will not serve food or alcohol, unless and until they are in good standing with the Kanawha-Charleston Health Department and the West Virginia Alcohol Beverage Control Administration, as applicable. Upon request by the city collector's office, a vendor shall submit evidence of approval from the Kanawha-Charleston Health Department and the West Virginia Alcohol Beverage Control Administration, as applicable.

(c) The city shall charge an administrative fee for permits of $20.00 per permit per calendar year, or any portion thereof. Dishonored checks shall be subject to a $15.00 returned check fee in addition to the $20.00 permit fee. The applicant shall indicate whether it is applying to be a street vendor, event vendor, or private property vendor. All approved street vendors are automati-

cally qualified to be event vendors and private property vendors. all event vendors are automatically qualified to be private property vendors.

(d) Permits are nontransferable, and each vendor must have its own permit which shall be posted at all times on or in the nonmotorized vending unit or mobilized vending vehicle, visible to customers and the public.

(e) The city collector shall issue the vending permit upon receipt of a satisfactory application and administrative fee, and such permit shall clearly indicate whether it is a street vendor, event vendor, or private property vendor. Permits shall be renewable on a calendar year basis and shall expire on December 31 of each year.
(Bill No. 7887, 4-19-2021; Bill No. 8028, 2-20-2024)

**Editor's note—**Bill No. 8028, adopted Feb. 20, 2024, amended § 18-1037 and in doing so changed the title of said section from "Street vending permit required; application, fees" to "Vending permit required; application, fees," as set out herein.

### Sec. 18-1038. Additional requirements.

(a) Prior to the issuance of a vending permit for a street vendor, the applicant must agree, in writing, that it shall indemnify, defend, and save harmless the city, its officers, agents, and employees, from and against all liability, claims, suits, damages, losses, costs, attorneys' fees and expenses of any or all types arising out of, or related in any way to the operations or activities of the street vendor. The street vendor shall maintain such general liability insurance with at least $1,000,000.00 coverage per each occurrence and shall name as additional insured the City of Charleston, its agents, officers, directors, and employees. A copy of said insurance policy shall be furnished to the City of Charleston.

(b) Prior to the issuance of a vending permit for an event vendor, the applicant must acknowledge, in writing, that it is only applying to operate in conjunction with an organized event, authorized by the city, and said event provides umbrella insurance coverage sufficient to satisfy the requirements herein or that the event vendor will be required to provide further information to the city event coordinator.

(c) Prior to the issuance of a vending permit for a private property vendor, the applicant must acknowledge, in writing that it is only applying to operate on private property and that it will need a different permit if it intends to operate as part of an authorized city event or upon the public right-of-way.
(Bill No. 7887, 4-19-2021; Bill No. 8028, 2-20-2024)

### Sec. 18-1039. Revocation of street vending permit.

The city collector, upon reasonable notice provided in writing to the vendor through certified mail or personal service, may summarily revoke a vendor's permit pursuant to the provisions of this Code:

(1) For any reason which would have been grounds for denial of such permit when first issued for;

(2) For violation of any term or condition of such permit;

(3) For violation of any pertinent provision of state law, this Code or other ordinance or rules and regulations promulgated thereto; or

(4) For the perpetration or attempted perpetration of fraud, malpractice or malfeasance by the permittee.

(Bill No. 7887, 4-19-2021; Bill No. 8028, 2-20-2024)

### Sec. 18-1040. Request for reconsideration and appeal of revocation of vending permit.

Any vendor whose permit has been revoked may request reconsideration from the city collector. The request for reconsideration must be received within 20 days from the date of receipt of the revocation and shall include a written explanation stating with particularity the reason for the request. Upon receipt of a timely request for reconsideration, the vendor shall be entitled to a formal hearing before the city collector or a hearing examiner designated by the city collector in order to provide the vendor with an opportunity to show that the action taken was

incorrect or contrary to law, in whole or in part, after which hearing, the city collector or the designee shall either grant or deny the request with justification thereof in writing within 15 days of the hearing. If the request for reconsideration is denied, the vendor may appeal within 30 days from the date of the denial or revocation of the permit to the Circuit Court of Kanawha County in the manner prescribed by law for an appeal of an administrative decision.
(Bill No. 7887, 4-19-2021; Bill No. 8028, 2-20-2024)

**Editor's note—**Bill No. 8028, adopted Feb. 20, 2024, amended § 18-1040 and in doing so changed the title of said section from "Request for reconsideration and appeal of revocation of street vending permit" to "Request for reconsideration and appeal of revocation of vending permit," as set out herein.

### Sec. 18-1041. Compliance with federal, state and local laws and regulations.

(a) The operation of a nonmotorized vending unit or mobilized vending vehicle pursuant to a vending permit granted under this article shall comply with all provisions of state and local building and fire codes, as well as all state and local health laws and regulations regarding the service and preparation of food, if applicable. Nothing in this article shall be intended to alter or abridge any applicable federal, state and local laws, unless specifically stated herein with respect to the Municipal Code of the City of Charleston.

(b) Nothing in this article shall be intended to alter or abridge the prohibition of service of alcoholic beverages or possession thereof on public property in the city, as set forth in applicable West Virginia Code and the Municipal Code of the City of Charleston.

(c) All vendors are responsible for complying with all taxation and fee requirements as provided in this Code, including, but not limited to, the business and occupation tax as imposed in sections 110-52 through 110-59 and the city service fee as imposed in sections 2-737 and 2-744. However, the taxation and fee requirements for vendors shall be on an annual filing basis for the entire calendar year on forms prescribed by the city collector, rather than by quarterly filing. Therefore, all tax and fee requirements referenced herein shall be filed and paid to the office of the city collector by January 31st of the succeeding year. Failure to properly file the required annual tax return will result in the withholding or suspension of a vendor permit.
(Bill No. 7887, 4-19-2021; Bill No. 8028, 2-20-2024)

### Sec. 18-1042. Penalty.

In addition to any penalties or sanctions provided in this article, the violation of any requirement of this article shall constitute an offense punishable by a civil penalty not to exceed $500.00 for each offense. Each day of violation shall be considered a separate offense. Any person assessed such a civil penalty shall have the right to appeal the civil penalty to the municipal court by posting bond equivalent to the penalty with the municipal court within thirty days of the date of the assessment and the municipal court shall set the matter for a hearing within six weeks of the appeal.
(Bill No. 7887, 4-19-2021)

### Secs. 18-1043—18-1060. Reserved.

## DIVISION 2. VENDOR STANDARDS*

### Sec. 18-1061. Requirements and regulations of vendors.

(a) It shall be unlawful to leave any nonmotorized vending unit or mobilized vending vehicle unattended on an approved public right-of-way or remain on an approved public right-of-way outside of the allowed hours of operation, unless the mobilized vending vehicle is legally parked in a manner consistent with all parking and traffic regulations. If any nonmotorized vending unit is left unattended for more than 30 minutes, it will be considered abandoned and may be removed by the city. A mobilized vending vehicle left unattended in violation of this subsection

*__Editor's note—__Bill No. 8028, adopted Feb. 20, 2024, repealed the former Div. 2, § 18-1061, and enacted a new Div. 2 as set out herein. The former Div. 2 pertained to nonmotorized vending units; pushcarts, tables and stands and derived from Bill No. 7887, adopted April 19, 2021.

shall be subject to citation(s) for traffic/parking violations and may be towed by the city. If removed or towed by the city consistent with this subsection, the vendor shall be liable for all reasonable removal, towing, and storage charges. The city may also require additional restrictions to abate nuisances.

(b) A vendor may not operate a nonmotorized vending unit or mobilized vending vehicle within 200 feet of any event that is authorized by the city, unless the vendor is an approved participant in such event.

(c) A vendor operating a nonmotorized vending unit or mobilized vending vehicle may not make or cause to be made any unreasonable or excessive noise in violation of section 78-212 of this Code, including noise from generators. Any vendor operating a nonmotorized vending unit or mobilized vending vehicle in conjunction with an operational generator may not operate within 50 feet from any outdoor dining area as defined in this article. A vendor may not use or maintain any outside sound amplifying equipment, lights, or noisemakers, such as bells, horns or whistles or similar devices. A vendor engaging in food service shall take all reasonable steps to prevent activity akin to a nuisance, including, but not limited to, smoke and steam emissions.

(d) With the exception of trash bins and signage authorized by this section, a vendor operating a nonmotorized vending unit or mobilized vending vehicle may not use or place on the approved public right-of-way any tables, seating, or any other equipment not contained within or upon the nonmotorized vending unit or mobilized vending vehicle.

(e) A vendor operating a nonmotorized vending unit or mobilized vending vehicle may not have any exclusive and/or perpetual right to use any location upon the streets, alleys, or public grounds of the city. All locations designated as approved public rights-of-way for nonmotorized vending units shall be available on a first come, first served basis with no particular location(s) assigned to any particular vendor(s). Notwithstanding, the city may assign locations for vendors during city-sponsored events.

(f) A vendor operating a nonmotorized vending unit or mobilized vending vehicle may not conduct business on an approved public right-of-way between the hours of 4:00 a.m. and 6:00 a.m. nor may any nonmotorized vending unit or mobilized vending vehicle be permitted to remain on an approved public right-of-way between the hours of 4:00 a.m. and 6:00 a.m., unless the mobilized vending vehicle is parked in conformance with all applicable parking and traffic regulations. Mobilized vending vehicles shall be parked at all times in conformance with applicable parking and traffic regulations, including, but not limited to, payment of parking meters during hours of operation, and may not hinder the lawful parking or operation of other vehicles. Mobilized vending vehicles may not bag parking meters to conduct street vending operations. Mobilized vending vehicles shall be permitted to park in loading zones between the hours of 6:00 p.m. and 4:00 a.m. Any opening or window from which business is conducted for all mobilized vending vehicle must open toward the sidewalk, walkway or parking area. No window or opening from which business is conducted may open toward the street or traffic area.

(g) A nonmotorized vending unit or mobilized vending vehicle operating within the designated locations may not be of a size or configuration as to interfere with city or public use of any public right-of-way or impede ingress or egress by vehicles or pedestrians.

(h) An unobstructed clearance for pedestrian travel consistent with the Americans with Disabilities Act must be maintained around any nonmotorized vending unit or mobilized vending vehicle.

(i) An unobstructed clearance of 42 inches, must be maintained between a fire hydrant and any nonmotorized vending unit or mobilized vending vehicle.

(j) A vendor operating a nonmotorized vending unit or mobilized vending vehicle may not park such unit on a utility/manhole cover located upon an approved public right-of-way.

(k) Vendors shall obey any lawful order of a police officer to move a nonmotorized vending unit or mobilized vending vehicle to a different approved location, or to remove it entirely, if necessary to avoid congestion or obstruction of a public right-of-way, or for the city's use of such right-of-way for emergency purposes, construction or any other public benefit deemed necessary or appropriate at the discretion of the officer including, but not limited to, nuisance abatement.

(l) Any power required for a nonmotorized vending unit or mobilized vending vehicle located on an approved public right-of-way shall be self-contained and it may not draw its power from the public right-of-way, except where approved by the city manager. Power cables or equipment may not extend across any public street, alley or sidewalk.

(m) Vendors operating a nonmotorized vending unit or mobilized vending vehicle shall contain all refuse, trash, and litter within the nonmotorized vending unit or mobilized vending vehicle, or provide a small moveable trash can maintained by the street vendor and located adjacent to the nonmotorized vending unit or mobilized vending vehicle in such a manner as not to block or otherwise obstruct pedestrian or vehicular traffic. The operator of the nonmotorized vending unit or mobilized vending vehicle shall be responsible for properly disposing of such refuse, trash, and litter as would any business, and shall not place it in any public trash container, or in any private container without proper permission. Spills of food or food by-products shall be cleaned up by the vendor operating the nonmotorized vending unit or mobilized vending vehicle, and no dumping of gray water on the streets is allowed.

(n) Any signage or advertising signs shall be maintained by the vendor and located adjacent to the nonmotorized vending unit or mobilized vending vehicle in such a manner as not to block or otherwise obstruct pedestrian or vehicular traffic.

(o) The vendor's permit shall be displayed conspicuously at all times upon the vendor's vehicle, table, cart or container. Any and all additional licenses or permits required pursuant to law and this article shall be displayed conspicuously at all times upon the vendor's vehicle, table, cart or container.

(p) Nothing in this section shall be construed to prohibit the distribution or the sale of newspapers on the sidewalks or from a vehicle.
(Bill No. 8028, 2-20-2024)

**Secs. 18-1062—18-1080. Reserved.**

DIVISION 3. RESERVED*

**Secs. 18-1081—18-1160. Reserved.**

## ARTICLE XXIII. TREE SERVICES

### Sec. 18-1161. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

*Tree service* means cutting, trimming, topping, removal, pruning, land clearing, brush snipping and shrub trimming.
(Bill No. 7571, 4-15-2013)

### Sec. 18-1162. Penalties.

Any person convicted of a misdemeanor under this article shall have his permit revoked pursuant to the provisions of section 18-49.
(Bill No. 7571, 4-15-2013)

### Sec. 18-1163. Permit required.

No person shall engage in the business of tree service without having first secured an annual permit from the city collector. The fee for such annual permit shall be $20.00.
(Bill No. 7571, 4-15-2013; Bill No. 7576, 5-20-2013)

---

*__Editor's note—__Bill No. 8028, adopted Feb. 20, 2024, repealed Div. 3 § 18-1081, which pertained to mobilized vending vehicles and derived from Bill No. 7887, adopted April 19, 2021.

**Sec. 18-1164. Identification card.**

Upon the payment of the annual permit fee under this article, the applicant shall be issued a permit identification card which must be carried by the person engaging in such tree service within the city and shall be presented to any official upon request.
(Bill No. 7571, 4-15-2013)

**Sec. 18-1165. Disposal of material.**

It shall be the responsibility of the person engaging in the business of tree service to remove and dispose of any and all material resulting from such tree service within a reasonable time period not exceeding five days.
(Bill No. 7571, 4-15-2013)

**Secs. 18-1166—18-1169. Reserved.**

## ARTICLE XXIV. RESIDENTIAL RENTAL PROPERTIES

### DIVISION 1. RESIDENTIAL RENTAL LICENSE

**Sec. 18-1170. Purpose and scope.**

(a) It is the purpose of the City of Charleston's residential rental properties ordinance to assure that rental housing in the city is maintained in a good, safe, and sanitary condition, to ensure that all rental units meet all applicable building, fire, health, safety and zoning codes, and to provide an efficient system for compelling both absentee and local landlords to correct violations and maintain, in proper condition, rental property within the city.

(b) This article applies to any rental unit located within the city.

(c) This section shall be construed liberally in order to achieve the purposes and intent enunciated herein.

(d) The provisions of this article shall be in addition to, and not in lieu of, methods or processes otherwise contained in any ordinance or law of the city, county or state.

(e) Any and all building commission officials shall have authority to enforce the provisions of this section and shall be referred to herein as code enforcement officers.
(Bill No. 7571, 4-15-2013)

**Sec. 18-1171. Exceptions.**

This article specifically excludes the following:

(1) Transient occupancy in a hotel, motel, inn, bed and breakfast, or other similar lodging facility;

(2) Group homes, community living arrangements, or foster homes;

(3) Hospitals, nursing homes, congregate care facilities, assisted living facilities, extended medical care facilities, or other similar facilities;

(4) Homeless shelters;

(5) Public housing, owned by a governmental agency, and any housing owned or controlled by the Charleston-Kanawha Housing Authority;

(6) On-campus residential facilities owned, operated or managed by the University of Charleston or other accredited college or university;

(7) Single-family dwellings that a relative of the owner occupies and no net income is earned by the owner;

(8) Residential facilities owned, operated or managed by or for the benefit of a hospital, or by or for the benefit of any affiliate or supporting organization of a hospital, providing housing exclusively for students, trainees, interns or residents in medical, nursing, medical technologist or other allied health care fields.

(Bill No. 7571, 4-15-2013)

**Sec. 18-1172. Definitions.**

As used in this article, the following terms and words shall have the following meanings, unless the context clearly indicates that a different meaning is intended:

*City* means the City of Charleston.

*Hotel* means a business establishment under single management which provides sleeping accommodations for transients with or without meals, having an annual turnover of room occupancy exceeding 300 percent in which the rooms are not directly accessible from an outdoor area.

*Motel* means a business establishment under single management which provides sleeping accommodations for transients with or without meals, having an annual turnover of room occupancy exceeding 300 percent in which the rooms are directly accessible from an outdoor area.

*On-campus residential facility* means a building owned or controlled by an educational institution and/or other institution of higher learning, or spaces within buildings owned or controlled by an educational institution and/or other institution of higher learning, where housing is provided exclusively for students.

*Owner* or *landlord* means one or more person(s), in whom is vested all or part of the legal title to a rental unit, or all or part of the beneficial ownership and a right to present use and enjoyment of the rental unit, including a mortgagee in possession, who rents or leases such rental unit, either personally or through a designated agent, to any tenant.

*Person* means any natural individual, firm, partnership, association, joint stock company, joint venture, limited liability company, limited partnership, public or private corporation or receiver, or any other legal entity, executor, personal representative, government, governmental subdivision or agency, estate, trust, trustee, conservator or other representative appointed by order of any court.

*Rental unit* means a room or group of rooms within any structure, building, house, mobile home, or any portion thereof, arranged or designed to be occupied for residential sleeping, living, cooking, and sanitation purposes by one or more persons, which is leased or rented from the owner of such units, or the owner's designated agent, to any tenant, whether by day, week, month, year, or any other term. The word[s] "rental unit" shall not include any of the exceptions contained in section 18-1171 herein.

*Responsible local agent* means the owner, or a natural person designated by the owner as the agent responsible for operating a rental unit in compliance with the ordinances adopted by the city. In many instances, the responsible local agent may be the owner if no other responsible party exists.

*Tenant* means any individual who has, in exchange for monetary or other valuable consideration, the temporary use and occupancy of real property owned by another person in subordination to that other person's title and with that other person's consent; for example, a person who rents or leases a rental unit from an owner.
(Bill No. 7571, 4-15-2013)

### Sec. 18-1173. Residential rental license required.

On July 1, 2010 and thereafter, it shall be unlawful for any owner to lease or rent, or hold out for rent or lease by advertisement or otherwise, a rental unit located within the city without possession of a valid residential rental license for that rental unit, authorized by the city and complying with all provisions of this article. The residential rental license requirement provided for in this article shall be in addition to any general business license required in this article but no fee shall be charged for a residential rental license.
(Bill No. 7571, 4-15-2013; Bill No. 7636, 11-17-2014)

### Sec. 18-1174. Application requirements for residential rental license.

(a) The residential rental license provided for in this article shall be in the form of a certificate issued by the city collector to any owner making proper application on forms to be prescribed and furnished by the city collector.

(b) An application for a residential rental license may be denied if the owner has:

(1) Delinquent business and occupation taxes related to income derived by owner from rental units located within the city; or

(2) Delinquent fire or refuse fees related to the rental unit for which the owner is applying for a residential rental license; or

(3) Fines due and owing the city arising from building, planning or zoning violations related to the rental unit for which the owner is applying for a license.

(c) An application for a residential rental license shall be denied if the city has reason to believe following a reasonable and appropriate inquiry, that one or more of the rental units is unfit for human occupancy or is located in an unsafe structure.

(d) Applications for a residential rental license shall be filed with the city collector's office, and shall include the following:

(1) The street address of the rental unit(s);

(2) The number and types of rental unit(s);

(3) The square footage of each rental unit;

(4) Name, residence address, telephone number, and e-mail address (if applicable), mobile telephone number, and facsimile number of all owners of the rental unit(s);

(5) Name, residence address, telephone number, and e-mail address (if applicable), mobile telephone number, and facsimile number of the responsible local agent designated by the owner, for each rental unit;

(6) The maximum number of tenants permitted for each rental unit;

(7) The name, address, telephone number, and e-mail address (if applicable), mobile telephone number, and facsimile number of the person(s) authorized to collect rent from the tenants if other than owner or responsible local agent;

(8) The name, address, telephone number, and e-mail address (if applicable), mobile telephone number, and facsimile number of the person authorized to make or order repairs or services for the rental unit, if in violation of city or state codes, if the person is other than the owner or the responsible local agent;

(9) The name, address and telephone number of the bank or other financial institution, if any, who holds a lien on the rental unit(s) or the land on which the rental unit(s) is located;

(10) The name, address and telephone number of the person designated to accept all legal notices or services of process with respect to the rental unit(s).

(e) The issuance of a residential rental license by the city for any rental unit shall not constitute a finding by the city that the rental unit is in compliance with any or all requirements imposed by city, state, or federal law or regulation.
(Bill No. 7571, 4-15-2013)

### Sec. 18-1175. Responsible local agent.

The owner and/or designated responsible local agent shall be responsible for all of the following:

(1) Operating the licensed rental unit in compliance with all applicable city, county or state laws related to building, fire, health, safety, or zoning; and

(2) Providing access to the rental unit(s) for the purpose of permitting any and all city inspections necessary to ensure compliance with applicable city ordinances related to building, fire, health, safety or zoning, including using all commercially reasonable efforts to obtain permission from tenants for access; and

(3) Maintaining a list of the names and number of occupants of each rental unit for which he or she is responsible.
(Bill No. 7571, 4-15-2013)

### Sec. 18-1176. Accurate and complete information.

All information provided on the license application form for the residential rental license shall be accurate and complete. No person shall provide inaccurate information for the license of a rental unit, or fail to provide the information required

for a residential rental license. The residential rental license application form shall be signed by both the owner(s) and the designated responsible local agent, if applicable. Where the owner is not a natural person, the owner information shall be that of the president, general manager or other chief executive of the organization who is duly authorized to execute the application. Where more than one person has an ownership interest, the required information shall be provided for each such owner.
(Bill No. 7571, 4-15-2013)

**Sec. 18-1177. Residential rental license term and renewals.**

(a) The effective date for a residential rental license shall be from January 1 through December 31 of each year. The owner shall apply for renewal each year prior to the expiration of the residential rental license by completing a renewal application on forms to be prescribed and furnished by the city collector.

(b) Any valid, properly issued residential rental license obtained prior to the passage of City of Charleston Bill No. 7636 shall remain valid until December 31, 2014.
(Bill No. 7571, 4-15-2013; Bill No. 7636, 11-17-2014)

**Sec. 18-1178. Change in registration information or transfer of property.**

Owners shall notify the city collector of any change in the designation of the responsible local agent, including a change in name, address, e-mail address, telephone number, mobile telephone number or facsimile number of the designated responsible local agent within five business days of the change. Within 30 days of any change of ownership of a rental unit, the new owner shall apply for a residential rental license for that rental unit.
(Bill No. 7571, 4-15-2013)

**Sec. 18-1179. Revocation of residential rental license.**

After adequate inquiry and verification of the reasons therefor, the city collector, upon reasonable written notice to the licensee, may revoke any residential rental license issued by him pursuant to the provisions of this Code for any reason which would have been grounds for denial of such license when first issued, for violation of any term or condition of such license, or for violation of any applicable provision of state law, this Code or other ordinance related to building, fire, health, safety or zoning. Any person having an interest in any residential rental license so revoked and who disputes such revocation may request that the city collector further investigate the grounds for revocation and reconsider his action. If the city collector accedes to such request, he may temporarily suspend or reinstate the residential rental license pending his final decision. If the city collector refuses to accede to such request or if, upon reconsideration, he affirms his revocation of the residential rental license, his decision shall be final, subject to such judicial review as may be provided by law.
(Bill No. 7571, 4-15-2013)

## DIVISION 2. INSPECTIONS OF RENTAL PROPERTY

**Sec. 18-1180. Periodic inspections.**

In addition to all other inspections permitted herein or otherwise permitted by law, each rental unit shall be subject to periodic inspection to determine compliance with the provisions of this article and all other applicable city, county or state laws related to building, fire, health, safety, or zoning; provided that said periodic inspections shall be conducted no more than once in any 24-month period for each rental unit.
(Bill No. 7571, 4-15-2013)

**Sec. 18-1181. Other bases for inspections.**

Inspections may also be made by code enforcement officers based upon, but not limited to, one or more of the following:

(1) A colorable complaint received by the city, or any law enforcement agency, indicating that there is a violation of applicable city, county or state law laws related to building, fire, health, safety, or zoning.

(2) An observation by any planning or zoning official, fire or law enforcement officer, or

any code enforcement officer of a violation of applicable city, county or state laws related to building, fire, health, safety, or zoning.

(3) A credible report or observation of an unsecured or unoccupied rental unit that is damaged by fire.

(4) The need to determine compliance with a notice of violation issued by the city related to the rental unit.

(5) A request for an inspection by the owner or tenant.

(6) When the building commissioner, fire chief or their respective designee(s) has a reasonable belief that a condition exists related to the rental unit which poses imminent danger to the tenant or the public.

(Bill No. 7571, 4-15-2013)

**Sec. 18-1182. Inspection procedures.**

Code enforcement officers shall be authorized to enter into a rental unit at reasonable times to inspect the same, provided that permission to enter the rental unit is obtained from the owner or responsible local agent, and the tenant. If the rental unit is rented during the time of inspection, code enforcement officers shall obtain tenant's consent for the inspection in writing and on a form which clearly informs the tenant of their right to refuse to submit the rental unit for inspection. The owner(s) or their responsible local agent shall make commercially reasonable efforts to notify tenants of planned inspections of their rental units. Owner shall also be solely responsible for complying with state law regarding entrance into leased property. If an owner, tenant, or other person in charge of a rental unit refuses to permit unrestricted access and entry to the rental unit, or any part thereof, for an inspection authorized by this section, a code enforcement officer may, upon a showing that probable cause (as the term is defined in Camara v. Municipal Court, 387 U.S. 523 (1967)) exists for the inspection of the rental unit, petition and obtain an order to inspect and/or a search warrant from a court of competent jurisdiction.

(Bill No. 7571, 4-15-2013)

**Sec. 18-1183. Notice of violation; corrective action; re-inspection.**

(a) Whenever a code enforcement officer determines that any rental unit is in violation of applicable city or state laws related to building, fire, health, safety or zoning, the code enforcement officer shall provide written notice of the violation to the owner or responsible local agent and shall specify a reasonable time period in which the violation must be corrected.

(b) Failure to correct violations within the time period specified by the code enforcement officer may result in an immediate revocation of the residential rental license for that rental unit and may further subject the owner to the penalties set forth in section 18-1185 of this article, and any other penalties permitted under this Code. No residential rental license shall be revoked for failure to remedy a condition so long as the owner or responsible local agent is, in the discretion of the code enforcement officer, acting with due diligence and taking bona fide steps to correct the violation, including, but not limited to, pursuing remedies under a lease agreement with a tenant.

(c) Code enforcement officers may, in their discretion, perform one or more re-inspections of a rental unit in which violations have occurred for the purpose of verifying corrective action. If, in the discretion of the code enforcement officer, required repairs can reasonably be made at the time of inspection, no re-inspection will be required and no re-inspection fee will be charged.

(Bill No. 7571, 4-15-2013; Bill No. 7576, 5-20-2013)

**Sec. 18-1184. Re-inspection fee.**

The fee for the first re-inspection shall be $50.00 per rental unit inspected. The fee for the second and all subsequent re-inspections shall be $100.00 per rental unit inspected. All fees shall be paid to the city collector's office. If, in the discretion of the code enforcement officer, the need for re-inspection has been a result of intentional damage by the tenant, the code enforcement officer may waive any re-inspection fee.

(Bill No. 7571, 4-15-2013)

**Sec. 18-1185. Penalties.**

(a) Any owner who leases or rents, or holds out for rent by advertisement or otherwise, a rental unit within the city without possession of a valid residential rental license for that rental unit, or who otherwise fails to comply with the requirements of this article shall be subject to a fine of not less than $500.00 per rental unit. Each month the violation exists shall constitute a separate violation.

(b) The imposition of a penalty does not prevent suspension or revocation of a license, permit or franchise, or other administrative sanctions.

(c) Violations of this article that are continuous with respect to time are a public nuisance and may be abated by injunctive or other equitable relief. The imposition of a penalty does not prevent injunctive relief.

(d) Violations of this article shall be adjudicated through the Municipal Court of Charleston, West Virginia.
(Bill No. 7571, 4-15-2013; Bill No. 7636, 11-17-2014)

**Sec. 18-1186. Severability.**

The sections, subsection, paragraphs, sentences, clauses and phrases of this article and all provisions adopted by reference in this article are severable so that if any section, subsection, paragraph, sentence, clause and phrase of this article or any provision adopted by reference in this article is declared unconstitutional or invalid by a valid judgment of a court of competent jurisdiction, such judgment shall not affect the validity of any other section, subsection, paragraph, sentence, clause and phrase of this article or of any provision adopted by reference in this article, it being the intent of council that it would have enacted this article and all provisions adopted by reference in this article without such invalid or unconstitutional provisions.
(Bill No. 7571, 4-15-2013)

Chapters 19—21

**RESERVED**

# Chapter 22

# CEMETERIES*

## Article I. In General

Secs. 22-1—22-30. Reserved.

## Article II. Spring Hill Cemetery

### Division 1. Generally


Sec. 22-31. Definitions.
Sec. 22-32. Cemetery ownership.
Sec. 22-33. Plats of sections.
Sec. 22-34. Cemetery register.
Sec. 22-35. Price of rights of interment.
Sec. 22-36. Procedure for purchase of right of interment; execution of documents; maintenance of records.
Sec. 22-37. Disposition of proceeds from sale of rights of interment and other transactions.
Sec. 22-38. Use of roads.
Sec. 22-39. Burial at prohibited places.
Sec. 22-40. Destruction or injury of shrubbery or monuments.
Sec. 22-41. Interments and disinterments.
Sec. 22-42. Legal descent of burial rights at cemetery.
Sec. 22-43. Reserved.
Secs. 22-44—22-60. Reserved.


### Division 2. Commission


Sec. 22-61. Creation; power and duties.
Sec. 22-62. Membership; terms; compensation.
Sec. 22-63. Officers; rules for transaction of business; meetings; records.
Sec. 22-64. Operations and management.


---

***Charter reference—**Cemeteries, § 99.

**Cross reference—**Streets, sidewalks and other public places, ch. 102.

**State law reference—**General authority relative to cemeteries, W. Va. Code § 8-12-5(42).

## ARTICLE I. IN GENERAL

**Secs. 22-1—22-30. Reserved.**

## ARTICLE II. SPRING HILL CEMETERY*

### DIVISION 1. GENERALLY

**Sec. 22-31. Definitions.**

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

*Cemetery* means Spring Hill Cemetery Park.

*Certificate of right of interment* means the document that conveys the right of interment.

*Columbarium* means a structure, either freestanding or part of another building or structure, containing niches for the inurnment of cremated remains.

*Commission* means the Spring Hill Cemetery Park Commission.

*Crypt* means a space in a mausoleum or lawn crypt which is designed to receive a casket.

*Entombment* means the placing of human remains in a mausoleum crypt.

*Interment* means the disposition of human remains by burial in the earth, entombment in a mausoleum or inurnment in a columbarium.

*Interment space* means the space designated by number and locations in a mausoleum or in a columbarium for entombment or inurnment of human remains.

*Inurnment* means the placing of cremated remains in a columbarium niche.

*Lawn crypts* means burial vaults, either single or double size, placed underground prior to actual burial.

*Lot* means a particular area designated by map numbers and location within the cemetery consisting of a fixed number of grave spaces.

*Marker* means any memorial lying flat on the ground; generally set flush with the level of the turf, but not to be greater than eight inches above the ground.

*Mausoleum* means a building housing multiple crypts.

*Memorial* means any monument, marker, tablet, nameplate or structure placed upon or in any place of interment or elsewhere in the cemetery for the purposes of identification or in memory of a deceased person.

*Monument* means any memorial set upright or perpendicular to the grade that is greater than eight inches above the ground.

*Niche* means a compartment, as in a columbarium, for holding urns of cremated remains.

*Right of interment* means the right to specify who may be interred or entombed in a cemetery space, and the right to place a memorial or marker where permitted.

*Second right of interment* means the right to specify that the cremated remains of a particular person may be placed in a cemetery space that already contains another person's remains, and the right to place a memorial or marker where permitted.
(Bill No. 7540, 10-1-2012)

**Sec. 22-32. Cemetery ownership.**

Notwithstanding the provisions of this article, the ownership of and fundamental responsibility for Spring Hill Cemetery Park will remain with the city and this article shall not be construed as compromising that obligation.
(Bill No. 7540, 10-1-2012)

*__Editor's note—__Bill No. 7540, adopted Oct. 1, 2012, deleted the former Art. II, Div. 1, §§ 22-31—22-43, Div. 2, §§ 22-61—22-68 and enacted a new Art. II as set out herein. The former Art. II pertained to the Spring Hill Cemetery and derived from Ord. No. 6417, §§ 27-1—27-20, 3-16-1998; Bill No. 7006, § 27-7, 10-21-2003; Bill No. 7172, adopted 11-21-2005.

**Sec. 22-33. Plats of sections.**

(a) The superintendent shall maintain a plat of the various sections in the cemetery which shall exhibit the purchased, occupied, unoccupied and available lots. Such plat shall be open to examination during regular business hours of the cemetery with reasonable notice as required by rules of the commission.

(b) The commission shall have the right, without changing the locations of burial lots previously sold, to replat all or any part of the cemetery; to install, alter, relocate or close any roadway or walkway; to lay and maintain pipelines, sanitary or storm sewers, gutters and sprinkling systems; and to enlarge, reduce or change boundaries of the sections or lots of the cemetery.
(Bill No. 7540, 10-1-2012)

**Sec. 22-34. Cemetery register.**

The city clerk shall keep a record to be known as the cemetery register wherein shall be recorded a memorandum showing each section and each lot or interment space, giving the number and section or area, the name of the purchaser, the date the certificate of right of interment was issued, for and by whom made, the amount and date of payment for and to whom paid, the names of parties interred with the date of interment and the date of death. Each register shall be indexed in the names of the owners of the certificate of right of interment, as well as in the names of the parties interred.
(Bill No. 7540, 10-1-2012)

**Sec. 22-35. Price of rights of interment.**

The commission may establish, and from time to time amend, a schedule of prices, which in each case must be approved by the city council by resolution, for the sale of rights of interment in the cemetery, for installation of memorials, for opening and closing of graves, and for other services or merchandise provided by the cemetery. Each schedule adopted shall be maintained on file in the office of the city clerk and available on the City or Spring Hill Cemetery website, so long as it remains in effect. Until the commission adopts a schedule of prices pursuant to this section, the price of lots in the cemetery shall be as in effect immediately prior to the effective date of this Code.
(Bill No. 7540, 10-1-2012; Bill No. 7904, 5-3-2021)

**Sec. 22-36. Procedure for purchase of right of interment; execution of documents; maintenance of records.**

(a) Any person desiring to purchase a right of interment shall make application to the superintendent, who shall keep in his possession a map of the cemetery, each lot on each map to show the size and the schedule of rates as specified in section 22-43 herein. Upon ascertaining the number, and price of a lot desired by a purchaser, the superintendent shall certify the information to the city collector. Pre-need services and a right of interment may be purchased on an installment basis upon such terms approved by the commission from time to time. However, right of interment and services may not be used until the purchase price is paid in full. Upon payment in full of the purchase price of the right of interment and services, the cemetery superintendent shall issue his receipt, in quadruplicate, one copy to be retained by him, one copy to be forwarded to the city collector, one copy to be forwarded to the city clerk and one copy to be given to the purchaser. The city clerk shall thereupon cause to be prepared a right of interment, to be executed by the mayor in the name of the city and under the seal of the city which shall be certified by the city clerk. All records pertaining to interment rights in the cemetery shall be kept and maintained by the city clerk, with a copy maintained by the cemetery.

(b) The purchase of the right of interment in the cemetery does not imply ownership in the strict real estate sense of the word. Title to the real property comprising the cemetery shall be and remain vested in the city and the rights of a purchaser of a right of interment or subsequent owner of a right of interment shall be limited to the right to use the designated property for the placement of human remains only. The city reserves to itself, to the commission and to those lawfully entitled thereto the perpetual right of

ingress or egress over lots in the cemetery for purposes of passing to and from other lots. These rights are subject to the terms of applicable purchase agreements, contracts, and the rules and regulations of the cemetery commission.
(Bill No. 7540, 10-1-2012)

### Sec. 22-37. Disposition of proceeds from sale of rights of interment and other transactions.

The net proceeds, after payment of commission or other obligations if any, arising from the sale of rights of interment shall be paid into the Spring Hill Cemetery Park Combined Endowment Fund. All other moneys derived from sales, services, or other transactions relating to the cemetery shall be deposited with the city treasurer and placed by the city treasurer to the credit of the city's general fund. Expenditures from the Spring Hill Cemetery Park Combined Endowment fund shall be requisitioned and accounted for pursuant to procedures established by the commission.
(Bill No. 7540, 10-1-2012)

### Sec. 22-38. Use of roads.

The use of any roads of the cemetery or the construction of new roads within the cemetery for purpose other than those legitimately connected with the proper use of the cemetery shall be prohibited. None of the roads of the cemetery shall be used as a public thoroughfare, and such use shall not be allowed by the commission; except that all existing contract rights of the Catholic and Jewish congregations of the city, Mountain View Cemetery and Etta Wehrle are saved to them.
(Bill No. 7540, 10-1-2012)

### Sec. 22-39. Burial at prohibited places.

No person shall bury or cause to be buried any body in any of the avenues, roads, alleys or unsurveyed spaces within the cemetery or bury or cause to be buried any body in any lot in the cemetery of which he does not have a right of interment or for which he shall not have the consent of the owner of the right of interment.
(Bill No. 7540, 10-1-2012)

### Sec. 22-40. Destruction or injury of shrubbery or monuments.

It shall be unlawful for any person to break down, deface, cut, remove or otherwise injure any evergreen or other trees, flowers, shrubs, tombstones, monuments or other property in the cemetery.
(Bill No. 7540, 10-1-2012)

### Sec. 22-41. Interments and disinterments.

(a) A burial/transit permit is required for interment of all bodies or cremated remains regardless of the type of interment desired.

(b) The right is reserved by the commission to require at least 24 hours' notice prior to any interment and at least one week's notice prior to any disinterment or removal.

(c) In the case where multiple rights of interment are owned and when an interment is to be made, it shall be the duty of the owner, his successor in burial rights, or his or their legal representatives, to select the grave or crypt. The commission will not be responsible for errors in location.

(d) The commission reserves the right to refuse interment in any lot and to refuse to open any burial space for any purpose except on written application signed by the owner of the right of interment, or by the successor in burial rights. In case of a disagreement among joint owners of a right of interment, the commission shall have full power to decide the matter in dispute, and to accept or refuse to accept orders from any one of the owners.

(e) The commission shall be in no way liable for any delay in the interment of a body or cremated remains, if the delay results from a protest of interment due to a failure to comply with the rules. The commission will recognize no protest unless it is in writing, properly notarized and filed with the office.

(f) The preparation of graves, crypts, or niches and openings for disinterments will be carried out only by workers employed by the cemetery, for which approved charges will be made and paid in advance.
(Bill No. 7540, 10-1-2012)

**Sec. 22-42. Legal descent of burial rights at cemetery.**

(a) The original purchaser of a right of interment at the cemetery may stipulate the person to receive the use of any remaining spaces. Such designation must be made in writing, signed and acknowledged before a notary public by the original purchaser either at the time of purchase or at a later date. The written designation shall be filed at the cemetery office.

(b) If the original purchaser of a right of interment shall not have made such designation prior to his death, interments on such lot or interment space shall be made in the following order:

(1) Space shall be reserved for the spouse whether marrying again or not, and such spouse shall have first right of interment to the exclusion of all other persons.

(2) The direct lineal descendants of the original purchaser in nearest degree of consanguinity shall have the next right to interment in the order of their death.

(3) If there remains unoccupied space after providing for interments specified in subsections (b)(1) and (2) of this section or if there is no lineal descendants of the original purchaser, the collateral kindred in the nearest consanguinity to the original purchaser in order of their death shall be entitled to interment.

(4) Notwithstanding anything provided in this section to the contrary, the commission, or the cemetery superintendent, may in their sole discretion permit the burial on a lot or interment space of any person, whether or not belonging to any of the classes specified in subsections (b)(1), (2) and (3) of this section, who, by reason of blood kindred or family relationship to or by reason of close association with the deceased original purchaser or specified successor, or any person buried or presumptively to be buried on the lot or interment space, is deemed by the commission or the cemetery superintendent to be justly and equitably entitled to be buried on the lot or interment space, unless there shall be on file with the commission written objection to the burial of such person, duly signed and acknowledged by one or more persons of the class of nearest kindred then presumptively entitled to burial, in which latter case no burial outside the specific class of descendants of collateral kindred shall be made without the consent of such objector or objectors.

(c) In case interment rights in the same lot or interment space shall have been granted to more than one person, such rights shall be held by them as tenants in common; and in case of disagreement between them, or between persons who shall be entitled after the death of either or both of such tenants in common, the commission shall be entitled to make partition of such lot or interment space in severalty, as in uncontrolled discretion it may deem most equitable and just, without such discretion being subject to the control of any court or without being answerable for its exercise.

(d) In determining the ownership of rights of interment, the commission shall not at any time be bound to recognize any person as grantee or owner of any rights except a grantee named in the original conveyance and successors as specified in this section. Nor shall the commission in any way be bound to recognize any agreement or understanding affecting such burial rights not filed with and approved by the commission, and recorded by the city clerk.
(Bill No. 7540, 10-1-2012)

**Sec. 22-43. Reserved.**

**Editor's note—**Bill No. 7904, adopted May 3, 2021, repealed § 22-43, which pertained to schedule of rates for the Spring Hill Cemetery Park and derived from Bill No. 7540, Oct. 1, 2012.

**Secs. 22-44—22-60. Reserved.**

## DIVISION 2. COMMISSION

### Sec. 22-61. Creation; power and duties.

(a) In the exercise of the general powers of the city, pursuant to W. Va. Code § 8-12-5 and W. Va. Code ch. 8, art. 16 (W. Va. Code § 8-16-1 et seq.), there is created a cemetery park commission to be known as The Spring Hill Cemetery Park Commission.

(b) The commission shall have power, authority and duty as set forth herein in relation to the grounds purchased by the city and more particularly described in all deeds of conveyance to the city and of record in the office of the clerk of the county commission and any other grounds which have been appropriated by the city for the purpose of a cemetery, and any other adjacent land which may be purchased or acquired by the city for cemetery purposes. Except where reference to separate cemetery grounds is necessary for specific provisions, the foregoing cemetery grounds and all structures and improvements are collectively referred to for purposes of this division as the cemetery or as Spring Hill Cemetery Park.

(c) The commission shall have the plenary power and authority to acquire by gift, grant, purchase, condemnation or otherwise and thereafter hold all necessary lands, rights, easements, rights-of-way, franchises and other property for the Spring Hill Cemetery Park; however, the commission's right of condemnation shall not extend beyond the current perimeter boundaries of the Spring Hill Cemetery.

(d) The commission shall have the power, authority, and duty to establish reasonable and lawful rules and regulations for the cemetery related to:

(1) Interments;

(2) conduct within the cemetery, including, but not limited to, access, visitation, funerals, assemblages, tours, traffic, parking, and protocols for respecting the deceased;

(3) Mausoleums, columbariums, and other structures of entombment;

(4) Burial lots;

(5) Monuments, markers, cenotaphs, memorializations, and decorations;

(6) Gardens, lawns and plantings;

(7) Creation, administration, investment, review and accounting of and for endowments and trust funds and the expenditure thereof.

A copy of the cemetery rules and regulations promulgated by the commission shall be filed in the office of the city clerk and may, upon request, be provided to anyone purchasing a right of interment.

(e) The commission shall have the power, authority, and duty to plan for the orderly development of the cemetery; to identify, plat, denote, delineate and name distinct sections, lots, roadways and other geographical features; to establish procedures for submission and review of plans and specifications for any construction or installation within the cemetery; to reserve or designate areas within the cemetery as places for assemblage, passive spaces, natural habitat, or for other beneficial uses related to the character and purpose of the cemetery; and to recommend to the mayor, city manager, superintendent and/or city council such development, programs or projects as would, in the opinion of the commission, improve the beauty, utility and general welfare of the cemetery.

(f) The commission shall have the power, authority, and duty to receive complaints or petitions related to interests in rights of interment, descent or division, errors of documentation or description, application or enforcement of any rule or regulation promulgated by the commission, and petitions for variances or exceptions to any rule or regulation promulgated by the commission, and to make inquiry and investigations thereof. The commission shall be the arbiter of any such complaints or petitions. The commission may establish reasonable rules and procedures to secure fair and timely determinations of every such complaint or petition, and, if requested or when otherwise necessary and practical to do so, shall timely issue written decisions, copies of which shall be provided

to all interested parties, the city manager and filed with the city clerk. Any decision of the commission may be appealed by filing a written notice of appeal to the city manager within 30 days of transmission of the commission's decision to the complaining party or parties.
(Bill No. 7540, 10-1-2012)

**Sec. 22-62. Membership; terms; compensation.**

(a) All powers and duties in the management and control of the commission shall be vested in a board consisting of directors appointed by the mayor and confirmed by the city council. Such board shall consist of nine appointed members, two of whom shall be members of city council. The councilmembers of the board shall serve for a term coextensive with their terms as members of the council; and the other members of the board shall each be appointed for a term of six years and until their respective successors are appointed and qualified, except for the initial appointments, which shall be made as follows:

(1) The first director appointed shall serve a term of nine years commencing on _____/_____/_____, 1998.

(2) The second director appointed shall serve a term of eight years commencing on _____/_____/_____, 1998.

(3) The third director appointed shall serve a term of seven years commencing on _____/_____/_____, 1998.

(4) The fourth director appointed shall serve a term of six years commencing on _____/_____/_____, 1998.

(5) The fifth director appointed shall serve a term of five years commencing on _____/_____/_____, 1998.

(6) The sixth director appointed shall serve a term of four years commencing on _____/_____/_____, 1998.

(7) The seventh director appointed shall serve a term of two years commencing on __ _____/_____/_____, 1998.

(b) As the term of each initial board appointee, other than the councilmembers, expires, the successor to fill the vacancy created by such expired term shall be appointed for a term of six years.

(c) If the position of any director becomes vacant for any reason prior to the expiration of his term of office, a successor shall be appointed by the mayor and confirmed by the city council to complete the unexpired portion of such term.

(d) The directors shall be appointed without regard to political affiliation, and preference shall be given to lineal descendants or immediate family relatives of someone interred at the cemetery. No director shall receive any compensation for his service as such, but each director shall be reimbursed by the commission for any reasonable and necessary expenses actually incurred in the discharge of his duties as a member of the board. No director may be an employee of the city; and no director may benefit financially in any way, directly or indirectly, from the operation of the commission or its board of directors.
(Bill No. 7540, 10-1-2012)

**Sec. 22-63. Officers; rules for transaction of business; meetings; records.**

The commission board shall elect from its membership a chairman, secretary and such other officers as it determines to be necessary for the performance of its duties. The board may adopt such rules as may be necessary for the transaction of its business, hold regular meetings, and shall keep a record of its official proceedings, a copy of which shall be filed in the city clerk's office.
(Bill No. 7540, 10-1-2012)

**Sec. 22-64. Operations and management.**

The cemetery shall be operated as a city department under the direction of a Superintendent, subject to such funding and staffing levels as the city council may designate and allocate within its general fund budget, who shall be appointed by the city manager with the advice and consent of the commission, and who shall report to the city manager. The cemetery

shall be operated according to the administrative rules, regulations, and policies generally applicable to city departments. In addition to any other duties or responsibilities set forth herein or attendant to the position as the administrative department head, the superintendent shall be charged with executing and enforcing the reasonable rules and regulations promulgated by the commission as provided herein, shall attend and participate in the meetings of the commission as a non-voting member, and shall provide such information and reports as the commission may request and require for the fulfillment of its duties.
(Bill No. 7540, 10-1-2012)

Chapters 23—25

**RESERVED**

Chapter 26

# CHARITABLE SOLICITATIONS*

## Article I. In General


Sec. 26-1. Board of solicitation review.
Sec. 26-2. Unauthorized, unrestricted, unregulated begging or solicitation prohibited.
Secs. 26-3—26-30. Reserved.


## Article II. Permit


Sec. 26-31. Application for permit.
Sec. 26-32. Limitations on amount of payments to professional solicitors for solicitation activities.
Sec. 26-33. Investigation of permit application; issuance or denial of permit; appeals.
Sec. 26-34. Card or certificate from director required.
Sec. 26-35. Suspension or cancellation of permit; jurisdiction of municipal court to issue subpoenas duces tecum.
Sec. 26-36. Fees and bonds.


*__Cross reference—__Businesses, ch. 18.

__State law reference—__Solicitation of Charitable Funds Act, W. Va. Code § 29-19-1 et seq.

## ARTICLE I. IN GENERAL

### Sec. 26-1. Board of solicitation review.

(a) There is created a nonpartisan board of solicitation review, consisting of three members. The members will consist of three residents of the city, who shall be appointed by the mayor, each for a term of four years and until his successor is appointed and qualified.

(b) The mayor shall appoint one of the three members as chairman of the board. The appointed members of the board shall serve without salary. The board shall have power to prescribe rules and regulations for the carrying out of the purposes expressed in this chapter. The board shall meet in regular session at least once a month, at a time to be fixed by the board, and shall meet more often if necessary to perform the duties imposed on the board by this article. The director shall attend all meetings of the board.
(Code 1975, § 10-10)

**Cross reference—**Boards, committees and commissions, § 2-511 et seq.

### Sec. 26-2. Unauthorized, unrestricted, unregulated begging or solicitation prohibited.

(a) The unauthorized, unrestricted and unregulated public begging or solicitation in the city of money, subscriptions or contributions for any charitable, educational or benevolent purposes, upon the streets, in public places, in buildings and from house to house, or by the use of the telephone or otherwise, is contrary to the promotion of economic integrity, is detrimental to the morals, comfort and welfare of the inhabitants of the city, is unlawful and is forbidden; but nothing in this section shall be construed to prevent or forbid any pastor, priest, rabbi, rector or minister of the gospel, or the governing body of any church from soliciting funds within their membership exclusively for religious and church purposes.

(b) The offering for sale of tickets for any dance, show or other performance represented as being for the benefit of a charitable purpose shall be deemed to be the solicitation of money within the prohibition of this section.
(Code 1975, § 10-11)

### Secs. 26-3—26-30. Reserved.

## ARTICLE II. PERMIT

### Sec. 26-31. Application for permit.

Any person desiring to solicit money, subscriptions or contributions for any charitable, religious, educational or benevolent purposes as set forth in this article shall file with the director an application, on a form approved by the director, and shall answer, under oath, all of the questions contained in the form and furnish to the director all such information with reference to the public solicitation of funds as may be of assistance to the director in determining whether permission shall be given to such person for the purpose of soliciting funds for such purposes, and the failure or refusal to file the application and furnish the information shall constitute sufficient grounds for the director to decline the application of the applicant for permission to solicit funds for the purposes set forth in this article. In no instance may a permit be issued to a professional solicitor or its agents, servants or employees unless a contract or written agreement between the professional fundraiser and its client has been previously filed with the director. The director may impose such other conditions and terms precedent to the issuance of the permit provided for as may be deemed reasonable.
(Code 1975, § 10-12)

### Sec. 26-32. Limitations on amount of payments to professional solicitors for solicitation activities.

No charitable, religious, educational or benevolent organization shall pay to a professional solicitor or its agents, servants or employees in the aggregate a total amount in excess of 15 percent (including reimbursements for expenses incurred) of the total money, pledges and other property raised or received by reason of any solicitation activities. For the purposes of this section, the total money, funds, pledges or other property raised or received shall not include the actual cost to charitable, religious, educational or benevolent organizations or professional solicitors of goods sold or service provided to the public

in connection with the soliciting of contributions. If the contract, or written statement of the nature of the arrangement to prevail in the absence of a contract between a professional solicitor and a charitable, religious, educational or benevolent organization does not provide for compensation on a percentage basis, the director shall examine the contract to ascertain whether the compensation to be paid in such circumstances is likely to exceed 15 percent of the total money, pledges or other property raised or received as a result of the contract or arrangements; if the reasonable probabilities are that compensation will exceed 15 percent of the total money, pledges or other property, the director shall not issue a permit as provided in section 26-33.
(Code 1975, § 10-13)

### Sec. 26-33. Investigation of permit application; issuance or denial of permit; appeals.

(a) It shall be the duty of the director to investigate all applications of persons desiring to solicit funds for charitable, religious, educational or benevolent purposes; and if the director, after such investigation, is satisfied that the purpose of such solicitation is a bona fide charitable, religious, educational or benevolent purpose, that the applicant for the permit will solicit in good faith and in the manner authorized for such bona fide charitable, religious, educational or benevolent purposes and that a proper proportion of the money subscribed or contributed will be used for the purpose for which the subscription or contribution is made, it shall be the duty of the director to issue to such applicant a card giving the name of the person so authorized to solicit, the purpose for which the funds are being solicited, the time within which solicitations of money, contributions or subscriptions are permitted, the manner in which such solicitation is authorized and whether the person soliciting funds is being paid for his services as such solicitor. It shall not be necessary for each solicitor to apply to the director where more than one person is soliciting for the same purpose, but a general application for such persons may be made by any one of them, and cards for all such solicitors may be issued upon one application. If the director, after investigation of any application for a permit to solicit funds, decides that such permit should not be issued, the director shall decline to issue such permit; and the person whose application has been declined by the director shall have the right of appeal to the board of solicitation review. The board shall hear and determine the application and appeal at any open meeting, after notice to the applicant and appellant; and the decision of a majority of the members of the board, after such hearing, shall be binding on all of the parties.

(b) An appeal from the decision of the board may be taken before the city council, which shall, in such instances, have the power to sustain or reverse the decision of the board; but no appeal to the city council shall be recognized as such until after notice of such appeal has been published in at least one newspaper in the city for ten consecutive days. At the time of such hearing, the director shall be present to furnish the council with full information in support of the board's decision.
(Code 1975, § 10-14)

### Sec. 26-34. Card or certificate from director required.

Any person conducting a campaign or soliciting money, subscriptions or contributions for any charitable, religious, educational or benevolent purposes upon the streets, in public places, in buildings and from house to house, or by the use of the telephone, or otherwise in the city shall have and exhibit at all times when soliciting such funds a card or certificate from the director. The card shall authorize such person to solicit money, subscriptions or contributions for such purposes, in the manner and at the time when such solicitation of funds is made. Any person soliciting funds, subscriptions or contributions without such permit or certificate duly issued by the director or in any manner not authorized by the director shall be guilty of an offense against this section.
(Code 1975, § 10-15)

### Sec. 26-35. Suspension or cancellation of permit; jurisdiction of municipal court to issue subpoenas duces tecum.

In the event of violation of the conditions, limitations or restrictions imposed in the grant-

ing of any permit provided for in this article, or in the event of the misapplication of any funds collected thereunder, the director may suspend the effectiveness of the permit pending a hearing before the board as to whether or not any condition, limitation or restriction imposed by the director in the granting of such permit has been violated. Such suspension of the permit shall be in effect only until the hearing before the board, upon reasonable notice, at which hearing the holder of the permit may appear before the board, in person or by counsel, and may produce evidence. The board is authorized to hear testimony and swear witnesses, and the municipal court or the municipal judge is hereby authorized to issue subpoenas duces tecum upon application and proper showing being made by the board, such subpoenas to be served by any police officer of the city. If upon the hearing the board shall determine that this chapter has been violated, or any condition, limitation or restriction imposed in any permit has been violated, the board may cancel the permit or may suspend its effectiveness for such time as the board may deem advisable. The board shall make a written finding of the facts, based upon the testimony heard by it; and its finding as to the facts shall be conclusive.
(Code 1975, § 10-16)

**Sec. 26-36. Fees and bonds.**

(a) Any application for permission to solicit funds shall be accompanied by a fee of $10.00. Once permission to solicit is obtained, any person or organization other than a professional solicitor shall post a cash bond of $250.00. Professional solicitors shall post a cash bond of $1,000.00 or ten percent of the total money, pledges and other property to be raised or received by reason of solicitation activities, whichever is less, but in no event less than $250.00. Such cash bond shall be refunded to the person or organization; provided, that such person or organization shall, within 45 days after the completion of the fundraising campaign, notify the director with a financial report stressing the amount raised, expenses of the campaign and projected use of the proceeds raised.

(b) Where multiple fundraising campaigns are conducted simultaneously by the same person or organization, the director may, in his discretion, not require a separate cash bond to be posted for each campaign. In no event, however, may all cash bond money posted by any person or organization be returned until all fundraising campaigns of that person or organization have been completed and the director has been so notified with a proper financial report.
(Code 1975, § 10-17)

Chapters 27—29

**RESERVED**

Chapter 30

# COMMUNITY DEVELOPMENT*

## Article I. In General

Sec. 30-1. Shelton-Sentz Neighborhood Redevelopment Select Committee.
Secs. 30-2—30-30. Reserved.

## Article II. Urban Renewal Authority

Secs. 30-31—30-60. Reserved.

## Article III. Neighborhood Rehabilitation Program

Sec. 30-61. Definitions.
Sec. 30-62. Findings and purpose.
Sec. 30-63. Neighborhood rehabilitation fund; guaranteed loans.
Sec. 30-64. Rehabilitation fund commission.

---

***Cross references—**Administration, ch. 2; buildings and building regulations, ch. 14; businesses, ch. 18; planning, ch. 90; streets, sidewalks and other public places, ch. 102; subdivision regulations, ch. 106; utilities, ch. 118; zoning, app. B.

**State law references—**West Virginia Community Improvement Act, W. Va. Code § 16-13B-1 et seq.; Urban Renewal Authority Law, W. Va. Code § 16-18-1 et seq.

## ARTICLE I. IN GENERAL

### Sec. 30-1. Shelton-Sentz Neighborhood Redevelopment Select Committee.

There is appointed a select committee of council to be known as the "Shelton-Sentz Neighborhood Redevelopment Select Committee." Such committee shall be composed of the mayor of the city and the members from time to time of the finance committee of the council. A majority of the members of the committee shall constitute a quorum, and the committee may meet by the majority vote of the members in attendance at any meeting, a quorum being present. The mayor shall be the chairman of the committee, and the committee shall designate one of its members, or a member of the administrative staff, to keep a record of its proceedings. The committee shall make its own rules as to the calling of meetings and notices of and the conduct of meetings. There is vested in the committee all power and authority of the city council, with respect to the matters relating to the Shelton-Sentz project, which are lawfully delegable to such a committee under the laws of the state and the city; however, the council reserves the right to modify or rescind any action taken by the committee and to alter the powers, authorities and membership of the committee, or abolish the committee to the extent the council may do so without impairing any rights which have become vested in any person by virtue of action taken by the committee.

(Code 1975, § 2-13.1)

**Cross reference—**Boards, committees and commissions, § 2-511 et seq.

### Secs. 30-2—30-30. Reserved.

## ARTICLE II. URBAN RENEWAL AUTHORITY*

### Secs. 30-31—30-60. Reserved.

*__Editor's note—__The city's 1975 Code recites that by resolution adopted November 15, 1951, a slum clearance authority was created; and the name was changed to urban renewal authority by resolution adopted July 7, 1958.

**State law reference—**Urban Renewal Authority Law, W. Va. Code § 16-18-1 et seq.

## ARTICLE III. NEIGHBORHOOD REHABILITATION PROGRAM

### Sec. 30-61. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

*Eligible dwelling* means real estate upon which there is located a structure designed primarily for residential housing and consisting of dwelling units for not more than four families; provided, that all occupancy shall be limited to persons and families who would qualify as eligible residents.

*Eligible resident* means a person or family residing in an eligible dwelling, owned by such person or family, situated within the corporate limits of the city, irrespective of race, creed, national origin or sex, with respect to whom it is determined by the city council that:

(1) Such person or family, because of financial conditions, age, infirmity, family size or other reasons, is unable to obtain, on suitable terms and conditions, loans or other credit necessary for the rehabilitation of such eligible dwelling, and hence requires the assistance as provided in this article;

(2) Such rehabilitation is necessary to place such eligible dwelling in a safe, sanitary and decent condition; and

(3) The assistance as authorized in this article shall make financing available to such person or family, or enable such person or family to obtain such financing, on terms and conditions substantially more favorable to such person or family than would otherwise be available.

*Rehabilitation* means a specific work of improvement within the city undertaken primarily to remodel, repair or rehabilitate an eligible dwelling occupied by an eligible resident as his principal residence.

(Code 1975, § 5-71)

**Cross reference—**Definitions generally, § 1-2.

**Sec. 30-62. Findings and purpose.**

(a) The city council finds and declares that there has been for a number of years a clear trend for younger and more affluent persons and families residing in the city to move their residences from the inner urban areas of the city to newer suburban areas; that as a result, a disproportionate number of homeowners remaining in such inner urban areas are older, less affluent and otherwise less able to afford the expense of the remodeling, repairing and rehabilitating of their residences necessary to maintain such residences in a sanitary, safe and decent condition; that because of their lack of acceptable loan collateral, the age of their residences and the location and age of the neighborhoods in which their residences are located, many of such homeowners have not been able to borrow funds necessary to effect such remodeling, repair and rehabilitation; and that some homeowners who have been able to borrow funds for such purposes have been able to do so only upon rates of interest and upon other terms and conditions which are particularly onerous to such homeowners.

(b) The city council further finds and declares that the assistance authorized by this article will provide and will encourage private lenders to provide to such homeowners, more readily and at rates of interest and upon other terms and conditions significantly more favorable to such homeowners, the loans necessary to finance the cost of such remodeling, repair and rehabilitation.

(c) The city council further finds and declares that it is manifestly in the public interest to foster, in the populous inner urban areas of this city, the pride, self-respect and esteem incident to home ownership and to encourage and assist in the maintenance of residences situated in such areas in a safe, decent and sanitary condition; that without the assistance authorized in this article, there will be continued deterioration of such inner urban areas with the resultant proliferation of urban decay and slums, higher crime rates and general decline in civic pride, public spirit and the quality of life, with all of the public cost, direct and indirect, attendant thereon; and that accordingly by providing such assistance the city will be acting in all respects for the benefit of its citizens and shall thereby serve a public purpose in improving and otherwise promoting their health, welfare and prosperity.
(Code 1975, § 5-70)

**Sec. 30-63. Neighborhood rehabilitation fund; guaranteed loans.**

(a) There is established a special fund of moneys to be made available by appropriation, grant, contribution, loan or otherwise, to be known as the "Neighborhood Rehabilitation Fund of the City of Charleston." Such neighborhood rehabilitation fund shall be administered and accounted for as a special purpose account, separate and distinct from any other moneys or funds owned by the city.

(b) The city council shall from time to time, by resolution, establish criteria which shall govern the determination of persons and families who qualify as eligible residents.

(c) The purpose of such neighborhood rehabilitation fund shall be to provide funds for the making of loans, or to guarantee the repayment of loans made by private lenders, to eligible residents of the city, the proceeds of which loans are to be used exclusively for rehabilitation.

(d) Such loans shall be made or guaranteed only upon determination by the city council, or by the rehabilitation fund commission, that the borrowers are eligible residents; that the proceeds of the loan shall be used for rehabilitation; and that loans to such eligible borrowers for rehabilitation are not otherwise available upon reasonable equivalent terms and conditions.

(e) No loan shall be made or guaranteed by the city except in accordance with a written agreement between such city, the eligible resident and, in the case of a guaranteed loan, the lender making such loan, which agreement shall provide without limitation that:

(1) The proceeds of such loan shall be used exclusively for rehabilitation.

(2) The loan shall be in such principal amount, repayable in such number of consecutive and substantially equal monthly install-

ments, at such annual rate of interest and shall be secured in such manner as specified in such agreement.

(3) In the case of a guaranteed loan, the city shall, at its option and in accordance with predefined criteria, repay, from the neighborhood rehabilitation fund established in accordance with this article, any installment or installments of such loan as shall be in default. If the city chooses not to make such repayment, the lender may foreclose on the security for the loan and the city shall pay to such lender, from the neighborhood rehabilitation fund, the amount, if any, by which the unpaid balance of the loan, including accrued interest, exceeds the proceeds of such foreclosure.

(4) If the city incurs an obligation on a guaranteed loan under the provisions of subsection (e)(3) of this section, the city shall be entitled, at its option, to realize on any and all security for such loan; provided; that the right of the city to realize on such security with respect to a guaranteed loan shall be subordinate and secondary to the right of the lender as to such security, to the extent of the unpaid balance of such loan. If the city incurs an obligation on a guaranteed loan under the provisions of subsection (e)(3) of this section, the city shall be subrogated to the right of the lender against the eligible resident to the extent of all payments made by the city to the lender with respect to such loan.

(f) Nothing contained in this article shall be so construed as to authorize the city to make any contract or incur any obligation or liability of any kind or nature, except such as shall be discharged or payable solely from the funds on deposit in such neighborhood rehabilitation fund.
(Code 1975, § 5-72)

**Sec. 30-64. Rehabilitation fund commission.**

There is created a commission to be known as the "Charleston Rehabilitation Fund Commission," which shall be comprised of three members, no more than two members of the same political party, who shall be appointed by and serve at the will and pleasure of the mayor. The commission shall have the following powers and duties:

(1) To determine the eligibility of applicants for loans from or to be guaranteed by the neighborhood rehabilitation fund in accordance with criteria as established from time to time by the council by resolution, and to ensure that the proceeds of such loans are used for rehabilitation, and that loans to such eligible residents for rehabilitation are not otherwise available upon reasonably equivalent terms and conditions.

(2) At the request of eligible residents, to cause inspections to be made of their residences, to make recommendations concerning rehabilitation and to provide all manner of technical services and assistance in the planning, processing and design of needed rehabilitation.

(3) To cause to be prepared all forms of loan agreements, promissory notes, deeds of trust and other agreements and instruments as such commission shall deem necessary for the implementation of such program.

(4) To negotiate with banks, savings and loan associations and other lending institutions in the city and to obtain commitments from one or more of such institutions to provide loans to residents eligible to participate in such program, such loans to be guaranteed by the neighborhood rehabilitation fund.

(5) In general, to administer and coordinate the making and guaranteeing of loans from the neighborhood rehabilitation fund and to have such additional incidental powers and duties, including the hiring of consultants, as shall be necessary for the furtherance of the purposes of the neighborhood rehabilitation fund.

(6) To adopt rules and regulations for its government, to study housing problems existing in the city with reference to the need for and feasibility of rehabilitation

loans and to advise city council as to such problems and the recommendations of the commission.

(Code 1975, § 5-73)

**Cross reference—**Boards, committees and commissions, § 2-511 et seq.

Chapters 31—33

**RESERVED**

Chapter 34

# CONSUMER PROTECTION*

## Article I. In General

Secs. 34-1—34-30. Reserved.

## Article II. Consumer Protection Department

Sec. 34-31. Created.
Sec. 34-32. City policy declared; purpose of article.
Sec. 34-33. Definitions.
Sec. 34-34. Director and department personnel.
Sec. 34-35. Administration of article.
Sec. 34-36. Powers and duties of director.
Sec. 34-37. Reception of complaints by director.
Sec. 34-38. Notice of complaint; referrals; patterns of complaint.
Sec. 34-39. Dissemination of information.

*__Cross reference—__Businesses, ch. 18.

__State law reference—__West Virginia Consumer Protection and Credit Act, W. Va. Code § 46A-1-101 et seq.

## ARTICLE I. IN GENERAL

**Secs. 34-1—34-30. Reserved.**

## ARTICLE II. CONSUMER PROTECTION DEPARTMENT

### Sec. 34-31. Created.

There is created a department of consumer protection.
(Code 1975, § 10-1)

### Sec. 34-32. City policy declared; purpose of article.

It is declared to be the public policy of the city and the purpose of this chapter is to protect and promote the public safety, health and welfare; to investigate and inquire into all matters related to consumer protection which concern this city or its inhabitants; and to prevent injury or annoyance to consumers from anything dangerous, offensive or unwholesome. The city declares that government advances the interest of consumers by facilitating the proper functioning of the free enterprise market economy through educating and informing the consumer to ensure rational consumer choice in the market place and protecting the consumer from the sale of goods and services through the use of deceptive methods, acts or practices which are inimical to the general welfare of the consumer.
(Code 1975, § 10-2)

### Sec. 34-33. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

*Consumer* means any individual who seeks or acquires by purchase or lease any goods, services or money for credit for family, personal or household purposes. The term also means any individual who is subject to public solicitation of money, subscriptions or contributions for charitable, religious, educational or benevolent purposes.

*Department* means the department of consumer protection.

*Director* means the director of the department of consumer protection.
(Code 1975, § 10-3)

**Cross reference—**Definitions generally, § 1-2.

### Sec. 34-34. Director and department personnel.

The director shall be appointed by the mayor to serve at the will and pleasure of the mayor. Within the limits of funds available for such purpose, other necessary personnel may be employed. All such personnel shall perform their respective duties under the supervision and direction of the director.
(Code 1975, § 10-4)

**Cross reference—**Officers and employees, § 2-131 et seq.

### Sec. 34-35. Administration of article.

The director shall administer and enforce the provisions of this article. Every power granted or duty imposed upon the director under this article may be exercised and performed in the name of the director by any employee of the department, subject to such conditions and limitations as the director may prescribe.
(Code 1975, § 10-5)

**Cross reference—**Administration, ch. 2.

### Sec. 34-36. Powers and duties of director.

The director shall have the following powers and it shall be his duty to:

(1) Recommend and propose the enactment of such ordinances as are necessary to protect and promote the interests of consumers.

(2) Assist, advise and cooperate with federal, state and local agencies and officials to protect and promote the interests of consumers.

(3) Study, investigate, conduct, research and analyze matters affecting the interests of consumers.

(4) Propose and assist in the creation and development of consumer education programs.

(5) Promote ethical standards of conduct for businesses and consumers, and under-

take activities to encourage public responsibility in the production, promotion, sale and lease of consumer goods and services.

(6) Advise the mayor and city council on all matters affecting the interests of consumers.

(7) Authorize, regulate, restrict and control public begging or soliciting of money, subscriptions or contributions for any charitable, religious, educational or benevolent purpose.

(8) Issue placards or notices for the use of all persons in giving notice to the public that no contributions are made for the purposes of chapter 26 except to solicitors authorized by the director.

(9) Exercise and perform such other functions, powers and duties as may be deemed appropriate to protect and promote the interests of consumers as directed by the mayor or the city council.

(Code 1975, § 10-6)

**Sec. 34-37. Reception of complaints by director.**

It shall be the duty of the director to receive complaints from consumers concerning:

(1) Unfair methods of competition and unfair or deceptive acts or practices undertaken by any person in the conduct of any trade or commerce.

(2) The production, distribution, sale or lease of any goods and services undertaken by any person which may endanger the public health, safety or welfare.

(3) Other matters consistent with the purposes of this article, whenever appropriate.

(Code 1975, § 10-7)

**Sec. 34-38. Notice of complaint; referrals; patterns of complaint.**

(a) Upon receipt of any complaint in writing pursuant to section 34-37, the director shall investigate the complaint; and if it is found to be valid, he may notify the person against whom the complaint is made of the nature of the complaint and may request appropriate relief for the consumer.

(b) If the director receives a complaint or receives information from any source indicating a probable violation of any law or rule or order of any regulatory agency of the federal, state, county or city government, or if a pattern of complaints from consumers develops, the director shall transmit any complaints he considers to be valid to any appropriate law enforcement or regulatory agency and any evidence or information he may have concerning such probable violation or pattern of complaints.

(Code 1975, § 10-8)

**Sec. 34-39. Dissemination of information.**

The director may disseminate to the public in such form and manner as he deems most appropriate information, statistics and other data concerning the following:

(1) Functions, duties, powers and activities of the department and of those agencies which provide relief from commercial and trade practices which are inimical to the interest of the consumer.

(2) Commercial and trade practices which are detrimental to consumers.

(3) Goods and services which are unsafe, unhealthful or inimical to the general welfare of consumers.

(4) General economic conditions.

(5) Test results, analyses and studies of consumer products and services in the possession of local, state and federal agencies.

(6) Consumer education which the director may develop on his own initiative or obtain from other sources.

(Code 1975, § 10-9)

Chapters 35—37

**RESERVED**

# Chapter 38

# COURTS*

## Article I. In General

Secs. 38-1—38-30. Reserved.

## Article II. Municipal Court

### Division 1. Generally


Sec. 38-31. Court established, to be held by municipal judge.
Sec. 38-32. Jurisdiction, powers and duties relating to violations of the traffic ordinance.
Sec. 38-33. Sessions.
Sec. 38-34. Duties of clerk.
Sec. 38-35. Deputy clerks.
Sec. 38-36. Bailiff.
Sec. 38-37. Style of prosecutions; arrest of offenders; summoning witnesses.
Sec. 38-38. Issuance and service of process.
Sec. 38-39. Default judgments.
Sec. 38-40. Bail bond or cash deposit.
Sec. 38-41. Requisites and disposition of cash deposit.
Sec. 38-42. Unlawful taking of cash deposit; approval of bond in felony cases.
Sec. 38-43. Who may not be bail sureties.
Sec. 38-44. Witness fees.
Sec. 38-45. Separation of witnesses; exclusion of minors from courtroom.
Sec. 38-46. Procedure; new trials.
Sec. 38-47. Acts punishable for contempt.
Sec. 38-48. Prosecution for contempt.
Sec. 38-49. Judgment and commitment for contempt.
Sec. 38-50. Intimidation of judicial officers, jurors and witnesses; obstructing administration of justice; penalty.
Sec. 38-51. False swearing and subornation of false swearing.
Sec. 38-52. Imprisonment for fines and costs.
Sec. 38-53. Court costs.
Sec. 38-54. Collection of fines and costs; remission; suspension of judgment.

Secs. 38-55—38-80. Reserved.

### Division 2. Juries


Sec. 38-81. Demand for jury trial.
Sec. 38-82. Persons eligible to jury service.
Sec. 38-83. Number of jurors.
Sec. 38-84. Master jury list.
Sec. 38-85. Preparation of jury list for trial.
Sec. 38-86. Penalty for failure of jurors to attend.
Sec. 38-87. Discharge of jurors; excuse from attendance.
Sec. 38-88. When juror not entitled to compensation.
Sec. 38-89. Payment of compensation.
Sec. 38-90. Trial procedure.

Secs. 38-91—38-120. Reserved.

---

*__Cross references—__Administration, ch. 2; law enforcement, ch. 66; offenses and miscellaneous provisions, ch. 78; traffic ordinance, ch. 114.

Division 3. Installment Payment of Fines and Costs

Sec. 38-121. Installment or other method of payment when defendant unable to pay forthwith.
Sec. 38-122. Determination of ability to pay; questionnaire to be answered by defendant; assistance to defendant; penalty for false swearing.
Sec. 38-123. Payment of fine may be made condition of probation or suspension of sentence.
Sec. 38-124. Court may require defendant to be on good behavior until fine and costs are paid.
Sec. 38-125. Procedure upon default in payment under agreement; confinement in case of willful default.
Sec. 38-126. Community service work may be substituted in lieu of incarceration or a fine in municipal court.
Sec. 38-127. Home incarceration for municipal court offenders.

## ARTICLE I. IN GENERAL

**Secs. 38-1—38-30. Reserved.**

## ARTICLE II. MUNICIPAL COURT*

### DIVISION 1. GENERALLY

**Sec. 38-31. Court established, to be held by municipal judge.**

There shall be in the city a court, which shall be called the municipal court, to be held by the municipal judge of the city.
(Code 1975, § 16-1)

**Sec. 38-32. Jurisdiction, powers and duties relating to violations of the traffic ordinance.**

The municipal court shall have jurisdiction of all offenses under the traffic ordinance, chapter 114, and the municipal judge shall have the power to assess and collect fines and costs from any person who fails or refuses to comply with the provisions of the traffic ordinance or with the rules and regulations of the chief of police made in conformity with such ordinance.
(Code 1975, § 16-2)

**Sec. 38-33. Sessions.**

There shall be a daily session of the municipal court, commencing at an hour to be determined by the municipal judge, on each day of the week, except Saturdays, Sundays and holidays; provided, that the municipal judge may, in his discretion and from time to time, by proper order, provide for additional sessions of court at such hour as he may determine.
(Code 1975, § 16-3)

**Sec. 38-34. Duties of clerk.**

The duties and requirements of the municipal court clerk, except as otherwise provided, shall be as follows:

(1) *Trial docket.* He shall produce each day at the opening of the court a docket in which shall be entered all cases set for trial on that day. The cases shall be numbered progressively on the docket, the papers in each case numbered to correspond. The title of every case entertained by the municipal judge shall be entered upon the docket, setting forth the name of the defendant, the charge against him, the name of the officer arresting him, and the disposition made by the municipal judge of the case, and the disposition made by him of the defendant, whether discharged or imprisoned, and if the latter, the term of imprisonment, and whether admitted to bail or committed to answer the indictment. In each case continuances, if any may be granted, shall be noted, also the amount of all fines imposed, all costs thereto attached, and to whom payable. The docket shall be indexed in the names of the defendants.

(2) *Fines, costs, process and oaths.* He shall tax all costs in the municipal court and make out all executions for fines, penalties and costs imposed by the municipal judge, make out and issue all processes of the court and sign them as clerk, and administer oaths.

(3) *Reports of fines for traffic violations.* He shall, within five days after the close of each preceding calendar month, make a report in writing to the mayor and city council of the amount of fines and costs assessed and collected by the court for traffic violations during such calendar month.

(Code 1975, § 16-4)

**Sec. 38-35. Deputy clerks.**

The mayor may appoint, within the limit of funds available, one or more deputy municipal court clerks, who shall have, in addition to such other duties as may be assigned to them by the municipal court clerk or the municipal judge, the authority to administer oaths to complainants, to issue arrest warrants for all violations of this Code and other municipal ordinances, and to issue commitments to jail and accept bonds and sureties. In the absence of the municipal judge,

*__Charter reference—__Municipal judge, § 44 et seq.
__State law reference—__Municipal courts, W. Va. Code § 8-10-2 et seq.

the mayor, municipal court clerk or deputy municipal court clerk may issue warrants for arrests, administer oaths, issue commitments, and accept and approve sureties and bonds. The term "absence" is defined to mean when the municipal judge is not physically in the building.
(Code 1975, § 16-5)

**Cross reference—**Officers and employees, § 2-131 et seq.

**Sec. 38-36. Bailiff.**

The chief of police shall, by roster or otherwise, designate a police officer to attend all sessions of the municipal court as bailiff. The bailiff shall preserve order in the courtroom and in its immediate vicinity and shall execute all orders given him by the municipal judge.
(Code 1975, § 16-6)

**Sec. 38-37. Style of prosecutions; arrest of offenders; summoning witnesses.**

All prosecutions, actions and proceedings for the violation of the ordinances of the city or any of them, or any section or part, shall be entitled "The City of Charleston against _____," (the person violating the ordinance). In all prosecutions in cases of arrest for an offense committed in the presence of a police officer, after the offender shall have been brought before the municipal judge, the officer making the arrest shall reduce or have reduced to writing the charge alleged against such person and also state that such arrest was made for an offense committed in his presence, which writing shall be subscribed and sworn to by such officer; and it shall not be deemed effective for want of form if it shows substantially an offense against the ordinances of the city. In all prosecutions in cases in which a person charged with a breach of any of the ordinances of the city has not been arrested in the act of committing the offense, a warrant for the arrest of the person charged shall not be issued except upon probable cause, nor until a complaint in writing, supported by an affidavit describing particularly the person to be arrested, shall have been duly made; and in the same warrant the municipal judge may require the officer to whom it is directed to summon such witnesses as are named to appear and give evidence on the examination of such party.
(Code 1975, § 16-7)

**Sec. 38-38. Issuance and service of process.**

All warrants, subpoenas, executions or other processes issued by the municipal judge shall run in the name of the city, and each warrant, subpoena, execution or process shall be directed to any police officer of the city whose duty it shall be to execute it, either by reading it to the person named, or by delivering him a copy, or by leaving a copy of it at his usual place of abode, or in any other manner provided by law. The officer shall make proper return.
(Code 1975, § 16-8)

**Sec. 38-39. Default judgments.**

When a defendant, duly summoned, fails to appear at the time the proceeding is set for trial, the municipal judge shall declare the defendant's bond or cash deposit forfeited and enter any judgment as may be warranted by the law and the facts of the case.
(Code 1975, § 16-9)

**Sec. 38-40. Bail bond or cash deposit.**

Whenever any person is arrested for any violation of this Code or other ordinance of the city or for any offense of which the municipal judge has jurisdiction, it shall be lawful for the municipal judge, city clerk, municipal court clerk, mayor, chief of police and the desk sergeant or person in charge of police headquarters, and the county jailer to admit such person to bail upon the execution of a bond to the city in such an amount as in the discretion of the officer will secure the prisoner's presence, conditioned that the accused will appear upon a day named, before the municipal judge of the city, to await trial; and every such bond taken shall be filed as soon as practicable with the municipal court clerk by the officer approving and taking such bond; and the municipal judge, city clerk, municipal court clerk, mayor, chief of police and the desk sergeant or person in charge of police headquarters, and the county jailer shall each have the power to approve any

bond taken under the provisions of this section, precedence being given to the ranking officer present at police headquarters when such bond is presented. No person shall be accepted as surety upon any penal bond unless he shall acknowledge the bond before some official duly authorized by law to administer an oath, and shall make oath that he is the owner in fee of real estate situate in the county and worth the amount of the bond over and above his debts and liabilities; but the officers named in this section are authorized and empowered to accept a deposit in cash of an amount which, in the judgment of the officer accepting the deposit, will be sufficient to cause the prisoner's appearance upon the day required of him before the municipal judge to await trial upon the charge against him. The amount of the deposit shall not be less than a sum sufficient in the judgment of the officer accepting the deposit to satisfy any reasonable fine and costs which may be imposed by the municipal judge. If any person so released upon bond or such deposit shall fail to appear before the municipal judge for trial at the appointed time, or, having appeared, shall leave the court without awaiting trial, his bond shall be forfeited to the city; and if a cash deposit has been made to secure his release, the sum so deposited shall be delivered to the municipal judge and promptly turned in by him to the city treasury to the credit of the general fund and accounted for by him in the same manner that fines collected by him are accounted for; and in the event of the forfeiture of a penal bond, the city solicitor shall forthwith take the steps necessary at law for the collection of the bond.
(Code 1975, § 16-10)

### Sec. 38-41. Requisites and disposition of cash deposit.

No cash bond shall be accepted by any officer authorized to accept such bonds unless the prisoner and the officer authorized to accept it are present at police headquarters or the booking desk. The money deposited as security for any person's appearance shall be deposited with the desk sergeant or jailer at the booking desk at police headquarters, to be safely kept by him until the next regular session of the municipal court, when it shall be turned over by the desk sergeant who received it to the municipal judge, and by the judge disposed of as required by the bond and this section and section 38-40.
(Code 1975, § 16-11)

### Sec. 38-42. Unlawful taking of cash deposit; approval of bond in felony cases.

If any officer shall accept or approve any cash bond at any place or in any other manner than is provided for and authorized in this article, such acceptance or approval shall constitute good cause for his suspension or removal or the reprimand or fining of such officer after a hearing on the charge by the city council. In case of the arrest of any person upon a charge of a felony, the bond for his release, if approved, shall only be approved by the municipal judge, or the judge of the intermediate court or circuit court of the county; and no other officer of the city shall be authorized to admit to bail any person charged with a felony.
(Code 1975, § 16-12)

**State law reference—**Payment of fines by credit card, W. Va. Code § 8-10-2a.

### Sec. 38-43. Who may not be bail sureties.

No practicing attorney, officer of the municipal court or member of the police force shall be accepted as surety on any bond provided for in this article.
(Code 1975, § 16-13)

### Sec. 38-44. Witness fees.

All witnesses (city officers and prosecutors excepted) duly summoned in any case before the municipal judge and attending at the trial shall be entitled to $0.50 for each day's attendance; but they shall not charge for attendance in more than one case on the same day, and every witness shall be deemed duly summoned who is sworn to testify in any case.
(Code 1975, § 16-14)

### Sec. 38-45. Separation of witnesses; exclusion of minors from courtroom.

The municipal judge is authorized to examine witnesses separate and apart from each other. He may also exclude all minors from the courtroom who may be present as mere spectators.
(Code 1975, § 16-15)

**Sec. 38-46. Procedure; new trials.**

Trials may be conducted agreeably to law and established usage. New trials may be granted.
(Code 1975, § 16-16)

**Sec. 38-47. Acts punishable for contempt.**

The municipal judge may punish for contempt a person guilty of any of the following acts:

(1) Contemptuous or insolent behavior towards the judge while engaged in the trial of a case or in any other judicial proceeding.

(2) Any breach of the peace, willful disturbance, or indecent conduct in the presence of the judge while so engaged, or so near as to obstruct or interrupt his proceedings.

(3) Violence or threats of violence to the judge or any officer, juror, witness or party going to, attending or returning from any judicial proceeding before the judge, in respect to anything done or to be done in the course of such proceeding.

(4) Misbehavior of any public officer in his official character in respect to any action or judicial proceeding had or pending before the judge, or any process, judgment, order or notice.

(5) Willful resistance, in the presence of the judge, by an officer, juror, witness, party or other person to any lawful process or order of such judge.

(Code 1975, § 16-17)

**Sec. 38-48. Prosecution for contempt.**

An order to arrest may be issued by the municipal judge on which the person charged with the contempt may be taken and brought before him, or such person may be taken in custody by any officer or any person upon the oral order of the municipal judge and held to answer for the contempt. An opportunity must be given him to be heard in defense or explanation of his conduct, and the municipal judge may thereupon discharge him or adjudge him guilty of the contempt and punish him by fine or imprisonment or both. The fine shall not exceed $50.00 nor the imprisonment five days. The municipal judge shall not impose a fine for contempt unless the defendant is present in court, or shall have been served with a rule of the court to show cause, on some certain day, and shall have failed to appear and show cause.
(Code 1975, § 16-18)

**State law reference—**Similar provisions, W. Va. Code § 50-5-11.

**Sec. 38-49. Judgment and commitment for contempt.**

The conviction for contempt, specifying the particular circumstances of the offense and judgment, must be entered by the municipal judge in his docket. A warrant of commitment for the term of imprisonment adjudged may be issued by the municipal judge commanding an officer to take the offender to the city or county jail, and the keeper to imprison him for the term stated. The judgment may include, in addition to fines, all costs in the case, including costs of arresting and keeping in prison the offender.
(Code 1975, § 16-19)

**Sec. 38-50. Intimidation of judicial officers, jurors and witnesses; obstructing administration of justice; penalty.**

If any person by threats, force or otherwise intimidate or impede, or attempt to intimidate or impede the municipal judge, the municipal court clerk or deputy clerk, or any other officer of the municipal court or any juror or witness in the municipal court in the discharge of his duties as such, or by any means impede or obstruct or attempt to impede or obstruct the administration of justice in the municipal court, he shall be subject to the penalties set forth in section 1-8.
(Code 1975, § 16-20)

**State law reference—**Similar provisions, W. Va. Code § 61-5-27.

**Sec. 38-51. False swearing and subornation of false swearing.**

It shall be unlawful for any person to knowingly swear falsely under oath or affirmation lawfully administered in any trial or proceeding

held in the municipal court or before the municipal judge, concerning any matter or thing, material or not material, or to procure another person to do so.
(Code 1975, § 16-21)

**State law reference—**False swearing, W. Va. Code § 61-5-2.

**Sec. 38-52. Imprisonment for fines and costs.**

Subject to the provisions of division 3 of this article, when any fine is imposed for any violation of this Code or other ordinance of the city, the offender upon whom the fine has been imposed shall, in default of immediate payment of the fine and costs of prosecution, be committed to the city or county jail by the municipal judge until the fine and costs of prosecution shall be paid, or until otherwise discharged by due course of law, the term of imprisonment in such cases not to exceed 30 days.
(Code 1975, § 16-22)

**Sec. 38-53. Court costs.**

(a) The city shall be entitled to and the municipal judge may at his discretion tax, in any case of conviction or confession, the regular costs of $1.00 plus the arrest fee for the police officers' pension and relief fund.

(b) In all cases of appeal from the judgment of the municipal court, the person seeking such appeal shall pay the municipal judge or municipal court clerk a fee of $1.00 for granting the appeal, including taking the bond or recognizance, making and certifying a transcript of the docket and transmitting it and the papers in the case to the clerk of the intermediate court. In all other cases not otherwise provided for, the fees shall be the same allowed justices for similar cases. All fees and costs shall accrue to the city. Neither the mayor, municipal judge, city clerk, municipal court clerk or any regular police officer shall be entitled to receive any fee for any services rendered in or about any trial or other proceeding touching a violation of the ordinances of the city.
(Code 1975, § 16-23)

**Sec. 38-54. Collection of fines and costs; remission; suspension of judgment.**

The municipal judge shall be chargeable with all fines and costs imposed by him. Subject to the provisions of division 3 of this article, the municipal judge shall require the immediate payment of all fines and costs, and in default shall commit the defendant to jail for a term not to exceed 30 days, or until discharged by due process of law. He may collect fines and costs by execution to be directed to any police officer. The municipal judge shall have no power to remit any fine or costs imposed by him, except in cases of contempt. He may, for good cause, which shall be noted on his docket, suspend any judgment rendered by him. Where a party is imprisoned or otherwise held in custody under judgment of the municipal judge, it shall be upon a mittimus in due form. The municipal judge shall be credited with fines and costs in cases where judgment is suspended as provided in this division; in cases where the defendant is committed in default; in cases within the purview of division 3 of this article when the defendant is in default; and in cases where the execution is returned "no property found."
(Code 1975, § 16-24)

**Secs. 38-55—38-80. Reserved.**

## DIVISION 2. JURIES*

**Sec. 38-81. Demand for jury trial.**

Upon timely request by a defendant, the municipal court may hold a jury trial. A demand by the defendant for a jury trial must be made in writing not later than 20 days after the defendant's initial appearance before the municipal judge: Provided, that in the case of an indigent for whom counsel is to be appointed, the 20-day period shall not commence to run until counsel is appointed. Failure to demand within such time constitutes a waiver of the right to a trial by jury.
(Bill No. 7372, 1-20-2009)

**Sec. 38-82. Persons eligible to jury service.**

All persons who are at least 18 years of age and who are residents of the City of Charleston shall

*__Editor's note—__Bill No. 7372, adopted Jan. 20, 2009, repealed §§ 38-81—38-103, and enacted §§ 38-81—38-90 as set out herein. The former Div. 2 pertained to similar subject matter and derived from Code 1975, §§ 16-36—58.

be liable to serve as jurors, except as provided in this division. Such jurors shall be of good character and free from felony crime convictions.

No juror shall be deemed incompetent because the city is a party to the matter to be tried and the juror is a resident of such city.

The municipal judge may, in his discretion, exempt or excuse any person from jury service when it appears that such service would be improper or work an undue hardship. A prospective juror 70 years of age or older is not disqualified from serving, but shall be excused from service by the court upon the juror's request.

Any prospective juror who has, within the preceding two years, been summoned to serve as a petit juror, grand juror, magistrate juror, or municipal juror, and has actually attended sessions of a circuit, magistrate or municipal court shall be disqualified to serve on a municipal jury.
(Bill No. 7372, 1-20-2009)

**Sec. 38-83. Number of jurors.**

The jury shall be comprised of 12 jurors.
(Bill No. 7372, 1-20-2009)

**Sec. 38-84. Master jury list.**

Jurors shall be selected from a list of registered city voters maintained by the city clerk.
(Bill No. 7372, 1-20-2009)

**Sec. 38-85. Preparation of jury list for trial.**

When a trial is scheduled in the municipal court, the court clerk shall no later than 15 days before the scheduled trial date: obtain a copy of the master jury list from the city clerk's office; randomly select the number of jurors required for municipal court from the panel or pool of jurors available for service; and contact or otherwise arrange for the jurors so selected to appear at the specified date, time and place of the municipal court trial. If, before the trial date, it becomes known that the jury panel will not be needed, the municipal clerk shall notify the scheduled jurors.
(Rule 7.04 of the Trial Court Rules-Magistrate Court Juries)
(Bill No. 7372, 1-20-2009)

**Sec. 38-86. Penalty for failure of jurors to attend.**

If any person duly summoned to attend as a juror shall neglect to attend, without any sufficient excuse, he shall pay a fine not exceeding $50.00, which shall be imposed by the municipal judge.
(Bill No. 7372, 1-20-2009)

**Sec. 38-87. Discharge of jurors; excuse from attendance.**

The court, when not incompatible with the proper dispatch of its business, shall have power to discharge persons summoned as jurors or dispense with their attendance on any day of its sitting.
(Bill No. 7372, 1-20-2009)

**Sec. 38-88. When juror not entitled to compensation.**

No juror who shall depart without leave of the municipal judge shall be entitled to receive any compensation for his services as a juror.
(Bill No. 7372, 1-20-2009)

**Sec. 38-89. Payment of compensation.**

Such jurors shall be paid at the rate of $20.00/day, inclusive of meal or travel cost within the city related to jury duty. Upon request and if available, jurors will be provided free parking in the Shanklin Parking Garage while serving as municipal jurors. It shall be the duty of the municipal court clerk, as soon as practicable after the adjournment of the court, or before the adjournment of the court at such time as the court may direct, to deliver to each juror a certified copy of any order making an allowance to him, payable out of the city treasury; and the treasurer shall, upon demand, pay to such juror the amount allowed to him.
(Bill No. 7372, 1-20-2009)

**Sec. 38-90. Trial procedure.**

Upon selection of a jury as set forth in Chapter 38 of the Code of the City of Charleston, the municipal court judge shall conduct a trial by jury

consistent with the procedures set forth in the Rules of Criminal Procedure for West Virginia Magistrate Courts.
(Bill No. 7372, 1-20-2009)

**Secs. 38-91—38-120. Reserved.**

## DIVISION 3. INSTALLMENT PAYMENT OF FINES AND COSTS

### Sec. 38-121. Installment or other method of payment when defendant unable to pay forthwith.

Whenever a person is convicted in the municipal court of a violation of this Code or other ordinance or any rule, regulation, notice or order promulgated pursuant to authority, and such person is sentenced to pay a fine, and it shall appear to the court on its own motion or on motion of the defendant that such defendant is unable to pay such fine forthwith, the court may order the defendant to pay such fine and any costs which the defendant may be required to pay in installments or upon such other terms and conditions or within such period of time as may enable the defendant to pay such fine and costs.
(Code 1975, § 16-25)

### Sec. 38-122. Determination of ability to pay; questionnaire to be answered by defendant; assistance to defendant; penalty for false swearing.

(a) In determining whether a defendant is unable to pay a fine forthwith, the court may require such defendant to file a petition, under oath, with the court, upon a form provided by the court, setting forth the financial condition of the defendant.

(b) Such form shall be a questionnaire, and shall include, but shall not be limited to:

(1) The name and residence of the defendant;

(2) His occupation, if any;

(3) His family status and the number of persons dependent upon him;

(4) His monthly income;

(5) Whether or not his dependents are employed and, if so, their approximate monthly income;

(6) His banking accounts, if any;

(7) Real estate owned by the defendant, or any interest he may have in real estate;

(8) Income produced from such real estate;

(9) Any independent income accruing to the defendant;

(10) Tangible and intangible personal property owned by the defendant, or in which he may have an interest; and

(11) A statement listing the approximate indebtedness of the defendant to other persons.

Such form shall also include a payment plan of the defendant if the court should exercise its discretion in permitting the payment of such fine and costs in installments or other conditions to be fixed by the court. At the end of such form there shall be printed in bold face type, in a distinctive color the following:

"THIS STATEMENT IS MADE UNDER OATH. ANY FALSE STATEMENT OF A MATERIAL FACT TO ANY QUESTION CONTAINED HEREIN SHALL CONSTITUTE FALSE SWEARING AND SHALL BE AN OFFENSE AGAINST THIS SECTION. THE MAXIMUM PENALTY IS $100.00 FINE OR 30 DAYS IN JAIL, OR BOTH."

A copy of the petition shall be retained by the defendant.

(c) If the defendant is unable to read or write, the court or the clerk may assist the defendant in completing the petition and require him to affix his mark to the petition. The consequences of the making of a false statement shall be explained to such defendant.

(d) Any defendant who shall knowingly make a false statement of a material fact to any question contained in the questionnaire authorized by this section shall be guilty of false swearing

under this section and, upon conviction, shall be subject to a fine not exceeding $100.00 or 30 days' imprisonment, or both.
(Code 1975, § 16-26)

**State law reference—**Authorized penalty for ordinance violations, W. Va. Code §§ 8-11-1, 8-12-5(57), 8-34-1.

### Sec. 38-123. Payment of fine may be made condition of probation or suspension of sentence.

If a defendant is sentenced to pay a fine and payment of the fine or fine and costs is ordered to be made on an installment basis or on other conditions under the provisions of section 38-121; and if the defendant is also placed on probation or imposition of the execution of sentence is suspended, the court may make payment of the fine a condition of probation or suspension of sentence.
(Code 1975, § 16-27)

### Sec. 38-124. Court may require defendant to be on good behavior until fine and costs are paid.

If a defendant is permitted to pay a fine or fine and costs on an installment basis, or under such other conditions as the court shall fix under the provisions of section 38-121, the court may require as a condition that the defendant be of peace and good behavior until the fine and costs are paid.
(Code 1975, § 16-28)

### Sec. 38-125. Procedure upon default in payment under agreement; confinement in case of willful default.

When any person sentenced to pay a fine defaults in the payment of any such fine or of any installment of the fine, the court may issue a summons for such person to appear before the court for a hearing on the question of whether such person's failure to pay the fine or any installment was attributable to intentional refusal to comply with the prior order of the court or a lack of a good-faith effort to comply with the order. The court may, after hearing, order that the person in default be allowed additional time for payment, may reduce or remit the amount of the fine or the unpaid portion in whole or in part, or upon a finding that the default was intentional or due to the lack of a good-faith effort to comply with the prior order of the court, may order such person confined for such period up to 30 days as the court in its discretion shall determine.
(Code 1975, § 16-29)

### Sec. 38-126. Community service work may be substituted in lieu of incarceration or a fine in municipal court.

(a) Notwithstanding any provision of this Code to the contrary, the municipal judge may substitute in lieu of the imposition of a sentence of incarceration or imposition of a fine community service work for such incarceration or fine. Where community service work is ordered as a substitute for a sentence of incarceration, an eight-hour work day shall extinguish one day of any sentence of incarceration. Where community service work is ordered as a substitute for a fine, the prevailing federal minimum wage in effect at the time of sentencing shall be used to compute the hours of community service work necessary to extinguish the fine. In the discretion of the court, the sentence credits may run concurrently or consecutively.

(b) If approved by the court, any community service ordered pursuant to the provisions of this section shall be performed in the City of Charleston, and may be performed for the City of Charleston or for any other public entity or non-profit organization providing services that benefit the public and the City of Charleston.

(c) Persons sentenced under the provisions of this section remain under the jurisdiction of the municipal court. The court may withdraw the community service sentence at any time, with or without notice, and order a person previously sentenced to community service to serve the term of incarceration or to pay the fine available to the court upon the person's conviction: Provided, that any community service work performed before the community service sentence is withdrawn shall be credited against any term of incarceration or fine imposed.
(Bill No. 7372, 1-20-2009; Bill No. 7768, 11-20-2017)

**Sec. 38-127. Home incarceration for municipal court offenders.**

Notwithstanding any provision of this article to the contrary, when a person is convicted under a municipal ordinance for which a period of incarceration may be imposed, the municipal court may enter an order for home incarceration as an alternative sentence to incarceration in a county or regional jail; provided that home incarceration shall be available at the expense of the person convicted, and only if accepted by the Kanawha County Sheriff's Department Home Confinement Office. Any person accepted by the Kanawha County Sheriff's Department Home Confinement Office the home is required to enter into an agreement for payment of any related fees to the Kanawha County Sheriff's Department Home Confinement Office.
(Bill No. 7372, 1-20-2009)

Chapters 39—41

**RESERVED**

Chapter 42

# EMERGENCY MANAGEMENT*

## Article I. In General

Secs. 42-1—42-30. Reserved.

## Article II. Emergency Services Department

Sec. 42-31. Organization created; composition; title.
Sec. 42-32. Emergency services council.
Sec. 42-33. Functions of department.
Sec. 42-34. Powers and duties of mayor.
Sec. 42-35. Appointment, term and compensation of director.
Sec. 42-36. Director's powers and duties.
Sec. 42-37. Appropriations and authority to accept services, gifts, grants and loans.
Sec. 42-38. Utilization of existing services and facilities; volunteer assistance.
Sec. 42-39. Political activity prohibited.
Sec. 42-40. Emergency services personnel; required oath.
Sec. 42-41. Orders, rules and regulations; enforcement of article.
Sec. 42-42. Prohibited use of personnel identification.
Sec. 42-43. Obstruction of personnel.
Sec. 42-44. Members to return paraphernalia on request.
Secs. 42-45—42-80. Reserved.

## Article III. Civil Emergencies

Sec. 42-81. When state of emergency deemed to exist.
Sec. 42-82. Declaration of emergency by proclamation of mayor; restrictions may be imposed; exemptions from restrictions.
Sec. 42-83. Specific restrictions authorized.
Sec. 42-84. Extension, alteration and rescission of proclamation.
Sec. 42-85. Compliance with restrictions imposed by proclamation mandatory.
Sec. 42-86. Authority to request state police and military forces; when proclamation of martial law may be recommended to governor.
Sec. 42-87. End of emergency period.

*__Cross reference—__Emergency services, ch. 46.

## ARTICLE I. IN GENERAL

**Secs. 42-1—42-30. Reserved.**

## ARTICLE II. EMERGENCY SERVICES DEPARTMENT*

### Sec. 42-31. Organization created; composition; title.

There is created an emergency services organization for the city, which shall consist of a director, an emergency services council, and such other persons as are determined by the mayor or city council to be required. This organization may be referred to as the "Charleston-Kanawha Emergency Services Department."
(Code 1975, § 7-1)

**State law reference—**Emergency services organization required, W. Va. Code § 15-5-8.

### Sec. 42-32. Emergency services council.

(a) *Created; composition; qualifications, appointment and term of members; filling vacancies.* There is created a council to be known as the "Charleston-Kanawha Emergency Services Council, Charleston, West Virginia." The council shall consist of five members, all of whom shall be residents of the city, who shall be appointed by and serve at the will and pleasure of the mayor. At no time shall more than three members of the council be members of the same political party. All members shall be appointed for terms of three years each and until their successors are duly appointed and qualified, but vacancies shall be filled by appointment for the unexpired terms.

(b) *Compensation.* Members of this council shall serve without compensation but shall be reimbursed for the reasonable and necessary expenses incurred in the performance of their duties as authorized by the mayor or city council.

(c) *Advisory duties.* The emergency services council shall advise the mayor and emergency services director on all matters pertaining to emergency service.
(Code 1975, § 7-2)

**Cross reference—**Boards, committees and commissions, § 2-511 et seq.

---

***State law reference—**Emergency services, W. Va. Code § 15-5-1 et seq.

### Sec. 42-33. Functions of department.

The emergency services department shall perform emergency service functions within the territorial limits of the city and county and, in addition, shall conduct such functions outside such territorial limits as may be required pursuant to W. Va. Code ch. 15, art. 5 (W. Va. Code § 15-5-1 et seq.). The emergency services department shall ensure preparation in this city and county to deal with disaster resulting from enemy attack, sabotage or other hostile action, and also from flood, fire, windstorm or other natural causes. In order that preparations in this city and county shall be adequate to deal with such disasters and generally to provide protection of the health, safety and public peace, and to preserve the lives and property of the people of the city and county, the emergency services department shall:

(1) Cooperate fully with the emergency services functions of the state and the county.

(2) Provide for the rendering of mutual aid to other cities and counties within the state and, if necessary and only with the specific approval of the mayor of Charleston and the governor, the neighboring counties and cities of another state.

(3) While cooperating with other agencies as provided in subsections (1) and (2) of this section, the emergency services department shall remain, insofar as practicable, a self-sustaining and independent unit.

(Code 1975, § 7-3)

### Sec. 42-34. Powers and duties of mayor.

The mayor shall have general direction and control of the emergency services department and shall be responsible for carrying out the provisions of this article and W. Va. Code ch. 15, art. 5 (W. Va. Code § 15-5-1 et seq.), insofar as it applies to the city. The mayor shall appoint such officials as are provided by this article.
(Code 1975, § 7-4)

### Sec. 42-35. Appointment, term and compensation of director.

The mayor is authorized and directed to appoint an emergency services director for the city.

The emergency services director shall serve at the will and pleasure of the mayor and be paid such compensation as is determined by the city council. (Code 1975, § 7-5)

**Sec. 42-36. Director's powers and duties.**

(a) *Department head.* The emergency services director, subject to the direction and control of the mayor, shall be the executive head of the emergency services department and shall, subject to such control, have the direct responsibility for the organization, administration and operation of the city organization for emergency services. The director shall coordinate the activities of all organizations for emergency services within the city and shall cooperate with the emergency services agencies and organizations in the county and the state.

(b) *Coordination; other duties.* The director shall coordinate all the activities of agencies, public or private, in all matters and actions during an emergency. In performing the duties under this article and to effect its policy and purpose, the director is further authorized, directed and empowered to:

(1) Prepare a comprehensive plan and program for the emergency services of the city, such plan or program to be coordinated with the emergency services plans of the state and county, and of other cities and counties in the state.

(2) In accordance with such plan and program for the emergency services of the city, procure supplies and equipment, institute training programs and public information programs and take all other preparatory steps, including the partial or full mobilization of all city emergency services organizations in advance of actual disaster in order to ensure the furnishing of adequately trained and equipped forces of emergency service personnel in time of need.

(3) Make such studies and surveys of the resources and facilities in the city as may be necessary to ascertain the capabilities of the city for emergency services and to plan their most efficient emergency use.

(4) On behalf of the city, enter into mutual aid arrangements with the county emergency services and, with the approval of the county, with other counties and cities in the state and, with the approval of the mayor and of the governor, with other emergency services organizations in other states, for reciprocal emergency services, aid and assistance in case of disaster too great to be dealt with unassisted.

(5) Delegate any administrative authority invested in the director under this article and to provide for the subdelegation of any such authority.

(6) Fully cooperate with the state and county emergency services and with officials and agencies of other cities and counties within the state in matters pertaining to the emergency services of the city, county or state, including the direction and/or control of:

a. Blackouts and practice blackouts, air raid drills, mobilization of emergency services forces, and tests and exercises.

b. Warnings and signals for drills or attacks and the connected mechanical devices to be used.

c. The effective screening or extinguishing of all lights and lighting devices and appliances.

d. Shutting off water mains, gas mains or electric power connections of any or all other utility services when necessary and authorized by law.

e. The conduct of civilians and the movement and/or cessation of movement of pedestrians and vehicular traffic during, prior to and subsequent to drills or attacks or during any time of emergency as duly declared by the mayor.

f. All public meetings or gatherings.

g. The evacuation and reception of civilian population.

h. All rescue operations.

(7) Prepare and amend, not less than annually and with the approval of city council, a plan of emergency operations consistent with the requirements of the federal, state or city governments, to be designated "City of Charleston Emergency Operations Plan."

(Code 1975, § 7-6)

### Sec. 42-37. Appropriations and authority to accept services, gifts, grants and loans.

(a) Whenever the federal, state or county government, or any agency or officer, shall offer to the city services, equipment, supplies, materials or funds by way of gift, grant or loan for any of the purposes of this article, the emergency services director of the city, acting with the consent of the mayor, may accept such offer subject to the rules and regulations, if any, of the agency making the offer.

(b) Whenever any person shall offer to the city any services, equipment, supplies, materials or funds by way of gift, grant or loan, the emergency services director, acting with the consent of the mayor, may accept such offer subject to the terms of the offer.

(Code 1975, § 7-7)

**State law reference—**Similar provisions, W. Va. Code § 15-5-13.

### Sec. 42-38. Utilization of existing services and facilities; volunteer assistance.

(a) In carrying out the provisions of this article, the director is directed and authorized to utilize the services, equipment, supplies and facilities of existing departments of the city to the maximum extent practicable; and the department heads and all personnel of the various departments are directed to cooperate with and extend such services and facilities to the director upon request.

(b) Whenever volunteer assistance is needed in any emergency, the call shall be made by the emergency services department; and all volunteers will report where directed to an emergency services representative to be registered and assigned. No unregistered volunteers will be used by any department of the city.

(Code 1975, § 7-8)

### Sec. 42-39. Political activity prohibited.

The emergency services department shall not participate in any form of political activity nor shall it be employed directly or indirectly for political purposes.

(Code 1975, § 7-9)

**State law reference—**Similar provisions, W. Va. Code § 15-5-14.

### Sec. 42-40. Emergency services personnel; required oath.

No person shall be employed or associated in any capacity in the emergency services organization of the city who advocates or who has advocated a change by force or violence in the constitutional form of government of the United States, the state, the county or the city, or who has been convicted of or is under indictment or information charging any subversive act against the United States. Each person who is appointed to serve in the emergency services department shall, before entering upon his duties, take an oath in writing before a person authorized to administer oaths in this state, which oath shall be as follows: "I, _____, do solemnly swear, or affirm, that I will support and defend the Constitution of the United States and the Constitution of the State of West Virginia, against all enemies, foreign and domestic; that I will bear true faith and allegiance to the same; that I will take this obligation freely, without any mental reservation or purpose of evasion; that I will well and faithfully discharge the duties upon which I am about to enter. And I do further swear, or affirm, that I do not advocate, nor am I a member of any political party or organization that advocates the overthrow of the government of the United States or of this state by force or violence; and that during such time as I am a member of the City of Charleston emergency services, I will

not advocate nor become a member of any political party or organization that advocates the overthrow of the government of the United States or of this state by force or violence."

_____
Signature

(Code 1975, § 7-10)

**State law reference—**Similar provisions, W. Va. Code § 15-5-15.

### Sec. 42-41. Orders, rules and regulations; enforcement of article.

(a) It shall be the duty of the emergency services department established by this article and of its officers to execute and enforce such orders, rules and regulations as may be or have been approved by the mayor or city council; and there shall be available for public inspection at the emergency services department all orders, rules or regulations issued under its authority.

(b) A peace officer, including members of the auxiliary police, when in full and distinctive uniform or displaying a badge or other insignia of authority, may arrest without a warrant any person violating or attempting to violate in such officer's presence any order, rule or regulation made pursuant to this article. This authority shall be limited to those rules and regulations which affect the public generally.

**State law reference—**Similar provisions, W. Va. Code § 15-5-18.

(Code 1975, § 7-11)

### Sec. 42-42. Prohibited use of personnel identification.

It shall be unlawful for any person to wear, carry or display, without authority, any means of identification specified or used by the emergency services department.

(Code 1975, § 7-12)

### Sec. 42-43. Obstruction of personnel.

It shall be unlawful during a disaster or emergency to willfully obstruct, hinder or delay any member of the emergency services department in the enforcement of this article, or any lawful rule or regulation issued pursuant to this article, or in the performance of any duty imposed upon him by virtue of this article.

(Code 1975, § 7-13)

### Sec. 42-44. Members to return paraphernalia on request.

It shall be unlawful for any person to fail to return to the emergency services department, upon request, any uniform, badges or equipment possessed by such person.

(Code 1975, § 7-14)

### Secs. 42-45—42-80. Reserved.

## ARTICLE III. CIVIL EMERGENCIES

### Sec. 42-81. When state of emergency deemed to exist.

For the purposes of this article, a state of emergency shall be deemed to exist whenever, during times of great public crises, disaster, rioting, catastrophe or similar public civil emergency, for any reason, municipal public safety authorities are unable to maintain public order or afford adequate protection for lives or property.

(Code 1975, § 8-1)

### Sec. 42-82. Declaration of emergency by proclamation of mayor; restrictions may be imposed; exemptions from restrictions.

(a) In the event of an existing or threatened state of emergency endangering the lives, safety, health and welfare of the people within the city or threatening damage to or destruction of property, the mayor is empowered to issue a public proclamation declaring to all persons the existence of such a state of emergency, and, in order to more effectively protect the lives and property of people within the city, to place in effect any or all of the restrictions authorized by this article.

(b) The mayor is authorized and empowered to limit by such proclamation the application of all or any part of such restrictions to any area specifically designated or described within the city and within the area one mile beyond the city

limits and to specific hours of the day or night; and to exempt from all or any part of such restrictions law enforcement officers, firefighters and other public employees, doctors, nurses, employees of hospitals and other medical facilities; on-duty military personnel, whether state or federal; on-duty employees of public utilities, public transportation companies, and newspaper, magazine, radio broadcasting and television broadcasting corporations; and such other classes of persons as may be essential to the preservation of public order and immediately necessary to serve the safety, health and welfare needs of the people within the city.
(Code 1975, § 8-2)

**Sec. 42-83. Specific restrictions authorized.**

During the existence of a proclaimed state of emergency, the mayor may impose by proclamation any or all of the following restrictions:

(1) Prohibit or regulate the possession off one's own premises of explosives, firearms, ammunition or dangerous weapons of any kind, and prohibit their purchase, sale, transfer or other disposition.

(2) Prohibit or regulate the buying or selling of beer, wine or intoxicating beverages of any kind, and their possession or consumption off one's own premises.

(3) Prohibit or regulate any demonstration, parade, march, vigil or participation in such activity from taking place on any of the public ways or upon any public property.

(4) Prohibit or regulate the sale or use of gasoline, kerosene, naphtha, or any other explosive or flammable fluids or substances.

(5) Prohibit or regulate travel upon any public street or upon any other public property, except by those in search of medical assistance, food or other commodity or service necessary to sustain the well-being of themselves or their families or some member of the family.

(6) Prohibit or regulate the participation in or carrying on of any business activity, and prohibit or regulate the keeping open of places of business, places of entertainment, and other places of public assembly.

(7) Establish hours during which a curfew shall be in effect.

(Code 1975, § 8-3)

**Sec. 42-84. Extension, alteration and rescission of proclamation.**

Any proclamation of emergency promulgated pursuant to this article may be extended, altered or rescinded in any particular during the continued or threatened existence of a state of emergency by the issuance of a subsequent proclamation.
(Code 1975, § 8-4)

**Sec. 42-85. Compliance with restrictions imposed by proclamation mandatory.**

During the existence of a proclaimed state of emergency, it shall be unlawful for any person to violate any provision of any restriction imposed by any proclamation authorized by this article.
(Code 1975, § 8-5)

**Sec. 42-86. Authority to request state police and military forces; when proclamation of martial law may be recommended to governor.**

If in the sound discretion of the mayor it shall appear that an emergency is or that a threatened emergency is likely to be of such proportions that the means available to the city to maintain law and order within the police jurisdiction of the city are insufficient for such purpose, the mayor shall, promptly and by the most expeditious means of communication, inform the governor of the situation and request that the necessary police or military forces of the state be provided promptly; and if during an actual state of emergency the mayor shall find that the civil courts within the police jurisdiction of the city are unable to perform their lawful duties and that, by reason of widespread lawlessness, writs and other processes cannot be served or executed, the mayor shall inform the governor of his findings and may

recommend to him that a state of martial law be proclaimed within the police jurisdiction of the city.
(Code 1975, § 8-6)

**Sec. 42-87. End of emergency period.**

The mayor shall proclaim the end of a state of emergency or all or any part of the restrictions imposed as soon as circumstances warrant or when directed to do so by the city council.
(Code 1975, § 8-7)

Chapters 43—45

**RESERVED**

Chapter 46

# EMERGENCY SERVICES*

Sec. 46-1. Alarm systems.

*__Cross references—__Businesses, ch. 18; emergency management, ch. 42; fire prevention and protection, ch. 54; law enforcement, ch. 66.

**Sec. 46-1. Alarm systems.**

(a) *Definitions.* The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

*Alarm system* means equipment designed to signal an illegal entry or other activity to which the police department is requested to respond by silent or audible alarm, but does not include an automobile alarm.

*Alarm user* means any person whose business premises are protected by an alarm system within the city.

*False alarm* means an alarm not resulting from an unauthorized entry, robbery or where no other crime was committed or attempted at the premises. An alarm caused by power failure shall be deemed a false alarm if the power outage lasts longer than the alarm system's battery backup. A false alarm does not include an alarm that activates during violent weather.

*Reporting period* means each 12-month period following a false alarm for an alarm user.

(b) *False alarms; penalties.*

(1) The police department shall maintain records regarding false alarms. If an alarm user has a false alarm, the police department shall notify the alarm user that continued false alarms during the reporting period will result in a fine consistent with this section. The notice may be made orally or in writing and failure to provide the notice is not a defense to a violation of this section.

(2) An alarm user owning an alarm system, upon conviction following the filing of a complaint in municipal court, shall be fined $500.00 upon the occurrence of three or more false alarms in any three month period and for each false alarm occurring thereafter during the same reporting period.

(Ord. No. 6503, § 24-7.1, 3-1-1999; Bill No. 7843, 10-21-2019)

**State law reference—**Authorized penalty for ordinance violations, W. Va. Code §§ 8-11-1, 8-12-5(57), 8-34-1.

Chapters 47—49

**RESERVED**

# Chapter 50

# ENVIRONMENT*

## Article I. In General

Sec. 50-1. Operation of engines, furnaces or boilers.
Secs. 50-2—50-30. Reserved.

## Article II. Nuisances

Sec. 50-31. Article supplemental to other provisions of Code relating to nuisances.
Sec. 50-32. Prohibited within city.
Sec. 50-33. Certain nuisances enumerated; list not exclusive.
Sec. 50-34. Additional nuisances; penalties.
Sec. 50-35. Liability of owner for condition of leased premises.
Sec. 50-36. Inspections, investigations and complaints.
Sec. 50-37. Right to enter upon private premises; duty of occupants.
Sec. 50-38. Actions and reports by inspecting and investigating officers.
Sec. 50-39. Order to remedy activity or condition constituting nuisance; right to public hearing; actions by city manager.
Sec. 50-40. Conduct of public hearing; final abatement order by city manager.
Sec. 50-41. Review by city council.
Sec. 50-42. Recourse of city when abatement order ignored; lien; prosecution for maintenance of nuisance not barred by payment for abatement.
Sec. 50-43. Apportionment of cost of abatement.
Sec. 50-44. Article not to prohibit arrest for committing or maintaining nuisance.
Sec. 50-45. Order to abate condition constituting nuisance; right to public hearing; actions by city manager.
Sec. 50-46. Conduct of public hearing.
Sec. 50-47. Recourse of city when order to abate condition constituting nuisance is ignored; lien created; prosecution for maintenance of nuisance not barred by paying expense of abatement.
Sec. 50-48. Apportionment of cost of abatement.
Sec. 50-49. Destruction of unwholesome articles.
Sec. 50-50. Article does not prohibit arrest for committing or maintaining nuisance.
Sec. 50-51. Short title.
Sec. 50-52. Declaration of graffiti as a public nuisance.
Sec. 50-53. Definitions.
Sec. 50-54. Purpose.
Sec. 50-55. Permitting graffiti to remain prohibited.
Sec. 50-56. Notice to owner or possessor of property.
Sec. 50-57. Removal.
Secs. 50-58—50-80. Reserved.

## Article III. Abandoned Vehicles and Junk

Sec. 50-81. Legislative findings; statement of policy.
Sec. 50-82. Definitions.

---

***Cross references—**Animals, ch. 10; buildings and building regulations, ch. 14; health and sanitation, ch. 58; manufactured homes and trailers, ch. 70; parks and recreation, ch. 82; planning, ch. 90; solid waste, ch. 98; streets, sidewalks and other public places, ch. 102; subdivision regulations, ch. 106; utilities, ch. 118; zoning, app. B.

**State law references—**Natural resources, W. Va. Code § 20-1-1 et seq.; environmental resources, W. Va. Code § 22-1-1 et seq.; general authority relative to nuisances, W. Va. Code § 8-12-5(13), (22).

Sec. 50-83. Abandonment of vehicles.
Sec. 50-84. Junked vehicles prohibited in certain places.
Sec. 50-85. Old vehicle tires and inoperative or abandoned household appliances prohibited in certain places.
Sec. 50-86. Authority to take possession of abandoned equipment; employment of personnel for enforcement; notification to owner of private property.
Sec. 50-87. Notification of vehicle owner and lienholders.
Sec. 50-88. Disposal of unclaimed vehicles.
Sec. 50-89. Proceeds from sale.
Sec. 50-90. Penalties.
Sec. 50-91. Injunctive relief.
Sec. 50-92. Construction.
Secs. 50-93—50-120. Reserved.

**Article IV. Maintenance of Premises**

Sec. 50-121. Prohibited accumulation or discharge of liquid wastes.
Sec. 50-122. Requirements as to maintenance of premises and disposition of refuse.
Sec. 50-123. Disposition of grass, weeds and vegetation.
Sec. 50-124. Removal of prohibited accumulations of refuse and vegetation; joint responsibility of property owners and persons in charge; action by city.
Secs. 50-125—50-170. Reserved.

**Article V. Trees**

Sec. 50-171. Short title.
Sec. 50-172. Purpose.
Sec. 50-173. Definitions.
Sec. 50-174. Establishment of a tree board.
Sec. 50-175. Duties of city arborist.
Sec. 50-176. Permits required.
Sec. 50-177. Application data.
Sec. 50-178. Removal, replanting, and replacement.
Sec. 50-179. Interference with city arborist.
Sec. 50-180. Placing materials on public property.
Sec. 50-181. Abuse or mutilation of public trees.
Sec. 50-182. Emergencies.
Sec. 50-183. Violation and penalty.
Sec. 50-184. Severability.
Sec. 50-185. Repealer.
Sec. 50-186. Public utility right-of-way maintenance.

## ARTICLE I. IN GENERAL

### Sec. 50-1. Operation of engines, furnaces or boilers.

The owners, lessees, tenants and managers of every building or place in or upon which a locomotive or stationary engine furnace or boiler is used, and when gas is not used, shall cause all ashes, cinders, rubbish and refuse to be removed to some proper place, so that they shall not accumulate; nor shall any person cause, suffer or allow smoke, cinders, dust, gas, steam or offensive odors to escape or be discharged from any such building, vessel or place to the detriment or annoyance of any person not being or engaged.
(Ord. No. 6035, § 13-9, 9-19-1994)

### Secs. 50-2—50-30. Reserved.

## ARTICLE II. NUISANCES*

### Sec. 50-31. Article supplemental to other provisions of Code relating to nuisances.

Various nuisances are defined and prohibited in other chapters of this Code, and it is the intent of the city council in enacting this article to make it supplemental to those other chapters in which nuisances are defined and prohibited; and the provisions of this article relating to the abatement of nuisances shall be regarded as alternative methods and procedures for the abatement of nuisances in those instances where other methods and procedures for abatement are provided.
(Code 1975, § 17-1)

### Sec. 50-32. Prohibited within city.

It shall be unlawful for any person to cause, harbor, commit or maintain, or to suffer to be caused, harbored, committed or maintained, any nuisance as defined by statute or common law of the state or as defined by this Code or other ordinance of the city at any place within the city limits when such nuisance constitutes a hazard to the health, safety or good order of the city or its inhabitants.
(Code 1975, § 17-2)

### Sec. 50-33. Certain nuisances enumerated; list not exclusive.

(a) The following acts, when committed, or conditions, when existing, are defined and declared to be nuisances:

(1) An act done or committed or aided or assisted to be done or committed by any person, or any substance, being or thing kept, maintained, placed or found in or upon any public or private place, which is injurious or dangerous to the public health, safety or good order.

(2) All buildings, bridges or other structures of whatsoever character kept or maintained, or which are permitted by any person owning or having control to be kept or maintained, in a condition unsafe, dangerous, unhealthy, injurious or annoying to the public.

(3) All trees and other appendages of or to realty kept or maintained, or which are permitted by any person owning or having control to be kept or maintained, in a condition unsafe, dangerous, unhealthy, injurious or annoying to the public.

(4) All ponds or pools of putrid or stagnant water, and all foul or dirty water or liquid found or discharged into or upon any street, public place or lot to the injury or annoyance of the public.

(5) All obstructions caused or permitted on any street or sidewalk to the danger or annoyance of the public, and all stones, rubbish, dirt, filth, slops, vegetable matter or other articles thrown or placed by any person on or in any street, sidewalk or other public place, which in any way may cause any injury or annoyance to the public or which may be a hazard to the public health or safety.

---

*__Charter reference—__Nuisance abatement, § 47.

__Cross reference—__Unauthorized signs, signals or markings, nuisances, § 114-242.

__State law reference—__General authority relative to nuisances, W. Va. Code § 8-12-5(13), (23).

(6) All sidewalks, gutters or curbstones permitted to remain in an unsafe condition or out of repair.

(7) All houses or buildings used for special storage of powder, dynamite or other explosive substances, except those maintained pursuant to permit issued by competent authority.

(8) Any unclean, stinking, foul, defective or filthy drainpipe, tank or gutter, or any leaking or broken slop, garbage or manure box or receptacle of like character.

(9) Any dirt gathered in cleaning yards, waste of factories or any rags, damaged merchandise, wet, broken or leaking containers or any materials which are offensive or tend by decay to become putrid or to render the atmosphere impure or unwholesome.

(10) Any business, trade or activity whereby noisome stenches and odors or noxious gases arise or are generated.

(11) Whenever in any cellar, basement, or part of a cellar or basement, or any house or building, there may be found water occasioned by leakage from defective hydrants, water pipes, sewer pipes, cisterns, wells, gutters, drains, running spouts or seepage from the surrounding earth, or whenever the walls of any cellar or basement shall be found to be damp or moist from any cause named in this subsection, such water, leakage, seepage or moisture shall be deemed a nuisance.

(12) Every act or thing done or which may be permitted, allowed or continued by the owner, agent, assignee, occupant or tenant of any premises, property or structure, which act or thing done relates to the location, construction, repair, maintenance, use, emptying and cleaning of all water closets, privies, sinks, plumbing, drains, yards, lots, areaways, pens, stables and other places where offensive, unsightly, unwholesome, objectionable or dangerous substances or liquids are or may be accumulated, to the damage or injury of any of the inhabitants of the city, and not otherwise specified in this section.

(13) All open, unguarded or unprotected excavations, refrigerators with intact doors, swimming pools or buildings which, when abandoned or left open or otherwise unprotected, will likely prove dangerous to life or limb, or abandoned, open, uncovered or otherwise unprotected wells, cesspools, cisterns or catchbasins.

(14) All emissions of dense smoke from the smokestack of any stationary engine, steam roller, steam derrick, piledriver, tar kettle or other similar machine or contrivance, or from the smokestack or chimney of any building or premises, except for a period aggregating not to exceed seven minutes in any one hour, during which period the fire box is being cleaned or a new fire is being built in the box. All emissions of dense smoke from the stack of any locomotive for a period of more than 75 seconds, except for a period aggregating not to exceed 12 minutes in any one hour, during which period the fire box is being cleaned or a new fire is being built in the box. For the purpose of grading the density of smoke, the Ringelmann smoke chart, as published and used by the Federal Bureau of Mines, a copy of which is on file in the office of the city clerk and which is incorporated in and made a part of this subsection, shall be the standard of comparison. Smoke shall be considered dense when it is of greater density than the number 3 of such chart.

(15) All infected or infested bedding or clothing, or any putrid or unsound meat, beef, pork, fish, hides or skins of any kind, decayed or unsound vegetables or fruit or any other articles which are dangerous to the health of the inhabitants of the city.

(b) The nuisances described in this section shall not be construed as exclusive; and any act of commission or omission and any condition which constitutes a nuisance by statute or common law

of the state, when committed, omitted or existing within the city, is declared to constitute a nuisance. (Code 1975, § 17-3)

**Sec. 50-34. Additional nuisances; penalties.**

(a) No owner or operator of any property shall knowingly allow on the property or permit the use of the property for any illegal activity. Conduct prohibited by this shall constitute a nuisance. Each day conduct prohibited by this section continues shall constitute a separate offense.

(b) Any owner or operator who shall violate the provisions of subsection (a) shall be guilty of a misdemeanor and upon conviction shall be punished by a fine of not more than $1,000.00 for each offense.

(c) An owner or operator of a property who receives notice by certified mail from the Charleston Police Department of illegal activity on the property shall take action to terminate the illegal activity within 30 days after receiving notice by certified mail by the Charleston Police Department. If the owner or operator fails to terminate the illegal activity within 30 days after the notice then he or she shall be guilty of a misdemeanor and, upon conviction thereof, shall be punished by a fine of not more than $1,000.00 for each offense. The conduct prohibited by this subsection is subject to the following:

(1) The Charleston Police Department shall first provide a notice by certified mail to the owner and/or operator of the property that illegal activity is being conducted and that the owner and/or operator of the property are subject to the provisions of this article if not corrected, and the property could potentially be subject to forfeiture if applicable by state and federal laws.

(2) Any notice to the owner of the property under this section shall also be served on the tenant by regular mail.

(3) A letter to the owner of the property shall describe in specific detail the facts forming the basis for the allegation of the illegal activity and the specific illegal activity occurring. The letter to the owner shall inform the owner that the illegal activity constitutes a nuisance and that the owner has a duty to take all action reasonably expected to abate the nuisance.

(4) If the owner properly notifies the Charleston Police Department, then the chief of police or a designated representative shall appear at any hearing on eviction action or other legal action taken by the owner of the property pursuant to this section and produce witnesses and other evidence detailing the illegal activity of the tenant.

(5) It shall be an absolute defense for the owner of property for charges under this section if such owner initiates legal activity to evict the tenant pursuant to this section, regardless of the ultimate ruling or outcome of the case in court.

(d) For purposes of this section the following definitions shall apply:

(1) "Operator" means any person, whether an owner, tenant, possessor or any agent, partner, officer or employee, in possession and control of property.

(2) "Property" means any business, establishment, building, vehicle, home, structure or other property, together with the land surrounding property.

(3) "Illegal activity" means an act harmful not only to an individual but also to a community, society or state, which is forbidden and punishable by law.

(Ord. No. 4981, § 17-3.1(a)—(c), (g); Ord. No. 6641-A, § 17-3.1(a)—(c), (g), 2-7-2000; Bill No. 7835, 10-21-2019)

**State law reference—**Authorized penalty for ordinance violations, W. Va. Code §§ 8-11-1, 8-12-5(57), 8-34-1.

**Sec. 50-35. Liability of owner for condition of leased premises.**

Whenever any owner or agent of any building in the city shall rent, lease or hire out to be occupied any building or part of a building as a home or residence of more than two families living independently of one another, or a building giving to each family or person the common

right to halls, yards, water closets or privies, or some of them, such owner or agent shall be liable for the condition of such halls, yards, water closets and privies so that they do not constitute a nuisance or a hazard to the health or safety of the public or of any person; and the owner or agent may also be made a defendant in a prosecution for the violation of any of the provisions of this article and be subject to penalty, the same as the occupant of the premises; and any prosecution for violation of this article may be maintained against the owner, occupants or agent of the premises, or either or all of those parties. Owners or agents shall only be held responsible under the provisions of this section where buildings are rented to different persons as described in this article.
(Code 1975, § 17-4)

### Sec. 50-36. Inspections, investigations and complaints.

It shall be the duty of the building and housing commissioner, chief of police, chief of the bureau of fire prevention in the fire department, city engineer, city manager, health commissioner and such other city officers as may be subject to the orders of the city manager and designated by him for such purpose to make inspections and investigations, or to cause inspections and investigations to be made, from time to time to determine whether any condition exists or any activity is being engaged in which constitutes a nuisance; and any such officer shall make or cause to be made an inspection and investigation upon complaint being made by any responsible person.
(Code 1975, § 17-5)

### Sec. 50-37. Right to enter upon private premises; duty of occupants.

Each city officer mentioned in section 50-36 shall have the right to enter upon private premises for the purposes specified in that section, upon properly identifying himself and upon compliance with all applicable provisions of law. It shall be unlawful for any owner, occupant or person in charge of any premises to prevent or hinder any such entry which is sought to be made in compliance with law.
(Code 1975, § 17-6)

**State law reference—**Authority to provide for entering and inspecting private premises to aid in the enforcement of state law or city ordinances, W. Va. Code § 8-12-15.

### Sec. 50-38. Actions and reports by inspecting and investigating officers.

(a) If at any time any officer mentioned in section 50-36 or any police officer of the city finds a condition to exist or an activity being engaged in which constitutes a nuisance, he shall warn any person who may be responsible and who is present or readily on call that the nuisance must be abated without delay, that failure so to do may result in appropriate action against him and that he will be subject to all expenses incurred by the city as well as to a possible criminal penalty; and if it appears to such officer that the nuisance constitutes an imminent health, fire or safety hazard to any person, he shall forthwith take such lawful action within his capabilities as may be necessary to negate the hazard, or else to clear the endangered area of persons; and he shall notify the city manager promptly by the most expeditious means of communication.

(b) All city officers mentioned in section 50-36 and all police officers of the city shall report through proper administrative channels to the city manager the facts as to any nuisance found by them upon investigation and the action, if any, taken by them pursuant to subsection (a) of this section, together with recommendations as to the manner of abatement, the time limit for abatement and such other professional recommendations and comments as they may deem pertinent.
(Code 1975, § 17-7)

### Sec. 50-39. Order to remedy activity or condition constituting nuisance; right to public hearing; actions by city manager.

(a) The city manager, upon the report and recommendation of any city officer mentioned in section 50-36 that an activity is being engaged in or a condition exists which constitutes a nuisance,

shall issue an order in writing to the owner, occupant or person in charge of the premises where the activity is being engaged in or the condition exists, stating the activity or condition which constitutes the nuisance and directing such addressee to remedy the activity or condition within the time stated in such order, which shall be not less than ten days. It shall be unlawful for any such owner, occupant or person in charge to fail to comply with the terms of such order; provided, that any owner, occupant or person in charge of the premises may, within ten days of being served with such order, apply to the city manager for a public hearing on the matter, in which case the terms of such order shall be stayed pending action by the city manager subsequent to

the hearing. However, if the city manager shall state in such order that the activity or condition which constitutes a nuisance is such as to be an imminent hazard to the health, safety or welfare of the public or any person within or near the premises upon which such nuisance exists, such emergency order shall be effective immediately; provided, that any person to whom such an emergency order is directed shall be afforded a hearing upon petition to the city manager; but if such petition is not filed within 24 hours of that person being served with such an emergency order, the person to whom such an emergency order is directed shall comply with the order by the end of such 24-hour period.

(b) The written orders required in this section may be served in any manner authorized by the laws of the state concerning the service of process in civil actions. It shall be unlawful for any person to violate or fail to comply with the terms of any such order as issued by the city manager initially, or as issued by the city manager following application for a public hearing, as the case may be.

(c) Upon receipt of a proper application for a public hearing under this section, the city manager shall fix a place and specify a time, not less than ten days after receipt of the application, at which the public hearing shall be held; and further, he shall give prompt notice to all parties having an interest in the matter; and further, he shall publish an appropriate notice of such hearing in two newspapers of general circulation in the city.
(Code 1975, § 17-8)

### Sec. 50-40. Conduct of public hearing; final abatement order by city manager.

(a) At any public hearing held pursuant to section 50-39, the applicant may appear in person or by counsel, either or both, and he may have process for the attendance of witnesses and the production of pertinent books and papers, if such there are in any case; and other parties in interest may also appear and be heard under oath.

(b) After hearing all of the facts in the case, if in the opinion of the city manager no good and sufficient cause is shown why such nuisance should not be abated, discontinued or removed, he shall issue an order to the responsible party to abate, discontinue or remove the nuisance within the time allotted, which shall be in the discretion of the city manager; but it shall in no case be less than within ten days of being served with such order; provided, that if the initial order issued pursuant to section 50-39 was an emergency order, the nuisance shall be abated, discontinued or removed immediately upon the responsible party being served with such order.
(Code 1975, § 17-9)

### Sec. 50-41. Review by city council.

Whenever under section 50-40 the city manager has determined that no good and sufficient cause is shown why a nuisance should not be abated, discontinued or removed, and has ordered the responsible party to abate, discontinue or remove the nuisance, the determined responsible party shall have the right to petition the city council for record review of the order of abatement if petition is filed with the city clerk within ten days of receipt of such order by the city manager. The petition shall set forth all grounds upon which relief or reversal of the order is predicated, and the petition shall be accompanied by any documents, transcript or other records deemed relevant by the responsible party for record review by the council at the next regular meeting of the council or as soon thereafter in regular session as the council may deem proper for consideration and determination. Any such request for review filed with the city clerk shall be communicated by the clerk to council at the next regular meeting of the council along with the petition and accompanying record of the responsible party, as well as the related records or copies of the city manager in the matter. Upon review of the record by the council and such other information as the council may deem relevant, the council shall, by resolution, affirm, reverse or modify the order of the city manager and direct the clerk to serve upon the responsible party a certified copy of the resolution. Whenever by the resolution the order of the city manager is affirmed or modified to require the abatement of a nuisance, such nuisance shall be abated, discontinued or removed within such time following service of the

resolution as the city manager determined in his order, and shall otherwise be enforced as a lawful order of the city manager under the other provisions of this article.
(Ord. No. 4866, § 17-9.1, 12-7-1992)

**Sec. 50-42. Recourse of city when abatement order ignored; lien; prosecution for maintenance of nuisance not barred by payment for abatement.**

(a) If any owner, occupant or person in charge of any premises to whom an order to abate a nuisance has been issued as provided in section 50-39 fails to comply with the terms of such order, or with the terms imposed by the city manager after a public hearing, as the case may be, the city manager may have such nuisance abated or the provisions of such order carried out, after giving written notice to such owner, occupant or person in charge of the premises of his intention to do so, and collect the expenses, with one percent per month interest added from the date of the notice, from the owner, occupant or person in charge, by distress or sale, in the same manner in which taxes levied upon real estate for the benefit of the city are authorized to be collected. The expense shall remain a lien upon premises or part of the premises, the same as taxes levied upon real estate, which lien may be enforced by a suit in equity before any court having jurisdiction, as other liens against real estate are enforced. The written notice required in this section may be served in any manner authorized by the laws of the state concerning service of process in civil actions.

(b) Abatement by the city of any condition which constitutes a nuisance and reimbursement to the city of expenses incurred by the nuisance shall not bar prosecution for maintenance of a nuisance.
(Code 1975, § 17-10)

**Sec. 50-43. Apportionment of cost of abatement.**

The cost of abating nuisances on private property shall be apportioned to each lot in proportion to the amount of the work done and material used in abating the nuisance located on such lot; or, if this apportionment is impracticable in any case, such cost shall be apportioned upon such a basis as will be fair and equitable.
(Code 1975, § 17-11)

**Sec. 50-44. Article not to prohibit arrest for committing or maintaining nuisance.**

Nothing in this article shall be construed to prohibit any police officer from arresting any person for committing or maintaining a nuisance when such arrest is made pursuant to law.
(Code 1975, § 17-12)

**Sec. 50-45. Order to abate condition constituting nuisance; right to public hearing; actions by city manager.**

(a) The city manager, of his own volition in the case of any nuisance within the administrative or enforcement scope of his own office, and upon the report and recommendation of any other city officer mentioned in section 50-39 in the case of any nuisance within the administrative or enforcement scope of such officer's office, when a condition which constitutes a nuisance exists upon any premises within the city or within one mile beyond the corporate limits of the city, shall issue an order in writing to the owner, occupant or person in charge of the premises upon which such condition exists, stating in the order the condition which constitutes a nuisance, and directing such addressee to remedy the condition within the time stated in such order, which shall be not more than ten days; and it shall be unlawful for any such owner, occupant or person in charge to fail to comply with the terms of such order; provided, that any owner, occupant or person in charge may, within two days from the service of the order, apply to the city manager for a public hearing on the matter, in which case the terms of such order shall be stayed pending action by the city manager subsequent to the hearing, which action shall be final; provided further, that if the city manager shall state in such order that the condition which constitutes a nuisance is such as to be an imminent hazard to the health, safety or welfare of the public or any person within or near

the premises upon which such nuisance exists, the addressee shall comply with the terms of such order forthwith and no application for a public hearing shall be allowed.

(b) The written orders required in this section may be served in any manner authorized by law for the service of process in civil or criminal cases, including but not limited to posting or publication when a person to be served is beyond the jurisdiction of the city or his name or address is unknown; and it shall be unlawful for any person to violate or fail to comply with the terms of any such order as issued by the city manager initially, or as issued by the city manager following application for a public hearing, as the case may be.

(c) Upon receipt of a proper application for a public hearing under this section, the city manager shall fix a place and specify a time not less than seven nor more than 21 days after receipt of the application at which the public hearing shall be held, and he shall give prompt notice to all parties having an interest in the matter; and further, he shall, at the expense of the applicant, publish an appropriate notice of such hearing in two newspapers of general circulation in the city.
(Code 1975, § 17-12)

**Sec. 50-46. Conduct of public hearing.**

(a) At any public hearing held pursuant to section 50-45, the applicant may appear in person or by counsel, either or both, and he may have process for the attendance of witnesses and the production of pertinent books and papers, if such there are in any case; and other parties in interest may also appear and be heard under oath.

(b) After hearing all the facts in the case, if in the opinion of the city manager no good and sufficient cause be shown why such nuisance should not be abated, discontinued or removed, he shall order the responsible party to abate, discontinue or remove the nuisance within such time as the city manager may deem reasonable.
(Code 1975, § 17-13)

**Sec. 50-47. Recourse of city when order to abate condition constituting nuisance is ignored; lien created; prosecution for maintenance of nuisance not barred by paying expense of abatement.**

(a) If any owner, occupant or person in charge of any premises to whom an order to abate a nuisance has been issued as provided in section 50-45 fails to comply with the terms of such order, or with the terms imposed by the city manager after a public hearing, as the case may be, the city manager may have such nuisance abated or the provisions of such order carried out, after reasonable notice to such owner, occupant or person in charge of the premises of his intention to do so, and collect the expenses, with one percent per month interest added from the date of the notice, from the owner, occupant or person in charge, by distress or sale, in the same manner in which taxes levied upon real estate for the benefit of the city are authorized to be collected; and the expense shall remain a lien upon premises or part of the premises, the same as taxes levied upon real estate, which lien may be enforced by a suit in equity before any court having jurisdiction, as other liens against real estate are enforced. In case of nonresident owners of real estate, such notice may be served upon any tenant, occupant, assignee or rental agent, or by publication once a week for not less than two consecutive weeks in two newspapers of opposite politics published in the city.

(b) Abatement by the city of any condition which constitutes a nuisance and reimbursement to the city of expenses incurred by the nuisance shall not bar prosecution for maintenance of a nuisance.
(Code 1975, § 17-14)

**Sec. 50-48. Apportionment of cost of abatement.**

The cost of abating nuisances on private property shall be apportioned to each lot in proportion to the amount of the work done and material used in abating the nuisance located on such lot; or, if

this apportionment is impracticable in any case, such cost shall be apportioned upon such a basis as will be fair and equitable.
(Code 1975, § 17-15)

**Sec. 50-49. Destruction of unwholesome articles.**

Whenever any infected or infested bedding or clothing; any putrid or unsound meat, beef, pork, fish, hides or skins of any kind; decayed or unsound vegetables or fruit; or any other articles are found within the city or within one mile beyond the corporate limits which, in the opinion of the health commissioner, are dangerous to the health of the inhabitants of the city, he shall have the power and authority to cause to be destroyed any and all such articles, in such manner as he may direct; and it shall be unlawful for any person in any manner to resist or hinder the health commissioner or anyone under him in the discharge of his official duties.
(Code 1975, § 17-16)

**Sec. 50-50. Article does not prohibit arrest for committing or maintaining nuisance.**

Nothing in this article shall be construed to prohibit any police officer from arresting any person for committing or maintaining a nuisance when such arrest is made pursuant to law.
(Code 1975, § 17-17)

**Sec. 50-51. Short title.**

This section of the City of Charleston Municipal Code may be referred to as the "Graffiti Ordinance" of the City of Charleston.
(Bill No. 6851, § 17-3.2, 10-15-2001)

**Sec. 50-52. Declaration of graffiti as a public nuisance.**

The City of Charleston hereby finds and declares that maintenance of graffiti on public and private properties within public view is obnoxious and constitutes a public nuisance, the abatement of which shall be provided as set forth herein.
(Bill No. 6851, § 17-3.2, 10-15-2001)

**Sec. 50-53. Definitions.**

For the purpose of this section, unless otherwise apparent from the context, certain words and phrases used in this section are defined as follows:

*Defacement* means the intentional altering of the physical shape or physical appearance of property.

*Graffiti* means any painting, marling, symbol, design, inscription or other defacement which is written, sprayed, pointed scratched, etched, engraved, placed with an indelible marker or otherwise applied to the real or personal property of another without the prior consent of the owner or person in possession thereof.

*Indelible marker* means any marker, pen or similar implement which contains a fluid which is not soluble in water and has a flat, pointed or angled writing surface of a width of one-half inch or greater.
(Bill No. 6851, § 17-3.2, 10-15-2001)

**Sec. 50-54. Purpose.**

The purpose of this section is to provide for the prompt abatement of graffiti from public and private properties in the city.
(Bill No. 6851, § 17-3.2, 10-15-2001)

**Sec. 50-55. Permitting graffiti to remain prohibited.**

No person shall permit any graffiti which is within public view to remain on any building, structure, tree, shrub, sidewalk or curb owned or possessed by such person.
(Bill No. 6851, § 17-3.2, 10-15-2001)

**Sec. 50-56. Notice to owner or possessor of property.**

Whenever the city manager, or his/her designee, determines that graffiti is being maintained upon any premises within the city in violation of this graffiti ordinance, the city manager, or his or her designee, shall send written notice and order to the owner or possessor of the premises of such condition and shall require that the graffiti be removed. The notice and order shall state that the

owner must remove the graffiti or consent to its removal by the city within 30 days from the date the notice was mailed; provided the owner or possessor of premises may within ten days of being served with such notice and order, apply to the city manager for a public hearing on the matter, in which case the terms of such notice and order shall be stayed pending the resolution of the public hearing.
(Bill No. 6851, § 17-3.2, 10-15-2001)

**Sec. 50-57. Removal.**

If the property owner and possessor fail to remove the graffiti as ordered by the city manager, he or she or his/her designee shall have the following authority to cause its removal.

(1) *Property owner's consent to remove.* Whenever the city manager, or his or her designee, determines that graffiti on property which is within public view the city manager, or his or her designee, is authorized to provide for and use public funds, if necessary, to remove graffiti upon the following conditions:

a. Public property. Whenever the city manager or his or her designee determines that graffiti exists upon property owned by the city, it shall be removed as soon as possible. When the property is owned by a public entity other than the city, the removal of the graffiti is authorized after securing written consent of the pubic agency having jurisdiction over the property.

b. Private property. Where the subject property is privately owned, the removal of graffiti is authorized after the city manager, or his or her designee, secures the written consent of the owner of the property and the owner executes a release and waiver approved as to form by [t]he city attorney. The city will assess the cost of abatement to the property owner, which if ignored will become a lien against the property.

c. The graffiti shall be removed as authorized herein, but the removal shall not involve the painting or repair of a more extensive area than is necessary for such removal.

(2) *Removal by city without consent of property owner.* The city manager may abate any graffiti without the consent of the property owner, maintained contrary to the provisions of this section only after the following has occurred:

a. The city manager has determined that graffiti within public view exists on particular premises in the city;

b. A notice of such condition has been sent to the property owner,

c. The property owner has failed to either remove the graffiti, request a public hearing, request a review of order pursuant to W. Va. Code § 17-9-1 or consent to its removal by the city within the time period specified in the notice.

(3) Sections 17-9 through 17-11 of this chapter will apply to the conduct of public hearings; the review of abatement orders; the recourse of city when abatement order is ignored; the creation of a lien; and the appointment of costs of abatement of graffiti to property owner(s).

(4) The remedies provided in this section and chapter are in addition to other remedies and penalties available under the laws of the city, the State of West Virginia, and the United States.
(Bill No. 6851, § 17-3.2, 10-15-2001)

**Secs. 50-58—50-80. Reserved.**

## ARTICLE III. ABANDONED VEHICLES AND JUNK*

### Sec. 50-81. Legislative findings; statement of policy.

(a) The city council recognizes and declares that:

(1) Abandoned motor vehicles, junked motor vehicles, old vehicle tires, and certain abandoned or inoperative household appliances are and constitute a public nuisance and hazard to both adults and children, and, therefore, are dangerous and constitute a clear and present danger;

(2) Such abandoned motor vehicles, junked motor vehicles, old vehicle tires and certain abandoned or inoperative household appliances serve as harborage and breeding places for rodents, mosquitoes, fleas, ticks, mice, rats and other insects, pests and flies injurious to the public health, safety and general welfare;

(3) Abandoned motor vehicles and junked motor vehicles serve frequently as temporary or permanent places of human residence unconducive to public health, safety and welfare;

(4) The accumulation and storage of any such items or parts on private or public property, including but not limited to highways, is found to create a condition tending to reduce the value of private property and to promote blight and deterioration which, if permitted to remain, will continue to destroy the natural beauty of this city and have adverse economic and social effects;

(5) Such abandoned motor vehicles, junked motor vehicles, old vehicle tires and certain abandoned or inoperative household appliances constitute an unattractive nuisance creating a hazard to the health and safety of minors;

(6) Such items are nearly always located on public highways or rights-of-way or within sight of such highway rights-of-way and on private property within a reasonable proximity, and when so located the cost of controlling or abating such visual pollution is a deterrent to economic development; and

(7) It is in the public interest and welfare to provide for a program to eliminate the unsightly practice of abandoning motor vehicles, old vehicle tires and certain abandoned or inoperative household appliances.

(b) In view of these findings, the city council declares it to be the public policy of the city to eliminate the present danger resulting from abandoned motor vehicles, junked motor vehicles, old vehicle tires, and certain abandoned or inoperative household appliances and to eliminate the visual pollution resulting from these items, and that in order to provide for the public health, safety, welfare and quality of life, to enact legislation to that end by providing expeditious means and methods for effecting the disposal of abandoned motor vehicles, junked motor vehicles, old vehicle tires, and certain abandoned household appliances. The city council further finds and declares that the presence of an abandoned motor vehicle, junked motor vehicle, old vehicle tire, or an abandoned or inoperative household appliance, or any part, on private or public property, including but not limited to highways, except as expressly permitted in this article, is a public nuisance injurious to the public health, safety and general welfare of the citizens of this city, which shall be abated as such by the methods provided in this article.
(Code 1975, § 31-173)

### Sec. 50-82. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

*Abandoned household appliance* means a refrigerator, deep freeze, range, stove, automatic dishwasher, clothes washer, clothes dryer, trash

*__Cross reference—__Traffic ordinance, ch. 114.

__State law reference—__Disposal of junk and abandoned vehicles, W. Va. Code § 17-24-1 et seq.

compactor, television set, radio, air conditioning unit, commode or bed springs, to which no person claims ownership and which is not in an enclosed building or a licensed salvage yard or in the actual possession of a demolisher.

*Abandoned motor vehicle* means any motor vehicle or major part which is inoperative and which has been abandoned on public or private property for any period of time over five days, other than in an enclosed building or in a licensed salvage yard or at the business establishment of a demolisher; or any motor vehicle or major part which has remained illegally on public or private property for any period of time over five days; or any motor vehicle or major part which has remained on private property without consent of the owner or person in control of the property for any period of time over three days; or any motor vehicle or major part which is unattended, discarded, deserted and unlicensed and is not in an enclosed building or a licensed salvage yard or in the actual possession of a demolisher.

*Demolisher* means any person licensed by the commissioner of the department of highways whose business, to any extent or degree, is to convert a motor vehicle or any part or an inoperative household appliance into processed scrap or scrap metal, or into saleable parts, or otherwise to wreck or dismantle vehicles or appliances.

*Enclosed building* means a structure surrounded by walls or one continuous wall, and having a roof enclosing the entire structure, including a permanent appendage.

*Enforcement agency* means the city police department.

*Inoperative household appliance* means a refrigerator, deep freeze, range, stove, automatic dishwasher, clothes washer, clothes dryer, trash compactor, television set, radio, air conditioning unit, commode or bed springs, which by reason of mechanical or physical defects can no longer be used for its intended purpose, and which is either not serving a functional purpose or use or is not in an enclosed building, a licensed salvage yard or the actual possession of a demolisher.

*Junked motor vehicle* means a motor vehicle, or any part of a motor vehicle (other than an on-premises farm utility vehicle), which is discarded, wrecked, ruined, scrapped or dismantled; cannot pass the state inspection required by W. Va. Code ch. 17C, art. 16 (W. Va. Code § 17C-16-1 et seq.) and is either not serving a functional purpose or use or is not in an enclosed building, a licensed salvage yard or the actual possession of a demolisher.

*Motor vehicle* means a vehicle which is or was self-propelled, including but not limited to automobiles, trucks, buses and motorcycles.

*Old vehicle tire* means a pneumatic tire in which compressed air is designed to support a load but which, because of wear, damage or defect, can no longer safely be used on a motor vehicle, and which is either not serving a functional purpose or use or is not in an enclosed building, a licensed salvage yard or the actual possession of a demolisher.

(Code 1975, § 31-174)

**Cross reference—**Definitions generally, § 1-2.

### Sec. 50-83. Abandonment of vehicles.

No person shall, within this city, abandon a motor vehicle upon the right-of-way of any public highway, upon any other public property, or upon any private property which he does not own, lease, rent or otherwise control unless it be at a licensed salvage yard or at the business establishment of a demolisher.

(Code 1975, § 31-175)

### Sec. 50-84. Junked vehicles prohibited in certain places.

No person within this city shall place or deposit any junked motor vehicle upon the right-of-way of any public highway or upon any other public property; nor shall any person within this city place or deposit any junked motor vehicle upon any private property which he does not own, lease, rent or otherwise control unless it is at a licensed salvage yard or at the business establishment of a demolisher.

(Code 1975, § 31-176)

**Sec. 50-85. Old vehicle tires and inoperative or abandoned household appliances prohibited in certain places.**

No person within this city shall place or deposit any old vehicle tire or inoperative household appliance upon the right-of-way of any public highway or upon any other public property nor abandon either upon any private property which he does not own, lease, rent or otherwise control, unless it is a licensed salvage yard or at the business establishment of a demolisher.
(Code 1975, § 31-177)

**Sec. 50-86. Authority to take possession of abandoned equipment; employment of personnel for enforcement; notification to owner of private property.**

Any enforcement agency which has knowledge of or discovers or finds any abandoned motor vehicle, any junked motor vehicle, old vehicle tire, or inoperative or abandoned household appliance on either public or private property shall take them into his custody and possession. For that purpose, the enforcement agency may employ its own personnel, equipment and facilities or hire persons, equipment and facilities for the purpose of removing, preserving and storing abandoned motor vehicles, junked motor vehicles, old vehicle tires, or inoperative or abandoned household appliances. Before taking any abandoned motor vehicle or junked motor vehicle into custody and possession from private property, the enforcement agency shall give the private property owner and the owner of such motor vehicle, if ascertainable, 30 days' notice by registered or certified mail that such action will be taken unless such motor vehicle, etc., is restored to a functional use.
(Code 1975, § 31-178)

**Sec. 50-87. Notification of vehicle owner and lienholders.**

(a) The enforcement agency which takes into custody and possession an abandoned motor vehicle or junked motor vehicle shall, within seven days after taking custody and possession, notify the last known registered owner of such motor vehicle and all lienholders of record that such motor vehicle has been taken into custody and possession, such notification to be by registered or certified mail, return receipt requested. The notice shall:

(1) Contain a description of such motor vehicle, including the year, make, model, manufacturer's serial or identification number, or any other number which may have been assigned to such motor vehicle by the commissioner of motor vehicles, and any distinguishing mark;

(2) Set forth the location of the facility where such motor vehicle is being held and the location where such motor vehicle was taken into custody and possession;

(3) Inform the owner and any lienholders of record of their right to reclaim such motor vehicle within ten days after the date notice was received by the owner or lienholders upon payment of all towing, preservation and storage charges resulting from taking and placing such motor vehicle into custody and possession; and

(4) State that the failure of the owner or lienholders of record to exercise their right to reclaim such motor vehicle within such ten-day period shall be deemed a waiver by the owner and all lienholders of record of all right, title and interest in such motor vehicle and of their consent to the sale or disposal of the abandoned motor vehicle or junked motor vehicle at a public auction or to a licensed salvage yard or demolisher.

(b) If the identity of the last registered owner of the abandoned motor vehicle or junked motor vehicle cannot be determined, or if the certificate of registration or certificate of title contains no address for the owner, or if it is impossible to determine with reasonable certainty the identity and addresses of all lienholders, notice shall be published as a class I legal advertisement in compliance with the provisions of W. Va. Code ch. 59, art. 3 (W. Va. Code § 59-3-1 et seq.); and the publication area for such publication shall be the county wherein such motor vehicle was located at the time such enforcement agency took custody

and possession; and such notice shall be sufficient to meet all requirements of notice pursuant to this article. Any notice by publication may contain multiple listings of abandoned motor vehicles and junked motor vehicles. The notice shall be published within seven days after such motor vehicle is taken into custody and possession and shall have the same contents required for a notice pursuant to subsection (a) of this section, except that the ten-day period shall run from the date such notice is published.

(c) The consequences and effect of failure to reclaim an abandoned motor vehicle or junked motor vehicle within the ten-day period after notice is received by registered or certified mail or within ten days after the notice is published in a newspaper shall be set forth in such notice.
(Code 1975, § 31-179)

**Sec. 50-88. Disposal of unclaimed vehicles.**

(a) If an abandoned motor vehicle or junked motor vehicle is not reclaimed as provided for in section 50-87, the enforcement agency in possession of the abandoned motor vehicle or junked motor vehicle shall sell it either at a public auction or to a licensed salvage yard or demolisher. The purchaser of such motor vehicle shall take title to such motor vehicle free and clear of all liens and claims of ownership and shall receive a sales receipt from the enforcement agency which disposed of such motor vehicle. The sales receipt at such sale shall be sufficient title only for purposes of transferring such motor vehicle to a licensed salvage yard or to a demolisher for demolition, wrecking or dismantling; and no further titling of such motor vehicle shall be necessary by either the purchaser at the auction, the licensed salvage yard or the demolisher, who shall be exempt from the payment of any fees and taxes required under W. Va. Code ch. 17A, art. 3 (W. Va. Code § 17A-3-1 et seq.). The purchaser at the auction must place such motor vehicle in the possession of a licensed salvage yard or demolisher within 20 days from the date he purchased such motor vehicle; and the licensed salvage yard or demolisher must demolish, wreck or dismantle such motor vehicle; and if such licensed salvage yard or demolisher does not demolish such vehicle, such licensed salvage yard or demolisher shall be required to pay all fees and taxes required under W. Va. Code ch. 17A, art. 3 (W. Va. Code § 17A-3-1 et seq.).

(b) When an enforcement agency has in its custody and possession old vehicle tires or inoperative or abandoned household appliances collected in accordance with section 50-86, it shall sell such property from time to time at public auction or to a licensed salvage yard or demolisher.
(Code 1975, § 31-180)

**Sec. 50-89. Proceeds from sale.**

(a) From the proceeds of the sale pursuant to section 50-88, the police department shall reimburse itself for any expenses it may have incurred in conducting the auction, any costs of towing, preserving and storing the vehicle which resulted from placing the abandoned vehicle in custody and all notice and publication costs incurred pursuant to this article.

(b) Any remainder from the proceeds of sale after payment of these costs shall be held for the last registered owner of the vehicle or entitled lienholder for 90 days, after which time, if no owner or lienholder claims the remainder, it shall be deposited in the city treasury to be kept and maintained as a special revolving account designated as the abandoned vehicle disposal account; and any money so collected and deposited shall be used solely by the police department for the payment of auction, towing, preserving, storage and all notice and publication costs which result from placing other abandoned vehicles in custody, whenever the proceeds from a sale of those abandoned vehicles are insufficient to meet these expenses and costs.

(c) The abandoned vehicle disposal account shall be under the direction and control of the finance director, who shall assure that all money is properly deposited in the account by the police department and that any money necessary to pay costs and expenses of those sales, as specified in subsection (b) of this section, are disbursed in accordance with required accounting procedures applicable to law enforcement agencies selling an abandoned vehicle.

(d) The abandoned vehicle disposal account shall never be maintained in excess of the amount necessary to efficiently and properly carry out the intentions of this article, and in no event shall the abandoned vehicle disposal account be maintained in excess of the sum of $5,000.00; and whenever the abandoned vehicle disposal account exceeds that amount, the city treasurer shall transfer the excess to the general revenue fund.
(Code 1975, § 31-181)

### Sec. 50-90. Penalties.

Any person violating any of the provisions of this article shall be deemed guilty of a misdemeanor and upon conviction shall be punished by a fine not exceeding $500.00 or by imprisonment not exceeding 30 days or by both such fine and imprisonment. Each day such violation of any provision of this article shall continue shall constitute a separate offense. In addition to these penalties, any person convicted of a misdemeanor under this section shall have his license revoked pursuant to the provisions of this article.
(Code 1975, § 31-182)

**State law reference—**Authorized penalty for ordinance violations, W. Va. Code §§ 8-11-1, 8-12-5(57), 8-34-1.

### Sec. 50-91. Injunctive relief.

In addition to all other remedies provided for in this article, the city attorney may apply to the circuit court for an injunction to restrain, prevent or abate the maintenance and storage of abandoned motor vehicles, junked motor vehicles, old vehicle tires, or inoperative or abandoned household appliances which are in violation of any provision of this article, or for the violation of any other provision of this article.
(Code 1975, § 31-183)

### Sec. 50-92. Construction.

The provisions of this article shall be liberally construed to accomplish its objectives and purposes.
(Code 1975, § 31-183.1)

### Secs. 50-93—50-120. Reserved.

## ARTICLE IV. MAINTENANCE OF PREMISES*

### Sec. 50-121. Prohibited accumulation or discharge of liquid wastes.

It shall be unlawful for any person, being the owner, agent, tenant, lessee, occupant or manager of any property or business, to allow to accumulate or be discharged from such places onto or in any street, sidewalk, public place or private property in the city any urine, liquid waste from stables, swill, sewage, wastewater from sinks, wash water, or any foul or nauseous liquid waste of any kind whatsoever.
(Code 1975, § 13-32; Ord. No. 6035, § 13-32, 9-19-1994)

### Sec. 50-122. Requirements as to maintenance of premises and disposition of refuse.

(a) Refuse which originates on any premises within the city shall not be permitted by the owner, occupant or person in charge of the premises to accumulate in such manner or in such quantity as to constitute a fire or safety hazard or a danger to health, or so as to become unsightly or otherwise give offense to persons in the neighborhood. Garbage and trash shall be collected and disposed of regularly, as provided in this article. Refuse other than garbage and trash shall be disposed of by the owner or occupant promptly as it originates, in a lawful and sanitary manner.

(b) Garbage and trash to be collected as provided by this article shall be stored, pending collection, in refuse containers in accord with the requirements of this Code.
(Code 1975, § 13-33; Ord. No. 6035, § 13-33, 9-19-1994)

### Sec. 50-123. Disposition of grass, weeds and vegetation.

(a) No owner, occupant or person in charge of any premises shall allow or permit on the premises any growth or weeds to the height of more than one foot, nor shall any person allow or

*__State law reference—__Authority to prevent accumulations of refuse, W. Va. Code § 8-12-5(11).

permit the growth of any weed or grass upon any part of any sidewalk abutting upon such premises.

(b) All premises shall be maintained by the owners, occupants and persons in charge free of vegetation which affords a feeding place for insects, reptiles or rodents; and upon all premises not devoted to agricultural uses the grass shall be kept trimmed to a height of not more than one foot.

(c) Grass, weeds and vegetation, when cut down, shall be removed from the premises and disposed of in such manner as not to create a nuisance.
(Code 1975, § 13-34; Ord. No. 6035, § 13-34, 9-19-1994)

### Sec. 50-124. Removal of prohibited accumulations of refuse and vegetation; joint responsibility of property owners and persons in charge; action by city.

(a) Whenever garbage, rubbish or other refuse shall be allowed to accumulate upon any premises within the city in such quantities as to be unsightly, a fire hazard or detrimental to public health or otherwise in violation of section 50-122, the owner and person in charge of the property upon which such accumulation is found shall be jointly and severally responsible for its removal, and shall be required to remove or cause to be removed such accumulation within 48 hours after receipt of written notice to do so from the chief of the bureau of fire prevention, the refuse collection director, the public works director, the street commissioner, the director of public grounds or the building commissioner; and if both the owner and the person in charge of such property shall fail, within the time indicated in such order or notice, to comply with such notice, a copy of the notice shall then be transmitted to the city manager, who shall thereupon authorize and direct the public works department to remove such accumulation of refuse; and after the removal of such refuse the city manager shall notify the city collector to collect from the property owner the amount of the expense to the city of such removal. The provisions of article II of chapter 98 relating to collection of charges by the city collector for ordinary refuse service and their rates shall be applicable to the charges provided for under this section.

(b) Whenever any premises within the city is in violation of section 50-123, the owner and person in charge of such premises shall be jointly and severally responsible for the abatement of such violation; and the provisions of subsection (a) of this section shall be applicable with respect to the abatement.
(Code 1975, § 13-35; Ord. No. 6035, § 13-35, 9-19-1994)

### Secs. 50-125—50-170. Reserved.

## ARTICLE V. TREES*

### Sec. 50-171. Short title.

This ordinance shall be known and may be cited as the Tree Ordinance of the City of Charleston, West Virginia.
(Bill No. 6974, § 28-45, 6-2-2003)

### Sec. 50-172. Purpose.

It is the purpose of this article to promote and protect the public health and general welfare in furtherance of the development and conservation goals contained in the city's comprehensive plan, by providing for the regulations of the planting, maintenance, preservation and removal of trees within the city.
(Bill No. 6974, § 28-46, 6-2-2003; Bill No. 7991, 12-18-2023)

### Sec. 50-173. Definitions.

For the purpose of this article, the following terms, phrases, words and their derivations shall have the meaning given herein. When not inconsistent with the context, words used in the present tense include the future, words in the plural include the singular and words in the singular include the plural.

(1) Municipality is the City of Charleston, West Virginia.

*__Note—__See editor's note following ch. 102, art. VII.

(2) Tree board is a commission consisting of the members of the municipal beautification commission.

(3) City arborist is the director of public grounds, who shall administer the provisions of this article in consultation with the consulting horticulturist.

(4) Person is any person, firm, partnership, association, corporation, limited liability company, or other entity or organization of any kind.

(5) Street or highway means the entire width of every public way or right-of-way when any part hereof is open to the use of the public as a matter of right, for the purpose of vehicular and pedestrian traffic, and extending from property line to property line.

(6) Park shall include all public parks, the ownership and control of which are vested in the city.

(7) Public property shall include all grounds owned by, or under the control of, the city.

(8) Public trees are all shade and ornamental trees now or hereafter growing on any street or any public right-of-way or on any other public property.

(9) Property owner shall mean the person(s) owning designated property as shown by the County Assessor's Plat of Kanawha County.

(10) Remove shall mean the cutting down or damaging, whether by deliberate or negligent act or any act which causes the tree to die within three years.

11. Tree shall mean:

a. Any self-supporting woody plant which has a well defined stem with a diameter of at least two inches at four and one-half feet from the ground;

b. Any ornamental woody plant as designated by the city arborist; or

c. Any small seedling or sapling planted or protected specifically to become a large tree as described in a. and b. above.

12. Urban forest shall mean all trees located on city-owned or controlled property.

13. Urban tree specifications and standards of practice shall be regulations promulgated by the tree board and adopted by the city council to regulate or deal with the urban forest. Such regulations shall conform with the current American National Standards for Tree Care Operations and the American Standards for Nursery Stock as approved by the American National Standards Institute, Inc.

14. Consulting horticulturist is that person under contract with the city to provide horticultural information on a hourly basis to the municipal beautification commission and to various department and divisions of city government.

(Bill No. 6974, § 28-47, 6-2-2003)

### Sec. 50-174. Establishment of a tree board.

(a) There is hereby created a tree board consisting of the members of the Municipal Beautification Commission of the City of Charleston.

(b) Any public utility company and any cable television company whose right-of-way maintenance practices and activities may be affected by this article and/or regulations promulgated thereunder may appoint an ex-officio member to serve in an advisory capacity.

(c) The officers of the municipal beautification commission shall serve as officers of the tree board.

(d) The tree board shall, in cooperation with the city arborist, prepare and adopt the urban tree specifications and standards of practice and submit such rules to the city council for its approval, and may also recommend modifications to such rules as it may from time to time deem necessary and advisable.

(Bill No. 6974, § 28-48, 6-2-2003)

**Sec. 50-175. Duties of city arborist.**

The city arborist shall:

(1) Assist in the administration and enforcement of this article;

(2) Recommend new or modified rules and regulations governing the planting, cataloguing, maintaining, removing, fertilizing, spraying, pruning, and bracing of public trees, emergency procedures, stump removal, the use of insecticides, fungicides, and herbicides, and the sale/disposal of wood products on the streets or any other public property;

(3) Oversee the planting, cataloguing, maintenance and removal of trees growing now or hereafter planted on any public property;

(4) Work in consultation with the tree board;

(5) Supervise or inspect all work done under a permit issued in accordance with the terms of this article; and

(6) Provide an annual report to the tree board which will include a list of the plantings and removals during the previous 12 months.

(Bill No. 6974, § 28-49, 6-2-2003)

**Sec. 50-176. Permits required.**

(a) Except as provided in section 50-186, no person shall commence or proceed with any operation involving a public tree without first obtaining a public tree work permit from the city. Activities covered by this section include, but are not limited to, planting, fertilizing, spraying, protecting, pruning, removing, cutting above ground, cutting below ground, or otherwise disturbing a public tree.

(b) Application for a public tree work permit shall be made in the form prescribed by the city by the abutting property owner, or such owner's agent, if the work is to be performed within the street right of way on behalf of the abutting property owner. All work shall be done at the property owner's expense, and the property owner shall be liable for personal injury or property damage caused by such work, and hold harmless and indemnify the city, its officers, agents and employees, from liability and damages, including attorney fees, caused by the existence of the tree permit or the work performed thereunder.

(c) Any agency of the city doing work involving public trees need not obtain a permit under this section, but shall cooperate with the city arborist and shall otherwise comply with the Urban Tree Specifications and Standards of Practice to the extent possible.

(d) Application for permits shall be made at the office of the director of public grounds not less than 48 hours in advance of the time the work is to be done.

(e) The director of public grounds shall cause the permit to be issued if the director determines, based on his review of the application for the permit, that the proposed work is consistent with the purpose of this article and complies with the Urban Tree Specifications and Standards of Practice. Any permit granted shall contain a definite date of expiration and the work shall be completed in the time allowed on the permit, and in the manner as therein described. Provided, that said expiration date and time limit for completion may be extended if said work is not completed therein due to weather conditions or other unforeseen or uncontrollable circumstances. Any permit may be revoked if its terms are violated. Notice of completion shall be given within five days to the director of public grounds for his inspection.

(f) Any decision by the director of public grounds to deny the issuance of a public tree work permit may be appealed to the Charleston Municipal Beautification Commission by written notice to the commission, who shall review such decision at its next scheduled meeting following receipt of such written notice.

(Bill No. 6974, § 28-50, 6-2-2003)

**Sec. 50-177. Application data.**

(a) *Planting.* The application required herein shall state the number of trees to be planted; the location, grade, size, species, cultivar or variety of each tree, the method of planting, and such

other information as is reasonably necessary for a fair determination of whether a permit should be issued.

(b) *Maintenance.* The application required herein shall state the number and kinds of trees to be sprayed, fertilized, pruned or otherwise protected (except in the case of an application for a blanket permit); the kind of treatment to be administered; the composition of the spray material to be applied; and such other information as shall be reasonably necessary for a fair determination of whether a permit should be issued. All pruning shall comply with the Urban Tree Specifications and Standards of Practice.
(Bill No. 6974, § 28-51, 6-2-2003)

### Sec. 50-178. Removal, replanting, and replacement.

(a) Whenever it is necessary to remove a public tree or trees in connection with the paving of a sidewalk, or the paving or widening of the portion of a street or highway used for vehicular traffic, the city may replant such trees or replace them, if feasible.

(b) Except as provided in a permit, no person or property owner shall remove a public tree for the purpose of construction, or for any other reason, without replacing the removed tree or trees. Such replacement shall meet the standards of size, species, and placement as provided for in a permit issued by the city. The person or property owner shall bear the cost of removal and replacement of all public trees so removed and replaced.

(c) Whenever any tree shall be planted or transplanted on public property in conflict with the provisions of this ordinance, it shall be lawful for the city to remove or cause removal of the same, and the exact cost thereof may be assessed to and paid by the person responsible for the improper planting of such tree.
(Bill No. 6974, § 28-52, 6-2-2003)

### Sec. 50-179. Interference with city arborist.

No person shall hinder, prevent, delay or interfere with the city in carrying out the execution or enforcement of this article; provided, that nothing herein shall be construed as an attempt to prohibit the pursuit of any remedy, legal or equitable, in any court of competent jurisdiction for the protection of property rights by the owner of any property within the municipality.
(Bill No. 6974, § 28-53, 6-2-2003)

### Sec. 50-180. Placing materials on public property.

From and after the date of adoption of this article by the city council, no person shall deposit, place, store or maintain upon any public property any stone, brick, sand, concrete or other materials which may impede the free passage of water, air and fertilizer to the roots of any tree growing therein, except by written permit of the city.
(Bill No. 6974, § 28-54, 6-2-2003)

### Sec. 50-181. Abuse or mutilation of public trees.

Unless specifically authorized by the city, no person shall damage, cut, carve, transplant or remove any public tree; attach any rope, wire, nails, advertising posters or other contrivance to any public tree, allow any gaseous liquid or solid substance which is harmful to such trees to come in contact with them; or set fire or permit any fire to burn when such fire or heat hereof will injure any portion of said tree.
(Bill No. 6974, § 28-55, 6-2-2003)

### Sec. 50-182. Emergencies.

(a) No permit shall be required to remove any public tree or part thereof which by reason of damage by fire, windstorm, ice storm or other calamity poses a threat to the public health and safety or which obstructs any public way, or has contributed to loss of utility service.

(b) The city may determine that a public tree is hazardous and order that it be treated or removed immediately to protect the public health or safety. A tree obstructing any public way shall be removed or treated immediately.
(Bill No. 6974, § 28-56, 6-2-2003)

**Sec. 50-183. Violation and penalty.**

(a) Any person, firm or corporation violating or failing to comply with any of the provisions of this article V, chapter 50, shall be guilty of a misdemeanor, and upon conviction thereof shall be punished by a fine in the sum of not more than $500.00, or imprisoned for not more than thirty days, or by both fine and imprisonment. In addition to criminal penalties, the city may seek restitution for any destroyed or damaged tree.

(b) In additiona to the remedies set forth in subsection (a) above, because of the uniqueness of each public tree and the irreparable harm to the public health and general welfare which may be caused by the destruction or damage to a public tree, the city shall be entitled to enjoin any person or entity who seeks to destroy or damage any public tree, who is the in the process of destroying or damaging a public tree.
(Bill No. 6974, § 28-57, 6-2-2003)

**Sec. 50-184. Severability.**

If any section or part of this article or the application thereof be held to be unconstitutional and invalid, such unconstitutionality or invalidity shall not affect any other section or provision hereof, and to this end each and every provision and phrase of this article is declared to be severable.
(Bill No. 6974, § 28-58, 6-2-2003)

**Sec. 50-185. Repealer.**

Any ordinance, statute or municipal regulations heretofore adopted and otherwise not incorporated into this article which in any manner conflicts with any provision of this article are hereby repealed to the extent of such conflict.
(Bill No. 6974, § 28-59, 6-2-2003)

**Sec. 50-186. Public utility right-of-way maintenance.**

(a) Any other provision of this article V, chapter 50 notwithstanding, a public utility, or any agent acting on behalf of a public utility to maintain the public utility's rights-of-way within the city, need not obtain a permit under this chapter 50 in order to maintain its rights-of-way within the city, but shall instead comply with the provisions of this section.

(b) Any public utility, or any agent acting on behalf of a public utility to maintain the public utility's rights-of-way within the city, which plans to maintain its rights-of-way within the city involving public trees shall, on an annual basis, provide to the city arborist a general description of such plan or plans. Such maintenance shall conform with the National Standards for Tree Care Operations as approved by the American National Standards Institute, Inc.

(c) For purposes of this section, the term "public utility" means any person engaging in the provision of public services which are regulated by the Public Service Commission of West Virginia.
(Bill No. 6974, § 28-60, 6-2-2003)

Chapters 51—53

**RESERVED**

# Chapter 54

# FIRE PREVENTION AND PROTECTION*

## Article I. In General


Sec. 54-1. Regulations for blasting operations.
Sec. 54-2. Unauthorized use of fire department property.
Sec. 54-3. Duty of spectators, and authority of firefighters and police, at scene of fire.
Sec. 54-4. False request for emergency medical services.
Secs. 54-5—54-40. Reserved.


## Article II. Fire Department

### Division 1. Generally


Sec. 54-41. Composition and organization of department.
Sec. 54-42. Duties of department.
Sec. 54-43. Chief of the fire department; fire chief; powers.
Sec. 54-44. Chain of command; obedience to orders.
Sec. 54-45. Operations manuals.
Sec. 54-46. Firemen's civil service commission.
Sec. 54-47. Training of original appointees.
Sec. 54-48. Firemen's pension and relief fund; trustees.
Sec. 54-49. Immunization.
Sec. 54-50. Contributions toward firefighter/EMS uniforms.
Sec. 54-51. Workers' compensation; pay of firefighters/EMS injured in performance of duty.
Sec. 54-52. Demolition of structures to prevent spread of fire.
Sec. 54-53. Use of equipment and materials in motor vehicle emergencies and incidents involving individuals who are not assessed for fire service fees; enforcement.
Secs. 54-54—54-70. Reserved.


### Division 2. Emergency Medical Services Division


Sec. 54-71. Definitions.
Sec. 54-72. Public policy declared; purpose of emergency medical services division.
Sec. 54-73. Promotions.
Sec. 54-74. Schedule of charges for ambulance services.
Sec. 54-75. Uncollectible accounts for ambulance-related services; authority of city collector.
Secs. 54-76—54-100. Reserved.


### Division 3. Vacation, Other Leave, Duty Hours, and Calculation of Overtime Pay


Sec. 54-101. Definitions.
Sec. 54-102. Annual vacation leave.
Sec. 54-103. Sick leave.
Sec. 54-104. Funeral leave with pay.


---

***Cross references—**Buildings and building regulations, ch. 14; emergency services, ch. 46; fire protection for trailers and trailer camps, § 70-62; open burning of refuse or disposal of refuse in domestic incinerators prohibited, § 98-51; fire lanes on private property devoted to public use, § 114-241; following fire apparatus prohibited, § 114-377; crossing fire hose, § 114-379.

**State law reference—**Firefighting generally, W. Va. Code § 8-15-1 et seq.

Sec. 54-105. Legal holidays.
Sec. 54-106. Daily and weekly duty hours; pay periods; calculation of overtime pay; trading assigned shifts.
Sec. 54-107. Uniformed fire sick leave pool.
Secs. 54-108—54-140. Reserved.

**Article III. Fire Prevention Code**

Sec. 54-141. Purpose; adopted; applicability; short title.
Sec. 54-142. Adoption and incorporation of relevant codes.
Sec. 54-144. Authorized orders under the Charleston Fire Prevention Code; appeals.
Sec. 54-145. Fire prevention bureau members, responsibilities, and authority.
Sec. 54-146. Violations and penalties; recourse of city to correct violations.
Sec. 54-147. Policies.
Secs. 54-148—54-180. Reserved.

**Article IV. Fire Protection Service Charge**

Sec. 54-181. Definitions; continuation, maintenance and improvement of fire service; legislative intent; city collector to administer regulations; use of funds; assessment of fees.
Sec. 54-182. Semiannual payment of charge.
Sec. 54-183. Penalty for default in payment; charge constitutes debt due city; recourse of city for collection.
Sec. 54-184. Exemptions.
Sec. 54-185. Certain delinquent charges to be excused as uncollectible.
Secs. 54-186—54-189. Reserved.

**Article V. Fireworks; Sale, Possession, Storage and Discharge**

Sec. 54-190. Generally.
Sec. 54-191. Consumer fireworks; regulations, prohibited actions, and exceptions
Sec. 54-192. Enforcement.
Secs. 54-193—54-210. Reserved.

## ARTICLE I. IN GENERAL

### Sec. 54-1. Regulations for blasting operations.

(a) Prior to blasting, a preblast survey of all structures located within 500 feet of the blasting shall be submitted by the contractor and made a part of the public record. The survey shall be performed by a qualified vibration consultant as approved by the fire chief.

(b) The particle velocity resulting from any blasting action shall not exceed two inches per second on a vertical, longitudinal or transverse plane of motion at the nearest structure to the blasting site.

(c) Every blasting shot shall be recorded on a three-component particle velocity recording seismograph, and these results shall be made a part of the public record. The seismograph shall be operated by a qualified vibration consultant as approved by the fire chief.

(d) Surveys required by this section for public record shall be maintained in the office of the fire chief and shall be filed by the contractor no later than seven days following the blasting action.
(Ord. No. 6228, § 12-1, 5-6-1996)

### Sec. 54-2. Unauthorized use of fire department property.

It shall be unlawful for any person, whether or not he is an officer of the city, to use or allow to be used, for any purpose other than in case of fire or in line of fire department duty, any property, equipment or apparatus of the fire department without having authority to do so from the mayor or the fire chief.
(Ord. No. 6228, § 12-2, 5-6-1996)

**State law reference—**Authority to regulate gunpowder and other combustibles, W. Va. Code § 8-12-5(14).

### Sec. 54-3. Duty of spectators, and authority of firefighters and police, at scene of fire.

(a) Every person present at the scene of a fire shall be subject and obedient to the orders of any police officer or member of the fire department there present as to any matter relating to extinguishment of the fire, the removal and protection of persons or property or the maintenance of order; and it shall be unlawful for any person present at the scene of any fire to disobey any such lawful order of any police officer or member of the fire department there present.

(b) Certified municipal fire marshals and police officers present at the scene of any fire shall have power to arrest any person for disobedience of the lawful order of a police officer or fire marshal and to hold the offender in custody until the fire has been extinguished, at which time the offender shall be taken before an appropriate judicial officer to be dealt with according to law.
(Ord. No. 6228, § 12-3, 5-6-1996; Bill No. 7871, 5-18-2020)

### Sec. 54-4. False request for emergency medical services.

It shall be unlawful for any person to make, or to aid or abet another in making, with intent to deceive, any false or fictitious request for such emergency medical services.
(Ord. No. 6228, § 12-35, 5-6-1996)

### Secs. 54-5—54-40. Reserved.

## ARTICLE II. FIRE DEPARTMENT

### DIVISION 1. GENERALLY*

### Sec. 54-41. Composition and organization of department.

(a) The fire department shall include the fire, EMS, and rescue operations division, the training division, and the fire prevention bureau, with such personnel having such ranks and grades as shall from time to time be authorized by the city council.

(b) The organization of the fire department shall be as prescribed by the fire chief, except as may be provided otherwise by the mayor or city council.

*__State law reference—__Fire department authorized, W. Va. Code §§ 8-15-1, 8-15-9.

(c) The fire civil service commission is authorized to establish by appropriate procedure existing and/or future rank structure budgeted by the council to provide for the orderly efficient operation of the emergency medical service division of the fire department. The fire chief may petition the fire department civil service commission to effectuate the placement of rank structure in the emergency medical service division of the fire department from time to time as necessary. (Ord. No. 6228, § 12-27, 5-6-1996; Bill No. 7895, 2-16-2021)

**Sec. 54-42. Duties of department.**

It shall be the duty of the fire department, headed by the fire chief, to:

(1) Combat fires and explosions within the city;

(2) Inspect and abate fire and explosion hazards;

(3) Take measures within its capabilities to prevent the occurrence of fires and explosions;

(4) Investigate suspected incidents of arson and explosives offenses, malicious burning, obstructing a fire marshal, or failing to obey lawful orders, and take appropriate actions to assist in the prosecution of such offenses;

(5) Maintain records of fires, explosions and related matters;

(6) Provide emergency medical services; and

(7) Discharge such other duties as may be imposed upon it by this Code and other ordinances and by state law.

(Ord. No. 6228, § 12-28, 5-6-1996; Bill No. 7871, 5-18-2020)

**Sec. 54-43. Chief of the fire department; fire chief; powers.**

(a) The chief of the fire department, who may be known and referred to as the fire chief, shall be the commanding officer of the fire department and shall be responsible to the mayor and city council for the administration, training, discipline, morale and effective deployment and utilization of all personnel of the department and for the maintenance and effective deployment and utilization of the property, equipment and apparatus of the fire department.

(b) The fire chief shall have all such powers as may be necessary and lawful to meet the responsibilities imposed upon him by this section, including, but not limited to, the following:

(1) The fire chief shall have absolute command, control, management, assignment to duties and supervision of every officer, member and employee of the fire department during a fire and at all practices and drills, and during all hours when such personnel are on duty.

(2) The fire chief shall have absolute control, authority and command of the police officers present at the scene of any fire during the time and continuance of any fire, conflagration and all orders issued by him to such police officers, and to other persons present, shall be explicitly obeyed and performed by them.

(3) The fire chief shall have supervision of the engine houses, vehicles, and all apparatus and equipment belonging to the fire department. The fire chief shall be responsible for the serviceable condition of all equipment belonging to the fire department, and the fire chief shall be responsible that every piece of fire apparatus is equipped at all times with the necessary wrenches and all other equipment belonging to that piece of apparatus and necessary in the successful fighting of fire.

(4) The fire chief shall have supervision over all repairs to apparatus and the charge of all supplies and shall issue them upon his or her own discretion or upon the authority of the city council to the units of the fire department.

(5) The fire chief shall be responsible for the keeping of necessary records for the fire department, which shall be subject to the inspection of the mayor and members of the city council at any time. The fire chief shall record and report annually to

the city council a statement of all fires occurring since the previous report, the units and personnel responding to alarms, the loss and insurance as far as ascertained, the causes of any such fires, together with such suggestions as he may deem advisable to bring the number of fires to a minimum. The fire chief shall also keep at his or her office such books or other records as the city council may prescribe.

(6) The fire chief shall be the municipal fire marshal and may vest the authority of the municipal fire marshal to the members of the fire prevention bureau who meet the training requirements, consistent with the provisions of W. Va. Code § 8-15-1 and section 54-145 of this Code.

(7) The fire chief shall exercise and perform such other functions, powers and duties as may be deemed appropriate to carry out the purpose of this article.

(Ord. No. 6228, § 12-29, 5-6-1996; Bill No. 7871, 5-18-2020)

**Cross reference—**Officers and employees, § 2-131 et seq.

### Sec. 54-44. Chain of command; obedience to orders.

The chain of command within the fire department shall flow from the fire chief to the assistant fire chief and other officers and all personnel downward in order of rank and seniority within rank, or assignment as from time to time determined by the fire chief; and subordinates shall have the powers and perform the duties of their immediate supervisors when such superiors are absent or disabled. Each member of the fire department shall obey all lawful orders of his superiors in the chain of command, and any disobedience to or failure to comply with any such order shall subject the member to such disciplinary action or penalty that may be set forth in the rules and regulations of the department.

(Ord. No. 6228, § 12-30, 5-6-1996)

### Sec. 54-45. Operations manuals.

(a) *Fire department operations manual.* For the purpose of providing the organization, government, policies, rules, regulations, procedures and discipline of the city fire department, and for other related purposes, there is adopted the operations manual for the fire department's policies, rules, regulations and procedures, a copy of which is and shall remain on file in the office of the city clerk, and another copy of which is and shall remain on file at fire department headquarters for inspection and use by all members of the fire department. Such manual is incorporated in and made a part of this section as fully as though set out at length, and any member of the fire department who violates or fails to comply with any provisions of the manual adopted by this section shall be subject to such disciplinary action or penalty as may be provided in such manual.

(b) *Emergency medical services division operations manual.*

(1) The manual of the Emergency Medical Division shall be prepared by the fire chief, a copy of which is and shall remain on file in the office of the city clerk; and a duplicate is and shall remain on file in the office of the chief. The chief may study, analyze and reevaluate such manual; and such manual may be amended from time to time by the fire chief to effectuate the orderly operation of the fire department.

(2) A copy of the manual shall be supplied to all employees in writing so that they may, if they choose to do so, personally maintain a current copy of the manual.

(Ord. No. 6228, § 12-32, 5-6-1996)

### Sec. 54-46. Firemen's civil service commission.

Pursuant to the requirements of W. Va. Code § 8-15-12, there is created the "Firemen's Civil Service Commission of the City of Charleston, West Virginia." Such commission shall be constituted and its members shall possess the qualifications and be chosen in the manner and

hold office for the term and period of time as provided by W. Va. Code ch. 8, art. 15, pt. IV (W. Va. Code § 8-15-12 et seq.).
(Ord. No. 6228, § 12-42, 5-6-1996)

**Cross reference—**Boards, committees and commissions, § 2-511 et seq.

**State law reference—**Civil service for paid fire departments, W. Va. Code § 8-15-11 et seq.

### Sec. 54-47. Training of original appointees.

On or after July 1, 1987, all original appointees in the city fire department subject to the civil service provisions of W. Va. Code § 8-15-16 shall enroll and complete the requirements as registered with the Bureau of Apprenticeship and Training of the United States Department of Labor, for the craft of firefighting.
(Ord. No. 6228, § 12-43.6, 5-6-1996)

### Sec. 54-48. Firemen's pension and relief fund; trustees.

(a) Pursuant to the requirements of W. Va. Code § 8-22-16, there is established a firemen's pension and relief fund.

(b) There is created a board of trustees to be known as "The Board of Trustees of the Firemen's Pension and Relief Fund of the City of Charleston, West Virginia." Such board shall be constituted, and its members shall possess the qualifications and be chosen in the manner and hold office for the term and period of time, all according to and as provided by W. Va. Code ch. 8, art. 22, pt. III (W. Va. Code § 8-22-16 et seq.).

(c) The firemen's pension and relief fund established by this section shall be maintained and administered by the board of trustees in conformity with the provisions of W. Va. Code ch. 8, art. 22, pt. III (W. Va. Code § 8-22-16 et seq.).
(Ord. No. 6228, § 12-41, 5-6-1996)

### Sec. 54-49. Immunization.

As a condition of employment, all fire/EMS department personnel are to be immunized by hepatitis B vaccine.
(Ord. No. 6228, § 12-38, 5-6-1996)

### Sec. 54-50. Contributions toward firefighter/EMS uniforms.

In addition to such compensation as may otherwise be allowed and paid to members of the fire department, the city shall reimburse each member of the fire department for the cost to him of items of clothing which comprise a part of the official uniform and firefighting clothing purchased, used and worn by him, to an aggregate maximum amount to be determined from time to time by the city council; however, no portion of such allowance to any member remaining unexpended at the end of any fiscal year shall be carried over into the next or any succeeding fiscal year. Such reimbursement may be made by payment directly to each such firefighter or by payment directly to the vendor or furnisher of each such item of clothing, upon and after conformity and compliance with such rules, regulations, proceedings, forms and proofs as may be prescribed and promulgated from time to time by the fire chief, upon the advice and with the approval of the city auditor.
(Ord. No. 6228, § 12-39, 5-6-1996)

### Sec. 54-51. Workers' compensation; pay of firefighters/EMS injured in performance of duty.

The city shall subscribe to a workers' compensation policy maintained in conformity with W. Va. Code § 23-2-1, et seq. to provide workers' compensation coverage for the protection of members of the city fire department and any member of the fire department injured while acting in the performance of his official duty as a member of the fire department shall be entitled to receive workers' compensation benefits, as provided in the policy, as a result of such injury. All workers' compensation benefits and any necessary disability pension benefits shall be provided in accordance with the city's workers' compensation policy and West Virginia law. A member may not receive workers' compensation benefits at the same time as they are receiving sick leave benefits.
(Ord. No. 6228, § 12-40, 5-6-1996; Bill No. 7992, 5-15-2023)

**State law reference—**Political subdivisions to subscribe to and pay premiums into workers' compensation fund, W. Va. Code § 23-2-1.

### Sec. 54-52. Demolition of structures to prevent spread of fire.

The fire chief or in his absence the senior officer present at a fire shall have authority to direct the pulling down or destroying of any fence, house, vehicle or other thing if deemed necessary to prevent the spreading of fire.
(Ord. No. 6228, § 12-31, 5-6-1996)

**State law reference—**Liability of city for property pulled down or destroyed to prevent spread of fire, W. Va. Code § 8-15-2.

### Sec. 54-53. Use of equipment and materials in motor vehicle emergencies and incidents involving individuals who are not assessed for fire service fees; enforcement.

If it is necessary for the fire department to respond to extinguish a fire or abate any other emergency on or about any motor vehicle owned by a nonresident of the city or any business entity who is not assessed a fire service fee under article IV of this chapter, the city collector shall assess a fee of $250.00 upon the owner of such vehicle, which shall be due and payable to the city within a time period to be fixed by the collector. There shall be an additional fee of $75.00 assessed upon such owner for each fire department vehicle remaining on the scene of the fire or other emergency for each half-hour increment after the initial first hour of emergency service. Such owner shall also be liable for, and the city shall have the right to recover from such owner, the cost and expense for the utilization of any specialized and disposable equipment or materials necessary to render an emergency scene safe and secure. The city collector shall have plenary power and authority to enforce this section in accordance with and pursuant to sections 54-48, 54-50 and 54-181.
(Ord. No. 6267, § 12-38.1, 10-21-1996)

### Secs. 54-54—54-70. Reserved.

## DIVISION 2. EMERGENCY MEDICAL SERVICES DIVISION

### Sec. 54-71. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

*ALS* means advanced life support administered by a paramedic. ALS-1 means the patient receives treatment such as Monitor, NTG, 2 or less IV, IM, SQ, IO, LS medications going to an emergency department. ALS-2 means the patient receives advanced ALS treatment such as intubation, defibrillation, chest decompression or 3 or more IV, IM, SQ, IO, SL medications. ALS-N means non-emergency transportation where ALS is administered.

*Ambulance* means any motor vehicle equipped with advanced life support and basic life support equipment capable of transporting a patient in a reclining position.

*Ambulance service system* means an organized, fully coordinated network of individuals capable of effecting a fully coordinated response to every emergency medical incident, modified appropriately by the context of the compelling demands upon the system at any point in time. Essential components include but are not limited to:

(1) CPR training of the general public;

(2) Single point termination telephone access to the system;

(3) Fully centralized professional in direct radio contact with each paramedic and ambulance operating in the system;

(4) Continuing medical education in accordance with state requirements;

(5) Advanced life support ambulances;

(6) Rapid response times to all emergencies; and

(7) Routine physician supervision in the treatment of patients.

*BLS* means basic life support administered by an EMT or paramedic. BLS-E means basic life support provided to a patient going to an emergency department. BLS-N means basic life support provided to patient during non-emergency transportation.

*Emergency medical technician-basic* means one who has successfully completed the course

for certification as an emergency medical technician-basic as established by the commissioner or authorities recognized and approved by the commissioner.

*EMS* means emergency medical services.

*Medical director* means a licensed physician appointed by the mayor, with the consent of the city council, who generally is charged with the responsibility of overseeing the ambulance service system from a medical perspective.

*Paramedic* means one who has successfully completed the course for certification as an emergency medical technician-paramedic or paramedic established by the commissioner or authorities recognized and approved by the commissioner.

*Paramedic intercept* means advanced life support (ALS) services that are provided to a patient that is being transported by an entity other than the Charleston Fire Department. These services include, but are not limited to, paramedic assessments for patients transported in a vehicle operated by another governmental entity.
(Ord. No. 6228, § 12-34, 5-6-1996; Bill No. 7327, 5-5-2008; Bill No. 7604, 11-4-2013; Bill No. 8069, 3-16-2026)

**Cross reference—**Definitions generally, § 1-2.

### Sec. 54-72. Public policy declared; purpose of emergency medical services division.

(a) It is the public policy of the city to protect and promote the public health, safety and welfare of the citizens of this city. The providing of basic and advanced life support and the transportation of sick and injured persons who find themselves in emergency medical situations are matters of vital concern to the public in general and are considered essential health services by the city council. Improper performance by or the absence of emergency ambulance service may induce an aggravation of injuries or an illness or produce delay resulting in permanent disability or even death.

(b) It is the purpose of the EMS division under the direct control and supervision of the fire department to promote the public health, safety and welfare by providing emergency medical services within the corporate limits of the city.
(Ord. No. 6228, § 12-33, 5-6-1996)

### Sec. 54-73. Promotions.

(a) The fire department civil service commission shall request from the fire chief the names of those individuals having served for the preceding two years in the next lowest rank. All personnel seeking promotion within the emergency medical services division shall participate in the process for establishing a list of eligibles for promotion. Such list of eligibles shall be established through a written examination and seniority with the written examination accounting for 70 points and seniority accounting for 30 points for a maximum of 100 points. The fire department civil service commission shall cause to be developed a written examination for promoting, which shall assess the candidates' knowledge of trauma, cardiac and medical emergencies, emergency medical services systems and components, EMS laws, and established administrative procedures. The list of eligibles shall be ranked in order from highest cumulative points to lowest cumulative points, with the mayor promoting the highest ranking candidate to each vacancy that might exist in the rank structure. This list shall be established within 90 days of a vacancy.

(b) Upon appointment by the mayor, such candidate's name or number shall be removed from the list and the next highest ranking candidate shall be promoted, and so forth until each vacancy is filled. The eligibility list shall be established for three years unless such list has been exhausted prior to the three-year limit.
(Ord. No. 6228, § 12-36, 5-6-1996)

### Sec. 54-74. Schedule of charges for ambulance services.

(a) In conformity with section 54-43(6) authorizing the Chief of the Fire Department of the City of Charleston to carry out the purposes

of this article, including, but not limited to billing, the following charges for ambulance related services are hereby adopted:

| | |
|---|---|
| ALS-1 loading fee | $681.84 |
| ALS-2 loading fee | $687.39 |
| ALS-N | $681.84 |
| BLS-E loading fee | $414.47 |
| BLS-N | $313.09 |
| Oxygen charge | $25.00 |
| Paramedic intercept fee | $300.00 |
| ALS mileage fee, per mile | $9.02 |
| BLS mileage fee, per mile | $9.02 |

(b) The city council shall have the right to revise from time to time the schedule of rate and charges enacted herein.

(c) Such schedule of charges shall be effective upon final passage of this section and shall be assessed by and payable to the city collector who is hereby authorized and adopt such rules and regulations as may be necessary for him or her to accomplish the purposes hereof, including but not limited to the right to contract with outside collection services to effect the purposes hereof as he or she may deem appropriate.
(Ord. No. 6228, § 12-37, 5-6-1996; Bill No. 6754, § 12-37, 12-18-2000; Bill No. 7327, 5-5-2008; Bill No. 7604, 11-4-2013; Bill No. 8069, 3-16-2026)

### Sec. 54-75. Uncollectible accounts for ambulance-related services; authority of city collector.

Whenever in the judgment of the city collector, based upon reliable information obtained or received from the billing agent or other sources, any account receivable created under the provisions of section 54-74(a) is uncollectible or the cost of collection would not be economically justified, the city collector may, at his discretion, remove or authorize the removal of such accounts receivable by designating such accounts as uncollectible and removing them from current account records. A review of such accounts by the city collector for this purpose should occur on a quarterly basis, based on the city's fiscal year.
(Ord. No. 6228, § 12-37(a), 5-6-1996)

### Secs. 54-76—54-100. Reserved.

## DIVISION 3. VACATION, OTHER LEAVE, DUTY HOURS, AND CALCULATION OF OVERTIME PAY*

### Sec. 54-101. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

*Member* shall mean any sworn employee of the fire department hired under the provisions of West Virginia State Code Chapter 8, Article 15.

*Day* for members on shift duty means a 12-hour period which represents half of a shift.

*Shift* for members on shift duty means a 24-hour period of duty or two days as defined in this section.

*Working day* for members on a 40-hour week means an eight-hour consecutive period of duty.
(Bill No. 7506, 12-5-2011)

### Sec. 54-102. Annual vacation leave.

On or after January 1, 2012, each uniformed member shall be entitled to receive annual vacation leave with pay which shall accrue as follows:

(1) For a member on shift duty:

a. Fourteen hours credited on the last day of each month which shall equate to seven shifts or 14 days per calendar year, or a pro rata share if employed less than one year, for the first 14 years of service.

b. Eighteen hours credited on the last day of each month which shall equate to nine shifts or 18 days per calendar year for those with 15 or more years of service.

---

*__Editor's note—__Bill. No. 7506, adopted Dec. 5, 2011, repealed former Div. 3, §§ 54-101—54-105, in its entirety and enacted new provisions as herein set out. Former Div. 3 pertained to similar subject matter and derived from Ord. No. 6228, §§ 12-43.1—12-43.5, 5-6-1996; Ord. No. 6271 § 12-36.3, 11-18-1996; Bill. No. 7144, 5-16-2005; Bill No. 7175, 11-21-2005.

(2) For members on a 40-hour week:

a. Monthly credit of 1¼ working days (i.e., ten hours) credited on the last day of each month during the first 14 years of service.

b. Monthly credit of 12/3 working days (i.e., 13 hours 20 minutes) credited on the last day of each month for those with 15 or more years of service.

Such leave shall not be cumulative from year to year; it must be taken within the calendar year earned in accordance with the schedule established by the fire chief or be forfeited. Any such leave which has accrued but has not been used at the time of retirement or separation from employment shall be a credit which shall be paid at regular wage rates along with any outstanding wages due and owing to the employee. Any such leave which has been used but has not yet accrued at the time of retirement or separation from employment shall be deemed an unsatisfied advance and may be treated as a payroll deduction from any outstanding wages then due and owing to the employee, to the extent permitted by state and federal law.
(Bill No. 7506, 12-5-2011)

**Sec. 54-103. Sick leave.**

(a) Beginning January 1, 2015, each uniformed member shall be entitled to and granted sick leave with full pay. Such leave shall accrue at the rate of eight hours credited on the last day of each month during which the member has worked or has had leave credited for one or more tours of duty: Provided, that beginning July 1, 2023, such leave shall accrue at the rate of 12 hours credited on the last day of each month during which the member has worked or has had leave credited for one or more tours of duty.

(b) When a member hired before July 1, 2020, retires, the member will have the privilege of converting up to 144 hours of sick leave accrued under subsection 54-103(a) on or after January 1, 2012, or any remaining unused sick leave accrued prior to January 1, 2012, whichever is greater, to insurance benefits based on the formula of 24 hours for one month single coverage insurance premium or 36 hours for one month family coverage insurance premium. Any sick leave accrued by a member under subsection 54-103(a) on or after January 1, 2012, that is not converted to insurance benefits to the extent permitted by this section shall be forfeited effective as of the date of the member's retirement or separation from employment.

(c) Sick leave shall be granted for the following reasons:

(1) Illness on the part of or injury to the member, incapacitating him or her for duty.

(2) Illness in the immediate family, i.e. spouse, child, father, mother, sister, brother, father-in-law and mother-in-law, of such a critical nature as to require the presence of the member. This provision shall not be construed to cover absences for the purpose of nursing or caring for members of the immediate family not declared by the attending physician to be critically ill.

(3) Exposure to contagious diseases and subsequent determination by competent medical authority that such member's presence on duty might jeopardize the health of others.

(d) After the equivalent of half of the annual sick leave has been used by the member, the member shall provide the fire chief with a certificate from the attending physician setting forth the nature and duration of any of the conditions which would entitle him to sick leave as provided in subsection (c) of this section. Failure to provide such certificate satisfactory to the fire chief shall result in the member's not being granted sick leave with pay, and may subject the member to discipline for an unexcused absence.

(e) The city manager may, in his or her discretion and at the request of the fire chief, advance additional leave necessary to avoid substantial hardship to any member, provided that all other accrued vacation, sick and personal contingency leave shall have first been exhausted.

(f) The fire chief shall also have the right to investigate or cause to be investigated the alleged illness of any member and, for good cause shown, not only to deny sick leave but also to take proper disciplinary action against any feigner or abuser.

(g) In the event of an emergency, as declared by the mayor, an attending physician's excuse may be required for any days missed; and during the emergency, the mayor may suspend, in whole or in part, any sick leave or personal contingency leave as permitted by subsections (a) and (c) of this section.

(h) For purposes of this section, a medical provider shall include a licensed physician, surgeon, chiropractor, psychologist, or dentist.
(Bill No. 7506, 12-5-2011; Bill No. 7639, 12-1-2014; Bill No. 7873, 6-15-2020; Bill No. 7992, 5-15-2023)

**Sec. 54-104. Funeral leave with pay.**

In case of the death of the spouse, child, mother, father, brother, sister, mother-in-law or father-in-law, or in the case of death of any other relative residing in the immediate household, the member shall be allowed one shift or three working days of funeral leave with regular pay. In case of the death of a sister-in-law, brother-in-law, daughter-in-law, son-in-law, grandparent, grandchild, aunt, uncle, nephew, niece or first cousin of the member or spouse, the member shall be allowed one day or working day of funeral leave with regular pay.
(Bill No. 7506, 12-5-2011)

**Sec. 54-105. Legal holidays.**

(a) The holidays set forth in subsection (a) of section 86-106 of this Code shall be regarded, treated and observed as legal holidays for fire department employees.

(b) Uniformed members on 24-hour shift duty who are required to receive additional compensation for legal holidays pursuant to W. Va. Code § 8-15-10a shall, upon the occurrence of a legal holiday, regardless of whether the member is required to work on the legal holiday or the legal holiday occurs on the member's regularly scheduled day off, shall either be:

(1) Paid at a rate of one and one-half times the member's regular rate of pay for 24 hours; or

(2) Allowed equal time off at such time as may be approved by the fire chief or his or her designee.

(c) Uniformed members on a 40-hour week who are required to work on a legal holiday, or if the legal holiday occurs on their regularly scheduled day off shall be allowed up to one working day (eight consecutive hours) of time off, at such time as approved by the fire chief or his or her designee.
(Bill No. 7506, 12-5-2011); Bill No. 7639, 12-1-14; Bill No. 7865, 2-3-2020; Bill No. 8062, 8-18-2025)

**Sec. 54-106. Daily and weekly duty hours; pay periods; calculation of overtime pay; trading assigned shifts.**

(a) Members shall not be required to remain on duty in excess of 112 hours during any 14 consecutive calendar days' period.

(b) Unless the members shall by a majority vote elect otherwise as provided by state law, shifts shall begin and end at 8:00 a.m.

(c) Members, other than the chief who is paid an annual salary, shall be paid on an hourly basis according to wage rates established by and published in annual general fund budgets and pursuant to federal, state, and municipal codified law, as may be amended from time to time, with appropriate adjustments on a bi-weekly (14 consecutive calendar days' period) basis. Each bi-weekly pay period shall begin at 12 midnight prior to a shift that begins on a Sunday at 8:00 a.m.

(d) On and after, December 14, 2014 and pursuant to state and federal law, the work period for calculating overtime for members assigned to shift work shall be a consecutive 14 calendar-day period coinciding with a bi-weekly pay period. Members shall be paid at the rate of

one and one-half times their regular hourly rate for any time worked in excess of 106 hours within this 14-day period.

(e) On or after December 14, 2014, and pursuant to state and federal law, the work period for calculating overtime for members assigned to a 40-hour week shall be a consecutive seven calendar-day period coinciding with the beginning or ending of a bi-weekly pay period. Members shall be paid at the rate of one and one-half times their regular hourly rate for any time worked in excess of 40 hours within this seven-day period that begins at 12:01 a.m. Sunday and ends at 12:00 midnight the following Saturday,

(f) The fire chief may establish rules and regulations for the trading of assigned shifts, or portions thereof, provided that where one member substitutes for another, each member will be credited as if he or she had worked his or her normal work schedule for that shift, or portion thereof, with the effect that the hours worked shall be excluded in the calculation of the hours for which the substituting member would otherwise be entitled to overtime compensation under the law. The fire chief or a shift commander must approve any agreement between members to substitute shifts prior to the start of the shift in which the substitution will occur.
(Bill No. 7506, 12-5-2011; Bill No. 7639, 12-1-2014)

### Sec. 54-107. Uniformed fire sick leave pool.

(a) The purpose of the uniformed fire sick leave pool is to allow a system whereby qualified uniformed members of the Charleston Fire Department may collectively ensure against the extended use of any one member's individually accumulated leave by creating a pool of leave that is for the mutual protection of qualified members who suffer from prolonged illness, sickness, or convalescence from injuries and are off duty for a prolonged period of time.

(b) There is hereby created the uniformed fire sick leave pool for the purpose described herein. The administration of the pool is vested with the City of Charleston Human Resources Department. The human resources department shall supervise and administer the contribution of time to the pool and the use of time from the pool. The eligibility determinations are to be made by a committee of five people as set forth in this section and known as the CFD Sick Pool Eligibility Committee. Decisions of the CFD Sick Pool Eligibility Committee are final.

(c) To carry out the purposes of the uniformed fire sick leave pool, an initial amount of sick leave hours shall be deposited into the pool, which shall not be less than 336 total hours and which shall consist of a required contribution of either 12 hours of annual leave time or 12 hours of sick leave time per participating member, whichever is the choice of said member as indicated on a form filed with the human resources department. Said form shall also indicate each member's decision to enter the uniformed fire sick leave pool and acceptance of the terms and conditions of participation, including that a waiver of private health information must be given to the CFD Sick Pool Eligibility Committee for the purpose of evaluating applications for sick pool benefits. When the number of sick leave hours remaining in the pool shall be less than 336,

each participating member of the uniformed fire sick leave pool shall be assessed a total of either 12 hours sick time or 12 hours annual leave time to replenish the pool of hours, whichever is the choice of said member as indicated on a form filed with the human resources department.

(d) *Qualifications.* To participate in the uniformed fire sick leave pool a member must be a member of the Charleston Fire Department who has passed the civil service examination, been selected by the civil service commission and appointed by the Mayor of Charleston to the Charleston Fire Department, and served one full year as a member of the Charleston Fire Department. In addition, a member shall have accumulated 96 hours of sick leave in order to be eligible to join the pool and shall be enrolled in the short-term disability benefits offered by the city. Each qualified member shall receive notice of such qualification from the human resources department and the qualified member may choose whether to join the uniformed fire sick leave pool. In order to join the pool, the member shall make an initial contribution of a total of either 12 hours of annual leave time or 12 hours of sick leave time, whichever is the choice of said member, and any other contribution required by this section.

(e) The operation and use of the uniformed fire sick leave pool as herein provided shall be as follows:

(1) Formal application to benefit from the uniformed fire sick leave pool by a qualified member of the pool shall be made to the CFD Sick Pool Eligibility Committee. The application shall set forth in full the reason for their absence from duty with the Charleston Fire Department and their eligibility to draw from the pool of sick leave hours. The application shall include a waiver of private health information authorizing the CFD Sick Pool Eligibility Committee to obtain and review health care records for the purpose of evaluating applications for sick pool benefits. The final determination on eligibility, pursuant to this section, shall be made by the CFD Sick Pool Eligibility Committee, which shall notify the human resources director, prior to the member being allowed to draw from the pool. A uniformed member who seeks to improperly receive the benefits of the pool shall be subject to discipline consistent with all civil service laws of the state.

(2) No member shall be eligible to draw days from the pool until such member shall have used a minimum of 96 hours of consecutive sick time from their individually accrued sick hours. In the event the member does not have 96 accrued sick leave hours, they may use their accrued sick leave hours and additional annual leave hours to total 96 hours, or all their accrued sick leave hours and all of their annual leave hours, and time unpaid, to total 96 duty hours.

(3) The member's absence from duty must be by reason of illness, sickness, or convalescence from injuries sustained, except such injuries as they may sustain while they are off-duty and a participant in some form of professional sport as is deemed hazardous by recognized uniform regulations of insurance companies. The pool may not be used to care for a family member.

(4) In event the CFD Sick Pool Eligibility Committee approves the application and finds said applicant is eligible to receive sick hours from the pool, they shall be limited to 30 days from the day such member began missing work, which would allow for the member to apply for short-term disability benefits. It is estimated that getting a member to this point would require up to 144 hours from the pool. Once a member has reached this point, they are no longer eligible for use of the pool and will instead rely on their short-term disability benefits.

(5) While drawing hours from the pool, a member shall not accrue additional vacation and sick hours and any such earned hours will be deposited to the pool, not kept by the member.

(f) Requirements and provisions pertaining to subsequent membership in the pool and resignation and/or termination of membership in the pool are as follows:

(1) Any uniformed member of the Charleston Fire Department who is eligible to be a member of the uniformed fire sick leave pool but did not become a member at the time of their initial eligibility may join the pool by submitting an application form to the human resources department. Members who join the pool shall be required to contribute a sufficient number of sick hours, annual leave hours, or both, equal to the number that would have made them a member of the pool had they chosen to participate at the time of their initial eligibility and had remained eligible by contributing to the replenishing of the pool as thereafter required.

(2) A member of the pool may discontinue their membership therein by giving proper written notice to the human resources director and the CFD Sick Pool Eligibility Committee. However, any hours they have theretofore contributed to the pool shall not be refunded or transferred back to their individual accumulated hours.

(3) Any member of the pool who discontinues their duty with the Charleston Fire Department by reason of retirement, resignation, or permanent dismissal shall—immediately upon such discontinuance of employment—be ineligible to draw hours from the pool. Any hours they have theretofore contributed to the pool shall not be refunded or transferred back to their individual accumulated hours.

(4) Any member of the pool who discontinues their duty with the Charleston Fire Department by reason of granted leave of absence or temporary suspension from duty resulting in reinstatement shall from the date of such discontinuance of duties be ineligible to draw hours from the sick leave pool, and in the event such member resumes duty with the Charleston Fire Department, they shall be eligible as a member of said pool only upon contributing to the pool such number of hours as shall have been required to replenish the pool during the period of their absence from duty.

(5) Any member of the pool resigning or leaving the Charleston Fire Department by any reason which results in their reinstatement as provided by the civil service laws of the state shall not be eligible to rejoin the pool until they have served one full year from date of their reappointment or resumption of duties.

(g) (1) The CFD Sick Pool Eligibility Committee consists of five individuals, as follows: the Mayor of the City of Charleston or the mayor's designee, the Fire Chief of the City of Charleston or the fire chief's designee, and three members of the Charleston Fire Department elected by the members and certified to the city clerk. Elected members of the pool serve for staggered terms of three years where a member is elected to the pool each year. The result of each election shall be certified to the city clerk, which the clerk shall provide to city council as a report of officers.

(2) The CFD Sick Pool Eligibility Committee is authorized to review all applications for use of the pool, investigate the facts of the situation as necessary, require examinations of applicants if necessary, and approve or deny applications on a case-by-case basis. The CFD Sick Pool Eligibility Committee shall promptly report all of its decisions to the human resources director.

(Bill No. 8018, 11-6-2023)

**Secs. 54-108—54-140. Reserved.**

## ARTICLE III. FIRE PREVENTION CODE*

### Sec. 54-141. Purpose; adopted; applicability; short title.

For the purpose of continuing a fire prevention bureau within the fire department, and prescribing regulations governing conditions hazardous to life and property from fire or explosion, for the safeguarding to a reasonable degree, life and property from the hazards of fire and explosion, the fire prevention code is hereby adopted. It is the intent of this article to prescribe regulations consistent with nationally recognized good practice for the safeguarding to a reasonable degree, life and property from hazards of fire and explosion. This article also establishes direction concerning the investigation of dangerous and hazardous conditions resulting from fire and explosion. The adoption of the amendments to this article in 2020 hereby replace the previously adopted 1968 version, as amended, of the fire prevention code that was incorporated in this Code. This article shall hereafter be referred to as the "Charleston Fire Prevention Code" and the provisions shall be controlling.
(Bill No. 7871, 5-18-2020)

### Sec. 54-142. Adoption and incorporation of relevant codes.

This Charleston Fire Prevention Code does not include a reprinting of all the requirements imposed by statute, but rather incorporates by reference, as if they were printed here, the entirety of the West Virginia Fire Prevention and Control Act (W. Va. Code Ch. 29, Art. 3, as amended, and all legislative rules adopted thereunder), which includes the various National Standards and Codes published by the National Fire Protection Association (NFPA) that have been adopted by the West Virginia State Fire Marshal with any revisions or amendments made by the West Virginia State Fire Marshal. In addition, there are hereby adopted for the purpose of prescribing regulations for fire prevention and safety, the relevant provisions of West Virginia Code and the Rules and Regulations pertaining to the State Fire Codes, as adopted by the West Virginia State Fire Marshal.
(Bill No. 7871, 5-18-2020)

### Sec. 54-143. Application, exemptions, inspections.

(a) The application of this article shall apply equally to new and existing conditions, except where the said existing conditions, not in strict compliance with the terms of this article, shall be permitted to continue where conditions do not constitute a distinct hazard to life and property in the opinion of the chief of the fire department.

(b) This Charleston Fire Prevention Code has no application to personal care homes caring for three or less patients or buildings used wholly as dwelling houses for no more than two families.

(c) Nothing contained in this article shall be construed as applying to the transportation of any item shipped under the jurisdiction of and in compliance with regulations prescribed by the Interstate Commerce Commission nor as applying to the military forces of the United States.

(d) The chief of the fire department, members of the fire prevention bureau, or any other designee of the fire chief at all reasonable hours, may enter any building or premises within the jurisdiction for the purpose of making an inspection, or investigation which under the provisions of this law, he or they may deem necessary.

(e) The chief of the fire department, members of the fire prevention bureau, or any other designee of the fire chief shall inspect any building, structure and/or business within their jurisdiction, this is to include any structure accessible to public occupancy. This is not to include the interior of private dwelling structure with less than three units.
(Bill No. 7871, 5-18-2020)

---

*__Editor's note—__Bill No. 7871, adopted May 18, 2020, amended Art. III in its entirety to read as herein set out. Former Art. III, §§ 54-141—54-146, pertained to similar subject matter, and derived from Ord. No. 6228, §§ 12-21—12-26, adopted May 6, 1996.

__State law references—__Authority to regulate gunpowder and other combustibles, W. Va. Code § 8-12-5(14); authority to make regulations guarding against danger or damage by fire, W. Va. Code § 8-12-5(15).

**Sec. 54-144. Authorized orders under the Charleston Fire Prevention Code; appeals.**

(a) In addition to the other powers contained in this chapter, the Charleston Fire Department is authorized to issue the following orders:

(1) *Order of removal or compliance.* Whenever the chief of the fire department, members of the fire prevention bureau, or any other designee of the fire chief shall determine any building in violation of the Charleston Fire Prevention Code, he or she shall have the authority to cause said violation to be corrected in an amount of time he or she may deem prudent, not to exceed 21 days unless it involves a violation which requires a plan of correction as identified upon the completion of inspection. This grace period for correction is not to contradict any portion of the Charleston Fire Prevention Code.

(2) *Order to evacuate.* The chief of the fire department, members of the fire prevention bureau, or any other designee of the fire chief shall have the authority to cause to evacuate any building within his or her jurisdiction he or she may deem un-safe to occupy and to remain evacuated until such time he or she declares the building safe to occupy.

(3) *Order of revocation of permit.* The chief of the fire department, members of the fire prevention bureau, or any other designee of the fire chief shall have the authority to revoke or cause to revoke any permit, license or approval issued if any violation of the Charleston Fire Prevention Code is found on any inspection, or in any case of misrepresentation of any material fact on any application or plans on which said permit, license or approval was issued.

(b) Any order of the chief of the fire department, members of the fire prevention bureau, or any other designee of the fire chief pursuant to this section may be appealed to the City of Charleston's Board of Appeals in accordance with section 14-91 of the Municipal Code of Charleston.

(Bill No. 7871, 5-18-2020)

**Sec. 54-145. Fire prevention bureau members, responsibilities, and authority.**

(a) The Fire Prevention Bureau of the City of Charleston shall operate under the supervision of the chief of the fire department. Subject to West Virginia State Code and Regulations, the chief of the fire department shall designate officers (members) of the fire department as fire marshals in the fire prevention bureau, who shall hold this position at the discretion of the chief of the fire department. The chief of the fire department shall, subject to West Virginia Civil Service Law and Regulations, appoint a captain of the fire prevention bureau to be the officer in charge of the bureau. Subject to the West Virginia Civil Service Law and Regulations, the chief of the fire department may detail such members of the fire department as fire inspectors, fire investigators, or both. The chief of the fire department may detail such other members of the fire department from time to time and as deemed necessary for assignments that may be limited to pre-fire planning, building surveys and other details pertaining to such assignments.

(b) The fire prevention bureau is responsible for fire and life safety inspections, building construction and fire protection systems plan review, public fire safety education and investigation of any fires within the City of Charleston. Fire marshals assigned to the fire prevention bureau shall be responsible for administration and enforcement of the Charleston Fire Prevention Code. It shall be the responsibility of the fire prevention bureau to review all plans for new construction, and all other plans for remodeling and renovations pertaining to any buildings/structures within the jurisdiction of the city as identified by the West Virginia State Fire Code and the City of Charleston. The review procedure of any plans or drawing submitted does not relieve the owner, architect, contractor or engineer of responsibility under the applicable code and statues. It shall be the responsibility of the fire prevention bureau to issue appropriate permits following inspections, open fires and outdoor burning permits (in accordance with the Charleston Fire Prevention Code and any WVDEP

or WVDNR requirements, as applicable), blasting permits, fireworks permits, and outdoor special events permits. Furthermore, all permits issued are subject to the following:

(1) All permits shall at all times be kept on the premises designated therein, and at all times be subject to inspection by any officer of the fire or police departments.

(2) The fire prevention bureau may revoke any permit or approval issued if any violation of the Charleston Fire Prevention Code is found upon inspection or in case there are any false statements or misrepresentations as to a material fact in the application or plans for which the permit approval maws based.

(3) The issuance of any permit does not relieve the owner, installer or operator of any responsibility for damages and or injuries resulting from misrepresentation. The Charleston Fire Prevention Code shall not be construed to affect the responsibility of any owner, operator, or installer from damages incurred to persons or property caused by any defect therein, nor shall the city be held responsible for any such liability by any reason of the inspection or re-inspection authorized herein or the permit issued as herein provided or by reason of or approval or disapproval of any related request.

(c) The fire prevention bureau shall investigate any fire which involves the loss of life or injury to person or by which property has been destroyed or damaged in accordance with applicable codes. The investigator shall make the origin and cause of the fire and facts of the fire known to the fire chief. The investigator shall immediately take charge of any physical evidence, notify and process the said evidence with the proper authorities designated by law to pursue the investigation of such matters, and shall cooperate with authorities in the prosecution of the case. The investigation, prevention, and extinguishing of fires and dangerous conditions related to fire within the City of Charleston will be further promoted by granting limited powers of arrests to fire marshals that meet all training required by the West Virginia Fire Marshal, including the Law Enforcement Core Training Standards of the West Virginia State Fire Commission and the West Virginia State Fire Marshal. The training required may be provided by the Charleston Police Department, where possible. Fire marshals who successfully complete the training are deemed to be certified municipal fire marshals and while assigned to the fire prevention bureau are authorized to exercise powers and duties similar to those exercised by the state fire marshal pursuant to W. Va. Code § 29-3-12, and they are specifically authorized to:

(1) Arrest any individual disobeying lawful orders at the scene of a fire;

(2) Arrest any individual who violates prohibitions against arson and explosives offenses, malicious burning, obstructing a fire marshal, or failing to obey lawful orders;

(3) Arrest without a warrant, if the unlawful conduct occurs in their presence; and

(4) File criminal complaints with the municipal court or other appropriate judicial officer in order to obtain a warrant for the arrest and initiate a criminal matter.

(d) The arrest authority of certified municipal fire marshals contained in subsection (c) of this section applies to the relevant state statutes contained in the West Virginia Code. Certified municipal fire marshals may execute any summons or warrant issued by the municipal judge or a Kanawha County Magistrate for these offenses. Any return by a certified municipal fire marshal showing the manner of executing the warrant or summons has the same force and effect as if made by member of the Charleston Police Department. The fire prevention bureau may obtain the assistance of the Charleston Police Department and the city solicitor at any time deemed necessary to assist with investigation and prosecution, as necessary.

(e) In addition to this arrest authority, the chief of the fire department, members of the fire prevention bureau, or any other designee of the fire chief shall have the authority to issue a

summons to appear before the municipal court for violations of the Charleston Fire Prevention Code.

(f) The chief of the fire department, who is ultimately responsible for the enforcement of the Charleston Fire Prevention Code, may revoke or rescind, at any time any certified municipal fire marshal's enforcement powers when, in the opinion of the fire chief, these powers have been abused or improperly enforced.
(Bill No. 7871, 5-18-2020)

### Sec. 54-146. Violations and penalties; recourse of city to correct violations.

(a) Whoever violates any provision of the Charleston Fire Prevention Code or neglects or fails to comply with such a provision, or who shall violate, neglect or fail to comply with any order or regulation made under such code, or who shall build or construct any structure or part of a structure in violation of any detailed statement of specifications, plans or blueprints submitted and approved under such code, or in violation of any certificate or permit issued under such code, shall be guilty of a misdemeanor and, upon conviction, shall be fined not less than $100.00 and not more than $500.00, or may be imprisoned for not more than 30 days, or both.

(b) The imposition of any such penalty shall not excuse the violation, neglect or noncompliance, nor permit nor allow its continuance; and any person violating, neglecting or failing to comply with the provisions of the Charleston Fire Prevention Code shall be required to correct or remedy such violations, neglects, defaults or defects within a reasonable time; and each day that any such violation, neglect or noncompliance shall continue shall constitute a separate offense. The application or use of these penal provisions shall not be held to prevent the removal of the prohibited conditions; and the city shall have the right, in addition to such penal provisions, to proceed in any court having jurisdiction for the correction of such conditions by any lawful procedure provided for by the statutes of the state.
(Bill No. 7871, 5-18-2020)

### Sec. 54-147. Policies.

The fire prevention bureau, with the approval of the chief of the fire department, is hereby authorized to create policies that govern the operating procedures of the fire prevention bureau and any policy necessary to ensure that every fire in the City of Charleston is promptly reported to the fire prevention bureau for appropriate action, provided that no such policy may be in conflict with the Charleston Fire Prevention Code.
(Bill No. 7871, 5-18-2020)

### Secs. 54-148—54-180. Reserved.

## ARTICLE IV. FIRE PROTECTION SERVICE CHARGE*

### Sec. 54-181. Definitions; continuation, maintenance and improvement of fire service; legislative intent; city collector to administer regulations; use of funds; assessment of fees.

(a) *Definitions.* The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

*Basement* means that position of a building which is located below the level of the adjoining ground, and which is unfinished and not utilized as a part of the living or working area of the building.

*Commercial building* and *institutional building* mean any structure the first floor of which (excluding basement) is used or intended by the nature of its construction to be used for any purpose other than residential, and shall include those commercial and/or institutional structures used for parking vehicles and those structures used for vehicle service, maintenance, refurbishing, storage, and sale. A commercial building

*__State law reference—__Authority to impose a charge upon users of the fire protection services, W. Va. Code § 8-13-13.

and an institutional building shall also be deemed to include hotels, motels or other buildings intended primarily for transient lodging.

*Mixed use building* means any structure (excluding a basement) that has a combination of residential and commercial and/or institutional uses. The predominant usage of the structure is determined by the greatest usage of the total square footage by one or the other uses. Such structure will be charged at a rate determined by the predominant usage.

*Residential building* means any structure the first floor of which (excluding basement) is used or intended by the nature of its construction to be used by persons for living and sleeping quarters but shall not include hotels, motels or other buildings intended primarily for transient lodging.

*Story* means that part of a structure included between any floor and the floor or roof next above, excluding basements and attics.

*Total square feet* means that sum as measured by the exterior dimensions of the structure multiplied by the number of stories, but shall not include any part of a structure encompassed by the following:

(1) Porches (unless entirely enclosed for all-weather purposes).

(2) Basements (unless utilized as a living or working area of the building).

(3) Attics (unless utilized as a living or working area of the building).

(4) Residential garages.

(5) Any other outbuildings.

(b) *Continuation, maintenance and improvement of fire service.* The service of fire protection shall be continued, maintained and improved by the city, in part, at the charge and expense of the owners of all buildings of every kind and nature within the city, which owners are declared to be users and beneficiaries of such fire protection service. The charges and expenses with respect to each of such users and beneficiaries shall be imposed, assessed and collected as set out in this section.

(c) *Legislative intent.* The imposition of fire protection fees under this section is pursuant to authorization set forth in W. Va. Code ch. 8, art. 13, § 13 (W. Va. Code § 8-13-13). In accordance with that statute, it is the legislative intent of this section that the fees imposed are based, in part, upon recognition of the legislative finding that the size of a building (as reflected by the total square feet) is a factor which affects the cost of providing fire protection; therefore, it is the intent and purpose of this section that the fees imposed under this section be related, in part, to the size of a building.

(d) *Administration by city collector.* This section shall be administered by the city collector. He is authorized to promulgate such regulations as are necessary and reasonable to carry out the provisions of this section.

(e) *Use of funds for fire protection only.* The revenues received for the collection of fire protection fees provided for in this section shall be used only to defray the cost of the continuance, maintenance or improvement of fire protection service within the city; and no part of such revenues shall be used for any other municipal purposes. If the total revenues derived from this section exceed the total expenditures of the fire department for any fiscal year, the city shall rebate the difference between the revenues derived and expenditures to the owners who paid such fees on a pro rata basis. Such rebate may either be given by refund within 90 days at the end of the fiscal year or credited to the accounts of such owners for fire protection fees for the succeeding fiscal year.

(f) *Assessment of fire protection fees.*

(1) There is imposed upon the owners of all residential buildings or structures in the city, a fire protection fee or charge as follows:

| *Residential Category* | *Rate* |
|---|---|
| 1 to 1,000 | $ 15.00 |
| 1,001 to 1,500 | 22.00 |
| 1,501 to 2,000 | 29.00 |
| 2,001 to 2,500 | 38.00 |

| | |
|---|---|
| 2,501 to 3,000 | 45.00 |
| 3,001 to 3,500 | 52.00 |
| 3,501 to 4,000 | 60.00 |
| 4,001 to 4,500 | 68.00 |
| 4,501 to 5,000 | 75.00 |
| 5,001 to 5,500 | 83.00 |
| 5,501 to 6,000 | 91.00 |
| 6,001 to 6,500 | 98.00 |
| 6,501 to 7,000 | 106.00 |
| 7,001 to 7,500 | 113.00 |
| 7,501 to 8,000 | 120.00 |
| 8,001 to 8,500 | 127.00 |
| 8,501 to 9,000 | 135.00 |
| 9,001 to 9,500 | 143.00 |
| 9,501 to 10,000 | 150.00 |
| 10,001 to 15,000 | 225.00 |
| 15,001 to 20,000 | 300.00 |
| 20,001 to 25,000 | 375.00 |
| 25,001 to 30,000 | 450.00 |
| 30,001 to 35,000 | 525.00 |
| 35,001 to 40,000 | 600.00 |
| 40,001 to 45,000 | 675.00 |
| 45,001 to 50,000 | 750.00 |
| 50,001 to 55,000 | 825.00 |
| 55,001 to 60,000 | 900.00 |
| 60,001 to 65,000 | 975.00 |
| 65,001 to 70,000 | 1,050.00 |
| 70,001 to 75,000 | 1,125.00 |
| 75,001 to 80,000 | 1,200.00 |
| 80,001 to 85,000 | 1,275.00 |
| 85,001 to 90,000 | 1,350.00 |
| 90,001 to 95,000 | 1,425.00 |
| 95,001 to 100,000 | 1,501.00 |
| 100,001 and over | 3,000.00 |

(2) There is imposed upon the owners of all commercial and institutional buildings or structures in the city a fire protection fee or charge as follows:

| *Commercial Category* | *Rate* |
|---|---|
| 1 to 1,000 | $ 42.00 |
| 1,001 to 1,500 | 63.00 |
| 1,501 to 2,000 | 85.00 |
| 2,001 to 2,500 | 106.00 |
| 2,501 to 3,000 | 127.00 |
| 3,001 to 3,500 | 149.00 |
| 3,501 to 4,000 | 170.00 |
| 4,001 to 4,500 | 191.00 |
| 4,501 to 5,000 | 211.00 |
| 5,001 to 5,500 | 232.00 |
| 5,501 to 6,000 | 253.00 |
| 6,001 to 6,500 | 274.00 |
| 6,501 to 7,000 | 295.00 |
| 7,001 to 7,500 | 316.00 |
| 7,501 to 8,000 | 337.00 |
| 8,001 to 8,500 | 358.00 |
| 8,501 to 9,000 | 380.00 |
| 9,001 to 9,500 | 401.00 |
| 9,501 to 10,000 | 422.00 |
| 10,001 to 15,000 | 632.00 |
| 15,001 to 20,000 | 843.00 |
| 20,001 to 25,000 | 1,054.00 |
| 25,001 to 30,000 | 1,265.00 |
| 30,001 to 35,000 | 1,476.00 |
| 35,001 to 40,000 | 1,687.00 |
| 40,001 to 45,000 | 1,897.00 |
| 45,001 to 50,000 | 2,108.00 |
| 50,001 to 55,000 | 2,319.00 |
| 55,001 to 60,000 | 2,529.00 |
| 60,001 to 65,000 | 2,739.00 |
| 65,001 to 70,000 | 2,950.00 |
| 70,001 to 75,000 | 3,161.00 |
| 75,001 to 80,000 | 3,372.00 |
| 80,001 to 85,000 | 3,582.00 |
| 85,001 to 90,000 | 3,792.00 |
| 90,001 to 95,000 | 4,003.00 |

| | |
|---|---|
| 95,001 to 100,000 | 4,214.00 |
| 100,001 to 125,000 | 5,268.00 |
| 125,001 to 150,000 | 6,322.00 |
| 150,001 to 175,000 | 7,375.00 |
| 175,001 to 200,000 | 8,428.00 |
| 200,001 to 225,000 | 9,482.00 |
| 225,001 to 250,000 | 10,536.00 |
| 250,000 and over | 12,643.00 |

(g) *Appeal procedure.*

(1) The city collector shall give the property owner written notice of any charge imposed pursuant to this section. The property owner to whom such notice is given may, within 30 days after service, either personally or by certified mail, file with the city collector a petition in writing, verified under oath by the property owner or his duly authorized agent having knowledge of the facts, setting forth with particularity the items of the charge objected to, together with the reasons for the objections. If no such petition is filed, the fee imposed shall become final and not subject to administrative or judicial review. The amount of the fee imposed shall be due and payable.

(2) When a petition provided for in subsection (g)(2) is filed within the time prescribed for such filing, the city collector shall assign a time and place for a hearing on the petition and shall notify the petitioner of such hearing by written notice at least 20 days in advance. The hearing shall be held within 100 days from the date of filing the petition unless continued by agreement of the parties or by the city collector for sufficient cause. The hearing shall be informal and shall be conducted in an impartial manner by the city collector or a hearing examiner designated by the city collector. The burden of proof shall be upon the petitioner to show that the fee imposed is incorrect and contrary to law, in whole or in part. After any such hearing, the city collector shall, within a reasonable time, give notice in writing of his decision.

(3) If no appeal is taken within 30 days after service of the administrative decision, the city collector's decision shall become final and conclusive. The amount, if any, due the city pursuant to the decision shall be due and payable on the day following the date upon which such decision becomes final.

(Ord. No. 6228, § 12-44, 5-6-1996; Ord. No. 6391, § 12-37, 11-17-1997)

**Cross reference—**Definitions generally, § 1-2.

### Sec. 54-182. Semiannual payment of charge.

The fire service charge provided for by this article shall be payable to the city collector for each fiscal year as follows: half on or before October 1 and half on or before April 1.

(Ord. No. 6228, § 12-45, 5-6-1996)

### Sec. 54-183. Penalty for default in payment; charge constitutes debt due city; recourse of city for collection.

A penalty of ten percent of the service charge shall be added for any default of 30 days or less and ten percent for each year thereafter. A service charge due under this article shall be a debt due the city. The city may collect a service charge and all accrued penalties by action against the owner of property against whom the service charge has been assessed by action brought or other appropriate proceedings in the circuit court of the county.

(Ord. No. 6228, § 12-46, 5-6-1996)

### Sec. 54-184. Exemptions.

(a) The provisions of this article shall not apply to churches, residential or other buildings and tangible business personal property which is owned and used exclusively by any religious organization for worship or residence purposes for full-time clergy personnel.

(b) The provisions of this article shall not apply to railroad trackage or water, gas, electric or telephone transmission lines, not without a

building, which are owned and operated by public utilities duly authorized by the public service commission of the state.

(c) This exemption is enacted to provide general relief for citizens who are 65 years of age or over to aid them in providing or maintaining a homestead, by authorizing and allowing relief in the nature of a reduction in their annual fire protection service charge. The amount of relief is to be measured and computed as follows: The annual fire protection service charge for persons who qualify for a homestead exemption under the provisions of W. Va. Code § 11-4-21 shall be reduced by an amount equal to $25.00. This general relief is declared to be a public purpose and therefore shall be liberally construed.
(Ord. No. 6228, § 12-47, 5-6-1996)

### Sec. 54-185. Certain delinquent charges to be excused as uncollectible.

All delinquent fire service charges on tangible personal property within the city that is not used in trade or business and does not exceed the amount of $2.00 shall be excused and written off as uncollectible.
(Ord. No. 6228, § 12-48, 5-6-1996)

### Secs. 54-186—54-189. Reserved.

## ARTICLE V. FIREWORKS; SALE, POSSESSION, STORAGE AND DISCHARGE

### Sec. 54-190. Generally.

(a) The terms used in this article, including "fireworks" and "consumer fireworks" shall have the same meaning as defined in West Virginia Code Section 29-3E-2. The term fireworks or consumer fireworks shall not include sparkling devices, novelties, toy caps, or model rockets.

(b) The sale, storage, use, possession, ignition, detonation and/or discharge of fireworks within the City of Charleston, shall be subject to, and conducted in a manner consistent with, applicable state law.
(Bill No. 7713, 10-3-2016)

### Sec. 54-191. Consumer fireworks; regulations, prohibited actions, and exceptions

(a) Any person igniting, discharging, detonating or otherwise using (hereinafter, collectively "use" or "using") consumer fireworks within the city and, consistent with W. Va. State Code § 8-12-19, within one mile beyond the corporate limits of the city, but not including areas within the corporate limits of another municipality, shall:

(1) Not be under the influence of intoxicating liquor, non-intoxicating beer, any controlled substance, or any combination thereof; and

(2) Be 18 years of age or older or shall be under the direct supervision of his or her parent, guardian, or other adult person responsible for the care and custody of the minor; and

(3) Be responsible for the prompt removal of all debris resulting from the use of fireworks and such completed removal shall not exceed 24 hours after use; and

(4) Be financially responsible for cleanup costs and/or damages resulting from the use of fireworks; and

(5) Be responsible for all costs associated with fire suppression efforts related to the use of fireworks; and

(6) Not use fireworks within 100 feet of any building or structure unless permission of the owner of the building or structure has been obtained or in any city park or on city-owned property without the advanced written approval of the City of Charleston; and

(7) Not use fireworks from any motor vehicle or boat; and

(8) Store fireworks in a safe, secure and responsible manner, and separate from any possible ignition source; and

(9) Not use fireworks in a manner that fireworks travel through, come in contact with, discharge, or explode on any public street, highway, or sidewalk, or in or on

any building, or near any person, or within 500 feet of any location posing a special fire danger, such as a gas station, chemical storage area or other similar location; and

(10) Not use fireworks during periods of very high or extreme fire danger as determined by the Charleston Fire Department or the West Virginia Division of Forestry, or while wind conditions are such that proper fireworks control cannot be exercised; and

(11) Not be permitted to use fireworks, except between the hours of 11:00 a.m. and 11:00 p.m., on Memorial Day, Independence Day and Labor Day, or between 11:00 am on December 31 and 1:00 am on January 1; provided, however, that a person may request permission from the chief of police to use fireworks for a special event or occasion at other days or times not regularly permitted herein, and the chief of police shall have reasonable discretion, on a case by case basis and after consultation with the chief of the fire department, to approve such a request.

(b) This section, and the prohibitions contained herein related to the use of consumer fireworks, is not intended to prohibit use of display fireworks within the city at any day or time so long as the use is sponsored or approved by the city.
(Bill No. 7713, 10-3-2016; Bill No. 8061, 12-1-2025)

**Sec. 54-192. Enforcement.**

(a) The city may seize, take, remove, dispose of at public auction, or destroy, or cause to be seized, taken, removed, disposed of at public auction, or destroyed, at the expense of the owner, all stocks of fireworks offered for sale, stored, held or used in violation of this section, West Virginia Code, or any emergency or legislative rule promulgated thereunder.

(b) The provisions of this article shall be enforced by the chief of police, or his/her designee, and the fire chief, or his/her designee.

(c) Any person convicted of a violation of the provisions of this article shall be fined not more than $500.00. Each violation of the provisions of this Article shall constitute a separate offense.
(Bill No. 7713, 10-3-2016)

**Secs. 54-193—54-210. Reserved.**

Chapters 55—57

**RESERVED**

Chapter 58

# HEALTH AND SANITATION*

## Article I. In General


Sec. 58-1. Compliance with rules and regulations of state division of health.
Sec. 58-2. Police powers of health commissioner and other health officers and employees.
Sec. 58-3. Inspection of and entry within buildings and grounds by health commissioner and his representatives.
Sec. 58-4. Public exposure of food for sale.
Sec. 58-5. Storage or display of food close to ground.
Sec. 58-6. Fruit vendors' refuse containers.
Sec. 58-7. Laundries regulated; permit required.
Secs. 58-8—58-40. Reserved.


## Article II. Sale of Water


Sec. 58-41. Certificate of purity.
Sec. 58-42. Inspection and permit.
Sec. 58-43. Inspection or license fee.
Sec. 58-44. Handling and disposition of fees.
Secs. 58-45—58-50. Reserved.


## Article III. Conversion Therapy Illegal


Sec. 58-51. Definitions.
Sec. 58-52. Conversion therapy prohibited.
Sec. 58-53. Enforcement.
Sec. 58-54. Civil penalty and appeal rights.
Secs. 58-55—58-60. Reserved.


## Article IV. Community Health Action Plan


Sec. 58-61. Establishing a community health action plan.
Sec. 58-62. Creation of board.
Sec. 58-63. Requirements of community health action plan.


---

***Cross references—**Animals, ch. 10; buildings and building regulations, ch. 14; environment, ch. 50; manufactured homes and trailers, Ch. 70; solid waste, Ch. 98.

**State law references—**Public health generally, W. Va. Code § 16-1-1 et seq.; powers relative to nuisances and public health, W. Va. Code § 8-12-5(13), (23), (41), (44).

## ARTICLE I. IN GENERAL

### Sec. 58-1. Compliance with rules and regulations of state division of health.

All rules and regulations promulgated by the state division of health pursuant to authority of W. Va. Code ch. 16, art. 1 (W. Va. Code § 16-1-1 et seq.) and which are effective within the city shall be complied with by all affected persons; and the health commissioner, his deputies and assistants, as local health officers within the purview of W. Va. Code ch. 16, art. 2 (W. Va. Code § 16-2-1 et seq.) are charged with the enforcement within the city of all such rules and regulations of the state division of health.
(Code 1975, § 14-1)

### Sec. 58-2. Police powers of health commissioner and other health officers and employees.

Police power is conferred upon the health commissioner and his authorized agents while in discharge of their official duties, and no person shall by threats or force attempt to intimidate or impede any one of those officers or employees while in the discharge of his duty.
(Code 1975, § 14-2)

### Sec. 58-3. Inspection of and entry within buildings and grounds by health commissioner and his representatives.

The health commissioner, his deputies and assistants, are authorized to make such inspections of buildings and grounds located within the city and for a distance of one mile beyond the city limits as may be necessary in the course of their official duties to enforce all laws, ordinances, rules and regulations relating to health and sanitation; and for such purposes the provisions of section 2-139 shall be applicable.
(Code 1975, § 14-3)

**State law references—**Authority to provide for the entering and inspection of private premises, W. Va. Code § 8-12-15; extraterritorial jurisdiction, W. Va. Code §§ 8-12-5(43), 8-12-19.

### Sec. 58-4. Public exposure of food for sale.

All meat, dressed poultry or fish, confectionery, bread, pastry or other cooked food, and berries, vegetables, fruit or other articles which may be used as human food without cooking or peeling shall not be kept exposed for sale in any street or public place, or outside of any shop or store, or in the open window or doorway of a shop or store, except under rules and regulations adopted and promulgated by the health commissioner, requiring the same to be kept covered or screened so that it shall be protected from dirt and flies.
(Code 1975, § 14-4)

### Sec. 58-5. Storage or display of food close to ground.

No article which may be used as human food shall be stored, exposed or displayed within 24 inches of the surface of any street or floor of any market house; nor shall such article be placed in any doorway or in front of any place of business or in any place accessible to dogs or other animals; but all such articles of food shall be placed upon a table or otherwise properly supported so that it, and the surface of its container or support, shall be raised at least 24 inches above the street, sidewalk, platform or landing.
(Code 1975, § 14-5)

### Sec. 58-6. Fruit vendors' refuse containers.

Vendors selling from stands or from pushcarts or other vehicles and all persons carrying on a fruit business in or upon the streets or other public places shall attach to such stands or vehicles or to their place of business a box or other receptacle to contain refuse matter incident to their business, each such receptacle to have prominently displayed on its side the words, "Place fruit skins and papers here," and to be of such form and material and to be placed in such position as the health commissioner may prescribe. The contents of each such receptacle shall be daily removed by the person in charge of the stand, store or vehicle to which it is attached.
(Code 1975, § 14-6)

### Sec. 58-7. Laundries regulated; permit required.

(a) It shall be unlawful for any person to operate any laundry where clothes are washed or cleaned, except the drivers of trucks and wagons and office clerks, without having made application for and received from the health commissioner a permit. Such application shall contain such information as the health commissioner may require for the purposes of this section.

(b) Upon receipt of such application for a permit, the health commissioner shall cause an inspection to be made of the premises where such applicant proposes to carry on the business for which the permit is sought. If upon such inspection it is found that such premises of the applicant, including all buildings, rooms or places used by the applicant in the prosecution of his business conforms to the laws of the state and the ordinances and health regulations of the city and the orders made by the health commissioner or other proper authority pursuant to such ordinances and regulations; or, if not, but upon notice is made so to conform, the health commissioner shall issue a permit to such applicant for a period of one year, conditioned upon the faithful observance of the health regulations and obedience to the ordinances of the city by the applicant during such period. The permit shall be renewable annually if, upon reinspection, it is found that the applicant conforms to the requirements of the regulations and ordinances, and official orders pursuant to such regulations and ordinances, in a manner satisfactory to the health commissioner; but as to each laundry for which a city license and the payment of a license fee may be required under chapter 18 of this Code, the applicant for a city license shall be required to present and exhibit to the city collector his permit from the public health department before the city collector may issue such license.

(c) All permits issued pursuant to this section shall expire upon June 30 of each year and shall terminate earlier upon its revocation by the public health department; and the license of such former permittee, if any, issued under chapter 18 of this Code shall forthwith terminate, become null and void and be automatically canceled.

(d) Each permit shall be posted in a conspicuous place in the establishment or place of business of the grantee and shall be subject to revocation at the option of the health commissioner for failure of the grantee named in such permit, his employees, agents or representatives, in carrying on the business or activities named in such permit, to comply with the health regulations and the ordinances of the city or for failure to comply within five days after the expiration of the order, with a written sanitary order based upon such rules and regulations or the ordinances of the city or the public health department.
(Code 1975, § 14-10)

### Secs. 58-8—58-40. Reserved.

## ARTICLE II. SALE OF WATER

### Sec. 58-41. Certificate of purity.

No person, except the West Virginia Water Service Company, shall sell or permit to be sold in the city any water, water byproduct or such water in any form or nature whatsoever without first having a certificate of the purity of such water or byproduct from the health commissioner.
(Code 1975, § 32-34)

### Sec. 58-42. Inspection and permit.

All persons who shall come under the provisions of this article shall be inspected by the health commissioner or his duly authorized agent at least once each month, and it shall be unlawful for any person to sell any water or byproduct of such water during any calendar month without having first obtained a permit from the health commissioner, and such person shall keep upon his person or posted in a conspicuous place in his place of business the permit provided for in this article.
(Code 1975, § 32-35)

### Sec. 58-43. Inspection or license fee.

Each person falling within the provisions of this article shall be required to pay for each of

the inspections provided for an inspection fee or license fee of $3.00, which inspection fee shall be collected by the person making such inspection.
(Code 1975, § 32-36)

### Sec. 58-44. Handling and disposition of fees.

The health commissioner or his duly authorized agent, making inspections, shall deliver each week to the city collector a copy of each inspection report, together with all fees collected under this article, who shall dispose of the funds so collected in the manner provided by law.
(Code 1975, § 32-37)

### Secs. 58-45—58-50. Reserved.

## ARTICLE III. CONVERSION THERAPY ILLEGAL*

### Sec. 58-51. Definitions.

*Conversion therapy* means any practices or treatments that seek to change an individual's sexual orientation or gender identity, including efforts to change behaviors or gender expressions or to eliminate or reduce sexual or romantic attractions or feelings toward individuals of the same gender. Conversion therapy shall not include counseling that provides assistance to a person undergoing gender transition, or counseling that provides acceptance, support, and understanding of a person or facilitates a person's coping, social support, and identity exploration and development, including sexual-orientation-neutral interventions to prevent or address unlawful conduct or unsafe sexual practices, as long as such counseling does not seek to change an individual's sexual orientation or gender identity.

*Medical or mental health provider* means a clinical psychologist licensed under W. Va. Code § 30-21-1 et seq.; a school psychologist licensed under W. Va. Code § 30-21-1 et seq.; a psychiatrist licensed under W. Va. Code § 30-3-1 et seq.; a clinical social worker or social worker licensed under W. Va. Code § 30-30-1 et seq.; a marriage and family therapist or associate marriage and family therapist licensed under W. Va. Code § 30-31-1 et seq.; a professional counselor or clinical professional counselor licensed under W. Va. Code § 30-31-1 et seq.; or any students, interns, volunteers, or other persons assisting or acting under the direction or guidance of any of these licensed professionals.
(Bill No. 7919, 8-2-2021)

**Editor's note—**The provisions of § 58-51, as written, are inoperative pursuant to Chiles v. Salazar, 146 S. Ct. 1010 (2026).

### Sec. 58-52. Conversion therapy prohibited.

No medical or mental health professional shall engage in conversion therapy with a minor within the city. This prohibition does not apply to a clergy member or religious counselor who is acting in a pastoral or religious capacity and not in the capacity of a medical or mental health professional.
(Bill No. 7919, 8-2-2021)

**Editor's note—**The provisions of § 58-52, as written, are inoperative pursuant to Chiles v. Salazar, 146 S. Ct. 1010 (2026).

### Sec. 58-53. Enforcement.

(a) The city solicitor shall have the authority to enforce the provisions of this article. If the city solicitor determines that a violation of this article has occurred, the city solicitor or the city solicitor's designee may mail to the medical or mental health professional written notice to immediately cease and desist the violation. If the medical or mental health professional fails to immediately cease and desist, the city solicitor or the city solicitor's designee may impose a civil fine on the medical or mental health professional as provided in section 58-54 of this Code.

(b) An individual who is the victim of an action in violation of this article may bring a civil action for appropriate injunctive relief or damages or both against the person or persons who acted in violation of this article. As used in this

*__Editor's note—__**The provisions of Art. III, §§ 58-51 to 58-54, as written, are inoperative pursuant to Chiles v. Salazar, 146 S. Ct. 1010 (2026).

subsection, "damages" includes damages for injury or loss caused by each violation of this article, including reasonable attorney fees.
(Bill No. 7919, 8-2-2021)

**Editor's note—**The provisions of § 58-53, as written, are inoperative pursuant to Chiles v. Salazar, 146 S. Ct. 1010 (2026).

### Sec. 58-54. Civil penalty and appeal rights.

(a) A violation of section 58-54 of this Code, if enforced by the city solicitor or the city solicitor's designee pursuant to section 58-53 of this Code is punishable by up to a $1,000.00 fine for each violation. Each day in violation constitutes a separate offense.

(b) A person subjected to a civil penalty under this section may appeal the civil penalty within ten days of its issuance to the municipal court. Prior to filing an appeal with the municipal court, the person shall pay the required civil penalty in full to the city collector as bond pending evidentiary hearing before and resolution of the case by the municipal court. The city collector shall issue a receipt showing the amount of the bond paid, which shall be attached with the appeal to the municipal court clerk. Failure to properly effect appeal in a timely manner constitutes waiver of the right to contest the civil penalty. A final decision from the municipal court may be appealed to circuit court in the same manner as a tax appeal, as set forth in section 110-115 of this Code.

(c) Any civil penalties assessed, which remain unpaid within 30 days of a final determination under this section shall be deemed past due and the city shall have all remedies available to the city collector for collection upon a delinquent debt.
(Bill No. 7919, 8-2-2021)

**Editor's note—**The provisions of § 58-54, as written, are inoperative pursuant to Chiles v. Salazar, 146 S. Ct. 1010 (2026).

### Secs. 58-55—58-60. Reserved.

## ARTICLE IV. COMMUNITY HEALTH ACTION PLAN

### Sec. 58-61. Establishing a community health action plan.

The City Council for the City of Charleston hereby requires the creation of a Community Health Action Plan for the City of Charleston to serve as a community-driven tool for advancing health equity at the community level.
(Bill No. 7983, 2-21-2023)

### Sec. 58-62. Creation of board.

(a) The community health advisory board is hereby established. The board is composed of 11 members as set forth herein. The board is tasked with creating a community health action plan by December 1, 2023, that meets the requirements set forth in section 58-63 of this Code.

(b) The community health advisory board is composed of the following members:

(1) The Executive Director of the Kanawha-Charleston Health Department, or his or her designee, who shall serve as the chair of the board;

(2) The Executive Director of West Virginia Health Right, or his or her designee;

(3) The Executive Director of the Partnership of African American Churches, or his or her designee;

(4) A West Virginia licensed mental health professional employed at Cabin Creek Health Systems, designated by its CEO;

(5) The CEO of CAMC Health Systems, or his or her designee;

(6) The CEO of Thomas Health Systems, or his or her designee;

(7) The Executive Director of the West Virginia Chapter of the American Heart Association, or his or her designee;

(8) The President/CEO of FamilyCare, or his or her designee;

(9) The Mayor of the City of Charleston, or his or her designee;

(10) One at-large member of the City Council of the City of Charleston, as appointed by the Mayor of the City of Charleston and confirmed by city council; and

(11) One ward representative of the City Council of the City of Charleston, as appointed by the Mayor of the City of Charleston and confirmed by city council.

(c) Each member of the board shall serve while on the board concurrently with the time in which they hold the relevant position set forth in subsection (b). Should any member be removed from their position placing them on the board, they shall be removed from the board simultaneously.
(Bill No. 7983, 2-21-2023)

**Sec. 58-63. Requirements of community health action plan.**

(a) The community health action plan required by this article shall use data on the leading causes of morbidity and mortality, disease burden inequities, social determinants of health, and community identified health equity priorities in order to:

(1) Have a vision and a goal, approved by the board;

(2) Outline strategies and tactics to accomplish health equity goals;

(3) Identify supports and resources needed to adopt equitable policies and practices;

(4) Create annual deliverables of at least three health issue focus areas and timeline for implementation with progress tracking measures;

(5) Create a coalition of citywide advocates and organizations for outreach and sustainability;

(6) Make any other recommendations to city council deemed necessary.

(b) The timeline for action required by this article shall be:

(1) Organize board within one month from passage;

(2) Draft the action plan for board approval within six months from passage;

(3) Implement the approved action plan within three months of approval; and

(4) Provide an annual review each year and report the annual review out to the city council by December 31, 2023, and each year thereafter.
(Bill No. 7983, 2-21-2023)

Chapters 59—61

**RESERVED**

Chapter 62

# HUMAN RIGHTS*

## Article I. In General


Sec. 62-1. Title.
Sec. 62-2. Declaration of policy.
Sec. 62-3. Definitions.
Secs. 62-4—62-40. Reserved.


## Article II. Human Rights Commission


Sec. 62-41. Powers and objectives.
Sec. 62-42. Composition; appointment; terms of members; expenses.
Sec. 62-43. Personnel; chair; vice-chair; secretary; liaison; meetings; quorum.
Sec. 62-44. Assistance to commission; legal and investigative services.
Sec. 62-45. Powers; functions; services.
Secs. 62-46—62-80. Reserved.


## Article III. Discriminatory Practices


Sec. 62-81. Unlawful discriminatory practices.
Sec. 62-82. Complaint, hearing procedures; issuance of cease and desist order.
Sec. 62-83. Enforcement of cease and desist order.
Sec. 62-84. Judicial review.
Secs. 62-85—62-180. Reserved.


## Article IV. Fair Housing Act


Sec. 62-181. Adoption by reference of W. Va. Code, §§ 5-11a, "The West
Sec. 62-182. Amendments to W. Va. Code, § 5-11A, "The West Virginia Fair Housing Act."
Sec. 62-183. Penalty.


---

***Editor's note—**Bill No. 7040 adopted Dec. 6, 2004, amended ch. 62 in its entirety to read as herein set out. Former ch. 62, §§ 62-1—62-181, pertained to similar subject matter, and derived from Code 1975, §§ 15-1—15-18; and Bill No. 6898, § 2-104, adopted Apr. 15, 2002.

**Cross references—**Administration, ch. 2; personnel, ch. 86.

**State law reference—**Human rights, W. Va. Code § 5-11-1 et seq.

## ARTICLE I. IN GENERAL

### Sec. 62-1. Title.

This chapter shall be known and may be cited and referred to as "The Charleston Human Rights Ordinance."
(Bill No. 7040, 12-6-2004)

### Sec. 62-2. Declaration of policy.

(a) Equal opportunity in the areas of employment, public accommodations is hereby declared to be a human right or civil right of all persons without regard to race, religion, color, national origin, ancestry, sex, age, blindness, handicap, or sexual orientation. Equal opportunity in the sale, lease, rental and financing of housing accommodations is hereby declared to be a human right or civil right of all persons without regard to race, religion, color, national origin, ancestry, sex, age, blindness, handicap, familial status, or sexual orientation.

(b) The denial of these rights of properly qualified persons is contrary to the principles of freedom and equality of opportunity and is destructive to a free and democratic society.
(Bill No. 7040, 12-6-2004; Bill No. 7275, 8-20-2007)

### Sec. 62-3. Definitions.

When used in this chapter:

*Age* means 40 or above.

*Chair* means the chair of the Charleston Human Rights Commission.

*Commission* means the Charleston Human Rights Commission.

*Discriminate* or *discrimination* means to exclude from, or fail or refuse to extend to, a person equal opportunities because of race, religion, color, national origin, ancestry, sex, age, blindness, handicap, familial status, or sexual orientation and includes "to separate" or "segregate." For the purposes of this chapter, discrimination because of race includes, but is not limited to, discrimination based on hair textures and protective hairstyles historically associated with a particular race.

*Employee* shall not include any individual employed by his parents, spouse or child, or in the domestic service of any person.

*Employer* means any person employing 12 or more persons within the city and includes an agent of such person, and its agencies. Provided, that such terms shall not be taken, understood or construed to include a private club, which, in fact, is not open to the public.

*Employment agency* includes any person regularly undertaking with or without compensation to procure, recruit, refer or place employees. A newspaper engaged in the activity of advertising in the normal course of its business shall not be deemed to be an employment agency.

*Familial status* means one or more individuals (who have not attained the age of 18 years) being domiciled with:

(1) A parent or another person having legal custody of such individual or individuals; or

(2) The designee of such parent or other person having such custody, with the written permission of such parent or other person.

The protections afforded against discrimination on the basis of familial status shall apply to any person who is pregnant or is in the process of securing legal custody of any individual who has not attained the age of 18 years. Nothing in this definition restricts advertisements of dwellings which are intended and operated for occupancy by older persons and which constitute housing for older persons.

*Handicap* means a person who:

(1) Has a mental or physical impairment which substantially limits one or more of such person's major life activities; "major life activities" includes functions such as caring for one's self, performing manual tasks, walking, seeing, hearing, speaking, breathing, learning and working;

(2) Has a record of such impairment; or

(3) Is regarded as having such an impairment.

For the purposes of this article "handicap" does not include persons whose current use of or addiction to alcohol or drugs prevents such individual from performing the duties of the job in question or whose employment, by reasons of such current alcohol or drug abuse, would constitute a direct threat to property or the safety of others.

For the purposes of this article, a person shall be considered to be blind only if his central visual acuity does not exceed 20/200 in the better eye with correcting lenses, or if his visual acuity is greater than 20/200 but is occasioned by a imitation in the field of vision such that the widest diameter of the visual field subtends an angle no greater than 20 degrees.

*Housing accommodations* means any building or portion thereof which is used or intended for use as the residence or sleeping place of one or more persons. Nothing contained in this definition or this article shall apply to the rental of a room or rooms in a rooming house occupied by the owner as a place of residence and containing no more than four rented rooms, or rooms to be rented.

*Labor organization* includes any organization which exists for the purpose, in whole or in part, for collective bargaining or for dealing with employers concerning grievances, terms or conditions of employment, or for other mutual aid or protection in relation to employment.

*Owner* shall include the owner, lessee, sublessee, assignee, manager, agents or other person having the right to sell, rent or lease any housing accommodation or real property within the city or any agent of any of these.

*Person* means one or more individuals, partnerships, associations, organizations, corporations, labor organizations, cooperatives, legal representatives, trustees, trustees in bankruptcy, receivers and other organized groups of persons.

*Place of public accommodations* means any establishment or person, as defined herein, including the city and any of its affiliated boards and commissions, or any political or civil subdivision thereof, which offers its services, goods, facilities or accommodations to the general public, but does not include any accommodations which are in their nature private.

*Protective hairstyles* include, but are not limited to, hairstyles such as braids, locks, and twists.

*Purchaser* includes any occupant, prospective occupant, lessee, prospective lessee, renter, prospective renter, buyer or prospective buyer.

*Real estate broker* includes any person, firm or corporation who, for a fee, commission or other valuable consideration, or by reason of a promise or reasonable expectation thereof, lists for sale, sells, exchanges, buys or rents, or offers or attempts to negotiate a sale, exchange, purchase or rental of real estate or an interest therein, or collects or offers or attempts to collect rent for the use of real estate or solicits for a prospective purchaser, or assists or desists in the procuring of prospects or the negotiation or closing of any transaction which does or is contemplated to result in the sale, exchange, leasing, renting or auctioning of any real estate, or negotiates, offers or attempts or agrees to negotiate a loan secured or to be secured by mortgage or other encumbrance upon transfer of any real estate for others, or any person who, for pecuniary gain or expectation of pecuniary gain, conducts a public or private competitive sale of lands or any interest in lands. In the sale of lots, the term "real estate broker" also includes any person, partnership, association or corporation employed by or on behalf of the owner or owners of lots or other parcels of real estate at a stated salary, or upon a commission, or upon a salary and commission, or otherwise, to sell such real estate, or any parts thereof, in lots or other parcels, and who shall sell or exchange, or offer or attempt or agree to negotiate the sale or exchange of any such lot or parcel of real estate. A newspaper engaged in the activity of advertising in the normal course of its business shall not be deemed to be a real estate broker.

*Real estate salesman* includes any person who, for compensation, valuable consideration or commission, or other thing of value, or by reason of a promise or reasonable expectation thereof, is employed by and operates under the supervision of real estate broker to sell, buy or offer to buy or

negotiate the purchase, sale or exchange of real estate, offers or attempts to negotiate a loan secured or to be secured by a mortgage or other encumbrance upon or transfer of real estate for others, or to collect rents for the use of real estate, or to solicit for prospective purchasers or lessees of real estate, or who is employed by a licensed real estate broker to sell or offer to sell lots or other parcels of real estate, at a stated salary, or upon a commission, or upon a salary and commission, or otherwise, to sell real estate, or any parts thereof, in lots or other parcels.

*Real property* includes real estate, lands, leaseholds, commercial or industrial buildings and any vacant land offered for sale or rent on which the construction of a housing accommodation, commercial or industrial building is intended, and any land operated as a trailer camp or rented or leased for the use, parking or storage of mobile homes or house trailers.

*Rooming house* means a house or building where there is one or more bedrooms which the proprietor can spare for the purpose of giving lodgings to such persons as he chooses to receive.

*Sexual orientation* means actual or perceived heterosexuality, homosexuality, bisexuality, or gender-related identity, appearance, or behavior of an individual, with or without regard to the individual's assigned sex at birth.

*Unlawful discriminatory practices* includes only those practices specified in section 62-81.
(Bill No. 7040, 12-6-2004; Bill No. 7275, 8-20-2007; Bill No. 7907, 6-7-2021)

**Secs. 62-4—62-40. Reserved.**

## ARTICLE II. HUMAN RIGHTS COMMISSION*

### Sec. 62-41. Powers and objectives.

The commission shall encourage and endeavor to bring about mutual understanding and respect among all racial, religious and ethnic groups within the city and shall strive to eliminate all discrimination in employment and places of public accommodations by virtue of race, religion, color, national origin, ancestry, sex, age, blindness, handicap, or sexual orientation and shall strive to eliminate all discrimination in the sale, purchase, lease, rental or financing of housing and other real property by virtue of race, religion, color, national origin, ancestry, sex, age, blindness, handicap, sexual orientation or familial status.
(Bill No. 7533, 10-1-2012)

### Sec. 62-42. Composition; appointment; terms of members; expenses.

(a) The commission shall be composed of nine members, all residents of the city and broadly representative of the groups protected by the chapter to be appointed by the mayor with the advice and consent of council, provided that in the event that any vacancy on the commission is not filled by the mayor within 90 days of the occurrence thereof, the council shall, within 60 days, take such action as is necessary to fill such vacancy.

(b) No member shall hold office in any political party.

(c) Each subsequent appointment shall be for a term of three years, and each member shall be eligible for reappointment at the expiration of his or her term.

(d) No member of the commission shall receive any salary or compensation for his or her services as such; but each member shall be reimbursed for any reasonable and necessary expenses incurred in the performance of commission services upon request and prior approval by the office of the city manager.
(Bill No. 7533, 10-1-2012)

### Sec. 62-43. Personnel; chair; vice-chair; secretary; liaison; meetings; quorum.

(a) Annually, in January of each calendar year, the commission shall hold a meeting at which it elect one of its members as chair of the

*__Editor's note—__Bill No. 7533, adopted Oct. 1, 2012, deleted the former Art. II, §§ 62-41—62-45, and enacted a new Art. II as set out herein. The former Art. II pertained to the human rights commission and derived from Bill No. 7040, 12-6-2004; Bill No. 7275, adopted 8-20-2007.

commission, and one as vice-chair and one as secretary. In the event there exists a vacancy in the position of the chair, vice-chair or secretary as mentioned in this subsection (a), the commission shall meet and elect one of its members to fill the vacant position for the duration of the term then existing. Each officer shall serve a term of one year or until their successors are elected and qualified.

(b) The commission shall comply with all applicable rules, regulations and ordinances imposed by the city.

(c) Meetings may be called by the chair or by the mayor upon written notice thereof mailed to each member not less than seven calendar days prior to the called meeting. Notwithstanding, a meeting may be called with fewer than seven days notice to members if necessary and appropriate and so long as the notice complies with the Open Governmental Proceedings Act. Any five members of the commission or a majority of the actively serving commissioners shall constitute a quorum for the transaction of business.

(d) The chair shall prepare a written agenda in advance of each scheduled commission meeting which the secretary shall provide to the office of the city clerk in a timely manner so that lawful notice can be provided in accordance with the Open Governmental Proceedings Act. The secretary shall also keep and maintain the minutes of all meetings.

(e) The commission will designate one of its members to serve as the liaison to the city, its mayor, city attorney, city manager, and other city officials and employees, and who will be responsible for interacting with such city officials and employees with regard to day to day affairs involving the commission but not requiring a vote of the commission. In the event that no such member is designated as the liaison or at any time in which there is no liaison, then the chair shall be deemed the liaison.
(Bill No. 7533, 10-1-2012)

### Sec. 62-44. Assistance to commission; legal and investigative services.

(a) The office of the city attorney shall be authorized to assist the commission in the investigation and prosecution of claims, to recommend the appointment of retained legal counsel and/or investigators to prosecute claims or provide advice and guidance to the commission, and to recommend the appointment of independent hearing examiners or counsel, all of which as may be necessary and proper. The commission, through the mayor or the mayor's designee, may also request other officers, departments and agencies of the city government to assist in the hearing of complaints before the commission and any other activity under this article which is reasonable and necessary.

(b) The office of the city clerk shall be authorized to receive complaints alleging discrimination in employment or places of public accommodations, because of race, religion, color, national origin, ancestry, handicap, sex, blindness, sexual orientation or age, and complaints alleging discrimination in the sale, purchase, lease, rental and financing of housing accommodations or real property because of race, religion, color, national origin, ancestry, handicap, sex, blindness, sexual orientation, age or familial status and to promptly forward the complaints to the chair of the commission for handling as authorized by this article. The office of the city clerk shall also promptly forward a copy of all complaints to the office of the city attorney.
(Bill No. 7533, 10-1-2012)

### Sec. 62-45. Powers; functions; services.

The commission is authorized and empowered to:

(1) Cooperate and work with federal, state, and local government officers, units, activities and agencies in the promotion and attainment of more harmonious understanding and greater equality of rights between and among all racial, religious and ethnic groups in this city.

(2) Enlist the cooperation of racial, religious and ethnic units, community and civic organizations, industrial and labor organizations and other identifiable groups of the city in programs and campaigns devoted to the advancement

of tolerance, understanding and the equal protection under the laws for all groups and peoples.

(3) Refer to the West Virginia Human Rights commission for its handling and adjudication all complaints alleging discrimination in employment or places of public accommodations, because of race, religion, color, national origin, ancestry, handicap, sex, blindness, or age, and complaints alleging discrimination in the sale, purchase, lease, rental and financing of housing accommodations or real property because of race, religion, color, sex, age, handicap, national origin, blindness, familial status, or ancestry

(4) Investigate and adjudicate all complaints filed within the city alleging discrimination in employment or places of public accommodations, because of sexual orientation, and complaints alleging discrimination in the sale, purchase, lease, rental and financing of housing accommodations or real property because of sexual orientation.

(5) Request, as authorized by this article, that the office of the city attorney assist the commission in the investigation and prosecution of claims, recommend the appointment of retained legal counsel and/or investigators to prosecute claims or provide advice and guidance to the commission, and recommend the appointment of independent hearing examiners or counsel, all of which as may be necessary and proper.

(6) Hold and conduct public or private hearings on complaints, matters and questions properly before the commission, so long as consistent with state law and as authorized by this article, relating to discrimination in employment or places of public accommodations, because of sexual orientation, and complaints alleging discrimination in the sale, purchase, lease, rental and financing of housing accommodations or real property because of sexual orientation. The commission may in furtherance of the objectives, functions and services contemplated by the provisions of this article:

a. Issue cease and desist orders against any person found, after a public or private hearing, to have violated the provisions of this article or the rules and regulations of the commission;

b. Apply to the Circuit Court of Kanawha County to issue subpoenas and subpoenas duces tecum upon the concurrence of at least five members of the commission; administer oaths and take the testimony of any person under oath; and make reimbursement for travel and other reasonable and necessary expenses in connection with such attendance;

c. Furnish copies of hearing records to parties involved therein upon their payment of the reasonable costs thereof to the commission;

d. Enter into conciliation agreements on behalf of the city;

e. Apply to a court of competent jurisdiction for enforcement of any conciliation agreement or consent order by seeking specific performance of such agreement or consent order, on behalf of the city;

f. Apply to any court of competent jurisdiction, or any federal, state or local agency, for injunctive or other relief, on behalf of the city, in any matters falling within the scope of the commission's functions, upon the concurrence of five members of the commission.

(7) Recommend to the mayor and council policies, procedures, practices and legislation in matters and questions affecting human relations.

(8) To prepare a written report on its work, functions and services for each year ending

on June 30 and to deliver copies thereof to the mayor on or before December 1 next thereafter.

(9) Request, as authorized by this article, that the office of the city clerk receive complaints alleging discrimination in employment or places of public accommodations, because of race, religion, color, national origin, ancestry, handicap, sex, blindness, sexual orientation or age, and complaints alleging discrimination in the sale, purchase, lease, rental and financing of housing accommodations or real property, because of race, religion, color, national origin, ancestry, handicap, sex, blindness, sexual orientation, age or familial status, and to promptly forward the complaints to the chair of the commission for handling as authorized by this article. Request that a copy of all complaints shall also be promptly forwarded to the office of the city attorney.

(10) To promulgate administrative rules and regulations implementing the powers and authority hereby vested in the commission including, but not limited to, such rules governing elections, tenure, the filing, investigation and adjudication of complaints, alternative dispute resolution methods, hearings, appeals, final order and certifications.

(11) To do all other acts and deeds necessary and proper to carry out and accomplish effectively the objectives, functions and services contemplated by the provisions of this article.

(12) To create such advisory agencies and conciliation councils within the city as in its judgment will aid in effectuating the purposes of this article; to study the problem of discrimination in all or specific fields or instances of discrimination because of race, religion, color, national origin, ancestry, sex, age, blindness, handicap, sexual orientation or familial status; to foster, through community effort or otherwise, goodwill, cooperation and conciliation among the groups and elements of the population of the city and to make the recommendations to the commission for the development of policies and procedures, and for programs of formal and informal education, which the commission may recommend to the appropriate city agency. Such advisory agency and conciliation councils shall be composed of representative residents serving without pay. The commission may itself make the studies and perform the acts authorized by this subsection. It may, by voluntary conferences with parties in interest, endeavor by conciliation and persuasion to eliminate discrimination in all stated fields and to foster goodwill and cooperation among all elements of the population of the city.

(13) To seek and enlist the cooperation of private, charitable, religious, labor and civic and benevolent organizations for the purposes of this section.

(14) Issue such publications and such results of investigation and research as in its judgment will tend to promote goodwill and minimize or eliminate discrimination; however, the identity of the parties involved shall not be disclosed.

(Bill No. 7533, 10-1-2012)

**Secs. 62-46—62-80. Reserved.**

## ARTICLE III. DISCRIMINATORY PRACTICES

### Sec. 62-81. Unlawful discriminatory practices.

It shall be an unlawful discriminatory practice, unless based upon a bona fide occupational qualification.

(1) For any employer to discriminate against an individual with respect to compensation, hire, tenure, terms, conditions or privileges of employment on the basis of race, religion, color, national origin, ancestry, sex, age, blindness, handicap, or sexual orientation. Provided, that it

shall not be an unlawful discriminatory practice for an employer to observe the provisions of any bona fide pension, retirement, group or employee insurance or welfare benefit plan or system not adopted as a subterfuge to evade the provisions of this subsection (1).

(2) For any employer, employment agency or labor organization, prior to the employment or admission to membership, to:

a. Elicit any information or make or keep a record of or use any form of application or application blank containing questions or entries concerning the race, religion, color, national origin, ancestry, handicap, sex, blindness, age, or sexual orientation of any applicant for employment or membership, except for such forms which shall be kept separate from the application blanks for the administration of any bona-fide affirmative action plan, that is in accordance with state and federal laws and regulations, or for the purpose of complying with any state or federal statute, or rule or regulation issued by any agency of the state or federal government, or for the purpose of making reports required by agencies of the state or federal government;

b. Print or publish or cause to be printed or published any notice or advertisement relating to employment or membership indicating any preference, limitation, specification or discrimination based upon race, religion, color, national origin, ancestry, handicap, sex, blindness, age, or sexual orientation; or

c. Deny or limit, through a quota system, employment or membership because of race, religion, color, national origin, ancestry, handicap, sex, blindness, age, or sexual orientation.

(3) For any labor organization because of race, religion, color, national origin, ancestry, handicap, sex, blindness, age, or sexual orientation of any individual to deny full and equal membership rights to any individual or otherwise to discriminate against such individuals with respect to hire, tenure, terms, conditions or privileges of employment or any other matter, directly or indirectly related to employment.

(4) For an employer, labor organization, employment agency or any joint labor management committee controlling apprentice training programs to:

a. Select individuals for an apprentice training program on any basis other than their qualifications as determined by objective criteria which permit review.

b. Discriminate against any individual with respect to his right to be admitted to or participate in a guidance program, an apprenticeship training program, on-the-job training program, or other occupational training or retraining program.

c. Discriminate against any individual in his pursuit of such programs or to discriminate against such a person in the terms, conditions or privileges of such programs.

d. Print or circulate or cause to be printed or circulated any statement, advertisement or publication; or to use any form of application for such programs; or to make any inquiry in connection with such program which expresses, directly or indirectly, discrimination or any intent to discriminate, unless based upon a bona fide occupational qualification.

(5) For any employment agency to fail or refuse to classify properly, refer for em-

ployment, or otherwise to discriminate against any individual because of his race, religion, color, national origin, ancestry, handicap, sex, blindness, age, or sexual orientation.

(6) For any person being the owner, lessee, proprietor, manager, superintendent, agent or employee of any place of public accommodations to:

a. Refuse, withhold from or deny to any individual because of his race, religion, color, national origin, ancestry, handicap, sex, blindness, age, or sexual orientation, either directly or indirectly, any of the accommodations, advantages, facilities, privileges or services of such place of public accommodations.

b. Publish, circulate, issue, display, post or mail, either directly or indirectly, any written or printed communication, notice or advertisement to the effect that any of the accommodations, advantages, facilities, privileges or services of such place shall be refused, withheld from or denied to any individual on account of race, religion, color, national origin, ancestry, handicap, sex, blindness, age, or sexual orientation, or that the patronage or custom thereat of any individual belonging to or purporting to be of any particular race, religion, color, national origin, ancestry, sex, age, or sexual orientation or who is blind or handicapped is unwelcome, objectionable, not acceptable, undesired or not solicited.

(7) For any person, employer, employment agency, labor organization, owner, real estate broker, real estate salesman or financial institution to:

a. Engage in any form of threats or reprisal, or to engage in, or hire, or conspire with others to commit acts or activities of any nature, the purpose of which is to harass, degrade, embarrass or cause physical harm or economic loss, or to aid, abet, incite, compel or coerce any person to engage in any of the unlawful discriminatory practices defined in this section.

b. Willfully obstruct or prevent any person from complying with the provisions of this article, or to resist, prevent, impede or interfere with the commission or any of its members or representatives in the performance of duty under this article.

c. Engage in any form of reprisal or otherwise discriminate against any person who has opposed any practices or acts forbidden under this article or because he has filed a complaint, testified or assisted in any proceeding under this article.

(Bill No. 7040, 12-6-2004; Bill No. 7275, 8-20-2007)

**State law references—**Unlawful discriminatory practices, W. Va. Code § 5-11-9; housing discrimination, W. Va. Code § 5-11A-1 et seq.

## Sec. 62-82. Complaint, hearing procedures; issuance of cease and desist order.

(a) Any individual claiming to be aggrieved by an alleged unlawful discriminatory practice shall make, sign, and file with the commission a verified complaint, which shall state the name and address of the person, employer, labor organization, employment agency, owner real estate broker, real estate salesman, or financial institution alleged to have committed the unlawful discriminatory practice complained of, and which shall set forth the particulars thereof and contain such other information as may be required by the commissioner's rules and regulations. The commission upon its own initiative shall, in like manner, make, sign and file such complaint. Any employer, whose employees, or some of them, hinder or threaten to hinder compliance with the provisions of this article, shall file with the commission a verified complaint, asking for assistance by conciliation or other remedial action, no hearings, orders or other actions shall be held, made or taken by the commission against such

employer. Any complaint filed pursuant to this article must be filed within 365 days after the alleged act of discrimination.

(b) After the filing of any complaint, or whenever there is reason to believe that an unlawful discriminatory practice has been committed, the commission shall make a prompt investigation in connection therewith. In connection with such investigation the director or his/her designated representative or the commission's legal staff shall have authority to request the commission, or the chair acting in the name of the commission, to apply to the Circuit Court of Kanawha County, West Virginia to issue subpoenas and subpoenas duces tecum upon the concurrence of at least five members of the commission.

(c) If it is determined after such investigation that no probable cause exists for substantiating the allegations of the complaint, the commission shall, within ten days from such determination, cause to be issued and served upon the complainant written notice of such determination; and the complainant or his attorney may, within ten days after such service, file with the commission a written request for a meeting with the commission to show probable cause for substantiating the allegations of the complaint. If it is determined after such investigation or meeting that probable cause exists for substantiating the allegations of the complaint, the commission shall immediately endeavor to eliminate the unlawful discriminatory practices complained of by conference, conciliation and persuasion. The members of the commission and its staff shall not disclose what has transpired in the course of such endeavors. Provided, that the commission may publish or release the terms of settlement or conciliation when the complaint has been conciliated or settled.

(d) In case of failure so to eliminate such practice or in advance thereof, if in the judgment of the commission circumstances so warrant, the commission shall cause to be issued and served a written notice, together with a copy of such complaint as the same may have been amended, in the manner provided by law for the service of summons in civil actions, requiring the person, employer, labor organization, employment agency, owner, real estate broker, real estate salesman or financial institution named in such complaint, hereinafter referred to as respondent, to answer the charges of such complaint at a public or private hearing before the commission in the county where the respondent resides or transacts business at a time and place so specified in such notice; provided, however, that such written notice shall be served at least thirty days prior to the time set for the hearing. The commission or its chair shall delegate the power and authority to conduct the hearing to a hearing examiner(s) who may be an individual commissioner; a panel of commissioners; a hearing examiner, who shall be an attorney duly licensed to practice law in West Virginia; a panel of hearing examiners; or a panel composed of any combination of commissioners and hearing examiners.

(e) The case in support of the complaint shall be presented before the commission by one of its attorneys or agents, but no one presenting the case in support of the complaint shall counsel or advise the commission, commissioner or hearing examiner who hears the case. The respondent may file a written, verified answer to the complaint and appear at such hearing in person or otherwise, with or without counsel, and submit testimony and evidence. Except as provided in this article, all of the pertinent provision of W. Va. Code Article 29A-5 shall govern the hearing and the administrative procedures in connection with and following such hearing.

(f) If, after such hearing and consideration of all of the testimony, evidence and record in the case, the commission finds that a respondent has engaged in or is engaging in any unlawful discriminatory practice as defined in this article, the commission shall issue and cause to be served on such respondent an order to cease and desist from such unlawful discriminatory practice and to take such affirmative action, including but not limited to, hiring, reinstatement or upgrading of employees, with or without back pay, admission or restoration to membership in any respondent labor organization, or the admission to full and equal enjoyment of the services, goods, facilities, or accommodations offered by any respondent place of public accommodation, and the sale, purchase, lease, rental or financial assistance to any complainant otherwise qualified for the housing ac-

commodation or real property denied in violation of this article, as in the judgment of the commission, will effectuate the purposes of this article, and including a requirement for report of the manner of compliance, payment of expenses and lost wages of any witness called by the complainant or commission, payment to the complainant of reasonable attorney fees, expert witness fees, and legal costs, and payment to the commission of its costs in conducting the hearing; and any other legal or equitable relief as the commission deems appropriate. Such order shall be accompanied by findings of fact and conclusions of law as specified in W. Va. Code § 29A-5-3.
(Bill No. 7040, 12-6-2004)

### Sec. 62-83. Enforcement of cease and desist order.

In the event any person fails to obey a lawful cease and desist order of the commission, the commission may seek an order of a court of competent jurisdiction for its enforcement in a proceeding as provided in this section. Such proceeding shall be initiated by the filing of a petition in such court, together with a written transcript of the entire record of the hearing before the commission. Notice of the filing of such petition, together with a copy thereof, shall be served upon the respondent in the manner provided by law for the service of summons in civil actions. No hearing shall be held on such petition within 20 days of the date of service thereof on the respondent. The court may grant such temporary relief or restraining order as it deems just and proper and shall make and enter upon the pleadings, testimony and proceedings set forth in such transcript an order enforcing, modifying and enforcing as so modified, or setting aside in whole or in part the order of the commission. All such proceedings shall be heard and determined by the court.
(Bill No. 7040, 12-6-2004)

### Sec. 62-84. Judicial review.

Judicial review of a final decision of the commission shall be by a certiorari as set forth in W. Va. Code §§ 53-3-1 through 53-3-6, or in such other manner as may be allowed under the laws of the state.
(Bill No. 7040, 12-6-2004)

### Secs. 62-85—62-180. Reserved.

## ARTICLE IV. FAIR HOUSING ACT

### Sec. 62-181. Adoption by reference of W. Va. Code, §§ 5-11a, "The West Virginia Fair Housing Act."

The City of Charleston adopts by reference W. Va. Code, §§ 5-11A, sections 1—20, "The West Virginia Fair Housing Act", as presently and as the same may be amended from time to time hereafter, and incorporates it completely as if set out in full, subject to the particular additions, deletions and amendments set forth in this article.
(Bill No. 7040, 12-6-2004)

### Sec. 62-182. Amendments to W. Va. Code, § 5-11A, "The West Virginia Fair Housing Act."

*W. Va. Code, § 5-11A* is amended throughout by striking out the words "West Virginia Fair Housing Act" and inserting in lieu thereof the words "City of Charleston Fair Housing Act".

*W. Va. Code, § 5-11A* is amended throughout by striking out the words "Attorney General" and inserting in lieu thereof the words "Commission's Attorney".

*W. Va. Code, § 5-11A* is amended throughout by striking out the words "Administrative Law Judge" and inserting in lieu thereof the words "Hearing Examiner".

*W. Va. Code, § 5-11A-2* is amended by striking out the entire section and inserting in lieu thereof the following:

> Equal opportunity in the areas of employment and public accommodations is hereby declared to be a human right or civil right of all persons without regard to race, religion, color, national origin, ancestry, sex, age, blindness, sexual orientation or handicap. Equal opportunity in the sale, lease, rental and financing of housing accommodations is hereby declared to be a human right or civil right of all persons with-

out regard to race, religion, color, national origin, ancestry, sex, age, blindness, handicap, sexual orientation or familial status.

The denial of these rights of properly qualified persons is contrary to the principles of freedom and equality of opportunity and is destructive to a free and democratic society.

*W. Va. Code, § 5-11A-9* is amended on the second paragraph, line seven (7), following the words "held in the", by striking out the word "county" and inserting in lieu thereof the words "City of Charleston".

*W. Va. Code, § 5-11A-12* is amended by striking out the first paragraph and inserting in lieu thereof the following:

The commission may request the Kanawha County Circuit Court to issue subpoenas and order discovery in aid of investigations and hearings under this chapter. Such subpoenas and discovery may be ordered to the same extent and subject to the same limitations as would apply if the subpoenas or discovery were ordered or served in aid of a civil action in the Kanawha County Circuit Court.

*W. Va. Code, § 5-11A-17* is amended following the words "published in the" by striking out the words "state register" and inserting in lieu thereof the words "city clerk's office."

*W. Va. Code, § 5-11A-20* is amended on the last sentence by striking out the following:

The commission shall comply with article three, chapter twenty-nine-a of this code when promulgating rules.

(Bill No. 7040, 12-6-2004; Bill No. 7275, 8-20-2007)

**Sec. 62-183. Penalty.**

Any person who willfully resists, prevents, impedes or interferes with the commission, its members, agents or agencies in the performance of duties pursuant to this chapter or willfully violates a final order of the commission, shall be fined not less than $100.00 nor more than $500.00, or imprisoned not exceeding 30 days, or both; but seeking judicial review of an order shall not be deemed to be such willful conduct.

(Bill No. 7040, 12-6-2004)

**Cross reference—**Law enforcement, ch. 66.

Chapters 63, 64

**RESERVED**

Chapter 65

# LAND REUSE AGENCY

## Article I. Creation


Sec. 65-1. Establishment and divisions.
Sec. 65-2. Purpose.
Sec. 65-3. Board of directors.
Sec. 65-4. Officers of the board.
Sec. 65-5. Public input.
Sec. 65-6. Official filing with secretary of state.
Secs. 65-7—65-9. Reserved.


## Article II. Powers and Duties


Sec. 65-10. General.
Sec. 65-11 Divisions of CLRA.
Sec. 65-12. Redevelopment division.
Sec. 65-13. Conservation division.
Sec. 65-14. Priorities and management.
Sec. 65-15. Acquiring property through tax sales.
Secs. 65-16—65-19. Reserved.


## Article III. Board Meetings and Activities


Sec. 65-20. Regular and special meetings.
Sec. 65-21. Public records, public access, and ethics.
Sec. 65-22. Resident input.
Sec. 65-23. Annual report.

## ARTICLE I. CREATION

### Sec. 65-1. Establishment and divisions.

There is hereby established, pursuant the chapter 31, article 18E of the West Virginia Code, the "Charleston Land Reuse Agency," hereinafter also referred to as the "Charleston LRA" or "CLRA." The Charleston LRA shall be composed of two divisions: (1) the redevelopment division; and (2) the conservation division.
(Bill No. 7829, 8-19-2019)

### Sec. 65-2. Purpose.

The Charleston LRA shall promote the productive use of property by identifying available properties suitable for public space, conservation, housing, and commercial use and pursuing the acquisition, management, inventory, and disposition of those properties according to the priorities set forth in this Chapter. The CLRA may exercise all powers granted by this Code and chapter 31, article 18E of the West Virginia Code.
(Bill No. 7829, 8-19-2019)

### Sec. 65-3. Board of directors.

(a) The Charleston Land Reuse Agency shall operate under the control of a board of directors composed of seven members, as follows:

(1) The mayor, or his or her designee;

(2) The city manager, or his or her designee;

(3) Two members of city council, appointed by the mayor, for terms coinciding with their term on city council; and

(4) Three members of the general public, who are residents of Charleston, appointed by the mayor with the advice and consent of city council.

(b) The three members of the general public appointed to the board shall serve terms of four years.

(c) The three members of the general public shall each have expertise in one or more of the following areas:

(1) Real estate transactions or financing;

(2) Development of commercial or residential property;

(3) Establishment, development, management, or use of public lands;

(4) Land conservation;

(5) Housing; or

(6) Public safety.

(d) Each member shall continue in office until a successor is duly appointed, except in the event of a member's removal, death, or delivery of written resignation to council. In the case of such a vacancy, a new member shall be appointed to serve the remainder of the term. If the mayor or city manager no longer holds that position, then the position they or their designee holds on the board is immediately declared vacant and filled by the person's duly qualified successor.

(e) Members of the board shall serve without compensation. Any member of the board who is an employee of the city may spend regular work hours on matters related to the board and receive his or her regular salary, as approved by the employee's direct supervisor.

(f) In addition to the voting members of the Board stated in this section, the following persons shall be non-voting ex officio members to provide advice to the board: the city attorney, the planning director, the building commissioner, and the director of the mayor's office of community and economic development. The board may request assistance from any city department or employee, as necessary.
(Bill No. 7829, 8-19-2019; Bill No. 7980, 12-5-2022)

**Editor's note—**Bill No. 7980, adopted Dec. 5, 2022, amended § 65-3 and in doing so changed the title of said section from "Board" to "Board of directors," as set out herein.

### Sec. 65-4. Officers of the board.

The members of the board shall annually select from among their members a chair, vice chair, secretary, treasurer, and any other officers as the board determines.
(Bill No. 7829, 8-19-2019)

**Sec. 65-5. Public input.**

In addition to the public members of the board of the Charleston Land Reuse Agency, the residents of Charleston shall have an opportunity to provide written or oral input into all decisions of the CLRA at the regular meetings held by the CLRA. In addition, the employees of the CLRA shall generally be available to answer resident questions and receive input.
(Bill No. 7829, 8-19-2019)

**Sec. 65-6. Official filing with secretary of state.**

Upon the effective date of this section, the clerk of the city council shall file a copy of the ordinance with the West Virginia Housing Development Fund and the West Virginia Secretary of State.
(Bill No. 7829, 8-19-2019)

**Secs. 65-7—65-9. Reserved.**

## ARTICLE II. POWERS AND DUTIES

**Sec. 65-10. General.**

(a) The Charleston Land Reuse Agency shall have all the powers necessary and convenient to carry out and effectuate the purposes and provisions of this chapter and chapter 31, article 18E of the West Virginia Code. The powers may be authorized by the board or delegated to the staff of the CLRA pursuant to board rules. The powers include, but are not limited to, the following:

(1) To adopt, amend, and repeal bylaws, policies, and procedures for the regulation of its affairs and the conduct of its business, including duties of officers, attendance and participation of members in regular and special meetings, a procedure to remove a member by a majority vote for failure to comply with a rule, general terms and conditions for consideration to be received for the transfer of real property and interests in real property, and other matters necessary to govern the conduct of the CLRA;

(2) To sue and be sued in its own name and be a party to a civil action, including in any action to clear title to property or expedite quiet title actions;

(3) To adopt a seal and to alter the same;

(4) To borrow from federal government funds, from the state, from private lenders, from municipalities, or from counties, as necessary, for the operation and work of the CLRA;

(5) To issue negotiable revenue bonds and notes according to the provisions of chapter 31, article 18E of the West Virginia Code;

(6) To procure insurance or guarantees from the federal government or the state on the payment of debt incurred by the CLRA and pay premiums in connection with the insurance or guarantee;

(7) To hire staff, including legal counsel, and to utilize the staff of other city departments as approved by the mayor, including the city Attorney's Office;

(8) To enter into contracts and other instruments necessary, incidental, or convenient to the performance of its duties and the exercises of its powers, including to enter into contracts and intergovernmental cooperation agreements with municipalities or counties for the performance of functions by municipalities or counties on behalf of the CLRA or by the CLRA on behalf of the city;

(9) To make and execute contracts and other instruments necessary or convenient to the exercise of powers of the CLRA. Any contract or instrument signed shall be executed by and for the CLRA if the contract or instrument is signed by both (A) the chair or vice-chair of the CLRA Board and (B) the secretary or treasurer of the CLRA Board;

(10) To procure insurance against losses in connection with the real property, assets, or activities of the agency;

(11) To invest money of the CLRA in instruments, obligations, securities, or property and to name and use depositories for its money;

(12) To enter into contracts for the management of, the collection of rent from, or the donation or sale of real property to the CLRA;

(13) To design, develop, construct, demolish, reconstruct, deconstruct, rehabilitate, renovate, relocate, and otherwise improve real property or rights or interests in real property;

(14) To fix, charge, and collect rents, fees, and charges for the use of real property of the CLRA and for services provided by the CLRA;

(15) To grant or acquire licenses, easements, leases, or options with respect to real property;

(16) To enter into partnerships, joint ventures, and other collaborative relationships with municipalities, counties, and other public and private entities for the ownership, management, development, and disposition of real property;

(17) To organize and reorganize the executive, administrative, clerical, and divisions of the CLRA;

(18) To hold title to property in its own name;

(19) To acquire property in any lawful way, including by acquiring an interest in tax delinquent properties through regular tax sale, right of first refusal authority, or post-sale where no person bids on a property, as authorized in West Virginia Code;

(20) To coordinate and cooperate with other entities, including, but not limited to, public utilities and county-level agencies or departments, to improve data sharing in order to help determine vacant and rental properties;

(21) To file liens against property where debts or fines are owed to the LRA or city, and to enter into any agreements deemed beneficial by the board to waive or modify those liens, debts, or fines; and

(22) To do all other things necessary or convenient to achieve the objectives and purposes of the CLRA, as further stated throughout this chapter.

(b) In order to promote the efficient operation of the CLRA, all of the CLRA's funds shall be placed in a special revenue fund in the city treasury hereby established to be known as the CLRA Fund, along with any subaccounts deemed necessary by the board.
(Bill No. 7829, 8-19-2019)

**Sec. 65-11. Divisions of CLRA.**

The CLRA shall initially be composed of two divisions with distinct focuses, as follows: (1) the redevelopment division; and (2) the conservation division. The Board shall work with the staff of the CLRA, which may be partially or solely composed of city employees who work for another city department, to determine which division property obtained or sought to be obtained by the CLRA fits into with the understanding that the board may adjust any determination at a later date. Furthermore, the divisions may work together on projects and plans.
(Bill No. 7829, 8-19-2019)

**Sec. 65-12. Redevelopment division.**

The CLRA redevelopment division shall focus on properties in residential and commercial areas of the city that the CLRA owns or could own with the goal of rehabilitating the neighborhood and general area, in support of policies adopted by the City of Charleston, including the development and conservation goals contained in the comprehensive plan. The redevelopment division may recommend to the board that the CLRA acquire property, convey or lease property owned by the CLRA, create land lease agreements for property owned by the CLRA, work with developers to create new redevelopment on CLRA owned property, or make any other recommendation regarding the acquisition, disposal, or develop-

ment of property. The CLRA redevelopment division shall work with the Charleston Urban Renewal Authority (CURA) to assist in the planning and development of relevant property owned by CURA.
(Bill No. 7829, 8-19-2019; Bill No. 7991, 12-18-2023)

**Sec. 65-13. Conservation division.**

The CLRA conservation division shall focus on properties across the city that the CLRA owns or could own with the goal of rehabilitating the area through land conservation, rather than development, in support of policies adopted by the City of Charleston, including the development and conservation goals contained in the comprehensive plan. The conservation division may recommend to the board that the CLRA acquire property, maintain, improve and preserve public trust lands, proposals to foster the donation of public trust lands to the city, to encourage the monetary support for public trust lands and to maintain in trust lands and moneys which are owned by or contributed to the city for the purposes of this division.

"Public trust lands" for purposes of this chapter shall mean and include: lands, easements, leases or any other interest in real property, whether possessory or nonpossessory, having scenic, recreation, historic, woodland, forestry, conservation, preservation or cultural value which are owned or acquired by the city. Public trust lands may include conservation and preservation easements as provided in W. Va. Code, Ch. 20, Art. 12.
(Bill No. 7829, 8-19-2019; Bill No. 7991, 12-18-2023)

**Sec. 65-14. Priorities and management.**

The Charleston Land Reuse Agency shall act in accordance with the city's comprehensive plan, Imagine Charleston, and any other development plans adopted by the CLRA or the city council in the future.

In order to promote transparency, the CLRA shall maintain and make available for public review and inspection an inventory of real property held by the CLRA. The CLRA shall evaluate each property it owns, uses, disposes of, or studies for its potential as a purely public space, as a location for housing, as a conservation area, and as a location for retail, commercial and industrial activities.

In order to properly manage the CLRA, the board shall identify financing options and grant opportunities on an ongoing basis, as authorized by § 31-18E-11 of the Code of West Virginia.
(Bill No. 7829, 8-19-2019)

**Sec. 65-15. Acquiring property through tax sales.**

(a) Pursuant to West Virginia Code § 31-18E-9, the CLRA may acquire an interest in tax-delinquent property through the provisions of chapter 11A of the West Virginia Code. The CLRA may exercise all of the authority granted by chapter 31, article 18E of West Virginia Code, including, but not limited to, obtaining lists of tax-delinquent properties, purchasing tax liens for unredeemed property, exercising the right of first refusal on eligible properties, and entering into similar arrangements to obtain property.

(b) In the event that the CLRA uses its right of first refusal to obtain tax-delinquent property, the CLRA shall notify adjacent property owners of the property acquisition pursuant to the requirements of West Virginia Code § 31-18E-9. For the purposes of this requirement, "adjacent" means that the property acquired shares a boundary with the other property. There is no requirement to make notice to other property holders nearby who do not share a boundary with the property so acquired. If more than one adjacent property owner responds with an interest in purchasing the property within the time period authorized by West Virginia Code § 31-18E-9, the CLRA shall provide an additional time period within which the owners may submit bids on the property and the property shall be sold to the highest bidder. The CLRA may adopt a policy governing this process that conforms with West Virginia Code § 31-18E-9 and this chapter.

(c) Notwithstanding the provisions of subsection (b) of this section, any property obtained by the CLRA through any means other than the right of first refusal on tax sales and any property

obtained by right of first refusal where an adjacent land owner does not timely express the desire to purchase the property may still be conveyed to one or more adjacent land owners through the processes adopted by the CLRA and without the restrictions contained in West Virginia Code § 31-18E-9(g).
(Bill No. 7829, 8-19-2019)

**Secs. 65-16—65-19. Reserved.**

## ARTICLE III. BOARD MEETINGS AND ACTIVITIES

### Sec. 65-20. Regular and special meetings.

(a) The CLRA Board shall meet in regular session according to a schedule adopted by the board.

(b) The CLRA board may be convened by the chair or upon written notice signed by a majority of the members.

(c) The CLRA board must have a quorum present to conduct business. A majority of the board, excluding vacancies, constitutes a quorum. A member must be physically present at a meeting for the purposes of establishing a quorum.

(d)(1) Except as provided in this subsection, action of the board is by the affirmative vote of a majority of the board that is present and voting.

(2) Action of the board on the following matters must be approved by a majority of the entire board membership:

a. Adoption of bylaws;

b. Adoption of rules under West Virginia Code § 31-18E-5(d);

c. Incurring of debt;

d. Adoption or amendment of the annual budget; and

e. Sale, lease, encumbrance, or alienation of real property or personal property with a value of more than $50,000.

(3) A resolution under West Virginia Code § 31-18E-14, relating to dissolution of the CLRA, must be approved by two-thirds of the entire board membership.
(Bill No. 7829, 8-19-2019)

### Sec. 65-21. Public records, public access, and ethics.

(a) The CLRA board shall keep minutes and a record of its proceedings.

(b) The CLRA is subject to chapter 6, article 9A of the Code of West Virginia, relating to open meetings.

(c) The CLRA is subject to chapter 29B of the Code of West Virginia, relating to access to public records.

(d) The CLRA Board and employees are subject to Chapter 6B of the Code of West Virginia, relating to ethics and conflicts of interest. The CLRA Board may adopt additional requirements with respect to disclosures and conflicts of interests.
(Bill No. 7829, 8-19-2019)

### Sec. 64-22. Resident input.

In addition to all other public access and transparency provisions of this chapter, as well as having resident members of the board, the CLRA shall offer a public portion at each regular meeting during which residents may speak about any item on the meeting agenda. The CLRA shall also hold at least two public meetings per year in a Charleston neighborhood where it listens to resident concerns and suggestions without a specific agenda of the CLRA.
(Bill No. 7829, 8-19-2019)

### Sec. 65-23. Annual report.

The CLRA shall submit an audit of income and expenditures, together with a report of its activities for the preceding fiscal year to the West Virginia Housing Development Fund within 120 days after the end of the fiscal year. A copy of the report shall be submitted to the city council and any political subdivision with which the CLRA has an intergovernmental agreement.
(Bill No. 7829, 8-19-2019)

# Chapter 66

# LAW ENFORCEMENT*

## Article I. In General

Secs. 66-1—66-30. Reserved.

## Article II. Police Department

### Division 1. Generally


Sec. 66-31. Chief of police.
Sec. 66-32. Chain of command; obedience to orders.
Sec. 66-33. Police manual adopted; where filed and available for inspection; violations; short title.
Sec. 66-34. Updating manual provisions.
Sec. 66-35. Policemen's civil service commission.
Sec. 66-36. Policemen's pension and relief fund; trustees.
Sec. 66-37. Workers' compensation; pay of police officers injured in performance of duty.
Sec. 66-38. Contribution toward police officers' uniforms.
Sec. 66-39. Sale of abandoned property recovered by police.

Secs. 66-40—66-60. Reserved.

### Division 2. Duty Hours, Holidays and Other Leave


Sec. 66-61. Daily and weekly duty hours; eight-hour shift; overtime pay.
Sec. 66-62. Daily and weekly duty hours; twelve-hour shift; overtime pay.
Sec. 66-63. Vacation leave.
Sec. 66-64. Legal holidays.
Sec. 66-65. Sick leave.
Sec. 66-66. Funeral leave with pay.
Sec. 66-67. Immunizations.

Secs. 66-68—66-90. Reserved.

### Division 3. School Crossing Guards


Sec. 66-91. Authorized to be appointed by mayor, for assignment by chief of police.
Sec. 66-92. Rules and regulations; compensation and hours of duty.
Sec. 66-93. Powers and duties; violations; training.
Sec. 66-94. Uniforms and equipment.

Secs. 66-95—66-110. Reserved.

### Division 4. Citizens Commission of the Charleston Mounted Police Patrol


Sec. 66-111. Created.
Sec. 66-112. Membership.
Sec. 66-113. General purpose.
Sec. 66-114. Declaration of council.

Secs. 66-115—66-150. Reserved.

## Article III. City Jail


Sec. 66-151. Penalties.


---

*__Cross references—__Administration, ch. 2; courts, ch. 38; emergency services, ch. 46.

Sec. 66-152. Payment of fine; discharge of prisoners.
Sec. 66-153. Escape of prisoners generally.
Sec. 66-154. City officers and employees not to permit escapes.
Sec. 66-155. Giving prohibited articles to prisoners.

## ARTICLE I. IN GENERAL

**Secs. 66-1—66-30. Reserved.**

## ARTICLE II. POLICE DEPARTMENT*

### DIVISION 1. GENERALLY

**Sec. 66-31. Chief of police.**

The chief of police shall be the commanding officer of the police department and shall be responsible for the administration, training, discipline and morale of the members of the department and for their effective deployment and utilization to preserve and maintain law and order in the city, and beyond the city limits in those areas which are within the police jurisdiction of the city as provided in section 85 of the city's Charter and as further provided in W. Va. Code §§ 8-12-5(32), (33), (43) and 8-12-19 and to enforce all applicable provisions of state law, this Code and other ordinances, rules and regulations of the city.
(Code 1975, § 22-1)

**Cross reference—**Officers and employees, § 2-131 et seq.

**Sec. 66-32. Chain of command; obedience to orders.**

The chain of command within the police department shall flow through the chief of police to the other officers and police officers downward in order of rank and seniority within rank; and subordinates shall have the powers and perform the duties of their immediate superiors when such superiors are absent or disabled. Each member of the police department shall obey all lawful orders of his superiors in the chain of command, and any disobedience to or failure to comply with any such order shall subject the member to such disciplinary action or penalty that may be set forth in the police manual.
(Code 1975, § 22-2)

*__State law references—__Police departments generally, W. Va. Code § 8-14-1; police department authorized, W. Va. Code § 8-14-1.

**Sec. 66-33. Police manual adopted; where filed and available for inspection; violations; short title.**

For the purpose of providing for the organization, government, policies, rules, procedures and discipline of the city police department, and for other related purposes, there is adopted the operations manual for the city police department's policies, rules and procedures, a copy of which is and shall remain on file in the office of the city clerk, and another copy which is and shall remain on file at police headquarters for inspection and use by all members of the city police department. Such manual is hereby incorporated in and made a part of this section as fully as though it were set out in length, and any member of the police department who violates or fails to comply with any provisions of the manual adopted by this section shall be subject to such disciplinary action or penalty as may be provided in such manual. The manual adopted by this section may be known and be simply cited as "The Police Manual of the Charleston Police Department."
(Code 1975, § 22-3)

**Sec. 66-34. Updating manual provisions.**

The chief of police, may from time to time prepare amendments and additions to and deletions from the police manual; and each such amendment, addition or deletion, or any combination, when approved by the mayor and when filed in the office of the city clerk for public inspection and use, with a copy being on file in the headquarters of the police department for inspection and use by all members of the department, shall be binding on all members of the department; and it shall be grounds for disciplinary action or penalty for any member of the police department to violate or fail to comply with any such amendment or addition which has been so promulgated, approved and filed.
(Code 1975, § 22-4)

**Sec. 66-35. Policemen's civil service commission.**

Pursuant to the requirements of W. Va. Code § 8-14-7, there is created the "Policemen's Civil Service Commission of the City of Charleston,

West Virginia." Such commission shall be constituted and its members shall possess the qualifications and be chosen in the manner and hold office for the term and period of time as provided by W. Va. Code ch. 8, art. 14, pt. V (W. Va. Code § 8-14-6 et seq.).
(Code 1975, § 22-5)

**State law reference—**Civil service for police departments in class I cities, W. Va. Code § 8-14-6 et seq.

### Sec. 66-36. Policemen's pension and relief fund; trustees.

(a) Pursuant to the requirements of W. Va. Code § 8-22-16 there is established a policemen's pension and relief fund.

(b) There is created a board of trustees to be known as "The Board of Trustees of the Policemen's Pension and Relief Fund of the City of Charleston, West Virginia." Such board shall be constituted and its members shall possess the qualifications and be chosen in the manner and hold office for the term and period of time, all according to and as provided by W. Va. Code ch. 8, art. 22, pt. III (W. Va. Code § 8-22-16 et seq.).

(c) The policemen's pension and relief fund established by this section shall be maintained and administered by the board of trustees in conformity with the provisions of W. Va. Code ch. 8, art. 22, pt. III (W. Va. Code § 8-22-16 et seq.).
(Code 1975, § 22-6)

**State law reference—**Police officers' pension and relief fund, W. Va. Code § 8-22-16 et seq.

### Sec. 66-37. Workers' compensation; pay of police officers injured in performance of duty.

The city shall subscribe to a workers' compensation policy maintained in conformity with W. Va. Code § 23-2-1, et seq. to provide workers' compensation coverage for the protection of members of the city police department, and any member of the police department injured while acting in the performance of his official duty as a member of the police department shall be entitled to receive workers' compensation benefits, as provided in the policy, as a result of such injury. All workers' compensation benefits and any necessary disability pension benefits shall be provided in accordance with the city's workers' compensation policy and West Virginia law. A member may not receive workers' compensation benefits at the same time as they are receiving sick leave benefits.
(Code 1975, § 22-7; Bill No. 7992, 5-15-2023)

**State law reference—**Mandatory participation in workers' compensation, W. Va. Code § 23-2-1.

### Sec. 66-38. Contribution toward police officers' uniforms.

In addition to such compensation as may otherwise be allowed and paid to members of the police department, the city shall reimburse each member of the police department for the cost to him of items of clothing which comprise a part of the official uniform and on-duty clothing purchased, used and worn by him, to an aggregate maximum amount to be determined from time to time by the city council; provided, that no portion of such allowance to any member remaining unexpended at the end of any fiscal year shall be carried over into the next or any succeeding fiscal year. Such reimbursement may be made by payment directly to each such police officers or by payment directly to the vendor or furnisher of each such item of clothing, upon and after conformity and compliance with such rules, regulations, proceedings, forms and proofs as may be prescribed and promulgated from time to time by the chief of police upon the advice and with the approval of the city auditor.
(Code 1975, § 22-8)

### Sec. 66-39. Sale of abandoned property recovered by police.

(a) The city manager shall, every six months, sell at public auction at the front door of city hall or some other place designated by him all property of every kind and character abandoned and recovered by the police department and to which no claim has been made by anyone entitled to possession of such property. None of the property

described in this section shall be sold within 30 days after it shall have been recovered. No separate item of property having a value of more than $20.00, which value shall be determined by the city manager, shall be sold until the sale shall have been advertised as a class 1 legal advisement, the advisement to contain a description of the property to be sold. The city manager shall make a full and complete report of all such sales and pay the proceeds to the finance director and take from him a receipt, and the proceeds are appropriated to the general fund. The auction provisions shall not apply to United States or foreign currency or coins.

(b) Any property not sold as prescribed in subsection (a) of this section shall be destroyed by an officer of the police department, who shall be designated by the chief of police.
(Code 1975, § 22-9)

**Secs. 66-40—66-60. Reserved.**

## DIVISION 2. DUTY HOURS, HOLIDAYS AND OTHER LEAVE*

### Sec. 66-61. Daily and weekly duty hours; eight-hour shift; overtime pay.

All sworn members of the police department shall be subject to duty 24 hours a day, if necessary, at the discretion of the chief of police. However, the normal work week for all department members assigned to eight-hour shifts will be 40 hours. The work week will begin at 12:01 a.m., Sunday and end at 12:00 midnight the following Saturday night, consisting of seven consecutive, 24-hour periods. Overtime pay shall be governed by the maximum hours prescribed under the applicable state or federal law.
(Code 1975, § 22-10; Bill No. 7640, 12-1-2014)

### Sec. 66-62. Daily and weekly duty hours; twelve-hour shift; overtime pay.

All sworn members of the police department shall be subject to duty 24 hours a day, if necessary, at the discretion of the chief of police. However, the normal work week for all department members assigned to a 12-hour shift will be a biweekly schedule as assigned by the chief or his designee. The work week will begin at 12:01 a.m., Sunday and end at 12:00 midnight the following Saturday night, consisting of seven consecutive 24-hour periods. Overtime pay shall be governed by the maximum hours prescribed under the applicable state or federal law.
(Code 1975, § 22-10.5; Bill No. 7640, 12-1-2014)

### Sec. 66-63. Vacation leave.

Each sworn member of the police department shall be given a monthly vacation leave credit of ten hours during the first 15 years of service; thereafter, he shall be credited on the basis of 13 hours and 20 minutes a month. Vacations shall be taken as such time as permitted by the chief of police. No more than 240 hours of vacation leave can be accumulated at any one time.
(Code 1975, § 22-11)

### Sec. 66-64. Legal holidays.

(a) The holidays set forth in subsection (a) of section 86-106 of this Code shall be regarded, treated and observed as legal holidays for police department employees.

(b) A sworn member of the police department who is assigned to an eight-hour shift schedule and is required to work on a legal holiday, shall either be paid for those hours worked during the holiday period, not to exceed eight hours, at the member's regular hourly rate of pay or be allowed to add up to eight hours of equal time off, which may be taken at such time as approved by the chief of police. If the legal holiday falls on the member's regularly scheduled day off, they shall be allowed eight hours of equal time off, which may be taken at such time as approved by the chief of police.

(c) A sworn member of the police department who is assigned to a 12-hour shift schedule and is required to work the entire 12 hours on a legal holiday, shall either be paid for an extra 12 hours at the member's regular hourly rate or be allowed to add 12 hours of equal time off, which may be taken at such time as approved by the chief of

*__State law reference—__Hours of duty for policemen in paid police department under civil service, etc., W. Va. Code § 8-14-2.

police. If the legal holiday falls on the member's regularly scheduled day off, and the member is not required to work for an unscheduled reason, they shall be allowed 12 hours of equal time off, which may be taken at such time as approved by the chief of police.

(d) A sworn member of the police department who is assigned to a 12-hour shift schedule and is required to work a portion of the member's 12-hour shift on a legal holiday, shall, for those hours actually worked during the holiday period, either be paid an amount equal to the member's regular hourly rate times the period of time worked on the holiday or be allowed to add an equal amount of time off, which may be taken at such time as approved by the chief of police. For that portion of the member's 12-hour shift that does not fall within the holiday period, the member shall be allowed an equal amount of time off, which may be taken at such time as approved by the chief of police.

(e) A sworn member of the police department who is assigned to a 12-hour shift schedule where a legal holiday falls on their regularly scheduled day off and who is required to work for an unscheduled reason, shall be paid an amount equal to the member's regular hourly rate times the period of time worked on the legal holiday and, in lieu of the additional hours of equal time off, as set forth in subsections (c) or (d) of this section, may choose to be paid an extra hour for each hour worked at the member's regular hourly rate. Any extra hours paid will be reduced from the hours of equal time off, as set forth in subsections (c) or (d) of this section, as applicable. (Code 1975, § 22-12; Bill No. 7144, 5-16-2005; Bill No. 7175, 11-21-2005; Bill No. 7640, 12-1-2014; Bill No. 8062, 8-18-2025)

**Sec. 66-65. Sick leave.**

(a) Beginning January 1, 2015, each uniformed member shall be entitled to and granted sick leave with full pay. Such leave shall accrue at the rate of eight hours credited on the last day of each month during which the member has worked or has had leave credited for one or more tours of duty.

(b) When a member hired before July 1, 2020, retires, the member will have the privilege of converting up to 96 hours of sick leave accrued under subsection 66-65(a) on or after January 1, 2015, or any remaining unused sick leave accrued prior to January 1, 2015, whichever is greater, to insurance benefits based on the formula of 16 hours for one month single coverage insurance premium or 24 hours for one month family coverage insurance premium. Any sick leave accrued by a member under subsection 66-65(a) on or after January 1, 2015, that is not converted to insurance benefits to the extent permitted by this section shall be forfeited effective as of the date of the member's retirement or separation from employment.

(c) Sick leave shall only be granted for the following reasons:

(1) Illness on the part of or injury to the member, incapacitating him for duty.

(2) Illness in the immediate family, i.e. husband, wife, child, father, mother, sister, brother, father-in-law and mother-in-law, of such a critical nature as to require the presence of the member. This provision shall not be construed as to cover absences for the purposes of nursing or caring for immediate family members not declared by the attending physician to be critically ill.

(3) Exposure to a contagious disease and subsequent determination by competent medical authority that the member's presence on duty might jeopardize the health of others.

(d) A member shall be required to furnish to the chief of police a certificate from the attending physician for all consecutive days of sick leave granted beyond three working days.

(e) After the equivalent of half of annual sick leave has been used in single-day events, a member shall furnish documentation from a physician or other medical provider establishing reason for relief from duty for use of additional sick leave for single-day events.

(f) In cases of emergency, the chief of police may, at his discretion, grant advance sick leave up to 240 hours beyond that accumulated provided that all regularly earned sick and vacation leave has been used.

(g) The chief of police shall otherwise have the right to investigate or cause to be investigated the alleged illness of any member and, for good cause shown, to not only deny sick leave but also to take proper disciplinary action against any feigner or abuser.

(h) In the event of any emergency, as declared by the mayor, an attending physician's excuse may be required for any days missed; and, further, during such emergency, the mayor may suspend, in whole or in part, any sick leave as permitted by subsection (c) of this section.
(Code 1975, § 22-13; Ord. No. 4939, 4-19-1993; Ord. No. 4960, § 22-13, 6-7-1993; Bill No. 7640, 12-1-2014; Bill No. 7873, 6-15-2020)

**Sec. 66-66. Funeral leave with pay.**

In the case of the death of the husband, wife, child, mother, father, brother, sister, mother-in-law or father-in-law, or in the case of death of any other relative residing in the immediate household, the member shall be allowed two days funeral leave with regular pay without deduction from his accumulated vacation or sick leave. In the case of death of a sister-in-law, brother-in-law, daughter-in-law, son-in-law, grandparent, grandchild, aunt, uncle, nephew, niece or first cousin of the member or spouse, the member shall be allowed one day funeral leave with regular pay without deduction from his accumulated vacation or sick leave. In addition, the employee may be allowed by the police chief to use two days of his accumulated sick leave in the case of death of any of these persons.
(Code 1975, § 22-13.1)

**Sec. 66-67. Immunizations.**

As a condition of employment, all police officers are to be immunized by hepatitis B vaccine.
(Ord. No. 4810, 3-22-1993)

**Secs. 66-68—66-90. Reserved.**

## DIVISION 3. SCHOOL CROSSING GUARDS*

**Sec. 66-91. Authorized to be appointed by mayor, for assignment by chief of police.**

The mayor is authorized to appoint qualified persons as civilian school crossing guards in such numbers as he may deem necessary to serve at his will and pleasure, such guards to be assigned to such school crossings within the city as the chief of police shall determine.
(Code 1975, § 22-14)

**Sec. 66-92. Rules and regulations; compensation and hours of duty.**

The chief of police shall promulgate rules relating to the qualifications and duties of civil-

*__Cross reference—__Officers and employees, § 2-131 et seq.

__State law reference—__Special school zone police officers, W. Va. Code § 8-14-5.

ian school crossing guards, who shall be paid at such rate as may be authorized by the city council, for services not to exceed three hours per day for 180 days each year when public, private or parochial schools are in session.
(Code 1975, § 22-15)

**Sec. 66-93. Powers and duties; violations; training.**

Civilian school crossing guards shall direct and guide schoolchildren at school crossings in the area to which they may be assigned from time to time on days when public, private or parochial schools are in session; and they shall assist the city police in the direction of traffic upon such other occasions as the chief of police shall direct. No civilian school crossing guard shall have the power of arrest, but it shall be the duty of such guard to report immediately any violations of the law to the police department and to sign a complaint for and prosecute such violations in the municipal court of the city. Failure of any civilian school crossing guard to perform such duty shall be a violation of this section. Training and supervision of such civilian school crossing guards shall be under the direction of the chief of police.
(Code 1975, § 22-16)

**Sec. 66-94. Uniforms and equipment.**

Civilian school crossing guards shall wear such badges, dress and insignia as the chief of police shall direct and shall be equipped in the manner which he deems necessary for the proper discharge of their duties, all such badges, dress, insignia and equipment to be furnished by and at the expense of the city. It shall be unlawful for any civilian school crossing guard to exercise authority as such guard or to wear the uniform or insignia or to display the badge in an attempt to exercise authority except during the performance of duties assigned by the chief of police.
(Code 1975, § 22-17)

**Secs. 66-95—66-110. Reserved.**

## DIVISION 4. CITIZENS COMMISSION OF THE CHARLESTON MOUNTED POLICE PATROL*

**Sec. 66-111. Created.**

There is created the Citizens Commission of the Charleston Mounted Police Patrol.
(Ord. No. 5051, § 2-182, 11-15-1993)

**Sec. 66-112. Membership.**

The commission created in this division shall consist of 50 appointed members, who shall be appointed by the mayor and serve at the will and pleasure of the mayor. Two councilmembers shall be appointed by the mayor and confirmed by the city council.
(Ord. No. 5051, § 2-183, 11-15-1993)

**Sec. 66-113. General purpose.**

The general purpose of the commission created in this division shall be to promote and assist in the operation of the mounted police patrol, including but not limited to raising funds for the construction, operation and maintenance of facilities for housing horses, and for the expenses of transportation in connection with such activities, and any and all other expenses incident to the operation of the mounted police patrol.
(Ord. No. 5051, § 2-184, 11-15-1993)

**Sec. 66-114. Declaration of council.**

The council declares the citizens commission to be an agent or board of the city within the meaning of section 1-10 and other applicable ordinances and resolutions, for the purpose of providing the citizens commission the protection of the insurance policies required under that section, and any immunity provided by that section for liability arising from or growing out of or in any way connected with acts or omissions of the citizens commission in the performance of their official duties.
(Ord. No. 5051, § 2-185, 11-15-1993)

*__Cross reference—__Boards, committees and commissions, § 2-511 et seq.

**Secs. 66-115—66-150. Reserved.**

## ARTICLE III. CITY JAIL

### Sec. 66-151. Penalties.

Whoever shall violate any provision of this article shall, upon conviction, be subject to the penalties set forth in section 1-8.
(Code 1975, § 16-35)

### Sec. 66-152. Payment of fine; discharge of prisoners.

Any city prisoner may at any time pay the municipal judge the amount stated in the mittimus or balance due after deducting such credits as he may be entitled to; and upon such payment, or upon any prisoner working out his fine and costs or the term of imprisonment imposed by the municipal court judge, or if he should be otherwise legally entitled to his discharge, the officer having custody of the prisoner shall give the prisoner a printed or written discharge and set him at liberty. A duplicate of such discharge shall be filed with the municipal judge. The municipal judge is empowered to release any city prisoner for good cause shown, and to fix the terms upon which the prisoner may be released. In any event, a written order shall be filed with the municipal court clerk and the prisoner's custodian showing the reason for release and the terms, if any, upon which it was made.
(Code 1975, § 16-30)

### Sec. 66-153. Escape of prisoners generally.

Any person confined in any place of imprisonment maintained by the city, or who is confined in the county jail as a city prisoner, who escapes by force, violence or by any subterfuge, device or deception, or any person while so confined who is released to the custody of any city employee for the purpose of supervision by the city employee of the prisoner's work and labor who escapes shall upon conviction be punished as provided in section 1-8.
(Code 1975, § 16-31)

**State law reference—**Escapes, W. Va. Code § 61-5-8 et seq.

### Sec. 66-154. City officers and employees not to permit escapes.

It shall be unlawful for any city officer or employee voluntarily to suffer a prisoner, lawfully in his custody or lawfully confined within a place which is in his custody, to escape; and each city officer and employee having custody of a city prisoner shall use all the necessary means to prevent escape of the prisoner.
(Code 1975, § 16-32)

**State law reference—**Permitting escape of prisoner or refusing to take custody of prisoner, W. Va. Code § 61-5-9.

### Sec. 66-155. Giving prohibited articles to prisoners.

No person shall deliver or give to any city prisoner lawfully confined in any jail or other place of imprisonment any intoxicating drink or other article of any kind without the permission of the municipal judge or the health commissioner.
(Code 1975, § 16-34)

Chapters 67—69

**RESERVED**

Chapter 70

# MANUFACTURED HOMES AND TRAILERS*

## Article I. In General

Secs. 70-1—70-30. Reserved.

## Article II. Trailers and Trailer Camps

### Division 1. Generally

Secs. 70-31—70-50. Reserved.

### Division 2. Auto Trailer Camps

#### Subdivision I. In General


Sec. 70-51. Definitions.
Sec. 70-52. Violations and penalties.
Sec. 70-53. Person in charge of auto trailer camp; camp office and register.
Sec. 70-54. Duties of owners and persons in charge of auto trailer camps.
Sec. 70-55. Auto trailer camp layout.
Sec. 70-56. Sanitation.
Sec. 70-57. Lights in public rooms.
Sec. 70-58. Electrical connections.
Sec. 70-59. Compliance with plumbing code.
Sec. 70-60. Compliance with building codes.
Sec. 70-61. Effect of zoning ordinance.
Sec. 70-62. Fire protection.
Sec. 70-63. Parking on street.
Sec. 70-64. Storage of trailer on owner's premises.

Secs. 70-65—70-100. Reserved.

#### Subdivision II. Permit


Sec. 70-101. Limitations on maintaining auto trailers on private property.
Sec. 70-102. Auto trailer camp permits.
Sec. 70-103. Permit for single auto trailer.
Sec. 70-104. Application for auto trailer camp permit.
Sec. 70-105. Limitations of permits.
Sec. 70-106. Fees.
Sec. 70-107. Reinspections.
Sec. 70-108. Permit revocation.


---

***Cross references—**Buildings and building regulations, ch. 14; environment, ch. 50; health and sanitation, ch. 58; planning, ch. 90; solid waste, ch. 98; streets, sidewalks and other public places, ch. 102; subdivision regulations, ch. 106; utilities, ch. 118; zoning, app. B; MH mobile home district, app. B, § 17-1 et seq.

**State law reference—**The West Virginia Manufactured Housing Construction and Safety Standards Act, W. Va. Code § 21-9-1 et seq.

## ARTICLE I. IN GENERAL

**Secs. 70-1—70-30. Reserved.**

## ARTICLE II. TRAILERS AND TRAILER CAMPS

### DIVISION 1. GENERALLY

**Secs. 70-31—70-50. Reserved.**

### DIVISION 2. AUTO TRAILER CAMPS

*Subdivision I. In General*

**Sec. 70-51. Definitions.**

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

*Auto trailer* means any building or structure used for living or sleeping purposes and equipped with wheels or other means to facilitate movement from place to place, and automobiles, when used for living or sleeping purposes.

*Auto trailer camp* means any lot or parcel of land used or intended to be used for the accommodation of two or more auto trailers.

*Camp sewer* means a sewer constructed in any auto trailer camp for the service of auto trailers and connected to the city sewer, or in case there is no city sewer in any street on which such auto trailer camp abuts, to a septic tank as required by section 118-74.

*Trailer unit* means a plot of land in an auto trailer camp used or intended to be used for the accommodation of not more than one auto trailer and not more than one automobile which is not an auto trailer.
(Code 1975, § 30-1)

**Cross reference—**Definitions generally, § 1-2.

**Sec. 70-52. Violations and penalties.**

Whoever violates or fails to comply with any provision of this division shall upon conviction be subject to the penalties provided in section 1-8; and each day during any portion of which a violation of this division is committed, continued or permitted shall constitute a separate offense. In addition, any condition caused or permitted to exist in violation of any of the provisions of this division shall be deemed a public nuisance, and may be summarily abated as such by the officers of the city.
(Code 1975, § 30-22)

**Sec. 70-53. Person in charge of auto trailer camp; camp office and register.**

(a) The owner or operator of every auto trailer camp, before allowing any auto trailers in the camp, shall file with the chief of police and health commissioner the name of the person who will be in continuous responsible charge of the camp, and who is authorized to act for him. Any change in such person in charge shall be immediately reported to these officers.

(b) In every auto trailer camp there shall be an office building in which shall be located the office of the person in charge of the camp. The camp register shall at all times be kept in the office.
(Code 1975, § 30-10)

**Sec. 70-54. Duties of owners and persons in charge of auto trailer camps.**

It shall be the duty of the owner, operator or person in charge of any auto trailer camp to:

(1) Keep at all times a register of all persons staying in his camp, which register shall at all times be open to the officers of the city and which register shall record the names and home addresses of all persons staying in the auto trailer camp, the date of their arrival, date of their departure, the number of and state in which the driver's license of such person was issued, the license number of all auto trailers and automobiles in the camp, the name of the state or country in which they are registered, the trailer unit on which each is located and the place at which the last overnight stop was made;

(2) Maintain the camp in a clean, orderly and sanitary condition at all times;

(3) Allow no more than one auto trailer and one automobile on any one trailer unit at any one time;

(4) Require that all such auto trailers and automobiles are located on their respective trailer units as required by the terms of this division;

(5) Require all toilets in every auto trailer in the camp to be connected to the camp sewer or in case any toilet is so constructed that it cannot be so connected, to require it to be sealed so that it cannot be used during the total time it shall remain in the camp;

(6) Require every sink and every lavatory in any auto trailer in the camp to be connected to the camp sewer during its entire stay in the camp;

(7) See that all required lights are kept lighted as provided in this division;

(8) See that all garbage is drained and wrapped as required by ordinance and deposited in the garbage cans required by section 70-56 and see that all such garbage cans are collected, cleaned and redistributed as required by that subsection;

(9) Permit no domestic animal in the camp unless such animal is kept on a leash or is confined in an adequate enclosure;

(10) Report promptly to the proper authorities any violations of law which may come to his attention;

(11) See that no person overstays his legal limit of residence in the camp; and

(12) Post in a waterproof holder in a conspicuous place in each trailer unit a copy of this section.

(Code 1975, § 30-11)

**Sec. 70-55. Auto trailer camp layout.**

(a) Every auto trailer camp shall have access to a public street either by abutting directly on such street or by means of a private road not less than ten feet wide. Along one side of such private road for its full length shall be a walkway not less than three feet wide and raised six inches above the roadway. Such roadway from the street line in and every road required by the terms of this division within any auto trailer camp shall be paved or constructed in a manner suitable to the city engineer.

(b) Roadways not less than ten feet wide shall be provided in every auto trailer camp so located that each and every trailer unit shall have direct access thereto.

(c) The entire area of every auto trailer camp, exclusive of roadways, well-maintained lawns and planted areas, shall be thoroughly graveled or paved.

(d) Every auto trailer camp shall be surrounded on all sides, except those sides directly abutting on a public street, with a fence not less than six feet high constructed and maintained so as effectively to prevent the passage of persons. There shall be no opening or gate in such fence except with the written approval of the owner of the immediately adjoining land, which approval shall be filed with the health commissioner.

(e) Each trailer unit in every auto trailer camp shall contain not less than 600 square feet of ground and shall not be less than 25 feet in minimum width measured at right angles to the side lines. The boundary lines of every trailer unit shall be plainly and permanently marked or otherwise indicated.

(f) The setbacks established by the zoning ordinance shall apply equally to trailer units and to buildings of the same outside dimensions.

(g) There shall be not less than five feet between any part of any auto trailer and any boundary line of the trailer unit on which it is located.

(h) No automobiles or tow cars parked on any trailer unit shall extend beyond the boundaries of the unit.

(Code 1975, § 30-12)

**Sec. 70-56. Sanitation.**

(a) On each trailer unit, there shall be a connection to a camp sewer arranged so that the sanitary fixtures in any auto trailer may be readily connected to the sewer. Immediately after being placed on a trailer unit, every auto trailer

shall have all its sanitary fixtures connected to the sewer or sealed so that they cannot be used. Every such connection shall be by means of rigid pipe. Hose connections are not permissible.

(b) On each trailer unit, there shall be an ample supply of water for the use of the occupants of the unit. There shall be two outlets on such service, both of which shall be adapted for hose connection.

(c) In every auto trailer camp, there shall be provided not less than one public toilet for each sex for every ten trailer units or fraction thereof. In addition, there shall be one urinal for every ten trailer units. All toilet and urinal rooms shall have hard, smooth finished, cement floors and shall have walls plastered with Portland cement plaster with a polished steel trowel finish. All corners shall be rounded with a fillet of not less than one-half-inch radius. Walls and floors may be finished in nonabsorbent tile in lieu of the cement finish.

(d) In every auto trailer camp, there shall be provided one bathtub or stall shower for each sex for every ten trailer units or fraction. All such baths shall be provided at all times with an ample supply of hot and cold water. Bathrooms shall be constructed as specified for toilet rooms in subsection (c) of this section.

(e) In every auto trailer camp, there shall be provided not less than one double-compartment laundry tray and one lavatory for every ten trailer units; and all such fixtures shall be at all times provided with an ample supply of hot and cold water. All such fixtures shall be installed in rooms constructed as specified for toilet rooms in subsection (c) of this section. All bathrooms shall be supplied with adequate heating equipment maintained in proper operating condition.

(f) In every auto trailer camp, there shall be provided not less than one sink and one slop sink for every ten trailer units; and such fixtures shall be supplied with an adequate supply of hot and cold water.

(g) No trailer unit shall be more than 200 feet from any of the sanitary fixtures required by this section to serve the trailer unit.

(h) Under and around every laundry tray, sink, lavatory and slop sink, there shall be a concrete or tile floor; and such floor shall extend three feet in all directions beyond such fixture.

(i) Every trailer unit shall be provided with a substantial covered garbage can as required by ordinance for residences in the city. Such garbage can shall be kept on a concrete pavement not less than three feet square and four inches thick, with a smooth troweled top. In every auto trailer camp, all such garbage cans shall be collected at one convenient place prior to garbage collection time on each day on which garbage is collected in that district. Immediately after the garbage has been collected, all such cans shall be carefully cleaned and returned to their respective trailer units.

(j) Every auto trailer camp shall be provided with a masonry incinerator, of a size suitable to handle the combustible wastes of the camp, and located as directed by the fire chief.

(k) In every auto trailer camp where automobiles or trailers are washed or are to be washed, there shall be installed a wash rack; and no such washing shall be done except on such wash rack. All such wash racks shall be paved with a continuous concrete floor slab not less than 15 feet by 25 feet by four inches thick, and all parts shall slope toward a drain so connected as to dispose of all wastewater without nuisance or creation of an unsanitary condition.
(Code 1975, § 30-13)

**Sec. 70-57. Lights in public rooms.**

Every public toilet and every public urinal room shall be lighted from one-half hour after sunset of each day until one-half hour before sunrise of the succeeding day. Such lighting shall be provided in an amount not less than one-half watt per square foot of floor area in any such room. Every public bath, laundry tray, sink and slop sink shall be supplied with lights which may be turned on by the person using such room.
(Code 1975, § 30-14)

**Sec. 70-58. Electrical connections.**

(a) Every trailer unit shall be furnished with an electric service outlet which shall be equipped with an externally operated switch, a fuse of not less than 30 amperes' capacity, and a heavy-duty outlet receptacle.

(b) All electrical work in every auto trailer camp shall comply in all respects with the requirements of the electrical code of the city.
(Code 1975, § 30-15)

**Sec. 70-59. Compliance with plumbing code.**

In every auto trailer camp all plumbing work shall comply with the requirements of the plumbing code of the city.
(Code 1975, § 30-16)

**Sec. 70-60. Compliance with building codes.**

In every auto trailer camp, all buildings and structures other than auto trailers shall comply with the city building code and the BOCA Basic Building Code.
(Code 1975, § 30-17)

**Sec. 70-61. Effect of zoning ordinance.**

Nothing in this chapter shall be deemed to prohibit the erection and maintenance in any auto trailer camp of any building or structure which is permissible under the terms of the zoning ordinance for the zone in which the auto trailer camp is located.
(Code 1975, § 30-18)

**Sec. 70-62. Fire protection.**

(a) Every auto trailer camp shall be provided with one or more standpipes not less than 1½ inches in diameter, and such standpipes shall be provided with 1½-inch fire hose of such lengths that every part of such auto trailer camp may be reached with the hose, and each such hose shall be equipped with a standard nozzle. All such hose shall be kept on a reel or rack, protected from the weather, and shall be used for no purpose other than fire protection.

(b) Every auto trailer camp shall be provided with not less than two acid and soda, 2½-gallon fire extinguishers located as directed by the fire chief.
(Code 1975, § 30-19)

**Cross reference—**Fire prevention and protection, ch. 54.

**Sec. 70-63. Parking on street.**

No auto trailer or other trailer as defined in section 114-1 shall be permitted to park on any street in the city overnight.
(Code 1975, § 30-20)

**Cross reference—**Traffic ordinance, ch. 114.

**Sec. 70-64. Storage of trailer on owner's premises.**

Nothing in this division shall be deemed to prohibit the storage of any auto trailer on the home premises of its owner for any length of time when not used for living or sleeping purposes.
(Code 1975, § 30-21)

**Secs. 70-65—70-100. Reserved.**

*Subdivision II. Permit*

**Sec. 70-101. Limitations on maintaining auto trailers on private property.**

It shall be unlawful for any person to place, keep or maintain any auto trailer on any land within the city without the express permission of the owner of such land; and no person shall allow, suffer or permit any auto trailer to be placed, kept or maintained on any land owned or controlled by him except in an auto trailer camp for which a permit has been issued by the health commissioner; provided, that the occupant of any single-family dwelling may allow not more than one auto trailer of a nonpaying guest to be placed, kept or maintained on the property for a period not exceeding three months in any period of 12 months by procuring a permit as provided in section 70-103 and otherwise complying with the related provisions of this division.
(Code 1975, § 30-2)

**State law reference—**Authority to prohibit location of occupied house trailers or mobile homes in residential areas, W. Va. Code § 8-12-5(30).

**Sec. 70-102. Auto trailer camp permits.**

(a) Subject to the provisions of this division, auto trailer camps may be established and maintained in this city.

(b) Permits issued for auto trailer camps by the health commissioner shall expire one year from the date of issue unless renewed as provided. If the auto trailer camp is to be maintained for a period longer than one year, a renewal of the permit shall be obtained from the health commissioner. Such renewal shall be for a period not exceeding one year and shall be applied for not less than 15 days prior to the date of expiration of the permit.
(Code 1975, § 30-3)

**Sec. 70-103. Permit for single auto trailer.**

(a) Any person desiring a permit to place or maintain a single auto trailer as provided for in section 70-101 shall file with the health commissioner an application within 48 hours after the auto trailer is placed upon the ground of a single-family dwelling, on a form to be furnished by the commissioner. The application shall describe the property where the auto trailer is to be located, either by street and number or by legal description and shall give the date when it is desired to place the auto trailer on the property, the date of expiration of the permit, a statement by the applicant that any toilet in the auto trailer will be sealed so that it cannot be used during the period of its stay on such property, and that all wastewater from sinks and lavatories in the auto trailer will be disposed of in the sewer or in a cesspool if there is no sewer, but not upon the ground in any event. Permits issued under this section shall expire three months after date of issue, and no other such permit shall be issued for the same lot or parcel of land during the nine months following such expiration date.

(b) The health commissioner is authorized in the exercise of a reasonable discretion to revoke any permit issued pursuant to this section if, after due investigation, he determines that the holder has violated any of the provisions of this division, or that the auto trailer is being maintained in an unsanitary or unsafe manner or is a nuisance. Written notice of revocation shall be given either by personal delivery to the person to be notified or by giving notice by United States certified mail, return receipt requested, addressed to such person at the address which appears on the records of the health commissioner.
(Code 1975, § 30-4)

**Sec. 70-104. Application for auto trailer camp permit.**

Any person desiring a permit for an auto trailer camp shall file an application with the health commissioner on a form to be furnished by him. The application shall give the location by street number and legal description of the property on which the auto trailer camp is to be established and maintained, the dimensions of the property, the number of units in the camp, and such other information as the health commissioner may reasonably require. A plot plan in duplicate of the property shall be filed by the applicant with his application drawn to a scale of not less than one-eighth inch per foot, showing the location and dimensions of all the units, roads, buildings, sewer connections, water connections, electric outlets, baths, toilets and other essential requirements of this division.
(Code 1975, § 30-5)

**Sec. 70-105. Limitations of permits.**

(a) Where no work is done under a permit within 90 days of its issuance under this subdivision, it shall become null and void.

(b) Permits issued under the terms of this subdivision convey no right to erect any building other than auto trailers or to do any plumbing or electrical work. Regular building, plumbing, electrical or other permits as required by the provisions of this Code and other ordinances of the city shall be secured for all such work.
(Code 1975, § 30-6)

**Sec. 70-106. Fees.**

(a) Each application for a permit to establish an auto trailer camp shall be accompanied by a fee in the amount of $5.50 for each trailer unit in the camp. Each application for the annual renewal of such permit shall be accompanied by a fee of $5.00 for each trailer unit in the camp.

(b) Each application for a permit for a single auto trailer as provided for in section 70-101 shall be accompanied by a fee of $1.00.

(c) The health commissioner shall cause an accurate account to be kept of all fees collected under the terms of this subdivision, which ac-

count shall show the date of collection, by whom paid, the address for which such payment is made and the amount of each such fee. He shall cause all fees collected under this subdivision to be, from time to time, transferred to the city treasurer.
(Code 1975, § 30-8)

**Sec. 70-107. Reinspections.**

Before issuing a renewal of any permit as provided for in section 70-106(a), the health commissioner shall make a reinspection of the buildings, structures, electrical equipment and plumbing of any auto trailer camp; and no such renewal shall be issued by him unless any defects or violations of law found in the camp have been corrected.
(Code 1975, § 30-9)

**Sec. 70-108. Permit revocation.**

(a) Permits other than those issued pursuant to section 70-103 may be revoked by the health commissioner for violation of the provisions of this division or if the auto trailer camp is maintained in an unsanitary or unsafe manner or in a manner such as to create a nuisance.

(b) No such permit shall be revoked until a hearing upon notice by the health commissioner is first had. Written notice of the time and place of the hearing shall be given at least five days before the hearing. Such notice may be given either by personal delivery to the person to be notified, or by United States certified mail, return receipt requested, addressed to such person to be notified at the address which appears on the record pertaining to the matter to which the notice is directed. Such notice shall state in clear and concise language the reasons for revocation of the permit and the time when and the place where the hearing is to be held. The health commissioner may continue the hearings from time to time upon good cause being shown.
(Code 1975, § 30-7)

Chapters 71—73

**RESERVED**

Chapter 74

# NATURAL RESOURCES*

## Article I. In General

Secs. 74-1—74-30. Reserved.

## Article II. Commercial Water Wells


Sec. 74-31. Definitions.
Sec. 74-32. Violations.
Sec. 74-33. Permits for commercial wells.
Sec. 74-34. Plans and specifications.
Sec. 74-35. Piping, fitting and connections.
Sec. 74-36. Abandoned wells.
Sec. 74-37. Sewer service charges.
Sec. 74-38. Deposits in sewers from commercial wells.
Sec. 74-39. Disposal of water from commercial wells.


*__Cross references—__Parks and recreation, ch. 82; planning, ch. 90; solid waste, ch. 98; streets, sidewalks and other public places, ch. 102; subdivision regulations, ch. 106; utilities, ch. 118; zoning, app. B.

__State law reference—__Natural resources, W. Va. Code § 20-1-1 et seq.

## ARTICLE I. IN GENERAL

**Secs. 74-1—74-30. Reserved.**

## ARTICLE II. COMMERCIAL WATER WELLS

### Sec. 74-31. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

*Commercial well* means any well or water source used to obtain water for air conditioning, refrigerating, laundering, washing or other business or industrial purpose. It shall not include wells used exclusively for private homes, for watering stock, or for farm or agricultural purposes.
(Code 1975, § 32-21)

**Cross reference—**Definitions generally, § 1-2.

### Sec. 74-32. Violations.

It shall be unlawful for any person to violate or fail to comply with any provision of this article.
(Code 1975, § 32-33)

### Sec. 74-33. Permits for commercial wells.

It shall be unlawful for any person to install or maintain or cause to be installed or maintained a commercial well unless a permit for such installation or maintenance or both shall have been duly issued by the city engineer.
(Code 1975, § 32-26)

### Sec. 74-34. Plans and specifications.

No permit for the installation or maintenance of a commercial well shall be issued unless plans and specifications for such well and the surrounding foundations have been submitted to the city engineer and the location, depth and method of installation shall have been duly approved by him.
(Code 1975, § 32-27)

### Sec. 74-35. Piping, fitting and connections.

All piping, fitting and connections for the conveyance and disposal of water from commercial wells shall be installed in accordance with the requirements of the plumbing code.
(Code 1975, § 32-28)

### Sec. 74-36. Abandoned wells.

Whenever any commercial well is abandoned or no longer used, it shall be solidly filled with compact material.
(Code 1975, § 32-29)

### Sec. 74-37. Sewer service charges.

The owner of any premises from which water is discharged from commercial wells into city sewers shall meter the flow of such well water and pay sewer service charges to the city on the basis of such measured use, or in the alternative, shall pay such charges on the basis of the quantity of well water flow as estimated by the proper city officer.
(Code 1975, § 32-30)

### Sec. 74-38. Deposits in sewers from commercial wells.

Wherever, in the case of commercial wells installed before the effective date of the ordinance from which this section is derived, the water taken from such wells is discharged into public sewers, the owner of the premises on which or for which such well is maintained shall pay to the city any expense incurred by it for the removal of sand, gravel or other material deposited in city sewers from any such well.
(Code 1975, § 32-31)

### Sec. 74-39. Disposal of water from commercial wells.

It shall be unlawful for any person installing a commercial well to permit the water taken from such well to be discharged into the public sewers. Such water shall be disposed of by means of return wells into the earth or by other means approved by the city engineer.
(Code 1975, § 32-32)

Chapters 75—77

**RESERVED**

# Chapter 78

# OFFENSES AND MISCELLANEOUS PROVISIONS*

## Article I. In General


Sec. 78-1. Attempts; aiding and abetting; procuring offense.
Sec. 78-2. Assault and battery definitions; penalties.
Sec. 78-3. Advertisements, handbills, signs.
Sec. 78-4. Canes and walking sticks.
Sec. 78-5. Peeping toms.
Sec. 78-6. Spitting.
Sec. 78-7. Throwing missiles in streets or public places.
Sec. 78-8. Ticket scalping.
Sec. 78-9. Watercraft regulations.
Sec. 78-10. Hate crimes.
Secs. 78-11—78-40. Reserved.


## Article II. Offenses Involving Property Rights

### Division 1. Generally


Sec. 78-41. Rewards authorized in certain cases.
Sec. 78-42. Libraries and related offenses.
Sec. 78-43. Befouling property.
Secs. 78-44—78-60. Reserved.


### Division 2. Property Damage and Related Offenses


Sec. 78-61. Tampering with city property generally.
Sec. 78-62. Private property protected.
Secs. 78-63—78-80. Reserved.


### Division 3. Larceny and Related Offenses

#### *Subdivision I. In General*


Sec. 78-81. Petit larceny.
Sec. 78-82. Embezzlement and larceny.
Sec. 78-83. Receiving stolen property.
Sec. 78-84. Larceny by trick.
Sec. 78-85. Meters measuring, companies furnishing utilities.
Secs. 78-86—78-100. Reserved.


#### *Subdivision II. Shoplifting*


Sec. 78-101. Prohibited; definitions.
Sec. 78-102. Constitutes breach of peace; detention of suspects.
Secs. 78-103—78-130. Reserved.


## Article III. Offenses Involving Public Safety

### Division 1. Generally


Sec. 78-131. False alarms and reports.


---

*__Cross references—__Courts, ch. 38; traffic ordinance, ch. 114.

__State law reference—__Police power, W. Va. Code § 8-12-5(13), (23), (44).

Sec. 78-132. Aircraft regulations.
Sec. 78-133. Airtight containers.
Sec. 78-134. Skylights and fire escapes.
Secs. 78-135—78-160. Reserved.

Division 2. Weapons

Sec. 78-161. Disposition of firearms, dangerous weapons in possession of police department.
Sec. 78-162. Disposition of firearms, dangerous weapons in possession of municipal court.
Sec. 78-163. Carrying without license or other authorization.
Sec. 78-164. Reserved.
Sec. 78-165. Carrying weapons upon municipal public property.
Sec. 78-166. Prohibited discharge.
Sec. 78-167. Brandishing or exposing weapons; threatening or causing breach of peace; penalty.
Sec. 78-168. Switchblade knives.
Sec. 78-169. Possession by persons under age 16.
Sec. 78-170. Slingshots, bows and arrows and airguns.
Sec. 78-171. Firearms in municipal parking facilities.
Secs. 78-172—78-200. Reserved.

## Article IV. Offenses Involving Public Peace and Order

Division 1. Generally

Sec. 78-201. Breach of the peace and related offenses; duties of proprietors of establishments.
Sec. 78-202. Disorderly conduct.
Sec. 78-203. Riots, routs and unlawful assemblies prohibited and defined.
Sec. 78-204. Dispersal; duty of police officers and participants.
Sec. 78-205. Disorderly conduct generally.
Sec. 78-206. Disorderly conduct in public schools of the city; loitering after being requested to leave school premises.
Sec. 78-207. Disturbance of assemblies.
Sec. 78-208. Interfering with customers at retail store.
Sec. 78-209. Religious services in streets.
Sec. 78-210. Curfew for underage persons.
Sec. 78-211. Drunkenness in public place; drinking or possession of alcoholic beverages in public; sale and use of nonintoxicating beer or other alcoholic beverages; penalties.
Sec. 78-212. Noise control.
Sec. 78-213. Obstructing pedestrians for purpose of inducing to purchase.
Secs. 78-214—78-230. Reserved.

Division 2. Picketing

Sec. 78-231. Purpose of division.
Sec. 78-232. Conditions under which picketing permitted; unlawful picketing generally.
Sec. 78-233. Prohibited conduct at scene of picketing.
Sec. 78-234. Unlawful assemblies; dispersal of unlawful assemblies and arrest of those not dispersing.
Sec. 78-235. Protecting passage to and from health care facilities; preserving rights of picketers; offense and penalties.
Secs. 78-236—78-250. Reserved.

Division 3. Sound Trucks

Sec. 78-251. Definitions.
Sec. 78-252. Noncommercial use of sound trucks.
Sec. 78-253. Commercial advertising by sound truck prohibited.
Sec. 78-254. Police department activities excluded.
Secs. 78-255—78-290. Reserved.

## Article V. Offenses Involving Public Morals

Division 1. Generally

Sec. 78-291. Reserved.
Sec. 78-292. Indecent exposure; public indecency; penalty.
Secs. 78-293—78-310. Reserved.

Division 2. Obscenity and Related Offenses

Sec. 78-311. Sale, possession or giving away of obscene literature.
Sec. 78-312. Marking of indecent words, pictures, figures at places exposed to public view.
Sec. 78-313. Indecent shows or exhibitions.
Secs. 78-314—78-320. Reserved.

Division 3. Prostitution and Related Offenses

Sec. 78-321. Definitions.
Sec. 78-322. Violation; penalty.
Sec. 78-323. Engaging in prostitution.
Sec. 78-324. Keeping houses of prostitution; persons under the age of 18.
Sec. 78-325. Entry to house of prostitution.
Sec. 78-326. Use of premises for prostitution.
Sec. 78-327. Enticing for prostitution.
Sec. 78-328. Loitering for prostitution.
Secs. 78-329—78-340. Reserved.

Division 4. Gambling

Sec. 78-341. Keeping or exhibiting gaming table, machine or device; penalty; seizure of table, machine or device; forfeiture of money used in such gaming.
Sec. 78-342. Permitting gaming table or device on premises.
Sec. 78-343. Keeping place for gaming.
Sec. 78-344. Doorkeeper or guardian for gambling room.
Sec. 78-345. Betting on games of chance.
Sec. 78-346. Permitting gambling at hotels, similar establishments; presumption against innkeeper.
Sec. 78-347. Cheating.
Sec. 78-348. Lottery or raffle.
Sec. 78-349. Possession of tickets.
Sec. 78-350. Regulation of poolrooms.
Secs. 78-351—78-370. Reserved.

Division 5. Drugs and Related Offenses

*Subdivision I. In General*

Sec. 78-371. Definitions and schedules incorporated.
Sec. 78-372. Purporting to sell controlled substances.

Sec. 78-373. Simple possession of marijuana, synthetic cannabinoids, and other controlled substances.
Sec. 78-374. Conditional discharge for simple possession of controlled substances; expungement of records.
Secs. 78-375—78-380. Reserved.

*Subdivision II. Distribution of Hypodermic Needles and Syringes*

Sec. 78-381. Distribution of hypodermic needles; state certification required.
Sec. 78-382. Compliance with state law and regulations.
Sec. 78-383. Penalty.
Sec. 78-384 Council approval of application for state license to offer syringe services program.
Secs. 78-385—78-395. Reserved.

*Subdivision III. Needle Exchange Program*

Sec. 78-396. Needle exchange program authorized.
Sec. 78-397. Rules and regulations; Chief of Police authorized.
Secs. 78-398—78-410. Reserved.

**Article VI. Offenses Involving Public Authority**

Sec. 78-411. Governmental functions of city not to be hampered by sit-ins or other methods.
Sec. 78-412. Interfering with city officers and employees; penalty.
Sec. 78-413. Refusing to aid or assist city officers and employees when lawfully summoned to do so.
Sec. 78-414. Impersonation of city officers and employees.
Sec. 78-415. City work projects not to be interfered with.

## ARTICLE I. IN GENERAL

### Sec. 78-1. Attempts; aiding and abetting; procuring offense.

(a) It shall be unlawful for any person to attempt to commit any act which is prohibited by this Code or other ordinance or by any rule, regulation, order or notice duly promulgated or given pursuant to authority of this Code or such ordinance; and it shall be unlawful for any person to aid or abet another in the commission or attempted commission of any act which is prohibited by this Code or other ordinance or by any rule, regulation, order or notice duly promulgated or given pursuant to authority of this Code or such ordinance.

(b) It shall be unlawful for any person to attempt to avoid the doing of any act which is required by this Code or other ordinance or by any rule, regulation, order or notice duly promulgated or given pursuant to authority of such ordinance; and it shall be unlawful for any person to aid or abet another in the avoidance or attempted avoidance of any act which is required by this Code or other ordinance or by any rule, regulation, order or notice duly promulgated or given pursuant to authority of this Code or such ordinance.

(c) Any person who aids, abets or procures another to commit an offense may be prosecuted and punished as if he were the principal offender.
(Code 1975, § 18-5)

**State law references—**Attempts, W. Va. Code § 61-11-8; principals and accessories, W. Va. Code §§ 61-11-6, 61-11-7.

### Sec. 78-2. Assault and battery definitions; penalties.

(a) *Assault* means an act which places another person in reasonable apprehension of immediately receiving a violent injury. Any person convicted of assault shall be fined not more than $100.00 or confined in jail not more than 30 days, or both.

(b) *Battery* means an unlawful and intentional physical contact of an insulting or provoking nature with the person of another, or the unlawful and intentional causing of physical harm to another person. Any person convicted of battery shall be fined not more than $500.00 or confined in jail not more than 30 days, or both.
(Code 1975, § 18-4)

**Cross reference—**Definitions generally, § 1-2.

**State law references—**Assault and battery, W. Va. Code § 61-2-9; authorized penalty for ordinance violations, W. Va. Code §§ 8-11-1, 8-12-5(57), 8-34-1.

### Sec. 78-3. Advertisements, handbills, signs.

(a) No person shall stick, print, stamp, attach, hang or suspend upon any public building, traffic sign or street marker; or upon any pole or upon any telephone, telegraph or other poles belonging to the city or to electric, telephone, telegraph or other companies; or upon any street or sidewalk, pavement or any other public place any printed, written, painted or other advertisement, bill, notice, political poster or advertisement, or any other sign or poster.

(b) No papers, handbills, cards, circulars, political advertisements or advertising matter of any kind shall be thrown, pushed, cast, deposited, dropped, scattered or left in or upon any street, sidewalk or other public place, or upon any vacant lot or premises within the city, if it is likely that the material might be scattered by the wind upon the streets or public places within the city. The provisions of this section shall not prevent the delivering of newspapers within the city.

(c) No structure of any kind to be used as a sign or advertising of any sort shall be built, placed, erected, hung, or left in or upon any street, sidewalk or other public place except such as may lawfully be allowed under the laws of the city.

(d) Any business or commercial establishment, or any individual or organization whose handbills, signs and advertisements are in violation of this section shall be prima facie responsible for such violation and subject to penalty for such violation.

(e) The director of parks and recreation or his authorized agents are directed to remove any signs found within the corporate limits of the city posted in violation of the provisions of this section.
(Code 1975, § 18-1.1; Ord. No. 6521, 10-5-1998)

**Sec. 78-4. Canes and walking sticks.**

No person who is not totally or partially blind or otherwise incapacitated shall carry on any public street in a raised or extended position a cane or walking stick which is metallic or white in color or white tipped with red.
(Code 1975, § 18-8)

**Sec. 78-5. Peeping toms.**

It shall be unlawful for any person to go upon any lot or premises without the express or implied consent of the owner, occupant or person in charge of the lot or premises for the purpose of looking into any window, door or other aperture of any dwelling located on the lot or premises.
(Code 1975, § 18-51)

**Sec. 78-6. Spitting.**

No person shall expectorate or spit in or upon any parking lot, footpath or sidewalk in the city, or in or upon any part of any public vehicle carrying passengers for hire, or in or upon any part of any public building under the control of the city, county or state, or of the board of education. The proprietors of public vehicles carrying passengers for hire shall keep posted conspicuously in each of their cars and public vehicles notices forbidding such expectorating or spitting.
(Code 1975, § 18-62)

**Sec. 78-7. Throwing missiles in streets or public places.**

No person within the city shall throw any stone, brick, stick, can or other missile in or into any street or highway, open space, public square or enclosure.
(Code 1975, § 18-63)

**Cross reference—**Streets, sidewalks and other public places, ch. 102.

**Sec. 78-8. Ticket scalping.**

It shall be unlawful for any person to resell or offer for resale within the city any ticket, token or other evidence of the right of admission or entry to any place of amusement where public exhibitions, games, contests or performances of any kind are given, held or conducted, or are to be given, held or conducted, which place is owned by the city, or any other municipal, county or state body or agency, at a price in excess of the price printed or otherwise appearing on the face of such ticket, token or other evidence of the right of admission or entry. Any person convicted of violating the provisions of this section shall be subject to the general penalties as provided in section 1-8.
(Code 1975, § 18-63.1)

**Sec. 78-9. Watercraft regulations.**

(a) *Tying to bridge.* No person shall anchor, hitch, tie or otherwise fasten any steamboat, barge, raft, other craft or timbers or materials of any kind or description to any bridge, bridge pier, abutment or any approach to any such bridge owned or controlled in whole or in part by the city.

(b) *Muffling watercraft.* The operation of watercraft in violation of section 78-212 on the Kanawha and Elk rivers within the confines of the city is prohibited.

(c) *Mooring at city levee.* No commercially owned steamboat, barge, raft, boat or any other craft of any kind or description shall be moored, anchored, hitched, tied or otherwise fastened to any part of the city-owned levee without prior written approval of the city manager. No privately owned boat, steamboat, barge, raft or any other craft of any kind or description shall be moored, anchored, hitched, tied or otherwise fastened to any part of the city-owned levee for longer than two hours without prior written approval of the city manager.
(Code 1975, § 18-65; Bill No. 7375, 8-17-2009)

**Sec. 78-10. Hate crimes.**

(a) This section may be referred to as the "Anti-Hate Crime Ordinance." The city hereby recognizes and declares that all persons within the city have the right to be free from any violence, or intimidation by threat of violence, committed against their person or property because of their actual or perceived race, color, religion, ancestry, national origin, political affiliation, physical or mental disability, sex or sexual orientation. For the purposes of this section, "sexual orientation" shall have the definition set forth in section 62-3 of this Code.

(b) The State of West Virginia has enacted legislation (found at W. Va. Code § 61-6-21(1987)) deeming certain hate crimes felonious conduct. The purpose of this article is to expand and create additional classifications against which hate crimes will not be tolerated within the city as set forth in subsections (c), (d), (e), (f) and (g) hereof.

(c) If any person does by force or threat of force willfully injure, oppress, threaten, intimidate or interfere with, or attempt to injure, oppress, threaten, intimidate or interfere with any other person in the free exercise or enjoyment of any right or privilege secured to him or her by the ordinances of the city, the Constitution or laws of the State of West Virginia or by the Constitution or laws of the United States, because of such other person's actual or perceived race, color, religion, ancestry, national origin, political affiliation, physical or mental disability, or sexual orientation, he or she shall be guilty of a misdemeanor, and upon conviction, shall be jailed not more than 30 days and fined not more than $500.00.

(d) If any person conspires with another person to willfully injure, oppress, threaten, intimidate or interfere with any other person in the free exercise or enjoyment of any right or privilege secured to him or her by the ordinances of the city, the constitution or laws of the State of West Virginia or by the Constitution or laws of the United States, because of such other person's actual or perceived race, color, religion, ancestry, national origin, political affiliation, physical or mental disability or sexual orientation and in willful furtherance thereof to assemble with one or more persons for the purpose of teaching any technique or means capable of causing property damage, bodily injury or death which such persons or person intend to employ to violate this section each such person shall be guilty of a misdemeanor and, upon conviction, shall be jailed not more than 30 days and fined not more than $500.00.

(e) The fact that a person committed a felony or misdemeanor, or attempted to commit a felony or misdemeanor, because of the victim's actual or perceived race, color, religion, ancestry, national origin, political affiliation, physical or mental disability or sexual orientation shall be considered a circumstance in aggravation of any crime in imposing sentence.

(f) Nothing contained in this section makes unlawful the teaching of any technique in self-defense.

(g) In any prosecution under this section, (i) evidence proving the defendant's mere abstract beliefs or (ii) evidence of the defendant's mere membership in an organization, shall not be admissible to establish any element of an offense under this section, unless such evidence bears a direct relationship to the underlying crime. Thus, this subsection will not bar all evidence of membership or belief, but would assure that at a minimum, any speech or association that is not contemporaneous with the crime must be part of the chain of events that led to the crime.

(h) If any part of this section is deemed unconstitutional or unenforceable, the remaining provisions will remain in effect.
(Bill No. 6863, § 18-4.1, 2-4-2002; Bill No. 7427, 7-19-2010)

**Secs. 78-11—78-40. Reserved.**

## ARTICLE II. OFFENSES INVOLVING PROPERTY RIGHTS*

### DIVISION 1. GENERALLY

**Sec. 78-41. Rewards authorized in certain cases.**

(a) The city is authorized to pay a reward of $50.00 to anyone, except law enforcement officers employed by the city, giving information leading to the arrest and conviction of any person, adult or minor, tampering with or destroying any parking meter of the city, and a reward of $25.00 to anyone, except law enforcement officers employed by the city, giving information leading to the arrest and conviction of any person, adult or minor, tampering with or destroying any street sign of the city.

*__State law reference—__Crimes against property rights, W. Va. Code § 61-3-1 et seq.

(b) These rewards will be paid by the city treasurer upon receipt of authorization from the mayor.
(Code 1975, § 18-55)

**Sec. 78-42. Libraries and related offenses.**

(a) *Unauthorized taking of books, materials.* No person shall take from any public library any book, pamphlet, periodical, paper or other property except in accordance with the rules of such library.

(b) *Failure to return materials after notice.* No person shall willfully retain any book, pamphlet, periodical, paper or other property belonging to any public library for 30 days after the date of mailing a notice to his address that, under the rules, the time for retaining the book, pamphlet, paper or other property has expired.

(c) *Destroying or injuring materials.* No person shall willfully or wantonly cut, mutilate, mark, tear, write upon, deface or otherwise destroy or injure, in whole or in part, any book, pamphlet, periodical, map, document, written, engraved or printed paper belonging to any public library, or shall suffer such injury to be inflicted while such property is in his custody, or shall willfully or wantonly injure any of the furniture or property belonging to any public library.
(Code 1975, § 18-43)

**State law references—**Larceny, W. Va. Code § 61-1-13; willful retention of library materials, W. Va. Code § 10-1-11; property damage, W. Va. Code § 61-3-30.

**Sec. 78-43. Befouling property.**

It shall be unlawful for any person to befoul or disturb public property or the property of another so as to create a hazardous, unhealthy or physically offensive condition.
(Code 1975, § 18-6)

**Secs. 78-44—78-60. Reserved.**

## DIVISION 2. PROPERTY DAMAGE AND RELATED OFFENSES*

**Sec. 78-61. Tampering with city property generally.**

(a) No person shall, without proper authority, knowingly use, tamper with, render inoperative, conceal, destroy, damage, remove, deface, molest or otherwise interfere with any books, records, furniture, equipment, gear, apparatus, tools or other items of personal property belonging to, leased to or used by the city or any agency of the city.

(b) No person shall, without proper authority, knowingly destroy, damage, deface, molest or otherwise interfere with or trespass upon any real property belonging to, leased to or used by the city or any agency of the city.
(Code 1975, § 18-14)

**Sec. 78-62. Private property protected.**

(a) No person shall, knowingly and without proper authority, use, tamper with, render inoperative, conceal, destroy, damage, remove, deface, molest or otherwise interfere with any personal property of another.

(b) No person shall, knowingly and without proper authority, destroy, damage, deface, molest or otherwise interfere with or trespass upon any real property of another.
(Code 1975, § 18-52)

**Secs. 78-63—78-80. Reserved.**

## DIVISION 3. LARCENY AND RELATED OFFENSES†

### *Subdivision I. In General*

**Sec. 78-81. Petit larceny.**

No person within the city shall commit simple, petit larceny of money, goods or chattels.
(Code 1975, § 18-40)

**State law reference—**Larceny, W. Va. Code § 61-3-13.

**Sec. 78-82. Embezzlement and larceny.**

(a) No person shall embezzle, steal, hide, purloin or carry away any money, property or writing which is the property of the city.

(b) No person shall receive, steal or aid in stealing, or have in possession with intent to convert to his own use any money, property or

*__State law reference—__Property damage, W. Va. Code § 61-3-30.

†__State law reference—__Larceny and related offenses, W. Va. Code § 61-3-13 et seq.

writing which is the property of the city, knowing it to have been embezzled, stolen or purloined from the city by any other person.
(Code 1975, § 18-15)

### Sec. 78-83. Receiving stolen property.

No person shall buy or receive from another person, or aid in concealing, or transfer to a person other than the owner any stolen goods or other thing of value which he knows or has reason to believe has been stolen.
(Code 1975, § 18-41)

**State law reference—**Receiving or transferring stolen goods, W. Va. Code § 61-3-18.

### Sec. 78-84. Larceny by trick.

No person shall obtain possession of or title to anything of value, with the consent of the person from whom he obtained it, if he induced such consent by a false or fraudulent representation, pretense, token or writing. Whoever violates this section is guilty of larceny by trick.
(Code 1975, § 18-42)

**State law reference—**Obtaining property by false pretenses, W. Va. Code § 61-3-24.

### Sec. 78-85. Meters measuring, companies furnishing utilities.

(a) *Definitions.* The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

*Gas, water or electric corporation* or *gas, water or electric company* includes every corporation, company, association, joint stock association, partnership and person, their lessees, trustees or receivers appointed by any court whatsoever, owning, operating, managing or controlling any plant or property for manufacturing, supplying, producing, distributing and selling illuminating or natural gas, water or electricity for light, heat or power, within the corporate limits of this city.

(b) *Meters; certificates of readings.* It shall be the duty of any gas, water or electric company or person supplying gas, water or electricity to the citizens of the city to give to the consumer supplied, when requested by such consumer to do so, a written certificate of the reading of any such meter so installed when the meter shall be first put into service; and it shall furnish such consumer, when requested by such consumer to do so, with a certificate containing a copy of the reading of such meter whenever it is read by the corporation or its agents. Also, whether so requested or not, the company shall furnish the consumer a certificate of the reading of such meter whenever it shall be removed from the premises for any purpose. Such certificate shall be in writing or upon printed forms, the figures to be put down in ink or indelible pencil, and shall be signed by the person who reads the meter. This certificate may be left with the consumer or with any employee of the consumer over the age of 16 years, or any member of his family over the age of 16 years if no other person should be found upon the premises. This certificate shall contain the name of the consumer, the location of the meter, as well as the reading and date of reading of such meter. It shall be unlawful for any person to violate the provisions of this subsection, or to furnish a false certificate or reading, or to change or alter any such certificate or reading, upon any certificate or card so furnished by the inspector or company's agent.

(c) *Injury to or interference with meter.* It shall be unlawful for any person, whether engaged in the business of selling or supplying artificial or natural gas, water or electric current or power, or whether a consumer, or any other person, willfully to injure, deface, break, stop up, open, unseal or otherwise tamper with any meter which has been placed in commission, or in anywise to adjust or interfere with such meter so as to prevent the proper and accurate measurements of the gas, electric current or water passing through such meter.
(Code 1975, § 18-45)

**State law references—**Procuring utility service by device with intent to defraud, W. Va. Code § 61-3-44; injury to utility property, W. Va. Code § 61-3-29.

### Secs. 78-86—78-100. Reserved.

*Subdivision II. Shoplifting**

**Sec. 78-101. Prohibited; definitions.**

(a) A person commits the offense of shoplifting if, with intent to appropriate merchandise without paying the merchant's stated price for the merchandise, such person, alone or in concert with another person, knowingly:

(1) Conceals the merchandise upon his person or in another manner;

(2) Removes or causes the removal of merchandise from the mercantile establishment or beyond the last station for payment;

(3) Alters, transfers or removes any price marking affixed to the merchandise;

(4) Transfers the merchandise from one container to another;

(5) Causes the cash register or other sales recording device to reflect less than the merchant's stated price for the merchandise; or

(6) Removes a shopping cart from the premises of the mercantile establishment.

(b) A person also commits the offense of shoplifting if such person, alone or in concert with another person, knowingly and with intent obtains an exchange or refund or attempts to obtain an exchange or refund for merchandise which has not been purchased from the mercantile establishment.

(c) Evidence of stated price or ownership of merchandise may include but is not limited to:

(1) The actual merchandise alleged to have been shoplifted;

(2) The unaltered content of the price tag or marking from such merchandise; or

(3) Properly identified photographs of such merchandise.

(d) Any merchant may testify at a trial as to the stated price or ownership of merchandise, as well as to other matters pertaining to the case.

(e) Upon a first shoplifting conviction:

(1) When the value of the merchandise is less than or equal to $500.00, the defendant shall be guilty of a misdemeanor and shall be fined not more than $250.00.

(2) When the value of the merchandise exceeds $500.00, the defendant shall be guilty of a misdemeanor and shall be fined not less than $100.00 nor more than $500.00, which fine shall not be suspended, or the defendant shall be imprisoned in the county jail not more than 30 days, or both fined and imprisoned.

(f) Upon a second shoplifting conviction:

(1) When the value of the merchandise is less than or equal to $500.00, the defendant shall be guilty of a misdemeanor and shall be fined not less than $100.00 nor more than $500.00, which fines shall not be suspended, or the defendant shall be imprisoned in the county jail not more than one month, or both fined and imprisoned.

(2) When the value of the merchandise exceeds $500.00, the defendant shall be guilty of a misdemeanor and fined not less than $500.00 and shall be imprisoned in the county jail for not less than one month.

(g) In addition to the fines and imprisonment imposed by this section, in all cases of conviction for the offense of shoplifting, the court shall order the defendant to pay a penalty to the mercantile establishment involved in the amount of $50.00 or double the value of the merchandise involved, whichever is higher, unless the mercantile establishment agrees to a waiver or reduction of such penalty, and the municipal court judge approves said waiver or reduction. The mercantile establishment shall be entitled to collect such mandatory penalty as in the case of a civil judgment. This penalty shall be in addition to the mercantile establishment's rights to recover the stolen merchandise.

(h) In determining the number of prior shoplifting convictions for purposes of imposing punishment under this section, the court shall disre-

*__State law reference—__Shoplifting, W. Va. Code § 61-3A-1 et seq.

gard all such convictions occurring more than seven years prior to the shoplifting offense in question.

(i) An act of shoplifting is declared to constitute a breach of peace; and any owner of merchandise, his agent or employee, or any law enforcement officer who has reasonable ground to believe that a person has committed shoplifting may detain such person in a reasonable manner and for a reasonable length of time not to exceed 30 minutes, for the purpose of investigating whether or not such person has committed or attempted to commit shoplifting. Such reasonable detention shall not constitute an arrest, nor shall it render the owner of merchandise, his agent or employee, liable to the person detained.

(j) *Conceal* means to hide, hold or carry merchandise so that, although there may be some notice of its presence, it is not visible through ordinary observation.

(k) *Merchant* means an owner or operator of any mercantile establishment and includes the merchant's employee's servants, security agent or other agents.

(l) *Mercantile establishment* means any place where merchandise is displayed, held or offered for sale, either at retail or wholesale. The term does not include adjoining parking lots or adjoining areas of common use with other establishments.

(m) *Merchandise* means any goods, foodstuffs, wares or personal property, or any part or portion, of any type or description displayed, held or offered for sale, or a shopping cart.

(n) *Value of merchandise* means the merchant's stated price of the merchandise or, in the event of altering, transferring or removing a price marking or causing a cash register or other sales device to reflect a less than the retail value of the merchandise, as defined in subsection (a) of this section, the difference between the merchant's stated price of the merchandise and the altered price.

(Code 1975, § 18-58; Ord. No. 6669, 5-15-2000; Bill. No. 7372, 1-20-2009)

**Cross reference—**Definitions generally, § 1-2.

### Sec. 78-102. Constitutes breach of peace; detention of suspects.

An act of shoplifting as defined in section 78-101 is declared to constitute a breach of peace; and any owner of merchandise, his agent or employee, or any city police officer who has reasonable ground to believe that a person has committed shoplifting may detain such person in a reasonable manner and for a reasonable length of time not to exceed 30 minutes for the purpose of investigating whether or not such person has committed or attempted to commit shoplifting. Such reasonable detention shall not constitute an arrest nor shall it render the owner of merchandise, his agent or employee, liable to the person detained.

(Code 1975, § 18-60)

### Secs. 78-103—78-130. Reserved.

## ARTICLE III. OFFENSES INVOLVING PUBLIC SAFETY

### DIVISION 1. GENERALLY

### Sec. 78-131. False alarms and reports.

(a) No person shall knowingly give or cause to be given any false alarm of fire.

(b) No person shall knowingly give or cause to be given any false alarm of explosion or impending danger of explosion.

(c) No person shall knowingly give or cause to be given any false alarm of the need for police protection, assistance or investigation, or any false report to the police department.

(d) No person shall knowingly give or cause to be given any false alarm of the need for an ambulance or medical assistance.

(e) No person shall knowingly give or cause to be given to the emergency services department, or to representatives of the press, radio or television, any false report of catastrophe or impending catastrophe.

(Code 1975, § 18-23)

**State law references—**False bomb reports, W. Va. Code § 61-6-17; falsely reporting an emergency incident, W. Va. Code § 61-6-20.

**Sec. 78-132. Aircraft regulations.**

(a) *Minimum altitude.* No person shall operate an aircraft at an altitude of less than 1,000 feet over this city, except at a duly established airport or when necessary to make a safe and proper landing or take off in an emergency or at a duly established airport.

(b) *Reckless flying.* No person shall operate an aircraft in the air over, or on the ground or water within this city in a careless and reckless manner in willful or wanton disregard of the rights or safety of others, or without due caution and circumspection and in a manner so as to endanger or be likely to endanger any person or property.

(c) *Stunt flying.* All stunt flying within the corporate limits of the city is prohibited.

(d) *Releasing handbills, other printed materials.* No handbills or other printed matter or announcements shall be released from or distributed by any aircraft over or within the corporate limits of the city.
(Code 1975, § 18-2)

**State law references—**Aeronautics, W. Va. Code § 29-2A-1 et seq.; reckless operation of aircraft, W. Va. Code § 29-2A-12.

**Sec. 78-133. Airtight containers.**

No person shall abandon, discard or knowingly permit to remain on premises under his control, in a place accessible to children, any refrigerator or other airtight or semiairtight container which has a capacity of 1½ cubic feet or more and an opening of 50 square inches or more and which has a door or lid equipped with hinge, latch or other fastening device capable of securing such door or lid without rendering such equipment harmless to human life by removing such hinges, latches or other hardware which may cause a person to be confined. This section shall not apply to an icebox, refrigerator or other airtight or semiairtight container located in that part of a building occupied by a dealer, warehouseman or repairman.
(Code 1975, § 18-3)

**State law reference—**Abandoning iceboxes, W. Va. Code § 61-2-26.

**Sec. 78-134. Skylights and fire escapes.**

Skylights and fire escapes on every building shall be kept free from accumulations of ice and snow or materials of any kind by the person in control or charge of the building.
(Code 1975, § 18-61)

**Secs. 78-135—78-160. Reserved.**

DIVISION 2. WEAPONS*

**Sec. 78-161. Disposition of firearms, dangerous weapons in possession of police department.**

Any firearm and any other dangerous weapon defined in W. Va. Code § 61-7-1 seized as evidence in the violation of any ordinance of the city relating to firearms or other dangerous weapons or seized pursuant to a search warrant or evidence in the violation of any law of the state relating to firearms or other dangerous weapons, or coming into the possession of the police department of the city in the performance of official duties involving the violation of any such ordinance of the city or laws of the state relating to firearms or other dangerous weapons shall, after final disposition of the case involving its owner, bearer, holder or person in whose possession such firearm or other dangerous weapon was found, when such owner, bearer, holder or person was found guilty of such offense, be turned over by the officer of the city police department involved in the case to the judge of the circuit court, justice of the peace or the judge of the municipal court who presided over the case. The judge of the municipal court shall dispose of such weapon in the manner provided in section 78-162.
(Code 1975, § 18-72)

**Sec. 78-162. Disposition of firearms, dangerous weapons in possession of municipal court.**

Any firearm or other dangerous weapon as defined in W. Va. Code § 61-7-1 coming into the possession of the municipal court as provided for

*__State law reference—__Local restrictions on firearms and weapons, W. Va. Code §§ 8-12-5(16), 8-12-5a.

in section 78-161 shall thereafter be returned to the rightful owner, destroyed or otherwise disposed of as the judge of the municipal court may direct.
(Code 1975, § 18-73)

### Sec. 78-163. Carrying without license or other authorization.

(a) It shall be unlawful for any person to carry concealed on or about his person any revolver or pistol, dirk, bowie knife, slingshot, razor, billy, metallic or other false knuckles, or other dangerous or deadly weapon of like kind or character.

(b) This section shall not be construed so as to prohibit the carrying of any weapon pursuant to licenses or other authorization issued under the authority of W. Va. Code § 61-7-2, nor shall it be construed to prevent the carrying of any weapon by persons exempted under W. Va. Code §§ 61-7-3—61-7-6.
(Code 1975, § 18-66; Ord. No. 7471, 6-6-2011)

### Sec. 78-164. Reserved.

**Editor's note—**Ord. No. 7471, adopted June 6, 2011, repealed former § 78-164 in its entirety which pertained to restrictions on carrying weapons within designated areas of the city and derived from Ord. No. 4867, 8-17-1992.

### Sec. 78-165. Carrying weapons upon municipal public property.

It shall be unlawful for any person to carry on or about his person any revolver or pistol, dirk, bowie knife, slingshot, razor, billy club, metallic or other false knuckles, or other dangerous or deadly weapon of like kind or character in or upon city hall, Municipal Auditorium, the Charleston Coliseum and Convention Center, and all parks and recreation buildings and facilities, including recreation centers, playgrounds, swimming pools, dressing areas, tennis courts, parks and recreation areas and all parking facilities, owned or occupied by the City of Charleston; however, the provisions of this section shall not apply to city, county, state and federal law enforcement officers and to exhibitors and performers at city-sanctioned events who obtain advance written authorization from the chief of police.
(Ord. No. 4941, 4-19-1993; Bill No. 7103, 12-6-2004; ord. No. 7471, 6-6-2011; Bill No. 7799, 11-19-2018)

### Sec. 78-166. Prohibited discharge.

It shall be unlawful for any person to discharge within the city any firearm, slingshot or other weapon or instrument which propels a projectile capable of inflicting bodily injury except in the lawful defense of person or property and except when necessary in the performance of a lawful duty. That this section shall not apply to the use of blank ammunition at athletic events, military funerals, theatrical performances and other functions at which the use of blank ammunition is appropriate and does not constitute any danger to any person or property, nor shall this section apply to the use of live ammunition or arrows on authorized target ranges where such use is conducted under competent supervision and adequate safeguards are provided for the protection of persons and property.
(Code 1975, § 18-67)

### Sec. 78-167. Brandishing or exposing weapons; threatening or causing breach of peace; penalty.

It shall be unlawful for any person armed with a pistol, gun or other dangerous or deadly weapon, whether licensed to carry the weapon or not, to carry, expose, brandish or use such weapon in a way or manner to cause or threaten a breach of peace. Any person violating this section shall, upon conviction, be subject to the penalties set forth in section 1-8.
(Code 1975, § 18-68)

**State law reference—**Similar provisions, W. Va. Code § 61-7-11.

### Sec. 78-168. Switchblade knives.

No person shall possess, sell, exhibit for sale, or carry on or about his person any knife equipped with a blade fitted with a mechanical device for automatic release of the blade, opening the knife

and locking the knife in the open position, commonly known as a switchblade or automatic spring knife.
(Code 1975, § 18-69)

**Sec. 78-169. Possession by persons under age 16.**

No person under the age of 16 years shall carry or have in his possession upon any street, park or other public space in the city any gun, pistol, rifle, airgun, beanshooter, sling or other dangerous weapon of any character. Nothing in this section shall be so construed as to prohibit members of duly authorized military, cadet corps or similar organizations from the proper use of their guns and other equipment as members of such organizations.
(Code 1975, § 18-70)

**Sec. 78-170. Slingshots, bows and arrows and airguns.**

It shall be unlawful for any person maliciously or recklessly to throw, shoot, cast or sling by hand, or by means of a slingshot, bow or an airgun, or otherwise, any stone, arrow, pellet or other missile.
(Code 1975, § 18-71)

**Sec. 78-171. Firearms in municipal parking facilities.**

Notwithstanding any provision in this Code to the contrary, a person may keep an otherwise lawfully possessed firearm in a motor vehicle in municipal public parking facilities if the vehicle is locked and the firearm is out of view.
(Bill No. 7614, 3-17-2014)

**Secs. 78-172—78-200. Reserved.**

## ARTICLE IV. OFFENSES INVOLVING PUBLIC PEACE AND ORDER*

### DIVISION 1. GENERALLY

**Sec. 78-201. Breach of the peace and related offenses; duties of proprietors of establishments.**

It shall be unlawful for any owner, operator or employee of any hotel, motel, restaurant, tavern or other place frequented by the public to permit any disturbance of the peace of others by violent, profane, indecent or boisterous conduct or language or by the making of unreasonably loud noise that is intended to cause annoyance or alarm to another person.
(Code 1975, § 18-7(a))

**Sec. 78-202. Disorderly conduct.**

It shall be unlawful for any person to disturb the peace of others by violent, profane, indecent or boisterous conduct or language or by the making of unreasonably loud noise that is intended to cause annoyance or alarm to another person nearby, or near to any public highway, road, street, alley, park, square or common, whereby the public peace is broken or disturbed or the traveling public annoyed.
(Code 1975, § 18-7(b))

**State law reference—**Similar provisions, W. Va. Code § 61-6-1b.

**Sec. 78-203. Riots, routs and unlawful assemblies prohibited and defined.**

(a) It shall be unlawful for any person to incite or participate in any riot, rout or unlawful assembly.

(b) For the purposes of this section, the term "riot" shall mean a public disturbance involving:

(1) An act of violence by one or more persons part of an assemblage of three or more persons, which act shall constitute a clear and present danger of, or shall

*__State law reference—__Crimes against the peace, W. Va. Code § 61-6-1 et seq.

result in, damage or injury to the property of any other person or to the person of any other individual; or

(2) A threat of the commission of an act of violence by one or more persons part of an assemblage of three or more persons having, individually or collectively, where the performance of the threatened act or acts of violence would constitute a clear and present danger of or would result in damage or injury to the property of any other person or to the person of any other individual.

(c) For the purposes of this section, the term "incite a riot" shall mean but is not limited to urging or instigating other persons to riot, but shall not be deemed to mean the mere oral or written advocacy of ideas or expression of belief not involving advocacy of any act of violence or assertion of the rightness of or the right to commit any such act.

(d) For the purposes of this section, if three or more persons meet for a purpose which, if executed, would make them rioters, and having done nothing, separate without carrying their purpose into effect, it is an unlawful assembly; but if an unlawful assembly moves forward towards the execution of its unlawful design, it becomes a rout; and if the design is carried into actual execution, it constitutes a riot.
(Code 1975, § 18-56)

**Cross reference—**Definitions generally, § 1-2.

**State law reference—**Riots, routs and unlawful assemblies, W. Va. Code § 61-6-1 et seq.

### Sec. 78-204. Dispersal; duty of police officers and participants.

Riots, routs and unlawful assemblies shall be dispersed forthwith by the city police; and all persons present at the scene of any riot, rout or unlawful assembly shall, upon command of any law enforcement officer to disperse, forthwith obey such command and peacefully disengage themselves from such riot, rout or unlawful assembly and leave the scene; and persons who fail to obey such command shall be subject to immediate arrest.
(Code 1975, § 18-57)

### Sec. 78-205. Disorderly conduct generally.

(a) It shall be unlawful and shall constitute disorderly conduct for any person to:

(1) Act in a violent or tumultuous manner toward another, whereby public property or property of any other person is placed in danger of being destroyed or damaged;

(2) Cause, provoke or engage in any fight, brawl or riotous conduct so as to endanger the life, limb, health or property of another or public property;

(3) Use fight-provoking words directed towards any person who becomes outraged and thus create turmoil;

(4) Assemble or congregate with another or others for the purpose of doing bodily harm to another;

(5) By acts of violence, interfere with another's pursuit of a lawful occupation; or

(6) Congregate with another or others in or on any public way so as to halt the flow of vehicular or pedestrian traffic and refuse to clear such public way when ordered to do so by a peace officer or other person having authority.

(b) Any person convicted of disorderly conduct, as defined in this section, shall be punished as provided in section 1-8.
(Code 1975, § 18-18)

**State law references—**Authority to enact ordinances to prevent and suppress conduct and practices which are immoral, disorderly, lewd, obscene and indecent, W. Va. Code § 8-12-5(19); disorderly conduct, W. Va. Code § 61-6-1b.

### Sec. 78-206. Disorderly conduct in public schools of the city; loitering after being requested to leave school premises.

(a) It shall be unlawful for any person to engage in disorderly conduct, as defined in section 78-205, in any public school of the city.

(b) It shall be unlawful for any person, not a student in regular attendance, to loiter in or about any school, school building or school grounds in violation of any posted regulations governing their use in such school without written permission from the principal.
(Code 1975, § 18-19)

**State law reference—**Loitering on school property, W. Va. Code § 61-6-14a.

### Sec. 78-207. Disturbance of assemblies.

No person shall, within the city, disturb, molest or interrupt any church, religious meeting, literary society, school, Sunday school, lecture, public speech, opera, concert, theater, show, society formed for the intellectual, moral or physical improvement of its members, or any peaceable and lawful assemblage of the inhabitants of the city for amusement, social or deliberative purposes, or any persons while meeting or met together for lawful purposes, or any lawful and orderly procession.
(Code 1975, § 18-21)

**State law references—**Disturbing religious worship, W. Va. Code § 61-6-13; disturbance of schools and other assemblies, W. Va. Code § 61-6-14.

### Sec. 78-208. Interfering with customers at retail store.

No person shall remain in front of or enter any store where goods are sold at retail for the purpose of interfering with any person who may be in front of or who may have entered the store for the purpose of buying.
(Code 1975, § 18-39)

### Sec. 78-209. Religious services in streets.

No person shall be concerned or instrumental in collecting or promoting any assemblage of persons under the pretense of or for any public worship or exhortation upon any of the streets or public places in the city. Nothing in this section shall be construed to prevent any clergyman or minister of any denomination, or any person responsible to or regularly associated with any church, missionary association, Salvation Army, or incorporated missionary society located in the city, or lay preacher or lay reader, from preaching in any specified place in the city, providing such person shall have obtained the written permission of the chief of police and shall not obstruct free passage upon the streets and public places; further, this section shall not be construed to prevent any minister or people or any church from assembling in proper places in the city for the purpose of performing the rites of baptism according to the ceremonies of such church. No person shall disturb, molest or interrupt any clergyman, minister, lay preacher or lay reader who shall be preaching and has obtained permission according to this section, or any minister or people who shall be performing the rites of baptism as permitted by this section. No person shall commit any riot or disorder in any such assemblage.
(Code 1975, § 18-54)

### Sec. 78-210. Curfew for underage persons.

(a) *Purpose.* The purpose of this section is to protect juveniles from victimization and exposure to criminal activity by establishing a curfew for juveniles under the age of 18 years in the city. This section is intended to reinforce and promote the role of the parent in raising and guiding children and promote the health, safety and welfare of both juveniles and adults by creating an environment offering better protection and security for all concerned.

(b) *Definitions.* The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

*Direct route* means the shortest reasonable path of travel or a commonly used route to reach a final destination without any detour or stop along the way.

*Emergency* means an unforeseen combination of circumstances or the resulting state that calls for immediate action. The term includes but is not limited to a fire, a natural disaster, an automobile accident, or any situation requiring immediate action to prevent serious bodily injury or death. This term also shall include any action that is reasonably necessary in order to respond to the medical needs of a family member of the juvenile

regardless of whether the juvenile's action is taken in order to prevent death or serious bodily injury.

*Establishment* means any privately owned place of business operated for profit to which the public has access or is invited, including but not limited to any place of amusement or entertainment.

*Guardian* means a person who is court-appointed to be the guardian of a juvenile.

*Juvenile* means any person under the age of 18 years of age.

*Owner/operator* means any individual, firm, association, partnership or corporation operating, managing or conducting any establishment, including the employees, members or partners of an association or partnership and the officers of a corporation.

*Parent* means a person who is a natural parent, adoptive parent, foster parent or stepparent of another person, or a person to whom legal custody has been given by court order.

*Public place* means any place that is generally open to and used by the public or a substantial group of the public, whether it is publicly or privately owned, including but not limited to streets, sidewalks, highways, alleys rights-of-way, public vehicular areas and parking lots, transportation facilities, theaters, restaurants, shops, bowling alleys, schools and school grounds, places of business and amusement, playgrounds, parks, and similar areas that are open to or accessible to the public.

*Remain* means to linger or stay in a public place, or to fail to leave the premises when requested to do so by a police officer, or to fail to leave the premises of an establishment when requested to do so by the owner/operator or an employee of the premises.

*Restricted hours* means the time of night referred to in this section is based upon the prevailing standard of time, whether Eastern Standard Time or Eastern Daylight Saving Time, generally observed by the public in the city. The term shall mean:

(1) 10:00 p.m. on any Sunday, Monday, Tuesday, Wednesday or Thursday until 6:00 a.m. of the following day; and

(2) 12:01 a.m. until 6:00 a.m. on any Friday or Saturday.

(c) *Offenses.* Except as provided by subsection (d) of this section, the following offenses constitute a violation of this section:

(1) A juvenile commits an offense by being present in or remaining in any public place or on the premises of any establishment within the city during the restricted hours.

(2) A parent or guardian of a juvenile commits an offense if he knowingly permits or by insufficient control, allows the juvenile to remain in any public place or on the premises of any establishment within the city during restricted hours. The term "knowingly" includes knowledge that a parent or guardian should reasonably be expected to have concerning the whereabouts of a juvenile in his legal custody. This requirement is intended to hold a neglectful or careless parent or guardian up to a reasonable community standard of parental responsibility through an objective test. It shall, therefore, be no defense that a parent or guardian was completely indifferent to the activities or conduct or whereabouts of such juvenile.

(3) The owner, operator or an employee of an establishment commits an offense if he knowingly allows a juvenile to remain upon the premises of an establishment during the restricted hours. The term "knowingly" includes knowledge that an operator or employer should reasonably be expected to have concerning the patrons of an establishment. The standard for "knowingly" shall be applied through an objective test: whether a reasonable person in the operator's or employee's

position should have known that the patron was a juvenile in violation of this section.

(4) It shall be a violation of this section for any person 18 years or older to aid and abet a juvenile in the violation of subsection (c)(1) of this section.

(5) It shall be a violation of this section for a parent or guardian to refuse to take custody during the restricted hours of a juvenile for whom the parent or guardian is responsible.

(d) *Exceptions.* A juvenile who in a public place or establishment during the restricted hours shall not be in violation of this section if the juvenile is:

(1) Accompanied by his parent or guardian.

(2) Accompanied by an adult 18 years of age or older authorized by the parent or guardian of such juvenile to take the parent's or guardian's place in accompanying the juvenile for a designated period of time and purpose within the specified area.

(3) On an errand, using a direct route, at the direction of the juvenile's parent or guardian until the hour of 12:30 a.m.

(4) In a motor vehicle with parental consent engaged in interstate travel through the city or originating or terminating in the city.

(5) Traveling in a motor vehicle with a parent or guardian, or traveling in a motor vehicle with an adult 18 years of age or older authorized by the parent or guardian of such juvenile to take the parent's or guardian's place in accompanying the juvenile for a designated period of time and purpose within a specified area.

(6) Engaged in a lawful employment activity or using a direct route to or from a place of employment.

(7) Reacting or responding to an emergency.

(8) Attending or traveling to or from, by direct route, an official school, religious or recreational activity that is supervised by adults and sponsored by a public or private school, the city or other governmental entity, a civic organization, or another similar entity that accepts responsibilities for the juvenile.

(9) Exercising First Amendment rights protected by the United States Constitution such as the free exercise of religion, freedom of speech, and the right of assembly.

(10) Married or emancipated.

(11) When authorized, by special permit from the chief of police or his designee carried on the person of the juvenile thus authorized, as follows: When necessary nighttime activities of a juvenile may be inadequately provided for by other provisions of this section, the recourse may be had to the chief of police or his designee, either for a regulation as provided in subsection (d)(12) of this section or for a special permit as the circumstances warrant. Upon the findings of reasonable necessity for the use of a public place to the extent warranted by a written application signed by a juvenile, and by a parent or guardian of the juvenile, if feasible, stating the:

a. Name, age and address of the juvenile;

b. Name, address and telephone number of a parent of the juvenile;

c. Height, weight, sex, color of eyes and hair, and other physical characteristics of the juvenile;

d. Necessity that requires the juvenile to remain upon a public place during restricted hours otherwise applicable; and

e. Public place and date and hour involved;

The chief of police or his designee may grant a permit in writing for the juvenile's use of a public place at such hours as in the opinion of the chief of police may reasonably be necessary and consistent with the purposes of this section.

(12) When authorized, by regulation issued by the chief of police or his designee in other

similar cases of reasonable necessity, similarly handled as set forth in subsection (d)(11) of this section but adapted to reasonably necessary nighttime activities of more juveniles than can readily be dealt with on an individual special permit basis. Normally such regulation by the chief of police or his designee permitting use of public places should be issued sufficiently in advance to permit appropriate publicity through news media and through other agencies such as the schools, and shall define the activity, the scope of the use of the public places permitted, the period of time involved not to extend more than one hour beyond the time for termination of the activity, and the reason for finding that the regulation is reasonably necessary and is consistent with the purpose of this section.

(e) *Defense.* It is a defense to prosecution under subsection (c)(3) of this section that the owner, operator or employee of an establishment promptly notified the police department that a juvenile was present on the premises of the establishment during the restricted hours and refused to leave.

(f) *Enforcement.*

(1) Before taking any enforcement action under this section, a police officer shall ask the apparent offender's age and reason for being in the public place or establishment during the restricted hours.

(2) The officer shall not prepare a juvenile arrest report, issue a citation or make an arrest under this section unless the officer reasonably believes that an offense has occurred and that, based on any responses and other circumstances, no exceptions or defense in subsection (d) or (e) of this section is present.

(g) *Penalties.*

(1) A juvenile who violates any provision of this section is subject to being adjudicated delinquent. The municipal court may in its discretion impose any dispositional alternatives that are provided by W. Va. Code § 49-5-2.

(2) Any person other than a juvenile who is found guilty of violating any provision of this section shall be guilty of a misdemeanor.

(Ord. No. 6411, § 18-17, 12-1-1997; Bill No. 7211, 7-3-2006)

**Sec. 78-211. Drunkenness in public place; drinking or possession of alcoholic beverages in public; sale and use of nonintoxicating beer or other alcoholic beverages; penalties.**

(a) It shall be unlawful for any person to appear in a public place while under the influence of an intoxicating liquor, marijuana or other drugs or narcotics, in such a condition as to be unable to exercise care for his own safety or the safety of others.

(b) It shall be unlawful to serve drinks or possess open or unsealed containers of alcoholic liquor, beer, wine or any other alcoholic beverage or nonintoxicating beer in any public place in the city except as otherwise provided by law and authorized in writing by the chief of police.

(c) It shall be unlawful for any person to inhale any natural, artificial or pharmaceutical substance, including model glue, gasoline or paint, whether gaseous, liquid or solid, the fumes of which when inhaled by a human being cause a condition of or induce or produce symptoms of intoxication or other irrational behavior or distort or disturb the audio, visual or mental process.

(d) It shall be unlawful for any person, licensee, his or its servants, agents or employees, to sell, furnish or give any nonintoxicating beer or intoxicating liquor to any person under the age of 21 years.

(e) It shall be unlawful for any person over the age of 21 to buy for or give to or supply in any manner nonintoxicating beer or intoxicating liquor to a person under the age of 21.

(f) Any person who violates this section shall be guilty of a misdemeanor and, upon conviction thereof, shall be sentenced by the municipal court judge in accordance with the following: (1) Upon a conviction for first offense, a fine of not less than

$5.00 nor more than $100.00. If the individual agrees to voluntarily attend an alcohol education program approved by the court of at least three hours duration, the municipal judge may delay sentencing until the program is completed and upon completion may waive part or all of the fines; (2) upon conviction for a second offense, a fine of not less than $5.00 nor more than $500.00. If the individual agrees to voluntarily attend an alcohol education program approved by the court of at least nine hours' duration, the municipal judge may delay sentencing until the program is completed and upon completion may dismiss waive part or all of the fines; (3) upon third and subsequent convictions, a fine of not less than $100.00 nor more than $500.00 and not less than five nor more than 30 days in the regional jail. The municipal judge has the discretion to suspend all or part of the jail sentence imposed or fines levied, if the individual agrees to voluntarily, and at their own expense, be admitted into a court approved in-patient treatment facility, which provides treatment for alcohol addiction. Upon credible proof from in-patient treatment facility of successful completion of said in-patient program, any fines and/or jail sentence imposed will be vacated by the court.

(g) The officer has the discretion to issue either a citation or make an arrest.

(Code 1975, § 18-22; Ord. No. 4591, § 18-22, 4-16-1991; Bill. No. 7372, 1-20-2009)

**Cross reference—**Streets, sidewalks and other public places, ch. 102.

**State law references—**Public drinking, W. Va. Code § 60-6-9; public intoxication, W. Va. Code § 61-8-15; alcohol purchases by underage persons, W. Va. Code §§ 11-16-19, 60-3-22a; alcohol sales to underage persons, W. Va. Code §§ 11-16-10, 60-3-22.

### Sec. 78-212. Noise control.

(a) *Declaration of policy*. This section is enacted to prevent excessive sound that may jeopardize the health, welfare, or safety of the citizens of Charleston or degrade the quality of life. It is not the intent of this section to interfere unduly with the freedoms of speech or religion.

(b) *Definitions*. The following words and terms, when used in this section, shall have the following meanings, unless the context clearly indicates otherwise:

*City* means the jurisdictional limits of the City of Charleston, West Virginia.

*Dwelling* means a residence or abode, including, but not limited to, a house, mobile-home, condominium, apartment or other structure used as a home.

*Dynamic braking system* means a device used primarily on trucks for the conversion of the engine from an internal combustion engine to an air compressor for the purpose of braking without the use of wheel brakes, which devices are commonly referred to as "Jacob's brakes" or "jake brakes."

*Fireworks* as used in this section shall have the same meaning as defined in W. Va. Code Section 29-3E-2, but shall not include sparkling devices, novelties, toy caps, or model rockets.

*Motorboat* means every description of watercraft, other than a seaplane on the water, used or capable of being used as a means of transportation on water, propelled by an electric, steam, gas, diesel or other fuel propelled or driven by motor, whether or not the motor is the principal source of propulsion, but does not include a boat which has a valid marine document issued by the Bureau of the United States government or any federal agency successor thereto.

*Motorcycle* means every motor vehicle having a seat or a saddle for the use of the rider and designed to travel on not more than three wheels in contact with the ground, excluding a tractor.

*Motor vehicle* means any self-propelled vehicle including passenger cars, trucks, truck-trailers, semi-trailers, recreational vehicles, campers and racing vehicles.

*Muffler* means a properly functioning sound dissipative device or system for abating the sound of escaping gasses on equipment where such a device is part of the normal configuration of the equipment.

*Noise* means any sound of such character, level or duration: 1) which may be injurious to human health or welfare; or 2) which unreasonably interferes with the enjoyment of life or property throughout the city or in any portion thereof; or 3) which disturbs the good order or

quiet of the community; or 4) which annoys or disturbs a reasonable person of normal sensitivity.

(c) *Noise prohibited*; generally. Subject to the exceptions contained herein, no person shall make, continue or cause to be made any noise as defined herein.

(d) *Noise prohibited*; motor vehicles, motorcycles, motorboats.

(1) All motor vehicles, motorcycles, and motorboats shall be operated as quietly as possible at all times within the city. No person shall operate any motor vehicle, motorcycle or motorboat in such a manner so as to cause unnecessary noise within the city.

(2) No person operating or occupying a motor vehicle on a street or highway shall amplify from within the motor vehicle the sound produced by a radio, tape player, or other mechanical soundmaking device or instrument used for entertainment, so that the sound is plainly audible at a distance of 25 feet or more from the motor vehicle.

(3) No person shall remove or render inoperative, or cause to be removed or rendered inoperative, other than for purposes of maintenance, repair, or replacement, any muffler or sound dissipative device on a motor vehicle, motorcycle or motorboat operated within the city.

(4) No person shall operate, or permit the operation within the city of any motor vehicle, motorcycle, or motorboat without factory installed mufflers or their equivalent; provided that if no factory installed or equivalent muffler was present at the time of manufacture of the motor vehicle, motorcycle, or motorboat, then sound emanating from the motor vehicle, motorcycle, or motorboat shall be effectively muffled in a reasonable manner by equipment so constructed and used to muffle sound.

(5) No person shall use a muffler cutout, bypass, or similar device upon a motor vehicle or motorcycle operated within the city.

(6) No person in actual physical control of a motor vehicle within the city shall use a dynamic braking system unless said use is necessary to prevent or avoid an accident that may cause property damage, injury, or loss of life. This provision shall not apply to fire trucks or other emergency vehicles equipped with a dynamic braking system.

(e) *Noise prohibited*; dwelling.

(1) No person occupying a dwelling within the city shall amplify from within the dwelling the sound produced by a radio, tape player, television or other mechanical soundmaking device or instrument used for the purposes of entertainment, so that the sound is plainly audible at a distance of 25 feet or more from the dwelling.

(f) *Exemptions*.

(1) The following are exempt from the provisions of this section:

a. Noise resulting from emergency or necessary maintenance work as performed by the City of Charleston, State of West Virginia or its political subdivisions, or public utility companies, including, but not limited to, any work of any kind on roads, streets, bridges, alleys, rights-of-way or government owned property;

b. Noise resulting from any emergency vehicle, when responding to an emergency call or acting in time of emergency, or during training exercises and maintenance;

c. Noise from emergency signaling devices except as provided in subsection 78-212(f)(1)d, herein;

d. Noise from a burglar or fire alarm installed on any building, motor vehicle or other property so long as

the alarm terminates its operation within five minutes of its activation; provided that it shall be deemed reasonable for an activated alarm to continue to operate if a crime or fire is in progress at or near the property and/or until law enforcement or other emergency personnel have responded to a legitimate call for assistance related in any way to the property at which the activated alarm is located;

e. Noise from domestic power tools, landscaping and yard maintenance equipment, and agricultural equipment when operated between the hours of 7:00 a.m. and 9:00 p.m. on weekdays and between the hours of 8:00 a.m. and 9:00 p.m. on weekends and legal holidays;

f. Noise from commercial or industrial power tools, landscaping and yard maintenance equipment, and agricultural equipment on a residential property or within 250 feet of a residential property line when operated on commercial or industrial property, between the hours of 7:00 a.m. and 9:00 p.m. on weekdays and between the hours of 8:00 a.m. and 9:00 p.m. on weekends and legal holidays;

g. Noise from church bells and chimes when used as part of a religious observance or service or for national celebrations or public holidays, and those bells and chimes that are presently installed and in use, provided said use is reasonable and for a church related purpose;

h. Noise generated during the normal course of business by any properly licensed commercial or industrial enterprise operating lawfully within an area properly zoned for said enterprise, unless or until said lawful business use is deemed abandoned as a matter of law or fact;

i. Noise from construction, drilling, earthmoving, excavating, or demolition activity provided all motorized equipment used in such activity is equipped with functioning mufflers;

j. Noise from snow blowers, snow throwers, and snow plows when operated with a muffler for the purpose of snow removal;

k. Noise generated in situations within the jurisdiction of the Federal Occupational Safety and Health Administration;

l. Noise generated from city sponsored or approved celebrations or events, including, but not limited to, parades, outdoor concerts, and athletic events;

m. Noise generated from secondary school and higher education sponsored or approved celebrations or events, including, but not limited to, outdoor concerts or band festivals and outdoor athletic events and practices;

n. Noise produced by a governmental body or employee in the performance of a governmental function;

o. Noise generated from athletic events or practices;

p. Noise generated from airplanes at Yeager Airport;

q. Noise generated from railroads within the city;

r. Noise generated from events at the Charleston Coliseum and Convention Center or Municipal Auditorium;

s. Noise generated from the ignition, discharge, detonation, or other use of fireworks when such use is sponsored or approved by the city;

t. Noise generated from events promoted by the Charleston Convention and Visitors Bureau; and

u. Noise generated by the ignition, discharge, detonation, or other use of fireworks between 11:00 a.m. and

11:00 p.m. on Memorial Day, Independence Day and Labor Day, or between 11:00 a.m. on December 31 and 1:00 a.m. on January 1, or at such other day or time as may be approved by the chief of police to the extent permitted by this Code.

(2) For purposes of the exemptions contained in subsection 78-212(f)(1)l. and m., all celebrations and events held at Appalachian Power Park and University of Charleston Stadium at Laidley Field are presumed to be city sponsored or approved or secondary school and higher education approved. FestivAll, Live on the Levee, Doo-Wop and Rod Run, Symphony Sunday, The Wine and Jazz Festival, and Multifest, are also presumed to be "city sponsored or approved" and are specifically exempt from the foregoing prohibitions. The list of presumed city sponsored or approved and secondary school and higher education approved celebrations and events listed under this subsection is not intended to be exclusive.

(g) *Enforcement*. Any person found guilty of violating section 78-212, as defined herein shall be punished by a fine as follows: $100.00 for the first offense within a 24 month period; $200.00 for a second offense within a 24-month period; $300.00 dollars for a third offense within a 24-month period; $400.00 dollars for a fourth offense within a 24-month period and $500.00 dollars for the fifth and each subsequent offense within a 24-month period. If the violation is of a continuing nature, each day during which it occurs shall constitute an additional, separate, and distinct offense.

(h) *Severability*.

(1) If any provision or portion of a provision of this section is held to be unconstitutional, preempted by federal or state law, or otherwise invalid by any court of competent jurisdiction, the remaining provisions of the section shall not be invalidated.

(2) All ordinances or parts of ordinances which are materially inconsistent with any provisions of this section are hereby repealed as to the extent of any such material inconsistency.

(Code 1975, § 18-47; Bill. No. 7375, 8-17-2009; Bill No. 7514, 4-2-2012; Bill No. 7713, 10-3-2016; Bill No. 7799, 11-19-2018)

**State law reference—**Disorderly conduct, W. Va. Code § 61-6-1b.

### Sec. 78-213. Obstructing pedestrians for purpose of inducing to purchase.

No person shall in any street or upon any sidewalk or footway engage in obstructing passage along or upon such place by catching hold of or soliciting any persons or in any way interfering with their free passage along any streets, sidewalks or footways for the purpose of inducing or compelling them to buy any article or thing from any store or stand, or to patronize any hotel, inn, boardinghouse or other place of entertainment or amusement.

(Code 1975, § 18-48)

### Secs. 78-214—78-230. Reserved.

## DIVISION 2. PICKETING*

### Sec. 78-231. Purpose of division.

It is the purpose of this division to protect persons who are picketing in a lawful manner against interference by those who might attempt to intimidate them by violence or by the use of insulting or threatening words or gestures, and to preserve the public peace and tranquility at any place where picketing is taking place. It is also the purpose of this division to protect persons who are not picketing and who are acting in a lawful manner against interference by picketers or supporters of picketers who might intimidate them by violence or by the use of insulting or threatening words or gestures.

(Code 1975, § 20-1)

*__State law reference—__Disorderly conduct, W. Va. Code § 61-6-1b.

**Sec. 78-232. Conditions under which picketing permitted; unlawful picketing generally.**

(a) Peaceful picketing in the furtherance of a lawful purpose shall be permitted in the city when it is done under the following conditions:

(1) Picketing may be conducted only upon sidewalks and areas reserved for pedestrian movement and may not be conducted upon the portion of a street used primarily for vehicular traffic.

(2) Pickets may carry placards or signs which promote the objective for which the picketing is done; provided, no word, language or illustration is obscene in nature or which tends to incite any breach of the public peace.

(b) Picketing done contrary to the provisions of this division shall be unlawful.
(Code 1975, § 20-2)

**Sec. 78-233. Prohibited conduct at scene of picketing.**

(a) It shall be unlawful for any person to interfere physically with any picket or other person lawfully present at the scene of any picketing or to address profane, indecent, abusive or threatening language or gestures to or at any picket or other person so present or to incite any breach of the public peace.

(b) It shall be unlawful for any person to prevent or attempt, by the use of force or threat, any other person from lawfully entering or leaving at will any factory, store, place of business or other premises within the city.
(Code 1975, § 20-3)

**Sec. 78-234. Unlawful assemblies; dispersal of unlawful assemblies and arrest of those not dispersing.**

(a) All assemblages of persons upon the streets, sidewalks or public places in the city, or upon privately owned property without the consent of the owner or person in charge, for the purpose of preventing those having a lawful right to do so from entering or leaving at will any factory, store, place of business or other premises are declared to be unlawful assemblies and are prohibited; and they shall be subject to dispersal by the city police and other law enforcement officers.

(b) All assemblages of persons upon the streets, sidewalks or public places in the city, or upon privately owned property without the consent of the owner or person in charge, for the purpose of intimidating pickets who are lawfully engaged in picketing are declared to be unlawful assemblies and are prohibited; and they shall be subject to dispersal by the city police and other law enforcement officers.

(c) All persons constituting an unlawful assembly as provided in this section shall, upon command of any law enforcement officer, forthwith disperse and peacefully leave the scene of such assembly; and those who fail to comply with such command to disperse shall be subject to immediate arrest.
(Code 1975, § 20-4)

**Sec. 78-235. Protecting passage to and from health care facilities; preserving rights of picketers; offense and penalties.**

(a) The City of Charleston recognizes that access to health care facilities for the purpose of obtaining medical counseling and treatment is imperative; that the exercise of a person's First Amendment rights must be protected by the city subject to content-neutral time, place, and manner regulation; that the exercise of a person's right to protest or counsel for or against medical procedures must be balanced against another person's right to obtain medical counseling and treatment in an unobstructed manner; that the city, through the Charleston Police Department, has an interest in protecting the safety of individuals seeking wide-ranging health care services and individuals exercising their right to protest; that the city has an interest in protecting access to health care services and the privacy of those obtaining health care services; that the Charleston Police Department has an interest in clear guidelines unrelated to the content of the any person's speech; and that preventing the willful obstruction of a person's access to medical counsel-

ing and treatment at a health care facility is a matter of public concern. The city council therefore declares that it is appropriate to enact an ordinance that prohibits a person from knowingly obstructing another person's entry to or exit from a health care facility.

(b) A person who knowingly obstructs, detains, hinders, impedes, or blocks another person's entry to or exit from a health care facility or a health care facility's dedicated parking facility is guilty of a misdemeanor offense and, upon conviction, may be confined for up to 30 days or fined up to $500.00, or both confined and fined.

(c) No person shall knowingly approach another person within eight feet of such person, unless such other person consents, for the purpose of passing a leaflet or handbill to, displaying a sign to, or engaging in oral protest, education, or counseling with such other person in the public right-of-way or sidewalk area within a radius of 100 feet from any entrance door to a health care facility. Any person who violates this subsection (c) is guilty of a misdemeanor offense and, upon conviction, may be confined for up to 30 days or fined up to $500.00, or both confined and fined.

(d) For the purposes of this section, "health care facility" means any entity operating within the city that is licensed, certified, or otherwise authorized or permitted by law to administer health care services, medical treatment, or behavioral or mental health services as a health care provider in West Virginia.

(e) In addition to, and not in lieu of, the penalties set forth in this section, a person is entitled to recover civil damages and obtain injunctive relief from any person who violates the provisions of this section or incites others to violate the provisions of this section. A criminal conviction under this section is not a condition precedent to maintaining a civil action pursuant to this subsection.

(f) Any provision of the Code of the City of Charleston that is in conflict with this section is hereby repealed and the provisions of this section shall apply with respect to any such conflict.
(Bill No. 7819, 6-3-2019)

**Secs. 78-236—78-250. Reserved.**

## DIVISION 3. SOUND TRUCKS

### Sec. 78-251. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

*Sound amplifying equipment* means any machine or device for the amplification of the human voice, music or any other sound. The term shall not be construed as including standard automobile radios when used and heard only by occupants of the vehicle in which installed or warning devices on authorized emergency vehicles or horns or other warning devices on other vehicles used only for traffic safety purposes.

*Sound truck* means any motor or other vehicle having mounted on or attached to the vehicle any sound amplifying equipment.
(Code 1975, § 31-158)

**Cross reference—**Definitions generally, § 1-2.

### Sec. 78-252. Noncommercial use of sound trucks.

(a) *Registration required.* No person shall use or cause to be used a sound truck with sound amplifying equipment in operation for noncommercial purposes in the city before filing a registration statement with the chief of police in writing. This registration statement shall be filed in duplicate and shall state the following:

(1) Name and home address of the applicant.

(2) Address of place of business of the applicant.

(3) License number and motor number of the sound truck to be used by the applicant.

(4) Name and address of the person who owns the sound truck.

(5) Name and address of the person having direct charge of the sound truck.

(6) Names and addresses of all persons who will use or operate the sound truck.

(7) The purpose for which the sound truck will be used.

(8) A general statement as to the section of the city in which the sound truck will be used.

(9) The proposed hours of operation of the sound truck.

(10) The number of days of proposed operation of the sound truck.

(11) A general description of the sound amplifying equipment which is to be used.

(12) The maximum sound producing power of the sound amplifying equipment to be used in or on the sound truck. State the following:

a. The wattage to be used.

b. The volume in decibels of the sound which will be produced.

c. The approximate maximum distance for which sound will be thrown from the sound truck.

(b) *Registration statement amendment.* All persons using or causing to be used sound trucks for noncommercial purposes shall amend any registration statement filed pursuant to subsection (a) of this section within 48 hours after any change in the information furnished in subsection (a) of this section.

(c) *Registration and identification.* The chief of police shall return to each applicant under subsection (a) of this section one copy of the registration statement duly certified by the chief of police as a correct copy of the application. This certified copy of the application shall be in the possession of any person operating the sound truck at all times while the sound truck's sound amplifying equipment is in operation, and it shall be promptly displayed and shown to any police officer of the city upon request.

(d) *Regulations for use.* Noncommercial use of sound trucks in the city with sound amplifying equipment in operation shall be subject to the following regulations:

(1) The only sounds permitted are music or human speech.

(2) Operations are permitted for two hours each day, except on Sundays and legal holidays, when no operations shall be authorized. The permitted two hours of operation shall be between the hours of 12:00 noon and 1:00 p.m. and between the hours of 5:00 p.m. and 6:00 p.m.

(3) Sound amplifying equipment shall not be operated unless the sound truck upon which such equipment is mounted is operated at a speed of at least ten miles per hour except when the truck is stopped or impeded by traffic. Where stopped by traffic, the sound amplifying equipment shall not be operated for longer than one minute at each such stop.

(4) Sound shall not be issued within 100 yards of hospitals, schools, churches, courthouses or public gatherings.

(5) No sound truck with its amplifying device in operation shall be operated on any street within the congested district or within a business district of the city.

(6) The human speech and music amplified shall not be profane, lewd, indecent or slanderous.

(7) The volume of sound shall be controlled so that it will not be audible for a distance in excess of 100 feet from the sound truck and so that the volume is not unreasonably loud, raucous, jarring, disturbing or a nuisance to persons within the area of audibility.

(8) No sound amplifying equipment shall be operated in excess of 15 watts of power in the last stage of amplification.

(Code 1975, § 31-159)

### Sec. 78-253. Commercial advertising by sound truck prohibited.

No person shall operate or cause to be operated any sound truck for commercial sound advertising purposes in the city with sound amplifying equipment in operation.

(Code 1975, § 31-160)

### Sec. 78-254. Police department activities excluded.

Any activity by the police department or any activity sponsored by the police department shall not be subject to the provisions and requirements of this division.
(Code 1975, § 31-161)

### Secs. 78-255—78-290. Reserved.

## ARTICLE V. OFFENSES INVOLVING PUBLIC MORALS*

### DIVISION 1. GENERALLY

### Sec. 78-291. Reserved.

**Editor's note—**Bill No. 7435, adopted Sept. 20, 2010, repealed former § 78-291 in it entirety which pertained to adultery and fornication and derived from § 18-1 of the Code of 1975.

### Sec. 78-292. Indecent exposure; public indecency; penalty.

(a) It shall be unlawful in a public place for any person to intentionally expose his sex organs or anus under circumstances in which he knows his conduct is likely to cause affront or alarm.

(b) It shall be unlawful in a public place for any person, knowing his conduct is likely to be observed by others who would be affronted or alarmed, to:

(1) Engage in any overt act of sexual gratification; or

(2) Intentionally expose the private or intimate parts of his body or the body of another person.

(c) Any person convicted of violation of this section shall be punished as provided in section 1-8.
(Code 1975, § 18-35)

**State law reference—**Indecent exposure, W. Va. Code § 61-8-9.

*__State law reference—__Authority to prohibit immoral, disorderly, lewd, obscene or indecent conduct, W. Va. Code § 8-12-5(19).

### Secs. 78-293—78-310. Reserved.

### DIVISION 2. OBSCENITY AND RELATED OFFENSES†

### Sec. 78-311. Sale, possession or giving away of obscene literature.

It shall be unlawful for any person within the city to sell, distribute, lend, give away, exhibit or offer to sell, distribute, lend, give away, exhibit or have in his possession for any such purposes any obscene, lewd, lascivious or immoral book, magazine, pamphlet, paper, writing, advertising, picture, circular or newspaper.
(Code 1975, § 18-36)

### Sec. 78-312. Marking of indecent words, pictures, figures at places exposed to public view.

It shall be unlawful for any person to write, draw, mark or otherwise display any obscene, lewd or indecent word, picture or figure upon any street or sidewalk or upon any pole, wall or other structure in any public place or upon any pole, wall or other structure so as to be visible to a person in any public place.
(Code 1975, § 18-37)

### Sec. 78-313. Indecent shows or exhibitions.

No person shall take part in any entertainment, play, opera, lecture, museum, circus, menagerie or exhibition of animals, panorama, exhibit of a painting, sculpture, wax works, or other representations, tricks of legerdemain, gymnastics, game, ball, musical party, concert or any other exhibition, entertainment, show or amusement of whatever name or nature at any place in the city, whether as an actor, performer, director, manager, exhibitor, lecturer or employee, in which entertainment any person shall use any indecent language, or conduct himself in any indecent manner, or sing any songs or render music of an indecent character, or take part in any song, act, farce or play wherein any person

†__State law reference—__Distribution or exhibition of obscene matter to minors, W. Va. Code § 61-8A-1 et seq.

shall make any indecent motion, sign or movement, or make any indecent gestures, or exhibit himself in a manner offensive to common decency; or wherein anything whatsoever shall appear or be in anywise presented or exhibited which in any manner is offensive to common decency.
(Code 1975, § 18-38)

**Secs. 78-314—78-320. Reserved.**

## DIVISION 3. PROSTITUTION AND RELATED OFFENSES*

### Sec. 78-321. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

*House of prostitution* means any building, house or other place which is used for the purposes of prostitution.

*Prostitution* means the act by one person of oral, anal or vaginal sex with any other person for hire, compensation or other reward.

*Public place* means any street, sidewalk, bridge, alley or alleyway, plaza, park, driveway, parking lot or transportation facility or the doorways and entrance ways to any building which fronts on any of these places, or a motor vehicle in or on any such place.
(Code 1975, § 18-531; Ord. No. 6043, § 18-53(a), 10-17-1994)

**Cross reference—**Definitions generally, § 1-2.

### Sec. 78-322. Violation; penalty.

(a) Except as provided in subsection (b), below, any person violating the provisions of this division shall be guilty of a misdemeanor and subject to the general penalties as provided in section 1-8 of this Code.

(b) Upon the first conviction of any one of the following prostitution offenses, the defendant shall be guilty of a misdemeanor and subject only to a fine of up to $500.00:

(1) Engaging in prostitution in violation of section 78-323;

(2) Entry to a house of prostitution in violation of section 78-325;

(3) Enticing for prostitution in violation of section 78-327; and

(4) Loitering for prostitution in violation of section 78-328.

(Code 1975, § 18-53; Ord. No. 6043, § 18-53(h), 10-17-1994; Bill No. 7608, 12-2-2013)

### Sec. 78-323. Engaging in prostitution.

No person shall submit or offer to submit to oral, anal or vaginal sex with any other person for compensation of any type or otherwise engage in an act of prostitution.
(Code 1975, § 18-53; Ord. No. 6043, § 18-53(b), 10-17-1994)

### Sec. 78-324. Keeping houses of prostitution; persons under the age of 18.

No person shall knowingly within the city keep, maintain, superintend or manage a house of prostitution, or harbor, secrete or permit any child under the age of 18 years to remain in, visit or frequent such house of prostitution.
(Code 1975, § 18-53; Ord. No. 6043, § 18-53(c), 10-17-1994)

### Sec. 78-325. Entry to house of prostitution.

No person shall enter a house of prostitution for the purpose of engaging in prostitution or an oral, anal or vaginal sex act for compensation of any type.
(Code 1975, § 18-53; Ord. No. 6043, § 18-53(d), 10-17-1994)

*__State law references—__Prostitution and related offenses, W. Va. Code § 61-8-5 et seq.; authority to prohibit prostitution, W. Va. Code § 8-12-5(18).

### Sec. 78-326. Use of premises for prostitution.

No person shall knowingly permit any house, apartment, motel, hotel or other house, room or tenement in his possession or under his charge and control to be used for the purpose of prostitution.
(Code 1975, § 18-53; Ord. No. 6043, § 18-53(e), 10-17-1994)

### Sec. 78-327. Enticing for prostitution.

No person shall invite, entice or persuade any person or address any person for the purpose of inviting, enticing or persuading such person to submit to oral, anal or vaginal sex for compensation or to follow the practice of prostitution.
(Code 1975, § 18-53; Ord. No. 6043, § 18-53(f), 10-17-1994)

### Sec. 78-328. Loitering for prostitution.

No person shall remain or wander about in a public place and repeatedly beckon to, or repeatedly stop, or repeatedly attempt to stop, or repeatedly attempt to engage passersby in conversation, or repeatedly stop or attempt to stop motor vehicles, or repeatedly interfere with the free passage of other persons, for the purpose of prostitution, or of patronizing a prostitute.
(Code 1975, § 18-53; Ord. No. 6043, § 18-53(g), 10-17-1994)

### Secs. 78-329—78-340. Reserved.

## DIVISION 4. GAMBLING*

### Sec. 78-341. Keeping or exhibiting gaming table, machine or device; penalty; seizure of table, machine or device; forfeiture of money used in such gaming.

It shall be unlawful for any person anywhere within the police jurisdiction of the city to keep or exhibit a gaming table, or any slot machine, multiple coin console machine, multiple coin console slot machine or device in the nature of a slot machine, or any other gaming table or device of like kind, under any denomination, or which has no name, whether the game, table, bank, machine or device is played with cards, dice or otherwise, or to be a partner, or concerned in interest, in keeping or exhibiting such table, bank, machine or gaming device of any character. In addition to any fine or imprisonment for the violation of this section, any such table, bank, machine or gaming device; and all money staked or exhibited to allure persons to bet at such table, or upon such gaming device, may be seized pursuant to an order or warrant of a court of competent jurisdiction; and the money so seized shall be forfeited to the city and paid over to the city treasurer; and the table, bank, machine or gaming device shall be completely destroyed. The provisions of this section shall not extend to coin-operated nonpayout machines with free play feature or to automatic weighing, measuring, musical and vending machines which are so constructed as to give a certain uniform and fair return in value or services for each coin deposited and in which there is no element of chance.
(Code 1975, § 18-25)

**State law reference—**Similar provisions, W. Va. Code § 61-10-1.

### Sec. 78-342. Permitting gaming table or device on premises.

No person shall knowingly permit a gaming table or device such as is mentioned in section 78-341 to be kept or exhibited on any premises owned, leased or occupied by him.
(Code 1975, § 18-26)

**State law reference—**Similar provisions, W. Va. Code § 61-10-2.

### Sec. 78-343. Keeping place for gaming.

No person shall keep or maintain any house, building or room to be used for gaming or shall be a partner, or concerned in interest or be employed in the keeping or maintaining of any house, building or room used or to be used for gaming.
(Code 1975, § 18-31)

*__State law references—__Gambling, W. Va. Code § 61-10-1 et seq.; authority to prohibit gambling, W. Va. Code § 8-12-5(22).

### Sec. 78-344. Doorkeeper or guardian for gambling room.

No person shall act as doorkeeper, guard or watch, or employ another person to act as such, for a keeper or exhibitor of a gaming table or gaming device or shall resist or by any means or device prevent, hinder or delay the lawful arrest of such keeper or exhibitor, or the seizure of the table or device or money exhibited or staked at such place, or shall unlawfully take the table or device or money from the person seizing it.
(Code 1975, § 18-27)

**State law reference—**Similar provisions, W. Va. Code § 61-10-3.

### Sec. 78-345. Betting on games of chance.

No person shall at any place, public or private, bet or wager money or other thing of value on any game of chance, or shall knowingly furnish any money or other thing of value to any other person to bet or wager on any such game.
(Code 1975, § 18-28)

**State law reference—**Similar provisions, W. Va. Code § 61-10-5.

### Sec. 78-346. Permitting gambling at hotels, similar establishments; presumption against innkeeper.

(a) No keeper of a hotel, tavern, motel or similar establishment shall permit unlawful gaming at his house or at any outhouse, booth, arbor or other appurtenant place or held with such place.

(b) In a prosecution under this section, if the gaming is proved, it shall be presumed that it was permitted by the keeper of any such establishment.
(Code 1975, § 18-29)

**State law reference—**Similar provisions, W. Va. Code §§ 61-10-6, 61-10-7.

### Sec. 78-347. Cheating.

No person playing at any game or making a wager or having a share in any stake or wager, or betting on the hands or sides of others playing at any game or making a wager, shall cheat or by fraudulent means win or acquire for himself or another money or other valuable thing.
(Code 1975, § 18-30)

**State law reference—**Similar provisions, W. Va. Code § 61-10-9.

### Sec. 78-348. Lottery or raffle.

(a) No person shall set up or promote or be concerned in managing or drawing a lottery or raffle, for money or other thing of value, or knowingly permit such lottery in any house or other structure under his control or knowingly permit money or other property to be raffled for in any such structure or to be won, by throwing or using dice, or by any other game of chance or ticket in or share of a ticket in a lottery or any writing, certificate, bill, token or other device purporting or intended to guarantee or assure to any person, or entitle him to a prize or a share of or interest in a prize to be drawn in a lottery or shall for himself or another person, buy, sell or transfer, or have in his possession for the purpose of sale, or with intent to exchange, negotiate or transfer; nor shall he aid in selling, exchanging, negotiating or transferring a chance or ticket in or a share of a ticket in a lottery, or any such writing, certificate, bill, token or device.

(b) It shall be unlawful to buy, sell or transfer tickets or chances in any lottery.
(Code 1975, § 18-32(a), (c))

**State law reference—**Similar provisions, W. Va. Code § 61-10-11.

### Sec. 78-349. Possession of tickets.

No person shall knowingly have in his possession, either upon his person or in the premises within his control, in which he is employed or in which he has an interest, any share, ticket, certificate, token, bill or other device representing or purporting to represent or designate for the purpose of representing a chance upon a prize or other reward in any lottery, pool, contest of skill or in any device or game.
(Code 1975, § 18-33)

**Sec. 78-350. Regulation of poolrooms.**

(a) *Definitions.* The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

*Poolroom* means any room where any pool ticket, chance voucher or certificate is sold entitling or purporting to entitle the holder or promisee, or any other person, to money or other thing of value, contingent upon the result of any horse race, prizefight, game of chance, game of skill or science, or other sport or contest.

(b) *Prohibited conduct.* It shall be unlawful for any person, his agents, servants or employees, to set up or promote, or be connected with or interested in the management or operation of any poolroom.

(c) *Punishment.* Any person convicted of violating this section shall be punished as provided in section 1-8.
(Code 1975, § 18-33.1)

**State law reference—**Similar provisions, W. Va. Code § 61-10-10.

**Secs. 78-351—78-370. Reserved.**

## DIVISION 5. DRUGS AND RELATED OFFENSES*

### *Subdivision I. In General*†

**Sec. 78-371. Definitions and schedules incorporated.**

The definitions set forth in Article I of the West Virginia Controlled Substances Act at W. Va. Code §§ 60A-1-101, et seq., and the schedules of controlled substances set forth in Article II of the West Virginia Controlled Substances Act at W. Va. Code §§ 60A-2-201, et seq., including as they may be amended from time to time, are hereby fully incorporated and made a part of this chapter by reference.
(Bill No. 8039, 8-19-2024)

**Sec. 78-372. Purporting to sell controlled substances.**

(a) No person shall at any time sell any substance which that person purports to be a controlled substance when in actuality the substance sold contains no controlled substances.

(b) Whoever violates the provisions of this section shall, upon conviction, be guilty of a misdemeanor and fined not more than $100.00 or be imprisoned for a period not to exceed 30 days, or both. Subsequent violations upon conviction shall be punishable by a mandatory $100.00 fine and, in the discretion of the court, imprisonment not to exceed 30 days.
(Bill No. 8039, 8-19-2024)

**Sec. 78-373. Simple possession of marijuana, synthetic cannabinoids, and other controlled substances.**

(a) *Simple possession of less than 15 grams of marijuana prohibited.* It is unlawful for any person knowingly or intentionally to possess less than 15 grams of marijuana, unless the substance was obtained directly from, or pursuant to, a valid prescription or order of a practitioner while acting in the course of his or her professional practice, or except as otherwise authorized by West Virginia law. Any person who violates this subsection is guilty of a misdemeanor, and, upon a conviction: (1) for a first offense, may be fined not more than $0.00; or (2) for a second offense, may be fined not more than $250.00, or (3) for a third or subsequent offense, may be fined not more than $500.00. Further, notwithstanding any other provision of this Code to the contrary, whenever a person has not been convicted within the previous one year of any offense under this subdivision or under any statute of the United States or of any state relating to controlled substances, narcotic drugs, marijuana, or

*__State law reference—__Drug offenses, W. Va. Code § 60A-4-101 et seq.

†__Editor's note—__Bill No. 8039, adopted Aug. 19, 2024, repealed the former Subdiv. I, §§ 78-371—78-373, and enacted a new Subdiv. I as set out herein. The former Subdiv. I pertained to similar subject matter and derived from Code 1975, §§ 18-44.1, 18-44.2; Ord. No. 6412, § 18-44.3, adopted Dec. 1, 1997; Ord. No. 6413, § 18-44.1, 12-1-1997; and Bill No. 7372, adopted Jan. 20, 2009.

stimulant, depressant, or hallucinogenic drugs, such conviction shall be disposed of under section 78-374.

(b) *Simple possession of synthetic cannabinoids, MDPV, and mephedrone prohibited.* It is unlawful for any person knowingly or intentionally to possess synthetic cannabinoids, 3,4-methylenedioxypyrovalerone (MDPV) or 4-methylmethcathinone (mephedrone), unless the substance was obtained directly from, or pursuant to, a valid prescription or order of a practitioner while acting in the course of his or her professional practice, or except as otherwise authorized by West Virginia law. Any person who violates this subsection is guilty of a misdemeanor, and, upon a conviction: (1) for a first offense, may be fined not more than $100.00; or (2) for a second offense or subsequent offense, may be fined not more than $500.00, imprisoned not more than 30 days in the regional jail, or both fined and imprisoned. Further, notwithstanding any other provision of this Code to the contrary, whenever a person has not previously been convicted of any offense under this subdivision or under any statute of the United States or of any state relating to controlled substances, narcotic drugs, marijuana, or stimulant, depressant, or hallucinogenic drugs, such initial conviction shall be disposed of under section 78-374.

(c) *Simple possession of controlled substances prohibited.* It is unlawful for any person knowingly or intentionally to possess any other controlled substance not specified in subsection (a) or (b) of this section, unless the substance was obtained directly from or pursuant to, a valid prescription or order of a practitioner while acting in the course of his professional practice, or except as otherwise authorized by this Code or West Virginia law. Any person who violates this subsection is guilty of a misdemeanor and may be fined up to $500.00 or confined up to 30 days in jail, or both fined and confined.
(Bill No. 8039, 8-19-2024)

### Sec. 78-374. Conditional discharge for simple possession of controlled substances; expungement of records.

(a) Except as otherwise provided in this Code, whenever any person who has not been convicted of any offense under this subdivision or under any statute of the United States or of any state relating to controlled substances, narcotic drugs, marijuana, or stimulant, depressant, or hallucinogenic drugs, pleads guilty to or is found guilty under section 78-373, the court, without entering a judgment of guilt and with the consent of the accused, may defer further proceedings and place him or her on probation upon terms and conditions which may include, but are not limited to, participation in a substance abuse treatment program. Upon violation of a term or condition, the court may enter an adjudication of guilt and proceed as otherwise provided. Upon fulfillment of the terms and conditions, the court shall discharge the person and dismiss the proceedings against him or her. Discharge and dismissal under this section shall be without adjudication of guilt and is not a conviction for purposes of this section or for purposes of disqualifications or disabilities imposed by law upon conviction of a crime. The effect of the dismissal and discharge shall be to restore the person in contemplation of law to the status he or she occupied prior to arrest and trial. No person as to whom a dismissal and discharge have been effected shall be thereafter held to be guilty of perjury, false swearing, or otherwise giving a false statement by reason of his or her failure to disclose or acknowledge his or her arrest or trial in response to any inquiry made of him or her for any purpose. There may be only one discharge and dismissal under this section with respect to any person, provided that this limitation does not apply to anyone charged under section 78-373(a) for possession of marijuana.

(b) After a period of not less than six months which shall begin to run immediately upon the expiration of a term of probation imposed upon any person pursuant to this section, the person may apply to the court for an order to expunge from all official records all recordation of his or her arrest, trial, and conviction. If the court determines after a hearing that the person during the period of his or her probation and during the period of time prior to his or her application to the court under this section has not been guilty of any serious or repeated violation of the conditions of his or her probation, it shall order the expungement.

(c) Notwithstanding any provision of this Code to the contrary, any person prosecuted pursuant to the provisions of this subdivision whose case is disposed of pursuant to the provisions of this section shall be liable for any court costs assessable against a person convicted of a violation of this subdivision. Payment of such costs may be made a condition of probation.
(Bill No. 8039, 8-19-2024)

**Secs. 78-375—78-380. Reserved.**

*Subdivision II. Distribution of Hypodermic Needles and Syringes**

**Sec. 78-381. Distribution of hypodermic needles; state certification required.**

It shall be unlawful for any person or persons as principal, clerk, agent servant or otherwise acting individually or on behalf of any entity, organization or group to operate a harm reduction program that includes the distribution of any hypodermic syringes, needles and other similar objects used or designed for injecting substances into the human body, without obtaining and having a syringe services program license from the West Virginia Office for Health Facility Licensure and Certification, pursuant to W. Va. Code ch. 16, art. 63 and any other licenses required under state law to do so. Provided, that between the effective date of this bill and January 1, 2022, all harm reduction programs that include the distribution of any hypodermic syringes, needles and other similar objects operating within the City of Charleston shall be certified by the West Virginia Bureau for Public Health within the West Virginia Department of Health and Human Resources or has obtained a syringe services program license from the West Virginia Office for Health Facility Licensure and Certification.
(Bill No. 7893, 4-19-2021)

**Sec. 78-382. Compliance with state law and regulations.**

Every person, entity, organization, or group certified or licensed to sell, market, or distribute hypodermic needles shall comply with all applicable state law and regulations, pursuant to W. Va. Code ch. 16, art. 63; provided, every harm reduction program offering a syringe services program and operating in the City of Charleston shall:

(1) Individually mark each syringe dispensed with identifying information that clearly allows for the identification of each syringe dispensed by the program; and

(2) Distribute syringes with a goal of a 1:1 model, where "goal of a 1:1 model" means returning a minimum of 90 percent of the syringes distributed.

(Bill No. 7893, 4-19-2021)

**Sec. 78-383. Penalty.**

Any person violating any provision of this subdivision shall, if convicted, be guilty of a misdemeanor and be fined not less than $500.00 nor more than $1,000.00 for the first offense and succeeding offenses. Each day that such violation shall continue shall be deemed a separate and distinct offense.
(Bill No. 7893, 4-19-2021)

**Sec. 78-384 Council approval of application for state license to offer syringe services program.**

Upon receipt of an application for a license to offer a syringe services program, council will schedule at least one public hearing near the applicant's proposed location, to solicit and accept public input on the program, as well as provide the applicant an opportunity to provide information on its program. Two weeks before the scheduled date of the public hearing, the applicant shall mail notice of the public hearing and a copy of its application to residents and businesses within a two-block radius of the applicant's proposed location; and notice shall be published by the city on its website and provide the program's application online, with additional printed copies provided upon request and avail-

*__Editor's note—__Bill No. 7893, adopted April 19, 2021, amended subdiv. II in its entirety to read as herein set out. Former subdiv. II, §§ 78-381—78-383, pertained to sale, marketing, and distribution of hypodermic needles and syringes, and derived from Bill No. 7666, adopted Sept. 21, 2015.

able at the public hearing. The hearing will be recorded and made available online to the public. The public may submit written comments to council regarding the program up until the time of the council meeting at which council will be voting on whether to issue a letter of support. Under no circumstances shall council vote on a program prior to the holding of the public hearing required herein and for one week after the public hearing.
(Bill No. 7893, 4-19-2021)

**Secs. 78-385—78-395. Reserved.**

*Subdivision III. Needle Exchange Program*

**Sec. 78-396. Needle exchange program authorized.**

The City of Charleston, by and through its Chief of Police, may sponsor, approve, or participate in a program or programs within the City of Charleston for the distribution or exchange of hypodermic syringes, needles and other similar objects used or designed for injecting substances into the human body.
(Bill No. 7666, 9-21-2015)

**Sec. 78-397. Rules and regulations; Chief of Police authorized.**

The Chief of Police of the City of Charleston Police Department is authorized to promulgate reasonable rules or regulations deemed necessary to implement and administer a program within the City of Charleston provided for in Section 78-396 for the distribution or exchange of hypodermic syringes, needles and other similar objects used or designed for injecting substances into the human body.
(Bill No. 7666, 9-21-2015)

**Secs. 78-398—78-410. Reserved.**

## ARTICLE VI. OFFENSES INVOLVING PUBLIC AUTHORITY

**Sec. 78-411. Governmental functions of city not to be hampered by sit-ins or other methods.**

(a) The city council takes cognizance of reporting activities of organized groups of individuals in other municipalities in the United States, such as so-called sit-ins held in offices and hallways of buildings in which governmental business is transacted; disruption of vehicular and pedestrian traffic, designed to prevent or delay governmental personnel from reaching their places of duty, failing or refusing to obey the lawful orders of police officers and others in authority, etc., and as is generally known to all who read the newspapers, all for the avowed purpose of preventing public officers and employees from performing their duties and thereby preventing altogether or hindering or delaying the transaction of governmental business and nullifying important functions of government.

(b) The city council takes further cognizance of the fact that this city is a municipal corporation existing under the laws of the state, with a representative form of government in harmony with the Constitutions of the United States and the state, and that the primary purpose of the city government is to serve the people of the city; and the city council finds that activities of individuals and groups of individuals which are intended and designed to prevent, delay, hinder or otherwise impair the lawful transaction of city business or functions of the city government constitute a clear and present danger to the good order and government of the city for its established purposes; for though but one such organized effort may not be wholly effective, nevertheless, if it is not promptly and firmly dealt with, other such efforts may be expected to follow, so that any one such organized effort does in fact constitute a clear and present danger to the ability of the city government to serve the people of the city and to the very survival of the city as a lawful municipal corporation.

(c) It shall be unlawful for any person, acting alone or in concert with one or more other persons, to commit any act or omission, otherwise lawful, with intent to prevent, delay, confuse, disrupt, pervert or render ineffective the orderly and timely transaction of any city business or any governmental or proprietary function of the city.
(Code 1975, § 18-34)

**State law references—**Camping upon governmental grounds or lawns, W. Va. Code § 61-6-18; willful disruption of governmental processes, W. Va. Code § 61-6-19.

### Sec. 78-412. Interfering with city officers and employees; penalty.

(a) No person shall carelessly or willfully interfere with, hinder, obstruct or resist, counsel or advise another to interfere with, hinder, obstruct or resist any officer or employee of the city who is engaged in, en route to or returning from, the performance of official duty, whether such interference, hinderance, obstruction or resistance is by threat, assault or otherwise.

(b) Any person convicted of violating this section shall be punished as provided in section 1-8.

(Code 1975, § 18-9)

**State law reference—**Obstructing officers, W. Va. Code § 61-5-17.

### Sec. 78-413. Refusing to aid or assist city officers and employees when lawfully summoned to do so.

No person shall refuse to aid or assist any city police officer, firefighters or other officer in the discharge of his duty if lawfully requested to do so.

(Code 1975, § 18-10)

**State law reference—**Refusal to aid officer, W. Va. Code § 61-5-14.

### Sec. 78-414. Impersonation of city officers and employees.

No person shall falsely represent himself to be an officer or employee of this city or of other body politic whether of this or any other state or of the United States, or without proper authority wear or display any uniform, insignia or credential which identifies any such public officer or employee; nor shall any person without proper authority assume to act as a public officer or employee; however, nothing in this section shall be construed to prevent a private citizen from making a lawful citizen's arrest for felony or breach of the peace committed in his presence.

(Code 1975, § 18-12)

**State law reference—**Impersonation of law enforcement officer, W. Va. Code § 61-1-9.

### Sec. 78-415. City work projects not to be interfered with.

It shall be unlawful for any person to prevent, delay, hinder, obstruct or otherwise interfere with, directly or indirectly, any contractor, worker or other person who is engaged upon any construction, improvement, repair or other project or enterprise for or on behalf of the city or to impede the progress of any such project or enterprise in any manner.

(Code 1975, § 18-16)

Chapters 79—81

**RESERVED**

Chapter 82

# PARKS AND RECREATION*

## Article I. In General


Sec. 82-1. Definitions.
Sec. 82-2. Declaration of public policy; purpose of chapter.
Sec. 82-3. Rules and regulations.
Sec. 82-4. Reserved.
Secs. 82-5—82-40. Reserved.


## Article II. Parks and Recreation Department


Sec. 82-41. Created.
Sec. 82-42. Director and other personnel.
Sec. 82-43. Administration and enforcement powers of director; duties generally.
Sec. 82-44. Construction and acquisition of recreational property.
Sec. 82-45. Budget and expenses.
Secs. 82-46—82-80. Reserved.


## Article III. Parks and Recreation Commission


Sec. 82-81. Created; composition; qualifications, appointment and term of members; filling vacancies; compensation.
Sec. 82-82. Purpose of commission; consultation with.
Sec. 82-83. Chairman and secretary; rules; meetings; records.
Sec. 82-84. Duties.
Secs. 82-85—82-120. Reserved.


## Article IV. Public Use of Parks and Recreational Facilities


Sec. 82-121. Entering playgrounds and swimming pools after hours.
Sec. 82-122. Hours of public access to city parks; penalties.
Sec. 82-123. Ruffner Memorial Park.
Sec. 82-124. Waiver of swimming pool fees at certain facilities.
Sec. 82-125. Schedule.
Sec. 82-126. Danner Meadow Park.
Sec. 82-127. Elk River Park.
Sec. 82-128. Race courses.
Sec. 82-129. Fee adjustments.
Secs. 82-130—82-160. Reserved.


## Article V. Boater Use of Designated City Electrical Hook-Ups at Haddad Riverfront Park Events


Sec. 82-161. Purpose; definitions.
Sec. 82-162. Event electricity hook-up; license for hook-up.
Sec. 82-163. Violations, enforcement, and penalties.


---

*__Cross references—__Environment, ch. 50; natural resources, ch. 74; streets, sidewalks and other public places, ch. 102.

__State law references—__Authority to provide for parks and recreational programs, W. Va. Code § 8-12-5(37), (49); public recreation and playgrounds, W. Va. Code § 10-2-1 et seq.

## ARTICLE I. IN GENERAL

### Sec. 82-1. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

*Department* means the city parks and recreation department.

*Director* means the director of parks and recreation.

*Organized athletic groups.* The term "organized athletic groups" is defined to mean not-for-profit athletic teams supervised by coaching staff which participate in an organized competitive league or association.
(Code 1975, § 19-1; Bill No. 6883, § 1(a), 3-4-2002)

**Cross reference—**Definitions generally, § 1-2.

### Sec. 82-2. Declaration of public policy; purpose of chapter.

It is declared to be the public policy of the city and the purpose of this chapter to promote the public health, safety and welfare by creating a parks and recreation department, relating to the control, regulation, maintenance and operation of all recreational facilities in areas within the city that have been intrusted to it by the city council.
(Code 1975, § 19-2)

### Sec. 82-3. Rules and regulations.

The director may promulgate such rules and regulations as he may, from time to time, deem appropriate to protect and preserve the parks and the right of the public to use the parks. A copy of such rules and regulations and any amendments must be filed in the office of the city clerk prior to their effective date.
(Code 1975, § 19-8)

### Sec. 82-4. Reserved.

**Editor's note—**Bill No. 7909, adopted May 18, 2021, repealed § 82-4, which pertained to schedule of rates and rentals and derived from Ord. No. 6679, §§ 1—3, adopted June 19, 2000; Bill No. 6807, §§ 1(I)—(V), 2(A), 2(B), 3, adopted June 8, 2001; Ord. No. 7458, adopted April 18, 2011; Bill No. 7747, adopted June 5, 2017; Bill No. 7799, adopted Nov. 19, 2018.

### Secs. 82-5—82-40. Reserved.

## ARTICLE II. PARKS AND RECREATION DEPARTMENT

### Sec. 82-41. Created.

There is created a city parks and recreation department.
(Code 1975, § 19-3)

### Sec. 82-42. Director and other personnel.

The head of the department of parks and recreation shall be the director of parks and recreation, who shall be appointed by the mayor to serve at the will and pleasure of the mayor. The director shall appoint, within the limits of funds available for such purpose, other supporting personnel, including an assistant director, as may be necessary to carry out the duties of his office. All such personnel shall perform their respective duties under the supervision and direction of the director.
(Code 1975, § 19-4)

**Cross reference—**Officers and employees, § 2-131 et seq.

### Sec. 82-43. Administration and enforcement powers of director; duties generally.

(a) The director shall administer and enforce the provisions of this article. Every power granted or duty imposed upon the director under this article may be exercised and performed in the name of the director by a deputy director, subject to such conditions and limitations as the director may prescribe.

(b) The director shall have the power and authority to establish, equip, maintain and operate recreational parks, playgrounds and other recreational facilities for public uses.
(Code 1975, § 19-5)

**Cross reference—**Administration, ch. 2.

### Sec. 82-44. Construction and acquisition of recreational property.

The city council may establish, construct, acquire and set aside for recreational parks, playgrounds and other recreational facilities any real or personal property acquired by the city, in furtherance of existing public policies, including the city's comprehensive plan and the State of West Virginia's Statewide Comprehensive Outdoor Recreation Plan (SCORP). Such property shall be under the control of the director when turned over to the director by the council.
(Code 1975, § 19-6; Bill No. 7991, 12-18-2023)

### Sec. 82-45. Budget and expenses.

The director shall submit to the mayor and the city council its budget for each fiscal year. The city council shall thereupon consider such

[The next page is CD82:7]

budget and make such allowances to the department as it shall deem proper. All revenues received from the use and operation of any facility operated by this department shall be paid to the city treasurer's general fund; and all expenditures made by the department shall be requisitioned, handled, vouchered and accounted for in the same manner as other general fund expenditures.
(Code 1975, § 19-7)

**Secs. 82-46—82-80. Reserved.**

## ARTICLE III. PARKS AND RECREATION COMMISSION*

### Sec. 82-81. Created; composition; qualifications, appointment and term of members; filling vacancies; compensation.

(a) There is created a parks and recreation commission for the city, the membership of which shall consist of 11 citizens, one of whom shall be the director of the parks and recreation department ex officio and one of whom shall be a member of the city council. All members shall be residents of the city and shall be appointed by the mayor and confirmed by the city council except the ex officio member.

(b) On or before May 6 of each year, there shall be appointed three citizen members of the parks and recreation commission, who shall serve for a term of three years from May 6 in the year of their appointment and until their respective successors have been appointed and qualified. The councilmember shall serve for the duration of his term of office as a councilmember. All vacancies other than by reason of expiration of term of office shall be filled for the unexpired term only.

(c) Members of the commission shall serve without compensation, but shall be reimbursed for necessary expenses.
(Code 1975, § 19-9)

*__Cross reference—__Boards, committees and commissions, § 2-511 et seq.

### Sec. 82-82. Purpose of commission; consultation with.

The purpose of the parks and recreation commission shall be to make careful and comprehensive surveys and studies of present parks and playgrounds, along with a study of the future growth of the city, with the general purpose of advising the mayor of ways to accomplish a coordinated, adjusted and harmonious development of a system of parks, playgrounds and other recreational areas which will, in accordance with present and future needs, best and most efficiently and economically promote the health, safety, morals, order, convenience and general welfare of the people of the city, including, among other things, the location of parks, playgrounds and other recreational areas conveniently distributed as to population. In preparing these studies, the parks and recreation commission shall consult and cooperate with the municipal planning commission.
(Code 1975, § 19-10)

### Sec. 82-83. Chairman and secretary; rules; meetings; records.

The parks and recreation commission, from its membership, shall elect a chairman and secretary. It shall adopt such rules as may be necessary for the transaction of its business, hold regular meetings open to the public, and shall keep a record of its official proceedings, which shall be open to the public. A copy of all rules adopted by the commission shall be filed with the city clerk.
(Code 1975, § 19-11)

__Cross reference—__Officers and employees, § 2-131 et seq.

### Sec. 82-84. Duties.

The duties of the parks and recreation commission shall be to advise the mayor of recommendations for the development of parks, playgrounds and other recreational areas within the jurisdiction of the city which, in the opinion of the commission, bear relation to the planning, welfare and growth of the city.
(Code 1975, § 19-12)

**Secs. 82-85—82-120. Reserved.**

## ARTICLE IV. PUBLIC USE OF PARKS AND RECREATIONAL FACILITIES

### Sec. 82-121. Entering playgrounds and swimming pools after hours.

It shall be unlawful for any person other than an official, employee or authorized agent of the city or of the board of education of the county to enter, for any purpose whatsoever, upon any playground, swimming pool or other recreational facility operated by the city, at any time other than during the hours established by the parks and recreation commission for their use by the public.
(Code 1975, § 28-16)

### Sec. 82-122. Hours of public access to city parks; penalties.

(a) No person shall remain, loiter, idle, stroll, wander or play in or upon the public grounds of any city park during the hours the park is closed.

(b) From Memorial Day to Labor Day, all city parks will be closed between the hours of 11:00 p.m. and 6:00 a.m. of the following day except as otherwise authorized, in writing, by either the director of parks and recreation or the chief of police. From Labor Day to Memorial Day, all city parks will be closed between the hours of 9:00 p.m. and 6:00 a.m. of the following day except as otherwise authorized, in writing, by either the director of parks and recreation or the chief of police.

(c) In addition to those hours of closure designated in subsection (b) of this section, the director of parks and recreation or the chief of police shall have the authority to temporarily close for a period not to exceed ten successive days any city park during any other hours as he may designate whenever, in his judgment and discretion, conditions exist which render the use of a city park dangerous to public use.

(d) The police department, director of parks and recreation and any of their agents shall have the authority to order any person acting in violation of this section to leave the park or recreation area.

(e) Any person violating any provision of this section shall be subject to the general penalties set forth in section 1-8.

(f) The law enforcement officer has the discretion to either issue a citation or make an arrest.
(Ord. No. 4979, § 19-8.3, 7-19-1993)

### Sec. 82-123. Ruffner Memorial Park.

(a) *Establishment.* By deed dated February 12, 1831, Daniel Ruffner conveyed to the city a certain parcel of land located on what now is called Kanawha Boulevard, which is commonly known as "Ruffner Memorial Park." A description of the property can be found in the office of the clerk of the county court in deed book H, at page 3.

(b) *Misconduct.* In order to protect and preserve the property, peace, order, tranquility and the historical significance of Ruffner Memorial Park, it shall be unlawful for any person to drink beer or alcoholic beverages, to litter or dispose of any trash or other material other than in the proper trash containers located inside Ruffner Memorial Park, play games or sports or ride bicycles or other vehicles on the grass portion of Ruffner Memorial Park, to lounge or sit on any of the monuments or to make loud noises that disturb the peace and tranquility of the area in or surrounding Ruffner Memorial Park.

(c) *Hours.* In order to protect and preserve the property, safety, peace, order and tranquility of the Ruffner Memorial Park and the adjacent residential area, the park shall be closed to the public between the hours of 11:00 p.m. and 6:00 a.m.
(Code 1975, § 19-8.2)

### Sec. 82-124. Waiver of swimming pool fees at certain facilities.

Notwithstanding the rental and fee schedule provided by section 82-125, the mayor, city manager, and the director of the department of parks and recreation may, from time to time, and when weather conditions warrant, and under circumstances which would not substantially affect the revenues of a city swimming pool

facility, declare a day or some portion of a day to be a free swim day and waive the collection of the fees prescribed by section 82-125.
(Ord. No. 5000, 8-2-1993)

**Sec. 82-125. Schedule of fees.**

Rental and fee schedule for the use of recreation facilities and equipment [is as follows]:

(1) For use private use, exclusive of the general public, of the North Charleston Community Center, Martin Luther King Jr., Community Center, Kanawha City Community Center, Roosevelt Neighborhood Center:

| | |
|---|---|
| Gymnasium per hour . . . . . | $25.00 |
| Meeting room, per hour . . . . | $20.00 |

(2) Cato Park Golf Course:

| | |
|---|---|
| Daily nine holes . . . . . | $9.00 |
| Additional nine holes . . . . . | $4.00 |
| Unlimited play . . . . . | $12.00 |
| Daily senior citizens unlimited . . . . . | $6.00 |
| Schools, practice or matches | $6.00 |

(3) For use exclusive use of tennis courts, the Director of Parks and Recreation, or his designee, is authorized to reserve tennis courts for organized play, and in such cases to impose fees not to exceed the allocable costs of operation and maintenance of the courts as may be determined on a case by case basis. In all other instances, use of the courts shall be made available to the general public on a first come first served basis without the imposition of fees.

(4) *Haddad Riverfront Park:*

| | |
|---|---|
| Private rental of entire park, per hour* . . . . . (2 hr. minimum to maximum charge of $800.00 for entire day. Rental time includes set-up and tear-down if renter requires exclusion of general public during this time) | $100.00 |
| Damage deposit for private rental. . . . . (refundable if no damage occurs. However, deposit is forfeited if rental is canceled less than 20 days prior to rental date) | $250.00 |

(5) *Magic Island Park:*

| | |
|---|---|
| Private rental of entire park, per hour* . . . . . (2 hr. minimum to maximum charge of $800.00 for entire day. Rental time includes set-up and tear-down if renter requires exclusion of general public during this time) | $100.00 |
| Damage deposit for private rental. . . . . (refundable if no damage occurs. However, deposit is forfeited if rental is canceled less than 20 days prior to rental date) | 250.00 |
| Reservation of volleyball courts, per court. . . . . | $10.00 |

*Fee includes normal, daily park maintenance. Should special set-up, clean-up, or other efforts be necessary, the rate will be $20.00 per hour per employee. These fees will be negotiated as part of the reservation process, and will be fully disclosed to renters prior to completing rental agreement.

Such arrangements pertain to all rental of each park, except for the purposes of commercial concert entertainment. In such cases, rental agreements shall be negotiated by the parks and recreation director, with such contract presented for city council approval prior to confirmation.

(6) *Portable Stage:* The portable stage measuring 24' x 20' may be rented at a rate of $500 per day.

For purposes of this section, events produced or originated by the City of Charleston are

specifically exempted from payment of rental fees, damage deposits, or other charges listed in this amendment.
(Code 1975, § 19-8.1; Ord. No. 6008, 6-6-1994; Bill No. 6785, § 19.8.1(a)—(j), 4-16-2001; Bill No. 6262, § 19-8.1, 10-6-2003; Bill No. 7616, 8-18-2014)

**Sec. 82-126. Danner Meadow Park.**

(a) *Establishment.* By deed dated December 30, 1981, Vecellio & Grogan, Inc., conveyed to the city certain parcels or tracts of land located in South Annex District of Kanawha County within the City of Charleston, which is commonly known as "Danner Meadow Park" for use as park and recreational facilities. A description of the property can be found in the office of the Clerk of the County Commission of Kanawha County, West Virginia, in Deed Book 1993, at page 158.

(b) *Rules of conduct.* In order to protect and preserve that character of the residential neighborhoods that surround Danner Meadow Park while allowing organized athletic groups to use the said park area, the following rules of conduct shall apply to the said park area:

(1) The utilization of Danner Meadow Park by organized athletic groups shall be subject to the supervision of the staff of the City of Charleston Parks and Recreation Department in order to ensure proper, safe and adequate access by emergency vehicles to the residents along the access road to Danner Meadow Park, as well as to Danner Meadow Park, and to ensure residents along the said access road proper, safe and adequate access to their homes.

(2) The use of Danner Meadow Park by organized athletic groups shall (i) be limited to youth groups, ages twelve and under; (ii) in the case of practices, be limited to teams belonging to a league or association primarily serving the Charleston area; (iii) in the case of games, be limited to games where, at a minimum, the home team belongs to a league or association primarily serving the Charleston area, and (iv) be limited to an area not to exceed 360 feet by 210 feet establishing at the north end of the interior portion of the existing jogging track, such area to be designated in the City of Charleston Parks and Recreation Department.

(3) Organized athletic groups shall schedule use of Danner Meadow Park through the staff of the City of Charleston Parks and Recreation Department. Scheduling of the use of park shall be conducted in such a way as to ensure compliance with all applicable and binding city safety codes, regulations, policies and requirements.

(4) The use of Danner Meadow Park by organized athletic groups shall be prohibited on Sundays.

(5) The use of Danner Meadow Park by any organized athletic group shall not obstruct or interfere in any way with the use by the general public of the jogging track, exercise course or playground area.

(6) Organized athletic groups shall not charge any fees in connection with the use of Danner Meadow Park.

(7) The use of Danner Meadow Park by organized athletic groups shall be limited to eighteen weeks during the period March 15 through October 31 inclusive, between the hours of 5:00 p.m. and 7:30 p.m. on Monday through Friday, and between the hours of 9:00 a.m. and 5:30 p.m. on Saturday.

(8) No more than a total of two teams shall be scheduled at one time for practice or games.

(Bill No. 6883, § 1(b)(19-8.3), 3-4-2002)

**Sec. 82-127. Elk River Park.**

(1) *Findings of fact.* It is hereby found, determined and declared as findings of fact by the council of the City of Charleston, West Virginia, that there is presently a shortage of parks and recreation facilities in the City of Charleston; that due to the recent federal interstate construction along Elk River, it is in

the best interest of the city and its citizens to preserve the esthetic and ecological integrity and character of the area adjacent to the federal interstate highway and Elk River; that the establishment of parks and recreational facilities along rivers within a municipality is an economic asset to the city and surrounding community; that in order to promote the health, safety, and welfare of the city, its residents and citizens, it is hereby declared that it is in the best interests of the City of Charleston to establish a city park along Elk River between Pennsylvania Avenue and Elk River on property presently owned, leased or hereinafter acquired or leased by the City of Charleston.

(2) *Establishment of park.* Pursuant to the provisions of W. Va. Code, Ch. 8, and the Charter of the City of Charleston, West Virginia, there is hereby established by the council of the City of Charleston a park hereinafter known as the "Elk River Park", which park is to consist of all property currently owned, leased or hereinafter acquired or leased by the city, which is located in the area bounded and described as follows:

All streets, alleys, easements, right-of-way, lots or parcels of land bounded by the Kanawha Boulevard, Pennsylvania Avenue, Washington Street, West, and Elk River.

(Bill No. 7166, § 2, 1-17-2006)

**Sec. 82-128. Race courses.**

(a) In order to safely and efficiently accommodate the increasing number of requests for organized recreational runs and walks within the City of Charleston, the City may designate and sanction race courses for runs or walks of any length over and upon City rights-of-way. The City Manager shall appoint an Events Coordinator who, upon advice and consultation with the City Manager and any other applicable committees or personnel, shall promulgate, publish, (October 1 each year) and administer rules and regulations governing the designation and sanctioning of such race courses. These rules and regulations shall set forth the process and criteria for making application to hold a race and may, without limitation, identify pre-established courses and associated fees, regulate starting times, and limit or qualify requested routes based upon the anticipated number of participants, consideration of the impact on neighborhoods or other interests, and the amount and availability of City resources deemed necessary to accommodate a requested route.

(b) The Events Coordinator may sanction and provide for the exclusive use of a race course over City rights-of-way upon receipt of an applicant's payment of fees in an amount not less than the anticipated costs or expenditures of City resources to accommodate the event as determined by the Events Coordinator; Provided, that said fees shall be reduced by fifty percent (50%) for any non-profit applicant that agrees to identify and, unless requested by the City otherwise, subsequently portrays and presents the City of Charleston as a co-sponsor of the event.

(c) For the purposes of this section, events produced or originated by the City of Charleston are specifically exempted from any payment of fees.

(Bill No. 7616, 8-18-2018)

**Sec. 82-129. Fee adjustments.**

The fee adjustments under ordinance 7616, Section 82-125 and the fees established pursuant to 82-128 shall be effective on or after January 1, 2015.

(Bill No. 7616, 8-18-2018)

**Secs. 82-130—82-160. Reserved.**

## ARTICLE V. BOATER USE OF DESIGNATED CITY ELECTRICAL HOOK-UPS AT HADDAD RIVERFRONT PARK EVENTS

**Sec. 82-161. Purpose; definitions.**

(a) *Purpose.* The city from time to time holds or permits events at Haddad Riverfront Park for the purpose of providing wholesome entertainment, to attract tourism, and to generally provide opportunities for people to take advantage of the great resource which is our downtown riverfront area. Making the area accessible to boaters attending such events promotes and furthers these purposes. This article sets forth guidelines

and conditions for the permitting and licensing of boaters to safely utilize designated electric power sources which may, at the city's discretion, be made available to boaters attending these events.

(b) *Definitions.* For the purpose of and wherever used in this article, the following terms shall be defined and have the meanings as set forth herein:

*Approved cord* means any cord and plug to be used by Boaters which meet the specifications set by city rules and regulations promulgated pursuant to this Article for purposes of connecting to and using any designated power source provided by the city;

*Boater* means any individual utilizing a watercraft on the Kanawha River.

*Daisy-chain* means extending electric power via cords or connections to one or more end-user(s) other than an intended licensee's Watercraft.

*Dock* means any structure or platform, whether temporary or permanent, erected or placed at Haddad Riverfront Park for the purpose of securing or mooring watercraft during any event(s).

*Event* means any gathering or activity authorized by the city which is held at Haddad Riverfront Park and the surrounding area, including, but not limited to, such things as Live at the Levee concerts, FestivAll, the annual Charleston Sternwheel Regatta, Fourth of July fireworks celebrations, or other such events held at Haddad Riverfront Park.

*Watercraft* means any vessel being used or capable of being used for transportation on the water, including but not limited to:

(1) A vessel operated by machinery either permanently or temporarily affixed, including motorboats, speedboats, sternwheelers, or other vessels intended to be used as boats;

(2) A sailboat other than a sailboard;

(3) An inflatable, manually propelled boat that is required by federal law to have a hull identification number meeting the requirement of the United States Coast Guard; or

(4) A canoe, rowboat, or other such manually propelled boat.

(Ord. No. 7258, 5-7-2007)

**Sec. 82-162. Event electricity hook-up; license for hook-up.**

(a) The city may provide access to power sources for boaters attending certain or all events at Haddad Riverfront Park to allow boaters to energize electrical systems or devices on their watercraft while moored or secured at a dock. The city shall have full discretion for the manner, timing, location, and placement of any and all designated power sources made available for such events, and reserves the right to limit or shut-off the power at any time for any reason.

(b) Access to land-based electrical power sources during events by boaters shall be by means of an approved cord. No boater shall access or connect to such power sources by any other means.

(c) Daisy-chains being fed power from land-based electrical power sources during events are strictly prohibited. No boater shall cause, construct, or allow such daisy-chains.

(d) Permission to access land-based electrical power sources by boaters during events shall be by license issued by the city manger or his/her designee. No boater shall access or connect to such power sources without a license.

(e) The city may charge an administrative fee for licenses not to exceed $100.00 per license. Licenses shall be non-transferable and may be issued for periods not exceeding one year.

(f) The city manager is hereby authorized to promulgate reasonable rules and regulations for the administration of this article, which may include (i) the setting of fees, (ii) the application process, requirements, and qualifying criteria; (iii) manner, timing, location, and placement of power source access, including the designation of events subject to be licensed; (iv) insurance requirements and indemnity provisions to protect the city's interests; (v) establishing classes or

categories of licenses based upon an event, a group of events, size of watercraft, or other criteria; (vi) any other provisions, conditions, or limitations which may be appropriate to carry out the intent of this article; provided, that the city manager shall retain the right to revoke or suspend any license, with or without cause, at any time.

(g) Any boater licensed pursuant to this article shall carry valid photo identification and a copy of the city license at all times when he or she is connected to any power source provided by the city, and shall present them to any city official or law enforcement officer upon request.
(Ord. No. 7258, 5-7-2007)

**Sec. 82-163. Violations, enforcement, and penalties.**

(a) In addition to immediate revocation and forfeiture of a boater's license, and immediate confiscation of any improper or unauthorized cord, any violation of subsection (b), (c), (d), or (g) of the preceding section (section 82-162) shall be considered a misdemeanor punishable by a fine not in excess of $500.00 per offense.

(b) Any law enforcement officer, within the scope of his authority, may enforce the provisions of this article, and any rules and regulations promulgated by the city manager pursuant hereto, and in the exercise thereof may board any vessel which is in any way connected to any city provided power source for purposes of enforcing this article and its applicable rules and regulations.

(c) Nothing in this article shall be deemed to exempt any licensed boater from any other or additional applicable permit and licensing requirements or any other laws of this State or of the City of Charleston. Further, any violation of any such permit, requirement, or laws of this state or of the city shall be grounds for immediate revocation of any license issued hereunder.
(Ord. No. 7258, 5-7-2007)

Chapters 83—85

**RESERVED**

# Chapter 86

# PERSONNEL MANAGEMENT AND PRACTICES*

## Article I. Administration

### Division 1. Human Resources Department


Sec. 86-1. Establishment of human resources department.
Sec. 86-2. Appointment of director of human resources; general powers and duties.
Secs. 86-3—86-9. Reserved.


### Division 2. Enforcement


Sec. 86-10. Enforcement.
Secs. 86-11—86-99. Reserved.


## Article II. Non-Uniformed Personnel

### Division 1. Personnel Rules and Administrative Policies Established


Sec. 86-100. Personnel Rules and Administrative Policies adopted.
Sec. 86-101. Authorization to amend and promulgate new Personnel Rules and Administrative Policies.
Sec. 86-102. Equal opportunity employment.
Sec. 86-103. Compensation.
Sec. 86-104. Vacation leave.
Sec. 86-105. Sick leave.
Sec. 86-106. Holidays.
Sec. 86-107. Family and medical leave.
Sec. 86-108. Military leave
Sec. 86-109. Sexual harassment and workplace violence.
Secs. 86-110—86-199. Reserved.


### Division 2. Progressive Discipline and Employee Grievances


Sec. 86-200. Progressive discipline.
Sec. 86-201. Employee grievances.
Secs. 86-202—86-299. Reserved.


---

*__Editor's note—__Bill No. 7712, adopted Sept. 19, 2016, repealed former Ch. 86, Arts. I—IV, in its entirety and enacted new provisions as herein set out. Former Ch. 86 pertained to similar subject matter and derived from Ord. No. 6410, adopted June 1, 1988; Bill No. 6800, 10-1-2001; Bill No. 7068, 6-7-2004; Bill No. 7133, 5-16-2005; Bill No. 7144, 5-16-2005; Bill No. 7175, 11-21-2005; Bill No. 7440, 11-15-2010; Bill No. 6465, 4-18-2011; Bill No. 7641, 12-1-2014. The hierarchy of articles and divisions used in this Code has been applied to the provisions added by Bill No. 7712 by the editor.

__Cross references—__Administration, ch. 2; human rights, ch. 62.

__State law reference—__General authority to provide for method, selection and tenure of employees, W. Va. Code § 8-5-11.

## ARTICLE I. ADMINISTRATION

### DIVISION 1. HUMAN RESOURCES DEPARTMENT

**Sec. 86-1. Establishment of human resources department.**

There is hereby created a human resources department which shall consist of such divisions and personnel as may from time to time be established by the city manager.
(Bill No. 7712, 9-19-2016)

**Sec. 86-2. Appointment of director of human resources; general powers and duties.**

(a) A director of human resources shall be appointed by the city manager with the advice of the mayor, and shall be subject to the supervision of the city manager or the city manager's designee. The director of human resources shall perform the duties and responsibilities of such position free from interference, restraint, or coercion by city council or any employee, board, committee, or commission of the city. The director of human resources shall have the authority to hire other assistants and employees as necessary, subject to budgetary appropriations, in order to successfully fulfill the duties and responsibilities of the position.

(b) The director of human resources shall have the following responsibilities and duties:

(1) To recommend, on his/her own initiative or upon request from others, such rules and procedures as may be necessary for the purpose of carrying out the provisions of this chapter.

(2) To serve as an impartial expert in the personnel-management relations and to seek to resolve disputes arising out of or relating to the employment relationship. To that end the director of human resources shall have free and unencumbered access to all data relating to any specific dispute, complaint or grievance;

(3) To keep and maintain a current personnel record for each employee of the city to provide a compilation of information pertaining to employment with the city to be used as a reference and as an aid in the management of personnel;

(4) The director of human resources shall manage, direct and oversee all recruiting, hiring, compensation, classification, performance management, employee relations, employee benefits, workforce development and other human resource plans and programs in an efficient and effective manner and in accordance with applicable, federal, state and local laws and regulations.

(5) To perform such other duties as may be assigned by the city manager or as may be necessary and appropriate to fulfill the duties and responsibilities of the position.

(6) To propose and review amendments or additions to the Personnel Rules and Administrative Policies, and advise the city manager and the city attorney with respect to any such proposed amendment or addition.
(Bill No. 7712, 9-19-2016)

**Secs. 86-3—86-9. Reserved.**

### DIVISION 2. ENFORCEMENT

**Sec. 86-10. Enforcement.**

Violations of the provisions of this chapter shall be enforced administratively and shall not be subject to criminal penalties unless specifically set forth elsewhere in this Code, or in state or federal law.
(Bill No. 7712, 9-19-2016)

**Secs. 86-11—86-99. Reserved.**

## ARTICLE II. NON-UNIFORMED PERSONNEL

### DIVISION 1. PERSONNEL RULES AND ADMINISTRATIVE POLICIES ESTABLISHED

**Sec. 86-100. Personnel Rules and Administrative Policies adopted.**

The Personnel Rules and Administrative Policies dated September 19, 2016, are hereby adopted. Personnel Rules and Administrative Policies as adopted herein, and as may be amended from time to time, shall have the force and effect of law as if set forth in this Code unless specifically identified as a statement of policy. The Personnel Rules and Administrative Policies shall be maintained by the director of human resources, and an updated copy shall be kept in the human resources department, filed with the city clerk, and posted on the City of Charleston website. A copy of the Personnel Rules and Administrative Policies shall be available to all employees at any time upon request to the human resources department.
(Bill No. 7712, 9-19-2016)

**Sec. 86-101. Authorization to amend and promulgate new Personnel Rules and Administrative Policies.**

(a) The city manager, upon consultation with the director of human resources and the city attorney, shall have the discretion and authority to amend the Personnel Rules and Administrative Policies, or promulgate new rules and policies as, from time to time, may be necessary or required to facilitate the efficient and effective operations of the city. Any amendment or addition to the rules and policies shall not conflict with this Code, or with any applicable state or federal law.

(b) No amendment or addition to the Personnel Rules and Administrative Policies shall become effective until signed by the city manager, the director of human resources, and the city attorney. The human resources director shall timely provide notice of any such amendment or addition to city employees. The director of human resources shall facilitate the timely update of the Personnel Rules and Administrative Policies kept in the human resources department, maintained online, and on file with the city clerk.
(Bill No. 7712, 9-19-2016)

**Sec. 86-102. Equal opportunity employment.**

The City of Charleston shall provide equal employment opportunities to all current employees and new applicants for employment without regard to sex, race, color, age, national origin, ancestry, religion, disability, medical condition, genetic information, marital status, sexual orientation, gender identity, citizenship, pregnancy or maternity, veteran status, or any other status protected by applicable, federal, state, or local law. All advertisements of employment opportunities with the city shall contain the following statement: "The City of Charleston is an Equal Employment Opportunity Employer."
(Bill No. 7712, 9-19-2016)

**Sec. 86-103. Compensation.**

Compensation for city employees shall be established and administered consistent with the Personnel Rules and Administrative Policies, and state and federal law, subject to annual appropriation by city council, which may be authorized by resolution of city council.
(Bill No. 7712, 9-19-2016)

**Sec. 86-104. Vacation leave.**

(a) *Vacation leave:* Beginning on October 1, 2016, and at 12:01 a.m. on the first day of each month thereafter, full-time employees shall be credited with paid vacation leave hours which shall accrue according to the following schedule adjusted on the first day of the month following the hire date or anniversary of each employee as follows:

| *Years of Service* | *Monthly Accrual* |
|---|---|
| 6 months—4 years | 8 hours per month |
| 5—9 years | 10 hours per month |
| 10—14 years | 12 hours per month |
| 15—19 years | 14 hours per month |
| 20 or more years | 16 hours per month |

(b) Employees hired before October 1, 2016, with less than six months service shall also be credited with eight hours of paid vacation leave on October 1, 2016, and on the first day of each month thereafter until reaching six months of service and qualifying for the credits provided in subsection (a) above, but shall not be permitted to take leave within six months of their hire date.

(c) *New hires:* In addition to the eight hours to be credited according to the schedule in subsection (a) above, employees hired on or after October 1, 2016, shall be credited with an additional 24 hours of vacation leave on the first day of the month following six full months of employment after their hire date. A department head may request the director of human resources to tender a written contingent offer of employment that provides for unpaid leave to accommodate a prospective employee's prescheduled vacation plans and the director of human resources shall have discretion to make such offer if reasonable and appropriate under the circumstances.

(d) *Alternative accrual plan:* Notwithstanding the vacation leave set forth in (a) herein, employees hired before October 1, 2016, may continue to receive vacation accruals on an annual basis by opting out of the monthly accrual plan outlined in subsection (a) above. To opt out, an employee must forfeit their October 1, 2016, monthly accrual, and make a one-time nonrevocable election in writing on or before October 31, 2016, on a form and in a manner authorized by the director of human resources. Those employees electing to opt out shall continue to receive a net credit on January 1 of each calendar year, based on the employee's years of service as of December 31 of the prior calendar year in accordance with the following schedule:

| *Years of Service* | *Annual Vacation* |
|---|---|
| Less than 12 months | 4 hours per month of total service |
| 1 year but less than 5 years | 80 hours |
| 5 years but less than 15 years | 120 hours |
| 15 years or more | 160 hours |

(e) *Maximum accrual:* No employee shall accumulate more than 240 hours at any one time. Monthly accruals shall be adjusted or forfeited accordingly based upon the leave balance at 12:01 a.m. on the first day of each calendar month. Employees who elect to opt out of the monthly accrual and continue with the alternate accrual plan as set forth in (d) herein, shall not be permitted to carry forward more than 80 hours of accumulated annual vacation from one calendar year to another.

(f) *Negative leave balance:* Employees shall not be permitted to incur negative vacation leave balances.

(g) *Approval:* Approval and granting of vacation leave shall be at the discretion of the Department Head on a case-by-case basis, and may be denied in situations when necessary or required to maintain efficient and effective service and/or to keep a department or division adequately

staffed. Employees may be called back to work from approved vacation for necessary or required service delivery reasons such as an emergency.

(h) *Transfer/promotion:* Promotion, transfer or reassignment does not affect the accrual rate or the amount of accumulated vacation leave.

(i) *Separation:* Upon separation of employment, employees shall be paid for any accumulated but unused vacation leave, which in no case shall exceed 240 hours.
(Bill No. 7712, 9-19-2016)

**Sec. 86-105. Sick leave.**

(a) *Sick leave accruals:* Full-time employees shall accrue sick leave with pay on the basis of eight hours for each calendar month of service. Sick leave shall accrue on the last day of each month. Part-time, seasonal, part-time elected, and certain appointed positions shall not accrue sick leave.

(b) *Maximum accrual:* Employees shall be permitted to carry over from year to year an unlimited amount of any unused sick leave.

(c) *Transfer/promotion:* Promotion, transfer or reassignment does not affect sick leave accrual or the amount of accrued by unused sick leave.

(d) *Separation:* Upon separation of employment other than retirement, all sick leave accrued by an employee shall be forfeited as of his or her last working day with the city. Consistent with this Code and the Personnel Rules and Administrative Policies, employees hired before July 1, 2020 who retire will be eligible to convert accrued but unused sick leave accrued into city health insurance benefits or credit for months of service in accordance with state law and West Virginia Public Employees Retirement System guidelines. Under no circumstances shall employees be paid accrued but unused sick leave upon separation.

(e) *Advance of sick leave:* In cases of emergency or in unforeseen circumstances, the city manager may, at his discretion and on a case-by-case basis, approve an advance of sick leave up to 240 hours provided that all accrued sick leave and vacation have been exhausted. Any employee who receives a sick leave advance shall be required to agree in writing to resolve any deficit in accrual resulting from the advance under terms and conditions approved by the city manager.
(Bill No. 7712, 9-19-2016; Bill No. 7873, 6-15-2020)

**Sec. 86-106. Holidays.**

(a) The City of Charleston observes the following paid holidays:

(1) January 1 (New Year's Day);

(2) The third Monday of January (Martin Luther King Day);

(3) The third Monday of February (Presidents Day);

(4) The last Monday of May (Memorial Day);

(5) June 19 (Juneteenth)

(6) June 20 (West Virginia Day);

(7) July 4 (Independence Day);

(8) The first Monday of September (Labor Day);

(9) The second Monday of October (Columbus Day);

(10) November 11 (Veterans Day);

(11) The fourth Thursday and Friday of November (Thanksgiving Day Holidays);

(12) December 25 (Christmas Day);

(13) Any day on which a national, state or other governmental election is conducted within the City of Charleston;

(14) Any day proclaimed or ordered by the mayor as a day of special observance or Thanksgiving, or for the general cessation of business.

(b) When any such days or dates identified in subsection (a) above falls on Saturday, the preceding Friday shall be regarded, treated and observed as such legal holiday. When any of such days or dates identified in subsection (a) above falls on Sunday, the succeeding Monday shall be regarded, treated and observed as such legal holiday; provided this subsection (b) shall not apply to

subdivisions (13) and (14) of subsection (a) above. Notwithstanding the foregoing, when the Juneteenth and/or West Virginia Day Holiday fall on a Saturday and/or Sunday, the holidays shall be observed by the City of Charleston on both the Friday preceding the weekend and the Monday following the weekend.

(c) An employee who requests sick leave on the last working day preceding or the first working day following a holiday shall not receive regular compensation for the holiday if it is determined that sick leave was taken in a manner inconsistent with this Code or the personnel rules and administrative policies.

(d) If a holiday as identified in subsection (a), but excluding subdivisions (13) and (14) of subsection (a) of this section when occurring on a Saturday or Sunday, is observed on a full-time employee's regularly scheduled day off, the employee shall be compensated by straight time pay or an additional day off in lieu thereof. The determination of whether compensation will consist of pay or an additional day off shall be at the discretion of the city manager on a case-by-case basis. If compensated by pay, such pay shall be for a normal working day at the straight hourly equivalent rate for the employee's position classification.

(e) Upon request to an employee's department head, a full-time employee who is required to work on an election day, as identified in subdivision (13) of subsection (a) in this section, shall be provided with reasonable time and opportunity during the employee's work day to vote, without any reduction in pay or leave, if applicable.

(f) Alternate holiday leave procedures may apply, as required by business need, to personnel who are normally scheduled to work holidays as a part of their regular work shift.
(Bill No. 7712, 9-19-2016; Bill No. 8062, 8-18-2025)

**Sec. 86-107. Family and medical leave.**

The City of Charleston will provide family and medical leave to its eligible employees in compliance with the federal Family and Medical Leave Act ("FMLA").
(Bill No. 7712, 9-19-2016)

**Sec. 86-108. Military leave**

Consistent with state and federal law, the City of Charleston will provide military leave from work due to the performance of military duty on a commission or non-commission status, on a voluntary or involuntary basis in a uniformed service, including active duty, active duty for training, initial active duty for training, inactive duty training, full-time National Guard duty, funeral honors duty by National Guard or reserve members, or for an examination to determine a person's fitness for any of the above forms of duty.
(Bill No. 7712, 9-19-2016)

**Sec. 86-109. Sexual harassment and workplace violence.**

The city shall promote a work environment that is free from fear, violence, intimidation, hostility, harassment or other offenses which might interfere with work performance. Employees who commit misconduct involving violence, harassment or discrimination shall be subject to severe disciplinary action up to and including termination.
(Bill No. 7712, 9-19-2016)

**Secs. 86-110—86-199. Reserved.**

## DIVISION 2. PROGRESSIVE DISCIPLINE AND EMPLOYEE GRIEVANCES

**Sec. 86-200. Progressive discipline.**

When appropriate under the circumstances, the city will follow a progressive discipline approach consistent with the Personnel Rules and Administrative Policies. Notwithstanding, the city reserves the right to suspend progressive discipline and to administer disciplinary

action up to and including termination on a case-by-case basis and appropriate to the misconduct.
(Bill No. 7712, 9-19-2016)

**Sec. 86-201. Employee grievances.**

(a) *Covered personnel:* Only non-exempt employees holding full-time city positions, who have completed their initial employment period, are eligible to file grievances.

(b) *Matters to be heard:* Only the following actions shall be subject to the grievance process.

(1) Disciplinary actions resulting in a suspension without pay.

(2) Disciplinary actions resulting in the termination of employment.

(3) Involuntary transfer to a lower pay grade that results in an immediate loss of pay.

(c) *Grievance process:* All grievances shall be processed in a manner consistent with the Personnel Rules and Administrative Policies.

(d) *Hearing by administrative law judge:* Any employee who timely files a grievance consistent with this Code and the Personnel Rules and Administrative Policies that is not resolved at the department head or human resources department level shall be entitled to have his or her grievance heard and adjudicated by an administrative law judge. To the extent permitted by state law, the decision of the administrative law judge may be appealed to the Circuit Court of Kanawha County.
(Bill No. 7712, 9-19-2016)

**Secs. 86-202—86-299. Reserved.**

Chapters 87—89

**RESERVED**

Chapter 90

# PLANNING*

## Article I. In General

Secs. 90-1—90-30. Reserved.

## Article II. Municipal Planning Commission


Sec. 90-31. Created; composition; qualifications, appointment, terms and compensation of members; filling vacancies.
Sec. 90-32. Official name; powers and duties as to planning and zoning generally.
Sec. 90-33. General purpose.
Sec. 90-34. Planning; approval of commission required before action by city.
Sec. 90-35. Power to employ help; budget; cooperation from other officials and employees.
Sec. 90-36. Chairman and secretary; rules; meetings; records.
Sec. 90-37. Contracts for expenditure of money.
Sec. 90-38. Office.
Sec. 90-39. Plats or replats of land laid out in building lots.


*__Cross references—__Buildings and building regulations, ch. 14; community development, ch. 30; environment, ch. 50; manufactured homes and trailers, ch. 70; natural resources, ch. 74; streets, sidewalks and other public places, ch. 102; subdivision regulations, ch. 106; utilities, ch. 118; zoning, App. B; PUD planned unit development district, App. B, § 16-1 et seq.

__State law reference—__Planning generally, W. Va. Code § 8-24-1 et seq.

## ARTICLE I. IN GENERAL

**Secs. 90-1—90-30. Reserved.**

## ARTICLE II. MUNICIPAL PLANNING COMMISSION*

### Sec. 90-31. Created; composition; qualifications, appointment, terms and compensation of members; filling vacancies.

There is created a municipal planning commission for the city, which shall consist of 15 members. One member of the commission shall be a member of the city council, appointed by the council for a term coextensive with his term as a member of the council; and one member of the commission shall be an administrative officer of the city, appointed by the mayor with the approval of the city council, to serve at the pleasure of the mayor. The other 13 members of the commission shall be freeholders and resident citizens of the city, who shall be appointed by the mayor and confirmed by the city council. The membership of the commission shall conform to the related requirements of state statutes and to W. Va. Code § 8-24-5 in particular. Members of the commission other than the councilmember and the administrative department member shall be appointed as follows: On or before July 1, 1975, and every three years thereafter, four members shall be appointed; on or before July 1, 1976, and every three years thereafter, four members shall be appointed; and on or before July 1, 1977, and every three years thereafter, five members shall be appointed. Members so appointed shall take office on July 1 of the year of appointment and shall serve for a term of three years and until their respective successors have been duly appointed and qualified. Vacancies other than those due to expiration of term shall be filled for the unexpired term only. Members of the commission shall serve without compensation.
(Code 1975, § 2-169)

**State law references—**Planning commission authorized, W. Va. Code § 8-24-1; planning commission membership, W. Va. Code § 8-24-5.

*__Cross reference—__Boards, committees and commissions, § 2-511 et seq.

### Sec. 90-32. Official name; powers and duties as to planning and zoning generally.

The municipal planning commission, the official name of which shall be "Municipal Planning Commission of the City of Charleston," is vested with the powers and it shall perform the duties prescribed for municipal planning commissions, with respect to zoning as well as to planning, in W. Va. Code ch. 8, art. 26 (W. Va. Code § 8-26-1 et seq.).
(Code 1975, § 2-170)

### Sec. 90-33. General purpose.

The general purpose of the municipal planning commission shall be to make careful and comprehensive surveys and studies of present conditions and future growth of the city, with due regard to its relation to neighboring territory, with the general purpose of guiding and accomplishing a coordinated, adjusted and harmonious development of the city and its environs which will, in accordance with present and future needs, best promote health, safety, morals, order, convenience, prosperity and general welfare, as well as efficiency and economy in the process of development, including, among other things, adequate provision for traffic, the promotion of healthful and convenient distribution of population, the promotion of good civic design and arrangement, wise and efficient expenditure of public funds, and the adequate provision of public utilities and other public requirements.
(Code 1975, § 2-171)

**State law reference—**General purpose of planning commission, W. Va. Code § 8-24-16.

### Sec. 90-34. Planning; approval of commission required before action by city.

(a) The duties of the municipal planning commission shall include the preparation of plans for the development of the whole or any portion of the city and any land outside the city which, in the opinion of the commission, bears relation to the planning of the city; provided, that the power of the municipal planning commission shall not extend beyond the territorial limits of the city except so far as is reasonably necessary to protect

the community, both within and without the corporate limits, against inadequate streets, highways and sewers, and inadequately planned and zoned territory. Such plans shall show recommendations for new streets, bridges, parks, parkways and other public areas or public improvements and matters properly pertaining to the purposes of the commission.

(b) Before final action shall be taken by the city or any department of the city on the location and design of any public building, public memorial, street, alleyway, park, parkway, playground or other public area, such question shall be submitted to the municipal planning commission staff for investigation and report by the staff.
(Code 1975, § 2-172)

### Sec. 90-35. Power to employ help; budget; cooperation from other officials and employees.

The municipal planning commission shall have the power and authority, subject to approval of the city council, to employ engineers and clerks, or any other help necessary and to meet all such expenses. The municipal planning commission shall submit to the mayor and council its budget for each fiscal year, itemizing expenses and amounts, and the purposes. The council shall thereupon consider such budget and make such allowances to the municipal planning commission as it shall deem proper. All officials and employees of the city shall, so far as practicable, give their services and submit such data or information as may be required to promote and effectuate the purposes of this article.
(Code 1975, § 2-173)

### Sec. 90-36. Chairman and secretary; rules; meetings; records.

The municipal planning commission, from its membership, shall elect a chairman and shall appoint a secretary. It shall adopt such rules as may be necessary for the transaction of its business, hold regular meetings open to the public, and keep a record of its official proceedings, which shall be open to the public.
(Code 1975, § 2-174)

**Cross reference—**Officers and employees, § 2-131 et seq.

**State law reference—**Planning commission officers, W. Va. Code §§ 8-24-11, 8-24-12.

### Sec. 90-37. Contracts for expenditure of money.

No contract for the expenditure of money by the municipal planning commission shall be executed by the commission or become effective and binding on the city until such contract shall have been attested by the secretary of the commission and approved by the mayor and council.
(Code 1975, § 2-175)

**State law reference—**Contracts for professional services authorized, W. Va. Code § 8-24-12.

### Sec. 90-38. Office.

The municipal planning commission shall maintain an office in the city building, and the office of the clerk of the council is designated as the office of the commission, and all of the records of the commission shall be kept in that office.
(Code 1975, § 2-176)

**State law reference—**Offices, W. Va. Code § 8-24-10.

### Sec. 90-39. Plats or replats of land laid out in building lots.

All plans, plats or replats of land laid out in building lots, and the streets intended to be dedicated to public use, shall be submitted to the municipal planning commission for its consideration; and no such plat or replat shall be filed in the office of the clerk of the county court, as provided by law in other cases, until such plat or replat shall have endorsed upon it the fact that it has first been submitted to the municipal planning commission and by the commission to the mayor, and by the mayor to the city council and duly approved by the council.
(Code 1975, § 2-177)

**State law reference—**Plat approval, W. Va. Code §§ 8-24-28, 8-24-35.

# Chapter 91

# ZONING*

Sec. 91-1. Zoning ordinance.

*__Charter reference—__Zoning, § 102 et seq.

__Cross references—__Any ordinance pertaining to zoning or the comprehensive plan saved from repeal, § 1-17(18); buildings and building regulations, ch. 14; community development, ch. 30; environment, ch. 50; manufactured homes and trailers, ch. 70; natural resources, ch. 74; planning, ch. 90; streets, sidewalks and other public places, ch. 102; subdivision regulations, ch. 106.

__State law reference—__Zoning, W. Va. Code § 8-24-39 et seq.

__Note—__See editor's note following Appendix B.

**Sec. 91-1. Zoning ordinance.**

There is hereby adopted that certain revised document heretofore published by the city and which is entitled "Zoning Ordinance of the City of Charleston, West Virginia, as passed by Ordinance No. 7167, November 21, 2005 ", as revised by the Council of the City of Charleston, and kept on file in the Planning Department and City Clerks Office, City Hall, where it shall be available to the public for inspection and use during all regular business hours; and said document, as revised, is hereby incorporated herein and made a part thereof as fully as though set out in length; and the provisions of said document, as revised by council for the City of Charleston from time to time, shall be controlling within the city limits of the City of Charleston in all matters related to its subject matter. It is unlawful for any person to act in any way or manner contrary to the provisions therein.

(Bill No. 7047, 4-19-2004; Ord. No. 7167, § 2, 11-21-2005)

Chapters 92, 93

**RESERVED**

Chapter 94

# RAILROADS*


Sec. 94-1. Franchise to occupy streets.
Sec. 94-2. Conformity with regulations required.
Sec. 94-3. Obstruction of railway track or interference with operation of trains.
Sec. 94-4. Removal or melting of snow from railway tracks.
Sec. 94-5. Jumping on or off moving train.
Sec. 94-6. Trespass on railroad property.


*__Cross references—__Streets, sidewalks and other public places, ch. 102; railroads and public utilities, § 102-99.

__State law references—__Authority to regulate the use of streets, etc., W. Va. Code § 8-12-5(4); railroads, W. Va. Code § 31-2-1 et seq.

### Sec. 94-1. Franchise to occupy streets.

No license, permit, contract or grant shall be granted to any railroad company to occupy any street within the city unless it clearly appears that the public will derive some convenience or benefit and that the occupation will not destroy the street or any portion of a street as a public thoroughfare. No additional tracks, switches, fills or other construction shall be allowed to be constructed by any railroad corporation in the city along or across any of the public streets or highways in the city until the company shall first have procured a permit or license from the city council issued in compliance with the applicable provisions of this chapter.
(Code 1975, § 23-1)

**State law references—**Conditions for granting franchises by city council, W. Va. Code § 8-31-1; compelling compliance with franchise obligations, W. Va. Code § 8-31-2.

### Sec. 94-2. Conformity with regulations required.

Every railroad company now operating, or which may hereafter operate within the city limits shall conform to the regulations in this chapter in regard to crossings and the operation of its railroad within the city limits.
(Code 1975, § 23-2)

### Sec. 94-3. Obstruction of railway track or interference with operation of trains.

It shall be unlawful for any person within the city to place any obstruction upon or near the track of any railway, or to displace any switch or remove, disturb or injure anything pertaining to the track, wires, poles, cars, engines or anything necessary for the operation of any such railway or in anywise to prevent or endanger the passage of any locomotive; except that this section shall not be construed as covering hose or other obstruction placed on or over the track in case of fire.
(Code 1975, § 23-9)

### Sec. 94-4. Removal or melting of snow from railway tracks.

It shall be unlawful for any person in removing snow from the tracks of any railway in the city to do so in such a manner as to obstruct the free passageway of any street or roadway. And no person shall sprinkle salt or other decomposing substance upon any railway tracks or rails in the city for the purpose of melting snow or ice or for any purpose unless a permit is granted by the street commissioner.
(Code 1975, § 23-10)

### Sec. 94-5. Jumping on or off moving train.

It shall be unlawful for any person who is not employed to work upon such trains to climb upon or jump off of any moving engine or train within the city limits, while it is in motion, or running into or through the city.
(Code 1975, § 23-14)

**State law reference—**Jumping on or off railroad car or train while in motion, W. Va. Code § 61-3-43.

### Sec. 94-6. Trespass on railroad property.

No unauthorized person shall loiter, walk, ride, drive or otherwise trespass upon any railway right-of-way or tracks, or upon the bridges or elevated structures carrying tracks, unless there is a walkway provided for pedestrians, which walkway or passageway must be separated from the tracks of a railroad by a partition, or upon locomotives or cars operated on tracks of any railroad company operating in the city.
(Code 1975, § 23-15)

Chapters 95—97

**RESERVED**

# Chapter 98

# SOLID WASTE*

## Article I. In General


Sec. 98-1. Notice of violation, refuse citations, appeals, and municipal court process.
Sec. 98-2. Prohibited disposal of waste matter generally.
Sec. 98-3. Prohibited discharges in watercourses, wells, similar places.
Sec. 98-4. Prohibited littering of streets, sidewalks and public places; duty of persons in violation of section.
Sec. 98-5. Street rubbish cans; littering.
Sec. 98-6. Cleaning circus grounds.
Sec. 98-7. Refuse at outdoor eating establishments.
Sec. 98-8. Duty of contractors to remove debris; collection of refuse from lots.
Sec. 98-9. Fallen trees; stumps; debris.
Sec. 98-10. Exposure of wind-blown materials or fragments from buildings.
Secs. 98-11—98-40. Reserved.


## Article II. Collection and Disposal

### Division 1. Generally


Sec. 98-41. Definitions.
Sec. 98-42. Violation and penalty.
Sec. 98-43. City manager ex officio sanitation inspector.
Sec. 98-44. Director of refuse collection.
Sec. 98-45. Whom to collect refuse and recyclables; issuance of annual permits to commercial waste haulers by city manager.
Sec. 98-46. Outside storage of refuse must be in standard containers.
Sec. 98-47. Manner of storing refuse and recyclables; use of plastic bags.
Sec. 98-48. Regulation of time of day and area during which refuse and recyclables may be collected from residential districts and surrounding areas.
Sec. 98-49. Throwing, scattering or delivering refuse upon any premises, street or place.
Sec. 98-50. Delivery of refuse upon private property.
Sec. 98-51. Open burning of refuse or disposal of refuse in domestic incinerators prohibited.
Sec. 98-52. Permit for burning.
Sec. 98-53. Reserved.
Secs. 98-54—98-70. Reserved.


### Division 2. Rates and Charges


Sec. 98-71. Charges for refuse, recyclables and yard (green) waste services; authority of city collector to promulgate rules and regulations related to collection of fees.
Sec. 98-72. City to collect residential refuse fee.
Sec. 98-73. Collection rates do not cover certain types of refuse.
Sec. 98-74. Special service charge; additional charges for certain refuse.
Sec. 98-75. Payment of service charges.


---

***Cross references—**Buildings and building regulations, ch. 14; environment, ch. 50; health and sanitation, ch. 58; manufactured homes and trailers, ch. 70; natural resources, ch. 74; utilities, ch. 118.

**State law references—**Solid waste management, W. Va. Code § 22-15-1; littering, W. Va. Code § 20-7-26.

Sec. 98-76. Notice of lien for failure to pay fee, rate, penalty or charge.
Sec. 98-77. Special rates authorized by city council.
Sec. 98-78. Charges for use of city refuse disposal facilities; collection of charges.
Sec. 98-79. Collection of service charges; records; city auditor.
Sec. 98-80. Weighing scales.
Sec. 98-81. Disposition of charges for refuse service; city solid waste fund.
Sec. 98-82. Release of liens filed for failure to pay refuse service charges.
Secs. 98-83—98-100. Reserved.

Division 3. Curbside Collection

Sec. 98-101. Location and time for placement; disabled and infirmed residents.
Secs. 98-102—98-120. Reserved.

Division 4. Recyclables

Sec. 98-121. Separation of recyclables from municipal solid waste.
Sec. 98-122. Collection of recyclables.
Sec. 98-123. Ownership of recyclables.
Sec. 98-124. Collection of recyclables by unauthorized persons.
Sec. 98-125. Disposal of recyclables following collection.
Sec. 98-126. Revenue from recycling.
Secs. 98-127—98-150. Reserved.

Division 5. Yard (Green) Waste

Sec. 98-151. Separation, collection and disposal of yard (green) waste.
Secs. 98-152—98-170. Reserved.

Division 6. Transportation and Disposal of Tires

Sec. 98-171. Prohibited disposal of tires.
Sec. 98-172. Penalties.

## ARTICLE I. IN GENERAL

### Sec. 98-1. Notice of violation, refuse citations, appeals, and municipal court process.

(a) A violation of this chapter may be brought upon the issuance of a refuse citation by the director of refuse collection, the assistant director of refuse collection or the refuse collection relief foreman who shall affix a refuse citation upon the dwelling or commercial establishment that is in violation of this Code, instructing the owner or occupant of such dwelling or commercial establishment as to the penalty and manner of paying the penalty for such violation, which refuse citation shall issue in the name of the city; shall advise the alleged violator of the nature of the offense or violation of this chapter, the date, time and location of the violation, and the section or sections of this chapter violated.

(b) Issuance of a refuse citation to an alleged violator of the provisions of this chapter shall be deemed to be prima facie evidence of the refuse and collection violation indicated on the face of the refuse citation. As such, any person who is issued a refuse citation must pay the fine indicated for the violation, as set forth in section 98-42 of this Code, in full to the city collector or on the city's online payment website within ten days of issuance; provided, however, that any person who feels he or she was improperly issued such refuse citation may, within the ten days from issuance, file a dispute with the director of public works. The director of public works shall review the dispute and make an independent determination regarding the refuse citation. The director of public works shall communicate the decision to the alleged violator and notify the alleged violator that her or she may appeal the decision to the municipal court within ten days in accordance with the following:

(1) Prior to filing any appeal of the decision of the director of public works, the alleged violator shall pay the required amount of the fine in full to the city collector or on the city's online payment website as bond pending evidentiary hearing before and resolution of the case by the municipal court. The city collector must issue a receipt to the alleged violator showing the amount of the bond paid. Thereafter, in order to properly and timely appeal the decision of the director of public works regarding his or her refuse citation, the alleged violator must file a copy of the bond receipt along with his or her appeal of the decision of the director of public works with the municipal court clerk within ten days of issuance of the decision of the director of public works as set forth above. If any appeal filed in accordance with this section is not timely filed or is not accompanied with the required receipt showing payment of the required bond, the alleged violator shall be deemed to have waived his or her right to contest the refuse citation, and such appeal shall be summarily denied as untimely filed; provided, however, that nothing set forth hereinabove shall prevent the municipal court judge from finding upon proper showing that an alleged violator suffers from financial hardship, and, as a result, waiving the requirement that the bond be posted as a prerequisite to filing a timely appeal.

(2) Any appeal filed with the municipal court clerk must be in writing, on the form to be provided by the municipal court clerk, and must be signed by the alleged violator affirming that the contents of the appeal are true and accurate to the best of the alleged violator's knowledge at that time. Such appeal must state the facts and reasons in support of the alleged violator's position. Upon filing any such appeal with the municipal court clerk, the alleged violator must serve a copy of the appeal and receipt showing proof of bond upon the city attorney.

(3) Upon filing of an appeal of the director of public works' decision with the municipal court clerk, the clerk or his or her designee shall place the case on the municipal court docket, set the case for evidentiary hearing, and provide a notice of hearing to the alleged violator, city attorney, and director of public works. The municipal

court clerk shall forward a copy of the appeal to the city attorney and the director of public works. Upon receipt of the appeal, the director of public works shall cause a copy of the refuse citation at issue to be forwarded to the municipal court clerk who shall file it as the original complaint alleging the violation indicated therein and forward a copy to the city attorney.

(4) The municipal court shall treat the refuse citation itself as the original complaint before the court and shall treat it as prima facie evidence of the refuse violation alleged therein. As such, the alleged violator will bear the burden of overcoming the prima facie case at the evidentiary hearing. At the close of all of the evidence, should the municipal judge find against the alleged violator, the bond posted by the alleged violator will be applied as payment for the fine indicated for the violation; however, should the court find in favor of the alleged violator, the bond shall be refunded to the alleged violator. The decision of the municipal court may be appealed to the circuit court of Kanawha County.

(c) In any instance in which an alleged violator does not timely pay within ten days of the issuance of a refuse citation upon him or her, or ten days after the decision of the director of public works, if applicable, the full amount of the fine and an additional late fee equal in amount to the original fine becomes immediately due. If the alleged violator properly and timely files an appeal along with the required bond, then the amount of the fine shall remain at the original amount pending the decision by the municipal court. Once a decision is final or an amount becomes due, the city may take any lawful action necessary to collect the amount due, including, but not limited to, filing a lien against the violator and instituting collection proceedings.

(d) In addition to the citation procedure prescribed above, any violation of any provision of this chapter within the jurisdiction of the municipal court of the city, may be brought by complaint of a police officer in the name of the city in the form and style required by chapter 38 of this Code, which shall advise the alleged violator of the nature of the offense or violation of this chapter, the date, time and location of the violation, and the section or sections of this chapter violated.

(Ord. No. 6035, § 13-45, 9-19-1994; Bill No. 7960, 6-6-2022)

**Editor's note—**Bill No. 7960, adopted June 6, 2022 amended § 98-1 and in doing so changed the title of said section from "Notice of violation and to appear before municipal court" to "Notice of violation, refuse citations, appeals, and municipal court process," as set out herein.

### Sec. 98-2. Prohibited disposal of waste matter generally.

No person shall dispose of any refuse (or other waste matter) of any kind, solid or liquid, including but not limited to animal carcasses, excrement, offal, putrescible matter, hay, straw, sawdust and shavings, upon any street, sidewalk or public place (other than a lawful refuse disposal site) or upon any vacant lot, or upon the premises of another without his knowledge and consent and then only at such place and in such manner as to not create a hazard to the health, safety or welfare of any person or so as otherwise to create a nuisance.

(Ord. No. 6035, § 13-1, 9-19-1994)

### Sec. 98-3. Prohibited discharges in watercourses, wells, similar places.

It shall be unlawful for any person to dispose of any waste matter of any kind, solid or liquid, in any river, creek or other watercourse or in any reservoir, lake, pond, pool, well, spring or cistern, or in any gutter or drain. Any person who violates this section in an amount of up to 100 pounds in weight or 27 cubic feet shall, upon conviction, be fined not less than $100.00 and not more than $2,500.00, or in the discretion of the court, sentenced to perform community service by cleaning up litter from any public highway, road, street, alley, or any other public park or public property within the city, as designated by the court, for not less than eight nor more than 100 hours, or both. Any person who violates this section in an amount of between 100 pounds and 500 pounds in weight or between 27 cubic feet

and 216 cubic feet shall, upon conviction, be fined not less than $2,500.00 and not more than $5,000.00, or in the discretion of the court, sentenced to perform community service by cleaning up litter from any public highway, road, street, alley, or any other public park or public property within the city, as designated by the court, for not less than 16 nor more than 200 hours, or both. Any person who violates this section in an amount of more than 500 pounds in weight or 216 cubic feet shall, upon conviction, be fined not less than $2,500.00 and not more than $25,000.00, or confined in jail for up to 30 days, or both. Each individual disposal and each day such violation is committed or permitted to continue may constitute a separate offense or may be combined into a single offense in order to calculate the relevant weight or cubic feet.
(Ord. No. 6035, § 13-2, 9-19-1994; Bill No. 7960, 6-6-2022)

### Sec. 98-4. Prohibited littering of streets, sidewalks and public places; duty of persons in violation of section.

(a) No person shall deposit or permit to fall on any street, sidewalk, square or other public place any grass, scrap iron, nail, tack, wire, cigarette, cigarette remains, cigarette butt, can, paper, trash, other litter or any offensive matter, or anything likely to injure the feet of individuals or animals or the tires of vehicles. To the extent that any such deposit of trash or litter is accidental, or incidental to property cleanup or mowing (such as leaves or grass deposited onto the street during property cleanup, or an incident wherein trash blows out of a vehicle), there will not be a violation if the individual who is responsible for such deposit (the person mowing grass, blowing leaves, or operating the vehicle) immediately, or as soon thereafter as reasonably possible, removes the litter, trash, or debris as described in subsection (b) below. Otherwise, the person shall be guilty of a violation subject to the punishment prescribed in subsection (c) below. Deposit of a cigarette, cigarette remains, or cigarette butt on any property without the immediate retrieval thereof by the person who last held or smoked the cigarette (the "smoker") shall be prima facia evidence that the smoker has violated this section and has intentionally failed to comply with subsection (b) below. The driver of any vehicle from which a cigarette (or any part thereof) or any other type of litter, trash, offensive matter, or anything likely to injure the feet of individuals or animals or the tires of vehicles is thrown, dropped, or otherwise deposited shall be equally liable for violation of this section, and shall share the personal responsibility and criminal liability in the event of failure to comply with the requirement described in subsection (b) below.

(b) Any person who deposits or permits to fall upon any street, sidewalk, square or other public place any litter mentioned in subsection (a) of this section shall immediately remove the litter or cause it to be removed. The failure to remove the litter or cause it to be removed shall be a violation subject to the punishment prescribed in subsection (c) below.

(c) Any person who violates this section in an amount of up to 100 pounds in weight or 27 cubic feet shall, upon conviction, be fined not less than $100.00 and not more than $2,500.00, or in the discretion of the court, sentenced to perform community service by cleaning up litter from any public highway, road, street, alley, or any other public park or public property within the city, as designated by the court, for not less than eight nor more than 100 hours, or both. Any person who violates this section in an amount of between 100 pounds and 500 pounds in weight or between 27 cubic feet and 216 cubic feet shall, upon conviction, be fined not less than $2,500.00 and not more than $5,000.00, or in the discretion of the court, sentenced to perform community service by cleaning up litter from any public highway, road, street, alley, or any other public park or public property within the city, as designated by the court, for not less than 16 nor more than 200 hours, or both. Any person who violates this section in an amount of more than 500 pounds in weight or 216 cubic feet shall, upon conviction, be fined not less than $2,500.00 and not more than $25,000.00, or confined in jail for up to 30 days, or both. Each individual deposit and each day such violation is committed or permitted to

continue may constitute a separate offense or may be combined into a single offense in order to calculate the relevant weight or cubic feet.
(Ord. No. 6035, § 13-3, 9-19-1994; Bill No. 7359, 12-1-2008)

**State law references—**Littering, W. Va. Code § 20-7-26; authority to prevent littering of public places, W. Va. Code § 8-12-5(3).

### Sec. 98-5. Street rubbish cans; littering.

It shall be unlawful for any person to use the street refuse cans for any purpose whatsoever except the deposit by pedestrians of refuse as may be cast away by passersby on the street; and it shall be unlawful for such pedestrians or passersby to throw any such substances upon the streets, sidewalks, gutters, open spaces, vacant lots, spaces between houses, or in any other place than the cans designated for the deposit of such articles. It shall be unlawful for any business owner or resident to deposit refuse in the street refuse cans.
(Ord. No. 6035, § 13-4, 9-19-1994; Bill No. 7621, 5-5-2014)

**Cross reference—**Streets, sidewalks and other public places, ch. 102.

### Sec. 98-6. Cleaning circus grounds.

The owner of any lot or square of ground in the city, or his agent, who shall let such lot or square for any circus or other exhibition shall, within 24 hours after the exhibition shall have left, clear and remove, to the satisfaction of the city manager, from any such lot or square, wastepaper and deposits of all kinds. This section shall not apply to deposits of substances not injurious to health on any lots where permission to make such deposits is granted by the city manager.
(Ord. No. 6035, § 13-5, 9-19-1994)

### Sec. 98-7. Refuse at outdoor eating establishments.

Any proprietor, manager or employee of a restaurant or eating establishment serving food to be eaten in parked automobiles or out-of-doors on the premises of the business shall not cause or allow debris, refuse, garbage or waste materials to be placed or to remain on the premises outside of containers. The proprietors or managers of such eating establishments shall maintain on the premises in areas where food is consumed out-of-doors refuse and waste containers which are easily accessible to customers and employees.
(Ord. No. 6035, § 13-6, 9-19-1994)

### Sec. 98-8. Duty of contractors to remove debris; collection of refuse from lots.

Building contractors, excavators and other persons who in the course of their respective businesses cause debris or refuse of any kind to accumulate upon any street or at any other place within the city shall remove and dispose of such debris or refuse within 48 hours of notification by the city or, as directed by the city manager, before it becomes a hazard to the public health, safety or welfare, and at the completion of each project shall remove and dispose of all such debris and refuse in a sanitary and lawful manner. When debris or refuse accumulates on any lot so as to become a nuisance and is not subject to removal by any contractor or other person as provided in this section, the city, after notice to the property owner to do so and his failure to comply within a reasonable time, may collect and dispose of such debris and refuse; and the costs of such collection and disposal shall become a charge against the owner of such lot and shall be collectible in any manner provided by law.
(Ord. No. 6035, § 13-7, 9-19-1994)

### Sec. 98-9. Fallen trees; stumps; debris.

Fallen trees, stumps and debris which are on a public right-of-way shall be collected and disposed of by the city. Fallen trees, stumps and debris not on a public right-of-way but which constitute a hazard to the health or safety of any person or which otherwise constitute a nuisance shall be removed promptly and disposed of in a sanitary and lawful manner by the owners or occupants of the properties upon which they are situated.
(Ord. No. 6035, § 13-8, 9-19-1994)

**Sec. 98-10. Exposure of wind-blown materials or fragments from buildings.**

No lime, ashes, coal, dry sand, hair or feathers shall be sifted, agitated or exposed; nor shall any mat, carpet or cloth be shaken or beaten; nor shall any cloth, yard, garment, material or substance be scoured, cleaned or hung, nor merchandise or goods be placed, kept or exposed in any place where they or particles from such materials will pass into any street or public place, or into any occupied premises. No person shall omit any usual or reasonable precaution to prevent fragments or other substances from falling, to the peril of life, or dust or light material flying into any street, place or building, from any building or erection, while it is being altered, repaired, demolished or otherwise.
(Ord. No. 6035, § 13-10, 9-19-1994)

**Secs. 98-11—98-40. Reserved.**

## ARTICLE II. COLLECTION AND DISPOSAL*

### DIVISION 1. GENERALLY

**Sec. 98-41. Definitions.**

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

*Ashes* means the solid residue from the burning of wood, coal, coke or other combustible material used for heating buildings or the solid residue from the incineration of combustible material used for heating buildings or the solid residue from the incineration of combustible solid waste.

*Bulky waste* means large items of refuse, including but not limited to appliances (white goods), tires, e-waste and furniture which may require special handling due to their size, shape or weight. The term "bulky waste" as used herein shall include "Bulky goods" as that term is defined in Title 150 West Virginia Code of State Rules, Series 9, Section 1.8.b. and as such Section may be amended.

*Commercial waste hauler* means an entity engaged in the business of providing the service of collecting, transporting or disposing of waste or recyclables within the city.

*E-waste* means electronic waste including, but not limited to computers, electronics, monitors, and televisions.

*Municipal solid waste* means, in the context of this article only, all materials in the solid waste stream, less the materials removed as part of the recycling or green waste programs.

*Recyclables* means materials that would otherwise become solid waste for disposal in a landfill but are instead processed for return into the marketplace in the form of raw materials or products.

*Recycling* means to collect, separate or process materials that would otherwise become solid waste for disposal in a landfill and return them into the marketplace in the form of raw materials or products.

*Refuse* means discarded Solid Waste.

*Refuse collection* means the gathering of refuse as placed at the curbs of streets and loading into collection vehicles, for which the charge is made as provided for in section 98-71 or as otherwise provided in this article or by authorized rules and regulations of the city manager.

*Refuse disposal* means the disposition of refuse in accordance with applicable rules and regulations.

*Refuse removal* means the hauling and transportation of refuse from point of collection to point of disposal.

*Sanitary landfill* means any solid waste facility for the disposal of solid waste on land. Such

*__Editor's note—__Bill. No. 7621, adopted May 5, 2014, amended and restated former Art. II, Divs. 1—6, in its entirety to read as herein set out. Former Art. II pertained to similar subject matter and derived from Ord. No. 6035, § 13-11—13-31, 13-36—13-44, 13-47—13-50; Ord. No. 6512, 9-9-1998; Ord. No. 6622, 12-6-1999; Ord. No. 6665, 5-15-2000; Bill No. 6820, § 13-37, 8-6-2001; Bill No. 6916, § 31-21, 7-15-2002; Bill No. 7044, 4-5-2004; Ord. No. 7408, 12-21-2009.

facility is situated, for purposes of this article, in the county where the majority of the spatial area of such facility is located.

*Solid waste* means any garbage, paper, litter, refuse, cans, bottles, waste; sludge from a waste treatment plant, water supply treatment plant or air pollution control facility; and other discarded materials, including offensive or unsightly matter, solid, liquid, semisolid or contained liquid or gaseous material resulting from industrial, commercial, mining or community activities. Solid waste does not include:

(1) Solid or dissolved material in sewage or solid or dissolved materials in irrigation return flows or industrial discharges which are point sources and have permits under Article Five-A of Chapter 22 of the West Virginia Code; or

(2) Source, special nuclear or byproduct material as defined by the Atomic Energy Act of 1954, as amended, including any nuclear or byproduct material considered by federal standards to be below regulatory concern; or

(3) A hazardous waste either identified or listed under Article Five-E of Chapter 22 of the West Virginia Code; or

(4) Refuse, slurry, overburden or other wastes or material resulting from coal-fired electric power or steam generation, the exploration, development, production, storage and recovery of coal, oil and gas and other mineral resources placed or disposed of at a facility which is regulated under Chapter 22, 22A, or 22B of the West Virginia Code, so long as placement or disposal is in conformance with a permit issued pursuant to such chapters. The definition of solid waste herein is intended to be in conformance with the definition of solid waste in the Solid Waste Management Act, codified in West Virginia Code Chapter 22, Article 15, Section 2, as amended.

*White goods* means large appliances and other large items of refuse that are primarily made of recyclable metal.

*Yard (green) waste* means leaves, garden residues, shrubbery and tree trimmings, and similar material, including grass clippings.
(Bill. No. 7621, 5-5-2014)

### Sec. 98-42. Violation and penalty.

Unless a more specific penalty is stated for the specific violation, any person violating the provisions of this chapter or any regulation promulgated under this chapter shall be subject to a fine of $25.00 for each violation. Any owner of a multifamily dwelling, four units or larger, violating this article or any regulation promulgated under this article, shall be subject to a fine up to $100.00 for each violation. Any commercial establishment violating this article, or any regulation promulgated under this chapter, shall be subject to a fine of up to $100.00 for each violation.
(Bill. No. 7621, 5-5-2014; Bill No. 6-6-2022)

### Sec. 98-43. City manager ex officio sanitation inspector.

The city manager shall be ex officio sanitation inspector and shall have authority to prescribe, publish, promulgate and enforce any and all reasonable rules and regulations deemed by him necessary or proper, consistent with this article and other ordinances, to carry out the objectives and purposes of this article and for the safety and health of the citizens of the city with respect to the collections, removal, transportation and disposal of refuse and recyclables.
(Bill. No. 7621, 5-5-2014)

### Sec. 98-44. Director of refuse collection.

There is created the office of director of refuse collection. Such director shall be appointed by the mayor and shall serve at his will and pleasure for such compensation as may be fixed from time to time by the city council. It shall be his duty to collect, remove, transport and dispose of refuse and recyclables in the city. He shall be adequately supplied and equipped with personnel and equipment to carry out properly and satisfactorily, in accordance with the applicable provisions of this article, the essential public service of collecting,

removing, transporting and disposing of refuse and recyclables produced by residential properties within the city.
(Bill. No. 7621, 5-5-2014)

### Sec. 98-45. Whom to collect refuse and recyclables; issuance of annual permits to commercial waste haulers by city manager.

It shall be unlawful for any commercial waste hauler to engage in or conduct the business of collection, removal, transportation or disposal of refuse or recyclables within the corporate limits unless such commercial waste hauler shall have applied for and been issued an annual permit to operate as a private collector, transporter or disposer of refuse and/or recyclables. Such permit shall be and remain in full force and effect, unexpired and not revoked; and such permit card or certificate from the city manager shall be carried by such commercial waste hauler on his person and exhibited by him on request to any police, health or other proper officer of the city. Such commercial waste hauler shall also operate in conformity with all rules and regulations providing for and pertaining to solid waste management prescribed and promulgated by the city manager; and if such commercial waste hauler omits, fails or refuses to operate in conformity with such rules and regulations, his permit may be revoked and canceled by the city manager.
(Bill. No. 7621, 5-5-2014)

### Sec. 98-46. Outside storage of refuse must be in standard containers.

It shall be unlawful for any person to store or permit the storage of refuse and/or recyclables on or about the outside of his premises, or the premises occupied by him, unless such refuse and/or recyclables is kept in standard containers for refuse or recyclables; provided, however, a person may store refuse and/or recyclables outside without a standard container provided such storage is in the manner set forth in sections 98-47, and only at the location and during the time period for collection permitted by sections 98-101(a) and 98-101(d).
(Bill. No. 7621, 5-5-2014)

### Sec. 98-47. Manner of storing refuse and recyclables; use of plastic bags.

Refuse shall be placed in opaque (not clear) plastic bags and properly secured to prevent spillage. The plastic bags shall meet the specifications on file in the city manager's office. Recyclables and yard (green) waste shall be placed in "clear" plastic bags and properly secured to prevent spillage.
(Bill. No. 7621, 5-5-2014)

### Sec. 98-48. Regulation of time of day and area during which refuse and recyclables may be collected from residential districts and surrounding areas.

No person authorized to collect refuse or recyclables shall collect any refuse or recyclables from any residential district as defined by current zoning regulations or within 200 feet from any such district in the city between the hours of 9:00 p.m. and 7:00 a.m., it being the finding of the city council that such collections during the prohibited hours would disturb the peace, good order and quiet of such residential districts.
(Bill. No. 7621, 5-5-2014)

### Sec. 98-49. Throwing, scattering or delivering refuse upon any premises, street or place.

It shall be unlawful for any person to throw, place or scatter any refuse over or upon any premises or street, either public or private, or adjacent to such place, either with or without the intention to later remove or burn the material; or to suffer or permit, from the accumulation of refuse, any premises owned, occupied or controlled by such person to become or remain offensive, unsanitary, unsightly or unsafe to public health or hazardous from fire; or to burn any such refuse within the corporate limits.
(Bill. No. 7621, 5-5-2014)

### Sec. 98-50. Delivery of refuse upon private property.

It shall be unlawful to deliver refuse to or upon private property.
(Bill. No. 7621, 5-5-2014)

### Sec. 98-51. Open burning of refuse or disposal of refuse in domestic incinerators prohibited.

It shall be unlawful for any person to dispose of refuse within the city by open burning or in domestic incinerators.
(Bill. No. 7621, 5-5-2014)

### Sec. 98-52. Permit for burning.

Where burning of solid waste or yard (green) waste is deemed to be necessary by the Charleston Fire Department Fire Prevention Bureau, a permit for such burning may be issued by the Charleston Fire Department Fire Prevention Bureau pursuant to article 28 of the fire prevention code.
(Bill. No. 7621, 5-5-2014)

### Sec. 98-53. Reserved.

**Editor's note—**Bill No. 7663 adopted August 17, 2015, repealed former § 98-53 in its entirety which pertained to alternative receptacles for recyclables and derived from Bill No. 7621, adopted May 5, 2014.

### Secs. 98-54—98-70. Reserved.

## DIVISION 2. RATES AND CHARGES

### Sec. 98-71. Charges for refuse, recyclables and yard (green) waste services; authority of city collector to promulgate rules and regulations related to collection of fees.

(a) In conformity with subsection (g) of this section, and in order to make refuse disposal services self-supporting, the city council shall enact a schedule of rates, fees and charges for refuse disposal services provided by the city which shall include, but not be limited to, the collection and disposal of all bulky waste, refuse, recyclables and yard (green) waste; and any such schedule enacted pursuant to this section shall, while it is in effect, be maintained on file in the office of the city clerk.

(b) For standard weekly service to each residential property, including each single-family dwelling and each multi-family dwelling unit, the charges will be as follows: $216.00 per year (or $18.00 per month.) For standard weekly service to nonresidential properties, the charges will be as follows: $25.00 per month for pickup of bags which will not be supplied by the city, and $40.00 per month per dumpster, not to exceed three cubic yards in size. There shall be no credit or rate reduction applicable to fees accruing on January 1, 2010, and thereafter, for residential or nonresidential properties that are vacant.

(c) Any bill not paid in full within 20 days of the mailing shall be delinquent and a ten percent penalty shall be added to such bill.

(d) The billing of the charges provided for above will be made by billing one-twelfth of such amount monthly in conjunction with the billing of the sanitary board and the fire service charge, under an arrangement providing for equitable sharing of the billing cost; provided, however, that when a user of waste disposal service is not being billed for sewer service, the city reserves the right to bill this service on an quarterly basis.

(e) When the aggregate gross income of all persons residing in residential property, including single-family dwellings and multi-family dwelling units, maintained and occupied by a resident of the city during the preceding calendar year of the city, is less than $20,000.00, the rate for refuse may be reduced to $60.00 a year (or $5.00 per month); provided that the refuse fee account for which the reduced rate is requested is not in delinquent status, is current with no arrearage or penalties owed, has no delinquent fees or penalties due, and the resident who occupies such residential property makes an application for such reduced rate to the city collector and files therewith an affidavit evidencing the relevant facts required herein. If approved, the reduced rate and charges shall become effective with the first monthly billing after the filing of the affidavit; provided, however, that any approved reduced rate shall remain in effect for no more than one calendar year, or through June 30 of the year after which the affidavit is filed, whichever occurs first. So long as the qualifying and procedural requirements are met, a person may re-apply annually for a reduced rate in subsequent years. In the event any person making applica-

tion for a reduced rate shall submit any false, erroneous or untrue information relative to the eligibility or qualifications of the applicant for such reduced rate as set forth herein, any such person supplying such false, erroneous or untrue information shall be subject to a penalty equal to 150 percent of the prevailing rate then in effect.

(f) The city collector is hereby authorized to adopt such rules and regulations as may be necessary for him or her to determine, and he or she shall determine, the classification of residential properties, single-family dwellings, multi-family dwellings and other buildings and premises for the application of the rates, fees and charges established by any schedule enacted by the city council pursuant to this section. Any person allegedly aggrieved by the application of any such rule or regulation of the city collector shall have the burden of proof to show that the city collector's rule or regulation is erroneous.

(g) The city council shall have the right to revise from time to time the schedule of rates, fees and charges enacted pursuant to subsections (b) and (e) of this section, so as to accomplish the purposes mentioned in subsection (a) or to so adjust the rates, fees and charges so that costs will be distributed as equitably as possible among all citizens of the city on the basis of benefit received. At no time, however, shall rates be continued which are disclosed to be producing less revenue than is required to meet all obligations and costs involved in rendering refuse disposal costs at the landfill, or more revenue than is required to meet all costs involved in the collection and disposal services provided by the city.
(Bill. No. 7621, 5-5-2014; Bill No. 7779, 3-19-2018)

### Sec. 98-72. City to collect residential refuse fee.

The charges prescribed under section 98-71 shall apply to all residential properties within the city, including single-family dwellings and multi-family dwellings comprised of up to 12 residential units, as well as any other multi-family dwelling comprised of over 12 units that receives refuse service by the city and shall be payable by the owner of any such properties.
(Bill. No. 7621, 5-5-2014)

### Sec. 98-73. Collection rates do not cover certain types of refuse.

Under the schedules set out in section 98-71, the city shall not collect, remove or dispose of the following types of refuse: free liquids, paints, offal or raw animal remains or byproducts, sewage, animal excreta, or material resulting from the demolition, repair, alteration or erection of buildings or structures.
(Bill. No. 7621, 5-5-2014)

### Sec. 98-74. Special service charge; additional charges for certain refuse.

A flat charge of $1.00 may be collected from each special service call made; and to this charge may be added such charges as will compensate the city for extra refuse volume or weight involved in the types of refuse specified under section 98-73 as determined by the director of refuse collection, the city manager and the city collector.
(Bill. No. 7621, 5-5-2014)

### Sec. 98-75. Payment of service charges.

The service charges referenced in section 98-74 shall be paid to the city collector by the owners of the respective premises and shall be due and payable when billed.
(Bill. No. 7621, 5-5-2014)

### Sec. 98-76. Notice of lien for failure to pay fee, rate, penalty or charge.

(a) The fees, rates and charges for the collection services mentioned in this division shall, if not paid when due, constitute a lien upon the premises served, which lien may be foreclosed against the lot or parcel of land on which the building is located in accordance with state law relating to the foreclosure of liens on real property. If the city collector desires to file a notice of lien with the Clerk of the Kanawha County Commission regarding a delinquency in payment of the

fees, rates, penalties and other charges for the collection services set forth in this division, the city collector shall follow the administrative procedures set forth in W. Va. Code Section 8-13-13 and section 3-11, Chapter 3 of this Code. The city collector may collect the additional amount of $11.00 to reimburse the city for the fee paid by it to the Clerk of the Kanawha County Commission for recordation of such lien, which shall have priority over all other liens except those due the state and the United States of America.

(b) The administrative remedies set forth in section 3-11, Chapter 3 of this Code are exclusive. Failure to timely file a petition in accordance with section 3-11 shall preclude any challenge to the filing of the notice of lien. If no appeal is taken pursuant to section 3-11 within 30 days after service of the city collector's decision, said decision shall become final and conclusive and not subject to administrative or judicial review.
(Bill. No. 7621, 5-5-2014)

### Sec. 98-77. Special rates authorized by city council.

The city council shall have the right to establish and to authorize the city collector to collect such special charges and rates as may be proper for service to any person whose refuse requirements are sufficiently abnormal or different, in the opinion of the director of refuse collection, as to justify special or unusual handling of refuse, in lieu and in place of the charges and rates provided in sections 98-71, 98-74 and 98-78. This may include, but not be limited to, those buildings or dwellings not readily accessible to refuse collectors and in instances where refuse is not bagged, boxed or bundled.
(Bill. No. 7621, 5-5-2014)

### Sec. 98-78. Charges for use of city refuse disposal facilities; collection of charges.

(a) The charges for the use of and services rendered by the several refuse disposal facilities owned or operated by the city, including but not limited to the sanitary landfill, shall be as prescribed in schedules adopted from time to time by the city council and subject to the approval of the public service commission when required; and any such schedule enacted pursuant to this subsection shall, while it is in effect, be maintained on file in the office of the city clerk. Until such time as the city council enacts a schedule pursuant to this subsection, the charges for the use of and services rendered by the sanitary landfill shall be those which were in effect immediately preceding the effective date of this Code.

(b) All charges for dumping at a sanitary landfill shall be collected by the city collector or his representative upon delivery of such refuse at the sanitary landfill. If the city enters into a contract with a private contractor to operate the sanitary landfill, such contractor may, if such agreement approved by the council so permits, be designated by the city as the authorized representative, in lieu of the city collector, for the purpose of collection of sanitary landfill fees.

(c) All charges for the disposal of refuse delivered without expense to the city to any sanitary landfill shall be collected by the city collector or other representative authorized by the city upon delivery of the refuse to any sanitary landfill unless prior arrangements have been made with the city collector or other representative authorized by the city for payment to be made in some other manner or at some other time.
(Bill. No. 7621, 5-5-2014)

### Sec. 98-79. Collection of service charges; records; city auditor.

The city collector, after first executing bond in the penal sum fixed by order of the city council, with surety to be approved by the council, conditioned upon the faithful accounting of all funds which may come into his or her hands, shall promptly collect all charges for the services provided for in this article, and shall keep in his or her office proper records showing all collections made and received by him or her and all charges which are in default with the respective amounts due and the person by whom they are payable. The city auditor shall prescribe such forms and records as shall be proper and neces-

sary for the collection and accounting of all money from any and all services under this article, with authority to require the city collector and the director of refuse collection to duly observe and comply with. The system of accounting prescribed by the city auditor shall show the amount of revenue received and its application; and the city manager shall, at least once each year, cause such accounts to be properly audited by a competent auditor; and the report of such auditor shall be open for inspection at all times to any taxpayer or citizen of the city, or any persons receiving services under the provisions of this article or any holder of bonds issued under the provisions of the resolution mentioned and referred to in section 98-81, or anyone acting for or on behalf of such taxpayer, citizen or bond holder.
(Bill. No. 7621, 5-5-2014)

**Sec. 98-80. Weighing scales.**

Scales for the weighing of refuse delivered to the sanitary landfill upon which refuse may be disposed of shall be maintained and operated by the city or by its authorized agent under the supervision of the city.
(Bill. No. 7621, 5-5-2014)

**Sec. 98-81. Disposition of charges for refuse service; city solid waste fund.**

The gross revenues derived from the charges mentioned in this division shall be placed to the credit of the solid waste fund established by this section and the required amount thereafter deposited to the credit of a special account in any duly qualified city depository, to be known as the "City of Charleston Waste Disposal Fund," dedicated to the obligations of that certain agreement between the city and Landfill Services of Charleston, Inc. (a subsidiary of Waste Management), or any successor thereof, to be disposed of in accordance and consistent with the obligations of such agreement and all applicable resolutions and/or ordinances of the city council, and any amendments thereto. Any excesses in the solid waste fund will be available for transfer to the general fund.
(Bill. No. 7621, 5-5-2014)

**Sec. 98-82. Release of liens filed for failure to pay refuse service charges.**

(a) Whenever the amount of any lien filed in accordance with this article has been paid, together with costs, in full to the city collector, the city collector shall execute and deliver to the party paying the lien a release of the lien, which may be recorded in the office of the clerk of the county commission as other releases of liens.

(b) The city collector shall be authorized to issue a release of any lien filed by mistake or filed against the wrong property, upon evidence of such mistake being presented to the city collector.
(Bill. No. 7621, 5-5-2014)

**Secs. 98-83—98-100. Reserved.**

## DIVISION 3. CURBSIDE COLLECTION

**Sec. 98-101. Location and time for placement; disabled and infirmed residents.**

(a) All refuse, yard (green) waste, bulky waste, and recyclables shall be placed for collection either at the curb or at a point not more than five feet from the curb on the collection day. In areas where there are no curbs, all such waste materials shall be placed not more than five feet back from the edge of the traveled road way. Except for the collection and removal of the materials under subsection (b) of this section, a municipal employee shall not collect or remove, at city expense, any refuse, yard (green) waste, bulky waste or recyclables from the premises of any person or tenant of such premises.

(b) The city manager may grant an exemption from the requirements of subsection (a) of this section to residences occupied by persons with physical limitations which prevent them from placing waste at the curb; however, such person shall submit a written application for such exemption and certify in the application that the residence is occupied by such persons. If any person making application for an exemption shall submit any false, erroneous or untrue

information relative to the eligibility or qualifications of the applicant for such exemption, any such person supplying such false, erroneous or untrue information shall be subject to a penalty as provided in subsection (f) of this section.

(c) For the purpose of subsection (b) of this section, "physical limitation" shall mean any illness, injury, incapacity, or other physical disability which prevents such person from placing waste materials at the curb.

(d) All refuse, yard (green) waste, bulky waste and recyclables to be collected shall be secured in a manner consistent with section 98-47 of this Code and shall not be placed for collection before 6:00 p.m. on the day preceding the collection day nor after refuse is picked up on the day of collection. If refuse and/or recyclables are stored in standard containers, said container shall not be placed by the curb or edge of the traveled road way as defined in subsection (a) of this section before 6:00 p.m. on the day preceding the collection day nor after refuse is picked up on the day of collection, and must be removed from said curb or edge of the traveled road way no later than 10:00 p.m. on the day of collection.

(e) A property owner, landlord, or agent of an owner or landlord may not set items out for refuse collection as part of an eviction or other bulk disposal of items any earlier than 6:00 p.m. on the day preceding the collection day nor after refuse is picked up on the day of collection. A commercial property owner, landlord, or agent of an owner or landlord that does not have an account with the city for refuse collection may not place items out for refuse collection by the city and any such person with a contract for collection by a private hauler may not leave refuse on the public rights-of-way in a manner that is not secured in a dumpster designated by the private hauler.

(f) Any person violating the provisions of this section or any regulation promulgated under this section shall be subject to the penalties contained in section 98-42 of this Code for each violation and may be charged in a manner consistent with section 98-1 of this Code. Any owner, landlord, or agent of an owner or landlord violating subsection (e) of this section shall be subject to a fine of $500.00 for each violation and may be charged in a manner consistent with section 98-1 of this Code.
(Bill. No. 7621, 5-5-2014; Bill No. 7960, 6-6-2022)

**Secs. 98-102—98-120. Reserved.**

## DIVISION 4. RECYCLABLES

### Sec. 98-121. Separation of recyclables from municipal solid waste.

(a) Residences. Persons shall separate all recyclables, including aluminum bi-metal, and steel cans; newspaper; and plastics identified by the society of plastics industry (SPI) code numbers 1 and 2, boxboard, corrugated cardboard, office mix paper, magazines, and junk mail, from municipal solid waste generated at residences and shall store the recyclables until they are collected for recycling. Pursuant to West Virginia code Chapter 22, Article 15A, Section 18(b)(1), each person, partnership, corporation or other entity in the city shall separate at least three recyclables from municipal solid waste. The city manager shall have the authority to designate the three recyclables that will be collected by the city and may amend the designated recyclables from time to time. The city manager shall provide notice of his designations to residents.

(b) All residents receiving refuse collection services by the city shall place all designated recyclables into either a clear plastic bag or a container that is no larger than 48 gallons in volume, no heavier than 40 pounds when full, and clearly marked as containing recyclables, and place for collection in the manner set forth in section 98-101: Provided, that any paper or cardboard recyclables shall be placed in a clear plastic bag or water-proof container in order to protect the recyclables from water damage. The city may reject any wet paper or cardboard and any recyclable materials that are comingled with food or any item not on the list of accepted materials contained in subsection (a) of this section.

(c) An owner, landlord, or agent of an owner or landlord of a multi-family rental dwelling with four or more units receiving refuse service from the city may establish a collection system at each such property. The collection system shall include a separate suitable receptacle specifically for collection and storing recyclables which tenants have separated in compliance with section 98-121(b) of this Code, and written instructions to the occupants concerning the use and availability of the collection system. The receptacle shall be clearly marked as designated for recyclables only and shall be placed in a location easily accessible to the tenants. Owners, landlords, or agents of owners or landlords who provide a collection system under this section shall not be liable for non-compliance of occupants of their buildings.

(d) Commercial, industrial and institutional establishments shall separate at least three materials from refuse generated at such establishments and shall store such materials until they are collected for recycling in a manner consistent with section 98-122(b) of this Code. "Community activities" as used here includes events that are sponsored by public or private agencies or individuals that include, but are not limited to, regattas, fairs, bazaars, socials, picnics, performances, and organized sporting events attend by 500 or more individuals per day. Any person or entity in charge of a community activity shall provide for separation of at least three recyclables from refuse generated at such event and shall store such materials until they are collected for recycling in a manner consistent with section 98-122(b) of this Code. The three recyclables shall be chosen from the following group; office paper, computer paper, corrugated paper, newspaper, clear glass jugs/jars/bottles, aluminum, bi-metal and steel cans, automotive or industrial lead acid batteries, tires, computer ribbons, laser toner cartridges, copier toner cartridges, yard (green) waste or e-waste.

(e) An owner, landlord, or agent of an owner or landlord of a commercial, industrial or institutional establishment that leases its premises to other such establishments shall be deemed to have complied with its recycling responsibilities if it establishes a collection system meeting the requirements of the collection system for multi-family dwellings described in subsection (c) of this section.
(Bill. No. 7621, 5-5-2014; Bill No. 7825, 11-4-2019)

### Sec. 98-122. Collection of recyclables.

(a) *Residents.* Recyclables generated at residences shall be placed for collection in accordance with section 98-101. For single-family and multifamily dwellings where owners do not provide containers for the city's collection of recyclables, both the occupants and owners of such dwellings shall be responsible for compliance with this section.

(b) *Commercial, industrial or institutional establishments and community activities.* Persons who own or operate commercial, industrial or institutional establishments and any person in charge of a community activity shall coordinate with the permitted commercial waste hauler(s) and arrange for the storage, collection and recycling of the recyclables generated at such establishments and community activities.

(c) *Segregation of recyclables.* No person shall place or cause to be placed any refuse or any other non-recyclables in receptacles specifically provided or identified for recyclables to be collected by the city. No person shall place any recyclables generated at commercial establishments in the receptacles that are specifically provided or identified for recyclables to be collected by the city.
(Bill. No. 7621, 5-5-2014)

### Sec. 98-123. Ownership of recyclables.

All recyclables placed by persons for collection by the city shall become the property of the city upon the city's removal of the recyclables from the curbside or other designated collection location. All recyclables placed by commercial establishments or community activities for collection by private hauler shall become the property of the hauler upon the hauler's removal of the recyclables from the designated collection location.
(Bill. No. 7621, 5-5-2014)

**Sec. 98-124. Collection of recyclables by unauthorized persons.**

It shall be a violation of this division for any person other than the city to remove, tamper with, or otherwise disturb recyclables or their receptacles which have been placed for collection by the city. It shall also be a violation of this division for any person other than a public service commission certified commercial waste hauler permitted by the city under section 98-45 of the Code to remove, tamper with or otherwise disturb recyclables or their receptacles which have been placed for collection.
(Bill. No. 7621, 5-5-2014)

**Sec. 98-125. Disposal of recyclables following collection.**

All collectors shall take the collected recyclables to a recycling facility to be recycled.
(Bill. No. 7621, 5-5-2014)

**Sec. 98-126. Revenue from recycling.**

All revenues collected from city recycling activities shall be delivered to the city collector and dedicated to the recycling revenue account.
(Bill. No. 7621, 5-5-2014)

**Secs. 98-127—98-150. Reserved.**

DIVISION 5. YARD (GREEN) WASTE

**Sec. 98-151. Separation, collection and disposal of yard (green) waste.**

(a) For residences, prior to collection, persons shall separate yard (green) waste as defined in section 98-41 from municipal solid waste generated at residences. Yard (green) waste shall be set out for collection in clear bags provided by the city. Limbs and heavy brush may be set out at curbside for chipping. At times designated by the public works director, leaves may be piled at the curbside for collection.

(b) Clear plastic bags may be provided to each property owner and/or tenant free of charge. Clear plastic bags are for either yard (green) waste or recyclables only. Yard (green) waste and recyclables must be separated from one another. Municipal solid waste must also be separated from yard (green) waste and recyclables. Bags of either yard (green) waste or recyclables that contain any municipal solid waste may not be collected at the discretion of the city.

(c) Clear plastic bags shall meet specifications on file in the city manager's office.

(d) It shall be unlawful for any commercial, industrial or institutional establishment to dispose of yard (green) waste in the sanitary landfill, unless otherwise permitted by the West Virginia Department of Environmental Protection.

(e) Any person violating the provisions of this section or any regulation promulgated under this section shall be subject to a fine of $25.00, plus court costs for each violation.
(Bill. No. 7621, 5-5-2014)

**Secs. 98-152—98-170. Reserved.**

DIVISION 6. TRANSPORTATION AND DISPOSAL OF TIRES

**Sec. 98-171. Prohibited disposal of tires.**

It shall be unlawful for any person to collect, remove, transport or dispose of any vehicle tires in the city without first obtaining all necessary permits required by the city pursuant to the provisions of section 98-45, or by the state.
(Bill. No. 7621, 5-5-2014)

**Sec. 98-172. Penalties.**

Any person who shall violate any provision of this division shall be subject to a fine of $500.00 per violation, plus court costs. The city collector may waive the fine provided in this section in the case of a first offense by any resident of the city.
(Bill. No. 7621, 5-5-2014)

Chapters 99—101

**RESERVED**

Chapter 102

# STREETS, SIDEWALKS AND OTHER PUBLIC PLACES*

## Article I. In General


Sec. 102-1. Prohibited grant by any city official of exclusive right to appropriation of street for individual use.
Sec. 102-2. Public grass strips.
Sec. 102-3. Street openings by permit only; safety device required.
Sec. 102-4. Obstructions; open manholes; bridges over excavations.
Sec. 102-5. Use of sidewalk for handling fuel or goods.
Sec. 102-6. Displays on sidewalks.
Sec. 102-7. Prohibited material in streets or public places; coal; refuse from fruit stands.
Sec. 102-8. Gasoline or oily substance on pavement.
Sec. 102-9. Protection of streets from dirt or trees from abutting premises.
Sec. 102-10. Sweeping sidewalks; placing refuse on or sweeping across sidewalks.
Sec. 102-11. Removal of snow and ice.
Sec. 102-12. Area where street sale of articles and/or food prohibited.
Sec. 102-13. Certain acts constitute offenses in public parks and squares; government property declared public parks.
Sec. 102-14. Improvement of parks, squares, similar places by city council.
Sec. 102-15. Public fountains.
Sec. 102-16. Obstruction of view of drivers of vehicles by planting or maintaining foliage.
Sec. 102-17. Playing games in streets.
Sec. 102-18. Items prohibited at outdoor events.
Secs. 102-19—102-50. Reserved.


## Article II. Construction and Maintenance of Sidewalks, Curbs and Gutters


Sec. 102-51. When abutting owners to construct.
Sec. 102-52. Duty of abutting owner to repair; construction or repair by city.
Sec. 102-53. Grades and widths.
Sec. 102-54. Width regulations.
Sec. 102-55. Standards, specifications and materials.
Sec. 102-56. License required to engage in business of constructing sidewalks.
Secs. 102-57—102-90. Reserved.


---

***Cross references—**Any ordinance levying or imposing any special assessment saved from repeal, § 1-17(12); any ordinance dedicating, naming, establishing, locating, relocating, opening, paving, widening, repairing or vacating any street saved from repeal, § 1-17(13); any ordinance establishing the grade or any street or sidewalk saved from repeal, § 1-17(14); removal of dogs from public gatherings, § 10-116; buildings and building regulations, ch. 14; itinerant vendors, § 18-611 et seq.; cemeteries, ch. 22; community development, ch. 30; environment, ch. 50; manufactured homes and trailers, ch. 70; natural resources, ch. 74; throwing missiles in streets or public places, § 78-7; drunkenness in public places, § 78-211; parks and recreation, ch. 82; planning, ch. 90; railroads, ch. 94; street rubbish cans, § 98-5; throwing, scattering or delivery refuse upon any premises, street or place, § 98-49; subdivision regulations, ch. 106; connection of subdivisions with city streets or sewers, § 106-8; streets and blocks, § 106-141 et seq.; street construction specifications, § 106-182; required improvements for street name signs, § 106-184; required improvements for sidewalks in subdivisions, § 106-185; traffic ordinance, ch. 114; processions and parades, § 114-16; toy vehicles on streets and sidewalks, § 114-18; removal from streets of wrecked or abandoned vehicles, § 114-22; one-way streets on traffic control map, § 114-264; vehicle operation on one-way streets, § 114-369; vehicle operation on closed streets, § 114-370; driving on sidewalks, § 114-371; vehicle operation on play streets, § 114-375; persons working on streets and highways, § 114-670; riding bicycles on sidewalks, § 114-706; permitting excessive size and weight of vehicles on city streets and highways, § 114-791; utilities, ch. 118; vehicles for hire, ch. 122; zoning, app. B.

**State law reference—**General authority over streets and sidewalks, W. Va. Code § 8-12-5(1), (2), (4)—(6).

### Article III. Excavations

Sec. 102-91. Adoption of City of Charleston Public Rights-of-Way Excavation and Restoration Ordinance Manual.
Secs. 102-92—102-150. Reserved.

### Article IV. Street Names and Building Numbers

#### Division 1. Generally

Sec. 102-151. Naming public streets.
Secs. 102-152—102-170. Reserved.

#### Division 2. Building Numbering

Sec. 102-171. Powers of building commissioner.
Sec. 102-172. Procedure regarding change of numbers.
Sec. 102-173. Method of numbering; complaints; action of city council.
Sec. 102-174. Placement and maintenance of street numbers upon premises by owners of properties having buildings on such premises.
Secs. 102-175—102-199. Reserved.

### Article V. Poles, Wires and Antennas

Sec. 102-200. Purpose.
Sec. 102-201. Definitions.
Sec. 102-202. Application.
Sec. 102-203. Fees.
Sec. 102-204. Permitted use; zoning applicability.
Sec. 102-205. Design guidelines.
Sec. 102-206. Application processing.
Sec. 102-207. Consolidated applications permitted.
Sec. 102-208. Work within and repairs to the right-of-way.
Sec. 102-209. Building commissioner rules.
Sec. 102-210. Revocation.
Sec. 102-211. Violations and penalties.
Sec. 102-212. Franchise to set or place wires, poles, other paraphernalia, on streets; use of wires.
Sec. 102-213. Permit for additions, replacements, relocations of wires.
Sec. 102-214. Workers' badges.
Sec. 102-215. Right of council to prescribe kind, size and location of poles.
Sec. 102-216. Insulation and protection of line wires.
Sec. 102-217. Mains and service wires.
Sec. 102-218. Ground wires.
Sec. 102-219. High-tension wires.
Sec. 102-220. Wires carrying electric current under street surface.
Sec. 102-221. Transformers.
Sec. 102-222. Standard electrical construction and equipment required.
Sec. 102-223. Poles, wires and electrical equipment to comply with article.
Sec. 102-224. Municipal control of telephone, telegraph and electric companies.
Secs. 102-225—102-260. Reserved.

### Article VI. Street and Alley Closings

Sec. 102-261. Authority to close city street, alley, lane, road or other public right-of-way.
Sec. 102-262. Procedure.
Secs. 102-263—102-270. Reserved.

## Article VII. Outdoor Dining

Sec. 102-271. Planning department rules and regulations under article.
Sec. 102-272. Compliance with federal, state and local laws and regulations.
Sec. 102-273. Nondiscrimination/right to limit or deny admission or service.
Sec. 102-274. Definitions.
Sec. 102-275. Permit process.
Sec. 102-276. Standards for outdoor dining areas.
Sec. 102-277. Additional requirements.
Sec. 102-278. Denial or revocation of permit.
Sec. 102-279. Penalty.
Sec. 102-280—102-289. Reserved.

## Article VIII. Stormwater Pollution Prevention

### Division 1. Illicit Discharge Detection and Elimination

Sec. 102-290. Purpose/Intent.
Sec. 102-291. Definitions.
Sec. 102-292. Applicability.
Sec. 102-293. Responsibility for administration.
Sec. 102-294. Illicit discharge and connection prohibitions.
Sec. 102-295. Watercourse protection.
Sec. 102-296. Industrial or construction activity discharges.
Sec. 102-297. Requirement to prevent control, and reduce stormwater pollutants by the use of best management practices.
Sec. 102-298. Access to facilities for inspection, monitoring, sampling, measuring, testing or copying records.
Sec. 102-299. Notification of spills.
Sec. 102-300. Reserved.
Sec. 102-301. Notice of violation.
Sec. 102-302. Request for reconsideration.
Sec. 102-303. Reserved.
Sec. 102-304. Enforcement measures.
Sec. 102-305. Injunctive relief.
Sec. 102-306. Violations deemed a public nuisance.
Sec. 102-307. Criminal prosecution.
Sec. 102-308. Remedies not exclusive.
Sec. 102-309. Severability.

### Division 2. Construction Site Erosion and Sediment Control

Sec. 102-310. Purpose/Intent.
Sec. 102-311. Definitions.
Sec. 102-312. Applicability.
Sec. 102-313. Responsibility for administration.
Sec. 102-314. Approval of land disturbing activity.
Sec. 102-315. Submission of erosion and sediment control plan; modifications.
Sec. 102-316. Erosion and sediment control design requirements.
Sec. 102-317. Review and approval of land disturbing activity and erosion and sediment control plan.
Sec. 102-318. Inspection of construction site.
Sec. 102-319. Notice of noncompliance and order to correct.
Sec. 102-320. Injunctive relief.
Sec. 102-321. Violations deemed a public nuisance; penalties.
Sec. 102-322. Criminal prosecution.
Sec. 102-323. Remedies not exclusive.
Sec. 102-324. Severability.
Secs. 102-325—102-330. Reserved.

**Article IX. Charleston Adopt-A-Street Program**

Sec. 102-331. General.
Sec. 102-332. Eligible streets.
Sec. 102-333. Program participation.
Secs. 102-334—102-340 Reserved.

## ARTICLE I. IN GENERAL

### Sec. 102-1. Prohibited grant by any city official of exclusive right to appropriation of street for individual use.

The streets and public ways of the city are held in trust for the public, to be used for purposes of travel and such other uses as usually pertain to such purposes. The granting by any city official of any license, permit, grant or execution of any contract whereby any exclusive right is granted for the appropriation of public streets or thoroughfares to private individual uses from which the public derives no convenience, benefit or accommodation is declared unlawful.
(Code 1975, § 28-1)

### Sec. 102-2. Public grass strips.

All unpaved spaces of ground between the property line on any street or public place, and the abutting sidewalk or along; and all unpaved spaces of ground between any such sidewalk and the curb are declared to be public grass strips and shall be under the immediate control, care and keeping of the owners or occupants of the abutting premises; and such owners and occupants shall be held responsible for the care and preservation of the premises; and they shall sow grass seed or place sod and carefully mow the grass whenever it has attained a height of six inches and shall, whenever necessary, keep it sprinkled; and they shall see that there is no accumulation of paper, trash, filth or dirt on the premises. Property owners shall be permitted to plant flowers and shrubs in the public grass strips whenever the width will permit this to be done, and to put up such temporary wire net fencing or other protection as may be approved by the director of public grounds for the protection of flowers, grass, shrubbery or flower seeds planted in the public grass strips. Subject to article VII of this chapter, the director of public grounds may also grant permits to abutting property owners to plant trees of approved kind in any of the public grass strips where, in his judgment, the strip is sufficiently wide to allow trees and they will not injure the street paving, sidewalks or sewers, but only such trees as shall be approved by the director of public grounds shall be so planted. No hedges exceeding 18 inches in height shall be allowed in any public grass strip; and if any hedge is planted in any such strip, it shall always be kept neatly trimmed and vacant spaces replanted by the abutting property owner or occupant. No public grass strip shall be lowered below the grade of the sidewalk except by permission of the director of public grounds.
(Code 1975, § 28-2; Ord. No. 6672, § 28-2, 5-15-2000)

### Sec. 102-3. Street openings by permit only; safety device required.

No person shall maintain any stairway, elevator, coal hole or other opening of any kind in any city street, sidewalk or public place except pursuant to a special permit issued by the street commissioner; and any such opening shall be protected by a grating provided with a limiting device. Such a permit shall be issued upon a showing of compliance with all laws and ordinances and a showing that the proposed structure, hole or other opening will not endanger public health and safety. Such limiting device shall prohibit the cover of any such opening from raising to an angle greater than 85 degrees and shall so function that such opening cannot willfully or negligently be left open. It shall be unlawful to detach the limiting device so as to permit the cover of such opening to be propped open or left open unless an attendant is stationed on the street level to warn pedestrians or vehicles of the opening and to protect them from falling or stepping in the opening. When any such opening is to be left uncovered for any length of time and it is not practicable to station an attendant, the opening shall be substantially fenced or barricaded off in such manner that pedestrians or vehicles shall not fall or step in the opening.
(Code 1975, § 28-3)

### Sec. 102-4. Obstructions; open manholes; bridges over excavations.

(a) No person shall, without a permit issued by the street commissioner, construct, place or leave or cause to be constructed, placed or left, in or upon any street, sidewalk, public grass strip or other public place, any obstruction to travel, or

place or leave or cause to be placed or left, any deposit dangerous to life or limb. Such a permit shall be issued upon a showing of compliance with all laws and ordinances and a showing that the proposed work will not endanger public health or safety. Any person occupying a roadway or sidewalk with obstructions shall exhibit a red light at night placed in such a manner as to warn the public of the obstruction of the roadway and sidewalk and so as to show distinctly the clear passageway left in the roadway and sidewalk. When the space occupied by the obstruction extends for 20 or more feet along the curb, at least one such light shall be exhibited at each end of the obstruction, hung clear of the obstruction on the side adjoining the carriageway. Every open manhole shall be securely guarded, and a red flag or other danger signal shall be displayed close to the manhole at all times so as to ensure the public safety. Between the hours of sunset and sunrise, bridges for maintaining traffic over excavations made in a roadway shall be indicated by green lights, one of which shall be placed at each corner of the bridge.

(b) No grate, door or other opening in any sidewalk in the city shall be permitted to remain open any longer than may reasonably be necessary to enable the owner or occupant to move or remove goods in the course of his trade or business, and while open it shall be properly barricaded so as to prevent pedestrians from falling in the opening.

(c) No person shall at any time, upon any street, sidewalk, public grass strip or other public place, allow any obstruction, uneven surface, or smooth surface dangerous to life or limb to exist.
(Code 1975, § 28-4)

### Sec. 102-5. Use of sidewalk for handling fuel or goods.

No one shall place or leave, for a longer period than two hours, either in or upon any street, sidewalk, public grass strip or other public place any wood, coal, cask, keg, crate, barrel, or any goods, wares or merchandise, except in accordance with section 102-4. In every case of such temporary use of sidewalk space for handling goods, a clear passageway for pedestrians must be left at least six feet wide on business streets and four feet wide on residence streets.
(Code 1975, § 28-5)

### Sec. 102-6. Displays on sidewalks.

No person shall create, construct or maintain any platform, display case or other structure on any part of any public sidewalk, or occupy any part of any sidewalk for the purpose of showing, displaying or storing any goods, wares, merchandise, fruit, vegetables, fish or other articles for sale.
(Code 1975, § 28-6)

### Sec. 102-7. Prohibited material in streets or public places; coal; refuse from fruit stands.

No person shall throw, spill, cast, deposit, drop, scatter or leave or cause to be thrown, cast, laid, deposited, spilled, scattered or left in or upon any street or footway, sidewalk, public grass strip or other public place in the city any dirt, mud, ashes, gravel, sawdust, shavings, hay, straw, offal, fruit or vegetable matter, garbage, trees, cinders, paper or refuse matter of any kind, or any dead animal or putrescible matter of any sort; however, earth and rubbish from excavations or building debris or material used in the construction of buildings may be placed or permitted to lie in such places as may be authorized by permit previously obtained from the building commissioner. Soft coal must be made sufficiently wet, before and immediately after being deposited on any sidewalk, street or other public space, to prevent any part of it from being blown about. Such coal must be removed within one hour after being so deposited.
(Code 1975, § 28-7)

### Sec. 102-8. Gasoline or oily substance on pavement.

No person shall pour, spill or permit to drip upon the asphalt or bitulithic pavement or on any pavement of coal tar, asphalt or bituminous con-

struction of any street or public place in the city, any kerosene, gasoline, benzine, or similar oil or oily substance or liquid.
(Code 1975, § 28-8)

### Sec. 102-9. Protection of streets from dirt or trees from abutting premises.

Owners of lots abutting upon streets or upon public grass strips or other public spaces in the city, and which are above grade, shall protect such lots so as to prevent dirt, sand or gravel, or any bushes, trees or like things from falling or being washed upon the public grass strip in front of such lots, or upon the adjacent sidewalks or streets.
(Code 1975, § 28-9)

### Sec. 102-10. Sweeping sidewalks; placing refuse on or sweeping across sidewalks.

Before any person shall sweep a sidewalk or any part of a sidewalk along any of the streets of the city, the portion of the sidewalk to be swept shall be sprinkled with water; and no sidewalk shall be swept except while damp to such an extent as to prevent dust from arising. Every sidewalk in the business district as defined in section 114-1 shall be swept every day before 7:30 a.m. No person shall place refuse from any store or other room or building upon any street or sidewalk except for collection as provided in chapter 98 of this Code; nor shall any person sweep refuse across any sidewalk into any street, highway or other public place.
(Code 1975, § 28-10)

### Sec. 102-11. Removal of snow and ice.

It shall be the duty of each individual person, incorporated society, public institution or other corporation using or occupying in any manner or for any purpose whatsoever any house, store, shop, stable or tenement of any kind, and all persons having charge of churches and public buildings of every description, and the owners of unoccupied houses and unimproved lots situated on any paved street in the city, and of their agents, within three hours after the fall of any snow (unless the snow shall have fallen between the hours of 6:00 p.m. and 6:00 a.m., in which case it shall be removed before 11:00 a.m.), or in the case of the formation of any ice on the sidewalk, to remove or clear the snow and ice away, or cause it to be removed or cleared away from the pavements or sidewalks fronting the residences, stores, houses, churches, stables, buildings or lots so used, occupied or owned by them or under their charge, in such manner as to leave the sidewalk clean and free from snow and ice, and in such manner as not to obstruct the passage of the water in the gutters; and it shall further be the duty of such persons or their agents to keep the gutters leading to and the pavements or sidewalks situated in the front or at the rear or side of the tenements free from snow and ice and every obstruction, and free from dirt, trash and filth.
(Code 1975, § 28-11)

### Sec. 102-12. Area where street sale of articles and/or food prohibited.

No person shall sell or expose or offer for sale any article and/or food of any nature upon any street, sidewalk or public park within the area bounded on the north by Washington Street, on the east by Broad Street, on the south by the Kanawha River, and on the west by Pennsylvania Avenue running north and south; however, nothing contained in this section shall prohibit newsboys from selling newspapers within such area, under such regulations as may be made by the city manager or the chief of police, or solicitation of funds either by sale of tags, flowers or other tokens or otherwise, by any charitable or religious organization or any civic organization for charitable purpose, when permission to do so is obtained from the city council or the board of supervisors for public solicitation of funds.
(Code 1975, § 28-12; Ord. No. 6006, § 28-12, 10-17-1994)

### Sec. 102-13. Certain acts constitute offenses in public parks and squares; government property declared public parks.

(a) It shall be unlawful for any person within the city to girdle, break, drive nails or other substances into or otherwise injure, kill or destroy any tree or shrub, or to break, cut, mutilate,

injure, remove or carry away any tree, shrub, plant, flower, stone or stonework, statuary, bench, chair, seat, bower, stand, fountain or part, structure, fence or property or anything whatsoever in, upon or near any park, square, public grass strip or public place in the city, or without the consent of the owner, in any private yard or lot or park, or any street or walk in or around the premises, to molest any birds, birds' nests, or any fish, animal or anything belonging to or kept there, or to paste, affix, inscribe, hand out or throw down any handbill, advertisement, poster, card, device or inscription in any such park, public grass strip, square or in any surrounding highway or walk, or upon any tree within the city, or disfigure or disturb any sward, gravel, sand, turf or earth, or any tree, fence or structure in any such park, public grass strip or public square, or adjacent to such places, or fasten or hitch any animal to any tree, fence or structure in or around such places, or the streets surrounding such places; or to ride or drive any horse, cow, mule, goat or any other animal or any automobile or vehicle of any kind in and on the aforesaid parks, public grass strips or public squares or places, except on the proper roadways provided for such activity.

(b) The grounds, lots, walks and unbuilt-upon spaces around or annexed to any of the buildings or structures owned by the government of the United States, the state, the county or the city, and all lots or parcels of land owned or leased by any of these governments or bodies politic within the city are declared to be public parks for the purposes of any offenses governed by subsection (a) of this section.

(c) It shall be unlawful for any person to possess or consume nonintoxicating beer upon any park, playground, recreation center, tennis court, ball field or other recreational facility or parking lot operated in conjunction with such places under the operation and control of the city without the written permission of the director of parks and recreation for the city. Permission shall be granted upon a showing of compliance with all laws and ordinances and upon a showing that the activity will not endanger the public safety.
(Code 1975, § 28-13)

### Sec. 102-14. Improvement of parks, squares, similar places by city council.

The city council shall have power, whenever funds are appropriated for such purpose, to sow grass seed, place sod, plant flowers and shrubbery and otherwise beautify any park, public grass strip, public square or place and to provide for their care.
(Code 1975, § 28-14)

### Sec. 102-15. Public fountains.

(a) The city council may authorize the owner of any property abutting on any public street, square, park or public place to establish and maintain a drinking fountain immediately in front of his property on the public ground. Humane societies and other like institutions may also be permitted to erect fountains upon the public thoroughfares.

(b) Fountains in public parks, squares, levees and other public grounds may be erected and maintained by any person or society, at their expense, and under such rules and regulations as may be prescribed by the city council.

(c) All plans for any fountains authorized by this section shall be first submitted to and approved by the city manager; and upon authorizing any person or society to establish and maintain a drinking fountain or other fountains, the city manager shall require that the owner will well and diligently look after the repairs of the fountain at his expense, will provide the fountain with proper cutoffs, and will take proper precautions to prevent the fountains from flushing or causing ice or water to accumulate on the sidewalk; and if the owner desires to remove a fountain, or discontinue its use, he will remove it at his own expense and restore the street, sidewalk or ground to its original condition before the establishment of the fountain. Fountains may also be removed by the city manager when, in his judgment, the convenience of the public demands such action.
(Code 1975, § 28-15)

### Sec. 102-16. Obstruction of view of drivers of vehicles by planting or maintaining foliage.

(a) No person shall plant, grow or permit to grow or maintain on any lot or parcel of ground, any trees, shrubbery, bushes, weeds or obstruc-

tions of any kind which obstructs or interferes with the view or vision of the driver of a vehicle or pedestrian extends beyond the curbline into the right-of-way, or creates an unsafe condition for them while upon any public streets.

(b) Any trees, shrubbery, bushes, weeds or obstructions of any kind which obstructs or interferes with the view or vision of a driver of a vehicle or pedestrian or creates an unsafe condition for them while proceeding on any public street is declared a nuisance and may be abated by the city manager pursuant to the provisions of the city's Charter or any ordinance.
(Code 1975, § 18-49)

**Sec. 102-17. Playing games in streets.**

No person shall play the game of football, or any other game with a ball, in any of the streets in the city; nor shall it be lawful for any person to play the game of bandy, shindy, polo or any other game by which a ball, stone or other substance is struck or propelled by any stick, cane or other substance in any street in the city.
(Code 1975, § 18-50)

**Sec. 102-18. Items prohibited at outdoor events.**

(a) *Purpose.* This section is enacted to protect the safety, health and welfare of members of the public and to promote public order at outdoor events in the City of Charleston by regulating items that constitute a nuisance or otherwise pose a danger to the safety, health and welfare of members of the public attending outdoor events.

(b) *Authority to adopt.* The city manager, upon consultation with the chief of police, the chief of the fire department, or their designee, may adopt appropriate rules and regulations governing the use of city-owned or city-controlled property when used for outdoor events in order to protect and preserve safety, health, welfare and good order at outdoor events.

(c) *Definitions.* The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

*City* shall mean the City of Charleston.

*Outdoor event* means those activities or events which occur completely or partially outdoors, that occur on a specific city-owned or city-controlled property, in which the general public is invited to participate. These events shall include but are not limited to cultural events, festivals, fairs, parades, athletic events and concerts.

(d) *Designation of certain items prohibited at outdoor events; notice; exceptions.* When the city manager, upon consultation with the chief of police, the chief of the fire department, or their designee, determines that it is in the interest of public safety and consistent with the purpose herein to prohibit certain items at any outdoor event, the city manager shall cause a list of prohibited items, together with a reasonable description of the area in which said items shall be prohibited, to be provided to and posted in the city clerk's office at least ten days prior to the event. The list of prohibited items shall also be posted in plain view at areas of public access to the applicable outdoor event.

Any prohibitions set forth pursuant to this section shall not apply to emergency personnel, officials or employees of the city acting in their official capacity, vendors providing services for the outdoor event, or to outdoor event workers. No prohibition set forth pursuant to this section shall be interpreted to limit or preclude in any way an item required to assist a person with a medically diagnosed disability.

(e) *Enforcement; penalties.* Possession at an outdoor event of an item from the posted list of prohibited items within the area designated by the city manager shall be deemed a hazard to the safety, health and good order of the city, and to members of the public who attend outdoor events, and shall constitute a nuisance under this Code. Any person who knowingly fails to comply with the prohibitions imposed pursuant to this section shall be guilty of a misdemeanor and, upon conviction, shall be punished by a fine of not more than $500.00 for each offense. Any person in possession of an item prohibited at an outdoor event may be ejected from the outdoor event and prohibited items may be subject to forfeiture.

(f) *Other regulations and ordinances not precluded.* Nothing in this section shall be construed as precluding the city from enacting further ordinances or regulations for the control and regulation of outdoor events nor shall this chapter repeal any existing ordinances or regulations regarding the same.
(Bill No. 7274, 8-6-2007)

**Secs. 102-19—102-50. Reserved.**

## ARTICLE II. CONSTRUCTION AND MAINTENANCE OF SIDEWALKS, CURBS AND GUTTERS

### Sec. 102-51. When abutting owners to construct.

It shall be the duty of every property owner, owning property abutting upon any street upon which the curb has been placed in front of or alongside of his property, and the duty of every agent having charge of any such property for a nonresident property owner, to cause the abutting sidewalk to be laid according to the rules, regulations and specifications adopted or prescribed by the city council, and within 30 days after the completion of such curb. In cases where the street has recently been or is being paved, the council may extend the time within which the sidewalk shall be paved for a period not exceeding 60 days after the completion of the paving of the roadway.
(Code 1975, § 28-17)

### Sec. 102-52. Duty of abutting owner to repair; construction or repair by city.

(a) It shall be the duty of every property owner or the agent of any nonresident owner and occupant to keep any sidewalk abutting the property in good order.

(b) In addition to any penalty imposed for a violation of this section or section 102-51, the city council may proceed to repair or relay any sidewalk or to construct any sidewalk upon any street where the curb has been set and where no sidewalk has been laid, after first giving the property owner or his duly authorized agent 30 days' notice of its intention so to do, and may levy and collect the expense with one percent per month interest added after a demand of 30 days has been made by the city treasurer from the owner or agent, which cost and interest shall be collected and shall become a lien on the abutting property in the manner provided in the city's Charter, section 49.
(Code 1975, § 28-18)

### Sec. 102-53. Grades and widths.

(a) Before the laying of any sidewalk or curbing within the city limits, the grade must first have been established by the city engineer, and it shall be the duty of the city engineer to set stakes for the grade and width of sidewalks as conditions may require and to file a report of all such data with the city council and a copy of the report with the city manager. Such report shall include the number and width of the lot or property in front of which the sidewalk is to be laid. The city manager may then proceed to require the sidewalk to be laid in conformity with the engineer's report, when the report has been approved by the city council.

(b) No sidewalk shall be laid within the lines designated as the business limits (unless a special permit is obtained) less than five feet in width nor more than 12 feet, but in all cases to conform as nearly as possible to the walk already laid on either side.

(c) In the residence districts, the sidewalk shall be laid along the property line; and should there be a vacancy between the outer edge of the walk and the street line, such space shall be used as a public grass strip.

(d) For the purposes of this section, the business district shall be the area encompassed by a line beginning at a point on the Kanawha River at the south end of Ruffner Avenue and extending north on Ruffner Avenue to the Penn-Central Railway tracks; thence west following the railway tracks to Delaware Avenue; thence south to the Kanawha River; thence westward on Kanawha Boulevard to the point of beginning.
(Code 1975, § 28-19)

**Sec. 102-54. Width regulations.**

(a) When any proposed sidewalk is less in width than the distance from the curb to the property line, the contractor shall lay the walk with the inside edge on the property line; but where the condition exists, no walk less than five feet in width shall be laid.

(b) When the width from the property line to the curb is less than five feet, the walk shall be laid the full width from the curb to the property line.
(Code 1975, § 28-20)

**Sec. 102-55. Standards, specifications and materials.**

All sidewalks, curbs and gutters shall be constructed and repaired in conformity with standards and specifications established by the city engineer; and notices given by the city under section 102-52 or under section 49 of the city's Charter shall set out such standards and specifications, and materials to be used; or shall state that such information is on file in the office of the city engineer and is there available to the public for inspection and use during all regular business hours.
(Code 1975, § 28-21)

**Sec. 102-56. License required to engage in business of constructing sidewalks.**

(a) It shall be unlawful for any person to engage in the business of laying or constructing sidewalks without having first annually secured from the city collector a license, paying for such license the sum of $25.00.

(b) No such license shall be issued until the city engineer shall have first satisfied himself of the reliability and capacity of the applicant to do and perform in a good and workmanlike manner the particular form, class or kind of work that shall be specified in the application for license for any or all of the purposes set forth in this section, and until the applicant shall also have given any bond required by any other ordinance of the city in relation to such matters.
(Code 1975, § 28-22)

**Secs. 102-57—102-90. Reserved.**

## ARTICLE III. EXCAVATIONS*

**Sec. 102-91. Adoption of City of Charleston Public Rights-of-Way Excavation and Restoration Ordinance Manual.**

There is hereby adopted that certain document which is entitled "City of Charleston Public Rights-of-Way Excavation and Restoration Ordinance Manual", as passed by Ordinance No. 7086 on August 1, 2005, and kept on file in the building department and city clerk's office, city hall, where it shall be available to the public for inspection and use during all regular business hours; and said document is hereby incorporated herein and made a part thereof as fully as though set out in length; and the provisions of said document, as revised by council for the City of Charleston from time to time, shall be controlling within the city limits of the City of Charleston in all matters related to its subject matter. It is unlawful for any person to act in any way or manner contrary to the provisions therein.
(Bill. No. 7086, 8-1-2005; Bill No. 7165, 7-3-2006)

**Secs. 102-92—102-150. Reserved.**

*__Editor's note—__Bill No. 7086, adopted Aug. 1, 2005, amended Art. III in its entirety to read as herein set out. Former Art. III §§ 102-91—102-123, pertained to similar subject matter and derived from Code 1975, §§ 1975, §§ 28-29—28-41.

## ARTICLE IV. STREET NAMES AND BUILDING NUMBERS*

### DIVISION 1. GENERALLY

**Sec. 102-151. Naming public streets.**

(a) The municipal planning commission shall recommend to the city council a name for any proposed new street or public way created.

(b) The city council shall act upon such recommendation and either reject or approve it.

(c) If the city council rejects the name proposed, the matter shall be automatically referred back to the municipal planning commission, which shall recommend a new name. This procedure shall be followed until the council approves a name recommended by the commission.
(Code 1975, §§ 28-23, 28-24)

**Secs. 102-152—102-170. Reserved.**

### DIVISION 2. BUILDING NUMBERING

**Sec. 102-171. Powers of building commissioner.**

The building commissioner is vested with power and authority to designate and direct the numbering of all houses and buildings upon and along the streets and public ways of the city, and to order changes to be made in the numbering of any house or building already numbered; and such numbering or renumbering may be so directed by him upon order of the city council, or upon application made by any resident, or upon his own motion.
(Code 1975, § 28-25)

**Sec. 102-172. Procedure regarding change of numbers.**

When the building commissioner shall so designate the numbering of any houses or buildings in the city, he shall give written notice to the owner of any building whose number shall be required to be changed; and it shall be the duty of such owner, within 30 days of receipt of such notice, to change the number upon such building as required by such notice, or to remove the number from the building. The building commissioner, upon application to him, shall furnish to the owner the proper number for any building within the city when the number has been fixed by him as provided in this section.
(Code 1975, § 28-26)

**Sec. 102-173. Method of numbering; complaints; action of city council.**

In designating and directing the numbering of buildings as provided in this article, the building commissioner shall, unless in his judgment it is impracticable, give to each business lot or building of not less than 20 feet frontage a separate number, and to each residence lot or building of not less than 25 feet likewise a number; and may require any double house or upstairs apartments within any such space to be designated by half numbers or by letters A, B and C, or the like. Any person aggrieved by the action of the building commissioner under this section may apply to the city council for review of his action within 30 days from the receipt of the notice provided for in this section; and thereupon the council shall hear the complaint of such person and the statement of the building commissioner in reference thereto, if he shall elect to make such statement, and shall make such investigation in the premises as it may deem proper and thereupon affirm or reverse the action of the building commissioner and make such order as the council shall deem right. Thereupon it shall be the duty of such person to comply with the order of the council.
(Code 1975, § 28-27)

**Sec. 102-174. Placement and maintenance of street numbers upon premises by owners of properties having buildings on such premises.**

(a) It shall be the duty of each owner of any building, residence or other structure now standing or hereafter erected upon any premises abutting upon any street and to which premises

*__Cross reference—__Buildings and building regulations, ch. 14.

a street number or numbers have been assigned pursuant to this article to place and maintain upon or within the immediate vicinity of such building or structure the correct street number so assigned.

(b) In placing numbers upon or within the immediate vicinity of buildings, residences and structures pursuant to subsection (a) of this section, property owners shall securely affix to or mark upon the outside, at or near the entrance, the correct Arabic numerals of the assigned street number or numbers, or, in lieu thereof, may erect and maintain an appropriate sign bearing such Arabic numerals unless such sign be prohibited by any other provision of this Code or other ordinance; and, in either case, such numerals shall be of sufficient size, color and legibility, and displayed at such a place upon the building or premises, as to be readily seen and easily read by an ordinarily observant person of average eyesight in a vehicle upon the center of the street which abuts such premises.
(Code 1975, § 28-28)

**Secs. 102-175—102-199. Reserved.**

## ARTICLE V. POLES, WIRES AND ANTENNAS*

### Sec. 102-200. Purpose.

It is the purpose of this article to implement the West Virginia Small Wireless Facilities Deployment Act, which is codified at W. Va. Code §31H-1-1, *et seq*. This article establishes nondiscriminatory policies and procedures for use of the rights-of-way and more specifically the placement of small wireless facilities in rights-of-way within the city's jurisdiction, which will provide public benefit consistent with the preservation of the integrity, safe usage, and reasonable aesthetic qualities of the city rights-of-way and the city as a whole. The city seeks to establish uniform standards consistent with federal and state law to address the placement of small wireless facilities and associated poles in the rights-of-way, including without limitation, to: (1) prevent interference with the use of streets, sidewalks, alleys, parkways and other public ways and places; (2) prevent the creation of visual and physical obstructions and other conditions that are hazardous to vehicular and pedestrian traffic; (3) prevent interference with the facilities and operations of facilities lawfully located in rights-of-way or public property; (4) protect against environmental damage, including damage to trees; (5) preserve the character of historic districts or areas with decorative poles, decorative sidewalks, decorative streetscapes, or brick streets; and (6) facilitate rapid deployment of small cell facilities to provide the benefits of wireless services to the city's residents and visitors.
(Bill No. 7816, 5-6-2019)

*Cross reference—Utilities, ch. 118.

### Sec. 102-201. Definitions.

(a) As used in this article, this section incorporates all of the definitions contained within W. Va. Code §31H-1-2.

(b) In addition, the following terms shall have the following definitions, as used in this article:

(1) *Day* means a calendar day, but when computing any period of time prescribed by any applicable provision of this article, the day of the act, event, default or omission from which the applicable period begins to run is not included. The last day of the period so computed is included, unless it is a Saturday, a Sunday, a legal holiday or a designated day off in which event the prescribed period of time runs until the end of the next day that is not a Saturday, Sunday, legal holiday or designated day off;

(2) *Excavation* means any work in the surface or subsurface of the public rights-of-way, including, but not limited to the following: opening the public rights-of-way; installing, servicing, repairing, or modifying any facility; and restoring the surface and subsurface of the public rights-of-way. Excavation shall not include activities in public rights-of-way wherein the surface and subsurface are not disturbed

and wherein such activities take place through existing manholes, conduits, and other such facilities; and

(3) *Facility* or *facilities*, for the purpose of the definition of *excavation* only, shall include, but not be limited to, any and all lines, poles, cables, cabinets, ducts, conduits, converters, equipment, drains, handholds, manholes, pipes, pedestals, splice boxes, surface location markers, tracks, tunnels, utilities, vaults, and other appurtenances or tangible things owned, leased, operated, or licensed by a person or company that are located or are proposed to be located under, on, or above ground within the public rights-of-way.

(Bill No. 7816, 5-6-2019)

**Sec. 102-202. Application.**

(a) A wireless provider seeking to conduct any excavation beyond the installation of a new pole within the public rights-of-way, shall follow the City of Charleston Public Rights-of-Way Excavation and Restoration Ordinance Manual, codified at section 102-91 of this Code with respect to its excavation activities.

(b) A wireless provider's use of the public rights-of-way that does not require excavation shall follow the provisions of this article to file a permit with the city engineer, including that the permit application shall include the following:

(1) The applicant's name, address, phone number, and email address, as well as all duly authorized representatives acting on behalf of the applicant

(2) A general description of the proposed small wireless facility and associated pole, if applicable.

(3) Construction and engineering drawings and information demonstrating compliance with state law and this article, including a structural analysis of the pole where the applicant proposes to install the small wireless facility;

(4) An attestation that the small wireless facilities will be operational for use by a wireless provider within one year after the permit issuance date, unless the city and the applicant agree to extend the period or delay is caused by lack of commercial power or communications transport facilities to the site;

(5) An attestation that the small wireless facility will comply with Federal Communications Commission regulations concerning (A) radiofrequency emissions from radio transmitters; and (B) unacceptable interference with the public safety spectrum and CII spectrum, including compliance with the abatement and resolution procedures for interference with the public safety spectrum and CII spectrum established by the Federal Communications Commission set forth in 47 C.F.R. 22.970 through 47 C.F.R. 22.973 and 47 C.F.R. 90.672 through 47 C.F.R. 90.675;

(6) Proof that the applicant maintains property insurance for its property's replacement cost against all risks, workers' compensation insurance as required by law, and commercial general liability insurance with respect to its activities on city improvements or rights-of-way of not less than $1,000,000.00 of coverage for damages including bodily injury and property damage; provided that the commercial general liability policy shall include the city as an additional insured and the certification shall be filed with the application in order for it to be considered complete; provided, however, that a self-insured applicant shall provide sufficient evidence to demonstrate its financial ability to self-insure the insurance coverage;

(7) An attestation that it will provide a bond, escrow deposit, letter of credit, or other financial surety required by the city to ensure removal of abandoned or unused wireless facilities or damage to the right-of-way or city property caused by the applicant or its agents, as set by the city, prior to beginning any installation; and

(8) An attestation that it will notify the City of Charleston and call the West Virginia 811 "call before you dig" hotline in order to locate all underground utilities at least 72 hours before making any excavation.

(c) A wireless provider that seeks to use a city utility pole shall provide the following additional information:

(1) The additional wind load that the wireless facility adds to the pole;

(2) A description of how the wireless provider will provide power to the wireless facility;

(3) A description of how the wireless facility would attach to the pole, including whether it would involve drilling holes in the pole or attaching bands to the pole;

(4) Whether there will be additional wire in the pole;

(5) An attestation that the applicant is responsible for any damage that is caused by the negligence of the wireless provider or any of its officers, agents, employees, directors, or representatives related to installing, repairing, or maintaining facilities in rights-of-way;

(6) An attestation that the wireless facility will meet all clearance requirements if it is over the roadway; and

(7) An attestation that the wireless facility will not interfere with any other equipment signals on the poles that are owned by the city.

(Bill No. 7816, 5-6-2019)

**Sec. 102-203. Fees.**

(a) An application is incomplete unless it has the following fees submitted along with the application:

(1) $200.00 for each small wireless facility on an existing utility pole for the first five poles in the same application, followed by $100.00 for each small wireless facility thereafter in the same application;

(2) $250.00 for the proposed installation, modification, or replacement of a utility pole and the collocation of an associated small wireless facility that is a permitted use, as detailed in section 102-204 of this Code;

(3) $1,000.00 for the proposed installation, modification, or replacement of a utility pole and the collocation of an associated small wireless facility that is not a permitted use, as detailed in section 102-204 of this Code.

(b) The use of the public right-of-way for the collocation of small wireless facilities or the installation, maintenance, modification, operation, repair or replacement of a utility pole in the right-of-way or any stringing of additional wires, or changing the location of any pole or wire, requires a permit, as detailed in section 102-213 of this Code. The fee for such permit is $25.00 per pole, per year.

(c) An applicant shall pay an annual fee of $65.00 per year for access to each city-owned utility pole and complete all the additional requirements stated in section 102-202 of this Code.
(Bill No. 7816, 5-6-2019)

**Sec. 102-204. Permitted use; zoning applicability.**

(a) A wireless provider that seeks to collocate small wireless facilities and associated efforts to install, maintain, modify, and replace the wireless provider's own utility poles or, with the permission of the owner, a third party's utility pole, in, along, across, upon, and under the right-of-way in any zone or outside of the right-of-way in property not zoned exclusively for single-family residential use is a permitted use, as long as the following conditions are met:

(1) The structures and facilities are installed and maintained so as not to obstruct or hinder the usual travel or public safety on the right-of-way or to obstruct the legal use of the right-of-way by the city or other utilities;

(2) Any new or modified utility pole does not exceed the greater of (A) ten feet above

the tallest existing utility pole in place on March 5, 2019, within 500 feet of the new pole or (B) fifty feet above ground level;

(3) The small wireless facility complies with the reasonable, written design guidelines created by the planning director, as authorized by section 102-205 of this Code;

(4) Any replacement of decorative poles necessary to collocate a small wireless facility shall reasonably conform to the design aesthetics of the decorative poles being replaced;

(5) The area has not been designated solely for underground communications and electrical lines at least three months prior to submission of the permit application, provided that (A) those utility poles which the city allows to remain shall be made available for the collocation of small wireless facilities and may be replaced by a wireless provider to accommodate the collocation of small wireless facilities, and (B) a wireless provider may install a new utility pole in the designated area when it is not able to provide wireless service by collocating on a remaining structure; and

(6) Any other applicable restriction in state law.

(b) Any other application is not a permitted use and is subject to the Zoning Ordinance for the City of Charleston.
(Bill No. 7816, 5-6-2019)

**Sec. 102-205. Design guidelines.**

(a) The planning director is authorized to create reasonable, written design guidelines with objective, technically feasible criteria that reasonably match the aesthetics and character of an immediate area regarding the following:

(1) The location of any ground-mounted small wireless facilities;

(2) The location of a small wireless facility on a utility pole or wireless support structure;

(3) The appearance and concealment of small wireless facilities, including those relating to materials used for arranging, screening, or landscaping; and

(4) The design and appearance of a utility pole or wireless support structure.

(b) The guidelines shall be applied in a nondiscriminatory manner and shall be posted publicly on the City of Charleston's Planning Department web page. The planning director may change the guidelines in a prospective manner for all permit applications moving forward, but may not change requirements on any person who has already applied for a permit. Each new or modified small wireless facility or utility pole installed in the right-of-way shall comply with the planning director's current design guidelines as of the time of the permit application.

(c) The guidelines shall be (1) reasonable, in that they are technically feasible and reasonably directed to avoiding or remedying the intangible public harm of unsightly or out-of-character deployments; (2) no more burdensome than those applied to other types of infrastructure deployments; and (3) objective and published in advance.
(Bill No. 7816, 5-6-2019)

**Sec. 102-206. Application processing.**

(a) All permit applications filed pursuant to this article shall be reviewed for completeness by the city and if the application is incomplete, the city shall notify the applicant within ten days of receiving the application. The city shall specify the missing information in writing and all processing deadlines required by this section are tolled.

(b) An application for collocation of a small wireless facility shall be processed within 60 days of the receipt of the application.

(c) An application for the installation, modification, or replacement of a utility pole in the right-of-way shall be processed within 90 days of the receipt of the application.

(d) Within 60 days of receiving a complete application for use of a city utility pole, the city shall provide a good faith description of any make-ready work necessary to enable the pole to support the requested collocation, including pole replacement, if necessary because the pole would otherwise be structurally unsound. If the applicant accepts the good faith description, the make-ready work shall be completed by the applicant within 60 days of acceptance.

(e) Processing deadlines may also be tolled by agreement of the applicant and the city.

(f) The city may deny the application if the application:

(1) Materially interferes with the safe operation of traffic control equipment;

(2) Materially interferes with sight lines or clear zones for transportation or pedestrians;

(3) Materially interferes with compliance with the Americans with Disabilities Act or similar federal or state standards regarding pedestrian access or movement;

(4) Fails to comply with the reasonable and nondiscriminatory spacing requirements of general application adopted by the planning director pursuant to rules authorized by section 102-215 of this Code that concern the location of poles;

(5) Fails to comply with the reasonable and nondiscriminatory rules approved by the building commissioner, as authorized in section 102-209 of this Code;

(6) Fails to comply with the application design guidelines authorized in section 102-205 of this Code; or

(7) Fails to attest that a small wireless facility will comply with relevant Federal Communications Commission regulations, as required by section 102-202.

(g) If the city denies the application, it shall document the basis for the denial, including the specific provision on which the denial was based, and send the documentation to the applicant on or before the day the city denies the application. The applicant then has 30 days to cure the deficiencies identified without paying an additional application fee. The city shall have 30 days to approve or deny the revised application.

(h) The installation or collocation shall be completed within one year after the permit issuance date unless the city and the applicant agree to extend the period or a delay is caused by the lack of commercial power or communications facilities at the site.

(i) Upon approval of the application and posting of the reasonable bond, escrow deposit, letter of credit, or other financial surety required by the city to ensure removal of abandoned or unused wireless facility or damage to the right-of-way or authority property, the applicant may undertake the installation or collocation and operate and maintain the small wireless facilities and associated poles.
(Bill No. 7816, 5-6-2019)

### Sec. 102-207. Consolidated applications permitted.

An applicant may file a consolidated application and receive a single permit for the collocation of multiple small wireless facilities. The denial of one or more small wireless facilities in a consolidated application may not delay processing of any other small wireless facilities in the same batch.
(Bill No. 7816, 5-6-2019)

### Sec. 102-208. Work within and repairs to the right-of-way.

(a) The city may restrict the applicant from working within a right-of-way when a road is closed or its access is limited, but it may not require an additional application for routine maintenance within the right-of-way to permitted facilities;

(b) If the applicant needs to close a sidewalk or street in order to install or perform work on the wireless facility, the applicant shall contact the office of the director of traffic and provided a detailed set of maintenance of traffic plans that shows any necessary signage, the method of controlling traffic, and any detour routes. The maintenance of traffic plans must be reviewed by

the director of traffic and approved by the chief of police and the collector's office if any fees are due. The director of traffic will notify the applicant when all approvals have been received.

(c) If the city determines that it is necessary, appropriate, or useful in response to an imminent danger to public health, safety, or property, or for the construction, repair, maintenance, or installation of a city improvement, to move a small wireless facility located within the public rights-of-way, then the city shall provide written notice to the applicant and the applicant shall remove the small wireless facility within 90 days.

(d) Any damage to the public right-of-way directly caused by a wireless provider or other utility's activities in the right-of-way shall be repaired in accordance with the City of Charleston Public Rights-of-Way Excavation and Restoration Ordinance Manual, codified at section 102-91 of this Code, in order to return the right-of-way to its functional equivalence before the damage. After the wireless provider receives written notice, the city may assess a fine of $100.00 per day until the repairs are completed. If the entity fails to make the repairs required by the city within a reasonable time after written notice, the city may complete the repairs and charge the entity for the reasonable, documented cost of the repairs in addition to the daily fine assessed.
(Bill No. 7816, 5-6-2019)

**Sec. 102-209. Building commissioner rules.**

(a) The building commissioner is authorized to create reasonable rules for construction and public safety in the rights-of-way, including wiring and cabling requirements, grounding requirements, and abandonment and removal provisions, to the extent any additional rules are necessary.

(b) The rules shall be applied in a nondiscriminatory manner and shall be posted publicly on the City of Charleston's Building Department web page. If the building commissioner determines that no additional rules are necessary, the web page must state that and point persons to the relevant general rules. The building commissioner may change the guidelines in a prospective manner for all permit applications moving forward, but may not change requirements on any person who has already applied for a permit. Each new or modified small wireless facility or utility pole installed in the right-of-way shall comply with the building commissioner's current rules for construction and public safety as of the time of the permit application.
(Bill No. 7816, 5-6-2019)

**Sec. 102-210. Revocation.**

The city may revoke a permit at any time if the conditions of the permit are no longer being satisfied.
(Bill No. 7816, 5-6-2019)

**Sec. 102-211. Violations and penalties.**

(a) Whoever violates any provision of this article or any rule, regulation or order of the city council made under this article shall be subject to the penalties set forth in section 1-8 of this Code. Each day's failure to comply after ten days' notice from the council, the fire chief or the building and housing commissioner, requiring compliance, shall be deemed a separate offense.

(b) In addition to any fine imposed, the city manager shall have authority to remove from the streets and other public places any poles, wires or other apparatus placed or maintained in violation of this Code or other city ordinance; and the city manager shall collect the expense of the removal from the owner, lessee or occupant of such pole, or the person operating or using any such wire or apparatus.
(Code 1975, § 21-14)

**Sec. 102-212. Franchise to set or place wires, poles, other paraphernalia, on streets; use of wires.**

(a) No person shall set or place any poles, wires, cables, guy lines, stays or other paraphernalia for carrying or supporting wires or keeping them in place in any of the streets and public places in the city unless such person has first procured a franchise from the proper authorities of the city authorizing such occupation of the streets and public places. When duly authorized by franchise granted as required by law, such person may set and maintain poles,

wires, cables, guy lines, stays and other like paraphernalia for carrying or supporting wires if the wires are used only for carrying of electricity for light or power; for telephone, telegraph or cable television service; for messenger and signal service; for fire alarm or police alarm purposes or any other public service, but subject to the provisions of this article, and such rules and regulations for the protection of life and property as may be lawfully adopted by the city council.

(b) Notwithstanding the provisions of subsection (a) of this section, a wireless provider seeking a permit for small wireless facilities is not required to have a franchise agreement with the city, pursuant to W. Va. Code §31H-2-4, but it may enter into such a non-exclusive agreement if it desires.

(Code 1975, § 21-1; Bill No. 7816, 5-6-2019)

**State law references—**Granting of franchises, W. Va. Code § 8-31-1; compelling compliance with franchise obligations, W. Va. Code § 8-31-2.

### Sec. 102-213. Permit for additions, replacements, relocations of wires.

No person shall string any additional telegraph, telephone, messenger, signal or electric lighting wires, or change the location of any pole or wire, or repair or replace any pole or wire without a permit from the city engineer, specifying particularly the proposed location and change or repair.

(Code 1975, § 21-2; Bill No. 7816, 5-6-2019)

### Sec. 102-214. Workers' badges.

Each lineman, repairman or other employee of any telegraph, telephone, television, messenger, signal or electric lighting company, while engaged in stringing, repairing or replacing any overhead wire, or while engaged in erecting, restoring or repairing any pole of such company, or while doing other work in connection with such poles or wires, shall wear a conspicuously numbered badge, indicating the name of the company by which he is employed.

(Code 1975, § 21-3)

### Sec. 102-215. Right of council to prescribe kind, size and location of poles.

The city engineer, in consultation with the director of traffic, is hereby authorized to adopt nondiscriminatory rules to prescribe the kind and size of all poles to be placed upon the streets, and the location of such poles, or to forbid the location of any additional poles at points where traffic is likely to be impeded, where the sidewalks are narrow, where they would be in the way of the fire department, upon any street or part of a street from which poles have been ordered removed by competent authority, or on any street or side of street where there is already an excess of poles; provided that any restriction on the location of poles may not prevent a wireless provider seeking placement of a small wireless facility from serving any location.

(Code 1975, § 21-4; Bill No. 7816, 5-6-2019)

### Sec. 102-216. Insulation and protection of line wires.

Line wires must have an approved weatherproof or rubber insulating covering. The thickness and quality, as well as the kind of insulation used, shall be governed by the voltage of the current passing along the wires and shall be of such thickness, character and quality as is usually used in modern standard insulation for currents of like voltage. All such wires must be kept free from contact with telephone, telegraph, cable television, signal or fire alarm wires and free from contact with awnings, swinging signs, shutters, balconies, fire escapes and all other obstructions or structures upon and along the streets and public places.

(Code 1975, § 21-5)

### Sec. 102-217. Mains and service wires.

(a) In bringing out of buildings mains which are to be supported by overhead service, the outlet must not be so located that the subsequent erection of an adjoining building might render it inaccessible. The main must be brought out at the front or rear wall, or along the street side if a corner building, and must be so placed that moisture cannot form a cross connection. Mains shall not be less than a foot apart, and shall not be in contact with any substance other than their insulation supports. Wooden blocks to which insulators are attached must be covered over the entire surface with at least two coats of waterproof paint.

(b) Fixtures to which insulators are attached must be covered over their entire surface with at least two coats of waterproof paint; when permitted, such fixtures must be at least seven feet above the highest point of flat roofs, and at least one foot above the ridge of pitched roofs over which they pass, or to which they are attached; but in new installations, service leads from poles to buildings must not enter buildings over the roof nor down the light shaft or court except with special permission and must be protected by dead insulated guard irons or wires from possibility of contact with other conducting wires or substances to which currents may leak. Special precautions of this kind must be taken where sharp angles occur or where any wires might possibly come in contact with electric light or power wires.

(c) Crosses, when unavoidable, must be made as nearly at right angles as possible; must be provided with petticoat insulators of glass or porcelain—porcelain knobs or cleats and rubber hooks will not be approved; and must be so spliced or joined as to be both mechanically and electrically secure without solder. The joints must then be soldered to ensure preservation, and covered with an insulation equal to that on the conductors.

(d) All joints must be soldered, even if made with some form of patent splicing device. This provision applies to joints and splices in all classes of wiring covered by this article and must, where they enter buildings, have drip loops outside; and the holes through which the conductors pass must be bushed with noncombustible, nonabsorptive, insulating tubes slanting upward toward the inside.

(e) For low potential systems the service wires may be brought into buildings through a single iron conduit, the conduit to be curved downward at its outer end and equipped with an approved service head to prevent the entrance of moisture. The outer end must be at least one foot from any woodwork, and the inner end must extend to the service cutout.

(f) Electric light or power wires must not be placed on the same crossarm with telegraph, telephone and similar wires; and when placed on the same pole with such wires, the distance between the two inside pins of each crossarm must not be less than 28 inches.

(g) The metallic sheaths to cables must be permanently and effectively connected to earth.

(h) Wires under sidewalks, especially likely to be injured, must be substantially protected.

(i) When wires come in contact with pipes, cornices, awning frames and covers, and places where bends occur outside of buildings, they must be protected by flexible metallic conduits running from one support to the other. The ends of the conduits must be equipped with an approved fitting. Flexible fibrous tubing will not be permitted on outside work.
(Code 1975, § 21-6)

### Sec. 102-218. Ground wires.

Ground wires must be kept outside of buildings so far as practicable, but may be directly attached to buildings or poles by cleats or straps or on porcelain knobs. Staples must never be used. The wire must be carried in as nearly a straight line as practicable, avoiding kinks, coils and sharp bends, and must be protected by a conduit wherever it is within eight feet of the ground.
(Code 1975, § 21-7)

### Sec. 102-219. High-tension wires.

If high-tension wires are carried on the same poles with other wires, the high-tension wires must be carried at least three feet above the other wires; and all reasonable precautions must be taken to prevent a breakdown. Wherever it is necessary to carry high-tension lines near any building, they must be located at such a distance from the building and at such a height as not to endanger the lives of firefighters who might be called to extinguish fire in any such building if compelled to fight the fire from the street or ladders on the outside of the building.
(Code 1975, § 21-8)

### Sec. 102-220. Wires carrying electric current under street surface.

All wires carrying electric current under the surface of the street shall be installed in conformity with all applicable provisions of the electrical code and so as to prevent the escape of the electric current and to prevent the current from attacking water or gas mains and other metal structures in the streets.
(Code 1975, § 21-9)

### Sec. 102-221. Transformers.

Transformers shall only be placed at such places upon the streets as shall be approved by the city council or the building and housing commissioner, and shall be constructed and installed in conformity with all applicable provisions of the electrical code. Casings of all transformers shall be effectually grounded. There must be at least six inches of air space on all sides of transformers. Transformers must not be placed inside of any building except central and substations and must not be attached to the outside walls of buildings unless with the written permission of the fire chief.
(Code 1975, § 21-10)

### Sec. 102-222. Standard electrical construction and equipment required.

All electrical construction of every kind and nature in the streets of the city over or through which a current of electricity passes or could pass shall conform in all respects to the standards and requirements of the electrical code and shall be equipped with all necessary appliances for the protection of life and property against any electrical current escaping from the wires or apparatus carrying or charged with the current, and for the

protection of any person or property coming in contact with such wires and apparatus against injury from the current.
(Code 1975, § 21-11)

### Sec. 102-223. Poles, wires and electrical equipment to comply with article.

No person shall erect any poles, string any wires, or place any electrical equipment of any kind in the streets or other public places within the city unless the provisions of this article and all applicable provisions of the electrical code are fully complied with; and the city council shall have the power to order any person already occupying any such street or public place with any poles, wires or other electrical apparatus to remove, repair or reconstruct them in accordance with this article whenever, in the opinion of the city council, the safety of the traveling public and of the property of the citizens of the city requires any such removal, repair or reconstruction. This section shall not be construed, however, as impairing the obligations of any contract now in force between the city and any such person now lawfully occupying the streets of the city with poles or wires.
(Code 1975, § 21-12)

### Sec. 102-224. Municipal control of telephone, telegraph and electric companies.

It shall be the duty of any person owning, leasing or operating any electric light or power plant, telephone, telegraph, cable television or signal system over and upon the streets and public places of the city to carry into effect all the provisions of this article for the protection of the persons and property of the citizens of the city, and promptly to carry into effect and execute any reasonable orders or directions relating to his poles, wires or other apparatus upon such streets and public places, which he may from time to time receive from the city council, the fire chief or the building and housing commissioner. The city council reserves the power to make such additional reasonable rules and regulations and orders relating to the subject matter contained in this article as in its judgment may be expedient for the purposes of protecting the lives and property of the citizens of the city.
(Code 1975, § 21-13)

### Secs. 102-225—102-260. Reserved.

## ARTICLE VI. STREET AND ALLEY CLOSINGS*

### Sec. 102-261. Authority to close city street, alley, lane, road or other public right-of-way.

The council, pursuant to the authority granted it by the Charter and the Code of the state, reserves the right to permanently close, abandon and discontinue, for public use, any street, alley, lane, road or other public right-of-way presently owned by the city.
(Bill No. 6949, § 28-42, 4-7-2003)

### Sec. 102-262. Procedure.

Any person seeking to permanently close, abandon and discontinue a public street, alley, lane, road, or other public right-of-way, must file:

(a) A petition, the form of which shall be available in the office of the planning department, which shall contain the following information and items:

(1) A current certified appraisal;

(2) A survey and map of the property requested to be closed which survey shall show the names of all adjacent property owners and a list of all property owners whose property is within 250 feet of property being closed;

(3) A metes and bounds description of property requested to be closed;

(4) A statement of reasons for closure which must include a benefit to the public;

*__Editor's note—__Bill No. 6949, §§ 28-42—28-44, repealed ch. 102, art. VI, §§ 102-261—102-263, in its entirety. Sections 28-42 and 28-43 of said ordinance enacted new provisions to read as herein set out. Prior to amendment, art. VI pertained to similar subject matter and derived from Code 1975, § 28-42—28-44; and Ord. No. 4859, adopted Dec. 7, 1992.

(5) A statement of justification for closure. Such statement may include unique circumstances such as topography or slope limited access, or any-other physical;

(6) A statement as to whether the property requested to be closed is part of a pattern of current City of Charleston roadways;

(7) A statement as to whether encroachments exist to the property requested to be closed;

(8) A filing fee of $100.00;

(9) A bill prepared by or at the request of a member of the Council of the City of Charleston who has agreed to introduce the bill proposing closure; and

(10) If applicable, a request from non-profit or not-for profit entity for a determination of eligibility to receive the property by donation from the City of Charleston under the laws of West Virginia, the City of Charleston and all other applicable laws. If such a request is made, the city attorney shall make such a determination, but only upon full cooperation from the petitioner in timely providing all information and documentation requested by the city attorney. The city attorney will report his/her determination to the committee on finance and city council.

(b) Upon receipt of the petition, the planning commission shall deliver one copy of such documents to the office of the city clerk for the assignment of a number to the bill. Thereafter, the bill will be introduced at the next council meeting for its first reading. At the time of the first reading of the bill in council, it shall be referred to the municipal planning commission for a public hearing, as prescribed by law. Prior to holding a public hearing, the planning commission shall notify all persons on the list supplied by the petitioner of the place, time and date of the hearing. This notice shall be given to all persons on the list 15 days prior to the public hearing. The planning commission may seek the opinion of the city attorney as to any legal issues concerning ownership of the property requested to be closed. After considering the evidence which may come before the planning commission, the planning commission shall report its recommendation to city council at the next council meeting. Such report shall include a determination whether the property is needed for public use or convenience and/or whether the closing and abandonment of the property will benefit the public.

(c) Upon receipt of the planning commission's recommendation, city council shall refer the bill to the council's committee on planning for its consideration. After consideration of the bill, the council's committee on planning shall report back to city council with its recommendation for passage or rejection of the bill.

(d) In any event, the mayor shall refer the bill to council's committee on finance with a recommendation of appropriate consideration based on the certified appraisal and that the applicant is qualified under this section for the vacating of the public street, alley, lane, road, or other right-of-way. The committee on finance may consider the appraisal submitted by the petitioner, other appraisals, the recommendations from the mayor and/or city manager as to value and other factors when assessing the appropriate consideration for the property requested to be closed. When the property requested to be closed is located in a residentially zoned district, the committee on finance may assess consideration in the amount of $1.00 per square foot to be paid by low to moderate income petitioners, as defined by United States Department of Housing and Urban Development (HUD), if satisfactory proof of such income is submitted (ie. most recent federal income tax return).

(e) After consideration of the bill by the council's committee on finance, it shall report its recommendations to council. Council shall then vote on the passage or rejection of the bill. Council's final action shall be a simple majority vote of the members present at a regular or special meeting

(f) Any deed executed by the city pursuant to this section shall be limited to a quitclaim conveyance and shall reserve all necessary sewer and other utility easements.
(Bill No. 6949, § 28-43, 4-7-2003)

**Secs. 102-263—102-270. Reserved.**

## ARTICLE VII. OUTDOOR DINING

### Sec. 102-271. Planning department rules and regulations under article.

The City of Charleston Planning Department is hereby authorized to promulgate reasonable rules and regulations regarding the administration of the requirements of this article, to review all outdoor dining area permit applications and to either grant or deny such permits under this article. Copies of such regulations, as amended from time to time, shall be maintained by the planning department, posted on the city's website and filed in the city clerk's office, and shall be available to interested parties at all reasonable times.
(Bill No. 7516, 4-16-2012)

### Sec. 102-272. Compliance with federal, state and local laws and regulations.

(a) The operation of an outdoor dining area pursuant to a permit granted under this article shall comply with the Americans with Disabilities Act, all provisions of state and local building and fire codes, as well as all state and local health laws and regulations regarding the service and preparation of food. The operations of an outdoor dining area shall also be conducted in accordance with the code provisions and regulations of the West Virginia Alcoholic Beverage Control Administration (WVABCA). Nothing in this article shall be intended to alter or abridge any applicable federal, state and local laws or the operator's responsibility to comply with all code provisions and regulations of the WVABCA.

(b) Nothing in this article shall be intended to alter or abridge the prohibition of service of alcoholic beverages or possession thereof on public property in the city, as set forth in subsection 78-211(b) of the Municipal Code of the City of Charleston, except that any permitted outdoor dining area operator and patrons of permitted operator's outdoor dining area shall be deemed to be exempt from said prohibition during the hours of operation of the outdoor dining area and only within the confines of said area.
(Bill No. 7516, 4-16-2012)

### Sec. 102-273. Nondiscrimination/right to limit or deny admission or service.

No person shall be denied access or service to an outdoor dining area on the basis of race, religion, national origin, sex, sexual orientation, age or disability; notwithstanding the right of the operator to limit access and admission to an outdoor dining area to only bona fide paying customers of that operator's establishment who are behaving in a lawful manner.
(Bill No. 7516, 4-16-2012)

### Sec. 102-274. Definitions.

(a) *Operator* shall mean a person, organization, proprietorship, corporation or other similar entity lawfully operating a business located in the Central Business District (CBD) or Urban Corridor District (UCD), as shown on the City of Charleston's Official Zoning Map, that possesses a valid State of West Virginia food vendor's permit and serves at a minimum both lunch and dinner, and has been issued an outdoor dining area permit by the city's planning department.

(b) *Outdoor dining area* shall mean a confined area of the public sidewalk designated by a site plan approved by the city through its planning department and located in the Central Business District (CBD) or Urban Corridor District (UCD), as shown on the City of Charleston's Official Zoning Map, where, if abutting a street, the street abutting the sidewalk is posted at a speed limit of 30 mph or less, and which area is adjacent to operator's building/permanent structure, where patrons may sit at tables while consuming food and beverages, which may include any beverage regulated by the WVABCA contingent on proper licensure by the WVABCA.
(Bill No. 7516, 4-16-2012; Ord. No. 7765, § 1, 12-4-2017; Bill No. 7765, § 1, 12-4-2017)

### Sec. 102-275. Permit process.

(a) An applicant for an outdoor dining area permit shall file an application with the City of Charleston Planning Department on such forms and subject to such procedures as the planning department may establish. An application for an outdoor dining area permit shall be accompanied

by a $50.00 administrative fee for a non-partitioned outdoor dining area, and a $500.00 administrative fee for a partitioned outdoor dining area, and shall include: a site plan, drawn to scale showing the layout for the outdoor dining area which accurately depicts the existing sidewalk conditions, including sidewalk width from building face to curb; location and dimensions of tree wells; locations of lamp posts, traffic and parking signs, signal poles, trash receptacles, benches, and other sidewalk features or obstructions; as well as design, location, size and space of the dining area, chairs, tables, aisles between tables, and if applicable, enclosures; routes of ingress and egress; clearances between the seating area and the curb; and any such additional requirements of the planning department with respect to type, style, or specifications of the outdoor dining area, including those requirements subject to the approval of the WVABCA.

(b) After reviewing the application and site plan, the planning department shall determine if the proposed outdoor dining area, consistent with the requirements of this article, is reasonable, promotes safe pedestrian and retail friendly vitality, and that there is adequate space remaining within the public right-of-way to facilitate safe circulation of pedestrian traffic, while promoting the overall public health, safety and welfare. Thereafter, the planning department may approve, approve with conditions, or deny an application. The approved plan and permit shall be posted at the operator's premises, visible to customers and the public. No material change to the approved plan shall be made without prior written approval by the planning department.

(c) The outdoor dining area permit term shall be for one calendar year, unless revoked prior to expiration, and may be renewed on an annual basis. An annual administrative fee of $25.00 for a non-partitioned outdoor dining area, and $500.00 for a partitioned outdoor dining area, shall be assessed for renewal of an existing outdoor dining area permit; provided said administrative fee shall be waived in 2013 for any operator who was permitted in 2012.

(d) Any operator holding a valid existing permit for a particular outdoor dining area that continues to utilize that outdoor dining area, shall be deemed to have re-applied for permission to use the same space for a succeeding permit term. Such operator shall pay the applicable annual renewal administrative fee, complete all renewal paperwork and comply with any other renewal requirements of the planning department, within 30 days of the commencement of the succeeding permit term. If the operator fails to meet all renewal requirements within the 30 days, then the operator's permit shall be deemed to have expired.

(e) The issuance of an outdoor dining area permit does not grant or imply vested rights to use of the area by the operator, but instead is a privilege granted to the operator. The city retains the right to deny the issuance of a permit or the renewal of a permit for any lawful reason. The city shall have broad discretion to grant or revoke permits issued pursuant to this article in the interests of promoting pedestrian and retail friendly vitality, and improving the overall public health, safety and welfare.

(Bill No. 7516, 4-16-2012; Bill No. 7572, § 1, 5-7-2013)

### Sec. 102-276. Standards for outdoor dining areas.

(a) The outdoor dining area shall be located adjacent to the property of an existing and lawful establishment of a permitted operator and shall be under the responsible direction and control of that operator.

(b) The outdoor dining area may be open to patrons between the hours of 7:00 a.m. and 11:00 p.m. daily, but said outdoor dining area may only be open while the kitchen associated with such establishment is open and operating such that it is capable of serving food to patrons. In the event a permitted operator intends to serve any beverage regulated by the WVABCA in an outdoor dining area, all code provisions and regulations of the WVABCA regarding permitted days and hours of service shall be followed.

(c) All furniture or other personal property located on the public sidewalk/right-of-way by operator must be readily removable without damage to the surface of public sidewalk/right-of-way.

Penetrations into or permanent fixtures placed upon the public sidewalk/right-of-way by operator are strictly prohibited.

(d) As authorized by state law, including, but not limited to, W. Va. Code §§ 8-12-5(4), (20) and (44), all partitions or fencing required for the delineation, designation, or enclosure of the outdoor dining area on city right-of-way shall be provided, installed, maintained and removed by and at the discretion of the city, shall remain property of the city, and no other partitions or fencing shall be permitted absent a finding by the planning department that the city is unable to provide said partitions or fencing, and that the proposed partitions or fencing are consistent with applicable standards for uniform aesthetics, design, installation, maintenance and removal.

(e) The planning department shall have the authority to determine when furniture, personal property and associated enclosures must be removed from the public sidewalk/right-of-way.

(f) At least 42 inches, of unobstructed corridor space must be maintained between the outer dimension of the outside dining area and the curb or nearest obstruction, in order to ensure a clear pedestrian passageway along the sidewalk. In order to achieve a continuous pedestrian walk way, the pedestrian passageway shall be a straight line, parallel to the building face or curb line, for the entire length of the outdoor dining area.

(g) An unobstructed clearance of 42 inches, must be maintained between a fire hydrant and any furniture or enclosures of an outdoor dining area.

(h) The outdoor dining area must be kept sanitary, neat and clean at all times and shall be free from the accumulation of food and litter.

(i) In order to control litter, the use of disposable plates and utensils is prohibited.

(j) In accordance with section 78-212 of the Municipal Code of the City of Charleston, noise from an outdoor dining area which unreasonably disturbs neighboring commercial or residential occupants is prohibited.

(k) In order to serve any beverage regulated by the WVABCA in an outdoor dining area, the designated area must be included in the floor plan for the licensed premises as approved by the WVABCA. Any beverage regulated by the WVABCA shall be served and consumed only on the enclosed or bounded portion of the public sidewalk designated and permitted by the city as an outdoor dining area. Patrons are not permitted to carry any beverage regulated by the WVABCA out of the outdoor dining area.

(l) Smoking is prohibited within any outdoor dining area.
(Bill No. 7516, 4-16-2012; Bill No. 7572, § 1, 5-7-2013)

**Sec. 102-277. Additional requirements.**

(a) Prior to the issuance of a permit, the applicant must agree, in writing, that it shall indemnify, defend, and save harmless the city, its officers, agents, and employees, from and against all liability, claims, suits, damages, losses, costs, attorneys' fees and expenses of any or all types arising out of, or related in any way to, the permitted outdoor dining area.

(b) The applicant shall maintain such general liability insurance with at least $1,000,000.00 coverage per each occurrence and shall the name as additional insured the City of Charleston, its agents, officers, directors and employees. A copy of said insurance policy shall be furnished to the City of Charleston.

(c) The authorization and privilege granted by a permit approved under this section shall be terminated due to the operator's failure to comply with any federal, state or local laws, any unabated nuisances or whenever the city desires to use the affected public right-of-way for any public purpose. In the event the city shall have a public need for use of the right-of-way or the property affected by the right-of-way, the city may terminate the use of such right-of-way by written notification to the applicant for the removal of any encroachments, and the operator shall cease use of the right-of-way unless and until such time the city has no public need for use of the right-of-way. Said removal shall be completed by the date specified in the notice and shall be accomplished

by the applicant without cost to the city. If the applicant fails or neglects to remove the encroachment within the time specified, the city shall have the right to remove the encroachment, at the expense of the operator, and shall not be liable to the operator for any loss, financial or otherwise, or damage to the encroachment or personal property within the encroachment area.
(Bill No. 7516, 4-16-2012)

**Sec. 102-278. Denial or revocation of permit.**

(a) An outdoor dining area permit is a privilege granted to the operator that may be revoked by the city upon finding by the planning department that the operator has violated any federal, state or city law applicable to the outdoor dining area or the operation thereof, including but not limited to, compliance with all code provisions and regulations of the WVABCA, that the continued operation of the outdoor dining area poses a threat to the health, safety or welfare of the public, or that the outdoor dining area constitutes a public nuisance.

(b) An applicant who has been denied a permit, or an operator whose permit has been revoked, may appeal the denial or revocation to the City of Charleston Board of Zoning Appeals (BZA). The provisions of Article 31 of the City of Charleston Zoning Ordinance shall apply. Such appeal may be made in writing within 30 days following the decision appealed from, on forms available at the planning department, and shall set forth the basis on which the person contests the decision. Within ten days of receipt of the appeal by the BZA, the BZA shall set a date and time for a public hearing. The public hearing shall be held within 45 days of receipt of the appeal to the BZA. The BZA shall conduct a public hearing on the appeal and may: deny the appeal and uphold the original order, requirement, decision or determination; grant the appeal and overturn the original order, requirement, decision or determination; or, issue an order which denies part of the appeal and grants part of the appeal.The BZA shall make written findings of fact and conclusions of law on which the BZA based its decision.The decision of the BZA may be appealed by either party, within 30 days, to the Kanawha County Circuit Court, as set forth in WV Code § 8A-9-1, et seq.
(Bill No. 7516, 4-16-2012)

**Sec. 102-279. Penalty.**

Any operator who violates any provision of this article shall, upon conviction, be fined up to $500.00 per day. Each day any violation of this article shall continue shall constitute a separate offense.
(Bill No. 7516, 4-16-2012)

**Secs. 102-280—102-289. Reserved.**

## ARTICLE VIII. STORMWATER POLLUTION PREVENTION

### DIVISION 1. ILLICIT DISCHARGE DETECTION AND ELIMINATION

**Sec. 102-290. Purpose/Intent.**

The purpose of this division is to provide for the protection of the health, safety, and general welfare of the citizens of the City of Charleston ("city") through the regulation of non-stormwater discharges into the municipal separate storm sewer system ("MS4") to the maximum extent practicable as required by federal and state law. This division establishes methods for controlling the introduction of pollutants into the MS4 in order to comply with the city's National Pollutant Discharge Elimination System ("NPDES") permit. The objectives of this division are:

(a) To regulate the contribution of pollutants to the MS4 by Non-stormwater discharges;

(b) To prohibit illicit connections and discharges to the MS4;

(c) To establish legal authority to carry out all inspection, enforcement, surveillance and monitoring procedures necessary to ensure compliance with this Division; and

(d) To comply with applicable federal and state statutory and regulatory requirements and schedules regarding the city's Stormwater management requirements.

(Bill No. 7648, 3-16-2015)

**Sec. 102-291. Definitions.**

The following words, terms and phrases when used in this division shall have the meanings ascribed to them in this section except where the context clearly indicates a different meaning:

(a) *Best management practices (BMPs)* means schedules of activities, prohibitions of practices, general good housekeeping practices, pollution prevention and educational practices, maintenance procedures, and other management practices that, when used singly or in combination, contribute to the control of the discharge of pollutants directly or indirectly into stormwater, receiving waters, or the MS4. BMPs also include treatment practices, operating procedures, and practices to contribute to the control of: site runoff of spillage or leaks, sludge or water disposal, or drainage from raw materials storage. BMPs can be non-structural, which is an action that does not require construction, or structural, which involves constructed facilities or measures.

(b) *Clean Water Act ("CWA")* means the federal Water Pollution Control Act (33 U.S.C. §1251 et seq.), and any subsequent amendments thereto.

(c) *Construction* means the act of building, grading, shaping, removing, demolishing, repairing, erecting, extending, installing equipment, or enlarging any building, structure, grounds, or premises.

(d) *Facility* means, for the purposes of this division, a building, structure, installation, construction site or premises in which pollutants are produced and/or generated as a result of an activity conducted within or around such building, structure, installation, construction site or premises.

(e) *Hazardous materials* means any material, including any substance, waste, or combination thereof, which because of its quantity, concentration, or physical, chemical, or infectious characteristics may cause, or significantly contribute to, a present or potential hazard to human health, safety, property, or the environment when improperly treated, stored, transported, disposed of, or otherwise managed.

(f) *Illicit discharge* means any discharge to the MS4 or the waters of the state that does not consist entirely of stormwater, is not a discharge containing no Pollutants covered under the city's NPDES MS4 Permit, or is not one of those discharges listed in section 102-294 of this division.

(g) *Illicit connection* means(1) any drain or conveyance, whether on the surface or subsurface, which allows an illicit discharge to enter the MS4 or waters of the state including, but not limited to, conveyances which allow any Non-stormwater discharge to enter the MS4 and any connection to the MS4 from indoor drains and sinks, regardless of whether said drain or connection was previously allowed, permitted, or approved by the city or the WV Department of Environmental Protection (DEP); or (2) any drain or conveyance connected from a commercial or industrial land use to the MS4 which has not been documented in plans, maps, or equivalent records and approved by a stormwater compliance officer after the effective date of the ordinance from which this division derives and which has not been located, identified, documented, and provided to a stormwater compliance officer after written notice.

(h) *Industrial activity* means an activity subject to NPDES Industrial Permits as defined in 40 CFR, Section 122.26(b)(14).

(i) *Maximum extent practicable* means a standard set forth in the CWA that requires NPDES permittees to have controls in place that are designed to reduce the discharge of Pollutants to the MS4 and

waters of the state, including management practices, control techniques and system, design and engineering methods.

(j) *Municipal separate storm sewer system (MS4)* means a conveyance or system of conveyances (including roads with drainage systems, municipal streets, catch basins, curbs, gutters, ditches, man-made channels, or storm drains) that are:

(1) Owned or operated by the city;

(2) Designed or used for collecting or conveying stormwater;

(3) Not a combined sewer; and

(4) Not part of a Publicly Owned Treatment Works (POTW) as defined in 40 CFR, Section 122.2

(k) *National Pollutant Discharge Elimination System (NPDES) Stormwater Discharge Permit* means a permit issued by the Federal Environmental Protection Agency (EPA) or by a state under authority delegated pursuant to 33 USC § 1342(b) that authorizes the discharge of Pollutants into waters of the United States.

(l) *Non-stormwater discharges* means, unless otherwise provided in section 102-294, those discharges that include, but are not limited to, sanitary wastewater, car wash wastewater, radiator flushing disposal, spills from roadway accidents, carpet cleaning wastewater, effluent from septic tanks, improper oil disposal, laundry wastewater/gray water, improper disposal of auto and household toxics.

(m) *Person* means any individual, association, organization, partnership, firm, corporation or other entity recognized by law and acting as either the owner or as the owner's agent.

(n) *Pollutant* means anything that causes or contributes to Pollution and may include, but is not limited to:

(1) Paints, varnishes, and solvents;

(2) Oil and other automotive fluids;

(3) Non-hazardous liquid and solid wastes and yard wastes;

(4) Refuse, rubbish, garbage, litter, or other discarded or abandoned objects;

(5) Floatables;

(6) Pesticides, herbicides, and fertilizers;

(7) Hazardous substances and wastes;

(8) Sewage, fecal coliform and pathogens;

(9) Dissolved and particulate heavy metals;

(10) Animal wastes;

(11) Wastes and residues that result from constructing or renovating a building or structure;

(12) noxious or offensive matter of any kind;

(13) Hyperchlorinated water; and

(14) Commercial car and building wash water.

(o) *Pollution* means the degradation of the physical, thermal, chemical, biological or radioactive properties of the Watercourses and water supplies located in or running through the City and/or the discharge of any Pollutant into the Watercourses and water supplies located in or running through the City which will or is likely to create a nuisance or to render such waters harmful, detrimental or injurious to public health, safety or welfare or to impair the beneficial use of the water and/or the water environment.

(p) *Premises* means any building, lot, parcel of land, or portion of land, whether improved or unimproved, including adjacent sidewalks and parking strips.

(q) *Stormwater* means any surface flow, runoff, and drainage consisting entirely of water from any form of natural precipitation, and resulting from such precipitation, including groundwater discharge and floodwater.

(r) *Stormwater compliance officer* (hereinafter referred to as "compliance officer")

means an employee of the City of Charleston City Engineer's Office or City Building Department designated by the city to administer, implement and enforce this article.

(s) *Stormwater pollution prevention plan (SWPPP)* means a document that describes the best management practices and activities to be implemented by a Person to identify sources of pollution or contamination at a site and the actions to eliminate or reduce pollutant discharges into stormwater, the MS4, and/or receiving waters to the maximum extent practicable.

(t) *Wastewater* means any water or other liquid, other than uncontaminated stormwater, discharged from a facility.

(u) *Watercourse* means a body of water flowing in a reasonably defined channel with a bed and banks.

(Bill No. 7648, 3-16-2015)

**Sec. 102-292. Applicability.**

This division shall apply to all stormwater and non-stormwater discharges entering the MS4 from any premises located within the city unless explicitly exempted by the city or the West Virginia Department of Environmental Protection (WVDEP).

(Bill No. 7648, 3-16-2015)

**Sec. 102-293. Responsibility for administration.**

City of Charleston Stormwater Compliance Officers shall administer, implement, and enforce the provisions of this division.

(Bill No. 7648, 3-16-2015)

**Sec. 102-294. Illicit discharge and connection prohibitions.**

(a) *Prohibition of illicit discharges.*

(1) Except for stormwater, no person shall discharge or cause to be discharged into the MS4 or waters of the state any materials, including, but not limited to, Pollutants or waters containing any Pollutants that cause or contribute to a violation of applicable water quality standards or any other federal, state, or local regulations.

(2) The commencement or continuation of any Illicit discharge to the MS4 is prohibited except as described as follows:

a. Discharges not containing Pollutants from the following:

1. Potable water sources including waterline flushings from which chlorine has been removed to the maximum extent practicable;
2. Landscape irrigation or lawn watering with potable water;
3. Diverted stream flows;
4. Rising ground water;
5. Groundwater infiltration to storm drains;
6. Pumped groundwater;
7. Foundation or footing drains where flows are not contaminated with pollutants (e.g. do not contain process materials such as solvents, heavy metals, etc.);
8. Crawl space pumps;
9. Air conditioning condensation;
10. Uncontaminated groundwater or spring water;
11. Springs;
12. Dewatering of work areas of collected Stormwater and ground water (filtering or chemical treatment may be necessary prior to discharge);
13. Water used to control dust;
14. Routine external building washdown that does not use detergents or other chemicals;
15. Waters used to wash vehicles (of dust and soil, not process materials such as oils, asphalt or concrete) where detergents are not used and detention

and/or filtering is provided before the water leaves the wash site;

16. Non-commercial washing of vehicles;
17. Natural riparian habitat or wetland flows;
18. Swimming pools (if dechlorinated to a concentration of one PPM chlorine or less);
19. Firefighting activities; or
20. Any other water source not containing pollutants.

b. Discharges approved in writing by a compliance officer as being necessary to protect public health and safety.

c. Dye testing is an allowable discharge, but requires written notification to a compliance officer prior to the time of the test.

d. The prohibition shall not apply to any Non-stormwater discharge permitted under an NPDES permit, waiver, or waste discharge order issued to the discharger and administered under the authority of the EPA, provided that the discharger is in full compliance with all requirements of the permit, waiver, or order and other applicable laws and regulations, and provided that written approval has been granted for any discharge into the MS4.

(b) *Prohibition of Illicit Connections.*

(1) The construction, use, maintenance or continued existence of illicit connections to the MS4 is prohibited.

(2) This prohibition expressly includes, without limitation, illicit connections made in the past, regardless of whether the connection was previously permitted by the city and/or permissible under law or practices applicable or prevailing at the time of connection. Where such connections exist in violation of this ordinance and said connections were made prior to the effective date of this ordinance or any other ordinance prohibiting such connections, the property owner or the person using said connection shall remove the connection within six months following the effective date of this ordinance. However, the six-month grace period shall not apply to connections which pose an immediate threat to health and safety, or are likely to result in immediate injury and harm to real or personal property, natural resources, wildlife or habitat.

(3) This prohibition includes any drain or conveyance connected from a commercial or industrial land use to the MS4 that has not been documented in plans, maps, or equivalent records and approved by a compliance officer after the effective date of this ordinance unless or until such drain or conveyance is located, identified, documented, and the documentation is provided to and approved by a compliance officer. The property owner or person using such drain or conveyance shall locate the same upon receipt of written notice from a compliance officer. Such notice will specify a reasonable time period within which the location of the drain or conveyance is to be determined, that the drain or conveyance be identified as storm sewer, sanitary sewer or other, and that the outfall location or point of connection to the storm sewer system, sanitary sewer system or other discharge point be identified. Results of these investigations are to be documented and provided to the requesting compliance officer.

(4) A person shall be in violation of this division if the person connects a line conveying sewage to the MS4, or allows such a connection to continue.

(Bill No. 7648, 3-16-2015)

**Sec. 102-295. Watercourse protection.**

Every person owning property through which a watercourse passes, or such person's lessee as a condition of its lease, shall keep and maintain

that part of the watercourse located within the property free of trash, debris, excessive vegetation, and other obstacles that would pollute, contaminate, or cause the flow of water through the Watercourse to back up. In addition, the owner or lessee shall maintain existing privately owned structures within or adjacent to a watercourse, so that such structures will not become a hazard to the use, function, or physical integrity of the watercourse.
(Bill No. 7648, 3-16-2015)

### Sec. 102-296. Industrial or construction activity discharges.

Any person subject to an industrial or construction activity NPDES stormwater discharge permit shall comply with all provisions of such permit. Proof of compliance with said permit may be required in a form acceptable to a compliance officer prior to the allowance of discharges into the MS4.
(Bill No. 7648, 3-16-2015)

### Sec. 102-297. Requirement to prevent control, and reduce stormwater pollutants by the use of best management practices.

The city's will adopt requirements identifying best management practices for any activity, operation, or facility which may cause or contribute to pollution or contamination of stormwater, the MS4, or waters of the state. The owner or operator of a commercial or industrial establishment shall provide, at his or her own expense, reasonable protection from accidental discharge of prohibited materials or other wastes into the MS4 or watercourses through the use of these structural and non-structural BMPs. Further, any person responsible for a property or premise, which is, or may be, the source of an Illicit discharge, may be required to implement, at said person's expense, additional structural and non-structural BMPs to prevent the further discharge of pollutants to the MS4. Compliance with all terms and conditions of a valid NPDES permit authorizing the discharge of Stormwater associated with Industrial Activity, to the extent practicable, shall be deemed in compliance with the provisions of this section. These BMPs shall be part of a stormwater pollution prevention plan (SWPPP) as is necessary for compliance with requirements of the NPDES permit.
(Bill No. 7648, 3-16-2015)

### Sec. 102-298. Access to facilities for inspection, monitoring, sampling, measuring, testing or copying records.

(a) *Applicability:* This section applies to all facilities that have stormwater discharges associated with industrial activity, including construction activity.

(b) *Access to facilities:*

(1) To the fullest extent permitted by law, compliance officers bearing proper identification are authorized by this division to enter and inspect regulated facilities to determine compliance with this division.

(2) Facility operators shall allow Compliance Officers reasonable access to all parts of the premises for the purposes of inspecting, monitoring, sampling, measuring, or testing the Facility's Stormwater discharge. Compliance Officers shall also be allowed reasonable access for the purpose of copying records that must be kept under the conditions of an NPDES permit.

(3) If a compliance officer has been refused access to any part of the premises of a facility from which stormwater is discharged, and he/she is able to demonstrate probable cause to believe that there may be a violation of this division involving illicit discharges or pollutants discharging into stormwater, the ms4 or waters of the state; or that there is a need to inspect and/or sample as part of a routine inspection and sampling program designed to verify compliance with this division or any order issued hereunder; or to protect the overall public health, safety, and welfare of the community, then the compliance officer may seek issuance of a search warrant from any court of competent jurisdiction

to conduct of an investigation concerning compliance with the terms of this division.

(Bill No. 7648, 3-16-2015)

### Sec. 102-299. Notification of spills.

Notwithstanding other requirements of state or federal law, as soon as any Person responsible for a facility or responsible for emergency response for a facility, has information of any known or suspected release of materials which are resulting, or may result, in illicit discharges or pollutants discharging into stormwater, the MS4, or waters of the state, said person shall take all necessary steps to ensure the discovery, containment, and cleanup of such release. In the event of such a release of hazardous materials said person shall immediately notify emergency response agencies of the occurrence via emergency dispatch services. In the event of a release of all other illicit discharges, said person shall notify the city's stormwater management department in person or by phone or email, no later than the next business day. All relevant contact information shall be listed on the city's website. Notifications in person or by phone shall be confirmed by written notice addressed and mailed to the stormwater management department within three business days of the notice. If the Illicit discharge emanates from a commercial or industrial establishment, the owner or operator of such establishment shall also retain an on-site written record of the discharge and the actions taken to prevent its recurrence. Such records shall be retained for at least three years.

(Bill No. 7648, 3-16-2015)

### Sec. 102-300. Reserved.

**Editor's note—**Bill No. 7822, adopted July 1, 2019, repealed § 102-300, which pertained to stormwater management board created and derived from Bill No. 7648, 3-16-2015.

### Sec. 102-301. Notice of violation.

(a) When a compliance officer determines after reasonable observation or investigation that a person has violated a prohibition or failed to meet a requirement of this division, he/she may order compliance by written notice of violation to that person. Such notice may require, without limitation:

(1) the performance of monitoring, analyses and reporting;

(2) the elimination of illicit connections or discharges;

(3) that discharges, practices or operations that are in violation shall cease and desist;

(4) the abatement or remediation of stormwater pollution or contamination hazards and the restoration of any affected property; and/or

(5) the implementation of source control or treatment BMPs.

(b) Notice(s) of violation shall be served in accordance with the law of the State of West Virginia concerning the service of process in civil actions, except that a method of service effectuated by a mailing by the clerk of a court (e.g., service pursuant to West Virginia Rule of Civil Procedure 4(d)(1)(D)) shall be deemed to be effectuated by a mailing by a compliance officer. If service is made by certified mail consistent with West Virginia Rule of Civil Procedure 4(d)(1)(D) and delivery of the notice of the violation is refused, the compliance officer, promptly upon the receipt of the notice of such refusal, shall mail to the person being noticed, by first class mail, postage prepaid, (1) a copy of the notice of the violation(s) (2) a notice that despite such refusal, the notice of the violation(s) is valid, and (3) advising that the City will proceed to enforce the notice of violation(s). So long as such first class mailing is not returned as undeliverable by the U.S. Postal Service, service of the notice of violation(s) will be conclusively presumed to have been effectuated. Proof of service shall be made at the time of service by a written declaration, under oath, executed by the enforcement official effecting service and shall declare the time, date and manner by which service was made.

(c) Any notice of violation(s) under this section shall be in writing and shall contain the following:

(1) the date the notice of violation is given;

(2) the name and address of the person(s) charged with the violation;

(3) the nature of the violation;

(4) a statement of the action required to be taken in order to correct the violation and further prevent it;

(5) the time period allowed for the violation to be corrected. When determining the time period allowed for correction, a compliance officer shall take into consideration the threat posed by the violation to the health, safety and welfare of the public and the nature of the work required to correct the violation;

(6) the maximum fines that may be assessed if the violation is not corrected and a citation is issued; and

(7) the name, business address and telephone number of the compliance officer issuing the notice of violation.

(d) Nothing in this section shall limit the authority of compliance officers to take any other lawfully prescribed enforcement action, including emergency actions or any other enforcement action, without first issuing a notice of violation.

(Bill No. 7648, 3-16-2015; Bill No. 7822, 7-1-2019)

### Sec. 102-302. Request for reconsideration.

Any person receiving a notice of violation from a compliance officer may submit a written request for reconsideration to the city engineer by mailing said request to The Office of the City Engineer, City of Charleston, P.O. Box 2749, Charleston, WV 25330, or by hand delivering said request to the Office of the City Engineer, 114 Dickenson Street, Charleston, West Virginia. The request for reconsideration must be received within ten days from the date of the notice of violation and shall include a written explanation of the basis for the request. Upon receipt of a timely request for reconsideration, the city engineer shall review the request and shall (1) uphold the notice of violation (2) reverse the notice of violation or (3) modify the notice of violation and shall provide written notice by certified mail of his or her decision to the person within 15 days of receipt thereof.

(Bill No. 7648, 3-16-2015; Bill No. 7822, 7-1-2019)

**Editor's note—**Bill No. 7822, adopted July 1, 2019, renamed the former Art. § 102-302 as set out herein.

### Sec. 102-303. Reserved.

**Editor's note—**Bill No. 7822, adopted July 1, 2019, repealed § 102-303, which pertained to appeal of notice of violation and derived from Bill No. 7648, 3-16-2015.

### Sec. 102-304. Enforcement measures.

(a) If the violation has not been corrected within ten days or any other period specified by the city engineer in his or her decision in the case of a request for reconsideration, then the compliance officer shall request the owner's permission for access to the subject private property to take any and all measures reasonably necessary to abate the violation and/or bring the property into compliance.

(b) If refused access to the subject property, the compliance officer may seek a warrant in a court of competent jurisdiction to be authorized to enter upon the property.

(Bill No. 7648, 3-16-2015; Bill No. 7822, 7-1-2019)

**Editor's note—**Bill No. 7822, adopted July 1, 2019, renamed the former Art. § 102-304 as set out herein.

### Sec. 102-305. Injunctive relief.

It shall be unlawful for any person to violate any provision or fail to comply with any of the requirements of this division. If a person has violated or continues to violate the provisions of this division, the city may petition a court of competent jurisdiction for a preliminary or permanent injunction restraining the person from activities which would create further violations or

compelling the person to perform abatement or remediation of the violation. Any such person against whom such an injunction is issued shall be responsible for paying all costs of the city in obtaining and enforcing such injunction, including the court costs and attorney's fees.
(Bill No. 7648, 3-16-2015)

**Sec. 102-306. Violations deemed a public nuisance.**

(a) In addition to the enforcement processes and penalties provided in this article, any condition caused or permitted to exist in violation of any of the provisions of this division shall be considered a threat to the public health, safety, welfare and the environment, may be declared and deemed a nuisance, and may be summarily abated and/or restored by, or at the direction of, the city, by and through its compliance officer. The city may initiate any administrative and civil actions as necessary to abate, enjoin or otherwise compel the cessation of such nuisance.

(b) The cost of such abatement and/or restoration shall be the sole responsibility of the owner of the property and the cost thereof shall be a lien upon and against the property. Such lien shall continue in existence until the same shall be paid.
(Bill No. 7648, 3-16-2015)

**Sec. 102-307. Criminal prosecution.**

In addition to, and not in lieu of, any administrative remedy provided in this division, violations of this division shall be a criminal misdemeanor, subject to criminal citation and punishable by a fine of not less than $500.00. Every day or portion thereof that a person fails or refuses to remedy a violation shall be considered a separate offense. Fines may be reduced by the municipal court only upon agreement of the city by and through its prosecutor.
(Bill No. 7648, 3-16-2015)

**Sec. 102-308. Remedies not exclusive.**

The remedies listed in this division are not exclusive of any other remedies available under any applicable federal, state or local law and it is within the discretion of the city to seek cumulative remedies.
(Bill No. 7648, 3-16-2015)

**Sec. 102-309. Severability.**

The provisions of this division are hereby declared to be severable. If any provision, clause, sentence, or paragraph of this article or the application thereof to any person, establishment, or circumstances shall be held invalid, such invalidity shall not affect the other provisions or application of this division.
(Bill. No. 7648, 3-16-2015)

## DIVISION 2. CONSTRUCTION SITE EROSION AND SEDIMENT CONTROL

**Sec. 102-310. Purpose/intent.**

The purpose of this division is to provide for the protection of the health, safety, and general welfare of the citizens of the City of Charleston ("city") through the regulation of those construction projects where the discharge of sediment and other construction related pollutants into adjacent waterways is likely to occur.
(Bill. No. 7656, 6-1-2015)

**Sec. 102-311. Definitions.**

The following words, terms and phrases when used in this Division shall have the meanings ascribed to them in this Section except where the context clearly indicates a different meaning:

(a) *Clearing* means any activity that removes or causes the removal of the vegetative surface cover.

(b) *Construction* means the act of building, grading, shaping, removing, demolishing, repairing, erecting, extending, installing equipment on/in, or enlarging any building, structure, grounds, or premises.

(c) *Construction site* means a parcel of land or a contiguous combination thereof where land disturbing activity occurs.

(d) *Drainage way* means any channel that conveys surface runoff throughout the construction site.

(e) *Erosion* means the wearing away of land surface by natural or artificial forces such as wind, water, ice, gravity or vehicle traffic.

(f) *Erosion control* means a measure that is designed to prevent erosion.

(g) *Erosion and sediment control plan ("ESCP")* means a set of plans indicating the specific measures and sequencing to be used to control erosion and sediment on a construction site.

(h) *Grading* means the cutting and/or filling of the land surface to a desired slope, elevation, or contour.

(i) *Impervious area* means an area composed of any material which impedes or prevents the natural infiltration of water into the soil, including but not limited to, concrete, asphalt, and roof surfaces.

(j) *Land disturbing activity ("LDA")* means any activity that results in the movement or manipulation of soil, rock or other earth materials. This includes, but is not limited to, clearing and grubbing, grading, excavation, filling, embankment construction, road grading, ditch cleaning, mineral extraction, commercial timbering, initial landscape preparation and stockpiling of earth materials. The activities set forth in section 102-314(b) of this division are exempt from the definition of land disturbing activity for purposes of this division.

(k) *Perimeter control* means a barrier that prevents sediment from leaving a site by filtering sediment-laden runoff or diverting it to a sediment trap or basin.

(l) *Person* means any individual, association, organization, partnership, firm, corporation or other entity recognized by law and acting as either the owner or as the owner's agent.

(m) *Phasing* means disturbing a parcel of land in distinct phases, with the stabilization of each phase completed before disturbance of the next phase.

(n) *Sediment* means soil, sand, silt, and minerals washed from land into water.

(o) *Sediment control* means measures that prevent eroded sediment from leaving a construction site.

(p) *Stabilization* means the use of practices that prevent exposed soil from eroding.

(q) *Start of construction* means the first land disturbing activity associated with a construction project.

(r) *Stormwater compliance officer* (hereinafter referred to as "compliance officer") means an employee of the City of Charleston City Engineer's Office or City Building Department designated by the city to administer, implement and enforce this article.

(s) *Watercourse* means a body of water flowing in a reasonably defined channel with a bed and banks.

(t) Waterway means a channel that directs surface runoff to a watercourse or to the MS4.

(Bill. No. 7656, 6-1-2015)

**Sec. 102-312. Applicability.**

This division shall apply to all Construction projects located within the city that involve land disturbing activity ("LDA") exceeding 5,000 square feet or an increase in impervious area by 1,000 square feet or greater unless exempted by section 102-314(b) this division.
(Bill. No. 7656, 6-1-2015)

**Sec. 102-313. Responsibility for administration.**

The City of Charleston City Engineer's Office and City of Charleston Stormwater Compliance Officers shall administer, implement, and enforce the provisions of this division.
(Bill. No. 7656, 6-1-2015)

**Sec. 102-314. Approval of land disturbing activity.**

(a) Any person applying for a City of Charleston building permit that proposes a construction project involving LDA exceeding 5000 square feet, or an increase in impervious area by 1000 square feet or greater, is required to obtain approval for such LDA from the City Building Department and/or city engineer's office. Requests for approval shall be made at the time of application for a building permit; provided, however, that a building permit shall not be issued in the absence of prior approval of LDA.

(b) Notwithstanding section 102-314(a) herein, approval for LDA shall not be required for the following activities:

(1) Interior renovations;

(2) Roof repair;

(3) Building facade maintenance;

(4) Milling and repaving of existing asphalt or concrete streets, parking lots, or sidewalks;

(5) Maintenance of existing landscaping or gardens;

(6) Cutting of trees and brush (provided the area remains vegetated and no grubbing of root system occurs); and

(7) Maintenance of pervious sports fields such as replacement of the clay surface to baseball infields, turf plugging of golf fairways and greens.

(Bill. No. 7656, 6-1-2015; Bill No. 7822, 7-1-2019)

**Sec. 102-315. Submission of erosion and sediment control plan; modifications.**

(a) Any person requesting approval of LDA is required to submit an Erosion and Sediment Control Plan ("ESCP") to the city building department as part of the building permit application for review and approval. The ESCP shall comply with the provisions set forth in the City of Charleston Stormwater Management Guidance Manual regarding erosion and sediment control measures. The Stormwater Management Guidance Manual will be available to the public on the city's stormwater website, as well as on file at the city engineer's office.

(b) All control measures set forth in an approved ESCP shall be followed and maintained at all times during the construction project unless modified with the approval of the city building department and/or city engineer's office. Any significant modifications to an ESCP must be approved by the city building department and/or city engineer's office via written authorization to the permittee. Minor modifications to the ESCP may be approved by the city building department and/or city engineer's office at the construction site.

(c) A copy of the approved ESCP shall be kept on the construction site during all stages of a construction project and shall be made available for review upon request by a compliance officer. (Bill. No. 7656, 6-1-2015; Bill No. 7822, 7-1-2019)

**Sec. 102-316. Erosion and sediment control design requirements.**

(a) Grading, erosion control practices, sediment control practices, and waterway crossings shall meet the design criteria set forth in the most recent version of the city's Stormwater Management Guidance Manual and shall be adequate to prevent transportation of sediment from the construction site.

(b) Clearing and grading of natural resources, such as protected habitats and wetlands, shall not be permitted, except when in compliance with the Stormwater Management Guidance Manual.

(c) Clearing, except to the extent necessary to establish sediment control devices, shall not begin until all sediment control devices have been installed and have been stabilized.

(d) Minimum erosion control requirements shall include:

(1) Temporary seeding must be applied if the construction site is idle for more than 21 days.

(2) Special techniques that meet the design criteria outlined in the Stormwater Management Guidance Manual on steep slopes or in drainage ways shall be used to ensure stabilization.

(3) Soil stockpiles must be stabilized or covered at all times.

(4) The entire construction site must be stabilized at the close of the construction season, which may include, but is not limited to, temporary seeding, mulching, and the use of erosion controls.

(5) Techniques shall be employed to prevent the transportation of dust or sediment from the construction site.

(6) Techniques shall be employed to divert upstream runoff away from LDA without causing any additional Erosion.

(e) Minimum sediment control requirements shall include: sediment basins, stormwater inlet protection, sediment traps, and/or perimeter controls.

(f) Minimum waterway and watercourse protection requirements shall include:

(1) Approval of a waterway or watercourse crossing by all applicable federal and state agencies having jurisdiction, which may include, but is not limited to, West Virginia Department of Natural Resources, United States Army Corps of Engineers, and the United States Environmental Protection Agency.

(2) Stabilization of a watercourse before, during, and after any in-channel work.

(3) All on-site stormwater conveyance channels designed according to the criteria outlined in the Stormwater Management Guidance Manual.

(4) Stabilization adequate to prevent erosion located at the outlets of all pipes and paved channels.

(g) Construction site access requirements shall include: establishment and maintenance of a stabilized construction site entrance as outlined in the Stormwater Management Guidance Manual.

(Bill No. 7656, 6-1-2015; Bill No. 7822, 7-1-2019)

### Sec. 102-317. Review and approval of land disturbing activity and erosion and sediment control plan.

The city engineer's office and/or city building department shall review each request for approval of LDA and the corresponding ESCP to determine conformance with the requirements of this division. Within ten days after receiving a building permit application and corresponding ESCP, the city engineer's office and/or city building department shall, in writing:

(1) Approve the requested LDA and corresponding ESCP;

(2) Approve the requested LDA and corresponding ESCP subject to conditions as may be necessary to satisfy the objectives of this Division; or

(3) Deny the requested LDA and corresponding ESCP, indicating the reason(s) for denial and the procedure for submitting a revised ESCP, if appropriate.

(Bill No. 7656, 6-1-2015; Bill No. 7822, 7-1-2019)

**Editor's note—**Bill No. 7822, adopted July 1, 2019, renamed the former Art. § 102-317 as set out herein.

### Sec. 102-318. Inspection of construction site.

(a) All construction sites involving LDA and requiring an approved ESCP shall be inspected and approved by a compliance officer. Compliance officers shall inspect construction sites as authorized by this section and shall either approve that portion of the work completed or shall notify the person receiving approval for the LDA that the work is not in compliance with the approved ESCP. To obtain the required permits and inspections, the person receiving approval for the LDA shall notify the city engineer's office and/or city building department of the construction start date. If there is to be a change in said start date,

the city engineer's office and/or city building department is to be notified at least two working days before start of construction. Compliance officer inspections may consist of, but not be limited to, the following stages:

(1) Installation of erosion and sediment control measures;

(2) Completion of demolition;

(3) Completion of site clearing and rough grading;

(4) Installation of any stormwater conveyance structures; and

(5) Completion of project.

(b) The person receiving approval for LDA and corresponding ESCP shall make regular inspections of all control measures in accordance with the inspection schedule outlined in the approved ESCP. The purpose of such inspections will be to determine the overall effectiveness of the ESCP and the potential need for additional control measures. All inspections shall be documented in writing and shall be kept on site. (Bill. No. 7656, 6-1-2015; Bill No. 7822, 7-1-2019)

### Sec. 102-319. Notice of noncompliance and order to correct.

(a) When a compliance officer determines after reasonable observation or investigation that a person has not complied with any provision of this division or has failed to comply with an approved ESCP, the compliance officer may order compliance by written notice of noncompliance and order to correct.

(b) Notice(s) of noncompliance and order(s) to correct shall be served in accordance with the law of the State of West Virginia concerning the service of process in civil actions, except that a method of service effectuated by a mailing by the clerk of a court (e.g., service pursuant to West Virginia Rule of Civil Procedure 4(d)(l)(D)) shall be deemed to be effectuated by a mailing by a compliance officer. If service is made by certified mail consistent with West Virginia Rule of Civil Procedure 4(d)(l)(D) and delivery of the notice of noncompliance and order to correct is refused, the compliance officer, promptly upon the receipt of the notice of such refusal, shall mail to the person being noticed, by first class mail, postage prepaid, (I) a copy of the notice of noncompliance and order to correct (2) a notice that despite such refusal, the notice of noncompliance and order to correct is valid, and (3) advising that the city will proceed to enforce the notice of noncompliance and order to correct. So long as such first class mailing is not returned as undeliverable by the U.S. Postal Service, service of the notice of noncompliance and order to correct will be conclusively presumed to have been effectuated. Proof of service shall be made at the time of service by a written declaration, under oath, executed by the enforcement official effecting service and shall declare the time, date and manner by which service was made.

(c) Any notice of noncompliance and order to correct under this section shall be in writing and shall contain the following:

(1) The date the notice of noncompliance and order to correct is given;

(2) The name and address of the person(s) charged with the noncompliance;

(3) The nature of the noncompliance;

(4) A statement of the action required to be taken in order to correct the noncompliance and further prevent it;

(5) The time period allowed for correction. When determining the time period allowed for correction, a compliance officer shall take into consideration the threat posed by the noncompliance to the health, safety and welfare of the public and the nature of the work required to correct the noncompliance;

(6) The maximum fines that may be assessed if the noncompliance is not corrected and a citation is issued; and

(7) The name, business address and telephone number of the compliance officer issuing the notice of noncompliance and order to correct.

(d) Nothing in this section shall limit the authority of compliance officers to take any other lawfully prescribed enforcement action, including emergency actions or any other enforcement action, without first issuing a notice of noncompliance and order to correct.

(e) Failure to correct the noncompliance by the date set forth in the notice of noncompliance and order to correct shall be reported to the building department. Any subsequent work performed shall constitute work being performed in a dangerous or unsafe manner or in a manner contrary to the W.Va. State Building Code, as adopted by Charleston Municipal Code section 14-33(a), and the person charged with the noncompliance may be issued a stop work order or the building permit may be revoked.
(Bill. No. 7656, 6-1-2015; Bill No. 7822, 7-1-2019)

**Sec. 102-320. Injunctive relief.**

It shall be unlawful for any person to violate any provision or fail to comply with any of the requirements of this division. If a person has violated or continues to violate the provisions of this division, the city may petition a court of competent jurisdiction for a preliminary or permanent injunction restraining the person from activities which would create further violations or compelling the person to perform abatement or remediation of the violation. Any such Person against whom such an injunction is issued shall be responsible for paying all costs of the city in obtaining and enforcing such injunction, including the court costs and attorney's fees.
(Bill. No. 7656, 6-1-2015)

**Sec. 102-321. Violations deemed a public nuisance; penalties.**

(a) In addition to the enforcement processes and penalties provided in this division, any condition caused or permitted to exist in violation of any of the provisions of this division shall be considered a threat to the public health, safety, welfare and the environment, may be declared and deemed a nuisance, and may be summarily abated and/or restored by, or at the direction of, the city, by and through its compliance officer. The city may initiate any administrative or civil actions as necessary and appropriate to abate, enjoin or otherwise compel the cessation of such nuisance.

(b) The cost of any such abatement and/or restoration by the city shall be the sole responsibility of the owner of the property and the cost thereof shall be a lien upon and against the property. Such lien shall continue in existence until the same shall be paid.
(Bill. No. 7656, 6-1-2015)

**Sec. 102-322. Criminal prosecution.**

In addition to any administrative remedy provided in this division, violations of this division constitute a criminal misdemeanor, subject to criminal citation and punishable by a fine of not less than $500.00. Every day or portion thereof that a person fails or refuses to remedy a violation shall be considered a separate offense. Fines may be reduced by the municipal court only upon agreement of the city by and through its prosecutor.
(Bill. No. 7656, 6-1-2015)

**Sec. 102-323. Remedies not exclusive.**

The remedies listed in this Division are not exclusive of any other remedies available under any applicable federal, state or local law and it is within the discretion of the city to seek cumulative remedies.
(Bill. No. 7656, 6-1-2015)

**Sec. 102-324. Severability.**

The provisions of this division are hereby declared to be severable. If any provision, clause, sentence, or paragraph of this article, or the application thereof to any person, establishment, or circumstances, shall be held invalid, such invalidity shall not affect the other provisions or application of this division.
(Bill. No. 7656, 6-1-2015)

**Secs. 102-325—102-330. Reserved.**

## ARTICLE IX. CHARLESTON ADOPT-A-STREET PROGRAM

### Sec. 102-331. General.

There is hereby created the Charleston Adopt-A-Street Program. The program will be administered by the director of public works, in consultation with the City of Charleston Traffic Engineer. The director is encouraged to coordinate with the state Adopt-A-Highway program and its administrators, the West Virginia Department of Environmental Protection and West Virginia Division of Highways, and other state or federal agencies, to seek any and all available assistance and grant funding for the program.
(Bill No. 7894, 2-16-2021)

### Sec. 102-332. Eligible streets.

(a) Any street maintained by the City of Charleston is eligible for adoption, including, without limitation, alleys, dirt roads and streets off the beaten path as well as major streets; provided, however, the following are not eligible for adoption:

(1) Interstates, interstate exchanges and interstate on/entrance ramps and off/exit ramps; and

(2) Streets deemed unsafe.

(b) Adopted streets must be at least six blocks long or a relatively equivalent length if the street does not have traditional or identifiable blocks. The overall length of an adopted street should take into account the reasonable beginning and end of the eligible street and the reasonableness of dividing an eligible street into adoptable sections to maximize adoption and minimize the orphaning of sections, parts or blocks of a street.

(c) Adopters may select a street for adoption or request the director to suggest an adoptable street. The director, in consultation with the traffic engineer, shall approve the streets to be adopted, taking into consideration the requirements herein and the safety of the volunteers and the traveling public.
(Bill No. 7894, 2-16-2021)

### Sec. 102-333. Program participation.

(a) Individuals, families, churches, businesses, schools, civic organizations, government agencies, scouting groups, fraternities, sororities, and communities may participate in the Charleston Adopt-A-Street Program.

(b) The director shall implement an application process for the program. An adopter is expected to commit to three cleanups per year for at least two years. Those that complete the six required cleanups in the two-year contract period are awarded a certificate of accomplishment signed by the mayor. An adopter may continue with their adoption of the street as long as they perform three cleanups per year. If an adopter fails to perform at least five cleanups in a two-year period, the adopted street shall be eligible for adoption by another adopter.

(c) Each cleanup shall be at least 30 days apart. The director shall set forth requirements for scheduling cleanups and for the submission of cleanup reports.

(d) The city shall provide volunteers garbage bags, gloves, safety vests, safety training similar to or the same as that required by the state, and traffic warning signs, and such other items that may be provided at the discretion of the director.

(e) The safety of the volunteers participating in an adoption is of the utmost importance. Therefore:

(1) Volunteers shall be at least 12 years old;

(2) Volunteers shall wear safety vests provided by the city during the cleanup at all times;

(3) Adopters shall post traffic warning signs provided by the city during the cleanup; and

(4) Adopters and their volunteers shall adhere to any other requirements of the director.

(f) As volunteers pick up litter, bags that have been filled shall be placed on street sides for removal and disposal by the city. Recycling of items found during a cleanup is encouraged.

(g) Adopters must clean adopted streets with their own volunteers and may not subcontract the work.

(h) The director, in consultation with the traffic engineer, shall erect a sign at each end of the adopted street bearing the Adopt-A-Street logo and the name of the adopter after two cleanups have been reported.
(Bill No. 7894, 2-16-2021)

**Secs. 102-334—102-340 Reserved.**

Chapters 103—105

**RESERVED**

Chapter 106

# SUBDIVISION REGULATIONS
# RESERVED*

*__Editor's note—__Bill No. 7328, passed July 21, 2008, amended and reenacted Ch. 106, §§ 106-1—106-213, for the purpose of replacing the existing title. Section 2 of said ordinance further provided as follows:

There is hereby adopted that certain revised document heretofore published by the city and which is entitled "Subdivision Ordinance of the City of Charleston, West Virginia", as passed by Ordinance No 7328, and kept on file in the planning department and city clerk's office, city hall, where it shall be available to the public for inspection and use during all regular business hours; and said document, as revised, is hereby incorporated herein and made a part thereof as fully as though set out in length; and the provisions of said document, as revised by council for the City of Charleston from time to time, shall be controlling within the city limits of the City of Charleston in all matters related to its subject matter. It is unlawful for any person to act in any way or manner contrary to the provisions therein.

Chapters 107—109

**RESERVED**

# Chapter 110

# TAXATION*

## Article I. In General

Sec. 110-1. Unlawful release of tax information; penalties.
Secs. 110-2—110-30. Reserved.

## Article II. Business and Occupation Tax

### Division 1. Generally

Sec. 110-31. Definitions.
Sec. 110-32. Administration and enforcement.
Sec. 110-33. Refunds and credits.
Sec. 110-34. Offenses.
Sec. 110-35. Revocation of licenses and permits.
Sec. 110-36. Records.
Secs. 110-37—110-50. Reserved.

### Division 2. Tax Imposed; Exemptions and Credits

Sec. 110-51. Imposition of privilege tax.
Sec. 110-52. Producers of natural resource products.
Sec. 110-53. Manufacturing, compounding or preparing products.
Sec. 110-54. Business of selling tangible property; certain sales exempt.
Sec. 110-55. Public service or utility business.
Sec. 110-56. Business of contracting.
Sec. 110-57. Business of operating amusements.
Sec. 110-58. Service business or calling not otherwise specifically taxed.
Sec. 110-59. Business of furnishing property for hire.
Sec. 110-60. Banking and other financial businesses; findings of city council.
Sec. 110-61. Persons taxable on multiple activities—Credits.
Sec. 110-62. Tax rate for HMO.
Sec. 110-63. Exemptions.
Secs. 110-64—110-80. Reserved.

### Division 3. Payments, Returns and Records

Sec. 110-81. Tax cumulative.
Sec. 110-82. Return and remittance; tax year.
Sec. 110-83. Extensions of time; payment plans.
Sec. 110-84. Records, statements, and investigations.
Sec. 110-85. Secrecy of returns.
Sec. 110-86. Reciprocal exchange.
Sec. 110-87. Unlawful release of tax information; penalties.
Sec. 110-88. Mathematical errors; collection of balance due on return without remittance.
Secs. 110-89—110-110. Reserved.

### Division 4. Tax Assessments

Sec. 110-111. Limitation on assessments.
Sec. 110-112. Assessment of tax when insufficiently returned.

---

*__Cross references—__Any ordinance levying, imposing or otherwise relating to taxes not codified in this Code saved from repeal, § 1-17(17); administration, ch. 2; finance, § 2-361 et seq.; businesses, ch. 18.

Sec. 110-113. Notices of assessment; petition for reassessment.
Sec. 110-114. Hearing procedure; administrative decision.
Sec. 110-115. Appeals to circuit court.
Sec. 110-116. Ten-year limitations on collection.
Secs. 110-117—110-140. Reserved.

Division 5. Tax Collection

Sec. 110-141. Methods of collection.
Sec. 110-142. Tax constitutes debt: lien created; enforcement of lien.
Sec. 110-143. Distraint.
Sec. 110-144. Injunction.
Sec. 110-145. Interest and penalties.
Sec. 110-146. Payment when person sell[s] out or quits business; liability of successor, liens.
Sec. 110-147. Settlement of contracts made with city.
Sec. 110-148. Final settlement with contractors; user personally liable.
Sec. 110-149. Limited effect of city collector's certificate.
Secs. 110-150—110-180. Reserved.

**Article III. Admissions Tax**

Sec. 110-181. Definitions.
Sec. 110-182. Applicability.
Sec. 110-183. Admission tax imposed.
Sec. 110-184. Payment of tax.
Sec. 110-185. Unpaid tax a lien; penalty.
Sec. 110-186. Enforcement of lien.
Sec. 110-187. Compliance with regulations; records.
Sec. 110-188. Investigation by city collector.
Sec. 110-189. Information to be confidential.
Sec. 110-190. City collector to enforce rules.
Sec. 110-191. Liability of city collector.
Sec. 110-192. Permit required.
Secs. 110-193—110-220. Reserved.

**Article IV. Hotel Occupancy Tax**

Division 1. Generally

Sec. 110-221. Definitions.
Sec. 110-222. Administrative procedures generally.
Sec. 110-223. Disposition of proceeds.
Sec. 110-224. Violations and penalties.
Sec. 110-225. Interest and penalties.
Secs. 110-226—110-250. Reserved.

Division 2. Tax Imposed; Rate; Exemptions

Sec. 110-251. Imposition.
Sec. 110-252. Rate.
Sec. 110-253. Exemptions for government agencies or employees.
Secs. 110-254—110-270. Reserved.

Division 3. Payment and Collection

Sec. 110-271. Collection when sale on credit.
Sec. 110-272. Consumer to pay tax; collection and accounting by hotel operator; hotel or hotel operator not to make certain representations.

Sec. 110-273. Priority of tax in receivership, bankruptcy, similar proceedings.
Sec. 110-274. Liability of hotel operator for failure to collect or remit.
Sec. 110-275. Total amount collected to be remitted.
Sec. 110-276. Returns and remittances generally.
Sec. 110-277. Records.
Sec. 110-278. Liability of officers of associations or corporations.
Secs. 110-279—110-310. Reserved.

**Article V. Public Utilities Tax**

Sec. 110-311. Definitions.
Sec. 110-312. Imposed; amount; notice to utility of effective date.
Sec. 110-313. Exemptions.
Sec. 110-314. Collection; time of payment; effective date; proration.
Sec. 110-315. Maintenance and inspection of records.
Sec. 110-316. Nonliability of utility for erroneous collections; duty of city when purchaser claims tax not owed; refunds; rules and regulations.
Sec. 110-317. Additional remedies for collection of tax.

## ARTICLE I. IN GENERAL

### Sec. 110-1. Unlawful release of tax information; penalties.

It shall be unlawful for any officer or employee of the city to release to any person any tax information obtained by virtue of a reciprocal exchange of tax information agreement between the state and the city unless the person receiving the information is the authorized counsel of the state or the city and shall be using the information only for the purpose of administering business and occupation taxes or carrier income taxes, or the person who filed the return has authorized, in writing, its release, thereby waiving his right to secrecy. Unauthorized disclosure of tax information shall be a misdemeanor and upon conviction punishable by a fine of not more than $1,000.00 or imprisonment for not more than one year, or both, together with all cost of prosecution.
(Ord. No. 4883, 12-7-1992)

**State law reference—**Authorized penalty for ordinance violations, W. Va. Code §§ 8-11-1, 8-12-5(57), 8-34-1.

### Secs. 110-2—110-30. Reserved.

## ARTICLE II. BUSINESS AND OCCUPATION TAX*

### DIVISION 1. GENERALLY

### Sec. 110-31. Definitions.

For the purpose of this article, the following words and phrases shall have the meanings respectively ascribed to them by this section:

*Banking business; financial organization* means any bank, banking association, trust, company, industrial loan company, small loan company or licensee, building and loan association, savings and loan association, finance company, investment company, investment broker or dealer, as well as every person engaging or continuing within the city the business of making loans of money, credit, goods or things, in action, who because of such activity is required under the laws of the state to obtain a license from the commissioner of banking of the state, and any other similar business organization, at least ninety percent of the assets of which consists of intangible personal property and at least ninety percent of the gross receipts of which consists of dividends, interest and other charges derived from the use of money or credit.

---

***Editor's note—**Bill No. 6799, §§ 6-107—6-144, 6-144.1, adopted Jan. 22, 2002, repealed ch. 110, art. II, divs. 1—5, §§ 110-31—110-34, 110-51—110-63, 110-111—110-115, and 110-141—110-149, in its entirety and enacted new provisions to read as herein set out. Prior to amendment, art. II pertained to similar subject matter and derived from Code 1975, §§ 6-107—6-144, 6-144.1; and Ord. No. 4369, adopted Nov. 21, 1988.

**Charter reference—**For Charter provisions as to authority of city council to grant, refuse or revoke licenses for the carrying on of any business in the city for which the state exacts a license tax, see Char., § 7. As to jurisdiction of municipal judge, and jurisdiction of court of common pleas and Circuit Court of Kanawha County, and judges thereof in vacation, with respect to enforcing city licensing ordinance, see Char., § 7-a.

**Cross reference—**Businesses, ch. 18.

**State law references—**Authority of city to impose business and occupation tax on businesses and occupation taxed by the state, see W. Va. Code § 8-13-5, as modified by W. Va. Code § 11-13-25; authority to impose business and occupation tax on businesses and occupations taxed by the state, W. Va. Code §§ 8-13-5, 11-13-25; state business and occupation tax, W. Va. Code § 11-13-1 et seq.

*Business* means all activities engaged in or caused to be engaged in with the object of gain or economic benefit, either direct or indirect. "Business" shall not include a casual sale by a person who is not engaged in the business of selling the type of property involved in such casual sale. "Business" shall include the production of natural resources or manufactured products which are used or consumed by the producer or manufacturer and shall include the activities of a banking business or financial organization.

*Company; person* means the term "person" or the term "company", herein used interchangeably, includes any individual, firm, copartnership, joint venture, association, corporation, trust, estate or any other group or combination acting as a unit, and the plural as well as the singular number, unless the intention to give a more limited meaning is disclosed by the context.

*Contracting* means to include the furnishing of work, or both materials and work, in the fulfillment of a contract for the construction, alteration, repair, decoration or improvement of a new or existing building or structure, or any part thereof, or for the alteration, improvement or development of real property.

*Prime contractor* means a person engaged in the business of performing for others, contracts for the construction, repairing, decorating or improving of new or existing buildings or other structures under, upon or above real property either for the work or for a specific portion thereof. The terms "prime contractor" and "subcontractor" include, but are not limited to, persons performing labor and services in respect to the moving of earth or clearing of land, razing or moving existing buildings or structures even though such services may not be done in connection with a contract involving the constructing, repairing, or altering of a new or existing building or structure.

*Subcontractor* means a person engaged in the business of performing a like or similar service for persons other than consumers, either for the entire work or for a specific portion thereof.

*Buildings or structures* means and includes, but is not limited to, everything artificially built up or composed of parts joined together in some definite manner and attached to real property. It includes not only buildings in the general and ordinary sense, but also tanks, fences, conduits, culverts, railroad tracks, overhead and underground transmission systems, tunnels, monuments, retaining walls, bridges, trestles, parking lots and pavement for foot or vehicular traffic.

*Contracting, repairing, decorating or improving* means of a new part of an existing building or structure or any part thereof, in addition to its ordinary meaning includes, but is not limited to, the installing or attaching of any article of tangible personal property in or to real property, whether or not such personal property becomes a part of the realty by virtue of such installation.

*Speculative builder* means and includes one who constructs improvements upon real property owned by him for sale or rental.

*Fourth quarter [return]* will be construed to mean the annual return of business and occupation taxes where the context so requires in this section.

*Gross income* means the gross receipts of the taxpayer, other than a banking or financial business, received as compensation for personal services and the gross receipts of the taxpayer derived from trade, business, commerce or sales and the value proceeding or accruing from the tangible property (real or personal) or service, or both, and all receipts by reason of the investment of the capital of the business engaged in, including rentals, royalties, fees, reimbursed costs or expenses or other emoluments, however designated, and including all interest, carrying charges, fees or other like income, however denominated, derived by the taxpayer from repetitive carrying of accounts, in the regular course and conduct of his business, and extension of credit in connection with the sale of any tangible personal property or service, and without any deduction on account of the cost of property sold, the cost of materials used, labor costs, taxes, royalties paid in cash or in kind or otherwise, interest or discount paid or any other expense whatsoever. "Gross income" of a banking or financial business is specified in section 110-60.

*Gross proceeds of sales* means the value, whether in money or other property, actually proceeding from the sale of tangible property, without any deduction on account of the cost of property sold or expenses of any kind.

*Gross income and gross proceeds of sales* means shall not be construed to include (1) cash discounts allowed and taken on sales; (2) the proceeds of sale of goods, wares or merchandise returned by customers when the sale price is refunded either in cash or by credit; (3) the amount allowed as "trade-in value" for any article accepted as part payment for any article sold; (4) excise taxes imposed by the state; or (5) money or other property received or held by a professional person for the sole use and benefit of a client or another person or money received by the taxpayer on behalf of a bank or other financial institution for repayment of a debt of another; (6) excise taxes imposed by the federal government upon the consumer, not manufacturer, and which are held in trust by the vendor as agent for the federal government.

*Sale; sales, selling* means any transfer of the ownership of or title to property, whether for money or in exchange for other property.

*Selling at wholesale; wholesale sales* means (1) sales of any tangible personal property for the purpose of resale in the form of tangible personal property; (2) sales of machinery, supplies or materials which are to be directly consumed or used by the purchaser in the conduct of any business or activity which is subject to the tax imposed by this article; (3) sales of any tangible personal property to the United State of America, its agencies and instrumentalities, or to the state of West Virginia, its institutions or its political subdivisions.

*Selling at retail* means all sales other than wholesale sales are deemed to be retail sales. Sales to non-profit corporations are to be reported as retail sales.

*Missionary representative* means a full/part time employee, agent, representative, or independent contractor who performs work in the municipality as a field sales promotional representative, public relations orientated representative, goodwill emissary, merchandising expert or some combination thereof. The function of these missionary representatives can be generally described as assisting retailers/wholesalers in the display and merchandising of taxpayer's products in stores or insuring that the retailers/wholesalers have an ample stock of fresh products for sale.

*Service business or calling* means all activities engaged in by a person for other persons for a consideration, which involve the rendering of a service as distinguished from the sale of tangible property, but not including the services rendered by an employee to his employer. The term shall include, but not be limited to:

(1) Persons engaged in manufacturing, compounding or preparing for sale, profit or commercial use articles, substances or commodities which are owned by another or others;

(2) Persons engaged as independent contractors in producing natural resource products which are owned by another or others, as personal property, immediately after the same are severed, extracted, reduced to possession and produced; and

(3) The repetitive carrying of accounts, in the regular course and conduct of business, and extension of credit in connection with the sale of any tangible personal property or service, except as to persons taxed pursuant to the provisions of section 110-60.

*Taxpayer* means any person liable for any tax hereunder.

*Tax year; taxable year* means either the calendar year, or the taxpayer's fiscal year when permission is obtained from the city collector to use the same as the tax period in lieu of the calendar year.

(Bill No. 6799, § 6-107, 1-22-2002)

**Cross reference—**Definitions generally, § 1-2

**State law reference—**For similar definitions in the state business and occupation tax law, see W. Va. Code § 11-13-1. See also 110 C.S.R. 26 § 1a.25, and § 2e. As to definitions applicable throughout this Code, see § 1-2 of this Code.

### Sec. 110-32. Administration and enforcement.

(a) The administration of this article is vested in, and shall be exercised by the city collector, who shall prescribe forms and reasonable rules of procedure in conformity with this article for making of return and for the ascertainment, assessment and collection of the taxes imposed hereunder; and the enforcement of any of the provisions of this article in any of the courts of the state shall be under the exclusive jurisdiction of the city collector, who shall require the assistance and act through the city solicitor or the assistant city solicitor.

(b) Notwithstanding the foregoing, upon recommendation and request by the city collector, council may authorize any legal contractual arrangement it may deem appropriate with any individual, partnership, corporation, or other entity to assist the city collector in the assessment of any of the provisions of this article in any of the courts of this state the amount and method of compensation for said services to be determined by council.

(Bill No. 6799, § 6-144.1, 1-22-2002)

**Cross reference—**Administration, ch. 2.

### Sec. 110-33. Refunds and credits.

(a) Any taxpayer claiming to have overpaid any tax, interest or penalty imposed by this article shall file his claim with the city collector, with a copy to the city attorney, within three years after the due date of the return in respect of which the tax was imposed and not thereafter. Notwithstanding such period of limitation, the taxpayer may file a claim for refund within 90 days after a final determination by the state tax department of an overpayment in the taxpayers state business and occupation tax liability.

(b) If, on such petition and the proofs filed in support thereof, the city collector shall be of the opinion that the tax, interest or penalty, or any part thereof, was overpaid, the city collector shall refund the same to the taxpayer. If the city collector shall be in doubt as to whether or not there exists an overpayment, the city collector shall consult with the finance director and city attorney to make a determination. If the city collector is of the opinion that there exists no overpayment of tax, interest or penalty, or any part thereof, the city collector shall notify the taxpayer.

(c) Taxpayer's failure to abide by express procedures contained in this section precludes taxpayer's claim for refund or credit.

(Bill No. 6799, § 6-137, 1-22-2002; Bill No. 7834, 10-7-2019)

**State law reference—**For state law as to refunds, see W. Va. Code § 11-10-14.

### Sec. 110-34. Offenses.

It shall be unlawful for any person to refuse to make the return required to be made in section 110-82, or to make any false or fraudulent return or false statement in any return with the intent to defraud the city, or to evade payment of the tax, or any part thereof, imposed by this article, or for the president, vice president, secretary, or treasurer of any corporation to make or permit to be made for any corporation or association any false return, or any false statement in any return required in this article, with the intent to evade the payment of any tax hereunder.

(Bill No. 6799, § 6-144, 1-22-2002)

**State law reference—**For offenses against state business and occupation tax law see W. Va. Code § 11-9-4.

### Sec. 110-35. Revocation of licenses and permits.

(a) The city collector has the authority to revoke any and all licenses and permits issued by the city in the event a licensee/permittee fails to file any city tax return or fails to pay any delinquent taxes, fees or any interest or penalty thereon due and owing to the city. The city collector has the authority to deny and prevent any and all licenses and permit privileges to those persons who are delinquent in paying taxes, fees or any interest or penalty thereon due and owing the city.

(b) In the event of revocation, the city collector will provide written notice to the licensee/permittee at least five days prior to the contemplated revocation and such notice shall be served by certified mail. The notice shall indicate the time and the place of the revocation review meeting, the general grounds of said contemplated revocation, and shall advise the licensee/permittee of his/her rights to appear at said hearing in person and represented by legal counsel, and to be heard orally upon the merits of his/her defense. The city collector may request legal advice from the city attorney's office, and adopt such procedures for its decorum and the dispatch of business at such hearings as he/she may regard advisable. The revocation decision of the city collector will be final; provided, that those licensees/permittees who are subject to administrative or judicial appeals, pursuant to sections 110-113 through 110-115, may utilize these procedures in accordance with the Code, but will not be grounds to delay the revocation process.

(c) Each license or permit that has been revoked pursuant to this section may be re-issued upon payment of all delinquent B&O taxes, fees or any interest or penalty thereon due and owing to the city.
(Bill No. 6799, § 6-136.1, 1-22-2002)

**Sec. 110-36. Records.**

A person liable for B&O taxes shall keep and may be asked to produce all relevant records for ten years.
(Bill No. 6799, § 6-144.3, 1-22-2002)

**Secs. 110-37—110-50. Reserved.**

## DIVISION 2. TAX IMPOSED; EXEMPTIONS AND CREDITS

**Sec. 110-51. Imposition of privilege tax.**

(a) There are hereby levied and imposed and shall be collected annual privilege taxes, against the persons, on account of the business and other activities and in the amounts to be determined by the application of rates against values or gross income or gross proceeds as set forth in sections 110-52 to 110-60, inclusive.

(b) If any person liable for any tax under section 110-52 or 110-53 shall ship or transport his products, or any part thereof, out of the city without making sale of such products, the value of the products in the condition or form in which they exist immediately before transportation out of the city shall be the basis for the assessment of the tax imposed in those sections.

(c) Gross income included in the measure of the tax under section 110-52 or 110-53, except in the production of natural gas, shall neither be added nor deducted in computing the tax levied under the other sections of this article.

(d) In determining value, however, as regards sales from one to another of affiliated companies or persons, or under other circumstances where the relation between the buyer and the seller is such that the gross proceeds from the sale are not indicative of the true value of the subject matter of the sale, the value upon which such privilege tax shall be levied shall correspond as nearly as possible to the gross proceeds from the sale of similar products of like quality or character where no common interest exists between the buyer and the seller but where the circumstances or conditions are otherwise similar.

(e) Sufficiency of contacts. The municipal business and occupation tax is imposed on each person engaged in privileges taxable under this article if such person is engaged in purposive revenue generating activities within the municipal limits of the city and such person has sufficient contacts to sustain the city's taxing jurisdiction. By way of example (but not limitation), if a person's activities within the city contributes to the establishment and maintenance of a market, such contacts are considered to be sufficient to sustain the city's taxing jurisdiction assuming federal constitutional nexus standards are satisfied.
(Bill No. 6799, § 6-108, 1-22-2002)

**State law reference—**For corresponding provisions of state business and occupation tax law, see W. Va. Code § 11-13-2.

### Sec. 110-52. Producers of natural resource products.

(a) Upon every person engaging or continuing within the city in the business of severing, extracting, mining, quarrying, reducing to possession and/or producing for sale, profit or commercial use any natural resource products, the amount of such tax shall be equal of the value of the articles produced as shown by the gross proceeds derived from the sale thereof by the producer, except as hereinafter provided, multiplied by the respective rates as follows: coal, one percent; limestone or sandstone quarried or mined, one percent; oil, one percent; natural gas in excess of the value of $5,000.00, one percent; blast furnace slag, one percent; sand gravel or other mineral products, not quarried or mined, one percent; timber one percent, and other natural resource products, one percent.

(b) The measure of this tax is the value of the entire production in the city, regardless of the place of sale or the fact that delivery may be made to points outside the city.

(c) A person exercising privileges taxable under this section and using or consuming the same in his business or transferring or delivering the same as any royalty paid, in kind, or the like, shall be deemed to be engaged in the business of producing natural resources and shall be required to make returns on account of the production of the business, showing the gross proceeds or equivalent in accordance with uniform and equitable rules for determining the value upon which privilege taxes shall be levied, corresponding as nearly as possible to the gross proceeds from the sale of similar products of like quality or character by other taxpayers.

(d) Persons who produce natural resource products outside the city and who make sale of the same within the city shall not pay the tax imposed by this section but shall pay the tax imposed by section 110-54 for the privilege of selling such products within the city.

(e) A person exercising any privilege taxable under this section and engaging in the business of selling his natural resource products at retail in the city shall be required to make returns of the gross proceeds of such retail sales and pay the tax imposed in section 110-54 for the privilege of engaging in the business of selling such natural resource products at retail in the city. In addition, any person exercising any privilege taxable under this section and engaging in the business of selling his natural resource products to producers of natural resources, manufacturers, wholesalers, jobbers, retailers or commercial consumers for use or consumption in the purchaser's business shall be required to make returns of the gross proceeds of such wholesale sales and pay the tax imposed in section 110-54. (Bill No. 6799, § 6-109, 1-22-2002)

**State law reference—**For corresponding provisions of state business and occupation tax law, see former W. Va. Code § 11-13-2a, made inoperative as of July 1, 1987, by W. Va. Code § 11-13-28.

### Sec. 110-53. Manufacturing, compounding or preparing products.

(a) Upon every person engaging or continuing within the city in the business of manufacturing, compounding or preparing for sale, profit or commercial use, either directly or through the activity of others, in whole or part, any article or articles, substance or substances, commodity or commodities, or newspaper publishing (including all gross income or proceeds of sale from circulation and advertising), except electric power produced by public utilities or others, the amount of the tax shall be equal to the value of the article, substance, commodity or newspaper manufactured, compounded or prepared for sale, as shown by the gross proceeds derived from the sale thereof by the manufacturer or person compounding or preparing the same, except as otherwise provided, multiplied by a rate of thirty one-hundredths of one percent; provided, that effective January 1, 2014, this rate of tax shall be reduced to zero on the privilege of manufacturing, compounding or preparing exercised on and after said January 1, 2014.

(b) A person exercising any privilege taxable under this section, and engaging in the business of selling his product at wholesale in the city, shall be required to make returns of the gross proceeds of such wholesale sales at the rate set forth in this section 110-53 for the privilege of engaging in the business of selling such

manufactured goods in the city, regardless of the place of sale or the fact that deliveries may be made to points outside the city, and such reporting of wholesale sales of manufactured goods must be reported under this section 110-53, exclusively.

(c) A person exercising any privilege taxable under this section and engaging in the business of selling his product at retail in the city shall be required to make returns of the gross proceeds of such retail sales and pay the tax imposed in section 110-54 for the privilege of engaging in the business of selling such products at retail in the city. All retail sales of manufactured goods must be reported under section 110-54, exclusively.

(d) The dressing and processing of food intended for human consumption by a person, or the cooking and serving of food by a restaurant which food is to be sold in the city by such person, shall not be considered manufacturing or compounding or preparing for sale, but the sale of these products shall be reported under section 110-54 either as wholesale or retail sale, as the case may be.

(e) Persons who manufacture, compound or prepare products outside the city and who make sale of the same within the city shall not pay the tax imposed by this section but shall pay tax imposed by section 110-54 for the privilege of selling such product within the city. If any person shall ship or transport his products or any part thereof out of the state without making sale of such products, the value of the products in the condition or form in which they exist immediately before transportation out of the state shall be the basis for the assessment of the tax imposed. The city collector shall prescribe equitable and uniform rules of ascertaining such value. To determine whether freight charges are deductible, see section 110-26-2b.6 of the Code of State Regulations.

(f) The reduction of this rate of tax does not equate to an elimination of the privilege taxable under this section dealing with the manufacturing, compounding or preparing within the city.
(Bill No. 6799, § 6-110, 1-22-2002; Bill No. 7578, § 1, 5-20-2013; Bill No. 7902, 4-19-2021)

**State law reference—**For corresponding provisions of state business and occupation tax law, see former W. Va. Code § 11-13-2b, made inoperative as of July 1, 1987, by W. Va. Code § 11-13-28.

## Sec. 110-54. Business of selling tangible property; certain sales exempt.

(a) Upon every person engaging or continuing within the city in the business of selling any tangible property whatsoever, real or personal, including the sale of food in hotels, restaurants, cafeterias, confectioneries and other public eating houses and wholesale sales from a rolling stockpile, except sales of any person engaging or continuing in the business of horticulture, agriculture or grazing, or selling stocks, bonds, or other evidence of indebtedness, there is hereby levied, and shall be collected, a tax equal to five-tenths of one percent of the gross income of the business; except, therein the case of selling at wholesale, the tax shall be equal to three-twentieths of one percent of the gross income of the business.

(b) Gross income or gross proceeds of sales derived from sales within West Virginia, which is not taxed or taxable by any other municipality are included in the measure of city business and occupation tax if the sales are either directed from a city location or the taxpayer's principal West Virginia office is located in the city. Without limiting the generality of the foregoing, when the taxpayer has only one office location and this office is located within the municipal limits of the city and its activities elsewhere in West Virginia are neither taxed nor taxable by another municipality, the gross income or gross proceeds from those activities are taxable by the city. "Directed from a city location" shall encompass the location of the customer or destination of the tangible property as a result of the sale.

(c) All sales of real estate (such as by a speculative builder) are sales at retail and must be reported accordingly. On sales of realty, the status of the purchaser or the intention or use made of the property by the purchaser is of no consequence to the vendor's tax status. To illustrate; where a speculative builder constructs apartment buildings which he later sells to a tax exempt entity, such sales must be reported at retail on the tax return of the speculative builder.

(d) Casual sales of real estate are not taxable to the vendor.

(e) Sales of tangible personal property made by vendors to persons engaging in exempt business activities (e.g., non profit hospitals and the activities of agriculture, horticulture, grazing) are not exempt sales and the gross income derived from such sales must be reported by the vendor under the retail classification. This rule results from the fact that the purchaser (non-profit hospital, farmer, etc.) is not engaged in a business subject to the municipal business and occupation tax.

(f) All sales made through vending machines are sales at retail. The term "vending machines" means and includes only those machines which, through the insertion of a coin of a specified amount, will return to the vendee a predetermined specific article of merchandise. It includes, but is not limited to, machines which vend cigarette, toilet articles, sandwiches, beverages, candies, confections, et cetera.

(g) Persons domiciled outside the city limits of the city who solicit sales within the city and sell tangible personal property of the city are doing business in the city, irrespective of the domicile of such persons irrespective of whether or not such persons maintain a permanent place of business in the city and irrespective of how a sales order is transmitted or processed. If an order is placed in connection with solicitation by a representative (regardless whether there is an employment or agency relationship or whether acting as an independent contractor) who solicits orders within the city, and the tangible personal property is to be delivered in the city, then the gross proceeds of such sales are included in the measure of the city's business and occupation tax.

(Bill No. 6799, § 6-111, 1-22-2002; Bill No. 7902, 4-19-2021)

**State law reference—**For corresponding provisions of state business and occupation tax law, see former W. Va. Code § 11-13-2c, made inoperative as of July 1, 1987, by W. Va. Code § 11-13-28, See also 110 C. S. R. 26 § 2C.4.3 - 4.6

## Sec. 110-55. Public service or utility business.

Upon any person engaging or continuing within the city in any public service or utility business, except railroad, railroad car, express, pipeline, telephone and telegraph companies, water carriers by steamboat or steamship and motor carriers, there are levied, and shall be collected, taxes on account of the business engaged in equal to the gross income of the business multiplied by the respective rates as follows: Water companies, four percent; electric light and power companies, four percent on sales and demand charges for domestic and commercial lighting and three percent on sales and demand charges for all other purposes; natural gas companies, three percent of the gross income, such gross income for this purpose to be determined by deducting from gross income from all sales of gas to consumers the amount of the tax paid by the taxpayer under section 110-52 upon the production of the same gas; and upon all other public service or utility business, $2^{35}/_{100}$ percent. The measure of this tax shall not include gross income derived from commerce between the state and other states of the United States. The measure of the tax under this section shall include only gross income received from the supplying of public service. The gross income of the taxpayer from any other activity shall be included in the measure of the tax imposed upon such other activity by the appropriate section of this article.

(Bill No. 6799, § 6-112, 1-22-2002)

**State law reference—**For corresponding provisions of state business and occupational tax law, see W. Va. Code § 11-13-2d.

## Sec. 110-56. Business of contracting.

(a) Upon every person engaging or continuing within the city in the business of contracting, the tax shall be equal to two percent of the gross income of the business. A person performing any contracting activity shall report his/her gross income therefrom under the contracting classification of the municipal business and occupation tax return and shall receive no deduction from gross income on the account of any expenses incurred. All income derived from said activity shall be reported under the contracting classification, and the form of contract entered into by the parties shall not be determinative of taxable classification.

(b) *Form of contract.* Persons engaged in the contracting business shall report the entire gross income under the contracting classification, regardless of whether the contract is a turnkey contract, lump sum contract, per unit contract, cost plus fixed fee contract, or other contract having a similar basis. Gross income received from a contracting activity must be reported under the contracting classification and the manner of performance, basis of determining cost, fee or income or form of contract shall not alter the definition of contractor or of contracting and shall not change the taxability of such income from the contracting classification to another classification. A contracting activity remains a contracting activity regardless of what the parties may name it and regardless of the manner in which the parties may make payment and perform work.

(c) *Costs.* The measure of the tax under the contracting classification is gross income and includes all items of cost where the contractor has incurred liability. The cost of materials and labor can only be exempted from the measure of the tax in those cases where the contractor is not liable to vendors or workmen for payment. In those cases where the contractor contends that he/she has not incurred a municipal business and occupation tax liability because he/she acted solely as a agent for the owner, the burden of proving alleged principal-agency relationship shall be upon the contractor.

(d) *Separate contracts for labor and materials.* In cases where the contractor enters into a separate contract for the furnishing of materials by the contractor and a separate contract for erection of such materials by the contractor, the gross income from both contracts is taxable under the contracting classification, unless it can be provided by the contractor that passage of title of the materials was not dependent upon the erection of the materials by the contractor and that the sale of such materials is, in fact, a separate and distinct transaction, taxable under the municipal business and occupation tax law, as a retail or wholesale sale, as the case may be. The contract to furnish materials shall not be considered a separate and distinct transaction from the contract to erect the same, unless it is established by the contractor to be a complete arm's length transaction with no dependency existing between the contract for materials and the contract for erection. The burden of proving any alleged arm's length transaction shall be upon the contractor.

(e) *Separate purchase orders.* A separate purchase order for the furnishing of work or labor and a separate purchase order for the furnishing of materials which constitutes the contract(s) between the parties shall be treated in the same manner as set forth in the paragraph above.

(f) *Prime and subcontractors.* A prime contractor, one who furnishes work or both materials and work under a written or oral contract, for the construction, alteration, repair, decoration or improvement of a new or existing building or structure or any part thereof, or for the alteration, improvement or development of realty, must report his/her gross income under the contracting classification without any deduction on account of any expenses incurred. If the prime contractor executes a contract with another for a portion of the job or project, the prime contractor receives no deduction from gross income on account of any payment made to the subcontractor. The subcontractor will also be taxed on his/her gross income under the contracting classification.

(g) *Contract entered into with government.* Gross income received by a person for contracting activities performed for the State of West Virginia, the federal government or any of their instrumentalities, agencies, boards, commissions or political subdivisions, etc., or performed for nonprofit organizations is taxable and shall be reported under the contracting classification. The fact that the owner is a governmental unit or a non profit organization does not relieve the contractor, subcontractor, supplier or any other person from liability for municipal business and occupation tax on the full amount of gross income. (Bill No. 6799, § 6-113, 1-22-2002)

**State law reference—**For corresponding provisions of state business and occupation tax law, see former W. Va. Code § 11-13-2c, made inoperative as of July 1, 1987, by W. Va. Code § 11-13-28, See also 110 C. S. R. 26 § 2C.4.3 - 4.6

### Sec. 110-57. Business of operating amusements.

Upon every person engaging or continuing within the city in the business of operating a theater, opera house, moving picture show, vaudeville, amusement park, carnival, circus, dance hall, skating rink, racetrack, radio broadcasting station or any other place at which amusements are offered to the public, the tax shall be equal to 5/10 of one percent of the gross income of the business.

(Bill No. 6799, § 6-114, 1-22-2002)

**Cross reference—**Businesses, ch. 18.

**State law reference—**For corresponding provisions of state business and occupation tax law, see Former W. Va. Code § 11-13-2g, made inoperative as of July 1, 1987, by W. Va. Code § 11-13-28.

### Sec. 110-58. Service business or calling not otherwise specifically taxed.

(a) Upon every person engaging or continuing within the city in any service business or calling not otherwise specifically taxed under this article, there is hereby levied, and shall be collected, a tax equal to one percent of the gross income of any such business.

(b) Gross income or gross proceeds of sales derived from services within West Virginia which is not taxed or taxable by any other municipality are included in the measure of the city business and occupation tax if the services are either directed from a Charleston location or the taxpayer's principal West Virginia office is located in the city. Without limiting the generality of the foregoing, when a taxpayer has only one (1) office location and this office is located within the municipal limits of the city and its activities elsewhere in West Virginia are neither taxed nor taxable by another municipality, the gross income or gross proceeds from those activities are taxable by the city.

(Bill No. 6799, § 6-115, 1-22-2002)

**State law reference—**For corresponding provisions of state business and occupation tax law, see former W. Va. Code § 11-13-2h, made inoperative as of July 1, 1987, by W. Va. Code § 11-13-28.

### Sec. 110-59. Business of furnishing property for hire.

(a) Upon every person engaging or continuing within the city in the business of furnishing any real or tangible personal property which has a tax situs in the city, or any interest therein, for hire, loan, lease or otherwise, whether the return is in the form of rentals, royalties, fees or otherwise, the tax shall be one percent of the gross income of any such activity.

(b) The term "tangible personal property", as used herein, shall not include money or public securities.

(Bill No. 6799, § 6-116, 1-22-2002)

**State law reference—**For corresponding provisions of state business and occupation tax law, see former W. Va. Code § 11-13-2h, made inoperative as of July 1, 1987, by W. Va. Code § 11-13-28.

### Sec. 110-60. Banking and other financial businesses; findings of city council.

(a) Upon every person engaging or continuing within the city in the business of banking or financial business, from and after July 1, 1971, the tax shall be equal to one percent of the gross income received from interest, premiums, discounts, dividends, service fees or charges, commissions, fines, rents from real or tangible personal property, however denominated, royalties, charges for bookkeeping or data processing, receipts from check sales, charges or fees, and receipts from the sale of tangible personal property; provided, that gross income shall not include (a) interest received on the obligations of the United States, its agencies and instrumentalities; (b) interest received on the obligations of this or any other state, territory or possession of the United States, or any political subdivision of any of the foregoing or of the District of Columbia; or (c) interest received on investments or loans primarily secured by first mortgages or deeds of trust on residential property occupied by nontransients; provided further, that all interest derived on activities exempt under (c) above, shall be reported, as to amounts, on the return of a person taxable under the provision of this section.

(b) Gross income of a banking or financial business, from whatever source derived, shall be taxable under this section only, and persons taxed pursuant to the provisions of this section shall not be taxed under sections 110-52 to 110-55, inclusive.

(c) The city council hereby finds and declares that it is the intent of the council to subject national banking associations and other financial organizations to the tax imposed by this article, in accordance with the authorization contained in Section 5219 of the Revised Statutes of the United States as amended by Public Law 91-156, enacted December 24, 1969.

(1) *Standards for reporting banking business income.* Each person engaging in banking business in the city that also maintains a banking location outside the city shall make a good faith allocation of its gross income in accordance with this article, subject to the approval of the city collector. Each person subject to this regulation shall report gross income for the city municipal business and occupation tax purposes to reflect all gross income generated from loans originated and services provided to customers at or through each banking location within the municipal limits of the city and each such person's report shall fully reflect gross income earned from investments (other than loans) funded by deposits and repurchase agreements regularly maintained at or through each banking location within the municipal limits of the city. Other gross income shall be allocated in a reasonable manner that attributes all income to banking locations. No allocation methodology used to make such a report shall allocate or apportion gross income to locations other than a banking location.

(2) Without limiting the generality of the foregoing:

a. The phrase "banking location" (and all derivations thereof) means a physical facility maintained by a person engaged in banking business at which customers normally personally visit to conduct typical banking transactions, such as opening accounts, originating loans, making deposits, etc.

b. Gross income from loans is reportable (without adjustment, apportionment or allocation) to the banking location at which the loan originates. The transfer of loan files to a location outside of a municipality for processing or collection does not alter the taxability of the interest from such loans with respect to the banking location at which such loans originate.

c. Gross income from investments (other than loans) acquired or funded from deposits or repurchase agreements is reportable to banking location(s) in which deposits giving rise to the income are maintained, regardless of whether the investments function is managed or directed at a separate location. Deposits and repurchase agreements are considered maintained only at banking locations in accordance with reasonable procedures that reflect typical customer deposit activities and repurchase agreement relationships maintained at banking locations of the taxpayer subject to the approval of the city collector. Gross income from investments (other than loans) acquired or funded from sources other than deposits or repurchase agreements shall be reported to banking location(s) in a reasonable manner that fairly allocates all such gross income to banking locations.

d. Gross income from fees is reportable to the banking location at which the activity giving rise to the fee is primarily undertaken, using a reasonable method that fully reports fee income to one or more banking locations.

(3) The city collector of the city shall have authority to review and approve reasonable allocation methods in accordance with this ordinance.

(4) Each person subject to this regulation shall establish and maintain sufficient records for review by the city collector and his or her designee as long as the contents of such records may be material in the administration of the municipal business and occupation tax of the city along with such additional information as may otherwise be required. Each person subject to this regulation shall file reports on such forms designed from time to time by the city collector and shall follow all instructions in connection therewith.

(Bill No. 6799, § 6-117, 1-22-2002)

**State law reference—**For corresponding provisions of state business and occupation tax law, see former W. Va. Code § 11-13-2k, made inoperative as of July 1, 1987, by W. Va. Code § 11-13-28.

### Sec. 110-61. Persons taxable on multiple activities—Credits.

(a) A person taxable under section 110-54 with respect to selling products at wholesale in the city shall be allowed a non-refundable credit against those taxes for any:

(1) Extracting taxes paid by such person with respect to the extracting of products so sold at wholesale in this city or ingredients of products so sold at wholesale in this city.

(b) For purposes of this section:

(1) *Extracting tax* means a gross receipts tax imposed by a municipality or other local government unit on the act or privilege of engaging in the business as a producer of natural resource products and includes (i) the tax imposed in section 110-52 and (ii) similar gross receipts taxes paid to other municipalities or other local government units within the United States (other than state governments) within the United States.

(2) *Gross receipts tax* means a tax which (i) is imposed on or measured by the gross volume of business in terms of gross receipts or in other terms and in the determination of which deductions allowed would not constitute the tax an income tax or value added tax and (ii) which is not, pursuant to law or custom, separately stated from the sales price.

(Bill No. 6799, § 6-118, 1-22-2002; Bill No. 7902, 4-19-2021)

### Sec. 110-62. Tax rate for HMO.

The rate of municipal business and occupation or privilege tax on the activity of a health maintenance organization holding a certificate of authority under the provisions of W. Va. Code ch. 33, art. 25a, [§ 33-25A-1 et seq.], shall not exceed one half of one percent to be applied solely to that portion of gross income received from the medicaid program pursuant to Title XIX of the Social Security Act, the state employee programs administered by the public employee insurance agency pursuant to article sixteen [§ 5-16-1 et seq.], chapter five of the West Virginia Code, and other federal programs, for health care items or services provided directly or indirectly by the health maintenance organization that is expended for administrative expenses; and shall not exceed one-half of one percent to be applied to the gross income received from enrollees, or from employers on behalf of enrollees, from sources other than medicaid, state employee programs administered by the public employees insurance agency and other federal programs for health care items or services provided directly or indirectly by the health maintenance organization: provided, that this tax rate limitation shall not extend to that part of the gross income of health maintenance organizations which is received from the use of real property other than property in which any such company maintains it office or offices in the municipal limits of the city, whether such income is in the form of rentals or royalties.

(Bill No. 6799, § 6-119, 1-22-2002)

### Sec. 110-63. Exemptions.

(a) The provisions of this article shall not apply to:

(1) Insurance companies which pay the state a tax upon premiums; provided, that such exemption shall not extend to that part of gross income of insurance companies which is received for the use

of real property, other than property in which any such company maintains its office or offices, in the city, whether such income is in the form of rentals or royalties;

(2) Nonprofit cemetery companies organized and operated for the exclusive benefit of their members;

(3) Fraternal societies, organizations and associations organized and operated for the exclusive benefit of their members and not for profit; provided, that this exemption shall not extend to that part of gross income arising from the sale of alcoholic liquor, food and related services of such fraternal societies, organizations and associations which are licensed as private clubs under the provisions of W. Va. Code ch. 60, art. 7;

(4) Corporations, associations and societies organized and operated exclusively for religious or charitable purposes; provided that: the city may impose its business and occupation tax on any activity of a corporation, association or society organized and operated exclusively for religious or charitable purposes only to the extent that the income generated by the activity is subject to taxation under the provisions of section 511 of the Internal Revenue Code of 1986, as amended;

(5) Production credit associations, organized under the provisions of the federal Farm Credit Act of 1933; provided, that the exemptions of this section shall not apply to corporations or cooperative associations organized under the provisions of W. Va. Code ch. 19, art. 4;

(6) Any credit union organized under the provisions of chapter 31 or any other chapter of the Code of West Virginia; provided, that the exemptions of this section shall not apply to corporations or cooperative associations organized under the provisions of W. Va. Code ch. 19, art. 4;

(7) Gross income derived from advertising service rendered in the business of radio and television broadcasting;

(8) The gross income or gross proceeds of sale of a gasification or liquefaction of coal project in the demonstration, pilot or research states; provided, that prior to the commencement of operation of any such project, the tax commissioner of the state shall have first certified the project as eligible for such exemption; provided, further, that such exemption shall expire seven years from the date the project first receives gross income or gross proceeds from sales; and

(9) The first $5,000.00 of gross income or gross proceeds in each calendar year derived from sales or services by a vendor, as defined in section 18-1031 of this Code, shall be exempt from the tax imposed by this article. The vendor shall file a business and occupation tax return for such gross income or gross proceeds even if such revenue is exempt.

(b) Effective July 1, 2025:

(1) A person engaging in business within the City shall not be subject to the municipal business and occupation or privilege tax imposed by this article for any tax year in which the taxpayer's gross income or gross proceeds is less than $2,500.00. This exemption shall apply on a prospective basis only and shall not affect liability for any tax periods ending prior to July 1, 2025. The person shall file a business and occupation tax return for such gross income or gross proceeds even if such revenue is exempt; and

(2) The municipal business and occupation or privilege tax imposed by this article shall not apply to the sale of new automobiles that have never been registered in the name of an individual. For the purposes of this subsection, an automobile is a self-propelled vehicle used on the roads and highways by the use of motor vehicle fuel or propelled by one or more electric motors using energy stored

in batteries or a combination thereof. An automobile shall include a light-duty truck with an enclosed cabin and an open loading area at the rear and a sport utility vehicle. An automobile does not include a motorcycle. The full exemption shall apply on a prospective basis. For any tax periods ending prior to July 1, 2025, a partial exemption shall apply as set forth in W.Va. Code § 8-13-5. The person shall file a business and occupation tax return for such gross income or gross proceeds even if such revenue is exempt.

(c) An organization is "charitable" for purposes of subdivision (4) of subsection (a) of this section if it satisfies both of the following criteria: (1) it is exempt from Federal Tax, under 26 U.S.C. § 501(c)(3), and (2) its purposes include relief of poverty, advancement of education, advancement of religion, promotion of health, governmental or municipal purposes, or other purposes that are beneficial to the community.

(Bill No. 6799, § 6-120, 1-22-2002, Bill. No. 7225, 9-5-2006; Bill No. 7887, 4-19-2021; Bill No. 8028, 2-20-2024; Bill No. 8058, 10-6-2025)

**State law reference—**For corresponding provisions of state business and occupation tax law, see W. Va. Code § 11-13-3 and Hardesty v. Aracoma, 129 S. E. 2d 921(1963). Town of Burnsville v. Kwik-Pick, Inc., 408 S. E. 2d 646 (W. Va. 1991).

**Secs. 110-64—110-80. Reserved.**

## DIVISION 3. PAYMENTS, RETURNS AND RECORDS

### Sec. 110-81. Tax cumulative.

(a) The tax imposed by this article shall be in addition to all other licenses and taxes levied by law as a condition precedent to engaging in any business, trade, calling or activity. A person exercising a privilege taxable under this article, subject to the payment of all licenses and charges which are a condition precedent to exercising the privilege tax, may exercise the privilege for the current tax year upon the condition that they shall pay the tax accruing under this article.

(b) *Computation of tax.*

(1) The taxes levied hereunder shall be due and payable in quarterly installments on or before the expiration of one month from the end of the quarter in which they accrue, except as otherwise provided in this subsection. The taxpayer shall, within one month from the expiration of each quarter, make a return reporting the tax for which he/she is liable for such quarter; sign it and mail it, together with any remittance due, in the form required by section 110-82 of the amount of the tax to the office of the city collector. In reporting and remitting the amount of the tax due for each quarter, the taxpayer may deduct one-fourth of the total exemption allowed for the year. When the total tax for which any person is liable under this article does not exceed the sum of $2,500.00 in any year, the taxpayer may pay the tax quarterly as aforesaid or, with the consent in writing of the city collector in the manner prescribed by regulations promulgated pursuant hereto, on an annual basis at the end of the month next following the close of the tax year.

(2) The city collector, if they deem it necessary, based upon past experience with a taxpayer, based on the past practices of a taxpayer, based on the financial condition of the taxpayer, or based on the size of the contract, in order to ensure payment of the taxes levied hereunder, may require return and payment under this section for other than quarterly periods. Furthermore, if the city collector deems it necessary to ensure payment of the business and occupation tax, they may require a deposit to be paid by the taxpayer prior to when the taxes accrue and are otherwise payable. The amount of the deposit shall be determined and/or based upon the taxpayer's projected gross income or gross proceeds of sale for the

applicable tax period. This deposit shall be paid to the office of the city collector, at a date and time, and in a manner determined by the city collector.

(3) Every contractor whose principal business location is outside of the city, shall register with the city collector prior to engaging in the performance of a contract in this city, and the city collector, if they deem it necessary, based on the past experience with a taxpayer, based on the past practices of a taxpayer, based on the financial condition of the taxpayer, or based on the size of the contract, in order to ensure payment of the taxes levied hereunder, may also require the following:

a. At the time of registration, each contractor shall deposit with the city collector six percent of the amount the contractor is to receive for the performance of the contact, which sum shall be held within a contractor's use tax fund pending the completion of the contract.

b. In lieu of the six percent deposit, each contractor may request the approval of the city collector to provide, in the alternative, a corporate surety bond to be approved by the city collector as to form, sufficiency, value, amount, stability, and other features necessary to provide a guarantee of payment of the tax due the city.

(Bill No. 6799, § 6-121, 1-22-2002; Bill No. 7133, 3-7-2005; Bill No. 7997, 6-21-2023)

### Sec. 110-82. Return and remittance; tax year.

(a) On or before 31 days after the end of the tax year, each person liable for the payment of a tax under section 110-51 shall make a fourth quarter return, showing the gross proceeds of sale or gross income of business, trade, calling or activity, computing the amount of tax chargeable against him in accordance with the provisions of this article and transmit with his report a remittance in the sum required by this section, covering the remainder of the tax chargeable against him, in the office of the city collector. Such returns shall be verified by the oath of the taxpayer, if made by an individual, or by the oath of the president, vice president, secretary or treasurer of a corporation, if made on behalf of the corporation. If made on behalf of a partnership, joint venture, association, trust or any other group or combination acting as a unit, any individual delegated by such firm, group or unit shall take the oath on behalf of the taxpayer.

(b) The assessment of taxes herein made and the returns required therefore shall be for the year ending December 31. If the taxpayer, in exercising a privilege taxable under this article, keeps the books reflecting the same on the basis other than the calendar year, he may with the written consent of the city collector, make his annual returns and pay taxes for the year covering his accounting period, as shown by the method of keeping his books.

(c) All remittances of taxes imposed by this article shall be made to the city collector, in lawful money of the United States or by bank draft, certified check, cashier's check, money order or certificate of deposit, who shall pay the money into the city treasury, to be kept and accounted for as provided by law.

(Bill No. 6799, § 6-122, 1-22-2002)

**State law reference—**For corresponding provisions of state business and occupation tax law, see W. Va. Code §§ 11-13-5, 11-13-9.

### Sec. 110-83. Extensions of time; payment plans.

(a) The city collector, upon approval from city manager, may grant a reasonable extension of time for payment of tax or any installment, or for filing the fourth quarter return or quarterly return required pursuant to this article, on such terms and conditions that he may require. No such extensions shall exceed six months.

(b) The city collector, upon approval from city manager, may extend the time for payment of an amount determined as a deficiency for a period not to exceed 12 months from the date designated for payment of the deficiency. An extension of

this time may be granted only where it is clearly established to the satisfaction of the city collector that the payment of a deficiency upon the date designated for payment would result in undue hardship.

(c) If any extension of time is granted for payment of any tax or deficiency, the city collector may require the taxpayer to furnish a bond or other security, in an amount not exceeding twice the amount for which the extension of time for payment is granted on such terms and conditions as the city collector may require.
(Bill No. 6799, § 6-123, 1-22-2002)

### Sec. 110-84. Records, statements, and investigations.

(a) For the purpose of ascertaining the correctness of a tax return or an assessment for the purpose of making an estimate of any taxpayer's liability for the tax administered under this article, the city collector shall have the power to examine or cause to be examined, by any agent or representative designated by the city collector, any books, papers, records, memoranda or other documents bearing upon the matters required to be included in the return and may require the attendance of the person rendering the return or the attendance of any other person having knowledge of the matters contained therein. In connection therewith, the city collector may take testimony and shall have the power to administer an oath to such person.

(b) The city collector may prescribe rules and regulations as to the keeping of records, the content and form of returns and the filing of copies of city business and occupation tax returns and determinations. The city collector may require any person, by notice served upon such person, to make such returns and keep such records as the city collector may deem sufficient to show whether or not such person is liable under this article for such tax.

(1) *Subpoenas.* The city collector has the power to issue subpoenas and subpoenas duces tecum to compel the attendance of witnesses and production of documents for the purpose of ascertaining the correctness of a tax return or for performing an assessment or for any hearing held by the tax collector. In case of the failure or refusal of a witness to appear and testify or to produce evidence, the city collector may invoke the aid of the Kanawha County Circuit Court. Upon proper showing, the city collector may apply for an order requiring the witness to appear and give testimony and produce evidence concerning the matter in question.

(Bill No. 6799, § 6-124, 1-22-2002)

**State law reference—**For state law as to administration of state business and occupation tax law, see W. Va. Code §§ 11-10-5, 11-10-5a.

### Sec. 110-85. Secrecy of returns.

(a) Except when required in an official investigation or hearing or proceeding to ascertain or collect the amount of tax due, or pursuant to an exemption listed in W. Va. Code § 11-10-5d, it shall be unlawful for any officer or employee of the city to divulge or make known in any manner the tax return, or any part thereof, of any individual, firm or corporation, or disclose information concerning the personal affairs of any individual or the business of any single firm or corporation, or disclose the amount of income or any particulars set forth or disclosed in any report, declaration or return required to be filed with the city collector by any article of this chapter imposing any tax administered under this article, or by any rule or regulation of the city collector issued thereunder.

(b) Any person protected by the provisions of this article may, in writing, waive the secrecy provisions of this section for such purpose and such period as he shall therein state, and the city collector, if he so determines, may thereupon release to designated recipients such taxpayer's return or other particulars filed under the provisions of the tax articles administered under the provisions of this article.
(Bill No. 6799, § 6-125, 1-22-2002)

### Sec. 110-86. Reciprocal exchange.

The city collector may permit the proper officer, or his authorized representative, of the United States or the state, or any political subdivision of the state, to inspect returns filed with the city

collector or may furnish to such officer or representative a copy of any such return; provided, that such other jurisdiction grants similar privileges to the city collector.
(Bill No. 6799, § 6-127, 1-22-2002)

**State law reference—**For state law as to duty of state tax commissioner to permit municipal officers to inspect state gross sales tax returns, see W. Va. Code § 11-10-5d.

### Sec. 110-87. Unlawful release of tax information; penalties.

(a) It shall be unlawful for any officer or employee of the city to release to any person any tax information obtained by virtue of a Reciprocal Exchange of Tax Information Agreement between the State of West Virginia and the city unless the person receiving the information is the authorized counsel of the State of West Virginia or the city and shall be using the information only for the purpose of administering business and occupation taxes or carrier income taxes, or the person who filed the return has authorized, in writing its release, thereby waiving his right to secrecy.

(b) This section shall not be construed to prohibit the publication or release of statistics so classified as to prevent the identification of particular reports and the items thereof.
(Bill No. 6799, § 6-126, 1-22-2002)

### Sec. 110-88. Mathematical errors; collection of balance due on return without remittance.

(a) Where a mathematical error appears on a return (including an overstatement of the credit for the amount paid as a quarterly installment,) the city collector shall correct such error and notify the taxpayer, in writing, of the deficiency in the tax. The taxpayer shall have ten days after receipt of such notice within which to pay such deficiency. If the taxpayer fails to pay such deficiency within ten days, the city collector shall make an assessment of such deficiency in accordance with section 110-112 and shall give the taxpayer written notice thereof.

(b) If the taxpayer files a mathematically correct fourth quarter return which reflects a balance due of the tax administered under this article; and if full payment thereof has not been made, the city collector shall notify the taxpayer, in writing, of the amount of tax penalties and interest due. The taxpayer shall have ten days after receipt of such notice within which to make such payment. If the taxpayer fails to make payment within such ten day period, the city collector shall proceed to collect the amount due.
(Bill No. 6799, § 6-128, 1-22-2002)

**State law reference—**For state law as to erroneous computation of state business and occupation tax returns, see W. Va. Code § 11-10-6.

### Secs. 110-89—110-110. Reserved.

## DIVISION 4. TAX ASSESSMENTS

### Sec. 110-111. Limitation on assessments.

The amount of tax, interest and penalties imposed by this article shall be assessed within three years after the due date of the fourth quarter return for the year in which such tax arose; provided, that in the case of a false or fraudulent return filed with the intent to evade the tax or in case no return is filed, the assessment may be made at any time.
(Bill No. 6799, § 6-138, 1-22-2002)

**State law reference—**For state law as to limitations on assessments, see W. Va. Code § 11-10-15.

### Sec. 110-112. Assessment of tax when insufficiently returned.

(a) If the city collector believes that the tax imposed by this article has been insufficiently returned by a taxpayer, because the taxpayer has failed to properly remit the tax, has failed to make a return or has made a return which is incomplete, deficient or otherwise erroneous, he may proceed to investigate and determine or estimate the tax liability of the taxpayer and make an assessment therefore. Assessments shall be served upon the taxpayer either personally or by certified mail. If any certified mail is refused or not claimed, the city collector may make service by first class mail and prepaid postage.

(1) *Jeopardy assessments.* If the city collector believes that the collection of any tax which he is required to administer will be jeopardized by delay, he shall thereupon

make an assessment of the tax, noting that fact upon the assessment. The amount assessed will be immediately due and payable. Unless the taxpayer against whom a jeopardy assessment is made petitions for reassessment, within 20 days after service of notice of jeopardy assessment, such assessment becomes final. Such petition for reassessment must be accompanied by such securities as the city collector deems necessary.

(2) *Amended assessment.* The city collector may, at any time before the assessment becomes final, amend, in whole or in part, any assessment whenever he ascertains that such assessment is improper or incomplete in any material respect.

(3) *Supplemental assessment.* The city collector may at any time within the period prescribed for assessment, make a supplemental assessment whenever he ascertains that any assessment is incorrect in any material respect.

(Bill No. 6799, § 6-129, 1-22-2002)

**State law reference—**For corresponding provisions of state business and occupation tax law, see W. Va. Code § 11-13-7.

### Sec. 110-113. Notices of assessment; petition for reassessment.

The city collector shall give the taxpayer written notice of any assessment made pursuant to this article. Unless the taxpayer to whom the notice of assessment is given shall within thirty 30 days (except if jeopardy assessment) after service thereof, either personally or by certified mail, file with the city collector a petition for reassessment in writing verified under oath by the taxpayer or his duly authorized agent having knowledge of the facts, setting forth with particularity the items of the assessment objected to, together with the reasons for the objections; the assessment shall become final and not subject to administrative or judicial review. The amount of an assessment shall be due and payable on the day following the date upon which the assessment becomes final.

(Bill No. 6799, § 6-130, 1-22-2002)

**State law reference—**For corresponding provisions of state business and occupation tax law, see W. Va. Code § 11-13-7.

### Sec. 110-114. Hearing procedure; administrative decision.

(a) When a petition for reassessment or refund or credit as provided for in sections 110-33, 110-112, or 110-113 is filed within the time prescribed for such filing, the city collector shall assign a time and a place for an administrative hearing thereon and shall notify the petitioner and the city attorney of such hearing by written notice at least 60 days in advance thereof. Such hearing shall be held within 90 days from the date of filing the petition, unless continued by written agreement of the parties or in writing by the city collector or hearing examiner designated by the city collector for sufficient cause. With respect to all petitions filed after the effective date of the 2019 amendments to this section, a hearing may not be continued more than one year from the filing of the petition without reasonable cause placed on the record.

(b) The hearing shall be informal and shall be conducted in an impartial manner by a hearing examiner designated by the city collector. Any designated hearing examiner shall be a licensed attorney with experience in administrative law or tax law, or with experience as a judge, including the sitting municipal judge, who does not have a conflict of interest. If the city collector desires to designate the municipal judge as the hearing examiner, the city collector shall confirm that the municipal judge is able to meet the time requirements contained in this section as part of, and without detriment to, the other ongoing duties of the municipal judge and without additional compensation. The burden of proof shall be upon the taxpayer to show that the assessment or denial of a refund or credit is incorrect and contrary to law, in whole or in part. The hearing examiner is not bound by the rules of evidence as applied in civil cases in the circuit courts of this state. The hearing examiner may admit and give probative effect to evidence of a type commonly relied upon by a reasonably prudent person in the conduct of his or her affairs. All testimony shall be given under oath. All hearings shall be recorded by means acceptable for use in courts of this state. All parties shall receive notice that the hearing will be recorded and that each is entitled to receive a

copy of the recording at cost. A copy of the exhibits made part of the record shall be available to any party upon request and payment of a reasonable fee.

(c) After the administrative hearing, the hearing examiner may request that proposed findings of fact and conclusions of law from the parties be submitted within 30 days and shall, within a reasonable time, give notice in writing of his or her decision. The decision shall be made no later than six months after the administrative hearing unless extraordinary circumstances exist, in which case the final order shall disclose such extraordinary circumstances. The final order shall include notice of the right to appeal, as stated in section 110-115, and the bonding requirements for such an appeal.

(Bill No. 6799, § 6-131, 1-22-2002; Bill No. 7834, 10-7-2019)

**State law reference—**For corresponding provisions of state business and occupation tax law, see W. Va. Code § 11-13-7.

### Sec. 110-115. Appeals to circuit court.

(a) An appeal may be taken by the taxpayer or the City to the Circuit Court of Kanawha County within 30 days of entry of the hearing examiner's decision.

(b) The appeal shall be taken by the filing of a petition and notice with the Circuit Court of Kanawha County, a copy of which petition and notice shall be served upon the city collector and the opposing party's counsel, or directly to the opposing party if not represented by counsel. The appeal will be docketed at the circuit court in a similar manner as other administrative appeals, with the appealing party listed as petitioner and the other party listed as respondent. The petition for appeal shall state whether the appeal is taken on questions of law or questions of fact, or both, and set forth with particularity the items of the hearing examiner's decision objected to, together with the reasons for the objections. The filing of the appeal shall not stay the decision of the hearing examiner. The decision of the hearing examiner shall be stayed if the taxpayer shall file with the clerk of the circuit court a bond for the use of the city, with sureties approved by the clerk, the bond amount to be not less than the total amount of the tax, interest and penalties (to such date) appealed from, and conditioned that the taxpayer shall perform the orders of the court; provided, that the judge of the circuit court may stay the decision of the hearing examiner without the requirement of a bond, upon a proper showing by the taxpayer that the properties of the taxpayer are sufficient to secure performance of the court's orders or that the ends of justice will be served thereby. Upon receipt, the city collector shall forward a complete copy of the record, including the final order, transcripts/recording of the hearing, papers, motions, documents, exhibits, evidence and records as were before the hearing examiner or supplemented prior to the decision, to the circuit court, the city attorney, and the taxpayer, in a manner consistent with Rule 4 of the West Virginia Rules of Procedure for Administrative Appeals.

(c) The circuit court shall hear the appeal and determine all questions submitted to it on appeal from the determination of the hearing examiner pursuant to West Virginia Code § 29A-5-4. In such appeal a certified copy of the city collector's assessment shall be admissible and shall constitute prima facie evidence of the tax due under the provisions of this article. The court shall render its decree thereon, and a certified copy of the decree shall be filed by the clerk of the court with the hearing examiner and the city collector, who shall then correct the assessment in accordance with such decree. Either party may appeal to the Supreme Court of Appeals as provided in West Virginia Code § 29A-6-1.

(d) Unless an appeal is taken pursuant to this section within 30 days of entry of the administrative decision, the hearing examiner's decision shall become final and conclusive and not subject to administrative or judicial review. The amount, if any, due the city under such decision shall be due and payable on the day following the date upon which such decision becomes final and any decision requiring the city to make changes shall be promptly addressed by correcting the assessment, issuing a requisition, or establishing a

credit for the amount of an overpayment, as the case may be, on the day following the date upon which the decision becomes final.
(Bill No. 6799, § 6-132, 1-22-2002; Bill No. 7834, 10-7-2019)

**Editor's note—**This section appears to have been enacted by the city council as declaratory of the provisions of W. Va. Code § 11-10-10, as such provisions would be applicable in the case of an appeal by a city taxpayer from an assessment by the city collector under this article; and it is not to be assumed that the council purported to confer jurisdiction on the circuit court or to dictate to the judge or clerk of such court as to their respective powers and duties.

### Sec. 110-116. Ten-year limitations on collection.

Every proceeding instituted by the city collector for the collection of taxes shall be commenced within ten years after the date such assessment became final. If an assessment is not issued, every proceeding instituted by the city collector for the collection of taxes shall be commenced within ten years after taxpayer filed the annual return (or the latest periodical return, if no annual return in required). The limitations of this section can be extended, by written agreement at two years increments.
(Bill No. 6799, § 6-138.1, 1-22-2002)

### Secs. 110-117—110-140. Reserved.

## DIVISION 5. TAX COLLECTION

### Sec. 110-141. Methods of collection.

The city collector shall collect the taxes, interest and penalties imposed by this article. In addition to all other remedies available for the collection of debts due the city, the city collector may proceed by foreclosure of the lien provided in section 110-142 or by distraint and sale under section 110-143.
(Bill No. 6799, § 6-133, 1-22-2002)

**State law reference—**For corresponding provisions of state business and occupation tax law, see W. Va. Code § 11-10-11.

### Sec. 110-142. Tax constitutes debt: lien created; enforcement of lien.

(a) Any tax, penalties or interest due and payable under this article shall be a debt due the city. It shall be a personal obligation of the taxpayer and shall be a lien upon the real and personal property of the taxpayer. This lien shall have priority over all other liens except those due the state and the United States of America.

(b) The lien created by this section shall continue until the liability for the tax, interest and penalties is satisfied or becomes unenforceable by reason of lapse of time. The city collector shall issue his certificate of release of any lien imposed pursuant to this section upon finding that the liability for the amount assessed has been fully satisfied or has become legally unenforceable.

(c) The lien created by this section shall be subject to the restrictions and conditions embodied in W. Va. Code ch. 38, art. 10C.
(Bill No. 6799, § 6-134, 1-22-2002)

**State law reference—**For corresponding provisions of state business and occupation tax law, see W. Va. Code § 11-10-12.

### Sec. 110-143. Distraint.

If the tax administered under this article is required to be paid at the time a return is filed and if any portion of such tax is not so paid, or if a proper assessment of tax is made by the city collector and such assessment has become final and is not subject to administrative or judicial review, the city collector may distrain upon and sell the real and personal property including intangibles represented by negotiable evidence of indebtedness of the taxpayer, for the payment of the amount of all taxes, penalty and interest accrued and unpaid under this article. The warrant created by this section may be served by a police officer of the city or by the sheriff of the county in which the delinquent taxpayer resides or his property is situate.
(Bill No. 6799, § 6-135, 1-22-2002)

**State law reference—**For state law as to collection of business and occupation tax by distraint, see W. Va. Code § 11-10-13.

### Sec. 110-144. Injunction.

(a) If the failure of any taxpayer to comply with the provisions of this article shall have continued 60 days, the city collector may proceed to obtain an injunction restraining the taxpayer from doing business in the city until he fully

complies with the provisions of this article. In any proceeding under the section, upon judgment or decree for the plaintiff, he shall be awarded his costs.
(Bill No. 6799, § 6-136, 1-22-2002)

**State law reference—**For state law as to injunctions, see W. Va. Code § 11-10-11(h).

### Sec. 110-145. Interest and penalties.

(a) The tax imposed by this article, if not paid when due, shall bear interest at the rate of at least eight percent per annum from the due date of the return until paid. The city collector may charge an interest rate equal to the adjusted rate charged by commercial banks to large business, in the manner described in W. Va. Code § 11-10-17a.

(b) If any taxpayer fails to make the return or any quarterly installment required by this article, or make his return but fails to remit, in whole or in part, the proper amount of tax, there shall be added to the amount of tax unpaid, from the date such tax should have been paid, a penalty in the amount of five percent of the tax for the first month, or fraction thereof, of delinquency, and one percent of the tax for each succeeding month, or fraction thereof of delinquency provided, that if such failure is due to reasonable cause, the city collector may waive, with final approval from the city manager, in whole or in part, these penalties. Additionally, if the failure to pay is due to fraud or intent to evade any such tax there shall be added an additional penalty of 25 percent of the tax owed, exclusive of penalties.

(c) Interest and penalties may be collected in the same manner as the tax imposed by this article.
(Bill No. 6799, § 6-139, 1-22-2002; Bill No. 7981, 12-5-2022; Bill No. 7997, 6-21-2023)

**State law reference—**For corresponding provisions of state business and occupation tax law, see W. Va. Code § 11-13-7.

### Sec. 110-146. Payment when person sell[s] out or quits business; liability of successor, liens.

(a) If any person subject to any tax administered under this article sells out his or its business or stock of goods, or ceases doing business, any tax, penalties and interest imposed by this article shall become due and payable immediately, and such person shall, within 30 days after selling out his or its business or stock of goods or ceasing to do business, make a final return and pay any tax that may be due. The unpaid amount of any such tax shall be a lien upon the property of such person.

(b) The successor of any person selling his/her business or stock of goods shall withhold so much of the purchase money as will satisfy any tax, penalties and interest which may be due until the former owner shall produce a certificate from the city collector evidencing the payment thereof. If the purchaser of a business or stock of goods shall fail to withhold purchase money as provided above, and if any such tax, penalties and interest remain unpaid after the expiration of the 30-day period allowed for payment thereof, the purchaser shall be personally liable for the payment of any such tax, penalties; and the same shall be recoverable by the city collector.
(Bill No. 6799, § 6-140, 1-22-2002)

**State law reference—**For corresponding provisions of state business and occupation tax law, see W. Va. Code § 11-10-11(f).

### Sec. 110-147. Settlement of contracts made with city.

All officers, employees and agents making contracts on behalf of the city shall withhold payment in the final settlement of such contracts until the receipt of a certificate from the city collector that all taxes levied or assessed under this article against the contractor with respect to such contracts have been paid.
(Bill No. 6799, § 6-141, 1-22-2002)

**State law reference—**For state law basis of this section and penalty for violation, see W. Va. Code § 11-10-11(d).

### Sec. 110-148. Final settlement with contractors; user personally liable.

(a) Any person contracting with a person engaged in a business or service taxed under this article shall withhold payment, in sufficient amount to cover taxes assessed by this article, in the final settlement of such contracts until the receipt of a certificate from the city collector to

the effect that all taxes levied and accrued under this article against the contractor have been paid.

(b) If any person shall fail to withhold as provided herein, he shall be personally liable for the payment of all such taxes, and the same shall be recoverable by the city collector by appropriate legal proceedings.
(Bill No. 6799, § 6-142, 1-22-2002)

**State law reference—**For corresponding provisions of state business and occupational tax law, see W. Va. Code § 11-10-11(b).

### Sec. 110-149. Limited effect of city collector's certificate.

The certificates of the city collector provided for in sections 110-146 to 110-148 inclusive, shall not bar subsequent investigations, examination, audits, assessments, and refunds with respect to the taxpayer.
(Bill No. 6799, § 6-143, 1-22-2002)

### Secs. 110-150—110-180. Reserved.

## ARTICLE III. ADMISSIONS TAX*

### Sec. 110-181. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

*Amusement* or *entertainment* means circuses, carnivals, moving picture shows, fairs, shows of all kinds, dances, baseball, basketball, football, wrestling, boxing and all sports or exhibitions, dramatic entertainments, and all other public amusements or entertainments conducted for private profit and not specifically named in this section.

*Purchaser* means a person who purchases a ticket to any public amusement or entertainment conducted for private profit.

*Seller* means a person engaged in the business of furnishing any public amusement or entertainment conducted within the corporate limits for private profit or gain.

*Tax* means all taxes, interest or penalties levied under this article.

*__State law reference—__*Amusement tax authorized, W. Va. Code § 8-13-6.

*Ticket* means a ticket purchased by any person.
(Code 1975, § 6-145)

**Cross reference—**Definitions generally, § 1-2.

### Sec. 110-182. Applicability.

This article shall apply to persons who attend public amusements or entertainments conducted for private profit on passes or other forms of complimentary tickets, as well as those persons attending on tickets purchased for consideration.
(Code 1975, § 6-154)

### Sec. 110-183. Admission tax imposed.

There is levied and shall be collected an amusement or admission tax of two percent on the sale of each ticket to any public amusement or entertainment conducted for private profit within the corporate limits, such tax to be levied upon the purchaser and to be added to the price of the ticket and to be collected by the seller; provided, that if the amount of the tax so levied shall, when computed, be or contain a fraction of $0.01, such fraction may be counted as $0.01.
(Code 1975, § 6-146)

### Sec. 110-184. Payment of tax.

The tax levied by this article shall be due and payable in monthly installments, on or before the 15th day of the month next succeeding the month in which the tax accrued. The seller shall, on or before the 15th day of each month, make out and mail to the city collector a return for the preceding month, in the form prescribed by the city collector, showing the amount of the tax for which he is liable, and any further information necessary in the computation and collection of the tax which the city collector may require. A remittance for the amount of the tax shall accompany the return. A monthly return shall be signed by the seller or his duly authorized agent.
(Code 1975, § 6-147)

### Sec. 110-185. Unpaid tax a lien; penalty.

(a) A tax due and unpaid under this article shall be a debt due the city. It shall be a personal obligation of the seller and shall be a lien upon all of the property of the seller. The lien shall have priority over all other liens and obligations except those due the state and the United States.

(b) A seller who fails to file his return and remit the tax at the time required by this article shall, in addition to all other penalties, pay a penalty of six percent of the amount of the tax due. For each succeeding 30 days elapsing before payment, there shall be added an additional penalty of one percent. If the seller is an association, or corporation, the officers whose duty it is to make the return and pay the tax, shall be personally liable jointly and severally for any default on the part of the association or corporation.
(Code 1975, § 6-148)

### Sec. 110-186. Enforcement of lien.

A lien for taxes under this article shall attach when the obligation to pay the tax to the city collector accrues. The lien shall be enforceable by the city collector as any other lien against the property of a debtor.
(Code 1975, § 6-149)

### Sec. 110-187. Compliance with regulations; records.

A person liable for the tax imposed under this article shall keep the records, render under oath the statements, make returns and comply with the rules and regulations that the city collector may, from time to time, prescribe. The city collector may require such records, statements or returns, upon notice, from any person in order to determine whether he is liable to the tax under this article. The city collector may require preservation of records for not to exceed five years and may, at any time through his authorized agents, inspect all books and accounts of the seller, including banking accounts, which in any way enter into the record of the business out of which the tax imposed in this article arises.
(Code 1975, § 6-150)

### Sec. 110-188. Investigation by city collector.

(a) If the city collector has reason to believe that the tax imposed by this article is insufficiently returned by a seller, either because the seller has failed or refused to make a return, or

has made an incomplete return, or has made a return which is deficient or otherwise erroneous, he may proceed to determine the amount of the tax for which the seller is liable. The city collector may make such audits and investigations, and take such evidence and testimony as may be necessary for the purpose of his investigation.

(b) As a result of his investigation, the city collector may assess the amount of the tax which he finds to be due. After ten days' notice in writing to the person assessed, he may proceed to collect the tax.
(Code 1975, § 6-151)

### Sec. 110-189. Information to be confidential.

Unless in compliance with a judicial order, or as may be required by the proper administration of this article, the city collector, his agents or employees, and former city collectors, agents and employees shall not divulge facts or information obtained in the administration of this article.
(Code 1975, § 6-152)

### Sec. 110-190. City collector to enforce rules.

The city collector shall have the authority to promulgate and enforce reasonable rules and regulations necessary to the administration and enforcement of this article.
(Code 1975, § 6-153)

### Sec. 110-191. Liability of city collector.

If the city collector fails or refuses to collect the tax assessable under this article, he shall be liable on his official bond for the amount of the tax which he fails or refuses to collect.
(Code 1975, § 6-155)

### Sec. 110-192. Permit required.

All persons engaging in the business of conducting dances or furnishing other public amusement or entertainment conducted for private profit or gain shall obtain a permit from the city collector at least 24 hours in advance of the dance, amusement or entertainment, unless a permit has been previously issued.
(Code 1975, § 6-156)

### Secs. 110-193—110-220. Reserved.

## ARTICLE IV. HOTEL OCCUPANCY TAX*

### DIVISION 1. GENERALLY

### Sec. 110-221. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

*Consideration paid* or *consideration* means the amount received in money, credits, property or other consideration for or in exchange for the right to occupy a hotel room.

*Consumer* means a person who pays the consideration for the use or occupancy of a hotel room. The term shall not be construed to mean the government of the United States, its agencies or instrumentalities, or the government of the state or any political subdivision of the state.

*Hotel* means any facility or building, publicly or privately owned (including a facility located in a state, county or municipal park), in which the public may, for a consideration, obtain sleeping accommodations. The term shall include but is not limited to boardinghouses, hotels, motels, inns, courts, lodges, cabins and tourist homes. The term shall include state, county and city parks offering accommodations as set forth in this article. The term shall not be construed to mean any hospital, sanitarium, extended care facility, nursing home, university or college housing unit, or any facility providing fewer than three hotel rooms, or any tent, trailer or camper campsites; however, where a university or college housing unit provides sleeping accommodations for the general nonstudent public for a consideration, the term shall, if otherwise applicable, apply to such accommodations for the purposes of this tax.

*Hotel operator* means the person who is proprietor of a hotel, whether in the capacity of owner, lessee, mortgagee in possession, licensee, trustee

*__Cross reference—__Businesses, ch. 18.

__State law references—__Hotel occupancy tax, W. Va. Code § 7-18-2; 7-18-9; 7-18-14.

in possession, trustee in bankruptcy, receiver, executor or in any other capacity. Where the hotel operator performs his functions through a managing agent of any type or character other than an employee, the managing agent shall also be deemed a hotel operator for the purposes of this article and shall have the same duties and liabilities as his principal. Compliance with the provisions of this article by either the principal or the managing agent shall, however, be considered to be compliance by both.

*Hotel room* means any room or suite of rooms or other facility affording sleeping accommodations to the general public and situated within a hotel. The term shall not be construed to mean a banquet room, meeting room or any other room not primarily used for or in conjunction with sleeping accommodations.

*Tax, taxes* or *this tax* means the hotel occupancy tax authorized by this article.

*Taxing authority* means the city.

*Taxpayer* means any person liable for the tax authorized by this article.
(Code 1975, § 6-173; Bill No. 7151, 7-5-2005)
**Cross reference—**Definitions generally, § 1-2.

### Sec. 110-222. Administrative procedures generally.

The administrative procedures for the assessment, collection and refund of the tax authorized by this article shall conform as closely as possible to those for the business and occupation tax; provided however, that the city collector is authorized to establish different or additional procedures to aid in the efficient administration of the tax.
(Code 1975, § 6-183)

### Sec. 110-223. Disposition of proceeds.

(a) *Generally.* The net proceeds of the tax collected and remitted to the taxing authority pursuant to this article shall be deposited into the general revenue fund of the city and, after appropriation, shall be expended only as provided in subsections (b) and (c) of this section.

(b) *Required expenditures.* At least 50 percent of the net revenue receivable by the city during the fiscal year pursuant to this article shall be transmitted to the Charleston Convention and Visitor's Bureau for the promotion of conventions and tourism.

(c) *Permissible expenditures.* After making the appropriation required by subsection (b) of this section, the remaining portion of the net revenues receivable by the city during the fiscal year pursuant to this article may be expended for one or more of the purposes set forth in this subsection, but for no other purpose. The purposes for which expenditures may be made pursuant to this subsection are as follows:

(1) The planning, construction, reconstruction, establishment, acquisition, improvement, renovation, extension, enlargement, equipment, maintenance, repair and operation of publicly owned convention facilities, including but not limited to arenas, auditoriums, civic centers and convention centers.

(2) The payment of principal or interest, or both, on revenue bonds issued to finance such convention facilities.

(3) The promotion of conventions.

(4) The construction, operation or maintenance of public parks, tourist information centers and recreation facilities (including land acquisition).

(5) The promotion of the arts.

(6) Historic sites.

(7) Beautification projects.

(d) *Definitions.* The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

*Convention and visitor's bureau* and *visitor's and convention bureau* are interchangeable and means the Charleston Convention and Visitor's Bureau.

*Convention center* means the Charleston Coliseum and Convention Center, a convention

facility owned by the city or other public entity or instrumentality and shall include all facilities, including armories, commercial, office, community service and parking facilities and publicly owned facilities constructed or used for the accommodation and entertainment of tourist and visitors, constructed in conjunction with the convention center and forming reasonable appurtenances to the convention center.

*Fiscal year* means the year beginning July 1 and ending June 30 of the next calendar year.

*Net proceeds* means the gross amount of tax collection less the amount of tax lawfully refunded.

*Promotion of the arts* means activity to promote public appreciation and interest in one or more of the arts. It includes the promotion of music of all types, the dramatic arts, dancing, painting and the creative arts through shows, exhibits, festivals, concerts, musicals and plays.

*Recreational facilities* means and includes any public park, parkway, playground, public recreation center, athletic field, sports arena, stadium, skating rink or arena, golf course, tennis courts and other park and recreational facilities, whether of a like or different nature, that are owned by the city.

*Historic sites* means any site listed on the United States National Register of Historic Places, or listed by a local historical landmarks commission, established under state law, when such sites are owned by a city, a county or a nonprofit historical association and are open, from time to time, to accommodate visitors.
(Code 1975, § 6-184; Bill No. 7151, 7-5-2005; Bill No. 7799, 11-19-2018)

**Sec. 110-224. Violations and penalties.**

(a) It shall be unlawful for any person to willfully refuse to collect or to pay the tax or to willfully refuse to make the return required to be made by this article; or to willfully make any false or fraudulent return or false statement in any return with the intent to defraud any taxing authority; or to willfully evade the payment of the tax, or any part of the tax; or for any person to willfully aid or abet another in any attempt to evade the payment of the tax, or any part of the tax; or for any officer, partner or principal of any corporation or association to willfully make or willfully permit to be made for such corporation or association any false return, or any false statement in any return authorized by this article, with the intent to evade the payment of such tax.

(b) Any person willfully violating any of the provisions of this article shall, for the first offense, be guilty of a misdemeanor and upon conviction shall be subject to the penalties set forth in section 1-8 of this Code.

(c) Every prosecution for any offense arising under this article shall be commenced within three years after the offense was committed, notwithstanding any provision of this Code to the contrary.

(d) Proceedings against any person under this section shall be initiated in the county of the state wherein such person resides if any element of the offense occurs in such county of residence, or if no element of the offense occurs in such county of residence, in the county where the offense was committed.

(e) For the purposes of this section, the term:

(1) Willfully means the intentional violation of a known legal duty to perform any act required to be performed by any provision of this article in respect of which the violation occurs; provided, that the mere failure to perform any act shall not be a willful violation under this article. A willful violation of this article requires that the defendant have had knowledge of or notice of a duty to perform such act, and that the defendant, with knowledge of or notice of such duty, intentionally failed to perform such act.

(2) Evade means to willfully and fraudulently commit any act with the intent of depriving the city of payment of any tax which there is a known legal duty to pay.

(3) Fraud means any false representation or concealment as to any material fact made by any person with the knowledge that it

is not true and correct, with the intention that such representation or concealment be relied upon by the city.

(Code 1975, § 6-185)

**Sec. 110-225. Interest and penalties.**

(a) The tax imposed and levied by this article, if not paid when due, shall bear interest at the rate of six percent per annum from the due date of the return until paid.

(b) If any hotel operator fails to make the return of any quarterly installment required by this article, or makes his return but fails to remit in whole or in part the proper amount of tax, there shall be added to the amount of tax unpaid, from the date such tax should have been paid, a penalty in the amount of five percent of the tax for the first month, or fraction of a month, of delinquency and one percent of the tax for each succeeding month, or fraction of a month, of delinquency; provided, that if such failure is due to responsible cause, the city collector may waive in whole or in part these penalties.

(c) Interest and penalties may be collected in the same manner as the tax imposed by this article.
(Code 1975, § 6-186)

**Secs. 110-226—110-250. Reserved.**

DIVISION 2. TAX IMPOSED; RATE; EXEMPTIONS

**Sec. 110-251. Imposition.**

There is imposed a municipal hotel tax upon all hotels located within the corporate limits, including any hotels owned by the state or by any political subdivision of the state. The tax shall be imposed on the consumer and shall be collected by the hotel operator as part of the consideration paid for the occupancy of a hotel room; provided, that the tax shall not be imposed on any consumer occupying a hotel room for 30 or more consecutive days.
(Code 1975, § 6-171)

**Sec. 110-252. Rate.**

The rate of tax imposed in this division shall be six percent of the consideration paid for the use or occupancy of a hotel room. Such consideration shall not include the amount of tax imposed on the transaction under W. Va. Code ch. 11, art. 15 (W. Va. Code § 11-15-1 et seq.) or charges for meals, valet service, room service, telephone service, or other charges or consideration not paid for use or occupancy of a hotel room.
(Code 1975, § 6-172; Bill No. 7151, 7-5-2005)

**Sec. 110-253. Exemptions for government agencies or employees.**

(a) Hotel room occupancy billed directly to the federal government shall be exempt from the city hotel occupancy tax; however, rooms paid for by a federal government employee for which reimbursement is made shall be subject to such tax.

(b) Hotel room occupancy billed directly to the state or its political subdivisions shall be exempt from such tax; however, rooms paid for by an employee of the state for which reimbursement is made shall be subject to such tax.
(Code 1975, § 6-175)

**Secs. 110-254—110-270. Reserved.**

DIVISION 3. PAYMENT AND COLLECTION

**Sec. 110-271. Collection when sale on credit.**

A hotel operator doing business wholly or partially on a credit basis shall require the consumer to pay the full amount of tax due upon a credit sale at the time such sale is made or within 30 days thereafter.
(Code 1975, § 6-176)

**Sec. 110-272. Consumer to pay tax; collection and accounting by hotel operator; hotel or hotel operator not to make certain representations.**

(a) The consumer shall pay to the hotel operator the amount of tax imposed by the city, which tax shall be added to and shall constitute a part of the consideration paid for the use and occupancy of the hotel room, and which tax shall be collectible as such by the hotel operator, who shall account for and remit to the city all taxes paid by consumers. The hotel operator shall separately state the tax authorized by this article on all bills, invoices, accounts, books of account and records

relating to consideration paid for occupancy or use of a hotel room. The hotel operator may commingle tax collected under this article with the proceeds of the rental of hotel accommodations. The city's claim shall be enforceable against and shall be superior to all other claims against the moneys so commingled, excepting only claims of the state for moneys held by the hotel pursuant to the provisions of W. Va. Code ch. 11, art. 15 (W. Va. Code § 11-15-1 et seq.). All taxes collected pursuant to the provisions of this article shall be deemed to be held in trust by the hotel until they shall have been remitted to the taxing authority as provided in this division.

(b) A hotel or hotel operator shall not represent to the public in any manner, directly or indirectly, that it will absorb all or any part of the tax or that the tax is not to be considered an element in the price to be collected from the consumer.
(Code 1975, § 6-174)

### Sec. 110-273. Priority of tax in receivership, bankruptcy, similar proceedings.

In the distribution, voluntary or compulsory, in receivership, bankruptcy or otherwise of the property or estate of any person, all taxes due and unpaid authorized under this article shall be paid from the first money available for distribution in priority to all claims and liens, except taxes and debts due to the United States, which, under federal law, are given priority over the debts and liens created by municipal ordinance or order of the county commission for this tax, and taxes and debts due to the state. Any person charged with the administration or distribution of any such property or estate who shall violate the provisions of this section shall be personally liable for any taxes accrued and unpaid which are chargeable against the person whose property or estate is in administration or distribution.
(Code 1975, § 6-177)

### Sec. 110-274. Liability of hotel operator for failure to collect or remit.

If any hotel operator fails to collect the tax authorized by and levied pursuant to this article, or shall fail to properly remit such tax to the taxing authority, he shall be personally liable for such amount as he failed to collect or remit; however, such hotel operator shall not be held liable for failure to collect such tax if the hotel operator can, by good and substantial evidence, prove the refusal of the purchaser to pay such tax, despite the diligent effort in good faith of the hotel operator to collect the tax.
(Code 1975, § 6-178)

### Sec. 110-275. Total amount collected to be remitted.

No profit shall accrue to any person as a result of the collection of the tax authorized under this article. Notwithstanding that the total amount of such taxes collected by a hotel operator may be in excess of the amount for which a consumer would be liable by the application of the levy of three percent for the occupancy of hotel rooms, the total amount of all taxes collected by any hotel operator shall be remitted to the taxing authority as provided in this article.
(Code 1975, § 6-179)

### Sec. 110-276. Returns and remittances generally.

The tax authorized by this article shall be due and payable in monthly installments on or before the 15th day of the calendar month next succeeding the month in which the tax accrued; however, for credit sales in which the tax authorized by this article is not collected by the hotel operator at the time of such sales, such tax shall not, for the purposes of this article, be regarded as having accrued until either the date on which it is received by the hotel operator or the expiration of the 30-day payment period set forth in section 110-271, whichever shall first occur. The hotel operator shall, on or before the 15th day of each month, prepare and deliver to the city a return for the preceding month, in the form prescribed by the city. Such form shall include all information necessary for the computation, collection and subsequent distribution of the tax as the city may require. A remittance for the amount of the tax

due shall accompany each return. Each return shall be signed by the hotel operator or his duly authorized agent.
(Code 1975, § 6-180)

**Sec. 110-277. Records.**

Each hotel operator shall keep complete and accurate records of taxable sales and of charges, together with a record of the tax collected, and shall keep all invoices and other pertinent documents in such form as the taxing authority may require. Such records and other documents shall be preserved for a period of not less than three years unless the taxing authority shall consent in writing to their destruction within that period or shall require that they be kept for a longer period.
(Code 1975, § 6-181)

### Sec. 110-278. Liability of officers of associations or corporations.

If the taxpayer is an association or corporation, the officers actually participating in the management or operation of the association or corporation shall be personally liable, jointly and severally, for any default on the part of the association or corporation; and payment of tax, fines, additions to tax or penalties which may be imposed by state law, city ordinance, order of the county commission or other authority may be enforced against such officers as against the association or corporation which they represent.
(Code 1975, § 6-182)

### Secs. 110-279—110-310. Reserved.

## ARTICLE V. PUBLIC UTILITIES TAX*

### Sec. 110-311. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

*Public utility service* means all services and tangible personal property purchased within the city from a seller, operating under a public utility license or permit from the public service commission of the state or which is classified as a public utility with the public service commission of the state, including, but not limited to, telephone service, electric service, gas service, including bottled or liquid gas, motor carriers and garbage haulers, and water service, if purchased, used or consumed within the corporate limits.

*Purchaser* means every person who purchases, uses or consumes a public utility service.

*Seller* means every person, whether a public service corporation, a municipality or a private corporation, classified as a public utility with the public service commission of the state, who sells, furnishes or supplies a public utility service.

*User* means the owner or tenant of private residential property or the owner or tenant of property used for commercial or industrial purposes, in every combination, of every kind and description.
(Code 1975, § 6-192; Bill No. 7857, 1-6-2020)

**Cross reference—**Definitions generally, § 1-2.

### Sec. 110-312. Imposed; amount; notice to utility of effective date.

There is imposed and levied by the city, upon every purchaser of a public utility service, an excise tax upon the privilege of purchasing, using or consuming, within the corporate limits, such public utility service. Such tax shall be in the amount of two percent of the gross amount of each periodic statement rendered such purchasers or consumers by such public utility, which tax in every case shall be collected by the seller and paid by the purchaser upon the amount of each gross periodic statement rendered such purchaser by the seller, and shall be paid by the purchaser to the seller at the time the purchase price or such charge shall become due and payable under the agreement between the purchaser and the seller; provided, that pursuant to W. Va. Code § 8-13-5(a), the percentage rate of two percent shall not take effect until the city gives 60 days' notice by certified mail to the utility doing business in the city of the effective date.
(Code 1975, § 6-193)

### Sec. 110-313. Exemptions.

(a) The tax imposed and levied in this article shall not apply to the following transactions, which transactions are exempted from such tax:

(1) Purchases of public utility service for resale.

(2) Purchases of public utility service by the United States, the state and the political subdivisions, municipalities, boards, commissions, authorities and public corporations of the state.

(3) Purchases of tangible personal property, such as appliances or the like, as distinguished from the public service supplied.

*__Cross reference—__Utilities, ch. 118.

**State law reference—**Public utilities tax, W. Va. Code § 8-13-5a.

(4) Charges for telephone services which are paid by the insertion of coins into coin-operated telephones and specific charges for measured rate, message rate, toll or long distance telephone calls.

(5) Nonrecurring or one-time charges incidental to the furnishing of public utility service.

(6) Television cable charges.

(7) Sanitary charges or fees.

(b) To provide general relief for homeowners or tenants who pay utilities upon which the city imposes a utility tax, and who are 65 years of age or older or who are certified as being permanently and totally disabled, the city shall exempt from utility taxes those citizens who meet the following criteria:

(1) Upon submission of proof to the city collector that an individual, whether a homeowner or tenant, who pays utilities upon which the city imposes a utility tax, is 65 years of age or older or is certified as being permanently and totally disabled, and otherwise meets the qualifications for a homestead exemption under the provisions of W. Va. Code § 11-6B-3, such individual shall be exempt from the payment of the utility tax imposed by the city.

(2) Such proof shall be in a form satisfactory to the city collector.

(3) This exemption shall be effective beginning January 1, 1985.

This general relief is declared to be a public purpose and, therefore, shall be liberally construed.
(Code 1975, § 6-196)

### Sec. 110-314. Collection; time of payment; effective date; proration.

It shall be the duty of every seller in acting as the tax collecting medium or agency for the city to collect from each purchaser for the use of the city the tax imposed and levied in this article at the time of collecting the purchase price charged for its public utility service. The amount of tax actually collected during each calendar month shall be reported by each seller to the city, and each seller shall remit the amount of tax shown by such report to have been collected to the city on or before the last day of the first calendar month following the month in which collected, together with the name and address of any purchaser who has failed or refused to pay the tax so imposed and levied. The tax imposed and levied in this article shall apply to periodic statements rendered after July 1, 1984, for public utility service rendered subsequent to July 1, 1984, and when any such periodic statement covers public utility service rendered both before and after this date, only that portion of the charge for public utility service rendered after this date shall be subject to such tax; and the portion subject to such tax shall be such portion of the total charge as the number of days after July 1, 1984, within the period covered by such periodic statement, bear to the total number of days covered by such periodic statement. The required reports shall be in the form prescribed by the city collector.
(Code 1975, § 6-194)

### Sec. 110-315. Maintenance and inspection of records.

Every seller shall keep and maintain complete records showing all purchases of public utility service within the corporate limits, which records shall show the charge made against each purchaser, the dates such public utility service was furnished, the date of payment and the amount of tax imposed under this article. Such records shall be kept open for inspection by the duly authorized agents of the city; and they shall have the right, power and authority to make, at the expense of the city, such transcripts during such times as they may desire.
(Code 1975, § 6-195)

### Sec. 110-316. Nonliability of utility for erroneous collections; duty of city when purchaser claims tax not owed; refunds; rules and regulations.

(a) There shall be no liability upon the seller for erroneously collecting the tax imposed and levied in this article or for erroneously failing to

bill for such tax as a result of a good-faith mistake on the part of the seller. When any purchaser contends that such tax is not owed by such purchaser on the ground that the public utility service was not purchased, used or consumed within the corporate limits, the seller shall refer the question to the city collector; and such seller shall thereafter collect or refrain from collecting such tax from such purchaser for such public utility service as instructed in writing to do by the city collector. All claims for refunds of any such tax shall be presented to the city and not to the seller.

(b) The city collector shall have the authority to promulgate and enforce reasonable rules and regulations necessary for the administration and enforcement of this article.
(Code 1975, § 6-197)

### Sec. 110-317. Additional remedies for collection of tax.

Any amount of tax due and unpaid under this article shall be a debt due the city. In addition to all other methods set forth and prescribed in this article for the collection of the taxes due under this article, the city, through its city collector, is authorized and empowered to collect the taxes, in the same manner as other similar taxes are collected, and may impose and collect the taxes in the same manner and by the same remedies as are now or may hereafter be provided by law for the enforcement of liens and levies for state, county and municipal taxes.
(Code 1975, § 6-198)

Chapter 111

# CONSUMERS SALES AND USE TAXES*


Sec. 111-1. Council findings.
Sec. 111-2. Definitions.
Sec. 111-3. Imposition of consumers sales and service tax.
Sec. 111-4. Imposition of use tax.
Sec. 111-5. Calculation of tax on fractional parts of a dollar.
Sec. 111-6. State and local sales and use tax bases.
Sec. 111-7. Exceptions.
Sec. 111-8. Credit for local sales tax lawfully paid to another municipality.
Sec. 111-9. Local rate and boundary changes.
Sec. 111-10. State level administration.
Sec. 111-11. Administrative procedures.
Sec. 111-12. Criminal penalties.
Sec. 111-13. Automatic updating.
Sec. 111-14. Deposit of taxes collected in special revenue funds.
Sec. 111-15. Effective date.


*__Cross reference—__Taxation, Ch. 110.

**Sec. 111-1. Council findings.**

The municipal home rule board on April 19, 2013, approved the city's amending of its home rule plan to enact a consumers sales and service tax and a use tax pursuant to W. Va. Code § 8-1-5a without the limiting restrictions in W. Va. Code § 8-13C-1 et seq. In accordance with the home rule plan amendment; the city council hereby finds and declares that the adoption by this city for its consumers sales and service tax and use tax provisions of the Code of West Virginia, 1931, as amended relating to imposition, administration, collection and enforcement of the state consumers sales and service tax codified in W. Va. Code § 11-15-1 et seq., the state use tax codified in W. Va. Code § 11-15A-1 et seq., and the streamlined sales and use tax act codified in W. Va. Code § 11-15B-1 et seq. will (1) simplify collection of the taxes, (2) simplify preparation of consumers sales and use tax returns by taxpayers, and (3) improve enforcement of the city's sales and use taxes.

The council does, therefore, declare that this chapter be construed so as to accomplish the foregoing purposes.
(Bill No. 7577, § 1, 5-20-2013)

**Sec. 111-2. Definitions.**

(a) Terms used in this chapter or in the administration, collection and enforcement of the taxes imposed by this chapter and not otherwise defined in this chapter shall have the meanings ascribed to them in articles nine, ten, fifteen, fifteen-a and fifteen-b, chapter eleven of the Code of West Virginia, 1931, as amended.

(b) As used in this section:

(1) *Business* includes all activities engaged in or caused to be engaged in by any person with the object of gain or economic benefit, direct or indirect, and all activities of the state and its political subdivisions which involve sales of tangible personal property or the rendering of services when those service activities compete with or may compete with the activities of other persons.

(2) *City* or *this city* means the City of Charleston, West Virginia.

(3) *Code of West Virginia* means the Code of West Virginia, 1931, as amended.

(4) *Person* means any individual, partnership, association, corporation, limited liability company, limited liability partnership or any other legal entity, including this state or its political subdivisions or an agency of either, or the guardian, trustee, committee, executor or administrator of any person.

(5) *Purchase* means any transfer, exchange or barter, conditional or otherwise, in any manner or by any means whatsoever, for a consideration;

(6) *Purchase price* means the measure subject to the taxes imposed by this chapter and has the same meaning as sales price;

(7) *Purchaser* means a person who purchases tangible personal property, custom software or a service taxed by this chapter.

(8) *Sale, sales* or *selling* have the meaning ascribed to those terms in article fifteen-b, chapter eleven of the Code of West Virginia.

(9) *Sales price* has the meaning ascribed to that term in article fifteen-b, chapter eleven of the Code of West Virginia.

(10) *Sales tax* means the tax levied under section 111-3 of this chapter.

(11) *Service* or *selected service* have the meaning ascribed to those terms in article fifteen-b, chapter eleven of the Code of West Virginia.

(12) *State sales tax* means the tax levied by article fifteen, chapter eleven of the Code of West Virginia.

(13) *State use tax* means the tax levied by article fifteen-a, chapter eleven of the Code of West Virginia.

(14) *Tax* means the taxes imposed by this chapter and includes additions to tax, interest and penalties levied under article ten, chapter eleven of the Code of West Virginia, 1931, as amended.

(15) *Tax Commissioner* means the chief executive office of the tax division of the Department of Revenue of this state, as provided in W. Va. Code § 11-1-1.

(16) *Ultimate consumer* or *consumer* means a person who uses or consumes services or tangible personal property or custom software.

(17) *Use* for purposes of the tax imposed by section 111-4 of this chapter means and includes:

a. The exercise by any person of any right or power over tangible personal property or custom software incident to the ownership, possession or enjoyment of the property, or by any transaction in which possession of or the exercise of any right or power over tangible personal property, custom software or the result of a taxable service is acquired for a consideration, including any lease, rental or conditional sale of tangible personal property or custom software; or

b. The use or enjoyment in this state of the result of a taxable service. As used in this definition, "enjoyment" includes a purchaser's right to direct the disposition of the property or the use of the taxable service, whether or not the purchaser has possession of the property.

The term "use" does not include the keeping, retaining or exercising any right or power over tangible personal property, custom software or the result of a taxable service for the purpose of subsequently transporting it outside the city state for use thereafter solely outside this city.

(18) *Use tax* means the tax imposed by section 111-4 of this chapter.

(19) *Vendor* means any person engaged in this city in furnishing services taxed by this chapter or making sales of tangible personal property or custom software. "Vendor" and "seller" are used interchangeably in this chapter.

(Bill No. 7577, § 1, 5-20-2013)

### Sec. 111-3. Imposition of consumers sales and service tax.

For the privilege of selling tangible personal property or customer software and for the privilege of furnishing certain selected services, a vendor doing business in this city shall collect from the purchaser the taxes imposed by this section and pay the amount of taxes collected to the tax commissioner at the same time and in the same manner as the consumers sales and service tax imposed by article fifteen, chapter eleven of the Code of West Virginia, 1931, as amended. The rate of tax shall be one-half of one percent of the sales price, as defined in section two, article fifteen-b, chapter eleven of the Code of West Virginia, 1931, as amended, of the tangible personal property, custom software or taxable service purchased: Provided, that for sales of tangible personal property, custom software and taxable services made on and after July 1, 2015, the rate of tax imposed by this section shall be one percent of the sales price.

(Bill No. 7577, § 1, 5-20-2013; Bill No. 7633, 11-3-2014)

### Sec. 111-4. Imposition of use tax.

An excise tax is hereby levied and imposed on the use in this city of tangible personal property, custom software and the results of taxable services, to be collected and paid to the tax commissioner as agent for the city in the same manner that state use tax is collected under article fifteen-a and article fifteen-b, chapter eleven of the Code of West Virginia, 1931, as amended. The rate of tax shall be one-half of one percent of the purchase price, as defined in article fifteen-b, chapter eleven of the Code of West Virginia, of the tangible personal property, custom software or taxable service used within the city: Provided, That for tangible personal property, custom software and the results of taxable service used in the City of

Charleston on and after July 1, 2015, the rate of tax imposed by this section shall be one percent of the purchase price.
(Bill No. 7577, § 1, 5-20-2013; Bill No. 7633, 11-3-2014)

### Sec. 111-5. Calculation of tax on fractional parts of a dollar.

The tax computation under section 111-3 and section 111-4 shall be carried to the third decimal place and the tax rounded up to the next whole cent whenever the third decimal place is greater than four and rounded down to the lower whole cent whenever the third decimal place is four or less. The vendor may elect to compute the tax due on a transaction on a per item basis or on an invoice basis provided the method used is consistently used during the reporting period but the method used shall be the same as that used for purposes of computing the state sale or use tax.
(Bill No. 7577, § 1, 5-20-2013)

### Sec. 111-6. State and local sales and use tax bases.

The taxable base of the taxes imposed by section 111-3 and 111-4 of this chapter shall be identical to the sales and use tax base of this state except as provided in section 111-7 of this chapter unless otherwise prohibited by federal law as required by W. Va. Code § 11-15B-34.
(Bill No. 7577, § 1, 5-20-2013)

### Sec. 111-7. Exceptions.

The taxes imposed by this chapter do not apply to:

(1) The sale or use of motor fuel, as defined in article fourteen-c, chapter eleven of the Code of West Virginia, 1931, as amended, upon which the tax imposed by that article is collected.

(2) The sale or use of motor vehicles upon which the tax imposed by section three-c, article fifteen, chapter eleven of the Code of West Virginia, 1931, as amended, is paid.

(3) The purchase or use of any tangible personal property, custom software or service that the city is prohibited from taxing under the laws of this state.

(4) The tax imposed by section 111-3 does not apply to any transaction that is exempt from the tax imposed by article fifteen, chapter eleven of the Code of West Virginia.

(5) The tax imposed by section 111-4 does not apply to any purchase upon which the tax imposed by section 111-3 has been paid.

(Bill No. 7577, § 1, 5-20-2013)

### Sec. 111-8. Credit for local sales tax lawfully paid to another municipality.

(a) A person is entitled to a credit against the use tax imposed by section 111-4 of this chapter on the use of a particular item of tangible personal property, custom software or results of a taxable service equal to the amount, if any, of sales tax lawfully paid to another municipality for the acquisition of that property, custom software or service: Provided, that the amount of credit allowed may not exceed the amount of use tax imposed by section 111-4 on the use of the tangible personal property, custom software or results of the taxable service in this city.

(b) For purposes of this section:

(1) "Sales tax" includes a sales tax or compensating use tax imposed on the sale or use of tangible personal property, custom software or the results of a taxable service by the municipality in which the sale occurred; and

(2) "Municipality" includes municipalities of this state or of any other state of the United States.

(c) No credit is allowed under this section for payment of any sales or use taxes imposed by this state or any other state. For purposes of this paragraph, "state" includes the 50 states of the United States and the District of Columbia but does not include any of the several territories organized by Congress.
(Bill No. 7577, § 1, 5-20-2013)

**Sec. 111-9. Local rate and boundary changes.**

(a) The tax commissioner is required by W. Va. Code § 11-15B-35 to maintain a database for all jurisdictions levying a sales or use tax in this state. The city shall furnish the tax commissioner with information the tax commissioner requires for that database that will allow the tax commissioner to maintain a database that assigns each five-digit and nine-digit zip code within the city to the proper rate of tax. If any nine-digit zip code area includes area outside this city, the single state and local rate assigned to that area in the tax commissioner's database will be the lowest rate applicable to that area: Provided, that, when sales occur at and are sourced to a physical location of the seller located in the city in that nine-digit zip code area, the seller shall collect the tax imposed by section 111-3 of this chapter.

(b) Whenever boundaries of the city change, whether by annexation or de-annexation, the city collector shall promptly notify the tax commissioner in writing of the change in boundaries and provide the tax commissioner with the nine-digit zip code or codes for the area annexed or de-annexed any other information the tax commissioner may require to maintain the database.
(Bill No. 7577, § 1, 5-20-2013)

**Sec. 111-10. State level administration.**

(a) The tax commissioner is responsible for administering, collecting and enforcing the taxes imposed by this chapter as provided in W. Va. Code § 8-13C-6 and § 11-15B-33. The city may enter into an agreement with the tax commissioner that will allow employees of the city auditing a vendor with a physical location in the city for compliance with the city's business and occupation tax to also audit that location for compliance with the sales and use tax laws of this state and this city and to share that information with the tax commissioner.

(b) The tax commissioner may retain from collections of the taxes imposed by this chapter a fee of up to one percent of the amount of the taxes collected by the tax commissioner prior to the effective date of the legislative rule setting the fee pursuant to W. Va. Code § 11-10-11c. The fee retained from taxes collected on and after that date shall be the fee allowed by W. Va. Code § 11-10-11c or by any other state law or legislative rule.

(c) The tax commissioner shall deposit all the proceeds from collection of the taxes imposed by this chapter, minus any fee for collecting, enforcing and administering taxes retained under section 111-10, in the subaccount for this city established in "municipal sales and service tax and use tax fund," an interest bearing account created in the state treasury pursuant to W. Va. Code § 8-13C-7. All moneys collected and deposited in the subaccount for the city shall be remitted at least quarterly by the state treasurer to the City Treasurer, as provided W. Va. Code § 8-13C-7.
(Bill No. 7577, § 1, 5-20-2013)

**Sec. 111-11. Administrative procedures.**

Each and every provision of the West Virginia Tax Procedure and Administration Act set forth in article ten, chapter eleven of the Code of West Virginia applies to the administration, collection and enforcement of the sales and use taxes imposed pursuant to this chapter, except as otherwise expressly provided in article thirteen-c, chapter eight of the Code of West Virginia, with like effect as if that act were applicable only to the taxes imposed by this chapter and were set forth in extenso in this chapter, as provided in W. Va. Code § 8-13C-6.
(Bill No. 7577, § 1, 5-20-2013)

**Sec. 111-12. Criminal penalties.**

Each and every provision of the West Virginia Tax Crimes and Penalties Act set forth in article nine, chapter eleven of the Code of West Virginia applies to the administration, collection and enforcement of the sales and use taxes imposed pursuant to this chapter with like effect as if that act were applicable only to the taxes imposed pursuant to this chapter and were set forth in extenso in this chapter, as provided in W. Va. Code § 8-13C-6: Provided, that the criminal penalties imposed upon conviction for a criminal violation of this chapter may not exceed the maximum penalties allowed by law for that violation.
(Bill No. 7577, § 1, 5-20-2013)

**Sec. 111-13. Automatic updating.**

Any amendments to articles nine, ten, fifteen, fifteen-a and fifteen-b, chapter eleven of the Code of West Virginia shall automatically apply to a sales or use tax imposed pursuant to this chapter, to the extent applicable, as provided in W. Va. Code § 8-13C-6.
(Bill No. 7577, § 1, 5-20-2013)

**Sec. 111-14. Deposit of taxes collected in special revenue funds.**

(a) The special revenue fund in the city treasury previously established, designated and known as the City Sales and Use Tax Fund is hereby continued. The second special revenue fund in the city treasury previously established, designated and known as the Uniform Pensions Reserve Fund is hereby continued. The third special revenue fund in the city treasury previously established, designated and known as the Employee Health Insurance Reserves is hereby continued. The City Sales and Use Tax Fund shall continue to receive all revenues received from collection of the city's sales and use taxes, including any interest, additions to tax and penalties deposited with the city treasurer.

(b) Revenues in the City Sales and Use Tax Fund shall be used each quarter: (i) first, to satisfy the debt service requirements and any prior debt service requirements deficit on, and to replenish any required reserves in accordance with the bond documents for, any bonds issued by, or other obligations incurred by, the city, from time to time, including any refunding bonds, to finance improvements to the Charleston Coliseum and Convention Center and for any other economic development or public safety projects, including the funding of any reserve funds relating to any such bonds or other obligations, and/or to make lease payments which secure bonds issued to finance improvements to such Charleston Coliseum and Convention Center or other economic development projects; (ii) second, after providing for payment of first priority items, (a) during the period of October 1 through October 31, 2015, or at such other time as the city treasurer receives the quarterly remittance from the state tax department representing collections for the period of June, July, and August, 2015, 40 percent of the revenues received from the taxes imposed by this chapter, or any lessor amount remaining after providing for payment of first priority items, shall be deposited in the Uniform Pensions Reserve Fund, (b) during the period of November 1, 2015 through September 30, 2023, one-half of the revenues received from the taxes imposed by this chapter, or any lessor amount remaining after providing for payment of first priority items, shall be deposited in the Uniform Pensions Reserve Fund, and (c) beginning October 1, 2023, 33 percent of the revenues received from the taxes imposed by this chapter, or any lessor amount remaining after providing for payment of first priority items, shall be deposited in the Uniform Pensions Reserve Fund; and (iii) third, after providing for payment of first and second priority items, in the event there were insufficient funds available in any prior quarter to transfer 40 percent, one-half, or 33 percent, as applicable, of the revenues received from the taxes imposed by this chapter to the Uniform Pensions Reserve Fund, such amounts shall be deposited in the Uniform Pensions Reserve Fund from revenues available in the City Sales and Use Tax Fund; and (iv) fourth, after providing for payment of first, second and third priority items, any unencumbered revenue in the City Sales and Use Tax Fund may periodically be transferred as necessary or convenient to the Employee Health Insurance Reserves. Additionally, there shall be deposited in each fund: (1) all appropriations to the particular fund; (2) all interest earned from investment of the particular fund; and (3) any gifts, grants or contributions received and placed by the city into the City Sales and Use Tax Fund, the Uniform Pensions Reserve Fund, or Employee Health Insurance Reserves. Revenues in the City Sales and Use Tax Fund, the Uniform Pensions Reserve Fund, and the Employee Health Insurance Reserves shall not be treated by any person as general revenue of the city.

(c) Revenues in the Uniform Pensions Reserve Fund shall be used: (i) first, pay any required annual contribution established for the closed pension trusts using the optional method set forth in W. Va. Code § 8-22-20(e) after first

applying the member contributions and premium tax, and any other dedicated or designated income sources as authorized by law, to any such obligations; (ii) second, after providing for payment of first priority items, to satisfy the city's obligations to the Municipal Police Officers and Firefighters Retirement System for the new members hired after the closure of the pension trusts to new members as provided by W. Va. Code §§ 8-22-20(f)(3) and 8-22a-1, et. seq.; and (iii) third, at such time as the actuarial report required by W. Va. Code § 8-22-20(e) indicates no actuarial deficiency in the closed municipal policemen's or firemen's pension and relief funds, and after providing for payment of first and second priority items and normal costs as contemplated by W. Va. Code § 8-22-20(e)(2), any remaining and unencumbered revenues may be transferred as necessary or convenient to the city's Employee Health Insurance Reserves; Provided: nothing herein shall preclude transfers from the Uniform Pensions Reserve Fund into the city's general revenue account or any other fund or account from time to time in such amounts as may be necessary or convenient to facilitate the payment of obligations or to accomplish the purposes herein, so long as consistent with the priorities set forth in this subsection.

(d) Revenue in the Employee Health Insurance Reserves shall be held to satisfy future retiree healthcare, dental, and optical insurance expenses until such the time that the city establishes an irrevocable Other Post Employment Benefits trust for the purpose of funding such benefits for eligible retirees. At such time that the city establishes an Other Post Employment Benefits trust, revenue derived from the distribution in subsection (b) of this section to the Employee Health Insurance Reserves shall be transferred to the trust to be used in accordance with the trust policy.

(Bill No. 7577, § 1, 5-20-2013; Bill No. 7633, 11-3-2014; Ord. No. 7660, 7-20-2015; Bill No. 7799, 11-19-2018; Bill No. 7890, 1-4-2021; Bill No. 8010, 8-21-2023)

**Sec. 111-15. Effective date.**

This chapter was adopted by city council on May 20, 2013 and took effect from its adoption by city council as provided in Section 41 of the charter of this city. By ordinance, the city suspended the collection of the sales and use taxes until the State Tax Commissioner could provide appropriate notice and lawfully collect the sales and use taxes on behalf of the city. The State Tax Commissioner began collection of the sales and use taxes authorized by this chapter on October 1, 2013.

(Bill No. 7577, § 1, 5-20-2013; Bill No. 7633, 11-3-2014)

Chapters 112, 113

**RESERVED**

Chapter 114

# TRAFFIC ORDINANCE*

## Article I. In General


Sec. 114-1. Short title.
Sec. 114-2. Definitions.
Sec. 114-3. Penalties.
Sec. 114-4. Parties to an offense.
Sec. 114-5. Offenses by persons owning or controlling vehicles.
Sec. 114-6. State laws adopted by reference.
Sec. 114-7. Provisions of chapter refer to vehicles upon streets and highways; exceptions.
Sec. 114-8. Required obedience to chapter.
Sec. 114-9. Obedience to chapter by public officials and employees; exceptions as to persons engaged in highway surface work.
Sec. 114-10. Persons riding animals; animal-drawn vehicles.
Sec. 114-11. Obedience to police orders.
Sec. 114-12. Obedience to traffic control instructions at site of street or highway construction or maintenance.
Sec. 114-13. Authorized emergency vehicles.
Sec. 114-14. Permit to operate authorized emergency vehicle.
Sec. 114-15. Rights of owners of real property.
Sec. 114-16. Processions and parades; permit required; exceptions.
Sec. 114-17. Funeral processions.
Sec. 114-18. Toy vehicles on streets and sidewalks.
Sec. 114-19. Glass and injurious materials not to be deposited on street; removal of substances from scene of wrecked vehicle.
Sec. 114-20. Unlawful taking of vehicle.
Sec. 114-21. Injuring or tampering with vehicle.
Sec. 114-22. Removal from streets of wrecked or abandoned vehicles.
Sec. 114-23. Boarding or alighting from moving vehicles.
Sec. 114-24. Unlawful riding.
Secs. 114-25—114-50. Reserved.


## Article II. Administration and Enforcement

### Division 1. Generally


Sec. 114-51. Authority of firefighters and rescue squad members to direct traffic.
Sec. 114-52. Powers and duties of police department.
Sec. 114-53. Authority of chief of police to issue permits.
Sec. 114-54. Authority of chief of police to close streets and to emplace signs.
Sec. 114-55. Interference with official traffic control devices or railroad signs or signals.
Secs. 114-56—114-80. Reserved.


---

***Cross references—**Any ordinance establishing traffic regulations for specific locations saved from repeal, § 1-17(16); transportation of alcoholic liquors for purpose of sale, § 6-92; courts, ch. 38; abandoned vehicles and junk, § 50-81 et seq.; parking on street in trailer camps, § 70-63; offenses and miscellaneous provisions, ch. 78; transportation and disposal of tires, § 98-171 et seq.; streets, sidewalks and other public places, ch. 102; vehicles for hire, ch. 122.

**State law references—**Traffic generally, W. Va. Code § 17C-1-1 et seq.; authority to provide for the use of the city's streets, roads and ways, W. Va. Code §§ 8-12-2, 8-12-5(4); authority to adopt traffic regulations not inconsistent with law, W. Va. Code §§ 17C-2-7, 17C-2-8.

Division 2. Violations

Sec. 114-81. Presumption as to violations involving vehicles in motion and precedent condition.
Sec. 114-82. Arrest or appearance in answer to notice of violation; bail bond; service of notice to appear.
Sec. 114-83. Bond for double amount of fine.
Sec. 114-84. Failure to obey notice of summons.
Sec. 114-85. Issuance of books of parking tags or summons to police.
Sec. 114-86. Receipts for bonds posted or fines paid.
Sec. 114-87. How traffic officers to sign summons; time for payment of fines or posting bonds.
Sec. 114-88. Notice to parking offenders failing to obey summons.
Sec. 114-89. List to municipal court clerk of unanswered summonses; warrants.
Sec. 114-90. Parking citation as prima facie evidence of offense; process to pay or contest parking citations.
Sec. 114-91. Report of failure to cooperate with municipal court clerk; interference.
Sec. 114-92. Duties of city auditor.
Secs. 114-93—114-120. Reserved.

Division 3. Vehicle Impoundment and Immobilization

Sec. 114-121. Intent and purpose.
Sec. 114-122. Removal and impoundment.
Sec. 114-123. Immobilization.
Sec. 114-124. Notice of immobilization.
Sec. 114-125. Notice to owner of impounded vehicle.
Sec. 114-126. Owner responsibility.
Sec. 114-127. Records.
Sec. 114-128. Release of vehicle.
Sec. 114-129. Notification of vehicle owner and lienholders.
Sec. 114-130. Sale of vehicle.
Sec. 114-131. Rules and regulations.
Secs. 114-132—114-150. Reserved.

Division 4. Meter Patrol

Sec. 114-151. Appointment; assignment.
Sec. 114-152. Rules and regulations; compensation and hours of duty.
Sec. 114-153. Power and duties; training.
Sec. 114-154. Uniform and equipment.
Sec. 114-155. Notice of parking offenders.
Secs. 114-156—114-190. Reserved.

## Article III. Accidents and Accident Reports

Sec. 114-191. Information required.
Sec. 114-192. Accident involving unattended vehicle.
Sec. 114-193. Accidents involving only property damage.
Sec. 114-194. Report if driver incapacitated.
Secs. 114-195—114-230. Reserved.

## Article IV. Traffic Control Signs, Signals, Devices and Markings

Division 1. Generally

Sec. 114-231. Effect of previously installed traffic control devices.

Sec. 114-232. Obedience to traffic control devices.
Sec. 114-233. Signs to be legible and in place.
Sec. 114-234. Traffic control signal legend.
Sec. 114-235. Turning right on red regulated.
Sec. 114-236. Locations where right turn on red prohibited.
Sec. 114-237. Pedestrian walk and wait signals.
Sec. 114-238. Flashing signals.
Sec. 114-239. When "stop" signal may be disregarded.
Sec. 114-240. Installation and maintenance of traffic control devices; specifications; state approval required to place devices upon state highway.
Sec. 114-241. Fire lanes on private property devoted to public use.
Sec. 114-242. Unauthorized signs, signals or markings; nuisances.
Secs. 114-243—114-260. Reserved.

Division 2. Traffic Control Map

Sec. 114-261. Established; contents.
Sec. 114-262. Traffic control file.
Sec. 114-263. Amendments.
Sec. 114-264. One-way streets.
Sec. 114-265. Prohibited and limited turns.
Secs. 114-266—114-300. Reserved.

**Article V. Serious Traffic Offenses**

Division 1. Generally

Sec. 114-301. Reckless driving.
Sec. 114-302. Driving under influence of alcohol, controlled substances or drugs.
Sec. 114-303. Phrases synonymous with "driving under the influence of alcohol"; validation of warrants and indictments.
Secs. 114-304—114-320. Reserved.

Division 2. Proof of Alcohol Content; License Suspension

Sec. 114-321. Implied consent to test; administration at direction of police officer.
Sec. 114-322. How blood test administered; use of test results; certain immunity from liability incident to administering test.
Sec. 114-323. Refusal to submit to certain chemical tests; procedure to initiate suspension of driver's license or privilege; consent not withdrawn if arrested person incapable of refusal.
Sec. 114-324. Interpretation and use of chemical test.
Sec. 114-325. Right to demand test.
Sec. 114-326. Fee for withdrawing blood sample and making urine test.
Sec. 114-327. Hearing procedure; judicial review.
Secs. 114-328—114-360. Reserved.

**Article VI. Vehicle Operation**

Division 1. Generally

Sec. 114-361. Motor vehicle drivers must be licensed.
Sec. 114-362. Vehicle registration plates required.
Sec. 114-363. State vehicle inspection certificate required.

Sec. 114-364. Safety equipment and requirements for motorcyclists and motorcycles.
Sec. 114-365. Obstruction to driver's view or driving mechanism.
Sec. 114-366. Reserved.
Sec. 114-367. Backing.
Sec. 114-368. Restricted access.
Sec. 114-369. One-way streets.
Sec. 114-370. Closed streets.
Sec. 114-371. Driving on sidewalk.
Sec. 114-372. Signs indicating vehicles of certain types or weight prohibited on certain streets or bridges.
Sec. 114-373. Safety zones.
Sec. 114-374. Zones of quiet.
Sec. 114-375. Play streets.
Sec. 114-376. Following too closely.
Sec. 114-377. Following fire apparatus prohibited.
Sec. 114-378. Driving with clutch or gears disengaged.
Sec. 114-379. Crossing fire hose.
Sec. 114-380. Obstructing intersection or crosswalk.
Sec. 114-381. Towing.
Secs. 114-382—114-400. Reserved.

Division 2. Speed

Sec. 114-401. Speed restrictions generally.
Sec. 114-402. Maximum speed limits established.
Sec. 114-403. Minimum speed.
Sec. 114-404. Nonpassenger vehicles with pneumatic tires.
Sec. 114-405. Vehicles without pneumatic tires.
Sec. 114-406. Speed on bridges.
Sec. 114-407. Slow-moving vehicle emblem.
Secs. 114-408—114-430. Reserved.

Division 3. Driving on Right Side of Roadway, Overtaking and Passing

Sec. 114-431. Keeping to right side of roadway; exceptions.
Sec. 114-432. Passing in opposite directions.
Sec. 114-433. Overtaking and passing on left.
Sec. 114-434. When overtaking on right permissible.
Sec. 114-435. Limitations on overtaking on left.
Sec. 114-436. Driving to left of center.
Sec. 114-437. No passing zones.
Sec. 114-438. Dividing traffic islands; double lines on streets.
Sec. 114-439. Rotary traffic islands.
Sec. 114-440. Roadways laned for traffic.
Sec. 114-441. Divided streets.
Secs. 114-442—114-460. Reserved.

Division 4. Turning, Starting and Signals on Stopping and Turning

Sec. 114-461. Required position and method of turning at intersections.
Sec. 114-462. Right turns.
Sec. 114-463. Left turns on two-way roadways.
Sec. 114-464. Left turns on other than two-way roadways.
Sec. 114-465. Stopping and sudden decrease of speed require signal be given.
Sec. 114-466. U-turns.
Sec. 114-467. Obedience to turn signs and travel indicators.

Sec. 114-468. Starting parked vehicle.
Sec. 114-469. Turning at intersections.
Sec. 114-470. Signals by hand and arm or signal device.
Sec. 114-471. Method of giving hand-and-arm signals.
Secs. 114-472—114-490. Reserved.

Division 5. Right-of-Way

Sec. 114-491. Upon approaching or entering intersection.
Sec. 114-492. When faced by yield right-of-way sign.
Sec. 114-493. When turning left at intersection.
Sec. 114-494. When entering through highway or stop intersections.
Sec. 114-495. When emerging from alley, private driveway, parking lot or garage.
Sec. 114-496. Upon approach of authorized emergency vehicles.
Secs. 114-497—114-510. Reserved.

Division 6. Special Stops

Sec. 114-511. At railroad crossings generally.
Sec. 114-512. Certain vehicles at grade crossings.
Sec. 114-513. Heavy equipment at grade crossings.
Sec. 114-514. Stop signs at intersections.
Sec. 114-515. Stop before emerging from alley or private driveway.
Sec. 114-516. Upon meeting a stopped school bus; requirements for school buses.
Secs. 114-517—114-550. Reserved.

**Article VII. Stopping, Standing and Parking**

Division 1. Generally

Sec. 114-551. Presumption as to and condition precedent to illegal parking.
Sec. 114-552. Impounding vehicles.
Sec. 114-553. Owner responsible for illegal parking.
Sec. 114-554. Unattended motor vehicle.
Sec. 114-555. Parking parallel to curb, close to curb; angle parking.
Sec. 114-556. Where less than ten feet of roadway left available for traffic.
Sec. 114-557. Stopping outside of business or residence districts restricted.
Sec. 114-558. Officers authorized to remove illegally stopped vehicles.
Sec. 114-559. Stopping, standing or parking prohibited in specified places.
Sec. 114-560. Display for sale; repair or advertising on street.
Sec. 114-561. Vehicles laden with explosives or flammable materials.
Sec. 114-562. Headlamps on parked vehicles.
Sec. 114-563. Backing up to curb to load or unload; loading permits.
Sec. 114-564. Regulation of parking by signposting in prohibited parking areas generally.
Sec. 114-565. No parking at entrances to certain buildings.
Sec. 114-566. Limited parking areas.
Sec. 114-567. Physicians on emergency calls; vehicles while being loaded or unloaded; police department vehicles.
Sec. 114-568. Hazardous or congested places.
Sec. 114-569. Stopping, standing or parking prohibited beneath fire escapes and within 15 feet of emergency exits.
Sec. 114-570. Adjacent to schools.

Sec. 114-571. Alleys and driveways.
Sec. 114-572. Bridges, railroad crossings, underpasses and overpasses.
Sec. 114-573. Truck width, height and load restrictions; 4:00 p.m. to 6:00 p.m. parking prohibited in certain area.
Sec. 114-574. Vehicles parked on private property.
Sec. 114-575. Procedure for establishment of loading zones; conditions governing; loading zone record.
Sec. 114-576. Permitted uses of loading zones.
Sec. 114-577. Bus stops or stands.
Sec. 114-578. Residential permit parking.
Sec. 114-579. Residential permit parking policy.
Sec. 114-580. Valet parking areas.
Secs. 114-581—114-600. Reserved.

Division 2. City-Owned Parking Lots and Buildings

Sec. 114-601. Powers and duties of city council.
Sec. 114-602. Management of and regulations governing city-owned lots and buildings.
Sec. 114-603. Reserved.
Secs. 114-604—114-620. Reserved.

Division 3. On-Street Metered Parking

Sec. 114-621. Hours of operation; duty of driver upon entering parking spaces; deposit of coins; overtime parking.
Sec. 114-622. Per-hour parking fees established.
Sec. 114-623. Per-hour parking fee established.
Sec. 114-624. Time limits as specified on meters prevail in cases of conflict.
Sec. 114-625. Vehicle to be parked wholly within marked parking space.
Sec. 114-626. No different or additional rights granted by division; disposition of fees.
Sec. 114-627. Slugs; injuring or tampering with meters.
Sec. 114-628. Parking spaces; erecting and relocating meters.
Secs. 114-629—114-660. Reserved.

**Article VIII. Pedestrians**

Sec. 114-661. Subject to traffic regulations.
Sec. 114-662. Right-of-way in crosswalks.
Sec. 114-663. Crossing at other than crosswalks.
Sec. 114-664. Drivers to exercise due care.
Sec. 114-665. Use of right half of crosswalks.
Sec. 114-666. Use of sidewalks.
Sec. 114-667. Walking along roadway.
Sec. 114-668. Hitchhiking.
Sec. 114-669. Blind pedestrians.
Sec. 114-670. Persons working on streets and highways.
Sec. 114-671. Penalties for pedestrian violations.
Secs. 114-672—114-700. Reserved.

**Article IX. Bicycles**

Division 1. Generally

Sec. 114-701. Obedience to article; duty of parents and guardians; applicability of article to bicycles.

Sec. 114-702. Traffic laws apply to persons riding bicycles.
Sec. 114-703. Riding on bicycles.
Sec. 114-704. Clinging to vehicles.
Sec. 114-705. Riding on roadways and paths.
Sec. 114-706. Riding on sidewalk.
Sec. 114-707. Riding without feet on pedals.
Sec. 114-708. Fancy riding.
Sec. 114-709. Carrying articles.
Sec. 114-710. Headlamp and rear reflector.
Sec. 114-711. Signal device.
Sec. 114-712. Brakes.
Sec. 114-713. Penalties for bicycle violations.
Secs. 114-714—114-730. Reserved.

Division 2. Reserved

Secs. 114-731—114-760. Reserved.

**Article X. Tow Trucks**

Sec. 114-761. Generally.
Sec. 114-762. Minimum standards to be met by towing companies.
Secs. 114-763—114-790. Reserved.

**Article XI. Weight Limits**

Sec. 114-791. Permitting excessive size and weight of vehicles on city streets and highways.
Sec. 114-792. Vehicular truck traffic on Kanawha Boulevard.
Secs. 114-793—114-810. Reserved.

**Article XII. Vehicle Equipment**

Sec. 114-811. Unsafe and improperly equipped vehicles; all vehicles to be equipped as provided by state law.
Sec. 114-812. Child passenger restraining system required.
Sec. 114-813. Brakes.
Sec. 114-814. Tractors and vehicles equipped with chains or cleats.
Sec. 114-815. Lights.
Sec. 114-816. Horns and other sounding devices.
Sec. 114-817. Sirens and exhaust whistles.
Sec. 114-818. Cutouts and mufflers; racing motors or producing noise; smoke and gasses.
Sec. 114-819. Quiet operation of motorcycles; mufflers.
Sec. 114-820. Rear vision mirror on motorcycles.
Sec. 114-821. Vehicles transporting explosives.
Sec. 114-822. Driving vehicles carrying projecting objects.
Sec. 114-823. Transportation and delivery of oil.
Sec. 114-824. Sound apparatus on vehicles.
Secs. 114-825—114-861. Reserved.

**Article XIII. All-Terrain Vehicles**

Sec. 114-862. Definitions.
Sec. 114-863. Prohibition of operation and use of all-terrain vehicles.
Sec. 114-864. Exceptions.
Sec. 114-865. Exemptions.
Sec. 114-866. Authorizing or permitting a minor to violate any provision of this article.

Sec. 114-867. Penalties.
Sec. 114-868. Liability.
Secs. 114-869—114-914. Reserved.

**Article XIV. Motorized Scooter**

Sec. 114-915. Definitions.
Sec. 114-916. Authorizing the use of motorized scooters.
Sec. 114-917. Additional requirements for operation between sunset and sunrise.
Sec. 114-918. Prohibited acts.
Sec. 114-919. Authorizing or permitting a minor to violate any provision of this article.
Sec. 114-920. Penalties.
Sec. 114-921. Liability.

## ARTICLE I. IN GENERAL

### Sec. 114-1. Short title.

This chapter shall be known and may be cited as the Traffic Ordinance of the City of Charleston, or simply as the traffic ordinance.
(Code 1975, § 31-1)

### Sec. 114-2. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

*Authorized emergency vehicles* means vehicles of the fire department, duly chartered rescue squad and police vehicles, and such ambulances and emergency vehicles of municipal departments or public service corporations as are designated or authorized by the chief of police, and such privately owned ambulances and emergency vehicle as are designated by the chief of police.

**State law reference—**Similar provisions, W. Va. Code § 17C-1-6.

*Auto trailer* means any vehicle or trailer used for living and sleeping purposes.

*Bicycle* means every device propelled by human power upon which any person may ride, having two tandem wheels either of which is more than 20 inches in diameter.

**State law reference—**Similar provisions, W. Va. Code § 17C-1-8.

*Bus* means every motor vehicle designed for carrying more than seven passengers and used for the transportation of persons; and every motor vehicle, other than a taxicab, designed and used for the transportation of persons for compensation.

**State law reference—**Similar provisions, W. Va. Code § 17C-1-13.

*Business district* means the territory contiguous to and including a street when within any 600 feet along such street there are buildings in use for business or industrial purposes, including but not limited to hotels, banks, office buildings, railroad stations, and public buildings which occupy at least 300 feet of frontage on one side or 300 feet collectively on both sides of the street.

*Controlled-access highway* means every highway, street or roadway in respect to which owners or occupants of abutting lands and other persons have no legal right of access to or from the highway, street or roadway except at such points only and in such manner as may be determined by the public authority having jurisdiction over such highway, street or roadway.

**State law reference—**Similar provisions, W. Va. Code § 17C-1-41.

*Crosswalk* means that part of a roadway at an intersection included within the connections of the lateral lines of the sidewalks on opposite sides of the street measured from the curbs or, in the absence of curbs, from the edges of the traversable roadway and any portion of a roadway at an intersection or elsewhere distinctly indicated for pedestrian crossing by lines or other markings on the surface.

**State law reference—**Similar provisions, W. Va. Code § 17C-1-43.

*Driver* means every person who drives or is in actual physical control of a vehicle.

**State law reference—**Similar provisions, W. Va. Code § 17C-1-31.

*Explosives* means any chemical compound or mechanical mixture that is commonly used or intended for the purpose of producing an explosion and which contains any oxidizing and combustive units or other ingredients in such proportions, quantities or packing that an ignition by fire, by friction, by concussion, by percussion, or by detonator of any part of the compound or mixture may cause such a sudden generation of highly heated gases that the resultant gaseous pressures are capable of producing destructive effects on contiguous objects or of destroying life or limb.

**State law reference—**Similar provisions, W. Va. Code § 17C-1-24.

*Farm tractor* means every motor vehicle designed and used primarily as a farm implement for drawing plows, mowing machines, and other implements of husbandry.

**State law reference—**Similar provisions, W. Va. Code § 17C-1-10.

*Flammable liquid* means any liquid which has a flash point of 70 degrees Fahrenheit or less, as determined by a Tagliabue or equivalent closed-cup test device.

**State law reference—**Similar provisions, W. Va. Code § 17-1-25.

*Gross weight* means the weight of a vehicle without load plus the weight of any load on the vehicle.

**State law reference—**Similar provisions, W. Va. Code § 17-1-26.

*Intersection* includes the area embraced within the prolongation or connection of the lateral curblines, or, if none, then the lateral boundary lines of the roadways of two streets which join one another at or approximately at right angles, or the area within which vehicles traveling upon different streets joining at any other angle may come in conflict; and where a street or highway includes two roadways 30 feet or more apart, every crossing of each roadway of such divided street or highway by an intersecting street shall be regarded as a separate intersection. If such intersecting street also includes two roadways 30 feet or more apart, every crossing of two roadways of such streets or highways shall be regarded as a separate intersection.

**State law reference—**Similar provisions, W. Va. Code § 17C-1-42.

*Laned roadway* means a roadway which is divided into two or more clearly marked lanes for vehicular traffic.

**State law reference—**Similar provisions, W. Va. Code § 17C-1-39.

*Metal tire* means every tire the surface of which in contact with the highway is wholly or partly of metal or other hard, nonresilient material.

**State law reference—**Similar provisions, W. Va. Code § 17C-1-20.

*Motor vehicle* means every vehicle which is self-propelled and every vehicle which is propelled by electric power obtained from overhead trolley wires, but not operated upon rails.

**State law reference—**Similar provisions, W. Va. Code § 17C-1-3.

*Motor-driven cycle* means every motorcycle, including every motor scooter, with a motor which produces not to exceed five horsepower, and every bicycle with motor attached.

**State law reference—**Similar provisions, W. Va. Code § 17C-1-5.

*Motorcycle* means every motor vehicle having a seat or saddle for the use of the rider and designed to travel on not more than three wheels in contact with the ground, but excluding a tractor.

**State law reference—**Similar provisions, W. Va. Code § 17C-1-4.

*Official traffic control devices* means all signs, signals, markings and devices not inconsistent with this chapter placed or erected by authority of a public body or official having jurisdiction, for the purpose of regulating, warning or guiding traffic.

*Owner* means a person who holds the legal title of a vehicle, or if a vehicle is the subject of an agreement for the conditional sale or lease of the vehicle with the right of purchase upon performance of the conditions stated in the agreement and with an immediate right of possession vested in the conditional vendee or lessee, or if a mortgagor of a vehicle is entitled to possession, such conditional vendee or lessee or mortgagor shall be deemed the owner for the purposes of this chapter.

**State law reference—**Similar provisions, W. Va. Code § 17C-1-32.

*Park,* when prohibited, means the standing of a vehicle, whether occupied or not, otherwise than temporarily for the purpose of and while actually engaged in loading or unloading.

**State law reference—**Similar provisions, W. Va. Code § 17C-1-54.

*Parking enforcement officer* means any person appointed by the mayor pursuant to City Code section 114-151 to enforce the on-street and off-street parking codes, rules and regulations of the City of Charleston under the supervision of the parking system director.

*Parking meter* means and includes any patented mechanical device or contrivance having a timing meter and used for timing the parking of vehicles on the public streets or highways.

*Pedestrian* means any person afoot.

**State law reference—**Similar provisions, W. Va. Code § 17C-1-30.

*Person* means every natural person, firm, copartnership, association or corporation.

**State law reference—**Similar provisions, W. Va. Code § 17C-1-29.

*Pneumatic tire* means every tire in which compressed air is designed to support the load.

**State law reference—**Similar provisions, W. Va. Code § 17C-1-18.

*Pole trailer* means every vehicle without motive power designed to be drawn by another vehicle and attached to the towing vehicle by means of a reach, or pole, or by being boomed or otherwise secured to the towing vehicle, and ordinarily used for transporting long or irregularly shaped loads such as poles, pipes or structural members capable, generally, of sustaining themselves as beams between the supporting connections.

**State law reference—**Similar provisions, W. Va. Code § 17C-1-17.

*Police officer* means every person authorized to direct or regulate traffic or to make arrests for violations of traffic regulations.

**State law reference—**Similar provisions, W. Va. Code § 17C-1-33.

*Private property* means real estate in private ownership without regard to the manner in which it is used.

**State law reference—**Similar provisions, W. Va. Code § 17C-1-36(b).

*Private road or driveway* means every way or place in private ownership and used for vehicular travel by the owner and those having express or implied permission from the owner, but not by other persons.

**State law reference—**Similar provisions, W. Va. Code § 17C-1-36(a).

*Railroad* means a carrier of persons or property upon cars, other than streetcars, operated upon stationary rails.

**State law reference—**Similar provisions, W. Va. Code § 17C-1-21.

*Railroad sign or signal* means any sign, signal or device erected by authority of a public body or official or by a railroad and intended to give notice of the presence of railroad tracks or the approach of a railroad train.

**State law reference—**Similar provisions, W. Va. Code § 17C-1-49.

*Railroad train* means a steam engine, electric or other motor, with or without cars coupled to the train, operated upon rails, except streetcars.

**State law reference—**Similar provisions, W. Va. Code § 17C-1-22.

*Residence district* means the territory contiguous to and including a street not comprising a business district when the property on such street for a distance of 300 feet or more is in the main improved with residences or residences and buildings in use for business.

**State law reference—**Similar provisions, W. Va. Code § 17C-1-46.

*Right-of-way* means the privilege of the immediate use of the street.

**State law reference—**Similar provisions, W. Va. Code § 17C-1-51.

*Road tractor* means every motor vehicle designed and used for drawing other vehicles and not so constructed as to carry any load either independently or any part of the weight of a vehicle or load so drawn.

**State law reference—**Similar provisions, W. Va. Code § 17C-1-11.

*Roadway* means that portion of a street or highway improved, designed or ordinarily used for vehicular travel, exclusive of the berm or shoulder. If a street or highway includes two or more separate roadways, the term refers to any such roadway separately but not to all such roadways collectively.

**State law reference—**Similar provisions, W. Va. Code § 17C-1-37.

*Safety zone* means the area or space officially set apart within a roadway for the exclusive use of pedestrians and which is protected or is so marked or indicated by adequate signs as to be plainly visible at all times while set apart as a safety zone.

**State law reference—**Similar provisions, W. Va. Code § 17C-1-44.

*School bus* means every motor vehicle owned by a public or governmental agency and operated for the transportation of children to or from school

or privately owned and operated for compensation for the transportation of children to or from school.

**State law reference—**Similar provisions, W. Va. Code § 17C-1-7.

*School grounds* means the land on which a school is built, together with such other land used by students for play, recreation or athletic events while attending school.

**State law reference—**Similar provisions, W. Va. Code § 17C-1-55.

*Semitrailer* means every vehicle with or without motive power, other than a pole trailer, designed for carrying persons or property and for being drawn by a motor vehicle and so constructed that some part of its weight and that of its load rests upon or is carried by another vehicle.

**State law reference—**Similar provisions, W. Va. Code § 17C-1-16.

*Sidewalk* means that portion of a street between the curblines or the lateral lines of a roadway, and the adjacent property lines, intended for the use of pedestrians.

**State law reference—**Similar provisions, W. Va. Code § 17C-1-38.

*Solid tire* means every tire of rubber or other resilient material, which does not depend upon compressed air for the support of the load.

**State law reference—**Similar provisions, W. Va. Code § 17C-1-19.

*Stop,* when required, means complete cessation from movement.

**State law reference—**Similar provisions, W. Va. Code § 17C-1-52.

*Stop, stopping* or *standing,* when prohibited, means any stopping or standing of a vehicle, whether occupied or not, except when necessary to avoid conflict with other traffic or in compliance with the directions of a police officer or traffic control sign or signal.

**State law reference—**Similar provisions, W. Va. Code § 17C-1-53.

*Street* or *highway* means the entire width between the boundary lines of every way publicly maintained when any part is open to the use of the public for purposes of vehicular travel.

**State law reference—**Similar provisions, W. Va. Code § 17C-1-35.

*Through street* means every street or portion of a street at the entrances to which vehicular traffic from intersecting streets is required by law to stop before entering or crossing and when stop signs are erected as provided in this chapter.

**State law reference—**Similar provisions, W. Va. Code § 17C-1-40.

*Traffic* means pedestrians, ridden or herded animals, vehicles, streetcars, and other conveyances either singly or together while using any street for purposes of travel.

**State law reference—**Similar provisions, W. Va. Code § 17C-1-50.

*Traffic control signal* means any device, whether manually, electrically or mechanically operated, by which traffic is alternately directed to stop and to proceed.

**State law reference—**Similar provisions, W. Va. Code § 17C-1-48.

*Traffic violation* means any violation of this chapter, including, but not limited to, moving violations; parking violations; registration, proof of insurance, license, or motor vehicle inspection violations; or any other such violations proscribed by this chapter.

*Trailer* means every vehicle with or without motive power, other than a pole trailer, designed for carrying persons or property and for being drawn by a motor vehicle and so constructed that no part of its weight rests upon the towing vehicle.

**State law reference—**Similar provisions, W. Va. Code § 17C-1-15.

*Truck* means every motor vehicle designed, used or maintained primarily for the transportation of property.

**State law reference—**Similar provisions, W. Va. Code § 17C-1-12.

*Truck tractor* means every motor vehicle designed and used primarily for drawing other vehicles and not so constructed as to carry a load other than a part of the weight of the vehicle and load so drawn.

**State law reference—**Similar provisions, W. Va. Code § 17C-1-9.

*Vehicle* means every device in, upon or by which any person or property is or may be trans-

ported or drawn upon a street, except devices moved by human power or used exclusively upon stationary rails or tracks.

**State law reference—**Similar provisions, W. Va. Code § 17C-1-2.

*West Virginia Department of Motor Vehicles (the "DMV")* means the administrative agency of the State of West Virginia created by state code for purposes of administering the licensing, registration, and other motor vehicle code provisions entrusted to it by the Legislature of this state.

(Code 1975, § 31-2; Ord. No. 7251, 2-20-2007)

**Cross reference—**Definitions generally, § 1-2.

## Sec. 114-3. Penalties.

(a) Every person convicted of a violation of any of the provisions of this chapter for which another penalty is not provided shall, for a first conviction, be punished by a fine of not more than $100.00 or by imprisonment for not more than ten days; for a second such conviction within one year thereafter, such person shall be punished by a fine of not more than $200.00 or by imprisonment for not more than 20 days or both such fine and imprisonment; and upon a third or subsequent conviction, such persons shall be punished by a fine of not more than $500.00 or by imprisonment for not more than 30 days or both such fine and imprisonment.

(b) In addition to any other fines and costs required by ordinance or state code, any individual found guilty of a traffic offense which is a moving violation shall be assessed an additional amount of $5.00, which additional amount shall be retained by the city in a separate account and used solely for police training and the purchase of equipment relating to police training.

(c) Fine amounts for parking violations, including increased fine amounts if not paid in full within ten days of issuance as required by City Code section 114-90, shall be as follows:

| *PARKING VIOLATION:* | *FINE:* | *FINE IF PAID AFTER TEN DAYS FROM ISSUANCE:* |
|---|---|---|
| Overtime Meter | $10.00 | $40.00 |
| Loading Zone | 25.00 | 50.00 |
| Bus Zone | 25.00 | 50.00 |
| Taxi Zone | 25.00 | 50.00 |
| Police Zone | 25.00 | 50.00 |
| Fire Lane | 25.00 | 50.00 |
| Fire Hydrant | 25.00 | 50.00 |
| Blocked Traffic | 25.00 | 50.00 |
| Blocked Driveway | 25.00 | 50.00 |
| Blocked Crosswalk | 25.00 | 50.00 |
| Blocked Intersection | 25.00 | 50.00 |
| Street Cleaning | 25.00 | 50.00 |
| Blocked Sidewalk | 25.00 | 50.00 |
| Overtime Marked Space | 25.00 | 50.00 |
| Wrong Side of Street | 25.00 | 50.00 |
| To Near Street Corner | 25.00 | 50.00 |
| In Alley | 25.00 | 50.00 |
| Failure to Display Handicap Placard | 25.00 | 25.00 |
| Handicap 1st Offense | 100.00 | 100.00 |
| Handicap 2nd Offense | 300.00 | 300.00 |
| Handicap 3rd or Subsequent Offense | 500.00 | 500.00 |
| No Parking Zone | 25.00 | 50.00 |
| Residential Only Parking | 75.00 | 110.00 |

(Code 1975, § 31-28; Ord. No. 6616, 3-6-2000; Ord. No. 7251, 2-20-2007; Bill No. 7783, 6-4-2018)

**State law references—**Similar provisions, W. Va. Code § 17C-18-1; authorized penalty for ordinance violations, W. Va. Code §§ 8-11-1, 8-12-5(57), 8-34-1.

## Sec. 114-4. Parties to an offense.

Every person who commits, attempts to commit, conspires to commit, or knowingly aids or abets in the commission of any act or omission declared in this chapter to be unlawful or an offense, whether individually or in connection with one or more other persons or as a principal, agent or accessory, shall be guilty of such offense; and every person who falsely, fraudulently, forcibly or willfully induces, causes, coerces, requires,

permits or directs another to violate any provision of this chapter is likewise guilty of such offense.
(Code 1975, § 31-26)

**State law reference—**Similar provisions, W. Va. Code § 17C-19-1.

### Sec. 114-5. Offenses by persons owning or controlling vehicles.

It shall be unlawful for the owner or any other person employing or otherwise directing the driver of any vehicle to require or knowingly to permit the operation of such vehicle upon a street or public place in any manner contrary to law.
(Code 1975, § 31-25)

**State law reference—**Similar provisions, W. Va. Code § 17C-19-2.

### Sec. 114-6. State laws adopted by reference.

All the laws of the State, including but not limited to W. Va. Code Ch. 17, 17A, 17B, 17C, 17D, 17E, and all rules, regulations and orders made by the public service commission, the state road commissioner, the department of motor vehicles, the department of public safety and the superintendent of public safety of the state, or any one or more of them, insofar as such rules, regulations and orders may relate or apply to traffic upon the public streets and highways of incorporated villages, towns and cities, and as they may be amended from time to time, shall be deemed, held to be and are made a part of this section; and any violation of such rules, regulations and orders shall be a violation of this section and constitute an offense.
(Code 1975, § 31-3; Ord. No. 4592, 4-16-1992; Ord. No. 7251, 2-20-2007)

### Sec. 114-7. Provisions of chapter refer to vehicles upon streets and highways; exceptions.

The provisions of this chapter relating to the operation of vehicles refer exclusively to the operation of vehicles upon streets and highways except:

(1) Where a different place is specifically referred to in a given section.

(2) The provisions of this chapter shall apply upon streets and highways as defined in W. Va. Code § 17B-2-1.

(Code 1975, § 31-4)

**State law reference—**Similar provisions, W. Va. Code § 17C-2-1.

### Sec. 114-8. Required obedience to chapter.

It shall be unlawful for any person to do any act forbidden or fail to perform any act required in this chapter.
(Code 1975, § 31-5)

**State law reference—**Similar provisions, W. Va. Code § 17C-2-2.

### Sec. 114-9. Obedience to chapter by public officials and employees; exceptions as to persons engaged in highway surface work.

(a) The provisions of this chapter applicable to the drivers of vehicles upon the streets shall apply to the drivers of all vehicles owned or operated by the United States, this state, or any county, city, town, district or any other political subdivision of the state, except as provided in this section and subject to such specific exceptions as are set forth in this chapter with reference to authorized emergency vehicles.

(b) Unless specifically made applicable, the provisions of this chapter shall not apply to persons, teams, motor vehicles and other equipment while actually engaged in work upon the surface of a street but shall apply to such persons and vehicles when traveling to or from such work.
(Code 1975, § 31-6)

**State law reference—**Similar provisions, W. Va. Code § 17C-2-4.

### Sec. 114-10. Persons riding animals; animal-drawn vehicles.

Every person riding an animal or driving any animal-drawn vehicle upon a roadway shall be granted all the rights and shall be subject to all of the duties applicable to the driver of a vehicle by this chapter, except those provisions of this chapter which by their very nature can have no application.
(Code 1975, § 31-7)

**Cross reference—**Animals, ch. 10.

**State law reference—**Similar provisions, W. Va. Code § 17C-2-6.

### Sec. 114-11. Obedience to police orders.

No person shall willfully fail or refuse to comply with any lawful order or direction of any police officer.
(Code 1975, § 31-8)

**State law reference—**Similar provisions, W. Va. Code § 17C-2-3(c).

### Sec. 114-12. Obedience to traffic control instructions at site of street or highway construction or maintenance.

The driver of any vehicle shall obey the traffic control instructions of persons authorized by the state commissioner of highways or by proper city authorities to operate traffic control devices, act as flagmen, or operate follow-vehicles at or near the site of street or highway construction or maintenance work, for the purpose of regulating, warning or guiding traffic, subject to the exceptions granted the driver of an authorized emergency vehicle in this chapter. Any person failing to comply with the requirements of this section shall be guilty of an offense against this section.
(Code 1975, § 31-9)

**State law reference—**Similar provisions, W. Va. Code § 17C-3-4a.

### Sec. 114-13. Authorized emergency vehicles.

(a) The driver of an authorized emergency vehicle, when responding to an emergency call or when in the pursuit of an actual or suspected violator of the law or when responding to but not upon returning from a fire alarm, may exercise the privileges set forth in this section, but subject to the conditions stated in this section.

(b) The driver of an authorized emergency vehicle may:

(1) Park or stand, irrespective of the provisions of this chapter.

(2) Proceed past a red or stop signal or stop sign, but only after slowing down as may be necessary for safe operation.

(3) Exceed the speed limits so long as he does not endanger life or property.

(4) Disregard regulations governing direction of movement or turning in specified directions.

(c) The exemptions granted in this section to an authorized emergency vehicle shall apply only when the driver of any such vehicle while in motion sounds audible signal by bell, siren or exhaust whistle as may be reasonably necessary, and when the vehicle is equipped with at least one lighted flashing lamp as authorized by W. Va. Code § 17C-15-26 which is visible under normal atmospheric conditions from a distance of 500 feet to the front of such vehicle; except that an authorized emergency vehicle operated as a police vehicle need not be equipped with or display a warning light visible from in front of the vehicle.

(d) The foregoing provisions of this section shall not relieve the driver of an authorized emergency vehicle from the duty to drive with due regard for the safety of all persons, nor shall such provisions protect the driver from the consequences of his reckless disregard for the safety of others.
(Code 1975, § 31-13)

**State law reference—**Similar provisions, W. Va. Code § 17C-2-5.

### Sec. 114-14. Permit to operate authorized emergency vehicle.

No person shall drive or operate an authorized emergency vehicle within the corporate limits until he first shall have obtained a permit to do so from the chief of police. The chief of police is empowered to designate and issue permits authorizing the operation of emergency vehicles within the limitations prescribed by section 114-12, and the owner of every such vehicle shall give him the name and address of each person permitted to drive such vehicle. The chief of police shall keep in his office a list of permits so issued and the name and address of each person permitted to drive an authorized emergency vehicle.
(Code 1975, § 31-14)

### Sec. 114-15. Rights of owners of real property.

Nothing in this chapter shall be construed to prevent the owner of real property used by the

public for purposes of vehicular travel by permission of the owner and not as matter of right from prohibiting such use, or from requiring other or different or additional conditions than those specified in this chapter, or otherwise regulating such use as may seem best to such owner.
(Code 1975, § 31-15)

**State law reference—**Similar provisions, W. Va. Code § 17C-2-9.

### Sec. 114-16. Processions and parades; permit required; exceptions.

No procession or parade, excepting components of the armed forces of the United States or of this state, and the forces of the police and fire departments, and funeral processions, shall occupy, march or proceed along any street or highway except in accordance with a permit issued by the chief of police or the city council and such other regulations as are set forth in this section which may apply; however, under no circumstances shall any parade or procession be routed so as to pass the central fire station.
(Code 1975, § 31-16)

**Cross reference—**Streets, sidewalks and other public places, ch. 102.

**State law reference—**Authority to regulate or prohibit processions, W. Va. Code § 17C-2-8(a)(3).

### Sec. 114-17. Funeral processions.

(a) Funeral directors shall give notice to the chief of police, as far in advance as may be practicable, of each funeral procession arranged or supervised by them; and they shall follow such routes, if any, as may be prescribed by the chief of police.

(b) A funeral composed of a procession of vehicles shall be identified as such by the display upon the left outside of every vehicle of a pennant of a type designated by the chief of police or by lighted headlamps, as the chief of police may direct. Each driver in a funeral or other procession shall drive as near to the right-hand edge of the roadway and follow the vehicle ahead as closely as practicable and safe. No driver of a vehicle shall drive between the vehicles comprising a funeral or other authorized procession while they are in motion and when identified as required in this section, except this provision shall not apply at intersections where traffic is controlled by police officers.
(Code 1975, § 31-17)

**State law reference—**Authority to regulate processions, W. Va. Code § 17C-2-8(a)(3).

### Sec. 114-18. Toy vehicles on streets and sidewalks.

No person upon roller skates or riding in, on or by means of any sled, skateboard, toy vehicle or similar device shall go upon any roadway or sidewalk, except while crossing a sidewalk, or a street on a crosswalk, and except upon streets and sidewalks set aside as play streets when and as authorized by the mayor.
(Code 1975, § 31-18)

**Cross reference—**Streets, sidewalks and other public places, ch. 102.

### Sec. 114-19. Glass and injurious materials not to be deposited on street; removal of substances from scene of wrecked vehicle.

(a) No person shall throw or deposit upon any street any glass bottle, glass, nails, tacks, wire, cans or any other substance likely to injure any person, animal or vehicle upon such street.

(b) Any person who drops or permits to be dropped or thrown upon any street any destructive or injurious material shall immediately remove such material or cause it to be removed.

(c) Any person removing a wrecked or damaged vehicle from a street shall remove any glass or other injurious substance dropped upon the street from such vehicle.
(Code 1975, § 31-19)

**State law reference—**Similar provisions, W. Va. Code § 17C-14-11.

### Sec. 114-20. Unlawful taking of vehicle.

It shall be unlawful for any person to drive a vehicle not his own without consent of the owner of such vehicle, and with intent temporarily to deprive such owner of his possession of such vehicle, but without intent to steal the vehicle. The consent of the owner of a vehicle to its taking or driving shall not in any case be presumed or

implied because of such owner's consent on a previous occasion to the taking or driving of such vehicle by the same or a different person. Any person who assists in or is a party or accessory to or an accomplice in any such unauthorized taking or driving shall also be guilty of a violation of this section. Any person convicted of a violation of this section shall be punished as provided in section 1-8.
(Code 1975, § 31-20)

**State law reference—**Similar provisions, W. Va. Code § 17A-8-4.

### Sec. 114-21. Injuring or tampering with vehicle.

(a) It shall be unlawful for any person, either individually or in association with one or more persons, to willfully damage or tamper with any vehicle or break or remove any part of or from a vehicle without the consent of the owner.

(b) Any person who with intent to commit any malicious mischief, injury or other crime climbs into or upon a vehicle whether it is in motion or at rest or, with like intent, attempts to manipulate any of the levers, starting mechanism, brakes or other mechanism or device of a vehicle while the vehicle is at rest and unattended or with like intent sets in motion any vehicle while it is at rest and unattended shall be guilty of an offense.

(c) Any person convicted of violating any provision of this section shall be punished as provided in section 1-8.
(Code 1975, § 31-21)

**State law reference—**Similar provisions, W. Va. Code § 17A-8-6.

### Sec. 114-22. Removal from streets of wrecked or abandoned vehicles.

(a) If any automobile, truck, motor vehicle or wagon is wrecked or abandoned in the streets of the city, and no arrangement is made for its immediate removal, the police shall, in order to open the streets to free flow of traffic, call a garageman, to be designated by the mayor, immediately to remove such vehicle to a safe place of storage. The cost of removal and storage shall be paid by the owner of the vehicle to the person so removing and storing the vehicle. If the vehicle is not called for by the owner, the person so removing the vehicle shall be permitted to proceed against the vehicle for rent, storage and towing under the laws of the state made and provided for the collection of such charges. The police designating the work and services performed shall be deemed to be the agent of the owner.

(b) Before any contract shall become effective, it shall be approved by the city manager and city solicitor and shall specify the service to be performed, the manner of performance, and the rates to be charged.
(Code 1975, § 31-22)

**Cross reference—**Streets, sidewalks and other public places, ch. 102.

**State law references—**Removal and storage of illegally parked vehicles, W. Va. Code §§ 17C-13-2, 17C-13-5; disposal of junk and abandoned vehicles, W. Va. Code § 17-24-1 et seq.

### Sec. 114-23. Boarding or alighting from moving vehicles.

No person shall board or alight from any vehicle while such vehicle is in motion.
(Code 1975, § 31-23)

### Sec. 114-24. Unlawful riding.

No person shall ride upon any portion of any vehicle not designated or intended for the use of passengers. This provision shall not apply to an employee engaged in the necessary discharge of a duty or to persons riding inside of truck bodies in space intended for merchandise.
(Code 1975, § 31-24)

### Secs. 114-25—114-50. Reserved.

## ARTICLE II. ADMINISTRATION AND ENFORCEMENT*

### DIVISION 1. GENERALLY

### Sec. 114-51. Authority of firefighters and rescue squad members to direct traffic.

(a) Members of the fire department may direct or assist the police in directing traffic at or in the immediate vicinity of a fire or explosion and, while so acting, shall have all the authority of police officers.

*__Cross reference—__Administration, ch. 2.

(b) Members of any duly chartered rescue squad may direct or assist the police in directing traffic at or in the immediate vicinity of an accident and, while so acting, shall have all the authority of police officers.
(Code 1975, § 31-10)

### Sec. 114-52. Powers and duties of police department.

The police department shall have all the powers and duties granted or given by this chapter in relation to the management and control of traffic; and shall, furthermore, have full power and it shall be the duty of all police and traffic officers of the city to see that any and all provisions of this chapter are rigidly enforced and observed.
(Code 1975, § 31-11)

### Sec. 114-53. Authority of chief of police to issue permits.

(a) Whenever, pursuant to any of the provisions of this chapter, a permit is required or authorized for any purpose, and no other city officer is designated as the issuing officer, the permit shall be issued by the chief of police. Such a permit shall be issued upon a showing of compliance with all applicable laws and ordinances and a further showing that the proposed activity will not endanger public peace, order or safety. The chief of police is authorized to issue such rules and regulations governing traffic as may be in conformity with the provisions of this chapter.

(b) Any permit issued by the chief of police pursuant to the authority granted in subsection (a) of this section shall not be valid for a period of time exceeding 12 months from its issuance.
(Code 1975, § 31-12)

### Sec. 114-54. Authority of chief of police to close streets and to emplace signs.

The chief of police is hereby authorized and empowered when he deems it advisable for the public safety and convenience, to temporarily close any street or highway or part thereof to all traffic, or to traffic of certain classes and descriptions or direct the traffic thereon or divert or direct the course of traffic thereon for such periods of time as he may deem advisable, in which cases he shall cause the necessary sign signals and markings, controlling such traffic to be placed or installed, and such action taken by the chief of police shall be concurrently recorded and filed with the city clerk and a copy thereof delivered to the municipal court and the city traffic engineer.

(1) Any applicant whose request to temporarily close any street or sidewalk is approved shall pay to the city clerk fees in accordance with the following schedule:

| | *Downtown* | *Business* | *Any Other* |
|---|---|---|---|
| a. Sidewalk: | $76.00 | $57.00 | $24.00 (first month) |
| Closed due to construction/ demolition | 19.00 | 15.00 | 7.00 (each additional week) |
| b. Sidewalk: | $15.00 | $10.00 | $7.00 (per week) |
| Exception for sidewalk fees. The fee will be reduced by 50 percent of the regular fee if one-half or more of the sidewalk is kept open to pedestrians. | | | |
| c. Street (per city block): | 200.00 | 150.00 | 34.00 (first month) |
| Closed due to construction/ demolition | 50.00 | 38.00 | 8.00 (each additional week) |
| d. Street (per city block): | 50.00 | 38.00 | 8.00 (per week) |
| Closed for any other reason | | | |

(2) For purposes of this section:

a. *Downtown:* Shall mean any areas zoned "CBD" central business district, or "PMD" pedestrian mall district.

b. *Business:* Shall mean any area zoned for commercial or industrial use, including urban renewal, residential-office, and "MMC" memorial medical complex.

c. *Other:* Shall mean any area zoned for residential use.

(3) Any applicant who has obtained a permit pursuant to Section 200.3 of the City of Charleston's Building Department Admin-

istrative Manual shall be exempt from the fees payable under this section to the extent that such fees cover the activities subject to the permit.

(4) All prior ordinances, or parts of ordinances, inconsistent with this section are hereby repealed to the extent of such inconsistency.

(Bill No. 6722, § 31-39, 12-18-2000)

**Editor's note—**Bill No. 6722, § 31-39, adopted Dec. 18, 2000, repealed § 114-54, in its entirety and enacted new provisions to read as herein set out. Prior to amendment § 114-54 pertained to authority of chief of police or fire chief to close streets and to emplace signs and derived from Code 1975, § 31-39; and Ord. No. 6052, § 31-39, adopted Nov. 7, 1994.

### Sec. 114-55. Interference with official traffic control devices or railroad signs or signals.

No person shall, without lawful authority, attempt to or in fact alter, deface, injure, knock down or remove any official traffic control device, or any parking meter, or any railroad sign or signal, or any inscription, shield or insignia, or any other part.

(Code 1975, § 31-40)

**State law reference—**Similar provisions, W. Va. Code § 17C-3-9.

### Secs. 114-56—114-80. Reserved.

## DIVISION 2. VIOLATIONS*

### Sec. 114-81. Presumption as to violations involving vehicles in motion and precedent condition.

(a) In any prosecution in the municipal court charging the violation of any provision of this chapter by the driver of a moving vehicle, proof that the particular vehicle described in the complaint was in motion in such manner or at such a rate of speed in violation of such provision, together with proof that the defendant named in the complaint was, at the time of such alleged violation the registered owner of such vehicle, shall constitute prima facie evidence that the registered owner of such vehicle was the person who drove such vehicle at the place or area where and for the time during which such alleged violation occurred; provided, that such prima facie presumption may be rebutted by competent evidence.

(b) This section shall not be applicable unless the driver of the vehicle described in the complaint was given notice of the alleged violation or, if such driver was not apprehended at the time of the alleged violation, the complaint, or summons and citation in lieu of an initial complaint and presentment, was served upon the registered owner of the vehicle described in the complaint, such service to have been accomplished in any manner authorized by law.

(Ord. No. 7251, 2-20-2007)

### Sec. 114-82. Arrest or appearance in answer to notice of violation; bail bond; service of notice to appear.

(a) Any person who has violated any of the provisions of this chapter may be arrested and brought before the municipal court, or given notice to appear and answer to a violation of any of the provisions of this chapter before the municipal court at a time specified in the notice. In the case of a parking violation in which notice to appear and answer is given, the person so summoned may appear before a cashier for the Parking System within not more than ten days of the date of issuance of the parking citation and make answer to the violation set forth in such notice, and pay the fine fixed by this code pursuant to subsection 114-3(c) as full payment in satisfaction for such parking offense to the cashier. For all other traffic violations, except in cases where the violation charged requires actual appearance before the municipal court judge, the person so summoned may, before the time specified in such notice, appear before the clerk of the municipal court or other municipal officer designated by the municipal judge and make answer to the violation set forth in such notice and pay the fine fixed by the municipal judge for such offense as full payment in satisfaction to the clerk or other officer so

*__Editor's note—__Ord. No. 7251, adopted Feb. 20, 2007, amended div. 2 in its entirety to read as herein set out. Former div. 2, §§ 114-81—114-92 pertained to similar subject matter and derived from Code 1975, §§ 31-27, 31-200—31-230.

**State law reference—**Violations, W. Va. Code § 17C-19-1 et seq.

designated. Acceptance of the prescribed fine by the cashier, or clerk or other officer, respectively, shall be a complete satisfaction for the violation, and the cashier, clerk or other officer, respectively, shall give the alleged violator a receipt to that effect and pay the fine into the parking system or municipal court, respectively; provided, that any person so summoned to appear before the municipal court to answer a violation of any of the provisions of this chapter may deposit with the clerk of the municipal court or other officer designated by the municipal judge cash or other bond in amount equal to the fine fixed by this Code pursuant to subsection 114-3(c) in case of a parking violation, or by the municipal judge in case of any other traffic violation, for such violation, conditioned for his or her appearance to answer such charge in court at the time specified by the clerk or other officer taking the bond. If any person posting a bond for his or her appearance shall fail to appear at the time specified, such bond shall be forfeited by the court; and if such bond posted is cash, it shall be taken by the municipal court as satisfaction for the violation.

(b) The notice to appear provided for in subsection (a) of this section may be served in person or affixed to the vehicle of such alleged violator by a police officer, or in the case of a parking violation, by a parking enforcement officer or other properly authorized city officer, in which case it shall be deemed to have the same effect as personal service; and such notice may summon the alleged violator to appear by name or by the registration number of his vehicle.

(c) Neither the parking system director, the clerk of the municipal court nor any other officer or official of the city shall have the authority to excuse anyone charged with a traffic violation of this chapter from paying the fine or posting the required bonds.
(Ord. No. 7251, 2-20-2007)

**Sec. 114-83. Bond for double amount of fine.**

Any person who has been guilty of more than three violations of the provisions of this chapter or of W. Va. Code ch. 17B, ch. 17C, or ch. 17D, or of any combination of such chapters, or who has had more than three bonds forfeited for violation of the provisions of any such chapters within the next preceding 12 months, may be required to deposit cash or other approved bond in an amount double the fine fixed by the municipal judge, or, in the case of a parking violation, the fine fixed by subsection 114-3(c), for such violation, for his or her appearance in municipal court, at a time fixed by the clerk or other official taking his bond, for trial of his case; and in such cases, a forfeiture of such bond shall not constitute satisfaction of the violation.
(Ord. No. 7251, 2-20-2007)

**Sec. 114-84. Failure to obey notice of summons.**

(a) Any person who shall fail to appear in response to a notice given as provided in this article or in response to any bond given for his appearance to answer a violation of any of the provisions of this chapter shall be guilty of an offense against this section regardless of the disposition of the traffic violation he was so summoned or gave bond to appear and answer, and he shall be subject to punishment as provided in section 114-3 in the same manner and to the same extent as for the violation he was notified or gave bond to appear and answer; and such punishment may be in addition to the punishment given for such traffic violation.

(b) Any person failing to appear in answer to any notice or bond given for his appearance to answer a violation of any of the provisions of this chapter shall have his bond forfeited and may be arrested on a warrant issued by the municipal judge, charging him with such failure to appear and be dealt with as provided in this article. Further, the municipal judge may notify the DMV of the person's failure to appear, subjecting the person to any penalty therefore which the DMV may require, administer, and/or effect, including, but not limited to, suspension of the person's operator's license pending full resolution of the violation and payment of any reinstatement fee or other requirement of the DMV for reinstatement of the license. In addition, in the case of failure to appear in response to a notice given for a parking citation within ten days of issuance as set forth in section 114-82, the alleged violator may be assessed reasonable court costs in the amount of

$25.00 for the costs of issuing and administrating the warrant and DMV notification, which amount may not be suspended or waived by any officer or official of the city excepting the municipal court judge in the exercise of his or her discretion.
(Ord. No. 7251, 2-20-2007)

**Sec. 114-85. Issuance of books of parking tags or summons to police.**

The parking system director, or his or her designee, shall issue parking tags or summons in books to the members of the police department and shall keep a record of the book numbers as issued and to whom they are issued. The police officers shall report back to the parking system director, or his or her designee, periodically; and when books are returned, a record to that effect shall be made.
(Ord. No. 7251, 2-20-2007)

**Sec. 114-86. Receipts for bonds posted or fines paid.**

Payment of the fine fixed for a parking violation or posting of a bond for a parking violation shall be made directly to a cashier for the parking system. For all other traffic violations, any person who desires to post a bond for his or her appearance before the municipal court or pay the fine fixed for a traffic violation shall post such bond with or make such payment to the clerk of the municipal court. In either such case, the parking system cashier or the municipal court clerk, respectively, shall issue to him or her a receipt, which shall be numbered. The cashier or clerk, respectively, shall keep a written copy for his or her office file and forward extra copies weekly to the city treasurer.
(Ord. No. 7251, 2-20-2007)

**Sec. 114-87. How traffic officers to sign summons; time for payment of fines or posting bonds.**

(a) Traffic officers are to sign the summons to appear and answer for violations of this chapter with their proper name and assigned identifying number.

(b) The payment of fines or the posting of bonds for parking violations shall be permitted only during the regular hours of the parking system director's office.
(Ord. No. 7251, 2-20-2007)

**Sec. 114-88. Notice to parking offenders failing to obey summons.**

All parking offenders failing to obey a summons within ten days after it is issued as required by sections 114-82 and 114-84 of this Code shall be sent by first class mail a notice by the parking system director, or his or her designee, reminding the alleged violator that he or she has violated this chapter, designating the amount of the fine due immediately for failure to pay within the ten-day period as set by this Code and the parking system director, and informing the alleged violator that a warrant (capias) for arrest may be issued and notice given to the DMV by the municipal court for the failure to answer or appear as required by the summons on the parking citation which if issued, will cause the alleged violator to incur additional Court costs for the cost of issuing and administrating the warrant and DMV notification. The parking system director, or his or her designee, shall keep a complete record of such notices and see that the other provisions of this article are enforced.
(Ord. No. 7251, 2-20-2007)

**Sec. 114-89. List to municipal court clerk of unanswered summonses; warrants.**

The parking system director, or his or her designee, shall furnish the municipal court clerk at least one time per month a list showing the names and addresses of the persons during that prior one-month period who were summoned to answer charges for violations of the parking provisions of this chapter and who have failed to appear or answer such summons within ten days of issuance as required. Along with the required list of parking violators failing to honor his or her summons, the parking system director, or his or her designee, shall forward a copy of each such parking citation at issue to the municipal court clerk who shall file it as the original complaint

alleging the violation indicated therein. For purposes of such a case, upon receipt, the municipal court shall treat each such parking citation itself as the original complaint sworn and filed before the court, and shall treat it as prima facie evidence of the parking violation alleged therein. Upon filing of parking citation as the complaint, the municipal court clerk shall file a warrant (or capias) for failure to appear in accordance with section 114-84 against each of those offenders who have yet failed to appear or answer the parking citation, and shall execute the warrant issued on such complaint.
(Ord. No. 7251, 2-20-2007)

**Sec. 114-90. Parking citation as prima facie evidence of offense; process to pay or contest parking citations.**

(a) Issuance of a parking citation to an alleged violator of the provisions of this chapter shall be deemed to be prima facie evidence of the parking violation indicated on the face of the parking citation. As such, any person who is issued a parking citation must pay the fine indicated for the violation, as set forth in city code subsection 114-3(c), in full to the cashier for the parking system within ten days of issuance; provided, however, that any person who feels he or she was improperly issued such parking citation may, within the ten days from issuance, file a dispute with the director of parking. The director of parking shall review the dispute and make an independent determination regarding the citation. The parking system shall communicate the decision of the director of parking to the alleged violator and notify the alleged violator that they may appeal the decision to the municipal court within ten days in accordance with the following:

(1) Prior to filing any appeal of the decision of the director of parking, the alleged violator shall pay the required amount of the fine in full to the city collector or on the city's online payment website as bond pending evidentiary hearing before and resolution of the case by the municipal court. The city collector must issue a receipt to the alleged violator showing the amount of the bond paid. Thereafter, in order to properly and timely appeal the decision of the director of parking regarding his or her citation, the alleged violator must file a copy of the bond receipt along with his or her appeal of the decision of the director of parking with the municipal court clerk within ten days of issuance of the decision of the director of parking as set forth above. If any appeal filed in accordance with this section is not timely filed or is not accompanied with the required receipt showing payment of the required bond, the alleged violator shall be deemed to have waived his or her right to contest the citation, and such appeal shall be summarily denied as untimely filed; provided, however, that nothing set forth hereinabove shall prevent the municipal court judge from finding upon proper showing that an alleged violator suffers from financial hardship, and, as a result, waiving the requirement that the bond be posted as a prerequisite to filing an appeal.

(2) Any appeal filed with the municipal court clerk must be in writing, on the form to be provided by the municipal court clerk, and must be signed by the alleged violator affirming that the contents of the appeal are true and accurate to the best of the alleged violator's knowledge at that time. Such appeal must state the facts and reasons in support of the alleged violator's position. Upon filing any such appeal with the municipal court clerk, the alleged violator must serve a copy of the appeal and receipt showing proof of bond upon the city attorney.

(b) Upon filing of an appeal of the director of parking's decision with the municipal court clerk, the clerk or his or her designee shall place the case on the municipal court docket, set the case for evidentiary hearing, and provide a notice of hearing to the alleged violator, city attorney, and director of parking. The municipal court clerk shall forward a copy of the appeal to the city attorney and the director of parking. Upon receipt of the appeal, the director of parking shall cause

a copy of the parking citation at issue to be forwarded to the municipal court clerk who shall file it as the original complaint alleging the violation indicated therein and forward a copy to the city attorney. Further, if the alleged violator alleges as his or her reason for contesting that he or she is reporting a defective parking meter, then the director of parking shall cause an inspection of the meter to be made and a report to be generated setting forth the findings of the inspection, a copy of which will be forwarded to the municipal court clerk to be placed in the court file along with the motion to contest and to the city attorney; if the meter is found defective, the appeal will be granted and the parking citation shall be dismissed.

(c) The municipal court shall treat the parking citation itself as the original complaint before the court, and shall treat it as prima facie evidence of the parking violation alleged therein. As such, the alleged violator will bear the burden of overcoming the prima facie case at the evidentiary hearing. At the close of all of the evidence, should the municipal judge find against the alleged violator, the bond posted by the alleged violator will be applied as payment for the fine indicated for the violation; however, should the court find in favor of the alleged violator, the bond shall be refunded to the alleged violator.

(d) In any instance in which an alleged violator does not timely pay, within ten days of the issuance of a parking citation upon him or her or ten days after the decision of the director of parking (if applicable), the full amount of the fine set by city code subsection 114-3(c) at the increased amount for the alleged offense described in the parking citation becomes due. If the alleged violator properly and timely files an appeal along with the required bond, then the amount of the fine shall remain at the original amount until ten days after the decision by the municipal court, at which point the amount due will increase to the amount set forth in subsection 114-3(c) as a penalty for late payment.
(Ord. No. 7251, 2-20-2007; Bill No. 7845, 10-21-2019)

**Sec. 114-91. Report of failure to cooperate with municipal court clerk; interference.**

The municipal court clerk is directed to report to the city council on or before the tenth day of each month the failure of any officer of the city to cooperate with the municipal court clerk's office in the enforcement of this chapter and shall further report any attempted interference with the strict enforcement of this article.
(Ord. No. 7251, 2-20-2007)

**Sec. 114-92. Duties of city auditor.**

The city auditor shall each month audit the records and the report of the parking system director and of the city treasurer to determine if the amount of fines collected have been fully paid to the city treasurer and proper receipt issued. The city auditor shall also furnish the city council, on request, a report showing the amounts collected during any period by the parking system director and paid to the city treasurer by the parking system director.
(Ord. No. 7251, 2-20-2007)

**Secs. 114-93—114-120. Reserved.**

## DIVISION 3. VEHICLE IMPOUNDMENT AND IMMOBILIZATION

**Sec. 114-121. Intent and purpose.**

This division is enacted as an enforcement procedure for protection of the public peace, safety and welfare, and the safeguarding of property, and shall be used generally for the prevention and removal of traffic hazards, prevention and abatement of public nuisances arising from traffic law violations, and for the protection of the public rights in the use of city streets and thoroughfares.
(Code 1975, § 31-231)

**Sec. 114-122. Removal and impoundment.**

Any vehicle having against it five or more unpaid summonses or other process issued within a 12-month period, charging that such vehicle was parked, stopped or standing in violation of

any law, ordinance or local authority of the city, shall be deemed a public nuisance; and the police department and any other agent of the city assigned to traffic duty, or by a member of the meter patrol acting under the direction of the parking system director are authorized to remove or cause the vehicle to be removed, at the sole cost and expense of the habitual violator. Such police authority or meter patrol personnel shall have the power and is authorized to remove the vehicle by either private or governmental equipment to a city pound, or elsewhere, as he or she may deem advisable. Upon such removal and impoundment, the representative of the city causing the removal and impoundment shall make a report of such to the police department in form to be prescribed by the chief of police to enable the police department to keep the records of such required by section 114-127.
(Code 1975, § 31-232; Ord. No. 7251, 2-20-2007)

**Sec. 114-123. Immobilization.**

Any unattended motor vehicle found parked at any time upon any public thoroughfare of the city against which there are five or more unpaid summonses or other process issued within a 12-month period, charging that such vehicle was parked, stopped or standing in violation of any law, ordinance or local authority of the city, may be immobilized in such manner as to prevent its operation by a member of the city police department or any other agent assigned to traffic duty, or by a member of the meter patrol acting under the direction of the parking system director. No such vehicle shall be immobilized by any means other than by the use of a device or other mechanism which will cause no damage to such vehicle unless it is moved while such device or mechanism is in place.
(Code 1975, § 31-233; Ord. No. 7251, 2-20-2007)

**Sec. 114-124. Notice of immobilization.**

In any case involving immobilization of a vehicle pursuant to this division, the authorized representative of the city pursuant to section 114-123 immobilizing the vehicle, shall cause to be placed on such vehicle, in a conspicuous manner, notice sufficient to warn any individual to the effect that such vehicle has been immobilized for failure to pay the five or more summonses or other process, and that any attempt to move such vehicle might result in damage to such vehicle.
(Code 1975, § 31-234; Ord. No. 7251, 2-20-2007)

**Sec. 114-125. Notice to owner of impounded vehicle.**

Whenever the police department or member of the meter patrol has impounded a vehicle described in this division, a notice of such removal and the storage place of such vehicle shall be mailed to the last registered owner of such vehicle if the name and address of such owner can be ascertained with reasonable diligence. Such notice shall state that if the owner fails to reclaim such vehicle within 60 days from the date of the mailing, title to such vehicle will vest in the city; and such vehicle will be sold at public auction to be held not sooner than 30 days after the expiration of the 60-day period contained in the notice.
(Code 1975, § 31-235; Ord. No. 7251, 2-20-2007)

**Sec. 114-126. Owner responsibility.**

The registered owner of a vehicle having against it five or more outstanding summonses shall be presumed to be the owner at the time the summonses were in fact issued and shall be severally responsible for the offenses and the impoundment, except where the use of the vehicle was secured by the operator without the owner's consent.
(Code 1975, § 31-236)

**Sec. 114-127. Records.**

It shall be the duty of the police department to safely keep any impounded vehicle until such vehicle shall have been repossessed by the owner or person legally entitled to possession or otherwise disposed of as provided in this division. The police department shall cause to be kept an accurate record of the description of such vehicle, including the name of the officer or meter patrol personnel from whom such vehicle was received, the officer employed to tow or have delivered the vehicle to such pound or authorized garage, the date and time when received, the

place where found, seized or taken possession of, the make and color of car, style or body, kind of power, motor number, serial number, number of cylinders, year built, state license number if any, equipment and general description of condition, the name and address of the person redeeming such vehicle, the date of redemption, and the manner and date of disposal of such vehicle in case the vehicle shall not be redeemed, together with cost of outstanding summonses and the towing and storage charges. This record shall be in the form prescribed by the chief of police.
(Code 1975, § 31-237; Ord. No. 7251, 2-20-2007)

**Sec. 114-128. Release of vehicle.**

Vehicles impounded or immobilized pursuant to this division will be released to their lawful owner or to a person entitled to possession upon showing adequate evidence of a right to its possession and paying the payment of all accrued fines and costs for each outstanding unpaid summons, or depositing of the collateral required for his appearance in the municipal court of the city to answer for each violation for which there is an outstanding or otherwise unsettled traffic violation notice or warrant, and in addition, the charges for towing and storage if the vehicle was impounded. The release shall be signed by an authorized officer.
(Code 1975, § 31-238)

**Sec. 114-129. Notification of vehicle owner and lienholders.**

(a) The police department shall notify, within 14 days after taking custody of any vehicle as provided in section 114-122, by registered or certified mail, return receipt requested, the last known registered owner of the vehicle and all lienholders of record, that the vehicle has been taken into custody. The notice shall:

(1) Contain a full description of the vehicle, including the year, make, model, manufacturer's serial or identification number or any number that may have been assigned to the vehicle by the state commissioner of motor vehicles and any distinguishing marks;

(2) Set forth the location of the facility where the vehicle is being held;

(3) Inform the owner and any lienholder of record of their right to reclaim the vehicle within 60 days after the date notice was received by the owner or lienholder, upon payment of all outstanding summonses and all towing, preservation and storage charges resulting from taking and keeping the vehicle in custody; and

(4) State that the failure of the owner or lienholders of record to exercise their right to reclaim the vehicle within the 60-day period shall be deemed a waiver by the owner and all lienholders of record of all right, title and interest in the vehicle and of their consent to the sale of the vehicle at a public auction.

(b) If the identity of the last registered owner of the abandoned vehicle cannot be determined, or if the certificate of registration or certificate of title contains no address for the owner, or if it is impossible to determine with reasonable certainty the identity and addresses of all lienholders, notice shall be published as a class II legal advertisement in compliance with the provisions of W. Va. Code ch. 59, art. 3 (W. Va. Code § 59-3-1 et seq.); and the notice shall be published in a newspaper of general circulation in the city; and it shall be sufficient to meet all requirements of notice pursuant to this division. Any notice by publication can contain multiple listings of impounded vehicles. The notice shall be published within 14 days after the vehicle is taken into custody and shall have the same contents required for notice in subsection (a) of this section.
(Code 1975, § 31-239)

**Sec. 114-130. Sale of vehicle.**

(a) Whenever any vehicle impounded under this division shall remain unclaimed by the owner or other person entitled to possession of the vehicle for a period of 60 days from the day notice to the owner was given pursuant to section 114-129, it shall be the duty of the police department to sell such vehicle at public auction to the highest bidder for cash, the time and place

of such sale to be published as a class II legal advertisement in compliance with the provisions of W. Va. Code ch. 59, art. 3 (W. Va. Code § 59-3-1 et seq.) in a newspaper of general circulation in the city, not less than ten nor more than 15 days from expiration of such 60 days. Such notice shall contain a full description of the vehicle to be sold and the time and place of sale; provided, that any such vehicle not sold at the first sale may be offered for sale and sold at any subsequent sale without notice or publication. The proceeds of such sale after paying all liens and deducting all reasonable charges and expenses incurred by the police department, including the fees and charges specified in this division in receiving, towing, storing, preparing and giving notices, advertising for sale or selling or otherwise disposing of such vehicle shall be turned over to the city manager, who shall make a full and complete report of all such sales and pay the proceeds to the finance director and take from him a receipt; and the proceeds are appropriated to the general fund.

(b) Whenever any such vehicle shall remain unsold for a period of 180 days from and including the day when the vehicle shall have been delivered to any vehicle pound as provided in this division, any such vehicle may be given to the use of any department of the city or other governmental agency desiring the vehicle, or may be removed to a licensed demolisher for dismantling.

(c) No member of the police department, nor any other employee of the city, directly or indirectly, shall purchase or participate in the bidding for or purchase of any vehicle offered for sale as stated in this section.

(d) If the vehicle shall be deemed by the chief of police of no value or of insufficient value to warrant storage and sale, and if no owner shall appear to redeem such valueless vehicle within 60 days after the mailing of notice of its removal, which notice shall contain a statement that the vehicle is deemed to be of no value or of insufficient value to warrant storage and sale, and that it is the intention to dispose or destroy such vehicle, to any owner whose name and address can be ascertained with reasonable diligence, or by publishing such notice as a class II legal advertisement in compliance with the provisions of W. Va. Code ch. 59, art. 3 (W. Va. Code § 59-3-1 et seq.) in a newspaper of general circulation in the city, at least five days before its destruction or other disposition, such vehicle shall be conclusively deemed of no value and to be abandoned property; and there shall be no claim against the city, the chief of police, nor any of their agents or employees by reason of any such destruction or disposition.
(Code 1975, § 31-240)

### Sec. 114-131. Rules and regulations.

The city council is authorized to adopt by resolution such rules and regulations as are necessary to carry out the provisions of this division.
(Code 1975, § 31-241)

### Secs. 114-132—114-150. Reserved.

## DIVISION 4. METER PATROL*

### Sec. 114-151. Appointment; assignment.

The mayor is authorized to appoint qualified persons as meter patrol personnel in such numbers as he may deem necessary, and such members of the meter patrol are to be assigned to such areas within the city as the parking system director shall determine.
(Ord. No. 7251, 2-20-2007)

### Sec. 114-152. Rules and regulations; compensation and hours of duty.

The parking system director shall promulgate rules relating to the qualifications and duties of members of the meter patrol, who shall be paid

*__Editor's note—__Ord. No. 7251, adopted Feb. 20, 2007, amended div. 4 in its entirety to read as herein set out. Former div. 4, §§ 114-151—155, pertained to similar subject matter and derived from Code 1975, §§ 31-242—31-246; Ord. No. 649, adopted Mar. 6, 2006; and Bill No. 6706, § 31-244, adopted Sept. 5, 2000.

at such rate as may be authorized by the city council, for services not to exceed eight hours per day and 40 hours per week.
(Ord. No. 7251, 2-20-2007)

**Sec. 114-153. Power and duties; training.**

(a) Members of the meter patrol shall read parking meters established pursuant to the provisions of this Code, including, but not limited to section 114-621, have the power to cause the immobilization of or cause the removal and impoundment of any vehicles pursuant to sections 114-121 through 114-131 of this chapter, and monitor for all other parking violations provided for in this Code, and affix a notice of parking violation in a form approved by the city attorney, on each vehicle that is in violation of this Code, instructing the owner or operator of such vehicle as to the penalty and manner of paying the penalty for such parking violation.

(b) The meter patrol is authorized to issue citation for violations of W. Va. Code, § 17-C-13-6, to those who illegally park in designated handicapped parking spaces in all public parking areas including, but not limited to, public parking lots, streets, roads, highways, and alleys.

(c) The Charleston Police Department will train and supervise the meter patrol to lawfully issue citations to those who illegally park in designated handicapped parking spaces on public streets, roads, highways and alleys, and will properly train and supervise the meter patrol to properly cause the immobilization of or cause the removal and impoundment of any vehicles pursuant to sections 114-121 through 114-131 of this chapter.

(d) The meter patrol may issue citations for violations or may submit photographs of the illegally parked vehicle and a form developed by the Charleston Police Department to the Charleston Police Department, who may then issue a citation, which includes the photographs and form. Such citation shall instruct the owner or operator of the vehicle as to the penalty and manner of paying the penalty for illegally parking in designated handicapped parking spaces.

(e) Members of the meter patrol shall return their record of notices for parking violations and illegal handicapped parking violations to the parking system director.

(f) If any notice for parking violation or illegal handicapped parking violation remains unpaid after the parking offender is sent a notice in accordance with section 114-155 of this Code, the member of the meter patrol who issued the notice shall, if necessary, sign a complaint in municipal court charging the parking offender with violation of the appropriate provisions of this Code.

(g) Members of the meter patrol shall in no instance carry weapons, make arrests, or in any manner actively enforce any traffic or other non-parking related ordinance of this city or any law of the state.

(h) Training and supervision of members of the meter patrol shall be under the direction of the parking system director.
(Ord. No. 7251, 2-20-2007)

**Sec. 114-154. Uniform and equipment.**

Members of the meter patrol shall wear such uniforms and insignia as the parking system director shall direct and shall be equipped in the manner which he deems necessary for the proper discharge of their duties, all such uniforms, insignia and equipment to be furnished by and at the expense of the city.
(Ord. No. 7251, 2-20-2007)

**Sec. 114-155. Notice of parking offenders.**

(a) The parking system director, or his or her designee, after receiving the records from the meter patrol of the notices for parking violations and illegal handicapped parking violations pursuant to section 114-153, shall ascertain which of these notices remain unpaid after the ten-day period provided for their payment.

(b) The parking system director, or his or her designee, shall then cause to be sent by first class mail a notice of these parking offenders informing them of the penalty for failure to pay these parking notices within 30 days of receipt of such notice, and that failure to pay them will result in proceeding being instituted in municipal court. This notice may be sent along with the notice provided in section 114-88 if it appears that the vehicle involved has also failed to obey any summons issued by a member of the city police department.
(Ord. No. 7251, 2-20-2007)

**Secs. 114-156—114-190. Reserved.**

## ARTICLE III. ACCIDENTS AND ACCIDENT REPORTS*

**Sec. 114-191. Information required.**

The driver of any vehicle involved in an accident resulting in injury to or death of any person, or resulting in damage to another vehicle which is driven or attended by any person, shall immediately stop his vehicle at the scene of such accident or as close to the accident as possible, and without obstructing traffic more than is necessary, and shall then forthwith return to the scene of the accident and shall then and there give his name, address and the registration number of the vehicle he is driving and shall, upon request and if available, exhibit his operator's or chauffeur's

*__State law reference—__Accidents, W. Va. Code § 17C-4-1 et seq.

license to the person struck or the driver or occupant of or person attending any vehicle collided with, and shall render to any person injured in such accident reasonable assistance, including the carrying, or the making arrangements for the carrying, of such person to a physician, surgeon or hospital for medical or surgical treatment if it is apparent that such treatment is necessary or if such carrying is requested by the injured person. In addition to these requirements, the driver of a vehicle involved in an accident resulting in injury to or death of any person shall immediately, by the quickest means of communication, whether oral or written, give notice of such accident to the city police department.

(Code 1975, § 31-107(a))

**State law reference—**Similar provisions, W. Va. Code §§ 17C-4-1—17C-4-3, 17C-4-6.

### Sec. 114-192. Accident involving unattended vehicle.

The driver of any vehicle which collides with any vehicle which is unattended shall immediately stop and shall then and there either locate and notify the operator or owner of such vehicle of the name and address of the driver and owner of the vehicle striking the unattended vehicle, or shall leave in a conspicuous place in the vehicle struck a written notice giving the name and

address of the driver and of the owner of the vehicle doing the striking and a statement of the circumstances.
(Code 1975, § 31-107(b))

**State law reference—**Similar provisions, W. Va. Code § 17C-4-4.

### Sec. 114-193. Accidents involving only property damage.

The driver of any vehicle involved in an accident resulting only in damage to fixtures or other property legally upon or adjacent to a highway shall take reasonable steps to locate and notify the owner or person in charge of such property of such fact and of his name and address and of the registration number of the vehicle he is driving and shall, upon request and if available, exhibit his operator's or chauffeur's license.
(Code 1975, § 31-107(c))

**State law reference—**Similar provisions, W. Va. Code § 17C-4-5.

### Sec. 114-194. Report if driver incapacitated.

Whenever the driver of a vehicle is physically incapable of making an immediate report of an accident or taking other action as required by this article, there was another occupant in the vehicle at the time of the accident capable of doing so, such occupant shall make or cause to be made any required report and shall take or cause to be taken such other action required by this action.
(Code 1975, § 31-107(d))

**State law reference—**Similar provisions, W. Va. Code § 17C-4-8.

### Secs. 114-195—114-230. Reserved.

## ARTICLE IV. TRAFFIC CONTROL SIGNS, SIGNALS, DEVICES AND MARKINGS*

### DIVISION 1. GENERALLY

### Sec. 114-231. Effect of previously installed traffic control devices.

All traffic control devices, signals, signs and markings heretofore installed by authority of the city council and which are in place on the effective date of this Code shall be deemed to be traffic control devices until such time as they may be removed by authority of the city council; and until they are so removed, it shall be unlawful for any person to fail to comply with any instruction or directive indicated by any such traffic control device.
(Code 1975, § 31-38)

### Sec. 114-232. Obedience to traffic control devices.

(a) The driver of any vehicle shall obey the instructions of any applicable official traffic control device unless otherwise directed by a police officer, subject to the exceptions granted in this chapter to the driver of an authorized emergency vehicle.

(b) It shall be unlawful for the driver of any vehicle to evade or avoid stopping or otherwise complying with traffic control devices when he would ordinarily have been instructed by such traffic control device to do so by leaving the roadway and traversing adjacent property or by taking any other measures which enable the driver to avoid compliance with traffic control devices as required in subsection (a) of this section.
(Code 1975, § 31-29)

**State law reference—**Similar provisions, W. Va. Code § 17C-3-4.

### Sec. 114-233. Signs to be legible and in place.

No provisions of this chapter for which signs are required shall be enforced against an alleged violator if at the time and place of the alleged violation an official traffic control sign is not in proper position and sufficiently legible to be seen by an ordinarily observant person. Whenever a particular section does not state that signs are required, such section shall be effective even though no signs are erected or in place.
(Code 1975, § 31-30)

**State law references—**Similar provisions, W. Va. Code § 17C-3-4(c); when signs required, W. Va. Code § 17C-2-8(a), (c).

*__State law reference—__Traffic signs, signals and markings, W. Va. Code § 17C-3-1 et seq.

**Sec. 114-234. Traffic control signal legend.**

Whenever traffic is controlled by traffic control signals exhibiting the words "go," "caution" or "stop," or exhibiting different colored lights successively one at a time, or with arrows, the following colors only shall be used; and such terms and lights shall indicate and apply to drivers of vehicles and pedestrians as follows:

(1) Green alone or "go":

a. Vehicular traffic facing the signal, except when prohibited, may proceed straight through or turn right or left unless a sign at such place prohibits either such turn. But vehicular traffic, including vehicles turning right or left, shall yield the right-of-way to other vehicles and to pedestrians lawfully within the intersection or an adjacent crosswalk at the time such signal is exhibited.

b. Pedestrians facing the signal may proceed across the roadway within any marked or unmarked crosswalk.

(2) Yellow alone or "caution" when shown following the green or "go" signal:

a. Vehicular traffic facing the signal is warned that the red or "stop" signal will be exhibited immediately thereafter, and such vehicular traffic shall not enter or be crossing the intersection when the red or "stop" signal is exhibited.

b. Pedestrians facing such signal are advised that there is insufficient time to cross the roadway, and any pedestrian then starting to cross shall yield the right-of-way to all vehicles.

(3) Red alone or "stop":

a. Vehicular traffic facing the signal shall stop before entering the crosswalk on the near side of the intersection or, if none, then before entering the intersection and shall remain standing until green or "go" is shown alone except as provided in subsection (3)b. and c. of this section.

b. A vehicle which is stopped in obedience to a red or "stop" signal as close as practicable at the entrance to the crosswalk on the near side of the intersection or, if none, then at the entrance to the intersection, may cautiously make a right turn; but such vehicle shall yield the right-of-way to pedestrians lawfully within a crosswalk and to other vehicular traffic proceeding as directed by the signal at the intersection.

c. A vehicle which is stopped in obedience to a red or "stop" signal as close as practicable at the entrance to the crosswalk on the near side of the intersection or, if none, then at the entrance to the intersection on a one-way street which intersects another one-way street on which traffic moves to the left, may cautiously make a left turn into the one-way street; but such vehicle shall yield the right-of-way to pedestrians lawfully within a crosswalk and to other vehicular traffic proceeding as directed by the signal at the intersection.

d. No pedestrian facing such signal shall enter the roadway unless he can do so safely and without interfering with any vehicular traffic.

(4) Red with green arrow:

a. Vehicular traffic facing such signal may cautiously enter the intersection only to make the movement indicated by such arrow but shall yield the right-of-way to pedestrians lawfully within a crosswalk and to other traffic lawfully using the intersection.

b. No pedestrian facing such signal shall enter the roadway unless he can do so safely and without interfering with any vehicular traffic.

(5) If an official traffic control signal is erected and maintained at a place other than an intersection, the provisions of this section

shall be applicable except as to those provisions which by their nature can have no application. Any stop required shall be made at a sign or marking on the pavement indicating where the stop shall be made, but in the absence of any such sign or marking the stop shall be made at the signal.

(6) When authorized signs or markers are erected indicating any street or highway or part is newly paved or repaired or closed to traffic, no person shall drive any vehicle over any such street or highway until it is officially opened to traffic.

(Code 1975, § 31-31(a)—(e), (g); Ord. No. 6696, § 4(a)—(e), (g), 8-21-2000)

**State law reference—**Similar provisions, W. Va. Code § 17C-3-5.

### Sec. 114-235. Turning right on red regulated.

A motorist may turn right on a red light at intersections where an official traffic control device so designating a right turn is present. However, before turning right the motorist must come to a complete stop. In all circumstances the motorist shall yield to pedestrians and oncoming vehicles.

(Code 1975, § 31-85(b))

**State law reference—**Right turns on red allowed unless prohibited, W. Va. Code § 17C-3-5(c).

### Sec. 114-236. Locations where right turn on red prohibited.

Pursuant to the provisions of W. Va. Code § 17C-3-5, there shall be no turn on red at the following intersections after a sign is erected at such intersection giving notice of such prohibition:

| *Street* | *Cross Street* | *Direction of Travel* |
|---|---|---|
| 39th Street, East | MacCorkle Avenue | South |
| 50th Street, Southeast | MacCorkle Avenue, Southeast | North and south |
| 53rd Street, Southeast | MacCorkle Avenue, Southeast | North and south |
| 57th Street, East | MacCorkle Avenue | South |
| 58th Street, East | MacCorkle Avenue | East |
| Broad | Boulevard | South |
| Broad | Quarrier | South |
| Broad | Virginia | South |
| Brooks | Washington | North and south |
| Capitol | Lee | North |
| Capitol | Quarrier | North |
| Capitol | Virginia | North |
| Capitol | Washington | North and south |
| Chandler Drive | Sissonville Drive | East and west |
| Delaware | Virginia | North and south |
| Dickinson | Lee | North and south |
| Dickinson | Quarrier | North and south |
| Elizabeth | Washington | East |
| Lee | Capitol | East |
| Lee | Dickinson | East |
| Lee | Summers | East |
| MacCorkle Avenue, Southeast | 50th Street, Southeast | East and west |
| McFarland | Boulevard | South |
| Morris | Quarrier | South |
| Park | Washington | North |
| Quarrier | Broad | West |
| Quarrier | Capitol | West |
| Quarrier | Dickinson | West |
| Quarrier | Morris | West |
| Sissonville Drive | Chandler Drive | North and south |
| Stockton | Washington | North and south |
| Summers | Lee | North |
| Summers | Virginia | North |
| Virginia | Broad | East |
| Virginia | Capitol | East |
| Virginia | Summers | East |
| Virginia | Washington | West |
| Washington | Elizabeth | North |
| Washington | Brooks | West |
| Washington | Capitol | West |

(Code 1975, § 31-31(f); Ord. No. 6696, § 4(f), 8-21-2000; Bill No. 7310, § 1, 12-12-2007; Bill No. 7388, 4-20-2009)

### Sec. 114-237. Pedestrian walk and wait signals.

Whenever special pedestrian control signals exhibiting the terms "Walk" or "Wait" are in place, such signals shall indicate as follows:

(1) Walk: Pedestrians facing such signal may proceed across the roadway in the direction of the signal and shall be given the right-of-way by the drivers of all vehicles.

(2) Wait: No pedestrian shall start to cross the roadway in the direction of such signal, but any pedestrian who has partially

completed his crossing on the walk signal shall proceed to a sidewalk or safety island while the wait signal is showing.

(Code 1975, § 31-32)

**State law reference—**Similar provisions, W. Va. Code § 17C-3-6.

### Sec. 114-238. Flashing signals.

Whenever an illuminated flashing red or yellow signal is used in a traffic sign or signal, it shall require obedience by vehicular traffic as follows:

(1) *Flashing red (stop signal).* When a red lens is illuminated with rapid intermittent flashes, drivers of vehicles shall stop before entering the nearest crosswalk at an intersection or at a limit line when marked, or, if none, then before entering the intersection, and the right to proceed shall be subject to the rules applicable after making a stop at a stop sign.

(2) *Flashing yellow (caution signal).* When a yellow lens is illuminated with rapid intermittent flashes, drivers of vehicles may proceed through the intersection or past such signal only with caution.

(Code 1975, § 31-33)

**State law reference—**Similar provisions, W. Va. Code § 17C-3-7.

### Sec. 114-239. When "stop" signal may be disregarded.

(a) The driver of a vehicle, having brought it to a stop in compliance with the directive of an official traffic control signal, and having waited continuously in the same stopped position for not less than five minutes without such signal having changed from "stop," may then assume that the signal is not in proper working order and, upon visually ascertaining that he can do so with safety, may then proceed with caution, and at his own risk, to drive his vehicle beyond the signal and resume a normal and lawful speed.

(b) It is the purpose of this section to provide relief to vehicle drivers in those exceptional instances of failure of electrical or mechanical signals to function properly, and the burden of proof shall be upon each driver who avails himself of the right to proceed against a "stop" signal to show that he has complied with all requirements of subsection (a) of this section.

(c) This section shall not be applicable at the location of any official traffic control signal during any period of time in which a police officer is there present.

(Code 1975, § 31-34)

### Sec. 114-240. Installation and maintenance of traffic control devices; specifications; state approval required to place devices upon state highway.

(a) The director of public safety or other officer designated by the mayor with the approval of the city council shall place and maintain all traffic control devices, including signs, markings and signals, when and as required by the provisions of this chapter or other ordinances of the city, to make such provisions effective. All traffic control devices placed within the city shall conform to the requirements and specifications of the manual on uniform traffic control devices adopted by the state department of highways.

(b) No traffic control device shall be placed upon any street which is part of the state highway system except by permission of the state road commissioner.

(Code 1975, § 31-35; Bill No. 7387, 4-20-2009)

**State law references—**Manual of specifications for uniform system of traffic control devices, W. Va. Code § 17C-3-1; placing traffic control signs and devices on state highways, W. Va. Code § 17C-3-2.

### Sec. 114-241. Fire lanes on private property devoted to public use.

(a) Prior to designating any fire lane on any private property devoted to public use, the city council shall afford to the owner or manager of such property an opportunity to appear before the council and to be heard, or, at his option, to submit to the council in writing his comments on the subject; and the fire chief or his representative shall be heard by the council on the subject.

(b) When official traffic control markings or signs are in place on any private property devoted to public use, giving notice of a fire lane, it shall

be unlawful for any person to park any vehicle wholly or partially within such fire lane or to otherwise obstruct or impede the free passage of any other vehicle in such fire lane.

(c) Some examples of private property devoted to public use are, but not limited to, shopping centers, parking lots for customers of stores and patrons of business establishments, and the grounds of institutions.

(d) Any vehicle parked in a designated fire lane which is so designated by official traffic control signs, markings or devices may be impounded and hauled at the owner's expense to a garage designated by the police department of the city; however, no vehicle shall be impounded until specific orders are issued for such purpose by the chief of police, captain, lieutenant or sergeant of police on duty at the time.
(Code 1975, § 31-37)

**Cross reference—**Fire prevention and protection, ch. 54.

### Sec. 114-242. Unauthorized signs, signals or markings; nuisances.

(a) No person shall place, maintain or display upon or in view of any street any unauthorized sign, signal, marking or device which purports to be or is an imitation of or resembles an official traffic control device or railroad sign or signal, or which attempts to direct the movement of traffic, or which hides from view or interferes with the effectiveness of any official traffic control device or any railroad sign or signal; and no person shall place or maintain nor shall the city permit upon any street any traffic sign or signal bearing any commercial advertising. This shall not be deemed to prohibit the erection upon private property adjacent to streets of signs giving useful directional information and of a type that cannot be mistaken for official signs.

(b) Every such prohibited sign, signal or marking is declared to be a public nuisance; and the chief of police is empowered to remove the nuisance or cause it to be removed without notice.
(Code 1975, § 31-41)

**Cross reference—**Nuisances, § 50-31 et seq.

**State law reference—**Similar provisions, W. Va. Code § 17C-3-8.

### Secs. 114-243—114-260. Reserved.

## DIVISION 2. TRAFFIC CONTROL MAP

### Sec. 114-261. Established; contents.

(a) There is established a traffic control map to show at all times the municipality's current:

(1) Through streets.

(2) Stop intersections.

(3) Yield-right-of-way intersections.

(4) One-way streets and alleys.

(5) Prohibited or restricted turns.

(6) Prohibited and limited parking areas.

(7) Angle parking areas.

(8) Parking meter zones.

(9) Taxicab stands.

(10) Such other traffic control regulations which for their enforcement require the placement of traffic control devices, as the city council may from time to time require to be shown on the traffic control map.

(b) The traffic control map shall be prepared and kept on file in the police department and it shall be maintained by the police department. The traffic control map on file and in effect immediately prior to the effective date of this Code shall continue to be the traffic control map established by this section.
(Code 1975, § 31-42)

### Sec. 114-262. Traffic control file.

(a) There is established a traffic control file which shall be prepared and kept up-to-date by the police department and maintained in the police department office. The file shall constitute the permanent and official record of through streets, stop intersections, yield-right-of-way intersections, one-way streets, prohibited or restricted turns, prohibited and limited parking areas, angle parking areas, parking meter zones, taxicab stands and such other traffic control regulations, which for their enforcement require the placement of traffic control devices, as the city council may from time to time require to be shown on the traffic control map.

(b) The traffic control file on file and in effect immediately preceding the effective date of this Code shall continue to be the traffic control file heretofore established by this section.

(c) The traffic control file shall include the following information:

(1) Type of traffic control designation.

(2) Complete description of the street or area affected.

(3) Effective date of ordinance authorizing designation.

(4) Date proper signs and markings were erected.

(5) Date recorded upon traffic control map.
(Code 1975, § 31-43)

### Sec. 114-263. Amendments.

Amendments to the traffic control map and the traffic control file shall be made by legislation passed by the council, with the exception of the erecting and relocating of parking meters, which shall be made pursuant to the provisions of section 114-628. Upon the effective date of such legislation and upon the erection of proper signs and markings giving notice, amendments shall be in full force and effect. All such amendments shall be recorded on the official traffic control map and the official traffic control file.
(Code 1975, § 31-44)

### Sec. 114-264. One-way streets.

Upon the streets and parts of streets designated as one-way streets on the traffic control map and file in conformity with this article, vehicular traffic shall move only in the indicated direction when signs indicating the direction of traffic are erected and maintained at every intersection where movement in the opposite direction is prohibited.
(Code 1975, § 31-45)

**Cross reference—**Streets, sidewalks and other public places, ch. 102.

**State law references—**One-way streets, W. Va. Code § 17C-7-8; authority to designate one-way streets, W. Va. Code § 17C-2-8(a)(4); signs required, W. Va. Code § 17C-2-8(c).

### Sec. 114-265. Prohibited and limited turns.

Upon the streets and intersections designated upon the traffic control map as prohibited or restricted turning areas, when official traffic control markers, buttons, signs or other indications are placed within the intersection prohibiting or limiting turning movements or indicating the course to be travelled by vehicles turning, no driver of a vehicle shall disobey the directions of such indications.
(Code 1975, § 31-46)

**State law reference—**Authority to regulate or prohibit turning, W. Va. Code § 17C-2-8(c)(9).

### Secs. 114-266—114-300. Reserved.

## ARTICLE V. SERIOUS TRAFFIC OFFENSES*

### DIVISION 1. GENERALLY

### Sec. 114-301. Reckless driving.

(a) It shall be unlawful for any person to drive any vehicle in willful or wanton disregard for the safety of persons or property, and any person who violates this subsection shall be guilty of reckless driving.

(b) Any person convicted of violating subsection (a) of this section shall be fined not exceeding $500.00 or imprisoned for not more than 30 days, or both.
(Code 1975, § 31-108)

**State law references—**Similar provisions, W. Va. Code § 17C-5-32; authorized penalty for ordinance violations, W. Va. Code §§ 8-11-1, 8-12-5(57), 8-34-1.

### Sec. 114-302. Driving under influence of alcohol, controlled substances or drugs.

(a) Any person who drives a vehicle in this city while under the influence of alcohol; or under the influence of any controlled substances; or under the influence of any other drug; or under the combined influence of alcohol and any controlled substances or any other drug; or has an alcohol

*__State law reference—__Serious traffic offenses, W. Va. Code § 17C-5-1 et seq.

concentration in his blood of 0.10 percent or more by weight shall be guilty of a misdemeanor and upon conviction shall be confined in jail for a period of not less than one day or more than six months, which jail term shall include actual confinement of not less than 24 hours, and shall be fined not less than $100.00 nor more than $500.00.

(b) Any person who, being an habitual user of narcotic drugs or amphetamine or any derivative, drives a vehicle in this city shall be guilty of a misdemeanor and upon conviction shall be confined in jail for not less than one day nor more than six months, which jail term shall include actual confinement of not less than 24 hours, and shall be fined not less than $100.00 nor more than $500.00.

(c) Any person who knowingly permits his vehicle to be driven in this city by any other person who is under the influence of alcohol; or under the influence of any controlled substances; or under the influence of any other drug; or under the combined influence of alcohol and any controlled substance or any other drug; or has an alcohol concentration in his blood of 0.10 percent or more by weight or is an habitual user of narcotic drugs or amphetamine or any derivative shall be guilty of a misdemeanor and upon conviction shall be confined in jail for not more than six months and shall be fined not less than $100.00 nor more than $500.00.

(d) Any person violating any provisions of subsection (a), (b) or (c) of this section shall, for the second offense under this section, be guilty of a misdemeanor and upon conviction shall be confined in jail for a period of not less than six months nor more than one year; and the court may, in its discretion impose a fine of not less than $1,000.00 nor more than $3,000.00.

(e) The fact that any person charged with a violation of subsection (a), (b), (c) or (d) of this section is or has been legally entitled to use alcohol, a controlled substance or a drug shall not constitute a defense against any charge of violating subsection (a), (b), (c) or (d) of this section.

(f) For purposes of this section, the term "controlled substance" shall have the meaning ascribed to it in W. Va. Code ch. 60A.

(g) The sentences provided in this section upon conviction of a violation of this article are mandatory and shall not be subject to suspension or probation; except, that the court may provide for community service, work release alternatives, or weekend or part-time confinements.
(Code 1975, § 31-109; Ord. No. 6563, § 31-109, 4-5-1999)

**Cross reference—**Alcoholic beverages, ch. 6.

**State law references—**Authority to punish driving under the influence, W. Va. Code § 8-12-5(21); authorized penalty for ordinance violations, W. Va. Code §§ 8-11-1, 8-12-5(57), 8-34-1.

### Sec. 114-303. Phrases synonymous with "driving under the influence of alcohol"; validation of warrants and indictments.

(a) When used in this Code, the term or phrase "driving under the influence of intoxicating liquor," "driving or operating a motor vehicle while intoxicated," "for any person who is under the influence of intoxicating liquor to drive any vehicle" or any similar term or phrase shall be construed to mean and be synonymous with the term or phrase "while under the influence of alcohol . . . drives a vehicle" as the latter term or phrase is used in this article.

(b) A warrant or indictment which charges or alleges the offense prohibited by the provisions of this section, which warrant or indictment uses any of the terms or phrases set forth in subsection (a) of this section, shall not be fatally defective if such warrant or indictment otherwise informs the person so accused of the charges against him.
(Code 1975, § 31-109.1)

**State law reference—**Similar provisions, W. Va. Code § 17C-5-2a.

### Secs. 114-304—114-320. Reserved.

## DIVISION 2. PROOF OF ALCOHOL CONTENT; LICENSE SUSPENSION

### Sec. 114-321. Implied consent to test; administration at direction of police officer.

Any person who drives a motor vehicle on a highway within the city shall be deemed to have given his consent by the operation of the vehicle,

subject to the provisions of this article, to a chemical test of either his blood, breath or urine for the purpose of determining the alcoholic content of his blood whenever he shall be lawfully arrested by a police officer for the offense of driving a motor vehicle upon any highway within the city while under the influence of intoxicating liquor. The test shall be incidental to a lawful arrest and shall be administered at the direction of the arresting officer having reasonable grounds to believe the person to have been driving a motor vehicle upon any highway within the city while under the influence of intoxicating liquor. The police department shall designate which of these tests shall be administered; provided, that if the test so designated is a blood test and the person so arrested refuses to submit to such blood test, the officer making such arrest shall designate in lieu thereof, either a breath or urine test be administered; and notwithstanding the provisions of section 114-323, such refusal to submit to a blood test only shall not result in the suspension of the arrested person's operator's or chauffeur's license, or junior or probationary operator's license, or nonresident privilege to drive. The person arrested shall be told that his refusal to submit to the test finally designated as provided in this section could result in the suspension of his operator's or chauffeur's license, or junior or probationary operator's license, or nonresident privilege to drive for a period of six months.
(Code 1975, § 31-110)

**State law reference—**Similar provisions, W. Va. Code § 17C-5-4.

### Sec. 114-322. How blood test administered; use of test results; certain immunity from liability incident to administering test.

Only a doctor of medicine or osteopathy, or registered nurse, or trained medical technician at the place of his employment, acting at the request and direction of the police officer, may withdraw blood for the purpose of determining alcoholic content. These limitations shall not apply to the taking of a breath test or a urine specimen. In withdrawing blood for the purpose of determining alcoholic content, only a previously unused and sterile needle and sterile vessel may be utilized; and the withdrawal shall in all respects be in strict accord with accepted medical practices. A nonalcoholic antiseptic shall be used for cleansing the skin prior to venapuncture. The person tested may, at his own expense, have a doctor of medicine or osteopathy, or registered nurse, or trained medical technician at the place of his employment, of his own choosing, administer a chemical test in addition to the test administered at the direction of the law enforcement officer. The failure or inability of the person arrested to obtain an additional test shall not preclude the admission into evidence at any judicial proceeding of the results of the test taken at the direction of the police officer. Upon the request of the person who is tested, full information concerning the test taken at the direction of the police officer shall be made available to him. No person who administers any such test upon the request of a police officer, no hospital in or with which such person is employed or is otherwise associated or in which such test is administered; and no other person by whom or which such person is employed or is in any way associated shall be in anywise criminally liable for the administration of such test, or civilly liable in damages to the person tested unless for gross negligence or willful or wanton injury.
(Code 1975, § 31-111)

**State law reference—**Similar provisions, W. Va. Code § 17C-5-6.

### Sec. 114-323. Refusal to submit to certain chemical tests; procedure to initiate suspension of driver's license or privilege; consent not withdrawn if arrested person incapable of refusal.

(a) If any person under arrest as specified in section 114-321 refuses to submit to the test finally designated in the manner provided in section 114-321, no test shall be given; but the arresting officer shall submit to the state commissioner of motor vehicles a sworn statement that:

(1) He had reasonable grounds to believe such person had been driving a motor vehicle upon a highway within the city while under the influence of intoxicating liquor;

(2) Such person was lawfully placed under arrest for the offense of driving a motor

vehicle upon a highway within the city while under the influence of intoxicating liquor, contrary to the provisions of section 114-302;

(3) Such person refused to submit to the test finally designated in the manner provided in section 114-302; and

(4) Such person was told that his operator's or chauffeur's license, or junior or probationary operator's license, or nonresident privilege to drive could be suspended for a period of six months if he refused to submit to the test finally designated in the manner provided in section 114-321.

The letter transmitting such sworn statement to the state commissioner of motor vehicles shall inform the commissioner that the sworn statement is furnished to him for his action as provided in W. Va. Code §§ 17C-5A-3 and 17C-5A-4.

(b) Any person who is unconscious or who is otherwise in a condition rendering him incapable of refusal shall be deemed not to have withdrawn his consent for a test of his blood, breath or urine as provided in section 114-321; and the test may be administered although such person is not told that his failure to submit to the test could result in the suspension of his operator's or chauffeur's license or junior or probationary operator's license, or nonresident privilege to operate a motor vehicle for a period of six months.

(c) A suspension under this section shall, unless otherwise provided by the state commissioner of motor vehicles, run concurrently with the period of any suspension or revocation imposed in accordance with other provisions of this Code and growing out of the same incident which gave rise to the arrest for driving a motor vehicle while under the influence of intoxicating liquor and the subsequent refusal to undergo the test finally designated in accordance with the provisions of section 114-321.

(Code 1975, § 31-112)

**State law reference—**Similar provisions, W. Va. Code § 17C-5-7.

### Sec. 114-324. Interpretation and use of chemical test.

(a) Upon trial for the offense of driving a motor vehicle on any highway within the city while under the influence of intoxicating liquor, or upon the trial of any civil or criminal action or proceeding arising out of acts alleged to have been committed by any person while driving a motor vehicle while under the influence of intoxicating liquor, evidence of the amount of alcohol in the person's blood at the time of the arrest or of the acts alleged, as shown by a chemical analysis of his blood, breath or urine, is admissible if the sample or specimen was taken within two hours from and after the time of arrest or of the acts alleged and shall give rise to the following presumptions or have the following effect:

(1) Evidence that there was, at that time, 0.05 percent or less, by weight, of alcohol in his blood, shall be prima facie evidence that the person was not under the influence of intoxicating liquor.

(2) Evidence that there was, at that time, more than 0.05 percent and less than 0.10 percent, by weight, of alcohol in the person's blood shall be relevant evidence but it is not to be given prima facie effect in indicating whether the person was under the influence of intoxicating liquor.

(3) Evidence that there was, at that time, 0.10 percent or more, by weight, of alcohol in his blood, shall be admitted as prima facie evidence that the person was under the influence of intoxicating liquor.

(b) Percentage by weight of alcohol in the blood shall be based upon milligrams of alcohol per 100 cubic centimeters of blood.

(c) A chemical analysis of a person's blood, breath or urine, in order to give rise to the presumptions or to have the effect provided for in subsection (a)(1), (2) and (3) of this section, must be performed in accordance with methods and standards approved by the state department of health. A chemical analysis of blood or urine to determine the alcoholic content of blood shall be conducted by a qualified laboratory or by the state police scientific laboratory of the criminal identification bureau of the department of public safety.

(d) The provisions of this division shall not limit the introduction in any judicial proceeding of any other competent evidence bearing on the question of whether the person was under the influence of intoxicating liquor.
(Code 1975, § 31-113)

**State law reference—**Similar provisions, W. Va. Code § 17C-5-8.

### Sec. 114-325. Right to demand test.

Any person lawfully arrested for driving a motor vehicle on any highway within the city while under the influence of intoxicating liquor and who is not tested at the direction of the arresting officer under the provisions of this article shall have the right to demand that a sample or specimen of his blood, breath or urine be taken within two hours from and after the time of arrest, and that a chemical test be made. The analysis disclosed by such chemical test shall be made available to such arrested person forthwith upon demand.
(Code 1975, § 31-114)

**State law reference—**Similar provisions, W. Va. Code § 17C-5-9.

### Sec. 114-326. Fee for withdrawing blood sample and making urine test.

A fee not exceeding $5.00 shall be allowed to the person withdrawing a blood sample or administering a urine test at the request and direction of a police officer in accordance with the provisions of this article. If the person whose blood sample was withdrawn or whose urine was tested was arrested and charged with a violation of this chapter, the city shall pay the fee; and if such person is subsequently convicted of such charge, such fee shall be taxed as a part of the costs of the criminal proceeding and shall be paid, notwithstanding any other provision of this Code to the contrary, into the general fund of the city.
(Code 1975, § 31-115)

**State law reference—**Similar provisions, W. Va. Code § 17C-5-10.

### Sec. 114-327. Hearing procedure; judicial review.

Nothing contained in this division shall deprive any person whose operator's or chauffeur's license, or junior or probationary license, or nonresident privilege to drive has been so suspended, from availing himself of any administrative or judicial review as provided for in W. Va. Code § 17C-5A-4.
(Code 1975, § 31-116)

### Secs. 114-328—114-360. Reserved.

## ARTICLE VI. VEHICLE OPERATION

### DIVISION 1. GENERALLY

### Sec. 114-361. Motor vehicle drivers must be licensed.

(a) No person, except those expressly exempted by this section, shall drive any motor vehicle upon a street in this city unless he has in his immediate possession a currently valid state operator's or chauffeur's license, or an instruction permit if he is accompanied by a licensed operator or chauffeur who is occupying a seat beside such permit holder.

(b) The following persons are exempt from the requirements of this section:

(1) Any person while operating a motor vehicle in the armed services of the United States while in the performance of his official duties.

(2) A nonresident of this state who is at least 16 years of age and who has in his immediate possession a valid operator's license issued to him in his home state or country may operate a motor vehicle in this city only as an operator for a period not to exceed 90 days in any one calendar year.

(3) A nonresident of this state who is at least 16 years of age, who has in his immediate possession a valid operator's license issued to him in his home state or country and who is employed in this state, or owns, maintains or operates a place or places of business in this state, or engages in any trade, profession or occupation in this state, in addition to the driving privileges extended under subsection (b)(2) of

this section, may operate a motor vehicle in this city only as an operator in traveling to and from his place of employment, place of business, or place at which he engages in such trade, profession or occupation and in the discharge of the duties of his employment, business, trade, profession or occupation if such duties are such that if performed by a resident of the state over the age of 18 years such resident would not be required under the provisions of W. Va. Code ch. 17B to be licensed as a chauffeur.

(4) A nonresident of this state who is at least 18 years of age and who has in his immediate possession a valid chauffeur's license issued to him in his home state or country may operate a motor vehicle in this city either as a chauffeur subject to the age limits applicable to chauffeurs in this state, or as an operator subject to the limitations imposed on nonresident operators in subsection (b)(2) and (3) of this section.

(5) Any person who is a student, properly enrolled and registered in an accredited school, college or university in this state, who is at least 16 years of age and who has in his immediate possession a valid operator's license issued to him in his home state, notwithstanding the limitations of subsection (b)(2) and (3) of this section may operate a motor vehicle in this city only as an operator provided the state of which he is a resident shall extend the same privileges to residents of this state. This exemption shall be canceled immediately when such student is graduated from school, college or university or is expelled or ceases to be a student.

(Code 1975, § 31-47)

**State law reference—**Similar provisions, W. Va. Code §§ 17B-2-1, 17B-2-2, 17B-2-5.

### Sec. 114-362. Vehicle registration plates required.

No person shall operate or park any motor vehicle upon any street in the city unless such person shall display the registration plate required by the laws of this state and in such manner as may be required by the laws of this state.

(Code 1975, § 31-48)

**State law reference—**Registration of motor vehicles, W. Va. Code ch. 17A.

### Sec. 114-363. State vehicle inspection certificate required.

No person shall drive or move on any street any motor vehicle, trailer, semitrailer or pole trailer or any combination of such vehicles unless the vehicle bears a current certificate of inspection as required by W. Va. Code ch. 17C, art. 16 (W. Va. Code § 17C-16-1 et seq.).

(Code 1975, § 31-49)

### Sec. 114-364. Safety equipment and requirements for motorcyclists and motorcycles.

(a) No person shall operate or be a passenger on any motorcycle unless he is wearing securely fastened on his head by either a neck or chin strap a protective helmet designed to deflect blows, resist penetration and spread impact forces. Any helmet worn by a motorcycle operator or motorcycle passenger shall meet the performance specifications established by the United States of America Standards Institute. Specifications for Protective Headgear for Vehicle Users, Standard Z 90.1-1966. Helmets worn by motorcycle operators and motorcycle passengers shall be coated with a reflectorized substance or have attached a reflectorized material, on both sides and the back, with a minimum of ten square inches of coated substance or attached material in each of the three locations.

(b) No person shall operate or be a passenger on any motorcycle unless he is wearing safety, shatter-resistant eyeglasses (excluding contact lenses), or eye goggles or face shield that complies with the performance specifications established by the United States of America Standards Institute, Specifications for Head, Eye and Respiratory Protection Z 2.1-1959. In addition, if any motorcycle is equipped with a windshield or windscreen, the windshield or windscreen shall be constructed of safety, shatter-resistant mate-

rial that complies with the performance specifications established by the United States of America Standards Institute, Safety Glazing Materials for Glazing Motor Vehicles Operated on Land Highways, Standard Z-26.1-1966.

(c) No person shall operate a motorcycle on which the handlebars or grips are more than 15 inches higher than the uppermost part of the operator's seat when the seat is not depressed in any manner.

(d) A person operating a motorcycle shall ride in a seated position facing forward and only upon a permanent operator's seat attached to the motorcycle. No operator shall carry any other person nor shall any other person ride on a motorcycle unless the motorcycle is designed to carry more than one person, in which event a passenger may ride behind the operator upon the permanent operator's seat if it is designed for two persons, or upon another seat firmly attached to the motorcycle to the rear of the operator's seat and equipped with footrests designed and located for use by the passenger or in a sidecar firmly attached to the motorcycle. No more than two persons, the motorcycle operator and one passenger, shall ride the same motorcycle at the same time. No person shall ride sidesaddle on a motorcycle seat.
(Code 1975, § 31-50)

**State law reference—**Similar provisions, W. Va. Code § 17C-15-44.

### Sec. 114-365. Obstruction to driver's view or driving mechanism.

(a) No person shall drive a vehicle when it is so loaded as to obstruct the view of the driver to the front or sides of the vehicle or as to interfere with the driver's control over the driving mechanism of the vehicle.

(b) No passenger in a vehicle shall ride in such position as to interfere with the driver's view ahead or to the sides, or to interfere with his control over the driving mechanism of the vehicle.
(Code 1975, § 31-51)

**State law reference—**Similar provisions, W. Va. Code § 17C-14-4.

### Sec. 114-366. Reserved.

**Editor's note—**Bill No. 8030, adopted May 6, 2024, repealed § 114-366, which pertained to passengers in seat with operator and derived from Code 1975, § 31-52.

### Sec. 114-367. Backing.

(a) The driver of a vehicle shall not back it unless such movement can be made with reasonable safety and without interfering with other traffic.

**State law reference—**Similar provisions, W. Va. Code § 17C-14-2.

(b) The driver of a vehicle shall not back it into an intersection or over a crosswalk and shall not in any event or at any place back a vehicle a greater distance than 25 feet unless it be necessary to relieve a traffic jam or on orders from a police officer.
(Code 1975, § 31-54)

### Sec. 114-368. Restricted access.

No person shall drive a vehicle onto or from any controlled-access roadway except at such entrances and exits as are established by public authority.
(Code 1975, § 31-69)

**State law reference—**Similar provisions, W. Va. Code § 17C-7-12.

### Sec. 114-369. One-way streets.

When official traffic control one-way street signs are erected and in place upon streets indicating that all vehicles on such streets be moved only in one specific direction, no person shall move a vehicle upon any such street except in the direction indicated by such signs.
(Code 1975, § 31-70)

**Cross reference—**Streets, sidewalks and other public places, ch. 102.

**State law references—**One-way streets, W. Va. Code § 17C-7-8; authority to designate one-way streets, W. Va. Code § 17C-2-8(a)(4); signs required, W. Va. Code § 17C-2-8(c).

### Sec. 114-370. Closed streets.

Where official traffic control signs or markers are erected indicating that any street or highway or part is newly paved or repaired or closed to

traffic, no person shall drive any vehicle over any such street or highway until it is officially opened to traffic.
(Code 1975, §§ 31-31(g), 31-71)

**Cross reference—**Streets, sidewalks and other public places, ch. 102.

### Sec. 114-371. Driving on sidewalk.

The driver of a vehicle shall not drive on any sidewalk area except at a permanent or temporary driveway.
(Code 1975, § 31-72)

**Cross reference—**Streets, sidewalks and other public places, ch. 102.

### Sec. 114-372. Signs indicating vehicles of certain types or weight prohibited on certain streets or bridges.

Whenever official traffic control signs are placed, erected or installed indicating that vehicles of certain types or in excess of certain weights are prohibited on certain streets or portions of certain streets, or bridges, no driver of a vehicle shall disobey the prohibitions of any such sign.
(Code 1975, § 31-73)

**State law reference—**Local weight restrictions, etc., authorized W. Va. Code §§ 17C-2-8(a)(7), 17C-17-12.

### Sec. 114-373. Safety zones.

No vehicle shall at any time be driven upon, over or through or stop or park upon a safety zone or part when such safety zone is appropriately marked by official traffic control signs or markings.
(Code 1975, § 31-74)

### Sec. 114-374. Zones of quiet.

The mayor is authorized, where it is necessary to preserve health, to establish zones of quiet. Whenever official traffic control signs are erected indicating a zone of quiet, no person operating a vehicle within any such zone shall sound the horn or other warning device of such vehicle except in an emergency.
(Code 1975, § 31-75)

### Sec. 114-375. Play streets.

The mayor is authorized to establish play streets. Whenever official traffic control signs are erected indicating any street or part as a play street, no person shall drive a vehicle upon any such street or portion except drivers of vehicles having business or whose residences are within such closed area; and then such drivers shall exercise the greatest care in driving upon any such street or portion.
(Code 1975, § 31-77)

**Cross reference—**Streets, sidewalks and other public places, ch. 102.

### Sec. 114-376. Following too closely.

(a) The driver of a motor vehicle shall not follow another vehicle more closely than is reasonable and prudent, having due regard for the speed of such vehicles and the traffic upon and the condition of the street.

(b) The driver of any motor truck or motor vehicle drawing another vehicle when traveling upon a roadway outside of a business or residential district and which is following another motor truck or motor vehicle drawing another vehicle shall whenever conditions permit leave sufficient space so that an overtaking vehicle may enter and occupy such space without danger, except that this shall not prevent a motor truck or motor vehicle drawing another vehicle from overtaking and passing any like vehicle or other vehicle.

(c) Motor vehicles being drawn upon any roadway outside of a business or residence district in a caravan or motorcade whether or not towing other vehicles shall be so operated as to allow sufficient space between each such vehicle or combination of vehicles so as to enable any other vehicle to enter and occupy such space without danger. This provision shall not apply to funeral processions.
(Code 1975, § 31-78)

**State law reference—**Similar provisions, W. Va. Code § 17C-7-10.

### Sec. 114-377. Following fire apparatus prohibited.

The driver of any vehicle other than one on official public business shall not follow any fire

apparatus traveling in response to a fire alarm closer than 500 feet or drive into or park such vehicle within the block where fire apparatus has stopped in answer to a fire alarm.
(Code 1975, § 31-79)

**Cross reference—**Fire prevention and protection, ch. 54.

**State law reference—**Similar provisions, W. Va. Code § 17C-14-9.

### Sec. 114-378. Driving with clutch or gears disengaged.

(a) No person shall operate a motor vehicle on any street or highway of the city with the clutch disengaged or gears out of mesh, except for the purpose of changing or shifting gears, while stopping or while being towed.

(b) The driver of any motor vehicle when traveling upon a downgrade shall not coast with the gears of such vehicle in neutral.

(c) The driver of a commercial motor vehicle when traveling upon a downgrade shall not coast with the clutch disengaged.
(Code 1975, § 31-80)

**State law reference—**Similar provisions, W. Va. Code § 17C-14-8.

### Sec. 114-379. Crossing fire hose.

No vehicle shall be driven over any unprotected hose of a fire department when laid down on any street or private driveway to be used at any fire or alarm of fire without the consent of the fire department official in command.
(Code 1975, § 31-81)

**Cross reference—**Fire prevention and protection, ch. 54.

**State law reference—**Similar provisions, W. Va. Code § 17C-14-10.

### Sec. 114-380. Obstructing intersection or crosswalk.

No driver shall enter an intersection or a marked crosswalk unless there is sufficient space on the other side of the intersection or crosswalk to accommodate the vehicle he is operating without obstructing the passage of other vehicles or pedestrians, notwithstanding any traffic control signal indication to proceed.
(Code 1975, § 31-82)

### Sec. 114-381. Towing.

No vehicle shall tow more than one disabled vehicle at any one time. The connection between the two shall not be longer than ten feet and shall be substantial enough to pull the towed vehicle without breaking. No vehicle shall have attached to it more than one trailer at any one time.
(Code 1975, § 31-153)

**State law reference—**Similar provisions, W. Va. Code § 17C-17-7.

### Secs. 114-382—114-400. Reserved.

## DIVISION 2. SPEED*

### Sec. 114-401. Speed restrictions generally.

(a) No person shall drive a vehicle on a street at a speed greater than is reasonable and prudent under the conditions and having regard to the actual and potential hazards, then existing. In every event, speed shall be so controlled as may be necessary to avoid colliding with any person, vehicle or other conveyance on or entering the streets in compliance with legal requirements and the duty of all persons to use due care.

(b) The driver of every vehicle shall, consistent with the requirements of subsection (a) of this section, drive at an appropriate reduced speed when approaching and crossing an intersection or railway grade crossing, when approaching and going around a curve, when approaching a hillcrest, when traveling upon any narrow or winding roadway, and when special hazard exists with respect to pedestrians or other traffic or by reason of weather or street conditions.
(Code 1975, § 31-100)

**State law reference—**Similar provisions, W. Va. Code § 17C-6-1.

### Sec. 114-402. Maximum speed limits established.

(a) Where no special hazard exists that requires lower speed for compliance with section 114-401, the speed of any vehicle not in excess of the

*__State law references—__Speed, W. Va. Code § 17C-6-1 et seq.; local alteration of speed limits, W. Va. Code §§ 17C-2-8(a)(10), 17C-6-3.

limits specified in this section or established as authorized in this division shall be lawful, but any speed in excess of the limits specified in the subsections of this section or established as authorized in this division shall be unlawful.

(b) On all city streets, when not otherwise signposted, the maximum speed shall be 25 miles per hour.

(c) At any intersection not controlled by traffic signal lights, the maximum speed shall be 20 miles per hour.

(d) When passing through school zones during school recess or while children are going to or from school during opening or closing hours, the maximum speed shall be 15 miles per hour.

(e) On all public alleys, when not otherwise signposted, the maximum speed shall be ten miles per hour.

(f) On all streets and drives in Spring Hill Cemetery, the maximum speed shall be 15 miles per hour.

(g) When encountering school buses while standing or loading or unloading, traffic shall come to a full stop.

(h) When emerging from an alley, driveway, parking lot, garage, building or place of business, traffic must come to a full stop.

(i) On all streets and roadways for which a maximum speed is prescribed on official traffic control signs, the speed shall be as specified on such signs. Unless specifically set by ordinance, the director of traffic shall have authority, upon the approval of the planning/streets and traffic committee of city council, to designate the maximum speed for specific city streets or portions of streets and to update official traffic control signs accordingly.
(Code 1975, § 31-101; Bill No. 7853, 11-4-2019)

### Sec. 114-403. Minimum speed.

No person shall operate a vehicle at such a slow speed as to impede or block the normal and reasonable movement of traffic except when reduced speed is necessary for safe operation or to comply with the law.
(Code 1975, § 31-102)

**State law reference—**Similar provisions, W. Va. Code § 17C-6-3a.

### Sec. 114-404. Nonpassenger vehicles with pneumatic tires.

Subject to all other speed restrictions of this division, no person shall drive a vehicle not designed for carrying passengers and equipped with pneumatic tires at a speed in excess of:

(1) Twenty miles per hour, in any business district.

(2) Twenty-five miles per hour, in any residence district.

(3) Trucks licensed at 4,000 pounds' gross vehicle weight or less shall be permitted the same speed as passenger cars.

(Code 1975, § 31-103)

**State law reference—**Similar provisions, W. Va. Code § 17C-6-4.

### Sec. 114-405. Vehicles without pneumatic tires.

No person shall drive any vehicle equipped with other than pneumatic tires at a speed greater than a maximum of ten miles per hour.
(Code 1975, § 31-104)

**State law reference—**Similar provisions, W. Va. Code § 17C-6-5(a).

### Sec. 114-406. Speed on bridges.

(a) No person shall drive a vehicle over any bridge or other elevated structure constituting a part of a street at a speed which is greater than the maximum speed which can be maintained with safety to such bridge or structure when such structure is signposted with official traffic control signs.

(b) Upon the trial of any person charged with a violation of this section, proof of determination of the maximum speed by the city council, as provided in W. Va. Code § 17C-6-3 and the existence of such official traffic control signs

shall constitute conclusive evidence of the maximum speed which can be maintained with safety to such bridge or structure.
(Code 1975, § 31-105)

**State law reference—**Similar provisions, W. Va. Code § 17C-6-5(b), (d).

### Sec. 114-407. Slow-moving vehicle emblem.

(a) All farm machinery and other machinery, including all road construction machinery except when guarded by flagmen or flares, designed to operate at 25 miles per hour or less, traveling on a public highway during day or night shall display a triangular slow-moving emblem on the rear of the vehicle.

(b) The standards and specifications for design and the position of mounting the slow-moving vehicle emblem, as well as requirements for certification of conformance, shall be as adopted by the state road commissioner pursuant to W. Va. Code § 17C-6-9. The requirements of such emblem shall be in addition to any lighting devices required by law.

(c) The use of this emblem shall be restricted to the use specified in subsection (a) of this section, and its use on any other type of vehicle or as a clearance marker on wide machinery or on stationary objects on the highway is prohibited.
(Code 1975, § 31-106)

**State law reference—**Similar provisions, W. Va. Code § 17C-6-9.

### Secs. 114-408—114-430. Reserved.

## DIVISION 3. DRIVING ON RIGHT SIDE OF ROADWAY, OVERTAKING AND PASSING*

### Sec. 114-431. Keeping to right side of roadway; exceptions.

(a) Upon all roadways of sufficient width a vehicle shall be driven upon the right half of the roadway, except as follows:

(1) When overtaking and passing another vehicle proceeding in the same direction under the rules governing such movement;

(2) When the right half of a roadway is closed to traffic while under construction or repair;

(3) Upon a roadway divided into three marked lanes for traffic under the applicable rules; or

(4) Upon a roadway designated and signposted for one-way traffic.

(b) Upon all roadways, any vehicle proceeding at less than the normal speed of traffic at the time and place and under the conditions then existing shall be driven in the right-hand lane then available for traffic, or as close as practicable to the right-hand curb or edge of the roadway, except when overtaking and passing another vehicle proceeding in the same direction or when preparing for a left turn at an intersection or into a private road or driveway.
(Code 1975, § 31-58)

**State law reference—**Similar provisions, W. Va. Code § 17C-7-1.

### Sec. 114-432. Passing in opposite directions.

Drivers of vehicles proceeding in opposite directions shall pass each other to the right; and upon roadways having width for not more than one line of traffic in each direction, each driver shall give to the other at least half the main-traveled portion of the roadway as nearly as possible.
(Code 1975, § 31-59)

**State law reference—**Similar provisions, W. Va. Code § 17C-7-2.

### Sec. 114-433. Overtaking and passing on left.

The following rules shall govern the overtaking and passing of vehicles proceeding in the same direction, subject to these limitations, exceptions, and special rules:

(1) The driver of a vehicle overtaking another vehicle proceeding in the same direction shall give an audible signal and pass to the left at a safe distance and shall not again drive to the right side of the roadway until safely clear of the overtaken vehicle.

*__State law reference—__Driving on right side, overtaking, passing, etc., W. Va. Code § 17C-7-1 et seq.

(2) The driver of a vehicle overtaking a bicycle traveling in the same direction shall pass to the left of the bicycle at a distance of not less than three feet at a careful and reduced speed, and may not again drive to the right side of the roadway until safely clear of the overtaken bicycle.

(3) Except when overtaking and passing on the right is permitted, the driver of an overtaken vehicle shall give way to the right in favor of the overtaking vehicle on audible signal and shall not increase the speed of his vehicle until completely passed by the overtaking vehicle.

(Code 1975, § 31-60; Bill No. 8030, 5-6-2024)

**State law reference—**Similar provisions, W. Va. Code § 17C-7-3.

### Sec. 114-434. When overtaking on right permissible.

(a) The driver of a vehicle may overtake and pass upon the right of another vehicle only under the following conditions:

(1) When the vehicle overtaken is making or about to make a left turn.

(2) Upon a street with unobstructed pavement not occupied by parked vehicles of sufficient width for two or more lines of moving vehicles in each direction.

(3) Upon a one-way street, or upon any roadway on which traffic is restricted to one direction of movement, where the roadway is free from obstructions and of sufficient width for two or more lines of moving vehicles.

(b) The driver of a vehicle may overtake and pass another vehicle upon the right only under conditions permitting such movement in safety. In no event shall such movement be made by driving off the pavement or main-traveled portion of the roadway.

(Code 1975, § 31-62)

**State law reference—**Similar provisions, W. Va. Code § 17C-7-4.

### Sec. 114-435. Limitations on overtaking on left.

No vehicle shall be driven to the left side of the center of the roadway in overtaking and passing another vehicle proceeding in the same direction unless such left side is clearly visible and is free of oncoming traffic for a sufficient distance ahead to permit such overtaking and passing to be completely made without interfering with the safe operation of any vehicle approaching from the opposite direction or any vehicle overtaken. In every event, the overtaking vehicle must return to the right-hand side of the roadway before coming within 100 feet of any vehicle approaching from the opposite direction.

(Code 1975, § 31-61)

**State law reference—**Similar provisions, W. Va. Code § 17C-7-5.

### Sec. 114-436. Driving to left of center.

(a) No vehicle shall at any time be driven to the left side of the roadway under the following conditions:

(1) When approaching the crest of a grade or upon a curve in the street where the driver's view is obstructed within such distance as to create a hazard in the event another vehicle might approach from the opposite direction.

(2) When approaching within 100 feet of or traversing any intersection or railroad grade crossing.

(3) When the view is obstructed upon approaching within 100 feet of any bridge, viaduct or tunnel.

(b) The foregoing limitations shall not apply upon a one-way roadway.

(Code 1975, § 31-63)

**State law reference—**Similar provisions, W. Va. Code § 17C-7-6.

### Sec. 114-437. No passing zones.

(a) Whenever official traffic control signs or traffic control markings are placed, painted or installed indicating that no vehicle shall overtake and pass another vehicle, no driver of a vehicle shall disobey the directions of any such sign or markings.

(b) One or two solid yellow lines, or two solid white lines marked side by side, and lengthwise on a roadway shall indicate that no vehicle shall

overtake and pass another vehicle regardless of the lane or direction in which such vehicles are moving; and a solid line marked side by side to a broken line on a roadway shall indicate that a vehicle in the same lane as the broken line may overtake and pass another vehicle in that lane, but that no vehicle in the lane bounded by the solid line shall overtake and pass another vehicle.
(Code 1975, § 31-64)

**State law reference—**No passing zones, W. Va. Code § 17C-7-7.

### Sec. 114-438. Dividing traffic islands; double lines on streets.

No driver shall cross any dividing traffic island in a street or any double line painted upon a street pavement without coming to a full stop and giving the appropriate arm signal.
(Code 1975, § 31-65)

### Sec. 114-439. Rotary traffic islands.

A vehicle passing around a rotary traffic island shall be driven only to the right of such island.
(Code 1975, § 31-66)

**State law reference—**Similar provisions, W. Va. Code § 17C-7-8(c).

### Sec. 114-440. Roadways laned for traffic.

Whenever any roadway has been divided into two or more clearly marked lanes for traffic, the following rules in addition to all others consistent with this section shall apply:

(1) A vehicle shall be driven as nearly as practicable entirely within a single lane and shall not be moved from such lane until the driver has first ascertained that such movement can be made with safety.

(2) Upon a roadway which is divided into three lanes a vehicle shall not be driven in the center lane except when overtaking and passing another vehicle where the roadway is clearly visible and such center lane is clear of traffic within a safe distance, or in preparation for a left turn or where such center lane is at the time allocated exclusively to traffic moving in the direction the vehicle is proceeding and is signposted to give notice of such allocation.

(3) Official traffic control signs may be erected directing slow-moving traffic to use a designated lane or designating those lanes to be used by traffic moving in a particular direction regardless of the center of the roadway; and drivers of vehicles shall obey the directions of every such sign.

(Code 1975, § 31-67)

**State law reference—**Similar provisions, W. Va. Code § 17C-7-9.

### Sec. 114-441. Divided streets.

Whenever any street has been divided into two roadways by leaving an intervening space or by a physical barrier or clearly indicated dividing section so constructed as to impede vehicular traffic, every vehicle shall be driven only upon the right-hand roadway; and no vehicle shall be driven over, across or within any such dividing space, barrier or section except through an opening in such physical barrier or dividing section or space or at a cross-over or intersection established by public authority.
(Code 1975, § 31-68)

**State law reference—**Similar provisions, W. Va. Code § 17C-7-11.

### Secs. 114-442—114-460. Reserved.

## DIVISION 4. TURNING, STARTING AND SIGNALS ON STOPPING AND TURNING*

### Sec. 114-461. Required position and method of turning at intersections.

The driver of a vehicle intending to turn at an intersection or to turn from one lane to another or otherwise change direction shall do so as provided in this article.
(Code 1975, § 31-83(a))

**State law reference—**Similar provisions, W. Va. Code § 17C-8-1.

---

***State law references—**Turning and starting and signals on stopping and turning, W. Va. Code § 17C-8-1 et seq.; authority to regulate or prohibit turning, W. Va. Code § 17C-2-8(a)(9).

### Sec. 114-462. Right turns.

Both the approach for a right turn and a right turn shall be made as close as practicable to the right-hand curb or edge of the roadway.
(Code 1975, § 31-85(a))

**State law reference—**Similar provisions, W. Va. Code § 17C-8-2.

### Sec. 114-463. Left turns on two-way roadways.

At any intersection where traffic is permitted to move in both directions on each roadway entering the intersection, an approach for a left turn shall be made in that portion of the right half of the roadway nearest the centerline and by passing to the right of such centerline where it enters the intersection and after entering the intersection the left turn shall be made so as to leave the intersection to the right of the centerline of the roadway being entered. Whenever practicable, the left turn shall be made in that portion of the intersection to the left of the center of the intersection.

(Code 1975, § 31-86(a))

**State law reference—**Similar provisions, W. Va. Code § 17C-8-3.

### Sec. 114-464. Left turns on other than two-way roadways.

At any intersection where traffic is restricted to one direction on one or more of the roadways, the driver of a vehicle intending to turn left at any such intersection shall approach the intersection in the extreme left-hand lane lawfully available to traffic moving in the direction of travel of such vehicle; and after entering the intersection the left turn shall be made so as to leave the intersection, as nearly as practicable, in the left-hand lane lawfully available to traffic moving in such direction upon the roadway being entered.

(Code 1975, § 31-86(b))

**State law reference—**Similar provisions, W. Va. Code § 17C-8-4.

### Sec. 114-465. Stopping and sudden decrease of speed require signal be given.

No person shall stop or suddenly decrease the speed of a vehicle without first giving an appropriate signal in the manner provided in this article to the driver of any vehicle immediately to the rear when there is opportunity to give such signal.

(Code 1975, § 31-55)

**State law reference—**Similar provisions, W. Va. Code § 17C-8-8(c).

### Sec. 114-466. U-turns.

The driver of any vehicle shall not turn such vehicle so as to proceed in the opposite direction upon any street or highway in a business district and shall not upon any other street or highway so turn a vehicle unless such movement can be made in safety and without interfering with other traffic.

(Code 1975, § 31-87)

### Sec. 114-467. Obedience to turn signs and travel indicators.

Whenever official traffic control signs are erected indicating that no right turn, left turn or U-turn or through course of travel is permitted, every driver of a vehicle shall obey the directions of any such sign; and when official traffic control signs, markers, buttons or other indicators are placed on a street or highway or within an intersection indicating the course to be traveled by a vehicle, every driver of a vehicle shall obey the directions of such indicators.

(Code 1975, § 31-84)

### Sec. 114-468. Starting parked vehicle.

No person shall start a vehicle which is stopped, standing or parked unless such movement can be made with reasonable safety.

(Code 1975, § 31-53)

**State law reference—**Similar provisions, W. Va. Code § 17C-8-7.

### Sec. 114-469. Turning at intersections.

(a) No person shall turn a vehicle at an intersection unless the vehicle is in proper position upon the roadway as required in sections 114-463, 114-464, or turn a vehicle to enter a private road or driveway or otherwise turn a vehicle from a direct course or move right or left upon a roadway unless such movement can be made with reasonable safety. No person shall so turn any vehicle without giving an appropriate signal in the manner provided in this division if any other traffic may be affected by such movement.

(b) A signal of intention to turn right or left when required shall be given continuously during not less than the last 100 feet traveled by the vehicle before turning.
(Code 1975, § 31-83(b), (c))

**State law reference—**Similar provisions, W. Va. Code § 17C-8-8.

### Sec. 114-470. Signals by hand and arm or signal device.

Any stop or turn signal when required in this division shall be given either by means of the hand and arm or by a signal lamp or mechanical signal device; but when a vehicle is so constructed or loaded that hand-and-arm signal would not be visible both to the front and rear of such vehicle, such signals must be given by such a lamp or signal device.
(Code 1975, § 31-56)

**State law reference—**Similar provisions, W. Va. Code § 17C-8-9.

### Sec. 114-471. Method of giving hand-and-arm signals.

All signals required to be given by hand and arm shall be given from the left side of the vehicle in the following manner and such signals shall indicate as follows:

(1) Left turn, hand and arm extended horizontally.

(2) Right turn, hand and arm extended upward.

(3) Stop or decrease speed, hand and arm extended downward.

(Code 1975, § 31-57)

**State law reference—**Similar provisions, W. Va. Code § 17C-8-10.

### Secs. 114-472—114-490. Reserved.

## DIVISION 5. RIGHT-OF-WAY*

### Sec. 114-491. Upon approaching or entering intersection.

(a) The driver of a vehicle approaching an intersection shall yield the right-of-way to a vehicle which has entered the intersection from a different street.

(b) When two vehicles enter an intersection from a different street at approximately the same time, the driver of the vehicle on the left shall yield the right-of-way to the vehicle on the right.

(c) The right-of-way rules declared in subsections (a) and (b) of this section are modified at through highways and otherwise as stated in this division.
(Code 1975, § 31-88)

**State law reference—**Similar provisions, W. Va. Code § 17C-9-1.

### Sec. 114-492. When faced by yield right-of-way sign.

Every operator of a vehicle shall slow to ten miles per hour or less at official traffic control yield right-of-way signs and shall yield the right-of-way to all traffic on the intersecting street.
(Code 1975, § 31-89)

### Sec. 114-493. When turning left at intersection.

The driver of a vehicle within an intersection intending to turn to the left shall yield the right-of-way to any vehicle approaching from the opposite direction which is within the intersection or so close as to constitute an immediate hazard; but such driver, having so yielded and having given a signal when and as required by this division, may make such left turn; and the drivers of all other vehicles approaching the intersection from such opposite direction shall yield the right-of-way to the vehicles making the left turn.
(Code 1975, § 31-90)

**State law reference—**Similar provisions, W. Va. Code § 17C-9-2.

### Sec. 114-494. When entering through highway or stop intersections.

(a) The driver of a vehicle shall stop as required by section 114-514 at the entrance to a through street and shall yield the right-of-way to other vehicles which have entered the intersection from such through street or which are approaching so closely on the through street as to constitute an immediate hazard; but such driver, having so yielded, may proceed.

*__State law reference—__Right-of-way, W. Va. Code § 17C-9-1 et seq.

(b) The driver of a vehicle shall likewise stop in obedience to an official traffic control stop sign as required at an intersection where a stop sign is erected at one or more entrances although not a part of a through street and shall proceed cautiously, yielding to vehicles not so obliged to stop which are within the intersection or approaching so closely as to constitute an immediate hazard, but may then proceed.
(Code 1975, § 31-91)

**State law reference—**Similar provisions, W. Va. Code § 17C-9-3.

### Sec. 114-495. When emerging from alley, private driveway, parking lot or garage.

The driver of a vehicle emerging from an alley, driveway, parking lot, garage, building or place of business shall stop such vehicle immediately prior to driving onto a sidewalk or into the sidewalk area extending across any alley or other way and upon entering the roadway, shall yield the right-of-way to all vehicles approaching on that roadway.
(Code 1975, § 31-92)

**State law reference—**Similar provisions, W. Va. Code § 17C-9-4.

### Sec. 114-496. Upon approach of authorized emergency vehicles.

(a) Upon the immediate approach of an authorized emergency vehicle equipped with at least one flashing lighted lamp of a color authorized by W. Va. Code § 17C-15-26, which is visible under normal atmospheric conditions from a distance of 500 feet to the front of such vehicle other than a police vehicle when operated as an authorized emergency vehicle, and when the driver is giving audible signal by siren, exhaust whistle, or bell, the driver of every other vehicle shall yield the right-of-way and shall immediately drive to a position parallel to and as close as possible to the right-hand edge or curb of the roadway clear of any intersection and shall stop and remain in such position until the authorized emergency vehicle has passed, except when otherwise directed by a police officer.

(b) This section shall not operate to relieve the driver of an authorized emergency vehicle from the duty to drive with due regard for the safety of all persons using the highway.
(Code 1975, § 31-93)

**State law reference—**Similar provisions, W. Va. Code § 17C-9-5.

### Secs. 114-497—114-510. Reserved.

## DIVISION 6. SPECIAL STOPS*

### Sec. 114-511. At railroad crossings generally.

(a) Whenever any person driving a vehicle approaches a railroad grade crossing under any of the circumstances stated in this section, the driver of such vehicle shall stop within 50 feet but not less than 15 feet from the nearest rail of such railroad and shall not proceed until he can do so safely. These requirements shall apply when:

(1) A clearly visible electric or mechanical signal device gives warning of the immediate approach of a railroad train.

(2) A crossing gate is lowered or when a human flagman gives or continues to give a signal of the approach or passage of a railroad train.

(3) A railroad train approaching within approximately 1,500 feet of the crossing emits a signal audible from such distance and such railroad train, by reason of its speed or nearness to such crossing, is an immediate hazard.

(4) Any approaching railroad train is plainly visible and is in hazardous proximity to such crossing.

(5) An official traffic control stop sign is in place.

(b) No person shall drive any vehicle through, around or under any crossing gate or barrier at a railroad crossing while such gate or barrier is closed or is being opened or closed.
(Code 1975, § 31-94)

**State law reference—**Similar provisions, W. Va. Code § 17C-12-1.

*__State law reference—__Special stops, W. Va. Code § 17C-12-1 et seq.

### Sec. 114-512. Certain vehicles at grade crossings.

(a) The driver of any motor vehicle carrying passengers for hire, or of any school bus carrying any schoolchild, or of any vehicle carrying explosive substances or flammable liquids as a cargo or part of a cargo, or of any vehicle owned by an employer which, in carrying on such employer's business or in carrying employees to and from work, is carrying more than six employees of such employer, before crossing at grade any track of a railroad, shall stop such vehicle within 50 feet but not less than 15 feet from the nearest rail of such railroad and while so stopped shall listen and look in both directions along such track for any approaching train, and for signals indicating the approach of a train, except as otherwise provided, and shall not proceed until he can do so safely. After stopping as required in this section and upon proceeding when it is safe to do so, the driver of any such vehicle shall cross only in such gear of the vehicle that there will be no necessity for changing gears while traversing such crossing; and the driver shall not shift gears while crossing the track or tracks.

(b) No stop need be made at any such crossing where a police officer or a traffic control signal directs traffic to proceed.
(Code 1975, § 31-95)

**State law reference—**Similar provisions, W. Va. Code § 17C-12-3.

### Sec. 114-513. Heavy equipment at grade crossings.

(a) No person shall operate or move any crawler-type tractor, steam shovel, derrick, roller, or any equipment or structure having a normal operating speed of ten or less miles per hour or a vertical body or load clearance of less than one-half inch per foot of the distance between any two adjacent axles or in any event of less than nine inches, measured above the level surface of a roadway, upon or across any tracks at a railroad grade crossing without first complying with this section.

(b) Notice of any such intended crossing shall be given to a station agent of such railroad and a reasonable time be given to such railroad to provide proper protection at such crossing.

(c) Before making any such crossing, the person operating or moving any such vehicle or equipment shall first stop the vehicle or equipment not less than 15 feet nor more than 50 feet from the nearest rail of such railroad and while so stopped shall listen and look in both directions along such track for any approaching train and for signals indicating the approach of a train, and shall not proceed until the crossing can be made safely.

(d) No such crossing shall be made when warning is given by automatic signal or crossing gates or a flagman or otherwise of the immediate approach of a railroad train or car. If a flagman is provided by the railroad, movement over the crossing shall be under his direction.
(Code 1975, § 31-96)

**State law reference—**Similar provisions, W. Va. Code § 17C-12-4.

### Sec. 114-514. Stop signs at intersections.

Every driver of a vehicle approaching an official traffic control stop sign shall stop before entering the crosswalk on the near side of the intersection or, if there is no crosswalk, shall stop at a clearly marked stop line, but if none, then at the point nearest the intersecting street where the driver has a view of approaching traffic on the intersecting street before entering the intersection except when directed to proceed by a police officer or traffic control signal.
(Code 1975, § 31-97)

**State law reference—**Similar provisions, W. Va. Code § 17C-12-5(d).

### Sec. 114-515. Stop before emerging from alley or private driveway.

The driver of a vehicle within a business or residence district emerging from any alley, driveway or building shall stop such vehicle immediately prior to driving onto a sidewalk or onto the sidewalk area extending across any alleyway or private driveway and shall yield the right-of-way to any pedestrian as may be necessary to avoid collision and upon entering the roadway shall yield the right-of-way to all vehicles approaching on the roadway.
(Code 1975, § 31-98)

**State law reference—**Similar provisions, W. Va. Code § 17C-12-6.

### Sec. 114-516. Upon meeting a stopped school bus; requirements for school buses.

(a) The driver of a vehicle on any street or highway upon meeting or overtaking from either direction any school bus which has stopped on the highway for the purpose of receiving or discharging any schoolchildren shall stop the vehicle before reaching such school bus when there is in operation on the school bus flashing warning signal lights, as referred to in W. Va. Code § 17C-12-8; and such driver shall not proceed until such school bus resumes motion or is signaled by the school bus driver to proceed or the visual signals are no longer actuated.

(b) Every bus used for the transportation of schoolchildren shall bear upon the front and rear of a plainly visible sign containing the words "school bus" in letters not less than eight inches in height. When a contract school bus is being operated upon a highway for purposes other than the actual transportation of children either to or from school, all markings indicating school bus shall be covered or concealed. Any school bus sold or transferred to another owner by a county board of education, agency or individual shall have all flashing warning lights removed, all lettering removed or permanently obscured, and such bus shall be painted a color other than chrome yellow before sale or transfer is made except when sold or transferred for the transportation of schoolchildren.

(c) The driver of a vehicle upon a highway with separate roadways need not stop upon meeting or passing a school bus which is on a different roadway or when upon a controlled-access highway and the school bus is stopped in a loading zone which is a part of or adjacent to such highway and where pedestrians are not permitted to cross the roadway.

(d) It shall be unlawful to operate any flashing warning signal light on any school bus except when the bus is stopped on a street for the purpose of permitting schoolchildren to board or alight from the bus.

(Code 1975, § 31-99)

**State law reference—**Similar provisions, W. Va. Code § 17C-12-7.

### Secs. 114-517—114-550. Reserved.

## ARTICLE VII. STOPPING, STANDING AND PARKING*

### DIVISION 1. GENERALLY

### Sec. 114-551. Presumption as to and condition precedent to illegal parking.

(a) In any prosecution in the municipal court charging the violation of any provision of this article, proof that the particular vehicle described in the parking citation/complaint was parked in violation of such provision, together with proof that the defendant named in the complaint was, at the time of such alleged violation the registered owner of such vehicle, shall constitute prima facie evidence that the registered owner of such vehicle was the person who parked such vehicle at the point where, and for the time during which, such alleged violation occurred; provided, that such prima facie presumption may be rebutted by competent evidence.

(b) This section shall not be applicable unless the driver of the vehicle described in the complaint was given notice of the alleged violation or, if such vehicle was unattended at the time of discovery of the alleged violation, notice of the alleged violation was affixed to or placed within or upon such vehicle.

(Code 1975, § 31-211; Ord. No. 7251, 2-20-2007)

### Sec. 114-552. Impounding vehicles.

(a) Any vehicle parked in a place where parking is prohibited by this article, and which place is so designated by official traffic control signs, markings or devices, may be impounded and hauled to a garage designated by the police department of the city; however, no vehicle shall be

*__Cross references—__Double or triple parking or parking too far from curb at a taxicab stand, § 122-36; parking and loading, app. B, § 19-1 et seq.

**State law references—**Stopping, standing and parking of vehicles, W. Va. Code § 17C-13-1 et seq.; authority to regulate standing or parking of vehicles, W. Va. Code § 17C-2-8(a)(1).

impounded until specific orders are issued for such purpose by the chief of police, captain, lieutenant or sergeant of police on duty at the time.

(b) Any vehicle parked or left standing in any of the following places, except when necessary to avoid conflict with other traffic or in compliance with law or the direction of a police official or traffic control device, may be impounded and hauled to a garage designated by the police department of the city; however, no vehicle shall be impounded until specific orders are issued for such purpose by the chief of police, captain, lieutenant or sergeant of police on duty at the time:

(1) Any of the locations in violation of the provisions of section 114-559.

(2) Any of the locations in violation of the provisions of section 114-571.

(3) Any of the locations in violation of the provisions of section 114-572.

(4) At any place where official traffic control signs limit parking to a certain period of time.

(5) At any place on any roadway where the safety and convenience of the traveling public is endangered.

(c) The owner or person in charge of any vehicle impounded as provided in subsection (a) or (b) of this section shall pay the cost of impounding and hauling such vehicle in addition to any fine and cost assessed in connection with the violation of this chapter.
(Code 1975, § 31-209)

### Sec. 114-553. Owner responsible for illegal parking.

No person shall allow, permit or suffer any vehicle registered in his name to stand or park in any street, highway or elsewhere in the city in violation of any of the laws of the city regulating the standing and parking of vehicles.
(Code 1975, § 31-210)

### Sec. 114-554. Unattended motor vehicle.

No person driving or in charge of a motor vehicle shall permit it to stand unattended without first stopping the engine, locking the ignition, removing the key, and effectively setting the brake and, when standing upon any grade, turning the front wheels to the curb or side of the street.
(Code 1975, § 31-184)

**State law reference—**Similar provisions, W. Va. Code § 17C-14-1.

### Sec. 114-555. Parking parallel to curb, close to curb; angle parking.

(a) Except as otherwise provided in this section, every vehicle stopped or parked upon a roadway within the city where there are adjacent curbs shall be stopped or parked with the right-hand wheels of such vehicle parallel to and within 18 inches of the right-hand curb.

(b) Stopping or parking of vehicles with the left-hand wheel adjacent to and within 18 inches of the left-hand curb shall be permitted on any roadway where such stopping or parking is authorized on the traffic control map.

(c) Angle parking shall be permitted on any roadway within the city where such parking is authorized on the traffic control map and properly posted or marked.
(Code 1975, § 31-185)

**State law reference—**Similar provisions, W. Va. Code § 17C-13-4.

### Sec. 114-556. Where less than ten feet of roadway left available for traffic.

No person shall stop, stand or park any vehicle upon a street or highway, other than an alley, in such a manner or under such conditions as to leave available less than ten feet of the width of the roadway for free movement of vehicular traffic; except that a driver may stop at the curb temporarily during the actual loading or unloading of passengers or when necessary in obedience to traffic regulations or traffic signs or signals or directions of a police officer.
(Code 1975, § 31-186)

### Sec. 114-557. Stopping outside of business or residence districts restricted.

(a) Upon any street outside a business or residence district, no person shall stop, park or leave standing any vehicle, whether attended or unat-

tended, upon the paved or main-traveled part of the street when it is practicable to stop, park or so leave such vehicle off such part of the street; but in every event an unobstructed width of the street opposite a standing vehicle shall be left for the free passage of other vehicles, and a clear view of such stopped vehicles shall be available from a distance of 200 feet in each direction upon such street.

(b) This section shall not apply to the driver of any vehicle which is disabled while on the paved or main-traveled portion of a street in such manner and to such extent that it is impossible to avoid stopping and temporarily leaving such disabled vehicle in such position.
(Code 1975, § 31-187)

**State law reference—**Similar provisions, W. Va. Code § 17C-13-1.

### Sec. 114-558. Officers authorized to remove illegally stopped vehicles.

(a) Whenever any police officer finds a vehicle standing upon a street in violation of any of the provisions of section 114-557, such officer is authorized to move such vehicle, or require the driver or other person in charge of the vehicle to move the vehicle to a position off the paved or main-traveled part of such street.

(b) Whenever any police officer finds a vehicle unattended upon any bridge or causeway or in any tunnel where such vehicle constitutes an obstruction to traffic, such officer is authorized to provide for the removal of such vehicle to the nearest garage or other place of safety.
(Code 1975, § 31-188)

**State law reference—**Similar provisions, W. Va. Code § 17C-13-2.

### Sec. 114-559. Stopping, standing or parking prohibited in specified places.

(a) No person shall stop, stand or park a vehicle, except when necessary to avoid conflict with other traffic or in compliance with law or the directions of a police officer or official traffic control device, in any of the following places:

(1) On a sidewalk.

(2) In front of a public or private driveway.

(3) Within an intersection or within 30 feet of an intersection.

(4) Within 15 feet of a fire hydrant.

(5) On a crosswalk, or within ten feet of a crosswalk not at an intersection.

(6) Within 20 feet of a crosswalk at an intersection.

(7) Within 30 feet upon the approach to any flashing beacon, stop sign or traffic control signal located at the side of a roadway.

(8) Between a safety zone and the adjacent curb or within 30 feet of points on the curb immediately opposite the ends of a safety zone unless a different length is indicated by signs or markings.

(9) Within 50 feet of the nearest rail of a railroad crossing.

(10) Within 20 feet of the driveway entrance to any fire station and on the side of a street opposite the entrance to any fire station within 75 feet of such entrance (when properly signposted).

(11) Alongside or opposite any street excavation or obstruction when stopping, standing or parking would obstruct traffic.

(12) On the roadway side of any vehicle stopped or parked at the edge or curb of a street.

(13) Upon any bridge or other elevated structure upon a highway or within a highway tunnel.

(14) At any place where official traffic control signs prohibit stopping.

(15) Within 20 feet of any mail receptacle served regularly by a carrier using a motor vehicle for daily deliveries, if such parking interferes with or causes delay in the carrier's schedule.

(16) Upon any controlled-access highway.

(17) At any place on any highway where the safety and convenience of the traveling public is endangered.

(18) In front of the entrance to any school, hospital, church, hotel, theater, assembly hall or place of amusement.

(19) In a turnaround, including, but not limited to, Hammerheads, three-point sides, cul-de-sacs, and three-point wyes.

(b) No person shall move a vehicle not lawfully under their control into any such prohibited area or away from a curb such distance as is unlawful.
(Code 1975, § 31-189; Bill No. 7920, 9-7-2021)

**State law reference—**Similar provisions, W. Va. Code § 17C-13-3.

### Sec. 114-560. Display for sale; repair or advertising on street.

No person shall stand or park a vehicle upon any roadway for the principal purpose of:

(1) Displaying it for sale.

(2) Washing, greasing or repairing such vehicles except repairs necessitated by an emergency.

(3) Advertising.
(Code 1975, § 31-190)

### Sec. 114-561. Vehicles laden with explosives or flammable materials.

(a) It shall be unlawful for any person to park a vehicle, motor-driven or otherwise, on any street or alley within the city that is laden with any dynamite, nitroglycerin, monobell, gunpowder or any other such explosive, ammunition, fireworks, or any flammable or combustible liquids or materials such as gasoline or naphtha.

(b) Any person violating any provision of this section shall upon conviction be subject to the penalties set forth in section 1-8 of this Code.
(Code 1975, § 31-191)

### Sec. 114-562. Headlamps on parked vehicles.

Any lighted headlamp on a parked vehicle shall be depressed or dimmed.
(Code 1975, § 31-192)

**State law reference—**Similar provisions, W. Va. Code § 17C-15-15.

### Sec. 114-563. Backing up to curb to load or unload; loading permits.

(a) It shall be unlawful for the owner of any vehicle used for the transportation of merchandise or materials to back into the curb to take or discharge loads, in places where and at hours when stopping for the purpose of loading and unloading of merchandise and materials is permitted unless such owner holds a permit from the chief of police granting him such loading privilege.

(b) It shall be unlawful for any owner or driver of a vehicle backed against the curb to take on or discharge a load to fail to have his loading permit in his possession or on his vehicle.
(Code 1975, § 31-193)

### Sec. 114-564. Regulation of parking by signposting in prohibited parking areas generally.

(a) When official traffic control signs or markings are in place giving notice, no person shall park a vehicle at any time upon any of the streets or parts of streets designated by such signs or markings as prohibited parking areas.

(b) In addition to or in lieu of posting official traffic-control signs to establish a no parking zone or area, a no parking zone or area may be established by painting the curb yellow; and the length of such curb as so painted yellow shall be the length of such no parking zone or area; and the yellow paint shall constitute an official traffic control marker indicating a no parking zone or area.
(Code 1975, § 31-194)

### Sec. 114-565. No parking at entrances to certain buildings.

The chief of police, with the approval of the city council planning/streets and traffic committee, may establish no parking areas appropriately marked at the principal street entrances to all schools, hospitals, post offices, churches, theaters, hotels, libraries, passenger transportation depots, government-owned and occupied buildings, and charitable institutions, with such conditions as

may be considered proper by the chief of police approved by the city council planning/streets and traffic committee.
(Code 1975, § 31-195; Bill No. 7815, 5-6-2019)

**Sec. 114-566. Limited parking areas.**

When official traffic control signs are erected giving notice, no person shall park longer than the time permitted, nor during specified hours when parking is prohibited, upon any streets or parts of streets designated as limited parking areas on the traffic control map in conformity with article IV, division 2 of this chapter.
(Code 1975, § 31-196)

**Sec. 114-567. Physicians on emergency calls; vehicles while being loaded or unloaded; police department vehicles.**

(a) Physicians on emergency calls and vehicles while being loaded or unloaded may park for a period of more than 30 minutes between the hours of 2:00 a.m. and 4:00 p.m. regardless of any prohibition set forth in this article.

(b) The chief of police shall have the authority, anything in this article to the contrary notwithstanding, to establish on any street as he deems necessary appropriate curb space for the parking of police department vehicles; nevertheless, he shall cause such parking spaces to be clearly marked by official traffic control signs and curb painting and shall forthwith cause the designation of such spaces to be entered on the traffic control map and in the traffic control file. Anyone parking or permitting to stand any vehicle in a space reserved and marked for parking of police department vehicles shall be guilty of a violation of the provisions of this section.
(Code 1975, § 31-197)

**Sec. 114-568. Hazardous or congested places.**

When official traffic control signs are erected upon approach to hazardous or congested places, no person shall stop, stand or park a vehicle in any such designated place.
(Code 1975, § 31-198)

**Sec. 114-569. Stopping, standing or parking prohibited beneath fire escapes and within 15 feet of emergency exits.**

No person shall stop, stand or park a vehicle, excepting emergency vehicles, on that portion of any street, alley, thoroughfare, parking lot or other areaway, either public or private, that is situated beneath any fire escape, stairway, ladder or similar device intended for use as a fire escape, or park on that portion of any street, alley, thoroughfare, parking lot or other areaway, either public or private, that is situated within 15 feet of the exterior perimeter of any fire exit, stairway, passageway, common corridor or other avenue of emergency egress, implied or expressly designated, from any hospital, school, theater, hotel, auditorium, apartment house or other building or institution where people work, congregate or assemble for any purpose; and, in order to preserve the intent and purpose of this section, the police department is directed and empowered to post suitable, adequate, conspicuous and permanent signs, restricting parking in any of those locations referred to in this article, upon the recommendation of the bureau of fire prevention of the city fire department.
(Code 1975, § 31-199)

**Sec. 114-570. Adjacent to schools.**

When official traffic control signs prohibiting parking are erected, no parking shall be permitted on that side of the street or highway in front or alongside of any school property between the hours of 8:00 a.m. and 5:00 p.m., on the days when such school is in session.
(Code 1975, § 31-200)

**Sec. 114-571. Alleys and driveways.**

(a) *Parking in public.* No person shall park a vehicle upon or within a public alley in such a manner or under such conditions as to leave available less than ten feet of the width of the roadway for the free movement of vehicular traffic, or block such alley.

(b) *Obstructing, public and private.* It shall be unlawful for the driver of any vehicle to park a vehicle on a street opposite or so near to any

public alley or private driveway as to obstruct the entrance to or exit from such alley or driveway by another vehicle.
(Code 1975, § 31-201)

### Sec. 114-572. Bridges, railroad crossings, underpasses and overpasses.

No person shall stop, stand or park any vehicle upon any bridge or on the approaches to a bridge; within or upon any railroad or other underpass, or the approaches to an underpass; upon any railroad or other grade crossing, or the approaches to the crossing; or upon any railroad, street, highway or other overpass, or the approaches to such overpass.
(Code 1975, § 31-202)

**State law reference—**Similar provisions, W. Va. Code § 17C-13-3(a)(10), (a)(14).

### Sec. 114-573. Truck width, height and load restrictions; 4:00 p.m. to 6:00 p.m. parking prohibited in certain area.

(a) No person shall park any truck, trailer or other vehicle, of a total outside width, including any load, of more than 76 inches, or of a total height, including any load, of more than 78 inches, on any street or highway within the city for a period of time longer than two hours.

(b) No person shall park any truck, trailer or other vehicle or make any truck or vehicle delivery between the hours of 4:00 p.m. and 6:00 p.m. in the area included and bounded on the east by Broad Street, on the west by Court Street, on the north by Washington Street, and on the south by Kanawha Boulevard.
(Code 1975, § 31-203)

### Sec. 114-574. Vehicles parked on private property.

It shall be unlawful for any driver of a vehicle to stop, park or leave standing unattended any vehicle on a private road or driveway or on private property without having express or implied permission from the owner, tenant or lessee of such land. The owner, tenant or lessee of such private road or driveway or private property may move, or have moved, any vehicle stopped, parked or left standing unattended on his private road, driveway or private property without any liability for the cost of moving any vehicle; nor shall he be liable to the owner of the vehicle for any damage done to such vehicle in moving it unless the owner, tenant or lessee of such private road or driveway or private property was negligent in removing or authorizing the removal of the vehicle. The owner of such vehicle shall be responsible to the persons removing such vehicle for paying all removal costs. Any person who removes any vehicle under the provisions of this section shall notify the state department of public safety of such action and shall, in addition, notify the police department of the city.
(Code 1975, § 31-205)

**State law reference—**Similar provisions, W. Va. Code § 17C-14-13.

### Sec. 114-575. Procedure for establishment of loading zones; conditions governing; loading zone record.

(a) The director of parking, in consultation with the director of traffic, shall have authority, in the manner provided in this section, to establish and lay off loading zones upon the streets of the city.

(b) Loading zones may be established by the director of parking upon approval by the city council planning/streets and traffic committee. Such zones shall be for the sole purpose of providing on-street facilities for the loading and unloading of commodities and equipment in the conduct of business and where no adequate off-street loading facilities are available.

(c) The director of parking, with the approval of the city council planning/streets and traffic committee, may, with respect to the establishment of any such loading zone, prescribe limitations as to curb space and the time of day within which such loading zone may be used, which shall be designated by appropriate signs.

(d) Any citizen may apply for the establishment of a loading zone. Such application shall be submitted in writing to the director of parking,

on a form to be prescribed by him or her and approved by the city council planning/streets and traffic committee.

(e) All loading zones established under this section may be abolished by the director of parking, by and with the approval of the city council planning/streets and traffic committee.

(f) Any applicant for the establishment of a loading zone whose application has been denied by the abolition of any such loading zone may appeal such action to the city council, whose action on such appeal shall be final.

(g) The parking department shall keep an accurate record of all loading zones established under this section, its location, and the special limitations, if any, attached to the zone.
(Code 1975, § 31-206; Bill No. 7753, 8-7-2017; Bill No. 7815, 5-6-2019)

### Sec. 114-576. Permitted uses of loading zones.

No person shall stop, stand or park any vehicle for any purpose or any length of time in any space designated as a loading zone by the director of the parking under and pursuant to the provisions of section 114-575, except while such vehicle is being used in the business of loading or unloading as provided in section 114-575 and has a loading zone permit. In no case shall a lawful stop within a loading zone exceed one-half hour, except where special permission from the director of parking has been obtained for such extension. Any vehicle stopping, standing or parking in a loading zone established by the director of parking pursuant to section 114-575, for any purpose other than loading or unloading as provided in section 114-575 of this Code may be impounded by the police department pursuant to the provisions of section 114-552.
(Code 1975, § 31-207; Bill No. 7753, 8-7-2017; Bill No. 7815, 5-6-2019)

### Sec. 114-577. Bus stops or stands.

(a) *Use by bus.* The driver of a bus shall not stand or park upon any street in any business district at any place other than at a stop or stand officially designated and appropriately assigned to such bus, except that this provision shall not prevent the driver of any such vehicle from stopping temporarily in accordance with other stopping and parking regulations at any place for the purpose of and while actually engaged in loading or unloading passengers.

(b) *Use by other vehicles.* No person shall stop, stand or park a vehicle other than a bus in a bus stop, when any such stop or stand has been officially designated and appropriately assigned, except that the driver of a private passenger vehicle may temporarily stop for the purpose of and while actually loading and unloading passengers when such stopping does not interfere with any bus waiting to enter or about to enter such stop or stand.

(c) *Establishment of.* The chief of police shall have the authority to establish and lay off upon the streets of the city such number of bus stops as in his opinion are necessary for the convenience of the public. In designating such stops, he shall indicate by appropriate markings the area in which public buses may stop to receive and discharge passengers and shall indicate by large letters painted within the area that it is a bus stop and that parking there is prohibited. Buses shall not take on or discharge passengers within the city between Broad Street and Court Street, Virginia Street and Lee Street, except at designated bus stops.

(d) *Length.* The length of designated bus stops shall be not less than the minimum distances recommended by the Society of Traffic Engineers of the U.S., as follows:

| *Approximate Bus Seating Capacities* | *One-Bus Stop Near Far Mid-Side Side Block (feet)* | | | *Two-Bus Stop Near Far Mid-Side Side Block (feet)* | | |
|---|---|---|---|---|---|---|
| 25 Passengers and less | 60 | 50 | 85 | 90 | 80 | 115 |
| 30 Passengers | 70 | 50 | 95 | 100 | 80 | 125 |
| 35 Passengers | 75 | 55 | 100 | 110 | 90 | 135 |
| 40 Passengers and more | 80 | 60 | 105 | 120 | 100 | 145 |

(Code 1975, § 31-208)

**Sec. 114-578. Residential permit parking.**

(a) *Residential permit parking area designation:* A residential permit parking area may only be established in areas of the city zoned R-O, R-2, R-4, R-6, and R-8. A residential permit parking area may be established by filing a petition with the traffic department upon a form to be prescribed by the traffic department and approved by the city council planning/streets and traffic committee. The cost of the permits must be stated on the form.

(1) The petition must contain the boundaries of the area sought for residential permit parking, the number of residential units in the area, the address of each residential unit in the area, the license numbers for all vehicles owned by the residents of each residential unit in the proposed area, and the reason that the residential permit parking area is requested. The petition must be signed by at least one resident of a minimum of 67 percent of the residential units in the proposed area. The petition must set forth the hours during which the applicant is seeking restricted residential permit parking.

(2) Residential permit parking may be sought for day time hours (8:00 a.m. to 6:00 p.m.), night time hours (6:00 p.m. to 8:00 a.m.), or on a 24-hour basis. A nonrefundable filing fee of $100.00 must accompany the petition. Upon filing, a copy of the petition shall be promptly provided to the ward councilperson.

(3) Upon receipt of the petition and the filing fee, the City of Charleston Traffic Department shall verify the names, addresses, and vehicle information on the petition. The traffic department shall then cause appropriate traffic surveys to be conducted in the area sought for residential permit parking. If the traffic engineering surveys find that on average 80 percent of the available on street parking spaces are occupied and more than 50 percent of the vehicles parked in the area belong to nonresidents, then the area is eligible for designation as a residential permit parking area, and the petition and the results of the survey shall be transmitted to the ward councilperson. The ward councilperson shall submit a bill to designate the area as a residential permit parking area to city council for consideration. The bill shall be referred to council's committee on planning/streets and traffic which will report to council its recommendation. City council shall make its decision on whether to designate area based upon the recommendation from its committee on planning/streets and traffic, the recommendation from the traffic department, input from members of the public and any other material information.

(b) *Authorized permits:* If a residential permit parking area is established by city council, each residential unit in the residential permit parking area may obtain a maximum of two permits for specific vehicles owned by the residents. One visitor permit per residential unit may also be

obtained. Owners of nonresidential buildings within the designated areas may purchase one visitor permit to be used by the owner or his or her designee. Exception: A resident experiencing a health condition or disability which substantially impairs the resident and results in a need for special in-home medical care and attention, including, but not limited to, assistance by family members or other caregivers, may request up to three additional visitor permits. The request shall be made by the resident to the director of parking. Additional permits shall not be issued unless the resident is able to provide credible evidence satisfactory to the city of the qualifying health condition or disability and the necessity of special in-home medical care, attention and assistance; said evidence shall, at a minimum, consist of a signed statement from a physician verifying the health condition or disability and the necessity of the special in-home medical care, attention and assistance. The issuance of additional permits shall be at the discretion of the director of parking, in consultation with the director of traffic, based on the circumstances and evidence provided by the resident. Any additional permits issued pursuant to this exception shall be valid for the period of time approved by the director of parking not to exceed a year. Additional permits shall cost $25.00 per year. A resident may apply hereunder each year.

(1) Each permit will be valid for one year. The cost for each residential parking permit and visitor permit is $25.00 per permit annually.

(2) The permits shall be issued and used in accordance with the residential permit parking policy established by council.

Notwithstanding the foregoing provisions, the director of parking, in consultation with the director of traffic, shall have discretion to issue a temporary permit, at no cost and not to exceed one calendar year unless thereafter renewed, to a licensed health care provider, including, but not limited to, a hospital, hospice, doctor, nurse, or physical therapist, upon request by the provider and upon sufficient proof satisfactory to the city that the certified health care provider is administering necessary in-home medical care, attention or assistance to a person who resides in a residential permit parking area.

(c) *Violations:* Any vehicle parking in a residential permit parking area in violation of the terms of this ordinance shall be subject to a fine of $75.00 and/or shall be impounded in accordance with the provisions of sections 114-121 through 114-131 and any associated rules or regulations. Vehicles of persons making deliveries or providing service, including but not limited to, home maintenance or repair, utility installation or repair, medical treatment or care, yard maintenance, or other similar services, to residential units within the permit area may be parked without a permit for the duration of the delivery or the provision of service.

(d) *Decertification procedure:* A residential parking area may be decertified if at least one resident of a minimum of 67 percent of the residential units in the designated area sign and file a petition with the city traffic department requesting elimination of the residential permit parking area designation. Such an application for decertification must be accompanied by a nonrefundable filing fee of $100.00. Upon receipt of the petition and the filing fee, the city traffic department shall verify the names and addresses on the petition. Once the names and addresses are verified as area residential unit owners, a copy of the petition shall be promptly provided to the ward councilperson. The ward councilperson shall submit a bill to decertify the area as a residential permit parking area to city council for consideration. The bill shall be referred to council's committee on planning/streets and traffic which will report to council its recommendation. City council shall make its decision on whether to decertify the area based upon the recommendation from its committee on planning/streets and traffic, the recommendation from the traffic department, input from members of the public and any other material information.
(Bill No. 6850, § 31-208.1, 11-19-2001; Bill No. 7026, 2-2-2004; Bill No. 7378, 3-16-2009; Bill No. 7425, 6-22-2010; Bill No. 7815, 5-6-2019)

**Sec. 114-579. Residential permit parking policy.**

(a) Upon the establishment of a residential permit parking area in accordance with City Code section 114-578, the parking system director or his or her designee shall issue residential parking permits.

(b) In order to obtain a permit, the resident must make written application to the parking system for the number of permits sought. In addition to the resident's name and address, the applicant must provide the make, model, color, license number and vehicle identification number for the vehicles sought to be permitted.

(c) To obtain a residential parking permit, the resident must show photo identification with their name and current address. The resident must also show a current vehicle registration card for each vehicle for which a permit is sought. In the case of a company owned or leased vehicle, the resident must provide verification from the owner that the vehicle is assigned to the resident. Each permit is only valid for the specifically identified vehicle.

(d) If a resident changes vehicles, the old permit must be surrendered prior to receipt of a new permit. The resident must provide the information as set forth in subsections (b) and (c) above for the new vehicle prior to receipt of the new permit.

(e) Each residential unit may receive one visitor permit.

(f) A visitor permit may not be used for any person and/or vehicle that is not visiting the residence for which the permit was issued. Violation of said visitor permit will result in cancellation of the visitor permit.

(g) The permits must hang from the rearview mirror of the vehicle.

(h) After the application has been completed and a permit issued by the parking director, the parking director shall transmit a copy of the application and vehicle information to the Traffic Commander of the Charleston Police Department.

(i) Each residential permit parking area will be assigned an identifying number and/or color. Permits issued to residents of each area will be valid only in the area for which they are issued.

(j) Temporary waivers of restricted residential permit parking may be granted by the Traffic Commander of the Charleston Police Department upon request for a specifically limited time and location not to exceed 24 hours. A request for waiver must be submitted at least seven days in advance, unless in the case of emergency. For non-emergency waiver requests, the resident requesting the waiver must submit written statements of approval from at least 51 percent of the residential units in the affected area. If a waiver is granted, no enforcement of the residential permit parking ordinance will take place for the duration of the waiver period.

(k) Failure to properly display the permit will result in the issuance of a citation or possible impoundment of the vehicle in accordance with section 114-578 of the City Code.
(Res. No. 843-01, 11-19-2001)

**Sec. 114-580. Valet parking areas.**

(a) The Director of Parking for the City of Charleston, in consultation with the City of Charleston Traffic Engineer and with consent of the City Manager, shall have the authority to establish valet parking areas within the city for the purpose of allowing business patrons to leave the vehicle for an attendant who shall move the vehicle to a lawful parking space outside of the valet parking area. The Director of Parking shall also have the authority to promulgate reasonable rules or regulations for the use of valet parking areas. Copies of such rules or regulations, as amended from time to time, shall be filed in the city clerk's office, and shall be available to interested parties at all reasonable times.

(b) A valet parking area may be so designated by application to the Director of Parking specifying the proposed location of the valet parking area and hours of operation of the valet parking service. The Director of Parking will inspect the area to determine that the area does not constitute

a nuisance or safety hazard, and is otherwise consistent with guidelines and laws regulating the flow of traffic in the City of Charleston.

(b) It shall be unlawful for any person to operate valet parking services outside of a valet parking area, or to park a vehicle in a valet parking area in violation of any of the provisions of this Section. Any person violating the provisions of this Section shall be fined one hundred dollars ($100.00). Each day on which a violation of the provisions of this Section occurs shall be considered a separate violation.

(c) In the event the City of Charleston should have a public need for use of a valet parking area, or any portion thereof, the City may, in its discretion and upon written notice to the business operating the valet parking service, modify, suspend, or terminate the valet parking area in its entirety or in part.
(Bill. No. 7670, 10-19-2015)

**Secs. 114-581—114-600. Reserved.**

## DIVISION 2. CITY-OWNED PARKING LOTS AND BUILDINGS

### Sec. 114-601. Powers and duties of city council.

(a) The power shall be vested in the city council to take all steps and proceedings and to make and enter into all contracts or agreements necessary or incidental to the performance of its duties and the execution of its powers to establish, operate and finance, under the provisions of W. Va. Code Ch. 8, Art. 16 (W. Va. Code § 8-16-1 et seq.), vehicle parking facilities now existing or hereafter to be constructed and acquired pursuant to W. Va. Code Ch. 8, Art. 16 (W. Va. Code § 8-16-1 et seq.), including but not limited to buildings, lots or other facilities appropriate for that purpose.

(b) The city council may employ engineers, architects, inspectors, superintendents, managers, collectors, attorneys and such other personnel as in its judgment may be necessary in the execution of its powers and duties, and may fix their compensation, all of whom shall do such work as the city council may direct. All such compensation and expenses incurred in carrying out the provisions of this section shall be paid solely from funds provided under the authority of W. Va. Code Ch. 8, Art. 16 (W. Va. Code § 8-16-1 et seq.), and the city council shall not exercise or carry out any authority or power given to it so as to bind the city beyond the extent to which money shall have been or may be provided under that West Virginia Code provision. No contract or agreement with any contractor for labor or materials, either or both, exceeding in the amount of the sum of $25,000.00 shall be made without advertising for bids, which bids shall be publicly opened with power in the city council to reject any and all bids. After the construction, installation and completion of any parking facility or its acquisition, the city council shall operate, manage and control the facility and may order and complete any extensions, betterments and improvements of and to such facilities that the city council may deem expedient if funds be available or are made available, as provided by W. Va. Code Ch. 8, Art. 16 (W. Va. Code § 8-16-1 et seq.), and shall establish rules and regulations for the use and operation of the facilities, and do all things necessary or expedient for successful operation; however, all such operation, management and control of such facilities, including the collection and accounting for the income and revenue from such improvements, and disbursements for connected operation and maintenance shall be consistent and in accordance with any ordinances adopted by the council and pursuant to which the city has authorized and issued, or may authorize and issue bonds which by their terms are payable from and secured by the revenue and income of such facilities.
(Code 1975, § 31-212; Bill No. 7423, 5-17-2010; Bill No. 7783, 6-4-2018)

**State law reference—**Parking facilities, W. Va. Code § 8-16-3.

### Sec. 114-602. Management of and regulations governing city-owned lots and buildings.

(a) Unless otherwise provided herein, all parking lots and parking buildings owned or operated by the city shall be operated under the control

and management of the parking facilities committee, who are hereby authorized to promulgate rules and regulations governing such usage not inconsistent herewith. There shall be a director of parking, who shall carry out the efficient administration of the provisions of this section and any associated rules and regulations, promulgated by the parking facilities committee, including, but not limited to, the authority and discretion to enter into and suspend agreements to lease parking spaces on a month to month basis, set days and hours of operation, collect and adjust parking fees and fines, and to make provisions for special events or open rent-free parking when deemed in the best interest of the city.

(b) Motor vehicles shall be parked, placed, handled and driven into, from, in and on such parking lots and such parking buildings in accordance with the applicable laws and ordinances of the city relative to traffic upon the streets in the city, and in accordance with any rules and regulations respecting usage of such parking lots and parking buildings which are adopted and promulgated by the parking facilities committee and the directions, instructions and order of the director of parking or official city attendants at any such lot or building.

(c) It shall be unlawful for any person or vehicle to block any driveway or passageway in or upon such parking lots or parking buildings, or for persons to leave or park cars therein contrary to the applicable ordinances, rules and regulations and instructions of attendants, as aforesaid, or without paying the required rental fees.

(d) No fees or charges shall be required for metered or unmetered spaces in such lots or buildings at times other than those expressly posted at the site, or when provisions have been made for event parking, or as expressly provided herein.

(1) Specific unmetered spaces may be reserved from 7:00 a.m. through 5:00 p.m., Monday through Friday, by paid-up lease on a month to month basis according to the rates identified in this section; provided, nothing herein shall preclude the director for good cause from designating spaces as assigned or reserved at other times.

(2) All fees for monthly rentals shall be paid in advance prior to the first day of the month; provided, the rental fee for the initial month of any newly activated account may be prorated based upon the date of activation.

(3) An administration fee of $15.00 per space shall be charged to any account that is delinquent past the tenth day of the month. The director of parking shall provide notice of the assessment of the administrative fee with the further statement that if the account is delinquent past the twentieth day of the month, then the account will be considered closed and the vehicle associated with the account will be treated as a typical vehicle without a monthly account.

(4) An administration fee of $10.00 per space shall apply for the activation of any monthly rental agreement, or the replacement of an electronic entry key or any placard or decal provided to identify license or assignment of a reserved space.

(5) Nothing herein shall preclude the immediate revocation and/or reassignment of parking privileges in the event of nonpayment or a violation of the rules.

(6) Unless otherwise provided herein, event parking at any city-operated lot or building shall be at the minimum rate of $3.00 per vehicle.

(e) *City Off-Street Lots.* The daily rental fee for each separate usage of any single parking space on any city owned or operated parking lot not specifically set forth below shall be at the rate of $3.00 per day. The monthly rental fee for reserved usage of any unmetered space in a city owned or operated lot not otherwise expressly set forth below shall be $50.00 per month. The rental fee for each separate usage of a single metered parking space in a city owned or oper-

ated off-street parking lot, not otherwise expressly set forth below, shall be at the rate of $0.25 per hour.

(1) *Municipal Auditorium.* The rental fee for each separate usage of any single metered parking space in the city-owned lot behind the municipal auditorium shall be $0.50 per hour and the rental fee for the reserved usage of any unmetered space shall be $40.00 per month.

(2) *Summers Street Alley.* The rental fee for the reserved usage of any unmetered space in the Summers Street alley shall be $80.00 per month.

(3) *West Side Lots.* The rental fee for each separate usage of any single metered parking space in city owned or operated lots on the West Side, Elk City district, shall be $0.25 per hour and the rental fee for the reserved usage of any unmetered space shall be $35.00 per month.

(4) *Morris Street Lot.* The rental for each separate usage of any space that is not otherwise made available for metered parking in the city-owned Morris Street lot shall be $40.00 per month; provided, any such rented space which is unoccupied at the commencement of an event parking period shall be available for event parking on a first come first served basis and subject to the event parking rate.

(5) *Smith Street Lot.* The rental for each separate usage of any space that is not otherwise made available for metered parking in the city-owned Smith Street lot shall be $30.00 per month; provided, any such rented space which is unoccupied at the commencement of an event parking period shall be available for event parking on a first come first served basis and subject to the event parking rate.

(6) *Union Building Parking Lot.* The monthly rental rate for each parking space at the city-owned Union Building Parking Lot located between Kanawha Boulevard and the Kanawha River just east of the Union Building shall be at a rate of $70.00 per month; provided, any such rented space which is unoccupied at the commencement of an event parking period shall be available for event parking on a first come first served basis and subject to the event parking rate.

(f) *City Parking Buildings.* Unless otherwise provided herein, the following provisions of this section shall apply to city-owned parking buildings.

(1) *Parking Building No. 1—McFarland Street Garage.* The rental fee for the reserved usage of any unmetered space on Floor 6 or above in Building No. 1 shall be $45.00 per month; on all other floors, the rental fee shall be $65.00 per month.

(2) *Parking Building No. 2—Washington Street Garage.* The rental fee for the reserved usage of any unmetered space in Parking Building No. 2 shall be $35.00 per month.

(3) *Parking Building No. 3—Convention Center North/Greyhound Garage.* Parking Building No. 3 shall be under the control and management of the Charleston Coliseum and Convention Center/Municipal Auditorium Board. The Charleston Coliseum and Convention Center/Municipal Auditorium Board shall have discretion to set the parking rates in Parking Building No. 3. Twenty percent of all parking revenue collected from Parking Building No. 3 shall be deposited into a special revenue account designated solely to capital improvements for parking facilities under the control and management of the board.

(4) *Parking Building No. 4—Convention Center South/Quarrier Street Garage.* Parking Building No. 4 shall be under the control and management of the Charleston Coliseum and Convention Center/Municipal Auditorium Board. The Charleston Coliseum and Convention Center/Municipal Auditorium Board shall

have discretion to set the parking rates in Parking Building No. 4. Twenty percent of all parking revenue collected from Parking Building No. 4 shall be deposited into a special revenue account designated solely to capital improvements for parking facilities under the control and management of the board.

(5) *Parking Building No. 5—Shanklin / City Hall Garage.* The rental fee for the reserved usage of any unmetered space on Floor 4 and above in Parking Building No. 5 shall be $45.00 per month; on all other floors, the rental fee shall be $65.00 per month.

(6) *Parking Building No. 6—Summers Street Garage.* The rental fee for the reserved usage of any unmetered space in Parking Building No. 6 shall be $80.00 per month.

(7) The director shall designate no fewer than 20 spaces at the lowest or most convenient level practical within each city-owned parking building and equip the same with SMART meters for the use of daily or itinerate parkers, and shall designate as many spaces as practical on the unsheltered rooftop of each building and equip the same with mechanical meters for the use of daily or itinerate parkers; provided, this provision shall not apply to Buildings No. 3 or No. 4 which shall be controlled and operated by the Charleston Coliseum and Convention Center/Municipal Auditorium Board; provided further, that this provision shall not apply to Building No. 2, which shall be controlled and operated by the director of parking consistent with the provisions of subdivision (10) of this subsection.

(8) The rental fee for each separate usage of a SMART metered parking space in a city-owned parking building shall be $1.00 per hour between the hours of 7:00 a.m. and 5:00 p.m., Monday through Friday.

(9) The rental fee for each separate usage of a single metered parking space on the rooftop of a city-owned parking building shall be at the rate of $0.25 per hour, from 7:00 a.m. through 5:00 p.m., Monday through Friday.

(10) Parking Building No. 2 will continue to be operated with an electronic entry key and ticketed system at the direction of the director of parking. Parking in Parking Building No. 2 shall be free on Saturdays, Sundays, and holidays. The director of parking has the authority to set parking rates for the building and to set hours during which parking rates are charged and collected on Monday through Friday, excluding holidays, provided that the hours during which parking rates are charged shall begin no later than 9:00 a.m. and end no earlier than 5:00 p.m. The hours during which the parking booth may be attended and actively collecting parking fees may be set at the discretion of the director of parking. The discretion given to the director of parking in this subdivision is subject to active lease agreements maintained by the city with tenants of Parking Building No. 2.

(Code 1975, § 2-213; Ord. No. 4906, 2-1-1993; Ord. No. 6004, 5-16-1994; Ord. No. 6013, 7-5-1994; Ord. No. 6163, 11-6-1995; Ord. No. 6247, 7-1-1996; Ord. No. 6278, 10-7-1996; Ord. No. 6414, 12-19-1997; Ord. No. 6652, 4-5-1999; Ord. No. 6663, 1-18-2000; Ord. No. 6674, 6-19-2000; Ord. No. 6704, 8-21-2000; Bill No. 7045, 4-5-2004; Bill. No. 7169, 9-19-2005; Bill No. 7215, 8-7-2006; Bill No. 7423, 5-17-2010; Ord. No. 7466, 4-18-2011; Bill No. 7637, 12-15-2014; Bill No. 7783, 6-4-2018; Bill No. 7815, 5-6-2019; Bill No. 7868, 3-2-2020)

### Sec. 114-603. Reserved.

**Editor's note—**Bill No. 7045, adopted Apr. 5, 2004, repealed § 114-603, in its entirety as this same information is contained in § 114-602. Former § 114-603 pertained to management of and regulations governing city-owned lots and buildings and derived from Bill No. 6855, § 31-213, adopted Nov. 19, 2001; Bill No. 6979, § 31-213, adopted June 2, 2003; and Bill No. 6988, § 31-213, adopted Aug. 4, 2003.

### Secs. 114-604—114-620. Reserved.

## DIVISION 3. ON-STREET METERED PARKING

### Sec. 114-621. Hours of operation; duty of driver upon entering parking spaces; deposit of coins; overtime parking.

For the purposes of defraying the costs to the city of regulating, supervising and policing the exercise of the privilege of parking vehicles in, along or upon the street, there is imposed a fee upon every person parking a vehicle between the hours of 8:00 a.m. and 6:00 p.m., of any day, except Sundays and legal holidays, in any parking space provided with a parking meter alongside, in accordance with this division. When any vehicle shall be parked upon any street in a space alongside of a parking meter, the person parking such vehicle shall immediately, after entering such parking space, deposit one or more coins of the United States as required by the instructions printed upon the parking meter and shall carefully turn the handle of the meter as directed by the instructions. A failure to do so shall constitute a violation of this section. If after a coin has been deposited in the meter and its handle turned the vehicle shall remain parked in any such parking space beyond the parking time limit fixed for such parking space, the parking meter shall display a sign or signal showing illegal parking; and it shall be prima facie evidence that such vehicle has parked overtime and beyond the period of legal parking time. The parking of a vehicle overtime or beyond the period of legal parking time, in any part of a street where any meter is located shall be a violation of this section.
(Code 1975, § 31-214)

### Sec. 114-622. Per-hour parking fees established.

In the areas bounded by Leon Sullivan Way on the east, Kanawha Boulevard on the south, Elk River on the west, and Piedmont Road on the north, the rental fee for use of any single on-street metered parking meters at the rate of $0.50 per hour as required by the instructions printed upon each meter. Beginning on February 5, 2018, and continuing thereafter, the rental fee for use of single on-street metered parking in the following areas will be according to the following schedule with no maximum parking time, as required by the instructions printed upon each meter:

*Rate of $1.00 per hour:*

400 block of Laidley Street

500 and 600 block of Donnally Street

*Rate of $.25 per hour:*

500 block of Summers Street

700 and 800 block of Donnally Street

500 and 600 block of Capitol Street

600 block of Eagan Street

700 and 800 block of Christopher Street

300, 400 and 500 block of Dickenson St.

300, 400 and 500 block of Leon Sullivan Way

300, 400, 500, 600 block of Morris Street

1200 block of Lewis Street

1000, 1100, and 1200 block of Washington Street

1100 and 1200 block of Virginia Street East

Beginning on May 21, 2018, or upon installation of web-based parking meters, whichever occurs later, and continuing thereafter, the rental fee for use of single on-street metered parking, and maximum parking times in the following areas will be according to the following schedule, as required by the instructions printed upon each meter:

Rate of $1.00 for first hour, $1.50 for second hour, and an additional $1.50 for the third hour with a three-hour maximum time:

100 and 200 block of Hale Street

Unit block of Dunbar Street

200 block of Leon Sullivan Way

Unit block to 400 block of Capital Street

Unit block to 300 block of Summers Street

Unit block to 300 block of Laidley

800 block of Kanawha Blvd.

1000 block of Virginia Street East

500 to 1000 block of Quarrier Street

Unit block to 300 block of Court Street

Provided, where it is determined by the planning/streets and traffic committee that there is a need for further regulation and control of vehicles parking within this area, the city may designate individual on-street metered parking spaces within this area to allow for less than the maximum of three hours at a rate of not more than $0.50 per 15-minute increments. Any such parking space shall have the time restrictions and rates printed upon each meter.

If the city consents to temporarily bagging or removing a meter to accommodate construction or other activity, the rental fee shall be $15.00 per day or any portion of a day for each such meter.
(Code 1975, § 31-215; Ord. No. 6248, 7-1-1996; Ord. No. 7395, 9-21-2009; Bill No. 7724, 12-16-2016; Bill No. 7772, 1-16-2018; Bill No. 7815, 5-6-2019; Bill No. 7936, 12-20-2021)

### Sec. 114-623. Per-hour parking fee established.

Except as set forth in section 114-622 herein, the rental fee for use of any single on-street metered parking shall be at the rate of $0.25 per hour as required by the instructions printed upon each meter.
(Code 1975, § 31-215; Bill No. 7772, 1-16-2018)

### Sec. 114-624. Time limits as specified on meters prevail in cases of conflict.

On any street where parking meters are officially installed in accordance with and under the authority of the provisions of this division, the parking time regulations provided on the parking meters shall control when they are in conflict with any other provisions of this article.
(Code 1975, § 31-216)

### Sec. 114-625. Vehicle to be parked wholly within marked parking space.

It shall be unlawful for any person to park any vehicle across any line or marking designating a parking space, or to park a vehicle in any way that it shall not be wholly within a parking space as designated by official traffic control lines or markings, and in such manner that the hood of such vehicle shall not be alongside of or next to the parking space.
(Code 1975, § 31-217)

### Sec. 114-626. No different or additional rights granted by division; disposition of fees.

Compliance with the provisions of this division shall not give the person complying with this division any greater, different or additional rights or privileges than are provided in the ordinances of the city, or rules and regulations under such ordinances, relative to parking a vehicle. The sum total of fees collected under this division shall be used for the purpose of defraying the reasonable cost to the city of regulating, supervising and policing the exercise of the privilege of parking, controlling and regulating traffic.
(Code 1975, § 31-218)

### Sec. 114-627. Slugs; injuring or tampering with meters.

(a) It shall be unlawful for any person to deposit or cause to be deposited in any parking meter any slug, device or metallic substitute for such required coin of the United States. It shall also be unlawful for any unauthorized person to injure, tamper with, open or willfully break, destroy or impair the usefulness of any parking meter installed under the terms of this division or for any person, other than those duly authorized, to remove coins from any parking meter.

(b) Any person violating any provision of this section shall upon conviction be subject to penalties set forth in section 1-8 of this Code.
(Code 1975, § 31-219)

### Sec. 114-628. Parking spaces; erecting and relocating meters.

The director of traffic, in consultation with the director of parking, shall have authority, upon the approval of the planning/streets and traffic

committee of city council, to designate all the streets where parking meters shall be permitted; and on all such streets or parts so designated or as shall be made available and designated for parking, the director of traffic, with the approval of the committee, may:

(1) Cause parking spaces approximately 20 feet in length to be marked by lines on the curb or pavement or by other appropriate markings;

(2) On the sidewalks adjacent to each such parking space, cause to be erected parking meters upon which the deposit of a coin will indicate the duration of the legal parking period and the time when such period has elapsed; and

(3) Change the location of the parking space and meters on such streets where they are erected and located and cause such parking meters as located to be moved, transferred and erected on the sidewalks opposite from where such parking spaces are located.

(Code 1975, § 31-219.1; Bill No. 7815, 5-6-2019)

**Secs. 114-629—114-660. Reserved.**

## ARTICLE VIII. PEDESTRIANS*

### Sec. 114-661. Subject to traffic regulations.

Pedestrians shall be subject to official traffic control signals at intersections as declared in this article, but at all other places pedestrians shall be accorded the privilege and shall be subject to the regulations as follows:

(1) It shall be unlawful for a pedestrian to cross any street or alley within the business district except at street intersections or at crosswalks designated by official traffic control markings or signs, between street intersections.

(2) Pedestrians shall have the right-of-way at all intersections and crosswalks except those controlled by traffic officers or by official traffic control devices; and at intersections and crosswalks where traffic is controlled by such officers, lights or devices, pedestrians shall be subject to control, the same as vehicles.

(Code 1975, § 31-117)

**State law reference—**Authority to so provide, W. Va. Code § 17C-10-1(b).

### Sec. 114-662. Right-of-way in crosswalks.

(a) When official traffic control signals are not in place or not in operation the driver of a vehicle shall yield the right-of-way, slowing down or stopping if need be so to yield, to a pedestrian crossing the roadway within a crosswalk when the pedestrian is upon the half of the roadway upon which the vehicle is traveling, or when the pedestrian is approaching so closely from the opposite half of the roadway as to be in danger; but no pedestrian shall suddenly leave a curb or other place of safety and walk or run into the path of a vehicle which is so close that it is impossible for the driver to yield. This provision shall not apply under the conditions stated in subsection 114-663(b).

(b) Whenever any vehicle is stopped at a marked crosswalk or at any unmarked crosswalk at an intersection to permit a pedestrian to cross the roadway, the driver of any other vehicle approaching from the rear shall not overtake and pass such stopped vehicle.

(c) Any person operating a motor vehicle who violates the provisions of this section is guilty of a misdemeanor and, upon conviction thereof, shall be subject to the penalties set forth in section 114-3 of this Code.

(Code 1975, § 31-118; Bill No. 8030, 5-6-2024)

**State law reference—**Similar provisions, W. Va. Code § 17C-10-2.

### Sec. 114-663. Crossing at other than crosswalks.

(a) Every pedestrian crossing a roadway at any point other than within a marked crosswalk or within an unmarked crosswalk at an intersection shall yield the right-of-way to all vehicles upon the roadway.

*__State law reference—__Pedestrians' rights and duties, W. Va. Code § 17C-10-1 et seq.

(b) Any pedestrian crossing a roadway at a point where a pedestrian tunnel or overhead pedestrian crossing has been provided shall yield the right-of-way to all vehicles upon the roadway.

(c) Between adjacent intersections at which official traffic control signals are in operation, pedestrians shall not cross at any place except in a marked crosswalk.
(Code 1975, § 31-119)

**State law reference—**Similar provisions, W. Va. Code § 17C-10-3.

### Sec. 114-664. Drivers to exercise due care.

Notwithstanding other provisions of this article, every driver of a vehicle shall exercise due care to avoid colliding with any pedestrian upon any roadway and shall give warning by sounding the horn when necessary and shall exercise proper precaution upon observing any child or any confused or incapacitated person upon a roadway.
(Code 1975, § 31-120)

**State law reference—**Similar provisions, W. Va. Code § 17C-10-4.

### Sec. 114-665. Use of right half of crosswalks.

Pedestrians shall move, whenever practicable, upon the right half of crosswalks.
(Code 1975, § 31-121)

**State law reference—**Similar provisions, W. Va. Code § 17C-10-5.

### Sec. 114-666. Use of sidewalks.

Where sidewalks are provided, it shall be unlawful for any pedestrian to walk along or upon an adjacent roadway.
(Code 1975, § 31-122)

**State law reference—**Similar provisions, W. Va. Code § 17C-10-6(a).

### Sec. 114-667. Walking along roadway.

Where sidewalks are not provided, any pedestrian walking along and upon a street shall when practicable walk only on the left side of the roadway or its shoulder facing traffic which may approach from the opposite direction.
(Code 1975, § 31-123)

**State law reference—**Similar provisions, W. Va. Code § 17C-10-6(b).

### Sec. 114-668. Hitchhiking.

No person shall stand in a roadway for the purpose of soliciting a ride from the driver of any vehicle.
(Code 1975, § 31-124)

**State law reference—**Similar provisions, W. Va. Code § 17C-10-6(c).

### Sec. 114-669. Blind pedestrians.

(a) Whenever a pedestrian is crossing or attempting to cross a public street at or near an intersection or crosswalk, guided by a guide dog, or carrying in a raised or extended position a cane or walking stick which is metallic or white in color, or white tipped with red, the driver of every vehicle approaching such intersection or crosswalk shall take such precautions as may be necessary to avoid injuring or endangering such pedestrian; and if injury or danger to such pedestrian can be avoided only by bringing the vehicle to a full stop, the driver shall do so.

(b) Nothing contained in this section shall be construed to deprive any totally or partially blind or otherwise incapacitated person, not carrying such a cane or walking stick or not being guided by a dog, of the rights and privileges conferred by law upon pedestrians crossing the streets; nor shall the failure of such totally or partially blind or otherwise incapacitated person to carry a cane or walking stick, or to be guided by a guide dog upon the streets or sidewalks of this city be construed to constitute or be evidence of contributory negligence.
(Code 1975, § 31-125)

**State law reference—**Similar provisions, W. Va. Code § 5-15-5.

### Sec. 114-670. Persons working on streets and highways.

The driver of a vehicle shall yield the right-of-way to persons engaged in maintenance or construction work on a street or highway whenever he is notified of their presence by an official traffic control device or flagman.
(Code 1975, § 31-126)

**Cross reference—**Streets, sidewalks and other public places, ch. 102.

**State law reference—**Similar provisions, W. Va. Code § 17C-10-8.

### Sec. 114-671. Penalties for pedestrian violations.

Any pedestrian who violates the provisions of this article for which another penalty is not provided shall constitute the commission of a misdemeanor criminal offense, and the city is hereby authorized and empowered to issue a citation and to charge any such person who commits said violation. Any such person convicted of a violation of this article shall be fined not more than $100.00.
(Bill No. 8030, 5-6-2024)

### Secs. 114-672—114-700. Reserved.

## ARTICLE IX. BICYCLES*

### DIVISION 1. GENERALLY

### Sec. 114-701. Obedience to article; duty of parents and guardians; applicability of article to bicycles.

(a) It shall be unlawful for any person to do any act forbidden or fail to perform any act required in this article.

(b) The parent of any child and the guardian of any ward shall not authorize or knowingly permit any such child or ward to violate any of the provisions of this article.

(c) These regulations applicable to bicycles shall apply whenever a bicycle is operated upon any street or upon any path set aside for the exclusive use of bicycles subject to those exceptions stated in this article.
(Code 1975, § 31-131)

**State law reference—**Similar provisions, W. Va. Code § 17C-11-1.

### Sec. 114-702. Traffic laws apply to persons riding bicycles.

Every person riding a bicycle upon a roadway shall be granted all of the rights and shall be subject to all of the duties applicable to the driver of a vehicle by this chapter, except as to special regulations in this article and except as to those provisions of this chapter which by their nature can have no application.
(Code 1975, § 31-132)

**State law reference—**Similar provisions, W. Va. Code § 17C-11-2.

### Sec. 114-703. Riding on bicycles.

(a) A person propelling a bicycle shall not ride other than upon or astride a permanent and regular seat attached to the bicycle.

(b) No bicycle shall be used to carry more persons at one time than the number for which the bicycle and any attachments are designed and equipped to accommodate.
(Code 1975, § 31-133; Bill No. 8030, 5-6-2024)

**State law reference—**Similar provisions, W. Va. Code § 17C-11-3.

### Sec. 114-704. Clinging to vehicles.

No person riding upon any bicycle, coaster, roller skates, sled or toy vehicle shall attach it or himself to any vehicle upon a roadway.
(Code 1975, § 31-134)

**State law reference—**Similar provisions, W. Va. Code § 17C-11-4.

### Sec. 114-705. Riding on roadways and paths.

(a) Every person operating a bicycle upon a roadway shall ride as near to the right side of the roadway as practicable, exercising due care when passing a standing vehicle or one proceeding in the same direction.

(b) Persons riding bicycles upon a roadway shall not ride more than two abreast except when doing so would not impede the flow of traffic.

(c) Whenever a usable path for bicycles has been provided adjacent to a roadway, bicycle riders are encouraged to use such path and not the roadway.
(Code 1975, § 31-135; Bill No. 8030, 5-6-2024)

**State law reference—**Similar provisions, W. Va. Code § 17C-11-5.

---

***State law references—**Operation of bicycles and play vehicles, W. Va. Code § 17C-11-1 et seq.; authority to regulate operation of bicycles and require license and registration, W. Va. Code § 17C-2-8(a)(8).

### Sec. 114-706. Riding on sidewalk.

No person shall ride any bicycle upon any sidewalk within the city except where, by ordinance, the council of the city has designated such sidewalk as an official bicycle route and has marked such sidewalk with appropriate signs to that effect. Notwithstanding the previous provision, riders of bicycles when dismounted may lead their bicycles along the sidewalk to stand on the sidewalk provided they are securely placed against a building or other fixed structure and cause no obstruction.
(Code 1975, § 31-136)

**Cross reference—**Streets, sidewalks and other public places, ch. 102.

### Sec. 114-707. Riding without feet on pedals.

No bicycle shall be allowed to proceed in any street of the city by inertia, or momentum, with the feet of the rider removed from the pedals.
(Code 1975, § 31-137)

### Sec. 114-708. Fancy riding.

No rider of a bicycle shall remove both hands from the handlebars, or practice any trick or fancy riding in any street.
(Code 1975, § 31-138)

### Sec. 114-709. Carrying articles.

No person operating a bicycle shall carry any package, bundle or article which prevents the driver from keeping at least one hand upon the handlebars.
(Code 1975, § 31-139)

**State law reference—**Similar provisions, W. Va. Code § 17C-11-6.

### Sec. 114-710. Headlamp and rear reflector.

(a) Every bicycle when in use at nighttime shall be equipped with a lamp on the front which shall emit a white light visible from a distance of at least 500 feet to the front and with a red reflector on the rear of a type approved by the state department of motor vehicles, which shall be visible from all distances from 50 feet to 300 feet to the rear when directly in front of lawful upper beams of headlamps on a motor vehicle. A lamp emitting a red light visible from a distance of 500 feet to the rear may be used in addition to the red reflector.

**State law reference—**Similar provisions, W. Va. Code § 17C-11-7.

(b) All lights required in this section shall be kept lighted from one-half hour after sunset until one-half hour before sunrise on every bicycle while operated on any street or bicycle path or other public way in the city.
(Code 1975, § 31-140)

### Sec. 114-711. Signal device.

(a) No person shall operate a bicycle unless it is equipped with a suitable signal bell, horn or other warning device capable of giving a signal audible for a distance of at least 100 feet, except that a bicycle shall not be equipped with nor shall any person use upon a bicycle any siren or whistle; and the use of such signaling device for purposes other than to give warning of the approach or presence of such bicycle or as a warning of danger is expressly prohibited.

(b) When approaching or passing other vehicles or pedestrians, a bicycle rider may sound a short signal of his intention to approach or pass.

(c) Any person violating the provisions of this section is guilty of a misdemeanor and, upon conviction thereof, shall be fined not more than $10.00 per violation.
(Code 1975, § 31-141; Bill No. 8030, 5-6-2024)

**State law reference—**Similar provisions, W. Va. Code § 17C-11-7.

### Sec. 114-712. Brakes.

Every bicycle shall be equipped with a brake which will enable the operator to make the braked wheels skid on dry, level, clean pavement.
(Code 1975, § 31-142)

**State law reference—**Similar provisions, W. Va. Code § 17C-11-7.

### Sec. 114-713. Penalties for bicycle violations.

Any person operating a bicycle who violates the provisions of this article for which another penalty is not provided shall constitute the

commission of a misdemeanor criminal offense, and the city is hereby authorized and empowered to issue a citation and to charge any such person who commits said violation. Any such person convicted of an offense of this article shall be fined not less than $100.00 nor more than $500.00. (Bill No. 8030, 5-6-2024)

**Secs. 114-714—114-730. Reserved.**

DIVISION 2. RESERVED*

**Secs. 114-731—114-760. Reserved.**

## ARTICLE X. TOW TRUCKS

### Sec. 114-761. Generally.

(a) No person shall tow for the city or provide services incidental to the towing, removal or storage of any wrecked, abandoned, disabled or other vehicle, pursuant to a lawful order of the city police department unless they comply with the provisions of rules and regulations promulgated by the city chief of police.

(b) Upon promulgation of the rules and regulations by the chief of the police department, such rules and regulations shall be filed in the office of the clerk and shall be in effect from the date of filing.
(Code 1975, § 31-247)

### Sec. 114-762. Minimum standards to be met by towing companies.

No person shall tow for the city or provide services incidental to the towing, removal or storage of any wrecked, abandoned, disabled or other vehicle pursuant to a lawful order of the city police department unless its vehicles and its principal place of business and storage facilities inside the city meet or exceed the following criteria:

(1) The tow vehicles must be a minimum of:

a. A truck chassis with a manufacturer's rated capacity of at least 10,000 pounds' gross vehicle weight with dual wheels. Mounted on the chassis must be a complete commercially manufactured crane and winch having a manufacturer's rating of at least four tons. The tow truck body must comply with all state laws pertaining to fenders and lighting equipment and have an appearance similar to a commercially manufactured tow truck body.

b. At least 100 feet of three-eighths-inch cable attached to the wrecker winch.

c. A tow sling which must be commercially manufactured to prevent damage to vehicles.

Electric or hand crank winches do not satisfy the requirements of subsection (1)a. of this section.

(2) Each tow vehicle and carrier shall have on it at all times, on call or idle, the following accessories:

a. An amber rotor beam or strobe light mounted on top so it can be seen when in use from front, rear and both sides. However, if red lights are hereafter approved for use by licensed operators for police emergency work, such beam or light is to be used only when a hazardous condition exists.

b. A set of amber front, red rear flasher lights shall be mounted on top of vehicles, for use when towing under normal conditions.

c. A dolly assembly, one set per operator, not each truck.

d. Floodlights on the hoist.

*__Editor's note—__Bill No. 8030, adopted May 6, 2024, repealed div. 2, §§ 114-731—114-734, which pertained to license and registration and derived from Code 1975, §§ 31-127—31-130.

e. One snatch block for each winch, manufacturer's rating to match the wrecker.

(3) At least one heavy-duty broom, shovel, axe, crowbar or pry bar, pair of bolt cutters, set of jumper cables, flashlight, one operative fire extinguisher (ABC five pounds or larger).

(4) Each truck shall be lettered commercially with the operator's business logo on both doors, in permanent letters at least three inches high.

(5) A towing company's place of business and motor vehicle storage facility must be located in an area reasonably convenient to the public and to the highway patrol.

(6) A towing company's place of business must be equipped with radio dispatch equipment and provided with telephone service which will permit it to respond to calls 24 hours per day each day of the year.

(7) A towing company's place of business shall be open to the public from 8:00 a.m. to 6:00 p.m. Monday through Friday, and shall be able to be contacted by telephone at all other hours of the week.

(8) A towing company shall maintain at the same location an outside storage facility with a minimum of 2,500 square feet of space for the control and safekeeping of motor vehicles, encircled by a fence of sufficient height to deter trespass and vandalism, with at least one gate for ingress and egress, which shall be kept locked at all times when not in use.

(9) A towing company shall maintain at the same location an inside storage facility for the safekeeping and storage of a minimum of five motor vehicles, which facility shall be covered and enclosed, and constructed in such a fashion as will prevent unauthorized entry.

(10) A towing company's place of business shall contain restroom facilities for the convenience of the public, which shall be at all times maintained in a clean, sanitary and orderly manner.

(11) The use of any facility for the storage or safekeeping of motor vehicles by more than one towing company is strictly prohibited.

(Code 1975, § 31-248)

**Secs. 114-763—114-790. Reserved.**

## ARTICLE XI. WEIGHT LIMITS*

### Sec. 114-791. Permitting excessive size and weight of vehicles on city streets and highways.

Notwithstanding any other provision within this Code, any size or weight restriction upon any vehicle shall not be applicable in the following situations:

(1) Any governmental or quasi-governmental vehicle in the performance of any official function or duty.

(2) Utility and local delivery vehicles, including moving vans, while engaged in a service reasonably requiring the use of such vehicle for such service so long as such use does not otherwise endanger life or property within the area of use and that such use is limited or restricted to that which is reasonably necessary to accomplish the immediate purpose of this exception.

(3) By special permit issued by the city engineer for the purpose of carrying out or accomplishing any activity or operation authorized by any law, regulation or special permit, the performance of which reasonably contemplates the use of any such oversize or overweight vehicle; provided, that such special permit shall issue only upon written application,

*__State law references__—Authority to restrict weight, W. Va. Code §§ 17C-2-8(a)(7), 17C-17-12; signs required, W. Va. Code § 17C-2-8(b).

specifically describing the vehicle or vehicles and load to be used and upon giving satisfactory bond, if not otherwise provided, for all damages or expenses that may be incurred in connection with such use, and upon any reasonable restrictions or conditions that may be imposed in the permit by the city engineer.

(Ord. No. 6064, 12-19-1994)

**Cross reference—**Streets, sidewalks and other public places, ch. 102.

### Sec. 114-792. Vehicular truck traffic on Kanawha Boulevard.

Vehicular truck traffic on Kanawha Boulevard shall be limited to vehicles having a declared gross weight not in excess of 10,000 pounds, as such declared gross weight is defined in W. Va. Code § 17A-10-2.

(Code 1975, § 31-156)

### Secs. 114-793—114-810. Reserved.

## ARTICLE XII. VEHICLE EQUIPMENT*

### Sec. 114-811. Unsafe and improperly equipped vehicles; all vehicles to be equipped as provided by state law.

(a) It shall be unlawful for any person to drive or move, or for the owner to cause or knowingly permit to be driven or moved, on any street any vehicle or combination of vehicles which is in such unsafe condition as to endanger any person, or which does not contain those parts or is not at all times equipped with such lamps and other equipment in proper condition and adjustment as required by W. Va. Code ch. 17C, art. 15 (W. Va. Code § 17C-15-1 et seq.), or which is equipped in any manner in violation of that article, or for any person to do any act forbidden or fail to perform any act required under that article.

(b) Nothing contained in this section shall be construed to prohibit the use of additional parts and accessories on any vehicle not inconsistent with the provisions of W. Va. Code ch. 17C, art. 15 (W. Va. Code § 17C-15-1 et seq.).

(Code 1975, § 31-143)

**State law reference—**Similar provisions, W. Va. Code § 17C-15-1.

### Sec. 114-812. Child passenger restraining system required.

(a) Every driver who regularly and customarily transports a child under the age of five years in a passenger automobile, van or pickup truck other than one operated for hire which is registered in this state shall, while such motor vehicle is in motion and operated on a public road, street or highway of this state, provide for the protection of such child by properly placing, maintaining and securing such child in a child passenger restraining system meeting applicable federal motor vehicle safety standards in effect on the effective date of this section, including without limitation, a car bed or a car seat meeting such standards; provided, that if such child is between the age of three and five, a seat belt shall be sufficient to meet the requirements of this section.

(b) Any person who violates any provision of this section is guilty of a misdemeanor and upon conviction shall be fined not less than $10.00 nor more than $20.00. Penalties shall not be applied to those drivers who show reasonable proof that they have purchased a child restraint device within 30 days after violation.

(c) A violation of this section shall not be deemed by virtue of such violation to constitute evidence of negligence, contributory negligence or comparative negligence in any civil action or proceeding for damages.

(Code 1975, § 31-143.1)

**State law references—**Similar provisions, W. Va. Code § 17C-15-46; authorized penalty for ordinance violations, W. Va. Code §§ 8-11-1, 8-12-5(57), 8-34-1.

*__State law reference—__Vehicle equipment, W. Va. Code § 17C-15-1 et seq.

### Sec. 114-813. Brakes.

Every motor vehicle operated upon the streets of the city shall be equipped with such brakes as are required by state law, functioning in good order at all times.
(Code 1975, § 31-144)

**State law reference—**Brakes, W. Va. Code §§ 17C-15-31, 17C-15-32.

### Sec. 114-814. Tractors and vehicles equipped with chains or cleats.

No person shall drive any tractor, traction engine or vehicle equipped with chains or cleats upon any street or sidewalk in the city in such manner as to damage the paving of such street or sidewalk.
(Code 1975, § 31-145)

**State law reference—**Similar provisions, W. Va. Code § 17C-15-37.

### Sec. 114-815. Lights.

(a) Every motor vehicle operated on any street within the city shall be equipped with two headlights mounted on the right and left of the front with clear bulb and lens of sufficient illuminating power to render clearly discernible a substantial object on the street ahead for a distance of 500 feet, and a rear or taillight mounted on the rear with red lens and a clear light illuminating the rear plates of such vehicle so that the characters shall be visible for a distance of 50 feet; however, motorcycles and motor-driven cycles shall be equipped with one such headlight and one rear light with red lens and a clear light illuminating the registration plates of either such vehicle. All lights on vehicles shall meet the requirements of the applicable provisions of W. Va. Code ch. 17C, art. 15 (W. Va. Code § 17C-15-1 et seq.).

(b) No more than two additional foglights and two spotlights of either clear or amber color, visible from the front, may be used on any motor vehicle. Authorized emergency vehicles may use a red spotlight visible from the front for identification purposes and such red spotlight so visible from the front may be used only by authorized emergency vehicles. Trucks may use as many marking lights as are necessary.

(c) In addition to such headlights and spotlights or foglights, a motor vehicle may be equipped with parking lights visible from the front and rear, of colors to conform with driving lights.

(d) Every animal-drawn vehicle, when operated at night on any street within the city, shall display a clear light visible to the front for a distance of at least 500 feet and at the rear a red light visible for a distance of 500 feet.

(e) All lights required in this section shall be kept lighted from one-half hour after sunset until one-half hour before sunrise on every vehicle while operated on any street; provided, the state laws governing lights on vehicles shall apply whenever applicable within the city.
(Code 1975, § 31-146)

**State law reference—**Lights, W. Va. Code § 17C-15-2 et seq.

### Sec. 114-816. Horns and other sounding devices.

(a) Motor vehicles shall be equipped with a suitable signal horn so as to produce an abrupt sound audible under normal conditions from a distance of not less than 200 feet, so as to serve as an adequate warning of the approach of such vehicle or as a warning of danger, and the use of such signaling device for purposes other than those set forth in this section is expressly prohibited.

(b) When approaching or passing other vehicles or pedestrians, a driver of a vehicle may sound a short signal of his intention to approach or pass.

(c) Vehicles used in connection with any parade, official escort or other procession when previously approved and authorized by the chief of police shall not use horns and other sounding devices intermittently or continuously while in such parade, escort or procession.

(d) This section shall not apply to vehicles of the police and fire departments and other authorized emergency vehicles.
(Code 1975, § 31-147)

**State law reference—**Similar provisions, W. Va. Code § 17C-15-33.

### Sec. 114-817. Sirens and exhaust whistles.

Sirens and exhaust whistles shall not be used on vehicles operated within the city except on vehicles of the police and fire departments or other authorized emergency vehicles.
(Code 1975, § 31-148)

**State law reference—**Similar provisions, W. Va. Code § 17C-15-33.

### Sec. 114-818. Cutouts and mufflers; racing motors or producing noise; smoke and gasses.

(a) A driver shall not use the cutout of a motor while operating a motor vehicle within the city or operate a motor vehicle without a proper muffler functioning in good order, or race the motor of any motor vehicle so as to cause a backfire or other loud noise. The provisions of this subsection shall apply to the operator of any motor or vehicle whether on a street or within private property, and in addition to other prescribed penalties the operation of a motor or motor vehicle in violation of this subsection is declared to be a nuisance.

(b) It shall be unlawful for any person to use or to permit any vehicle or device or apparatus to emit smoke, steam, noxious gas, fumes or vapors, other than those produced by ordinary combustion for power purposes, on the streets or in any public place within the city.
(Code 1975, § 31-149)

**State law reference—**Similar provisions, W. Va. Code § 17C-15-34.

### Sec. 114-819. Quiet operation of motorcycles; mufflers.

Every motorcycle shall be operated as quietly as possible at all times within the city and when so operated shall be equipped with a muffler designed with baffles, resonator cylinder, and other factory-made noise reducers; and the muffler shall not be altered, changed or designed in any manner which would tend to increase the noise-producing effect above that of the manufacturer's design in the original equipment. In addition to other prescribed penalties, the operation of a motorcycle in violation of this section is declared to be a nuisance.
(Code 1975, § 31-150; Bill No. 7375, 8-17-2009)

**State law reference—**Similar provisions, W. Va. Code § 17C-15-34.

### Sec. 114-820. Rear vision mirror on motorcycles.

Every motorcycle shall be equipped with a rearview mirror affixed to the motorcycle handlebars and adjusted so that the motorcycle operator shall have a clear view of the road and condition of traffic behind him for a distance of at least 200 feet.
(Code 1975, § 31-151)

**State law reference—**Similar provisions, W. Va. Code § 17C-15-44(e).

### Sec. 114-821. Vehicles transporting explosives.

(a) Any person operating any vehicle transporting any explosives as a cargo or part of a cargo upon a street shall at all times comply with the provisions of this section.

(b) The vehicle shall be marked or placarded on each side and the rear with the word "Explosives" in letters not less than eight inches high, or there shall be displayed on the rear of such vehicle a red flag not less than 24 inches square marked with the word "Danger" in white letters six inches high.

(c) Every such vehicle shall be equipped with not less than two fire extinguishers, filled and ready for immediate use, and placed at a convenient point on the vehicle so used.
(Code 1975, § 31-152)

**State law reference—**Similar provisions, W. Va. Code § 17C-15-41.

### Sec. 114-822. Driving vehicles carrying projecting objects.

All vehicles carrying objects which project more than four feet from the rear shall, during the period of from one-half hour after sunset to one-half hour before sunrise, carry a red light at the end of the object so projecting, clearly visible for a distance of at least 500 feet to the sides and rear, and at any time shall carry a red flag or other marker of dimensions of at least one square foot at the extreme rear end of such load.
(Code 1975, § 31-154)

**State law reference—**Similar provisions, W. Va. Code § 17C-15-14.

### Sec. 114-823. Transportation and delivery of oil.

All oil delivery vehicles shall have securely fastened and attached under the taps or faucets an absolutely oiltight or watertight, zinc-lined box or tray, and in filling any tank or other vessel from such taps or faucets any drip or overflow shall flow into the box or tray; and in removing any vessel over any pavement, no drip or overflow shall be permitted to fall upon such pavement and no receptacle for holding oil shall be placed on the asphalt pavement.
(Code 1975, § 31-155)

### Sec. 114-824. Sound apparatus on vehicles.

No vehicle equipped with sound, musical, loudspeaking or other loud noise producing devices or apparatus shall be operated upon the streets or other places within the city unless it has been made to comply with the provisions of chapter 78, article IV, division 3 of this Code.
(Code 1975, § 31-157)

### Secs. 114-825—114-861. Reserved.

## ARTICLE XIII. ALL-TERRAIN VEHICLES*

### Sec. 114-862. Definitions.

Except as otherwise provided in this chapter the following words and phrases shall have the meanings set forth below:

*All-terrain vehicle (ATV)* means any motor vehicle designed for off-highway use, having a seat or saddle designed to be straddled by the operator, and handlebars for steering control, or as otherwise defined in W. Va. Code § 17A-1-1, or any successor substitute thereto.

*Motor vehicle* means every vehicle which is self-propelled and every vehicle which is propelled by electric power obtained from overhead trolley wires, but not operated upon rails.

*Minor* means any person under the age of 18.
(Bill No. 6983, § 31-252, 6-2-2003)

### Sec. 114-863. Prohibition of operation and use of all-terrain vehicles.

The riding, operation, or other use of all-terrain vehicles for transportation or recreational purposes within or upon the streets, alleys, sidewalks, parking lots, and other realty-owned, leased, or controlled property by the city or any of its boards, authorities, or commissions is prohibited.
(Bill No. 6983, § 31-253, 6-2-2003)

### Sec. 114-864. Exceptions.

(a) Notwithstanding any other provision of this Code, it shall not be an offense for any person to lawfully ride or operate any such all-terrain vehicle upon any governmentally-owned realty not owned or controlled by the city or any of its boards, authorities, or commissions located within the corporate limits of the city.

(b) Notwithstanding an other provision of this Code, it shall not be an offense for any person licensed to operate a motor vehicle within the State of West Virginia, to ride, operate, or otherwise use an all-terrain vehicle upon a designated parade route, when such person is a duly registered and recognized participant in any such permitted parade, provided that such all-terrain vehicle riding or operation occurs in conjunction with said parade.

(c) Notwithstanding any other provision of this Code, it shall not be an offense for any person licensed to operate a motor vehicle within the State of West Virginia, to ride, operate, or otherwise use an all-terrain vehicle on the streets, alleys, sidewalks, parking lots, and other realty-owned, leased, or controlled property by the city or any of its boards, authorities, or commissions for purposes of snow removal, if such vehicle is affixed or attached with implements or equipment specifically designed for that purpose, and to be used on such vehicles.

(d) Notwithstanding any other provision of this Code, it shall not be an offense for any person licensed to operate a motor vehicle within

*__Editor's note—__Bill No. 6983, §§ 31-252—31-258, adopted June 2, 2003, superseded provisions set out in Bill No. 6982, §§ 17-01—17-07, adopted June 2, 2003. Both Bills enacted new ch. 114, art. XIII, §§ 114-862—114-868, to read as herein set out.

the State of West Virginia, to ride, operate, or otherwise use an all-terrain vehicle on the streets, alleys, sidewalks, parking lots, and other realty-owned, leased, or controlled property by the city or any of its boards, authorities, or commissions during a period of emergency when the emergency has been so declared by the mayor, and when such riding, operating or other use of any such ATV is in conjunction with response to such an emergency.
(Bill No. 6983, § 31-254, 6-2-2003)

**Sec. 114-865. Exemptions.**

The federal government, the State of West Virginia, and its political subdivisions are exempt from the prohibitions contained herein, when any such all-terrain vehicle is used for government purposes.
(Bill No. 6983, § 31-255, 6-2-2003)

**Sec. 114-866. Authorizing or permitting a minor to violate any provision of this article.**

No person shall authorize or knowingly permit a minor to violate any provision within this section. Any such violation or knowingly permitting any such minor to violate the provisions of this section shall constitute a criminal violation hereof and shall subject such person to the criminal penalties set forth in this section. The citing of any person pursuant to this paragraph shall not be reason to prohibit the police officer from also citing the driver of said all-terrain vehicle.
(Bill No. 6983, § 31-256, 6-2-2003)

**Sec. 114-867. Penalties.**

(a) Any person who violates section 114-863 of this article shall constitute the commission of a misdemeanor criminal offense, and any officer of the police department of the city or any other officer of any other police agency exercising proper jurisdiction within the corporate limits of the city is hereby authorized and empowered to issue a citation and to charge any such person who commits a violation of section 114-863. Any person convicted of a first offense established hereunder shall be fined not less than $25.00 nor more than $100.00. Any person convicted of a second or subsequent offense established hereunder shall be fined not less than $250.00.

(b) Any person who violates section 114-866 of this article shall constitute the commission of a misdemeanor criminal offense, and any officer of the police department of the city or any other officer of any other police agency exercising proper jurisdiction within the corporate limits of the city is hereby authorized and empowered to issue a citation and to charge any such person who commits a violation of section 114-866. Any person convicted of a first offense established hereunder shall be fined not less than $25.00 nor more than $100.00. Any person convicted of a second or subsequent offense established hereunder shall be fined not less than $250.00.
(Bill No. 6983, § 31-257, 6-2-2003)

**Sec. 114-868. Liability.**

Nothing contained within this article is intended, nor shall be construed, so as to create or form the basis for any civil or administrative liability whatsoever on the part of the city or any of its officers, officials, employees, or agents for any injury or damage resulting to any person as a consequence of any action or inaction on the part of the city related, in any manner, to the enforcement or non-enforcement of this article by the city's officers, officials, employees, or agents.
(Bill No. 6983, § 31-258, 6-2-2003)

**Secs. 114-869—114-914. Reserved.**

## ARTICLE XIV. MOTORIZED SCOOTER

**Sec. 114-915. Definitions.**

Except as otherwise provided in this chapter the following words and phrases shall have the meanings set forth below:

*Minor* means any person under the age of 18.

*Motor vehicle* means every vehicle which is self-propelled and every vehicle which is propelled by electric power obtained from overhead trolley wires, but not operated upon rails.

*Motorized scooter* means any non-balancing, tandem two-wheeled device, or self balancing device, that is designed to be stood upon, or ridden by the operator, and is powered by a motor having a maximum piston displacement of less than 50 cubic centimeters or an electric drive motor, that is capable of a maximum speed of not more than 25 miles per hour on a flat surface. "Motorized scooter" does not include a "motorcycle" as defined by W. Va. Code § 17C-1-4, a "motor-driven cycle" as defined by W. Va. Code § 17C-1-5, a "class 3 electric bicycle" as defined by W. Va. Code § 17C-1-70, an "electric personal assistive mobility device" or "EPAMD" as defined by W. Va. Code § 17C-1-66, or a wheelchair as defined in this section.

*Mobility-impaired person* means a person who:

(1) Cannot walk 200 feet without stopping to rest;

(2) Cannot walk without the use of or assistance from a brace, cane, crutch, prosthetic device, wheelchair, other assistive device or another person;

(3) Is restricted by lung disease to such an extent that the person's force (respiratory) expiratory volume for one second, when measured by spirometry, is less than one liter or the arterial oxygen tension is less than 60 mm/hg on room air at rest;

(4) Uses portable oxygen;

(5) Has a cardiac condition to such an extent that the person's functional limitations are classified in severity as Class III or Class IV according to standards established by the American Heart Association; or

(6) Is severely limited in his or her ability to walk because of an arthritic, neurological or other orthopedic condition.

*Wheelchair* means a motorized or nonmotorized wheeled device, including a motorized scooter that is designed for, or used by, a mobility-impaired person.
(Bill No. 6984, § 31-260, 8-18-2003; Bill No. 7956, 8-15-2022)

## Sec. 114-916. Authorizing the use of motorized scooters.

Motorized scooters may be operated upon the streets or alleys within the City of Charleston, unless otherwise prohibited. The operator of any motorized scooter shall obey and be subject to all traffic laws of the City of Charleston and the State of West Virginia, unless otherwise stated in this Article. Notwithstanding the general authorization to operate motorized scooters, in order to eliminate hazards to public health and safety and to abate the potential public nuisance associated with the placement of rented motorized scooters on the public rights-of-way, the city council hereby requires any person seeking to operate a motorized scooter rental business within the city to enter into an agreement with the city, which shall be approved by city council prior to beginning operation.
(Bill No. 7956, 8-15-2022)

**Editor's note—**Bill No. 7956, adopted Aug. 15, 2022, repealed the former § 114-916 and enacted a new § 114-916 as set out herein. The former § 114-916 pertained to prohibition of operation and use of motorized scooters and derived from Bill No. 6984, § 31-261, adopted Aug. 18, 2003.

## Sec. 114-917. Additional requirements for operation between sunset and sunrise.

Every motorized scooter operated after sunset and before sunrise shall be equipped with the following:

(1) A lamp emitting a white light which, while the motorized scooter is in motion, illuminates the roadway in front of the operator and is visible from a distance of 300 feet in front and from the sides of the motorized scooter.

(2) A lamp emitting a red light on the rear that is visible from a distance of 500 feet to the rear.

(3) A white or yellow reflector on each side visible from the front and rear of the motorized scooter from a distance of 200 feet.

(4) A lamp or lamp combination, emitting a white light, attached to the operator and visible from a distance of 300 feet in front

and from the sides of the motorized scooter, may be used in lieu of the lamp required by subsection (1) hereof.

(Bill No. 7956, 8-15-2022)

**Editor's note—**Bill No. 7956, adopted Aug. 15, 2022, repealed the former § 114-917 and enacted a new § 114-917 as set out herein. The former § 114-917 pertained to exceptions and derived from Bill No. 6984, § 31-262, adopted Aug. 18, 2003.

### Sec. 114-918. Prohibited acts.

Except as specifically authorized herein, no person shall:

(1) Operate a motorized scooter unless it is equipped with a brake that will enable the operator to make a braked wheel skid on dry, level, clean pavement.

(2) Operate a motorized scooter on a roadway with a speed limit in excess of 30 miles per hour.

(3) Operate a motorized scooter when the operator is under the age of 16 years of age.

(4) Operate a motorized scooter with any passengers in addition to the operator.

(5) Operate a motorized scooter carrying any package, bundle or article that prevents the operator from keeping at least one hand upon the handlebars.

(6) Operate a motorized scooter upon a sidewalk or on any roadway, path, or other surface that is closed to bicycle traffic.

(7) Operate a motorized scooter with the handlebars raised so that the operator must elevate his or her hands above the level of his or her shoulders in order to grasp the normal steering grip area.

(8) Leave a motorized scooter lying on its side on any sidewalk, or park a motorized scooter on a sidewalk in any other position, so that there is not an adequate path for pedestrian traffic.

(9) Attach the motorized scooter or themselves, by any means, while on the roadway to any other vehicle on the roadway.

(10) Operate a motorized scooter while in an impaired state, as defined in W. Va. Code § 17C-5-2.

(Bill No. 7956, 8-15-2022)

**Editor's note—**Bill No. 7956, adopted Aug. 15, 2022, repealed the former § 114-918 and enacted a new § 114-918 as set out herein. The former § 114-918 pertained to exemptions and derived from Bill No. 6984, § 31-263, adopted Aug. 18, 2003.

### Sec. 114-919. Authorizing or permitting a minor to violate any provision of this article.

No person shall authorize or knowingly permit a minor to violate any provision within this section. Any such violation or knowingly permitting any such minor to violate the provisions of this section shall constitute a criminal violation hereof and shall subject such person to the criminal penalties set forth in this section. The citing of any person pursuant to this paragraph shall not be reason to prohibit the police officer from also citing the driver of said motorized scooter.

(Bill No. 6984, § 31-264, 8-18-2003)

### Sec. 114-920. Penalties.

Any person who violates sections 114-917, 114-918, or 114-919 of this article shall constitute the commission of a misdemeanor criminal offense, and the city is hereby authorized and empowered to issue a citation and to charge any such person who commits a violation of sections 114-917, 114-918, or 114-919. Any person convicted of a first offense established hereunder shall be fined not less than $100.00 nor more than $500.00. Any person convicted of a second or subsequent offense established hereunder shall be fined not less than $250.00, nor more than $500.00.

(Bill No. 6984, § 31-265, 8-18-2003; Bill No. 7956, 8-15-2022)

### Sec. 114-921. Liability.

Nothing contained within this article is intended, nor shall be construed, so as to create or form the basis for any civil or administrative liability whatsoever on the part of the city of or any of its officers, officials, employees, or agents for any injury or damage resulting to any person

as a consequence of any action or inaction on the part of the city related, in any manner, to the enforcement or non-enforcement of this article by the city's officers, officials, employees, or agents.
(Bill No. 6984, § 31-266, 8-18-2003)

Chapters 115—117

**RESERVED**

# Chapter 118

# UTILITIES*

## Article I. In General

Secs. 118-1—118-30. Reserved.

## Article II. Water Service


Sec. 118-31. Unlawful use of water.
Sec. 118-32. Tapping water pipes.
Sec. 118-33. Injury to water fixtures.
Sec. 118-34. Unlawful waste, flooding or diversion of water.
Secs. 118-35—118-60. Reserved.


## Article III. Sewers and Sewage Disposal

### Division 1. Generally


Sec. 118-61. Declaration of necessity; sewer connection required where available.
Sec. 118-62. Application for sewer service required.
Sec. 118-63. User's responsibility to keep sewer clean.
Sec. 118-64. Leaks.
Sec. 118-65. Unauthorized connections prohibited.
Sec. 118-66. City not liable for damage.
Sec. 118-67. Tampering with sewer appurtenances.
Sec. 118-68. Entering sewer.
Sec. 118-69. Injury to sewer.
Sec. 118-70. Matter not to be thrown into sewer.
Sec. 118-71. Introducing into sewer hot, corrosive or explosive substances.
Sec. 118-72. Obstruction.
Sec. 118-73. License required to engage in business of laying or constructing sewers or drainways.
Sec. 118-74. Certain buildings required to have sanitary water closets, connected to sanitary sewer or sanitary septic tanks.
Sec. 118-75. Septic tank permits and requirements.
Sec. 118-76. Certain premises required to have privies; privy permits; requirements as to privies.
Sec. 118-77. Sewage disposal by broad irrigation, subsoil irrigation.
Sec. 118-78. Responsibility for and requirements concerning installation and maintenance of sanitary facilities.
Sec. 118-79. Abatement of violations.
Sec. 118-80. Removal of contents of privies, cesspools and septic tanks; transportation over city streets; final disposition.
Sec. 118-81. Unlawful deposit of fecal matter.
Sec. 118-82. Professional cleaners of septic tanks and privies.
Secs. 118-83—118-100. Reserved.


---

***Cross references—**Administration, ch. 2; buildings and building regulations, ch. 14; businesses, ch. 18; community development, ch. 30; environment, ch. 50; manufactured homes and trailers, ch. 70; natural resources, ch. 74; planning, ch. 90; solid waste, ch. 98; streets, sidewalks and other public places, ch. 102; railroads and public utilities, § 102-99; poles, wires and antennas, § 102-211 et seq.; subdivision regulations, ch. 106; required improvements for sanitary sewage disposal in subdivisions, § 106-187; required improvements for poles and underground conduits for electric lights and telephone in subdivisions, § 106-188; public service or utility business, § 110-55; public utilities tax, § 110-311 et seq.

Division 2. Taps

Sec. 118-101. Permit for connection; tapping charge.
Sec. 118-102. Tapping or opening sewer without permit.
Sec. 118-103. Sewer taps only by authorized persons.
Sec. 118-104. Approval of connections by city inspector.
Secs. 118-105—118-120. Reserved.

Division 3. Sanitary Board

Sec. 118-121. Created; powers and duties; composition; appointment and term of members.
Sec. 118-122. Officers; salaries; bond of treasurer.
Sec. 118-123. Powers and duties.
Secs. 118-124—118-140. Reserved.

Division 4. Rates and Charges

Sec. 118-141. Adoption of certain rules and regulations and establishment of a schedule of just and equitable rates or charges; use of water meters.
Sec. 118-142. Established rates applicable to premises subsequently served.
Sec. 118-143. City subject to established rates or charges.
Sec. 118-144. Authority vested in sanitary board for billing and collection.
Sec. 118-145. Lien for enforcement of collection of billed rates or charges.
Sec. 118-146. Duration of liability for sewer service.
Secs. 118-147—118-170. Reserved.

Division 5. Reserved

Secs. 118-171—118-200. Reserved.

Division 6. Discharge Restrictions

Sec. 118-201. Definitions.
Sec. 118-202. Applicability.
Sec. 118-203. Prohibitions and limitations on wastewater discharges.
Sec. 118-204. Pretreatment of wastewater.
Sec. 118-205. Control of prohibited wastes.
Sec. 118-206. Industrial user discharge permit requirements.
Sec. 118-207. Industrial user discharge permit application.
Sec. 118-208. Industrial user discharge permit issuance.
Sec. 118-209. Monitoring and reporting requirement.
Sec. 118-210. Compliance monitoring.
Sec. 118-211. Confidential information.
Sec. 118-212. Publication of users in significant noncompliance.
Sec. 118-213. Administrative enforcement remedies.
Sec. 118-214. Judicial enforcement remedies.
Sec. 118-215. Supplemental enforcement authority.
Sec. 118-216. Criminal penalty.
Sec. 118-217. Affirmative defenses to discharge violations.
Secs. 118-218—118-240. Reserved.

Division 7. Wastewater Containing Fats, Oils, and Grease

Sec. 118-241. Definitions.
Sec. 118-242. Prohibitions.
Sec. 118-243. Grease trap size.
Sec. 118-244. New construction.
Sec. 118-245. Grease trap permits.

Sec. 118-246. Disposal of fats, oils, and grease.
Sec. 118-247. Inspection.
Sec. 118-248. Enforcement.

## ARTICLE I. IN GENERAL

**Secs. 118-1—118-30. Reserved.**

## ARTICLE II. WATER SERVICE

### Sec. 118-31. Unlawful use of water.

It shall be unlawful for any person to sell, furnish, take or permit to be taken, or use any water from the hydrants or other attachments of any company furnishing water under a franchise of the city to the inhabitants of the city, for domestic or other purposes, without having contracted for such service, with intent to defraud the company out of its revenue; and no person shall introduce the hydrant water or water derived from the system of any company holding such a franchise on his premises without the authority or consent of such company so authorized to furnish water to the inhabitants of the city.
(Code 1975, § 32-22)

**State law references—**Procuring water by fraud, W. Va. Code § 61-3-44; tampering with water pipes, W. Va. Code § 61-3-45.

### Sec. 118-32. Tapping water pipes.

It shall be unlawful for any person to tap or cause to be tapped any pipe belonging to any water company supplying water to any of the inhabitants of the city, or to any private pipe connected with such water pipe, unless consent first be had from the water company.
(Code 1975, § 32-23)

**State law reference—**Tampering with water pipes, W. Va. Code § 61-3-45.

### Sec. 118-33. Injury to water fixtures.

It shall be unlawful for any person willfully to break, injure, deface or destroy any water main, bend, branch, sleeve, cap, valve, hydrant, jet, fireplug, service pipe, stopcock, box, plate or covering or any other fixture or thing used or connected with the distribution of water throughout the streets of the city or for its introduction into any building of the city.
(Code 1975, § 32-24)

**State law references—**Injuring public utility property, W. Va. Code § 61-3-29; property damage generally, W. Va. Code § 61-3-30.

### Sec. 118-34. Unlawful waste, flooding or diversion of water.

It shall be unlawful for any occupant of premises into which water has been introduced to permit the water to run or waste unnecessarily from any water pipe, hydrant, jet, cock or other fixture; or to overflow or flood the sidewalk or pavement or to flow out upon any lot or street, or to flow from his fountain into adjacent premises and there be used; or to be taken from or used by any person other than such occupant or a member or a visitor of his family except in case of fire. Any violation of these provisions shall constitute a public nuisance.
(Code 1975, § 32-25)

**Secs. 118-35—118-60. Reserved.**

## ARTICLE III. SEWERS AND SEWAGE DISPOSAL*

### DIVISION 1. GENERALLY

### Sec. 118-61. Declaration of necessity; sewer connection required where available.

(a) The use of the sewer system of the city is determined and declared to be essential for the protection and preservation of the public health, comfort, safety, economy and general welfare of the inhabitants of the city and of the area served by the system.

(b) The owner, tenant or occupant of premises which abut on a street, easement or other public way containing a sewer service or which in the judgment of the sanitary board of the city is located within such a distance that sewer service is reasonably available thereto and upon which premises a building or other inhabitable structure has been or shall be erected for residential, commercial or industrial use or where persons are employed or congregate or are intended to be employed or congregate shall be required to con-

*__Cross reference—__Storm sewers and drainage system, § 106-211 et seq.

**State law reference—**General authority relative to sewers, W. Va. Code §§ 8-12-5(32), (33), 8-18-1, 16-13-1.

nect the building or structure to the sewer system or to such part of the sewer system as may from time to time be extended or become reasonably available, and shall thereafter refrain from using or cease to use any other method in place of the sewer services which are available, and shall thereafter pay all the charges, rates or fees as may be provided for. All such connections shall be in accordance with the rules and regulations which shall be adopted from time to time by the sanitary board of the city or by the city council; and such rules and regulations may provide for reasonable charges, fees or deposits required for making such connections.
(Code 1975, § 25-1)

**Charter reference—**Authority to require connection with sewer system, § 48.

**State law reference—**Authority to require connections, W. Va. Code § 8-18-22.

### Sec. 118-62. Application for sewer service required.

(a) It shall be unlawful for any person, including public bodies as well as natural persons, to make an initial cut-in or connection with the city sewer system and use that system without first making written application for such connection and service to the sanitary board and paying all incident costs, charges, fees and deposits. Such application shall be made on forms prescribed and furnished by the board and shall constitute an agreement by the applicant with the city to abide by all provisions of this chapter and such applicable rules and regulations of the city council or sanitary board in regard to the use of the sewer system. Such application for service by firms, partnerships, associations and corporations shall be submitted only by their duly authorized agent; and the official title of such agent shall be signed to the application.

(b) The application shall grant or cause to be granted to the city, without cost, all rights, easements, permits and privileges which are necessary for the rendering of sewer service. Duly authorized employees of the city or sanitary board shall have access at all reasonable hours to the premises of the applicant for the purpose of installing or removing any of its property, examining pipes or fixtures, or for any purpose incidental to the rendering of sewer service.
(Code 1975, § 25-2)

### Sec. 118-63. User's responsibility to keep sewer clean.

The owner, tenant or occupant of property shall be continuously responsible for maintaining and keeping the sewer pipe leading to and between the plumbing system of his premises to the city's connecting sewer clean and free from obstruction and shall not cause, suffer or permit any article or thing, liquid as well as solid, to be introduced into the pipe which causes a stoppage. In the event of any such obstruction or stoppage, the sanitary board shall have the right to cut off the water connection, which shall not be reconnected until such sewer pipe is cleaned and maintained properly; and if such user fails to remedy such obstruction or stoppage, the board shall have the right to enter upon the premises and make necessary repairs, the cost and expenses of which shall be included as a part of the charges against the premises.
(Code 1975, § 25-14)

### Sec. 118-64. Leaks.

No allowance or adjustment of any sewer bill shall be made for water leaks of any nature occurring on the user's side of the meter if the water so leaked enters the sewer.
(Code 1975, § 25-15)

### Sec. 118-65. Unauthorized connections prohibited.

(a) No person shall connect to or turn on any sewer service, or cut in, interconnect, tap or make any alteration to any main distribution or collection pipe of the city's sewer system or permit any connection or tapping to be made to the sewer system on his premises or the premises occupied by him, or knowingly use the sewer service from connections in violation of any of the provisions of this article or any rules or regulations adopted by the sanitary board with respect to this article.

(b) Roof drains, yard and area drains, footer drains or any line carrying flow other than exclusively sanitary wastewater are prohibited from connection to the sanitary sewer system. However, where, in the opinion of the sanitary board manager and city engineer, property damage will occur if the stipulations in section 118-104 and this section are followed, a variance in writing can be granted by the sanitary board manager to protect property and lives.
(Code 1975, § 25-16)

**Sec. 118-66. City not liable for damage.**

Neither the city nor the sanitary board shall be liable for any damage resulting from bursting of any sewer main, service pipe or valve, or from discontinuing the operation of its sewer collection, treatment and disposal facilities, for repairs, extensions or connections, or from the accidental failure of the sewage collection, treatment and disposal facilities from any cause whatsoever. In cases of emergency, the sanitary board shall have the right to restrict the use of its sewage collection, treatment and disposal facilities in any reasonable manner for the protection of the city and its sewer system.
(Code 1975, § 25-17)

**Sec. 118-67. Tampering with sewer appurtenances.**

No person shall turn, lift, remove, raise or tamper with any cover or any manhole, basin, inlet or other appurtenance of any public storm sewer without a written permit from the city engineer, or of any combined sewer or sanitary sewer without a written permit from the sanitary board.
(Code 1975, § 25-18)

**Sec. 118-68. Entering sewer.**

No person, other than one employed by the city in the street and sewer department while on duty, shall enter any public storm sewer or appurtenance without a written permit from the city engineer, or shall enter any public combined sewer or sanitary sewer without a written permit from the sanitary board.
(Code 1975, § 25-19)

**Sec. 118-69. Injury to sewer.**

No person shall break or damage any public sewer or appurtenance or part.
(Code 1975, § 25-20)

**Sec. 118-70. Matter not to be thrown into sewer.**

No person shall throw or deposit in or upon any public sewer or any trap, basin, inlet, grating, manhole or other appurtenance of any public sewer in the city any sticks, stones, brick, earth, gravel, dirt, mud, hay, straw, manure, rubbish, litter, sweepings, offal, vegetables, garbage other than properly shredded garbage from an approved disposal device, trees, shrubs, branches, twigs, leaves, papers, rags, oils, grease, gasoline, benzene, cinders or refuse matter of any kind.
(Code 1975, § 25-21)

**Sec. 118-71. Introducing into sewer hot, corrosive or explosive substances.**

No person shall make or maintain any connection with any public sewer or appurtenance whereby there may be conveyed into the sewer any hot, suffocating, corrosive, flammable or explosive liquid, gas, vapor, substance or material of any kind; and no person shall cause to enter or flow into any public sewer or appurtenance any hot, corrosive, suffocating, flammable or explosive liquid, gas, vapor, substance or material of any kind; however, the provisions of this section shall not apply to water from ordinary hot-water broilers of residences.
(Code 1975, § 25-22)

**Sec. 118-72. Obstruction.**

No person shall obstruct, impede or cause to be impeded or obstructed the flow of any public sewer, nor interfere with its free discharge or ventilation, nor clog up such sewer or any appurtenance.
(Code 1975, § 25-23)

**Sec. 118-73. License required to engage in business of laying or constructing sewers or drainways.**

(a) It shall be unlawful for any person to engage in the business of laying or constructing sewers or drainways in, under or upon any of the

streets, sidewalks or public highways of the city without having first annually secured from the sanitary board a license, paying for such license the sum of $25.00.

(b) No such license shall be issued until the sanitary board is satisfied of the reliability and capacity of the applicant to do and perform in a good and workmanlike manner the particular form, class or kind of work that shall be specified in the application for license for any or all of the purposes set forth in this section, and until the applicant shall also have given any bond required by any other ordinance of the city in relation to such matters.
(Code 1975, § 25-24)

### Sec. 118-74. Certain buildings required to have sanitary water closets, connected to sanitary sewer or sanitary septic tanks.

(a) Subject to the provisions of section 118-76, each inhabitable building or structure in the city or beyond the city limits for a distance of one mile used or intended for use for residential, commercial, industrial or institutional purposes or wherein persons are employed or congregate or are intended to be employed or congregate shall be provided by the owner, occupant or person in charge, at his own expense, with one or more sanitary flush toilets, in such number as to be reasonably sufficient to accommodate the number of persons usually resident, employed or congregating; and where persons of both sexes are employed or congregate, there shall be not less than one such sanitary water closet, enclosed so as to ensure privacy, for each sex; and such toilets shall, at the expense of the owner, occupant or person in charge of the premises, be connected to a sanitary sewer when required by section 118-61 or, if a sewer is not available under the provisions of that section, then such connection shall be made to a sanitary septic tank.

(b) It shall be unlawful for any owner or agent to put any person in possession of any building, or any part, not provided with water closet accommodations except a watchman for the purpose of guarding such building or part.
(Code 1975, § 25-28)

**Charter reference—**Authority to require connection with sewer system, § 48.

**Cross reference—**Buildings and building regulations, ch. 14.

**State law reference—**Authority to require connections, W. Va. Code § 8-18-22.

### Sec. 118-75. Septic tank permits and requirements.

(a) No person shall construct, install or maintain a septic tank within the city or beyond the city limits for a distance of one mile except pursuant to a permit issued by the health commissioner. Before issuing any such permit, the health commissioner shall cause an investigation to be made to determine:

(1) The availability or nonavailability of a public sanitary or combined sewer;

(2) Whether or not the property is such that a septic tank meeting the requirements and specifications of the state department of health can be installed;

(3) Whether or not the location, construction and type of septic tank proposed to be installed meets the requirements of the state department of health; and

(4) What, if any, additional requirements and restrictions should be specified in the permit to promote the public health and safety and the health and safety of those resident or congregating on the premises.

(b) No septic tank shall be constructed, installed or maintained within the city or beyond the city limits for a distance of one mile that fails to comply with all the requirements of the state department of health and the Kanawha-Charleston combined board of health.
(Code 1975, § 25-29)

### Sec. 118-76. Certain premises required to have privies; privy permits; requirements as to privies.

(a) Each premises within the city or beyond the city limits for a distance of one mile upon which there is erected an inhabitable building or structure used or intended for use for residential, commercial, industrial or institutional purposes or wherein persons are employed or congregate or are intended to be employed or congregate, for which premises no sanitary sewer is available under the provisions of section 118-61, and the health commissioner having determined that such premises is unsuitable for a sanitary septic tank, shall be provided by the owner, occupant or person in charge thereof, at his own expense, with a sanitary privy meeting all the requirements and specifications of the state board of health and of the Kanawha-Charleston combined board of health.

(b) Each person who, by subsection (a) of this section, is required to provide a sanitary privy upon any premises shall first apply to and obtain from the health commissioner a permit to do so; and the health commissioner, before issuing such permit, shall cause an investigation to be made to determine:

(1) The availability or nonavailability of a public sanitary or combined sewer;

(2) Whether or not the property is such that a septic tank meeting the requirements and specifications of the state board of health can be installed;

(3) Whether or not the location, construction and type of privy proposed to be installed meets the requirements and specifications of the state board of health; and

(4) What, if any, additional requirements and restrictions should be specified in the permit to promote the public health and safety and the health and safety of those resident or congregating on the premises.

(c) No privy shall be constructed, installed or maintained within the city or beyond the city limits for a distance of one mile that fails to comply with all the requirements of the state department of health and the Kanawha-Charleston combined board of health.
(Code 1975, § 25-30)

**State law reference—**Excreta disposal systems required to conform to plans, specifications and instructions of state department of health, W. Va. Code § 16-1-9.

### Sec. 118-77. Sewage disposal by broad irrigation, subsoil irrigation.

No person shall construct or maintain any system of sewage disposal by means prohibited or not authorized by the state department of health or the Kanawha-Charleston combined board of health.
(Code 1975, § 25-31)

### Sec. 118-78. Responsibility for and requirements concerning installation and maintenance of sanitary facilities.

(a) Owners, occupants and persons in charge of premises within the city or beyond the city limits for a distance of one mile shall be jointly and severally responsible for the proper construction, installation and maintenance of all water closets, septic tanks and privies upon their respective premises to the end that they shall at all times be in a suitable state of repair and working condition; free of leaks, seepage and offensive odors; flyproof and rodentproof, in compliance with all applicable provisions of state department of health and Kanawha-Charleston combined board of health requirements; free of health and safety hazards; and so as not to constitute a nuisance to the public or to any individual.

(b) Septic tanks and privies, where required or permitted, shall be of such types and constructed, installed and maintained at such locations and in such manner as specified by the health commissioner; and they shall be repaired and cleaned from time to time as it becomes necessary and in such manner and by such means as specified by the health commissioner in conformity with the requirements of the state department of health and the Kanawha-Charleston combined board of health.
(Code 1975, § 25-32)

**Sec. 118-79. Abatement of violations.**

Any water closet, septic tank or privy and any appendage to and any conduit to or from such property which is constructed, installed or maintained in violation of any requirement of this article or of the city building code or any collateral building code shall be, by the owner, occupant or person in charge of the premises, at his own expense, made to conform to such requirement when notified to do so by the health commissioner or by the building commissioner or by any police officer; and if any such owner, occupant or person in charge fails to comply with any such notice within ten days after service in any manner authorized by law, such violation shall be deemed to constitute a nuisance; and the city manager, upon notification by the health commissioner, building commissioner or police officer, as the case may be, shall proceed to abate such nuisance pursuant to the provisions of section 47 of the city's Charter; and a lien shall attach to the property whereupon such nuisance exists, as provided in section 47 of the city's Charter.
(Code 1975, § 25-33)

**Sec. 118-80. Removal of contents of privies, cesspools and septic tanks; transportation over city streets; final disposition.**

(a) No part of the contents of any privy, septic tank or cesspool shall be removed from, nor shall any such contents be transported through or over any of the streets of the city unless they shall be removed or transported by means of airtight apparatus, or other process, so as to prevent the contents from being agitated or exposed to the open air during the process of such removal or transportation. The work shall be done by competent scavengers who have a permit from the health commissioner.

(b) The contents of such privies, septic tanks or cesspools, removed in conformity with this section, shall be disposed of at the city sewage disposal plant.
(Code 1975, § 25-34)

**Sec. 118-81. Unlawful deposit of fecal matter.**

No person shall deposit any human fecal matter in any place except in some properly constructed and lawful water closet or privy; nor shall any person, having removed the contents or any part of the contents, of any privy or septic tank in the city, deposit it in any place other than the city sewage disposal plant.
(Code 1975, § 25-35)

**Sec. 118-82. Professional cleaners of septic tanks and privies.**

It shall be unlawful for any person other than such as shall be authorized by the health commissioner to clean for pay any privy, septic tank or cesspool in the city. This authority shall be granted by the health commissioner, upon application, to any person who is properly equipped as to apparatus or means of disposal for performing the work to be done.
(Code 1975, § 25-36)

**Secs. 118-83—118-100. Reserved.**

DIVISION 2. TAPS

**Sec. 118-101. Permit for connection; tapping charge.**

(a) It shall be unlawful for any person, whether property owner, drainlayer or otherwise, to connect with or tap a city sewer, either directly or indirectly, without first having a permit from the sanitary board and having paid the assessment or the tapping or maintenance charge fixed by law. In all cases, except when a sewer is constructed in accordance with and under the provisions of section 62 or section 62(a) of the city's Charter, the tapping and maintenance charges for tapping a city sewer shall be as specified from time to time by the city council in an appropriate schedule, which shall be maintained on file in the office of the city clerk; and until such a schedule is prescribed by the city council pursuant to the provisions of this section, the tapping and maintenance charges for city sewers shall be those in effect immediately prior to the effective date of this Code.

(b) All sewer tapping and maintenance charges shall be paid into the special sewer fund and be applied to the purposes of such fund.
(Code 1975, § 25-3)

### Sec. 118-102. Tapping or opening sewer without permit.

No person shall cut, break, pierce or tap any public sewer or appurtenance or introduce any tube, pipe, trough or conduit into any public sewer or appurtenance without a written permit from the sanitary board.
(Code 1975, § 25-4)

### Sec. 118-103. Sewer taps only by authorized persons.

No person, except those persons duly employed or authorized by the city or by the sanitary board for such purpose, shall tap the city's sewer mains.
(Code 1975, § 25-5)

### Sec. 118-104. Approval of connections by city inspector.

(a) No sewer service shall be connected until the plumbing and incident connections shall have been inspected and approved by an inspector of the sanitary board.

(b) No new sewer service line shall be connected to the sanitary sewer system after March 15, 1981, if that service line will contain flows other than sanitary wastewater. Roof drains, yard and area drains, footer drains or any line other than that which serves a sanitary plumbing system are prohibited from connection to the sanitary board system.
(Code 1975, § 25-6)

### Secs. 118-105—118-120. Reserved.

## DIVISION 3. SANITARY BOARD*

### Sec. 118-121. Created; powers and duties; composition; appointment and term of members.

There is created in and for the city a sanitary board, which shall be charged with the custody, supervision, control, administration, operation and maintenance of the municipal sewer system, all as permitted and provided by W. Va. Code ch. 16, art. 13 (W. Va. Code § 16-13-1 et seq.). The sanitary board shall be composed of the mayor and two persons appointed by the city council, one of whom shall be a registered professional engineer; provided that when no city sewer is under construction, a registered professional engineer need not be a member of the board. The two appointed members of the board shall each serve for a term of three years and until the successor of each is duly appointed and has qualified, and vacancies shall be filled for the unexpired term only.
(Code 1975, § 25-25)

### Sec. 118-122. Officers; salaries; bond of treasurer.

(a) The sanitary board shall elect a vice-chair from its members and shall designate a secretary and treasurer (who may be one and the same person) who need not be members of the board and who shall hold office at the will of the board.

(b) Each member of the board, other than the mayor, shall receive such salary as may be provided from time to time by the city council and shall be entitled to payment for his reasonable expenses incurred in the performance of his duties.

(c) The secretary and treasurer shall be paid such reasonable compensation for services as from time to time may be fixed by the city council; and the treasurer shall give bond, with qualified corporate surety, in the amount of $5,000.00 or such other amount as the council may require, conditioned for the proper application of all moneys received by him as such and for the faithful performance of the duties of his office.

(d) All compensation and all expense incurred by the sanitary board, its officers and employees shall be paid solely from funds authorized to be collected and received by the board as provided by W. Va. Code ch. 16, art. 13 (W. Va. Code § 16-13-1 et seq.).
(Code 1975, § 25-26)

**Cross reference—**Officers and employees, § 2-131 et seq.

*__Cross reference—__Boards, committees and commissions, § 2-511 et seq.

**State law reference—**Sanitary board, W. Va. Code § 16-13-18.

**Sec. 118-123. Powers and duties.**

(a) The construction, acquisition, improvement, equipment, custody, operation, maintenance and administration of all works for the collection, treatment or disposal of sewage within the city and in such other areas as may be within the jurisdiction of the sanitary board which shall be acquired, constructed, operated or maintained by the sanitary board, the employment of all engineers, architects, inspectors, superintendents, manager, collectors, attorneys and other employees in the judgment of the board necessary to the execution of its powers and duties, and the collection of all revenues from the works acquired, constructed, operated or maintained by it, shall be under the supervision and control of the board.

(b) In addition to the authority and powers enumerated in this section, the sanitary board shall be invested with all other powers and authorities provided for such boards by W. Va. Code ch. 16, art. 13 (W. Va. Code § 16-13-1 et seq.).
(Code 1975, § 25-27)

**Secs. 118-124—118-140. Reserved.**

DIVISION 4. RATES AND CHARGES

**Sec. 118-141. Adoption of certain rules and regulations and establishment of a schedule of just and equitable rates or charges; use of water meters.**

For the operation of the system and for the payment of proper and reasonable expense of operations, repair, replacements, improvements, additions, betterments, extensions, and maintenance of the sewer system and for the payment of the sums required to pay the principal and interest of all sewer revenue bonds as the same become due, there is hereby established rules and regulations and a schedule of just and equitable rates or charges for the use of the sanitary board, which rules and regulations and schedule of rates or charges, based upon the metered amount of water supplied the premises, or based upon reasonable methods if metered water documentation is not available, shall be as follows:

(1) *Rules and regulations.*

a. Rules and regulations for the government of sewerage utilities adopted by the Public Service Commission of West Virginia, and now in effect, and all amendments thereto, and modifications thereof hereafter made by said commission.

b. For all premises and locations having a private water supply (that is, a well, cistern, or other water source not provided and metered by a public or private water utility) and connected to the sewer system and works, and for all premises and locations otherwise connected to the sewer system and works (such as a sanitary board approved RV dump, or other domestic (non-industrial and non-commercial) sewerage collection facility), the minimum charge will be billed each month until such time as a metering method of the discharge from said premises or location is established.

c. If for any reason there be no record of the amount of water supplied to a metered premises any month, the minimum charge shall be billed for that month.

d. The water utility may adjust usage for reasons including hidden leaks, over-read meters, and public relations. Upon a customer-of-record's request for an adjustment, the sanitary board will review the monthly meter information from the water utility and recommend an adjustment, if necessary. In cases where the meter information cannot be used, the customer-of-record's monthly use will be estimated from the average of the previous six-

month period. The sanitary board does not make public relations adjustments.

e. Users, the nature and character of whose use is such that the amount of water discharged into the sewer system is deemed by the sanitary board to be substantially less or more than the amount of metered water supplied the premises, may be charged for sewer service substantially on the basis of the amount of water discharged into the sewer system, as may be determined according to method(s) approved by the sanitary board.

f. The sanitary board does not make adjustments for water that is not returned to the sewer system, including water used for swimming pools, lawn watering, cooling towers, and coin laundries. The sanitary board does not allow deduct meters to be installed on the water line. A customer may install and maintain a separate water meter at his expense for water used but not returned to the sewer system.

g. sanitary board customers are not billed for the first 60 days of construction to allow a builder a grace period in order to connect a new facility to the sewer system. The 60-day period may be extended for good cause shown at the sole discretion of the sanitary board's General Manager.

h. Final approval of any adjustment is made by the sanitary board's finance manager. Adjustments in excess of $25.00 are paid within thirty (30) days. Adjustments under $25.00 are credited to the customer's account, unless the account is terminated.

i. In apartment buildings, mobile home courts, shopping centers and other places where more than one occupancy unit is served with water through one water meter, the customer shall be required to pay (1) the minimum monthly charge for each occupancy unit, or (2) actual metered water usage, whichever is greater.

(2) *Rates.*

a. For sewage that does not contain industrial waste:

| | |
|---|---|
| In excess of 2,000 gallons used per month, per thousand gallons. . | $14.26 |

b. For sewage that contains industrial waste:

1. Where the character of sewage from any manufacturing or industrial plant, building or premises is such that it imposes a burden upon the sewer system in addition to the burden imposed by domestic sewage entering the sewer system, the sanitary board may compel the owner, tenant or occupant of such manufacturing or industrial plant, building or premises to treat such sewage in such manner as shall be specified by the sanitary board before discharging into the sewer system. In the absence of such treatment sufficient to remove such additional burden, the charges for treatment of such sewage shall be as follows:

| | |
|---|---|
| Monthly service charge . . . . . | $10,000.00 |
| Volumetric treatment charge, per thousand gallons. | $6.50 |
| Biochemical oxygen demand (BOD) charge, per pound . . . . . | $0.65 |
| Total Suspended Solids (TSS) charge, per pound | $0.50 |

2. When an industrial user is to be served, a preliminary study of its waste, and the cost of transport and treatment thereof, will be made. Waste containing materials which, in the judgment of the sanitary board, should not be introduced into the sewer system, need not be handled by it. The results of this preliminary study will be used to determine the feasibility of the proposed sewer service.

(3) Minimum charge. No bill will be rendered for less than $26.06 for each month or fraction thereof, for usage of 2,000 gallons or less.

(4) *Recovery of bank charges.* If a bank or other financial institution returns a customer's check to the sanitary board and charges a fee to the sanitary board for such service, the fee charged will be added to the account of the customer whose check is returned.

(5) *Pretreatment charge.* In addition to all other charges contained herein, all customers who operate under a pretreatment permit will pay an annual charge of $2,500.00, payable on July 1 of each year.

(6) Disconnect, lien, and reconnect fees. If the sanitary board gives notice to a provider of water service to disconnect water service to a customer of the sanitary board, the following charges will be added to the account of such customer:

a. A charge equal to that imposed upon the sanitary board by the water service provider, plus any legally required certified mail charge, will be added to such customer's account at the time notice to disconnect is given to the water provider.

b. A charge equal to the filing fee to cover the cost of placing a lien on the property served will be added to the account of such customer at the time such lien is filed in the office of the clerk of the county commission of the county where the property served is located.

c. A reconnect charge equal to that imposed upon the sanitary board by the water service provider will be made at the time the customer pays the amounts due on such customer's account and requests the reconnection of water and sewer service.

(7) *New service fee.* A new service fee equal to the greater of $250.00 or the sanitary board's actual cost of making the connection shall be paid before sewer service can be obtained at any location not previously connected to the sanitary board's collection system.

(8) *Delayed payment penalty.* On all current usage billings not paid in full by the latest pay date, which shall be no sooner than the 20th day following the date the sanitary board mails the bill, ten percent will be added to the net current amount unpaid. This delayed payment penalty is not interest and is to be collected only once for each bill where it is appropriate.

(9) *Grease trap charge.* In addition to all other charges contained herein, all customers who are required by the sanitary board to install a grease trap shall pay an annual charge of $450.00, payable on July 1 of each year.

(Ord. No. 7034, § 1, 1-20-2004; Bill No. 7320, 2-19-2008; Bill. No. 7502, 11-21-2011; Bill No. 7674, 11-16-2015)

### Sec. 118-142. Established rates applicable to premises subsequently served.

The rates or charges so established for any class of users or property served shall be extended to cover any additional premises served which fall within the same class, without the necessity of any hearing or notice.

(Code 1975, § 25-8)

**Sec. 118-143. City subject to established rates or charges.**

The city shall be subject to the established charges and rates, or to charges and rates established in harmony with such charges and rates, for service rendered the city and shall pay such rates or charges when due from corporate funds, which shall be deemed to be a part of the revenues of the sewer system and works and be applied as provided for the application of such revenues.
(Code 1975, § 25-9)

**Sec. 118-144. Authority vested in sanitary board for billing and collection.**

All rates or charges provided for by this division shall be billed and collected monthly by the sanitary board or by persons or agencies authorized by the board. All bills shall be considered due and payable on or before the tenth day following the date rendered. The sanitary board may make arrangements to perform monthly billing service of the fire service charge and the waste disposal fee under an arrangement for equitable sharing of costs of billing.
(Code 1975, § 25-10; Ord. No. 6003, § 25-10, 5-16-1994)

**Sec. 118-145. Lien for enforcement of collection of billed rates or charges.**

All such rates or charges, if not paid when due, shall be a lien upon the premises served by such system or works; and if such rates or charges are not paid within 30 days after due, the amount, together with a penalty of ten percent and a reasonable attorney's fee, may be recovered by the sanitary board in a civil action in the name of the city. In connection with such action, such lien may be foreclosed against such lot, parcel of land or building in accordance with related laws.
(Code 1975, § 25-11)

**Sec. 118-146. Duration of liability for sewer service.**

Liability for service shall begin as to all users on the date of connection to the sewer system, and such liability shall continue thereafter unless such premises are disconnected from the sewer system with the approval of the sanitary board. After such liability begins, no allowance shall be made for vacant houses unless request in writing to have the sewer system shut off is received by the board, nor will any allowance be made for any shut-off period which is less than 30 days.
(Code 1975, § 25-13)

**Secs. 118-147—118-170. Reserved.**

DIVISION 5. RESERVED*

**Secs. 118-171—118-200. Reserved.**

DIVISION 6. DISCHARGE RESTRICTIONS†

**Sec. 118-201. Definitions.**

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning. Terms not otherwise defined in this section shall be as adopted in the latest edition of 40 CFR 403.

*Act* or *the Act* means the Federal Water Pollution Control Act, also known as the Clean Water Act, as amended, 33 U.S. section 1251 et seq.

*Approved Authority* means the West Virginia Department of Environmental Protection.

*Authorized or duly authorized representative of the user* means:

(1) If the user is a corporation:

a. The president, secretary, treasurer, or a vice-president of the corporation in charge of a principal business function, or any other person who performs similar policy or decision-making functions for the corporation; or

b. The manager of one or more manufacturing, production, or operating facilities, provided the manager is authorized to make management decisions that govern the operation of the regulated facility including having the explicit or implicit duty of making major capital investment recommendations, and initiate and direct other comprehensive measures to assure long-term environmental compliance with environmental laws and regulations, can ensure that the necessary systems are established or actions taken to gather complete and accurate information for industrial user discharge permit requirements, and where authority to sign documents has been assigned or delegated to the manager in accordance with corporate procedures.

(2) If the user is a partnership or sole proprietorship; a general partner or proprietor, respectively.

(3) If the user is a federal, state, or local governmental facility: a director or highest official appointed or designated to oversee the operation and performance of the activities of the government facility, or their designee.

(4) The individuals described in paragraphs a through b, above, may designate a duly authorized representative if the authorization is in writing, the authorization specifies the individual or position responsible for the overall operation of the facility from which the discharge originates or having overall responsibility for environmental matters for the company, and the written authorization is submitted to the board.

*Biochemical oxygen demand* or *BOD* means the quantity of oxygen utilized in the biochemical oxidation of organic matter under standard laboratory procedures for five days at 20 degrees centigrade, usually expressed as a concentration (e.g., mg/l).

*Best management practices* or *BMPs* means the schedules of activities, prohibitions of practices, maintenance procedures, and other management practices to implement the prohibitions consistent with WVDEP rules and policy or listed in section 118-203(a) and (b) [40 CFR 403.5(a)(1) and (b)]. BMPs include treatment requirements, operating procedures, and practices to control plant site runoff, spillage or leaks, sludge or waste disposal, or drainage from raw materials storage.

*__Editor's note—__Ord. No. 7596, adopted Sept. 16, 2013, repealed former Div. 5, §§ 118-171—118-185, in its entirety which pertained to general discharge restrictions and derived from Bill. No. 6877, §§ 25-37—25-51, adopted Feb. 19, 2002.

†__Editor's note—__Ord. No. 7596, adopted Sept. 16, 2013, repealed former Div. 6, §§ 118-201—118-214 in its entirety and enacted new provisions as herein set out. Former Div. 6 pertained to industrial discharges and derived from Ord. No. 5076, §§ 1—14, adopted 2-7-1994; Bill No. 7377, 4-6-2009.

*Categorical Industrial User* means an Industrial User subject to a Categorical Pretreatment Standard or Categorical Standard.

*Categorical pretreatment standard* or *categorical standard* means any regulation containing pollutant discharge limits promulgated by EPA in accordance with sections 307(b) and (c) of the Act (33 U.S.C. section 1317) that apply to a specific category of Users and that appear in 40 CFR Chapter 1, Subchapter N, Parts 405—471. *Charleston Sanitary Board*, *sanitary board*, *CSB*, or *board* means the Sanitary Board of the City of Charleston, West Virginia or its authorized agent.

*City* means the City of Charleston, West Virginia.

*Control authority* means the City of Charleston, West Virginia.

*Chemical oxygen demand* or *COD* means a measure of oxygen required to oxidize all compounds, both organic and inorganic, in water.

*Daily maximum* means the arithmetic average of all effluent samples for a pollutant collected during a calendar day.

*Daily maximum limit* means the effluent limit establishing the maximum allowable discharge of a pollutant during a calendar day. Where daily maximum limits are expressed in units of mass, the daily discharge is the total mass discharged over the course of the day. Where daily maximum limits are expressed in terms of a concentration, the daily discharge is the arithmetic average measurement of the pollutant concentration derived from all measurements taken that day.

*Domestic wastes* means liquid wastes from the noncommercial preparation, cooking and handling of food, or containing human excrement and similar matter from the sanitary conveniences of dwellings, commercial buildings, industrial facilities and institutions.

*Environmental Protection Agency or EPA* means the United States Environmental Protection Agency or, where appropriate, the administrator, regional administrator, or other duly authorized official of said agency.

*Existing source* means any source of discharge that is not a new source.

*Garbage* means solid wastes from the domestic and commercial preparation, cooking and dispensing of food, and from the handling, storage and sale of food.

*General manager* means the general manager of the board or her/his duly appointed deputy, agent or representative.

*Grab sample* means a sample that is taken from a wastestream without regard to the flow in the wastestream and over a period of time not to exceed fifteen minutes.

*Grease trap permit* means a permit issued by the board in accordance with this article authorizing a non-household establishment to prepare, cook, or handle food and discharge its wastewater into the publically owned treatment works (POTW).

*Hauler discharge permit* means a permit issued by the board in accordance with this article authorizing the user to dispose of trucked or hauled wastewater at the POTW at 208 26th Street in the city.

*Indirect discharge* means the introduction of pollutants into the POTW from any nondomestic source.

*Industrial user* means any User other than a user who discharges only domestic wastewater.

*Industrial user discharge permit* means a permit issued by the board in accordance with this division authorizing the industrial user to discharge industrial wastewater to the POTW.

*Industrial wastewater* means the liquid wastes resulting from the processes employed in industrial, manufacturing, trade or business establishments, as distinct from domestic wastes.

*Instantaneous limit* means the maximum concentration of a pollutant allowed to be discharged at any time, determined from the analysis of any discrete or composited sample collected, independent of the industrial flow rate and the duration of the sampling event.

*Interference* means a discharge which, alone or in conjunction with a discharge from other sources,

inhibits or disrupts the POTW, its treatment processes or operations or its sludge processes, use or disposal; and therefore, is a cause of a violation of its NPDES permit or the prevention of sewage sludge use or disposal in compliance with any of the following statutory/regulatory provisions or permits issued under such acts: section 405 of the Act; the Solid Waste Disposal Act, including Title II commonly referred to as the Resource Conservation and Recovery Act (RCRA); any state regulations contained in any state sludge management plan prepared pursuant to subtitle D of the Solid Waste Disposal Act; the Clean Air Act; the Toxic Substances Control Act; and the Marine Protection, Research and Sanctuaries Act.

*Local limit* means specific discharge limits established by and enforced by the board upon industrial or commercial facilities to implement the general and specific discharge prohibitions established by the West Virginia Department of Environmental Protection (WVDEP) or contained in applicable EPA regulations.

*Medical waste* means isolation wastes, infectious agents, human blood and blood products, pathological wastes, sharps, body parts, contaminated bedding, surgical wastes, potentially contaminated laboratory wastes, and dialysis wastes.

*Monthly average* means the sum of all "daily discharges" measured during a calendar month divided by the number of "daily discharges" measured during that month.

*Monthly average limit* means the highest allowable average of "daily discharges" over a calendar month, calculated as the sum of all "daily discharges" measured during a calendar month divided by the number of "daily discharges" measured during that month.

*National Pollutant Discharge Elimination System or NPDES* means the program for issuing, conditioning and denying permits for the discharge of pollutants from point sources into the navigable waters, the contiguous zone and the oceans pursuant to section 402 of the Act.

*New source* means:

(1) Any building, structure, facility, or installation from which there is (or may be) a discharge of pollutants, the construction of which commenced after the publication of proposed pretreatment standards under section 307(c) of the Act that will be applicable to such source if such standards are thereafter promulgated in accordance with that section, provided that:

a. The building, structure, facility, or installation is constructed at a site at which no other source is located; or

b. The building, structure, facility, or installation totally replaces the process production equipment that causes the discharge of pollutants at an existing source; or

c. The production or wastewater generating processes of the building, structure, facility, or installation are substantially independent of an existing source at the same site. In determining whether these are substantially independent, factors such as the extent to which the new facility is integrated with the existing plant, and the extent to which the new facility is engaged in the same general type of activity as the existing source, should be considered.

(2) Construction on a site at which an existing source is located results in a modification rather than a new source if the construction does not create a new building, structure, facility, or installation meeting the criteria of subsection (1) b, or c of this section {definition] but otherwise alters, replaces, or adds to existing process or production equipment.

(3) Construction of a new source as defined under this paragraph has commenced if the owner or operator has:

a. Begun, or caused to begin, as part of a continuous onsite construction program (i) any placement, assembly, or installation of facilities or equipment; or (ii) significant site preparation work including clearing, excavation, or removal of existing buildings, structures, or facilities which is nec-

essary for the placement, assembly, or installation of new source facilities or equipment; or

b. Entered into a binding contractual obligation for the purchase of facilities or equipment which are intended to be used in its operation within a reasonable time. Options to purchase or contracts which can be terminated or modified without substantial loss, and contracts for feasibility, engineering, and design studies do not constitute a contractual obligation under this paragraph.

*Noncontact cooling water* means water used for cooling that does not come into direct contact with any raw material, intermediate product, waste product, or finished product.

*Operator* means the person responsible for the overall operation of a facility.

*Owner* means a person who owns a facility or part of a facility.

*Pass through* means a discharge which exits the POTW into waters of the United States in quantities or concentrations which, alone or in conjunction with a discharge or discharges from other sources is a cause of a violation of a requirement of the POTW's NPDES permit, including an increase in the magnitude or duration of a violation.

*Person* means any individual, partnership, joint venture, firm, company, corporation, association, joint stock company, trust, estate, governmental entity, or any other legal entity; or their legal representatives, agents, or assigns. This definition includes all federal, state, and local governmental entities.

*pH* means a measure of the acidity or alkalinity of a solution, expressed in standard units.

*Pollutant* means dredged spoil, solid waste, incinerator residue, filter backwash, sewage, garbage, sewage sludge, munitions, medical wastes, chemical wastes, biological materials, radioactive materials, heat, wrecked or discarded equipment, rock, sand, cellar dirt, municipal, agricultural and industrial wastes, and certain characteristics of Wastewater (e.g., pH, temperature, TSS, turbidity, color, BOD, COD, toxicity, or odor).

*Pretreatment* means application of physical, chemical and biological processes to reduce the amount of pollutants in or alter the nature of the pollutant properties in Wastewater prior to discharging such wastewater into the POTW.

*Pretreatment standard* means all applicable federal rules and regulations implementing section 307 of the Act, as well as any nonconflicting state or local standards. In cases of conflicting standards or regulations, the more stringent shall be applied.

*Sewage* means human excrement and gray water (household showers, dishwashing operations, etc.).

*Significant industrial user (SIU)* means:

(1) All dischargers subject to Categorical Pretreatment Standards under 40 CFR chapter I, subchapter N; and

(2) All noncategorical dischargers that, in the opinion of the general manager, have a reasonable potential to adversely affect the POTW operation, or that contribute a process waste stream which makes up five percent or more of the average dry weather hydraulic or organic capacity of the POTW treatment plant, or that discharge an average of 25,000 gallons per day or more of process wastewater to the POTW. However, the general manager need not designate as significant any noncategorical industrial user that, in the opinion of the board and with the agreement of the approval authority, has no potential for adversely affecting the POTW's operation or for violating any pretreatment standard or requirement. Any noncategorical industrial users designated as significant may petition the board to be deleted from the list of significant industrial users on the grounds that it has no potential for adversely affecting the POTW's operation or violating any pretreatment standard or requirement.

*Slug load* or *slug discharge* means any discharge at a flow rate or concentration, which could cause a violation of the prohibited discharge standards of this division. A slug discharge is any discharge of a non-routine, episodic nature, including but not limited to an accidental spill or a non-customary batch discharge, which has a reasonable potential to cause interference or pass through, or in any other way violate the POTW's regulations, local limits or permit conditions.

*Stormwater* means any flow occurring during or immediately following any form of natural precipitation and resulting from such precipitation, including snowmelt.

*Total suspended solids* or *suspended solids* means the total suspended matter that floats on the surface of, or is suspended in, water, wastewater, or other liquid, and that is removable by laboratory filtering.

*Unpolluted water* means water not containing any pollutants limited or prohibited by the effluent standards in effect, or water whose discharge will not cause any violation of receiving water quality standards.

*User* means any person who discharges, causes or permits the discharge of wastewater into the POTW.

*Wastewater* means the liquid and water-carried industrial or domestic wastes from dwellings, commercial buildings, industrial facilities and institutions, together with any groundwater, surface water and stormwater that may be present, whether treated or not, which is discharged into or permitted to enter the POTW.

*Wastewater treatment plant* or *treatment plant* means that portion of the POTW which is designed to provide treatment of user discharges.

*Wastewater treatment system (system)* or *POTW* means any devices, facilities, structures, equipment or works owned or used by the board for the purpose of the transmission, storage, treatment, recycling and reclamation of user discharges, or ultimate disposal of residues resulting from such treatment, including intercepting sewers, outfall sewers, sewage collection systems, pumping, power, and other equipment, and their appurtenances, extensions, improvements, remodeling, additions, and alterations.
(Ord. No. 7596, 9-16-2013)

**Sec. 118-202. Applicability.**

This division shall apply to all users of the POTW that discharge directly or indirectly into the POTW, regardless of whether such users are located inside or outside the city limits and regardless of whether such users are customers of another sewer utility. This article enables the board to comply with all applicable state and federal laws, including the Clean Water Act (33 United States Code Section 1251 et seq.) and its applicable regulations. This article establishes limitations on discharges to the POTW; authorizes the issuance of permits; provides for monitoring, compliance and enforcement activities; establishes administrative review procedures; and requires user reporting.

(a) The objectives of this division are:

(1) To prevent the introduction of pollutants into the POTW that will interfere with its operation;

(2) To prevent the introduction of pollutants into the POTW that will pass through the POTW, inadequately treated, into receiving waters, or otherwise be incompatible with the POTW;

(3) To protect both POTW personnel who may be affected by wastewater and sludge in the course of their employment, and the general public;

(4) To promote reuse and recycling of wastewater and sludge from the POTW;

(5) To enable the POTW to comply with its NPDES permit conditions, sludge use and disposal requirements, and any other federal or state laws to which the POTW is subject; and

(6) To provide for fees for the distribution of the cost of operation, maintenance, and improvement of the POTW.

Unless otherwise provided herein, the board shall administer, implement and enforce the provisions of this division.

(b) *Abbreviations*. The following abbreviations, when used in this article, shall have the designated meanings:

| | |
|---|---|
| BOD | Biochemical oxygen demand |
| BMP | Best management practice |
| BMR | Baseline monitoring report |
| CFR | *Code of Federal Regulations* |
| CIU | Categorical industrial user |
| COD | Chemical oxygen demand |
| CSB | The Sanitary Board of the City of Charleston, West Virginia |
| EPA | U.S. Environmental Protection Agency |
| gpd | gallons per day |
| IU | Industrial user |
| mg/l | milligrams per liter |
| NPDES | National Pollutant Discharge Elimination System |
| NSCIU | Non-significant categorical industrial user |
| POTW | Publicly owned treatment works |
| RCRA | Recourse Conservation and Recovery Act |
| SIU | Significant industrial user |
| SNC | Significant noncompliance |
| TSS | Total suspended solids |
| U.S.C. | United States Code |
| WVDEP | West Virginia Department of Environmental Protection |

(Ord. No. 7596, 9-16-2013)

### Sec. 118-203. Prohibitions and limitations on wastewater discharges.

(a) *Prohibitions on wastewater discharges*. No user shall introduce or cause to be introduced into the POTW any pollutant or wastewater which: will cause pass through or interference; are not susceptible to treatment or interferes with the process or efficiency of the POTW; constitute a hazard to human or animal life, or to the watercourse receiving the treatment plant effluent; violate pretreatment standards and requirements; or cause the POTW to violate its NPDES permit or applicable receiving water standards. These general prohibitions apply to all users of the POTW whether or not they are subject to categorical pretreatment standards or any federal, state, or local pretreatment standards or requirements.

(b) *Specific prohibitions.* In addition to subsection (a) of this section, no user shall introduce or cause to be introduced into the POTW the following pollutants, substances, or wastewater:

(1) *Oils and grease.*

a. Oil and grease concentrations or amounts from industrial facilities violating federal pretreatment standards;

b. Wastewater from industrial facilities containing floatable fats, wax, grease or oils;

c. Petroleum oil, nonbiodegradable cutting oil, or products of mineral oil origin, in amounts that will cause interference or pass through; or

d. Fats, oils, or greases of animal or vegetable origin in concentrations greater than 200 mg/l.

(2) *Explosive mixtures.* Liquids, solids or gases which by reason of their nature or quantity are or may be sufficient, either alone or by interaction with other substances, to cause fire or explosion or be injurious in any other way to the sewer facilities or to the operation of the system. At no time shall two successive readings on an explosion hazard meter, at the point of discharge into the POTW, be more than five percent nor any single reading over ten percent of the lower explosive limit (L.E.L.) of the meter. Wastewater with a closed cup flashpoint of less than 140 degrees Fahrenheit (using test methods specified

in 40 CFR 261.21) is prohibited. Prohibited materials include but are not limited to, gasoline, kerosene, naphtha, benzene, toluene, xylene, ethers, alcohols, ketones, aldehydes, peroxides, chlorates, perchlorates, bromates, carbides, hydrides and sulfides.

(3) *Noxious material.* Noxious or malodorous solids, liquids or gases which, either singly or by interaction with other wastes, are capable of creating a public nuisance or hazard to life, or are or may be sufficient to prevent entry into a sewer for its maintenance and repair.

(4) *Improperly shredded garbage.* Garbage that has not been ground or comminuted to such a degree that all particles will be carried freely in suspension under flow conditions normally prevailing in the public sewers, with no particle greater than one-half inch in dimension.

(5) *Radioactive wastes.* Radioactive wastes or isotopes of such half-life or concentration that they do not comply with regulations or orders issued by an appropriate authority having control over their use and which will or may cause damage or hazards to the sewer facilities or personnel operating the system.

(6) *Solid or viscous wastes.* Solid or viscous wastes which will or may cause obstruction to the flow in a sewer, or otherwise interfere with the proper operation of the POTW. Prohibited materials include but are not limited to grease, uncomminuted garbage, animal guts or tissue, paunch manure, bones, hair, hides or fleshings, entrails, whole blood, feathers, ashes, cinders, sand, spent lime, stone or marble dust, metal, glass, straw, shavings, grass clippings, rags, spent grains, spent hops, wastepaper, wood, plastic, tar, asphalt residues from refining processing of fuel or lubricating oil, and similar substances.

(7) *Excessive discharge rate.* Wastewater at a flow rate or containing such concentrations or quantities of pollutants that exceeds for any time period longer than 15 minutes more than five times the average 24-hour concentration, quantities or flow during normal operation and that would cause a treatment process upset and subsequent loss of treatment efficiency.

(8) *Toxic substances.* Any toxic substances in amounts exceeding standards promulgated by the administrator of the EPA pursuant to Section 118-307(a) of the Act, and chemical elements or compounds, phenols or other taste- or odor-producing substances, or any other substances which are not susceptible to treatment or which may interfere with the biological processes or efficiency of the POTW, or that will pass through the Treatment Plant.

(9) *Unpolluted waters.* Any unpolluted water, including but not limited to water from cooling systems or of stormwater origin, which will increase the hydraulic load on the POTW.

(10) *Discolored material.* Wastewater which imparts color which cannot be removed by the treatment process and/or interferes with the POTW's ultraviolet disinfection process, such as, but not limited to, dye wastes, vegetable tanning solutions and dissolved solids, which consequently imparts color to the Treatment Plant's effluent, thereby causing the POTW to violate its NPDES permit, or otherwise causing the POTW to violate its NPDES permit.

(11) *Corrosive wastes.*

a. Any wastes that will cause corrosion or deterioration of the treatment plant. All wastes discharged to the POTW must have a pH value in the range of five to ten standard units. Prohibited materials include but are not limited to acids, sulfides, concentrated chloride and fluoride compounds and substances which will react with water to form acidic substances.

b. Should at any time a user's discharge have a pH that will not be susceptible to treatment or interfere with the process of efficiency of the

treatment system, the board shall require the user to adjust pH prior to discharge.

(12) *Heated wastes.* Any heat in amounts which will inhibit biological activity in the wastewater treatment plant resulting in interference but in no case heat in such quantities that the temperature at the treatment plant influent exceeds 40 degrees Celsius (104 degrees Fahrenheit).

(13) *Pollutants, including oxygen-demanding pollutants (BOD, etc.).* Pollutants released in a discharge at a flow rate and/or pollutant concentration which, either singularly or by interaction with other pollutants, will cause interference with the POTW.

(14) *Trucked or hauled pollutants.* Trucked or hauled pollutants except at discharge points designated by the board in accordance with sections 118-203(d) or (j) of this division.

(15) Detergents, surface-active agents, or other substances which might cause excessive foaming in the POTW.

(16) Stormwater, surface water, ground water, artesian well water, roof runoff, subsurface drainage, swimming pool drainage, condensate, deionized water, noncontact cooling water, and unpolluted wastewater, unless specifically authorized by the general manager.

(17) Sludges, screenings, or other residues from the pretreatment of industrial wastes.

(18) Medical wastes, except as specifically authorized by the general manager in an industrial user discharge permit.

(c) *Local limits*. The board is authorized to establish local limits pursuant to 40 CFR 403.5(c).

(d) *Special agreements.* Nothing in this section shall be construed as preventing any special agreement or arrangement between the board and any user of the wastewater treatment plant whereby wastewater of unusual strength or character is accepted into the POTW and specially treated subject to any payments or user charges as may be applicable, provided that the objectives of the general pretreatment regulations and the provisions of this article are fulfilled. This subsection does not permit the waiver of federal categorical pretreatment standards and requirements.

(e) *Maximum allowable limits of industrial pollutants entering the POTW.*

(1) Limitations for pollutants that may cause pass through or inhibition or cause a degradation of sludge quality have been developed by the board. The limits are derived from a mass basis and are allocated on a mass proportion basis to each individual industrial user. Specific limitations for any industrial user shall be delineated in the industrial user discharge permit.

(2) The following specific total pollutant mass limitations are available to industrial users. The board reserves the right to keep in reserve a percentage of the total pollutant mass for future growth or expansion. Individual mass limitations are fractional amounts of the listed totals and are proportionally based on the individual industries' contributions. Pollutants not listed may be regulated by the board and limitations will be developed by the board and incorporated into the industrial user discharge permit.

| *Pollutant* | *Available for Industrial User* |
|---|---|
| Mercury (Hg) | 0.02 lbs/day |
| Zinc (Zn) | 10.1 lbs/day |
| Benzene | 50µg/L |
| Toluene | 50µg/L |
| Ethylbenzene | 50µg/L |
| Xylene | 50µg/L |
| Polynuclear Aromatic Hydrocarbons, each | 50µg/L |

(f) *State requirements.* State requirements and limitations on discharges shall apply in any case where they are more stringent than federal requirements and limitations or those in this article.

(g) *Right of revision.* The board reserves the right to seek, through revision to the City's Code, more stringent limitations or requirements on discharges to the POTW if deemed necessary to comply with the objectives of this article.

(h) *Excessive discharge or dilution.* No user shall ever increase the use of process water or, in any way, attempt to dilute a discharge as a partial or complete substitute for adequate treatment to achieve compliance with the limitations contained in the federal categorical pretreatment standards, or in any other pollutant-specific limitation developed by the city or state.

(i) *National categorical standards incorporated.* Upon the promulgation of federal categorical pretreatment standards for a particular industrial subcategory, the federal standard, if more stringent than limitations imposed under this article for sources in that subcategory, shall immediately supersede the limitations imposed under this article. The general manager shall notify all affected users of applicable reporting requirements under 40 CFR 403.12.

(j) *Trucked or hauled wastes.*

(1) Trucked or hauled Wastewater shall only be discharged at the treatment plant located at 208 26th Street. Discharge at any other location is strictly prohibited, except where another location is specified under special agreement pursuant to section 118-203(d).

(2) Such wastes shall not violate this section or the hauler's discharge permit.

(3) All waste haulers shall be required to obtain a hauler discharge permit and provide a waste manifest that shall contain:

a. Waste generator's name.

b. Waste generator's address.

c. Waste generator's phone.

d. Type of waste.

e. Volume of waste being hauled.

f. Certification statement signed by the driver.

(4) Industrial waste haulers must have approval from the board prior to transportation of a load.

(5) Waste haulers must provide any analyses of wastes being transported that the board deems necessary.

(6) The board reserves the right to refuse any load.

(Ord. No. 7596, 9-16-2013)

**Sec. 118-204. Pretreatment of wastewater.**

(a) *Pretreatment facilities*. Industrial users shall provide wastewater treatment as necessary to comply with this division and shall achieve compliance with all categorical pretreatment standards, local limits, and the prohibitions set out in section 118-203 of this division. Any facilities necessary for compliance shall be provided, operated, and maintained at the industrial user's expense. Detailed plans describing such facilities and operating procedures shall be submitted to the board for review, and shall be acceptable to the board before such facilities are constructed. The review of such plans and operating procedures by the board shall in no way relieve the industrial user from the responsibility of modifying such facilities as necessary to produce a discharge acceptable to the board under the provisions of this division.

(b) *Additional pretreatment measures*.

(1) Whenever deemed necessary, the board may require industrial users to restrict their discharge during peak flow periods, designate that certain wastewater be discharged only into specific sewers, relocate and/or consolidate points of discharge, separate sewage wastestreams from industrial wastestreams, and such other conditions as may be necessary to protect the POTW and determine the industrial user's compliance with the requirements of this division.

(2) The board may require any industrial user discharging into the POTW to install and maintain, on their property and at their expense, a suitable storage and flow-control facility to ensure equalization of

flow as needed to protect the POTW. An industrial user discharge permit may be issued solely for flow equalization.

(3) Grease, oil, and sand interceptors shall be provided when, in the opinion of the board, they are necessary for the proper handling of wastewater containing excessive amounts of grease, oil, or sand; except that such interceptors shall not be required for residential users. All interception units shall be of a type and capacity approved by the board, shall comply with the city's oil and grease management ordinance (in Division 7 of Article III), and shall be so located to be easily accessible for cleaning and inspection. Such interceptors shall be inspected, cleaned, and repaired in accordance with the city's oil and grease management ordinance by the industrial user at her/his sole expense.

(4) Industrial users with the potential to discharge flammable substances may be required to install and maintain an approved combustible gas detection meter.

(c) *Accidental discharge/slug discharge control plans and reporting.*

(1) Industrial users shall provide protection from accidental discharge/slug discharge of prohibited materials or other wastes regulated by this division. The board may require any industrial user to develop, submit for approval, and implement such a plan or take such other action that may be necessary to control slug discharges. An accidental discharge/slug discharge control plan shall address, at a minimum, the following:

a. Description of discharge practices, including nonroutine batch discharges;

b. Description of stored chemicals;

c. Procedures for immediately notifying the board of any accidental or slug discharge, as required by section 118-209(e) of this division; and

d. Procedures to prevent adverse impact from any accidental or slug discharge. Such procedures include, but are not limited to, inspection and maintenance of storage areas, handling and transfer of materials, loading and unloading operations, control of plant site runoff, worker training, building of containment structures or equipment, measures for containing toxic organic pollutants, including solvents, and/or measures and equipment for emergency response.

(2) Board review and approval of plans submitted by the industrial user in accordance with section 118-204(c) does not relieve the user from the responsibility to modify its facility and/or plan as necessary to meet the requirements of this division.

(3) Reporting of accidental discharge/slug discharge, at a minimum, shall include the following:

a. In the case of any accidental discharges or slug discharges, the industrial user shall immediately telephone and notify the board of the incident. This notification shall include the location of the discharge, type of waste, concentration and volume, if known, and corrective actions taken by the user.

b. A written report addressed to the board detailing the date, time and cause of the accidental discharge and corrective action taken to prevent future discharge shall be submitted by the industrial user to the board within five calendar days of the occurrence of the noncompliant discharge.

c. A notice shall be permanently posted on the user's bulletin board or other prominent place advising employees to call CSB in the event of a discharge described in section 118-209(e)(1) above. The user shall ensure that all employees who could

cause a discharge to occur are advised of the emergency notification procedure.

(Ord. No. 7596, 9-16-2013)

**Sec. 118-205. Control of prohibited wastes.**

(a) *Regulatory actions.* If wastewater containing any substance described in section 118-203 is discharged or proposed to be discharged into the POTW or to any tributary sewer system, the general manager or the board may take any or all action necessary to:

(1) Prohibit the discharge of such wastewaters;

(2) Require a discharger to demonstrate that modifications to its facilities or operations will reduce or eliminate the discharge of such substances in conformity with this article;

(3) Require pretreatment, including storage facilities, or flow equalization necessary to reduce or eliminate the objectionable characteristics or substances so that the discharge will not violate this article;

(4) Require the person making, causing or allowing the discharge to pay any additional cost or expense incurred by the board for handling and treating excess loads imposed on the POTW;

(5) Require a discharger to develop the shortest compliance schedule practicable but not later than the compliance date established for the applicable pretreatment standard. The general manager may establish such conditions as deemed necessary to approve the required schedule; and/or

(6) Take such other remedial action as may be deemed to be desirable or necessary to achieve the purposes of this article.

(b) *Submission of plans.* Where pretreatment or equalization of wastewater flows prior to discharge into any part of the POTW is required, plans, specifications and other pertinent data or information relating to such pretreatment or flow-control facilities shall first be submitted to the general manager for review and approval. Such approval shall not exempt the discharge or such facilities from compliance with any applicable code, ordinance, rule, regulation or order of any governmental authority. Any subsequent alterations or additions to such pretreatment or flow-control facilities shall not be made without due notice to and prior approval of the general manager.

(c) *Pretreatment facilities operations.* If pretreatment or control of waste flows is required, such facilities shall be maintained in good working order and operated as efficiently as possible by the owner or operator at his own cost and expense, subject to the requirements of this article and all other applicable codes, ordinances and laws.

(d) *Admission to property.* Whenever it shall be necessary for the purposes of this article, the general manager, upon presentation of credentials, may enter upon any property or premises at reasonable times for the purpose of:

(1) Copying any records required to be kept under the provisions of this division;

(2) Inspecting any monitoring equipment or method;

(3) Sampling any discharge of wastewater to the POTW; or

(4) Inspecting the premises generally for compliance, including inspection of any pretreatment facilities.

The general manager may enter upon the property at any hour under emergency circumstances.

(e) *Protection from accidental discharge.* Each industrial user shall provide protection from accidental discharge of prohibited materials or other wastes regulated by this division. Facilities to prevent accidental discharge of prohibited materials shall be provided and maintained at the user's sole cost and expense. Detailed plans showing facilities and operating procedures to provide this protection shall be submitted to the general manager for review, and shall be approved by her/him before construction of the facility. Review and approval of such plans and operating proce-

dures shall not relieve the industrial user from the responsibility to modify its facility as necessary to meet the requirements of this article.

(f) *Reporting of accidental discharge.* If for any reason a user does not comply with or will be unable to comply with any prohibition or limitations in this article, the user responsible for such discharge shall immediately notify the general manager so that corrective action may be taken to protect the POTW. In addition, a written report addressed to the general manager detailing the date, time and cause of the accidental discharge and corrective action taken to prevent future discharges shall be submitted by the user within five calendar days of the occurrence of the noncomplying discharge.
(Ord. No. 7596, 9-16-2013)

### Sec. 118-206. Industrial user discharge permit requirements.

(a) All nondomestic users must notify the general manager of the nature and characteristics of their wastewater prior to commencing their discharge. The general manager is authorized to prepare a form for this purpose. The general manager will determine whether the user is an industrial user or SIU and will determine the type of permit needed, if any (industrial user discharge permit, grease trap permit or hauler discharge permit).

(b) It shall be unlawful for significant industrial users to discharge wastewater, either directly or indirectly, into the without first obtaining an industrial user discharge permit from the general manager. Any violation of the terms and conditions of an industrial user discharge permit shall be deemed a violation of this article. Obtaining an industrial user discharge permit does not relieve a permittee of its obligation to obtain other permits required by federal, state or local law.

(c) The general manager may require that other industrial users, including liquid waste haulers, obtain industrial user discharge permits as necessary to carry out the purposes of this article.

(d) Any industrial user located beyond the city limits shall submit a permit application in accordance with section 118-207 within 90 days of the effective date of Ord. No. 5076. New industrial users located beyond the city limits shall submit such applications to the general manager 90 days prior to discharging into the POTW. Upon review and approval of such application, the general manager may enter into a contract with the user which requires the user to subject itself to and abide by all provisions of this article.

(e) Any significant industrial user which discharges nondomestic waste into the POTW prior to the effective date of Ord. No. 5076 and who wishes to continue such discharges in the future shall, within 90 days after that date, apply to the board for an industrial user discharge permit and shall not cause or allow discharges to the POTW to continue after 180 days from and after the effective date of this article except in accordance with a permit issued by the general manager.

(f) Any significant industrial user proposing to begin or recommence discharging nondomestic wastes into the POTW must obtain an industrial user discharge permit prior to beginning or recommencing such discharge. An application for this permit must be filed at least 90 days prior to the anticipated start-up date.
(Ord. No. 7596, 9-16-2013)

### Sec. 118-207. Industrial user discharge permit application.

(a) In order to be considered for an industrial user discharge permit, all industrial users required to have a permit must submit the following information on an application form approved by the general manager:

(1) Name, address and location (if different from the address).

(2) Standard Industrial Classification (SIC) code of both the industry as a whole and any processes for which federal categorical standards have been promulgated.

(3) Wastewater constituents and characteristics including any pollutants in the discharge which are limited by any federal,

state or local standards. Sampling and analysis will be undertaken in accordance with 40 CFR 136.

(4) Time and duration of the discharge.

(5) Daily maximum, daily average and monthly average wastewater flow rates, including daily, monthly and seasonal variations if any.

(6) Description of activities, facilities and plant processes on the premises, including a list of all raw material and chemicals used at the facility which are or could accidentally or intentionally be discharged to the POTW.

(7) The site plans, floor plans, and mechanical and plumbing plans and details to show all sewers, floor drains and appurtenances by size, location and elevation.

(8) Each product produced by type, amount, process and rate of production.

(9) Type and amount of raw materials processed (average and maximum per day).

(10) Number and type of employees, hours of operation, and proposed or actual hours of operation of the pretreatment system.

(11) An assessment of the applicability of federal categorical pretreatment standards to discharges from the user.

(12) A statement indicating whether pretreatment standards are being met on a consistent basis and, if not, whether additional operation and maintenance (O&M) and/or additional pretreatment is necessary for the user to meet pretreatment standards.

(13) If additional O&M and/or additional pretreatment is required for the user to meet pretreatment standards, the user shall establish the shortest time schedule necessary to accomplish corrective actions. The completion date in this section shall not be longer than the compliance date established by any applicable categorical pretreatment standard.

(14) Any other information as may be deemed by the general manager to be necessary to evaluate the permit application.

(b) All plans required in subsection (a) of this section must be certified for accuracy by a West Virginia registered professional engineer.

(c) All applications must contain the following certification statement and be signed in accordance with subsection (c)(1), (2), (3) or (4) below: "I certify under penalty of law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly gather and evaluate the information submitted. Based on my inquiry of the Person or Persons who manage the system, or those Persons directly responsible for gathering the information, the information submitted is, to the best of my knowledge and belief, true, accurate and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment for knowing violations."

(1) By a responsible corporate officer if the industrial user submitting the reports is a corporation. For the purpose of this subsection, a responsible corporate officer means:

a. A president, secretary, treasurer or vice-president of the corporation in charge of a principal business function, or any other person who performs similar policy or decision-making functions for the corporation; or

b. The manager of one or more manufacturing, production or operation facilities employing more than 250 persons or having gross annual sales or expenditures exceeding $25,000,000.00 (in second-quarter 1980 dollars), if authority to sign documents has been assigned or delegated to the manager in accordance with corporate procedures.

(2) By a general partner or proprietor if the industrial user submitting the reports is a partnership or sole proprietorship respectively.

(3) The principal executive officer or director having responsibility for the overall operation of the discharging facility if the industrial user submitting the reports is a federal, state or local governmental entity or their agents.

(4) By a duly authorized representative of the individual designated in subsection (c)(1), (2) or (3) of this section if:

a. The authorization is made in writing by the individual described in subsection (c)(1), (2) or (3) of this section;

b. The authorization specifies either an individual or a position having responsibility from which overall operation of the facility from which the discharge originates, such as the position of plant manager, operator of a well, or wellfield superintendent, or a position of equivalent responsibility, or having overall responsibility for environmental matters for the company; and

c. The written authorization is submitted to the board.

(5) If an authorization under subsection (c)(4) of this section is no longer accurate because a different individual or position has responsibility for the overall operation of the facility or overall responsibility for environmental matters for the company, a new authorization satisfying the requirements of subsection (c)(4) of this section must be submitted to the board prior to or together with any reports to be signed by an authorized representative.

(d) The general manager will evaluate the data furnished by the industrial user and any required additional information. After evaluation of the data furnished, the general manager may issue an industrial user discharge permit subject to terms and conditions provided in this article.

(e) Incomplete or inaccurate applications will not be processed and will be returned to the user for revision.
(Ord. No. 7596, 9-16-2013)

## Sec. 118-208. Industrial user discharge permit issuance.

(a) *Industrial user discharge permit duration.* An industrial user discharge permit shall be issued for a specified time period, not to exceed five years from the effective date of the permit. An industrial user discharge permit may be issued for a period less than five years, at the discretion of the board. Each industrial user discharge permit will indicate a specific date upon which it will expire.

(b) *Industrial user discharge permit contents*. An industrial user discharge permit shall include such conditions as are deemed reasonably necessary by the general manager to prevent pass through or interference, protect the quality of the waterbody receiving the POTW's effluent, protect worker health and safety, facilitate sludge management and disposal, protect ambient air, and protect against damage to the POTW.

(1) Industrial user discharge permits must contain:

a. A statement that indicates the industrial user discharge permit issuance date, expiration date and effective date.

b. A statement that the industrial user discharge permit is nontransferable without prior notification to the board in accordance with section 118-208(f) of this division, and provisions for furnishing the new owner or operator with a copy of the existing industrial user discharge permit.

c. Effluent limits, including BMPs, based on applicable pretreatment standards.

d. Self monitoring, sampling, reporting, notification, and record-keeping requirements. These requirements shall include an identification of pollutants (or BMPs) to be monitored, sampling location, sampling frequency, and sample type based on federal, state, and local law.

e. A statement of applicable civil and criminal penalties for violation of

pretreatment standards and requirements, and any applicable compliance schedule. Such schedule may not extend the time for compliance beyond that required by applicable federal, state, or local law.

f. Requirements to control slug discharge, if determined by the board to be necessary.

(2) Industrial user discharge permits may contain, but need not be limited to, the following conditions:

a. Limits on the average and/or maximum rate of discharge, time of discharge, and/or requirements for flow regulation and equalization;

b. Requirements for the installation of pretreatment technology, pollution control, or construction of appropriate containment devices, designed to reduce, eliminate, or prevent the introduction of pollutants into the POTW;

c. Requirements for the development and implementation of spill control plans or other special conditions including management practices necessary to adequately prevent accidental, unanticipated, or nonroutine discharges;

d. Development and implementation of waste minimization plans to reduce the amount of pollutants discharged to the POTW;

e. The unit charge or schedule of user charges and fees for the management of the wastewater discharged to the POTW;

f. Requirements for installation and maintenance of inspection and sampling facilities and equipment, including flow measurement devices;

g. A statement that compliance with the industrial user discharge permit does not relieve the permittee of responsibility for compliance with all applicable federal and state pretreatment standards, including those which become effective during the term of the industrial user discharge permit;

h. Other conditions as deemed appropriate by the general manager to ensure compliance with this division, and state and federal laws, rules, and regulations;

i. Limits on the average and/or maximum concentration, mass or other measure of identified wastewater constituents or properties;

j. Development and implementation of spill control plans or other special conditions, including additional management practices necessary to adequately prevent accidental, unanticipated or routine discharges;

k. Specifications for monitoring programs, which may include sampling locations, frequency of sampling, number, types and standards for testing, and reporting schedules;

l. Compliance schedules;

m. Requirements for submission of technical reports or discharge reports;

n. Requirements for maintaining and retaining plant records relating to wastewater discharge as specified by the general manager and affording the general manager access to records;

o. Requirements for the notification of any new introduction of wastewater constituents or any substantial change in the volume or character of the wastewater being used by the permittee;

p. Requirements for the notification of any change in the manufacturing and/or pretreatment process used by the permittee; and

q. Requirements for the notification of excess, accidental or slug discharges.

(c) *Industrial user discharge permit decisions.* The board will evaluate the data furnished by the user and may require additional information. Within 60 days of receipt of a complete permit application, the board will determine whether to issue an industrial user discharge permit. The board may deny any application for an industrial user discharge permit.

(d) *Industrial user discharge permit issuance process.*

(1) *Public notification*. Once the board has prepared a draft industrial user discharge permit, the permit applicant will publish in a newspaper of general circulation in Kanawha County a Class I legal notice, in a form acceptable to the board, of its application to obtain an industrial user discharge permit, and the board shall receive comments on the permit application for a period not less than 30 days. The notice will indicate a location where the draft permit may be reviewed and an address where written comments may be submitted.

(2) *Permit appeals*. The board shall provide public notice of the issuance of an industrial user discharge permit. Any person, including the user, may petition the board to reconsider the terms of an industrial user discharge permit within 30-calendar days of notice of its issuance.

a. Failure to submit a timely petition for reconsideration shall be deemed to be a waiver of the administrative appeal.

b. In its petition, the appealing party must indicate the industrial user discharge permit provisions objected to, the reasons for this objection, and the alternative condition, if any, it seeks to place in the industrial user discharge permit.

c. The effectiveness of the industrial user discharge permit shall not be stayed pending the appeal.

d. If the board fails to act within 45 days of the filing for reconsideration the request for reconsideration shall be deemed to be denied. Decisions not to reconsider an industrial user discharge permit, not to issue an industrial user discharge permit, or not to modify an industrial user discharge permit shall be considered final administrative actions for purposes of judicial review.

(3) All industrial user discharge permits issued to a user are superseded upon the issuance of a new industrial user discharge permit to that user.

(e) *Industrial user discharge permit modification.*

(1) The board may modify an industrial user discharge permit for good cause, including, but not limited to, the following reasons:

a. To incorporate any new or revised federal, state, or local pretreatment standards or requirements;

b. To address significant alterations or additions to the user's operation, processes, or wastewater volume or character since the time of the industrial user discharge permit issuance;

c. A change in the POTW that requires either a temporary or permanent reduction or elimination of the authorized discharge;

d. Information indicating that the permitted discharge poses a threat to the POTW, board personnel, or the receiving waters;

e. Violation of any terms or conditions of the industrial user discharge permit;

f. Misrepresentations or failure to fully disclose all relevant facts in the industrial user discharge permit application or in any required reporting;

g. To correct typographical or other errors in the industrial user discharge permit; or

h. To reflect a transfer of the facility ownership or operation to a new owner or operator where requested in accordance with section 118-208(f).

(f) *Industrial user discharge permit transfer.*

(1) Industrial user discharge permits may be transferred to a new owner or operator only if the permittee gives at least 30 calendar days advance notice to the board and the board approves the industrial user discharge permit transfer. The notice to the board must include a written certification by the new owner or operator which:

a. States that the new owner and/or operator has no immediate intent to change the facility's operations and processes;

b. Identifies the specific date on which the transfer is to occur; and

c. Acknowledges full responsibility for complying with the existing industrial user discharge permit.

(2) Failure to provide advance notice of a transfer renders the industrial user discharge permit void as of the date of facility transfer.

(g) *Industrial user discharge permit revocation*. The board may revoke an industrial user discharge permit for including, but not limited to, the following reasons:

(1) Failure to notify the board of significant changes to the wastewater discharge prior to the changed discharge;

(2) Failure to provide prior notification to the board of changed conditions pursuant to section 118-209(d) of this division;

(3) Misrepresentation or failure to fully disclose all relevant facts in the industrial user discharge permit application;

(4) Falsifying self-monitoring reports or certification statements;

(5) Tampering with monitoring equipment;

(6) Refusing to allow the general manager timely access to the facility premises and records;

(7) Failure to meet compliance schedules;

(8) Failure to pay fines;

(9) Failure to pay rates or fees as established pursuant to this article;

(10) Failure to complete a wastewater survey or the industrial user discharge permit application;

(11) Failure to provide advance notice of the transfer of business ownership of a permitted facility;

(12) Violation of any pretreatment standard or requirement, or any terms of the industrial user discharge permit or this article; or

(13) Cessation of operations of the permitted facility.

(h) *Permit reissuance.* The user shall apply for permit reissuance by submitting a complete permit application a minimum of 90 days prior to the expiration of the user's existing permit.

(i) *Continuation of expired permits.* An expired permit will continue to be effective and enforceable until the permit is reissued if:

(1) The industrial user has submitted a complete permit application at least 90 days prior to the expiration date of the user's existing permit.

(2) The failure to reissue the permit, prior to expiration of the previous permit, is not due to any act or failure to act on the part of the industrial user.

(Ord. No. 7596, 9-16-2013)

## Sec. 118-209. Monitoring and reporting requirement.

(a) *Discharge reports*.

(1) Every significant industrial user shall file a periodic discharge report at such intervals as are designated by the general manager. The general manager may re-

quire any other industrial users discharging or proposing to discharge into the POTW to file such periodic reports.

a. Discharge report format shall be preapproved by board and is subject to change by the board. Two paper copies and one electronic copy (in board approved format) are required to be submitted by the industrial user.

(2) The discharge report shall include but shall not be limited to nature of process, volume, rates of flow, mass emission rate, production quantities, hours of operation, concentrations of controlled pollutants or other information which relates to the generation of waste. Such reports may also include the chemical constituents and quantity of liquid materials stored on site even though they are not normally discharged. In addition to discharge reports, the general manager may require information in the form of industrial user discharge permit applications and self-monitoring reports.

a. In cases where the pretreatment standard requires compliance with a bmp or pollution prevention alternative, the user must submit documentation required by the board or the pretreatment standard necessary to determine the compliance status of the industrial user.

(3) The discharge report shall be accompanied by the certification statement set forth in section 118-207(c). The certification statement shall be signed by the appropriate individual as described in section 118-207(c).

(b) *Records and monitoring*.

(1) All industrial users who discharge or propose to discharge wastewater into the POTW shall maintain such records of production and related factors, effluent flows, and pollutant amounts of concentrations as are necessary to demonstrate compliance with the requirements of this article and any applicable state or federal pretreatment standards or requirements, and any BMPs based on any categorical standards. Such records shall be available to the public without restriction. Any request for confidential treatment of information and for access to such information shall be governed by procedures specified in 40 CFR 2.

(2) Such records shall be made available upon request by the general manager. All such records relating to compliance with pretreatment standards shall be made available to officials of the EPA and the WVDEP upon demand. A summary of such data indicating the industrial user's compliance with this division shall be prepared and submitted quarterly to the board.

(3) The owner or operator of any premises or facility discharging industrial wastewater into the POTW shall install at her/his own cost and expense suitable monitoring equipment to facilitate the accurate observation, sampling and measurement of wastes. Such equipment shall:

a. Be pre-approved by the board.

b. Be located where approved by the board.

c. Be maintained by the industrial user in proper working order and kept secure, but accessible to the board at all times.

d. Be calibrated and certified by a manufacturer's authorized third party to the user and board, on a routine basis, as determined by the manufacturer's guidelines or at least once per year, whichever frequency is less. The industrial user will observe the calibration and shall receive a copy of the calibration/certification report.

(4) The monitoring equipment shall be located and maintained on the industrial user's premises outside of the building. When such a location would be impractical or cause undue hardship on the industrial user, the board may allow the equipment to be constructed in the public street

or sidewalk area, with the approval of the public agency having jurisdiction over such street or sidewalk, and located so that it will not be obstructed by public utilities, landscaping or parked vehicles.

(5) When more than one industrial user can discharge into a common sewer the board may require installation of separate monitoring equipment for each industrial user. When there is a significant difference in wastewater constituents and characteristics produced by different operations of a single industrial user, the board may require that separate monitoring facilities be installed for each separate discharge.

(6) Whether constructed on public or private property, the monitoring facilities shall be constructed in accordance with the board's requirements and all applicable construction standards and specifications.

(c) *Inspection, sampling and analysis.*

(1) *Compliance determination*. Compliance determinations with respect to section 118-203 may be made on the basis of either instantaneous grab samples or composite samples of wastewater, as determined by the general manager.

a. Except as indicated in subsections b and c below, the industrial user must collect wastewater samples using 24-hour flow-proportional composite sampling techniques, unless time-proportional composite is authorized by the board. Where time-proportional composite sampling or grab sampling is authorized by the board, the samples must be representative of the discharge. Using protocols (including appropriate preservation) specified in 40 CFR Part 136 and appropriate EPA guidance, multiple grab samples collected during a 24-hour period may be composited prior to the analysis as follows: for cyanide, total phenols, and sulfides the samples may be composited in the laboratory or in the field; for volatile organics and oil and grease, the samples may be composited in the laboratory. Composite samples for other parameters unaffected by the compositing procedures as documented in approved EPA methodologies may be authorized by the board, as appropriate. In addition, grab samples may be required to show compliance with instantaneous limits.

b. Samples for oil and grease, temperature, pH, cyanide, total phenols, sulfides, and volatile organic compounds must be obtained using grab collection techniques.

c. For sampling required in support of baseline monitoring and 90-day compliance reports, a minimum of four grab samples must be used for pH, cyanide, total phenols, oil and grease, sulfide and volatile organic compounds for facilities for which historical sampling data do not exist; for facilities for which historical sampling data are available, the board may authorize a lower minimum. For the reports required by section 118-209(a) or 40 CFR 403.12(e) and 403.12(h), the industrial user is required to collect the number of grab samples necessary to assess and assure compliance with applicable pretreatment standards and requirements.

d. All wastewater samples must be representative of the industrial user's discharge. Wastewater monitoring and flow measurement facilities shall be properly operated, kept clean, and maintained in good working order at all times. Failure of an industrial user to keep its monitoring facility in good working order shall not be grounds for the industrial user to claim that sample results are unrepresentative of its discharge.

(2) *Analysis of industrial wastewaters*. Monitoring of pollutants and laboratory analysis of industrial wastewater samples shall be performed in accordance with 40 CFR

136. Analysis of those pollutants not covered by these publications shall be performed in accordance with procedures established by the general manager of the board and the WVDEP.

(3) *Sampling frequency*. Sampling of industrial wastewater for the purpose of compliance determination with respect to section 118-203 will be done at such intervals as the board may designate. However, it is the intention of the board to conduct compliance sampling or to cause such sampling to be conducted for all major contributing industries at least once every year.

(d) *Reports of changed conditions*. Each user must notify the board of any significant changes to the industrial user's operations or system which might alter the nature, quality, or volume of its wastewater at least 90-calendar days before the change.

(1) The board may require the industrial user to submit such information as may be deemed necessary to evaluate the changed condition, including the submission of an industrial user discharge permit application under section 118-207.

(2) The board may issue an industrial user discharge permit under section 118-207 of this division or modify an existing industrial user discharge permit under section 118-208(e) of this division in response to changed conditions or anticipated changed conditions.

(e) *Reports of potential problems*.

(1) In the case of any discharge, including, but not limited to, accidental discharges, discharges of a nonroutine, episodic nature, a noncustomary batch discharge, a slug discharge or slug load, that might cause potential problems for the POTW, the industrial user shall immediately telephone and notify the board of the incident. This notification shall include the location of the discharge, type of waste, concentration and volume, if known, and corrective actions taken by the industrial user.

(2) Within five calendar days following such discharge, the industrial user shall, unless waived by the board, submit a detailed written report describing the cause(s) of the discharge and the measures to be taken by the industrial user to prevent similar future occurrences. Such notification shall not relieve the industrial user of any expense, loss, damage, or other liability which might be incurred as a result of damage to the POTW, natural resources, or any other liability which might be incurred as a result of damage to the POTW, natural resources, or any other damage to person or property, nor shall such notification relieve the industrial user of any fines, penalties, or other liability which may be imposed pursuant to this division.

(3) A notice shall be permanently posted on the industrial user's bulletin board or other prominent place advising employees who to call in the event of a discharge described in (1), above. Employers shall ensure that all employees, who could cause such a discharge to occur, are advised of the emergency notification procedure.

(f) *Reports of unpermitted users*. All industrial users not required to obtain an industrial user discharge permit shall provide appropriate reports to the board as the board may require.

(g) *Notice of violation/repeat sampling and reporting*. If sampling performed by an industrial user indicates a violation, the industrial user must notify the board within 24 hours of becoming aware of the violation. The industrial user shall also repeat the sampling and analysis and submit the results of the repeat analysis to the board within 30 calendar days after becoming aware of the violation.

(h) *Date of receipt of reports*. Written reports will be deemed to have been submitted on the date postmarked. For reports which are not mailed, postage prepaid, into a mail facility serviced by the United States Postal Service, the board's date of receipt of the report shall govern.

(i) *Record/keeping*. Industrial users subject to the reporting requirements of this division shall retain, and make available for inspection and copying, all records of information obtained pursuant to any monitoring activities required by this division, any additional records of information obtained pursuant to monitoring activities undertaken by the industrial user independent of such requirements, and documentation associated with BMPs. Records shall include the date, exact place, methods used; and the results of such analyses. These records shall remain available for a period of at least three years. This period shall be automatically extended for the duration of any litigation concerning the industrial user or the board, or where the industrial user has been specifically notified of a longer retention period by the board.
(Ord. No. 7596, 9-16-2013)

**Sec. 118-210. Compliance monitoring.**

(a) *Right of entry inspection and sampling*. The board shall have the right to enter the premises of any user to determine whether the user is complying with all requirements of this article and any industrial user discharge permit or order issued hereunder. Users shall allow the board ready access to all parts of the premises for the purposes of inspection, sampling, records examination and copying, and the performance of any additional duties.

(1) Where a user has security measures in force which require proper identification and clearance before entry into its premises, the user shall make necessary arrangements with its security guards so that, upon presentation of suitable identification, the board shall be permitted to enter without delay for the purposes of performing specific responsibilities.

(2) The board shall have the right to set up on the user's property, or require installation of, such devices as are necessary to conduct sampling and/or metering of the user's operations.

(3) The board may require the user to install monitoring equipment as necessary. The facility's sampling and monitoring equipment shall be maintained at all times in a safe and proper operating condition by the user at its own expense. All devices used to measure wastewater flow and quality shall be calibrated to ensure their accuracy.

(4) Any temporary or permanent obstruction to safe and easy access to the facility to be inspected and/or sampled shall be promptly removed by the user at the written or verbal request of the board and shall not be replaced. The costs of clearing such access shall be borne by the user.

(5) Unreasonable delays in allowing the board access to the user's premises shall be a violation of this division.

(b) *Search warrants*. If the board has been refused access to a building, structure, or property, or any part thereof, and is able to demonstrate probable cause to believe that there may be a violation of this division, or that there is a need to inspect and/or sample as part of a routine inspection and sampling program of the board designed to verify compliance with this division or any permit or order issued hereunder, or to protect the overall public health, safety, and welfare of the community, the board may seek issuance of a search warrant from the appropriate Kanawha County Court.
(Ord. No. 7596, 9-16-2013)

**Sec. 118-211. Confidential information.**

Information and data on a user obtained from reports, surveys, industrial user discharge permit applications, industrial user discharge permits, and monitoring programs, and from the board's inspection and sampling activities, shall be available to the public without restriction, unless the user specifically requests confidential treatment of the information and is able to demonstrate to the satisfaction of the board that the release of such information would divulge information, processes, or methods of production entitled to protection as trade secrets under applicable state law. Any such request must be asserted at the time of submission of the information or data. When requested and demonstrated by the user furnishing a report that such information should

be held confidential, the portions of a report which might disclose trade secrets or secret process shall not be made available for inspection by the public, but shall be made available immediately upon request to governmental agencies for uses related to the NPDES program or pretreatment program, and in enforcement proceedings involving the user furnishing the report. Wastewater constituents and characteristics and other effluent data, as defined at 40 CFR 2.302, shall not be recognized as confidential information and shall be available to the public without restriction.
(Ord. No. 7596, 9-16-2013)

### Sec. 118-212. Publication of users in significant noncompliance.

(a) The board shall publish annually, in the largest daily newspaper of the city, a list of the users which, at any time during the previous 12 months, were in significant noncompliance with applicable pretreatment standards and requirements. The term "significant noncompliance" shall be applicable to all significant industrial users (or any other industrial user that violates paragraphs (3), (4) or (8) of this section) and shall mean:

(1) Chronic violations of wastewater discharge limits, defined here as those in which 66 percent or more of all the measurements taken for the same pollutant parameter taken during a six month period exceed (by any magnitude) a numeric pretreatment standard or requirement, including instantaneous limits;

(2) Technical review criteria (TRC) violations, defined here as those in which 33 percent or more of all the measurements taken for each pollutant parameter taken during a six-month period equal or exceed the product of the daily maximum limit on the average limit multiplied by the applicable TRC (1.4 for BOD, TSS, fats, oils and grease, and 1.2 for all other pollutants except pH);

(3) Any other violation of an industrial user discharge permit effluent limit or of a pretreatment standard or requirement as defined by section 118-201 that the general manager determines has caused, alone or in combination with other discharges, interference or pass through, including endangering the health of potw personnel or the general public;

(4) Any discharge of a pollutant that has caused imminent endangerment to the public or to the environment, or has resulted in the board's exercise of its emergency authority to halt or prevent such a discharge;

(5) Failure to meet, within ninety calendar days of the scheduled date, a compliance schedule milestone contained in an industrial user discharge permit or enforcement order for starting construction, completing construction, or attaining final compliance;

(6) Failure to provide within 45 calendar days after the due date, any required reports, including baseline monitoring reports, reports on compliance with categorical pretreatment standard deadlines, periodic self-monitoring reports, and reports on compliance with compliance schedules;

(7) Failure to accurately report noncompliance; or

(8) Any other violation(s), which may include a violation of best management practices, which the board determines will adversely affect the operation or implementation of the local pretreatment program.

(Ord. No. 7596, 9-16-2013)

### Sec. 118-213. Administrative enforcement remedies.

(a) *Notification of violation*. When the board finds that a person has violated, or continues to violate, any provision of this article, an industrial user discharge permit, or order issued hereunder, or any other pretreatment standard or requirement, the board may serve upon that person a written notice of violation. Within 30 calendar days of the receipt of such notice, an explanation of the violation and a plan for the satisfactory correction and prevention thereof, to include spe-

cific required actions, shall be submitted by the person to the board. Submission of such a plan in no way relieves the person of liability for any violations occurring before or after receipt of the notice of violation. Nothing in this section shall limit the authority of the board to take any action, including emergency actions or any other enforcement action, without first issuing a notice of violation.

(b) *Cease and desist orders.* When the general manager finds that a person has violated or continues to violate any provision of this article, an industrial user discharge permit or order issued under this article, or any other pretreatment standard or requirement, or that such person's past violations are likely to recur, the general manager may issue an order to the person directing it to cease and desist all such violations and directing such person to:

(1) Immediately comply with all requirements; and

(2) Take such appropriate remedial or preventive action as may be needed to properly address a continuing or threatened violation, including halting operations and/or terminating the discharge. Issuance of a cease and desist order shall not be a bar against or a prerequisite for taking any other action against such person.

(c) *Consent orders.* The general manager may enter into consent orders, assurances of voluntary compliance, or other similar documents establishing an agreement with any person responsible for noncompliance. Such documents will include specific action to be taken by such person to correct the noncompliance within a time period specified by the document. Such documents shall have the same force and effect as the administrative orders issued pursuant to subsections (b) and (d)(4) of this section and shall be judicially enforceable.

(d) *Show cause hearing.*

(1) The board may order a person that has violated, or continues to violate, any provision of this article, an industrial user discharge permit, or order issued hereunder, or any other pretreatment standard or requirement, to appear before the board and show cause why the proposed enforcement action should not be taken. Notice shall be served on the person specifying the time and place for the hearing, the proposed enforcement action, the reasons for such action, and requesting that the person show cause why the proposed enforcement action should not be taken. The notice of the hearing shall be served personally or by registered or certified mail (return receipt requested) at least ten calendar days prior to the hearing. Such notice may be served on any authorized representative of the person. A show cause hearing shall not be a bar against, or prerequisite for, taking any other action against the person.

(2) The board may conduct the hearing and receive the evidence, or may designate any of its members or any officer or employee of the board:

a. Issue in the name of the board notices of hearings requesting the attendance and testimony of witnesses and the production of evidence relevant to any matter involved in any such hearings;

b. Receive the evidence; and/or

c. Transmit a report of the evidence and hearing, including transcripts and other evidence, together with recommendations to the board for action.

(3) At any public hearing, testimony taken before the board or any person designated by it must be under oath and recorded stenographically. The transcript, so recorded, will be made available to any member of the public or any party to the hearing upon payment of the usual charges.

(4) After the board has reviewed the evidence, it may issue an order to the party responsible for the discharge directing that, following a specified time period, or compliance schedule, the sewer service be discontinued unless adequate treatment facilities, devices or other related appur-

tenances are properly operated, and such further orders and directives as are necessary and appropriate.

(5) The schedule shall contain progress increments in the form of dates for the commencement and completion of major events leading to the construction and operation of additional pretreatment required for the person to meet the applicable pretreatment standards (such events include hiring an engineer, completing preliminary plans, completing final plans, executing contracts for major components, commencing construction, completing construction, beginning operation, and conducting routine operation). No increment shall exceed nine months, nor shall the total compliance period exceed 18 months.

(6) No later than 14 days following each date in the schedule and the final date for compliance, the person shall submit a progress report to the general manager, including, at a minimum, whether or not it complied with the increment of progress, the reason for any delay, and, if appropriate, the steps being taken by the person to return to the established schedule. In no event shall more than nine months elapse between such progress reports to the general manager.

(e) *Compliance orders*. When the board finds that a person has violated, or continues to violate, any provision of this division, an industrial user discharge permit, or order issued pursuant to this division, or any other pretreatment standard or requirement, the board may issue an order to the person responsible for the discharge directing that the person come into compliance within a specified time. If the person does not come into compliance within the time provided, the ability to discharge to the POTW may be discontinued unless adequate treatment facilities, devices, or other related appurtenances are installed and properly operated. Compliance orders also may contain other requirements to address the noncompliance, including additional self-monitoring and management practices designed to minimize the amount of pollutants discharged to the POTW. A compliance order may not extend the deadline for compliance established for a pretreatment standard or requirement, nor does a compliance order relieve the person of liability for any violation, including any continuing violation. Issuance of a compliance order shall not be a bar against, or a prerequisite for, taking any other action against the person.

(f) *Legal action.* If any person violates a provision of this article, any order of the board, or any term or condition of a permit issued under section 118-208, the board attorney may commence an action for appropriate legal and/or equitable relief in Kanawha County Circuit Court.

(g) *Emergency suspensions*. The board may immediately suspend a person's discharge, after informal notice to the person, whenever such suspension is necessary to stop an actual or threatened discharge, which reasonably appears to present, or cause an imminent or substantial endangerment to the health or welfare of persons. The board may also immediately suspend a person's discharge, after notice and opportunity to respond, that threatens to interfere with the operation of the POTW, or which presents, or may present, an endangerment to the environment.

(1) Any person notified of a suspension of its discharge shall immediately stop or eliminate its discharge. In the event of a person's failure to immediately comply voluntarily with the suspension order, the board may take such steps as deemed necessary, including immediate severance of the sewer connection, to prevent or minimize damage to the POTW, its receiving stream, or endangerment to any persons. The board may allow the person to recommence its discharge when the person has demonstrated to the satisfaction of the board that the period of endangerment has passed, unless the termination proceedings in section 118-213(h) of this division are initiated against the person.

(2) A person that is responsible, in whole or in part, for any discharge presenting imminent endangerment shall submit a detailed written statement, describing the causes of the harmful contribution and the measures taken to prevent any future

occurrence, to the board prior to the date of any show cause or termination hearing under sections 118-213(d) or (h) of this division. Nothing in this section shall be interpreted as requiring a hearing prior to any emergency suspension under this section.

(h) *Termination of discharge*. In addition to the provisions in this division, any person who violates the following conditions is subject to discharge termination:

(1) Violation of industrial user discharge permit conditions;

(2) Failure to accurately report the wastewater constituents and characteristics of its discharge;

(3) Failure to report significant changes in operations or wastewater volume, constituents, and characteristics prior to discharge;

(4) Refusal of reasonable access to the person's premises for the purpose of inspection, monitoring, or sampling; or

(5) Violation of the pretreatment standards in this division.

Such person will be notified of the proposed termination of its discharge and be offered an opportunity to show cause under section 118-213(d) of this division why the proposed action should not be taken. Exercise of this option by the board shall not be a bar to, or a prerequisite for, taking any other action against the person.
(Ord. No. 7596, 9-16-2013)

**Sec. 118-214. Judicial enforcement remedies.**

(a) *Injunctive relief*. When the board finds that a person has violated, or continues to violate, any provision(s) of this division, an industrial user discharge permit, or order issued hereunder, or any other pretreatment standard or requirement, the board may petition the Kanawha County Circuit Court for the issuance of a temporary or permanent injunction, as appropriate, which restrains the violating activity or compels the specific performance of the industrial user discharge permit, order, or other requirement imposed by this article on activities of the person. The board may also seek such other action as is appropriate for legal and/or equitable relief, including a requirement for the person to conduct environmental remediation. A petition for injunctive relief shall not be a bar against, or a prerequisite for, taking any other action against a person.

(b) *Civil penalties*.

(1) A person who has violated, or continues to violate, any provision of this division, an industrial user discharge permit, or order issued hereunder, or any other pretreatment standard or requirement shall be liable to the board for a maximum civil penalty of $10,000.00 but not less than $1,000.00. Each day on which a violation shall occur or continue shall be deemed a separate and distinct offense. In the case of a monthly or other long-term average discharge limit, penalties shall accrue for each day during the period of the violation.

(2) The board may recover reasonable attorney's fees, court costs, and other expenses associated with enforcement activities, including sampling and monitoring expenses, and the cost of any actual damages incurred by the board.

(3) In determining the amount of civil liability, the court shall take into account all relevant circumstances, including, but not limited to, the extent of harm caused by the violation, the magnitude and duration of the violation, any economic benefit gained through the person's violation, corrective actions by the person, the compliance history of the person, and any other factor as justice requires.

(4) Filing a suit for civil penalties shall not be a bar against, or a prerequisite for, taking any other action against a person.

(c) *Remedies nonexclusive*. The remedies provided for in this division are not exclusive. The board may take other action against any person when the circumstances warrant. Further, the

board is empowered to take more than one enforcement action against any noncompliant person.
(Ord. No. 7596, 9-16-2013)

### Sec. 118-215. Supplemental enforcement authority.

(a) *Financial assurance*. The general manager may decline to issue or reissue an industrial user discharge permit to any user who has failed to comply with any provision of this article, a previous industrial user discharge permit, or order issued hereunder, or any other pretreatment standard or requirement. The basis for such denial shall be reevaluated upon proof to the general manager that the user has obtained financial assurances sufficient to restore or repair damage to the POTW caused by its discharge.

(b) *Payment of outstanding fees and penalties.* The general manager may decline to issue or reissue an industrial user discharge permit to any user who has failed to pay any outstanding fees, fines, or penalties incurred as a result of any provision of this article, a previous industrial user discharge permit, or order issued hereunder.

(c) *Water supply severance*. Whenever a user has violated or continues to violate any provision of this article, an industrial user discharge permit, or order issued hereunder, or any other pretreatment standard or requirement, water service to the user may be discontinued. Service will recommence, at the user's expense, only after the user has satisfactorily demonstrated its ability to comply.
(Ord. No. 7596, 9-16-2013)

### Sec. 118-216. Criminal penalty.

Any person who willfully or negligently violates a provision of this article, any order of the board, or any term or condition of a permit issued under section 118-208; willfully or negligently fails to notify the board of unauthorized discharges; falsifies the discharge records kept under the requirements of section 118-209; or alters monitoring equipment required by section 118-209 in order to facilitate false observation, sampling or measurement of wastewater shall be guilty of a misdemeanor and upon conviction shall be fined not less than $100.00, nor more than $1000.00 or imprisoned in the county jail for a period not to exceed six months, or both such fine and imprisonment. Any person who intentionally misrepresents any material fact in an application, record, report, plan or other document filed or required to be maintained under the provisions of this article is guilty of a misdemeanor, and upon conviction thereof, shall be punished by a fine of not less than $1000.00 nor more than $10,000 or by imprisonment in jail not exceeding six months, or by both fine and imprisonment.
(Ord. No. 7596, 9-16-2013)

**Cross reference—**Authorized penalty for ordinance violations, W. Va. Code §§ 8-11-1, 8-12-5(57), 8-34-1.

### Sec. 118-217. Affirmative defenses to discharge violations.

(a) *Upset*.

(1) For the purpose of this division, upset means an exceptional incident in which there is unintentional and temporary noncompliance with an applicable discharge standard or requirement because of factors beyond the reasonable control of the user. An upset does not include noncompliance to the extent caused by operational error, improperly designed treatment facilities, inadequate treatment facilities, lack of preventive maintenance, or careless or improper operation.

(2) An upset shall constitute an affirmative defense to an action brought for noncompliance with applicable discharge standards or requirements if the requirements of paragraph (3), below, are met.

(3) A user who wishes to establish the affirmative defense of upset shall demonstrate, through properly signed, contemporaneous operating logs, or other relevant evidence that:

a. An upset occurred and the user can identify the cause(s) of the upset;

b. The facility was at the time being operated in a prudent and workman-

like manner and in compliance with applicable operation and maintenance procedures; and

c. The user has submitted the following information to the board within twenty-four hours of becoming aware of the upset. If this information is provided orally, a written submission must be provided within five calendar days.

i. A description of the indirect discharge and cause of noncompliance;

ii. The period of noncompliance, including exact dates and times or, if not corrected, the anticipated time the noncompliance is expected to continue; and

iii. Steps being taken and/or planned to reduce, eliminate, and prevent recurrence of the noncompliance.

(4) In any enforcement proceeding, the user seeking to establish the occurrence of an upset shall have the burden of proof.

(5) The user shall have the opportunity for a judicial determination on any claim of upset only in an enforcement action brought for noncompliance with applicable discharge standards or requirements.

(6) Users shall control production of all discharges to the extent necessary to maintain compliance with applicable discharge standards or requirements upon reduction, loss, or failure of its treatment facility until the facility is restored or an alternative method of treatment is provided. This requirement applies in the situation where, among other things, the primary source of power of the treatment facility is reduced, lost, or fails.

(b) *Prohibited discharge standards.* A user shall have an affirmative defense to an enforcement action brought against it for noncompliance with the general prohibitions in section 118-203(a) of this division or the specific prohibitions in sections 118-203(b)(1) through (18) of this division if it can prove that it did not know, or have reason to know, that its discharge, alone or in conjunction with discharges from other sources, would cause pass through or interference and that either:

(1) A local limit exists for each pollutant discharged and the user was in compliance with each limit directly prior to, and during, the pass through or interference; or

(2) No local limit exists, but the discharge did not change substantially in nature or constituents from the user's prior discharge when the board was regularly in compliance with its NPDES permit, and in the case of interference, was in compliance with applicable sludge use or disposal requirements.

(c) *Bypass.* For the purpose of this section:

(1) Bypass means the intentional diversion of waste streams from any portion of a user's treatment facility.

(2) Severe property damage means substantial physical damage to property, damage to the treatment facilities which causes them to become inoperable, or substantial and permanent loss of natural resources which can reasonably be expected to occur in the absence of a bypass. Severe property damage does not mean economic loss caused by delays in production.

(3) A user may allow any bypass to occur which does not cause pretreatment standards or requirements to be violated, but only if it also is for essential maintenance to assure efficient operation. These bypasses are not subject to the provision of paragraphs (4) and (5) of this subsection.

(4) Bypass notifications.

a. If a user knows in advance of the need for a bypass, it shall submit a prior notice to the board, at least ten days before the date of the bypass, if possible.

b. A user shall submit oral notice to the board of an unanticipated bypass that exceeds an applicable pretreat-

ment standard within 24 hours from the time the user becomes aware of the bypass. A written submission shall also be provided to the board within five calendar days of the time the user becomes aware of the bypass. The written submission shall contain a description of the bypass and its cause; the duration of the bypass, including exact dates and times, and, if the bypass has not been corrected, the anticipated time it is expected to continue; and steps taken or planned to reduce, eliminate, and prevent reoccurrence of the bypass. The board may waive the written report on a case-by-case basis if the oral report has been received within twenty-four hours.

(5) Bypass is prohibited, and the board may take an enforcement action against a user for a bypass, unless:

a. Bypass was unavoidable to prevent loss of life, personal injury, or severe property damage;

b. There were no feasible alternatives to the bypass, such as the use of auxiliary treatment facilities, retention of untreated wastes, or maintenance during normal periods of equipment downtime. This condition is not satisfied if adequate back-up equipment should have been installed in the exercise of reasonable engineering judgment to prevent a bypass which occurred during normal periods of equipment downtime or preventative maintenance; and

c. The user submitted notices as required under paragraph (4) of this subsection.

The board may approve an anticipated bypass, after considering its adverse effects, if the board determines that the user will meet one or more of the three conditions listed in paragraph (5) a of this subsection.
(Ord. No. 7596, 9-16-2013)

**Secs. 118-218—118-240. Reserved.**

## DIVISION 7. WASTEWATER CONTAINING FATS, OILS, AND GREASE

### Sec. 118-241. Definitions.

*Facility* means a non-household establishment that prepares, cooks or handles food.

*Fats, oils, and grease (FOG)* means a group of substances with similar physical characteristics that are determined quantitatively on the basis of their common solubility in an organic solvent, usually originating from animals or vegetables.

*General manager* means the general manager of the city's sanitary board or his duly appointed deputy, agent or representative.

*Grease trap* or *grease interceptor* means a device for separating fats, oils, and grease from the wastewater prior to entering the POTW.

*Operator* means the person who owns/[operates] the facility.

*Owner* means the person who own[s] the facility.

*Person* means the individual, association, partnership, corporation, municipality, board, state, federal agency or agent or employee thereof.

*Pre-wash sink* means a sink generally located prior to the dishwater. The sink is usually equipped with a sprayer to remove food particles from dishes, prior to entering the dishwasher.
(Bill No. 6876, § 25-54, 2-19-2002)

### Sec. 118-242. Prohibitions.

(a) No person shall discharge any wastewater into the grease trap during the cleaning process, including, but not limited to, decanting water from the truck of a third-party contracted to clean the grease trap. Tap water may be used to aide in cleaning of the grease trap.

(b) In any facility that is required to install a grease trap, the owner and/or operator of the facility shall properly operate and maintain the grease trap, so that the wastewater discharged from the facility does not contain FOG at or above prohibited levels at any time.

(c) In any facility that is required to install a grease trap, the owner/operator of the facility shall not:

(1) Discharge any quantities of FOG into the POTW, except FOG associated with the normal cleaning of cooking utensils and/or containers in which food is cooked, prepared, or stored;

(2) Connect dishwashers, disposals, floor drains, or mop skins to the grease trap;

(3) Allow the grease trap to accumulate a thickness of grease greater than 25% of the total liquid depth;

(4) Introduce any additives, bacteria or enzymes for the purpose of emulsifying the grease;

(5) Alter the grease trap in any manner that reduces the efficiency of the grease trap;

(6) Connect plumbing fixtures that do not carry FOG into the grease trap;

(7) Install the grease trap in such a manner as to make inspection and maintenance of the grease trap difficult.

(d) Any facility that has a pre-wash sink shall connect the pre-wash sink to a grease trap. If it is not possible to connect the pre-wash sink to an existing grease trap, then a separate trap shall be installed for the pre-wash sink. Pre-wash sinks shall have a screening device to remove solids from the wastewater. A garbage disposal is prohibited in the pre-wash sink connected to a grease trap.
(Bill No. 6876, § 25-55, 2-19-2002)

**Sec. 118-243. Grease trap size.**

(a) The size of the grease trap shall be determine[d] from the following formula for facilities that serve meals:

$$GT = M \times G$$

GT = grease trap size in gallons.

M = meals served during the mealtime period in which the greatest number of patrons are served.

G = gallon multiplier. If one mealtime is served per day, the multiplier is 205; if two mealtimes are served per day, the multiplier is three; if three mealtimes are served per day, or the facility is open to the public for meals more than 12 hours in a 24-hour period, the multiplier is five.

(b) Facilities that do not serve meals shall install a grease trap with a volume at least 300 percent greater than the monthly total volume of FOG produced by the facility.

(c) In the event that the size of the grease trap cannot be determined from subsection (a) [or] (b) [o]f this section, the facility shall establish the size of the grease trap based on the best evidence available. Upon approval of the size of the grease trap by the sanitary board, the existing facility shall obtain a grease trap permit then install a grease trap of the approved size. In no case shall the grease trap have a flow rate less than 30 gallons per minute, or have capacity less than 60-pound of grease.

(d) The sanitary board may exempt a facilities from the requirements of this article if the owner/operator of the facility demonstrates to the satisfaction of the sanitary board that its wastewater will not contain FOG in excess of 200 milligrams per liter. A written request for an exemption shall be made to the sanitary board. A detailed description of the activity performed by the facility, a copy of the menus, and a list of kitchen equipment (number of sinks, dishwater, fryer, etc.) shall be attached to the written exemption request. The owner and/or operator of the facility is required to notify the sanitary board in writing of changes to the business operation or menus after receiving an exemption. The sanitary board reserves the right to require installation of a grease trap at any time.

(e) The sanitary board may modify the requirements for the size of the grease trap, as calculated is subsection (a), (b), or (c) of this section, for good cause, including, but not limited to, restrictions in the space for installation of a grease trap.
(Bill No. 6876, § 25-57, 2-19-2002)

**Sec. 118-244. New construction.**

(a) Facilities constructed subsequent to the passage of this article, and required by this article to install a grease trap, shall locate the grease trap within 30 feet the fixtures served by the grease trap in an easily accessible location and, when possible, outside the facility to be served. If the grease trap is too large to allow the installation of a one-piece, easily removable lid, two lids shall be installed. Lids shall be positioned over the influent and effluent structures to allow for measurement, servicing, and removal of the FOG. No lid shall exceed 75 pounds in weight. Sample ports shall be installed on the grease trap effluent line.

(b) Prior to construction, the contractor and/or operator of the new facility shall submit the following to the sanitary board:

(1) Plans and specifications for the proposed grease trap;

(2) Site plans showing grease trap location and fixture(s) to be served;

(3) Seating capacity of the facility; and

(4) Calculation of the required size of the grease trap. Restaurants, cafeterias, or any other facility that prepares food for resale, patients, or club members shall calculate the required size as set forth section 118-243(a). All other facilities shall calculate the required size as set forth in section 118-243(b).

The grease trap may be installation and/or construction upon receipt of the written approval of the plans and specifications by the sanitary board. The grease trap may be used after inspection by the sanitary board and upon receiving a grease trap permit from the sanitary board.
(Bill No. 6876, § 25-58, 2-19-2002)

**Sec. 118-245. Grease trap permits.**

(a) No facility shall operate a grease trap without a grease trap permit. In order to obtain a grease trap permit, the owner and/or operator of the facility that is require[d] to have a grease trap permit by this article shall submit a completed permit application, including plans and specifications, site plan, seating capacity of the facility, and the calculation of the required size of the grease trap the sanitary board at least 60 days prior or[to] the date the facility begins operation. The sanitary board shall approve or reject the application in writing within ten days of its submission.

(1) In the event that the application is approved, the owner and/or operator shall install the grease trap, or modify an existing grease trap, in accordance with the plans and specifications and shall notify the sanitary board when said installation/modification i[s] completed. The notification shall occur at least ten (10) days prior to the date the facility begins operations. A grease trap permit shall not be issued until the sanitary board has inspected the grease trap.

(b) Grease trap permits shall be issued for a specified time period not to exceed three years. A grease trap permit may be issued for a period less than three years at the discretion of the general manager.

(c) Grease trap permits may be re-assigned or transferred to a new owner and/or operator only with prior written approval of the general manager.

(d) Grease trap permits may be terminated for the following reasons:

(1) Failure to properly install, operate, or maintain the grease trap;

(2) Refusing to allow timely access by sanitary board personnel to the facility, the facility grease trap, or the facility grease trap records;

(3) Failure to pay the grease trap fee;

(4) Failure to pay sewer use fees;

(5) Failure to meet effluent limitations; and

(6) Failure to maintain accurate grease trap records.

(e) The owner and/or operator shall apply for grease trap permit reissuance by submitting a completed permit application a minimum of 60 days prior to expiration of the existing grease trap permit. An expired grease trap permit will continue to be effective and enforceable until the grease trap permit is reissued, if the application has been submitted in a timely manner and the failure to reissue the grease trap permit prior to the expiration of the previous grease trap permit is not due to any act, or failure to act, on the owner and/or operator.

(f) Existing facilities that are required to obtain a grease trap permit by this article shall submit a completed grease trap permit application within 60 days of the date of the passage of this article. The sanitary board shall review each application and, if necessary, inspect, each facility, to determine whether it is in compliance with the provisions in this article. If the facility is in compliance, the sanitary board the owner and/or operator a grease trap permit. In the event that the facility is not in compliance, the sanitary board will issue a notice of violation, pursuant to section 118-247 of this article.
(Bill No. 6876, § 25-59, 2-19-2002)

**Sec. 118-246. Disposal of fats, oils, and grease.**

(a) Facilities that clean their grease traps and dispose of the grease themselves must maintain, and have available for inspection by the sanitary board, a log for the previous three years which contains the following information:

(1) The date and time the grease trap was cleaned;

(2) The volume, in gallons, of FOG removed;

(3) The method of disposal.

Log sheets shall be supplied by the sanitary board.

(b) Facilities that employ third-parties to clean their grease traps must maintain, and have available for inspection by the sanitary board, receipts for the previous three years from said third-parties reflecting the date and time of the FOG removal, the volume of FOG removed, the amount paid for services, and receipts from the facility where the third-party disposed of the FOG. A representative of the facility must be present when a third-party cleans a grease trap.

(c) Failure to keep said log or receipts shall be sufficient grounds for the termination of the facilities grease trap permit.
(Bill No. 6876, § 25-60, 2-19-2002)

**Sec. 118-247. Inspection.**

The sanitary board shall have the right to enter an[y] facility covered by this article during normal operating hours without prior notice to inspect and test the grease trap and related fixtures and plumbing, and inspect the facilities log or third party receipts. Any violations found during inspection shall be noted on an inspection form and a subsequent notice of violation will be sent to the owner and/or operator of the facility by First Class mail, which will give said owner and/or operator 14 days to correct the violation. Extensions of the 14-day period, requested in writing by the owner or operator, may be granted for good cause shown. Failure to correct the violation may result in the termination of the facilities grease trap permit. Nothing in this article, however, shall limit the sanitary board's right to pursue the remedies set forth in section 118-180 enforcement procedures, in addition to the remedies set forth herein.
(Bill No. 6876, § 25-61, 2-19-2002)

**Sec. 118-248. Enforcement.**

(a) When sanitary board finds that the provisions of this article have been violated and issues a notice of violation, as set forth in section 118-247, the owner or operator may file a written objection to the notice of violation with the sanitary board within ten days of the date of said notice. Said written objection must specify the reasons for said objection.

(b) Upon receipt of the written objection from the owner and/or operator to the notice of violation, the sanitary board shall determine whether said objection raises an issue of disputed fact that

is material to the alleged violation. If the sanitary board determines that a material issue of disputed fact has been raised, the sanitary board shall schedule the matter for hearing, to be conducted under the procedures set forth in section 118-180.

(c) After review of the evidence, if the sanitary board concludes that this article has been violated, it may issue an order revoking the facility grease trap permit has been violated establishing commence that the owner and/or operator must meet in order to receive a new grease trap permit. The sanitary board also may terminate sewer service to the facility, or such other remedy as justice requires.

(d) If any person violates a provision of this article, any order of the sanitary board issued under section 118-247, or any term or condition of a grease trap permit issued under this article, the sanitary board may commence an action for appropriate legal and/or equitable relief in the Circuit Court of Kanawha County, including, but not limited to, enjoining further commercial activity at the facility until the facility has complied with the requirements of this article. The sanitary board may also recover reasonable attorney's fees, court costs, court reporter fees and other expenses of litigation in said action.
(Bill No. 6876, § 25-62, 2-19-2002)

Chapters 119—121

**RESERVED**

Chapter 122

# VEHICLES FOR HIRE*

## Article I. In General

Secs. 122-1—122-30. Reserved.

## Article II. Taxicabs


Sec. 122-31. Definitions.
Sec. 122-32. Penalties.
Sec. 122-33. Designation and use of stands; taxicabs limited as to parking.
Sec. 122-34. Licensing and regulation of stands.
Sec. 122-35. Use of stand by persons other than licensee.
Sec. 122-36. Double or triple parking or parking too far from curb at a taxicab stand.
Sec. 122-37. Common carriers; certificate of convenience and necessity and permits.
Sec. 122-38. Stopping.
Sec. 122-39. Owner responsible for illegal operating.
Sec. 122-40. Condemnation of defective vehicles.
Sec. 122-41. Disorderly conduct; liquor.


*__Cross references—__Businesses, ch. 18; streets, sidewalks and other public places, ch. 102; traffic ordinance, ch. 114.

# APPENDIX A

## RULES OF COUNCIL*


Rule No. 1. Time and place of meetings.
Rule No. 2. Committees.
Rule No. 3. Filing of papers to be introduced at city council meetings, and action thereon by clerk of council.
Rule No. 4. Order of business at regular meetings; special order of business.
Rule No. 5. Reading the journal.
Rule No. 6. Draft of bills and resolutions.
Rule No. 7. Procedures for enacting ordinances.
Rule No. 8. Reference of bills, resolutions, etc., to committees.
Rule No. 9. Requests for action; making entries in the journal.
Rule No. 10. Reports of committees.
Rule No. 11. Resolutions and motions to amend.
Rule No. 12. Rules of debate.
Rule No. 13. Call for a division of a question.
Rule No. 14. Use of a previous roll call.
Rule No. 15. When a member abstains from voting.
Rule No. 16. Decisions on questions of order.
Rule No. 17. Presiding officer may relinquish chair.
Rule No. 18. Demand of previous question.
Rule No. 19. Rescission, amendment and suspension of rules.
Rule No. 20. Calling for a division of city council.
Rule No. 21. Parliamentary rules of order.
Rule No. 22. Members of the public speaking before city council.
Rule No. 23. Order of business at regular meetings; special order of business.
Rule No. 24. Floor privileges.
Rule No. 25. Media credentials and decorum.


---

***Editor's note—**Res. No. 754-23, adopted Jan. 3, 2023, repealed App. A, Rules 1—23, which pertained to similar subject matter and derived from Res. No. 160-19, adopted Jan. 22, 2019; Res. No. 218-19, adopted July 15, 2019; Bill No. Res. No. 316-20, adopted March 16, 2020; Res. No. 416-21, adopted Jan. 19, 2021; Res. No. 529-21, adopted Sept. 7, 2021; and Res. No. 582-21, Jan. 18, 2022.

**Cross reference—**Administration, ch. 2.

**Rule No. 1. Time and place of meetings.**

(a) The city council shall meet in regular public session at the council chamber in the city building at 7:00 p.m. on the first and third Mondays of each month. If the first or third Monday is a holiday, the city council shall meet on the next business day at 7:00 p.m.

(b) If the city council shall determine that the council chamber in the city building is not or will not, for any reason, be an appropriate place for the holding of a meeting, the council may, upon motion, designate another place open to the public within the city for the holding of such meeting.

(c) Notwithstanding the provisions of subsection (b) of this rule, the presiding officer may make an emergency declaration that a natural or man-made disaster has actually occurred or is imminent or that an emergency exists or may be imminent due to a large-scale threat beyond local control, which requires the meeting of council to be held electronically, rather than in-person. An electronic meeting may be held over media such as audio, video, or computer-based communications when the presiding officer makes such an emergency declaration. If the presiding officer exercises the authority under this subsection to require an electronic meeting, the meeting shall be held in a manner that ensures city council members are able to participate and the public is able to observe the meeting consistent with the West Virginia Open Governmental Proceedings Act, W.Va. Code § 6-9A-1, et seq.
(Res. No. 754-23, 1-3-2023)

**Rule No. 2. Committees.**

(a) The city council shall have the following standing committees:

Committee on Finance.

Committee on Ordinance and Rules.

Committee on Planning, Streets, and Traffic.

Committee on Public Safety.

Committee on Parks and Recreation.

Committee on Environment and Recycling.

Committee on Urban Renewal and Economic Development.

Committee on Facilities.

Committee on Parking Facilities.

(b) All standing committees shall consist of not less than three nor more than nine members unless the city council by resolution specifically provides otherwise. All standing committees shall be appointed by the mayor. The members of the Committee on Parking Facilities shall be the same as those appointed and serving as the members of the Committee on Finance.

(c) In addition to the foregoing standing committees, the city council may authorize such select committees as may be provided by resolution.
(Res. No. 754-23, 1-3-2023)

**Rule No. 3. Filing of papers to be introduced at city council meetings, and action thereon by clerk of council.**

In order to promote the orderly conduct of the business of the city council and the timely preparation of an accurate agenda, the following rules are hereby established:

(a) All bills, resolutions, petitions, committee reports, communications, appointments, and other documents for introduction or consideration by the city council must be filed in the office of the clerk of the council not later than 12:00 noon on Friday immediately preceding the day of the meeting at which it is intended they be introduced or considered; provided that this restriction shall not apply to the mayor or the mayor's designated deputy; provided, however, that any written mayoral recommendation or communication for the appointment of any individual to a position, board, or seat that requires the consent of council shall be filed by 12:00 noon on Friday immediately preceding the day of the meeting.

(b) Nothing herein shall be construed to prohibit any member of the city council,

at the proper order of business, from introducing or submitting any bill, resolution, petition, committee report or communication during any regular meeting.

(c) The clerk of the council shall assign a serial number to each bill and resolution introduced and shall have authority to edit and correct them as to form.

(d) No bill or resolution shall be filed with the clerk of the council or introduced from the floor unless it bears the signature of at least one member of the city council as sponsor. Any member of the city council, for this purpose, may verbally authorize the clerk of the council or any of the clerk's deputies to sign the member's name thereto.

(Res. No. 754-23, 1-3-2023)

**Rule No. 4. Order of business at regular meetings; special order of business.**

(a) The order of business for each regular meeting shall be:

(1) Roll call.

(2) To read, correct and approve of the minutes of previous meetings.

(3) To hear from public speakers pursuant to Rule No. 22.

(4) To receive and dispose of communications.

(5) To receive and dispose of petitions.

(6) To receive and dispose of resolutions.

(7) To receive reports of standing committees and act thereon.

(8) To receive reports of select committees and act thereon.

(9) To receive reports of city officials.

(10) Bills introduced and referred to the appropriate committees.

(11) Unfinished business and miscellaneous matters.

(12) Remarks by members.

(13) Roll call.

(14) Adjournment.

(b) The presiding officer may order any question a special order of business irrespective of the order of business set forth in subsection (a).
(Res. No. 754-23, 1-3-2023)

**Rule No. 5. Reading the journal.**

Following the roll call, the journal of the proceedings of the previous meeting shall be read and any alterations or corrections may be submitted and entered of record. Upon motion, duly approved, reading of the journal of the preceding of the previous meeting may be dispensed with.
(Res. No. 754-23, 1-3-2023)

**Rule No. 6. Draft of bills and resolutions.**

(a) All bills and resolutions introduced in the city council shall be typewritten on one side only, on plain white paper, measuring eight inches by 11 inches, single spaced and in such form as prescribed by the clerk of the council.

(b) No bill may be introduced in the city council proposing to amend any existing law unless the bill sets forth the section or sections to be amended in their entirety, and indicates:

(1) The language in existing law, if any, which the bill would eliminate by striking through such language; and

(2) Any language which the bill would add to said section or sections by underlining all such additional language.

(Res. No. 754-23, 1-3-2023)

**Rule No. 7. Procedures for enacting ordinances.**

A proposed ordinance shall be read by title at not less than two meetings of the city council with at least one week intervening between each meeting.

No proposed ordinance shall be materially amended at the same meeting at which finally adopted. No proposed amendment shall be construed as materially amending the proposed

ordinance except by order of the presiding officer either upon the presiding officer's own motion or that of any member of the city council.

The city council may enact an ordinance at the same meeting at which it is introduced in the case of a pressing public emergency in the event delay would endanger the public health, safety or morals. The nature of such emergency shall be set out in full in the proposed ordinance. No motion to suspend the rules shall be necessary or in order but any such proposed ordinance must be approved by an affirmative vote of two-thirds of the members elected to the city council except when otherwise provided in the Code of West Virginia.
(Res. No. 754-23, 1-3-2023)

**Rule No. 8. Reference of bills, resolutions, etc., to committees.**

No bill, resolution, petition, communication or report may be divided among two or more committees although it contains subjects properly within the jurisdiction of several committees but must be referred to one committee in its entirety.

When the presiding officer is of the opinion that a bill, resolution, petition, communication or report should be considered by more than one committee, at the time of referring it the presiding officer may direct that when the committee to which it is referred completes its consideration thereof and makes a recommendation with respect thereto, such bill, resolution, petition, communication or report shall be automatically referred to such other committee as directed by the presiding officer upon making the initial referral.

This provision shall not be construed as limiting the right of any member of the city council to move, or the presiding officer to order, the reference of any bill, resolution, petition, communication or report to another committee upon receipt of the report of the committee to which initially referred, or to recommit to the committee to which initially referred.
(Res. No. 754-23, 1-3-2023)

**Rule No. 9. Requests for action; making entries in the journal.**

Requests for action made by a member of the city council shall not be reproduced in the journal nor forwarded to the person or persons designated by the presiding officer for action or attention unless such request is reduced to writing and filed with the clerk of the council prior to adjournment of the meeting at which such request is made.

No remarks, voting explanations or words spoken in debate by any member of the city council shall be reproduced in the journal except by unanimous consent of the members of the council present, upon motion by a member and unless a written copy thereof is delivered to the office of the clerk of the council by 12:00 noon of the following day.

The clerk of the council is authorized to condense and summarize any requests for action, remarks, vote explanations and words spoken in debate that are to be noted in the journal, but all writings filed with the clerk shall be kept and preserved as an appendix to the journal.
(Res. No. 754-23, 1-3-2023)

**Rule No. 10. Reports of committees.**

All reports of committees shall be delivered to the clerk of the council for reading without comment, all statements or arguments to follow the reading thereof by the clerk.
(Res. No. 754-23, 1-3-2023)

**Rule No. 11. Resolutions and motions to amend.**

All resolutions and motions to amend any motion, resolution or bill shall be reduced to writing and shall be read by the clerk of the council before being debated. Forms on which amendments are to be written shall be prescribed by the clerk of the council and made available to any member.

A member of the city council may move to reconsider the vote on any question during the meeting at which such question was voted upon or at the next regular meeting of council if the member voted on the prevailing side or, irrespective of how the member voted, if there was not a roll call vote.

The following motions shall be decided without debate and without amendment:

(1) Motion to adjourn.

(2) Motion to table.

(3) Motion for the previous question.

(4) Motion to recess.

(Res. No. 754-23, 1-3-2023)

**Rule No. 12. Rules of debate.**

No question shall be debated until it has been propounded by the chair, and then the mover shall have the right to explain his or her view in preference to any other member and shall have the right to close the debate.

When two or more members of the city council arise at the same time, the presiding officer shall name the person to speak; but in all cases, the member who shall first rise and address the chair shall speak first.

No one shall disturb or interrupt a member who is speaking, without the member's permission, except to call to order if the member is transgressing the rules.

(Res. No. 754-23, 1-3-2023)

**Rule No. 13. Call for a division of a question.**

Any member of the city council may call for a division of any question before a vote is taken thereon if it comprehends propositions in substance so distinct that, if one proposition be taken away, another substantive proposition remains for decision by the city council; but a member of the city council calling for a division of a question shall state in what manner the question shall be divided.

(Res. No. 754-23, 1-3-2023)

**Rule No. 14. Use of a previous roll call.**

On any question, the roll call immediately next preceding may be used to record the vote of the city council upon a unanimous consent request by any member, provided such previous roll call was unanimous. If any member objects to the use of the previous roll call, the clerk will call the roll for the vote as if it were the first vote of the meeting.

(Res. No. 754-23, 1-3-2023)

**Rule No. 15. When a member abstains from voting.**

No member shall vote on any question before the city council if the member is directly and immediately interested therein other than as a citizen of the City of Charleston; however, no member may abstain from voting without, prior to a vote being taken, having stated the reason for not voting and having obtained a ruling from the presiding officer excusing the member from voting.

(Res. No. 754-23, 1-3-2023)

**Rule No. 16. Decisions on questions of order.**

The presiding officer shall decide all questions of order, subject to an appeal to the city council which shall be determined by a majority vote of those present and voting.

(Res. No. 754-23, 1-3-2023)

**Rule No. 17. Presiding officer may relinquish chair.**

The presiding officer of the city council may call any member of the city council to the chair, who shall exercise its functions for the time being.

(Res. No. 754-23, 1-3-2023)

**Rule No. 18. Demand of previous question.**

If the previous question be demanded, the presiding officer shall, without debate, put the question: "Shall the main question be now put?" If this question be decided in the affirmative, all further debate shall cease and the vote be at once taken on the proposition pending before the city council. When the council refuses to order the main question, the consideration of the subject shall be resumed as if the previous question had not been demanded.

(Res. No. 754-23, 1-3-2023)

**Rule No. 19. Rescission, amendment and suspension of rules.**

(a) No standing order or rule of the city council shall be rescinded or amended except by a majority vote of the members elected to the city council.

(b) No rule of the city council shall be suspended in any case except by unanimous consent of the councilmembers present, provided, that no rule shall be suspended if compliance therewith is made mandatory by state law, the city Charter or an ordinance of the City of Charleston.
(Res. No. 754-23, 1-3-2023)

**Rule No. 20. Calling for a division of city council.**

The presiding officer may in case of doubt and shall upon the request of any member call for a division of the city council on any vote by requiring first those voting in the affirmative to stand and then those voting in the negative to stand.
(Res. No. 754-23, 1-3-2023)

**Rule No. 21. Parliamentary rules of order.**

The rules of parliamentary usage comprised in the manual known as "Manual of Legislative Procedure" by Paul Mason shall govern the city council in all cases not provided for by the rules of city council, city Charter and state law. In any case not governed by said manual, said rules, city Charter or state law, the city council shall be governed by the practice in the House of Delegates of the State of West Virginia.

A copy of said manual shall remain on file in the office of the clerk of the city council.
(Res. No. 754-23, 1-3-2023)

**Rule No. 22. Members of the public speaking before city council.**

(a) A member of council may ask the floor for a member of the public to speak before council, which said motion is nondebatable. Upon such request, the presiding officer shall inquire of the councilmember the subject matter of the inquiry and ask council if there is any objection to the person speaking, and, if an objection is raised, then council, by majority vote, shall determine whether or not the person shall be allowed to address council. Any person addressing council shall be allowed no more than five minutes to make remarks, unless by unanimous consent council allows a longer period of time.

(b) A maximum of ten minutes shall be set aside at the outset of each meeting of the council to permit members of the public, without leave of council, to address the council on any matter pertaining to the city's business. Any member of the public wishing to address the council shall first register with the clerk of the city council, or the clerk's designated representative for such purpose, in the council's chambers not earlier than 15 minutes before the beginning of each meeting setting forth his or her name, the group, if any, on whose behalf he or she wishes to speak, and the subject matter which he or she wishes to address: Provided, that if the presiding officer exercises the authority contained in rule 1(c) to hold a meeting electronically, then the city clerk may provide for an extended and different period of time and manner for public speakers to sign up that will allow for an efficient meeting of council and create ample opportunity for the public to participate, as long as that period of time and manner are included on the publicly posted agenda for the meeting. If more than one person registers to address council, such persons shall be allocated time on a prorated basis, and shall be permitted to speak only for the time allotted. In no event shall more than five people be permitted to address the council under this rule 22(b). Nothing in this rule 22(b) shall affect the ability of a member of council to request that a member of the public be allowed to speak pursuant to rule 22(a).
(Res. No. 754-23, 1-3-2023)

**Rule No. 23. Order of business at regular meetings; special order of business.**

(a) The city council hereby recognizes that the provision of section 86 of the City of Charleston Charter that purports to automatically declare a member's office vacant if they have three consecutive unexcused absences have been superseded

by state law. Namely, the West Virginia Legislature created a process for the removal of public officers, including members of city council, that provides due process and is contained in W. Va. Code § 6-6-7.

(b) Notwithstanding section (a) of this rule, the city council finds that attendance at city council meetings is an important part of each member's duties and encourages all members to attend each meeting. In recognition of this, the city council desires to formalize a process for alerting the city clerk with respect to absences in advance of scheduled meetings, as contained in section (c) of this rule.

(c) Before 5:00 p.m. on the day of a scheduled meeting of city council or on a day further in advance, a member that is unable to attend a scheduled meeting of city council may contact the city clerk by email to notify the clerk of the impending absence and whether the absence is due to a business, family, medical, or personal reason. If timely notice of the absence is received by email, the absence will be declared excused and entered in the journal as such. If a member does not provide timely notice of the absence, they may provide notice as soon as possible thereafter to the city clerk and the city council may move to declare the absence excused at the next regularly scheduled meeting. If no notice is provided, the absence will remain classified as unexcused. The city council further acknowledges that whether an absence is excused or unexcused, by itself, has no bearing on the potential removal from office of any member pursuant to the requirements contained in W. Va. Code § 6-6-7.
(Res. No. 754-23, 1-3-2023)

**Rule No. 24. Floor privileges.**

For ten minutes before council is in session, when council is in session, and for ten minutes after council session has ended, only members of council and city staff who are present for an official purpose are permitted to be on the floor of council: Provided, that any member of the public invited forward by the presiding officer is permitted to be on the floor of council. All other people shall remain in the gallery while the city council is in session. The first row of the gallery on the left side when facing the presiding officer shall be reserved for members of the media.
(Res. No. 885-23, 10-2-2023)

**Rule No. 25. Media credentials and decorum.**

These guidelines are intended to allow access to city council and its members while minimizing distractions and disruptions of council while in session.

A media applicant for media privileges must establish to the satisfaction of the presiding officer or any such representative he or she may appoint that the applicant is a full-time, paid correspondent who requires on-site access to members. Correspondents must be employed by a news organization whose principal business is the dissemination of original news and opinion of interest to a broad segment of the public. Freelance and contract employees must apply for credentials through a sponsoring publication, broadcast outlet, or website that meets all media guidelines for coverage of city council. Applicants must not be engaged in any lobbying or paid advocacy, advertising, publicity or promotion work for any individual, political party, candidate for office, corporation, organization or agency of the government, nor in prosecuting any claim before the city of any city department and may not do so while a member of the credentialed media. An applicant's publication must be a general news organization, editorially independent of any institution, foundation or interest group that lobbies the government. Press passes are good for one calendar year, and applicants must be submitted anew each year. All correspondents' cards must be displayed at all times. Citizen journalists or anyone employed by a group that lobbies council have the same access as members of the general public.
(Res. No. 885-23, 10-2-2023)

# APPENDIX B

## RESERVED*

*__Editor's note—__Bill No. 7047, adopted Apr. 19, 2004, repealed App. B, arts. I—XXVI, §§ 1-1—1-5, 2-1, 2-2, 3-1—3-6, 4-1—4-10, 5-1—5-10, 6-1—6-10, 7-1—7-10, 8-1—8-10, 9-1—9-10, 10-1—10-11, 11-1—11-9, 12-1—12-11, 13-1—13-10, 14-1—14-10, 15-1—15-55, 16-1—16-14, 17-1—17-13, 18-1—18-3, 19-1—19-5, 20-1—20-3, 21-1—21-11, 22-1—22-11, 23-1—23-4, 24-1—21-6, 25-1—25-7, 26-1—26-11, in its entirety and enacted new provisions to read as set out in ch. 91. Former App. B, pertained to zoning and derived from Ord. No. 2924, adopted Mar. 7, 1983.

# CODE COMPARATIVE TABLE

## 1975 CODE

This table gives the location within this Code of those sections of the 1975 Code, as updated through May 21, 1990, which are included herein. Sections of the 1975 Code, as supplemented, not listed herein have been omitted as repealed, superseded, obsolete or not of a general and permanent nature. For the location of ordinances adopted subsequent thereto, see the table immediately following this table.

| 1975 Code Section | Section this Code | 1975 Code Section | Section this Code |
|---|---|---|---|
| 1-1, 1-2 | 1-1, 1-2 | 2-178—2-181 | 2-651—2-654 |
| 1-4 | 1-3 | 2-213 | 114-602 |
| 1-5 | 1-9 | 3-1 | 6-1 |
| 1-6 | 1-4 | 3-2 | 6-111 |
| 1-7 | 1-8 | 3-3—3-5 | 6-91—6-93 |
| 1-8 | 1-5 | 3-6, 3-7 | 6-51, 6-52 |
| 1-9—1-13 | 1-10—1-14 | 3-7.1, 3-7.2 | 6-112, 6-113 |
| 2-1 | 2-131 | 3-8—3-11 | 6-53—6-56 |
| 2-2, 2-3 | 2-133, 2-134 | 3-12 | 6-131 |
| 2-5, 2-6 | 2-135, 2-136 | 3-13, 3-14 | 6-141, 6-142 |
| 2-7 | 2-139 | 3-15 | 6-132 |
| 2-8—2-10 | 2-331—2-333 | 3-16 | 6-143 |
| 2-11 | 2-378 | 3-17 | 6-133 |
| 2-12, 2-13 | 2-162, 2-163 | 4-1 | 10-1 |
| 2-13.1 | 30-1 | 4-2 | 10-51 |
| 2-14—2-21 | 2-61—2-68 | 4-3—4-10 | 10-71—10-78 |
| 2-22—2-25 | 2-91—2-94 | 4-11, 4-12 | 10-2, 10-3 |
| 2-26, 2-27 | 2-69, 2-70 | 4-13—4-17 | 10-5—10-9 |
| 2-28 | 2-140 | 4-18 | 10-4 |
| 2-29 | 2-132 | 4-19—4-23 | 10-10—10-14 |
| 2-30 | 2-31 | 4-25 | 10-111 |
| 2-31—2-33 | 2-181—2-183 | 4-26, 4-27 | 10-141, 10-142 |
| 2-34(a)—2-34(c) | 2-201—2-203 | 4-28 | 10-114 |
| 2-35 | 2-221, 2-222 | 4-28.1 | 10-116 |
| 2-38 | 2-261 | 4-29—4-31 | 10-161—10-163 |
| 2-39 | 2-281 | 4-32 | 10-113 |
| 2-40.1 | 2-301 | 4-33—4-38 | 10-117—10-122 |
| 2-41—2-43 | 2-361—2-363 | 4-39 | 10-115 |
| 2-43.1 | 2-364 | 4-40 | 10-112 |
| 2-44—2-55 | 2-365—2-376 | 5-21 | 14-32 |
| 2-55.1 | 2-377 | 5-21.1 | 14-33 |
| 2-56—2-70 | 2-401—2-415 | 5-22 | 14-34 |
| 2-71, 2-72 | 2-441, 2-442 | 5-23 | 14-31 |
| 2-73—2-82 | 2-471—2-480 | 5-24(a) | 14-35 |
| 2-83, 2-84 | 2-461, 2-462 | 5-25, 5-26 | 14-36, 14-37 |
| 2-84.1 | 2-138 | 5-47, 5-48 | 14-71, 14-72 |
| 2-84.2 | 2-463 | 5-49—5-52 | 14-91—14-94 |
| 2-152—2-155 | 2-531—2-534 | 5-53—5-59 | 14-111—14-117 |
| 2-156—2-161 | 2-551—2-556 | 5-60 | 14-73 |
| 2-162—2-165 | 2-621—2-624 | 5-61—5-69 | 14-141—14-149 |
| 2-165.1 | 2-625 | 5-70 | 30-62 |
| 2-166—2-168 | 2-626—2-628 | 5-71 | 30-61 |
| 2-169—2-177 | 90-31—90-39 | 5-72, 5-73 | 30-63, 30-64 |

| 1975 Code Section | Section this Code |
|---|---|
| 6-1—6-17 | 18-31—18-47 |
| 6-19, 6-20 | 18-48, 18-49 |
| 6-21 | 18-81 |
| 6-22, 6-23 | 18-112, 18-113 |
| 6-24 | 18-111 |
| 6-25—6-27 | 18-141—18-143 |
| 6-28 | 18-172 |
| 6-29—6-31 | 18-191—18-193 |
| 6-33 | 18-194 |
| 6-34 | 18-173 |
| 6-35 | 18-171 |
| 6-36 | 18-231 |
| 6-37—6-41 | 18-251—18-255 |
| 6-42, 6-43 | 18-291, 18-292 |
| 6-44 | 18-321 |
| 6-47 | 18-491 |
| 6-48 | 18-493 |
| 6-49 | 18-492 |
| 6-50, 6-51 | 18-551, 18-552 |
| 6-52 | 18-581 |
| 6-53 | 18-611 |
| 6-54, 6-55 | 18-631, 18-632 |
| 6-56 | 18-634 |
| 6-57 | 18-633 |
| 6-58 | 18-612 |
| 6-59 | 18-661 |
| 6-60—6-65 | 18-681—18-686 |
| 6-66 | 18-791 |
| 6-67—6-70 | 18-821—18-824 |
| 6-71—6-78 | 18-792—18-799 |
| 6-79—6-81 | 18-861—18-863 |
| 6-82 | 18-891 |
| 6-83—6-85 | 18-894—18-896 |
| 6-86 | 18-893 |
| 6-87 | 18-892 |
| 6-88—6-91 | 18-931—18-934 |
| 6-92, 6-93 | 18-971, 18-972 |
| 6-94 | 18-991 |
| 6-95, 6-96 | 18-995, 18-996 |
| 6-97 | 18-992 |
| 6-98 | 18-997 |
| 6-99, 6-100 | 18-993, 18-994 |
| 6-101, 6-102 | 18-1000, 18-1001 |
| 6-103 | 18-999 |
| 6-104 | 18-998 |
| 6-105 | 18-1101 |
| 6-106 | 18-1131 |
| 6-106.1 | 18-721 |
| 6-106.2—6-106.7 | 18-751—18-756 |
| 6-106.9—6-106.11 | 18-723—18-725 |
| 6-106.12 | 18-722 |
| 6-107 | 110-31 |
| 6-108—6-120 | 110-51—110-63 |
| 6-121—6-123 | 110-81—110-83 |
| 6-123 | 110-115 |
| 6-124—6-127 | 110-84—110-87 |
| 6-129 | 110-88 |
| 6-129—6-131 | 110-112—110-114 |
| 6-133—6-136 | 110-141—110-144 |
| 6-137 | 110-33 |
| 6-138 | 110-111 |
| 6-139 | 110-145 |
| 6-141 | 110-146, 110-147 |
| 6-142, 6-143 | 110-148, 110-149 |
| 6-144 | 110-34 |
| 6-145 | 110-181 |
| 6-146—6-153 | 110-183—110-190 |
| 6-154 | 110-182 |
| 6-155, 6-156 | 110-191, 110-192 |
| 6-157 | 18-352 |
| 6-158 | 18-351 |
| 6-159—6-168 | 18-381—18-390 |
| 6-169, 6-170 | 18-353, 18-354 |
| 6-171, 6-172 | 110-251, 110-252 |
| 6-173 | 110-221 |
| 6-174 | 110-272 |
| 6-175 | 110-253 |
| 6-176 | 110-271 |
| 6-177—6-182 | 110-273—110-278 |
| 6-183—6-186 | 110-222—110-225 |
| 6-189 | 18-521 |
| 6-190 | 18-523 |
| 6-191 | 18-522 |
| 6-192, 6-193 | 110-311, 110-312 |
| 6-194, 6-195 | 110-314, 110-315 |
| 6-196 | 110-313 |
| 6-197, 6-198 | 110-316, 110-317 |
| 6-199 | 18-1161 |
| 6-199—6-201 | 18-1163—18-1165 |
| 6-202 | 18-1162 |
| 7-1—7-14 | 42-31—42-44 |
| 8-1—8-7 | 42-81—42-87 |
| 10-1—10-9 | 34-31—34-39 |
| 10-10, 10-11 | 26-1, 26-2 |
| 10-12—10-17 | 26-31—26-36 |
| 12-1—12-3 | 54-1—54-3 |

| 1975 Code Section | Section this Code |
|---|---|
| 12-21—12-26 | 54-141—54-146 |
| 12-27—12-30 | 54-41—54-44 |
| 12-31 | 54-52 |
| 12-32 | 54-45 |
| 12-33 | 54-72 |
| 12-34 | 54-71 |
| 12-35 | 54-4 |
| 12-36, 12-37 | 54-73, 54-74 |
| 12-37(a) | 54-75 |
| 12-38—12-40 | 54-49—54-51 |
| 12-41 | 54-48 |
| 12-42 | 54-46 |
| 12-43.1—12-43.5 | 54-101—54-105 |
| 12-43.6 | 54-47 |
| 12-44—12-48 | 54-181—54-185 |
| 13-1—13-8 | 98-2—98-9 |
| 13-9 | 50-1 |
| 13-10 | 98-10 |
| 13-11 | 98-41 |
| 13-12—13-20 | 98-43—98-51 |
| 13-20.1 | 98-52 |
| 13-21 | 98-71 |
| 13-21.1 | 98-72 |
| 13-22—13-31 | 98-73—98-82 |
| 13-32—13-35 | 50-121—50-124 |
| 13-36 | 98-101 |
| 13-37—13-42 | 98-121—98-126 |
| 14-1—14-6 | 58-1—58-6 |
| 14-7—14-9 | 78-381—78-383 |
| 14-10 | 58-7 |
| 15-1 | 62-1 |
| 15-2 | 62-3 |
| 15-3 | 62-2 |
| 15-4—15-8 | 62-41—62-45 |
| 15-9 | 62-81 |
| 15-10—15-12 | 62-84—62-86 |
| 15-13, 15-14 | 62-4, 62-5 |
| 15-15 | 62-83 |
| 15-16, 15-17 | 62-6, 62-7 |
| 15-18 | 62-82 |
| 16-1—16-24 | 38-31—38-54 |
| 16-25—16-29 | 38-121—38-125 |
| 16-30—16-32 | 66-152—66-154 |
| 16-34 | 66-155 |
| 16-35 | 66-151 |
| 16-36—16-58 | 38-81—38-103 |
| 17-1—17-3 | 50-31—50-33 |
| 17-4—17-9 | 50-35—50-40 |
| 17-10—17-12 | 50-42—50-44 |
| 17-12—17-17 | 50-45—50-50 |
| 18-1 | 78-291 |
| 18-1.1 | 78-3 |
| 18-2, 18-3 | 78-132, 78-133 |
| 18-4 | 78-2 |
| 18-5 | 78-1 |
| 18-6 | 78-43 |
| 18-7(a), 18-7(b) | 78-201, 78-202 |
| 18-8 | 78-4 |
| 18-9, 18-10 | 78-412, 78-413 |
| 18-12 | 78-414 |
| 18-14 | 78-61 |
| 18-15 | 78-82 |
| 18-16 | 78-415 |
| 18-18, 18-19 | 78-205, 78-206 |
| 18-21 | 78-207 |
| 18-22 | 78-211 |
| 18-23 | 78-131 |
| 18-24 | 14-3 |
| 18-25, 18-26 | 78-341, 78-342 |
| 18-27—18-30 | 78-344—78-347 |
| 18-31 | 78-343 |
| 18-32(a), (c) | 78-348 |
| 18-33 | 78-349 |
| 18-33.1 | 78-350 |
| 18-34 | 78-411 |
| 18-35 | 78-292 |
| 18-36—18-38 | 78-311—78-313 |
| 18-39 | 78-208 |
| 18-40 | 78-81 |
| 18-41, 18-42 | 78-83, 78-84 |
| 18-43 | 78-42 |
| 18-44.1, 18-44.2 | 78-371, 78-372 |
| 18-45 | 78-85 |
| 18-47, 18-48 | 78-212, 78-213 |
| 18-49, 18-50 | 102-16, 102-17 |
| 18-51 | 78-5 |
| 18-52 | 78-62 |
| 18-53 | 78-322—78-328 |
| 18-54 | 78-209 |
| 18-55 | 78-41 |
| 18-56, 18-57 | 78-203, 78-204 |
| 18-58 | 78-101 |
| 18-60 | 78-102 |
| 18-61 | 78-134 |
| 18-62, 18-63 | 78-6, 78-7 |
| 18-63.1 | 78-8 |
| 18-65 | 78-9 |
| 18-66 | 78-163 |
| 18-67—18-71 | 78-166—78-170 |
| 18-72, 18-73 | 78-161, 78-162 |

| 1975 Code Section | Section this Code |
|---|---|
| 18-531 | 78-321 |
| 19-1, 19-2 | 82-1, 82-2 |
| 19-3—19-7 | 82-41—82-45 |
| 19-8 | 82-3 |
| 19-8.1 | 82-125 |
| 19-8.2 | 82-123 |
| 19-9—19-12 | 82-81—82-84 |
| 20-1—20-4 | 78-231—78-234 |
| 21-1—21-13 | 102-212—102-224 |
| 21-14 | 102-211 |
| 22-1—22-9 | 66-31—66-39 |
| 22-10 | 66-61 |
| 22-10.5 | 66-62 |
| 22-11—22-13 | 66-63—66-65 |
| 22-13.1 | 66-66 |
| 22-14—22-17 | 66-91—66-94 |
| 23-1, 23-2 | 94-1, 94-2 |
| 23-9, 23-10 | 94-3, 94-4 |
| 23-14, 23-15 | 94-5, 94-6 |
| 24-1—24-7 | 14-182—14-188 |
| 24-8 | 14-181 |
| 25-1, 25-2 | 118-61, 118-62 |
| 25-3—25-6 | 118-101—118-104 |
| 25-7—25-11 | 118-141—118-145 |
| 25-13 | 118-146 |
| 25-14—25-24 | 118-63—118-73 |
| 25-25—25-27 | 118-121—118-123 |
| 25-28—25-36 | 118-74—118-82 |
| 25-37—25-42 | 118-171—118-176 |
| 27-4 | 2-161 |
| 28-1—28-15 | 102-1—102-15 |
| 28-16 | 82-121 |
| 28-17—28-22 | 102-51—102-56 |
| 28-23, 28-24 | 102-151 |
| 28-25—28-28 | 102-171—102-174 |
| 28-29 | 102-91 |
| 28-30—28-32 | 102-121—102-123 |
| 28-33, 28-34 | 102-93, 102-94 |
| 28-35—28-39 | 102-96—102-100 |
| 28-40 | 102-95 |
| 28-41 | 102-92 |
| 28-42—28-44 | 102-261—102-263 |
| 29-1—29-3 | 106-1—106-3 |
| 29-4 | 106-41 |
| 29-4.1(a)—(c) | 106-4 |
| 29-4.1(d) | 106-65 |
| 29-4.1(e) | 106-64 |
| 29-4.1(f) | 106-4 |
| 29-5 | 106-93 |
| 29-6, 29-7 | 106-7, 106-8 |
| 29-8 | 106-42 |
| 29-9, 29-10 | 106-5, 106-6 |
| 29-11—29-13 | 106-61—106-63 |
| 29-14, 29-15 | 106-181, 106-182 |
| 29-15.1 | 106-183 |
| 29-16 | 106-185 |
| 29-17 | 106-211 |
| 29-17.1, 29-17.2 | 106-212, 106-213 |
| 29-18—29-21 | 106-186—106-189 |
| 29-22 | 106-184 |
| 29-23 | 106-121 |
| 29-24—29-30 | 106-141—106-147 |
| 29-31 | 106-122 |
| 29-32, 29-33 | 106-91, 106-92 |
| 29-34 | 106-43 |
| 30-1 | 70-51 |
| 30-2—30-6 | 70-101—70-105 |
| 30-7 | 70-108 |
| 30-8, 30-9 | 70-106, 70-107 |
| 30-10—30-21 | 70-53—70-64 |
| 30-22 | 70-52 |
| 31-1, 31-2 | 114-1, 114-2 |
| 31-3—31-9 | 114-6—114-12 |
| 31-10—31-12 | 114-51—114-53 |
| 31-13—31-24 | 114-13—114-24 |
| 31-25 | 114-5 |
| 31-26 | 114-4 |
| 31-27 | 114-81 |
| 31-28 | 114-3 |
| 31-29, 31-30 | 114-232, 114-233 |
| 31-31(a)—(e) | 114-234 |
| 31-31(f) | 114-236 |
| 31-31(g) | 114-234<br>114-370 |
| 31-32—31-35 | 114-237—114-240 |
| 31-37 | 114-241 |
| 31-38 | 114-231 |

| 1975 Code Section | Section this Code |
|---|---|
| 31-39, 31-40 | 114-54, 114-55 |
| 31-41 | 114-242 |
| 31-42—31-46 | 114-261—114-265 |
| 31-47—31-52 | 114-361—114-366 |
| 31-53 | 114-468 |
| 31-54 | 114-367 |
| 31-55 | 114-465 |
| 31-56, 31-57 | 114-470, 114-471 |
| 31-58—31-60 | 114-431—114-433 |
| 31-61 | 114-435 |
| 31-62 | 114-434 |
| 31-63—31-68 | 114-436—114-441 |
| 31-69—31-75 | 114-368—114-374 |
| 31-77—31-82 | 114-375—114-380 |
| 31-83(a) | 114-461 |
| 31-83(b), (c) | 114-469 |
| 31-84 | 114-467 |
| 31-85(a) | 114-462 |
| 31-85(b) | 114-235 |
| 31-86(a), 31-86(b) | 114-463, 114-464 |
| 31-87 | 114-466 |
| 31-88—31-93 | 114-491—114-496 |
| 31-94—31-99 | 114-511—114-516 |
| 31-100—31-106 | 114-401—114-407 |
| 31-107(a)—31-107(d) | 114-191—114-194 |
| 31-108, 31-109 | 114-301, 114-302 |
| 31-109.1 | 114-303 |
| 31-110—31-116 | 114-321—114-327 |
| 31-117—31-126 | 114-661—114-670 |
| 31-127—31-130 | 114-731—114-734 |
| 31-131—31-142 | 114-701—114-712 |
| 31-143 | 114-811 |
| 31-143.1 | 114-812 |
| 31-144—31-152 | 114-813—114-821 |
| 31-153 | 114-381 |
| 31-154, 31-155 | 114-822, 114-823 |
| 31-156 | 114-792 |
| 31-157 | 114-824 |
| 31-158—31-161 | 78-251—78-254 |
| 31-162 | 122-31 |
| 31-163—31-171 | 122-33—122-41 |
| 31-172 | 122-32 |
| 31-173—31-183 | 50-81—50-91 |
| 31-183.1 | 50-92 |
| 31-184—31-203 | 114-554—114-573 |
| 31-205—31-208 | 114-574—114-577 |
| 31-209, 31-210 | 114-552, 114-553 |
| 31-211 | 114-551 |
| 31-212 | 114-601 |
| 31-214, 31-215 | 114-621, 114-622 |
| 31-215—31-219 | 114-623—114-627 |
| 31-219.1 | 114-628 |
| 31-220—31-230 | 114-82—114-92 |
| 31-231—31-241 | 114-121—114-131 |
| 31-242—31-246 | 114-151—114-155 |
| 31-247, 31-248 | 114-761, 114-762 |
| 32-21 | 74-31 |
| 32-22—32-25 | 118-31—118-34 |
| 32-26—32-32 | 74-33—74-39 |
| 32-33 | 74-32 |
| 32-34—32-37 | 58-41—58-44 |

# CODE COMPARATIVE TABLE

## ORDINANCES

This table gives the location within this Code of those ordinances adopted since the 1975 Code, as updated through May 21, 1990, which are included herein. Ordinances adopted prior to such date were incorporated into the 1975 Code, as supplemented. This table contains some ordinances which precede May 21, 1990, but which were never included in the 1975 Code, as supplemented, for various reasons. Ordinances adopted since May 21, 1990, and not listed herein have been omitted as repealed, superseded or not of a general and permanent nature.

| Ordinance Number | Date | Section | Section this Code |
|---|---|---|---|
| 3038 | 2- 7-1983 | | App. B, § 15-29 |
| 3699 | 3- 5-1984 | | App. B, § 2-2 |
| 3878 | 6- 3-1985 | | App. B, § 2-2 |
| 3879 | 6- 3-1985 | | App. B, § 21-2 |
| 4316 | 7- 5-1988 | | App. B, § 2-2 |
| 4467 | 2- 4-1991 | | 2-137 |
| 4513 | 1- 2-1990 | | App. B, § 12-4 |
| 4579 | 8- 6-1990 | | App. B, § 2-2 |
| | | | App. B, § 4-3 |
| | | | App. B, § 5-3 |
| | | | App. B, § 6-3 |
| | | | App. B, § 8-3 |
| | | | App. B, § 9-3 |
| | | | App. B, § 10-3 |
| | | | App. B, § 11-3 |
| 4591 | 4-16-1991 | 18-22 | 78-211 |
| 4592 | 4-16-1992 | | 114-6 |
| 4604 | 9-17-1990 | | App. B, § 11-4 |
| 4631 | 10-13-1990 | | 2-161 |
| 4649 | 1- 7-1991 | | App. B, § 2-2 |
| 4699 | 8- 5-1991 | | App. B, § 11-4 |
| 4810 | 3-22-1993 | | 66-67 |
| 4826 | 6- 1-1992 | | App. B, § 9-4 |
| 4838 | 5- 4-1992 | 2-36(a), 2-36(b) | 2-241, 2-242 |
| 4852 | 7- 6-1992 | | 118-141 |
| 4855 | 8- 3-1992 | | App. B, § 2-2 |
| | | | App. B, § 4-4 |
| | | | App. B, § 5-4 |
| | | | App. B, § 11-3 |
| | | | App. B, § 12-3 |
| | | | App. B, § 15-4 |
| | | | App. B, § 18-3 |
| 4859 | 12- 7-1992 | | 102-262 |
| 4866 | 12- 7-1992 | 17-9.1 | 50-41 |
| 4867 | 8-17-1992 | | 78-164 |
| 4883 | 12- 7-1992 | | 110-1 |
| 4898 | 12- 2-1993 | | 2-461 |
| 4904 | 1- 4-1993 | | 110-55 |
| 4906 | 2- 1-1993 | | 114-602 |
| 4925 | 9-20-1993 | | 2-136 |
| 4935 | 3-22-1993 | | 18-863 |
| 4939 | 4-19-1993 | | 66-65 |
| 4941 | 4-19-1993 | | 78-165 |
| 4960 | 6- 7-1993 | 22-13 | 66-65 |
| 4979 | 7-19-1993 | 19-8.3 | 82-122 |

| Ordinance Number | Date | Section | Section this Code |
|---|---|---|---|
| 4981 | | 17-3.1(a)—(c) | 50-34 |
| | | 17-3.1(g) | 50-34 |
| 4982 | 7- 9-1993 | 6.106.2.1—6.106.2.4 | 18-451—18-454 |
| | | 6.106.2.5—6.106.2.8 | 18-425—18-428 |
| | | 6.106.2.9 | 18-421 |
| | | 6.106.2.10 | 18-424 |
| | | 6.106.2.11, 6.106.2.12 | 18-422, 18-423 |
| 4992 | 9- 7-1993 | | App. B, § 6-4 |
| | | | App. B, § 7-4 |
| | | | App. B, § 8-4 |
| | | | App. B, § 9-4 |
| 4999 | 8-16-1993 | 6-144.1 | 110-32 |
| 5000 | 8- 2-1993 | | 82-124 |
| 5036 | 1- 3-1994 | | App. B, § 4-3, |
| | | | App. B, § 4-4 |
| | | | App. B, § 5-3, |
| | | | App. B, § 5-4 |
| | | | App. B, § 5-10 |
| | | | App. B, § 6-10 |
| | | | App. B, § 7-10 |
| | | | App. B, § 8-10 |
| | | | App. B, § 16-10 |
| | | | App. B, § 21-3 |
| | | | App. B, § 21-7 |
| 5051 | 11-15-1993 | 2-182—2-185 | 66-111—66-114 |
| 5061 | 12- 6-1993 | | 118-141 |
| 5072 | 3- 7-1994 | | App. B, § 10-3 |
| 5076 | 2- 7-1994 | 1—14 | 118-201— |
| | | | 118-214 |
| 6003 | 5-16-1994 | 25-10 | 118-144 |
| 6004 | 5-16-1994 | | 114-602 |
| 6006 | 10-17-1994 | 28-12 | 102-12 |
| 6006 | 2-21-1995 | 6-49.1 | 18-1031 |
| | | 6-49.2 | 18-1034 |
| | | 6-49.3, 6-49.4 | 18-1031 |
| | | 6-49.5 | 18-1033 |
| | | 6-49.6—6-49.8 | 18-1061— |
| | | | 18-1063 |
| | | 6-49.9, 6-49.10 | 18-1035, |
| | | | 18-1036 |
| | | 6-49.11, 6-49.12 | 18-1064, |
| | | | 18-1065 |
| | | 6-49.13 | 18-1032 |
| 6008 | 6- 6-1994 | | 82-125 |
| 6013 | 7- 5-1994 | | 114-602 |
| 6035 | 9-19-1994 | 13-1—13-8 | 98-2—98-9 |
| | | 13-9 | 50-1 |
| | | 13-10 | 98-10 |
| | | 13-11 | 98-41 |
| | | 13-12—13-20 | 98-43—98-51 |
| | | 13-20.1 | 98-52 |
| | | 13-21 | 98-71 |
| | | 13-21.1 | 98-72 |
| | | 13-22—13-31 | 98-73—98-82 |
| | | 13-32—13-35 | 50-121—50-124 |
| | | 13-36 | 98-101 |
| | | 13-37—13-42 | 98-121—98-126 |

| Ordinance Number | Date | Section | | Section this Code |
|---|---|---|---|---|
| | | 13-43 | | 98-42 |
| | | 13-44 | | 98-151 |
| | | 13-45 | | 98-1 |
| 6043 | 10-17-1994 | 18-53(a) | | 78-321 |
| | | 18-53(b)—18-53(g) | | 78-323—78-328 |
| | | 18-53(h) | | 78-322 |
| 6052 | 11- 7-1994 | 31-39 | | 114-54 |
| 6055 | 1- 3-1995 | | | App. B, § 15-4 |
| 6064 | 12-19-1994 | | | 114-791 |
| 6140 | 11- 6-1995 | | | App. B, § 2-2 |
| 6148 | 12- 4-1995 | 6-121 | | 110-81 |
| 6163 | 11- 6-1995 | | | 114-602 |
| 6178 | 12- 4-1995 | 13-47—13-50 | | 98-171—98-174 |
| 6228 | 5- 6-1996 | 12-1—12-3 | | 54-1—54-3 |
| | | 12-21—12-26 | | 54-141—54-146 |
| | | 12-27—12-30 | | 54-41—54-44 |
| | | 12-31 | | 54-52 |
| | | 12-32 | | 54-45 |
| | | 12-33 | | 54-72 |
| | | 12-34 | | 54-71 |
| | | 12-35 | | 54-4 |
| | | 12-36, 12-37 | | 54-73, 54-74 |
| | | 12-37(a) | | 54-75 |
| | | 12-38—12-40 | | 54-49—54-51 |
| | | 12-41 | | 54-48 |
| | | 12-42 | | 54-46 |
| | | 12-43.1—12-43.5 | | 54-101—54-105 |
| | | 12-43.6 | | 54-47 |
| | | 12-44—12-48 | | 54-181—54-185 |
| 6244 | 7- 1-1996 | | | App. B, § 26-9, App. B, § 26-10 |
| 6247 | 7- 1-1996 | | | 114-602 |
| 6248 | 7- 1-1996 | | | 114-622 |
| 6262(Bill) | 10- 6-2003 | 19-8.1 | Added | 82-125(11), (12) |
| 6267 | 10-21-1996 | 12-38.1 | | 54-53 |
| 6271 | 11-18-1996 | 12-36.3 | | 54-103 |
| 6278 | 10- 7-1996 | | | 114-602 |
| 6298 | 5-15-2000 | 2-154 | | 2-533 |
| 6299 | 5-15-2000 | 28-45 | | 102-291 |
| | | 28-46 | | 102-293 |
| | | 28-47 | | 102-292 |
| | | 28-48, 28-49 | | 102-295, 102-296 |
| | | 28-50 | | 102-321—102-323 |
| | | 28-51 | | 102-322 |
| | | 28-52—28-55 | | 102-299—102-302 |
| | | 28-56 | | 102-297 |
| | | 28-57 | | 102-294 |
| | | 28-60 | | 102-298 |
| 6346 | 7- 7-1997 | | | App. B, § 11-4 App. B, § 18-3 |
| 6391 | 11-17-1997 | 12-37 | | 54-181 |
| 6392 | 10-20-1997 | 5-2 | | 14-1 |
| 6410 | 6- 1-1998 | 2-85, 2-86 | | 86-33, 86-34 |
| | | 2-87 | | 86-31 |

| Ordinance Number | Date | Section | Section this Code |
|---|---|---|---|
| | | 2-88, 2-89 | 86-51, 86-52 |
| | | 2-90, 2-91 | 86-71, 86-72 |
| | | 2-92—2-103 | 86-101—86-112 |
| | | 2-104—2-107 | 86-131—86-134 |
| | | 2-108—2-116 | 86-161—86-169 |
| | | 2-117 | 86-73 |
| | | 2-118, 2-119 | 86-135, 86-136 |
| | | 2-120—2-127 | 86-191—86-198 |
| | | 2-128 | 86-32 |
| 6411 | 12- 1-1997 | 18-17 | 78-210 |
| 6412 | 12- 1-1997 | 18-44.3 | 78-373 |
| 6413 | 12- 1-1997 | 18-44.1 | 78-371 |
| 6414 | 12-19-1997 | | 114-602 |
| 6417 | 3-16-1998 | 27-1—27-4 | 22-61—22-64 |
| | | 27-5—27-9 | 22-33—22-37 |
| | | 27-10 | 22-68 |
| | | 27-11 | 22-65 |
| | | 27-12—27-14 | 22-38—22-40 |
| | | 27-15 | 22-66 |
| | | 27-16, 27-17 | 22-41, 22-42 |
| | | 27-18 | 22-67 |
| | | 27-19 | 22-32 |
| | | 27-20 | 22-31 |
| 6470 | 7- 6-1998 | | 2-161 |
| 6478 | 6-15-1998 | | 118-141 |
| 6503 | 3- 1-1999 | 24-7.1 | 46-1 |
| 6512 | 9- 8-1998 | | 98-121 |
| 6521 | 10- 5-1998 | | 78-3 |
| 6550 | 2-16-1999 | | 118-141 |
| 6553 | 4- 5-1999 | 4, 5 | App. B, § 12-3, App. B, § 12-4 |
| 6563 | 4- 5-1999 | 31-109 | 114-302 |
| 6616 | 3- 6-2000 | | 114-3 |
| 6622 | 12- 6-1999 | | 98-71 |
| 6625 | 3- 6-2000 | 1(12-4(g)) | App. B, § 12-4 |
| | | 1(14-4(g)) | App. B, § 14-4 |
| | | 1(18-3(r)) | App. B, § 18-3 |
| | | 1(21-3) | App. B, § 21-3 |
| | | 1(21-10) | App. B, § 21-10 |
| 6632 | 12-20-1999 | | 110-62 |
| 6649 | 3- 6-2000 | | 114-153 |
| | | 31-245, 31-246 | 114-154, 114-155 |
| 6652 | 4- 5-1999 | | 114-602 |
| 6663 | 1-18-2000 | | 114-602 |
| 6665 | 5-15-2000 | | 98-71 |
| 6669 | 5-15-2000 | | 78-101 |
| 6672 | 5-15-2000 | 28-2 | 102-2 |
| 6674 | 6-19-2000 | | 114-602 |
| 6679 | 6-19-2000 | 1—3 | 82-4 |
| 6681 | 7- 3-2000 | 15-48—15-55 | App. B, § 15-48—App. B, § 15-55 |
| 6685 | 6-19-2000 | 2-10.1 | 2-1 |
| 6696 | 8-21-2000 | 4(a)—(e) | 114-234 |
| | | 4(f) | 114-236 |
| | | 4(g) | 114-234 |
| 6698 | 9- 5-2000 | | App. B, § 5-5 |
| 6706(Bill) | 9- 5-2000 | 31-244 | 114-153 |

| Ordinance Number | Date | Section | | Section this Code |
|---|---|---|---|---|
| 6704 | 8-21-2000 | | | 114-602 |
| 6722(Bill) | 12-18-2000 | 31-39 | Rpld | 114-54 |
| | | | Added | 114-54 |
| 6754(Bill) | 12-18-2000 | 12-37 | | 54-74 |
| 6755(Bill) | 11- 6-2000 | 25-7 | | 118-141 |
| 6783(Bill) | 6- 4-2001 | | Rpld | 18-81 |
| | | 6-21 | Added | 18-81 |
| | | 6-21.1—6-21.3 | Added | 18-82—18-84 |
| 6785(Bill) | 4-16-2001 | 19.8.1(a)—(j) | | 82-125(1)—(10) |
| 6799(Bill) | 1-22-2002 | 6-107 | Rpld | 110-31 |
| | | 6-107 | Added | 110-31 |
| | | 6-108—6-120 | Rpld | 110-51—110-63 |
| | | | Added | 110-51—110-63 |
| | | 6-121—6-125 | Rpld | 118-81—118-85 |
| | | | Added | 118-81—118-85 |
| | | 6-126 | Added | 110-87 |
| | | 6-127 | Rpld | 110-86, 110-87 |
| | | | Added | 110-86 |
| | | 6-128 | Rpld | 110-88 |
| | | | Added | 110-88 |
| | | 6-129 | Rpld | 110-112 |
| | | | Added | 110-112 |
| | | 6-130 | Rpld | 110-113 |
| | | | Added | 110-113 |
| | | 6-131 | Rpld | 110-114 |
| | | | Added | 110-114 |
| | | 6-132 | Rpld | 110-115 |
| | | | Added | 110-115 |
| | | 6-133—6-136 | Rpld | 110-141—110-144 |
| | | | Added | 110-141—110-144 |
| | | 6-136.1 | Added | 110-35 |
| | | 6-137 | Rpld | 110-33 |
| | | | Added | 110-33 |
| | | 6-138 | Rpld | 110-111 |
| | | | Added | 110-111 |
| | | 6-138.1 | Added | 110-116 |
| | | 6-139—6-143 | Rpld | 110-145—110-149 |
| | | | Added | 110-145—110-149 |
| | | 6-144 | Rpld | 110-34 |
| | | | Added | 110-34 |
| | | 6-144.1 | Rpld | 110-32 |
| | | | Added | 110-32 |
| 6800(Bill) | 10- 1-2001 | | Added | 86-231—86-243 |
| 6802(Bill) | 6-18-2001 | 25-7 | | 118-141 |
| 6803(Bill) | 6-18-2001 | | Added | 22-43 |
| 6807(Bill) | 6- 8-2001 | 1(I)—(V) | | 82-4(a)(1)—(5) |
| | | 2(A) | | 82-4(b) |
| | | 2(B) | Added | 82-4(b)(1) |
| | | 3 | | 82-4(c) |
| 6820(Bill) | 8- 6-2001 | 13-37 | | 98-121 |
| 6846(Bill) | 9-17-2001 | 2-73 | | 2-471 |
| 6847(Bill) | 9-17-2001 | 2-83 | | 2-461 |
| 6850(Bill) | 11-19-2001 | 31-208.1 | Added | 114-579 |
| 6851(Bill) | 10-15-2001 | 17-3.2 | Added | 50-51 |
| 6855(Bill) | 11-19-2001 | 31-213 | Added | 114-603 |
| 6859(Bill) | 11- 5-2001 | 1-14 | Added | 2-334 |
| 6860(Bill) | 11- 5-2001 | 2-83 | | 2-461 |

| Ordinance Number | Date | Section | | Section this Code |
|---|---|---|---|---|
| 843-01(Res) | 11-19-2001 | | Added | 114-579 |
| 6863(Bill) | | 18-4.1 | Added | 78-10 |
| 6874(Bill) | 1- 7-2002 | 2-73 | | 2-471 |
| 6875(Bill) | 1-22-2002 | 2-83 | | 2-461 |
| 6876(Bill) | 2-19-2002 | 25-45 | Added | 118-241 |
| | | 25-55 | Added | 18-242 |
| | | 25-57—25-62 | Added | 118-243—118-248 |
| 6877(Bill) | 2-19-2002 | 25-37—25-51 | Rpld | 118-171—118-176 |
| | | | Added | 118-171—118-185 |
| 6883(Bill) | 3- 4-2002 | 1(a) | | 82-1 |
| | | 1(b)(19-8.3) | Added | 82-126 |
| 6898(Bill) | 4-15-2002 | 2-104 | Added | 62-181 |
| 6899(Bill) | 4-15-2002 | 2-15 | | 2-62 |
| 6916(Bill) | 7-15-2002 | 31-21 | | 98-71 |
| 6936(Bill) | 11- 4-2002 | 2-181—2-184 | Added | 2-681—2-683 |
| 6949(Bill) | 4- 7-2003 | 28-42—28-44 | Rpld | 102-261—102-263 |
| | | 28-42 | Added | 102-261 |
| | | 28-43 | Added | 102-262 |
| 6968(Bill) | 4- 7-2003 | 1—7 | | Adopt. ord. pg. xi |
| 6972(Bill) | 5-19-2003 | | | 22-43 |
| 6974(Bill) | 6- 2-2003 | 28-45—28-60 | Rpld | 102-291—102-302 |
| | | | | 102-321—102-323 |
| | | | Added | 50-171—50-186 |
| 6979(Bill) | 6- 2-2003 | 31-213 | | 114-603 |
| 6982(Bill) | 6- 2-2003 | 17-01—17-07 | Added | 114-862—114-868 |
| 6983(Bill) | 6- 2-2003 | 31-252—31-258 | | 114-862—114-868 |
| 6984(Bill) | 8-18-2003 | 31-260— | | |
| | | 31-266 | Added | 114-915—114-921 |
| 6988(Bill) | 8- 4-2003 | 31-213 | | 114-603 |
| 7002(Bill) | 9-15-2003 | 6-203—6-215 | Added | 2-734—2-746 |
| 7006(Bill) | 10-21-2003 | 27-7 | Rpld | 22-43 |
| | | | Added | 22-43 |
| 7026(Bill) | 2- 2-2004 | | | 114-578 |
| 7031(Bill) | 3- 1-2004 | | Rpld | 14-1—14-3 |
| | | | | 14-31—14-37 |
| | | | | 14-71—14-73 |
| | | | | 14-91—14-94 |
| | | | | 14-111—14-117 |
| | | | Added | 14-1, 14-2 |
| | | | | 14-31—14-36 |
| | | | | 14-71 |
| | | | | 14-91—14-93 |
| | | | | 14-111—14-115 |
| 7032(Bill) | 3- 1-2004 | | Added | 2-685—2-689 |
| 7034(Bill) | 1-20-2004 | 1 | Rpld | 118-141 |
| | | | Added | 118-141 |
| 7043(Bill) | 3-15-2004 | | | 2-681—2-684 |
| 7045(Bill) | 4- 5-2004 | | | 114-602 |
| | | | Rpld | 114-603 |
| 7047(Bill) | 4-19-2004 | | Rpld | 1-1—1-5 |
| | | | | 2-1, 2-2 |
| | | | | 3-1—3-6 |
| | | | | 4-1—4-10 |
| | | | | 5-1—5-10 |
| | | | | 6-1—6-10 |
| | | | | 7-1—7-10 |
| | | | | 8-1—8-10 |

| Ordinance Number | Date | Section | | Section this Code |
|---|---|---|---|---|
| | | | | 9-1—9-10 |
| | | | | 10-1—10-11 |
| | | | | 11-1—11-9 |
| | | | | 12-1—12-11 |
| | | | | 13-1—13-10 |
| | | | | 14-1—14-10 |
| | | | | 15-1—15-55 |
| | | | | 16-1—16-14 |
| | | | | 17-1—17-13 |
| | | | | 18-1—18-3 |
| | | | | 19-1—19-5 |
| | | | | 20-1—20-3 |
| | | | | 21-1—21-11 |
| | | | | 22-1—22-11 |
| | | | | 23-1—23-4 |
| | | | | 24-1—21-6 |
| | | | | 25-1—25-7 |
| | | | | 26-1—26-11 |
| 7044(Bill) | 4- 5-2004 | | | 98-101 |
| 7068(Bill) | 6- 7-2004 | | | 86-231 |
| | | | | 86-233—86-236 |
| | | | | 86-238(a) |
| | | | | 86-239(c)(3), (d) |
| | | | | 86-241 |
| 7094(Bill) | 9- 7-2004 | | | 10-114 |
| 7095(Bill) | 9- 7-2004 | | | 2-461 |
| | | | | 2-471 |
| 7040(Bill) | 12- 6-2004 | | | 62-1—62-183 |
| 7086(Bill) | 8- 1-2005 | | Dltd | 102-91—102-123 |
| | | | Added | 102-91 |
| 7103(Bill) | 12- 6-2004 | | | 78-165 |
| 7133(Bill) | 3- 7-2005 | | | 110-81 |
| 7144(Bill) | 5-16-2005 | | | 86-161 |
| | | | | 54-105 |
| | | | | 66-64 |
| 7145(Bill) | 5-16-2005 | | | 86-261 |
| 7151(Bill) | 7- 5-2005 | | | 110-221 |
| | | | | 110-223 |
| | | | | 110-252 |
| 7152(Bill) | 7-18-2005 | | Added | 10-15 |
| | | | | 10-118, 10-121 |
| 7086(Bill) | 8- 1-2005 | | Dltd | 102-91—102-123 |
| | | | Added | 102-91 |
| 7169(Bill) | 9-19-2005 | | | 114-602 |
| 7153(Bill) | 10-17-2005 | | Added | 10-171 |
| 7167(Bill) | 11-21-2005 | 2 | | 91-1 |
| 7173(Bill) | 11-21-2005 | | | 22-43 |
| 7174(Bill | 11-21-2005 | | Added | 10-123 |
| 7175(Bill) | 11-21-2005 | | | 54-105 |
| | | | | 66-54 |
| | | | | 86-161 |
| 7180(Bill) | 12-10-2005 | | | 10-123 |
| | | | Added | 10-124 |
| 7166(Bill) | 1-17-2006 | 2 | Added | 82-127 |
| 7198(Bill) | 7- 3-2006 | | | 10-171 |
| 7201(Bill) | 7- 3-2006 | | | 2-681—2-684 |
| 7211(Bill) | 7- 3-2006 | | | 78-210 |

| Ordinance Number | Date | Section | | Section this Code |
|---|---|---|---|---|
| 7165(Bill) | 7- 3-2006 | | | 102-91 |
| 7215(Bill) | 8- 7-2006 | | | 114-602 |
| 7225(Bill) | 9- 5-2006 | | | 18-611 |
| | | | Added | 18-613 |
| | | | | 18-1031 |
| | | | | 18-1033 |
| | | | | 110-63 |
| 7202(Bill) | 7-17-2006 | | Added | 2-690—2-701 |
| 7251 | 2-20-2007 | | | 114-2 |
| | | | | 114-3 |
| | | | | 114-6 |
| | | | | 114-81—114-92 |
| | | | | 114-122—114-125 |
| | | | | 114-127 |
| | | | | 114-151—114-155 |
| | | | | 114-551 |
| 7258 | 5- 7-2007 | | Added | 82-161—82-163 |
| 7263(Bill) | 6- 4-2007 | | | 2-161(b) |
| | | | Rpld | 2-161(c) |
| 7266 | 6-18-2007 | | | 10-1—10-20 |
| | | | | 10-51 |
| | | | Rpld | 10-111—10-124 |
| | | | Added | 10-111—10-121 |
| | | | | 10-141, 10-142 |
| | | | | 10-161—10-163 |
| 7274(Bill) | 8- 6-2007 | | Added | 102-18 |
| 7275(Bill) | 8-20-2007 | | | 62-2, 62-3 |
| | | | | 62-41, 62-45 |
| | | | | 62-81, 62-182 |
| 7294(Bill) | 11-19-2007 | | | 2-734, 2-737 |
| | | | | 2-738, 2-741 |
| 7310(Bill) | 12-12-2007 | 1 | | 114-236 |
| 7308(Bill) | 12-17-2007 | | | 2-551 |
| 7320(Bill) | 2-19-2008 | | | 118-141 |
| 7327(Bill) | 5- 5-2008 | | | 54-71 |
| | | | | 54-74 |
| 7328 | 7-21-2008 | | Dltd | 106-1—106-213 |
| 7333(Bill) | 7- 7-2008 | | | 2-686 |
| | | | | 2-687 |
| | | | | 2-689 |
| 7337(Bill) | 8- 4-2008 | | Added | 3-1—3-3 |
| 7338(Bill) | 8- 4-2008 | | Added | 3-10 |
| 7339(Bill) | 8- 4-2008 | | Added | 3-12 |
| 7340(Bill) | 8- 4-2008 | | Added | 3-13 |
| 7341(Bill) | 8- 4-2008 | | Added | 3-14 |
| 7344(Bill) | 9-15-2008 | | Added | 3-15 |
| 7353(Bill) | 10- 6-2008 | | Added | 3-11 |
| 7359(Bill) | 12- 1-2008 | | | 98-4 |
| 7372(Bill) | 1-20-2009 | | | 78-101(g) |
| | | | | 78-211(f) |
| | | | Added | 38-126 |
| | | | Added | 38-127 |
| | | | Rpld | 78-371 |
| | | | Rpld | 38-81—38-103 |
| | | | Added | 78-371 |
| | | | Added | 38-81—38-90 |
| 7375(Bill) | 8-17-2009 | | | 78-9 |

| Ordinance Number | Date | Section | | Section this Code |
|---|---|---|---|---|
| | | | | 78-212 |
| | | | | 114-819 |
| 7377(Bill) | 4- 6-2009 | | | 118-203(d) |
| 7378(Bill) | 3-16-2009 | | | 114-578(b), (c) |
| 7379(Bill) | 3- 3-2009 | | | 2-463 |
| | | | | 3-2 |
| | | | Added | 3-16 |
| 7381(Bill) | 4- 6-2009 | | Added | 3-26 |
| 7386(Bill) | 4-20-2009 | | | 10-3(a)(1)l |
| | | | | 10-5(e) |
| | | | | 10-8 |
| 7387(Bill) | 4-20-2009 | | | 114-240 |
| 7388 | 4-20-2009 | | | 114-236 |
| 7390 | 4-16-2009 | | Added | 3-27 |
| 7395 | 9-21-2009 | | | 114-622 |
| 7396(Bill) | 8-17-2009 | | | 10-171 |
| 7408 | 12-21-2009 | | Rpld | 98-71 |
| | | | Added | 98-71 |
| 7412 | 4- 5-2010 | | Added | 18-1170—18-1186 |
| 7423(Bill) | 5-17-2010 | | | 114-601, 114-602 |
| 7425(Bill) | 6-22-2010 | | | 114-578 |
| 7426(Bill) | 6-22-2010 | | | 14-33 |
| 7427(Bill) | 7-19-2010 | | | 78-10 |
| 7435(Bill) | 9-20-2010 | | Rpld | 78-291 |
| 7440 | 11-15-2010 | | | 86-164 |
| 7458 | 4-18-2011 | | | 82-4 |
| 6465 | 4-18-2011 | | | 86-161 |
| 7462 | 5-16-2011 | | | 10-163 |
| 7466 | 4-18-2011 | | | 114-602 |
| 7471 | 6- 6-2011 | | Amd | 18-421, 78-16l |
| | | | | 78-165 |
| | | | Rpld | 78-164 |
| 7502(Bill) | 11-21-2011 | 1 | | 118-141 |
| 7506(Bill) | 12- 5-2011 | | Rpld | 54-101—54-105 |
| | | | Added | 54-101—54-106 |
| 7514(Bill) | 4- 2-2012 | | | 78-212 |
| 7516(Bill) | 4-16-2012 | | | 102-271—102-279 |
| 7518 | 4- 2-2012 | | | 2-243 |
| 7519 | 4- 2-2012 | | | 2-461, 2-471 |
| 7533 | 10- 1-2012 | | Dltd | 62-41—62-45 |
| | | | Added | 62-41—62-45 |
| 7540 | 10- 1-2012 | | Dltd | 22-31—22-43 |
| | | | | 22-61—22-68 |
| | | | Added | 22-31—22-43 |
| | | | | 22-61—22-64 |
| 7571 | 4-15-2013 | | Rpld | 18-31—18-49 |
| | | | | 18-81—18-84, |
| | | | | 18-111—18-113, |
| | | | | 18-141—18-143, |
| | | | | 18-171—18-173, |
| | | | | 18-191—18-194, |
| | | | | 18-231, |
| | | | | 18-251—18-255, |
| | | | | 18-291, 18-292, |
| | | | | 18-321, |
| | | | | 18-351—18-354, |
| | | | | 18-381—18-390, |

| Ordinance Number | Date | Section | | Section this Code |
|---|---|---|---|---|
| | | | | 18-421—18-428,<br>18-451—18-454,<br>18-491—18-493,<br>18-521—18-523,<br>18-551, 18-552,<br>18-581,<br>18-611—18-613,<br>18-631—18-634,<br>18-661,<br>18-681—18-686,<br>18-721—18-725,<br>18-751—18-756,<br>18-791—18-799,<br>18-821—18-824,<br>18-861—18-863,<br>18-891—18-896,<br>18-931—18-934,<br>18-971, 18-972,<br>18-991—18-1001,<br>18-1031—18-1036,<br>18-1061—18-1065,<br>18-1101,<br>18-1131,<br>18-1161—18-1165,<br>18-1170—18-1186 |
| | | | Added | 18-31—18-49,<br>18-81—18-83,<br>18-111—18-113,<br>18-141—18-143,<br>18-171—18-173,<br>18-191—18-192,<br>18-231,<br>18-251—18-254,<br>18-351—18-354,<br>18-381—18-390,<br>18-421—18-428,<br>18-451—18-454,<br>18-491, 18-492,<br>18-521, 18-522,<br>18-551, 18-552,<br>18-611—18-613,<br>18-631—18-634,<br>18-661—18-685,<br>18-721—18-725,<br>18-751—18-756,<br>18-791—18-799,<br>18-821—18-824,<br>18-861—18-863,<br>18-891—18-896,<br>18-931—18-934,<br>18-971, 18-972,<br>18-991—18-998,<br>18-1031—18-1036,<br>18-1061—18-1065,<br>18-1161—18-1165,<br>18-1170—18-1186 |
| 7572 | 5- 7-2013 | 1 | | 102-275, 102-276 |

| Ordinance Number | Date | Section | | Section this Code |
|---|---|---|---|---|
| 7573 | 5- 5-2012 | | | 2-551 |
| 7576 | 5-20-2013 | | | 18-31, 18-113, 18-141, 18-254, 18-384, 18-385, 18-453, 18-522, 18-551, 18-581, 18-663, 18-753, 18-823, 18-862, 18-895, 18-931, 18-1062, 18-1163, 18-1183 |
| 7577 | 5-20-2013 | 1 | Added | 111-1—111-15 |
| 7578 | 5-20-2013 | 1 | | 110-53 |
| 7581 | 6-17-2013 | | | 3-16 |
| 7582 | 6-17-2013 | | | 3-26 |
| 7592 | 9-16-2013 | | | 14-33 |
| 7596 | 9-16-2013 | | Rpld | 118-171—118-185, 118-201—118-214 |
| | | | Added | 118-201—118-217 |
| 7604 | 11- 4-2013 | | | 54-71 |
| 7608(Bill) | 12- 2-2013 | | | 78-322 |
| 7613(Bill) | 3-17-2014 | | Added | 14-201—14-211 |
| 7614(Bill) | 3-17-2014 | | Rpld | 18-421—18-428 |
| | | | Added | 78-171 |
| 7616(Bill) | 8-18-2014 | | | 82-125 |
| | | | Added | 82-128, 82-129 |
| 7621(Bill) | 5- 5-2014 | | | 98-5 |
| | | | Rpld | 98-41—98-52, 98-71—98-82, 98-101, 98-121—98-126, 98-151, 98-171—98-174 |
| | | | Added | 98-41—98-53, 98-71—98-82, 98-101, 98-121—98-126, 98-151, 98-171, 98-172 |
| 7628(Bill) | 9- 9-2014 | 1 | | 2-695 |
| 7632(Bill) | 11-17-2014 | | | 10-171 |
| 7633(Bill) | 11- 3-2014 | | | 111-3, 111-4, 11-14, 111-15 |
| 7636(Bill) | 11-17-2014 | | | 18-1173, 18-1177, 18-1185 |
| 7637(Bill) | 12-15-2014 | | | 114-602 |
| 7639(Bill) | 12- 1-2014 | | | 54-103, 54-105, 54-106 |
| 7640(Bill) | 12- 1-2014 | | | 66-61, 66-62, 66-64, 66-65 |
| 7641(Bill) | 12- 1-2014 | | | 86-162 |
| 7648(Bill) | 3-16-2015 | | Added | 102-290—102-309 |
| 7656(Bill) | 6- 1-2015 | | Added | 102-310—102-324 |
| 7660(Bill) | 7-20-2015 | | | 111-14 |
| 7661(Bill) | 7-20-2015 | | | 2-734, 2-737, 2-738 |
| 7663(Bill) | 8-17-2015 | | Rpld | 98-53 |

| Ordinance Number | Date | Section | | Section this Code |
|---|---|---|---|---|
| 017-11(Res.) | 9-19-2011 | | | App. A, Rules Nos. 1, 2 |
| 7666(Bill) | 9-21-2015 | | Rpld | 78-381—78-383 |
| | | | Added | 78-381—78-383 |
| | | | Added | 78-396, 78-397 |
| 7670(Bill) | 10-19-2015 | | Added | 114-580 |
| 7674(Bill) | 11-16-2015 | | | 118-141 |
| 7702(Bill) | 8- 1-2016 | | Added | 3-17 |
| | | | | 6-133 |
| 7712(Bill) | 9-19-2016 | | | 2-181 |
| | | | Added | 2-184 |
| | | | | 2-241—2-243 |
| | | | Added | 2-244 |
| | | | Rpld | 86-31—86-34, 86-51, 86-52, 86-71—86-73, 86-101—86-112, 86-131—86-136, 86-191—86-198, 86-231—86-243, 86-261 |
| | | | Added | 86-1, 86-2, 86-10, 86-100—86-109, 86-200, 86-201 |
| 7713(Bill) | 10- 3-2016 | | Added | 54-191, 54-192 |
| | | | | 780212 |
| 7724(Bill) | 12-16-2016 | | | 114-622 |
| 7733(Bill) | 3- 6-2017 | | | 2-161 |
| 7734(Bill) | 3- 6-2017 | | | 2-161 |
| 7735(Bill) | 3- 6-2017 | | | 2-161 |
| 7747(Bill) | 6- 5-2017 | | | 82-4 |
| 7753(Bill) | 8- 7-2017 | | | 114-575, 114-576 |
| 7757(Bill) | 9-18-2017 | | | 2-734, 2-737, 2-738 |
| 7765(Bill) | 12- 4-2017 | 1 | | 102-274 |
| 7767(Bill) | 11- 6-2017 | | Added | 14-251—14-260 |
| 7768(Bill) | 11-20-2017 | | | 38-126 |
| 7772(Bill) | 1-16-2018 | | | 114-622, 114-623 |
| 7779(Bill) | 3-19-2018 | | | 98-71 |
| 7783(Bill) | 6- 4-2018 | | | 114-3 |
| | | | | 114-601 |
| | | | | 114-602 |
| 7799(Bill) | 11-19-2018 | | | 2-551—2-556 |
| | | | | 78-165 |
| | | | | 78-212 |
| | | | | 82-4 |
| | | | | 110-223 |
| | | | | 111-14 |
| 160-19(Res.) | 1-22-2019 | | Rpld | App. A, Rules 1—22 |
| | | | Added | App. A, Rules 1—22 |
| 7812(Bill) | 4-15-2019 | | | 14-33 |
| 7815(Bill) | 5- 6-2019 | | | 114-565, 117-575, 114-576, 114-578, 114-302, 114-622, 114-628 |
| 7816(Bill) | 5- 6-2019 | | Added | 102-200—102-210 |

| Ordinance Number | Date | Section | | Section this Code |
|---|---|---|---|---|
| 7819(Bill) | 6- 3-2019 | | Added | 78-235 |
| 218-19(Res.) | 7-15-2019 | | | App. A, Rule 14 |
| 7822(Bill) | 7- 1-2019 | | Rpld | 102-300, 102-303 102-301, 102-302, 102-304, 102-314—102-319 |
| 7829(Bill) | 8-19-2019 | | | 2-685 |
| | | | Rpld | 2-686—2-689 |
| | | | Added | Ch. 65 |
| 7830(Bill) | 8-19-2019 | | | 14-202—14-204, 14-206 |
| 7831(Bill) | 8-19-2019 | | | 14-33, 14-71 |
| 7825(Bill) | 11- 4-2019 | | | 98-121 |
| 7834(Bill) | 10- 7-2019 | | | 110-33, 110-114, 110-115 |
| 7835(Bill) | 10-21-2019 | | | 50-34 |
| 7843(Bill) | 10-21-2019 | | | 46-1 |
| 7844(Bill) | 10-21-2019 | | | 2-553—2-556 |
| 7845(Bill) | 10-21-2019 | | | 114-90 |
| 7847(Bill) | 11- 4-2019 | | | 2-461, 2-471, 2-472, 2-474—2-476, 2-479, 2-480 |
| | | | Added | 2-459, 2-460, 2-481—2-488 |
| | | | Rpld | 2-462, 2-473 |
| 316-20(Res.) | 3-16-2020 | | | App. A, Rule No. 1 |
| 7857(Bill) | 1- 6-2020 | | | 110-311 |
| 7865(Bill) | 2- 3-2020 | | | 54-105 |
| 7868(Bill) | 3- 2-2020 | | | 114-602 |
| 416-21(Res.) | 1-19-2021 | | | App. A, Rule No. 4, App. A, Rule No. 22 |
| 7871(Bill) | 5-18-2020 | | | 54-3, 54-42, 54-43 |
| | | | Rpld | 54-141—54-146 |
| | | | Added | 54-141—54-147 |
| 7873(Bill) | 6-15-2020 | | Added | 2-164 54-103, 66-65, 86-105 |
| 7876(Bill) | 8- 3-2020 | | | 2-553 |
| 7877(Bill) | 8- 3-2020 | | | 14-33 |
| 7890(Bill) | 1- 4-2021 | | | 111-14 |
| 7853(Bill) | 11- 4-2019 | | | 114-402 |
| 7887(Bill) | 4-19-2021 | | | 2-744, 18-611, 18-613 |
| | | | Rpld | 18-631—18-634 |
| | | | Added | 18-631—18-634 |
| | | | Rpld | 18-1031—18-1036 |
| | | | Added | 18-1031—18-1042 |
| | | | Rpld | 18-1061—18-1065 |
| | | | Added | 18-1061, 18-1081 110-63 |
| 7893(Bill) | 4-19-2021 | | Rpld | 78-381—78-383 |
| | | | Added | 78-381—78-384 |

| Ordinance Number | Date | Section | | Section this Code |
|---|---|---|---|---|
| 7894(Bill) | 2-16-2021 | | Added | 102-331—102-333 |
| 7895(Bill) | 2-16-2021 | | | 54-41 |
| 7897(Bill) | 5- 3-2021 | | | 10-171 |
| 7902(Bill) | 4-19-2021 | | | 110-53, 110-54, 110-61 |
| 7904(Bill) | 5- 3-2 | | | 22-35 |
| | | | Rpld | 22-43 |
| 7907(Bill) | 6- 7-2021 | | | 62-3 |
| 7909(Bill) | 5-18-2021 | | | 2-554, 2-556 |
| | | | Rpld | 82-4 |
| 7919(Bill) | 8- 2-2021 | | Added | 58-51—58-54 |
| 529-21(Res.) | 9- 7-2021 | | | App. A, Rule No. 3 |
| 7916(Bill) | 8-16-2021 | | Added | 2-151—2-160 |
| 7920(Bill) | 9- 7-2021 | | | 114-559 |
| 7923(Bill) | 9- 7-2021 | | Added | 2-711—2-716 |
| 7927(Bill) | 11-15-2021 | | | 2-533 |
| | | | Rpld | 2-681—2-684 |
| | | | Added | 2-681—2-684 |
| 582-21(Res.) | 1-18-2022 | | Added | App. A, Rule No. 23 |
| 7936(Bill) | 12-20-2021 | | | 114-622 |
| 7938(Bill) | 12-20-2021 | | | 2-713 |
| 7945(Bill) | 2- 7-2022 | | | 14-202—14-204 |
| 7946(Bill) | 2- 7-2022 | | | 2-693 |
| 7928(Bill) | 4-18-2022 | | | 2-138 |
| 7956(Bill) | 8-15-2022 | | | 114-915 |
| | | | Rpld | 114-916—114-918 |
| | | | Added | 114-916—114-918 |
| | | | | 114-120 |
| 7960(Bill) | 6- 6-2022 | | | 98-1, 98-3, 98-4, 98-42, 98-101 |
| 7966(Bill) | 7-18-2022 | | | 14-33 |
| 7964(Bill) | 9-19-2022 | | Added | 2-721—2-724 |
| 7978(Bill) | 12- 5-2022 | | | 2-63 |
| 7979(Bill) | 12- 5-2022 | | | 2-743 |
| 7980(Bill) | 12- 5-2022 | | | 65-3 |
| 7981(Bill) | 12- 5-2022 | | | 110-145 |
| 754-23(Res.) | 1- 3-2023 | | Rpld | App. A, Rules 1—23 |
| | | | Added | App. A, Rules 1—23 |
| 7983(Bill) | 2-21-2023 | | Added | 58-61—58-63 |
| 7992(Bill) | 5-15-2023 | | | 2-377, 54-51, 54-103, 66-37 |
| 7994(Bill) | 6- 5-2023 | | Added | 2-464 |
| 7997(Bill) | 6-21-2023 | | | 110-81, 110-145 |
| 7998(Bill) | 6-21-2023 | | | 2-712, 2-713 |
| 8010(Bill) | 8-21-2023 | | | 111-14 |
| 8013(Bill) | 10- 2-2023 | | Added | 6-151—6-159, |
| | | | Added | 6-166—6-168, |
| | | | Added | 6-171—6-173, |
| | | | Added | 6-176—6-178, |
| | | | Added | 6-181—6-183 |

| Ordinance Number | Date | Section | | Section this Code |
|---|---|---|---|---|
| 885-23(Res.) | 10- 2-2023 | | Added | App. A, Rule Nos. 24, 25 |
| 7991(Bill) | 12-18-2023 | | | 2-533, 50-172, 65-12, 65-13, 82-44 |
| 8018(Bill) | 11- 6-2023 | | Added | 54-107 |
| 8028(Bill) | 2-20-2024 | | | 2-744 |
| | | | Rpld | 18-611—18-613, 18-631—18-634 |
| | | | | 18-1031—18-1033 |
| | | | Rpld | 18-1034—18-1036 |
| | | | | 18-1037—18-1041 |
| | | | Rpld | 18-1061 |
| | | | Added | 18-1061 |
| | | | Rpld | 18-1081 |
| | | | | 110-63 |
| 8030(Bill) | 5- 6-2024 | | Rpld | 114-366 |
| | | | | 114-433, 114-662 |
| | | | Added | 114-671 |
| | | | | 114-703, 114-705, 114-711 |
| | | | Added | 114-713 |
| | | | Rpld | 114-731—114-737 |
| 8031(Bill) | 4-15-2024 | | | 6-152—6-158 |
| | | | Added | 6-186—6-188 |
| 8036(Bill) | 7- 1-2024 | | | 2-713 |
| 8037(Bill) | 7- 1-2024 | | | 6-166 |
| 8038(Bill) | 7-15-2024 | | Rpld | 10-171 |
| | | | Added | 10-171 |
| 8039(Bill) | 8-19-2024 | | Rpld | 78-371—78-373 |
| | | | Added | 78-371—78-374 |
| 8040(Bill) | 7-15-2024 | | Rpld | 10-161—10-163 |
| | | | Added | 10-161—10-163 |
| 8055(Bill) | 5-19-2025 | | | 6-151—6-154, 6-156—6-158, 6-167, 6-172, 6-177, 6-187 |
| 8058(Bill) | 10- 6-2025 | | | 110-63 |
| 8061(Bill) | 12- 1-2025 | | | 54-191(6) |
| 8062(Bill) | 8-18-2025 | | | 54-105, 66-64, 86-106 |
| 8069(Bill) | 3-16-2026 | | | 54-71 |
| | | | | 54-74 |

## STATE LAW REFERENCE TABLE

This table shows the location within the Charter and Code, either in the text or notes following the text, of references to the West Virginia Code (W. Va. Code).

| W. Va. Code Section | City Code Section |
|---|---|
| 3-1-1 et seq. | Char. § 10 |
| | Char. § 11 |
| | Char. § 12 |
| 3-1-3 | Char. § 8 |
| 3-1-5 | Char. § 9 |
| | Char. § 11 |
| 3-1-6 | Char. § 9 |
| | Char. § 11 |
| 3-2-1 et seq. | Char. § 9 |
| 3-5-1 et seq. | 1-13 |
| 3-5-8a | 1-13 |
| 3-7-1 et seq. | Char. § 23 |
| | Char. § 82 |
| ch. 5, art. 7 | 2-162 |
| ch. 5, art. 10 | 2-163 |
| 5A-3-33e | 2-459 |
| 5A-3-33f | 2-487 |
| 5G-1-1 et seq | 2-471 |
| | 2-486 |
| 5-7-1 et seq. | 2-162 |
| 5-7-5 | 2-162 |
| 5-10-1 et seq. | 2-163 |
| 5-10-16 | 2-163 |
| 5-11A-1 et seq. | Ch. 62 |
| 5-11A | 62-181 |
| | 2-182 |
| 5-11A-2 | 62-182 |
| 5-11A-9 | 62-182 |
| 5-11A-12 | 62-182 |
| 5-11A-17 | 62-182 |
| 5-11A-20 | 62-182 |
| 5-11-9 | 62-81 |
| 5-11-12 | Ch. 62, Art. II |
| 5-11A-1 et seq. | 62-81 |
| 5-15-5 | 114-669 |
| 5-22-1 | 2-486 |
| 5-22-1 et seq | 2-471 |
| 5-22A-1 et seq. | 2-471 |
| 6-2-1 et seq. | 2-133 |
| 6-6-7 | App. A, Rule No. 23 |
| ch. 6, art. 9 | 2-369 |
| | 2-682 |
| | 2-712 |
| 6-9-1 et seq. | Ch. 2, Art. VI, Div. 2 |
| | 2-369 |
| 6-9-6 | 2-402 |
| 6-9-7 | Char. § 18 |
| ch. 6, art. 9A | 2-682 |
| | 2-712 |
| | 2-722 |
| | 65-21 |
| 6-9A-1 et seq. | App. A, Rule No. 1 |
| 6-9A-5 | Char. § 20 |
| 6B | 2-712 |
| | 65-21 |
| 6B-1-1 et seq. | 2-137 |
| 6B-2-5 | 102-300 |
| 6B-2-6—6B-2-8 | 2-137 |
| 6B-1-3 | 2-138 |
| 7-1-6 | Char. § 33 |
| 7-18-2 | Ch. 110, Art. IV |
| 7-18-9 | Ch. 110, Art. IV |
| 7-18-14 | Ch. 110, Art. IV |
| ch. 8 | 82-127 |
| 8-1-1 et seq. | Char. § 7 |
| 8-1-5a | 3-1 |
| | 3-12 |
| | 3-14 |
| | 111-1 |
| 8-1-6 | Char. § 1 |
| | Char. § 5 |
| | Char. § 7 |
| | Char. § 8 |
| | Char. § 9 |
| | Char. § 11 |
| | Char. § 15 |
| | Char. § 18 |
| | Char. § 20 |
| | Char. § 23 |
| | Char. § 26 |
| | Char. § 35 |
| | Char. § 36 |
| | Char. § 37 |
| | Char. § 38 |
| | Char. § 41 |
| | Char. § 42 |
| | Char. § 44 |
| | Char. § 46 |
| | Char. § 48 |
| | Char. § 49 |
| | Char. § 51 |
| | Char. § 58 |

| W. Va. Code Section | City Code Section |
|---|---|
| | Char. § 59 |
| | Char. § 60 |
| | Char. § 61 |
| | Char. § 62 |
| | Char. § 63 |
| | Char. § 64 |
| | Char. § 66 |
| | Char. § 67 |
| | Char. § 68 |
| | Char. § 69 |
| | Char. § 70 |
| | Char. § 71 |
| | Char. § 72 |
| | Char. § 73 |
| | Char. § 74 |
| | Char. § 80 |
| | Char. § 82 |
| | Char. § 88 |
| | Char. § 93 |
| | Char. § 94 |
| | Char. § 95 |
| | Char. § 97 |
| | Char. § 101 |
| | Char. § 102 |
| 8-4-7 | Char. § 3 |
| 8-5-7 | Char. § 3 |
| | Ch. 2, Art. II |
| 8-5-8 | Char. § 24 |
| 8-5-11 | 2-131 |
| | Ch. 86 |
| 8-5-12 | Char. § 5 |
| | Char. § 35 |
| | Char. § 36 |
| | Char. § 86 |
| | 2-161 |
| | Ch. 86, Art. II, Div. 6 |
| | Char. § 97 |
| 8-5-13 | Char. § 9 |
| 8-5-14 | Char. § 10 |
| | Char. § 65 |
| 8-5-17 | Char. § 23 |
| | Char. § 82 |
| 8-5-19 | 2-136 |
| 8-6-1 et seq. | Char. § 2 |
| 8-7-1 et seq. | Char. § 2 |
| 8-9-1 | Char. § 15 |
| | Char. § 26 |
| | Char. § 35 |
| | Ch. 2, Art. II |
| 8-9-1 et seq. | Ch. 2, Art. III |
| 8-9-2 | Char. § 15 |
| | Ch. 2, Art. II |
| 8-9-3 | Char. § 20 |
| | Char. § 27 |
| | Char. § 28 |
| | 2-64 |
| | 2-93 |
| 8-10-1 | Char. § 35 |
| | Char. § 44 |
| | Char. § 46 |
| | Char. § 94 |
| | Ch. 2, Art. II |
| 8-10-1a | 1-2 |
| | 2-242 |
| 8-10-2 | Char. § 44 |
| | Char. § 46 |
| | Char. § 94 |
| 8-10-2 et seq. | Ch. 38, Art. II |
| 8-10-2a | 38-42 |
| 8-10-3 | Ch. 2, Art. IV, Div. 4 |
| | Char. § 15 |
| | Char. § 28 |
| 8-10-4 | Char. § 94 |
| 8-10-10 | Ch. 2, Art. VI, Div. 4 |
| 8-11-1 | Char. § 7 |
| | 1-8 |
| | 2-138 |
| | 10-15 |
| | 38-122 |
| | 46-1 |
| | 50-34 |
| | 50-90 |
| | 78-2 |
| | 78-371 |
| | 78-372 |
| | 78-373 |
| | 86-32 |
| | 86-197 |
| | 110-1 |
| | 114-3 |
| | 114-301 |
| | 114-302 |
| | 114-812 |
| | 118-176 |
| | 118-212 |
| | 122-32 |
| 8-11-1 et seq. | Char. § 17 |
| 8-11-3 | Char. § 37 |
| | 2-92 |
| | Ch. 2, Art. III |
| 8-11-3(10) | 3-12 |
| 8-11-4 | Char. § 37 |
| | Char. § 38 |
| | Char. § 40 |
| | Char. § 41 |
| | 1-6 |

| W. Va. Code Section | City Code Section |
|---|---|
| | Ch. 2, Art. III, Div. 2 |
| | 2-91 |
| 8-11-4(b) | Char. § 42 |
| | Char. § 98 |
| | 1-1 |
| 8-12-1 | Char. § 1 |
| | Char. § 76 |
| | Char. § 101 |
| 8-12-2 | Char. § 7 |
| | Ch. 114 |
| 8-12-4 | Ch. 2, Art. III |
| 8-12-4(3) | Char. § 91 |
| 8-12-5 | Char. § 17 |
| | Char. § 76 |
| | 10-276 |
| | 14-1 |
| | 22-61 |
| 8-12-5 et seq. | Char. § 7 |
| 8-12-5(1) | Ch. 102 |
| 8-12-5(2) | Ch. 102 |
| 8-12-5(3) | 98-4 |
| 8-12-5(4) | Ch. 94 |
| | Ch. 102 |
| | Ch. 114 |
| 8-12-5(5) | Ch. 102 |
| 8-12-5(6) | Ch. 102 |
| 8-12-5(11) | Ch. 50, Art. IV |
| 8-12-5(13) | Ch. 50 |
| | Ch. 50, Art. II |
| | Ch. 58 |
| | Ch. 78 |
| 8-12-5(14) | Ch. 54, Art. III |
| | 54-2 |
| 8-12-5(15) | Ch. 54, Art. III |
| 8-12-5(16) | Ch. 78, Art. III, Div. 2 |
| 8-12-5(18) | Ch. 78, Art. V, Div. 3 |
| 8-12-5(19) | Ch. 78, Art. V |
| | 78-205 |
| 8-12-5(20) | Ch. 6 |
| 8-12-5(21) | 114-302 |
| 8-12-5(22) | Ch. 50 |
| | Ch. 78, Art. V, Div. 4 |
| 8-12-5(23) | Ch. 14 |
| | Ch. 50, Art. II |
| | Ch. 58 |
| | Ch. 78 |
| 8-12-5(26) | Ch. 10 |
| 8-12-5(30) | 70-101 |
| 8-12-5(32) | Ch. 118, Art. III |
| 8-12-5(33) | Ch. 118, Art. III |
| 8-12-5(32) | 66-31 |
| 8-12-5(33) | 66-31 |
| 8-12-5(37) | Ch. 82 |
| 8-12-5(41) | Ch. 58 |
| 8-12-5(42) | Char. § 99 |
| | Ch. 22 |
| 8-12-5(43) | 10-15 |
| | 58-3 |
| | 66-31 |
| 8-12-5(44) | Ch. 58 |
| | Ch. 78 |
| 8-12-5(45) | Char. § 20 |
| 8-12-5(46) | 2-133 |
| 8-12-5(47) | 2-133 |
| 8-12-5(49) | Ch. 82 |
| 8-12-5(57) | Char. § 7 |
| | 1-8 |
| | 2-138 |
| | 10-15 |
| | 38-122 |
| | 46-1 |
| | 50-34 |
| | 50-90 |
| | 78-2 |
| | 78-371 |
| | 78-372 |
| | 78-373 |
| | 86-32 |
| | 86-197 |
| | 110-1 |
| | 114-3 |
| | 114-301 |
| | 114-302 |
| | 114-812 |
| | 118-176 |
| | 118-212 |
| | 122-32 |
| 8-12-5a | Ch. 78, Art. III, Div. 2 |
| 8-12-7 | 1-10 |
| 8-12-8(b) | 3-14 |
| 8-12-10 | 2-461 |
| 8-12-10(a) | 2-461 |
| 8-12-11 | Ch. 2, Art. VI, Div. 4 |
| 8-12-13 | Char. § 7 |
| | Ch. 14 |
| | 14-33 |
| 8-12-15 | 2-139 |
| | 50-37 |
| | 58-3 |
| 8-12-16 | Ch. 14, Art. III, Div. 2, Subdiv. II |
| | 14-33 |
| | 14-117 |
| | 14-204 |
| | 14-208 |
| | 14-251 |

| W. Va. Code Section | City Code Section |
|---|---|
| | 14-253 |
| | 14-256 |
| 8-12-19 | 54-191 |
| | 58-3 |
| | 66-31 |
| 8-12-20 | Char. § 72 |
| | Char. § 95 |
| 8-12-26 | 6-151 |
| | 6-152 |
| 8-13-1 | Char. § 49 |
| | Char. § 51 |
| | ;Char. § 52 |
| | Char. § 54 |
| | Char. § 55 |
| | Char. § 56 |
| | Char. § 59 |
| | Char. § 60 |
| | Char. § 61 |
| | Char. § 62 |
| | Char. § 63 |
| | Char. § 64 |
| | Char. § 66 |
| | Char. § 67 |
| | Char. § 68 |
| | Char. § 69 |
| | Char. § 70 |
| | Char. § 71 |
| | Char. § 72 |
| | Char. § 73 |
| | Char. § 74 |
| | Char. § 88 |
| | Char. § 93 |
| 8-13-1 et seq. | Ch. 2, Art. VI |
| 8-13-4 | Char. § 7 |
| | Ch. 6 |
| | Ch. 6, Art. II, Div. 2 |
| 8-13-5 | Ch. 110 |
| | Ch. 110, Art. II |
| | 110-41 |
| | 110-58 |
| | 110-63 |
| 8-13-5(a) | 110-312 |
| 8-13-5a | Ch. 110, Art. V |
| 8-13-6 | Ch. 110, Art. III |
| 8-13-7 | 6-111 |
| | 6-112 |
| | 6-113 |
| | 6-141 |
| 8-13-10 | Char. § 51 |
| 8-13-13 | 2-734 |
| | Ch. 54, Art. IV |
| | 54-181 |
| 8-13-15 | 2-740 |
| 8-13-17 | 2-361 |
| 8-13-18 | Char. § 18 |
| | Ch. 2, Art. VI, Div. 2 |
| | 2-369 |
| 8-13-19 | 2-363 |
| 8-13-21 | 2-363 |
| 8-13-22 | 2-372 |
| 8-13-22a | Char. § 18 |
| | Char. § 58 |
| | 2-366 |
| 8-13-23 | 2-370 |
| ch. 8, art. 13A | 2-711 |
| | 2-716 |
| 8-13A-12 | 2-713 |
| 8-13A-15 | 2-716 |
| 8-13A-15(b) | 2-716 |
| ch. 8, art. 13C | 111-11 |
| ch. 8, art. 13C | 111-11 |
| 8-13C-1 et seq. | 111-1 |
| 8-13C-6 | 111-10 |
| | 111-11 |
| | 111-12 |
| 8-13C-7 | 111-10 |
| 8-14-1 | Ch. 66, Art. II |
| 8-14-2 | Ch. 66, Art. II, Div. 2 |
| 8-14A-3 | 86-241 |
| 8-14-4 | Char. § 97 |
| ch. 8, art. 14, pt. V | 66-35 |
| 8-14-5 | Ch. 66, Art. II, Div. 3 |
| 8-14-6 et seq. | Char. § 85 |
| | 66-35 |
| 8-14-7 | 66-35 |
| 8-14-19 | Char. § 80 |
| 8-14-20 | 86-241 |
| Ch. 8, Art. 15 | 54-101 |
| 8-15-1 | Ch. 54, Art. II, Div. 1 |
| | 54-43 |
| 8-15-1 et seq. | Ch. 54 |
| 8-15-2 | 54-52 |
| 8-15-9 | Ch. 54, Art. II, Div. 1 |
| 8-15-10a | 54-105 |
| ch. 8, art. 15, pt. IV | Char. § 76 |
| | 54-46 |
| 8-15-11 et seq. | 54-46 |
| 8-15-12 | 54-46 |
| 8-15-12 et seq. | 54-46 |
| 8-15-16 | 54-47 |
| 8-15-24 | Char. § 80 |
| 8-15-25 | 86-241 |
| ch. 8, art. 16 | 2-653 |
| | 22-61 |
| | 114-601 |
| 8-16-1 et seq. | Char. § 59 |

| W. Va. Code Section | City Code Section |
|---|---|
| | Char. § 60 |
| | Char. § 61 |
| | Char. § 62 |
| | Char. § 63 |
| | Char. § 64 |
| | Char. § 66 |
| | Char. § 67 |
| | Char. § 68 |
| | Char. § 69 |
| | Char. § 70 |
| | Char. § 71 |
| | Char. § 72 |
| | Char. § 73 |
| | Char. § 74 |
| | Char. § 88 |
| | Char. § 93 |
| | 2-653 |
| | 2-685 |
| | 22-61 |
| | 114-601 |
| 8-16-3 | 114-601 |
| 8-16-9 et seq. | Char. § 74 |
| 8-16-17 | 2-363 |
| | 2-367 |
| | 2-442 |
| 8-17-1 et seq. | Char. § 59 |
| | Char. § 60 |
| | Char. § 61 |
| | Char. § 62 |
| | Char. § 63 |
| | Char. § 64 |
| | Char. § 66 |
| | Char. § 67 |
| | Char. § 68 |
| | Char. § 69 |
| | Char. § 70 |
| | Char. § 71 |
| | Char. § 72 |
| | Char. § 73 |
| | Char. § 74 |
| | Char. § 88 |
| | Char. § 93 |
| 8-18-1 | Ch. 118, Art. III |
| 8-18-1 et seq. | Char. § 59 |
| | Char. § 60 |
| | Char. § 61 |
| | Char. § 62 |
| | Char. § 63 |
| | Char. § 64 |
| | Char. § 66 |
| | Char. § 67 |
| | Char. § 68 |
| | Char. § 69 |

| W. Va. Code Section | City Code Section |
|---|---|
| | Char. § 70 |
| | Char. § 71 |
| | Char. § 72 |
| | Char. § 73 |
| | Char. § 74 |
| | Char. § 88 |
| | Char. § 93 |
| 8-18-14 | 2-363 |
| | 2-367 |
| 8-18-22 | Char. § 48 |
| | 118-61 |
| | 118-74 |
| ch. 8, art. 22, pt. III | 54-48 |
| | 66-36 |
| 8-22-1 | 2-163 |
| 8-22-16 | 54-48 |
| | 66-36 |
| 8-22-16 et seq. | 54-48 |
| | 66-36 |
| 8-22-20(e) | 111-14 |
| 8-22-20(e)(2) | 111-14 |
| 8-22-20(f)(3) | 111-14 |
| 8-22a-1 et seq. | 111-14 |
| 8-23-5(57) | Char. § 7 |
| 8-24-1 | 90-31 |
| 8-24-1 et seq. | Ch. 90 |
| 8-24-5 | 90-31 |
| 8-24-10 | 90-38 |
| 8-24-11 | 90-36 |
| 8-24-12 | 90-36 |
| 8-24-12 | 90-37 |
| 8-24-16 | 90-33 |
| 8-24-28 | 90-39 |
| 8-24-35 | 90-39 |
| 8-24-39 et seq. | Char. § 102 |
| 8-24-45 et seq. | Char. § 102 |
| ch. 8, art. 26 | 90-32 |
| 8-26-1 et seq. | 90-32 |
| 8-26A | 2-691 |
| ch. 8, art. 27 | 2-621 |
| | 2-623 |
| 8-27-1 et seq. | Ch. 2, Art. VII, Div. 6 |
| | 2-621 |
| | 2-623 |
| 8-27-4 | 2-621 |
| | 2-626 |
| 8-27-5 | 2-624 |
| 8-29-1 et seq. | Ch. 2, Art. VII, Div. 4 |
| 8-31-1 | Char. § 37 |
| | Char. § 38 |
| | 94-1 |
| | 102-212 |
| 8-31-2 | 94-1 |

| W. Va. Code Section | City Code Section |
|---|---|
| | 102-212 |
| ch. 8, art. 33 | 2-651 |
| 8-33-1 et seq. | Ch. 2, Art. VII, Div. 7 |
| | 2-651 |
| 8-33-4 | 2-653 |
| 8-33-5 | 2-653 |
| | 2-654 |
| 8-34-1 | Char. § 44 |
| | 1-8 |
| | 2-138 |
| | 10-15 |
| | 38-122 |
| | 46-1 |
| | 50-34 |
| | 50-90 |
| | 78-2 |
| | 86-32 |
| | 86-197 |
| | 110-1 |
| | 114-3 |
| | 114-301 |
| | 114-302 |
| | 114-812 |
| | 118-176 |
| | 118-212 |
| | 122-32 |
| 8A-9-1 | 10-278 |
| 10-1-11 | 78-42 |
| 10-2-1 et seq. | Ch. 82 |
| 11-1-2 | 2-402 |
| 11-3-6 | Char. § 93 |
| 11-4-21 | 54-184 |
| 11-6-6d | Char. § 51 |
| 11-6B-3 | 110-313 |
| 11-8-1 et seq. | Char. § 50 |
| 11-8-9 | Char. § 50 |
| | 2-62 |
| | 2-368 |
| | 2-406 |
| 11-8-14 | 2-62 |
| | 2-368 |
| | 2-403 |
| | 2-406 |
| 11-8-14a | 2-62 |
| ch. 11, art. 9 | 111-2 |
| | 111-13 |
| 11-9-4 | 110-34 |
| ch. 11, art. 10 | 111-2 |
| | 111-13 |
| 11-10-5 | 110-84 |
| 11-10-5a | 110-84 |
| 11-10-5d | 110-85 |
| | 110-86 |
| 11-10-6 | 110-88 |
| 11-10-10 | 110-115 |
| 11-10-11 | 110-141 |
| 11-10-11(b) | 110-148 |
| 11-10-11(c) | 111-10 |
| 11-10-11(d) | 110-147 |
| 11-10-11(h) | 110-144 |
| 11-10-11(f) | 110-146 |
| 11-10-12 | 110-142 |
| 11-10-13 | 110-143 |
| 11-10-14 | 110-33 |
| 11-10-15 | 110-111 |
| 11-10-17a | 110-145 |
| 11-12-4 | Char. § 7 |
| 11-13-1 | 110-41 |
| 11-13-1 et seq. | Ch. 110, Art. II |
| 11-13-2 | 110-42 |
| 11-13-2b | 110-44 |
| | 110-53 |
| 11-13-2c | 110-54 |
| 11-13-2d | 110-55 |
| 11-13-2g | 110-57 |
| 11-13-2h | 110-58 |
| | 110-59 |
| 11-13-2k | 110-60 |
| 11-13-3 | 110-63 |
| 11-13-5 | 110-82 |
| 11-13-7 | 110-112 |
| | 110-145 |
| 11-13-9 | 110-82 |
| 11-13-25 | Ch. 110 |
| | Ch. 110, Art. II |
| | 110-41 |
| 11-13-28 | 110-43 |
| | 110-44 |
| | 110-53 |
| | 110-54 |
| | 110-56 |
| | 110-57 |
| | 110-58 |
| | 110-59 |
| | 110-60 |
| ch. 11, art. 14C | 111-7 |
| ch. 11, art. 15 | 110-252 |
| | 110-272 |
| | 111-2 |
| | 111-13 |
| 11-15-1 et seq. | 110-252 |
| | 110-272 |
| | 111-1 |
| 11-15-3c | 111-7 |
| ch. 11, art. 15A | 111-2 |
| | 111-13 |

| W. Va. Code Section | City Code Section |
|---|---|
| 11-15A-1 et seq. | 111-1 |
| ch. 11, art. 15B | 111-2 |
| | 111-3 |
| | 111-4 |
| | 111-13 |
| 11-15B-1 et seq. | 111-1 |
| 11-15B-33 | 111-10 |
| 11-15B-34 | 111-6 |
| 11-15B-35 | 111-9 |
| | 110-34 |
| 11-16-1 et seq. | Ch. 6 |
| | Ch. 6, Art. II |
| 11-16-3 | 6-1 |
| 11-16-10 | 78-211 |
| 11-16-19 | 78-211 |
| 11-16-26 | Ch. 6, Art. II, Div. 2 |
| ch. 11A | 65-15 |
| 11A-1-1 et seq. | Char. § 52 |
| | Char. § 54 |
| | Char. § 55 |
| | Char. § 56 |
| 12-6-1 et seq. | Char. § 58 |
| 13-1-1 et seq. | Char. § 59 |
| | Char. § 74 |
| | Ch. 2, Art. VI, Div. 3 |
| ch. 15, art. 5 | 42-33 |
| | 42-34 |
| 15-5-1 et seq. | Ch. 42, Art. II |
| | 42-33, 42-34 |
| 15-5-8 | 42-31 |
| 15-5-13 | 42-37 |
| 15-5-14 | 42-39 |
| 15-5-15 | 42-40 |
| 15-5-18 | 42-41 |
| 15A-11-5 | 14-33 |
| ch. 16, art. 1 | 58-1 |
| 16-1-1 et seq. | Ch. 58 |
| | 58-1 |
| 16-1-9 | 118-76 |
| ch. 16, art. 2 | 58-1 |
| 16-2-1 et seq. | 58-1 |
| | Char. § 96 |
| 16-2-3 | Char. § 96 |
| ch. 16, art. 13 | 118-121 |
| | 118-122 |
| | 118-123 |
| 16-13-1 | Ch. 118, Art. III |
| 16-13-1 et seq. | 118-121 |
| | 118-122 |
| | 118-123 |
| 16-13-18 | Ch. 118, Art. III, Div. 3 |
| 16-13B-1 et seq. | Ch. 30 |
| 16-18-1 et seq. | Ch. 30 |
| | Ch. 30, Art. II |
| 16-18-4 | Ch. 2, Art. VII, Div. 5 |
| ch. 16, art. 63 | 78-381 |
| | 78-382 |
| 17-1-25 | 114-2 |
| 17-1-26 | 114-2 |
| 17-10-1 et seq. | Char. § 57 |
| 17-24-1 et seq. | Ch. 50, Art. III |
| | 114-22 |
| ch. 17A | 114-362 |
| | 114-6 |
| 17A-1-1 | 31-252 |
| ch. 17A, art. 3 | 50-88 |
| 17A-3-1 et seq. | 50-88 |
| 17A-8-4 | 114-20 |
| 17A-8-6 | 114-21 |
| 17A-10-2 | 114-792 |
| ch. 17B | 114-6 |
| | 114-83 |
| 17B-2-1 | 114-7 |
| 17B-2-1 | 114-361 |
| 17B-2-2 | 114-361 |
| 17B-2-5 | 114-361 |
| ch. 17C | 114-6 |
| | 114-83 |
| 17C-1-1 et seq. | Ch. 114 |
| 17C-1-2—17C-1-4 | 114-2 |
| 17C-1-4 | 114-915 |
| 17C-1-5 | 114-915 |
| 17C-1-5—17C-1-11 | 114-2 |
| 17C-1-12—17C-1-24 | 114-2 |
| 17C-1-29—17C-1-35 | 114-2 |
| 17C-1-36(a) | 114-2 |
| 17C-1-36(b) | 114-2 |
| 17C-1-37—17C-1-43 | 114-2 |
| 17C-1-44—17C-1-52 | 114-2 |
| 17C-1-53—17C-1-55 | 114-2 |
| 17C-1-66 | 114-915 |
| 17C-1-70 | 114-915 |
| 17C-2-1 | 114-7 |
| 17C-2-2 | 114-8 |
| 17C-2-3(c) | 114-11 |
| 17C-2-4 | 114-9 |
| 17C-2-5 | 114-13 |
| 17C-2-6 | 114-10 |
| 17C-2-7 | Char. § 7 |
| | Ch. 114 |
| 17C-2-8 | Char. § 7 |
| | Ch. 114 |
| 17C-2-8(a)(1) | Ch. 114, Art. VII |
| 17C-2-8(a)(3) | 114-16 |
| | 114-17 |
| 17C-2-8(a)(4) | 114-264 |

| W. Va. Code Section | City Code Section |
|---|---|
| | 114-369 |
| 17C-2-8(a)(7) | Ch. 114, Art. XI |
| | 114-372 |
| 17C-2-8(a)(8) | Ch. 114, Art. IX |
| 17C-2-8(a)(9) | Ch. 114, Art. VI, Div. 4 |
| 17C-2-8(a)(10) | Ch. 114, Art. VI, Div. 2 |
| 17C-2-8(a) | 114-233 |
| 17C-2-8(b) | Ch. 114, Art. XI |
| 17C-2-8(c) | 114-233 |
| | 114-264 |
| | 114-369 |
| 17C-2-8(c)(9) | 114-265 |
| 17C-2-9 | 114-15 |
| 17C-3-1 | 114-240 |
| 17C-3-1 et seq. | Ch. 114, Art. IV |
| 17C-3-2 | 114-240 |
| 17C-3-4 | 114-232 |
| 17C-3-4(c) | 114-233 |
| 17C-3-4a | 114-12 |
| 17C-3-5 | 114-234 |
| | 114-236 |
| 17C-3-5(c) | 114-235 |
| 17C-3-6 | 114-237 |
| 17C-3-7 | 114-238 |
| 17C-3-8 | 114-242 |
| 17C-3-9 | 114-55 |
| 17C-4-1 et seq. | Ch. 114, Art. III |
| 17C-4-1—17C-4-3 | 114-191 |
| 17C-4-4 | 114-192 |
| 17C-4-5 | 114-193 |
| 17C-4-6 | 114-191 |
| 17C-4-8 | 114-194 |
| 17C-5-1 et seq. | Ch. 114, Art. V |
| 17C-5-2 | 114-918 |
| 17C-5-2a | 114-303 |
| 17C-5-4 | 114-321 |
| 17C-5-6 | 114-322 |
| 17C-5-7 | 114-323 |
| 17C-5-8 | 114-324 |
| 17C-5-9 | 114-325 |
| 17C-5-10 | 114-326 |
| 17C-5-32 | 114-301 |
| 17C-5A-3 | 114-323 |
| 17C-5A-4 | 114-323 |
| | 114-327 |
| 17C-6-1 | 114-401 |
| 17C-6-1 et seq. | Ch. 114, Art. VI, Div. 2 |
| 17C-6-3 | Ch. 114, Art. VI, Div. 2 |
| | 114-406 |
| 17C-6-3a | 114-403 |
| 17C-6-4 | 114-404 |
| 17C-6-5(a) | 114-405 |
| 17C-6-5(b) | 114-406 |
| 17C-6-5(d) | 114-406 |
| 17C-6-9 | 114-407 |
| 17C-7-1 | 114-431 |
| 17C-7-1 et seq. | Ch. 114, Art. VI, Div. 3 |
| 17C-7-2 | 114-432 |
| 17C-7-3 | 114-433 |
| 17C-7-4 | 114-434 |
| 17C-7-5 | 114-435 |
| 17C-7-6 | 114-436 |
| 17C-7-7 | 114-437 |
| 17C-7-8 | 114-264 |
| | 114-369 |
| 17C-7-8(c) | 114-439 |
| 17C-7-9 | 114-440 |
| 17C-7-10 | 114-376 |
| 17C-7-11 | 114-441 |
| 17C-7-12 | 114-368 |
| 17C-8-1 | 114-461 |
| 17C-8-1 et seq. | Ch. 114, Art. VI, Div. 4 |
| 17C-8-2 | 114-462 |
| 17C-8-3 | 114-463 |
| 17C-8-4 | 114-464 |
| 17C-8-7 | 114-468 |
| 17C-8-8 | 114-469 |
| 17C-8-8(c) | 114-465 |
| 17C-8-9 | 114-470 |
| 17C-8-10 | 114-471 |
| 17C-9-1 | 114-491 |
| 17C-9-1 et seq. | Ch. 114, Art. VI, Div. 5 |
| 17C-9-2 | 114-493 |
| 17C-9-3 | 114-494 |
| 17C-9-4 | 114-495 |
| 17C-9-5 | 114-496 |
| 17C-10-1 et seq. | Ch. 114, Art. VIII |
| 17C-10-1(b) | 114-661 |
| 17C-10-2 | 114-662 |
| 17C-10-3 | 114-663 |
| 17C-10-4 | 114-664 |
| 17C-10-5 | 114-665 |
| 17C-10-6(a) | 114-666 |
| 17C-10-6(b) | 114-667 |
| 17C-10-6(c) | 114-668 |
| 17C-10-8 | 114-670 |
| 17C-11-1 | 114-701 |
| 17C-11-1 et seq. | Ch. 114, Art. IX |
| 17C-11-2 | 114-702 |
| 17C-11-3 | 114-703 |
| 17C-11-4 | 114-704 |
| 17C-11-5 | 114-705 |
| 17C-11-6 | 114-709 |
| 17C-11-7 | 114-710 |
| | 114-711 |
| | 114-712 |

| W. Va. Code Section | City Code Section |
|---|---|
| 17C-12-1 | 114-511 |
| 17C-12-1 et seq. | Ch. 114, Art. VI, Div. 6 |
| 17C-12-3 | 114-512 |
| 17C-12-4 | 114-513 |
| 17C-12-5(d) | 114-514 |
| 17C-12-6 | 114-515 |
| 17C-12-7 | 114-516 |
| 17C-12-8 | 114-516 |
| 17C-13-1 | 114-557 |
| 17C-13-1 et seq. | Ch. 114, Art. VII |
| 17C-13-2 | 114-22 |
| 17C-13-2 | 114-558 |
| 17C-13-3 | 114-559 |
| 17C-13-3(a)(10) | 114-572 |
| 17C-13-3(a)(14) | 114-572 |
| 17C-13-4 | 114-555 |
| 17C-13-5 | 114-22 |
| 17C-13-6 | 114-153 |
| 17C-14-1 | 114-554 |
| 17C-14-2 | 114-367 |
| 17C-14-4 | 114-365 |
| 17C-14-8 | 114-378 |
| 17C-14-9 | 114-377 |
| 17C-14-10 | 114-379 |
| 17C-14-11 | 114-19 |
| 17C-14-13 | 114-574 |
| ch. 17C, art. 15 | 114-811 |
| | 114-815 |
| 17C-15-1 | 114-811 |
| 17C-15-1 et seq. | Ch. 114, Art. XII |
| | 114-811 |
| | 114-815 |
| 17C-15-2 et seq. | 114-815 |
| 17C-15-14 | 114-822 |
| 17C-15-15 | 114-562 |
| 17C-15-26 | 114-13 |
| | 114-496 |
| 17C-15-31 | 114-813 |
| 17C-15-32 | 114-813 |
| 17C-15-33 | 114-816 |
| | 114-817 |
| 17C-15-34 | 114-818 |
| | 114-819 |
| 17C-15-37 | 114-814 |
| 17C-15-41 | 114-821 |
| 17C-15-44 | 114-364 |
| 17C-15-44(e) | 114-820 |
| 17C-15-46 | 114-812 |
| ch. 17C, art. 16 | 50-82 |
| | 114-363 |
| 17C-16-1 et seq. | 50-82 |
| | 114-363 |
| 17C-17-7 | 114-381 |
| 17C-17-12 | Ch. 114, Art. XI |
| | 114-372 |
| 17C-18-1 | 114-3 |
| 17C-19-1 | 114-4 |
| 17C-19-1 et seq. | Ch. 114, Art. II, Div. 2 |
| 17C-19-2 | 114-5 |
| 17C-19-3 | 114-82 |
| 17C-19-4 | 114-82 |
| ch. 17D | 114-6 |
| ch. 17E | 114-6 |
| 18-13-22a et seq. | Char. § 58 |
| ch. 19, art. 2C | 18-83 |
| ch. 19, art. 4 | 110-62 |
| | 110-63 |
| 19-4-1 et seq. | 110-62 |
| 19-18-1 et seq. | Ch. 10, Art. III |
| 19-20-1 et seq. | Ch. 10, Art. III |
| | Ch. 10, Art. III, Div. 2 |
| 19-20-2 | 10-163 |
| 19-20-8 | Ch. 10, Art. III, Div. 3 |
| 19-20-9a | 10-122 |
| 19-20-13 et seq. | 10-114 |
| 19-20-20 | 10-118 |
| 19-20-21 | 10-118 |
| 19-20-22 | 10-114 |
| | 10-115 |
| 19-20A-1 et seq. | 10-119 |
| ch. 20 | 10-171 |
| 20-1-1 et seq. | Ch. 50 |
| | Ch. 74 |
| 20-7-26 | Ch. 98 |
| | 98-4 |
| 20-11-1 et seq. | Ch. 98, Art. II, Div. 4 |
| ch. 20, art. 12 | 2-686 |
| | 65-13 |
| 21-1C-1 et seq. | 2-464 |
| 21-1C-2(2) | 2-464 |
| 21-1C-2(8) | 2-464 |
| 21-3-5b | Ch. 14 |
| 21-9-1 et seq. | Ch. 70 |
| ch. 22 | 98-41 |
| 22-1-1 et seq. | Ch. 50 |
| ch. 22, art. 5 | 98-41 |
| 22-15-1 | Ch. 98 |
| 22-15-2 | 98-41 |
| 22-15-21 | Ch. 98, Art. II, Div. 6 |
| 22-15A-18 | 98-121 |
| ch. 22A | 98-41 |
| ch. 22B | 98-41 |
| 23-2-1 | 2-377 |
| | 54-51 |
| | 66-37 |

| W. Va. Code Section | City Code Section |
|---|---|
| 23-2-1 et seq. | 2-377 |
| | 54-51 |
| | 66-37 |
| 23-2-5 | 2-377 |
| 23-2-9 | Char. § 40 |
| | Char. § 41 |
| | 2-377 |
| 29-1-5e | 2-696 |
| 29-2A-1 et seq. | 78-132 |
| 29-2A-12 | 78-132 |
| ch. 29, art. 3 | 54-142 |
| 29-3-12 | 54-145 |
| 29-3E-2 | 54-190 |
| | 78-212 |
| 29-19-1 et seq. | Ch. 26 |
| ch. 29A, art. 5 | 62-82 |
| 29A-5-1 et seq. | 62-82 |
| 29A-5-3 | 62-82 |
| 29A-5-4 | 2-488 |
| | 110-115 |
| 29A-6-1 | 110-115 |
| 29B | 65-21 |
| 29B-1-3 | Char. § 20 |
| 30-3-1 et seq. | 58-51 |
| 30-21-1 et seq. | 58-51 |
| 30-30-1 et seq. | 58-51 |
| 30-31-1 et seq. | 58-51 |
| ch. 31 | 110-62 |
| | 110-63 |
| 31-2-1 et seq. | Ch. 94 |
| 31-18E | 65-1 |
| | 65-2 |
| | 65-10 |
| | 65-15 |
| 31-18E-9 | 65-15 |
| 31-18E-11 | 65-14 |
| 31-18E-14 | 65-20 |
| 31-18E-5(d) | 65-20 |
| 31-18E-9(g) | 65-15 |
| 31H-1-1 | 102-200 |
| | 102-201 |
| 31H-2-4 | 102-212 |
| ch. 38, art. 10C | 3-11 |
| | 110-142 |
| 38-10C-1 et seq. | 6-742(c) |
| | 110-142 |
| 46A-1-101 et seq. | Ch. 34 |
| 47-11B-1 et seq. | 18-383 |
| 49-5-2 | 78-210 |
| 50-1-17 | Char. § 45 |
| | Char. § 85 |
| 50-5-11 | 38-48 |
| 53-3-1—53-3-6 | 62-84 |
| ch. 54 | Char. § 7 |
| | 2-653 |
| 54-1-1 et seq. | 2-653 |
| 57-1-7a | Char. § 42 |
| ch. 59, art. 3 | 2-370 |
| | 50-87 |
| | 114-129 |
| | 114-130 |
| 59-3-1 et seq. | 2-370 |
| | 3-14 |
| | 50-87 |
| | 114-129 |
| | 114-130 |
| ch. 60 | 6-91 |
| | 6-141 |
| 60-1-1 et seq. | Ch. 6 |
| | Ch. 6, Art. III |
| | Ch. 6, Art. III, Div. 3 |
| | 6-91 |
| | 6-141 |
| 60-1-5 | 6-1 |
| ch. 60, art. 3 | 6-113 |
| 60-3-1 et seq. | 6-113 |
| 60-3-22 | 78-211 |
| 60-3-22a | 78-211 |
| ch. 60, art. 6 | 6-93 |
| 60-6-1 et seq. | 6-93 |
| | Char. § 7 |
| 60-6-6 | 6-92 |
| 60-6-7 | 6-93 |
| 60-6-9 | 6-91 |
| | 78-211 |
| 60-6-12 | 6-92 |
| ch. 60, art. 7 | 6-111 |
| | 6-113 |
| | 6-131 |
| | 110-62 |
| | 110-63 |
| 60-7-1 et seq. | 6-111 |
| | 6-113 |
| | 6-131 |
| | 110-62 |
| 60-7-2 | 6-1 |
| 60-7-7 | 6-141 |
| 60-7-8g | 6-151 |
| | 6-153 |
| 60-7-8h | 6-151 |
| | 6-153 |
| 60-7-12 | 6-133 |
| ch. 60, art. 8 | 6-111 |
| | 6-113 |
| 60-8-1 et seq. | 6-111 |
| | 6-113 |

| W. Va. Code Section | City Code Section |
|---|---|
| ch. 60A | 114-302 |
| 60A-1-101 et seq. | 78-371 |
| 60A-2-201 et seq. | 78-371 |
| 60A-4-101 et seq. | Ch. 78, Art. V, Div. 5 |
| ch. 61 | Char. § 7 |
| 61-1-9 | 78-414 |
| 61-1-13 | 78-42 |
| 61-2-9 | 78-2 |
| 61-2-26 | 78-133 |
| 61-3-1 et seq. | Ch. 78, Art. II |
| 61-3-13 | 78-81 |
| 61-3-13 et seq. | Ch. 78, Art. II, Div. 3 |
| 61-3-18 | 78-83 |
| 61-3-24 | 78-84 |
| 61-3-27 | 10-2 |
| 61-3-29 | 78-85 |
| | 118-33 |
| 61-3-30 | Ch. 78, Art. II, Div. 2 |
| | 78-42 |
| | 118-33 |
| 61-3-43 | 94-5 |
| 61-3-44 | 78-85 |
| | 118-31 |
| 61-3-45 | 118-31 |
| | 118-32 |
| 61-3A-1 et seq. | Ch. 78, Art. II, Div. 3, Subdiv. II |
| 61-5-2 | 2-140 |
| | 6-54 |
| | 38-51 |
| 61-5-8 et seq. | 66-153 |
| 61-5-9 | 66-154 |
| 61-5-14 | 78-413 |
| 61-5-17 | 78-412 |
| 61-5-22 | 2-332 |
| 61-5-23 | 2-332 |
| 61-5-27 | 38-50 |
| ch. 61, art. 5A | 2-138 |
| 61-5A-1 et seq. | 2-138 |
| 61-6-1 et seq. | Ch. 78, Art. IV |
| | 78-203 |
| 61-6-1b | Ch. 78, Art. IV, Div. 2 |
| | 78-202 |
| | 78-205 |
| | 78-212 |
| 61-6-13 | 78-207 |
| 61-6-14 | 78-207 |
| 61-6-14a | 78-206 |
| 61-6-17 | 78-131 |
| 61-6-18 | 78-411 |
| 61-6-19 | 78-411 |
| 61-6-20 | 78-131 |
| 61-6-21 | 78-10 |
| 61-7-1 | 78-161 |
| | 78-162 |
| 61-7-2 | 78-163 |
| 61-7-3—61-7-6 | 78-163 |
| 61-7-11 | 78-167 |
| 61-8-5 et seq. | Ch. 78, Art. V, Div. 3 |
| 61-8-9 | 78-292 |
| 61-8-15 | 78-211 |
| 61-8-19a | 10-121 |
| 61-8A-1 et seq. | Ch. 78, Art. V, Div. 2 |
| 61-10-1 | 78-341 |
| | Ch. 78, Art. V, Div. 4 |
| 61-10-2 | 78-342 |
| 61-10-3 | 78-344 |
| 61-10-5 | 78-345 |
| 61-10-6 | 78-346 |
| 61-10-7 | 78-346 |
| 61-10-9 | 78-347 |
| 61-10-10 | 78-350 |
| 61-10-11 | 78-348 |
| 61-10-15 | 102-300 |
| 61-11-6—61-11-8 | 78-1 |
| 87-4-1 et seq. | 14-33 |

# CHARTER INDEX


Section

**A**

ABATEMENTS
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7

ACTIONS. See: SUITS, ACTIONS AND OTHER PROCEEDINGS

ADVERTISING
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7
Franchises
Advertisement of application; submission to voters . . . . . 38

AEROPLANES. See: AIRPORTS AND AIRCRAFT

AFFIDAVITS. See: OATH, AFFIRMATION, SWEAR OR SWORN

AFFIRMATION. See: OATH, AFFIRMATION, SWEAR OR SWORN

AGENCIES. See: DEPARTMENTS AND OTHER AGENCIES OF CITY

AGENTS
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7

AGREEMENTS. See: CONTRACTS AND AGREEMENTS

AIRPORTS AND AIRCRAFT
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7

AIRSHIPS. See: AIRPORTS AND AIRCRAFT

ALCOHOLIC BEVERAGES
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7

ALLEYS
Charter
Bonds
City given power to sell and issue bonds for improvement of streets 59-a
Construction of sewer systems or common, lateral, branch, trunk or combined sewers; council is empowered to order and cause to be constructed . . . . . 62-a

Section

ALLEYS (Cont'd.)
Contracts for improvement of streets; assessment of cost; publication; powers of correction given to council . . 61
Council shall have the power to buy, sell or exchange real estate relating to 101
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7
Powers and duties of policemen . . . . . 85

AMENDMENTS
Charter
Passage of ordinances; revision, reenactment or amendment; effective date; publication of caption or title; resolutions and orders . . . . . 41

AMUSEMENTS AND AMUSEMENT PLACES
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7

ANIMALS
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7

APPEALS
Charter
Council procedure for contested elections, and right of appeal to circuit court . . . . . 23
Powers and duties of municipal judge; maximum imprisonment for violation of ordinance; appeal; expense of maintaining persons committed to county jail . . . . . 44

APPROPRIATIONS. See: FINANCE

ARREST
Charter
Bail . . . . . 46
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7
Powers and duties of policemen . . . . . 85

ASSESSMENTS
Charter
Additional method for construction of sidewalks; assessment certificates 93
Additional method for paving streets; assessment certificates . . . . . 88
Assessment certificates to pay for cost of construction of sewers and sewer systems. . . . . 88-b
Assessment when public improvement passes through or by public property or property of institution . . . . 70

Section

ASSESSMENTS (Cont'd.)
Assessments
Additional method for construction of sidewalks; assessment certificates . . . 93
Assessment certificates to pay for cost of construction of sewers and sewer systems . . . 88-b
Assessment when public improvement passes through or by public property or property of institution . . . 70
Bonds
In anticipation of special assessments for street improvements or sewer construction; limitation on indebtedness . . . 60
Construction of sidewalks, curbs and gutters; duty of county clerk to record assessments . . . 49
Contracts for improvement of streets; assessment of cost . . . 61
Sewerage assessments against owners of abutting property; requiring connection with sewer; including cost of drains in cost of street improvement . . . 62
Special assessments when several kinds of materials have been named in ordinance providing for improvement . . . 68
Subdividing abutting land for purpose of making assessments . . . 88-c
Void, irregular or omitted assessments . . . 88-a
Vote of council required for public improvement; petition by property owners . . . 69

ASSESSOR. See: COUNTY ASSESSOR

AUDITS
Charter
Audit of books and accounts . . . 18

AUTOMOBILES. See: TRAFFIC AND VEHICLES

**B**

BAIL
Charter . . . 46

BALLOONS
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . 7

BEASTS OF BURDEN. See: ANIMALS

BEGGARS
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . 7

BEQUESTS
Charter
Power of council as to public buildings, hospitals, libraries, etc. . . . 76

BILLBOARDS
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . 7

BOARDS, COMMITTEES AND COMMISSIONS
Charter
City executive committees of political parties . . . 65
Committees of council; adjournment of council meetings; postponement of announcement of vote . . . 39
Health commissioner . . . 96
Passage of ordinances; revision, reenactment or amendment; effective date; publication of caption or title; resolutions and orders . . . 41
Zoning
Zoning commission; council power to appoint . . . 102-e

BOATS, DOCKS AND WATERWAYS
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . 7

BODY POLITIC
Charter
Charleston made a city corporate and body politic . . . 1

BONDS
Bail . . . 46
Charter . . . 25 et seq.
See: CHARTER
Powers and duties of municipal judge; maximum imprisonment for violation of ordinance; appeal; expense of maintaining persons committed to county jail . . . 44

BOUNDARIES
Charter
Boundaries of voting precincts; registration books; duties of county court . 9
Zoning
Change or repeal of zoning regulations and boundaries; protests . 102-d

Section

BOUNDARIES (Cont'd.)
Establishment, enforcement and change of zoning regulations and boundaries of zoning districts; hearing ..... 102-c
Zoning commission..... 102-e

BRIDGES
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits ..... 7
Limitation on authority of county to tax persons and property within city for streets, education or poor outside city limits; control of streets and schools within city; joint ownership of bridges ..... 57

BUDGET. See: FINANCE

BUILDINGS AND BUILDING REGULATIONS
Charter
Additional method for construction of sidewalks; assessment certificates 93
Assessment certificates to pay for cost of construction of sewers and sewer systems..... 88-b
Bonds
In anticipation of special assessments for street improvements or sewer construction; limitation on indebtedness ..... 60
Building inspector..... 100
Construction of sewer systems or common, lateral, branch, trunk or combined sewers..... 62-a
Construction of sidewalks, curbs and gutters; duty of county clerk to record assessments ..... 49
Council shall have the power to buy, sell or exchange real estate relating to 101
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits ..... 7
Power of council as to public buildings, hospitals, libraries, etc..... 76
Powers and duties of policemen ..... 85
Zoning
Division of city into zoning districts; council powers..... 102-a
Power of council ..... 102

BURIALS. See: CEMETERIES

BUSINESSES
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits ..... 7

Section

**C**

CARNIVALS. See: CIRCUSES, CARNIVALS AND MENAGERIES

CARS. See: TRAFFIC AND VEHICLES

CEMETERIES
Charter
Cemeteries and burials ..... 99
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits ..... 7

CERTIFICATES
Charter
Additional method for construction of sidewalks; assessment certificates 93
Additional method for paving streets; assessment certificates..... 88
Assessment certificates to pay for cost of construction of sewers and sewer systems..... 88-b
Bonds
City given power to sell and issue bonds for improvement of streets and employ proceeds of such bonds in purchasing paving certificates or other permanent improvement certificates..... 59-a

CHARITABLE INSTITUTIONS
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits ..... 7

CHARLESTON, CITY OF. See: CITY

CHARTER
Absence or inability of certain officers to perform duties..... 34
Additional method for construction of sidewalks; assessment certificates ..... 93
Additional method for paving streets; assessment certificates ..... 88
Annual estimate for tax levy..... 50
Appointment, compensation, powers and duties of the manager..... 36
Assessment certificates to pay for cost of construction of sewers and sewer systems ..... 88-b
Assessment when public improvement passes through or by public property or property of institution ..... 70
Assessments
Additional method for construction of sidewalks; assessment certificates 93
Assessment certificates to pay for cost of construction of sewers and sewer systems..... 88-b

Section

CHARTER (Cont'd.)
- Assessment when public improvement passes through or by public property or property of institution .... 70
- Bonds
  - In anticipation of special assessments for street improvements or sewer construction; limitation on indebtedness ..... 60
- Construction of sidewalks, curbs and gutters; duty of county clerk to record assessments ..... 49
- Contracts for improvement of streets; assessment of cost ..... 61
- Sewerage assessments against owners of abutting property; requiring connection with sewer; including cost of drains in cost of street improvement ..... 62
- Special assessments when several kinds of materials have been named in ordinance providing for improvement ..... 68
- Subdividing abutting land for purpose of making assessments ..... 88-c
- Void, irregular or omitted assessments . 88-a

Audit of books and accounts ..... 18

Authority of council, manager and police officers relating to nuisances; duties and responsibilities of owners and occupants of property; enforcement .. 47

Authority of council, municipal judge, circuit and common pleas courts and judges relating to city licenses ..... 7-a

Authority of council to lay special levies in years 1929 and 1930 for special purposes ..... 75

Authority to issue warrants; vacancy in office of municipal judge ..... 94

Authority to levy and collect taxes; limit of taxation ..... 51

Bail ..... 46

Bonds
- Authority to issue; purposes; interest; limit; taxation to pay interest and principal ..... 59
- Bail bonds ..... 46
- Bonds of officers and employees; record of bonds ..... 25
- Bonds to pay city's cost of improvement of streets, etc. ..... 66
- Election and three-fifths vote required for issuance of bonds; regulations governing ..... 74
- For improvement of streets ..... 59-a
- In anticipation of special assessments for street improvements or sewer construction; limitation on indebtedness ..... 60

Section

CHARTER (Cont'd.)
- Qualifications of municipal judge; not to appear as counsel in criminal cases; absence or inability to perform duties; bond ..... 45

Boundaries of voting precincts; registration books; duties of county court ... 9

Building inspector ..... 100

Cemeteries and burials ..... 99

Charleston made a city corporate and body politic ..... 1

City clerk is ex officio clerk of the council; council minutes and admissibility thereof in evidence ..... 28

City executive committees of political parties ..... 65

City voting precincts to coincide with county voting precincts; how elections to be held; authorizing all lawful actions deemed appropriate by council to conduct elections, including combining city elections with state and county elections ..... 11

Codification of ordinances ..... 98

Collection of taxes ..... 52

Committees of council; adjournment of council meetings; postponement of announcement of vote ..... 39

Compensation of members of council; absence from meetings ..... 86

Connection with sewer system ..... 48

Construction of sewer systems or common, lateral, branch, trunk or combined sewers ..... 62-a

Construction of sidewalks, curbs and gutters; duty of county clerk to record assessments ..... 49

Contested elections for council ..... 82

Contracts for improvement of streets; assessment of cost ..... 61

Corporate limits ..... 2

Corporate power vested in council ..... 6

Corruption in office ..... 32

Council procedure for contested elections, and right of appeal to circuit court .. 23

Depositories ..... 58

Distress for collection of taxes ..... 54

Duties of city clerk as to municipal elections ..... 83

Election and term of office of elective officers; appointments by mayor; appointment of city clerk; appointments by manager; duties of mayor and city solicitor; fees ..... 35

Election and three-fifths vote required for issuance of bonds; regulations governing ..... 74

Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits ..... 7

| CHARTER (Cont'd.) | Section |
|---|---|
| Failure of mayor or other officer to make appointments | 30 |
| Filing statement as prerequisite to action for damages arising out of improvement | 72 |
| Franchises | |
| Advertisement of application; submission to voters | 38 |
| Granting; requirements and limitations governing; vote of council required | 37 |
| Health commissioner | 96 |
| Hearing of property owners affected by improvements; ordinance concerning improvement | 67 |
| Holding two offices | 29 |
| Initiation of ordinances by voters | 89 |
| Law governing preparation of ballot and method of voting | 12 |
| Liberal construction of proceedings with respect to improvements | 73 |
| Lien on real estate for taxes | |
| Enforcement by tax sale | 56 |
| Established; enforcement by suit in court of record; priority of lien | 55 |
| Limitation on authority of county to tax persons and property within city for streets, education or poor outside city limits; control of streets and schools within city; joint ownership of bridges | 57 |
| Municipal authorities; elective officers and qualifications for holding office | 4 |
| Nomination of candidates | 10 |
| Oath of officers; how and within what time officers must qualify; failure to qualify vacates office | 24 |
| Officers conservators of the peace | 43 |
| Officers in addition to elective officers; salaries | 5 |
| Ordinances to be spread on records of council; "Ordinance Record"; code of ordinances | 42 |
| Passage of ordinances; revision, reenactment or amendment; effective date; publication of caption or title; resolutions and orders | 41 |
| Persons entitled to vote | 8 |
| Police matron | 97 |
| Political activities by members of fire or police departments | 80 |
| Power of council as to public buildings, hospitals, libraries, etc. | 76 |
| Power of council to compel attendance of witnesses and production of records, administer oaths and punish for contempt | 33 |
| Power to buy, sell or exchange real estate | 101 |

| CHARTER (Cont'd.) | Section |
|---|---|
| Powers and duties of municipal judge; maximum imprisonment for violation of ordinance; appeal; expense of maintaining persons committed to county jail | 44 |
| Powers and duties of policemen | 85 |
| Powers of collector | 53 |
| Qualifications of municipal judge; not to appear as counsel in criminal cases; absence or inability to perform duties; bond | 45 |
| Quorum of council; compelling attendance of absent members | 26 |
| Recall of officers | 91 |
| Reconsideration of ordinance protested by petition; submission of ordinances to voters | 90 |
| Regular meetings of council | 21 |
| Regulation of operation of motor vehicles | 7-b |
| Removal of officers by council or by circuit court of Kanawha County, or by officers having appointment authority | 19 |
| Reports by manager to council; reports by officers and employees under supervision of manager | 87 |
| Resolution declaring necessity for street improvement | |
| Required; procedure for adoption | 63 |
| Service on property owners of notice of passage | 64 |
| Rules and regulations for government of council; record of meetings | 20 |
| Service of notice, summons, warrant, etc. | 81 |
| Sewerage assessments against owners of abutting property; requiring connection with sewer; including cost of drains in cost of street improvement | 62 |
| Signatures and affidavits to petitions filed under three preceding sections; form of submission of ordinance; all city elections to conform to state law | 92 |
| Special assessments when several kinds of materials have been named in ordinance providing for improvement | 68 |
| Special meetings of council | 22 |
| Special registrars; compensation of county court and clerk; delivery of registration books to city clerk; return to clerk of county court | 9-a |
| Statement of claim before action against city for damages for personal injury | 95 |
| Style of ordinances | 40 |
| Subdividing abutting land for purpose of making assessments | 88-c |
| The council | |
| Exercise of legislative functions; information, etc., from officers and employees | 17 |
| Mayor; clerk; president pro tempore | 15 |

Section

CHARTER (Cont'd.)
- Qualifications; vacancies . . . . . 14
- Representation of new ward . . . . . 16
- Title; how constituted . . . . . 13
- Transcript of property to be furnished by county assessor . . . . . 93-a
- Twenty wards established . . . . . 3
- Vacancy in office of mayor or treasurer; vacancy in office of appointive officer; officers hold office until successors qualified, unless previously removed 31
- Valid ordinances and regulations passed on or before May 1, 1915, not inconsistent with this Charter, to remain in effect until repealed . . . . . 84
- Void, irregular or omitted assessments . . . 88-a
- Vote of council required for public improvement; petition by property owners . . . 69
- Voting in council and recording of votes . . . 27
- What cost of improvement shall include . . 71
- Zoning
  - Change or repeal of zoning regulations and boundaries; protests . . . . . 102-d
  - Design of zoning regulations; considerations in making . . . . . 102-b
  - Division of city into zoning districts . . . . 102-a
  - Establishment, enforcement and change of zoning regulations and boundaries of zoning districts; hearing . . . . 102-c
  - Power of city . . . . . 102
  - Zoning commission . . . . . 102-e

CHIEFS
- Charter
  - Bail; municipal judge, city clerk, municipal court clerk, mayor, chief of police and the desk sergeant or person in charge of police headquarters shall have the power, to accept bond . . . . . 46

CIRCUIT COURT. See: COURTS

CIRCUSES, CARNIVALS AND MENAGERIES
- Charter
  - Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7

CITY
- Charter
  - Bonds
    - City given power to sell and issue bonds for improvement of streets 59-a
  - Bonds to pay city's cost of improvement of streets, etc. . . . . 66
  - Cemeteries and burials; powers of city to pass proper ordinances . . . . . 99
  - Charleston made a city corporate and body politic . . . . . 1

Section

CITY (Cont'd.)
- Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7
- Franchises
  - Granting; requirements and limitations governing; vote of council required; city has power to grant 37
- Limitation on authority of county to tax persons and property within city for streets, education or poor outside city limits; control of streets and schools within city; joint ownership of bridges . . . . . 57
- Statement of claim before action against city for damages for personal injury . . . . . 95
- Zoning
  - Division of city into zoning districts . 102-a
  - Power of city . . . . . 102

CITY CLERK. See: CLERKS

CITY COLLECTOR
- Charter
  - Collection of taxes; city collector shall have the power to collect said tickets so placed in his hands, together with the penalties thereon herein. 52
  - Distress for collection of taxes; city collector shall have same powers . . . . 54

CITY CORPORATE
- Charter
  - Charleston made a city corporate and body politic . . . . . 1

CITY COUNCIL. See: COUNCIL

CITY MANAGER. See: MANAGER

CITY SOLICITOR
- Charter
  - Election and term of office of elective officers; appointments by mayor; appointment of city clerk; appointments by manager; duties of mayor and city solicitor; fees . . . . . 35

CLERKS
- Charter
  - Appointment, compensation, powers and duties of the manager, and he shall have the right to employ one clerk 36
  - Bail; municipal judge, city clerk, municipal court clerk, mayor, chief of police and the desk sergeant or person in charge of police headquarters shall have the power, to accept bond . . . . . 46
  - City clerk is ex officio clerk of the council; council minutes and admissibility thereof in evidence . . . . . 28

Section

CLERKS (Cont'd.)
Construction of sidewalks, curbs and gutters; duty of county clerk to record assessments . . . . . 49
Duties of city clerk as to municipal elections . . . . . 83
Election and term of office of elective officers; appointments by mayor; appointment of city clerk; appointments by manager; duties of mayor and city solicitor; fees. . . . . 35
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7
Powers and duties of municipal judge; maximum imprisonment for violation of ordinance; bond with surety deemed approved by the municipal court clerk . . . . . 44
Special registrars; compensation of county court and clerk; delivery of registration books to city clerk; return to clerk of county court . . . . . 9-a

COCAINE. See: DRUGS

COCK FIGHTING
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7

CODE OF ORDINANCES
Charter
Ordinances to be spread on records of council; "Ordinance Record"; code of ordinances. . . . . 42

COMBUSTIBLES AND INFLAMMABLES. See: FIRE PREVENTION AND PROTECTION

COMMERCE (Generally). See: BUSINESSES

COMMITTEES AND COMMISSIONS. See: BOARDS, COMMITTEES AND COMMISSIONS

COMMON PLEAS COURT. See: COURTS

COMMUNICATIONS
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7

COMPENSATION, SALARIES, ETC. See: OFFICERS AND EMPLOYEES

CONDEMNATION
Charter
Cemeteries and burials; powers and rights of city council . . . . . 99

Section

CONDEMNATION (Cont'd.)
Construction of sewer systems or common, lateral, branch, trunk or combined sewers; council is empowered to order and cause to be constructed . . . . . 62-a
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7

CONDUCT
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7

CONSTABLE
Charter
Powers and duties of policemen . . . . . 85

CONSTRUCTION (Generally). See: BUILDINGS AND BUILDING REGULATIONS

CONTRACTS AND AGREEMENTS
Charter
Appointment, compensation, powers and duties of the manager . . . . . 36
Construction of sewer systems or common, lateral, branch, trunk or combined sewers; council is empowered to order and cause to be constructed . . . . . 62-a
Contracts for improvement of streets; assessment of cost . . . . . 61
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7

CORRUPTION IN OFFICE
Charter . . . . . 32

COUNCIL
Charter
Appointment, compensation, powers and duties of the manager as council shall prescribe . . . . . 36
Authority of council, manager and police officers relating to nuisances; duties and responsibilities of owners and occupants of property; enforcement . . . . . 47
Authority of council, municipal judge, circuit and common pleas courts and judges relating to city licenses 7-a
Authority of council to lay special levies in years 1929 and 1930 for special purposes. . . . . 75
Cemeteries and burials; powers and rights of city council . . . . . 99
City clerk is ex officio clerk of the council; council minutes and admissibility thereof in evidence . . . . . 28

Section

COUNCIL (Cont'd.)
- Collection of taxes; council shall have the power any year, by resolution, to extend the time within which tax tickets may remain in the treasurer's hands and be paid to him without adding the penalty ..... 52
- Committees of council; adjournment of council meetings; postponement of announcement of vote ..... 39
- Compensation of members of council; absence from meetings..... 86
- Construction of sewer systems or common, lateral, branch, trunk or combined sewers; council is empowered to order and cause to be constructed ..... 62-a
- Construction of sidewalks, curbs and gutters; duty of county clerk to record assessments; power of council to collect assessment..... 49
- Contested elections for council..... 82
- Contracts for improvement of streets; assessment of cost; publication; powers of correction given to council.. 61
- Corporate power vested in council ..... 6
- Council procedure for contested elections, and right of appeal to circuit court ..... 23
- Council shall have the power to buy, sell or exchange real estate relating to 101
- Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits ..... 7
- Exercise of legislative functions; information, etc., from officers and employees ..... 17
- Franchises
  - Granting; requirements and limitations governing; vote of council required..... 37
- Passage of ordinances; revision, reenactment or amendment; effective date; publication of caption or title; resolutions and orders..... 41
- Power of council as to public buildings, hospitals, libraries, etc..... 76
- Power of council to compel attendance of witnesses and production of records, administer oaths and punish for contempt..... 33
- Powers and duties of policemen; mayor shall appoint such number as are or may be prescribed by the city council and has right and power to dismiss ..... 85
- Quorum of council; compelling attendance of absent members ..... 26
- Regular meetings of council ..... 21

Section

COUNCIL (Cont'd.)
- Removal of officers by council or by circuit court of Kanawha County, or by officers having appointment authority..... 19
- Reports by manager to council; reports by officers and employees under supervision of manager ..... 87
- Rules and regulations for government of council; record of meetings ..... 20
- Special meetings of council..... 22
- The council
  - Mayor; clerk; president pro tempore. 15
  - Qualifications; vacancies ..... 14
  - Title; how constituted ..... 13
- Vote of council required for public improvement; petition by property owners ..... 69
- Voting in council and recording of votes 27
- Zoning
  - Division of city into zoning districts; council powers..... 102-a
  - Power of city and council empowerment..... 102
  - Zoning commission; council power to appoint ..... 102-e

COUNTY
- Charter
  - Construction of sidewalks, curbs and gutters; duty of county clerk to record assessments; power of council to collect assessment..... 49
  - Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits ..... 7
  - Limitation on authority of county to tax persons and property within city for streets, education or poor outside city limits; control of streets and schools within city; joint ownership of bridges ..... 57
  - Powers and duties of municipal judge; maximum imprisonment for violation of ordinance; appeal; expense of maintaining persons committed to county jail..... 44
  - Removal of officers by council or by circuit court of Kanawha County, or by officers having appointment authority..... 19

COUNTY ASSESSOR
- Charter
  - Transcript of property to be furnished by county assessor ..... 93-a

COUNTY COURT. See: COURTS

Section

COURTS
Charter
Authority of council, municipal judge, circuit and common pleas courts and judges relating to city licenses 7-a
Bail . . . . . 46
Boundaries of voting precincts; registration books; duties of county court . 9
Council procedure for contested elections, and right of appeal to circuit court . . . . . 23
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7
Lien on real estate for taxes
Established; enforcement by suit in court of record; priority of lien . 55
Powers and duties of municipal judge; maximum imprisonment for violation of ordinance; appeal; expense of maintaining persons committed to county jail. . . . . 44
Removal of officers by council or by circuit court of Kanawha County, or by officers having appointment authority. . . . . 19
Special registrars; compensation of county court and clerk; delivery of registration books to city clerk; return to clerk of county court . . . . . 9-a

CREMATORIES
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7

CRIME, CRIMINALS
Charter
Powers and duties of municipal judge; maximum imprisonment for violation of ordinance; appeal; expense of maintaining persons committed to county jail. . . . . 44
Qualifications of municipal judge; not to appear as counsel in criminal cases; absence or inability to perform duties; bond . . . . . 45

CURBS
Charter
Bonds
City given power to sell and issue bonds for improvement of streets 59-a
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7

**D**

DAMAGE, INJURY, ETC.
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7
Filing statement as prerequisite to action for damages arising out of improvement. . . . . 72
Statement of claim before action against city for damages for personal injury . . . . . 95

DEDICATIONS
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7

DEEDS
Charter
Council shall have the power to buy, sell or exchange real estate relating to 101

DEPARTMENTS AND OTHER AGENCIES OF CITY
Charter
Political activities by members of fire or police departments . . . . . 80

DEPOSITORIES
Charter . . . . . 58

DEVELOPMENT. See: PLANNING AND DEVELOPMENT

DISEASE CONTROL. See: HEALTH AND SANITATION

DISTRICTS
Charter
Zoning
Division of city into zoning districts . 102-a
Establishment, enforcement and change of zoning regulations and boundaries of zoning districts; hearing . . . . . 102-c
Zoning commission. . . . . 102-e

DOCKS. See: BOATS, DOCKS AND WATERWAYS

DOG FIGHTING
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7

DONATIONS
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7
Power of council as to public buildings, hospitals, libraries, etc. . . . . 76

Section

DRAINAGE
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits ..... 7
Sewerage assessments against owners of abutting property; requiring connection with sewer; including cost of drains in cost of street improvement ..... 62

DRUGS
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits ..... 7

DRUNKEN OR DISORDERLY PERSONS
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits ..... 7

**E**

EASEMENTS
Charter
Construction of sewer systems or common, lateral, branch, trunk or combined sewers; council is empowered to order and cause to be constructed ..... 62-a

EDUCATION. See also: SCHOOLS
Charter
Limitation on authority of county to tax persons and property within city for streets, education or poor outside city limits; control of streets and schools within city; joint ownership of bridges ..... 57

EDUCATIONAL INSTITUTIONS
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits ..... 7

ELECTIONS
Charter
City voting precincts to coincide with county voting precincts; how elections to be held; authorizing all lawful actions deemed appropriate by council to conduct elections, including combining city elections with state and county elections ... 11
Contested elections for council. ..... 82
Council procedure for contested elections, and right of appeal to circuit court ..... 23

Section

ELECTIONS (Cont'd.)
Duties of city clerk as to municipal elections ..... 83
Election and term of office of elective officers; appointments by mayor; appointment of city clerk; appointments by manager; duties of mayor and city solicitor; fees. ..... 35
Election and three-fifths vote required for issuance of bonds; regulations governing ..... 74
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits ..... 7
Nomination of candidates ..... 10
Signatures and affidavits to petitions filed under three preceding sections; form of submission of ordinance; all city elections to conform to state law ..... 92

ELECTRICITY
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits ..... 7

EMERGENCIES
Charter
Passage of ordinances; revision, reenactment or amendment; effective date; publication of caption or title; resolutions and orders ..... 41

EMINENT DOMAIN
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits ..... 7

EMPLOYEES. See: OFFICERS AND EMPLOYEES

ENCLOSURES. See: FENCES, WALLS, HEDGES AND ENCLOSURES

ENTERTAINMENTS. See: AMUSEMENTS AND AMUSEMENT PLACES

ENTRY
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits ..... 7

EVIDENCE
Charter
City clerk is ex officio clerk of the council; council minutes and admissibility thereof in evidence ..... 28

Section

EVIDENCE (Cont'd.)
Powers and duties of municipal judge; maximum imprisonment for violation of ordinance; appeal; expense of maintaining persons committed to county jail . . . . . 44

EXHIBITS, EXHIBITIONS
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7

EXPLOSIVES
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7

**F**

FALSE REPRESENTATIONS
Charter
Powers and duties of municipal judge; maximum imprisonment for violation of ordinance; appeal; expense of maintaining persons committed to county jail . . . . . 44

FEES
Charter
Election and term of office of elective officers; appointments by mayor; appointment of city clerk; appointments by manager; duties of mayor and city solicitor; fees . . . . . 35

FELONY
Charter
Powers and duties of municipal judge; maximum imprisonment for violation of ordinance; appeal; expense of maintaining persons committed to county jail . . . . . 44

FENCES, WALLS, HEDGES AND ENCLOSURES
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7

FERRY BOATS. See: BOATS, DOCKS AND WATERWAYS

FINANCE
Appropriations
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits. 7
Charter
Audit of books and accounts . . . . . 18

Section

FINANCE (Cont'd.)
Depositories . . . . . 58
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7
Compensation, salaries, etc. See: OFFICERS AND EMPLOYEES

FINES, FORFEITURES AND OTHER PENALTIES
Charter
Collection of taxes; council shall have the power any year, by resolution, to extend the time within which tax tickets may remain in the treasurer's hands and be paid to him without adding the penalty . . . . . 52
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7
Powers and duties of municipal judge; maximum imprisonment for violation of ordinance; appeal; expense of maintaining persons committed to county jail . . . . . 44
Powers of collector to collect city taxes and city claims except fines imposed the municipal judge . . . . . 53

FIRE PREVENTION AND PROTECTION
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7
Political activities by members of fire or police departments . . . . . 80

FIREWORKS AND FIRECRACKERS
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7

FLAMMABLES. See: COMBUSTIBLES AND INFLAMMABLES

FOOD AND FOOD SERVICES
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7

FORFEITURES. See: FINES, FORFEITURES AND OTHER PENALTIES

FORTUNETELLERS
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7

FOWL. See: ANIMALS

Section

FRANCHISES
Charter
Franchises
Advertisement of application; submission to voters . . . . . 38
Granting; requirements and limitations governing; vote of council required. . . . . 37

FUNDS (Generally). See: FINANCE

**G**

GAMBLING
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7

GARBAGE. See: SOLID WASTE

GAS. See: FIRE PREVENTION AND PROTECTION

GIFTS
Charter
Power of council as to public buildings, hospitals, libraries, etc. . . . . 76

GLUE FACTORIES
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7

GRADES AND GRADING
Charter
Bonds
City given power to sell and issue bonds for improvement of streets 59-a
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7

**H**

HEALTH AND SANITATION
Charter
Connection with sewer system. . . . . 48
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7
Health commissioner . . . . . 96
Powers and duties of policemen . . . . . 85
Zoning
Power of council . . . . . 102

HEALTH OFFICER
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7

HEARINGS
Charter
Zoning
Establishment, enforcement and change of zoning regulations and boundaries of zoning districts . . 102-c

HEDGES. See: FENCES, WALLS, HEDGES AND ENCLOSURES

HIGHWAYS. See: STREETS, SIDEWALKS AND OTHER PUBLIC PLACES

HOLDING TWO OFFICES
Charter . . . . . 29

HOSPITALS
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7
Power of council as to public buildings, hospitals, libraries, etc. . . . . 76

HUMANE OFFICER
Charter
Powers and duties of policemen . . . . . 85

**I**

IMPOUNDMENT
Charter
Regulation of operation of motor vehicles. . . . . 7-b

IMPROVEMENTS. See: PUBLIC WORKS AND IMPROVEMENTS

IN WRITING
Charter
Removal of officers by council or by circuit court of Kanawha County, or by officers having appointment authority. . . . . 19
Vote of council required for public improvement; petition by property owners . . . . . 69

INDEBTEDNESS (Generally). See: BONDS; See also: FINANCE

INDECENCY AND OBSCENITY
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7

INDUSTRIAL CONCERNS
Charter
Zoning
Power of council . . . . . 102

INFLAMMABLES. See: COMBUSTIBLES AND INFLAMMABLES

Section

INJURY, ETC. See: DAMAGE, INJURY, ETC.

INSPECTIONS, INSPECTORS
Charter
Building inspector . . . . . 100
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7

INSTITUTIONS
Charter
Assessment when public improvement passes through or by public property or property of institution . . . . 70

INSURANCE
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7

INTERFERENCE (Generally). See: OBSTRUCTIONS

INTERSECTIONS
Charter
Construction of sewer systems or common, lateral, branch, trunk or combined sewers; council is empowered to order and cause to be constructed . . . . . 62-a

**J**

JAIL
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7
Powers and duties of municipal judge; maximum imprisonment for violation of ordinance; appeal; expense of maintaining persons committed to county jail . . . . . 44

JUDGES
Charter
Authority of council, municipal judge, circuit and common pleas courts and judges relating to city licenses 7-a
Bail; municipal judge, city clerk, municipal court clerk, mayor, chief of police and the desk sergeant or person in charge of police headquarters shall have the power, to accept bond . . . . . 46
Powers and duties of municipal judge; maximum imprisonment for violation of ordinance; appeal; expense of maintaining persons committed to county jail . . . . . 44

Section

JUDGES (Cont'd.)
Powers of collector to collect city taxes and city claims except fines imposed the municipal judge . . . . . 53
Qualifications of municipal judge; not to appear as counsel in criminal cases; absence or inability to perform duties; bond . . . . . 45

**K**

KANAWHA, COUNTY OF. See: COUNTY

**L**

LAWS
Charter
Law governing preparation of ballot and method of voting . . . . . 12
Powers and duties of policemen . . . . . 85
Signatures and affidavits to petitions filed under three preceding sections; form of submission of ordinance; all city elections to conform to state law . . . . . 92

LEASES
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7
Power of council as to public buildings, hospitals, libraries, etc. . . . . 76

LIBRARIES
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7
Power of council as to public buildings, hospitals, libraries, etc. . . . . 76

LICENSES AND PERMITS
Charter
Authority of council, municipal judge, circuit and common pleas courts and judges relating to city licenses 7-a
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7

LIENS, RECOVERY OF COST, ETC.
Charter
Construction of sidewalks, curbs and gutters; duty of county clerk to record assessments; power of council to collect assessment. . . . . 49
Lien on real estate for taxes
Enforcement by tax sale . . . . . 56
Established; enforcement by suit in court of record; priority of lien . 55

Section

LIGHTS AND LIGHTING
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits ..... 7

LITTER. See: SOLID WASTE

LOCATION
Charter
Contracts for improvement of streets; assessment of cost; publication; powers of correction given to council.. 61
Zoning
Power of council ..... 102

LOTS
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits ..... 7
Powers and duties of policemen ..... 85

**M**

MANAGER
Charter
Appointment, compensation, powers and duties of the manager ..... 36
Authority of council, manager and police officers relating to nuisances; duties and responsibilities of owners and occupants of property; enforcement ..... 47
Election and term of office of elective officers; appointments by mayor; appointment of city clerk; appointments by manager; duties of mayor and city solicitor; fees..... 35
Reports by manager to council; reports by officers and employees under supervision of manager ..... 87

MAPS. See: SURVEYS, MAPS AND PLATS

MAYOR
Charter
Bail; municipal judge, city clerk, municipal court clerk, mayor, chief of police and the desk sergeant or person in charge of police headquarters shall have the power, to accept bond ..... 46
Election and term of office of elective officers; appointments by mayor; appointment of city clerk; appointments by manager; duties of mayor and city solicitor; fees..... 35
Failure of mayor or other officer to make appointments ..... 30

Section

MAYOR (Cont'd.)
Power of council to compel attendance of witnesses and production of records, administer oaths and punish for contempt; enforcement of powers conferred by this act shall be signed by the mayor (or acting mayor) ..... 33
Powers and duties of policemen; right and power to dismiss to mayor ... 85
Removal of officers by council or by circuit court of Kanawha County, or by mayor or officers having appointment authority..... 19
The council
Mayor; clerk; president pro tempore. 15
Vacancy in office of mayor or treasurer; vacancy in office of appointive officer; officers hold office until successors qualified, unless previously removed ..... 31

MEAT AND MEAT PRODUCTS
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits ..... 7

MEETINGS
Charter
Compensation of members of council; absence from meetings..... 86
Regular meetings of council ..... 21
Rules and regulations for government of council; record of meetings ..... 20
Special meetings of council..... 22

MENAGERIES. See: CIRCUSES, CARNIVALS AND MENAGERIES

MENDICANTS
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits ..... 7

MILK AND MILK PRODUCTS
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits ..... 7

MISDEMEANORS
Charter
Powers and duties of municipal judge; maximum imprisonment for violation of ordinance; appeal; expense of maintaining persons committed to county jail..... 44

MONIES (Generally). See: FINANCE

Section

MORALITY
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7
Zoning
Power of council . . . . . 102

MORPHINE. See: DRUGS

MOTOR VEHICLES. See: TRAFFIC AND VEHICLES

MUNICIPAL JUDGE. See: JUDGES

MURDER
Charter
Bail . . . . . 46

MUSIC EXHIBITIONS AND PERFORMANCES
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7

**N**

NAMES AND NAMING
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7
Special assessments when several kinds of materials have been named in ordinance providing for improvement . . . . . 68

NATURAL OR ARTIFICIAL CURIOSITIES
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7

NOISES
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7

NUISANCES
Charter
Authority of council, manager and police officers relating to nuisances; duties and responsibilities of owners and occupants of property; enforcement . . . . . 47
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7

Section

NUMBERS AND NUMBERING
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7
Powers and duties of policemen; mayor shall appoint such number as are or may be prescribed by the city council and has right and power to dismiss . . . . . 85

**O**

OATH, AFFIRMATION, SWEAR OR SWORN
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7
Oath of officers; how and within what time officers must qualify; failure to qualify vacates office . . . . . 24
Power of council to compel attendance of witnesses and production of records, administer oaths and punish for contempt. . . . . 33
Signatures and affidavits to petitions filed under three preceding sections; form of submission of ordinance; all city elections to conform to state law . . . . . 92

OBLIGATIONS (Generally). See: BONDS; See also: FINANCE

OBSCENITY. See: INDECENCY AND OBSCENITY

OBSTRUCTIONS
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7
Powers and duties of policemen . . . . . 85

OCCUPATIONS (Generally). See: BUSINESSES

OFFENSES
Charter
Bail . . . . . 46
Council procedure for contested elections, and right of appeal to circuit court . . . . . 23
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7
Powers and duties of municipal judge; maximum imprisonment for violation of ordinance; appeal; expense of maintaining persons committed to county jail. . . . . 44

Section

OFFICERS AND EMPLOYEES
Charter
Absence or inability of certain officers to perform duties ..... 34
Bonds of officers and employees; record of bonds ..... 25
Building inspector ..... 100
City executive committees of political parties ..... 65
Election and term of office of elective officers; appointments by mayor; appointment of city clerk; appointments by manager; duties of mayor and city solicitor; fees ..... 35
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits ..... 7
Failure of mayor or other officer to make appointments ..... 30
Health commissioner ..... 96
Municipal authorities; elective officers and qualifications for holding office 4
Oath of officers; how and within what time officers must qualify; failure to qualify vacates office ..... 24
Officers conservators of the peace ..... 43
Officers in addition to elective officers; salaries ..... 5
Police matron ..... 97
Political activities by members of fire or police departments ..... 80
Powers and duties of policemen ..... 85
Qualifications of municipal judge; not to appear as counsel in criminal cases; absence or inability to perform duties; bond ..... 45
Recall of officers ..... 91
Removal of officers by council or by circuit court of Kanawha County, or by officers having appointment authority ..... 19
Reports by manager to council; reports by officers and employees under supervision of manager ..... 87
Special registrars; compensation of county court and clerk; delivery of registration books to city clerk; return to clerk of county court ..... 9-a
The council
Exercise of legislative functions; information, etc., from officers and employees ..... 17
Transcript of property to be furnished by county assessor ..... 93-a
Compensation, salaries, etc.
Charter
Appointment, compensation, powers and duties of the manager ..... 36
Compensation of members of council; absence from meetings ..... 86

Section

OFFICERS AND EMPLOYEES (Cont'd.)
Election and term of office of elective officers; appointments by mayor; appointment of city clerk; appointments by manager; duties of mayor and city solicitor; fees 35
Officers in addition to elective officers; salaries ..... 5
Special registrars; compensation of county court and clerk; delivery of registration books to city clerk; return to clerk of county court . 9-a
Salaries. See herein: Compensation, Salaries, Etc.

OPEN SPACES. See: YARDS AND OTHER OPEN SPACES

OPIUM. See: DRUGS

ORDINANCES, RESOLUTIONS, ETC.
Charter
Codification of ordinances ..... 98
Hearing of property owners affected by improvements; ordinance concerning improvement ..... 67
Initiation of ordinances by voters ..... 89
Ordinances to be spread on records of council; "Ordinance Record"; code of ordinances ..... 42
Passage of ordinances; revision, reenactment or amendment; effective date; publication of caption or title; resolutions and orders ..... 41
Reconsideration of ordinance protested by petition; submission of ordinances to voters ..... 90
Signatures and affidavits to petitions filed under three preceding sections; form of submission of ordinance; all city elections to conform to state law ..... 92
Special assessments when several kinds of materials have been named in ordinance providing for improvement ..... 68
Style of ordinances ..... 40
Valid ordinances and regulations passed on or before May 1, 1915, not inconsistent with this Charter, to remain in effect until repealed ..... 84

**P**

PALMISTS
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits ..... 7

PARKING. See: TRAFFIC AND VEHICLES

Section

PARKS AND RECREATION
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7

PAUPERS
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7

PAVING, PAVEMENT
Charter
Additional method for paving streets; assessment certificates. . . . . 88
Bonds
City given power to sell and issue bonds for improvement of streets 59-a
Contracts for improvement of streets; assessment of cost; publication; powers of correction given to council. . 61
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7

PENALTIES. See: FINES, FORFEITURES AND OTHER PENALTIES

PERMITS. See: LICENSES AND PERMITS

PERSONNEL. See: OFFICERS AND EMPLOYEES

PETITIONS
Charter
Reconsideration of ordinance protested by petition; submission of ordinances to voters . . . . . 90
Signatures and affidavits to petitions filed under three preceding sections; form of submission of ordinance; all city elections to conform to state law . . . . . 92
Vote of council required for public improvement; petition by property owners . . . . . 69

PLANNING AND DEVELOPMENT
Charter
Construction of sidewalks, curbs and gutters; duty of county clerk to record assessments . . . . . 49

PLATS. See: SURVEYS, MAPS AND PLATS

PLUMBING
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7

Section

POLICE DEPARTMENT
Charter
Authority of council, manager and police officers relating to nuisances; duties and responsibilities of owners and occupants of property; enforcement . . . . . 47
Bail . . . . . 46
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7
Police matron . . . . . 97
Political activities by members of fire or police departments . . . . . 80
Power of council to compel attendance of witnesses and production of records, administer oaths and punish for contempt; enforcement of powers conferred by this act may be executed by any member of the police force. . . . . 33
Powers and duties of municipal judge; maximum imprisonment for violation of ordinance; appeal; expense of maintaining persons committed to county jail. . . . . 44
Powers and duties of policemen . . . . . 85

POLITICAL CONCERNS
Charter
City executive committees of political parties . . . . . 65
Political activities by members of fire or police departments . . . . . 80

POLLUTION
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7

POSTERS
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7

POWERS
Charter
Appointment, compensation, powers and duties of the manager . . . . . 36
Bail; municipal judge, city clerk, municipal court clerk, mayor, chief of police and the desk sergeant or person in charge of police headquarters shall have the power, to accept bond . . . . . 46
Bonds
City given power to sell and issue bonds for improvement of streets 59-a
Cemeteries and burials; powers and rights of city council . . . . . 99

Section

POWERS (Cont'd.)
- Collection of taxes; council shall have the power to extend the time within which tax tickets may remain in the treasurer's hands and be paid to him without adding the penalty and city collector shall have power to collect said tickets ..... 52
- Committees of council; adjournment of council meetings; postponement of announcement of vote; powers of committee ..... 39
- Construction of sewer systems or common, lateral, branch, trunk or combined sewers; council is empowered to order and cause to be constructed ..... 62-a
- Construction of sidewalks, curbs and gutters; duty of county clerk to record assessments; power of council to collect assessment..... 49
- Contracts for improvement of streets; assessment of cost; publication; powers of correction given to council.. 61
- Corporate power vested in council ..... 6
- Distress for collection of taxes; city collector shall have same powers.... 54
- Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits ..... 7
- Franchises
  - Granting; requirements and limitations governing; vote of council required; city has power to grant 37
- Power of council as to public buildings, hospitals, libraries, etc..... 76
- Power of council to compel attendance of witnesses and production of records, administer oaths and punish for contempt..... 33
- Power to buy, sell or exchange real estate ..... 101
- Powers and duties of municipal judge; maximum imprisonment for violation of ordinance; appeal; expense of maintaining persons committed to county jail..... 44
- Powers and duties of policemen ..... 85
- Powers of collector..... 53
- Removal powers of officers by council or by circuit court of Kanawha County, or by mayor or officers having appointment authority ..... 19
- Vote of council required for public improvement; petition by property owners; power of council to proceed with such improvement..... 69
- Zoning
  - Division of city into zoning districts; council powers..... 102-a

Section

POWERS (Cont'd.)
- Power of city ..... 102
- Zoning commission; council power to appoint ..... 102-e

PRESIDENT PRO TEMPORE
- Charter
  - The council
    - Mayor; clerk; president pro tempore. 15

PRISONS AND PRISONERS
- Charter
  - Powers and duties of municipal judge; maximum imprisonment for violation of ordinance; appeal; expense of maintaining persons committed to county jail..... 44

PRIZE FIGHTING
- Charter
  - Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits ..... 7

PROCEEDINGS. See: SUITS, ACTIONS AND OTHER PROCEEDINGS

PROCESSES. See: WRITS, WARRANTS AND OTHER PROCESSES

PRODUCE. See: FOOD AND FOOD SERVICES

PROFESSIONS (Generally). See: BUSINESSES

PROPERTY
- Charter
  - Assessment when public improvement passes through or by public property or property of institution .... 70
  - Authority of council, manager and police officers relating to nuisances; duties and responsibilities of owners and occupants of property; enforcement ..... 47
  - Construction of sewer systems or common, lateral, branch, trunk or combined sewers; council is empowered to order and cause to be constructed ..... 62-a
  - Construction of sidewalks, curbs and gutters; duty of county clerk to record assessments ..... 49
  - Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits ..... 7
  - Hearing of property owners affected by improvements; ordinance concerning improvement ..... 67

Section

PROPERTY (Cont'd.)
Limitation on authority of county to tax persons and property within city for streets, education or poor outside city limits; control of streets and schools within city; joint ownership of bridges . . . . . 57
Resolution declaring necessity for street improvement
Service on property owners of notice of passage . . . . . 64
Sewerage assessments against owners of abutting property; requiring connection with sewer; including cost of drains in cost of street improvement . . . . . 62
Subdividing abutting land for purpose of making assessments . . . . . 88-c
Transcript of property to be furnished by county assessor . . . . . 93-a
Vote of council required for public improvement; petition by property owners . . . . . 69

PROSTITUTES
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7

PUBLIC PLACES. See: STREETS, SIDEWALKS AND OTHER PUBLIC PLACES

PUBLIC PROPERTY
Charter
Assessment when public improvement passes through or by public property or property of institution . . . . 70

PUBLIC WORKS AND IMPROVEMENTS
Charter
Assessment when public improvement passes through or by public property or property of institution . . . . 70
Bonds to pay city's cost of improvement of streets, etc. . . . . 66
Filing statement as prerequisite to action for damages arising out of improvement. . . . . 72
Hearing of property owners affected by improvements; ordinance concerning improvement . . . . . 67
Liberal construction of proceedings with respect to improvements . . . . . 73
Resolution declaring necessity for street improvement
Required; procedure for adoption. . . . 63
Service on property owners of notice of passage . . . . . 64

Section

PUBLIC WORKS AND IMPROVEMENTS (Cont'd.)
Sewerage assessments against owners of abutting property; requiring connection with sewer; including cost of drains in cost of street improvement . . . . . 62
Special assessments when several kinds of materials have been named in ordinance providing for improvement . . . . . 68
Vote of council required for public improvement; petition by property owners . . . . . 69
What cost of improvement shall include 71

PUBLICATION
Charter
Passage of ordinances; revision, reenactment or amendment; effective date; publication of caption or title; resolutions and orders . . . . . 41

PURCHASING
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7
Power of council as to public buildings, hospitals, libraries, etc. . . . . 76

**R**

RADIO STATIONS. See: COMMUNICATIONS

RAILROADS
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7

RAPE
Charter
Bail . . . . . 46

REAL ESTATE
Charter
Bonds
City given power to sell and issue bonds for improvement of streets and employ proceeds of such bonds in purchasing paving certificates or other permanent improvement certificates . . . . . 59-a
Cemeteries and burials; powers and rights of city council . . . . . 99
Construction of sidewalks, curbs and gutters; duty of county clerk to record assessments; power of council to collect assessment. . . . . 49
Lien on real estate for taxes
Enforcement by tax sale . . . . . 56

Section

REAL ESTATE (Cont'd.)
Established; enforcement by suit in court of record; priority of lien . 55
Power to buy, sell or exchange real estate . . . . . 101
Powers and duties of municipal judge; maximum imprisonment for violation of ordinance; appeal; expense of maintaining persons committed to county jail . . . . . 44

RECALL OF OFFICERS
Charter . . . . . 91

RECORDS AND REPORTS
Charter
Bonds of officers and employees; record of bonds . . . . . 25
Construction of sidewalks, curbs and gutters; duty of county clerk to record assessments . . . . . 49
Lien on real estate for taxes
Established; enforcement by suit in court of record; priority of lien . 55
Ordinances to be spread on records of council; "Ordinance Record"; code of ordinances . . . . . 42
Passage of ordinances; revision, reenactment or amendment; effective date; publication of caption or title; resolutions and orders . . . . . 41
Power of council to compel attendance of witnesses and production of records, administer oaths and punish for contempt . . . . . 33
Powers and duties of municipal judge; maximum imprisonment for violation of ordinance; appeal; expense of maintaining persons committed to county jail . . . . . 44
Reports by manager to council; reports by officers and employees under supervision of manager . . . . . 87
Rules and regulations for government of council; record of meetings . . . . . 20
Voting in council and recording of votes 27

RECOVERY OF COST. See: LIENS, RECOVERY OF COST, ETC.

RECREATION. See: PARKS AND RECREATION

REFUSE. See: SOLID WASTE

REGISTRATION
Charter
Boundaries of voting precincts; registration books; duties of county court . 9

Section

RELIGIOUS CONCERNS
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7

REPORTS. See: RECORDS AND REPORTS

REPRESENTATION OF NEW WARD
Charter
The council . . . . . 16

RESOLUTIONS. See: ORDINANCES, RESOLUTIONS, ETC.

REVENUES (Generally). See: FINANCE

RIGHTS (Generally)
Charter
Bail . . . . . 46
Cemeteries and burials; powers and rights of city council . . . . . 99
Council procedure for contested elections, and right of appeal to circuit court . . . . . 23
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7

RIGHTS-OF-WAY
Charter
Construction of sewer systems or common, lateral, branch, trunk or combined sewers; council is empowered to order and cause to be constructed . . . . . 62-a

ROADS. See: STREETS, SIDEWALKS AND OTHER PUBLIC PLACES

RUBBISH. See: SOLID WASTE

RUNNING AT LARGE OF ANIMALS
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7

**S**

SALARIES
Compensation, salaries, etc. See: OFFICERS AND EMPLOYEES

SALES
Charter
Bonds
City given power to sell and issue bonds for improvement of streets 59-a
Distress for collection of taxes; city collector shall have same powers to collect any tax or assessment that the sheriff has to collect state taxes 54

Section

SALES (Cont'd.)
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7
Lien on real estate for taxes
Enforcement by tax sale . . . . . 56
Power of council as to public buildings, hospitals, libraries, etc. . . . . 76
Power to buy, sell or exchange real estate . . . . . 101

SANITATION. See: HEALTH AND SANITATION

SCHOOLS
Charter
Limitation on authority of county to tax persons and property within city for streets, education or poor outside city limits; control of streets and schools within city; joint ownership of bridges . . . . . 57

SEWERS. See: UTILITIES

SHERIFF
Charter
Distress for collection of taxes; city collector shall have same powers to collect any tax or assessment that the sheriff has to collect state taxes 54

SIDEWALKS. See: STREETS, SIDEWALKS AND OTHER PUBLIC PLACES

SIGNATURES
Charter
Signatures and affidavits to petitions filed under three preceding sections; form of submission of ordinance; all city elections to conform to state law . . . . . 92

SIGNS
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7

SLAUGHTER HOUSES
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7

SOAP FACTORIES
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7

Section

SOLID WASTE
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7

SPECIAL ASSESSMENTS. See: ASSESSMENTS

SPEED
Charter
Regulation of operation of motor vehicles. . . . . 7-b

STATE
Charter
Distress for collection of taxes; city collector shall have same powers to collect any tax or assessment that the sheriff has to collect state taxes 54
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7
Powers and duties of policemen . . . . . 85
Signatures and affidavits to petitions filed under three preceding sections; form of submission of ordinance; all city elections to conform to state law . . . . . 92

STREETS, SIDEWALKS AND OTHER PUBLIC PLACES
Charter
Additional method for construction of sidewalks; assessment certificates 93
Additional method for paving streets; assessment certificates. . . . . 88
Bonds
For improvement of streets . . . . . 59-a
In anticipation of special assessments for street improvements or sewer construction; limitation on indebtedness . . . . . 60
Bonds to pay city's cost of improvement of streets, etc. . . . . 66
Construction of sewer systems or common, lateral, branch, trunk or combined sewers; council is empowered to order and cause to be constructed . . . . . 62-a
Construction of sidewalks, curbs and gutters; duty of county clerk to record assessments . . . . . 49
Contracts for improvement of streets; assessment of cost . . . . . 61
Council shall have the power to buy, sell or exchange real estate relating to 101
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7

Section

STREETS, SIDEWALKS AND OTHER PUBLIC PLACES (Cont'd.)
Limitation on authority of county to tax persons and property within city for streets, education or poor outside city limits; control of streets and schools within city; joint ownership of bridges ..... 57
Powers and duties of policemen ..... 85
Resolution declaring necessity for street improvement
Required; procedure for adoption..... 63
Service on property owners of notice of passage..... 64
Sewerage assessments against owners of abutting property; requiring connection with sewer; including cost of drains in cost of street improvement ..... 62
Sidewalks
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits. 7
Powers and duties of policemen..... 85

SUBDIVISIONS
Charter
Construction of sidewalks, curbs and gutters; duty of county clerk to record assessments..... 49
Subdividing abutting land for purpose of making assessments..... 88-c

SUITS, ACTIONS AND OTHER PROCEEDINGS
Charter
Construction of sidewalks, curbs and gutters; duty of county clerk to record assessments; power of council to collect assessment..... 49
Liberal construction of proceedings with respect to improvements ..... 73
Lien on real estate for taxes
Established; enforcement by suit in court of record; priority of lien . 55

SUMMONS. See: WRITS, WARRANTS AND OTHER PROCESSES

SURVEYS, MAPS AND PLATS
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits ..... 7

SWEAR OR SWORN. See: OATH, AFFIRMATION, SWEAR OR SWORN

**T**

TAXATION
Charter
Annual estimate for tax levy ..... 50
Authority to levy and collect taxes; limit of taxation..... 51
Bonds
Authority to issue; purposes; interest; limit; taxation to pay interest and principal..... 59
Collection of taxes..... 52
Distress for collection of taxes..... 54
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits ..... 7
Lien on real estate for taxes
Enforcement by tax sale..... 56
Established; enforcement by suit in court of record; priority of lien . 55
Limitation on authority of county to tax persons and property within city for streets, education or poor outside city limits; control of streets and schools within city; joint ownership of bridges ..... 57
Powers of collector..... 53

TESTIMONY. See: OATH, AFFIRMATION, SWEAR OR SWORN

THE COUNCIL. See: COUNCIL

TRADES (Generally). See: BUSINESSES

TRAFFIC AND VEHICLES
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits ..... 7
Regulation of operation of motor vehicles..... 7-b

TRAMPS
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits ..... 7

TRASH. See: SOLID WASTE

TREASURER
Charter
Collection of taxes; council shall have the power any year, by resolution, to extend the time within which tax tickets may remain in the treasurer's hands and be paid to him without adding the penalty ..... 52
Vacancy in office of mayor or treasurer; vacancy in office of appointive officer; officers hold office until successors qualified, unless previously removed..... 31

Section

TRUSTS
Charter
Power of council as to public buildings, hospitals, libraries, etc. . . . . 76

U

UTILITIES
Charter
Assessment certificates to pay for cost of construction of sewers and sewer systems. . . . . 88-b
Bonds
City given power to sell and issue bonds for improvement of streets 59-a
In anticipation of special assessments for street improvements or sewer construction; limitation on indebtedness . . . . . 60
Connection with sewer system. . . . . 48
Construction of sewer systems or common, lateral, branch, trunk or combined sewers . . . . . 62-a
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7
Sewerage assessments against owners of abutting property; requiring connection with sewer; including cost of drains in cost of street improvement . . . . . 62

V

VACATION OF PUBLIC WAYS, ETC.
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7

VAGRANTS
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7

VEGETATION
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7

VEHICLES FOR HIRE
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7

VEHICLES. See: TRAFFIC AND VEHICLES

VOCATIONS (Generally). See: BUSINESSES

VOTES AND VOTING
Section

VOTES AND VOTING (Cont'd.)
Charter
Boundaries of voting precincts; registration books; duties of county court . 9
City voting precincts to coincide with county voting precincts; how elections to be held; authorizing all lawful actions deemed appropriate by council to conduct elections, including combining city elections with state and county elections . . . 11
Committees of council; adjournment of council meetings; postponement of announcement of vote . . . . . 39
Election and three-fifths vote required for issuance of bonds; regulations governing . . . . . 74
Franchises
Advertisement of application; submission to voters . . . . . 38
Granting; requirements and limitations governing; vote of council required. . . . . 37
Initiation of ordinances by voters . . . . . 89
Law governing preparation of ballot and method of voting . . . . . 12
Passage of ordinances; revision, reenactment or amendment; effective date; publication of caption or title; resolutions and orders . . . . . 41
Persons entitled to vote . . . . . 8
Reconsideration of ordinance protested by petition; submission of ordinances to voters . . . . . 90
Vote of council required for public improvement; petition by property owners . . . . . 69
Voting in council and recording of votes 27

W

WALLS. See: FENCES, WALLS, HEDGES AND ENCLOSURES

WARRANTS. See: WRITS, WARRANTS AND OTHER PROCESSES

WATER. See: UTILITIES

WATERWAYS. See: BOATS, DOCKS AND WATERWAYS

WEST VIRGINIA, STATE OF. See: STATE

WIRELESS STATIONS. See: COMMUNICATIONS

WITNESSES
Charter
Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits . . . . . 7

| | Section |
|---|---|
| WITNESSES (Cont'd.) | |
| Power of council to compel attendance of witnesses and production of records, administer oaths and punish for contempt | 33 |
| WRITS, WARRANTS AND OTHER PROCESSES | |
| Charter | |
| Authority to issue warrants; vacancy in office of municipal judge | 94 |
| Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits | 7 |
| Powers and duties of municipal judge; maximum imprisonment for violation of ordinance; appeal; expense of maintaining persons committed to county jail | 44 |
| Service of notice, summons, warrant, etc. | 81 |
| W. VA. CODE | |
| Charter | |
| Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits | 7 |

**Y**

| | Section |
|---|---|
| YARDS AND OTHER OPEN SPACES | |
| Charter | |
| Enumeration of numerous miscellaneous powers of council; jurisdiction beyond corporate limits | 7 |
| Zoning | |
| Power of council | 102 |

**Z**

| | Section |
|---|---|
| ZONING | |
| Charter | 102 et seq. |
| See: CHARTER | |

# CODE INDEX


Section

**A**

ABANDONED VEHICLES AND JUNK
- Abandonment of vehicles . . . 50-83
- Authority to take possession of abandoned equipment; employment of personnel for enforcement; notification to owner of private property . . . 50-86
- Construction . . . 50-92
- Definitions . . . 50-82
- Disposal of unclaimed vehicles . . . 50-88
- Injunctive relief . . . 50-91
- Junked vehicles prohibited in certain places 50-84
- Legislative findings; statement of policy . 50-81
- Notification of vehicle owner and lienholders . . . 50-87
- Old vehicle tires and inoperative or abandoned household appliances prohibited in certain places . . . 50-85
- Penalties . . . 50-90
- Proceeds from sale . . . 50-89

ABANDONMENT (Generally)
- Law enforcement
  - Police department
    - Sale of abandoned property recovered by police . . . 66-39
- Natural resources
  - Commercial water wells
    - Abandoned wells . . . 74-36
- Traffic ordinance
  - Removal from streets of wrecked or abandoned vehicles . . . 114-22

ABATEMENTS
- Abatement of unsafe, unsanitary or dangerous buildings . . . 14-260 et seq.
  - See: BUILDINGS AND BUILDING REGULATIONS
- Nuisances . . . 50-42 et seq.
  - See: NUISANCES
- Salvage yards
  - Violations and penalties; injunctive relief to abate nuisances . . . 18-892
- Utilities
  - Sewers and sewage disposal
    - Abatement of violations . . . 118-79

ACCESS
- Buildings and building regulations
  - Security against unauthorized entry
    - Locking devices; accessible transoms 14-186(f)
- Parks and recreation
  - Public use of parks and recreational facilities
    - Hours of public access to city parks; penalties . . . 82-122
- Traffic ordinance
  - Vehicle operation
    - Restricted access . . . 114-368

Section

ACCIDENTS
- Traffic ordinance
  - Accidents and accident reports . . . 114-191 et seq.
    - See: TRAFFIC ORDINANCE
  - Glass and injurious materials not to be deposited on street; removal of substances from scene of wrecked vehicle . . . 114-19
  - Removal from streets of wrecked or abandoned vehicles . . . 114-22

ACTIONS. See: SUITS, ACTIONS AND OTHER PROCEEDINGS

ADMINISTRATION (Chapter 2)
- Boards, committees and commissions . . . 2-531 et seq.
  - See: BOARDS, COMMITTEES AND COMMISSIONS
- City council . . . 2-61 et seq.
  - See: CITY COUNCIL
- Fees for copying aerial maps . . . 2-1
- Finance . . . 2-361 et seq.
  - See: FINANCE
- Mayor . . . 2-31
- Officers and employees . . . 2-131 et seq.
  - See: OFFICERS AND EMPLOYEES
- Personnel management and practices . . . 86-1 et seq.
  - See: PERSONNEL
- Public records . . . 2-331 et seq.
  - See: PUBLIC RECORDS

ADMISSION. See: ENTRY

ADMISSIONS TAX. See: TAXATION

ADULT-ORIENTED BUSINESSES
- Massage parlors; generally . . . 18-721 et seq.
  - See: MASSAGE PARLORS

ADVERTISING
- Finance; contracts and purchases; bids
  - Advertising for bids
    - When required . . . 2-471
  - Contents of advertisements for bids . . . 2-472
  - Contracts to be in writing . . . 2-471
  - Letting of contracts . . . 2-471
  - Opening of bids . . . 2-471
  - Publication of advertisement . . . 2-471
  - When advertising for bids required; publication of advertisement; time for opening of bids; letting of contracts; contracts to be in writing . . . 2-471
- Going out of business sales, fire sales and similar sales
  - License
    - Copy of application, inventory and license to be posted; license to be referred to in advertisements . . . 18-390
- Offenses
  - Advertisements, handbills, signs . . . 78-3

| | Section |
|---|---|
| ADVERTISING (Cont'd.) | |
| Offenses involving public peace and order | |
| Sound trucks | |
| Commercial advertising by sound truck prohibited | 78-253 |
| Traffic ordinance | |
| Stopping, standing and parking | |
| Display for sale; repair or advertising on street | 114-560 |
| AFFIRMATION. See: OATH, AFFIRMATION, SWEAR OR SWORN | |
| AGE CONCERNS | |
| Elderly persons. See that subject | |
| Minors. See that subject | |
| AGENTS | |
| Insurance companies and agents | 18-581 |
| Junk dealers | |
| License | |
| Business not to engage agent ineligible for license | 18-686 |
| Certification of agents | 18-683 |
| Officers' or agents' residence | 18-682 |
| Officers and employees | |
| Faithful performance and true accounting bonds required of all officers and of certain agents and employees of city | 2-133 |
| AGREEMENTS. See: CONTRACTS AND AGREEMENTS | |
| AIDING AND ABETTING | |
| Offenses | 78-1 |
| AIRGUNS | |
| Offenses involving public safety | |
| Weapons | 78-170 |
| AIRPORTS AND AIRCRAFT | |
| Offenses involving public safety | |
| Aircraft regulations | 78-132 |
| AIRTIGHT CONTAINERS | |
| Offenses involving public safety | 78-133 |
| ALARM SYSTEMS | |
| Emergency services | 46-1 |
| ALARMS | |
| Offenses involving public safety | |
| False alarms and reports | 78-131 |
| ALCOHOLIC BEVERAGES | |
| Bowling alleys and billiard, pool and bagatelle tables | |
| Gambling; intoxicating liquor prohibited | 18-142 |
| Businesses; generally | 18-31 et seq. |
| See: BUSINESSES | |
| Construction of words and terms | 6-1 |

| | Section |
|---|---|
| ALCOHOLIC BEVERAGES (Cont'd.) | |
| Hotels, tourist homes and eating places | |
| Hotels and taverns | 18-552 |
| Intoxicating liquor | |
| Other specific acts forbidden | 6-93 |
| Private clubs | |
| Certain acts of licensee prohibited | 6-133 |
| City collector to maintain records of state licenses; receipts for city fees to be issued; duty of licensees to display city receipts | 6-132 |
| Duty of state licensees to report to city to display state licenses and pay city license fees; prohibited liquor sales when city fee not paid | 6-131 |
| License | |
| Annual license fees imposed; partial fee for half year or less | 6-141 |
| Expiration or revocation of state license revokes privileges under this subdivision | 6-143 |
| To whom fees paid; disposition of fees | 6-142 |
| Prohibited drinking and prohibited possession | 6-91 |
| Taxes and license taxes | |
| Annual license tax imposed upon wine distributors and retailers and private wine restaurant licensees | 6-112 |
| Tax imposed upon purchase price of intoxicating liquors sold at state stores and by any person licensed to sell wine at retail | 6-111 |
| Tax imposed upon retail purchase price of intoxicating liquors sold at state stores and from persons licensed to sell wine at retail | 6-113 |
| Transportation of alcoholic liquors for purpose of sale; presumption arising in certain cases | 6-92 |
| Licenses and permits | |
| Intoxicating liquor | |
| Private clubs | 6-131 et seq. |
| Taxes and license taxes | 6-111 et seq. |
| Nonintoxicating beer | |
| License. See herein that subheading | |
| Massage parlors; generally | 18-721 et seq. |
| Municipal home rule | |
| Sale of alcohol on Sundays | 3-17 |
| Nonintoxicating beer | |
| License | |
| Annual license tax imposed on brewers and dealers; license year; classes of dealers and amount of tax | 6-52 |
| Eligibility and application for license | 6-53 |
| False statements relating to licenses | 6-54 |

| | Section |
|---|---|
| ALCOHOLIC BEVERAGES (Cont'd.) | |
| License and compliance with division required | 6-51 |
| List of licensees to be reported to clerk of municipal court | 6-55 |
| Revocation of license | 6-56 |
| Offenses | |
| Offenses involving public peace and order | |
| Drunkenness in public place; drinking or possession of alcoholic beverages in public; sale and use of nonintoxicating beer or other alcoholic beverages; penalties | 78-211 |
| Permits. See herein: Licenses and Permits | |
| Private outdoor designated areas | |
| Authorization | 6-151 |
| Bridge Road | |
| Creation and boundaries | 6-171 |
| Days and hours of operation | 6-172 |
| Personnel needed | 6-173 |
| Capitol Market | |
| Creation and boundaries | 6-181 |
| Days and hours of operation | 6-182 |
| Personnel needed | 6-183 |
| City Center | |
| Creation and boundaries | 6-166 |
| Days and hours of operation | 6-167 |
| Personnel needed | 6-168 |
| Containers | 6-154 |
| East end | |
| Creation and boundaries | 6-186 |
| Days and hours of operation | 6-187 |
| Personnel needed | 6-188 |
| Elk City | |
| Creation and boundaries | 6-176 |
| Days and hours of operation | 6-177 |
| Personnel needed | 6-178 |
| Generally | 6-152 |
| Participation | 6-153 |
| Penalties | 6-159 |
| Public health, safety, and sanitation | 6-156 |
| Revocation of city manager approval; and general policy authority | 6-157 |
| Signage and prohibitions | 6-155 |
| Suspension | 6-158 |
| Traffic ordinance | |
| Serious traffic offenses | |
| Driving under influence | 114-302 |
| Phrases synonymous with "driving under the influence of alcohol" | 114-303 |
| Proof of alcohol content; license suspension | 114-321 et seq. |
| See: TRAFFIC ORDINANCE | |
| Vehicles for hire | |
| Taxicabs | |
| Disorderly conduct; liquor | 122-41 |

| | Section |
|---|---|
| ALLEYS | |
| Parking lots | |
| Blocking streets, alleys and sidewalks | 18-798 |
| Streets, sidewalks and other public places | |
| Street and alley closings | 102-261 et seq. |
| See: STREETS, SIDEWALKS AND OTHER PUBLIC PLACES | |
| Traffic ordinance | |
| Stopping, standing and parking | |
| Alleys and driveways | 114-571 |
| Vehicle operation | |
| Right-of-way | |
| When emerging from alley, private driveway, parking lot or garage | 114-495 |
| Special stops | |
| Stop before emerging from alley or private driveway | 114-515 |
| ALL-TERRAIN VEHICLES | |
| Regulations | 114-862 et seq. |
| See: TRAFFIC ORDINANCE | |
| AMBULANCES | |
| Fire prevention and protection | |
| Fire department | |
| Emergency medical services division | |
| Schedule of charges for ambulance services | 54-74 |
| Uncollectible accounts for ambulance-related services; authority of city collector | 54-75 |
| AMENDMENTS | |
| City council | |
| Amending rules of council | 2-70 |
| Ordinances amending provisions of this Code | 2-94 |
| Record of repealed and amended portions of Code | 2-94 |
| Code of ordinances | |
| Amendments to Code; effect of new ordinances; amendatory language | 1-6 |
| Certain ordinances not affected by Code | 1-17 |
| Offenses | |
| Offenses involving public peace and order | |
| Sound trucks | |
| Noncommercial use of sound trucks | |
| Registration statement amendment | 78-252(b) |
| Personnel management and practices | |
| Non-uniformed personnel | |
| Personnel rules and administrative policies established | |
| Authorization to amend and promulgate new Personnel Rules and Administrative Policies | 86-101 |

| | Section |
|---|---|
| AMENDMENTS (Cont'd.) | |
| Rules of council | |
| Rescission, amendment and suspension of rule, (App. A § 19) | |
| Resolutions and motions to amend, (App. A § 11) | |
| Traffic ordinance | |
| Traffic control signs, signals, devices and markings | |
| Traffic control map | 114-263 |
| AMUSEMENTS AND AMUSEMENT PLACES | |
| Alcoholic beverages; generally | 6-1 et seq. |
| See: ALCOHOLIC BEVERAGES | |
| Bowling alleys and billiard, pool and bagatelle tables | 18-141 et seq. |
| See: BOWLING ALLEYS AND BILLIARD, POOL AND BAGATELLE TABLES | |
| Businesses; generally | 18-31 et seq. |
| Carnivals, circuses and shows; generally | 18-171 et seq. |
| See: CARNIVALS, CIRCUSES AND SHOWS | |
| Haddad Riverfront Park events | |
| Use of designated city electrical hookups by boaters | 82-161, 82-162 |
| Manufactured homes and trailers | |
| Trailers and trailer camps | 70-51 et seq. |
| See: MANUFACTURED HOMES AND TRAILERS | |
| Parks and recreation; generally | 82-1 et seq. |
| See: PARKS AND RECREATION | |
| Street vendors; generally | 18-1031 et seq. |
| See: STREET VENDORS | |
| Streets, sidewalks and other public places | |
| Playing games in streets | 102-17 |
| Taxation | |
| Business and occupation tax | |
| Tax imposed; exemptions and credits | |
| Business of operating amusements | 110-57 |
| Traffic ordinance | |
| Funeral processions | 114-17 |
| Processions and parades; permit required; exceptions | 114-16 |
| Vehicle operation | |
| Play streets | 114-375 |
| ANIMALS | |
| Administration and enforcement of chapter | 10-1 |
| Animal owner | |
| Responsible for removal of animal excrement; fines | 10-7 |
| Bird sanctuary | |
| City declared as | 10-14 |
| Carcasses | |
| Dead animals and fowl | |
| Disposition of carcasses | 10-9 |
| Responsibility for removal of carcasses | 10-10 |

| | Section |
|---|---|
| ANIMALS (Cont'd.) | |
| Care and treatment of animals | |
| Cruelty to animals | |
| Cruel acts and conditions enumerated | 10-3(a) |
| Exceptions | 10-3(b) |
| Violations | 10-3(c) |
| Poisoning animals | 10-2 |
| Procedures, penalties and fines | |
| Sections 10-2, 10-3 and 10-4 | 10-5 |
| Tethering of dogs | 10-4 |
| Dangerous dogs. See herein: Dogs and Cats | |
| Dead animals | |
| Disposition of carcasses | 10-9 |
| Responsibility for removal of carcasses | 10-10 |
| Dogs and cats | |
| Animal bites, quarantine; fines | 10-18 |
| Cats | |
| Animal nuisances | 10-6 |
| Immunization | 10-16 |
| Control of rabies and other diseases generally | 10-17 |
| Dogs | |
| Bringing dog into city for impounding or killing | 10-113 |
| Dangerous dogs | |
| Control of | 10-116 |
| Definitions | 10-114 |
| Determining as dangerous; procedure for | 10-115 |
| Registration and confinement | 10-116 |
| Threats to public safety | 10-118 |
| Violations; fines | 10-117 |
| Definitions | 10-111 |
| Impoundment | |
| Aggressive dogs prohibited to run at large; fines | 10-162 |
| Bringing dog into city for impounding | 10-113 |
| Dogs prohibited to run at large; fines | 10-161 |
| License | |
| Annual license required; application, tag, etc. | 10-141 |
| Expiration | 10-142 |
| Fees | 10-142 |
| Proclamation by health commissioner | 10-119 |
| Public gatherings | |
| Removal of dogs from, when | 10-112 |
| Restriction on number of dogs | 10-120 |
| Special permit | 10-121 |
| Seizing or enticing dog | 10-112 |
| Immunization of dogs, cats and ferrets; fines | 10-16 |
| Ferrets | |
| Immunization of; fines | 10-16 |
| Fowl. See also herein: Livestock and Poultry | |
| City declared bird sanctuary | 10-14 |

| | Section |
|---|---|
| ANIMALS (Cont'd.) | |
| Dead animals and fowl; disposition of carcasses | 10-9 |
| Maintenance of coops, other enclosures, places | 10-15 |
| Nuisance birds | |
| Trapping, hunting; riddance of; penalty | 10-14 |
| Sale of baby fowl | 10-8 |
| Impoundment | |
| Dogs. See herein: Dogs and Cats | |
| Livestock. See herein: Livestock and Poultry | |
| Releasing impounded animals | 10-19 |
| Interference with officers | 10-1 |
| Livestock and poultry | |
| At large | |
| Certain animals prohibited | 10-51 |
| Responsibility of owners and persons in charge | 10-51 |
| Impoundment | |
| At large animals subject to impoundment | 10-51 |
| Auction sale of impounded animals not redeemed | 10-73 |
| Interference with humane officer; releasing impounded animals | 10-78 |
| Notice of impounding of animals | 10-71 |
| Payment of money received to city treasurer | 10-76 |
| Payment of surplus proceeds to owners of animals sold | 10-77 |
| Redemption of impounded animals | 10-72 |
| Report of money received | 10-75 |
| Unredeemed animals | |
| Disposition of when sale at auction not feasible | 10-74 |
| Keeping of certain animals | 10-12 |
| Pens, coops, other enclosures, places | |
| Maintenance | 10-15 |
| Poultry kept near inhabited building prohibited | 10-11 |
| Nuisances | |
| Animal nuisances | 10-6 |
| Pens, coops, other enclosures, places | 10-15 |
| Nuisance birds | 10-14 |
| Violations of animal control regulations | 10-20 |
| Rabies control | |
| Actions under proclamation by health commissioner | 10-119 |
| Animal bites, quarantine; fines | 10-18 |
| Generally | 10-17 |
| Immunization of dogs, cats and ferrets; fines | 10-16 |
| Impounding, redemption and disposition of dog running at large | 10-163 |
| Traffic ordinance | |
| Persons riding animals; animal-drawn vehicles | 114-10 |

| | Section |
|---|---|
| ANIMALS (Cont'd.) | |
| Urban hunting | |
| Urban deer, bear, and coyote management | 10-171 |
| Donated meat | 10-171(c) |
| Permits | 10-171(b) |
| Urban hunting conditions | 10-171(a) |
| Violations | 10-171(d) |
| Violations | |
| General penalty for animal control violations | 10-20 |
| Wildlife | |
| Certain animals, reptiles | |
| Keeping within city prohibited except pursuant to license or permit | 10-13 |
| ANNEXATIONS | |
| Code of ordinances | |
| Certain ordinances not affected by Code | 1-17 |
| ANTENNAS | |
| Streets, sidewalks and other public places | |
| Poles, wires and antennas | 102-211 et seq. |
| See: STREETS, SIDEWALKS AND OTHER PUBLIC PLACES | |
| APPEALS | |
| Buildings and building regulations | |
| Security against unauthorized entry | |
| Appeal from intrusion detection device requirements | 14-188 |
| Businesses | |
| Licenses generally | |
| Suspension and revocation of licenses, public hearings upon appeal from revocation | 18-49 |
| Charitable solicitations | |
| Permit | |
| Investigation of permit application; issuance or denial of permit | 26-33 |
| Fire prevention and protection | |
| Fire prevention code | |
| Authorized orders under the Charleston Fire Prevention Code; appeals | 54-144 |
| Fire protection service charge | |
| Appeal procedure | 54-181(g) |
| Housing code | |
| Administration and enforcement | |
| Board of appeals | 14-91 |
| Municipal home rule | |
| City service fees, interest, penalties payable to city | |
| Right of appeal | 3-11(d) |
| Street vendors | |
| Request for reconsideration and appeal of revocation of vending permit | 18-1040 |
| Streets, sidewalks and other public places | |
| Trees; permit | |
| Issuance; appeal of denial | 102-323 |

Section

APPEALS (Cont'd.)
Taxation
Business and occupation tax
Tax assessments
Appeals to circuit court..... 110-115

APPROPRIATIONS. See: FINANCE

ARBORIST
City arborist
Duties..... 50-175
Interference with ..... 50-179

ARCHITECTURAL AND ENGINEERING SERVICES
Municipal home rule
Procurement of ..... 3-15

ARREST
Courts
Municipal court
Style of prosecutions; arrest of offenders; summoning witnesses..... 38-37
Nuisances
Article does not prohibit arrest for committing or maintaining nuisance . 50-44, 50-50
Offenses
Offenses involving public peace and order
Picketing
Unlawful assemblies; dispersal of unlawful assemblies and arrest of those not dispersing..... 78-234
Traffic ordinance
Administration and enforcement
Violations
Arrest or appearance in answer to notice of violation ..... 114-82
Serious traffic offenses
Proof of alcohol content; license suspension
Consent not withdrawn if arrested person incapable of refusal . 114-323

ASSAULT AND BATTERY
Offenses ..... 78-2

ASSEMBLIES
Animals
Dogs; removal from public gatherings upon request..... 10-112
Offenses
Offenses involving public authority
Governmental functions of city not to be hampered by sit-ins or other methods..... 78-411
Offenses involving public peace and order
Disturbance of assemblies..... 78-207

Section

ASSEMBLIES (Cont'd.)
Picketing
Unlawful assemblies; dispersal of unlawful assemblies and arrest of those not dispersing..... 78-234
Riots, routs and unlawful assemblies prohibited and defined..... 78-203

ASSESSMENTS
Code of ordinances
Certain ordinances not affected by Code 1-17
Fire prevention and protection
Fire department
Use of equipment and materials in certain motor vehicle emergencies and incidents ..... 54-53
Fire protection service charge
Assessment of fees..... 54-181
Taxation; generally ..... 110-1 et seq.
See: TAXATION

ATTORNEYS
City solicitor ..... 2-241 et seq.
See: CITY SOLICITOR

AUCTIONEERS
Definitions..... 18-82
Generally ..... 18-83
Licenses
Duties of licensee ..... 18-83
Requirements..... 18-83
Revocation or suspension of license ... 18-83

AUCTIONS (Generally)
Animals
Livestock; impoundment
Auction sale of impounded animals not redeemed..... 10-73
Disposition of unredeemed animals when sale at auction not feasible 10-74
Going out of business sales, fire sales and similar sales
License
Closing-out business sales at auction 18-385

AUDITOR. See: CITY AUDITOR

AUTHORITY (Defined)
Definitions and rules of construction
Joint authority..... 1-2
Public authority ..... 1-2

AUTOMOBILES. See: TRAFFIC ORDINANCE

**B**

BADGES
Streets, sidewalks and other public places
Poles, wires and antennas
Workers' badges ..... 102-214

Section

BAGATELLE TABLES. See: BOWLING ALLEYS AND BILLIARD, POOL AND BAGATELLE TABLES

BAIL BONDS. See: BONDS

BAILIFF
- Courts
  - Municipal court ..... 38-36

BARBED WIRE FENCES. See: FENCES, WALLS, HEDGES AND ENCLOSURES

BARBERS AND BEAUTICIANS
- Duty of health commissioner ..... 18-111
- License required ..... 18-112
- Shops or schools ..... 18-113

BARRIERS
- Parking lots ..... 18-792

BEAUTICIANS. See: BARBERS AND BEAUTICIANS

BEAUTIFICATION COMMISSION
- Annual organizational meeting; officers; rules; meetings ..... 2-532
- Created; composition; appointment, term and compensation of members; filling vacancies ..... 2-531
- Duties ..... 2-533
- Expenses of members; finances ..... 2-534
- Public art commission ..... 2-681 et seq.
  - See: BOARDS, COMMITTEES AND COMMISSIONS

BEER. See: ALCOHOLIC BEVERAGES

BEGGING
- Charitable solicitations
  - Unauthorized, unrestricted, unregulated begging or solicitation prohibited 26-2

BICYCLES. See: TRAFFIC ORDINANCE

BIDS AND BIDDING
- Finance
  - Contracts and purchases
    - Bids ..... 2-471 et seq.
      - See: FINANCE

BILLIARD TABLES. See: BOWLING ALLEYS AND BILLIARD, POOL AND BAGATELLE TABLES

BIRD SANCTUARY
- Animals
  - City declared bird sanctuary ..... 10-14

BLASTING
- Fire prevention and protection
  - Regulations for blasting operations ..... 54-1

BLIND. See: HANDICAPPED

Section

BOARDS, COMMITTEES AND COMMISSIONS
- Beautification commission ..... 2-531 et seq.
  - See: BEAUTIFICATION COMMISSION
- Cemeteries
  - Spring Hill Cemetery Commission ..... 22-61 et seq.
    - See: CEMETERIES
- Charitable solicitations
  - Board of solicitation review ..... 26-1
- Charleston Historic Landmarks Commission ..... 2-690 et seq.
  - See: CHARLESTON HISTORIC LANDMARKS COMMISSION
- City council
  - Disorderly conduct prohibited at meetings of council and council committees ..... 2-68
- Charleston coliseum and convention center/ municipal auditorium board ..... 2-551 et seq.
  - See: CHARLESTON COLISEUM AND CONVENTION CENTER/ MUNICIPAL AUDITORIUM BOARD
- Code of ordinances
  - Appointment of select committee ..... 1-14
- Community development
  - Neighborhood rehabilitation program
    - Rehabilitation fund commission ..... 30-64
  - Shelton-Sentz Neighborhood Redevelopment Select Committee ..... 30-1
- Definitions and rules of construction
  - Joint authority ..... 1-2
  - Officers, departments, etc. ..... 1-2
  - Public authority ..... 1-2
- Fire prevention and protection
  - Fire department
    - Firemen's civil service commission ..... 54-46
- Human rights
  - Human rights commission ..... 62-41 et seq.
    - See: HUMAN RIGHTS
- Kanawha Valley Regional Transportation Authority ..... 2-621 et seq.
  - See: KANAWHA VALLEY REGIONAL TRANSPORTATION AUTHORITY
- Land reuse agency
  - Board of directors ..... 65-3 et seq.
    - See: LAND REUSE AGENCY
- Law enforcement
  - Police department
    - Citizens Commission of the Charleston Mounted Police Patrol ..... 66-111 et seq.
      - See: LAW ENFORCEMENT
    - Policemen's civil service commission 66-35
- Municipal building commission ..... 2-651 et seq.
  - See: MUNICIPAL BUILDING COMMISSION

Section

BOARDS, COMMITTEES AND COMMISSIONS (Cont'd.)
Parks and recreation
Parks and recreation commission ..... 82-81 et seq.
See: PARKS AND RECREATION
Planning
Municipal planning commission..... 90-31 et seq.
See: PLANNING
Public art commission
Composition and organization of commission..... 2-682
Duties and powers ..... 2-683
Finances and reporting..... 2-684
Public art commission created ..... 2-681
Rules of council
Committees, (App. A § 2)
Reference of bills, resolutions, etc., to committees, (App. A § 8)
Reports of committees, (App. A § 10)
Streets, sidewalks and other public places
Trees
Establishment of a tree board ..... 50-174
Tree board ..... 50-174
Utilities
Sewers and sewage disposal
Sanitary board ..... 118-121 et seq.
See: UTILITIES
Victims assistance commission ..... 2-721 et seq.
See: VICTIMS ASSISTANCE COMMISSION

BOATS, DOCKS AND WATERWAYS
Offenses
Watercraft regulations ..... 78-9
Parks and recreation
Haddad Riverfront Park events
Use of designated city electrical hookups by boaters..... 82-161 et seq.
Solid waste
Prohibited discharges in watercourses, wells, similar places..... 98-3

BONDS
Carnivals, circuses and shows
Filing with city collector of list of all rides and concessions; bond for municipal taxes..... 18-173
Charitable solicitations
Permit ..... 26-36
Code of ordinances
Certain ordinances not affected by Code 1-17
Courts
Municipal court
Bail bond or cash deposit ..... 38-40
Unlawful taking of cash deposit; approval of bond in felony cases 38-42
Finance
Bond issues
Authorization for issuance ..... 2-441
Sinking fund ..... 2-442

Section

BONDS (Cont'd.)
Bonds for faithful performance of contracts and franchises..... 2-378
Officers and employees
Bond required of those authorized to carry firearms ..... 2-134
Faithful performance and true accounting bonds required of all officers and of certain agents and employees of city..... 2-133
Traffic ordinance
Administration and enforcement
Violations
Arrest or appearance; bail bond.. 114-82, 114-83
Posting bonds, time for ..... 114-87
Receipts for bonds posted or fines paid..... 114-86

BOUNDARIES
City Center Business Improvement District
Description of boundaries of the City Center Business Improvement District..... 2-715
Code of ordinances
Certain ordinances not affected by Code 1-17

BOWLING ALLEYS AND BILLIARD, POOL AND BAGATELLE TABLES
Gambling; intoxicating liquor prohibited . 18-142
License fees ..... 18-141
Minors prohibited ..... 18-143

BOWS AND ARROWS
Offenses
Offenses involving public safety
Weapons ..... 78-170

BRIDGES
Streets, sidewalks and other public places
Excavations
Bridges over excavations in roadways 102-97
Obstructions; open manholes; bridges over excavations ..... 102-4
Required safeguards; foot bridges ..... 102-96
Traffic ordinance
Stopping, standing and parking
Bridges, railroad crossings, underpasses and overpasses... 114-572
Vehicle operation
Signs indicating vehicles of certain types or weight prohibited on certain streets or bridges..... 114-372
Speed on bridges ..... 114-406

BRUSH. See: VEGETATION

BUDGET. See: FINANCE

BUILDINGS AND BUILDING REGULATIONS
Abatement of unsafe, unsanitary of dangerous buildings
Absolute defense ..... 14-260

| | Section |
|---|---|
| BUILDINGS AND BUILDING REGULATIONS (Cont'd.) | |
| Civil action for corrective action and recovery of costs | 14-258 |
| Closing and removal of unsafe structures | 14-253 |
| Correction of unsafe conditions | 14-255 |
| Definitions | 14-252 |
| Inspection | 15-254 |
| Notices | 14-259 |
| Owner responsibility for costs | 14-257 |
| Purpose and scope | 14-251 |
| Relief from order for corrective action | 14-256 |
| Animals | |
| Keeping fowl near inhabited building | 10-11 |
| Maintenance of pens, coops, other enclosures, places | 10-15 |
| Building code | |
| Administration and enforcement | 14-15 |
| Adoption of state building code; exercise of authority beyond corporate limits | 14-33 |
| Conflicts of law; construction | 14-34 |
| Construction with respect to fire prevention code and with standards for gas piping and appliance venting | 14-36 |
| Definitions | 14-31 |
| Purposes; adopted; where filed and available to public; applicability; short title | 14-32 |
| City manager | |
| Supervision and care of grounds and buildings; leases; improvements | 2-182 |
| Civic center - auditorium board | |
| Schedule of rates, rentals and other charges for use of services and facilities | 2-556 |
| Community development; generally | 30-1 et seq. |
| See: COMMUNITY DEVELOPMENT | |
| Definitions | |
| Building code | 14-31 |
| Emergency management | |
| Emergency services department | |
| Utilization of existing services and facilities; volunteer assistance | 42-38 |
| Energy benchmarking | 2-751 et seq. |
| See: ENERGY BENCHMARKING | |
| Environment | |
| Operation of engines, furnaces or boilers | 50-1 |
| Fence regulations | |
| Barbed wire fences within the City of Charleston | 14-2(a) |
| Electrically charged fences | 14-2(b) |
| Fire prevention and protection; generally | 54-1 et seq. |
| See: FIRE PREVENTION AND PROTECTION | |
| Health and sanitation | |
| Inspection of and entry within buildings and grounds by health commissioner and his representatives | 58-3 |

| | Section |
|---|---|
| BUILDINGS AND BUILDING REGULATIONS (Cont'd.) | |
| Housing code | |
| Administration and enforcement | |
| Assistants and employees of housing commissioner | 14-92 |
| Board of appeals | 14-91 |
| Chief of fire prevention bureau, duties of | 14-93 |
| Violations | |
| Nonliability of city employees | 14-113 |
| Orders to correct substandard conditions | 14-111 |
| Removal or demolition | 14-112 |
| Minimum standards | |
| Basements | 14-145 |
| Entrances and exits | 14-146 |
| Heating and cooking | 14-142 |
| Lighting and ventilation | 14-143 |
| Maintenance and repairs | 14-149 |
| Minimum floor areas and ceiling heights | 14-141 |
| Surface drainage | 14-148 |
| Waste disposal and receptacles | 14-147 |
| Water supply; toilet and bath facilities; plumbing | 14-144 |
| Violations and penalty | 14-71 |
| Housing commissioner | |
| Housing code | |
| Administration and enforcement | |
| Assistants and employees of housing commissioner | 14-92 |
| Inspections; right of entry | 14-1 |
| Locking devices. See herein: Security Against Unauthorized Entry | |
| Maintenance of premises | |
| Disposition of grass, weeds and vegetation | 50-123 |
| Removal of prohibited accumulations of refuse and vegetation; joint responsibility of property owners and persons in charge; action by city | 50-124 |
| Manufactured homes and trailers; generally | 70-51 et seq. |
| See: MANUFACTURED HOMES AND TRAILERS | |
| Municipal building commission | 2-651 et seq. |
| See: MUNICIPAL BUILDING COMMISSION | |
| Parking lots | |
| Buildings | 18-794 |
| Parks and recreation | 82-1 et seq. |
| See: PARKS AND RECREATION | |
| Planning | 90-31 et seq. |
| See: PLANNING | |
| Security against unauthorized entry | |
| Appeal from intrusion detection device requirements | 14-188 |
| Enforcement; right of entry | 14-183 |

Section

BUILDINGS AND BUILDING REGULATIONS (Cont'd.)
- Inspection of exterior openings by chief of police; notice to and duty of responsible persons ..... 14-185
- Intrusion detection devices ..... 14-187
- Locking devices
  - Accessible transoms ..... 14-186(f)
  - Front doors ..... 14-186(b)
  - Generally ..... 14-186(a)
  - Glass windows ..... 14-186(e)
  - Rear, side and basement doors ..... 14-186(c)
  - Roof doors..... 14-186(d)
  - Roof openings ..... 14-186(g)
- Penalties for violations ..... 14-181
- Responsibility for compliance ..... 14-184
- Security requirements; exemptions..... 14-182

Solid waste..... 98-1 et seq.
See: SOLID WASTE

Street vendors; generally..... 18-1031 et seq.
See: STREET VENDORS

Streets, sidewalks and other public places
- Construction and maintenance of sidewalks, curbs and gutters..... 102-51 et seq.
  See: STREETS, SIDEWALKS AND OTHER PUBLIC PLACES
- Street names and building numbers... 102-151 et seq.
  See: STREETS, SIDEWALKS AND OTHER PUBLIC PLACES

Traffic ordinance
- Stopping, standing and parking
  - City-owned parking lots and buildings
    - Management of and regulations governing city-owned lots and buildings ..... 114-602
    - Powers and duties of city council. 114-601
  - No parking at entrances to certain buildings..... 114-565

Utilities; generally..... 118-31 et seq.
See: UTILITIES

Vacant structure registry
- Adoption ..... 14-200
- Applicability, obligation to register, automatic registration, exemptions ..... 14-203
- Definitions ..... 14-202
- Non-payment of fees/liens ..... 14-208
- Purpose ..... 14-201
- Registry, registration information, amending information, fees, dedicated account, publication ... 14-204
- Relation to other codes and laws ..... 14-210
- Right of appeal ..... 14-205
- Severability..... 14-211
- Violations and penalties for failure to register..... 14-206

BURIAL GROUNDS. See: CEMETERIES

Section

BUSINESSES

Alcoholic beverages; generally ..... 6-1 et seq.
See: ALCOHOLIC BEVERAGES

Auctioneers ..... 18-81 et seq.
See: AUCTIONEERS

Barbers and beauticians ..... 18-111 et seq.
See: BARBERS AND BEAUTICIANS

Bowling alleys and billiard, pool and bagatelle tables ..... 18-141 et seq.
See: BOWLING ALLEYS AND BILLIARD, POOL AND BAGATELLE TABLES

Business and occupation tax ..... 110-31 et seq.
See: TAXATION

Carnivals, circuses and shows..... 18-171 et seq.
See: CARNIVALS, CIRCUSES AND SHOWS

Charitable solicitations; generally ..... 26-1 et seq.
See: CHARITABLE SOLICITATIONS

City center business improvement district 2-711 et seq.
See: CITY CENTER BUSINESS IMPROVEMENT DISTRICT

Coin-operated machines and devices..... 18-231 et seq.
See: COIN-OPERATED MACHINES AND DEVICES

Community development; generally..... 30-1 et seq.
See: COMMUNITY DEVELOPMENT

Consumer protection..... 34-31 et seq.
See: CONSUMER PROTECTION

Emergency services
- Alarm systems..... 46-1

Going out of business sales, fire sales and similar sales ..... 18-351 et seq.
See: GOING OUT OF BUSINESS SALES, FIRE SALES AND SIMILAR SALES

Hawkers and peddlers ..... 18-491 et seq.
See: HAWKERS AND PEDDLERS

Health and sanitation
- Laundries regulated; permit required . 58-7

Home solicitation sales ..... 18-521 et seq.
See: HOME SOLICITATION SALES

Hotels, tourist homes and eating places.. 18-551 et seq.
See: HOTELS, TOURIST HOMES AND EATING PLACES

Insurance companies and agents ..... 18-581

Junk dealers ..... 18-661 et seq.
See: JUNK DEALERS

Licenses generally
- Application for and issuance of license; payment of license tax and filing tax fee; issuance of stamp or other evidence of license for coin-operated device ..... 18-33
- Collection by action or suit ..... 18-46
- Collection by distraint..... 18-47
- Collection of back taxes ..... 18-45
- Conditions precedent to doing business 18-36
- Display of license ..... 18-42

Section

BUSINESSES (Cont'd.)
- Duplicate licenses for those lost, misplaced or destroyed ..... 18-43
- Effect of change in partners or name .. 18-40
- Expiration date; annual renewal; tax prorated upon start of business; minimum fee ..... 18-41
- False statements prohibited ..... 18-34
- General business license; license fee... 18-31
- License a personal privilege ..... 18-39
- Licensing not to legalize any act ..... 18-37
- Percentage penalties when business transacted without a license ..... 18-44
- Prosecution for violations; recourse of city to seek injunctions ..... 18-48
- Record of licenses issued; destruction of records after five years ..... 18-35
- Separate license required for each fixed place of business and each class of business ..... 18-32
- Suspension and revocation of licenses, public hearings upon appeal from revocation ..... 18-49
- Zoning ordinance must be complied with; responsibility of applicants for city licenses..... 18-38
- Massage parlors ..... 18-721 et seq.
  - See: MASSAGE PARLORS
- Natural resources
  - Commercial water wells ..... 74-31 et seq.
    - See: NATURAL RESOURCES
- Offenses
  - Offenses involving public peace and order
    - Breach of the peace and related offenses; duties of proprietors of establishments..... 78-201
    - Interfering with customers at retail store..... 78-208
- Parking lots ..... 18-791 et seq.
  - See: PARKING LOTS
- Pawnbrokers ..... 18-861 et seq.
  - See: PAWNBROKERS
- Residential rental properties ..... 18-1170 et seq.
  - See: RESIDENTIAL RENTAL PROPERTIES
- Salvage yards ..... 18-891 et seq.
  - See: SALVAGE YARDS
- Secondhand automotive accessories and parts ..... 18-931 et seq.
  - See: SECONDHAND AUTOMOTIVE ACCESSORIES AND PARTS
- Solid waste
  - Collection and disposal
    - Recyclables
      - Collection of recyclable materials
        - Commercial, industrial or institutional establishments and community activities..... 98-122(b)

Section

BUSINESSES (Cont'd.)
        - Whom to collect refuse and recyclables; issuance of annual permits to collectors by city manager ..... 98-45
      - Duty of contractors to remove debris; collection of refuse from lots ..... 98-8
- Stores ..... 18-971 et seq.
  - See: STORES
- Street vendors..... 18-1031 et seq.
  - See: STREET VENDORS
- Streets, sidewalks and other public places
  - Construction and maintenance of sidewalks, curbs and gutters
    - License required to engage in business of constructing sidewalks. 102-56
  - Poles, wires and antennas
    - Municipal control of telephone, telegraph and electric companies 102-224
  - Use of sidewalk for handling fuel or goods..... 102-5
    - Franchise to set or place wires, poles, other paraphernalia, on streets; use of wires ..... 102-212
- Taxation; generally ..... 110-1 et seq.
  - See: TAXATION
- Traffic ordinance
  - Stopping, standing and parking
    - Stopping outside of business or residence districts restricted .. 114-557
  - Tow trucks
    - Minimum standards to be met by towing companies..... 114-762
- Tree services ..... 18-1161 et seq.
  - See: TREE SERVICES
- Vehicles for hire; generally ..... 122-31 et seq.
  - See: VEHICLES FOR HIRE
- Victims assistance commission ..... 2-721 et seq.
  - See: VICTIMS ASSISTANCE COMMISSION

**C**

CANES
- Offenses ..... 78-4

CARDS
- Charitable solicitations
  - Permit
    - Card or certificate from director required ..... 26-34
- Tree services
  - Identification card ..... 18-1164

CARNIVALS, CIRCUSES AND SHOWS
- Exempted shows..... 18-171
- Filing with city collector of list of all rides and concessions; bond for municipal taxes ..... 18-173
- Licenses
  - Alternative license procedure ..... 18-192

Section

CARNIVALS, CIRCUSES AND SHOWS (Cont'd.)
License tax imposed on certain itinerant shows ..... 18-191
Solid waste
Cleaning circus grounds ..... 98-6
Street fairs and carnivals ..... 18-172

CARS. See: TRAFFIC ORDINANCE

CATCHLINES IN CODE
Code of ordinances
Catchlines of sections; history notes; references ..... 1-3

CATS
Animals. See also that subject
Animal nuisances ..... 10-6
Immunization of dogs, cats and ferrets; fines ..... 10-16

CEMETERIES
Code of ordinances
Certain ordinances not affected by Code 1-17
Definitions
Spring Hill Cemetery..... 22-31
Spring Hill Cemetery
Burial at prohibited places ..... 22-39
Cemetery ownership ..... 22-32
Cemetery register..... 22-34
Commission
Creation; power and duties..... 22-61
Membership; terms; compensation .. 22-62
Officers; rules for transaction of business; meetings; records..... 22-63
Operations and management..... 22-64
Definitions ..... 22-31
Destruction or injury of shrubbery or monuments..... 22-40
Disposition of proceeds from sale of rights of interment and other transactions ..... 22-37
Interments and disinterments ..... 22-41
Legal descent of burial rights at cemetery 22-42
Plats of sections..... 22-33
Price of rights of interment ..... 22-35
Procedure for purchase of right of interment; execution of documents; maintenance of records..... 22-36
Use of roads ..... 22-38

CENTRAL WEST VIRGINIA REGIONAL AIRPORT AUTHORITY
(Note—Administration provisions re Central West Virginia Regional Airport Authority. See Article VII of Chapter 2)

CERTIFICATES, CERTIFICATION
Charitable solicitations

Section

CERTIFICATES, CERTIFICATION (Cont'd.)
Permit
Card or certificate from director required ..... 26-34
Charleston Historic Landmarks Commission
Certificate of appropriateness..... 2-696
Junk dealers
License; certification of agents ..... 18-683
Offenses
Offenses involving property rights
Larceny and related offenses
Meters measuring, companies furnishing utilities
Injury to or interference with meter..... 78-85(c)
Meters; certificates of readings 78-85(b)
Sale of water
Certificate of purity ..... 58-41
Taxation
Business and occupation tax
Tax collection
Limited effect of city collector's certificate ..... 110-149
Traffic ordinance
Vehicle operation
State vehicle inspection certificate required ..... 114-363
Vehicles for hire
Taxicabs
Common carriers; certificate of convenience and necessity and permits ..... 122-37

CESSPOOLS
Utilities
Sewers and sewage disposal
Removal of contents of privies, cesspools and septic tanks; transportation over city streets; final disposition ..... 118-80

CHARITABLE SOLICITATIONS
Board of solicitation review ..... 26-1
Permit
Application for permit..... 26-31
Card or certificate from director required 26-34
Fees and bonds ..... 26-36
Investigation of permit application; issuance or denial of permit; appeals. 26-33
Limitations on amount of payments to professional solicitors for solicitation activities..... 26-32
Suspension or cancellation of permit; jurisdiction of municipal court to issue subpoenas duces tecum .... 26-35
Unauthorized, unrestricted, unregulated begging or solicitation prohibited ... 26-2

CHARLESTON, CITY OF. See: CITY

Section

CHARLESTON COLISEUM AND CONVENTION CENTER/MUNICIPAL AUDITORIUM BOARD
Creation; term; vacancies; compensation . 2-551
Finances; capital improvement fees . . . . . 2-554
Officers; rules for transaction of business; meetings; records . . . . . 2-552
Powers and duties . . . . . 2-553
Quarterly and annual reports to city council 2-555
Schedule of rates, rentals and other charges for use of services and facilities . . . . 2-556

CHARLESTON HISTORIC LANDMARKS COMMISSION
Certificate of appropriateness, review procedures, variances and appeals . . 2-696
Composition and organization . . . . . 2-693
Conflict . . . . . 2-697
Court action or proceedings to prevent improper changes or illegal conduct. 2-698
Creation . . . . . 2-691
Definitions . . . . . 2-692
Findings . . . . . 2-690
Historic properties and historic districts, designation of . . . . . 2-695
Notice to county assessor . . . . . 2-700
Powers and duties . . . . . 2-694
Reporting . . . . . 2-701
Violations and penalties . . . . . 2-699

CHARLESTON LAND TRUST
Land reuse agency. . . . . 65-1 et seq.
See: LAND REUSE AGENCY
Reformation of . . . . . 2-685

CHARLESTON URBAN RENEWAL AUTHORITY
(Note—Administration provisions re Charleston Urban Renewal Authority. See Article VII of Chapter 2)

CHARTER
Definitions and rules of construction. . . . . 1-2

CHIEFS
Buildings and building regulations
Housing code
Administration and enforcement
Duties of chief of fire prevention bureau . . . . . 14-93
Security against unauthorized entry
Inspection of exterior openings by chief of police; notice to and duty of responsible persons. . . . 14-185
Finance
Disbursement of funds to chief of police 2-364
Fire prevention and protection
Fire department
Chief of the fire department; fire chief; powers . . . . . 54-43

Section

CHIEFS (Cont'd.)
Law enforcement
Police department
Chief of police . . . . . 66-31
School crossing guards
Authorized to be appointed by mayor, for assignment by chief of police . . . . . 66-91
Traffic ordinance
Administration and enforcement
Authority of chief of police to close streets and to emplace signs . . 114-54
Authority of chief of police to issue permits . . . . . 114-53
Violations
List to chief of police of unanswered summonses; warrants . . . . . 114-89

CHILDREN. See: MINORS

CIRCUSES. See: CARNIVALS, CIRCUSES AND SHOWS

CITATION OF CODE
Code of ordinances
How Code designated . . . . . 1-1

CITIZENS COMMISSION OF THE CHARLESTON MOUNTED POLICE PATROL
Law enforcement
Police department. . . . . 66-111 et seq.
See: LAW ENFORCEMENT

CITY ARBORIST
Streets, sidewalks and other public places
Trees
Duties of city arborist. . . . . 50-175
Interference with city arborist. . . . . 50-179

CITY AUDITOR
Finance
Accounts of auditor . . . . . 2-369
Authority of city auditor upon application for order to pay out money when applicant is indebted to city 2-373
Solid waste
Collection and disposal
Rates and charges
Collection of service charges; records; city auditor . . . . . 98-79
Traffic ordinance
Administration and enforcement
Violations
Duties of city auditor. . . . . 114-92

CITY BOOKS. See: PUBLIC RECORDS

CITY CENTER BUSINESS IMPROVEMENT DISTRICT
Board members terms, appointment, powers, and duties. . . . . 2-712

Section

CITY CENTER BUSINESS IMPROVEMENT DISTRICT (Cont'd.)
Continuation or dissolution and other provisions . . . 2-716
Creation of fund; rate and manner of fees 2-713
Creation of the City Center Business Improvement District . . . 2-711
Description of boundaries of the City Center Business Improvement District . . . 2-715
Services within the City Center Business Improvement District . . . 2-714

CITY CLERK
Contact with public . . . 2-202
Custodian of records . . . 2-201
Other powers, duties . . . 2-203
Public records
Fee for copies of records and documents supplied by city clerk to applicants 2-333

CITY COLLECTOR
Alcoholic beverages
Intoxicating liquor; private clubs
City collector to maintain records of state licenses; receipts for city fees to be issued; duty of licensees to display city receipts 6-132
Carnivals, circuses and shows
Filing with city collector of list of all rides and concessions; bond for municipal taxes . . . 18-173
Fire prevention and protection
Fire department
Emergency medical services division
Uncollectible accounts for ambulance-related services; authority of city collector . . . 54-75
Fire protection service charge
Definitions; continuation, maintenance and improvement of fire service; legislative intent; city collector to administer regulations; use of funds; assessment of fees . . . 54-181
General duties . . . 2-221
Issuance of licenses, permits . . . 2-222
Solid waste
Collection and disposal
Rates and charges
Charges for refuse, recyclables and yard (green) waste services; authority of city collector to promulgate rules and regulations related to collection of fees . . . 98-71
Taxation
Admissions tax
City collector to enforce rules . . . 110-190
Investigation by city collector . . . 110-188
Liability of city collector . . . 110-191

Section

CITY COLLECTOR (Cont'd.)
Business and occupation tax
Tax collection
Limited effect of city collector's certificate . . . 110-149

CITY COUNCIL
Adoption of rules of the council; amending, repealing, filing and publication of rules; maintenance of rules in current status . . . 2-70
Annual tax estimate and levy . . . 2-62
Authentication of records . . . 2-65
Authorized procedure when meeting lacks quorum . . . 2-67
Civic center - auditorium board
Quarterly and annual reports to city council . . . 2-555
Clerk of the council . . . 2-64
Definitions and rules of construction
City council, council . . . 1-2
Disorderly conduct prohibited at meetings of council and council committees . . . 2-68
Finance
Budget
Preparation of tentative budget and submittal to city council . . . 2-406
Going out of business sales, fire sales and similar sales
Findings of city council . . . 18-352
Kanawha Valley Regional Transportation Authority
City not obligated financially except by approval of city council . . . 2-628
Law enforcement
Police department
Citizens Commission of the Charleston Mounted Police Patrol
Declaration of council . . . 66-114
Nuisances
Review by city council . . . 50-41
Ordinances
Cases requiring enactment of ordinance 2-92
General provisions as to adoption and procedures . . . 2-91
Recording and filing; ordinance record book . . . 2-93
To repeal, amend or add to provisions of this Code, and record; record of repealed and amended portions of Code . . . 2-94
Public art commission . . . 2-681 et seq.
See: BOARDS, COMMITTEES AND COMMISSIONS
Quadrennial organizational . . . 2-63
Regular and special meetings . . . 2-61
Resolutions and record . . . 2-69
Rules of council (Appendix A). See that subject

| | Section |
|---|---|
| CITY COUNCIL (Cont'd.) | |
| Sergeant at arms | 2-66 |
| Solid waste | |
| Collection and disposal | |
| Rates and charges | |
| Special rates authorized by city council | 98-77 |
| Streets, sidewalks and other public places | |
| Improvement of parks, squares, similar places by city council | 102-14 |
| Poles, wires and antennas | |
| Right of council to prescribe kind, size and location of poles | 102-215 |
| Street names and building numbers | |
| Building numbering | |
| Method of numbering; complaints; action of city council | 102-173 |
| Taxation | |
| Business and occupation tax | |
| Tax imposed; exemptions and credits | |
| Banking and other financial businesses; findings of city council | 110-60 |
| Traffic ordinance | |
| Stopping, standing and parking | |
| City-owned parking lots and buildings | |
| Powers and duties of city council | 114-601 |
| CITY ENGINEER | |
| Responsibilities | 2-261 |
| CITY INSPECTOR | |
| Utilities | |
| Sewers and sewage disposal | |
| Taps | |
| Approval of connections by city inspector | 118-104 |
| CITY JAIL | |
| Law enforcement | 66-151 et seq. |
| See: LAW ENFORCEMENT | |
| CITY MANAGER | |
| Custodian of certain papers and records | 2-183 |
| Nuisances | |
| Conduct of public hearing; final abatement order by city manager | 50-40 |
| Order to abate condition constituting nuisance; right to public hearing; actions by city manager | 50-45 |
| Personnel rules and administrative policies; duties and authority | 2-184 |
| Powers and duties generally | 2-181 |
| Solid waste | |
| Collection and disposal | |
| City manager ex officio sanitation inspector | 98-43 |
| Whom to collect refuse and recyclables; issuance of annual permits to collectors by city manager | 98-45 |

| | Section |
|---|---|
| CITY MANAGER (Cont'd.) | |
| Supervision and care of grounds and buildings; leases; improvements | 2-182 |
| CITY SOLICITOR | |
| Appointment | 2-241 |
| Code of ordinances | |
| Code imposes no liability for acts or omissions pursuant thereto; when city solicitor to defend city officers and employees; liability insurance | 1-10 |
| Definitions and rules of construction | |
| City solicitor; assistant city solicitor | 1-2 |
| General legal counsel; special municipal council authorized | 2-242 |
| Personnel rules and administrative policies; duties and authority | 2-244 |
| Settlement authority | 2-243 |
| CITY TREASURER | |
| Animals | |
| Livestock; impoundment | |
| Payment of money received to city treasurer | 10-76 |
| Finance | |
| Loss of order upon city treasurer | 2-376 |
| Orders on the city treasurer | 2-372 |
| CIVIL EMERGENCIES. See: EMERGENCY MANAGEMENT | |
| CIVIL SERVICE. See specific subjects as indexed | |
| CLERKS | |
| Alcoholic beverages | |
| Nonintoxicating beer; license | |
| List of licensees to be reported to clerk of municipal court | 6-55 |
| City clerk | 2-201 et seq. |
| See: CITY CLERK | |
| City council | |
| Clerk of the council | 2-64 |
| Courts | |
| Municipal court | |
| Deputy clerks | 38-35 |
| Duties of clerk | 38-34 |
| Rules of council | |
| Filing of papers to be introduced at city council meetings and action thereon by clerk of council, (App. A § 3) | |
| Traffic ordinance | |
| Administration and enforcement | |
| Violations | |
| Report of failure to cooperate with traffic clerk; interference | 114-91 |
| CLUBS | |
| Alcoholic beverages | |

Section

CLUBS (Cont'd.)
Intoxicating liquor
Private clubs ..... 6-131 et seq.
See: ALCOHOLIC BEVERAGES

COAL
Streets, sidewalks and other public places
Prohibited material in streets or public places; coal; refuse from fruit stands ..... 102-7

COCK FIGHTING
Animals
Cruelty to animals ..... 10-3

CODE
Definitions and rules of construction..... 1-2

CODE OF ORDINANCES
Amendments to Code; effect of new ordinances; amendatory language .. 1-6
Appointment of select committee ..... 1-14
Catchlines of sections; history notes; references ..... 1-3
Certain ordinances not affected by Code . 1-17
Code does not affect prior offenses or rights..... 1-16
Code imposes no liability for acts or omissions pursuant thereto; when city solicitor to defend city officers and employees; liability insurance ..... 1-10
Common seal of the city; custodian of seal 1-11
Datum line for grades of streets established 1-12
Definitions and rules of construction..... 1-2
Effect of repeal of ordinances..... 1-4
Filing fee for candidates for city offices .. 1-13
General penalty; continuing violations ... 1-8
How Code designated and cited..... 1-1
Jurisdiction ..... 1-5
Provisions deemed continuation of existing ordinances..... 1-15
Severability ..... 1-9
Supplementation of Code..... 1-7

CODES (Generally)
Building code..... 14-31 et seq.
See: BUILDINGS AND BUILDING REGULATIONS
Fire prevention code ..... 54-141 et seq.
See: FIRE PREVENTION AND PROTECTION
Housing code..... 14-71
Manufactured homes and trailers
Trailers and trailer camps
Auto trailer camps
Compliance with building codes.. 70-60
Compliance with plumbing code.. 70-59

Section

COIN-OPERATED MACHINES AND DEVICES
License
Application; stamp and owner identification on machine..... 18-251
Proprietor responsibility; liability; impounding and sale ..... 18-252
Special provisions for certain nonprofit organizations ..... 18-254
Store exemption; evidence ..... 18-253
Pay telephones and postage stamp vending devices excluded ..... 18-231
Stores
Coin-operated devices not considered stores ..... 18-972

COLLEGES. See: SCHOOLS

COMBUSTIBLES AND INFLAMMABLES
Fire prevention and protection; generally 54-1 et seq.
See: FIRE PREVENTION AND PROTECTION

COMMERCE (Generally). See: BUSINESSES

COMMERCIAL WATER WELLS. See: NATURAL RESOURCES

COMMITTEES AND COMMISSIONS. See: BOARDS, COMMITTEES AND COMMISSIONS

COMMUNICATIONS
Coin-operated machines and devices
Pay telephones and postage stamp vending devices excluded..... 18-231
Streets, sidewalks and other public places
Poles, wires and antennas
Municipal control of telephone, telegraph and electric companies 102-224

COMMUNITY DEVELOPMENT
Definitions
Neighborhood rehabilitation program . 30-61
Neighborhood rehabilitation program
Definitions ..... 30-61
Findings and purpose ..... 30-62
Neighborhood rehabilitation fund; guaranteed loans..... 30-63
Rehabilitation fund commission..... 30-64
Planning; generally..... 90-31 et seq.
See: PLANNING
Shelton-Sentz Neighborhood Redevelopment Select Committee ..... 30-1

COMMUNITY HEALTH ACTION PLAN
Creation of board..... 58-62
Establishing..... 58-61
Requirements ..... 58-63

COMPENSATION, SALARIES, ETC. See: OFFICERS AND EMPLOYEES

| | Section |
|---|---|
| COMPLAINTS | |
| Consumer protection | |
| Consumer protection department | |
| Notice of complaint; referrals; patterns of complaint | 34-38 |
| Reception of complaints by director | 34-37 |
| Human rights | |
| Discriminatory practices | |
| Complaint, hearing procedures; issuance of cease and desist order | 62-82 |
| Nuisances | |
| Inspections, investigations and complaints | 50-36 |
| Streets, sidewalks and other public places | |
| Street names and building numbers | |
| Building numbering | |
| Method of numbering; complaints; action of city council | 102-173 |
| CONDEMNATION | |
| Vehicles for hire | |
| Taxicabs | |
| Condemnation of defective vehicles | 122-40 |
| CONDUCT | |
| City council | |
| Disorderly conduct prohibited at meetings of council and council committees | 2-68 |
| Courts | |
| Municipal court | |
| Installment payment of fines and costs | |
| Court may require defendant to be on good behavior until fine and costs are paid | 38-124 |
| Offenses | |
| Offenses involving public morals | |
| Gambling | |
| Regulation of poolrooms | |
| Prohibited conduct | 78-350(b) |
| Offenses involving public peace and order | |
| Disorderly conduct | 78-202, 78-205 |
| Disorderly conduct in public schools of the city; loitering after being requested to leave school premises | 78-206 |
| Picketing | |
| Prohibited conduct at scene of picketing | 78-233 |
| Officers and employees | |
| Standards of conduct of city officers and employees for grants; penalties | 2-138 |
| Parks and recreation | |
| Public use of parks and recreational facilities | |
| Ruffner Memorial Park | |
| Misconduct | 82-123(b) |
| CONDUCT (Cont'd.) | |
| Vehicles for hire | |
| Taxicabs | |
| Disorderly conduct; liquor | 122-41 |
| CONFIDENTIALITY | |
| Taxation | |
| Admissions tax | |
| Information to be confidential | 110-189 |
| Business and occupation tax | |
| Payments, returns and records | |
| Secrecy of returns | 110-85 |
| CONFLICTS OF INTEREST | |
| Officers and employees | 2-136 |
| CONJUNCTIONS | |
| Definitions and rules of construction | 1-2 |
| CONSTRUCTION (Generally). See: BUILDINGS AND BUILDING REGULATIONS | |
| CONSUMER PROTECTION | |
| Consumer protection department | |
| Administration of article | 34-35 |
| City policy declared; purpose of article | 34-32 |
| Created | 34-31 |
| Definitions | 34-33 |
| Director and department personnel | 34-34 |
| Dissemination of information | 34-39 |
| Notice of complaint; referrals; patterns of complaint | 34-38 |
| Powers and duties of director | 34-36 |
| Reception of complaints by director | 34-37 |
| Definitions | |
| Consumer protection department | 34-33 |
| Fire prevention and protection | |
| Fireworks; sale, possession, storage and discharge | |
| Consumer fireworks; regulations, prohibited actions, and exceptions | 54-191 |
| CONTRACTS AND AGREEMENTS | |
| Code of ordinances | |
| Certain ordinances not affected by Code | 1-17 |
| Courts | |
| Municipal court | |
| Installment payment of fines and costs | |
| Procedure upon default in payment under agreement; confinement in case of willful default | 38-125 |
| Finance | |
| Bonds for faithful performance of contracts and franchises | 2-378 |
| Contracts and purchases | 2-461 et seq. |
| See: FINANCE | |
| Disbursement of general fund; contracts in excess of estimated revenue | 2-368 |

| | Section |
|---|---|
| CONTRACTS AND AGREEMENTS (Cont'd.) | |
| Municipal home rule | |
| Contracts with other jurisdictions via resolution | 3-12 |
| Planning | |
| Municipal planning commission | |
| Contracts for expenditure of money | 90-37 |
| Taxation | |
| Business and occupation tax | |
| Tax collection | |
| Settlement of contracts made with city | 110-147 |
| CONTRIBUTIONS | |
| Fire prevention and protection | |
| Fire department | |
| Contributions toward firefighter/EMS uniforms | 54-50 |
| Law enforcement | |
| Police department | |
| Contribution toward police officers' uniforms | 66-38 |
| CONTROLLED SUBSTANCES | |
| Offenses | |
| Offenses involving public morals | |
| Drugs and related offenses | |
| Simple possession of marijuana, synthetic cannabinoids, and other controlled substances | 78-373 |
| Traffic ordinance | |
| Serious traffic offenses | |
| Driving under influence of alcohol, controlled substances or drugs | 114-302 |
| CONVERSION THERAPY | |
| Conversion therapy illegal | |
| Civil penalty and appeal rights | 58-54 |
| Conversion therapy prohibited | 58-52 |
| Definitions | 58-51 |
| Enforcement | 58-53 |
| COUNCIL. See: CITY COUNCIL | |
| COUNTY | |
| Definitions and rules of construction | 1-2 |
| Kanawha Valley Regional Transportation Authority | |
| Number of board members; appointment of city and county members | 2-624 |
| COURTS | |
| Alcoholic beverages | |
| Nonintoxicating beer; license | |
| List of licensees to be reported to clerk of municipal court | 6-55 |
| Charitable solicitations | |
| Permit | |
| Suspension or cancellation of permit; jurisdiction of municipal court to issue subpoenas duces tecum | 26-35 |

| | Section |
|---|---|
| COURTS (Cont'd.) | |
| Fines, forfeitures and other penalties. See herein specific subjects | |
| Forfeitures. See herein specific subjects | |
| Going out of business sales, fire sales and similar sales | |
| License | |
| Notice of denial, refusal or revocation of license; judicial review | 18-387 |
| Municipal court | |
| Acts punishable for contempt | 38-47 |
| Bail bond or cash deposit | 38-40 |
| Bailiff | 38-36 |
| Collection of fines and costs; remission; suspension of judgment | 38-54 |
| Court costs | 38-53 |
| Court established, to be held by municipal judge | 38-31 |
| Default judgments | 38-39 |
| Deputy clerks | 38-35 |
| Duties of clerk | |
| Fines, costs, process and oaths | 38-34(2) |
| Reports of fines for traffic violations | 38-34(3) |
| Trial docket | 38-34(1) |
| False swearing and subornation of false swearing | 38-51 |
| Imprisonment for fines and costs | 38-52 |
| Installment payment of fines and costs | |
| Community service work may be substituted in lieu of incarceration or a fine | 38-126 |
| Court may require defendant to be on good behavior until fine and costs are paid | 38-124 |
| Determination of ability to pay; questionnaire to be answered by defendant; assistance to defendant; penalty for false swearing | 38-122 |
| Home incarceration | 38-127 |
| Installment or other method of payment when defendant unable to pay forthwith | 38-121 |
| Payment of fine may be made condition of probation or suspension of sentence | 38-123 |
| Procedure upon default in payment under agreement; confinement in case of willful default | 38-125 |
| Intimidation of judicial officers, jurors and witnesses; obstructing administration of justice; penalty | 38-50 |
| Issuance and service of process | 38-38 |
| Judgment and commitment for contempt | 38-49 |
| Juries | |
| Compensation | |
| Payment of | 38-89 |
| When juror not entitled | 38-88 |
| Demand for jury trial | 38-81 |

| | Section |
|---|---|
| COURTS (Cont'd.) | |
| Discharge of jurors; excuse from attendance | 38-87 |
| Jury service, persons eligible | 38-82 |
| Master jury list | 38-84 |
| Preparation for trial | 38-85 |
| Number of jurors | 38-83 |
| Penalty for failure of jurors to attend | 38-86 |
| Trial procedure | 38-90 |
| Jurisdiction, powers and duties relating to violations of the traffic ordinance | 38-32 |
| Procedure; new trials | 38-46 |
| Prosecution for contempt | 38-48 |
| Requisites and disposition of cash deposit | 38-41 |
| Separation of witnesses; exclusion of minors from courtroom | 38-45 |
| Sessions | 38-33 |
| Style of prosecutions; arrest of offenders; summoning witnesses | 38-37 |
| Unlawful taking of cash deposit; approval of bond in felony cases | 38-42 |
| Who may not be bail sureties | 38-43 |
| Witness fees | 38-44 |
| Municipal judge | |
| Municipal court | |
| Court established, to be held by municipal judge | 38-31 |
| Offenses | 78-1 et seq. |
| See: OFFENSES | |
| Penalties. See herein specific subjects | |
| Processes. See herein: Writs, Warrants and Other Processes | |
| Solid waste | |
| Notice of violation, refuse citations, appeals, and municipal court process | 98-1 |
| Taxation | |
| Business and occupation tax | |
| Tax assessments | |
| Appeals to circuit court | 110-115 |
| Traffic ordinance | |
| Parking citations, violations | 114-81 et seq. |
| Serious traffic offenses | |
| Proof of alcohol content; license suspension | |
| Hearing procedure; judicial review | 114-327 |
| Warrants. See herein: Writs, Warrants and Other Processes | |
| Witnesses | |
| Municipal court | |
| Intimidation of judicial officers, jurors and witnesses; obstructing administration of justice; penalty | 38-50 |
| Separation of witnesses; exclusion of minors from courtroom | 38-45 |
| Style of prosecutions; arrest of offenders; summoning witnesses | 38-37 |
| Witness fees | 38-44 |

| | Section |
|---|---|
| COURTS (Cont'd.) | |
| Writs, warrants and other processes | |
| Municipal court | |
| Duties of clerk | |
| Fines, costs, process and oaths | 38-34(2) |
| Issuance and service of process | 38-38 |
| CRIME, CRIMINALS | |
| Junk dealers | |
| License not transferable; former convictions | 18-684 |
| Offenses; generally | 78-1 et seq. |
| See: OFFENSES | |
| Sewers and sewage disposal | |
| Discharge restrictions | |
| Criminal penalty | 118-216 |
| CROSSWALKS | |
| Traffic ordinance | |
| Pedestrians | |
| Crossing at other than crosswalks | 114-663 |
| Right-of-way in crosswalks | 114-662 |
| Use of right half of crosswalks | 114-665 |
| Vehicle operation | |
| Obstructing intersection or crosswalk | 114-380 |
| CRUELTY TO ANIMALS. See: DAMAGE, INJURY, ETC. | |
| CURBS | |
| Streets, sidewalks and other public places | |
| Construction and maintenance of sidewalks, curbs and gutters | 102-51 et seq. |
| See: STREETS, SIDEWALKS AND OTHER PUBLIC PLACES | |
| Traffic ordinance | |
| Stopping, standing and parking | |
| Backing up to curb to load or unload; loading permits | 114-563 |
| Parking parallel to curb, close to curb; angle parking | 114-555 |
| Vehicles for hire | |
| Taxicabs | |
| Double or triple parking or parking too far from curb at a taxicab stand | 122-36 |
| CURFEWS | |
| Offenses | |
| Offenses involving public peace and order | |
| Curfew for underage persons | 78-210 |
| **D** | |
| DAMAGE, INJURY, ETC. | |
| Animals | |
| Care and treatment of animals | |
| Cruelty to animals | 10-3 |
| Poisoning animals | 10-2 |

| | Section |
|---|---|
| DAMAGE, INJURY, ETC. (Cont'd.) | |
| Businesses | |
| Licenses generally | |
| Duplicate licenses for those lost, misplaced or destroyed | 18-43 |
| Record of licenses issued; destruction of records after five years | 18-35 |
| Cemeteries | |
| Spring Hill Cemetery | |
| Destruction or injury of shrubbery or monuments | 22-40 |
| Fire prevention and protection | |
| Fire department | |
| Workers' compensation; pay of firefighters/EMS injured in performance of duty | 54-51 |
| Graffiti | 50-51 et seq. |
| See: GRAFFITI | |
| Law enforcement | |
| Police department | |
| Workers' compensation; pay of police officers injured in performance of duty | 66-37 |
| Nuisances | |
| Destruction of unwholesome articles | 50-49 |
| Offenses | 78-42 et seq. |
| See: OFFENSES | |
| Streets, sidewalks and other public places | |
| Trees; abuse or mutilation of public trees | 102-302 |
| Traffic ordinance | |
| Accidents and accident reports | |
| Accidents involving only property damage | 114-193 |
| Glass and injurious materials not to be deposited on street; removal of substances from scene of wrecked vehicle | 114-19 |
| Injuring or tampering with vehicle | 114-21 |
| Stopping, standing and parking | |
| On-street metered parking | |
| Slugs; injuring or tampering with meters | 114-627 |
| Trees | |
| Abuse, mutilation of public trees | 50-181 |
| Utilities | |
| Sewers and sewage disposal | |
| City not liable for damage | 118-66 |
| Injury to sewer | 118-69 |
| Tampering with sewer appurtenances | 118-67 |
| Water service | |
| Injury to water fixtures | 118-33 |
| DEAD ANIMALS | |
| Animals | |
| Dead animals and fowl; disposition of carcasses | 10-9 |
| Responsibility for removal of carcasses | 10-10 |
| DEDICATIONS | |
| Code of ordinances | |
| Certain ordinances not affected by Code | 1-17 |
| DEEDS | |
| Code of ordinances | |
| Certain ordinances not affected by Code | 1-17 |
| DEER | |
| Urban hunting | 10-171 et seq. |
| See: ANIMALS | |
| DEFINITIONS | |
| Definitions and rules of construction | 1-2 |
| Other definitions. See specific subjects as indexed | |
| DEMOLITION | |
| Buildings and building regulations | |
| Housing code; administration and enforcement | |
| Removal or demolition | 14-112 |
| Fire prevention and protection | |
| Fire department | |
| Demolition of structures to prevent spread of fire | 54-52 |
| DEPARTMENT OF HEALTH. See: HEALTH DEPARTMENT | |
| DEPARTMENTS AND OTHER AGENCIES OF CITY | |
| Buildings and building regulations | |
| Housing code | |
| Administration and enforcement | |
| Duties of chief of fire prevention bureau | 14-93 |
| Consumer protection | |
| Consumer protection department | 34-31 et seq. |
| See: CONSUMER PROTECTION | |
| Conversion therapy illegal | 58-51 et seq. |
| See: CONVERSION THERAPY | |
| Definitions and rules of construction | |
| Joint authority | 1-2 |
| Officers, departments, etc. | 1-2 |
| Public authority | 1-2 |
| Emergency management | |
| Emergency services department | 42-31 et seq. |
| See: EMERGENCY MANAGEMENT | |
| Fire prevention and protection | |
| Fire department | 54-2 et seq. |
| See: FIRE PREVENTION AND PROTECTION | |
| Human resources department | 86-1 et seq. |
| See: PERSONNEL | |
| Law enforcement | 66-31 et seq. |
| See: LAW ENFORCEMENT | |
| Parks and recreation | |
| Parks and recreation department | 82-41 et seq. |
| See: PARKS AND RECREATION | |
| Rules of council (Appendix A). See that subject | |

Section

DEPARTMENTS AND OTHER AGENCIES OF CITY (Cont'd.)
Streets, sidewalks and other public places
Outdoor dining
Planning department rules and regulations under article ..... 102-271
Taxation
Hotel occupancy tax
Tax imposed; rate; exemptions
Exemptions for government agencies or employees ..... 110-253
Traffic ordinance
Administration and enforcement
Powers and duties of police department ..... 114-52
Stopping, standing and parking
Physicians on emergency calls; vehicles while being loaded or unloaded; police department vehicles ..... 114-567

DEPUTIES
Officers and employees
Authority of deputies, assistants and other subordinates ..... 2-132

DESTRUCTION. See: DAMAGE, INJURY, ETC.

DIRECTOR OF MAYOR'S OFFICE OF ECONOMIC AND COMMUNITY DEVELOPMENT
Duties ..... 2-301

DIRECTORS
Charitable solicitations
Permit
Card or certificate from director required ..... 26-34
Consumer protection
Consumer protection department
Director and department personnel . 34-34
Powers and duties of director ..... 34-36
Reception of complaints by director . 34-37
Emergency management
Emergency services department
Appointment, term and compensation of director ..... 42-35
Director's powers and duties ..... 42-36
Finance
Budget
Powers and duties of finance director 2-402
Powers of director in administration of expenditures ..... 2-407
Parks and recreation
Parks and recreation department
Administrative and enforcement powers of director; duties generally ..... 82-43
Director and other personnel ..... 82-42

Section

DIRECTORS (Cont'd.)
Public art commission ..... 2-681 et seq.
See: BOARDS, COMMITTEES AND COMMISSIONS
Solid waste
Collection and disposal
Director of refuse collection ..... 98-44

DISASTERS
Civil emergencies ..... 42-81 et seq.
See: EMERGENCY MANAGEMENT
Emergencies. See that subject

DISCRIMINATION
Discriminatory practices ..... 62-81 et seq.
See: HUMAN RIGHTS
Streets, sidewalks and other public places
Outdoor dining
Nondiscrimination/right to limit or deny admission or service ..... 102-273

DISCRIMINATORY PRACTICES. See: HUMAN RIGHTS

DISEASE CONTROL. See: HEALTH AND SANITATION

DISORDERLY CONDUCT. See: CONDUCT

DISPLAYS. See also: POSTING
Alcoholic beverages
Intoxicating liquor; private clubs
City collector to maintain records of state licenses; receipts for city fees to be issued; duty of licensees to display city receipts 6-132
Duty of state licensees to report to city to display state licenses and pay city license fees; prohibited liquor sales when city fee not paid ..... 6-131
Businesses
Licenses generally; display of license .. 18-42
Graffiti ..... 50-51 et seq.
See: GRAFFITI
Health and sanitation
Storage or display of food close to ground 58-5
Massage parlors
Permit ..... 18-755
Stores
License
Return of application for correction; granting and display of license 18-994
Streets, sidewalks and other public places
Displays on sidewalks ..... 102-6
Traffic ordinance
Stopping, standing and parking
Display for sale; repair or advertising on street ..... 114-560

DISPOSAL. See: SOLID WASTE

Section

DISTRICTS
City center business improvement district 2-711 et seq.
See: CITY CENTER BUSINESS IMPROVEMENT DISTRICT
Solid waste
Collection and disposal
Regulation of time of day and area during which refuse and recyclables may be collected from residential districts and surrounding areas . . . . . 98-48
Traffic ordinance
Stopping, standing and parking
Stopping outside of business or residence districts restricted . . 114-557

DOCKS. See: BOATS, DOCKS AND WATERWAYS

DOGS. See: ANIMALS

DRAINAGE
Buildings and building regulations
Housing code; minimum standards
Surface drainage . . . . . 14-148
Utilities
Sewers and sewage disposal
License required to engage in business of laying or constructing sewers or drainways . . . . . 118-73

DRIVEWAYS
Traffic ordinance
Stopping, standing and parking
Alleys and driveways . . . . . 114-571
Vehicle operation
Right-of-way
When emerging from alley, private driveway, parking lot or garage. . . . . 114-495
Special stops
Stop before emerging from alley or private driveway . . . . . 114-515

DRUGS
Offenses
Offenses involving public morals
Drugs and related offenses . . . . . 78-371 et seq.
See: OFFENSES
Traffic ordinance
Serious traffic offenses
Driving under influence of alcohol, controlled substances or drugs 114-302

**E**

EATING PLACES. See: HOTELS, TOURIST HOMES AND EATING PLACES; See also: FOOD AND FOOD SERVICES

ELECTRICITY
Buildings and building regulations
Fence regulations
Electrically charged fences . . . . . 14-2(b)
Manufactured homes and trailers
Trailers and trailer camps
Auto trailer camps
Electrical connections . . . . . 70-58
Parks and recreation
Haddad Riverfront Park events
Use of designated city electrical hook-ups by boaters. . . . . 82-161 et seq.
Streets, sidewalks and other public places
Poles, wires and antennas
Wires carrying electric current under street surface . . . . . 102-220 et seq.
See: STREETS, SIDEWALKS AND OTHER PUBLIC PLACES

EMBEZZLEMENT
Offenses
Offenses involving property rights
Larceny and related offenses . . . . . 78-82

EMBLEMS
Traffic ordinance
Vehicle operation; speed
Slow-moving vehicle emblem . . . . . 114-407

EMERGENCIES
Emergency management . . . . . 42-31 et seq.
See: EMERGENCY MANAGEMENT
Finance
Budget
Reserve for emergencies as part of expenditure schedule . . . . . 2-412
Fire prevention and protection; generally 54-1 et seq.
See: FIRE PREVENTION AND PROTECTION
Streets, sidewalks and other public places
Trees. . . . . 50-178
Traffic ordinance
Authorized emergency vehicles. . . . . 114-13, 114-14
Stopping, standing and parking
Physicians on emergency calls; vehicles while being loaded or unloaded; police department vehicles . . . . . 114-567
Stopping, standing or parking prohibited beneath fire escapes and within 15 feet of emergency exits . . . . . 114-569
Vehicle operation
Right-of-way
Upon approach of authorized emergency vehicles. . . . . 114-496

EMERGENCY MANAGEMENT
Civil emergencies
Authority to request state police and military forces; when proclamation of martial law may be recommended to governor . . . . . 42-86

| | Section |
|---|---|
| EMERGENCY MANAGEMENT (Cont'd.) | |
| Compliance with restrictions imposed by proclamation mandatory | 42-85 |
| Declaration of emergency by proclamation of mayor; restrictions may be imposed; exemptions from restrictions | 42-82 |
| End of emergency period | 42-87 |
| Extension, alteration and rescission of proclamation | 42-84 |
| Specific restrictions authorized | 42-83 |
| When state of emergency deemed to exist | 42-81 |
| Emergency services | |
| Alarm systems | 46-1 |
| Emergency services department | |
| Appointment, term and compensation of director | 42-35 |
| Appropriations and authority to accept services, gifts, grants and loans | 42-37 |
| Director's powers and duties | |
| Coordination; other duties | 42-36(b) |
| Department head | 42-36(a) |
| Emergency services council | |
| Advisory duties | 42-32(c) |
| Compensation | 42-32(b) |
| Created; composition; qualifications, appointment and term of members; filling vacancies | 42-32(a) |
| Emergency services personnel; required oath | 42-40 |
| Functions of department | 42-33 |
| Members to return paraphernalia on request | 42-44 |
| Obstruction of personnel | 42-43 |
| Orders, rules and regulations; enforcement of article | 42-41 |
| Organization created; composition; title | 42-31 |
| Political activity prohibited | 42-39 |
| Powers and duties of mayor | 42-34 |
| Prohibited use of personnel identification | 42-42 |
| Utilization of existing services and facilities; volunteer assistance | 42-38 |
| EMERGENCY MEDICAL SERVICES. See: FIRE PREVENTION AND PROTECTION | |
| EMERGENCY SERVICES | |
| Alarm systems | |
| Alarm system registration | 46-1(b) |
| Definitions | 46-1(a) |
| False alarms; penalties | 46-1(c) |
| Emergency management | 42-31 et seq. |
| See: EMERGENCY MANAGEMENT | |
| EMPLOYEES. See: OFFICERS AND EMPLOYEES | |
| ENCLOSURES. See: FENCES, WALLS, HEDGES AND ENCLOSURES | |

| | Section |
|---|---|
| ENERGY BENCHMARKING | |
| Annual report and analysis | 2-759 |
| Applicability | 2-753 |
| Audit of meters and streetlights | 2-757 |
| Benchmarking exemptions; time extensions | 2-756 |
| Benchmarking reporting procedure | 2-755 |
| Benchmarking requirement for covered municipal properties | 2-754 |
| Definitions | 2-752 |
| Energy savings program | 2-758 |
| Purpose of energy benchmarking ordinance | 2-751 |
| Rulemaking | 2-760 |
| ENERGY CONSERVATION CODE | |
| Adoption of state building code | 14-33 |
| See also: BUILDINGS AND BUILDING REGULATIONS | |
| Energy benchmarking | 2-751 et seq. |
| See: ENERGY BENCHMARKING | |
| ENFORCEMENT. See specific subjects as indexed | |
| ENGINEERING SERVICES | |
| Municipal home rule | |
| Procurement of architectural and engineering services | 3-15 |
| ENGINEERS | |
| City engineer. See that subject | |
| ENTRY | |
| Buildings and building regulations | |
| Inspections; right of entry | 14-1 |
| Security against unauthorized entry | 14-181 et seq. |
| See: BUILDINGS AND BUILDING REGULATIONS | |
| Health and sanitation | |
| Inspection of and entry within buildings and grounds by health commissioner and his representatives | 58-3 |
| Nuisances | |
| Right to enter upon private premises; duty of occupants | 50-37 |
| Offenses | |
| Offenses involving public morals | |
| Prostitution and related offenses | |
| Entry to house of prostitution | 78-325 |
| Officers and employees | |
| Right of entry for purposes of inspection | 2-139 |
| Parks and recreation | |
| Public use of parks and recreational facilities | |
| Entering playgrounds and swimming pools after hours | 82-121 |
| Utilities | |
| Sewers and sewage disposal | |
| Entering sewer | 118-68 |

Section

ENVIRONMENT
Abandoned vehicles and junk. . . . . 50-81 et seq.
See: ABANDONED VEHICLES AND JUNK
Beautification commission; generally . . . . 2-531 et seq.
See: BEAUTIFICATION COMMISSION
Energy benchmarking . . . . . 2-751 et seq.
See: ENERGY BENCHMARKING
Land reuse agency
Powers and duties
Conservation division . . . . . 65-13
Maintenance of premises. . . . . 50-121 et seq.
See: MAINTENANCE OF PREMISES
Nuisances. . . . . 50-31 et seq.
See: NUISANCES
Operation of engines, furnaces or boilers . 50-1
Planning; generally . . . . . 90-31 et seq.
See: PLANNING
Tree planting, maintenance and removal regulations. . . . . 50-171 et seq.
See: VEGETATION

EQUIPMENT
Abandoned vehicles and junk
Authority to take possession of certain abandoned equipment . . . . . 50-86
Fire prevention and protection
Fire department
Use of equipment and materials in certain motor vehicle emergencies, incidents . . . . . 54-53
Law enforcement
Police department
School crossing guards
Uniforms and equipment . . . . . 66-94
Streets, sidewalks and other public places
Poles, wires and antennas
Standard electrical construction and equipment required. . . . . 102-222
Traffic ordinance
Administration and enforcement
Meter patrol
Uniform and equipment . . . . . 114-154
Vehicle equipment . . . . . 114-811 et seq.
See: TRAFFIC ORDINANCE
Vehicle operation
Safety equipment and requirements for motorcyclists and motorcycles . . . . . 114-364
Special stops
Heavy equipment at grade crossings . . . . . 114-513

ESCROWS
Finance
Additional provisions as to special funds; establishment of escrows . . . . . 2-365

ETHICS
Morals. See that subject

Section

ETHICS (Cont'd.)
Officers and employees
Ethics in city government . . . . . 2-137

EVIDENCE
Businesses
Licenses generally
Issuance of stamp or other evidence of license for coin-operated device. . . . . 18-33
Coin-operated machines and devices
License
Store exemption; evidence. . . . . 18-253

EXCAVATIONS
City of Charleston Public Rights-of-Way Excavation and Restoration Ordinance Manual
Adoption . . . . . 102-91

EXHIBITIONS
Offenses
Offenses involving public morals
Obscenity and related offenses
Indecent shows or exhibitions. . . . 78-313

EXISTING BUILDINGS CODE
Adoption of state building code . . . . . 14-33
See also: BUILDINGS AND BUILDING REGULATIONS

EXPLOSIVES. See also: BLASTING
Traffic ordinance
Stopping, standing and parking
Vehicles laden with explosives or flammable materials . . . . . 114-561
Vehicle equipment
Vehicles transporting explosives . . . . 114-821
Utilities
Sewers and sewage disposal
Introducing into sewer hot, corrosive or explosive substances . . . . . 118-71

EXTRATERRITORIAL JURISDICTION
Definitions and rules of construction. . . . . 1-2

**F**

FALSE REPRESENTATIONS
Alcoholic beverages
Nonintoxicating beer; license
False statements relating to licenses 6-54
Businesses
Licenses generally
False statements prohibited . . . . . 18-34
Courts
Municipal court
False swearing and subornation of false swearing. . . . . 38-51
Installment payment of fines and costs
Penalty for false swearing . . . . . 38-122

| | Section |
|---|---|
| FALSE REPRESENTATIONS (Cont'd.) | |
| Emergency services | |
| Alarm systems | |
| False alarms; penalties | 46-1(c) |
| Fire prevention and protection | |
| False request for emergency medical services | 54-4 |
| Offenses | |
| Offenses involving public authority | |
| Impersonation of city officers and employees | 78-414 |
| Offenses involving public safety | |
| False alarms and reports | 78-131 |
| Officers and employees | |
| Limited authority to administer oaths; false swearing | 2-140 |
| FECAL MATTER | |
| Utilities | |
| Sewers and sewage disposal | |
| Unlawful deposit of | 118-81 |
| FEDERAL CONCERNS | |
| Finance | |
| Contracts and purchases | |
| Procurement standards for federally funded projects | 2-463 |
| Officers and employees | |
| Benefits | |
| Federal Social Security | 2-162 |
| Streets, sidewalks and other public places | |
| Outdoor dining | |
| Compliance with federal, state and local laws and regulations | 102-272 |
| FEES (Generally) | |
| Administration (Chapter 2) | |
| City service fee | |
| Administrative regulations | 2-739 |
| Declaration as to conduct evidencing the use of a municipal service | 2-736 |
| Dedication of revenues | 2-745 |
| Definitions | 2-735 |
| Delinquent accounts; penalties | 2-741 |
| Effective date | 2-738 |
| Enforcement | 2-742 |
| Findings | 2-734 |
| Imposition of fee; rate | 2-737 |
| Investigations; power to audit | 2-740 |
| Protest; administrative decision; appeal | 2-743 |
| Severability | 2-746 |
| Withholding; reporting; payment | 2-744 |
| Fees for copying aerial maps | 2-1 |
| Alcoholic beverages | |
| Intoxicating liquor; private clubs | |
| Duty of state licensees to pay city license fees; prohibited liquor sales when city fee not paid | 6-131 |
| License; annual license fees imposed; partial fee for half year or less | 6-141, 6-142 |
| FEES (Generally) (Cont'd.) | |
| Receipts for city fees to be issued | 6-132 |
| Animals | |
| Dogs | |
| Impoundment | |
| Redemption of impounded dogs; redemption fees and boarding charges; record of offenses by dog owners | 10-163 |
| License | |
| Annual license required; application for license and payment of license fee; license tag | 10-141 |
| License fees; expiration of licenses | 10-142 |
| Bowling alleys and billiard, pool and bagatelle tables | |
| License fees | 18-141 |
| Businesses | |
| Licenses generally | |
| Application for and issuance of license; payment of license tax and filing tax fee; issuance of stamp or other evidence of license for coin-operated device | 18-33 |
| Expiration date; annual renewal; tax prorated upon start of business; minimum fee | 18-41 |
| Charitable solicitations | |
| Permit | 26-36 |
| City Center Business Improvement District | |
| Creation of fund; rate and manner of fees | 2-713 |
| Code of ordinances | |
| Certain ordinances not affected by Code | 1-17 |
| Filing fee for candidates for city offices | 1-13 |
| Courts | |
| Municipal court | |
| Witness fees | 38-44 |
| Fire department | |
| Incidents involving individuals who are not assessed for fire service fees; enforcement | 54-53 |
| Fire protection service charge | 54-181 |
| Going out of business sales, fire sales and similar sales | |
| License | |
| Duration of sale; license fee | 18-384 |
| Handgun dealers | |
| License | |
| Annual license for each fiscal year; license fee | 18-453 |
| Hotels, tourist homes and eating places | |
| License required; fee | 18-551 |
| Insurance companies and agents | |
| License required; fee | 18-581 |
| Manufactured homes and trailers | |
| Trailers and trailer camps | |
| Auto trailer camps | |
| Permit | 70-106 |

| | Section |
|---|---|
| FEES (Generally) (Cont'd.) | |
| Massage parlors | |
| Permit | |
| Annual fee and application | 18-753 |
| Municipal home rule | |
| City service fees, interest, penalties payable to city | 3-11(e) |
| Parking lots | |
| License | |
| Annual license for each fiscal year; license fee | 18-823 |
| Parks and recreation | |
| Public use of parks and recreational facilities | |
| Waiver of swimming pool fees at certain facilities | 82-124 |
| Pawnbrokers | |
| Annual license fee | 18-862 |
| Public records | |
| Fee for copies of records and documents supplied by city clerk to applicants | 2-333 |
| Sale of water | |
| Handling and disposition of fees | 58-44 |
| Inspection or license fee | 58-43 |
| Salvage yards | |
| Issuance of license; fee; term; renewal | 18-895 |
| Secondhand automotive accessories and parts | |
| License fee; not transferable or divisible | 18-931 |
| Solid waste | |
| Collection and disposal | |
| Rates and charges | |
| City to collect residential refuse fee | 98-72 |
| Stores | |
| License | |
| Application for license; filing fee | 18-993 |
| Licenses and fees in addition to others | 18-995 |
| Traffic ordinance | |
| Serious traffic offenses | |
| Proof of alcohol content; license suspension | |
| Fee for withdrawing blood sample and making urine test | 114-326 |
| Stopping, standing and parking | |
| On-street metered parking | |
| No different or additional rights granted by division; disposition of fees | 114-626 |
| Per-hour parking fees established | 114-622, 114-623 |
| FEMALE DOGS IN HEAT | |
| Animals | |
| Dogs; confinement of | 10-115 |
| FENCES, WALLS, HEDGES AND ENCLOSURES | |
| Animals | |
| Maintenance of pens, coops, other enclosures, places | 10-13 |
| Buildings and building regulations | |
| Fence regulations | |
| Barbed wire fences within the City of Charleston | 14-2(a) |
| Electrically charged fences | 14-2(b) |
| Salvage yards | |
| Requirements as to fences | 18-896 |
| Streets, sidewalks and other public places | |
| Excavations; retaining walls | 102-94 |
| FINANCE | |
| Accounts of auditor | 2-369 |
| Additional provisions as to special funds; establishment of escrows | 2-365 |
| Annual financial statement | 2-370 |
| Appropriations | |
| Budget | |
| Appropriations for other than spending units | 2-404 |
| Examination of requests for appropriations | 2-405 |
| Requests for appropriations | 2-403 |
| Code of ordinances | |
| Certain ordinances not affected by Code | 1-17 |
| Emergency management | |
| Emergency services department | |
| Appropriations and authority to accept services, gifts, grants and loans | 42-37 |
| Authority of city auditor upon application for order to pay out money when applicant is indebted to city | 2-373 |
| Beautification commission | |
| Expenses of members; finances | 2-534 |
| Bids. See herein: Contracts and Purchases | |
| Boards, committees and commissions | |
| Public art commission | |
| Finances and reporting | 2-684 |
| Bond issues | |
| Authorization for issuance | 2-441 |
| Sinking fund | 2-442 |
| Bonds for faithful performance of contracts and franchises | 2-378 |
| Budget | |
| Appropriations for other than spending units | 2-404 |
| Code of ordinances | |
| Certain ordinances not affected by Code | 1-17 |
| Definitions | 2-401 |
| Examination and approval of schedules; expenditures to accord | 2-411 |
| Examination of requests for appropriations | 2-405 |

| | Section |
|---|---|
| FINANCE (Cont'd.) | |
| Expenditure procedure | 2-414 |
| Expenditure schedules | 2-410 |
| Human rights | |
| Human rights commission | |
| Expenses | 62-42 |
| Management accounting | 2-409 |
| Parks and recreation | |
| Parks and recreation department | |
| Budget and expenses | 82-45 |
| Planning | |
| Municipal planning commission | |
| Power to employ help; budget; cooperation from other officials and employees | 90-35 |
| Powers and duties of finance director | 2-402 |
| Powers of director in administration of expenditures | 2-407 |
| Preparation of tentative budget and submittal to city council | 2-406 |
| Reports by spending units | 2-413 |
| Reports on revenue collections | 2-408 |
| Requests for appropriations | |
| Contents | 2-403(b) |
| Form | 2-403(c) |
| When, by and to whom submitted | 2-403(a) |
| Requisition for purchases | 2-415 |
| Reserve for emergencies as part of expenditure schedule | 2-412 |
| Cemeteries | |
| Spring Hill Cemetery | |
| Disposition of proceeds from sale of rights of interment and other transactions | 22-37 |
| City Center Business Improvement District | |
| Creation of fund; rate and manner of fees | 2-713 |
| City funds and provisions governing such funds | 2-363 |
| Civic center - auditorium board | |
| Finances; capital improvement fees | 2-554 |
| Code of ordinances | |
| Certain ordinances not affected by Code | 1-17 |
| Community development | |
| Neighborhood rehabilitation program | |
| Neighborhood rehabilitation fund; guaranteed loans | 30-63 |
| Rehabilitation fund commission | 30-64 |
| Compensation, salaries, etc. See: OFFICERS AND EMPLOYEES | |
| Contracts and purchases | |
| Administrative | |
| Change orders | 2-481 |
| Contract cancellation | 2-482 |
| Debarment procedures | 2-488 |
| Direct purchases | 2-486 |
| Grounds for debarment | 2-487 |
| Impossible to bid list | 2-485 |
| Protests | 2-483 |

| | Section |
|---|---|
| FINANCE (Cont'd.) | |
| Use of other competitively-procured government contracts | 2-484 |
| Bids | |
| Action upon bids | 2-480 |
| Advertising for bids | |
| Contents of | 2-472 |
| Publication of advertisement | 2-471 |
| When required | 2-471 |
| Award of contract | 2-480 |
| Contracts to be in writing | 2-471 |
| Deposits by bidders | 2-475 |
| Disposition of deposits | 2-477 |
| When bidder's deposit forfeited | 2-476 |
| Forfeiting deposit, when | 2-476 |
| Letting of contracts | 2-471 |
| Opening bids | 2-478 |
| Time for | 2-471 |
| Rejecting bids; authority | 2-480 |
| Rejection of bids | 2-479 |
| Submission | 2-474 |
| City manager to purchase all commodities and services | 2-460 |
| Definitions | 2-459 |
| Federally funded projects | |
| Procurement standards | 2-463 |
| Procurement standards for federally funded projects | 2-463 |
| Supplies, materials | |
| Purchase of | 2-461 |
| West Virginia Jobs Act responsibilities for public improvement construction projects | 2-464 |
| Definitions | |
| Budget | 2-401 |
| Disbursement of funds to chief of police | 2-364 |
| Disbursement of general fund; contracts in excess of estimated revenue | 2-368 |
| Fire prevention and protection | |
| Fire department | |
| Firemen's pension and relief fund; trustees | 54-48 |
| Fire protection service charge | 54-181 et seq. |
| See: FIRE PREVENTION AND PROTECTION | |
| Fiscal reports, accounts to conform to fiscal year; "fiscal year" defined | 2-361 |
| Law enforcement | |
| Police department | |
| Policemen's pension and relief fund; trustees | 66-36 |
| Loss of order upon city treasurer | 2-376 |
| Money to be deposited in banks designated as city depository, and receipts for deposits | 2-366 |
| Municipal building commission | |
| Financial obligation | 2-654 |
| Municipal home rule | 3-1 et seq. |
| See: MUNICIPAL HOME RULE | |
| Order register | 2-375 |

| | Section |
|---|---|
| FINANCE (Cont'd.) | |
| Orders on the city treasurer | 2-372 |
| Parks and recreation | |
| Parks and recreation department | |
| Budget and expenses | 82-45 |
| Planning | |
| Municipal planning commission | 90-31 et seq. |
| See: PLANNING | |
| Purposes for which expenditures may be made from the several funds of the city | 2-367 |
| Solid waste | |
| Collection and disposal | |
| Rates and charges | 98-71 et seq. |
| See: SOLID WASTE | |
| Recyclables | |
| Revenue from recycling | 98-126 |
| Splitting orders; sufficient funds in treasury | 2-374 |
| Supervision of finances by finance director | 2-362 |
| Taxation; generally | 110-1 et seq. |
| See: TAXATION | |
| Utilities; generally | 118-31 et seq. |
| See: UTILITIES | |
| Vouchers | 2-371 |
| Workers' compensation | 2-377 |
| FINES, FORFEITURES AND OTHER PENALTIES | |
| Abandoned vehicles and junk | |
| Penalties | 50-90 |
| Animals | |
| City declared bird sanctuary; trapping, hunting; riddance of nuisance birds; penalty | 10-12 |
| Buildings and building regulations | |
| Housing code; violations and penalty | 14-73 |
| Security against unauthorized entry | |
| Penalties for violations | 14-181 |
| Businesses | |
| Licenses generally | |
| Percentage penalties when business transacted without a license | 18-44 |
| Code of ordinances | |
| Effect of repeal of ordinances | 1-4 |
| General penalty; continuing violations | 1-8 |
| Courts | 38-31 et seq. |
| See: COURTS | |
| Emergency services | |
| Alarm systems | |
| False alarms; penalties | 46-1(c) |
| Finance | |
| Contracts and purchases | |
| Bids | |
| When bidder's deposit forfeited | 2-476 |
| Fire prevention and protection | |
| Fire prevention code | |
| Violations and penalties; recourse of city to correct violations | 54-146 |
| FINES, FORFEITURES AND OTHER PENALTIES (Cont'd.) | |
| Fire protection service charge | |
| Penalty for default in payment; charge constitutes debt due city; recourse of city for collection | 54-183 |
| Human rights | |
| Fair Housing Act | |
| Penalty | 62-183 |
| Law enforcement | |
| City jail | |
| Payment of fine; discharge of prisoners | 66-152 |
| Penalties | 66-151 |
| Manufactured homes and trailers | |
| Trailers and trailer camps | |
| Auto trailer camps | |
| Violations and penalties | 70-52 |
| Nuisances | |
| Additional nuisances; penalties | 50-34 |
| Offenses; generally | 78-1 et seq. |
| See: OFFENSES | |
| Officers and employees | |
| Standards of conduct of city officers and employees for grants; penalties | 2-138 |
| Parks and recreation | |
| Public use of parks and recreational facilities | |
| Hours of public access to city parks; penalties | 82-122 |
| Salvage yards | |
| Violations and penalties; injunctive relief to abate nuisances | 18-892 |
| Solid waste | |
| Collection and disposal | |
| Transportation and disposal of tires | |
| Penalties | 98-172 |
| Violation and penalty | 98-42 |
| Street vendors | |
| Penalty | 18-1042 |
| Streets, sidewalks and other public places | 102-211 et seq. |
| See: STREETS, SIDEWALKS AND OTHER PUBLIC PLACES | |
| Taxation | |
| Admissions tax | |
| Unpaid tax a lien; penalty | 110-185 |
| Business and occupation tax | |
| Tax collection | |
| Interest and penalties | 110-145 |
| Hotel occupancy tax | |
| Violations and penalties | 110-224, 110-225 |
| Unlawful release of tax information; penalties | 110-1 |
| Traffic ordinance | |
| Administration and enforcement | |
| Violations | |
| Bond for double amount of fine | 114-83 |

Section

FINES, FORFEITURES AND OTHER PENALTIES (Cont'd.)
Receipts for bonds posted or fines paid ..... 114-86, 114-87
Penalties ..... 114-3
Tree services
Penalties ..... 18-1162
Vehicles for hire
Taxicabs; penalties ..... 122-32

FIRE PREVENTION AND PROTECTION
Buildings and building regulations
Building code
Construction with respect to fire prevention code and with standards for gas piping and appliance venting ..... 14-36
Fence regulations
Barbed wire fences within the City of Charleston ..... 14-2(a)
Housing code
Administration and enforcement
Duties of chief of fire prevention bureau ..... 14-93
Definitions
Fire department
Emergency medical services division 54-71
Vacation, other leave, duty hours, and calculation of overtime pay 54-101
Fire protection service charge ..... 54-181(a)
Duty of spectators, and authority of firefighters and police, at scene of fire ..... 54-3
Emergency medical services
False request for emergency medical services ..... 54-4
Fire department
Contributions toward firefighter/EMS uniforms ..... 54-50
Emergency medical services division. See herein that subheading
Operations manuals
Emergency medical services division operations manual ..... 54-45(b)
Workers' compensation; pay of firefighters/EMS injured in performance of duty ..... 54-51
Emergency services
Alarm systems ..... 46-1
False request for emergency medical services ..... 54-4
Fire department
Chain of command; obedience to orders 54-44
Chief of the fire department; fire chief; powers ..... 54-43
Composition and organization of department ..... 54-41
Contributions toward firefighter/EMS uniforms ..... 54-50

Section

FIRE PREVENTION AND PROTECTION (Cont'd.)
Demolition of structures to prevent spread of fire ..... 54-52
Duties of department ..... 54-42
Emergency medical services division
Definitions ..... 54-71
Promotions ..... 54-73
Public policy declared; purpose of emergency medical services division ..... 54-72
Schedule of charges for ambulance services ..... 54-74
Uncollectible accounts for ambulance-related services; authority of city collector ..... 54-75
Firemen's civil service commission .... 54-46
Firemen's pension and relief fund; trustees ..... 54-48
Immunization ..... 54-49
Operations manuals
Emergency medical services division operations manual ..... 54-45(b)
Fire department operations manual 54-45(a)
Training of original appointees ..... 54-47
Unauthorized use of fire department property ..... 54-2
Use of equipment and materials in motor vehicle emergencies and incidents involving individuals who are not assessed for fire service fees; enforcement ..... 54-53
Vacation, other leave, duty hours, and calculation of overtime pay
Annual vacation leave ..... 54-102
Daily and weekly duty hours; pay periods; calculation of overtime pay; trading assigned shifts ... 54-106
Definitions ..... 54-101
Funeral leave with pay ..... 54-104
Legal holidays ..... 54-105
Sick leave ..... 54-103
Uniformed fire sick leave pool ..... 54-107
Workers' compensation; pay of firefighters/EMS injured in performance of duty ..... 54-51
Fire prevention code
Adoption and incorporation of relevant codes ..... 54-142
Application, exemptions, inspections .. 54-143
Authorized orders under the Charleston Fire Prevention Code; appeals ... 54-144
Fire prevention bureau members, responsibilities, and authority ... 54-145
Policies ..... 54-147
Purpose; adopted; applicability; short title ..... 54-141
Violations and penalties; recourse of city to correct violations ..... 54-146

| | Section |
|---|---|
| FIRE PREVENTION AND PROTECTION (Cont'd.) | |
| Fire protection service charge | |
| Administration by city collector | 54-181(d) |
| Appeal procedure | 54-181(g) |
| Assessment of fire protection fees | 54-181(f) |
| Certain delinquent charges to be excused as uncollectible | 54-185 |
| Continuation, maintenance and improvement of fire service | 54-181(b) |
| Definitions | 54-181(a) |
| Exemptions | 54-184 |
| Legislative intent | 54-181(c) |
| Penalty for default in payment; charge constitutes debt due city; recourse of city for collection | 54-183 |
| Semiannual payment of charge | 54-182 |
| Use of funds for fire protection only | 54-181(e) |
| Fireworks; sale, possession, storage and discharge | |
| Consumer fireworks; regulations, prohibited actions, and exceptions | 54-191 |
| Enforcement | 54-192 |
| Generally | 54-190 |
| Manufactured homes and trailers | |
| Trailers and trailer camps | |
| Auto trailer camps | |
| Fire protection | 70-62 |
| Offenses | |
| Offenses involving public safety | |
| Skylights and fire escapes | 78-134 |
| Parking lots | |
| Fire extinguishers | 18-796 |
| Regulations for blasting operations | 54-1 |
| Solid waste | |
| Collection and disposal | |
| Open burning of refuse or disposal of refuse in domestic incinerators prohibited | 98-51 |
| Permit for burning | 98-52 |
| Streets, sidewalks and other public places | |
| Gasoline or oily substance on pavement | 102-8 |
| Use of sidewalk for handling fuel or goods | 102-5 |
| Traffic ordinance | 114-51 et seq. |
| See: TRAFFIC ORDINANCE | |
| Unauthorized use of fire department property | 54-2 |
| FIRE SALES. See: GOING OUT OF BUSINESS SALES, FIRE SALES AND SIMILAR SALES | |
| FIREARMS AND WEAPONS | |
| Handgun dealers, license | 18-451 et seq. |
| See: HANDGUN DEALERS | |
| Offenses | |
| Offenses involving public safety | |
| Weapons | 78-161 et seq. |
| See: OFFENSES | |
| FIREARMS AND WEAPONS (Cont'd.) | |
| Officers and employees | |
| Bond required of those authorized to carry firearms | 2-134 |
| FISCAL YEAR | |
| Definitions and rules of construction | 1-2 |
| Finance | |
| Fiscal reports, accounts to conform to fiscal year; "fiscal year" defined | 2-361 |
| Handgun dealers | |
| License | |
| Annual license for each fiscal year; license fee | 18-453 |
| Parking lots | |
| License | |
| Annual license for each fiscal year; license fee | 18-823 |
| FLAMMABLES. See: COMBUSTIBLES AND INFLAMMABLES | |
| FLOODS | |
| Utilities | |
| Water service | |
| Unlawful waste, flooding or diversion of water | 118-34 |
| FOOD AND FOOD SERVICES | |
| Alcoholic beverages | 6-1 et seq. |
| See: ALCOHOLIC BEVERAGES | |
| Businesses; generally | 18-31 et seq. |
| See: BUSINESSES | |
| Carnivals, circuses and shows | |
| Filing with city collector of list of all rides and concessions; bond for municipal taxes | 18-173 |
| Health and sanitation | |
| Fruit vendors' refuse containers | 58-6 |
| Public exposure of food for sale | 58-4 |
| Storage or display of food close to ground | 58-5 |
| Hotels, tourist homes and eating places | 18-551 et seq. |
| See: HOTELS, TOURIST HOMES AND EATING PLACES | |
| Outdoor dining | 102-271 et seq. |
| See: STREETS, SIDEWALKS AND OTHER PUBLIC PLACES | |
| Solid waste | |
| Refuse at outdoor eating establishments | 98-7 |
| Street vendors; generally | 18-1031 et seq. |
| See: STREET VENDORS | |
| Streets, sidewalks and other public places | |
| Area where street sale of articles and/or food prohibited | 102-12 |
| Prohibited material in streets or public places; coal; refuse from fruit stands | 102-7 |
| FORFEITURES. See: FINES, FORFEITURES AND OTHER PENALTIES | |

| | Section |
|---|---|
| FOWL. See: ANIMALS | |
| FRANCHISES | |
| Code of ordinances | |
| Certain ordinances not affected by Code | 1-17 |
| Finance | |
| Bonds for faithful performance of contracts and franchises | 2-378 |
| Railroads | |
| Franchise to occupy streets | 94-1 |
| Streets, sidewalks and other public places | |
| Poles, wires and antennas | |
| Franchise to set or place wires, poles, other paraphernalia, on streets; use of wires | 102-212 |
| FRAUD. See: FALSE REPRESENTATIONS | |
| FRUIT STANDS (Generally). See: FOOD AND FOOD SERVICES | |
| FUEL. See: GAS | |
| FUNDS (Generally). See: FINANCE | |
| FUNERAL PROCESSIONS | |
| Provisions re | 114-17 |
| **G** | |
| GAMBLING | |
| Bowling alleys and billiard, pool and bagatelle tables | |
| Gambling; intoxicating liquor prohibited | 18-142 |
| Offenses | |
| Offenses involving public morals | 78-341 et seq. |
| See: OFFENSES | |
| GARBAGE. See: SOLID WASTE | |
| GAS | |
| Buildings and building regulations | |
| Building code | |
| Construction with respect to fire prevention code and with standards for gas piping and appliance venting | 14-36 |
| Fire prevention and protection | 54-1 et seq. |
| Streets, sidewalks and other public places | |
| Gasoline or oily substance on pavement | 102-8 |
| Use of sidewalk for handling fuel or goods | 102-5 |
| GAS CODE | |
| Fuel gas code adoption of state building code | 14-33 |
| See also: BUILDINGS AND BUILDING REGULATIONS | |
| GENDER (Of Code Words) | |
| Definitions and rules of construction | 1-2 |
| GENERALLY | |
| Definitions and rules of construction | 1-2 |
| GIFTS | |
| Emergency services department | |
| Appropriations and authority to accept services, gifts, grants and loans | 42-37 |
| GOING OUT OF BUSINESS SALES, FIRE SALES AND SIMILAR SALES | |
| Definitions | 18-351 |
| Findings of city council | 18-352 |
| License | |
| Application requirements | 18-382 |
| Branch stores and warehouses | 18-388 |
| Closing-out business sales at auction | |
| Application | 18-385(a) |
| Cappers, boosters and shillers; prizes | 18-385(e) |
| Endorsement of license; increased license fee | 18-385(b) |
| Labeling of articles to be sold | 18-385(c) |
| Misrepresentation | 18-385(d) |
| Supervision of sale | 18-385(f) |
| Copy of application, inventory and license to be posted; license to be referred to in advertisements | 18-390 |
| Duration of sale; license fee | 18-384 |
| Investigation of application; grounds for denial of license | 18-383 |
| Notice of denial, refusal or revocation of license; judicial review | 18-387 |
| Required; exceptions | 18-381 |
| Revocation of license; grounds | 18-386 |
| Substitution, addition and commingling of goods voids license; change of time or place of sale; certain purchases prohibited | 18-389 |
| Opening of a similar business within one year of sale prohibited | 18-353 |
| Records | 18-354 |
| GOVERNING BODY | |
| City council | 2-61 et seq. |
| See: CITY COUNCIL | |
| GOVERNMENT | |
| Kanawha Valley Regional Transportation Authority | |
| Board membership open to representatives of other regional governmental bodies | 2-626 |
| Initial participating governments | 2-622 |
| Streets, sidewalks and other public places | |
| Certain acts constitute offenses in public parks and squares; government property declared public parks | 102-13 |
| Taxation | |
| Hotel occupancy tax | |
| Tax imposed; rate; exemptions | |
| Exemptions for government agencies or employees | 110-253 |
| GOVERNOR | |
| Emergency management | |

| | Section |
|---|---|
| GOVERNOR (Cont'd.) | |
| Civil emergencies | |
| Authority to request state police and military forces; when proclamation of martial law may be recommended to governor | 42-86 |
| GRADES AND GRADING | |
| Code of ordinances | |
| Datum line for grades of streets established | 1-12 |
| Streets, sidewalks and other public places | |
| Construction and maintenance of sidewalks, curbs and gutters | |
| Grades and widths | 102-53 |
| GRAFFITI | |
| Definitions | 50-53 |
| Notice to owner or possessor of property | 50-56 |
| Permitting graffiti to remain prohibited | 50-55 |
| Public nuisance declaration | 50-52 |
| Purpose | 50-54 |
| Removal | 50-57 |
| Short title | 50-51 |
| GRANTS | |
| Emergency management | |
| Emergency services department | |
| Appropriations and authority to accept services, gifts, grants and loans | 42-37 |
| Officers and employees | |
| Standards of conduct of city officers and employees for grants; penalties | 2-138 |
| GRAVEYARDS. See: CEMETERIES | |
| GUNS. See: FIREARMS AND WEAPONS; See also: HANDGUN DEALERS | |
| GUTTERS | |
| Streets, sidewalks and other public places | |
| Construction and maintenance of sidewalks, curbs and gutters | 102-51 et seq. |
| See: STREETS, SIDEWALKS AND OTHER PUBLIC PLACES | |

**H**

| | |
|---|---|
| HANDBILLS | |
| Offenses | |
| Advertisements, handbills, signs | 78-3 |
| Offenses involving public safety | |
| Aircraft regulations | |
| Releasing handbills, other printed materials | 78-132(d) |
| HANDGUN DEALERS | |
| License | |
| Annual license for each fiscal year; license fee | 18-453 |
| Application for license | 18-452 |
| HANDGUN DEALERS (Cont'd.) | |
| Required | 18-451 |
| Revocation | 18-454 |
| HANDICAPPED | |
| Solid waste | |
| Collection and disposal | |
| Curbside collection | |
| Location and time for placement | 98-101 |
| Traffic ordinance | |
| Pedestrians; blind pedestrians | 114-669 |
| HARASSMENT | |
| Human rights | |
| Discriminatory practices | 62-81 et seq. |
| See: HUMAN RIGHTS | |
| HATE CRIMES | |
| Offenses | 78-10 |
| HAWKERS AND PEDDLERS | |
| Definitions | 18-491 |
| Exemptions; exemption receipt | 18-492 |
| HEALTH AND SANITATION | |
| Animals | 10-1 et seq. |
| See: ANIMALS | |
| Buildings and building regulations; generally | 14-1 et seq. |
| See: BUILDINGS AND BUILDING REGULATIONS | |
| Cemeteries; generally | 22-31 et seq. |
| See: CEMETERIES | |
| Community development; generally | 30-1 et seq. |
| See: COMMUNITY DEVELOPMENT | |
| Community health action plan | 58-61 et seq. |
| See: COMMUNITY HEALTH ACTION PLAN | |
| Compliance with rules and regulations of state division of health | 58-1 |
| Conversion therapy illegal | 58-51 et seq. |
| See: CONVERSION THERAPY | |
| Definitions and rules of construction | |
| Health commissioner, health officer | 1-2 |
| Health department, department of health | 1-2 |
| Environment; generally | 50-1 et seq. |
| See: ENVIRONMENT | |
| Fire prevention and protection; generally | 54-1 et seq. |
| See: FIRE PREVENTION AND PROTECTION | |
| Fruit vendors' refuse containers | 58-6 |
| Inspection of and entry within buildings and grounds by health commissioner and his representatives | 58-3 |
| Laundries regulated; permit required | 58-7 |
| Manufactured homes and trailers | |
| Trailers and trailer camps | |
| Auto trailer camps | |
| Sanitation | 70-56 |
| Massage parlors; generally | 18-721 et seq. |
| See: MASSAGE PARLORS | |

Section

HEALTH AND SANITATION (Cont'd.)
Municipal home rule . . . . . 3-26 et seq.
See: MUNICIPAL HOME RULE
Nuisances; generally . . . . . 50-31 et seq.
See: NUISANCES
Offenses involving public safety . . . . . 78-131 et seq.
See: OFFENSES
Police powers of health commissioner and other health officers and employees. 58-2
Public exposure of food for sale . . . . . 58-4
Sale of water . . . . . 58-41 et seq.
See: SALE OF WATER
Solid waste; generally . . . . . 98-1 et seq.
See: SOLID WASTE
Storage or display of food close to ground 58-5
Streets, sidewalks and other public places; generally . . . . . 102-1 et seq.
See: STREETS, SIDEWALKS AND OTHER PUBLIC PLACES
Traffic ordinance
Stopping, standing and parking
Hazardous or congested places . . . . . 114-568
Vehicle operation
Safety equipment and requirements for motorcyclists and motorcycles . . . . . 114-364
Safety zones . . . . . 114-373
Utilities; generally . . . . . 118-31 et seq.
See: UTILITIES

HEALTH COMMISSIONER, HEALTH OFFICER
Animals
Muzzling dogs under proclamation by health commissioner . . . . . 10-119
Barbers and beauticians
Duty of health commissioner . . . . . 18-111
Buildings and building regulations
Housing code
Administration and enforcement
Duties of chief of fire prevention bureau . . . . . 14-93
Definitions and rules of construction
Health commissioner . . . . . 1-2
Health officer . . . . . 1-2
Health and sanitation
Inspection of and entry within buildings and grounds by health commissioner and his representatives 58-3
Police powers of health commissioner and other health officers and employees . . . . . 58-2

HEALTH DEPARTMENT
Definitions and rules of construction
Health department, department of health . . . . . 1-2

HEARINGS. See specific subjects as indexed

HEDGES. See: FENCES, WALLS, HEDGES AND ENCLOSURES

Section

HIGHWAYS. See: STREETS, SIDEWALKS AND OTHER PUBLIC PLACES

HISTORY NOTES
Code of ordinances
Catchlines of sections; history notes; references . . . . . 1-3

HITCHHIKING
Traffic ordinance
Pedestrians . . . . . 114-668

HOLIDAYS
Fire prevention and protection
Fire department
Vacation, other leave, duty hours, and calculation of overtime pay
Legal holidays . . . . . 54-105
Law enforcement
Police department
Duty hours, holidays and other leave 66-61 et seq.
See: LAW ENFORCEMENT
Personnel management and practices
Non-uniformed personnel
Personnel rules and administrative policies established . . . . . 86-106

HOME SOLICITATION SALES
Definitions . . . . . 18-521
License for home solicitation sales; registration . . . . . 18-522

HOTELS, TOURIST HOMES AND EATING PLACES
Hotels and taverns . . . . . 18-552
License required; fee . . . . . 18-551
Offenses
Offenses involving public morals
Gambling
Permitting gambling at hotels, similar establishments; presumption against innkeeper . . . . . 78-346
Taxation
Hotel occupancy tax . . . . . 110-221 et seq.
See: TAXATION

HOUSEHOLD APPLIANCES
Abandoned vehicles and junk; provisions re. . . . . 50-85

HOUSING
Buildings and building regulations . . . . . 14-1 et seq.
See: BUILDINGS AND BUILDING REGULATIONS
Community development; generally . . . . . 30-1 et seq.
See: COMMUNITY DEVELOPMENT
Fire prevention and protection; generally 54-1 et seq.
See: FIRE PREVENTION AND PROTECTION
Hotels, tourist homes and eating places . . 18-551 et seq.
See: HOTELS, TOURIST HOMES AND EATING PLACES

| | Section |
|---|---|
| HOUSING (Cont'd.) | |
| Human rights | |
| Fair Housing Act | 62-181 et seq. |
| See: HUMAN RIGHTS | |
| Manufactured homes and trailers; generally | 70-51 et seq. |
| See: MANUFACTURED HOMES AND TRAILERS | |
| HUMAN RIGHTS | |
| Declaration of policy | 62-2 |
| Definitions | 62-3 |
| Discriminatory practices | |
| Complaint, hearing procedures; issuance of cease and desist order | 62-82 |
| Enforcement of cease and desist order | 62-83 |
| Judicial review | 62-84 |
| Unlawful discriminatory practices | 62-81 |
| Fair Housing Act | |
| "The West Virginia Fair Housing Act." | |
| Adoption by reference of W. Va. Code, §§ 5-11a, | 62-181 |
| Amendments to W. Va. Code, § 5-11A, | 62-182 |
| Penalty | 62-183 |
| Hate crimes | 78-10 |
| Human rights commission | |
| Assistance to commission; legal and investigative services | 62-44 |
| Composition; appointment; terms of members; expenses | 62-42 |
| Personnel; chair; vice-chair; secretary; liaison; meetings; quorum | 62-43 |
| Powers and objectives | 62-41 |
| Powers; functions; services | 62-45 |
| Personnel management and practices | 86-1 et seq. |
| See: PERSONNEL | |
| Title | 62-1 |
| HUNTING | |
| Animals | |
| City declared bird sanctuary; penalty | 10-12 |
| Urban hunting | 10-171 et seq. |
| See: ANIMALS | |
| HYPODERMIC SYRINGES, NEEDLES | |
| Offenses involving public morals | |
| Drugs and related offenses | |
| Distribution of hypodermic needles and syringes | |
| Compliance with state law and regulations | 78-382 |
| Council approval of application for state license to offer syringe services program | 78-384 |
| Distribution of hypodermic needles; state certification required | 78-381 |
| Penalty | 78-383 |

**I**

| | Section |
|---|---|
| ICE | |
| Streets, sidewalks and other public places | |
| Removal of snow and ice | 102-11 |
| IDENTIFICATION | |
| Coin-operated machines and devices | |
| License | |
| Application; stamp and owner identification on machine | 18-251 |
| Emergency management | |
| Emergency services department | |
| Prohibited use of personnel identification | 42-42 |
| Offenses | |
| Offenses involving public peace and order | |
| Sound trucks | |
| Noncommercial use of sound trucks | |
| Registration and identification | 78-252(c) |
| Tree services | |
| Identification card | 18-1164 |
| IMMUNIZATIONS | |
| Fire prevention and protection | |
| Fire department | 54-49 |
| Law enforcement | |
| Police department | |
| Duty hours, holidays and other leave | 66-67 |
| IMPERSONATION. See: FALSE REPRESENTATIONS | |
| IMPOUNDMENT | |
| Animals | 10-51 et seq. |
| See: animals | |
| Coin-operated machines and devices | |
| License | |
| Proprietor responsibility; liability; impounding and sale | 18-252 |
| Traffic ordinance | |
| Administration and enforcement | |
| Vehicle impoundment and immobilization | 114-121 et seq. |
| See: TRAFFIC ORDINANCE | |
| Stopping, standing and parking | |
| Impounding vehicles | 114-552 |
| IMPROVEMENTS. See: PUBLIC WORKS AND IMPROVEMENTS | |
| INCLUDES | |
| Definitions and rules of construction | 1-2 |
| INDEBTEDNESS (Generally). See: BONDS; See also: FINANCE | |
| INDECENCY AND OBSCENITY | |
| Massage parlors; generally | 18-721 et seq. |
| See: MASSAGE PARLORS | |
| Offenses involving public morals | 78-291 et seq. |
| See: OFFENSES | |

Section

INFIRMED. See: HANDICAPPED

INFLAMMABLES. See: COMBUSTIBLES AND INFLAMMABLES

INJURY. See: DAMAGE, INJURY, ETC.

INSPECTIONS, INSPECTORS
- Buildings and building regulations
  - Inspections; right of entry ..... 14-1
  - Security against unauthorized entry
    - Inspection of exterior openings by chief of police; notice to and duty of responsible persons.... 14-185
- City inspector. See that subject
- Fire prevention and protection
  - Fire prevention code
    - Application, exemptions, inspections 54-143
- Health and sanitation
  - Inspection of and entry within buildings and grounds by health commissioner and his representatives 58-3
- Inspections of rental property ..... 18-1180 et seq.
  - See: RESIDENTIAL RENTAL PROPERTIES
- Law enforcement
  - Police department
    - Police manual adopted; where filed and available for inspection; violations; short title..... 66-33
- Manufactured homes and trailers
  - Trailers and trailer camps
    - Auto trailer camps
      - Permit; reinspections..... 70-107
- Massage parlors
  - Inspections generally..... 18-723
- Nuisances..... 50-36
- Officers and employees
  - Right of entry for purposes of inspection ..... 2-139
- Sale of water
  - Inspection and permit..... 58-42
  - Inspection or license fee ..... 58-43
- Secondhand automotive accessories and parts
  - Records open for inspection..... 18-934
- Streets, sidewalks and other public places
  - Stormwater pollution prevention
    - Construction site erosion and sediment control
      - Inspection of construction site ... 102-318
    - Illicit discharge detection and elimination
      - Access to facilities for inspection, monitoring, sampling, measuring, testing or copying records ..... 102-298
- Taxation
  - Public utilities tax
    - Maintenance and inspection of records 110-315

INSPECTIONS, INSPECTORS (Cont'd.)
- Traffic ordinance
  - Vehicle operation
    - State vehicle inspection certificate required ..... 114-363

INSURANCE
- Code of ordinances
  - Code imposes no liability for acts or omissions pursuant thereto; when city solicitor to defend city officers and employees; liability insurance 1-10
- Officer and employee benefits
  - End of insurance subsidy for retirees who were hired on or after July 1, 2020 ..... 2-164

INSURANCE COMPANIES AND AGENTS
- License required; fee..... 18-581

INTERFERENCE (Generally). See: OBSTRUCTIONS

INTERSECTIONS
- Traffic ordinance ..... 114-380 et seq.
  - See: TRAFFIC ORDINANCE

INTIMIDATION
- Courts
  - Municipal court
    - Intimidation of judicial officers, jurors and witnesses; obstructing administration of justice; penalty ..... 38-50

INTOXICATING LIQUOR, ETC. See: ALCOHOLIC BEVERAGES

INTRUSION DETECTION DEVICES
- Buildings and building regulations
  - Security against unauthorized entry
    - Appeal from intrusion detection device requirements..... 14-188
    - Generally ..... 14-187

INVESTIGATIONS
- Charitable solicitations
  - Permit
    - Investigation of permit application; issuance or denial of permit; appeals ..... 26-33
- Going out of business sales, fire sales and similar sales
  - License
    - Investigation of application; grounds for denial of license..... 18-383
- Massage parlors
  - Permit
    - Investigations prior to issuance .... 18-754
- Nuisances..... 50-36
- Taxation
  - Admissions tax
    - Investigation by city collector ..... 110-188

Section

INVESTIGATIONS (Cont'd.)
Business and occupation tax
Payments, returns and records
Records, statements and investigations ..... 110-84

IRRIGATION
Utilities; sewers and sewage disposal
Sewage disposal by broad irrigation, subsoil irrigation..... 118-77

**J**

JUDGES
Courts; generally ..... 38-31 et seq.
See: COURTS

JUDICIAL REVIEW. See: COURTS

JUNK DEALERS
Abandoned vehicles and junk..... 50-81 et seq.
See: ABANDONED VEHICLES AND JUNK
Definitions ..... 18-661
License
Business not to engage agent ineligible for license ..... 18-685
Certification of agents..... 18-683
License not transferable; former convictions ..... 18-684
Officers' or agents' residence..... 18-682
Required; resident license ..... 18-681

JURIES
Courts
Municipal court..... 38-81 et seq.
See: COURTS

JURISDICTION
Code of ordinances..... 1-5

JUVENILES. See: MINORS

**K**

KANAWHA, COUNTY OF. See: COUNTY

KANAWHA VALLEY REGIONAL TRANSPORTATION AUTHORITY
Availability to authority of services of planning commission ..... 2-627
Board membership open to representatives of other regional governmental bodies..... 2-626
City not obligated financially except by approval of city council ..... 2-628
Corporate status; powers and duties ..... 2-623
Created; statutory basis; name ..... 2-621
Initial participating governments..... 2-622
Number and distribution of votes of city members..... 2-625
Number of board members; appointment of city and county members ..... 2-624

Section

**L**

LAND REUSE AGENCY
Board meetings and activities
Annual report ..... 65-23
Public records, public access, and ethics 65-21
Regular and special meetings..... 65-20
Resident input..... 64-22
Creation
Board of directors..... 65-3
Establishment and divisions..... 65-1
Officers of the board ..... 65-4
Official filing with secretary of state .. 65-6
Public input ..... 65-5
Purpose ..... 65-2
Powers and duties
Acquiring property through tax sales.. 65-15
Conservation division ..... 65-13
Divisions of CLRA ..... 65-11
General ..... 65-10
Priorities and management..... 65-14
Redevelopment division ..... 65-12

LARCENY
Offenses
Offenses involving property rights
Larceny and related offenses ..... 78-81 et seq.
See: OFFENSES

LAW ENFORCEMENT
City jail
City officers and employees not to permit escapes..... 66-154
Escape of prisoners generally ..... 66-153
Giving prohibited articles to prisoners. 66-155
Payment of fine; discharge of prisoners 66-152
Penalties ..... 66-151
Courts; generally ..... 38-31 et seq.
See: COURTS
Emergency services
Alarm systems..... 46-1
Offenses; generally ..... 78-1 et seq.
See: OFFENSES
Police department
Buildings and building regulations
Security against unauthorized entry
Inspection of exterior openings by chief of police; notice to and duty of responsible persons . 14-185
Chain of command; obedience to orders 66-32
Chief of police ..... 66-31
Citizens commission of the Charleston mounted police patrol
Created..... 66-111
Declaration of council..... 66-114
General purpose..... 66-113
Membership..... 66-112
Contribution toward police officers' uniforms ..... 66-38

| | Section |
|---|---|
| LAW ENFORCEMENT (Cont'd.) | |
| Duty hours, holidays and other leave | |
| Daily and weekly duty hours | |
| Eight-hour shift; overtime pay | 66-61 |
| Twelve-hour shift; overtime pay | 66-62 |
| Funeral leave with pay | 66-66 |
| Immunizations | 66-67 |
| Legal holidays | 66-64 |
| Sick leave | 66-65 |
| Vacation leave | 66-63 |
| Finance | |
| Disbursement of funds to chief of police | 2-364 |
| Fire prevention and protection | |
| Duty of spectators, and authority of firefighters and police, at scene of fire | 54-3 |
| Offenses | |
| Offenses involving public peace and order | |
| Sound trucks | |
| Police department activities excluded | 78-254 |
| Offenses involving public safety | |
| Weapons | |
| Disposition of firearms, dangerous weapons in possession of police department | 78-161 |
| Police manual adopted; where filed and available for inspection; violations; short title | 66-33 |
| Policemen's civil service commission | 66-35 |
| Policemen's pension and relief fund; trustees | 66-36 |
| Sale of abandoned property recovered by police | 66-39 |
| School crossing guards | |
| Authorized to be appointed by mayor, for assignment by chief of police | 66-91 |
| Powers and duties; violations; training | 66-93 |
| Rules and regulations; compensation and hours of duty | 66-92 |
| Uniforms and equipment | 66-94 |
| Traffic ordinance | 114-1 et seq. |
| See: TRAFFIC ORDINANCE | |
| Updating manual provisions | 66-34 |
| Workers' compensation; pay of police officers injured in performance of duty | 66-37 |
| LAWS | |
| Abandoned vehicles and junk | |
| Legislative findings; statement of policy | 50-81 |
| Buildings and building regulations | |
| Building code | |
| Conflicts of law; construction | 14-34 |
| Courts; generally | 38-31 et seq. |
| LAWS (Cont'd.) | |
| Emergency management | |
| Civil emergencies | |
| Authority to request state police and military forces; when proclamation of martial law may be recommended to governor | 42-86 |
| Fire prevention and protection | |
| Fire protection service charge | |
| Definitions; continuation, maintenance and improvement of fire service; legislative intent; city collector to administer regulations; use of funds; assessment of fees | 54-181 |
| Law enforcement | 66-31 et seq. |
| See: LAW ENFORCEMENT | |
| Offenses; generally | 78-1 et seq. |
| Traffic ordinance | |
| Bicycles | |
| Traffic laws apply to persons riding bicycles | 114-702 |
| State laws adopted by reference | 114-6 |
| Vehicle equipment | |
| Unsafe and improperly equipped vehicles; all vehicles to be equipped as provided by state law | 114-811 |
| LEASES | |
| City manager | |
| Supervision and care of grounds and buildings; leases; improvements | 2-182 |
| Nuisances | |
| Liability of owner for condition of leased premises | 50-35 |
| LEAVE. See specific subjects as indexed | |
| LIABILITY | |
| Buildings and building regulations | |
| Housing code; administration and enforcement | |
| Violations | |
| Nonliability of city employees | 14-113 |
| Code of ordinances | |
| Code imposes no liability for acts or omissions pursuant thereto; when city solicitor to defend city officers and employees; liability insurance | 1-10 |
| Coin-operated machines and devices | |
| License | |
| Proprietor responsibility; liability; impounding and sale | 18-252 |
| Nuisances | |
| Liability of owner for condition of leased premises | 50-35 |
| Streets, sidewalks and other public places | |
| Excavations; nonliability of city | 102-95 |
| Taxation | 110-146 et seq. |
| See: TAXATION | |

Section

LIABILITY (Cont'd.)
Traffic ordinance
Serious traffic offenses
Proof of alcohol content; license suspension
How blood test administered; use of test results; certain immunity from liability incident to administering test 114-322
Utilities
Sewers and sewage disposal
City not liable for damage 118-66
Rates and charges
Duration of liability for sewer service 118-146

LIBRARIES
Offenses
Offenses involving property rights
Libraries and related offenses 78-42

LICENSES AND PERMITS
Alcoholic beverages 6-51 et seq.
See: ALCOHOLIC BEVERAGES
Animals
Certain animals and reptiles prohibited to be kept within city except pursuant to license or permit 10-13
Dogs
License
Annual license required; application for license and payment of license fee; license tag 10-141
License fees; expiration of licenses 10-142
Special permit 10-121
Auctioneer licenses 18-81 et seq.
See: AUCTIONEERS
Barbers and beauticians
License required 18-112
Bowling alleys and billiard, pool and bagatelle tables
License fees 18-141
Businesses 18-31 et seq.
See: BUSINESSES
Carnivals, circuses and shows
Licenses 18-191 et seq.
See: CARNIVALS, CIRCUSES AND SHOWS
Charitable solicitations
Permit 26-31 et seq.
See: CHARITABLE SOLICITATIONS
City collector
Issuance of licenses, permits 2-222
Coin-operated machines and devices
License 18-251 et seq.
See: COIN-OPERATED MACHINES AND DEVICES

Section

LICENSES AND PERMITS (Cont'd.)
Going out of business sales, fire sales and similar sales
License 18-381 et seq.
See: GOING OUT OF BUSINESS SALES, FIRE SALES AND SIMILAR SALES
Handgun dealers
License 18-451 et seq.
See: HANDGUN DEALERS
Health and sanitation
Laundries regulated; permit required 58-7
Home solicitation sales
License for home solicitation sales; registration 18-522
Hotels, tourist homes and eating places
License required; fee 18-551
Insurance companies and agents
License required; fee 18-581
Junk dealers
License 18-681 et seq.
See: JUNK DEALERS
Manufactured homes and trailers
Trailers and trailer camps
Auto trailer camps
Permit 70-101 et seq.
See: MANUFACTURED HOMES AND TRAILERS
Massage parlors
Permit 18-751 et seq.
See: MASSAGE PARLORS
Natural resources
Commercial water wells
Permits for commercial wells 74-33
Offenses
Offenses involving public safety
Weapons
Carrying without license or other authorization 78-163
Outdoor dining 102-275, 102-278
Parking lots
License 18-821 et seq.
See: PARKING LOTS
Parks and recreation
Haddad Riverfront Park events
Electrical hook-ups for boaters; license 82-162
Pawnbrokers
Annual license fee 18-862
Residential rental license 18-1170 et seq.
See: RESIDENTIAL RENTAL PROPERTIES
Sale of water
Inspection and permit 58-42
Inspection or license fee 58-43
Salvage yards
Issuance of license; fee; term; renewal 18-895
License required; restrictions as to location; yards existing as of October 2, 1961 18-894

Section

LICENSES AND PERMITS (Cont'd.)
- Secondhand automotive accessories and parts
  - License fee; not transferable or divisible ..... 18-931
- Solid waste
  - Collection and disposal
    - Permit for burning..... 98-52
    - Whom to collect refuse and recyclables; issuance of annual permits to collectors by city manager ..... 98-45
- Stores
  - License..... 18-991 et seq.
    - See: STORES
- Street vendors..... 18-1037 et seq.
  - See: STREET VENDORS
- Streets, sidewalks and other public places 102-1 et seq.
  - See: STREETS, SIDEWALKS AND OTHER PUBLIC PLACES
- Taxation ..... 110-1 et seq.
  - See: TAXATION
- Traffic ordinance ..... 114-14 et seq.
  - See: TRAFFIC ORDINANCE
- Tree planting, removal, maintenance permits ..... 50-176 et seq.
  - See: VEGETATION
- Tree services
  - Permit required..... 18-1163
- Utilities..... 118-73 et seq.
  - See: UTILITIES
- Vehicles for hire
  - Taxicabs
    - Common carriers; certificate of convenience and necessity and permits ..... 122-37
    - Licensing and regulation of stands . 122-34

LIENS, RECOVERY OF COST, ETC.
- Abandoned vehicles and junk
  - Notification of vehicle owner and lienholders ..... 50-87
- Fire prevention and protection
  - Fire protection service charge
    - Penalty for default in payment; charge constitutes debt due city; recourse of city for collection .. 54-183
- Municipal home rule
  - Delinquent city service fees, interest, penalties ..... 3-11
- Nuisances
  - Apportionment of cost of abatement... 50-43
  - Recourse of city when abatement order ignored..... 50-42
  - Recourse of city when order to abate condition constituting nuisance is ignored..... 50-47

Section

LIENS, RECOVERY OF COST, ETC. (Cont'd.)
- Solid waste collection and disposal
  - Rates and charges
    - Notice of lien for failure to pay fee, rate, penalty or charge..... 98-76
    - Release of liens filed for failure to pay refuse service charges .... 98-82
- Taxation
  - Admissions tax
    - Unpaid tax a lien; penalty ..... 110-185, 110-186
  - Business and occupation tax
    - Tax collection
      - Payment when person sell[s] out or quits business; liability of successor; liens ..... 110-146
      - Tax constitutes debt; lien created; enforcement of lien..... 110-142
- Utilities
  - Sewers and sewage disposal
    - Rates and charges
      - Lien for enforcement of collection of billed rates or charges ... 118-145

LIGHTS AND LIGHTING
- Buildings and building regulations
  - Housing code; minimum standards
    - Lighting and ventilation ..... 14-143
- Energy benchmarking
  - Audit of meters and streetlights ..... 2-757
- Manufactured homes and trailers
  - Trailers and trailer camps
    - Auto trailer camps
      - Lights in public rooms..... 70-57
- Parking lots
  - Lighting..... 18-797
- Traffic ordinance
  - Bicycles
    - Headlamp and rear reflector ..... 114-710
  - Stopping, standing and parking
    - Headlamps on parked vehicles ..... 114-562
  - Vehicle equipment; lights..... 114-815

LIQUEFIED PETROLEUM GAS. See: GAS

LIQUOR. See: ALCOHOLIC BEVERAGES

LITTER. See: SOLID WASTE

LIVESTOCK. See: ANIMALS

LOCATIONS
- Code of ordinances
  - Certain ordinances not affected by Code 1-17
- Salvage yards
  - License required; restrictions as to location; yards existing as of October 2, 1961 ..... 18-894
- Solid waste
  - Collection and disposal

Section

LOCATIONS (Cont'd.)
Curbside collection
Location and time for placement; disabled and infirmed residents ..... 98-101
Stores
License
Change of location of store ..... 18-998
Streets, sidewalks and other public places
Poles, wires and antennas
Permit for additions, replacements, relocations of wires ..... 102-213
Right of council to prescribe kind, size and location of poles ..... 102-215
Traffic ordinance
Traffic control signs, signals, devices and markings
Locations where right turn on red prohibited ..... 114-236

LOCKING DEVICES. See: BUILDINGS AND BUILDING REGULATIONS

LOITERING
Offenses
Offenses involving public morals
Prostitution and related offenses
Loitering for prostitution ..... 78-328
Offenses involving public peace and order
Disorderly conduct in public schools of the city; loitering after being requested to leave school premises ..... 78-206

LOTS
Cemeteries; generally ..... 22-31 et seq.
See: CEMETERIES
Maintenance of premises ..... 50-121 et seq.
See: MAINTENANCE OF PREMISES
Planning
Municipal planning commission
Plats or replats of land laid out in building lots ..... 90-39
Solid waste
Duty of contractors to remove debris; collection of refuse from lots ..... 98-8

LOTTERY
Offenses
Offenses involving public morals
Gambling ..... 78-348

**M**

MAINTENANCE BONDS. See: BONDS

MAINTENANCE OF PREMISES
Disposition of grass, weeds and vegetation 50-123
Prohibited accumulation or discharge of liquid wastes ..... 50-121

Section

MAINTENANCE OF PREMISES (Cont'd.)
Removal of prohibited accumulations of refuse and vegetation; joint responsibility of property owners and persons in charge; action by city .... 50-124
Requirements as to maintenance of premises and disposition of refuse .. 50-122

MANUFACTURED HOMES AND TRAILERS
Definitions
Trailers and trailer camps
Auto trailer camps ..... 70-51
Planning; generally ..... 90-31 et seq.
See: PLANNING
Trailers and trailer camps
Auto trailer camps
Auto trailer camp layout ..... 70-55
Compliance with building codes .... 70-60
Compliance with plumbing code .... 70-59
Definitions ..... 70-51
Duties of owners and persons in charge of auto trailer camps ... 70-54
Effect of zoning ordinance ..... 70-61
Electrical connections ..... 70-58
Fire protection ..... 70-62
Lights in public rooms ..... 70-57
Parking on street ..... 70-63
Permit
Application for auto trailer camp permit ..... 70-104
Auto trailer camp permits ..... 70-102
Fees ..... 70-106
Limitations of permits ..... 70-105
Limitations on maintaining auto trailers on private property . 70-101
Permit for single auto trailer .... 70-103
Permit revocation ..... 70-108
Reinspections ..... 70-107
Person in charge of auto trailer camp; camp office and register ..... 70-53
Sanitation ..... 70-56
Storage of trailer on owner's premises 70-64
Violations and penalties ..... 70-52

MANUFACTURING. See: BUSINESSES

MAPS. See: SURVEYS, MAPS AND PLATS

MARIHUANA
Offenses
Offenses involving public morals
Drugs and related offenses
Simple possession of marijuana, synthetic cannabinoids, and other controlled substances . 78-373

MARINAS. See: BOATS, DOCKS AND WATERWAYS

MARKS, MARKING
Offenses

Section

MARKS, MARKING (Cont'd.)
Offenses involving public morals
Obscenity and related offenses
Marking of indecent words, pictures, figures at places exposed to public view..... 78-312
Traffic ordinance
Traffic control signs, signals, devices and markings..... 114-231 et seq.
See: TRAFFIC ORDINANCE

MASSAGE PARLORS
Definitions..... 18-721
Enforcement..... 18-722
Hours of operation..... 18-725
Inspections generally..... 18-723
Permit
Annual fee and application..... 18-753
Application..... 18-752
Display..... 18-755
Investigations prior to issuance..... 18-754
Required..... 18-751
Revocation..... 18-756
Rules and regulations generally..... 18-724

MAY
Definitions and rules of construction..... 1-2

MAY NOT
Definitions and rules of construction..... 1-2

MAYOR
Director of mayor's office of economic and community development
Duties..... 2-301
Emergency management
Civil emergencies
Declaration of emergency by proclamation of mayor; restrictions may be imposed; exemptions from restrictions..... 42-82
Emergency services department
Powers and duties of mayor..... 42-34
Function..... 2-31
School crossing guards
Authorized to be appointed by mayor, for assignment by chief of police. 66-91

MECHANICAL CODE
Adoption of state building code..... 14-33
See also: BUILDINGS AND BUILDING REGULATIONS

MEETINGS. See specific subjects as indexed

METER PATROL
Traffic ordinance
Administration and enforcement..... 114-151 et seq.
See: TRAFFIC ORDINANCE

METERS
Energy benchmarking
Audit of meters and streetlights..... 2-757

Section

METERS (Cont'd.)
Offenses
Offenses involving property rights
Larceny and related offenses
Meters measuring, companies furnishing utilities..... 78-85
Traffic ordinance
Administration and enforcement
Violations
Defective parking meter as excuse for violation..... 114-90
Stopping, standing and parking
On-street metered parking..... 114-621 et seq.
See: TRAFFIC ORDINANCE
Utilities
Sewers and sewage disposal
Rates and charges
Establishment of a schedule of just and equitable rates or charges; use of water meters 118-141

MILITARY
Emergency management
Civil emergencies
Authority to request state police and military forces; when proclamation of martial law may be recommended to governor..... 42-86
Personnel management and practices
Non-uniformed personnel
Personnel rules and administrative policies established
Military leave..... 86-108

MINORS
All-terrain vehicles..... 114-862 et seq.
Authorizing or permitting a minor to violate any provision..... 114-866
Bowling alleys and billiard, pool and bagatelle tables
Minors prohibited..... 18-143
Courts
Municipal court
Separation of witnesses; exclusion of minors from courtroom..... 38-45
Motorized scooter..... 114-915 et seq.
Authorizing or permitting a minor to violate any provision..... 114-919
Offenses
Offenses involving public morals
Prostitution and related offenses
Keeping houses of prostitution; persons under the age of 18. 78-324
Offenses involving public peace and order
Curfew for underage persons..... 78-210
Offenses involving public safety
Weapons
Possession by persons under age 16..... 78-169

Section

MINORS (Cont'd.)
Secondhand automotive accessories and parts
Purchases from or sales to minors..... 18-933
Traffic ordinance
Vehicle equipment
Child passenger restraining system required ..... 114-812

MOBILE HOMES AND MOBILE HOME PARKS. See: MANUFACTURED HOMES AND TRAILERS

MONIES (Generally). See: FINANCE

MONTH
Definitions and rules of construction..... 1-2

MONUMENTS
Cemeteries
Spring Hill Cemetery
Destruction or injury of shrubbery or monuments ..... 22-40

MORALS
Ethics. See that subject
Offenses involving public morals ..... 78-291 et seq.
See: OFFENSES

MOTELS. See: HOTELS, TOURIST HOMES AND EATING PLACES

MOTOR VEHICLES. See: TRAFFIC ORDINANCE

MOTORCYCLES, MOTORCYCLISTS
All-terrain vehicles ..... 114-862 et seq.
See: TRAFFIC ORDINANCE
Motorized scooter..... 114-915 et seq.
See: TRAFFIC ORDINANCE
Traffic ordinance
Vehicle equipment
Quiet operation of motorcycles; mufflers ..... 114-819
Rear vision mirror on motorcycles .. 114-820
Vehicle operation
Safety equipment and requirements for motorcyclists and motorcycles ..... 114-364

MUNICIPAL BUILDING COMMISSION
Created..... 2-651
Financial obligation ..... 2-654
Membership; terms; compensation..... 2-652
Powers and authority..... 2-653

MUNICIPAL COURT. See: COURTS

MUNICIPAL HOME RULE
City property, conveyance of without auction..... 3-14
City service fees, interest, penalties payable to city
Administrative remedies are exclusive 3-11(e)

Section

MUNICIPAL HOME RULE (Cont'd.)
Aggrieved by decisions ..... 3-11(d)
Continuance of lien ..... 3-11(f)
Generally..... 3-11(a)
Hearing procedure ..... 3-11(c)
Notice of lien ..... 3-11(b)
Right of appeal ..... 3-11(d)
Contracts with other jurisdictions via resolution ..... 3-12
Definitions..... 3-2
Delinquent B&O and city fee accounts, publication of ..... 3-10
Design-build procurement..... 3-16
External sanitation and common nuisance violations
Authority of city to file liens on real property for costs incurred in abating and for costs incurred in repairing, relaying, or constructing sidewalks..... 3-27
Enforcement of ..... 3-26
Appeal..... 3-26(h)
Investigations..... 3-26(b)
Issuance of citations ..... 3-26(d)
Nonpayment of fines..... 3-26(f)
Notice of violation ..... 3-26(c)
Penalties..... 3-26(e)
Purpose and applicability ..... 3-26(a)
Repeat violations ..... 3-26(g)
Health and sanitation. See herein: External Sanitation and Common Nuisance Violations
Municipal property, disposition of to nonprofit organizations ..... 3-13
Nuisances. See herein: External Sanitation and Common Nuisance Violations
Purpose..... 3-1
Sale of alcohol on Sundays ..... 3-17
Severability; interpretation; conflict ..... 3-3

MUNICIPAL JUDGE. See: COURTS

MUNICIPAL PLANNING COMMISSION. See: PLANNING

MUNICIPALITY
Definitions and rules of construction..... 1-2

**N**

NAMES AND NAMING
Businesses
Licenses generally
Effect of change in partners or name 18-40
Code of ordinances
Certain ordinances not affected by Code 1-17
Kanawha Valley Regional Transportation Authority
Created; statutory basis; name..... 2-621

Section

NAMES AND NAMING (Cont'd.)
Planning
Municipal planning commission
Official name; powers and duties as to planning and zoning generally ..... 90-32
Streets, sidewalks and other public places
Street names and building numbers ... 102-151 et seq.
See: STREETS, SIDEWALKS AND OTHER PUBLIC PLACES

NATURAL RESOURCES
Commercial water wells
Abandoned wells ..... 74-36
Definitions ..... 74-31
Deposits in sewers from commercial wells ..... 74-38
Disposal of water from commercial wells 74-39
Permits for commercial wells ..... 74-33
Piping, fitting and connections ..... 74-35
Plans and specifications ..... 74-34
Sewer service charges ..... 74-37
Violations ..... 74-32
Taxation
Business and occupation tax
Tax imposed; exemptions and credits
Producers of natural resource products ..... 110-52

NEIGHBORHOOD REHABILITATION PROGRAM. See: COMMUNITY DEVELOPMENT

NOISE
Animals
Keeping noisy cat ..... 10-10
Keeping noisy dog ..... 10-120
Keeping noisy fowl ..... 10-9
Offenses
Offenses involving public peace and order
Noise control ..... 78-212
Traffic ordinance
Vehicle equipment
Cutouts and mufflers; racing motors or producing noise; smoke and gasses ..... 114-818
Quiet operation of motorcycles; mufflers ..... 114-819
Vehicle operation
Zones of quiet ..... 114-374

NONINTOXICATING BEER. See: ALCOHOLIC BEVERAGES

NONPROFIT ORGANIZATIONS
Coin-operated machines and devices
License
Special provisions for certain nonprofit organizations ..... 18-254

Section

NONPROFIT ORGANIZATIONS (Cont'd.)
Municipal home rule
Municipal property, disposition to nonprofit organizations ..... 3-13

NOTICES. See specific subjects as indexed

NUDITY
Massage parlors; generally ..... 18-721 et seq.
See: MASSAGE PARLORS

NUISANCES
Abatements
Apportionment of cost of abatement ... 50-43
Apportionment of cost of abatement when condition is ignored ..... 50-48
Order to abate condition constituting nuisance; right to public hearing; actions by city manager ..... 50-45
Recourse of city when abatement order ignored; lien; prosecution for maintenance of nuisance not barred by payment for abatement 50-42
Recourse of city when order to abate condition constituting nuisance is ignored; lien created; prosecution for maintenance of nuisance not barred by paying expense of abatement ..... 50-47
Actions and reports by inspecting and investigating officers ..... 50-38
Additional nuisances; penalties ..... 50-34
Animals ..... 10-9 et seq.
See: ANIMALS
Apportionment of cost of abatement ..... 50-43
Apportionment of cost of abatement when condition is ignored ..... 50-48
Article does not prohibit arrest for committing or maintaining nuisance ..... 50-50
Article not to prohibit arrest for committing or maintaining nuisance ..... 50-44
Article supplemental to other provisions of Code relating to nuisances ..... 50-31
Certain nuisances enumerated; list not exclusive ..... 50-33
Conduct of public hearing ..... 50-46
Conduct of public hearing; final abatement order by city manager ..... 50-40
Destruction of unwholesome articles ..... 50-49
Graffiti as a public nuisance ..... 50-52 et seq.
See: GRAFFITI
Inspections, investigations and complaints 50-36
Items prohibited at outdoor events ..... 102-18
Liability of owner for condition of leased premises ..... 50-35
Municipal home rule ..... 3-26 et seq.
See: MUNICIPAL HOME RULE
Offenses
Offenses involving public peace and order
Noise control ..... 78-212

Section

NUISANCES (Cont'd.)
Order to abate condition constituting nuisance; right to public hearing; actions by city manager ..... 50-45
Order to remedy activity or condition constituting nuisance; right to public hearing; actions by city manager ... 50-39
Prohibited within city ..... 50-32
Recourse of city when abatement order ignored; lien; prosecution for maintenance of nuisance not barred by payment for abatement ..... 50-42
Recourse of city when order to abate condition constituting nuisance is ignored; lien created; prosecution for maintenance of nuisance not barred by paying expense of abatement .... 50-47
Review by city council ..... 50-41
Right to enter upon private premises; duty of occupants ..... 50-37
Salvage yards
Violations and penalties; injunctive relief to abate nuisances ..... 18-892
Solid waste; generally ..... 98-1 et seq.
See: SOLID WASTE
Traffic ordinance
Traffic control signs, signals, devices and markings
Unauthorized signs, signals or markings; nuisances ..... 114-242
Vehicle equipment
Cutouts and mufflers; racing motors or producing noise; smoke and gasses ..... 114-818

NUMBERS AND NUMBERING
Definitions and rules of construction
Number ..... 1-2
Dogs
Restriction on number of ..... 10-123
Kanawha Valley Regional Transportation Authority
Number and distribution of votes of city members ..... 2-625
Number of board members; appointment of city and county members 2-624
Streets, sidewalks and other public places
Street names and building numbers ... 102-151 et seq.
See: STREETS, SIDEWALKS AND OTHER PUBLIC PLACES

**O**

OATH, AFFIRMATION, SWEAR OR SWORN
Courts
Municipal court
Duties of clerk
Fines, costs, process and oaths ... 38-34(2)
False swearing and subornation of false swearing ..... 38-51

Section

OATH, AFFIRMATION, SWEAR OR SWORN (Cont'd.)
Installment payment of fines and costs
Determination of ability to pay; questionnaire to be answered by defendant; assistance to defendant; penalty for false swearing ..... 38-122
Definitions and rules of construction
Oath ..... 1-2
Emergency management
Emergency services department
Emergency services personnel; required oath ..... 42-40
Officers and employees
Limited authority to administer oaths; false swearing ..... 2-140

OBLIGATIONS (Generally). See: BONDS; See also: FINANCE

OBSCENITY. See: INDECENCY AND OBSCENITY

OBSTRUCTIONS
Animals
Dogs
Interference with persons acting under article; offenses concerning tags ..... 10-113
Livestock
Interference with humane officer; releasing impounded animals . 10-78
Courts
Municipal court
Intimidation of judicial officers, jurors and witnesses; obstructing administration of justice; penalty ..... 38-50
Emergency management
Emergency services department
Obstruction of personnel ..... 42-43
Offenses
Offenses involving property rights
Larceny and related offenses
Meters measuring, companies furnishing utilities
Injury to or interference with meter ..... 78-85(c)
Offenses involving public authority
Interfering with city officers and employees; penalty ..... 78-412, 78-415
Offenses involving public peace and order
Interfering with customers at retail store ..... 78-208
Obstructing pedestrians for purpose of inducing to purchase ..... 78-213
Parking lots
Blocking streets, alleys and sidewalks . 18-798

Section

OBSTRUCTIONS (Cont'd.)
Railroads
Obstruction of railway track or interference with operation of trains..... 94-3
Streets, sidewalks and other public places
Obstruction of view of drivers of vehicles by planting or maintaining foliage 102-16
Obstructions; open manholes; bridges over excavations ..... 102-4
Trees
Interference with city arborist..... 50-179
Traffic ordinance ..... 114-55 et seq.
See: TRAFFIC ORDINANCE
Trees
Impeding water flow, air, and fertilizer to tree roots ..... 50-180
Utilities
Sewers and sewage disposal ..... 118-72

OCCUPANT
Definitions and rules of construction
Tenant, occupant..... 1-2

OCCUPATIONS (Generally). See: BUSINESSES

OFFENSES
Advertisements, handbills, signs..... 78-3
Animals
Dogs
Impoundment
Redemption of impounded dogs; redemption fees and boarding charges; record of offenses by dog owners ..... 10-163
Interference with persons acting under article; offenses concerning tags..... 10-113
Assault and battery definitions; penalties 78-2
Attempts; aiding and abetting; procuring offense..... 78-1
Canes and walking sticks ..... 78-4
Code of ordinances
Code does not affect prior offenses or rights ..... 1-16
Effect of repeal of ordinances ..... 1-4
Conversion therapy
Conversion therapy illegal
Civil penalty and appeal rights..... 58-54
Conversion therapy prohibited ..... 58-52
Enforcement ..... 58-53
Courts; generally ..... 38-31 et seq.
See: COURTS
Damage, injury, etc.
Offenses involving property rights
Befouling property..... 78-43
Larceny and related offenses
Meters measuring, companies furnishing utilities
Injury to or interference with meter..... 78-85(c)

Section

OFFENSES (Cont'd.)
Libraries and related offenses
Destroying or injuring materials . 78-42(c)
Property damage and related offenses 78-61, 78-62
Definitions
Assault and battery definitions; penalties..... 78-2
Offenses involving property rights
Larceny and related offenses
Meters measuring, companies furnishing utilities ..... 78-85(a)
Shoplifting ..... 78-101
Offenses involving public morals
Gambling
Regulation of poolrooms ..... 78-350(a)
Prostitution and related offenses ... 78-321
Offenses involving public peace and order
Curfew for underage persons..... 78-210(b)
Riots, routs and unlawful assemblies prohibited and defined..... 78-203
Sound trucks..... 78-251
Hate crimes ..... 78-10
Injury, etc. See herein: Damage, Injury, etc.
Law enforcement; generally ..... 66-31 et seq.
See: LAW ENFORCEMENT
Nuisances; generally..... 50-31 et seq.
See: NUISANCES
Offenses involving property rights
Befouling property ..... 78-43
Larceny and related offenses
Embezzlement and larceny..... 78-82
Larceny by trick..... 78-84
Meters measuring, companies furnishing utilities
Definitions ..... 78-85(a)
Injury to or interference with meter 78-85(c)
Meters; certificates of readings... 78-85(b)
Petit larceny ..... 78-81
Receiving stolen property ..... 78-83
Shoplifting
Constitutes breach of peace; detention of suspects ..... 78-102
Prohibited; definitions..... 78-101
Libraries and related offenses
Destroying or injuring materials.... 78-42(c)
Failure to return materials after notice..... 78-42(b)
Unauthorized taking of books, materials..... 78-42(a)
Property damage and related offenses
Private property protected ..... 78-62
Tampering with city property generally..... 78-61
Rewards authorized in certain cases .. 78-41
Offenses involving public authority
City work projects not to be interfered with..... 78-415

| | Section |
|---|---|
| OFFENSES (Cont'd.) | |
| Governmental functions of city not to be hampered by sit-ins or other methods | 78-411 |
| Impersonation of city officers and employees | 78-414 |
| Interfering with city officers and employees; penalty | 78-412 |
| Refusing to aid or assist city officers and employees when lawfully summoned to do so | 78-413 |
| Offenses involving public morals | |
| Drugs and related offenses | |
| Conditional discharge for simple possession of controlled substances; expungement of records | 78-374 |
| Definitions and schedules incorporated | 78-371 |
| Distribution of hypodermic needles and syringes | |
| Compliance with state law and regulations | 78-382 |
| Council approval of application for state license to offer syringe services program | 78-384 |
| Distribution of hypodermic needles; state certification required | 78-381 |
| Penalty | 78-383 |
| Needle exchange program | |
| Authorized | 78-396 |
| Rules and regulations; Chief of Police authorized | 78-397 |
| Purporting to sell controlled substances | 78-372 |
| Simple possession of marijuana, synthetic cannabinoids, and other controlled substances | 78-373 |
| Simple possession of controlled substances prohibited | 78-373(c) |
| Simple possession of less than 15 grams of marijuana prohibited | 78-373(a) |
| Gambling | |
| Betting on games of chance | 78-345 |
| Cheating | 78-347 |
| Doorkeeper or guardian for gambling room | 78-344 |
| Keeping or exhibiting gaming table, machine or device; penalty; seizure of table, machine or device; forfeiture of money used in such gaming | 78-341 |
| Keeping place for gaming | 78-343 |
| Lottery or raffle | 78-348 |
| Permitting gambling at hotels, similar establishments; presumption against innkeeper | 78-346 |
| Permitting gaming table or device on premises | 78-342 |
| Possession of tickets | 78-349 |

| | Section |
|---|---|
| OFFENSES (Cont'd.) | |
| Regulation of poolrooms | |
| Definitions | 78-350(a) |
| Prohibited conduct | 78-350(b) |
| Punishment | 78-350(c) |
| Indecent exposure; public indecency; penalty | 78-292 |
| Obscenity and related offenses | |
| Indecent shows or exhibitions | 78-313 |
| Marking of indecent words, pictures, figures at places exposed to public view | 78-312 |
| Sale, possession or giving away of obscene literature | 78-311 |
| Prostitution and related offenses | |
| Definitions | 78-321 |
| Engaging in prostitution | 78-323 |
| Enticing for prostitution | 78-327 |
| Entry to house of prostitution | 78-325 |
| Keeping houses of prostitution; persons under the age of 18 | 78-324 |
| Loitering for prostitution | 78-328 |
| Use of premises for prostitution | 78-326 |
| Violation; penalty | 78-322 |
| Offenses involving public peace and order | |
| Breach of the peace and related offenses; duties of proprietors of establishments | 78-201 |
| Curfew for underage persons | |
| Defense | 78-210(e) |
| Definitions | 78-210(b) |
| Enforcement | 78-210(f) |
| Exceptions | 78-210(d) |
| Offenses | 78-210(c) |
| Penalties | 78-210(g) |
| Purpose | 78-210(a) |
| Disorderly conduct | 78-202 |
| Disorderly conduct generally | 78-205 |
| Disorderly conduct in public schools of the city; loitering after being requested to leave school premises | 78-206 |
| Dispersal; duty of police officers and participants | 78-204 |
| Disturbance of assemblies | 78-207 |
| Drunkenness in public place; drinking or possession of alcoholic beverages in public; sale and use of nonintoxicating beer or other alcoholic beverages; penalties | 78-211 |
| Interfering with customers at retail store | 78-208 |
| Noise control | 78-212 |
| Obstructing pedestrians for purpose of inducing to purchase | 78-213 |
| Picketing | |
| Conditions under which picketing permitted; unlawful picketing generally | 78-232 |
| Prohibited conduct at scene of picketing | 78-233 |

| | Section |
|---|---|
| OFFENSES (Cont'd.) | |
| Protecting passage to and from health care facilities; preserving rights of picketers; offense and penalties | 78-235 |
| Purpose of division | 78-231 |
| Unlawful assemblies; dispersal of unlawful assemblies and arrest of those not dispersing | 78-234 |
| Religious services in streets | 78-209 |
| Riots, routs and unlawful assemblies prohibited and defined | 78-203 |
| Sound trucks | |
| Commercial advertising by sound truck prohibited | 78-253 |
| Definitions | 78-251 |
| Noncommercial use of sound trucks | |
| Registration and identification | 78-252(c) |
| Registration required | 78-252(a) |
| Registration statement amendment | 78-252(b) |
| Regulations for use | 78-252(d) |
| Police department activities excluded | 78-254 |
| Offenses involving public safety | |
| Aircraft regulations | |
| Minimum altitude | 78-132(a) |
| Reckless flying | 78-132(b) |
| Releasing handbills, other printed materials | 78-132(d) |
| Stunt flying | 78-132(c) |
| Airtight containers | 78-133 |
| False alarms and reports | 78-131 |
| Skylights and fire escapes | 78-134 |
| Weapons | |
| Brandishing or exposing weapons; threatening or causing breach of peace; penalty | 78-167 |
| Carrying weapons upon municipal public property | 78-165 |
| Carrying without license or other authorization | 78-163 |
| Disposition of firearms, dangerous weapons in possession of municipal court | 78-162 |
| Disposition of firearms, dangerous weapons in possession of police department | 78-161 |
| Firearms in municipal parking facilities | 78-171 |
| Possession by persons under age 16 | 78-169 |
| Prohibited discharge | 78-166 |
| Slingshots, bows and arrows and airguns | 78-170 |
| Switchblade knives | 78-168 |
| Peeping toms | 78-5 |
| Sales | |
| Offenses involving public morals | |
| Obscenity and related offenses | |
| Sale, possession or giving away of obscene literature | 78-311 |

| | Section |
|---|---|
| OFFENSES (Cont'd.) | |
| Offenses involving public peace and order | |
| Drunkenness in public place; drinking or possession of alcoholic beverages in public; sale and use of nonintoxicating beer or other alcoholic beverages; penalties | 78-211 |
| Obstructing pedestrians for purpose of inducing to purchase | 78-213 |
| Spitting | 78-6 |
| Streets, sidewalks and other public places | |
| Certain acts constitute offenses in public parks and squares; government property declared public parks | 102-13 |
| Taxation | |
| Business and occupation tax | 110-34 |
| Throwing missiles in streets or public places | 78-7 |
| Ticket scalping | 78-8 |
| Traffic ordinance | |
| Offenses by persons owning or controlling vehicles | 114-5 |
| Parties to an offense | 114-4 |
| Serious traffic offenses | 114-301 et seq. |
| See: TRAFFIC ORDINANCE | |
| Watercraft regulations | |
| Mooring at city levee | 78-9(c) |
| Muffling outboard motors | 78-9(b) |
| Tying to bridge | 78-9(a) |
| OFFICERS AND EMPLOYEES | |
| Abandoned vehicles and junk | |
| Authority to take possession of abandoned equipment; employment of personnel for enforcement; notification to owner of private property | 50-86 |
| Animals | |
| Administration and enforcement of chapter; humane officers | 10-1 |
| Dogs | |
| Muzzling dogs under proclamation by health commissioner | 10-119 |
| Livestock | |
| Impoundment | |
| Interference with humane officer; releasing impounded animals | 10-78 |
| Authority of deputies, assistants and other subordinates | 2-132 |
| Beautification commission | 2-531 et seq. |
| See: BEAUTIFICATION COMMISSION | |
| Benefits | |
| City as participating public employer; state employees retirement system adopted | 2-163 |
| Compensation of city officers and employees | 2-161 |

Section

OFFICERS AND EMPLOYEES (Cont'd.)
End of insurance subsidy for retirees who were hired on or after July 1, 2020 ..... 2-164
Federal Social Security ..... 2-162
Bond required of those authorized to carry firearms ..... 2-134
Buildings and building regulations
Building code
Administration and enforcement ... 14-35
Housing code
Administration and enforcement ... 14-91 et seq.
See: BUILDINGS AND BUILDING REGULATIONS
Cemeteries
Spring Hill Cemetery
Commission ..... 22-61 et seq.
See: CEMETERIES
Charitable solicitations
Board of solicitation review ..... 26-1
City arborist
Duties ..... 50-175
Interference with ..... 50-179
City clerk ..... 2-201 et seq.
See: CITY CLERK
City collector ..... 2-221, 2-222
City council ..... 2-61 et seq.
See: CITY COUNCIL
City engineer ..... 2-261
City manager ..... 2-181 et seq.
See: CITY MANAGER
City solicitor ..... 2-241 et seq.
See: CITY SOLICITOR
Charleston coliseum and convention center/municipal auditorium board ..... 2-551 et seq.
See: CHARLESTON COLISEUM AND CONVENTION CENTER/MUNICIPAL AUDITORIUM BOARD
Code of ordinances
Appointment of select committee ..... 1-14
Code imposes no liability for acts or omissions pursuant thereto; when city solicitor to defend city officers and employees; liability insurance 1-10
Filing fee for candidates for city offices 1-13
Community development
Neighborhood rehabilitation program
Rehabilitation fund commission .... 30-64
Shelton-Sentz Neighborhood Redevelopment Select Committee ..... 30-1
Compensation, salaries, etc.
Beautification commission
Created; composition; appointment, term and compensation of members; filling vacancies .... 2-531
Cemeteries
Spring Hill Cemetery; commission
Membership; terms; compensation ..... 22-62

Section

OFFICERS AND EMPLOYEES (Cont'd.)
Civic center - auditorium board
Charleston Coliseum and Convention Center/Municipal Auditorium Board ..... 2-551
Code of ordinances
Certain ordinances not affected by Code ..... 1-17
Courts
Municipal court
Juries
Payment of compensation ..... 38-89
When juror not entitled to compensation ..... 38-88
Emergency management
Emergency services department
Emergency services council
Compensation ..... 42-32(b)
Fire department
Vacation, other leave, duty hours, and calculation of overtime pay 54-101 et seq.
Human rights commission
Composition; appointment; terms of members; expenses ..... 62-42
Law enforcement
Police department
School crossing guards
Rules and regulations; compensation and hours of duty ..... 66-92
Municipal building commission
Membership; terms; compensation .. 2-652
Officers and employees
Benefits. See herein that subject
Compensation of city officers and employees ..... 2-161
Parks and recreation commission ..... 82-81
Planning
Municipal planning commission
Created; composition; qualifications, appointment, terms and compensation of members; filling vacancies ..... 90-31
Traffic ordinance
Administration and enforcement
Meter patrol
Rules and regulations; compensation and hours of duty ..... 114-152
Utilities
Sewers and sewage disposal
Sanitary board
Officers; salaries; bond of treasurer ..... 118-122
Conflicts of interest ..... 2-136
Consumer protection
Consumer protection department ..... 34-31 et seq.
See: CONSUMER PROTECTION
Courts ..... 38-31 et seq.
See: COURTS

| | Section |
|---|---|
| OFFICERS AND EMPLOYEES (Cont'd.) | |
| Definitions and rules of construction | |
| City council, council | 1-2 |
| City solicitor; assistant city solicitor | 1-2 |
| Joint authority | 1-2 |
| Officers, departments, etc. | 1-2 |
| Public authority | 1-2 |
| Director of public works | |
| Powers | 2-281 |
| Duties of officers and employees | 2-131 |
| Emergency management | 42-31 et seq. |
| See: EMERGENCY MANAGEMENT | |
| Ethics in city government | 2-137 |
| Faithful performance and true accounting bonds required of all officers and of certain agents and employees of city | 2-133 |
| Finance | |
| Accounts of auditor | 2-369 |
| Authority of city auditor upon application for order to pay out money when applicant is indebted to city | 2-373 |
| Budget | |
| Powers and duties of finance director | 2-402 |
| Supervision of finances by finance director | 2-362 |
| Fire prevention and protection | |
| Fire department | 54-2 et seq. |
| Fire prevention code | |
| Fire prevention bureau members, responsibilities, and authority | 54-145 |
| Health and sanitation | |
| Inspection of and entry within buildings and grounds by health commissioner and his representatives | 58-3 |
| Police powers of health commissioner and other health officers and employees | 58-2 |
| Health commissioner, health officer. See that subject | |
| Human rights | |
| Human rights commission | 62-41 et seq. |
| See: HUMAN RIGHTS | |
| Kanawha Valley Regional Transportation Authority | 2-621 et seq. |
| See: KANAWHA VALLEY REGIONAL TRANSPORTATION AUTHORITY | |
| Land reuse agency | |
| Officers of the board | 65-4 |
| Law enforcement | 66-31 et seq. |
| See: LAW ENFORCEMENT | |
| Limited authority to administer oaths; false swearing | 2-140 |
| Mayor | 2-31 |
| Municipal building commission | 2-651 et seq. |
| See: MUNICIPAL BUILDING COMMISSION | |
| Nuisances | |
| Actions and reports by inspecting and investigating officers | 50-38 |

| | Section |
|---|---|
| OFFICERS AND EMPLOYEES (Cont'd.) | |
| Offenses | |
| Offenses involving public authority | |
| Impersonation of city officers and employees | 78-414 |
| Refusing to aid or assist city officers and employees when lawfully summoned to do so | 78-413 |
| Parks and recreation | 82-41 et seq. |
| See: PARKS AND RECREATION | |
| Personnel management and practices | 86-1 et seq. |
| See: PERSONNEL | |
| Persons acting in place of those who are absent or disabled or when position is vacant | 2-135 |
| Planning | |
| Municipal planning commission | 90-31 et seq. |
| See: PLANNING | |
| Right of entry for purposes of inspection | 2-139 |
| Rules of council (Appendix A). See that subject | |
| Salaries. See herein: Compensation, Salaries, Etc. | |
| Standards of conduct of city employees for federal grants; penalties | 2-138 |
| Streets, sidewalks and other public places | |
| Prohibited grant by any city official of exclusive right to appropriation of street for individual use | 102-1 |
| Street names and building numbers | |
| Building numbering | |
| Powers of building commissioner | 102-171 |
| Trees | |
| Duties of city arborist | 50-175 |
| Establishment of a tree board | 50-174 |
| Taxation | |
| Business and occupation tax | |
| Administration and enforcement | 110-32 |
| Hotel occupancy tax | |
| Tax imposed; rate; exemptions | |
| Exemptions for government agencies or employees | 110-253 |
| Traffic ordinance | |
| Administration and enforcement | 114-51 et seq. |
| See: TRAFFIC ORDINANCE | |
| Obedience to chapter by public officials and employees; exceptions as to persons engaged in highway surface work | 114-9 |
| Utilities | |
| Sewers and sewage disposal | |
| Sanitary board | 118-121 et seq. |
| See: UTILITIES | |
| OIL | |
| Traffic ordinance | |
| Vehicle equipment | |
| Transportation and delivery of oil | 114-823 |
| OPEN BURNING | |
| Solid waste | |

Section

OPEN BURNING (Cont'd.)
Collection and disposal
Open burning of refuse or disposal of refuse in domestic incinerators prohibited ..... 98-51
Permit for burning ..... 98-52

OPEN SPACES. See: YARDS AND OTHER OPEN SPACES

ORDINANCES, RESOLUTIONS, ETC.
City council
Ordinances ..... 2-91 et seq.
See: CITY COUNCIL
Resolutions and record ..... 2-69
Code of ordinances ..... 1-1 et seq.
See: CODE OF ORDINANCES
Rules of council
Draft of bills and resolutions, (App. A § 6)
Procedures for enacting ordinances, (App. A § 7)
Reference of bills, resolutions, etc., to committees, (App. A § 8)

OUTDOOR DINING
Streets, sidewalks and other public places 102-271 et seq.
See: STREETS, SIDEWALKS AND OTHER PUBLIC PLACES

OUTDOOR EVENTS
Items prohibited at outdoor events
Authority to adopt ..... 102-18(b)
Definitions ..... 102-18(c)
Enforcement, penalties ..... 102-18(d)
Other regulations, ordinances not precluded ..... 102-18(e)
Purpose ..... 102-18(a)

OWNER
Definitions and rules of construction ..... 1-2

**P**

PARADES
Traffic ordinance
Permit required; exceptions ..... 114-16

PARAPHERNALIA
Emergency management
Emergency services department
Members to return paraphernalia on request ..... 42-44
Hypodermic syringes, needles. See that subject
Streets, sidewalks and other public places
Poles, wires and antennas
Franchise to set or place wires, poles, other paraphernalia, on streets; use of wires ..... 102-212

PARENTAL CONCERNS
Traffic ordinance

Section

PARENTAL CONCERNS (Cont'd.)
Bicycles
Obedience to article; duty of parents and guardians; applicability of article to bicycles ..... 114-701

PARKING LOTS
Barriers ..... 18-792
Blocking streets, alleys and sidewalks ... 18-798
Buildings ..... 18-794
Claim checks and signs ..... 18-799
Definitions ..... 18-791
Entrances and exits ..... 18-795
Fire extinguishers ..... 18-796
License
Annual license for each fiscal year; license fee ..... 18-823
Application for license ..... 18-822
Required ..... 18-821
Revocation ..... 18-824
Lighting ..... 18-797
Maintenance and paving ..... 18-793
Traffic ordinance
Stopping, standing and parking
City-owned parking lots and buildings
Management of and regulations governing city-owned lots and buildings ..... 114-602
Powers and duties of city council ..... 114-601
Vehicle operation
Right-of-way
When emerging from alley, private driveway, parking lot or garage ..... 114-495

PARKING. See: TRAFFIC ORDINANCE

PARKS AND RECREATION
Animals; generally ..... 10-1 et seq.
See: ANIMALS
Cemeteries; generally ..... 22-31 et seq.
See: CEMETERIES
Code of ordinances
Certain ordinances not affected by Code 1-17
Declaration of public policy; purpose of chapter ..... 82-2
Definitions ..... 82-1
Fire prevention and protection; generally 54-1 et seq.
See: FIRE PREVENTION AND PROTECTION
Haddad Riverfront Park events
Use of designated city electrical hook-ups by boaters
Definitions ..... 82-161(b)
Event electricity hook-up License ..... 82-162
Purpose ..... 82-161(a)
Violations, enforcement, and penalties ..... 82-163

Section

PARKS AND RECREATION (Cont'd.)
Manufactured homes and trailers; generally ..... 70-51 et seq.
See: MANUFACTURED HOMES AND TRAILERS
Natural resources; generally ..... 74-31 et seq.
See: NATURAL RESOURCES
Parks and recreation commission
Chairman and secretary; rules; meetings; records ..... 82-83
Created; composition; qualifications, appointment and term of members; filling vacancies; compensation... 82-81
Duties ..... 82-84
Purpose of commission; consultation with 82-82
Parks and recreation department
Administrative and enforcement powers of director; duties generally ..... 82-43
Budget and expenses ..... 82-45
Construction and acquisition of recreational property ..... 82-44
Created ..... 82-41
Director and other personnel ..... 82-42
Public use of parks and recreational facilities
Danner Meadow Park ..... 82-126
Elk River Park ..... 82-127
Entering playgrounds and swimming pools after hours ..... 82-121
Fee adjustments ..... Sec. 82-129
Hours of public access to city parks; penalties ..... 82-122
Race courses ..... 82-128
Ruffner Memorial Park
Establishment ..... 82-123(a)
Hours ..... 82-123(c)
Misconduct ..... 82-123(b)
Schedule ..... 82-125
Waiver of swimming pool fees at certain facilities ..... 82-124
Rules and regulations ..... 82-3
Street vendors; generally ..... 18-1031 et seq.
See: STREET VENDORS
Streets, sidewalks and other public places
Certain acts constitute offenses in public parks and squares; government property declared public parks... 102-13
Improvement of parks, squares, similar places by city council ..... 102-14
Traffic ordinance; generally ..... 114-1 et seq.
See: TRAFFIC ORDINANCE

PAVING, PAVEMENT
Code of ordinances
Certain ordinances not affected by Code 1-17
Parking lots
Maintenance and paving ..... 18-793
Streets, sidewalks and other public places
Gasoline or oily substance on pavement 102-8

Section

PAVING, PAVEMENT (Cont'd.)
Traffic ordinance
Obedience to chapter by public officials and employees; exceptions as to persons engaged in highway surface work ..... 114-9

PAWNBROKERS
Annual license fee ..... 18-862
Definitions ..... 18-861
Reports ..... 18-863

PEDDLERS. See: HAWKERS AND PEDDLERS

PEDESTRIANS
Offenses
Offenses involving public peace and order
Obstructing pedestrians for purpose of inducing to purchase ..... 78-213
Traffic ordinance ..... 114-237 et seq.
See: TRAFFIC ORDINANCE

PEEPING TOMS
Offenses ..... 78-5

PENALTIES. See: FINES, FORFEITURES AND OTHER PENALTIES

PENSIONS
Fire prevention and protection
Fire department
Firemen's pension and relief fund; trustees ..... 54-48
Law enforcement
Police department
Policemen's pension and relief fund; trustees ..... 66-36

PERMITS. See: LICENSES AND PERMITS

PERSON. See also: BUSINESSES
Definitions and rules of construction ..... 1-2

PERSONAL PROPERTY
Definitions and rules of construction ..... 1-2
Property, generally. See: PROPERTY

PERSONNEL
City manager
Personnel rules and administrative policies; duties and authority ..... 2-184
City solicitor
Personnel rules and administrative policies; duties and authority ..... 2-244
Human rights ..... 62-1 et seq.
See: HUMAN RIGHTS
Law enforcement ..... 66-31 et seq.
See: LAW ENFORCEMENT
Personnel management and practices
Administration
Enforcement ..... 86-10

| | Section |
|---|---|
| PERSONNEL (Cont'd.) | |
| Human resources department | |
| Appointment of director of human resources; general powers and duties | 86-2 |
| Establishment of human resources department | 86-1 |
| Non-uniformed personnel | |
| Personnel rules and administrative policies established | |
| Adopted | 86-100 |
| Authorization to amend and promulgate new Personnel Rules and Administrative Policies | 86-101 |
| Compensation | 86-103 |
| Equal opportunity employment | 86-102 |
| Family and medical leave | 86-107 |
| Holidays | 86-106 |
| Military leave | 86-108 |
| Sexual harassment and workplace violence | 86-109 |
| Sick leave | |
| Accruals | 86-105(a) |
| Advance of sick leave | 86-105(e) |
| Maximum accrual | 86-105(b) |
| Separation | 86-105(d) |
| Transfer/promotion | 86-105(c) |
| Vacation leave | |
| Alternative accrual plan | 86-104(d) |
| Approval | 86-104(g) |
| Maximum accrual | 86-104(e) |
| Negative leave balance | 86-104(f) |
| New hires | 86-104(c) |
| Provisions re | 86-104(a) |
| Separation | 86-104(i) |
| Transfer/promotion | 86-104(h) |
| Progressive discipline and employee grievances | |
| Employee grievances | |
| Covered personnel | 86-201(a) |
| Grievance process | 86-201(c) |
| Hearing by administrative law judge | 86-201(d) |
| Matters to be heard | 86-201(b) |
| Progressive discipline | 86-200 |
| PETITIONS | |
| Streets, sidewalks and other public places | |
| Street and alley closings | |
| Contents of petition to vacate | 102-263 |
| Taxation | |
| Business and occupation tax | |
| Tax assessments | |
| Notice of assessment; petition for reassessment | 110-113 |
| PICKETING | |
| Offenses | |
| Offenses involving public peace and order | 78-231 et seq. |
| See: OFFENSES | |
| PIPES AND PIPING | |
| Buildings and building regulations | |
| Building code | |
| Construction with respect to fire prevention code; standards for gas piping; appliance venting | 14-36 |
| Natural resources | |
| Commercial water wells | |
| Piping, fitting and connections | 74-35 |
| Utilities | |
| Water service | |
| Tapping water pipes | 118-32 |
| PLANNING | |
| Buildings and building regulations; generally | 14-1 et seq. |
| See: BUILDINGS AND BUILDING REGULATIONS | |
| Code of ordinances | |
| Certain ordinances not affected by Code | 1-17 |
| Community development | 30-1 et seq. |
| See: COMMUNITY DEVELOPMENT | |
| Director of mayor's office of economic and community development | |
| Duties | 2-301 |
| Municipal planning commission | |
| Chairman and secretary; rules; meetings; records | 90-36 |
| Contracts for expenditure of money | 90-37 |
| Created; composition; qualifications, appointment, terms and compensation of members; filling vacancies | 90-31 |
| General purpose | 90-33 |
| Office | 90-38 |
| Official name; powers and duties as to planning and zoning generally | 90-32 |
| Planning; approval of commission required before action by city | 90-34 |
| Plats or replats of land laid out in building lots | 90-39 |
| Power to employ help; budget; cooperation from other officials and employees | 90-35 |
| Natural resources; generally | 74-31 et seq. |
| See: NATURAL RESOURCES | |
| Streets, sidewalks and other public places; generally | 102-1 et seq. |
| See: STREETS, SIDEWALKS AND OTHER PUBLIC PLACES | |
| PLANNING COMMISSION | |
| Kanawha Valley Regional Transportation Authority | |
| Availability to authority of services of planning commission | 2-627 |

| | Section |
|---|---|
| PLANNING DEPARTMENT | |
| Streets, sidewalks and other public places | |
| Outdoor dining | |
| Planning department rules and regulations under article | 102-271 |
| PLATES. See also: TAGS | |
| Traffic ordinance | |
| Vehicle operation | |
| Vehicle registration plates required | 114-362 |
| PLATS. See: SURVEYS, MAPS AND PLATS | |
| PLAYGROUNDS. See: PARKS AND RECREATION | |
| PLUMBING | |
| Buildings and building regulations | |
| Housing code; minimum standards | |
| Water supply; toilet and bath facilities; plumbing | 14-144 |
| Manufactured homes and trailers | |
| Trailers and trailer camps | |
| Auto trailer camps | |
| Compliance with plumbing code | 70-59 |
| PLUMBING CODE | |
| Adoption of state building code | 14-33 |
| See also: BUILDINGS AND BUILDING REGULATIONS | |
| POISONING. See: DAMAGE, INJURY, ETC. | |
| POLES AND WIRES | |
| Streets, sidewalks and other public places | |
| Poles, wires and antennas | 102-211 et seq. |
| See: STREETS, SIDEWALKS AND OTHER PUBLIC PLACES | |
| POLICE DEPARTMENT. See: LAW ENFORCEMENT | |
| POLITICAL CONCERNS | |
| Emergency management | |
| Emergency services department | |
| Political activity prohibited | 42-39 |
| POLLUTION | |
| Environment. See that subject | |
| Stormwater pollution prevention | 102-290 et seq. |
| See: STREETS, SIDEWALKS AND OTHER PUBLIC PLACES | |
| POOL, POOLROOMS | |
| Bowling alleys and billiard, pool and bagatelle tables | 18-141 et seq. |
| See: BOWLING ALLEYS AND BILLIARD, POOL AND BAGATELLE TABLES | |
| Offenses | |
| Offenses involving public morals | |
| Gambling | |
| Regulation of poolrooms | 78-350 |
| POOLS. See: SWIMMING POOLS | |
| POSTAGE STAMPS. See: STAMPS | |
| POSTING. See also: DISPLAYS | |
| Going out of business sales, fire sales and similar sales | |
| License | |
| Copy of application, inventory and license to be posted | 18-390 |
| POULTRY. See: ANIMALS | |
| PRECEDING | |
| Definitions and rules of construction | 1-2 |
| PREMISES | |
| Definitions and rules of construction | 1-2 |
| PRISONS AND PRISONERS | |
| Courts | |
| Municipal court | |
| Imprisonment for fines and costs | 38-52 |
| Installment payment of fines and costs | |
| Community service work may be substituted in lieu of incarceration or a fine | 38-126 |
| Home incarceration | 38-127 |
| Law enforcement | |
| City jail | 66-152 et seq. |
| See: LAW ENFORCEMENT | |
| PRIVATE CLUBS. See: CLUBS | |
| PRIVATE PROPERTY | |
| Abandoned vehicles and junk | |
| Authority to take possession of abandoned equipment; employment of personnel for enforcement; notification to owner of private property | 50-86 |
| Manufactured homes and trailers | |
| Trailers and trailer camps | |
| Auto trailer camps; permit | |
| Limitations on maintaining auto trailers on private property | 70-101 |
| Nuisances | |
| Right to enter upon private premises; duty of occupants | 50-37 |
| Offenses | |
| Offenses involving property rights | |
| Property damage and related offenses | |
| Private property protected | 78-62 |
| Property, generally. See: PROPERTY | |
| Solid waste | |
| Collection and disposal | |
| Delivery of refuse upon private property | 98-50 |
| Traffic ordinance | |
| Stopping, standing and parking | |
| Vehicles parked on private property | 114-574 |

Section

PRIVATE PROPERTY (Cont'd.)
Traffic control signs, signals, devices and markings
Fire lanes on private property devoted to public use ..... 114-241
Vehicle operation
Right-of-way
When emerging from alley, private driveway, parking lot or garage..... 114-495
Special stops
Stop before emerging from alley or private driveway ..... 114-515

PRIVIES
Utilities
Sewers and sewage disposal
Certain premises required to have privies; privy permits; requirements as to privies ..... 118-76
Professional cleaners of septic tanks and privies..... 118-82
Removal of contents of privies, cesspools and septic tanks; transportation over city streets; final disposition ..... 118-80

PROCEEDINGS. See: SUITS, ACTIONS AND OTHER PROCEEDINGS

PROCESSES. See: WRITS, WARRANTS AND OTHER PROCESSES

PROCESSIONS
Traffic ordinance
Funeral processions ..... 114-17
Permit required; exceptions..... 114-16

PROCLAMATIONS
Animals
Dogs; muzzling under proclamation by health commissioner ..... 10-119
Emergency management
Civil emergencies
Declaration of emergency by proclamation of mayor ..... 42-82 et seq.
See: EMERGENCY MANAGEMENT

PROCUREMENT. See: PURCHASING

PROFESSIONS (Generally). See: BUSINESSES

PROPERTY
Animals; generally..... 10-1 et seq.
See: ANIMALS
Buildings and building regulations; generally..... 14-1 et seq.
See: BUILDINGS AND BUILDING REGULATIONS
Cemeteries; generally..... 22-31 et seq.
See: CEMETERIES

Section

PROPERTY (Cont'd.)
City manager
Supervision and care of grounds and buildings; leases; improvements.. 2-182
Code of ordinances
Certain ordinances not affected by Code 1-17
Community development; generally..... 30-1 et seq.
See: COMMUNITY DEVELOPMENT
Definitions and rules of construction..... 1-2
Energy benchmarking ..... 2-751 et seq.
See: ENERGY BENCHMARKING
Land reuse agency
Powers and duties
Acquiring property through tax sales 65-15
Law enforcement
Police department
Sale of abandoned property recovered by police ..... 66-39
Maintenance of premises
Disposition of grass, weeds and vegetation ..... 50-123
Removal of prohibited accumulations of refuse and vegetation; joint responsibility of property owners and persons in charge; action by city ..... 50-124
Municipal home rule
City property, conveyance of without auction..... 3-14
Municipal property, disposition to nonprofit organizations..... 3-13
Nuisances; generally..... 50-31 et seq.
See: NUISANCES
Offenses
Offenses involving public safety
Weapons
Carrying weapons upon municipal public property ..... 78-165
Offenses involving property rights..... 78-41 et seq.
See: OFFENSES
Parks and recreation; generally..... 82-1 et seq.
See: PARKS AND RECREATION
Planning
Municipal planning commission
Plats or replats of land laid out in building lots..... 90-39
Railroads
Trespass on railroad property..... 94-6
Residential rental properties ..... 18-1170 et seq.
See: RESIDENTIAL RENTAL PROPERTIES
Salvage yards; generally ..... 18-891 et seq.
See: SALVAGE YARDS
Solid waste; generally..... 98-1 et seq.
See: SOLID WASTE
Street vendors; generally..... 18-1031 et seq.
See: STREET VENDORS

Section

PROPERTY (Cont'd.)
Streets, sidewalks and other public places; generally . . . 102-1 et seq.
See: STREETS, SIDEWALKS AND OTHER PUBLIC PLACES
Taxation
Business and occupation tax
Tax imposed; exemptions and credits
Business of furnishing property for hire . . . 110-59
Business of selling tangible property; certain sales exempt 110-54
Traffic ordinance . . . 114-1 et seq.
See: TRAFFIC ORDINANCE
Tree planting, maintenance and removal regulations . . . 50-171 et seq.
See: VEGETATION
Utilities; generally . . . 118-31 et seq.
See: UTILITIES

PROPERTY MAINTENANCE CODE
Adoption of state building code . . . 14-33
See also: BUILDINGS AND BUILDING REGULATIONS

PROSTITUTION
Offenses
Offenses involving public morals . . . 78-321 et seq.
See: OFFENSES

PUBLIC FOUNTAINS
Streets, sidewalks and other public places 102-15

PUBLIC GATHERINGS. See: ASSEMBLIES

PUBLIC HEARINGS. See specific subjects as indexed

PUBLIC NOTIFICATION. See specific subjects as indexed

PUBLIC PLACES. See: STREETS, SIDEWALKS AND OTHER PUBLIC PLACES

PUBLIC PROPERTY (Generally). See: PROPERTY

PUBLIC RECORDS
Availability to public of city books and records; protection of books and records . . . 2-332
Fee for copies of records and documents supplied by city clerk to applicants . 2-333
Public Records Management and Archives Act . . . 2-334
Secure maintenance of books, records . . . 2-331

PUBLIC UTILITIES TAX. See: TAXATION

PUBLIC WORKS AND IMPROVEMENTS
City manager
Supervision and care of grounds and buildings; leases; improvements . . 2-182

Section

PUBLIC WORKS AND IMPROVEMENTS (Cont'd.)
Director of public works
Powers . . . 2-281
Finance
Contracts and purchases
West Virginia Jobs Act responsibilities for public improvement construction projects . . . 2-464

PUBLICATION
City council
Adoption of rules of the council; amending, repealing, filing and publication of rules; maintenance of rules in current status . . . 2-70
Finance
Contracts and purchases; bids
When advertising for bids required; publication of advertisement . . 2-471
Sewers and sewage disposal
Discharge restrictions
Publication of users in significant noncompliance . . . 118-212

PURCHASING
Finance
Budget; requisition for purchases . . . 2-415
Contracts and purchases . . . 2-461 et seq.
See: FINANCE
Municipal home rule
Procurement of architectural and engineering services . . . 3-15

**R**

RABIES
Animals
Control of rabies and other diseases generally . . . 10-14

RAFFLES
Offenses
Offenses involving public morals
Gambling . . . 78-348

RAILROADS
Conformity with regulations required . . . 94-2
Franchise to occupy streets . . . 94-1
Jumping on or off moving train . . . 94-5
Obstruction of railway track or interference with operation of trains . . . 94-3
Removal or melting of snow from railway tracks . . . 94-4
Streets, sidewalks and other public places
Excavations
Railroads and public utilities . . . 102-99
Traffic ordinance . . . 114-55 et seq.
See: TRAFFIC ORDINANCE
Trespass on railroad property . . . 94-6

| | Section |
|---|---|
| REAL ESTATE | |
| Definitions and rules of construction | |
| Real property, real estate, land, lands . | 1-2 |
| REAL PROPERTY | |
| Definitions and rules of construction | |
| Real property, real estate, land, lands . | 1-2 |
| Property, generally. See: PROPERTY | |
| Traffic ordinance | |
| Rights of owners of real property. . . . . | 114-15 |
| REASONABLE TIME | |
| Definitions and rules of construction. . . . . | 1-2 |
| RECORDS AND REPORTS | |
| Alcoholic beverages | |
| Intoxicating liquor; private clubs | |
| City collector to maintain records of state licenses. . . . . | 6-132 |
| Duty of state licensees to report to city to display state licenses. . . | 6-131 |
| Nonintoxicating beer | |
| License | |
| List of licensees to be reported to clerk of municipal court . . . . | 6-55 |
| Animals | |
| Dogs | |
| Impoundment | |
| Redemption of impounded dogs; redemption fees and boarding charges; record of offenses by dog owners . . . . . | 10-163 |
| Livestock | |
| Impoundment; report of money received. . . . . | 10-75 |
| Boards, committees and commissions | |
| Public art commission | |
| Finances and reporting . . . . . | 2-684 |
| Businesses | |
| Licenses generally | |
| Record of licenses issued; destruction of records after five years. | 18-35 |
| Cemeteries | |
| Spring Hill Cemetery | |
| Commission | |
| Officers; rules for transaction of business; meetings; records . | 22-63 |
| Procedure for purchase of right of interment; execution of documents; maintenance of records | 22-36 |
| Charleston Historic Landmarks Commission | |
| Reporting. . . . . | 2-701 |
| City clerk | |
| Custodian of records . . . . . | 2-201 |
| City council | |
| Authentication of records . . . . . | 2-65 |
| Ordinances | |
| Recording and filing; ordinance record book . . . . . | 2-93 |
| RECORDS AND REPORTS (Cont'd.) | |
| To repeal, amend or add to provisions of this Code, and record; record of repealed and amended portions of Code . . . . . | 2-94 |
| Resolutions and record . . . . . | 2-69 |
| City manager | |
| Custodian of certain papers and records | 2-183 |
| Civic center - auditorium board | |
| Officers; rules for transaction of business; meetings; records . . . . . | 2-552 |
| Quarterly and annual reports to city council . . . . . | 2-555 |
| Courts | |
| Municipal court | |
| Duties of clerk | |
| Reports of fines for traffic violations . . . . . | 38-34(3) |
| Energy benchmarking | |
| Benchmarking reporting procedure. . . . | 2-755 |
| Finance | |
| Budget | |
| Reports by spending units. . . . . | 2-413 |
| Reports on revenue collections. . . . . | 2-408 |
| Fiscal reports, accounts to conform to fiscal year; "fiscal year" defined . . | 2-361 |
| Going out of business sales, fire sales and similar sales | |
| Records. . . . . | 18-354 |
| Land reuse agency | |
| Board meeting and activities | |
| Annual report . . . . . | 65-23 |
| Public records, public access, and ethics . . . . . | 65-21 |
| Nuisances | |
| Actions and reports by inspecting and investigating officers . . . . . | 50-38 |
| Offenses | |
| Offenses involving public morals | |
| Drugs and related offenses | |
| Conditional discharge for simple possession of controlled substances; expungement of records . . . . . | 78-374 |
| Offenses involving public safety | |
| False alarms and reports. . . . . | 78-131 |
| Parks and recreation | |
| Parks and recreation commission | |
| Chairman and secretary; rules; meetings; records . . . . . | 82-83 |
| Pawnbrokers | |
| Reports. . . . . | 18-863 |
| Planning | |
| Municipal planning commission | |
| Chairman and secretary; rules; meetings; records . . . . . | 90-36 |
| Public records . . . . . | 2-331 et seq. |
| See: PUBLIC RECORDS | |
| Rules of council | |
| Reports of committees, (App. A § 10) | |

Section

RECORDS AND REPORTS (Cont'd.)
Secondhand automotive accessories and parts
Record of purchases; exhibiting; exception ..... 18-932
Records open for inspection ..... 18-934
Solid waste collection and disposal
Collection of service charges; records; city auditor ..... 98-79
Taxation
Admissions tax
Compliance with regulations; records 110-187
Business and occupation tax
Payments, returns and records ..... 110-81 et seq.
See: TAXATION
Hotel occupancy tax
Payment and collection; records .... 110-277
Traffic ordinance ..... 114-91 et seq.
See: TRAFFIC ORDINANCE

RECORDS, PUBLIC. See: PUBLIC RECORDS

RECREATION. See: PARKS AND RECREATION

RECYCLING
Collection and disposal generally ..... 98-45 et seq.
See: SOLID WASTE
Source-separated recyclables ..... 98-121 et seq.
See: SOLID WASTE

REDEMPTION FEES. See: FEES

REFERENCES
Catchlines of sections; history notes; references ..... 1-3
Salvage yards
Reference to other provisions of this Code ..... 18-893

REFUSE. See: SOLID WASTE

REGIONAL CONCERNS
Kanawha Valley Regional Transportation Authority
Board membership open to representatives of other regional governmental bodies ..... 2-626

REGISTERS
Cemeteries
Spring Hill Cemetery
Cemetery register ..... 22-34
Manufactured homes and trailers
Trailers and trailer camps
Auto trailer camps
Person in charge of auto trailer camp; camp office and register 70-53

REGISTRATION
Dangerous dogs ..... 10-116

Section

REGISTRATION (Cont'd.)
Emergency services
Alarm systems
Alarm system registration ..... 46-1(b)
Home solicitation sales
License for home solicitation sales; registration ..... 18-522
Offenses
Offenses involving public peace and order
Sound trucks
Noncommercial use of sound trucks
Registration and identification 78-252(c)
Registration required ..... 78-252(a)
Registration statement amendment ..... 78-252(b)
Traffic ordinance
Vehicle operation
Vehicle registration plates required. 114-362

RELIGIOUS CONCERNS. See also: CHURCHES
Offenses
Offenses involving public peace and order
Religious services in streets ..... 78-209

RENTALS
Civic center - auditorium board
Schedule of rates, rentals and other charges for use of services and facilities ..... 2-556
Residential rental properties ..... 18-1170 et seq.
See: RESIDENTIAL RENTAL PROPERTIES

REPORTS. See: RECORDS AND REPORTS

REPTILES
Animals
Certain animals and reptiles prohibited to be kept within city except pursuant to license or permit ..... 10-11

RESCUE SQUAD
Traffic ordinance
Administration and enforcement
Authority of firefighters and rescue squad members to direct traffic 114-51

RESIDENCY
Junk dealers
License
Officers' or agents' residence ..... 18-682
Required; resident license ..... 18-681
Taxation
Business and occupation tax
Tax collection
Final settlement with nonresident contractor; user personally liable ..... 110-148

| | Section |
|---|---|
| RESIDENTIAL CODE | |
| Adoption of state building code | 14-33 |
| See also: BUILDINGS AND BUILDING REGULATIONS | |
| RESIDENTIAL RENTAL PROPERTIES | |
| Inspections of rental property | |
| Inspection procedures | 18-1182 |
| Other bases for inspections | 18-1181 |
| Notice of violation; corrective action; re-inspection | 18-1183 |
| Penalties | 18-1185 |
| Periodic inspections | 18-1180 |
| Re-inspection fee | 18-1184 |
| Severability | 18-1186 |
| Residential rental license | |
| Accurate and complete information | 18-1176 |
| Application requirements for | 18-1174 |
| Change in registration information or transfer of property | 18-1178 |
| Definitions | 18-1172 |
| Exceptions | 18-1171 |
| Purpose and scope | 18-1170 |
| Required | 18-1173 |
| Residential rental license term and renewals | 18-1177 |
| Responsible local agent | 18-1175 |
| Revocation of | 18-1179 |
| RESOLUTIONS. See: ORDINANCES, RESOLUTIONS, ETC. | |
| RETAIL TRADE. See: BUSINESSES | |
| RETIREMENT SYSTEM | |
| Officer and employee benefits | |
| City as participating public employer; state employees retirement system adopted | 2-163 |
| REVENUES (Generally). See: FINANCE | |
| REWARDS | |
| Offenses | |
| Offenses involving property rights | |
| Rewards authorized in certain cases | 78-41 |
| RIGHT OF ENTRY. See: ENTRY | |
| RIGHTS (Generally) | |
| Cemeteries | |
| Spring Hill Cemetery | |
| Legal descent of burial rights at cemetery | 22-42 |
| Code of ordinances | |
| Certain ordinances not affected by Code | 1-17 |
| Code does not affect prior offenses or rights | 1-16 |
| Human rights | 62-1 et seq. |
| See: HUMAN RIGHTS | |

| | Section |
|---|---|
| RIGHTS (Generally) (Cont'd.) | |
| Nuisances | |
| Order to abate condition constituting nuisance; right to public hearing; actions by city manager | 50-45 |
| Order to remedy activity or condition constituting nuisance; right to public hearing; actions by city manager | 50-39 |
| Offenses involving property rights | 78-41 et seq. |
| See: OFFENSES | |
| Streets, sidewalks and other public places | |
| Poles, wires and antennas | |
| Right of council to prescribe kind, size and location of poles | 102-215 |
| Prohibited grant by any city official of exclusive right to appropriation of street for individual use | 102-1 |
| Traffic ordinance | |
| Rights of owners of real property | 114-15 |
| Serious traffic offenses | |
| Proof of alcohol content; license suspension | |
| Right to demand test | 114-325 |
| Stopping, standing and parking | |
| On-street metered parking | |
| No different or additional rights granted by division; disposition of fees | 114-626 |
| RIGHTS-OF-WAY | |
| Streets, sidewalks and other public places | |
| Street and alley closings | |
| Authority to close public right-of-way | 102-261 |
| Trees | |
| Public utility right-of-way maintenance | 50-186 |
| Traffic ordinance | |
| Pedestrians | |
| Right-of-way in crosswalks | 114-662 |
| Vehicle operation | 114-491 et seq. |
| See: TRAFFIC ORDINANCE | |
| ROADS. See: STREETS, SIDEWALKS AND OTHER PUBLIC PLACES | |
| RUBBISH. See: SOLID WASTE | |
| RUFFNER MEMORIAL PARK | |
| Parks and recreation | |
| Public use of parks and recreational facilities | 82-123 et seq. |
| See: PARKS AND RECREATION | |
| RULES OF COUNCIL (Appendix A) | |
| (Citations herein refer to Rule Numbers within Appendix A, Rules of Council) | |
| Call for a division of a question | 13 |
| Calling for a division of city council | 20 |
| Committees | 2 |
| Decisions on questions of order | 16 |

Section

RULES OF COUNCIL (Appendix A) (Cont'd.)
Demand of previous question . . . . . 18
Draft of bills and resolutions . . . . . 6
Filing of papers to be introduced at city council meetings and action thereon by clerk of council . . . . . 3
Floor privileges . . . . . 24
Media credentials and decorum . . . . . 25
Members of the public speaking before city council . . . . . 22
Order of business at regular meetings; special order of business . . . . . 4, 23
Parliamentary rules of order . . . . . 21
Presiding officer may relinquish chair . . . 17
Procedures for enacting ordinances . . . . . 7
Reading the journal . . . . . 5
Reference of bills, resolutions, etc., to committees . . . . . 8
Reports of committees . . . . . 10
Requests for action; making entries in the journal . . . . . 9
Rescission, amendment and suspension of rule . . . . . 19
Resolutions and motions to amend . . . . . 11
Rules of debate . . . . . 12
Time and place of meetings . . . . . 1
Use of a previous roll call . . . . . 14
When a member abstains from voting . . . . 15

RUNNING AT LARGE
Animals
Dogs
Dogs to be confined and not permitted to roam at large; taking dogs on leash . . . . . 10-114
Keeping fowl near inhabited building or permitting them to run at large 10-7
Livestock
Certain animals prohibited from running at large, subject to impoundment; responsibility of owners and persons in charge . 10-51

**S**

SAFETY. See: HEALTH AND SANITATION

SALARIES
Compensation, salaries, etc. See: OFFICERS AND EMPLOYEES

SALE OF WATER
Certificate of purity . . . . . 58-41
Handling and disposition of fees . . . . . 58-44
Inspection and permit . . . . . 58-42
Inspection or license fee . . . . . 58-43

SALES (Generally)
Abandoned vehicles and junk
Proceeds from sale . . . . . 50-89
Alcoholic beverages . . . . . 6-1 et seq.
See: ALCOHOLIC BEVERAGES

Section

SALES (Generally) (Cont'd.)
Animals
Livestock; impoundment
Auction sale of impounded animals not redeemed . . . . . 10-73, 10-74
Payment of surplus proceeds to owners of animals sold . . . . . 10-77
Sale of baby fowl . . . . . 10-4
Businesses; generally . . . . . 18-31 et seq.
See: BUSINESSES
Cemeteries
Spring Hill Cemetery
Disposition of proceeds from sale of rights of interment and other transactions . . . . . 22-37
Coin-operated machines and devices
License
Proprietor responsibility; liability; impounding and sale . . . . . 18-252
Going out of business sales, fire sales and similar sales . . . . . 18-351 et seq.
See: GOING OUT OF BUSINESS SALES, FIRE SALES AND SIMILAR SALES
Handgun dealers, license . . . . . 18-451 et seq.
See: HANDGUN DEALERS
Hawkers and peddlers; generally . . . . . 18-491 et seq.
See: HAWKERS AND PEDDLERS
Health and sanitation
Public exposure of food for sale . . . . . 58-4
Home solicitation sales . . . . . 18-521 et seq.
See: HOME SOLICITATION SALES
Insurance companies and agents . . . . . 18-581
Junk dealers; generally . . . . . 18-661 et seq.
See: JUNK DEALERS
Law enforcement
Police department
Sale of abandoned property recovered by police . . . . . 66-39
Massage parlors; generally . . . . . 18-721 et seq.
See: MASSAGE PARLORS
Municipal home rule
Sale of alcohol on Sundays . . . . . 3-17
Offenses . . . . . 78-211 et seq.
See: OFFENSES
Pawnbrokers . . . . . 18-861 et seq.
See: PAWNBROKERS
Salvage yards; generally . . . . . 18-891 et seq.
See: SALVAGE YARDS
Secondhand automotive accessories and parts . . . . . 18-931 et seq.
See: SECONDHAND AUTOMOTIVE ACCESSORIES AND PARTS
Stores; generally . . . . . 18-971 et seq.
See: STORES
Street vendors; generally . . . . . 18-1031 et seq.
See: STREET VENDORS
Streets, sidewalks and other public places
Area where street sale of articles and/or food prohibited . . . . . 102-12

Section

SALES (Generally) (Cont'd.)
Taxation
Business and occupation tax
Tax imposed; exemptions and credits
Business of selling tangible property; certain sales exempt 110-54
Hotel occupancy tax
Payment and collection
Collection when sale on credit ... 110-271
Traffic ordinance
Administration and enforcement
Vehicle impoundment and immobilization
Sale of vehicle ..... 114-130
Stopping, standing and parking
Display for sale; repair or advertising on street ..... 114-560

SALVAGE YARDS
Definitions ..... 18-891
Issuance of license; fee; term; renewal ... 18-895
License required; restrictions as to location; yards existing as of October 2, 1961 ..... 18-894
Reference to other provisions of this Code 18-893
Requirements as to fences. ..... 18-896
Violations and penalties; injunctive relief to abate nuisances ..... 18-892

SANITATION. See: HEALTH AND SANITATION

SATELLITE DISH ANTENNAS. See: ANTENNAS

SCHEDULES
Civic center - auditorium board
Schedule of rates, rentals and other charges for use of services and facilities ..... 2-556
Finance
Budget
Examination and approval of schedules; expenditures to accord ..... 2-411
Expenditure schedules ..... 2-410
Reserve for emergencies as part of expenditure schedule ..... 2-412
Fire prevention and protection
Fire department
Emergency medical services division
Schedule of charges for ambulance services ..... 54-74
Parks and recreation
Public use of parks and recreational facilities
Schedule ..... 82-125
Utilities
Sewers and sewage disposal

Section

SCHEDULES (Cont'd.)
Rates and charges
Establishment of a schedule of just and equitable rates or charges; use of water meters 118-141

SCHOOL CROSSING GUARDS
Law enforcement
Police department ..... 66-91 et seq.
See: LAW ENFORCEMENT

SCHOOLS
Barbers and beauticians
Shops or schools ..... 18-113
Offenses
Offenses involving public peace and order
Disorderly conduct in public schools of the city; loitering after being requested to leave school premises ..... 78-206
Traffic ordinance
Stopping, standing and parking
Adjacent to schools ..... 114-570
Vehicle operation; special stops
Upon meeting a stopped school bus; requirements for school buses . 114-516

SCOOTERS
Motorized scooter ..... 114-915 et seq.
See: TRAFFIC ORDINANCE

SEAL
Code of ordinances
Common seal of the city; custodian of seal ..... 1-11

SECONDHAND AUTOMOTIVE ACCESSORIES AND PARTS
License fee; not transferable or divisible . 18-931
Purchases from or sales to minors ..... 18-933
Record of purchases; exhibiting; exception 18-932
Records open for inspection ..... 18-934

SECRETARIES
Parks and recreation
Parks and recreation commission
Chairman and secretary; rules; meetings; records ..... 82-83
Planning
Municipal planning commission
Chairman and secretary; rules; meetings; records ..... 90-36

SECURITY
Buildings and building regulations
Security against unauthorized entry .. 14-181 et seq.
See: BUILDINGS AND BUILDING REGULATIONS

SEPTIC TANKS
Utilities

Section

SEPTIC TANKS (Cont'd.)
Sewers and sewage disposal
Certain buildings required to have sanitary water closets, connected to sanitary sewer or sanitary septic tanks ..... 118-74
Professional cleaners of septic tanks and privies ..... 118-82
Removal of contents of privies, cesspools and septic tanks; transportation over city streets; final disposition ..... 118-80
Septic tank permits and requirements ..... 118-75

SERGEANT AT ARMS
City council ..... 2-66

SERVICE FEES
City service fees ..... 2-734 et seq.
See: FEES

SEWERS. See: UTILITIES

SEXUAL HARASSMENT
Civil service employees other than fire and police
Sexual harassment, workplace violence and discrimination
Personnel management and practices
Non-uniformed personnel
Personnel rules and administrative policies established
Sexual harassment and workplace violence ..... 86-109

SHALL
Definitions and rules of construction ..... 1-2

SHOPLIFTING
Offenses
Offenses involving property rights
Larceny and related offenses ..... 78-101, 78-102

SHOPS (Generally). See: BUSINESSES

SHOWS. See: CARNIVALS, CIRCUSES AND SHOWS

SHRUBBERY. See: VEGETATION

SIDEWALKS. See: STREETS, SIDEWALKS AND OTHER PUBLIC PLACES

SIGNALS
Traffic ordinance ..... 114-55 et seq.
See: TRAFFIC ORDINANCE

SIGNATURE
Definitions and rules of construction ..... 1-2

SIGNS
Offenses
Advertisements, handbills, signs ..... 78-3

Section

SIGNS (Cont'd.)
Parking lots
Claim checks and signs ..... 18-799
Traffic ordinance ..... 114-54 et seq.
See: TRAFFIC ORDINANCE

SINKING FUND
Finance
Bond issues ..... 2-442

SLINGSHOTS
Offenses; provisions re ..... 78-170

SLUGS
Traffic ordinance
Stopping, standing and parking
On-street metered parking ..... 114-627

SNOW
Railroads
Removal or melting of snow from railway tracks ..... 94-4
Streets, sidewalks and other public places
Removal of snow and ice ..... 102-11

SOCIAL SECURITY
Officers and employees
Benefits; Federal Social Security ..... 2-162

SOLICITATIONS
Charitable solicitations ..... 26-1 et seq.
See: CHARITABLE SOLICITATIONS
Home solicitation sales ..... 18-521 et seq.
See: HOME SOLICITATION SALES

SOLID WASTE
Abandoned vehicles and junk; generally.. 50-81 et seq.
See: ABANDONED VEHICLES AND JUNK
Animals
Dead animals and fowl; disposition of carcasses ..... 10-5
Responsibility for removal of carcasses 10-6
Buildings and building regulations
Housing code; minimum standards
Waste disposal and receptacles ..... 14-147
Cleaning circus grounds ..... 98-6
Collection and disposal
City manager ex officio sanitation inspector ..... 98-43
Curbside collection
Location and time for placement; disabled and infirmed residents 98-101
Definitions ..... 98-41
Delivery of refuse upon private property 98-50
Director of refuse collection ..... 98-44
Manner of storing refuse and recyclables; use of plastic bags ..... 98-47
Open burning of refuse or disposal of refuse in domestic incinerators prohibited ..... 98-51
Permit for burning ..... 98-52

Section

SOLID WASTE (Cont'd.)
Rates and charges
Charges for refuse, recyclables and yard (green) waste services; authority of city collector to promulgate rules and regulations related to collection of fees 98-71
Charges for use of city refuse disposal facilities; collection of charges . 98-78
City to collect residential refuse fee. 98-72
Collection of service charges; records; city auditor ..... 98-79
Collection rates do not cover certain types of refuse..... 98-73
Disposition of charges for refuse service; city solid waste fund .. 98-81
Notice of lien for failure to pay fee, rate, penalty or charge..... 98-76
Payment of service charges..... 98-75
Release of liens filed for failure to pay refuse service charges .... 98-82
Special rates authorized by city council..... 98-77
Special service charge; additional charges for certain refuse ..... 98-74
Weighing scales ..... 98-80
Recyclables
Collection of recyclables
Commercial, industrial or institutional establishments and community activities... 98-122(b)
Residents..... 98-122(a)
Segregation of recyclables ..... 98-122(c)
Collection of recyclables by unauthorized persons..... 98-124
Disposal of recyclables following collection ..... 98-125
Ownership of recyclables..... 98-123
Revenue from recycling ..... 98-126
Separation of recyclables from municipal solid waste..... 98-121
Regulation of time of day and area during which refuse and recyclables may be collected from residential districts and surrounding areas ..... 98-48
Storage of refuse must be in standard containers ..... 98-46
Throwing, scattering or delivering refuse upon any premises, street or place 98-49
Transportation and disposal of tires
Penalties..... 98-172
Prohibited disposal of tires..... 98-171
Violation and penalty ..... 98-42
Whom to collect refuse and recyclables; issuance of annual permits to collectors by city manager..... 98-45
Yard (green) waste
Separation, collection and disposal of yard (green) waste ..... 98-151

Section

SOLID WASTE (Cont'd.)
Definitions
Collection and disposal ..... 98-41
Duty of contractors to remove debris; collection of refuse from lots ..... 98-8
Exposure of wind-blown materials or fragments from buildings ..... 98-10
Fallen trees; stumps; debris ..... 98-9
Health and sanitation
Fruit vendors' refuse containers..... 58-6
Junk dealers; generally ..... 18-661 et seq.
See: JUNK DEALERS
Maintenance of premises
Prohibited accumulation or discharge of liquid wastes ..... 50-121
Removal of prohibited accumulations of refuse and vegetation; joint responsibility of property owners and persons in charge; action by city ..... 50-124
Requirements as to maintenance of premises and disposition of refuse 50-122
Natural resources
Commercial water wells
Deposits in sewers from commercial wells..... 74-38
Disposal of water from commercial wells..... 74-39
Sewer service charges..... 74-37
Notice of violation, refuse citations, appeals, and municipal court process..... 98-1
Prohibited discharges in watercourses, wells, similar places ..... 98-3
Prohibited disposal of waste matter generally ..... 98-2
Prohibited littering of streets, sidewalks and public places; duty of persons in violation of this section ..... 98-4
Refuse at outdoor eating establishments . 98-7
Salvage yards; generally ..... 18-891 et seq.
See: SALVAGE YARDS
Street rubbish cans; littering..... 98-5
Streets, sidewalks and other public places
Prohibited material in streets or public places; coal; refuse from fruit stands..... 102-7
Sweeping sidewalks; placing refuse on or sweeping across sidewalks .... 102-10
Tree services
Disposal of material..... 18-1165
Utilities
Sewers and sewage disposal ..... 118-61 et seq.
See: UTILITIES

SOUND, SOUND TRUCKS
Offenses
Offenses involving public peace and order..... 78-251 et seq.
See: OFFENSES

Section

SOUND, SOUND TRUCKS (Cont'd.)
Traffic ordinance
Vehicle equipment
Sound apparatus on vehicles ..... 114-824

SPECIAL EVENTS
Items prohibited at outdoor events ..... 102-18

SPEED
Traffic ordinance
Vehicle operation..... 114-401 et seq.
See: TRAFFIC ORDINANCE

SPITTING
Offenses ..... 78-6

SPRING HILL CEMETERY. See: CEMETERIES

STAMPS
Business licenses generally
Issuance of stamp or other evidence of license for coin-operated device .. 18-33
Coin-operated machines and devices
License
Application; stamp and owner identification on machine ..... 18-251
Pay telephones and postage stamp vending devices excluded..... 18-231

STORAGE
Fireworks; sale, possession, storage and discharge ..... 54-190 et seq.
See: FIRE PREVENTION AND PROTECTION
Health and sanitation
Storage or display of food close to ground 58-5
Manufactured homes and trailers
Trailers and trailer camps
Auto trailer camps
Storage of trailer on owner's premises ..... 70-64
Solid waste
Collection and disposal
Manner of storing refuse and recyclables; use of plastic bags 98-47
Storage of refuse must be in standard containers..... 98-46

STORES
Coin-operated devices not considered stores 18-972
Definitions ..... 18-971
License
Application for license; filing fee ..... 18-993
Change of location of store..... 18-998
Exemptions..... 18-992
Expiration and renewal of license ..... 18-996
License not assignable or transferable. 18-997
Licenses and fees in addition to others 18-995
Return of application for correction; granting and display of license... 18-994
Store license required ..... 18-991

Section

STORMWATER POLLUTION PREVENTION. See: STREETS, SIDEWALKS AND OTHER PUBLIC PLACES

STREET FAIRS
Provisions re ..... 18-172

STREET, EVENT, AND OTHER PUBLIC PROPERTY VENDORS
Additional requirements ..... 18-1038
Compliance with federal, state and local laws and regulations..... 18-1041
Definitions ..... 18-1031
Penalty ..... 18-1042
Request for reconsideration and appeal of revocation of vending permit ..... 18-1040
Revocation of street vending permit ..... 18-1039
Rules and regulations under article; designation of approved public rights-of-way ..... 18-1032
Scope of article ..... 18-1033
Vending permit required; application, fees 18-1037
Vendor standards
Requirements and regulations of vendors 18-1061

STREETS, SIDEWALKS AND OTHER PUBLIC PLACES
Animals; generally..... 10-1 et seq.
See: ANIMALS
Area where street sale of articles and/or food prohibited ..... 102-12
Buildings and building regulations; generally ..... 14-1 et seq.
See: BUILDINGS AND BUILDING REGULATIONS
Cemeteries ..... 22-31 et seq.
See: CEMETERIES
Certain acts constitute offenses in public parks and squares; government property declared public parks ..... 102-13
Charleston adopt-a-street program
Eligible streets..... 102-332
General ..... 102-331
Program participation ..... 102-333
Code of ordinances
Certain ordinances not affected by Code 1-17
Datum line for grades of streets established ..... 1-12
Community development; generally..... 30-1 et seq.
See: COMMUNITY DEVELOPMENT
Construction and maintenance of sidewalks, curbs and gutters
Duty of abutting owner to repair; construction or repair by city .... 102-52
Grades and widths ..... 102-53
License required to engage in business of constructing sidewalks ..... 102-56
Standards, specifications and materials 102-55
When abutting owners to construct ... 102-51
Width regulations..... 102-54

| | Section |
|---|---|
| STREETS, SIDEWALKS AND OTHER PUBLIC PLACES (Cont'd.) | |
| Definitions | |
| Outdoor dining | 102-274 |
| Trees | 50-173 |
| Definitions and rules of construction | |
| Street | 1-2 |
| Displays on sidewalks | 102-6 |
| Excavations | |
| City of Charleston Public Rights-of-Way Excavation and Restoration Ordinance Manual | |
| Adoption | 102-91 |
| Fines, forfeitures and other penalties | |
| Outdoor dining | |
| Denial or revocation of permit | 102-278 |
| Penalty | 102-279 |
| Poles, wires and antennas | |
| Violations and penalties | 102-211 |
| Trees; violation and penalty | 102-294 |
| Gasoline or oily substance on pavement | 102-8 |
| Improvement of parks, squares, similar places by city council | 102-14 |
| Licenses and permits | |
| Construction and maintenance of sidewalks, curbs and gutters | |
| License required to engage in business of constructing sidewalks. | 102-56 |
| Excavations | |
| Permit. See herein that subheading | |
| Outdoor dining | |
| Denial or revocation of permit | 102-278 |
| Permit process | 102-275 |
| Poles, wires and antennas | |
| Permit for additions, replacements, relocations of wires | 102-213 |
| Street openings by permit only; safety device required | 102-3 |
| Trees | |
| Permit. See herein that subheading | |
| Natural resources; generally | 74-31 et seq. |
| See: NATURAL RESOURCES | |
| Nuisances; generally | 50-31 et seq. |
| See: NUISANCES | |
| Obstruction of view of drivers of vehicles by planting or maintaining foliage | 102-16 |
| Obstructions; open manholes; bridges over excavations | 102-4 |
| Offenses | |
| Throwing missiles in streets or public places | 78-7 |
| Watercraft regulations | |
| Mooring at city levee | 78-9(c) |
| Outdoor dining | |
| Additional requirements | 102-277 |
| Compliance with federal, state and local laws and regulations | 102-272 |
| Definitions | 102-274 |
| Denial or revocation of permit | 102-278 |

| | Section |
|---|---|
| STREETS, SIDEWALKS AND OTHER PUBLIC PLACES (Cont'd.) | |
| Nondiscrimination/right to limit or deny admission or service | 102-273 |
| Penalty | 102-279 |
| Permit process | 102-275 |
| Planning department rules and regulations under article | 102-271 |
| Standards for outdoor dining areas | 102-276 |
| Parking lots | |
| Blocking streets, alleys and sidewalks | 18-798 |
| Parks and recreation; generally | 82-1 et seq. |
| See: PARKS AND RECREATION | |
| Permits. See herein: Licenses and Permits | |
| Planning; generally | 90-31 et seq. |
| See: PLANNING | |
| Playing games in streets | 102-17 |
| Poles, wires and antennas | |
| Application processing | 102-206 |
| Application | 102-202 |
| Building commissioner rules | 102-209 |
| Consolidated applications permitted | 102-207 |
| Definitions | 102-201 |
| Design guidelines | 102-205 |
| Fees | 102-203 |
| Franchise to set or place wires, poles, other paraphernalia, on streets; use of wires | 102-212 |
| Ground wires | 102-218 |
| High-tension wires | 102-219 |
| Insulation and protection of line wires | 102-216 |
| Mains and service wires | 102-217 |
| Municipal control of telephone, telegraph and electric companies | 102-224 |
| Permit for additions, replacements, relocations of wires | 102-213 |
| Permitted use; zoning applicability | 102-204 |
| Poles, wires and electrical equipment to comply with article | 102-223 |
| Purpose | 102-200 |
| Revocation | 102-210 |
| Right of council to prescribe kind, size and location of poles | 102-215 |
| Standard electrical construction and equipment required | 102-222 |
| Transformers | 102-221 |
| Violations and penalties | 102-211 |
| Wires carrying electric current under street surface | 102-220 |
| Work within and repairs to the right-of-way | 102-208 |
| Workers' badges | 102-214 |
| Prohibited grant by any city official of exclusive right to appropriation of street for individual use | 102-1 |
| Prohibited material in streets or public places; coal; refuse from fruit stands | 102-7 |
| Protection of streets from dirt or trees from abutting premises | 102-9 |
| Public fountains | 102-15 |

| | Section |
|---|---|
| STREETS, SIDEWALKS AND OTHER PUBLIC PLACES (Cont'd.) | |
| Public grass strips | 102-2 |
| Railroads; generally | 94-1 et seq. |
| See: RAILROADS | |
| Removal of snow and ice | 102-11 |
| Sidewalk | |
| Definitions and rules of construction | 1-2 |
| Sidewalks | |
| Construction and maintenance of sidewalks, curbs and gutters. See herein that subject | |
| Displays on sidewalks | 102-6 |
| Sweeping sidewalks; placing refuse on or sweeping across sidewalks | 102-10 |
| Traffic ordinance | |
| Bicycles; riding on sidewalk | 114-706 |
| Pedestrians; use of sidewalks | 114-666 |
| Toy vehicles on streets and sidewalks | 114-18 |
| Vehicle operation | |
| Driving on sidewalk | 114-371 |
| Use of sidewalk for handling fuel or goods | 102-5 |
| Solid waste; generally | 98-1 et seq. |
| See: SOLID WASTE | |
| Stormwater pollution prevention | |
| Construction site erosion and sediment control | |
| Applicability | 102-312 |
| Approval of land disturbing activity | 102-314 |
| Criminal prosecution | 102-322 |
| Definitions | 102-311 |
| Erosion and sediment control design requirements | 102-316 |
| Injunctive relief | 102-320 |
| Inspection of construction site | 102-318 |
| Notice of noncompliance and order to correct | 102-319 |
| Purpose/Intent | 102-310 |
| Remedies not exclusive | 102-323 |
| Responsibility for administration | 102-313 |
| Review and approval of land disturbing activity and erosion and sediment control plan | 102-317 |
| Severability | 102-324 |
| Submission of erosion and sediment control plan; modifications | 102-315 |
| Violations deemed a public nuisance; penalties | 102-321 |
| Illicit discharge detection and elimination | |
| Access to facilities for inspection, monitoring, sampling, measuring, testing or copying records | 102-298 |
| Applicability | 102-292 |
| Criminal prosecution | 102-307 |
| Definitions | 102-291 |
| Enforcement measures | 102-304 |
| Illicit discharge and connection prohibitions | 102-294 |

| | Section |
|---|---|
| STREETS, SIDEWALKS AND OTHER PUBLIC PLACES (Cont'd.) | |
| Industrial or construction activity discharges | 102-296 |
| Injunctive relief | 102-305 |
| Notice of violation | 102-301 |
| Notification of spills | 102-299 |
| Purpose/Intent | 102-290 |
| Remedies not exclusive | 102-308 |
| Request for reconsideration | 102-302 |
| Requirement to prevent control, and reduce stormwater pollutants by the use of best management practices | 102-297 |
| Responsibility for administration | 102-293 |
| Severability | 102-309 |
| Violations deemed a public nuisance | 102-306 |
| Watercourse protection | 102-295 |
| Street and alley closings | |
| Authority to close public right-of-way | 102-261 |
| Contents of petition to vacate | 102-263 |
| Procedure | 102-262 |
| Street names and building numbers | |
| Building numbering | |
| Method of numbering; complaints; action of city council | 102-173 |
| Placement and maintenance of street numbers upon premises by owners of properties having buildings on such premises | 102-174 |
| Powers of building commissioner | 102-171 |
| Procedure regarding change of numbers | 102-172 |
| Naming public streets | 102-151 |
| Street openings by permit only; safety device required | 102-3 |
| Street vendors; generally | 18-1031 et seq. |
| See: STREET VENDORS | |
| Sweeping sidewalks; placing refuse on or sweeping across sidewalks | 102-10 |
| Traffic ordinance; generally | 114-1 et seq. |
| See: TRAFFIC ORDINANCE | |
| Tree planting, removal, maintenance permits | 50-176 et seq. |
| Public utility right-of-way maintenance | 50-186 |
| Trees | |
| Abuse or mutilation of public trees | 50-181 |
| Definitions | 50-173 |
| Duties of city arborist | 50-175 |
| Emergencies | 50-182 |
| Establishment of a tree board | 50-174 |
| Interference with city arborist | 50-179 |
| Permits | |
| Application data | 50-177 |
| Required | 50-176 |
| Placing materials on public property | 50-180 |
| Public utility right-of-way maintenance | 50-186 |
| Purpose | 50-172 |
| Removal, replanting, replacement | 50-178 |
| Short title | 50-171 |

Section

STREETS, SIDEWALKS AND OTHER PUBLIC PLACES (Cont'd.)
Violation and penalty ..... 50-183
Use of sidewalk for handling fuel or goods 102-5
Utilities; generally..... 118-31 et seq.
See: UTILITIES
Vegetation
Obstruction of view of drivers of vehicles by planting or maintaining foliage 102-16
Protection of streets from dirt or trees from abutting premises..... 102-9
Public grass strips ..... 102-2
Trees. See herein that subject
Vehicles for hire; generally ..... 122-31 et seq.
See: VEHICLES FOR HIRE

SUBPOENAS. See: WRITS, WARRANTS AND OTHER PROCESSES

SUBSTANCE ABUSE
Drugs, generally. See: DRUGS

SUITS, ACTIONS AND OTHER PROCEEDINGS
Businesses
Licenses generally
Collection by action or suit..... 18-46
Code of ordinances
Effect of repeal of ordinances ..... 1-4
Courts; generally ..... 38-31 et seq.
See: COURTS
Fire prevention and protection
Fireworks; sale, possession, storage and discharge
Consumer fireworks; regulations, prohibited actions, and exceptions..... 54-191
Taxation
Hotel occupancy tax
Payment and collection
Priority of tax in receivership, bankruptcy, similar proceedings ..... 110-273

SUMMONS. See: WRITS, WARRANTS AND OTHER PROCESSES

SURETIES. See also: BONDS
Courts
Municipal court
Who may not be bail sureties..... 38-43

SURVEYS, MAPS AND PLATS
Administration (Chapter 2)
Fees for copying aerial maps..... 2-1
Cemeteries
Spring Hill Cemetery
Plats of sections ..... 22-33
Planning
Municipal planning commission
Plats or replats of land laid out in building lots..... 90-39

Section

SURVEYS, MAPS AND PLATS (Cont'd.)
Traffic ordinance
Traffic control signs, signals, devices and markings
Traffic control map ..... 114-261 et seq.
See: TRAFFIC ORDINANCE

SWEAR OR SWORN. See: OATH, AFFIRMATION, SWEAR OR SWORN

SWIMMING POOLS
Parks and recreation
Public use of parks and recreational facilities
Entering playgrounds and swimming pools after hours..... 82-121
Waiver of swimming pool fees at certain facilities ..... 82-124

SWITCHBLADE KNIVES
Offenses
Offenses involving public safety
Weapons ..... 78-168

**T**

TAGS. See also: PLATES
Animals
Dogs
Interference with persons acting under article; offenses concerning tags..... 10-113
License
Annual license required; application for license and payment of license fee; license tag ... 10-141
Traffic ordinance
Administration and enforcement
Violations
Issuance of books of parking tags or summons to police..... 114-85

TAVERNS
Hotels, tourist homes and eating places
Hotels and taverns..... 18-552

TAXATION
Admissions tax
Admission tax imposed ..... 110-183
Applicability..... 110-182
City collector to enforce rules ..... 110-190
Compliance with regulations; records.. 110-187
Definitions ..... 110-181
Enforcement of lien ..... 110-186
Information to be confidential..... 110-189
Investigation by city collector..... 110-188
Liability of city collector..... 110-191
Payment of tax..... 110-184
Permit required..... 110-192
Unpaid tax a lien; penalty ..... 110-185

| | Section |
|---|---|
| TAXATION (Cont'd.) | |
| Alcoholic beverages | |
| Intoxicating liquor | |
| Taxes and license taxes | 6-111 et seq. |
| See: ALCOHOLIC BEVERAGES | |
| Nonintoxicating beer | |
| License | |
| Annual license tax imposed on brewers and dealers; license year; classes of dealers and amount of tax | 6-52 |
| Business and occupation tax | |
| Administration and enforcement | 110-32 |
| Definitions | 110-31 |
| Offenses | 110-34 |
| Payments, returns and records | |
| Extensions of time | 110-83 |
| Mathematical errors; collection of balance due on return without remittance | 110-88 |
| Payment plans | 110-83 |
| Reciprocal exchange | 110-86 |
| Records, statements, and investigations | 110-84 |
| Return and remittance | 110-82 |
| Secrecy of returns | 110-85 |
| Tax cumulative | 110-81 |
| Tax year | 110-82 |
| Unlawful release of tax information; penalties | 110-87 |
| Records | 110-36 |
| Refunds and credits | 110-33 |
| Revocation of licenses and permits | 110-35 |
| Tax assessments | |
| Appeals to circuit court | 110-115 |
| Assessment of tax when insufficiently returned | 110-112 |
| Hearing procedure; administrative decision | 110-114 |
| Limitation on assessments | 110-111 |
| Notices of assessment; petition for reassessment | 110-113 |
| Ten-year limitations on collection | 110-116 |
| Tax collection | |
| Distraint | 110-143 |
| Final settlement with contractors; user personally liable | 110-148 |
| Injunction | 110-144 |
| Interest and penalties | 110-145 |
| Lien created; enforcement of lien | 110-142 |
| Limited effect of city collector's certificate | 110-149 |
| Methods of collection | 110-141 |
| Payment when person sell[s] out or quits business; liability of successor, liens | 110-146 |
| Settlement of contracts made with city | 110-147 |
| Tax constitutes debt | 110-142 |

| | Section |
|---|---|
| TAXATION (Cont'd.) | |
| Tax imposed; exemptions and credits | |
| Amusements, operating | 110-57 |
| Banking and other financial businesses | 110-60 |
| Business of selling tangible property; certain sales exempt | 110-54 |
| Contracting business | 110-56 |
| Credits for multiple activities | 110-61 |
| Exemptions | 110-63 |
| HMO, tax rate | 110-62 |
| Imposition of privilege tax | 110-51 |
| Manufacturing, compounding or preparing products | 110-53 |
| Producers of natural resource products | 110-52 |
| Property for hire businesses | 10-59 |
| Public service or utility business | 110-55 |
| Service business or calling not otherwise specifically taxed | 110-58 |
| Businesses | |
| Licenses generally | |
| Collection of back taxes | 18-45 |
| Expiration date; annual renewal; tax prorated upon start of business; minimum fee | 18-41 |
| General business license; license fee | 18-31 |
| Carnivals, circuses and shows | |
| Filing with city collector of list of all rides and concessions; bond for municipal taxes | 18-173 |
| Licenses | |
| License tax imposed on certain itinerant shows | 18-191 |
| City collector | 2-221, 2-222 |
| City council | |
| Annual tax estimate and levy | 2-62 |
| Code of ordinances | |
| Certain ordinances not affected by Code | 1-17 |
| Consumers sales and use taxes | |
| Administrative procedures | 111-11 |
| Automatic updating | 111-13 |
| Calculation of tax on fractional parts of a dollar | 111-5 |
| Council findings | 111-1 |
| Credit for local sales tax lawfully paid to another municipality | 111-8 |
| Criminal penalties | 111-12 |
| Definitions | 111-2 |
| Deposit of taxes collected in special revenue funds | 111-14 |
| Effective date | 111-15 |
| Exceptions | 111-7 |
| Imposition of consumers sales and service tax | 111-3 |
| Imposition of use tax | 111-4 |
| Local rate and boundary changes | 111-9 |
| State and local sales and use tax bases | 111-6 |
| State level administration | 111-10 |

| | Section |
|---|---|
| TAXATION (Cont'd.) | |
| Definitions | |
| Admissions tax | 110-181 |
| Business and occupation tax | 110-31 |
| Consumers sales and use taxes | 111-2 |
| Hotel occupancy tax | |
| Disposition of proceeds | 110-223(d) |
| General definitions | 110-221 |
| Public utilities tax | 110-311 |
| Finance | 2-361 et seq. |
| See: FINANCE | |
| Hotel occupancy tax | |
| Administrative procedures generally | 110-222 |
| Definitions | 110-221 |
| Disposition of proceeds | |
| Definitions | 110-223(d) |
| Generally | 110-223(a) |
| Permissible expenditures | 110-223(c) |
| Required expenditures | 110-223(b) |
| Interest and penalties | 110-225 |
| Payment and collection | |
| Collection when sale on credit | 110-271 |
| Consumer to pay tax; collection and accounting by hotel operator; hotel or hotel operator not to make certain representations | 110-272 |
| Liability of hotel operator for failure to collect or remit | 110-274 |
| Liability of officers of associations or corporations | 110-278 |
| Priority of tax in receivership, bankruptcy, similar proceedings | 110-273 |
| Records | 110-277 |
| Returns and remittances generally | 110-276 |
| Total amount collected to be remitted | 110-275 |
| Tax imposed; rate; exemptions | |
| Exemptions for government agencies or employees | 110-253 |
| Imposition | 110-251 |
| Rate | 110-252 |
| Violations and penalties | 110-224 |
| Land reuse agency | |
| Powers and duties | |
| Acquiring property through tax sales | 65-15 |
| Liability | |
| Admissions tax | |
| Liability of city collector | 110-191 |
| Business and occupation tax | |
| Tax collection | |
| Final settlement with nonresident contractor; user personally liable | 110-148 |
| Payment when person sell[s] out or quits business; liability of successor; liens | 110-146 |
| TAXATION (Cont'd.) | |
| Hotel occupancy tax | |
| Payment and collection | |
| Liability of hotel operator for failure to collect or remit | 110-274 |
| Liability of officers of associations or corporations | 110-278 |
| Public utilities tax | |
| Nonliability of utility for erroneous collections; duty of city when purchaser claims tax not owed; refunds; rules and regulations | 110-316 |
| Public utilities tax | |
| Additional remedies for collection of tax | 110-317 |
| Collection; time of payment; effective date; proration | 110-314 |
| Definitions | 110-311 |
| Exemptions | 110-313 |
| Imposed; amount; notice to utility of effective date | 110-312 |
| Maintenance and inspection of records | 110-315 |
| Nonliability of utility for erroneous collections; duty of city when purchaser claims tax not owed; refunds; rules and regulations | 110-316 |
| Unlawful release of tax information; penalties | 110-1 |
| TAXICABS. See: VEHICLES FOR HIRE | |
| TEENAGERS. See: MINORS | |
| TELEGRAPHS. See: COMMUNICATIONS | |
| TELEPHONES. See: COMMUNICATIONS | |
| TENANT | |
| Definitions and rules of construction | |
| Tenant, occupant | 1-2 |
| TENSES (Of Code Words) | |
| Definitions and rules of construction | 1-2 |
| THEFT | |
| Traffic ordinance | |
| Unlawful taking of vehicle | 114-20 |
| TICKET SCALPING | |
| Offenses | 78-8 |
| TIME (Defined) | |
| Definitions and rules of construction | |
| Official time | 1-2 |
| Time, computation of | 1-2 |
| TIRES | |
| Abandoned vehicles and junk | |
| Old vehicle tires and inoperative or abandoned household appliances prohibited in certain places | 50-85 |
| Solid waste | |
| Collection and disposal | |
| Transportation and disposal of tires | 98-171, 98-172 |

| | Section |
|---|---|
| TIRES (Cont'd.) | |
| Traffic ordinance | |
| Vehicle operation | |
| Speed | |
| Nonpassenger vehicles with pneumatic tires | 114-404 |
| Vehicles without pneumatic tires | 114-405 |
| TOURIST HOMES. See: HOTELS, TOURIST HOMES AND EATING PLACES | |
| TOWING | |
| Traffic ordinance | |
| Tow trucks | 114-761 et seq. |
| See: TRAFFIC ORDINANCE | |
| Vehicle operation | 114-381 |
| TOY VEHICLES | |
| Traffic ordinance | |
| Toy vehicles on streets and sidewalks | 114-18 |
| TRACTORS | |
| Traffic ordinance | |
| Vehicle equipment | |
| Tractors and vehicles equipped with chains or cleats | 114-814 |
| TRADES (Generally). See: BUSINESSES | |
| TRAFFIC ORDINANCE | |
| Abandoned vehicles and junk | 50-81 et seq. |
| See: ABANDONED VEHICLES AND JUNK | |
| Accidents and accident reports | |
| Accident involving unattended vehicle | 114-192 |
| Accidents involving only property damage | 114-193 |
| Information required | 114-191 |
| Report if driver incapacitated | 114-194 |
| Administration and enforcement | |
| Authority of chief of police to close streets and to emplace signs | 114-54 |
| Authority of chief of police to issue permits | 114-53 |
| Authority of firefighters and rescue squad members to direct traffic | 114-51 |
| Interference with official traffic control devices or railroad signs or signals | 114-55 |
| Meter patrol | |
| Appointment; assignment | 114-151 |
| Compensation and hours of duty | 114-152 |
| Notice of parking offenders | 114-155 |
| Power and duties | 114-153 |
| Power and duties; training | 114-153 |
| Rules and regulations | 114-152 |
| Training | 114-153 |
| Uniform and equipment | 114-154 |
| Powers and duties of police department | 114-52 |
| Vehicle impoundment and immobilization | |
| Immobilization | 114-123 |
| Intent and purpose | 114-121 |
| TRAFFIC ORDINANCE (Cont'd.) | |
| Notice of immobilization | 114-124 |
| Notice to owner of impounded vehicle | 114-125 |
| Notification of vehicle owner and lienholders | 114-129 |
| Owner responsibility | 114-126 |
| Records | 114-127 |
| Release of vehicle | 114-128 |
| Removal and impoundment | 114-122 |
| Rules and regulations | 114-131 |
| Sale of vehicle | 114-130 |
| Violations | |
| Arrest or notice to appear | |
| Answer to notice of violation | 114-82 |
| Bail bond | 114-82 |
| Failure to obey notice of summons | 114-84 |
| Service of notice to appear | 114-82 |
| Bonds | |
| Bail bond | 114-82 |
| Bond for double amount of fine | 114-83 |
| Receipts for bonds posted or fines paid | 114-86 |
| Time for payment | 114-87 |
| City auditor; duties | 114-92 |
| Failure to cooperate with municipal court clerk; interference | |
| Report to council | 114-91 |
| Moving violations | |
| Presumption and precedent condition | 114-81 |
| Parking citations | |
| Citation as prima facie evidence of offense | 114-90 |
| Parking tags or summons | |
| Books, issuance to police | 114-85 |
| Notice to parking offenders failing to obey summons | 114-88 |
| Signing by traffic officers, how | 114-87 |
| Unanswered summonses; warrants; list to municipal court clerk | 114-89 |
| Process to pay or contest citations | 114-90 |
| Receipts for bonds posted or fines paid | 114-86 |
| Time for payment of fines or posting bonds | 114-87 |
| Alcoholic beverages | |
| Intoxicating liquor | |
| Transportation of alcoholic liquors for purpose of sale; presumption arising in certain cases | 6-92 |
| All-terrain vehicles | |
| Authorizing or permitting a minor to violate any provision of this article | 114-866 |
| Definitions | 114-862 |
| Exceptions | 114-864 |
| Exemptions | 114-865 |
| Liability | 114-868 |
| Penalties | 114-867 |

| | Section |
|---|---|
| TRAFFIC ORDINANCE (Cont'd.) | |
| Prohibition of operation and use of all-terrain vehicles | 114-863 |
| Authorized emergency vehicles | 114-13 |
| Bicycles | |
| Brakes | 114-712 |
| Carrying articles | 114-709 |
| Clinging to vehicles | 114-704 |
| Fancy riding | 114-708 |
| Headlamp and rear reflector | 114-710 |
| Obedience to article; duty of parents and guardians; applicability of article to bicycles | 114-701 |
| Penalties for bicycle violations | 114-713 |
| Riding on bicycles | 114-703 |
| Riding on roadways and paths | 114-705 |
| Riding on sidewalk | 114-706 |
| Riding without feet on pedals | 114-707 |
| Signal device | 114-711 |
| Traffic laws apply to persons riding bicycles | 114-702 |
| Boarding or alighting from moving vehicles | 114-23 |
| Citations | |
| Parking citations. See herein: Administration and Enforcement | |
| Code of ordinances | |
| Certain ordinances not affected by Code | 1-17 |
| Courts | |
| Municipal court | |
| Duties of clerk | |
| Reports of fines for traffic violations | 38-34(3) |
| Jurisdiction, powers and duties relating to violations of the traffic ordinance | 38-32 |
| Definitions | 114-2 |
| Fire prevention and protection | |
| Fire department | |
| Emergency medical services division | |
| Schedule of charges for ambulance services | 54-74, 54-75 |
| Use of equipment and materials in motor vehicle emergencies and incidents involving individuals who are not assessed for fire service fees; enforcement | 54-53 |
| Stopping, standing and parking | |
| Stopping, standing or parking prohibited beneath fire escapes and within 15 feet of emergency exits | 114-569 |
| Vehicles laden with explosives or flammable materials | 114-561 |
| Traffic control signs, signals, devices and markings | |
| Fire lanes on private property devoted to public use | 114-241 |
| Vehicle operation | |
| Crossing fire hose | 114-379 |
| Following fire apparatus prohibited | 114-377 |

| | Section |
|---|---|
| TRAFFIC ORDINANCE (Cont'd.) | |
| Funeral processions | 114-17 |
| Glass and injurious materials not to be deposited on street; removal of substances from scene of wrecked vehicle | 114-19 |
| Injuring or tampering with vehicle | 114-21 |
| Interference. See herein: Obstructions | |
| Intersections | |
| Vehicle operation | |
| Obstructing intersection or crosswalk | 114-380 |
| Right-of-way | |
| Upon approaching or entering intersection | 114-491 |
| When entering through highway or stop intersections | 114-494 |
| When turning left at intersection | 114-493 |
| Special stops | |
| Stop signs at intersections | 114-514 |
| Turning, starting and signals on stopping and turning | |
| Required position and method of turning at intersections | 114-461 |
| Turning at intersections | 114-469 |
| Junk dealers; generally | 18-661 et seq. |
| See: JUNK DEALERS | |
| Kanawha Valley Regional Transportation Authority | 2-621 et seq. |
| See: KANAWHA VALLEY REGIONAL TRANSPORTATION AUTHORITY | |
| Licenses and permits | |
| Administration and enforcement | |
| Authority of chief of police to issue permits | 114-53 |
| Bicycles | |
| License and registration. See herein that subheading | |
| Permit to operate authorized emergency vehicle | 114-14 |
| Processions and parades; permit required; exceptions | 114-16 |
| Serious traffic offenses | |
| Proof of alcohol content; license suspension. See herein that subheading | |
| Stopping, standing and parking | |
| Backing up to curb to load or unload; loading permits | 114-563 |
| Vehicle operation | |
| Motor vehicle drivers must be licensed | 114-361 |
| Loading and unloading | |
| Stopping, standing and parking | |
| Backing up to curb to load or unload; loading permits | 114-563 |
| Permitted uses of loading zones | 114-576 |
| Physicians on emergency calls; vehicles while being loaded or unloaded; police department vehicles | 114-567 |

| | Section |
|---|---|
| TRAFFIC ORDINANCE (Cont'd.) | |
| Procedure for establishment of loading zones; conditions governing; loading zone record | 114-575 |
| Truck width, height and load restrictions; 4:00 p.m. to 6:00 p.m. parking prohibited in certain area | 114-573 |
| Manufactured homes and trailers | |
| Trailers and trailer camps | |
| Auto trailer camps | 70-51 et seq. |
| See: MANUFACTURED HOMES AND TRAILERS | |
| Motorized scooter | |
| Additional requirements for operation between sunset and sunrise | 114-917 |
| Authorizing or permitting a minor to violate any provision of this article | 114-919 |
| Authorizing the use of motorized scooters | 114-916 |
| Definitions | 114-915 |
| Liability | 114-921 |
| Penalties | 114-920 |
| Prohibited acts | 114-918 |
| Obedience to chapter by public officials and employees; exceptions as to persons engaged in highway surface work | 114-9 |
| Obedience to police orders | 114-11 |
| Obedience to traffic control instructions at site of street or highway construction or maintenance | 114-12 |
| Obstructions | |
| Administration and enforcement | |
| Interference with official traffic control devices or railroad signs or signals | 114-55 |
| Violations | |
| Report of failure to cooperate with traffic clerk; interference | 114-91 |
| Stopping, standing and parking | |
| Alleys and driveways | |
| Obstructing, public and private | 114-571(b) |
| Vehicle operation | |
| Obstructing intersection or crosswalk | 114-380 |
| Obstruction to driver's view or driving mechanism | 114-365 |
| Offenses by persons owning or controlling vehicles | 114-5 |
| Offenses involving public safety | |
| Weapons | |
| Firearms in municipal parking facilities | 78-171 |
| Parking lots | 18-791 et seq. |
| See: PARKING LOTS | |
| Parking. See herein: Stopping, Standing and Parking | |
| Parties to an offense | 114-4 |
| Pedestrians | |
| Blind pedestrians | 114-669 |

| | Section |
|---|---|
| TRAFFIC ORDINANCE (Cont'd.) | |
| Crossing at other than crosswalks | 114-663 |
| Drivers to exercise due care | 114-664 |
| Hitchhiking | 114-668 |
| Penalties for pedestrian violations | 114-671 |
| Persons working on streets and highways | 114-670 |
| Right-of-way in crosswalks | 114-662 |
| Subject to traffic regulations | 114-661 |
| Traffic control signs, signals, devices and markings | |
| Pedestrian walk and wait signals | 114-237 |
| Use of right half of crosswalks | 114-665 |
| Use of sidewalks | 114-666 |
| Walking along roadway | 114-667 |
| Penalties | 114-3 |
| Permit to operate authorized emergency vehicle | 114-14 |
| Permits. See herein: Licenses and Permits | |
| Persons riding animals; animal-drawn vehicles | 114-10 |
| Processions and parades; permit required; exceptions | 114-16 |
| Provisions of chapter refer to vehicles upon streets and highways; exceptions | 114-7 |
| Railroads | |
| Administration and enforcement | |
| Interference with official traffic control devices or railroad signs or signals | 114-55 |
| Stopping, standing and parking | |
| Bridges, railroad crossings, underpasses and overpasses | 114-572 |
| Vehicle operation | |
| Special stops | |
| At railroad crossings generally | 114-511 |
| Certain vehicles at grade crossings | 114-512 |
| Heavy equipment at grade crossings | 114-513 |
| Records and reports | |
| Accidents and accident reports. See herein that subject | |
| Administration and enforcement | |
| Vehicle impoundment and immobilization | |
| Records | 114-127 |
| Violations | |
| Report of failure to cooperate with traffic clerk; interference | 114-91 |
| Stopping, standing and parking | |
| Permitted uses of loading zones | 114-576 |
| Procedure for establishment of loading zones; conditions governing; loading zone record | 114-575 |
| Removal from streets of wrecked or abandoned vehicles | 114-22 |
| Reports. See herein: Records and Reports | |
| Required obedience to chapter | 114-8 |
| Rights of owners of real property | 114-15 |

| | Section |
|---|---|
| TRAFFIC ORDINANCE (Cont'd.) | |
| Salvage yards; generally | 18-891 et seq. |
| See: SALVAGE YARDS | |
| Secondhand automotive accessories and parts | 18-931 et seq. |
| See: SECONDHAND AUTOMOTIVE ACCESSORIES AND PARTS | |
| Serious traffic offenses | |
| Driving under influence of alcohol, controlled substances or drugs | 114-302 |
| Phrases synonymous with "driving under the influence of alcohol"; validation of warrants and indictments. | 114-303 |
| Proof of alcohol content; license suspension | |
| Fee for withdrawing blood sample and making urine test | 114-326 |
| Hearing procedure; judicial review | 114-327 |
| How blood test administered; use of test results; certain immunity from liability incident to administering test | 114-322 |
| Implied consent to test; administration at direction of police officer | 114-321 |
| Interpretation and use of chemical test | 114-324 |
| Refusal to submit to certain chemical tests; procedure to initiate suspension of driver's license or privilege; consent not withdrawn if arrested person incapable of refusal | 114-323 |
| Right to demand test | 114-325 |
| Reckless driving | 114-301 |
| Short title | 114-1 |
| Signals | |
| Administration and enforcement | |
| Interference with official traffic control devices or railroad signs or signals | 114-55 |
| Bicycles | |
| Signal device | 114-711 |
| Traffic control signs, signals, devices and markings. See herein that subject | |
| Vehicle operation | |
| Turning, starting and signals on stopping and turning. See herein that subheading | |
| Signs | |
| Administration and enforcement | |
| Authority of chief of police to emplace signs | 114-54 |
| Interference with official traffic control devices or railroad signs or signals | 114-55 |
| Stopping, standing and parking | |
| Regulation of parking by signposting in prohibited parking areas generally | 114-564 |

| | Section |
|---|---|
| TRAFFIC ORDINANCE (Cont'd.) | |
| Traffic control signs, signals, devices and markings. See herein that subject | |
| Vehicle operation | |
| Right-of-way | |
| When faced by yield right-of-way sign | 114-492 |
| Special stops | |
| Stop signs at intersections | 114-514 |
| Turning, starting and signals on stopping and turning | |
| Obedience to turn signs and travel indicators | 114-467 |
| Standing. See herein: Stopping, Standing and Parking | |
| State laws adopted by reference | 114-6 |
| Stopping, standing and parking | |
| Adjacent to schools | 114-570 |
| Administration and enforcement | |
| Meter patrol | |
| Notice of parking offenders | 114-155 |
| Alleys and driveways | |
| Obstructing, public and private | 114-571(b) |
| Parking in public | 114-571(a) |
| Backing up to curb to load or unload; loading permits | 114-563 |
| Bridges, railroad crossings, underpasses and overpasses | 114-572 |
| Bus stops or stands | |
| Establishment of | 114-577(c) |
| Length | 114-577(d) |
| Use by bus | 114-577(a) |
| Use by other vehicles | 114-577(b) |
| City-owned parking lots and buildings | |
| Management of and regulations governing city-owned lots and buildings | 114-602 |
| Powers and duties of city council | 114-601 |
| Display for sale; repair or advertising on street | 114-560 |
| Hazardous or congested places | 114-568 |
| Headlamps on parked vehicles | 114-562 |
| Impounding vehicles | 114-552 |
| Limited parking areas | 114-566 |
| Manufactured homes and trailers | |
| Trailers and trailer camps | |
| Auto trailer camps | |
| Parking on street | 70-63 |
| Moving violations | |
| Presumption and precedent condition | 114-81 |
| Violations. See herein: Administration and Enforcement | |
| No parking at entrances to certain buildings | 114-565 |
| Officers authorized to remove illegally stopped vehicles | 114-558 |

Section

TRAFFIC ORDINANCE (Cont'd.)
- On-street metered parking
  - Hours of operation; duty of driver upon entering parking spaces; deposit of coins; overtime parking ..... 114-621
  - No different or additional rights granted by division; disposition of fees ..... 114-626
  - Parking spaces; erecting and relocating meters ..... 114-628
  - Per-hour parking fee established ... 114-623
  - Per-hour parking fees established .. 114-622
  - Slugs; injuring or tampering with meters ..... 114-627
  - Time limits as specified on meters prevail in cases of conflict..... 114-624
  - Vehicle to be parked wholly within marked parking space ..... 114-625
- Owner responsible for illegal parking . 114-553
- Parking citations..... 114-85 et seq.
  - Violations. See herein: Administration and Enforcement
- Parking parallel to curb, close to curb; angle parking..... 114-555
- Permitted uses of loading zones..... 114-576
- Physicians on emergency calls; vehicles while being loaded or unloaded; police department vehicles..... 114-567
- Presumption as to and condition precedent to illegal parking..... 114-551
- Procedure for establishment of loading zones; conditions governing; loading zone record ..... 114-575
- Regulation of parking by signposting in prohibited parking areas generally ..... 114-564
- Residential permit parking
  - Area designation ..... 114-578(a)
  - Authorized permits ..... 114-578(b)
  - Decertification procedure ..... 114-578(d)
  - Policy..... 114-579
  - Violations..... 114-578(c)
- Stopping outside of business or residence districts restricted ..... 114-557
- Stopping, standing, parking beneath fire escapes, emergency exits .... 114-569
- Stopping, standing or parking prohibited in specified places..... 114-559
- Truck width, height and load restrictions ..... 114-573
- Unattended motor vehicle ..... 114-554
- Valet parking areas ..... 114-580
- Vehicle operation
  - Turning, starting and signals on stopping and turning. See herein that subheading

Section

TRAFFIC ORDINANCE (Cont'd.)
- Vehicles for hire
  - Taxicabs
    - Designation and use of stands; taxicabs limited as to parking..... 122-33
    - Double or triple parking or parking too far from curb at a taxicab stand ..... 122-36
    - Stopping..... 122-38
- Vehicles laden with explosives or flammable materials..... 114-561
- Vehicles parked on private property... 114-574
- Where less than ten feet of roadway left available for traffic..... 114-556
- Streets, sidewalks and other public places
  - Obstruction of view of drivers of vehicles by planting or maintaining foliage 102-16
- Summons. See herein: Writs, Warrants and Other Processes
- Tow trucks
  - Generally..... 114-761
  - Minimum standards to be met by towing companies ..... 114-762
- Toy vehicles on streets and sidewalks.... 114-18
- Traffic control signs, signals, devices and markings
  - Effect of previously installed traffic control devices..... 114-231
  - Fire lanes on private property devoted to public use..... 114-241
  - Flashing signals ..... 114-238
  - Installation, maintenance; specifications; state approval required on state highway..... 114-240
  - Locations where right turn on red prohibited ..... 114-236
  - Obedience to traffic control devices.... 114-232
  - Pedestrian walk and wait signals ..... 114-237
  - Signs to be legible and in place ..... 114-233
  - Traffic control map
    - Amendments..... 114-263
    - Established; contents ..... 114-261
    - One-way streets ..... 114-264
    - Prohibited and limited turns ..... 114-265
    - Traffic control file ..... 114-262
  - Traffic control signal legend ..... 114-234
  - Turning right on red regulated ..... 114-235
  - Unauthorized signs, signals or markings; nuisances..... 114-242
  - When "stop" signal may be disregarded 114-239
- Unlawful riding ..... 114-24
- Unlawful taking of vehicle ..... 114-20
- Utilities
  - Sewers and sewage disposal
    - Transporting contents of privies, cesspools and septic tanks over city streets..... 118-80
- Vehicle equipment
  - Bicycles. See herein that subject

| TRAFFIC ORDINANCE (Cont'd.) | Section |
|---|---|
| Brakes | 114-813 |
| Child passenger restraining system required | 114-812 |
| Cutouts and mufflers; racing motors or producing noise; smoke and gasses | 114-818 |
| Driving vehicles carrying projecting objects | 114-822 |
| Horns and other sounding devices | 114-816 |
| Lights | 114-815 |
| Quiet operation of motorcycles; mufflers | 114-819 |
| Rear vision mirror on motorcycles | 114-820 |
| Sirens and exhaust whistles | 114-817 |
| Sound apparatus on vehicles | 114-824 |
| Tractors and vehicles equipped with chains or cleats | 114-814 |
| Transportation and delivery of oil | 114-823 |
| Unsafe and improperly equipped vehicles; all vehicles to be equipped as provided by state law | 114-811 |
| Vehicles transporting explosives | 114-821 |
| Vehicle operation | |
| Backing | 114-367 |
| Closed streets | 114-370 |
| Crossing fire hose | 114-379 |
| Driving on right side of roadway, overtaking and passing | |
| Divided streets | 114-441 |
| Dividing traffic islands; double lines on streets | 114-438 |
| Driving to left of center | 114-436 |
| Keeping to right side of roadway; exceptions | 114-431 |
| Limitations on overtaking on left | 114-435 |
| No passing zones | 114-437 |
| Overtaking and passing on left | 114-433 |
| Passing in opposite directions | 114-432 |
| Roadways laned for traffic | 114-440 |
| Rotary traffic islands | 114-439 |
| When overtaking on right permissible | 114-434 |
| Driving on sidewalk | 114-371 |
| Driving with clutch or gears disengaged | 114-378 |
| Following fire apparatus prohibited | 114-377 |
| Following too closely | 114-376 |
| Motor vehicle drivers must be licensed | 114-361 |
| Obstructing intersection or crosswalk | 114-380 |
| Obstruction to driver's view or driving mechanism | 114-365 |
| One-way streets | 114-369 |
| Play streets | 114-375 |
| Restricted access | 114-368 |
| Right-of-way | |
| Upon approach of authorized emergency vehicles | 114-496 |
| Upon approaching or entering intersection | 114-491 |
| When emerging from alley, private driveway, parking lot or garage | 114-495 |
| When entering through highway or stop intersections | 114-494 |
| When faced by yield right-of-way sign | 114-492 |
| When turning left at intersection | 114-493 |
| Safety equipment and requirements for motorcyclists and motorcycles | 114-364 |
| Safety zones | 114-373 |
| Signs indicating vehicles of certain types or weight prohibited on certain streets or bridges | 114-372 |
| Special stops | |
| At railroad crossings generally | 114-511 |
| Certain vehicles at grade crossings | 114-512 |
| Heavy equipment at grade crossings | 114-513 |
| Stop before emerging from alley or private driveway | 114-515 |
| Stop signs at intersections | 114-514 |
| Upon meeting a stopped school bus; requirements for school buses | 114-516 |
| Speed | |
| Maximum speed limits established | 114-402 |
| Minimum speed | 114-403 |
| Nonpassenger vehicles with pneumatic tires | 114-404 |
| Slow-moving vehicle emblem | 114-407 |
| Speed on bridges | 114-406 |
| Speed restrictions generally | 114-401 |
| Turning, starting and signals on stopping and turning | |
| Stopping and sudden decrease of speed require signal be given | 114-465 |
| Vehicles without pneumatic tires | 114-405 |
| State vehicle inspection certificate required | 114-363 |
| Towing | 114-381 |
| Turning, starting and signals on stopping and turning | |
| Left turns on other than two-way roadways | 114-464 |
| Left turns on two-way roadways | 114-463 |
| Method of giving hand-and-arm signals | 114-471 |
| Obedience to turn signs and travel indicators | 114-467 |
| Required position and method of turning at intersections | 114-461 |
| Right turns | 114-462 |
| Signals by hand and arm or signal device | 114-470 |
| Starting parked vehicle | 114-468 |
| Stopping and sudden decrease of speed require signal be given | 114-465 |
| Traffic control signs, signals, devices and markings | |
| Locations where right turn on red prohibited | 114-236 |
| Traffic control map | |
| Prohibited and limited turns | 114-265 |
| Turning right on red regulated | 114-235 |

| | Section |
|---|---|
| TRAFFIC ORDINANCE (Cont'd.) | |
| Turning at intersections | 114-469 |
| U-turns | 114-466 |
| Vehicle registration plates required | 114-362 |
| Zones of quiet | 114-374 |
| Vehicles for hire; generally | 122-31 et seq. |
| See: VEHICLES FOR HIRE | |
| Warrants. See herein: Writs, Warrants and Other Processes | |
| Weight limits | |
| Permitting excessive size and weight of vehicles on city streets and highways | 114-791 |
| Vehicular truck traffic on Kanawha Boulevard | 114-792 |
| Writs, warrants and other processes | |
| Administration and enforcement | |
| Violations | |
| Failure to obey notice of summons | 114-84 |
| How traffic officers to sign summons; time for payment of fines or posting bonds | 114-87 |
| Issuance of books of parking tags or summons to police | 114-85 |
| List to chief of police of unanswered summonses; warrants | 114-89 |
| Notice to parking offenders failing to obey summons | 114-88 |
| Serious traffic offenses | |
| Phrases synonymous with "driving under the influence of alcohol"; validation of warrants and indictments | 114-303 |
| TRAILERS. See: MANUFACTURED HOMES AND TRAILERS | |
| TRAINS. See: RAILROADS | |
| TRAPPING | |
| Animals | |
| City declared bird sanctuary; penalty | 10-12 |
| TRASH. See: SOLID WASTE | |
| TREASURER. See: CITY TREASURER | |
| TREE SERVICES | |
| Definitions | 18-1161 |
| Disposal of material | 18-1165 |
| Identification card | 18-1164 |
| Penalties | 18-1162 |
| Permit required | 18-1163 |
| TREES. See: VEGETATION | |
| TRESPASS | |
| Railroads | |
| Trespass on railroad property | 94-6 |
| TRUCKS. See: TRAFFIC ORDINANCE | |

**U**

| | Section |
|---|---|
| UNDERAGE PERSONS. See: MINORS | |
| UNIVERSITIES. See: SCHOOLS | |
| UNSAFE, UNSANITARY OR DANGEROUS BUILDINGS | |
| Abatement of unsafe, unsanitary or dangerous buildings | 14-260 et seq. |
| See: BUILDINGS AND BUILDING REGULATIONS | |
| URBAN RENEWAL AUTHORITY. See: COMMUNITY DEVELOPMENT | |
| UTILITIES | |
| Buildings and building regulations | |
| Housing code; minimum standards | |
| Water supply; toilet and bath facilities; plumbing | 14-144 |
| Community development; generally | 30-1 et seq. |
| See: COMMUNITY DEVELOPMENT | |
| Energy benchmarking | 2-751 et seq. |
| See: ENERGY BENCHMARKING | |
| Licenses and permits | |
| Sewers and sewage disposal | |
| Certain premises required to have privies; privy permits; requirements as to privies | 118-76 |
| Discharge restrictions | |
| Industrial user discharge permit application | 118-207 |
| Industrial user discharge permit issuance | 118-208 |
| Industrial user discharge permit requirements | 118-206 |
| License required to engage in business of laying or constructing sewers or drainways | 118-73 |
| Septic tank permits and requirements | 118-75 |
| Taps | |
| Permit for connection; tapping charge | 118-101 |
| Tapping or opening sewer without permit | 118-102 |
| Natural resources; generally | 74-31 et seq. |
| See: NATURAL RESOURCES | |
| Offenses | |
| Offenses involving property rights | |
| Larceny and related offenses | |
| Meters measuring, companies furnishing utilities | 78-85 |
| Parks and recreation | |
| Haddad Riverfront Park events | |
| Use of designated city electrical hookups by boaters | 82-161 et seq. |
| Permits. See herein: Licenses and Permits | |
| Planning; generally | 90-31 et seq. |
| See: PLANNING | |

| | Section |
|---|---|
| UTILITIES (Cont'd.) | |
| Railroads; generally | 94-1 et seq. |
| See: RAILROADS | |
| Sale of water | 58-41 et seq. |
| See: SALE OF WATER | |
| Sewers and sewage disposal | |
| Abatement of violations | 118-79 |
| Application for sewer service required | 118-62 |
| Certain buildings required to have sanitary water closets, connected to sanitary sewer or sanitary septic tanks | 118-74 |
| Certain premises required to have privies; privy permits; requirements as to privies | 118-76 |
| City not liable for damage | 118-66 |
| Declaration of necessity; sewer connection required where available | 118-61 |
| Discharge regulations | |
| Administrative enforcement remedies | 118-213 |
| Affirmative defenses to discharge violations | 118-217 |
| Applicability | 118-202 |
| Compliance monitoring | 118-210 |
| Confidential information | 118-211 |
| Control of prohibited wastes | 118-205 |
| Criminal penalty | 118-216 |
| Definitions | 118-201 |
| Industrial user discharge permit | |
| Application | 118-207 |
| Issuance | 118-208 |
| Requirements | 118-206 |
| Judicial enforcement remedies | 118-214 |
| Monitoring and reporting requirement | 118-209 |
| Publication of users in significant noncompliance | 118-212 |
| Supplemental enforcement authority | 118-215 |
| Wastewater | |
| Prohibitions and limitations on wastewater discharges | 118-203 |
| Pretreatment of wastewater | 118-204 |
| Entering sewer | 118-68 |
| Injury to sewer | 118-69 |
| Introducing into sewer hot, corrosive or explosive substances | 118-71 |
| Leaks | 118-64 |
| License required to engage in business of laying or constructing sewers or drainways | 118-73 |
| Matter not to be thrown into sewer | 118-70 |
| Obstruction | 118-72 |
| Professional cleaners of septic tanks and privies | 118-82 |
| Rates and charges | |
| Authority vested in sanitary board for billing and collection | 118-144 |
| City subject to established rates or charges | 118-143 |
| Duration of liability for sewer service | 118-146 |
| Established rates applicable to premises subsequently served | 118-142 |
| Establishment of a schedule of just and equitable rates or charges; use of water meters | |
| Rates | 118-141(2) |
| Rules and regulations | 118-141(1) |
| Lien for enforcement of collection of billed rates or charges | 118-145 |
| Removal of contents of privies, cesspools and septic tanks; transportation over city streets; final disposition | 118-80 |
| Responsibility for and requirements concerning installation and maintenance of sanitary facilities | 118-78 |
| Sanitary board | |
| Created; powers and duties; composition; appointment and term of members | 118-121 |
| Officers; salaries; bond of treasurer | 118-122 |
| Powers and duties | 118-123 |
| Rates and charges | |
| Authority vested in sanitary board for billing and collection | 118-144 |
| Septic tank permits and requirements | 118-75 |
| Sewage disposal by broad irrigation, subsoil irrigation | 118-77 |
| Tampering with sewer appurtenances | 118-67 |
| Taps | |
| Approval of connections by city inspector | 118-104 |
| Permit for connection; tapping charge | 118-101 |
| Sewer taps only by authorized persons | 118-103 |
| Tapping or opening sewer without permit | 118-102 |
| Unauthorized connections prohibited | 118-65 |
| Unlawful deposit of fecal matter | 118-81 |
| User's responsibility to keep sewer clean | 118-63 |
| Wastewater containing fats, oils, and grease | |
| Definitions | 118-241 |
| Disposal of fats, oils, and grease | 118-246 |
| Enforcement | 118-248 |
| Grease trap permits | 118-245 |
| Grease trap size | 118-243 |
| Inspection | 118-247 |
| New construction | 118-244 |
| Prohibitions | 118-242 |
| Solid waste; generally | 98-1 et seq. |
| See: SOLID WASTE | |
| Streets, sidewalks and other public places; generally | 102-1 et seq. |
| See: STREETS, SIDEWALKS AND OTHER PUBLIC PLACES | |
| Taxation | |
| Business and occupation tax | |
| Tax imposed; exemptions and credits Public service or utility business | 110-55 |

Section

UTILITIES (Cont'd.)
Public utilities tax ..... 110-311 et seq.
See: TAXATION
Water service
Injury to water fixtures ..... 118-33
Tapping water pipes..... 118-32
Unlawful use of water..... 118-31
Unlawful waste, flooding or diversion of water..... 118-34

**V**

VACANT STRUCTURE REGISTRY
Provisions re ..... 14-200 et seq.
See: BUILDINGS AND BUILDING REGULATIONS

VACATION OF PUBLIC WAYS, ETC.
Code of ordinances
Certain ordinances not affected by Code 1-17
Streets, sidewalks and other public places
Street and alley closings
Contents of petition to vacate ..... 102-263

VEGETATION
Cemeteries
Spring Hill Cemetery
Destruction or injury of shrubbery or monuments ..... 22-40
Maintenance of premises
Disposition of grass, weeds and vegetation ..... 50-123
Removal of prohibited accumulations of refuse and vegetation; joint responsibility of property owners and persons in charge; action by city ..... 50-124
Solid waste
Collection and disposal
Yard (green) waste
Separation, collection and disposal of yard (green) waste..... 98-151
Fallen trees; stumps; debris..... 98-9
Streets, sidewalks and other public places 102-2 et seq.
See: STREETS, SIDEWALKS AND OTHER PUBLIC PLACES
Tree planting, maintenance and removal regulations
Abuse or mutilation of public trees.... 50-181
City arborist
Duties ..... 50-175
Interference with..... 50-179
Definitions ..... 50-173
Emergencies..... 50-182
Impeding water flow, air, and fertilizer to tree roots ..... 50-180
Permits
Application data..... 50-177
Required..... 50-176
Placing materials on public property .. 50-180
Public utility right-of-way maintenance 50-186

Section

VEGETATION (Cont'd.)
Purpose ..... 50-172
Removal, replanting, and replacement. 50-178
Repealer..... 50-185
Severability..... 50-184
Short title ..... 50-171
Tree board
Established ..... 50-174
Violation and penalty ..... 50-183
Tree services ..... 18-1161 et seq.
See: TREE SERVICES

VEHICLES FOR HIRE
Ambulances. See that subject
Taxicabs
Common carriers; certificate of convenience and necessity and permits..... 122-37
Condemnation of defective vehicles.... 122-40
Definitions ..... 122-31
Designation and use of stands; taxicabs limited as to parking..... 122-33
Disorderly conduct; liquor ..... 122-41
Double or triple parking or parking too far from curb at a taxicab stand . 122-36
Licensing and regulation of stands.... 122-34
Owner responsible for illegal operating 122-39
Penalties ..... 122-32
Stopping..... 122-38
Use of stand by persons other than licensee ..... 122-35
Traffic ordinance
Stopping, standing and parking
Bus stops or stands..... 114-577
Tow trucks ..... 114-761 et seq.
See: TRAFFIC ORDINANCE

VEHICLES. See: TRAFFIC ORDINANCE

VENDORS
Health and sanitation
Fruit vendors' refuse containers..... 58-6
Street vendors..... 18-1031 et seq.
See: STREET VENDORS

VENTING
Buildings and building regulations
Building code
Construction with respect to fire prevention code and with standards for gas piping and appliance venting..... 14-36

VICIOUS DOGS
Animals
Dogs; keeping..... 10-118

VICTIMS ASSISTANCE COMMISSION
Composition and organization of commission..... 2-722
Created..... 2-721
Duties and powers..... 2-723

Section

VICTIMS ASSISTANCE COMMISSION (Cont'd.)
Finances and reporting ..... 2-724

VOCATIONS (Generally). See: BUSINESSES

VOLUNTEERS
Emergency management
Emergency services department
Utilization of existing services and facilities; volunteer assistance. 42-38

VOTES AND VOTING
Kanawha Valley Regional Transportation Authority
Number and distribution of votes of city members ..... 2-625
Rules of council
When a member abstains from voting, (App. A § 15)

VOUCHERS
Finance ..... 2-371

**W**

W. VA. CODE
Definitions and rules of construction..... 1-2

WALLS. See: FENCES, WALLS, HEDGES AND ENCLOSURES

WARDS
Code of ordinances
Certain ordinances not affected by Code 1-17

WARRANTS. See: WRITS, WARRANTS AND OTHER PROCESSES

WASTE MANAGEMENT
Animals
Dead animals and fowl; disposition of carcasses ..... 10-5
Responsibility for removal of carcasses 10-6
Buildings and building regulations
Housing code; minimum standards
Waste disposal and receptacles ..... 14-147
Health and sanitation
Fruit vendors' refuse containers..... 58-6
Maintenance of premises
Prohibited accumulation or discharge of liquid wastes ..... 50-121
Removal of prohibited accumulations of refuse and vegetation; joint responsibility of property owners and persons in charge; action by city ..... 50-124
Requirements as to maintenance of premises and disposition of refuse 50-122
Natural resources
Commercial water wells
Deposits in sewers from commercial wells..... 74-38

Section

WASTE MANAGEMENT (Cont'd.)
Sewer service charges..... 74-37
Solid waste; generally..... 98-1 et seq.
See: SOLID WASTE
Utilities
Sewers and sewage disposal ..... 118-61 et seq.
See: UTILITIES

WASTEWATER
Sewers and sewage disposal
Discharge restrictions
Pretreatment of wastewater..... 118-204
Prohibitions and limitations on wastewater discharges ..... 118-203

WATER. See: UTILITIES

WATERWAYS. See: BOATS, DOCKS AND WATERWAYS

WEAPONS. See: FIREARMS AND WEAPONS

WEEDS. See: VEGETATION

WELLS
Natural resources
Commercial water wells ..... 74-31 et seq.
See: NATURAL RESOURCES
Solid waste
Prohibited discharges in watercourses, wells, similar places..... 98-3

WEST VIRGINIA, STATE OF. See: STATE

WHOLESALE TRADE. See: BUSINESSES

WILDLIFE
Certain animals, reptiles
Keeping within city prohibited except pursuant to license or permit .... 10-13
Urban hunting ..... 10-171 et seq.
See: ANIMALS

WINE. See: ALCOHOLIC BEVERAGES

WIRES. See: POLES AND WIRES

WITNESSES
Courts ..... 38-37 et seq.
See: COURTS

WORKERS' COMPENSATION
Finance
Generally..... 2-377
Fire prevention and protection
Fire department
Workers' compensation; pay of firefighters/EMS injured in performance of duty ..... 54-51
Law enforcement
Police department
Workers' compensation; pay of police officers injured in performance of duty..... 66-37

| | Section |
|---|---|
| WRITING | |
| Definitions and rules of construction | |
| Writing | 1-2 |
| Finance | |
| Contracts and purchases | |
| Bids | |
| When advertising for bids required; publication of advertisement; time for opening of bids; letting of contracts; contracts to be in writing | 2-471 |
| WRITS, WARRANTS AND OTHER PROCESSES | |
| Abandoned vehicles and junk | |
| Injunctive relief | 50-91 |
| Buildings and building regulations | |
| Housing code; administration and enforcement | |
| Violations | |
| Nonliability of city employees | 14-113 |
| Businesses | |
| Licenses generally | |
| Prosecution for violations; recourse of city to seek injunctions | 18-48 |
| Charitable solicitations | |
| Permit | |
| Suspension or cancellation of permit; jurisdiction of municipal court to issue subpoenas duces tecum | 26-35 |
| Courts | 38-34 et seq. |
| See: COURTS | |
| Salvage yards | |
| Violations and penalties; injunctive relief to abate nuisances | 18-892 |
| Taxation | |
| Business and occupation tax | |
| Tax collection; injunction | 110-144 |
| Traffic ordinance | 114-84 et seq. |
| See: TRAFFIC ORDINANCE | |

**Y**

| | |
|---|---|
| YEAR | |
| Definitions and rules of construction | 1-2 |
| YOUNG PERSONS. See: MINORS | |

**Z**

| | |
|---|---|
| ZONES | |
| Buildings and building regulations | |
| Fence regulations | |
| Barbed wire fences within the City of Charleston | 14-2(a) |
| Traffic ordinance | |
| Stopping, standing and parking | |
| Procedure for establishment of loading zones; conditions governing; loading zone record | 114-575, 114-576 |
| ZONES (Cont'd.) | |
| Vehicle operation | |
| Driving on right side of roadway, overtaking and passing | |
| No passing zones | 114-437 |
| Safety zones | 114-373 |
| Zones of quiet | 114-374 |
| ZONING (Generally) | |
| Animals; generally | 10-1 et seq. |
| See: ANIMALS | |
| Buildings and building regulations; generally | 14-1 et seq. |
| See: BUILDINGS AND BUILDING REGULATIONS | |
| Businesses | |
| Licenses generally | |
| Zoning ordinance must be complied with; responsibility of applicants for city licenses | 18-38 |
| Community development; generally | 30-1 et seq. |
| See: COMMUNITY DEVELOPMENT | |
| Manufactured homes and trailers | 70-51 et seq. |
| See: MANUFACTURED HOMES AND TRAILERS | |
| Natural resources; generally | 74-31 et seq. |
| See: NATURAL RESOURCES | |
| Planning | 90-31 et seq. |
| See: PLANNING | |
| Streets, sidewalks and other public places; generally | 102-1 et seq. |
| See: STREETS, SIDEWALKS AND OTHER PUBLIC PLACES | |
| Traffic ordinance; generally | 114-1 et seq. |
| See: TRAFFIC ORDINANCE | |
| Zoning ordinance | 91-1 |